SUPPLEMENT NO. 64
VOLUME I
June 2026

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6735, adopted February 25, 2026.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified — Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11, SH:12	SH:11, SH:12
5.90:1, 5.90:2	5.90:1, 5.90:2
5.90:13—5.90:16	5.90:13—5.90:16
6.14:1, 6.14:2	6.14:1—6.14:2.1
16.01:1	16.01:1
CCT:95	CCT:95
CCTS:45, CCTS:46	CCTS:45, CCTS:46
CDi:1—CDi:87	CDi:1—CDi:87

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SUPPLEMENT NO. 63
VOLUME I
January 2026

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6724, adopted August 27, 2025.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified — Volume I for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11, SH:12
2:1, 2:2	2:1, 2:2
2.08:1—2.08:17	2.08:1—2.08:4
6.16:1, 6.16:2	6.16:1, 6.16:2
12.16:1, 12.16:2	12.16:1, 12.16:2
12.16:19—12.16:22	12.16:19—12.16:22
12.16:25—12.16:28	12.16:25—12.16:28
14:1	14:1
14.04:1—14.04:8	14.04:1—14.04:9
CCT:95	CCT:95
CCTS:45, CCTS:46	CCTS:45, CCTS:46
SRT:1—SRT:6	SRT:1—SRT:6
CDi:1—CDi:90	CDi:1—CDi:87

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SUPPLEMENT NO. 62
VOLUME I
July 2025

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6699, adopted January 22, 2025 and Ordinance No. 6702, adopted February 12, 2025.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified — Volume I for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
8.10:1—8.10:7	8.10:1—8.10:9
8.12:1—8.12:4.1	8.12:1—8.12:4
8.23:1, 8.23:2	8.23:1, 8.23:2
8.23:7—8.23:10	8.23:7—8.23:10
CCT:95	CCT:95
CCTS:45, CCTS:46	CCTS:45, CCTS:46
CDi:1—CDi:89	CDi:1—CDi:90

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SUPPLEMENT NO. 61
VOLUME I
February 2025

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinace No. 6684, adopted August 28, 2024.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified — Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
6.04:1, 6.04:2	6.04:1—6.04:2.1
6.04:9, 6.04:10	6.04:9—6.04:10.1
6.06:2.1, 6.06:2.2	6.06:2.1, 6.06:2.2
6.30:1—6.30:8	6.30:1—6.30:8
6.30:11—6.30:14	6.30:11—6.30:14.1
6.30:19—6.30:28	6.30:19—6.30:25
8.10:1—8.10:2.1	8.10:1—8.10:2.1
CCT:93, CCT:94	CCT:93—CCT:95
CCTS:45, CCTS:46	CCTS:45, CCTS:46
CDi:1—CDi:89	CDi:1—CDi:89

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SUPPLEMENT NO. 60
VOLUME I
July 2024

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6668, adopted January 17, 2024.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified — Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9—SH:11
1.02:1	1.02:1
2.06:1—2.06:10	2.06:1—2.06:10.4
4:1, 4:2	4:1, 4:2
	4.08:1—4.08:5
5:1	5:1
5.15:1—5.15:9	5.15:1
6.06:1, 6.06:2	6.06:1, 6.06:2
6.06:7—6.06:10	6.06:7—6.06:9
8.12:1, 8.12:2	8.12:1, 8.12:2
8.12:13	8.12:13, 8.12:14
CCT:93, CCT:94	CCT:93, CCT:94
CCTS:45	CCTS:45, CCTS:46
SRT:3—SRT:6	SRT:3—SRT:6
CDi:1—CDi:89	CDi:1—CDi:89

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VOLUME I
February 2024

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinace No. 6651, adopted April 12, 2023.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified — Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
2.08:5—2.08:8	2.08:5—2.08:8
12.16:19— 12.16:22	12.16:19—12.16:22.6
CCT:93, CCT:94	CCT:93, CCT:94
CCTS:45	CCTS:45

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SUPPLEMENT NO. 58
VOLUME I
March 2023

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6646, adopted January 25, 2023.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified — Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
1.04:1, 1.04:2	1.04:1, 1.04:2
6.04:1—6.04:4	6.04:1—6.04.4.1
12.16:20.3—12.16:22	12.16:20.3—12.16:22
CCT:93, CCT:94	CCT:93, CCT:94
CCTS:45	CCTS:45
CDi:1—CDi:90	CDi:1—CDi:89

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SUPPLEMENT NO. 57
VOLUME I
September 2022

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6622, adopted March 9, 2022.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified — Volume I for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9, SH:10
1.02:1	1.02:1
5:1	5:1
5.07:1—5.07:12	5.07:1—5.07:12.11
5.21:1—5.21:16	5.21:1
5.22:1—5.22:16	5.22:1—5.22:14
8.10:1, 8.10:2	8.10:1, 8.10:2
8.10:7	8.10:7
8.18:1	8.18:1, 8.18:2
8.23:3, 8.23:4	8.23:3, 8.23:4
CCT:93	CCT:93, CCT:94
CCTS:43, CCTS:44	CCTS:43—CCTS:45
SRT:1—SRT:7	SRT:1—SRT:6
CDi:2.1—CDi:4	CDi:3—CDi:4.1
CDi:6.1—CDi:28.1	CDi:7—CDi:28.2
CDi:31—CDi:66	CDi:31—CDi:66.5
CDi:73—CDi:84.1	CDi:73—CDi:77
CDi:89, CDi:90	CDi:89, CDi:90

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SUPPLEMENT NO. 56
VOLUME I
December 2021

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6594, adopted May 12, 2021.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified — Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
2.10:1, 2.10:2	2.10:1, 2.10:2
12.16:9—12.16:12	12.16:9—12.16:12.1
12.16:15—12.16:18	12.16:15—12.16:18.1
CCT:93	CCT:93
CCTS:43, CCTS:44	CCTS:43, CCTS:44
CDi:24.1—CDi:26	CDi:25—CDi:26.2

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SUPPLEMENT NO. 55
VOLUME I
February 2021

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6584, adopted December 2, 2020.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified —Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
6.06:7, 6.06:8	6.06:7—6.06:8.1
6.07:3, 6.07:4	6.07:3, 6.07:4
CCT:93	CCT:93
CCTS:43, CCTS:44	CCTS:43, CCTS:44
SRT:1—SRT:7	SRT:1—SRT:7

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SUPPLEMENT NO. 54
VOLUME I
October 2020

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6572, adopted August 12, 2020 .

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified —Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7—SH:9
2.10:7, 2.10:8	2.10:7, 2.10:8
4.04:1—4.04:2.1	4.04:1, 4.04:2
8.10:3—8.10:7	8.10:3—8.10:7
CCT:93	CCT:93
CCTS:43, CCTS:44	CCTS:43, CCTS:44
CDi:4.1—CDi:6	CDi:5—CDi:6.1
CDi:11, CDi:12	CDi:11, CDi:12

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SUPPLEMENT NO. 53
VOLUME I
July 2020

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6560, adopted April 8, 2020.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
1.05:15—1.05:17	1.05:15—1.05:17
2.06:3—2.06:10	2.06:3—2.06:10
4.04:9—4.04:12	4.04:9—4.04:12
5.15:7, 5.15:8	5.15:7, 5.15:8
5.20:5, 5.20:6	5.20:5, 5.20:6
12.16:25, 12.16:26	12.16:25, 12.16:26
CCT:93	CCT:93
CCTS:43, CCTS:44	CCTS:43, CCTS:44

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SUPPLEMENT NO. 52
VOLUME I
May 2020

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6548, adopted February 26, 2020.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
1:1	1:1
	1.08:1, 1.08:2
2.08:3, 2.08:4	2.08:3, 2.08:4
2.16:1—2.16:4	2.16:1—2.16:5
4.04:1, 4.04:2	4.04:1—4.04:2.1
5:1	5:1
5.05:1—5.05:4	5.05:1—5.05:4.1
	5.23:1—5.23:9
5.90:3, 5.90:4	5.90:3, 5.90:4
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12.16:20.3, 12.16:20.4	12.16:20.3, 12.16:20.4
12.30:1	12.30:1
CCT:91, CCT:92	CCT:91—CCT:93
CCTS:43, CCTS:44	CCTS:43, CCTS:44
SRT:1—SRT:7	SRT:1—SRT:7
CDi:7, CDi:8	CDi:7, CDi:8
CDi:27, CDi:28	CDi:27—CDi:28.1
CDi:33—CDi:40	CDi:33—CDi:40.1
CDi:51—CDi:52.1	CDi:51—CDi:52.2

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SUPPLEMENT NO. 51
VOLUME I
November 2019

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6525, adopted September 11, 2019.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, SH:8	SH:7, SH:8
2.08:3—2.08.8.1	2.08:3—2.08.8.1
2.08:15—2.08:17	2.08:15—2.08:17
16:1	16:1
16.01:1	16.01:1
CCT:91, CCT:92	CCT:91, CCT:92
CCTS:43	CCTS:43, CCTS:44
CDi:25, CDi:26	CDi:25, CDi:26
CDi:83, CDi:84	CDi:83—CDi:84.1

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SUPPLEMENT NO. 50
VOLUME I
August 2019

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6515, adopted May 8, 2019.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7, SH:8
4:1, 4:2	4:1, 4:2
	4.07:1—4.07:3
5:1	5:1
5.05:1—5.05:7	5.05:1—5.05:10
5.06:1—5.06:3	5.06:1—5.06:11
5.07:1—5.07:4	5.07:1—5.07:4
5.07:11—5.07:14	5.07:11—5.07:14
6.30:27, 6.30:28	6.30:27, 6.30:28
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12:1, 12:2	12:1, 12:2
12.26:1	12.26:1—12.26:6
CCT:91, CCT:92	CCT:91, CCT:92
CCTS:43	CCTS:43
SRT:1—SRT:7	SRT:1—SRT:7
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:7, CDi:8	CDi:7, CDi:8
CDi:11, CDi:12	CDi:11, CDi:12
CDi:33, CDi:34	CDi:33, CDi:34
CDi:43, CDi:44	CDi:43, CDi:44

Remove Old Pages	*Insert New Pages*
CDi:51—CDi:52.1	CDi:51—CDi:52.1
CDi:59, CDi:60	CDi:59, CDi:60

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SUPPLEMENT NO. 49
VOLUME I
April 2019

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6497, adopted January 23, 2019.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
1.04:3	1.04:3
6.20:1, 6.20:2	6.20:1, 6.20:2
12.16:45—12.16:48.2	12.16:45—12.16:48.2.1
14:1	14:1
14.04:1—14.04:8	14.04:1—14.04:8
	14.30:1—14.30:14
CCT:91, CCT:92	CCT:91, CCT:92
CCTS:43	CCTS:43
SRT:1—SRT:7	SRT:1—SRT:7
CDi:22.1—CDi:24	CDi:23—CDi:24.2

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SUPPLEMENT NO. 48
VOLUME I
December 2018

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6486, adopted October 24, 2018.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
2.06:1—2.06:10.1	2.06:1—2.06:10
8.23:1, 8:23.2	8.23:1—8.23:2.1
CCT:91, CCT:92	CCT:91, CCT:92
CCTS:43	CCTS:43
CDi:4.1	CDi:4.1
CDi:13—CDi:16	CDi:13—CDi:16.1
CDi:46.1, CDi:46.2	CDi:46.1, CDi:46.2

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SUPPLEMENT NO. 47
VOLUME I
September 2018

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6482, adopted August 22, 2018.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5—SH:7
2:1	2:1, 2:2
	2:24:1—2:24:9
4:1, 4:2	4:1, 4:2
	4.06:1—4.06:7
5:1	5:1
5.05:3, 5.05:4	5.05:3—5.05:4.1
5.21:1—5.21:15	5.21:1—5.21:16
	5.22:1—5.22:16
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6.06:7—6.06:10	6.06:7—6.06:10
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8.23:1, 8.23:2	8.23:1, 8.23:2
8.23:11, 8.23:12	8.23:11—8:23.12.1
CCT:91	CCT:91, CCT:92
CCTS:43	CCTS:43
SRT:1—SRT:6	SRT:1—SRT:7
CDi:12.1—CDi:22.1	CDi:13—CDi:22.2
CDi:29—CDi:46	CDi:29—CDi:46.2
CDi:56.1—CDi:58	CDi:57—CDi:58.1
CDi:63, CDi:64	CDi:63—CDi:64.1
CDi:72.1, CDi:72.2	CDi:72.1, CDi:72.2
CDi:89, CDi:90	CDi:89, CDi:90

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SUPPLEMENT NO. 46
VOLUME I
July 2018

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6461, adopted April 25, 2018.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
2:1	2:1
2.06:1, 2.06:2	2.06:1, 2.06:2
2.06:11—2.06.14.1	2.06:11—2.06:13
6.06:37, 6.06:38	6.06:37—6.06:38.1
8:1	8:1
8.10:1, 8.10:2	8.10:1—8.10:2.1
	8.38:1, 8.38:2
12:1, 12:2	12:1, 12:2
12.16:1, 12.16:2	12.16:1, 12.16:2
12.16:25—12.16:28	12.16:25—12.16:28.1
12.30:1—12.30:3	12.30:1
CCT:91	CCT:91
CCTS:43	CCTS:43
SRT:1, SRT:2	SRT:1, SRT:2
CDi:7—CDi:10	CDi:7—CDi:10
CDi:18.1—CDi:22.1	CDi:19—CDi:22.1
CDi:41—CDi:42.1	CDi:41—CDi:42.1
CDi:49, CDi:50	CDi:49, CDi:50
CDi:54.1—CDi:56	CDi:55—CDi:56.1
CDi:60.1—CDi:66	CDi:61—CDi:66

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SUPPLEMENT NO. 45
VOLUME I
March 2018

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6449, adopted February 14, 2018.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Included in the Charter is:

Charter Amendment effective October 1, 2017.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
CHT:1—CHT:58	CHT:1—CHT:62
4.04:7—4.04:12	4.04:7—4.04.12.1
5.21:9, 5.21:10	5.21:9, 5.21:10
8.10:1, 8.10:2	8.10:1, 8.10:2
8.10:7	8.10:7
8.22:1—8.22:23	8.22:1—8.22:24
CCT:91	CCT:91
CCTS:43	CCTS:43
CDi:10.1—CDi:12.1	CDi:11—CDi:12.1
CDi:23, CDi:24	CDi:23, CDi:24
CDi:31, CDi:32	CDi:31, CDi:32
CDi:41, CDi:42	CDi:41—CDi:42.1

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SUPPLEMENT NO. 44
VOLUME I
January 2018

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6439, adopted October 11, 2017.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
5.13:5—5.13:10	5.13:5—5.13:10.2
12.16:7, 12.16:8	12.16:7, 12.16:8
12.16:11—12.16:20.1	12.16:11—12.16:20.4
12.16:48.3, 12.16:48.4	12.16:48.3, 12.16:48.4
CCT:91	CCT:91
CCTS:43	CCTS:43

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SUPPLEMENT NO. 43
VOLUME I
September 2017

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6435, adopted August 9, 2017.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
2.20:7—2.20:10	2.20:7—2.20:9
4.04:1—4.04:4	4.04:1—4.04:4.1
5.21:1, 5.21:2	5.21:1, 5.21:2
5.21:7—5.21:15	5.21:7—5.21:15
6.30:1, 6.30:2	6.30:1, 6.30:2
6.30:9, 6.30:10	6.30:9—6.30:10.1
6.30:25—6.30:28	6.30:25—6.30:28
CCT:91	CCT:91
CCTS:43	CCTS:43
SRT:3—SRT:6	SRT:3—SRT:6
CDi:15—CDi:18	CDi:15—CDi:18.1
CDi:63—CDi:64.1	CDi:63—CDi:64.1
CDi:69, CDi:70	CDi:69—CDi:70.1

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SUPPLEMENT NO. 42
VOLUME I
April 2017

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6423, adopted January 11, 2017.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5, SH:6
5.07:1, 5.07:2	5.07:1, 5.07:2
5.07:6.3	5.07:6.3, 5.07:6.4
CCT:91	CCT:91
CCTS:43	CCTS:43
CDi:3—CDi:4.1	CDi:3—CDi:4.1

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SUPPLEMENT NO. 41
VOLUME I
January 2017

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6416, adopted October 12, 2016.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Charter Amendment effective October 1, 2015.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CHT:1—CHT:56	CHT:1—CHT:58
2:1	2:1
2.08:11, 2.08:12	2.08:11, 2.08:12
	2.22:1—2.22:3
14.04:1—14.04:5	14.04:1—14.04:8
CCT:89—CCT:91	CCT:89—CCT:91
CCTS:41, CCTS:42	CCTS:41—CCTS:43
SRT:1—SRT:6	SRT:1—SRT:6
CHTi:1—CHTi:19	CHTi:1—CHTi:17
CDi:6.1—CDi:10	CDi:7—CDi:10.1
CDi:43, CDi:44	CDi:43—CDi:44.1
CDi:52.1	CDi:52.1

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SUPPLEMENT NO. 40
VOLUME I
September 2016

ADMINISTRATIVE CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6412, adopted August 24, 2016.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
5:1	5:1
5.11:1	5.11:1—5.11:5
12.16:1, 12.16:2	12.16:1, 12.16:2
12.16:12.3, 12.16:12.4	12.16:12.3, 12.16:12.4
12.16:17—12.16:20	12.16:17—12.16:20.1
CCT:89, CCT:90	CCT:89, CCT:90
CCTS:41, CCTS:42	CCTS:41, CCTS:42
SRT:3—SRT:6	SRT:3—SRT:6
CDi:27—CDi:30.1	CDi:27—CDi:30.1
CDi:55, CDi:56	CDi:55, CDi:56

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VOLUME I
September 2016

ADMINISTRATIVE CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6401, adopted May 11, 2016.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
6.06:37, 6.06:38	6.06:37, 6.06:38
6.07:1, 6.07:2	6.07:1—6.07:2.1
6.30:19—6.30:28	6.30:19—6.30:28
8.23:11, 8.23:12	8.23:11, 8.23:12
CCT:89, CCT:90	CCT:89, CCT:90
CCTS:41, CCTS:42	CCTS:41, CCTS:42
CDi:51, CDi:52	CDi:51, CDi:52
CDi:71, CDi:72	CDi:71, CDi:72

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SUPPLEMENT NO. 38
VOLUME I
March 2016

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6394, adopted March 9, 2016.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
1:1	1:1
	1.07:1, 1.07:2
5:1	5:1
5.07:1—5.07:6	5.07:1—5.07:6.3
6:1	6:1
6.06:1, 6.06:2	6.06:1—6.06:2.2
6.06:15, 6.06:16	6.06:15—6.06:43
14:1	14:1
14.04:5	14.04:5
CCT:89, CCT:90	CCT:89, CCT:90
CCTS:41, CCTS:42	CCTS:41, CCTS:42
SRT:1—SRT:6	SRT:1—SRT:6
CDi:3, CDi:4	CDi:3—CDi:4.1
CDi:9—CDi:12	CDi:9—CDi:12.1
CDi:18.1—CDi:22.1	CDi:19—CDi:22.1
CDi:28.1—CDi:30	CDi:29—CDi:30.1
CDi:35—CDi:52.1	CDi:35—CDi:52.1
CDi:57—CDi:60.1	CDi:57—CDi:60.1
CDi:71, CDi:72	CDi:71—CDi:72.2
CDi:89, CDi:90	CDi:89, CDi:90

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SUPPLEMENT NO. 37
VOLUME I
February 2016

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6386, adopted January 13, 2016.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3—SH:5	SH:3—SH:5
5:1	5:1
5.21:1, 5.21:2	5.21:1, 5.21:2
5.21:9—5.21:14	5.21:9—5.21:15
12.16:3, 12.16:4	12.16:3—12.16:4.1
12.16:48.23—12.16:52	12.16:49—12.16:52.1
CCT:89, CCT:90	CCT:89, CCT:90
CCTS:41, CCTS:42	CCTS:41, CCTS:42
SRT:3—SRT:6	SRT:3—SRT:6
CDi:21, CDi:22	CDi:21—CDi:22.1
CDi:59—CDi:60.1	CDi:59—CDi:60.1

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VOLUME I
September 2015

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6376, adopted September 23, 2015.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3—SH:5
2:1	2:1
2.06:1—2.06:10.2	2.06:1—2.06:10.1
2.08:1, 2.08:2	2.08:1—2.08.2.1
2.08:5—2.08:8	2.08:5—2.08.8.1
5:1	5:1
5.90:1, 5.90:2	5.90:1—5.90.2.1
5.90:16.3	5.90:16.3, 5.90.16.4
CCT:89, CCT:90	CCT:89, CCT:90
CCTS:41, CCTS:42	CCTS:41, CCTS:42
SRT:5, SRT:6	SRT:5, SRT:6
CDi:21—CDi:28.1	CDi:21—CDi:28.1
CDi:43, CDi:44	CDi:43, CDi:44
CDi:51, CDi:52	CDi:51—CDi:52.1

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SUPPLEMENT NO. 35
VOLUME I
June 2015

ADMINISTRATIVE CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6369, adopted June 10, 2015.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
2.06:10.3—2.06:14	2.06:11—2.06.14.1
12.14:5, 12.14:6	12.14:5, 12.14:6
CCT:89, CCT:90	CCT:89, CCT:90
CCTS:41, CCTS:42	CCTS:41, CCTS:42

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SUPPLEMENT NO. 34
VOLUME I
April 2015

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6359, adopted January 28, 2015.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
4.04:3, 4.04:4	4.04:3, 4.04:4
CCT:89, CCT:90	CCT:89, CCT:90
CCTS:41, CCTS:42	CCTS:41, CCTS:42

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SUPPLEMENT NO. 33
VOLUME I
January 2015

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6356, adopted December 10, 2014.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
iii	iii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
8:1	8:1
12.16:11, 12.16:12	12.16:11, 12.16:12
12.16:17—12.16:24	12.16:17—12.16:24
CCT:89, CCT:90	CCT:89, CCT:90
CCTS:41, CCTS:42	CCTS:41, CCTS:42

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SUPPLEMENT NO. 32
VOLUME I
December 2014

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6351, adopted October 22, 2014.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vi	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
5.13:1, 5.13:2	5.13:1—5.13:2.1
5.13:5, 5.13:6	5.13:5—5.13:6.2
5.14:1—5.14:5	5.14:1—5.14:4
6.11:1—6.11:3	6.11:1—6.11:4
8:1	8:1
8.17:1—8.17:4	8.17:1—8.17:5
8.23:1, 8.23:2	8.23:1, 8.23:2
8.23:13, 8.23:14	8.23:13—8.23:15
12:1, 12:2	12:1, 12:2
12.04:1	12.04:1
CCT:89, CCT:90	CCT:89, CCT:90
CCTS:41, CCTS:42	CCTS:41, CCTS:42
SRT:1—SRT:5	SRT:1—SRT:6
CDi:17—CDi:18.1	CDi:17—CDi:18.1
CDi:27, CDi:28	CDi:27—CDi:28.1
CDi:35—CDi:38	CDi:35—CDi:38
CDi:44.1—CDi:46.1	CDi:45—CDi:46.1
CDi:51—CDi:54.1	CDi:51—CDi:54.1
CDi:59, CDi:60	CDi:59—CDi:60.1
CDi:67, CDi:68	CDi:67, CDi:68

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VOLUME I
September 2014

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6341, adopted August 20, 2014.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vi	TOC:i—TOC:vi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1—SH:4	SH:1—SH:4
4.04:1, 4.04:2	4.04:1, 4.04:2
4.04:5, 4.04:6	4.04:5, 4.04:6
5:1—5.05:4	5:1—5.05:4
5.14:1, 5.14:2	5.14:1, 5.14:2
	5.21:1—5.21:14
8.22:13, 8.22:14	8.22:13—8.22:14.1
14.05:1	14.05:1
CCT:89	CCT:89, CCT:90
CCTS:41, CCTS:42	CCTS:41, CCTS:42
SRT:1—SRT:5	SRT:1—SRT:5
CDi:9—CDi:18	CDi:9—CDi:18.1
CDi:33—CDi:38	CDi:33—CDi:38
CDi:43—CDi:44.1	CDi:43—CDi:44.1
CDi:49—CDi:54	CDi:49—CDi:54.1
CDi:63, CDi:64	CDi:63—CDi:64.1
CDi:89, CDi:90	CDi:89, CDi:90

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VOLUME I
July 2014

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6336, adopted June 25, 2014.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vi	TOC:i—TOC:vi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
2:1	2:1
2.06:1—2.06:10.3	2.06:1—2.06:10.3
2.10:5, 2.10:6	2.10:5, 2.10:6
2.14:1, 2.14:2	2.14:1, 2.14:2
8.12:13	8.12:13
CCT:89	CCT:89
CDi:43, CDi:44	CDi:43—CDi:44.1

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SUPPLEMENT NO. 29
VOLUME I
May 2014

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6329, adopted April 16, 2014.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vi	TOC:i—TOC:vi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
2:1	2:1
2.06:11, 2.06:12	2.06:11, 2.06:12
2.17:1	2.17:1
4:1—4.04:15	4:1—4.04:15
5:1	5:1
5.14:1—5.14:5	5.14:1—5.14:5
6:1	6:1
6.06:1—6.06:10	6.06:1—6.06:16
6.30:25—6.30:28	6.30:25—6.30:28
8.23:7, 8.23:8	8.23:7, 8.23:8
12:1, 12:2	12:1, 12:2
12.20:1, 12.20:2	12.20:1, 12.20:2
CCT:87, CCT:88	CCT:87—CCT:89
CCTS:41	CCTS:41, CCTS:42
SRT:1—SRT:5	SRT:1—SRT:5
CDi:5, CDi:6	CDi:5—CDi:6.1
CDi:11—CDi:34	CDi:11—CDi:34
CDi:39—CDi:46	CDi:39—CDi:46.1
CDi:51, CDi:52	CDi:51—CDi:52.1
CDi:57—CDi:72	CDi:57—CDi:72

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SUPPLEMENT NO. 28
VOLUME I
January 2014

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6306, adopted September 25, 2013.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vi	TOC:i—TOC:vi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
2:1	2:1
2.10:1, 2.10:2	2.10:1—2.10:2.1
2.10:9	2.10:9—2.10:12
5:1	5:1
5.17:1—5.17:3	5.17:1—5.17:6
6:1	6:1
6.18:1, 6.18:2	6.18:1—6.18:2.1
6.18:5—6.18:7	6.18:5—6.18:7
8.06:19	8.06:19
12:1, 12:2	12:1, 12:2
12.16:1—12.16:12	12.16:1—12.16:12.4
12.16:17—12.16:20	12.16:17—12.16:20
12.16:25—12.16:48	12.16:25—12.16:48.23
16.01:1	16.01:1
CCT:81, CCT:82	CCT:81—CCT:82.1
CCT:87, CCT:88	CCT:87, CCT:88
CCTS:41	CCTS:41
SRT:1, SRT:2	SRT:1—SRT:2.1
CDi:1, CDi:2	CDi:1, CDi:2
CDi:7—CDi:12	CDi:7—CDi:12
CDi:17—CDi:30	CDi:17—CDi:30
CDi:35—CDi:42	CDi:35—CDi:42.1
CDi:53—CDi:58	CDi:53—CDi:58

Remove Old Pages	*Insert New Pages*
CDi:63, CDi:64	CDi:63—CDi:64.1
CDi:85—CDi:89	CDi:85—CDi:90

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SUPPLEMENT NO. 27
VOLUME I
August 2013

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6297, adopted June 5, 2013.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
iii	iii
TOC:i—TOC:vi	TOC:i—TOC:vi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
10.08:1—10.08:4	10.08:1—10.08:4
12:1, 12:2	12:1, 12:2
12.24:1	12.24:1—12.24:5
14:1	14:1
14.04:1, 14.04:2	14.04:1—14.04:5
14.06:1—14.06:5	14.06:1
14.08:1, 14.08:2	14.08:1
14.10:1	14.10:1
CCT:87	CCT:87, CCT:88
CCTS:41	CCTS:41
SRT:1—SRT:5	SRT:1—SRT:5
CDi:7—CDi:12	CDi:7—CDi:12
CDi:21, CDi:22	CDi:21, CDi:22
CDi:31—CDi:36	CDi:31—CDi:36
CDi:47—CDi:52	CDi:47—CDi:52
CDi:85—CDi:89	CDi:85—CDi:89

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SUPPLEMENT NO. 26
VOLUME I
March 2013

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6274, adopted January 16, 2013.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1—SH:3
5:1	5:1
5.05:1—5.05:4	5:05.1—5.05:4
5.07:1—5.07:12	5.07:1—5.07:14
	5.19:1—5.19:4
5.90:1—5.90:16	5.90:1—5.90:16.3
6:1	6:1
6.04:1—6.04:17	6.04:1—6.04:17
6.06:1—6.06:70	6.06:1—6.06:10
8.23:5, 8.23:6	8.23:5—8.23:6.1
10:1	10:1
10.08:1—10.08:4	10.08:1—10.08:4
CCT:83, CCT:84	CCT:83—CCT:87
CCTS:41	CCTS:41
SRT:1—SRT:6	SRT:1—SRT:5
CDi:1—CDi:12	CDi:1—CDi:12
CDi:17—CDi:54.1	CDi:17—CDi:54
CDi:59—CDi:82	CDi:59—CDi:74

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VOLUME I
January 2013

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6257, adopted October 24, 2012.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
5:1	5:1
5.08:1, 5.08:2	5.08:1, 5.08:2
5.08:7	5.08:7
8.12:3, 8.12:4	8.12:3—8.12:4.1
8.22:3—8.22:20	8.22:3—8.22:20.1
14:1	14:1
14.05:1	14.05:1
14.24:1	14.24:1
CCT:83	CCT:83, CCT:84
CCTS:41	CCTS:41
SRT:5, SRT:6	SRT:5, SRT:6
CDi:45, CDi:46	CDi:45—CDi:46.1

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VOLUME I
August 2012

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6243, adopted July 11, 2012.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
5.05:1—5.05:7	5.05:1—5.05:7
5.13:1—5.13:17	5.13:1—5.13:20
5.18:1	5.18:1
6:1	6:1
	6.17:1, 6.17:2
8:1	8:1
8.10:3—8.10:7	8.10:3—8.10:7
8.20:1—8.20:5	8.20:1
8.30:3, 8.30:4	8.30:3, 8.30:4
12.16:25—12.16:26.1	12.16:25—12.16:26.1
14.04:1, 14.04:2	14.04:1, 14.04:2
CCT:83	CCT:83
CCTS:41	CCTS:41
SRT:1—SRT:6	SRT:1—SRT:6
CDi:5—CDi:8	CDi:5—CDi:8
CDi:13, CDi:14	CDi:13, CDi:14
CDi:23—CDi:52	CDi:23—CDi:52
CDi:59—CDi:62	CDi:59—CDi:61
CDi:68.1—CDi:70.1	CDi:69—CDi:70.1

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VOLUME I
May 2012

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6227, adopted April 25, 2012.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified---Volume I for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
5.08:1—5.08:7	5.08:1—5.08:7
CCT:83	CCT:83
CCTS:41	CCTS:41

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SUPPLEMENT NO. 22
VOLUME I
April 2012

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6224, adopted February 22, 2012.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1, SH:2
1.02:1	1.02:1
4:1, 4:2	4:1, 4:2
	4.05:1—4.05:3
5:1	5:1
5.08:1—5.08:7	5.08:1—5.08:7
6.04:1, 6.04:2	6.04:1—6.04:2.1
6.04:9—6.04:12	6.04:9—6.04:12
6.06:3—6.06:4.1	6.06:3—6.06:4.1
6.06:47—6.06:50.1	6.06:47—6.06:50.2
6.08:1—6.08:3	6.08:1—6.08:3
8:1	8:1
8.23:1—8.23:12	8.23:1—8.23:14
12.16:25, 12.16:26	12.16:25—12.16:26.1
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CCTS:41	CCTS:41
SRT:5, SRT:6	SRT:5, SRT:6
CDi:5, CDi:6	CDi:5, CDi:6
CDi:17, CDi:18	CDi:17, CDi:18
CDi:33—CDi:40	CDi:33—CDi:40
CDi:45, CDi:46	CDi:45—CDi:46.1
CDi:51—CDi:54	CDi:51—CDi:54.1
CDi:73, CDi:74	CDi:73, CDi:74
CDi:85, CDi:86	CDi:85—CDi:86.1

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SUPPLEMENT NO. 21
VOLUME I
February 2012

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6214, adopted December 7, 2011.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
14:1	14:1
14.03:1, 14.03:2	14.03:1, 14.03:2
14.04:1, 14.04:2	14.04:1, 14.04:2
14.16:1—14.16:20	14.16:1—14.16:6
15:1	15:1
	15.02:1—15.02:4
CCT:81, CCT:82	CCT:81, CCT:82
CCTS:39, CCTS:40	CCTS:39—CCTS:41
SRT:1—SRT:6	SRT:1—SRT:6
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:6.1—CDi:28	CDi:7—CDi:28
CDi:39—CDi:60	CDi:39—CDi:59
CDi:64.1—CDi:68	CDi:65—CDi:68.1

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SUPPLEMENT NO. 20
VOLUME I
October 2011

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6199, adopted August 24, 2011.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
iii	iii
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1
2.06:1—2.06:2.1	2.06:1—2.06:2.1
2.06:15, 2.06:16	2.06:15, 2.06:16
6.06:49—6.06:50.2	6.06:49—6.06:50.1
6.08:1—6.08:3	6.08:1—6.08:3
6.11:1—6.11:3	6.11:1—6.11:3
6.30:1—6.30:27	6.30:1—6.30:28
12.08:5, 12.08:6	12.08:5—12.08:7
12.16:1—12.16:36	12.16:1—12.16:35
12.16:45—12.16:54	12.16:45—12.16:54
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CCT:81	CCT:81, CCT:82
CCTS:39, CCTS:40	CCTS:39, CCTS:40
CDi:3, CDi:4	CDi:3, CDi:4
CDi:11, CDi:12	CDi:11—CDi:12.1
CDi:55—CDi:62	CDi:55—CDi:62
CDi:75, CDi:76	CDi:75, CDi:76

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SUPPLEMENT NO. 19
VOLUME I
July 2011

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6185, adopted May 11, 2011.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents) SH:1 (following Checklist of Up-to-Date Pages)
8.12:1, 8.12:2	8.12:1, 8.12:2
8.12:7, 8.12:8	8.12:7—8.12:8.1
8.23:1—8.23:6.1	8.23:1—8.23:6.2
CCT:81	CCT:81
CCTS:39, CCTS:40	CCTS:39, CCTS:40
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CDi:83, CDi:84	CDi:83, CDi:84
CDi:87—CDi:89	CDi:87—CDi:89

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SUPPLEMENT NO. 18
VOLUME I
April 2011

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6176, adopted February 28, 2011.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
2:1	2:1
2.06:1, 2.06:2	2.06:1—2.06:2.1
2.06:13	2.06:13—2.06:16
8.12:1—8.12:4	8.12:1—8.12:4
CCT:81	CCT:81
CCTS:39, CCTS:40	CCTS:39, CCTS:40
SRT:1—SRT:6	SRT:1—SRT:6
CDi:3—CDi:6	CDi:3—CDi:6.1
CDi:19—CDi:22	CDi:19—CDi:22.1
CDi:41—CDi:44	CDi:41—CDi:44.1
CDi:62.1—CDi:64	CDi:63—CDi:64.1

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SUPPLEMENT NO. 17
VOLUME I
September 2010

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6161, adopted August 25, 2010.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
5.08:3—5.08:7	5.08:3—5.08:7
6.06:3—6.06:4.1	6.06:3—6.06:4.1
6.06:59—6.06:62.1	6.06:59—6.06:62.1
12.16:41, 12.16:42	12.16:41, 12.16:42
12.16:59, 12.16:60	12.16:59, 12.16:60
CCT:81	CCT:81
CCTS:39, CCTS:40	CCTS:39, CCTS:40
CDi:38.1—CDi:42	CDi:39—CDi:42.1
CDi:59, CDi:60	CDi:59, CDi:60
CDi:67, CDi:68	CDi:67, CDi:68

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SUPPLEMENT NO. 16
May 2010

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6150, adopted May 5, 2010.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove Old Pages	*Insert New Pages*
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
5.05:1—5.05:4	5.05:1—5.05:4
5.07:1—5.07:11	5.07:1—5.07:12
5.14:1—5.14:8	5.14:1—5.14:5
5.95:1, 5.95:2	5.95:1, 5.95:2
6.06:5, 6.06:6	6.06:5, 6.06:6
6.06:67—6.06:71	6.06:67—6.06:70
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CCTS:39, CCTS:40	CCTS:39, CCTS:40
CDi:3, CDi:4	CDi:3—CDi:4.1
CDi:11—CDi:14.1	CDi:11—CDi:14.1
CDi:27, CDi:28	CDi:27, CDi:28
CDi:37—CDi:38.1	CDi:37—CDi:38.1
CDi:59, CDi:60	CDi:59, CDi:60
CDi:65, CDi:66	CDi:65, CDi:66
CDi:68.1—CDi:70	CDi:69—CDi:70.1

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SUPPLEMENT NO. 15
November 2009

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6130, adopted October 7, 2009.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

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12.18:1	12.18:1, 12.18:2
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SUPPLEMENT NO. 14
VOLUME I
September 2009

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6117, adopted August 19, 2009.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

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5.90:1, 5.90:2	5.90:1, 5.90:2
5.90:15—5.90:26	5.90:15—5.90:20
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SUPPLEMENT NO. 13, REVISION
VOLUM I
June 2009

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement No. 13, Revision is printed to revise pages appearing in Supplement No. 13 and should be removed and inserted as directed below.

Remove old pages	*Insert new pages*
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6.10:1—6.10:9	6.10.1—6.10.11
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SUPPLEMENT NO. 13
VOLUME I
May 2009

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6101, adopted April 22, 2009.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

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SUPPLEMENT NO. 12
VOLUME I
January 2009

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6081, adopted January 14, 2009.

See the Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove old pages	*Insert new pages*
VOLUME I	
TOC:i—TOC:vii	TOC:i—TOC:vii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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VOLUME I
November 2008

ERRATA

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Errata is printed to correct pages appearing in previous supplements and should be inserted as directed below.

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SUPPLEMENT NO. 11
VOLUME I
October 2008

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6060, adopted October 8, 2008.

See the Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

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VOLUME I	
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SUPPLEMENT NO. 10
VOLUME I
August 2008

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6038, adopted June 25, 2008.

See the Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove old pages	*Insert new pages*
	VOLUME I
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SUPPLEMENT NO. 9
VOLUME I
June 2008

ADMINISTRAIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6023, adopted May 14, 2008.

See the Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 8
VOLUME I
March 2008

ADMINISTRATIVE CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 6008, adopted February 27, 2008.

See the Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove old pages	*Insert new pages*
	VOLUME I
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 7
VOLUME I
January 2008

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5992, adopted December 12, 2007.

See the Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

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SUPPLEMENT NO. 6
VOLUME I
November 2007

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5977, adopted October 10, 2007.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

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SUPPLEMENT NO. 5
VOLUME I
July 2007

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5936, adopted June 13, 2007.

See the AdministrativeCode Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

Remove old pages	*Insert new pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SRT:1—SRT:6	SRT:1—SRT:6
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SUPPLEMENT NO. 4
VOLUME I
June 2007

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5921, adopted April 25, 2007.

See the Administrative Code Comparative Table and the Table of Special Ordinances Not Codified—Volume I for further information.

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SUPPLEMENT NO. 3
VOLUME I
February 2007

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5900, adopted January 31, 2007.

See the Administrative Code Comparative Table and Table of Special Ordinances Not Codified—Volume I for further information.

Remove old pages	*Insert new pages*
VOLUME I	
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SUPPLEMENT NO. 2, ADDITION
VOLUME I
January 2007

ADMINISTRAIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement No. 2, Addition, is printed to add material omitted from Supplement No. 2 and should be inserted as directed below.

Remove old pages	*Insert new pages*
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Insert and maintain this instruction sheet in front of Volume I. File removed pages for reference.

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SUPPLEMENT NO. 2
VOLUME I
January 2007

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5885, adopted October 25, 2006.

See the Administrative Code Comparative Table and Table of Special Ordinances Not Codified—Volume I for further information.

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SUPPLEMENT NO. 1
VOLUME I
August 2006

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5831, adopted May 24, 2006.

See the Administrative Code Comparative Table and Table of Special Ordinances Not Codified Table for further information.

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REPUBLICATION
VOLUME I
May 2006

ADMINISTRATIVE CODE

City of

RENO, NEVADA

Looseleaf Supplement

This copy of the Administrative Code of the City of Reno, Nevada is issued as a "replacement" copy and contains all ordinances deemed advisable to be included at this time through Ordinance No. 5799, adopted January 25, 2006. See the Administrative Code Comparative Table.

This copy replaces all existing copies of the Administrative Code, as published through May 26, 2006. Future Supplements will commence with Supp. No. 1.

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ADMINISTRATIVE CODE

City of

RENO, NEVADA

A REPUBLICATION OF THE GENERAL AND PERMANENT ORDINANCES OF THE CITY OF RENO, NEVADA INCLUDING THE CHARTER OF THE CITY

Adopted: September 28, 1981
Effective: January 1, 1982

Published by Order of the City Council
Republished by Order of the City Council, 2006

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CURRENT OFFICIALS

OF THE

CITY OF RENO, NEVADA

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Mayor

David Bobzien
Jenny Brekhus
Oscar Delgado
Naomi Duerr
Neoma Jardon
Paul McKenzie
Councilmembers

Sabra Smith Newby
City Manager

Hon. Gene Drakulich
Hon. Shelly T. O'Neill
Hon. Dorothy Nash Holmes
Hon. Tammy M. Riggs
Municipal Court Judges

Karl S. Hall
City Attorney

Ashley D. Turney
City Clerk

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PREFACE

This Republication constitutes a complete republication of the ordinances of the City of Reno of a general and permanent nature. As expressed in the Adopting Ordinance, the Code supersedes all such ordinances not included herein or recognized as continuing in force by reference thereto.

Source materials used in the preparation of the Code were the 1981 Code as supplemented through January 2006 and ordinances subsequently adopted by the governing body. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the Comparative Tables appearing in the back of the volume, the reader can locate any section of the 1966 Code, 1981 Code and any subsequent ordinance included herein. A table listing the state law citations and setting forth their location within the Code is included at the back of this volume.

Numbering System

The Code is organized by subject matter under an expandable three-factor decimal numbering system which is designed to facilitate supplementation without disturbing the numbering of existing provisions. Each section number designates, in sequence, the numbers of the title, chapter, and section. Thus, section 18.12.050 is Section .050, located in Chapter 12 of Title 18. In most instances, sections are numbered by tens (.010, .020, .030, etc.), leaving nine vacant positions between original sections to accommodate future provisions. Similarly, chapters and titles are numbered to provide for internal expansion.

Index

The index has been prepared with the greatest of care. Each particular item has been placed under several headings, some of the headings being couched in lay phraseology, others in legal terminology and still others in language generally used by government officials and employees. There are numerous cross references within the index itself which stand as guideposts to direct the user to the particular item in which he is interested.

Acknowledgments

The publication of this Code was under the direct supervision of John Dombroski, Vice-President for Production and Anne Wilson and Janet Cramer, Editors, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other member's of the publisher's staff for their sincere interest and able assistance throughout the project.

MUNICIPAL CODE CORPORATION
Tallahassee, Florida
March, 2006

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BILL NO. 3341

ORDINANCE NO. 2955

An Ordinance Adopting and Enacting a New Code for the City of Reno, Nevada; Establishing the Same; Providing for the Repeal of Certain Ordinances Not Included Therein; Providing for the Manner of Amending and Supplementing Such Code; and Providing When Such Code and this Ordinance Shall Become Effective.

The City Council of the City of Reno do Ordain:

Section 1. That the Code of Ordinances, consisting of Titles 1 to 18, each inclusive, is hereby adopted and enacted as the "Reno Municipal Code," which Code shall supersede all general and permanent ordinances of the City adopted on or before December 8, 1980, to the extent provided in Section 2 hereof.

Section 2. That all provisions of such Code shall be in full force and effect from any after January 1, 1982, and all ordinances of a general and permanent nature of the City of Reno, adopted on final passage on or before December 8, 1980, and not included in such Code or recognized and continued in force by reference therein, are hereby repealed from and after the effective date of such Code.

Section 3. That the repeal provided for in Section 2 hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance which is repealed by this ordinance.

Section 4. Unless another penalty is expressly provided; a violation of any provision of such Code, or any provision of any rule or regulation adopted or issued pursuant thereto, shall be punished by a fine of not less than one dollar ($1.00) and not more than one thousand dollars ($1,000.00) or be punished by imprisonment in the city jail not to exceed six (6) months, or be punished by both fine and imprisonment, as provided in Section 1.04.010 of such Code.

Section 5. Any and all additions and amendments to such Code, when passed in such form as to indicate the intention of the City Council to make the same a part of such Code, shall be deemed to be incorporated in such Code, so that reference to such Code shall be understood and intended to include such additions and amendments.

Section 6. That in case of the amendment of any section of such Code for which a penalty is not provided, the general penalty, as provided in Section 4 of the ordinance and in Section 1.04.010 of such Code shall apply to the section as amended, or in case such amendment contains provisions for which a penalty, other than the aforementioned general penalty, is provided in another section in the same chapter, the penalty so provided in such other section shall be held to relate to the section so amended, unless such penalty is specifically repealed therein.

Section 7. Any ordinance adopted after December 8, 1980, which amends or refers to sections of the 1966 Reno Municipal Code, which have been codified in this Code, shall be construed as if they amend or refer to like provisions of such Code.

PASSED AND ADOPTED this 28th day of September, 1981, by the following vote of the Council:

AYES: McCLELLAND, SFERRAZZA, LEHNERS, THORNTON, PINE, SCOTT, BENNETT

NAYS: NONE

ABSTAIN: NONE ABSENT: NONE

APPROVED this 28th day of September 1981.

/s/ Barbara J. Bennett
MAYOR OF THE CITY OF
RENO

ATTEST:

/s/ Gilbert Mandagaran
CITY CLERK AND CLERK OF
THE CITY
COUNCIL OF THE CITY OF
RENO, NEVADA

EFFECTIVE DATE: January 1, 1982

Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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6594	5-12-21	Include	Supp. No. 56
6595	5-26-21	Omit	Supp. No. 56
6596	6- 2-21	Omit	Supp. No. 56
6597	6- 6-21	Omit	Supp. No. 56
6598	7-21-21	Omit	Supp. No. 56
6599	8-11-21	Omit	Supp. No. 56
6600	8-11-21	Omit	Supp. No. 56
6601	8-25-21	Omit	Supp. No. 56
6602	9- 8-21	Omit	Supp. No. 56
6603	9- 8-21	Omit	Supp. No. 56
6604	9-22-21	Omit	Supp. No. 56
6605	9-22-21	Omit	Supp. No. 56
Supp. No. 57			
6581	10-28-20	Omit	Supp. No. 57
6582	10-28-20	Omit	Supp. No. 57
6583	10-28-20	Omit	Supp. No. 57
6606	10-13-21	Omit	Supp. No. 57
6607	10-13-21	Include	Supp. No. 57
6608	10-27-21	Omit	Supp. No. 57
6609	10-27-21	Omit	Supp. No. 57
6610	10-27-21	Omit	Supp. No. 57
6611	12- 1-21	Include	Supp. No. 57
6612	12- 1-21	Include	Supp. No. 57

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
6613	12- 1-21	Include	Supp. No. 57
6615	1-12-22	Omit	Supp. No. 57
6616	1-12-22	Omit	Supp. No. 57
6617	1-12-22	Omit	Supp. No. 57
6618	1-12-22	Include	Supp. No. 57
6619	1-26-22	Omit	Supp. No. 57
6620	2-23-22	Omit	Supp. No. 57
6621	2-23-22	Omit	Supp. No. 57
6622	3- 9-22	Include	Supp. No. 57
6623	4-13-22	Omit	Supp. No. 57
6624	4-13-22	Omit	Supp. No. 57
6625	4-27-22	Omit	Supp. No. 57
6626	5-25-22	Omit	Supp. No. 57
6627	5-25-22	Omit	Supp. No. 57
6628	5-25-22	Omit	Supp. No. 57
6629	5-25-22	Omit	Supp. No. 57
6630	6- 8-22	Omit	Supp. No. 57
6631	6- 8-22	Omit	Supp. No. 57
Supp. No. 58			
6632	8-10-22	Omit	Supp. No. 58
6633	8-10-22	Omit	Supp. No. 58
6634	8-10-22	Omit	Supp. No. 58
6635	9-14-22	Omit	Supp. No. 58
6636	9-28-22	Omit	Supp. No. 58
6637	10-26-22	Omit	Supp. No. 58
6639	11- 9-22	Include	Supp. No. 58
6640	11- 9-22	Include	Supp. No. 58
6641	1-11-23	Omit	Supp. No. 58
6642	1-14-23	Omit	Supp. No. 58
6643	1-11-23	Omit	Supp. No. 58
6644	1-25-23	Omit	Supp. No. 58
6645	1-25-23	Omit	Supp. No. 58
6646	1-25-23	Include	Supp. No. 58
Supp. No. 59			
6647	2- 8-23	Include	Supp. No. 59
6648	3-22-23	Omit	Supp. No. 59
6649	3-22-23	Omit	Supp. No. 59
6650	3-22-23	Omit	Supp. No. 59
6651	4-12-23	Include	Supp. No. 59
6652	4-12-23	Omit	Supp. No. 59
Supp. No. 60			
6653	5-24-23	Omit	Supp. No. 60
6654	5-24-23	Omit	Supp. No. 60
6655	5-24-23	Include	Supp. No. 60
6656	5-24-23	Include	Supp. No. 60
6657	6- 7-23	Omit	Supp. No. 60
6658	8- 9-23	Omit	Supp. No. 60
6659	9-13-23	Include	Supp. No. 60

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
6660	9-13-23	Omit	Supp. No. 60
6661	9-13-23	Omit	Supp. No. 60
6662	9-13-23	Include	Supp. No. 60
6663	9-27-23	Omit	Supp. No. 60
6664	12- 6-23	Omit	Supp. No. 60
6665	1-17-24	Omit	Supp. No. 60
6666	1-17-24	Omit	Supp. No. 60
6667	1-17-24	Include	Supp. No. 60
6668	1-17-24	Include	Supp. No. 60
6669	2-14-24	Omit	Supp. No. 60
6670	2-14-24	Omit	Supp. No. 60
Supp. No. 61			
6671	3-27-24	Omit	Supp. No. 61
6672	3-27-24	Omit	Supp. No. 61
6673	4-10-24	Omit	Supp. No. 61
6674	4-24-24	Omit	Supp. No. 61
6675	4-24-24	Omit	Supp. No. 61
6676	4-24-24	Omit	Supp. No. 61
6677	4-24-24	Omit	Supp. No. 61
6678	5-22-24	Include	Supp. No. 61
6679	7-24-24	Omit	Supp. No. 61
6680	7-24-24	Omit	Supp. No. 61
6681	7-24-24	Omit	Supp. No. 61
6683	8-14-24	Omit	Supp. No. 61
6684	8-28-24	Include	Supp. No. 61
6685	9-19-24	Omit	Supp. No. 61
6686	11-13-24	Omit	Supp. No. 61
6687	11-13-24	Omit	Supp. No. 61
6688	11-13-24	Omit	Supp. No. 61
6689	12- 4-24	Omit	Supp. No. 61
6690	12- 4-24	Omit	Supp. No. 61
6691	12- 4-24	Omit	Supp. No. 61
Supp. No. 62			
6693	1- 8-25	Omit	Supp. No. 62
6694	1-22-25	Include	Supp. No. 62
6695	1-22-25	Include	Supp. No. 62
6696	1-22-25	Include	Supp. No. 62
6697	1-22-25	Include	Supp. No. 62
6698	1-22-25	Include	Supp. No. 62
6699	1-22-25	Include	Supp. No. 62
6700	2-12-25	Omit	Supp. No. 62
6701	2-12-25	Omit	Supp. No. 62
6702	2-12-25	Omit	Supp. No. 62
Supp. No. 63			
6703	2-26-25	Omit	Supp. No. 63
6704	3-26-25	Include	Supp. No. 63
6705	4- 9-25	Omit	Supp. No. 63
6706	5- 7-25	Omit	Supp. No. 63

Ord. No.	Date Adopted	Include/ Omit	Supp. No.
6707	5- 7-25	Omit	Supp. No. 63
6708	6- 4-25	Omit	Supp. No. 63
6709	6- 4-25	Omit	Supp. No. 63
6711	6- 4-25	Omit	Supp. No. 63
6712	6- 4-25	Include	Supp. No. 63
6713	7-23-25	Omit	Supp. No. 63
6714	8-13-25	Omit	Supp. No. 63
6715	8-13-25	Include	Supp. No. 63
6716	8-13-25	Omit	Supp. No. 63
6717	8-27-25	Include	Supp. No. 63
6718	8-27-25	Include	Supp. No. 63
6719	8-27-25	Include	Supp. No. 63
6720	8-27-25	Include	Supp. No. 63
6721	8-27-25	Include	Supp. No. 63
6722	8-27-25	Include	Supp. No. 63
6723	8-27-25	Include	Supp. No. 63
6724	8-27-25	Include	Supp. No. 63

PART 1 RENO CITY CHARTER*

Article I. Incorporation of City; General Powers; Boundaries; Wards and Annexations; City Offices; Charter Committee

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Article II. Legislative Department

Sec. 2.010 Mayor and City Council: Qualifications; election; term of office; salary. [Effective through December 31, 2023.]

***Editor's note—**Printed herein is the Charter of the City of Reno, as adopted by Chapter 662, Statutes of Nevada 1971, as subsequently amended in its entirety effective October 1, 2017. Sections 2 and 3 of the original Act read as follows:

″*Sec. 2.* Chapter 102, Statutes of Nevada 1903, at page 184, entitled ″An Act to incorporate the Town of Reno, in Washoe County, and defining the boundaries thereof, and to authorize the establishing of a city government therefor, and other matters relating thereto,″ approved March 16, 1903, and all Acts amendatory thereof, are hereby repealed.

″*Sec. 3.* This Act shall be effective on July 1, 1973.″

Sec. 2.010 Mayor and City Council: Qualifications; election; term of office; salary. [Effective January 1, 2024.]
Sec. 2.020 City Council: Contracts.
Sec. 2.030 City Council: Discipline of members and other persons; subpoena power.
Sec. 2.040 Meetings: Quorum.
Sec. 2.060 Meetings: Time and place; rules.
Sec. 2.070 Oaths and affirmations.
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Sec. 2.100 Ordinances: Enactment procedure; emergency ordinances.
Sec. 2.110 Uniform codes: Procedure for adoption.
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Sec. 5.020 Primary elections; declaration of candidacy. [Effective January 1, 2024.]
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RENO CITY CHARTER

CHAPTER 662, STATUTES OF NEVADA 1971

An Act incorporating the City of Reno, in Washoe County, Nevada, and defining the boundaries thereof, under a new charter; and providing other matters properly relating thereto.

[Approved May 6, 1971]

ARTICLE I. INCORPORATION OF CITY; GENERAL POWERS; BOUNDARIES; WARDS AND ANNEXATIONS; CITY OFFICES; CHARTER COMMITTEE

Sec. 1.010 Purpose;other laws.

1. In order to provide for the orderly government of the City of Reno and the general welfare of its citizens the Legislature hereby establishes this Charter for the government of the City of Reno.

2. Any powers expressly granted by this Charter are in addition to any powers granted to a city by the general law of this state. All provisions of Nevada Revised Statutes which are applicable generally to cities (not including, unless otherwise expressly mentioned in this Charter, chapter 265, 266 or 267 of NRS) which are not in conflict with the provisions of this Charter apply to the City of Reno.

(Ch. 662, Stats. 1971 p. 1962; A—Ch. 349, Stats. 2013 p. 1816)

Sec. 1.011 Definitions.

As used in this Charter, unless the context otherwise requires, the words and terms defined in sections 1.012 to 1.018, inclusive, have the meanings ascribed to them in those sections.

(Added—Ch. 349, Stats. 2013 p. 1814; A—Ch. 163, Stats. 2015 p. 766)

Sec. 1.012 "Appointive employee" defined.

"Appointive employee" means a person described in subsection 5 of section 1.090 who is appointed to an appointive position established by ordinance pursuant to subsection 4 of section 1.090.

(Added—Ch. 349, Stats. 2013 p. 1814; A—Ch. 163, Stats. 2015 p. 766; Ch. 584, Stats 2017 p. 4196)

Sec. 1.0123 "Appointive office" defined.

"Appointive office" means a position held by an appointive officer.

(Added—Ch. 163, Stats. 2015 p. 766)

Sec. 1.0126 "Appointive officer" defined.

"Appointive officer" means a person who is appointed to a position described in subsection 3 of section 1.090 or an appointive office established by ordinance pursuant to subsection 4 of section 1.090.

(Added—Ch. 163, Stats. 2015 p. 766)

Sec. 1.0129 "Appointive position" defined.

"Appointive position" means a position held by an appointive employee.

(Added—Ch. 163, Stats. 2015 p. 766)

Sec. 1.013 "City" defined.

"City" means the City of Reno in Washoe County, Nevada.

(Added—Ch. 349, Stats. 2013 p. 1814)

Sec. 1.014 "City Council" or "Council" defined.

"City Council" or "Council" means the governing body of the city.

(Added—Ch. 349, Stats. 2013 p. 1814)

Sec. 1.015 "Civil Service" or "Civil Service System" defined.

"Civil Service" or "Civil Service System" means the system created by section 9.020 and described in article IX of this Charter.

(Added—Ch. 349, Stats. 2013 p. 1814; A—Ch. 163, Stats. 2015 p. 766)

Sec. 1.016 "Commission" defined.

"Commission" means the Civil Service Commission created by section 9.030.

(Added—Ch. 349, Stats. 2013 p. 1814)

Sec. 1.017 "County" defined.

"County" means Washoe County, Nevada.

(Added—Ch. 349, Stats. 2013 p. 1814)

Sec. 1.018 "State" defined.

"State" means the State of Nevada.

(Added—Ch. 349, Stats. 2013 p. 1814)

Sec. 1.019 Construction of Charter.

1. Except where the context by clear implication otherwise requires, this Charter must be construed as follows:

(a) The titles or leadlines which are applied to the articles and sections of this Charter are inserted only as a matter of convenience and ease in reference and are not intended to limit the scope or intent of any provision of this Charter.

(b) Words in the singular number include the plural, and words in the plural include the singular number.

(c) Words in the masculine gender include the feminine, and words in the neuter gender refer to any gender.

2. This Charter being necessary to secure and preserve the public health, safety, prosperity, security, comfort, convenience, general welfare and property of the residents of the City, it is expressly declared that it is the intent of the Legislature that each of the provisions of this Charter be liberally construed to effect the purposes and objects for which this Charter is intended, and the specific mention of particular powers must not be construed as limiting in any way the general powers which are necessary to carry out the purposes and objects of this Charter.

(Added—Ch. 349, Stats. 2013 p. 1814)

Sec. 1.020 Incorporation of City.

All persons who are inhabitants of that portion of the State embraced within the limits set forth in section 1.030 shall constitute a political and corporate body by the name of ″City of Reno″ and by that name they and their successors shall be known in law, have perpetual succession and may sue and be sued in all courts.

(Ch. 662, Stats. 1971 p. 1962; A—Ch. 349, Stats. 2013 p. 1817)

Sec. 1.030 Description of territory.

1. The territory embraced in the City is that certain land described in the official plat required by NRS 234.250 to be filed with the County Recorder and County Assessor, as such plat is amended from time to time.

2. The territory described in paragraph (a) of subsection 2 of section 1 of article I of chapter 180, Statutes of Nevada 1949, lying within the City is hereby detached from the City and is included within the boundaries of the City of Sparks.

(Ch. 662, Stats. 1971 p. 1962; A—Ch. 482, Stats. 1973 p. 714; Ch. 349, Stats. 2013 p. 1817)

Sec. 1.040 Annexations.

The City may annex territory by following the procedure provided for the annexation of cities in those sections of chapter 268 of NRS, as amended from time to time, which apply to a county whose population is less than 700,000.

(Ch. 662, Stats. 1971 p. 1962; A—Ch. 65, Stats. 1981 p. 159; Ch. 796, Stats. 1989 p. 1936; Ch. 253, Stats. 2011 p. 1318)

Sec. 1.050 Wards: Creation; boundaries. [Effective through December 31, 2023.]

1. The City must be divided into five wards, which must be as nearly equal in population as can be conveniently provided. The territory comprising each ward must be contiguous, except that if any territory of the City which is not contiguous to the remainder of the City does not contain sufficient population to constitute a separate ward, it may be placed in any ward of the City.

2. The boundaries of the wards must be established and changed by ordinance, passed by a vote of at least five-sevenths of the City Council. The boundaries of the wards:
   (a) Must be changed whenever the population, as determined by the last preceding national census of the Bureau of the Census of the United States Department of Commerce, in any ward exceeds the population in any other ward by more than 5 percent.
   (b) May be changed to include territory that has been annexed, or whenever the population in any ward exceeds the population in another ward by more than 5 percent by any measure that is found to be reliable by the City Council.

(Ch. 662, Stats. 1971 p. 1963; A—Ch. 553, Stats. 1973 p. 875; Ch. 65, Stats. 1981 p. 159; Ch. 9, Stats. 1993 p. 20; Ch. 327, Stats. 1999 p. 1365)

Sec. 1.050 Wards: Creation; boundaries. [Effective January 1, 2024.]

1. The City must be divided into six wards, which must be as nearly equal in population as can be conveniently provided. The territory comprising each ward must be contiguous, except that if any territory of the City which is not contiguous to the remainder of the City does not contain sufficient population to constitute a separate ward, it may be placed in any ward of the City.

2. The boundaries of the wards must be established and changed by ordinance, passed by a vote of at least five-sevenths of the City Council. The boundaries of the wards:
   (a) Must be changed whenever the population, as determined by the last preceding national census of the Bureau of the Census of the United States Department of Commerce, in any ward exceeds the population in any other ward by more than 5 percent.
   (b) May be changed to include territory that has been annexed, or whenever the population in any ward exceeds the population in another ward by more than 5 percent by any measure that is found to be reliable by the City Council.

(Ch. 662, Stats. 1971 p. 1963; A—Ch. 553, Stats. 1973 p. 875; Ch. 65, Stats. 1981 p. 159; Ch. 9, Stats. 1993 p. 20; Ch. 327, Stats. 1999 p. 1365; Ch. 584, Stats. 2017 p. 4197, effective January 1, 2024)

Sec. 1.060 Elective offices.

1. The elective officers of the City consist of:
   (a) A Mayor.
   (b) Six Council Members.
   (c) One Municipal Judge and as many additional judges as the City Council deems necessary.
   (d) A City Attorney.

2. Such officers shall be elected as provided by this Charter.

(Ch. 662, Stats. 1971 p. 1963; A—Ch. 553, Stats. 1973 p. 876; Ch. 561, Stats. 1977 p. 1390; Ch. 373, Stats. 1979 p. 644)

Sec. 1.070 Elective offices: Vacancies. [Effective through December 31, 2023.]

1. Except as otherwise provided in this section, a vacancy in the City Council or in the office of City Attorney or Municipal Judge must be filled by a majority vote of the members of the

City Council within 30 days after the occurrence of the vacancy. A person may be selected to fill a prospective vacancy in the City Council before the vacancy occurs. In filling a prospective vacancy, each member of the Council, except any member whose term of office expires before the occurrence of the vacancy, may participate in any action taken by the Council pursuant to this section. The appointee must have the same qualifications as are required of the elective official. The appointee shall serve until the next general municipal election and until his or her successor is elected and qualified.

2. If a prospective vacancy or vacancy occurs in the office of a City Council Member, in lieu of appointment, the City Council may, by resolution, declare a special election to fill the vacancy for the remainder of the unexpired term. The resolution declaring a special election must be adopted within 30 days after the occurrence of the vacancy and must state the date set by the City Council for the special election. In the case of a prospective vacancy, the Council may adopt the resolution before the vacancy occurs, but the special election may not be held until after the vacancy occurs. The special election must be conducted in accordance with the provisions of the resolution declaring the special election and section 5.030 of this Charter. A person elected to fill a vacancy at a special election must have the same qualifications as are required of the elected official.

3. A candidate at a special election to fill a vacancy in the office of a City Council Member who represents a ward must be elected only by the registered voters of the ward that the candidate seeks to represent.

(Ch. 662, Stats. 1971 p. 1963; A—Ch. 854, Stats. 1989 p. 2061; Ch. 210, Stats. 1997 p. 733; Ch. 515, Stats. 1997 p. 2452; Ch. 349, Stats. 2013 p. 1817; Ch. 163, Stats. 2015 p. 767; Ch. 584, Stats. 2017 p. 4197)

Sec. 1.070 Elective offices: Vacancies. [Effective January 1, 2024.]

1. Except as otherwise provided in this section, a vacancy in the City Council or in the office of City Attorney or Municipal Judge must be filled by a majority vote of the members of the City Council within 30 days after the occurrence of the vacancy. A person may be selected to fill a prospective vacancy in the City Council before the vacancy occurs. In filling a prospective vacancy, each member of the Council, except any member whose term of office expires before the occurrence of the vacancy, may participate in any action taken by the Council pursuant to this section. The appointee must have the same qualifications as are required of the elective official. The appointee shall serve until the next general municipal election and until his or her successor is elected and qualified.

2. If a prospective vacancy or vacancy occurs in the office of a City Council Member, in lieu of appointment, the City Council may, by resolution, declare a special election to fill the vacancy for the remainder of the unexpired term. The resolution declaring a special election must be adopted within 30 days after the occurrence of the vacancy and must state the date set by the City Council for the special election. In the case of a prospective vacancy, the Council may adopt the resolution before the vacancy occurs, but the special election may not be held until after the vacancy occurs. The special election must be conducted in accordance with the provisions of the resolution declaring the special election and section 5.030 of this Charter. A person elected to fill a vacancy at a special election must have the same qualifications as are required of the elected official.

3. A candidate at a special election to fill a vacancy in the office of a City Council Member must be elected only by the registered voters of the ward that the candidate seeks to represent.

(Ch. 662, Stats. 1971 p. 1963; A—Ch. 854, Stats. 1989 p. 2061; Ch. 210, Stats. 1997 p. 733; Ch. 515, Stats. 1997 p. 2452; Ch. 349, Stats. 2013 p. 1817; Ch. 163, Stats. 2015 p. 767; Ch. 584, Stats. 2017 p. 4197, 4198, effective January 1, 2024)

Sec. 1.080 Mayor and Council Members not to hold other office or employment.

1. The Mayor and Council Members shall not:

(a) Hold any other elective or appointive office, except as provided by law or as a member of a board or commission which is ancillary to the office of Mayor or Council Member and for which no compensation is received.

(b) Hold any other employment with the County, the City or any other political subdivision of the State which is governed or advised by a board or commission to which the Mayor or Council Member may be appointed in the course of his or her duties as Mayor or Council Member.

(c) Be appointed to any office or position created by or the compensation for which was increased or fixed by the City Council until 1 year after the expiration of the term for which the Mayor or Council Member was elected.

2. Any person who violates the provisions of subsection 1 shall automatically forfeit his or her office.

(Ch. 662, Stats. 1971 p. 1963; A—Ch. 561, Stats. 1977 p. 1390; Ch. 327, Stats. 1999 p. 1366; Ch. 349, Stats. 2013 p. 1818)

Sec. 1.090 Appointive officers and appointive employees.

1. The City Council shall provide for the appointment of a City Manager and a City Clerk.

2. The City Manager shall appoint a Chief of Police and a Fire Chief, subject to ratification by the City Council. If a person so nominated is not confirmed, the City Manager shall continue to submit nominations until a nominee is confirmed.

3. The following are appointive officers:

(a) The City Manager, Assistant City Managers, Chief of Staff of the City Manager, Executive Assistant to the City Manager, Chief of Police, Assistant Chief of Police, Fire Chief, the heads of each department and the assistant heads of each department.

(b) The City Clerk, Chief Deputy City Clerk and Manager of Record Systems.

(c) Every Chief Deputy City Attorney.

(d) The Deputy City Assessor, if the City Council appoints a person as the Deputy City Assessor pursuant to section 3.080.

(e) The Deputy City Treasurer, if the City Treasurer appoints a person other than the City Clerk to be Deputy City Treasurer pursuant to section 3.090.

4. Except as otherwise provided in this subsection, the City Council may establish such other appointive offices and appointive positions as it may deem necessary for the

operation of the City by designating the office or position and the minimum qualifications therefor by ordinance. The number of appointive positions established by the City Council pursuant to this subsection must not exceed the greater of:

(a) Forty full-time equivalent appointive positions; or

(b) Four percent of the total number of:

(1) Appointive officers described in subsection 3; and

(2) All full-time equivalent positions in the Civil Service.

5. Appointive employees:

(a) Are not appointive officers but regularly assist an appointive officer;

(b) Have duties that consist of administrative work directly related to management policies; and

(c) Have positions that require them customarily to exercise discretion and independent judgment.

6. No person who is an employee of the City's:

(a) Police Department is an appointive officer or appointive employee, other than the Chief of Police and the Assistant Chief of Police.

(b) Fire Department is an appointive officer or appointive employee, other than the Fire Chief.

7. On or before June 30 of each fiscal year, the City Manager shall prepare and file with the City Clerk a document that sets forth the organization of every department and other office of the City. The document must include, without limitation, a description of the job responsibilities of each appointive officer and appointive employee.

(Ch. 662, Stats. 1971 p. 1963; A—Ch. 553, Stats. 1973 p. 876; Ch. 561, Stats. 1977 p. 1391; Ch. 65, Stats. 1981 p. 160; Ch. 210, Stats. 1997 p. 734; Ch. 349, Stats. 2013 p. 1818; Ch. 163, Stats. 2015 p. 767)

Sec. 1.100 Appointive officers and appointive employees: Miscellaneous provisions.

1. All appointive officers and appointive employees, except the City Clerk and his or her deputy, shall perform such duties as are designated by the City Manager.

2. Any employee of the City holding a Civil Service rating under the City who is appointed to any appointive office or appointive position does not lose his or her Civil Service rating while serving in that appointive office or appointive position.

3. The City Council may require from all other officers and employees of the City constituted or appointed under this Charter, except the Mayor and Council Members, sufficient security for the faithful and honest performance of their respective duties.

(Ch. 662, Stats. 1971 p. 1964; A—Ch. 553, Stats. 1973 p. 877; Ch. 561, Stats. 1977 p. 1392; Ch. 210, Stats. 1997 p. 734; Ch. 349, Stats. 2013 p. 1819; Ch. 163, Stats. 2015 p. 769)

Sec. 1.110 Appointive officers and appointive employees: Duties; salary; benefits.

1. All appointive officers and appointive employees of the City, including those appointed by the City Council, except:

(a) The City Manager;

(b) The City Clerk, Chief Deputy City Clerk and Manager of Record Systems appointed by the City Clerk pursuant to section 3.040;

(c) The professional and paraprofessional legal staff and the clerical staff appointed by the City Attorney pursuant to section 3.060; and

(d) The members of the City Board of Health and the City Health Officer, if the City administers the operations of the Board of Health,

shall perform their duties under the direction of the City Manager or as designated by the City Council through the City Manager.

2. All appointive officers and appointive employees of the City are entitled to the salary designated by the City Council through the adoption of a resolution establishing the salary ranges applicable to each appointive office and appointive position.

3. All appointive officers and appointive employees are entitled to the employment benefits established by the applicable law of the State and to such other benefits as the City Council provides by resolution.

(Ch. 662, Stats. 1971 p. 1964; A—Ch. 349, Stats. 2013 p. 1819; Ch. 163, Stats. 2015 p. 769)

Sec. 1.120 Officers and employees; change in salary.

1. The City Council may increase or diminish the salary or compensation of any appointive officer or employee.

2. No act of the City Council directly or indirectly increasing the salary or compensation of any elective officer, except as provided in this Charter, shall be valid or effective for any purpose.

(Ch. 662, Stats. 1971 p. 1964)

Sec. 1.130 Oath of office.

Every person elected or appointed to fill any office shall subscribe to the official oath as provided by the City Council. Every such person shall swear or affirm that he or she is not under any direct or indirect obligation to vote for, appoint or elect any person to any office, position or employment in the City government.

(Ch. 662, Stats. 1971 p. 1964)

Sec. 1.140 Charter Committee: Appointment; terms; qualifications; vacancies; compensation.

1. The Charter Committee must be appointed as follows:

(a) Each Council Member shall appoint one member;

(b) The Mayor shall appoint one member;

(c) Except as otherwise provided in subsection 2, the members of the Senate delegation representing the residents of the City and belonging to the majority party of the Senate shall appoint two members;

(d) Except as otherwise provided in subsection 2, the members of the Senate delegation representing the residents of the City and belonging to the minority party of the Senate shall appoint one member;

(e) Except as otherwise provided in subsection 2, the members of the Assembly delegation representing the residents of the City and belonging to the majority party of the Assembly shall appoint two members; and

(f) Except as otherwise provided in subsection 2, the members of the Assembly delegation representing the residents of the City and belonging to the minority party of the Assembly shall appoint one member.

2. The:

(a) Majority Leader of the Senate shall appoint the members of the Charter Committee described in paragraph (c) of subsection 1 if there are no members of the Senate representing the residents of the City and belonging to the majority party of the Senate.

(b) Minority Leader of the Senate shall appoint the members of the Charter Committee described in paragraph (d) of subsection 1 if there are no members of the Senate representing the residents of the City and belonging to the minority party of the Senate.

(c) Speaker of the Assembly shall appoint the members described in paragraph (e) of subsection 1 if there are no members of the Assembly representing the residents of the City and belonging to the majority party of the Assembly.

(d) Minority Leader of the Assembly shall appoint the members of the Charter Committee described in paragraph (f) of subsection 1 if there are no members of the Assembly representing the residents of the City and belonging to the minority party of the Assembly.

3. Each member of the Charter Committee:

(a) If appointed by a Council Member or the Mayor, serves during the term of the person by whom he or she was appointed;

(b) If appointed by members of the Senate delegation or the Majority Leader or Minority Leader of the Senate, serves a term of 4 years;

(c) If appointed by members of the Assembly delegation or the Speaker or Minority Leader of the Assembly, serves a term of 2 years;

(d) Must be a registered voter in the City; and

(e) Must reside in the City during his or her term of office.

4. If a vacancy occurs on the Charter Committee, the vacancy must be filled in the same manner as the original appointment for the remainder of the unexpired term.

5. Members of the Charter Committee are entitled to receive compensation, in an amount set by ordinance of the City Council, for each full meeting of the Charter Committee they attend.

(Added—Ch. 349, Stats. 2013 p. 1815; A—Ch. 163, Stats. 2015 p. 770)

Sec. 1.150 Charter Committee: Officers; meetings; duties.

The Charter Committee shall:

1. Elect a Chair and Vice Chair from among its members, who each serve for a term of 2 years;

2. Meet at least once every 2 years before the beginning of each regular session of the Legislature and when requested by the City Council or the Chair of the Charter Committee;
3. Meet jointly with the City Council on a date to be set after the final biennial meeting of the Charter Committee is conducted pursuant to subsection 2 and before the beginning of the next regular session of the Legislature to advise the City Council with regard to the recommendations of the Charter Committee concerning necessary amendments to this Charter;
4. If the City Council elects to submit the Charter Committee's recommended amendments to the Legislature as one of the City's bill draft requests, assist the City Council in the timely preparation of such amendments for presentation to the Legislature on behalf of the City;
5. If the City Council elects not to submit the Charter Committee's recommended amendments to the Legislature as one of the City's bill draft requests, seek sponsorship of a legislative measure by a member of the Senate or Assembly delegation representing the residents of the City and assist such member in the timely preparation of such amendments for presentation to the Legislature; and
6. Perform all functions and do all things necessary to accomplish the purposes for which it is established, including, but not limited to, holding meetings and public hearings, and obtaining assistance from City officers.

(Added—Ch. 349, Stats. 2013 p. 1815)

Sec. 1.160 Charter Committee: Removal of member; grounds.

Any member of the Charter Committee may be removed by a majority of the remaining members of the Charter Committee for cause, including failure or refusal to perform the duties of the office, absence from three successive regular meetings or ceasing to meet any qualification for the appointment to the Charter Committee.

(Added—Ch. 349, Stats. 2013 p. 1815)

ARTICLE II. LEGISLATIVE DEPARTMENT

Sec. 2.010 Mayor and City Council: Qualifications; election; term of office; salary. [Effective through December 31, 2023.]

1. The legislative power of the City is vested in a City Council consisting of six Council Members and a Mayor.
2. The Mayor and Council Members must be qualified electors within the City. Each Council Member elected from a ward must continue to live in that ward for as long as he or she represents the ward.
3. The Mayor and one Council Member represent the City at large and one Council Member represents each ward. The Mayor and Council Members serve for terms of 4 years.
4. The Mayor and Council Members are entitled to receive a salary in an amount fixed by the City Council.

(Ch. 662, Stats. 1971 p. 1965; A—Ch. 98, Stats. 1977 p. 210; Ch. 561, Stats. 1977 p. 1392; Ch. 65, Stats. 1981 p. 160; Ch. 462, Stats. 1993 p. 1467; Ch. 327, Stats. 1999 p. 1366)

Sec. 2.010 Mayor and City Council: Qualifications; election; term of office; salary. [Effective January 1, 2024.]

1. The legislative power of the City is vested in a City Council consisting of six Council Members and a Mayor.

2. The Mayor and Council Members must be qualified electors within the City. Each Council Member elected from a ward must continue to live in that ward for as long as he or she represents the ward.

3. The Mayor represents the City at large and one Council Member represents each ward. The Mayor and Council Members serve for terms of 4 years.

4. The Mayor and Council Members are entitled to receive a salary in an amount fixed by the City Council.

(Ch. 662, Stats. 1971 p. 1965; A—Ch. 98, Stats. 1977 p. 210; Ch. 561, Stats. 1977 p. 1392; Ch. 65, Stats. 1981 p. 160; Ch. 462, Stats. 1993 p. 1467; Ch. 327, Stats. 1999 p. 1366; Ch. 584, Stats. 2017 p. 4198, effective January 1, 2024)

Sec. 2.020 City Council: Contracts.

Members of the City Council:

1. May vote on any lease, contract or other agreement which extends beyond their terms of office.

2. Shall not have any interest, directly or indirectly, in any lease, contract or other agreement entered into with the City.

(Ch. 662, Stats. 1971 p. 1965)

Sec. 2.030 City Council: Discipline of members and other persons; subpoena power.

1. The City Council may:

(a) Provide for the punishment of the City Clerk or any member for disorderly conduct committed in its presence.

(b) Order the attendance of witnesses and the production of all papers relating to any business before the City Council.

2. If any person ordered to appear before the City Council fails to obey such an order:

(a) The City Council or any member thereof may apply to the clerk of the district court for a subpoena commanding the attendance of the person before the City Council.

(b) The clerk of the district court may issue the subpoena, and any peace officer may serve it.

(c) If the person upon whom the subpoena is served fails to obey it, the court may issue an order to show cause why the person should not be held in contempt of court and upon the hearing of the matter may adjudge the person guilty of contempt and punish him or her accordingly.

(Ch. 662, Stats. 1971 p. 1965; A—Ch. 349, Stats. 2013 p. 1820)

Sec. 2.040 Meetings: Quorum.

1. The City Council shall hold not less than two regular meetings each month. The times and dates of regular meetings must be established by resolution.

2. Special meetings of the City Council may be held at the call of the Mayor.

3. Except as otherwise provided in NRS 241.0355, a majority of all the members of the City Council constitutes a quorum to do business, but a lesser number may meet and recess from time to time, and compel the attendance of the absent members.

4. The meetings of the City Council must be conducted in accordance with chapter 241 of NRS.

(Ch. 662, Stats. 1971 p. 1966; A—Ch. 203, Stats. 1989 p. 444; Ch. 255, Stats. 2001 p. 1131; Ch. 349, Stats. 2013 p. 1820)

Sec. 2.060 Meetings: Time and place; rules.

The City Council may:

1. Fix the time and place of its meetings and judge the qualifications and election of its own members.

2. Adopt rules for the government of its members and proceedings.

(Ch. 662, Stats. 1971 p. 1966)

Sec. 2.070 Oaths and affirmations.

The Mayor, the Vice Mayor while acting in the place of the Mayor, each Council Member and the City Clerk may administer oaths and affirmations relating to any business pertaining to the City, before the City Council or to be considered by the City Council.

(Ch. 662, Stats. 1971 p. 1966; A—Ch. 553, Stats. 1973 p. 878; Ch. 349, Stats. 2013 p. 1821)

Sec. 2.080 Powers of City Council: Ordinances, resolutions and orders; waiver of salary and benefits.

1. The City Council may make and pass all ordinances, resolutions and orders not repugnant to the Constitution of the United States or the Constitution of the State of Nevada, or to the provisions of Nevada Revised Statutes or of this Charter, necessary for the municipal government and the management of the affairs of the City, and for the execution of all the powers vested in the City.

2. When power is conferred upon the City Council to do and perform anything and the manner of exercising such power is not specifically provided for, the City Council may provide by ordinance the manner and details necessary for the full exercise of such power.

3. The City Council may enforce ordinances by providing penalties not to exceed those established by the Legislature for misdemeanors.

4. The City Council shall have such powers, not in conflict with the express or implied provisions of this Charter, as are conferred generally by statute upon the governing bodies of cities organized under a special charter.

5. Except as otherwise provided in this subsection and subsection 6, the City Council shall not pass any ordinance or resolution increasing or diminishing the salary of any elective

officer during the term for which he or she is elected or appointed. The City Council may pass an ordinance increasing the salary of a Municipal Judge during the term for which he or she is elected or appointed.

6. Except as otherwise prohibited or limited by statute or regulation or as otherwise provided in this subsection, the Mayor and any Council Member may waive the payment of any part of the salary and benefits otherwise payable to him or her during any budget year. Any such waiver must be in writing, does not extend beyond the current term of the Mayor or Council Member and may not be rescinded.

(Ch. 662, Stats. 1971 p. 1966; A—Ch. 599, Stats. 1993 p. 2499; Ch. 349, Stats. 2013 p. 1821)

Sec. 2.090 Ordinances: Passage by bill; amendments; subject matter; title requirements.

1. No ordinance may be passed except by bill and by a majority vote of the City Council. The style of all ordinances must be as follows: ″The City Council of the City of Reno does ordain:″.

2. No ordinance may contain more than one general subject matter and matters which pertain to or are necessarily connected with the general subject matter, and the general subject must be briefly indicated in the title. Where the general subject of the ordinance is not so expressed in the title, the ordinance is void.

3. Any ordinance which amends an existing ordinance must set out in full the ordinance or sections thereof to be amended, and must indicate matter to be omitted by enclosing it in brackets and any new matter by underscoring or by italics.

(Ch. 662, Stats. 1971 p. 1967; A—Ch. 553, Stats. 1973 p. 878; Ch. 349, Stats. 2013 p. 1821)

Sec. 2.100 Ordinances: Enactment procedure; emergency ordinances.

1. All proposed ordinances when first proposed must be read to the City Council by title, after which an adequate number of copies of the proposed ordinance must be filed with the City Clerk for public distribution. Except as otherwise provided in subsection 3, notice of the filing must be published once in a newspaper qualified pursuant to the provisions of chapter 238 of NRS, and published in the City at least 10 days before the adoption of the ordinance. The City Council shall adopt or reject the ordinance, or an amendment thereto, within 45 days after the date of publication.

2. At the next regular meeting or adjourned regular meeting of the City Council held at least 10 days after the date of publication, the proposed ordinance must be returned to the City Council for consideration and possible adoption. At that meeting, the title of the proposed ordinance must be read as first proposed or as amended, and thereupon the proposed ordinance must be finally voted upon or action thereon postponed.

3. In cases of emergency or where the ordinance is of a kind specified in section 7.030, by unanimous consent of the City Council, final action may be taken immediately or at an emergency meeting called for that purpose, and no notice of the filing of the copies of the proposed ordinance with the City Clerk need be published.

4. All ordinances must be signed by the Mayor, attested by the City Clerk and published by title, together with the names of the members of the City Council voting for or against passage, in a newspaper qualified pursuant to the provisions of chapter 238 of NRS, and

published in the City for at least one publication, before the ordinance becomes effective. The City Council may, by majority vote, order the publication of the ordinance in full in lieu of publication by title only.

5. The City Clerk shall record all ordinances in a book kept for that purpose, together with the affidavits of publication by the publisher.

(Ch. 662, Stats. 1971 p. 1967; A—Ch. 160, Stats. 1983 p. 372; Ch. 599, Stats. 1993 p. 2500; Ch. 327, Stats. 1999 p. 1366; Ch. 349, Stats. 2013 p. 1822)

Sec. 2.110 Uniform codes: Procedure for adoption.

Except as otherwise provided in NRS 707.375, a uniform building, plumbing, electrical, health, traffic or fire code, or any other uniform code, printed in book or pamphlet form, or any portion thereof, with such changes as may be necessary to make the code applicable to conditions in the City, and with such other changes as may be desirable, may be adopted in an ordinance by reference thereto. Copies of the code, with such changes, if any, must be filed for use and examination by the public in the Office of the Clerk at least 1 week before the passage of the ordinance adopting the code.

(Ch. 662, Stats. 1971 p. 1967; A—Ch. 327, Stats. 1999 p. 1367; Ch. 237, Stats. 2003 p. 1254)

Sec. 2.120 Codification of ordinances; publication of Code.

1. The City Council may codify and publish a Code of its municipal ordinances in the form of a Municipal Code, which Code may, at the election of the City Council, have incorporated therein a copy of this Charter and such additional data as the City Council prescribes. Whenever the Code is published or revised, a copy must be provided to the Librarian at the County Public Library in Reno, the County Law Library and the Supreme Court Law Library. The requirements of this subsection are satisfied by the provision of a paper copy, an electronic copy or a copy of the Code in such other format as is requested by a library.

2. The ordinances in the Code must be arranged in appropriate chapters, articles and sections, excluding the titles, enacting clauses, signature of the Mayor, attestations and other formal parts.

3. The codification must be adopted by an ordinance and must not contain any substantive changes, modifications or alterations of existing ordinances, and the only title necessary for the ordinance is, ″An ordinance for codifying and compiling the general ordinances of the City of Reno.″

4. The codification may be amended or extended by ordinance.

(Ch. 662, Stats. 1971 p. 1968; A—Ch. 669, Stats. 1971 p. 2055; Ch. 344, Stats. 1973 p. 430; Ch. 561, Stats. 1977 p. 1393; Ch. 349, Stats. 2013 p. 1823)

Sec. 2.130 Ordinances: Judicial notice.

This Charter and all ordinances, rules, resolutions or other regulations of the City shall be received as prima facie evidence in all courts without pleading the contents thereof. Such Charter, ordinances, rules, resolutions or other regulations may be pleaded by title only and may be proved by introduction of:

1. The original entry thereof on the records of the City Council; or

2. A copy of such original entry certified by the City Clerk; or

3. A printed copy published or purported to have been published by authority of the City Council.

(Ch. 662, Stats. 1971 p. 1968)

Sec. 2.140 General powers of City Council.

1. Except as otherwise provided in subsection 2 and section 2.150, the City Council may:

(a) Acquire, control, improve and dispose of any real or personal property for the use of the City, its residents and visitors.

(b) Except as otherwise provided in NRS 598D.150 and 640C.100, regulate and impose a license tax for revenue upon all businesses, trades and professions.

(c) Provide or grant franchises for public transportation and utilities.

(d) Appropriate money for advertising and publicity and for the support of a municipal band.

(e) Enact and enforce any police, fire, traffic, health, sanitary or other measure which does not conflict with the general laws of the State. An offense that is made a misdemeanor by the laws of the State shall be deemed also to be a misdemeanor against the City whenever the offense is committed within the City.

(f) Fix the rate to be paid for any utility service provided by the City as a public enterprise. Any charges due for services, facilities or commodities furnished by any utility owned by the City is a lien upon the property to which the service is rendered and is perfected by filing with the County Recorder a statement by the City Clerk of the amount due and unpaid and describing the property subject to the lien. Any such lien is:

(1) Coequal with the latest lien upon the property to secure the payment of general taxes.

(2) Not subject to extinguishment by the sale of any property on account of the nonpayment of general taxes.

(3) Prior and superior to all liens, claims, encumbrances and titles other than the liens of assessments and general taxes.

2. The City Council:

(a) Shall not sell telecommunication service to the general public.

(b) May purchase or construct facilities for providing telecommunication that intersect with public rights-of-way if the governing body:

(1) Conducts a study to evaluate the costs and benefits associated with purchasing or constructing the facilities; and

(2) Determines from the results of the study that the purchase or construction is in the interest of the general public.

3. Any information relating to the study conducted pursuant to subsection 2 must be maintained by the City Clerk and made available for public inspection during the business hours of the Office of the City Clerk.

4. Notwithstanding the provisions of paragraph (a) of subsection 2, an airport may sell telecommunication service to the general public.

5. As used in this section:

(a) ″Telecommunication″ has the meaning ascribed to it in NRS 704.025.

(b) ″Telecommunication service″ has the meaning ascribed to it in NRS 704.028.

(Ch. 662, Stats. 1971 p. 1968; A—Ch. 553, Stats. 1973 p. 878; Ch. 561, Stats. 1977 p. 1393; Ch. 104, Stats. 1991 p. 174; Ch. 565, Stats. 1997 p. 2761; Ch. 327, Stats. 1999 p. 1367; Ch. 416, Stats. 2001 p. 2105; Ch. 465, Stats. 2003 p. 2899; Ch. 325, Stats. 2005 p. 1143; Ch. 216, Stats. 2007 p. 726; Ch. 349, Stats. 2013 p. 1823)

Sec. 2.150 Franchises for the provision of telecommunication service.

1. The City Council shall not:

(a) Impose any terms or conditions on a franchise for the provision of telecommunication service or interactive computer service other than terms or conditions concerning the placement and location of the telephone or telegraph lines and fees imposed for a business license or the franchise, right or privilege to construct, install or operate such lines.

(b) Require a company that provides telecommunication service or interactive computer service to obtain a franchise if it provides telecommunication service over the telephone or telegraph lines owned by another company.

(c) Require a person who holds a franchise for the provision of telecommunication service or interactive computer service to place its facilities in ducts or conduits or on poles owned or leased by the City.

2. As used in this section:

(a) ″Interactive computer service″ has the meaning ascribed to it in 47 U.S.C. § 230(f)(2), as that section existed on January 1, 2007.

(b) ″Telecommunication service″ has the meaning ascribed to it in NRS 704.028.

(Added—Ch. 565, Stats. 1997 p. 2761; A—Ch. 216, Stats. 2007 p. 727)

ARTICLE III. EXECUTIVE DEPARTMENT

Sec. 3.010 Mayor: Duties; Vice Mayor.

1. The Mayor:

(a) Shall serve as a member of the City Council and preside over its meetings.

(b) Shall not have any administrative duties.

(c) Must be recognized as the head of the City Government for all ceremonial purposes.

(d) Shall determine the order of business at meetings pursuant to the rules of the City Council.

(e) Is entitled to vote and shall vote last on all roll call votes.

(f) Shall take all proper measures for the preservation of the public peace and order and for the suppression of riots and all forms of public disturbance, for which he or she is authorized to appoint extra police officers temporarily and without regard to Civil Service rules and regulations, and to call upon the County Sheriff or, if that force is inadequate, to call upon the Governor for assistance.

(g) Shall perform such other duties, except administrative duties, as are prescribed by ordinance or by the provisions of Nevada Revised Statutes which apply to a mayor of a city organized pursuant to the provisions of a special charter.

2. At the first regular City Council meeting in November of each year or whenever a vacancy occurs in the office of Vice Mayor, the City Council shall elect one of the Council Members to be Vice Mayor. That person:

(a) Holds that office and title, without additional compensation, for a term of 1 year or until removed after a hearing for cause by a vote of six-sevenths of the City Council or the office otherwise becomes vacant.

(b) Shall perform the duties of Mayor during the absence or disability of the Mayor.

(c) Shall act as Mayor if the office of Mayor becomes vacant until the vacancy is filled pursuant to section 1.070 of this Charter.

(Ch. 662, Stats. 1971 p. 1973; A—Ch. 561, Stats. 1977 p. 1394; Ch. 9, Stats. 1993 p. 20; Ch. 210, Stats. 1997 p. 735; Ch. 349, Stats. 2013 p. 1824)

Sec. 3.020 City Manager: Duties; compensation; residency; vacancy.

1. The City Manager is the Chief Executive and Administrative Officer of the City Government. He or she is responsible to the City Council for the proper administration of all affairs of the City. The duties and salary of the City Manager must be fixed by the City Council and he or she is entitled to be reimbursed for all expenses incurred in the performance of his or her duties.

2. Except as otherwise provided in this subsection, the City Manager must actually, as opposed to constructively, reside in the State. A person who is appointed as City Manager by the City Council must become an actual resident of the State not later than 6 months after the date of his or her appointment.

3. Any vacancy in the City Manager position must be filled by the City Council not later than 6 months after the vacancy occurs.

4. Subject to the provisions of section 1.090, the City Manager may appoint such staff as he or she deems necessary for the proper functioning of the City.

5. The City Manager may designate an acting City Manager to serve in his or her absence or, if he or she fails to do so, the City Council may appoint an acting City Manager.

6. No member of the City Council may be appointed as City Manager during the term for which he or she was elected, or for 1 year thereafter.

7. The City Manager shall appoint all officers and employees of the City and may remove any officer or employee of the City except as otherwise provided in this Charter. The City Manager may authorize the head of a department or office to appoint or remove his or her subordinates.

(Ch. 662, Stats. 1971 p. 1973; A—Ch. 715, Stats. 1975 p. 1473; Ch. 65, Stats. 1981 p. 161; Ch. 210, Stats. 1997 p. 735; Ch. 349, Stats. 2013 p. 1825; Ch. 163, Stats. 2015 p. 771; Ch. 584, Stats. 2017 p. 4199)

Sec. 3.030 City Manager: Removal.

1. The City Council may remove the City Manager from office in accordance with the procedure contained in this section.

2. The City Council shall adopt by affirmative vote of a majority of all its members a preliminary resolution which must state the reasons for removal and may suspend the City Manager from duty for a period not to exceed 15 days. A copy of the resolution must be delivered promptly to the City Manager.

3. Within 5 days after a copy of the resolution is delivered to the City Manager, he or she may file with the City Council a written request for a public hearing. The public hearing must be held at a City Council meeting not earlier than 15 days nor later than 30 days after the request is filed. The City Manager may file with the City Council a written reply not later than 5 days before the hearing.

4. The City Council may adopt a final resolution of removal, which may be made effective immediately, by affirmative vote of a majority of all its members, at any time after 5 days from the date when a copy of the preliminary resolution was delivered to the City Manager if he or she has not requested a public hearing or at any time after the public hearing if he or she has requested one.

5. The City Manager is entitled to receive his or her salary until the effective date of the final resolution of removal.

(Ch. 662, Stats. 1971 p. 1973; A—Ch. 210, Stats. 1997 p. 736)

Sec. 3.040 City Clerk: Duties.

1. The City Clerk shall:

(a) Keep the corporate seal and all books and papers belonging to the City.

(b) Attend all meetings of the City Council and keep an accurate journal of its proceedings, including a record of all ordinances, bylaws and resolutions passed or adopted by it. After approval at each meeting of the City Council, the City Clerk shall attest the journal after it has been signed by the Mayor.

(c) Sign all warrants for payment issued.

(d) Number and sign all business licenses issued by the City. All business licenses must be in a form devised by the City Clerk and approved by the City Council.

(e) Enter upon the journal the result of the vote of the City Council upon the passage of ordinances, or of any resolution appropriating money, abolishing licenses, or increasing or decreasing the rates of licenses.

(f) Be the official collector of all business license fees and penalties of the City, and all money making up the City revenues, except general taxes and special assessments, must be paid over to him or her.

2. The City Clerk has custody of all the official records of the City. He or she is responsible to the City Council for the proper discharge of his or her duties. The duties and salary of the City Clerk are fixed by the City Council, and he or she is entitled to be reimbursed for all expenses incurred in the performance of his or her duties.

3. The City Clerk may, with approval of the City Council, appoint one Chief Deputy City Clerk and one Manager of Record Systems, who are appointive officers and not subject to the provisions of article IX of this Charter.

4. The City Clerk may designate a member of his or her staff as acting City Clerk to:

(a) Administer oaths; and

(b) Perform all the duties of the City Clerk in his or her absence.

(Ch. 662, Stats. 1971 p. 1974; A—Ch. 553, Stats. 1973 p. 880; Ch. 715, Stats. 1975 p. 1474; Ch. 373, Stats. 1979 p. 644; Ch. 65, Stats. 1981 p. 161; Ch. 210, Stats. 1997 p. 737; Ch. 349, Stats. 2013 p. 1825; Ch. 163, Stats. 2015 p. 772)

Sec. 3.060 City Attorney: Qualifications; duties; salary.

1. The City Attorney must be a duly licensed member of the State Bar of Nevada and a qualified elector within the City. Once elected, he or she shall hold office for a term of 4 years and until his or her successor is duly elected and qualified.

2. The City Attorney is the Legal Officer of the City and shall:

(a) Perform such duties as are designated by ordinance;

(b) Be present at all meetings of the City Council;

(c) Be counsel for the Commission;

(d) Devote his or her full time to the duties of the office; and

(e) Not engage in the private practice of law.

3. The City Attorney is entitled to receive a salary as fixed by resolution of the City Council.

4. As he or she requires in the discharge of the duties of his or her office, the City Attorney may:

(a) Appoint and remove any professional and paraprofessional legal staff, including, without limitation, attorneys, paralegals, investigators, an office administrator and an executive assistant. Professional and paraprofessional legal staff must not be Civil Service employees.

(b) Appoint and remove clerical staff, including, without limitation, management assistants, legal secretaries and advocates. Clerical staff must not be Civil Service employees.

5. The Council may appropriate such an amount of money as it deems proper to compensate the professional and paraprofessional legal staff and clerical staff appointed by the City Attorney pursuant to subsection 4.

6. Any attorney or paralegal who is employed for more than 20 hours per week by the City Attorney shall not engage in the private practice of law.

(Ch. 662, Stats. 1971 p. 1974; A—Ch. 553, Stats. 1973 p. 881; Ch. 666, Stats. 1975 p. 1318; Ch. 98, Stats. 1977 p. 210; Ch. 561, Stats. 1977 p. 1395; Ch. 599, Stats. 1993 p. 2501; Ch. 327, Stats. 1999 p. 1369; Ch. 349, Stats. 2013 p. 1826; Ch. 163, Stats. 2015 p. 772)

Sec. 3.070 Services of Special Counsel.

The City Council may, by six-sevenths vote, retain the services of attorneys to perform any civil duty of the City Attorney. Such attorneys are responsible only to the City Council. The City Attorney shall have no responsibility or authority concerning the services of such attorneys.

(Ch. 662, Stats. 1971 p. 1975; A—Ch. 163, Stats. 2015 p. 773)

Sec. 3.080 County Assessor to be ex officio City Assessor; duties.

1. The County Assessor of the County shall be ex officio City Assessor of the City. The County Assessor shall perform such duties for the City without additional compensation.

2. Upon request of the ex officio City Assessor, the City Council may appoint and set the salary of a Deputy City Assessor to perform such duties relative to city assessments as may be deemed necessary.

(Ch. 662, Stats. 1971 p. 1975; A—Ch. 349, Stats. 2013 p. 1827)

Sec. 3.090 County Treasurer to be ex officio City Treasurer; duties.

1. The Treasurer of the County shall be ex officio City Treasurer and Tax Receiver of the City. The County Treasurer shall perform such duties for the City without additional compensation.

2. The City Treasurer shall, with the consent of the City Council, appoint the City Clerk or other city officer as Deputy City Treasurer to perform such duties as may be designated by the City Council.

3. The City shall compensate the County annually in an amount agreed upon by the City Council and the Board of County Commissioners of the County for the services rendered by the Treasurer of the County under this section.

(Ch. 662, Stats. 1971 p. 1975; A—Ch. 414, Stats. 1975 p. 607; Ch. 349, Stats. 2013 p. 1827)

Sec. 3.120 City officers: Duties restricted and altered.

The City Council may prescribe by ordinance the powers and duties of all city officers, where such powers and duties have not been established by this Charter, and may add to, alter or restrict such powers and duties.

(Ch. 662, Stats. 1971 p. 1976)

Sec. 3.130 City officers: Collection and disposition of moneys.

1. All taxes, fines, forfeitures or other moneys collected or recovered by any officer or person pursuant to the provisions of this Charter or of any valid ordinance of the City shall be paid by the officer or person collecting or receiving them to the City Clerk, who shall dispose of them in accordance with the ordinances, regulations and procedures established by the City Council.

2. The City Council may by proper legal action collect all moneys which are due and unpaid to the City or any office thereof, and the City Council may pay from the General Fund all fees and expenses necessarily incurred by it in connection with the collection of such moneys.

(Ch. 662, Stats. 1971 p. 1976)

Sec. 3.140 Interference and direction by City Council.

1. Except as specifically authorized in this Charter, the Mayor or Council Members shall not dictate the appointment, suspension or removal of any employee. No person covered by the rules and regulations of the Commission may be appointed, suspended or removed except as provided in those rules and regulations.

2. Any action directed by the City Council in a public meeting shall be deemed to be direction to the City Manager and not to any subordinate of the City Manager. The City Council and its members shall deal directly with the City Manager and shall not give any order, publicly or privately, to any subordinate of the City Manager.

(Ch. 662, Stats. 1971 p. 1976; A—Ch. 210, Stats. 1997 p. 737; Ch. 349, Stats. 2013 p. 1827; Ch. 163, Stats. 2015 p. 773; Ch. 584, Stats. 2017 p. 4199)

Sec. 3.150 Removal of elective officers.

If any elective officer is adjudged guilty of nonfeasance, misfeasance or malfeasance in office by any court of competent jurisdiction, the City Council may declare the office vacant and fill the vacancy so caused, as provided by law.

(Ch. 662, Stats. 1971 p. 1976)

ARTICLE IV. JUDICIAL DEPARTMENT

Sec. 4.010 Municipal Court.

1. The Municipal Court must include one department and may include additional departments in the discretion of the City Council. If the City Council determines to create additional departments, it shall do so by resolution and may appoint additional Municipal Judges to serve until the next election.

2. The City Council may not reduce the term of office of any appointed or elected Municipal Judge.

(Ch. 662, Stats. 1971 p. 1976; A—Ch. 553, Stats. 1973 p. 881; Ch. 373, Stats. 1979 p. 645; Ch. 208, Stats. 1985 p. 675; Ch. 9, Stats. 1993 p. 21; Ch. 349, Stats. 2013 p. 1828)

Sec. 4.020 Municipal Court: Qualifications of Municipal Judge; salary.

1. A Municipal Judge must be:

(a) An attorney licensed to practice law in the State.

(b) A qualified elector within the City.

2. A Municipal Judge shall not engage in the private practice of law.

3. The salary of a Municipal Judge must be:

(a) Fixed by resolution of the City Council.

(b) Uniform for all judges in the Municipal Court.

(Ch. 662, Stats. 1971 p. 1976; A—Ch. 343, Stats. 1973 p. 422; Ch. 553, Stats. 1973 p. 881; Ch. 98, Stats. 1977 p. 211; Ch. 561, Stats. 1977 p. 1395; Ch. 208, Stats. 1985 p. 675; Ch. 599, Stats. 1993 p. 2501; Ch. 327, Stats. 1999 p. 1369; Ch. 349, Stats. 2013 p. 1828)

Sec. 4.030 Disposition of fines.

All fines and forfeitures for the violation of ordinances shall be paid to the City Clerk in the manner to be prescribed by ordinance.

(Ch. 662, Stats. 1971 p. 1977)

Sec. 4.040 Procedure; additional judges.

The practice and proceedings in the Court must conform as nearly as practicable to that of justices′ courts in similar cases. Upon the written request of the City Manager an additional temporary Municipal Judge may be provided for so long as the City Council authorizes additional compensation for such a Judge.

(Ch. 662, Stats. 1971 p. 1977; A—Ch. 553, Stats. 1973 p. 882; Ch. 182, Stats. 1983 p. 434; Ch. 208, Stats. 1985 p. 676; Ch. 349, Stats. 2013 p. 1828)

ARTICLE V. ELECTIONS

Sec. 5.010 General elections. [Effective through December 31, 2023.]

1. On the date fixed by the election laws of the State for the statewide general election in November 2002, and at each successive interval of 6 years, there must be elected at the general election, a Municipal Judge, who holds office for a term of 6 years and until his or her successor has been elected and qualified.

2. On the date fixed by the election laws of the State for the statewide general election in November 2002, and at each successive interval of 4 years, there must be elected at the general election, a Mayor, Council Members from the second and fourth wards, and a City Attorney, all of whom hold office for a term of 4 years and until their successors have been elected and qualified.

3. On the date fixed by the election laws of the State for the statewide general election in November 2004, and at each successive interval of 6 years, there must be elected at the general election, one or more Municipal Judges, other than the Municipal Judge referred to in subsection 1, all of whom hold office for a term of 6 years and until their successors have been elected and qualified.

4. On the date fixed by the election laws of the State for the statewide general election in November 2004, and at each successive interval of 4 years, there must be elected at the general election, Council Members from the first, third and fifth wards and one Council Member at large, all of whom hold office for a term of 4 years and until their successors have been elected and qualified.

5. In the general election:

(a) A candidate for the office of Council Member who represents a ward must be elected only by the registered voters of the ward that the candidate seeks to represent.

(b) Candidates for the offices of Mayor, Municipal Judge, City Attorney and Council Member at large must be elected by the registered voters of the city at large.

(Ch. 662, Stats. 1971 p. 1977; A—Ch. 561, Stats. 1977 p. 1395; Ch. 373, Stats. 1979 p. 645; Ch. 9, Stats. 1993 p. 21; Ch. 87, Stats. 2001 p. 557; Ch. 349, Stats. 2013 p. 1828; Ch. 584, Stats. 2017 p. 4200)

Sec. 5.010 General elections. [Effective January 1, 2024.]

1. On the date fixed by the election laws of the State for the statewide general election in November 2002, and at each successive interval of 6 years, there must be elected at the general election, a Municipal Judge, who holds office for a term of 6 years and until his or her successor has been elected and qualified.

2. On the date fixed by the election laws of the State for the statewide general election in November 2002, and at each successive interval of 4 years, there must be elected at the general election, a Mayor, Council Members from the second and fourth wards, and a City Attorney, all of whom hold office for a term of 4 years and until their successors have been elected and qualified.

3. On the date fixed by the election laws of the State for the statewide general election in November 2004, and at each successive interval of 6 years, there must be elected at the

general election, one or more Municipal Judges, other than the Municipal Judge referred to in subsection 1, all of whom hold office for a term of 6 years and until their successors have been elected and qualified.

4. On the date fixed by the election laws of the State for the statewide general election in November 2004, and at each successive interval of 4 years, there must be elected at the general election, Council Members from the first, third and fifth wards all of whom hold office for a term of 4 years and until their successors have been elected and qualified.

5. On the date fixed by the election laws of the State for the statewide general election in November 2024, and at each successive interval of 4 years, there must be elected at the general election a Council Member from the sixth ward, who holds office for a term of 4 years and until his or her successor has been elected and qualified.

6. In the general election:

(a) A candidate for the office of Council Member must be elected only by the registered voters of the ward that the candidate seeks to represent.

(b) Candidates for the offices of Mayor, Municipal Judge and City Attorney must be elected by the registered voters of the city at large.

(Ch. 662, Stats. 1971 p. 1977; A—Ch. 561, Stats. 1977 p. 1395; Ch. 373, Stats. 1979 p. 645; Ch. 9, Stats. 1993 p. 21; Ch. 87, Stats. 2001 p. 557; Ch. 349, Stats. 2013 p. 1828; Ch. 584, Stats. 2017 p. 4200, 4201, effective January 1, 2024)

Sec. 5.020 Primary elections; declaration of candidacy. [Effective through December 31, 2023.]

1. A candidate for any office to be voted for at an election must file a declaration of candidacy with the City Clerk. All filing fees collected by the City Clerk must be deposited to the credit of the General Fund of the City.

2. If for any general election, there are three or more candidates for any office to be filled at that election, a primary election for any such office must be held on the date fixed by the election laws of the State for statewide elections, at which time there must be nominated candidates for the office to be voted for at the next general election. If for any general election there are two or fewer candidates for any office to be filled at that election, their names must not be placed on the ballot for the primary election but must be placed on the ballot for the general election. The general election must be held on the date fixed by the election laws of the State for the statewide general election.

3. In the primary election:

(a) The names of the two candidates for Municipal Judge, City Attorney or a particular City Council seat, as the case may be, who receive the highest number of votes must be placed on the ballot for the general election.

(b) Candidates for Council Member who represent a specific ward must be voted upon only by the registered voters of that ward.

(c) Candidates for Mayor, Municipal Judge, City Attorney and Council Member at large must be voted upon by all registered voters of the City.

(Ch. 662, Stats. 1971 p. 1977; A—Ch. 9, Stats. 1993 p. 22; Ch. 462, Stats. 1993 p. 1468; Ch. 210, Stats. 1997 p. 738; Ch. 570, Stats. 1997 p. 2791, 2796; Ch. 686, Stats. 1997 p. 3481; Ch. 100, Stats. 1999 p. 274; Ch. 376, Stats. 2005 p. 1438; Ch. 349, Stats. 2013 p. 1829; Ch. 584, Stats. 2017 p. 4202)

Sec. 5.020 Primary elections; declaration of candidacy. [Effective January 1, 2024.]

1. A candidate for any office to be voted for at an election must file a declaration of candidacy with the City Clerk. All filing fees collected by the City Clerk must be deposited to the credit of the General Fund of the City.

2. If for any general election, there are three or more candidates for any office to be filled at that election, a primary election for any such office must be held on the date fixed by the election laws of the State for statewide elections, at which time there must be nominated candidates for the office to be voted for at the next general election. If for any general election there are two or fewer candidates for any office to be filled at that election, their names must not be placed on the ballot for the primary election but must be placed on the ballot for the general election. The general election must be held on the date fixed by the election laws of the State for the statewide general election.

3. In the primary election:

(a) The names of the two candidates for Municipal Judge, City Attorney or a particular City Council seat, as the case may be, who receive the highest number of votes must be placed on the ballot for the general election.

(b) Candidates for Council Member must be voted upon only by the registered voters of the ward that the candidate seeks to represent.

(c) Candidates for Mayor, Municipal Judge and City Attorney must be voted upon by all registered voters of the City.

(Ch. 662, Stats. 1971 p. 1977; A—Ch. 9, Stats. 1993 p. 22; Ch. 462, Stats. 1993 p. 1468; Ch. 210, Stats. 1997 p. 738; Ch. 570, Stats. 1997 p. 2791, 2796; Ch. 686, Stats. 1997 p. 3481; Ch. 100, Stats. 1999 p. 274; Ch. 376, Stats. 2005 p. 1438; Ch. 349, Stats. 2013 p. 1829; Ch. 584, Stats. 2017 p. 4202, effective January 1, 2024)

Sec. 5.030 Applicability of state election laws; elections under City Council control.

1. All elections held pursuant to this Charter must be governed by the provisions of the election laws of this State, so far as those laws can be made applicable and are not inconsistent herewith.

2. The conduct of all elections must be under the control of the City Council. For the conduct of elections, for the prevention of fraud in those elections, and for the recount of ballots in cases of doubt or fraud, the City Council shall adopt by ordinance all regulations which it considers desirable and consistent with law and this Charter.

(Ch. 662, Stats. 1971 p. 1978; A—Ch. 9, Stats. 1993 p. 23)

Sec. 5.040 Qualifications, registration of voters.

1. Every person who resides within the City at the time of holding any election, and whose name appears upon the official register of voters in and for the City, is entitled to vote at each election, whether special, primary or general, and for all officers to be voted for and on all questions that may be submitted to the people at any primary, general or special election, except as otherwise provided in this article.

2. The City Council may provide for supplemental registration.

(Ch. 662, Stats. 1971 p. 1978; A—Ch. 561, Stats. 1977 p. 1396; Ch. 9, Stats. 1993 p. 23)

Sec. 5.050 Names on ballots.

1. The full names of all candidates, except those who have withdrawn, died or become ineligible, must be printed on the official ballots without party designation or symbol.

2. If two or more candidates have the same surname or surnames so similar as to be likely to cause confusion and:

(a) None of them is an incumbent, their middle names or middle initials, if any, must be included in their names as printed on the ballot; or

(b) One of them is an incumbent, the name of the incumbent must be listed first and must be printed in bold type.

(Ch. 662, Stats. 1971 p. 1978; A—Ch. 312, Stats. 2003 p. 1730)

Sec. 5.060 Ballots for ordinances and Charter amendments.

An ordinance or Charter amendment to be voted on in the City shall be presented for voting by ballot title. The ballot title of a measure may differ from its legal title and shall be a clear, concise statement describing the substance of the measure without argument or prejudice. Below the ballot title shall appear the following question: ″Shall the above described (ordinance) (amendment) be adopted?″ The ballot or voting machine or device shall be so marked as to indicate clearly in what manner the voter may cast his or her vote, either for or against the ordinance or amendment.

(Ch. 662, Stats. 1971 p. 1978; A—Ch. 669, Stats. 1971 p. 2055)

Sec. 5.070 Availability of lists of registered voters.

If, for any purpose relating to an election or to candidates or issues involved in that election, any organization, group or person requests a list of registered voters of the City, the department, office or agency which has custody of the official register of voters shall, except as otherwise provided in NRS 293.5002 and 293.558, permit the organization, group or person to copy the voters′ names and addresses from the official register of voters or furnish such a list upon payment of the cost established by the election laws of the State.

(Ch. 662, Stats. 1971 p. 1979; A—Ch. 561, Stats. 1977 p. 1396; Ch. 9, Stats. 1993 p. 23; Ch. 581, Stats. 2001 p. 2972; Ch. 470, Stats. 2005 p. 2304; Ch. 349, Stats. 2013 p. 1830)

Sec. 5.080 Watchers and challengers.

A candidate is entitled upon written application to the election authorities at least 5 days before the election to appoint two persons to represent him or her as watchers and challengers at each polling place where voters may cast their ballots for him or her. A person so appointed has all the rights and privileges prescribed by watchers and challengers under the election laws of this State. The watchers and challengers may exercise their rights throughout the voting and until the ballots have been counted.

(Ch. 662, Stats. 1971 p. 1979)

Sec. 5.090 Voting machines.

The City Council may provide for the use of mechanical or other devices for voting or counting the votes not inconsistent with law or regulations of the Secretary of State.

(Ch. 662, Stats. 1971 p. 1979)

Sec. 5.100 Election returns; canvass; certificates of election; entry of officers upon duties; tie vote procedure.

1. The election returns from any special, primary or general election must be filed with the City Clerk, who shall immediately place those returns in a safe or vault, and no person may handle, inspect or in any manner interfere with those returns until canvassed by the City Council.

2. The City Council and City Manager shall meet within 10 days after any election and canvass the returns and declare the result. The election returns must then be sealed and kept by the City Clerk for 6 months, and no person may have access thereto except on order of a court of competent jurisdiction or by order of the City Council.

3. The City Clerk, under his or her hand and official seal, shall issue to each person declared to be elected a certificate of election. The officers elected shall qualify and enter upon the discharge of their respective duties at the first regular City Council meeting following their election.

4. If any election results in a tie, the City Council shall summon the candidates who received the tie vote and determine the tie as provided in this subsection. The City Clerk shall provide and open in the presence of the candidates who received the tie vote an unused 52-card deck of playing cards, removing any jokers and blank cards. The City Clerk shall shuffle the cards thoroughly and present the shuffled deck to the City Manager, or to the person designated by the City Manager for this purpose. One of the candidates who received the tie vote shall then draw one card from the deck, and the City Clerk shall record the suit and number of the card. The card then must be returned to the deck, and the City Clerk shall shuffle the cards thoroughly and present the shuffled deck to the City Manager, or to the person designated by the City Manager for this purpose, and another of the candidates who received the tie vote shall draw one card from the deck. This process must be repeated until each of the candidates who received the tie vote has drawn one card from the deck and the result of each draw has been recorded. The candidate who draws the high card shall be deemed the winner of the election. For the purposes of this subsection, aces are high and twos are low. If the candidates draw cards of otherwise equal value, the card of the higher suit is the high card. Spades are highest, followed in descending order by hearts, clubs and diamonds. The City Clerk shall issue to the winner a certificate of election.

(Ch. 662, Stats. 1971 p. 1979; A—Ch. 561, Stats. 1977 p. 1396; Ch. 373, Stats. 1979 p. 646; Ch. 9, Stats. 1993 p. 24; Ch. 349, Stats. 2013 p. 1830)

Sec. 5.110 Contest of election.

A contested election for any municipal office shall be determined according to the law of the State regulating proceedings in contested elections in political subdivisions.

(Ch. 662, Stats. 1971 p. 1979)

Sec. 5.120 Reports of Campaign Contributions.

1. The City Council shall adopt an ordinance requiring the Mayor and each member of the City Council to report contributions received during every year other than the year in which the general election for that office is held.

2. The reports required by an ordinance adopted pursuant to subsection 1 must be in addition to the reports required by chapter 294A of NRS.

3. As used in this section, ″contribution″ has the meaning ascribed to it in NRS 294A.007.

(Added—Ch. 584, Stats. 2017 p. 4200)

ARTICLE VI. LOCAL IMPROVEMENTS

Sec. 6.010 Local improvement law.

Except as otherwise provided in subsection 2 of section 2.140 and section 2.150, the City Council, on behalf of the City and in its name, without any election, may from time to time acquire, improve, equip, operate and maintain, convert to or authorize:

1. Curb and gutter projects;

2. Drainage projects;

3. Off-street parking projects;

4. Overpass projects;

5. Park projects;

6. Sanitary sewer projects;

7. Security walls;

8. Sidewalk projects;

9. Storm sewer projects;

10. Street projects;

11. Underground electric and communication facilities;

12. Underpass projects;

13. Water projects; and

14. Any other projects authorized by the laws of the State, including, without limitation, chapter 271 of NRS.

(Ch. 662, Stats. 1971 p. 1979; A—Ch. 306, Stats. 1973 p. 384; Ch. 361, Stats. 1983 p. 875; Ch. 565, Stats. 1997 p. 2762; Ch. 416, Stats. 2001 p. 2106; Ch. 349, Stats. 2013 p. 1831)

Sec. 6.020 Local improvement law: Collateral powers.

The City Council on behalf of the City for the purpose of defraying all the costs of acquiring, improving or converting to any project authorized by section 6.010, or any portion of the cost thereof not to be defrayed with moneys otherwise available therefor, is vested with the powers granted to municipalities by chapters 271 and 704A of NRS, as amended from time to time.

(Ch. 662, Stats. 1971 p. 1980; A—Ch. 306, Stats. 1973 p. 385)

Sec. 6.030 Local improvement law: Assessments on public property.

When an assessment is made for any improvement pursuant to sections 6.010 and 6.020 and there is public property located within the district formed and otherwise assessable, the City Council may pay all or any part of the cost of such improvement that would be apportionable to such public property from the General Fund of the City or from any other proper fund.

(Ch. 662, Stats. 1971 p. 1980)

ARTICLE VII. LOCAL BONDS AND FRANCHISES

Sec. 7.010 Debt limit.

1. The City shall not incur an indebtedness in excess of 15 percent of the total assessed valuation of the taxable property within the boundaries of the City, as shown on the tax list or assessment roll in effect as of the date of issuance of the municipal securities constituting the debt.

2. In determining any debt limitation under this section, there shall not be counted as indebtedness:

(a) Warrants or other securities which are payable upon presentation or demand or within 1 year from the date thereof.

(b) Securities payable from special assessments against benefited property, whether issued pursuant to any general or special law and irrespective of whether such special assessment securities are payable from general ad valorem taxes.

(c) Securities issued pursuant to any general or special law the principal and interest of which are payable solely from revenues of the City derived from other than general ad valorem taxes.

(Ch. 662, Stats. 1971 p. 1980; A—Ch. 349, Stats. 2013 p. 1831)

Sec. 7.020 Acquisition, operation of municipal utilities.

Except as otherwise provided in subsection 2 of section 2.140 and 2.150, the City may, in the manner and for the purposes provided in this Charter and Nevada Revised Statutes as they apply to cities, grant franchises and acquire in any manner any public utility and hold, manage and operate it, either alone or jointly, with any level of government or instrumentality or subdivision thereof.

(Ch. 662, Stats. 1971 p. 1980; A—Ch. 565, Stats. 1997 p. 2763; Ch. 416, Stats. 2001 p. 2106)

Sec. 7.030 Borrowing money.

1. Subject to the limitations imposed by this article, the City may borrow money for any corporate purpose, including, without limitation any purpose authorized by this Charter or by Nevada Revised Statutes for a city, and for such purpose may issue bonds or other securities. The Local Government Securities Law, as amended from time to time, applies to all securities so issued, except for securities issued under section 6.020.

2. Any property tax levied to pay the principal of or interest on such indebtedness must be levied upon all taxable property within the City.

3. Any ordinance pertaining to the sale or issuance of bonds or other securities, including without limitation securities issued under section 6.020, may be adopted in the same manner as is provided for cases of emergency. A declaration by the City Council in any ordinance that it is of this kind is conclusive in the absence of fraud or gross abuse of discretion.

(Ch. 662, Stats. 1971 p. 1980; A—Ch. 482, Stats. 1981 p. 975)

Sec. 7.050 Investment of funds.

1. The City Council may, by resolution, direct the City Manager to invest any part of the funds of the City in obligations of any kind issued by the United States of America.

2. All such funds so invested shall be considered as part of the fund from which it was taken.

(Ch. 662, Stats. 1971 p. 1981; A—Ch. 561, Stats. 1977 p. 1397)

Sec. 7.060 Investment of money realized from bond sales.

1. The City Council may direct the City Manager to invest, in a manner authorized by the laws of this state, all money realized from the sale of bonds issued by the City in bonds or other securities until such money is required for the purposes for which the bonds were issued.

2. All interest received from such investments must be used only for the purposes for which the bonds were issued and for payment of principal or interest on those bonds.

(Ch. 662, Stats. 1971 p. 1981; A—Ch. 561, Stats. 1977 p. 1397; Ch. 178, Stats. 2001 p. 887)

Sec. 7.070 Refunding bonds.

1. The City Council may, by ordinance, refund any municipal bonded indebtedness and issue refunding bonds.

2. The ordinance shall set forth fully and in detail the bonded indebtedness to be refunded and the terms, amount, maximum rate of interest and time within which redeemable, and on what fund. Such ordinance shall also set forth substantially the form of the refunding bonds to be issued but need not provide for the manner of their sale, or for any other matter, except as specified in this Charter.

3. Such ordinance may be passed and adopted in accordance with the provisions of section 2.100 without election. The City Council may in a like manner issue bonds in place of or to supply means to meet maturing bonds.

(Ch. 662, Stats. 1971 p. 1981)

ARTICLE VIIA. FINANCING BY TAX INCREMENT

Sec. 7A.010 Definitions.

Except as otherwise provided in this article or where the context otherwise requires, terms used or referred to in this article are as defined in the City Bond Law, as from time to time amended, and except as otherwise provided in such Law, as defined in the Local Government Securities Law, as from time to time amended; but the definitions and related substantive requirements provided in sections 7A.020 to 7A.120, inclusive, except where the context otherwise requires, govern the construction of this article.

(Added—Ch. 460, Stats. 1979 p. 860)

Sec. 7A.020 "Cost of the undertaking" defined.

"Cost of the undertaking," or any phrase of similar import, means the "cost of any project" as the latter phrase is defined in the Local Government Securities Law.

(Added—Ch. 460, Stats. 1979 p. 860)

Sec. 7A.040 "Engineer" defined.

"Engineer" means the Director of Public Works, the City Engineer or a firm of engineers employed by the City in connection with any undertaking, any project or the exercise of any power authorized in this article.

(Added—Ch. 460, Stats. 1979 p. 860; A—Ch. 349, Stats. 2013 p. 1832)

Sec. 7A.050 "Facilities" defined.

1. "Facilities" means buildings, structures, utilities or other properties pertaining to any undertaking or nay project authorized in this article, including, without limitation, income-producing facilities and facilities acquired with the proceeds of bonds or other securities.

2. Facilities may consist of all properties, real, personal, mixed or otherwise acquired by the City, by any undertaking for any one or more projects through purchase, condemnation, construction or otherwise, and used in connection with any such project and related services or in any way pertaining thereto, whether situated within or without or both within and without the territorial limits of the City.

3. The City shall not acquire as a part of its facilities any properties which at the time of their acquisition compete in any area with then-existing properties of a public body providing the same or a similar function or service therein, but the facilities of the City may complement such existing properties of a public body by providing in such an area supplemental functions or services if such existing properties provide inadequate functions or services.

4. The City may acquire properties of any public body situate in the City as one undertaking or a project of the City or an interest therein.

(Added—Ch. 460, Stats. 1979 p. 860)

Sec. 7A.060 "Mailed notice," "notice by mail" defined.

1. "Mailed notice" or "notice by mail", means the giving by the Engineer, City Clerk, or any deputy thereof, as determined by the City Council, of any designated written or printed notice addressed to the last-known owner or owners of each tract in a tax increment area or other designated person at his, her or their last-known address or addresses by deposit, at least 20 days prior to the designated hearing or other time or event, in the United States mail, postage prepaid as first-class mail.

2. The names and addresses of such property owners shall be obtained from the records of the County Assessor or from such other source or sources as the City Clerk or the Engineer deems reliable. Any list of such names and addresses pertaining to any tax increment area may be revised from time to time, but such a list need not be revised more frequently than at 12-month intervals if any such list is needed for a period longer than 12 months.

3. Any mailing of any notice required in this article shall be verified by the affidavit or certificate of the Engineer, City Clerk, deputy, or other person mailing the notice, which verification shall be retained in the records of the City at least until all bonds and any other securities pertaining to a Tax Increment Account have been paid in full, or any claim is barred by a statute of limitations.

4. Such verification of mailing is prima facie evidence of the mailing of such notice in accordance with the requirements of this section.

(Added—Ch. 460, Stats. 1979 p. 860)

Sec. 7A.070 "Newspaper" defined.

"Newspaper" means a newspaper printed in the English language at least once each calendar week and published and of general circulation in the City.

(Added—Ch. 460, 1979 p. 861)

Sec. 7A.080 "Posting" defined.

1. "Posting" means posting in three public places at or near the site of the undertaking or any project designated at least 20 days prior to the designated hearing or other time or event.

2. Any posting of any notice required in this article shall be verified by the affidavit or certificate of the Engineer, City Clerk, deputy, or other person posting the notice, and filed with the City Clerk, which verification shall be retained in the records of the City at least until the bonds and other securities pertaining to a tax increment account have been paid in full, or any claim is barred by a statute of limitations.

3. Such verification of posting is prima facie evidence of the posting of such notice in accordance with the requirements of this section.

(Added—Ch. 460, Stats. 1979 p. 861)

Sec. 7A.090 "Publication," "publish" defined.

1. "Publication" or "publish" means publication in at least one newspaper.

2. Except as otherwise expressly provided or necessarily implied in this article, "publication" or "publish" also means publication for at least once a week for 3 consecutive weeks by three weekly insertions, the first publication being at least 15 days prior to the designated time or event. Unless otherwise so stated, it is not necessary that publication be made on the same day of the week in each of the 3 calendar weeks, but not less than 14 days must intervene between the first publication and the last publication.

3. Publication is complete on the day of the last publication.

4. Any publication required in this article shall be verified by the affidavit of the publisher and filed with the City Clerk, which verification shall be retained in the records of the City at least until all the bonds and any other securities pertaining to a Tax Increment Account have been paid in full, or any claim is barred by a statute of limitations.

5. Such verification of publication is prima facie evidence of the publication of such notice in accordance with the requirements of this section.

(Added—Ch. 460, Stats. 1979 p. 861)

Sec. 7A.100 "Tax Increment Account" defined.

"Tax Increment Account" means a special Account created pursuant to subsection 3 of section 7A.180 and other provisions in this article supplemental thereto.

(Added—Ch. 460, Stats. 1979 p. 862)

Sec. 7A.110 "Tax increment area" defined.

"Tax increment area" means the area specially benefited by an undertaking hereunder, designated by ordinance as provided in subsection 3 of section 7A.180, and in which is located the taxable property the assessed valuation of which is the basis for the allocation of tax proceeds to the Tax Increment Account under section 7A.190.

(Added—Ch. 460, Stats. 1979 p. 862)

Sec. 7A.120 "Undertaking" defined.

"Undertaking" means any enterprise to acquire, develop, improve or equip, or any combination thereof, any project or projects authorized in the City Bond Law or which is a mixed-use or transit-oriented community, and to defray the cost of such enterprise wholly or in part by the issuance of the City's bonds or other securities payable wholly or in part from tax proceeds allocated to the Tax Increment Account pertaining to such enterprise pursuant to section 7A.190.

(Added—Ch. 460, Stats. 1979 p. 862; A—Ch. 404, Stats. 2005 p. 1596)

Sec. 7A.130 Authorization of tax increment area.

1. Except as provided in subsections 2 and 3 of this section, the City Council, on the behalf and in the name of the City, may at any time designate a tax increment area within the City for the purpose of creating a special account for the payment of bonds or other securities issued to defray the cost of the acquisition, improvement or equipment (or any combination thereof) of a project or projects authorized in the City Bond Law, as from time to time amended (including, without limitation, the condemnation of property for any such undertaking), as supplemented by the Local Government Securities Law, except as otherwise provided in this article.

2. A tax increment area may not be created by the City Council if the total land area of tax increment areas exceeds, or will thereby exceed, 5 percent of the total land area of the City, or if the total initial assessed valuation of tax increment areas exceeds, or will thereby exceed, 5 percent of the total assessed valuation of taxable property situated within the City. As used in this subsection, "initial assessed valuation" means the assessed value as shown upon the assessment roll last equalized prior to the designation of the area.

3. The right-of-way property of a railroad company which is under the jurisdiction of the Interstate Commerce Commission shall not be included in a tax increment area unless the inclusion of such property is mutually agreed upon by the City Council and the railroad company.

(Added—Ch. 460, Stats. 1979 p. 862)

Sec. 7A.140 Initiating procedure.

1. Whenever the City Council is of the opinion that the interest of the City requires any undertaking, the City Council, by resolution, shall direct the Engineer to prepare:

(a) Preliminary plans and a preliminary estimate of the cost of the undertaking, including without limitation, all estimated financing costs to be capitalized with the proceeds of the City's securities and all other estimated incidental costs relating to the undertaking;

(b) A statement of the proposed tax increment area pertaining thereto, the last finalized amount of the assessed valuation of the taxable property in such area, and the amount of taxes (including in such amount the sum of any unpaid taxes, whether or not delinquent) resulting from the last taxation of such property, based upon the records of the County Assessor and the County Treasurer; and

(c) A statement of the estimated amount of the tax proceeds to be credited annually to the Tax Increment Account during the term of the proposed securities payable therefrom.

2. The resolution shall describe the undertaking in general terms.

3. The resolution shall state:

(a) What part or portion of the expense thereof shall be paid with the proceeds of securities issued by the City in anticipation of tax proceeds to be credited to the Tax Increment Account and payable wholly or in part therefrom;

(b) How the remaining part or portion of such expense, if any, is to be financed; and

(c) The basic security and any additional security for the payment of securities of the City pertaining to the undertaking.

4. The resolution need not describe minutely each particular tract of taxable real property proposed to be included within the tax increment area, but simply designate the tax increment area or its location, so that the various tracts of taxable real property and any taxable personal property can be ascertained and determined to be within or without the proposed tax increment area.

5. The Engineer shall forthwith file with the City Clerk such preliminary plans, estimate of cost and statements.

6. Upon their filing, the City Council shall examine them, and if it finds them to be satisfactory, it shall by resolution provisionally order the undertaking.

(Added—Ch. 460, Stats. 1979 p. 863)

Sec. 7A.150 Provisional order resolution; notice.

1. In the provisional order resolution the City Council shall set a time at least 20 days thereafter and place when and where any representative of the Federal Government, the State or any public body, or any person resident of the City or owning taxable personal or real property therein, or any representative of any such person, may appear before the City Council and be heard as to the propriety and advisability of the undertaking.

2. Notice shall be given:

(a) By mail;

(b) By posting; and

(c) By publication.

3. The notice shall:

(a) Describe the undertaking and the project or projects relating thereto (without mentioning minor details or incidentals);

(b) State the preliminary estimate of the cost of the undertaking, including all incidental costs, as stated in the Engineer's report filed with the City Council under the next preceding section;

(c) Describe the proposed tax increment area pertaining to the undertaking, the last finalized amount of the assessed valuation of the taxable property in such area, and the amount of taxes (including in such amount the sum of any unpaid taxes, whether or not delinquent) resulting from the last taxation of such property, based upon the records of the County Assessor and the County Treasurer;

(d) State what part or portion of the expense of the undertaking shall be paid with the proceeds of securities issued by the City in anticipation of tax proceeds to be credited to the Tax Increment Account and payable wholly or in part therefrom, and state the basic security and any additional security for the payment of securities of the City pertaining to the undertaking;

(e) State how the remaining part or portion of such expense, if any, is to be financed;

(f) State the estimated amount of the tax proceeds to be credited annually to the Tax Increment Account pertaining to the undertaking during the term of the proposed securities payable from such tax proceeds, and the estimated amount of any net revenues derived annually from the operation of the project or projects pertaining to the undertaking and pledged for the payment of such securities;

(g) State the estimated aggregate principal amount to be borrowed by the issuance of such securities (excluding proceeds thereof to fund or refund outstanding securities), and the estimated total bond requirements of the securities;

(h) Find, determine and declare that the estimated tax proceeds credited to the Tax Increment Account and any such net pledged revenues shall be fully sufficient to pay the bond requirements of such securities as the same become due; and

(i) State the time and place when and where the City Council will consider the ordering of the undertaking and hear all complaints, protests, objections and other relevant comments concerning the undertaking which may be made in writing by any individual or body corporate designated in subsection 1 of this section and filed with the City Clerk at least 3 days prior thereto, or made orally at the hearing by any person designated in subsection 1.

4. All proceedings may be modified or rescinded wholly or in part by resolution adopted by the City Council at any time prior to the passage of the ordinance ordering the undertaking and creating the tax increment area and the Tax Increment Account pertaining thereto.

5. No substantial change in the undertaking, the preliminary estimates, the proposed tax increment area or other statements relating thereto shall be made after the first publication, posting or mailing of notice to property owners, whichever occurs first, except for the deletion of a portion of the undertaking and property from the proposed tax increment area, unless the City Council after ordering such a change provides for another provisional order hearing on all matters in the premises and for notice of the hearing in the

same manner as provided for the initial hearing, but a subsequent final determination of the amount of assessed valuation of taxable property in the tax increment area or a subsequent levy of taxes does not adversely affect proceedings taken under this article.

6. The Engineer also may make minor changes in and develop the undertaking as to the time, plans and materials entering into the undertaking at any time before its completion.

(Added—Ch. 460, Stats. 1979 p. 863)

Sec. 7A.160 Provisional order hearing.

1. At the time and place of the hearing, or at any adjournment thereof, the City Council shall proceed to cause to be read and to consider all written complaints, protests, objections and other relevant comments properly made and so filed with the City Clerk and to hear all verbal comments relating to the undertaking.

2. After the hearing has been concluded, after all written complaints, protests, objections and other relevant comments have been read and duly considered, and after the City Council has heard and considered all oral comments made by persons having an interest and also has considered any other relevant material put forth, if the City Council determines that the undertaking, or a part thereof, is not in the public interest, the City Council by resolution shall make an order to that effect and may modify the proposed tax increment area to conform to that order. Thereupon the undertaking or any such part must stop and must not be begun again until the adoption of a new resolution.

3. Any complaint, protest or objection to the regularity, validity and correctness of the proceedings taken and the instruments made prior to the date of the hearing shall be deemed waived unless presented in writing at the time and in the manner specified in this article.

(Added—Ch. 460, Stats. 1979 p. 865)

Sec. 7A.170 Appeal from adverse order.

The Federal Government, the State, any public body or any person filing a written complaint, protest or objections in the manner and within the time provided in section 7A.150 may within 30 days after the City Council has finally passed on such complaint, protest or objection by resolution pursuant to subsection 2 of section 7A.160 or by ordinance pursuant to subsection 3 of section 7A.180, commence an action or suit in any court of competent jurisdiction to correct or set aside such determination, but thereafter all actions or suits attacking the validity of the proceedings are perpetually barred.

(Added—Ch. 460, Stats. 1979 p. 865)

Sec. 7A.180 Final order of undertaking.

1. After the provisional order hearing and the consideration of all matters in the premises, and in the event of any material changes other than the deletion of a part of the undertaking and any modification of the tax increment area to conform to such modification under subsection 2 of section 7A.160, after the supplemental provisional order hearing and the consideration of any supplemental matters in the premises, the City Council shall determine whether to proceed under this article. If it has ordered any modification and desires to proceed, it shall direct the Engineer to modify appropriately the plans, estimates and statements filed by him or her with the City Clerk under subsection 5 of section 7A.140.

2. The Engineer, if so directed, shall appropriately modify them and shall forthwith file the modified plans, estimates and statements with the City Clerk.

3. When such plans, estimates and statements are prepared, filed with the City Clerk and are satisfactory to the City Council, it shall by ordinance overrule all complaints, protests and objections not otherwise acted upon, unconditionally order the undertaking, as modified if modified, describe the tax increment area pertaining thereto, and create the Tax Increment Account therefor.

4. The ordinance may be adopted in the same manner as is provided in cases of emergency or may be introduced and adopted as a regular measure.

(Added—Ch. 460, Stats. 1979 p. 865)

Sec. 7A.185 Amendment of ordinance.

1. The City Council may amend an ordinance adopted pursuant to section 7A.180 by adopting a supplemental ordinance, introduced and adopted as a regular measure, to:

(a) Modify the undertaking by specifying new projects or removing or modifying projects specified in the original ordinance;

(b) Add areas to or remove areas from a tax increment area; and

(c) Make such other changes, additions or deletions as the City Council determines will further its objectives within the tax increment area.

2. If such a proposed amendment would add any area to or remove any area from a tax increment area, notice by mail of the meeting at which the proposed amendment will be considered must be given to the last known owner or owners of each tract of land proposed to be added or removed.

3. The amount of taxes to be allocated to a tax increment account pursuant to section 7A.190 must be computed separately for the original tax increment area and each addition of land thereto.

(Added—Ch. 577, Stats. 1981 p. 1241)

Sec. 7A.190 Allocation, division and disposition of tax proceeds.

After the effective date of the ordinance (including any supplemental ordinance adopted pursuant to section 7A.185) unconditionally ordering the undertaking and providing for financing by tax increment, any taxes levied upon taxable property in the tax increment area each year by or for the benefit of the State, the City and any public body must be divided as follows:

1. That portion of the taxes which would be produced by the rate upon which the tax is levied each year by or for each of those taxing agencies upon the total sum of the assessed value of the taxable property in the tax increment area as shown upon the assessment roll used in connection with the taxation of the property by the taxing agency, last equalized before the effective date of the ordinance, must be allocated to and when collected must be paid into the funds of the respective taxing agencies as taxes by or for the taxing agencies as taxes on all other property are paid.

2. The portion of the levied taxes each year in excess of that amount must be allocated to and when collected must be paid into the Tax Increment Account pertaining to the undertaking to pay the bond requirements of loans, money advanced to, or

indebtedness, whether funded, refunded, assumed, or otherwise, incurred by the City to finance or refinance, in whole or in part, the undertaking. Unless the total assessed valuation of the taxable property in the tax increment area exceeds the total assessed value of the taxable property in the area as shown by the last equalized assessment roll referred to in subsection 1, all of the taxes levied and collected upon the taxable property in the area must be paid into the funds of the respective taxing agencies. When the loans, advances and indebtedness, if any, and interest thereon, have been paid, all money thereafter received from taxes upon the taxable property in the area must be paid into the funds of the respective taxing agencies as taxes on all other property are paid.

For purposes of this section, the last equalized assessment roll referred to in subsection 1 is the assessment roll in existence on the 15th day of March immediately preceding the effective date of the ordinance.

(Added—Ch. 460, Stats. 1979 p. 866; A—Ch. 577, Stats. 1981 p. 1241)

Sec. 7A.200 Municipal securities.

1. The City may issue, to defray wholly or in part the cost of any undertaking, the following securities:

(a) Notes;

(b) Warrants;

(c) Interim debentures;

(d) Bonds; and

(e) Temporary bonds.

2. Any net revenues derived from the operation of the project or projects acquired, improved or equipped, or any combination thereof, as part of the undertaking must be pledged for the payment of any such securities. The securities must be made payable from any such net pledged revenues as the bond requirements become due from time to time by the bond ordinance, trust indenture or other proceedings which authorize the issuance of the securities or otherwise pertain to their issuance.

3. Additionally, such securities:

(a) Must be made payable from tax proceeds accounted for in the Tax Increment Account; and

(b) May, at the City's option, be made payable from taxes levied by the City against all taxable property within the City, without limitation of rate or amount except for the limitation provided in Section 2 of Article 10 of the Nevada Constitution.

The city may also issue general obligation securities other than the ones authorized by this article which are made payable from taxes without also making the securities payable from any net pledged revenues or tax proceeds accounted for in a Tax Increment Account, or from both of those sources of revenue.

4. Any securities payable only in the manner provided in either paragraph (a) of subsection 3 or both subsection 2 and paragraph (a) of subsection 3, are special obligations of the City, are not in their issuance subject either to the debt limitation in section 7.010, or otherwise imposed by law, and while they are outstanding do not exhaust the City's debt incurring power, and may be issued under the provisions of the Local Government

Securities Law, except as otherwise provided in this article, without any compliance with the provisions of NRS 350.011 to 350.0165, inclusive, or NRS 350.020 to 350.070, inclusive, and without any approval or other preliminaries, except as provided in the Local Government Securities Law.

5. Any securities payable from taxes in the manner provided in paragraph (b) of subsection 3, regardless whether they are also payable in the manner provided in paragraph (a) of subsection 3 or in both subsection 2 and paragraph (a) subsection 3, are general obligations of the City, are in their issuance subject to such debt limitation and, while they are outstanding, do exhaust the City's debt incurring power, and may be issued under the provisions of the Local Government Securities Law only after the issuance of city bonds is approved under the provisions of:

(a) NRS 350.011 to 350.0165, inclusive; and

(b) NRS 350.020 to 350.070, inclusive,

Except for the issuance of notes or warrants under the Local Government Securities Law which are payable out of the current year's revenues and are not to be funded with the proceeds of interim debentures or bonds in the absence of such bond approval under the two acts designated in paragraphs (a) or (b).

6. In the proceedings for the advancement of money, or the making of loans, or the incurrence of any indebtedness, whether funded, refunded, assumed or otherwise, by the City to finance or refinance, in whole or in part, the undertaking, the portion of taxes mentioned in subsection 2 of section 7A.190 must be irrevocably pledged for the payment of the bond requirements of such loans, advances or indebtedness. The provisions in the Local Government Securities Law pertaining to net pledged revenues are applicable to such a pledge to secure the payment of tax increment bonds.

(Added—Ch. 460, Stats. 1979 p. 867)

Sec. 7A.210 Cooperative powers.

The City also has the following powers:

1. To accept contributions or loans from the Federal Government, the State or any public body (or any combination thereof) for the purpose of financing the planning, acquisition, improvement, equipment, maintenance and operation of any enterprise pertaining to an undertaking in which the City is authorized to engage, and to enter into contracts and cooperate with, and accept cooperation from, the Federal Government, the State or any public body (or any combination thereof) in the planning, acquisition, improvement, equipment, maintenance and operation, and in financing the planning, acquisition, improvement, equipment, maintenance and operation of any such enterprise in accordance with any legislation which Congress, the State Legislature or the governing body of any public body (or any combination thereof) may have adopted before or may adopt on or after July 1, 1979, under which aid, assistance and cooperation may be furnished by the Federal Government, the State or public body (or any combination thereof) in the planning, acquisition, improvement, equipment, maintenance and operation or in financing the planning, acquisition, improvement, equipment, maintenance and operation of any such enterprise, including without limitation, costs of engineering, architectural, and economic investigations and studies, surveys, designs, plans, working drawings,

specifications, procedures and other action preliminary to the acquisition, improvement or equipment of any project, and to do any and all things necessary in order to avail itself of such aid, assistance and cooperation under any federal or state legislation enacted before, on or after July 1, 1979.

2. To enter into, without any election, joint operating or service contracts and agreements, acquisition, improvement, equipment or disposal contracts or other arrangements for any term not exceeding 50 years, with the Federal Government, the State and any public body (or any combination thereof), concerning the undertaking, and any project or property pertaining thereto, whether acquired by the City, by the Federal Government, by the State or by any public body, and to accept grants and contributions from the Federal Government, the State, any public body or any person (or any combination thereof) in connection therewith.

3. To enter into and perform, without any election, when determined by the City Council of the City to be in the public interest, contracts and agreements, for any term not exceeding 50 years, with the Federal Government, the State, any public body or any person (or any combination thereof) for the provision and operation by the City of any facilities whether or not pertaining to the undertaking of the City or any project relating thereto and the payment periodically thereby to the City of amounts at least sufficient, if any, in the determination of the City Council, to compensate the City for the cost of providing, operating and maintaining such facilities serving the Federal Government, the State, such public body or such person, or otherwise.

4. To enter into and perform, without any election, contracts and agreements with the Federal Government, the State, any public body or any person (or combination thereof) for or concerning the planning, construction, lease or other acquisition, improvement, equipment, operation, maintenance, disposal and the financing of any property pertaining to the facilities of the City or to any undertaking or any project of the City, or otherwise, including without limitation, any contract or agreement for any term not exceeding 50 years.

5. To cooperate with the act in conjunction with the Federal Government, or any of its engineers, officers, boards, commissions or departments, or with the State, or any of its engineers, officers, boards, commissions or departments, or with any public body or any person in the acquisition, improvement or equipment of any facilities or any project authorized for the City or for any other works, acts or purposes provided for herein, and to adopt and carry out any definite plan or system of work for any such purpose.

6. To cooperate with the Federal Government, the State or any public body (or any combination thereof) by an agreement therewith by which the City may:

(a) Acquire and provide, without cost to the cooperating entity, the land, easements and rights-of-way necessary for the acquisition, improvement or equipment (or any combination thereof) of any properties pertaining to the undertaking or any other facilities;

(b) Hold and save harmless the cooperating entity free from any claim for damages arising from the acquisition, improvement, equipment, maintenance and operation (or any combination thereof) of any facilities;

(c) Maintain and operate any facilities in accordance with regulations prescribed by the cooperating entity; and

(d) Adopt and enforce regulations, if any, concerning the facilities and satisfactory to the cooperating entity.

7. To provide, by any contract for any term not exceeding 50 years, or otherwise, without an election:

(a) For the joint use of personnel, equipment and facilities of the City, the Federal Government, the State and any public body (or any combination thereof), including without limitation, public buildings constructed by or under the supervision of the City Council of the City or the other party or parties to the contract concerned, upon such terms and agreements and within such areas within the City as may be determined, for the promotion and protection of health, comfort, safety, life, welfare and property of the inhabitants of the City, the Federal Government, the State, any such public body and any persons of interest, as the case may be; and

(b) For the joint employment of city clerks, stenographers and other employees pertaining to the facilities, any project or the undertaking, now existing or hereafter established in the City, upon such terms and conditions as may be determined for the equitable apportionment of the expenses therefrom resulting.

8. In connection with any facilities of the City or any part of the facilities, acquired or proposed in connection with an undertaking, or with any project, to consult with any regulatory or other agency of the Federal Government, the State or any public body and to submit plans, specifications or other instruments or documents (or any combination thereof) to each such governmental agency for its review, recommendations and other comments.

(Added—Ch. 460, Stats. 1979 p. 868)

Sec. 7A.220 Sufficiency of article.

1. This article, without reference to other statutes of the State, except as otherwise expressly provided in this article, constitutes full authority for the exercise of powers granted in this article.

2. No other article of this Charter or other law with regard to the exercise of any power granted in this article that provides for an election, requires an approval, or in any way impedes or restricts the carrying out of the acts authorized to be done applies to any acts taken under this article, except as provided in this article.

3. The powers conferred by this article are in addition and supplemental to, and not in substitution for, and the limitations imposed by this article do not affect the powers conferred by, any other law.

(Added—Ch. 460, Stats. 1979 p. 870)

ARTICLE VIII. REVENUE

Sec. 8.010 Municipal taxes.

1. The City Council shall annually, at the time prescribed by law for levying taxes for State and County purposes, levy a tax not exceeding 2 percent upon the assessed value of all

real and personal property within the City except as otherwise provided in the Local Government Securities Law and the Consolidated Local Improvements Law, as amended from time to time. The taxes so levied must be collected at the same time and in the same manner and by the same officers, exercising the same functions, as prescribed in the laws of the State for collection of State and County taxes. The revenue laws of the State are, in every respect not inconsistent with the provisions of this Charter, applicable to the levying, assessing and collecting of the municipal taxes.

2. In the matter of the equalization of assessments, the rights of the City and the inhabitants thereof must be protected in the same manner and to the same extent by the action of the County Board of Equalization as are the State and County.

3. All forms and blanks used in levying, assessing and collecting the revenues of the State and counties must, with such alterations or additions as are necessary, be used in levying, assessing and collecting the revenues of the City. The City Council shall enact all such ordinances as it deems necessary and not inconsistent with this Charter and the laws of the State for the prompt, convenient and economical collecting of the revenue.

(Ch. 662, Stats. 1971 p. 1982; A—Ch. 561, Stats. 1977 p. 1397; Ch. 349, Stats. 2013 p. 1832)

Sec. 8.020 Revenue ordinances.

The City Council shall have full power to pass and enact all ordinances necessary to carry into effect the revenue laws in the City and to enlarge, fix and determine the powers and duties of all officers in relation thereto.

(Ch. 662, Stats. 1971 p. 1982)

ARTICLE IX. CIVIL SERVICE

Sec. 9.010 Civil Service: Objectives.

The purpose of this article is to provide the City with an efficient workforce, with equity to all persons concerned. To attain this objective:

1. All appointments and promotions to positions in the Civil Service must be made on the sole basis of merit and fitness, without regard to non-job-related considerations.

2. Career and promotional opportunities must be readily available to employees.

3. A high level of performance is required of employees to meet their obligations to the City administration, to the users of City services and to the taxpayers.

(Ch. 662, Stats. 1971 p. 1982; A—Ch. 553, Stats. 1973 p. 882; Ch. 349, Stats. 2013 p. 1833)

Sec. 9.020 Civil Service and exempt positions.

1. A Civil Service System is created for the selection, appointment and promotion of all employees of the City except:

(a) Any elected official described in section 1.060 or person who is appointed to fill a vacancy pursuant to section 1.070.

(b) A person who serves as a member of any board, commission, committee or other body created pursuant to the authority of the City.

(c) An appointive officer or appointive employee.

(d) A person employed by the City for less than 18 hours per week or 234 hours per fiscal quarter, whichever is greater.

(e) A person who is not subject to the provisions of this article pursuant to section 3.020, 3.040 or 3.060.

(f) A person for whose position half or more of the money is provided by a source other than the City.

(g) An employee of the Municipal Court who is hired directly by the Court.

2. The provisions of this article are not applicable to the selection, appointment, promotion, demotion, transfer, suspension, discipline or dismissal of any person described in subsection 1.

3. Any employee whose position was within the provisions of the Civil Service System before June 2, 2013, shall retain all rights and benefits to which he or she would otherwise be entitled under the Civil Service System.

(Added—Ch. 553, Stats. 1973 p. 884; A—Ch. 561, Stats. 1977 p. 1398; Ch. 349, Stats. 2013 p. 1833; Ch. 163, Stats. 2015 p. 774)

Sec. 9.030 Civil Service Commission: Number, appointment, qualifications, terms, compensation of members.

1. A Civil Service Commission is created to carry out the provisions of this article. The Commission consists of seven members appointed by the Mayor with the approval of the City Council.

2. Members must:

(a) Be residents of the City.

(b) Have no other connection with the City government.

(c) Hold no elective office.

(d) Serve for terms of five years.

(e) Receive compensation as provided by City ordinance.

3. One term of office shall begin on the second Monday in July in each successive year. A member shall serve until his or her successor is appointed and qualified. A vacancy occurring during a term must be filled by the Mayor with the approval of the City Council for the remainder of that term.

(Added—Ch. 553, Stats. 1973 p. 884; A—Ch. 373, Stats. 1979 p. 646; Ch. 89, Stats. 1995 p. 109)

Sec. 9.040 Commission meetings.

The Commission shall provide by rule for the holding of not less than one regular meeting per month, for special meetings as needed, for the election of one member as Chair, for the election of one member or appointment of a nonmember as Secretary, for public announcement of the time and place of meetings, and for meetings to be open to the public except as provided for by Commission rule. A special meeting of the Commission may be called by the Chair of the Commission.

(Added—Ch. 553, Stats. 1973 p. 885; A—Ch. 349, Stats. 2013 p. 1833)

Sec. 9.050 Authority of Commission.

Except as otherwise provided in this Charter, the Commission has authority over and is responsible for:

1. All phases of the selection, appointment and promotion of employees in the Civil Service;

2. The appeal rights of such employees in regard to dismissal, demotion, suspension and disciplinary actions; and

3. The transfer of employees,

together with all responsibilities assigned to the Commission by this article.

(Added—Ch. 553, Stats. 1973 p. 885; A—Ch. 599, Stats. 1993 p. 2501; Ch. 349, Stats. 2013 p. 1834)

Sec. 9.060 Rules.

1. Except as otherwise provided in this section, the Commission shall adopt or amend rules for the Civil Service System, consistent with the provisions of this article. The Commission shall give or cause to be given at least 10 days′ notice of the time and place of a public meeting of the Commission on proposed rules by posting the notice and a copy of each proposed rule on the bulletin board of each department and by giving a copy of the notice and each proposed rule to the City Council, the City Manager, each department head, and the president or secretary of each employee organization formally recognized by the City. At the meeting, the Commission shall permit a representative of the City Council or the City Manager, or both, to comment on any proposed rule. Any amendment of the rule governing the number of qualified persons certified to the appointing authority on the Civil Service eligibility list is not effective until the amendment is approved by the City Council.

2. The rules adopted by the Commission must provide for the following matters relating to the Civil Service System:

(a) The review and approval by the Commission of minimum qualifications set out in class specifications for positions.

(b) Procedures for the review by the Commission of the allocation or reallocation of an employee′s position pursuant to subsection 4 of section 9.180.

(c) Open and promotional recruitment of employees.

(d) The development and scoring of examinations of candidates for positions.

(e) The development, maintenance and certification of Civil Service eligibility lists, which must include criteria for the use of selective certification as applicable to a position.

(f) Procedures for emergency, temporary, provisional and such other types of appointments as the Commission deems desirable to facilitate the business of the City.

(g) The establishment of probationary periods, procedures for the confirmation of employees into the Civil Service System after completion of any applicable probationary period, and procedures for the dismissal of probationary employees, including, without limitation, the identification of circumstances in which a probationary employee, including, without limitation, a promoted employee, may not be dismissed by the head of a department without right of appeal.

(h) Procedures for the promotion of employees and any right of promoted employees to return to their previous positions.

(i) Procedures for the transfer and layoff of employees.

(j) Procedures for investigating and hearing appeals relating to the discipline or discharge of employees or alleged violations of the rules of the Commission.

3. A copy of all rules adopted and all changes in them must be filed in the Office of the City Clerk. The Commission shall cause the rules and all changes in them to be distributed as it deems necessary, except that the Commission shall cause a copy to be made available to all officers and employees of the City on the City's Internet website or in such other format as the Commission determines is appropriate.

4. The head of each department may adopt procedures for the governance of his or her department not inconsistent with this article or the rules of the Commission adopted thereunder.

5. As used in this section, "selective certification" means the certification of a person for inclusion on a Civil Service eligibility list for a position based upon specialized knowledge, skills or abilities of the person, in addition to those required to meet the minimum qualifications for the position, that are required to perform the duties of the position successfully.

(Added—Ch. 553, Stats. 1973 p. 885; A—Ch. 349, Stats. 2013 p. 1834; Ch. 163, Stats. 2015 p. 774)

Sec. 9.070 Chief Examiner.

The Commission shall appoint a Chief Examiner who shall serve at the pleasure of the Commission. The Chief Examiner shall administer the provisions of this article in regard to the selection, appointment and promotion of employees in the Civil Service, under the direction of the Commission and within restrictions established by the Commission.

(Added—Ch. 553, Stats. 1973 p. 885)

Sec. 9.080 Leaves of absence without pay.

The City Manager may promulgate rules governing leaves of absence without pay, subject to the approval of the Commission after public hearing.

(Added—Ch. 553, Stats. 1973 p. 885)

Sec. 9.100 Reports of employee performance.

The Commission shall have authority to require from time to time reports on the performance and efficiency of employees. Each employee shall be entitled to see all such reports concerning him or her.

(Added—Ch. 553, Stats. 1973 p. 885; A—Ch. 163, Stats. 2015 p. 775)

Sec. 9.110 Agreements.

The Commission shall have authority to make agreements to enter into cooperative arrangements with or to obtain assistance from other agencies or persons for the purpose of improving the efficiency or quality of the services it provides.

(Added—Ch. 553, Stats. 1973 p. 885)

Sec. 9.120 Blanketing into Civil Service.

When positions which have not been within the Civil Service are declared by law to be included in the Civil Service, the Commission may by rule:

1. Authorize the noncompetitive appointment to such positions of employees who have held those positions satisfactorily for a period of 1 year. Other employees in such positions may be given temporary or provisional appointments as ordered by the Commission.

2. Waive any requirement that an employee complete a probationary period in the position after the position is included in the Civil Service.

3. Accept prior service acquired in the position before the position was included in the Civil Service as the equivalent of classified service.

4. Provide for other such matters as the Commission deems necessary or appropriate to facilitate the inclusion of a position in the Civil Service.

(Added—Ch. 553, Stats. 1973 p. 885; A—Ch. 163, Stats. 2015 p. 776)

Sec. 9.130 Return to Civil Service.

An employee with confirmed Civil Service rating who is appointed to an exempt position shall not lose his or her Civil Service rating while serving in that exempt position.

(Added—Ch. 553, Stats. 1973 p. 886)

Sec. 9.140 Layoff.

Whenever in the judgment of the City Council it becomes necessary to reduce the staff of any City department such reduction of staff shall be accomplished pursuant to rules adopted by the Commission designed to encourage interdepartmental transfers and other procedures tending to minimize the impact of layoffs.

(Added—Ch. 553, Stats. 1973 p. 886)

Sec. 9.150 Support.

The City Council shall provide such employees, facilities and funds necessary or proper for the purpose of enabling the Commission to accomplish its functions and purposes set forth in this article.

(Added—Ch. 553, Stats. 1973 p. 886)

Sec. 9.160 Prohibited acts.

1. No appointment to or removal from a position in the Civil Service may be affected in any manner by any person's:

(a) Race, color, national origin, age, sex, marital status, sexual orientation, gender identity or expression, disability, membership or nonmembership in an employee organization, religion, religious beliefs or affiliations, or any other characteristic for which such action is prohibited by the law of the State or of the United States, except when based upon a bona fide occupational qualification or otherwise authorized by law.

(b) Political beliefs or affiliations except if that person advocates or is a member of any organization that advocates the overthrow of the government of the United States by other than lawful means.

2. A person shall not practice any deception, fraud or unfair practice with respect to application, examination, employment or any other procedure authorized under this article or Commission rule, or in any information given to the Commission.

(Added—Ch. 553, Stats. 1973 p. 886; A—Ch. 349, Stats. 2013 p. 1835)

Sec. 9.170 Penalties.

Any employee who is found by the Commission to have violated any of the provisions of this article or of a Commission rule may be dismissed, demoted, suspended or disciplined by the Commission, pursuant to Commission rules.

(Added—Ch. 553, Stats. 1973 p. 886)

Sec. 9.180 Classification plan: Preparation; requirements; review of classification.

1. The City Manager or his or her designee shall:

(a) Prepare, maintain and, as necessary, revise a classification plan for all positions in the Civil Service.

(b) Allocate each position in the Civil Service to a class set forth in the classification plan.

2. Each class of employees that is set forth in the classification plan must include, without limitation, a title, a definition or statement of the characteristics of the class, a list of typical tasks or examples of the duties of the class, a list of the knowledge, skills and abilities required for employees in the class, a statement that describes the minimum qualifications of employees in the class and any other information that the City Manager determines is necessary for the proper classification and supervision of positions in the Civil Service. The minimum qualifications shall be subject to review and approval by the Commission as part of its responsibility for recruiting and selecting employees.

3. The City Manager shall allocate positions into each class by grouping positions that have similar qualifications and levels of difficulty and responsibility such that the similarities justify similar treatment.

4. Any employee in the Civil Service who is adversely affected by the allocation or reallocation of his or her position to a class pursuant to subsection 1 may request to have the classification reviewed by the Commission. A request for such a review must be submitted to the Commission not more than 30 calendar days after the employee receives notification of the allocation or reallocation of the employee's position by the City Manager.

5. In reviewing the allocation or reallocation of an employee's position pursuant to subsection 4, the Commission shall make findings as to the duties, responsibilities and qualifications of the position. If the Commission finds that a position is not classified correctly, the Commission shall notify the City Council and City Manager of its findings. Upon receiving such notification, the City Council shall review the findings of the Commission and, if approved by the City Council, the City Manager shall allocate or reallocate the position to a class pursuant to the findings of the Commission.

(Added—Ch. 553, Stats. 1973 p. 886; A—Ch. 163, Stats. 2015 p. 776)

Sec. 9.230 Assistance in examinations.

It shall be the duty of all departments, officers and employees of the City to assist the Commission in the development and administration of examinations as requested by the Commission.

(Added—Ch. 553, Stats. 1973 p. 887)

Sec. 9.260 Duties and authority of City Manager.

1. All employees in the Civil Service, other than those employed by the Commission, shall hold their positions at the pleasure of the City Manager and shall perform their assigned duties under his or her direction, subject to the provisions of this article. No employee in the Civil Service shall be suspended, demoted, dismissed or disciplined except as provided in this article.

2. The City Manager or his or her delegate may bring disciplinary action against any employee in the Civil Service who:

(a) Is unable to or fails for any reason to perform his or her duties properly and efficiently.

(b) Is guilty of any actions which reduce his or her effectiveness as an employee or bring discredit on the City service.

(c) Has violated any provision of this article or of Commission rules.

3. The City Manager shall immediately report any suspension of more than 3 days or any action of demotion or termination to the Secretary of the Commission and at the same time deliver to the Secretary and to the affected employee copies of a complaint setting forth the action taken and the reasons for that action, with the name of the original complainant if other than the City Manager.

4. Whenever a written complaint against any employee in the Civil Service is made to the City Manager he or she shall immediately communicate it to the Secretary of the Commission.

5. The City Manager or his or her delegate have the authority to adjust an employee's salary within the salary range for the class on the basis of quality and quantity of the employee's work. The Commission shall by rule provide for appeals from such adjustment on a showing that it was made principally for disciplinary purposes.

(Added—Ch. 553, Stats. 1973 p. 888; A—Ch. 373, Stats. 1979 p. 646)

Sec. 9.270 Appeals to the Commission.

1. An employee in the Civil Service who has been suspended for a period of more than 3 days or who is the subject of an action by the City Manager to demote or terminate him or her may appeal such action to the Commission by serving the Secretary of the Commission with a written notice of appeal within 10 days after such action. The Commission shall set the time for hearing the appeal not less than 5 nor more than 15 days after the date of service of the notice of appeal.

2. The Commission shall adopt a rule for hearing such appeals and making any investigations it deems appropriate. The City Attorney or, if applicable, special counsel retained pursuant to section 3.070 shall represent the interest of the City in appeals to the Commission.

3. In connection with any hearing or investigation contemplated by this article each member of the Commission may administer oaths, secure by subpoena the attendance of witnesses residing within 50 miles of the City and the production of books and papers relevant to the hearing or investigation, compel witnesses to answer and punish for contempt in the same manner as provided by law for the governing of trials before justices of the peace for failure to answer or produce books and other evidence necessary for the hearing. All witnesses must be under oath. The accused has the right to be heard in person and by attorney in his or her own defense and is entitled to secure the attendance of witnesses at the expense of the City if within the reach of the Commission's subpoena and necessary for his or her defense. Upon a showing of necessity an accused may secure from the Commission an order requiring the taking of depositions of witnesses who are necessary to his or her defense and not within the reach of a subpoena. The Commission shall determine to what extent the expense of such depositions will be paid for by the City. Hearings on appeal must be reported and may be transcribed if a transcript is necessary for a deliberation of the Commission or for an appeal to the district court. The Commission shall render its decision within 7 days after the date of the hearing.
4. The action taken by the City Manager may be affirmed, modified or revoked by the Commission. If the Commission finds that the reason for which the action was taken is insufficient or conflicts with the provisions of this Charter, the Civil Service rules and regulations, or any applicable law, it must modify or revoke the action.
5. The Commission shall adopt a rule for the hearing and disposition of appeals concerning procedures or the content of examinations.

(Added—Ch. 553, Stats. 1973 p. 889; A—Ch. 373, Stats. 1979 p. 647; Ch. 65, Stats. 1981 p. 162; Ch. 349, Stats. 2013 p. 1836; Ch. 163, Stats. 2015 p. 777)

Sec. 9.280 Disciplinary authority of Commission; judicial review.

1. Verified charges may be filed with the Commission setting forth cause for disciplinary action against any Civil Service employee by any resident of the City. The Commission may conduct investigations and hold such hearings as it deems appropriate to determine the facts. If the Commission finds the charges true it may order the suspension, dismissal or discipline of the employee.
2. The Commission on its own initiative may conduct investigations and hearings with respect to violations of this article or rules of the Commission and impose such sanctions as it deems appropriate.
3. Within 180 days after service of the decision, any person who is aggrieved by a final decision of the Commission may petition the district court in the County for relief in the form of a writ of certiorari, mandamus or prohibition where such relief is otherwise authorized by chapter 34 of NRS or other applicable law.

(Added—Ch. 553, Stats. 1973 p. 889; A—Ch. 97, Stats. 1995 p. 115; Ch. 349, Stats. 2013 p. 1837)

Sec. 9.290 Salary of suspended, demoted or disciplined employee.

No employee shall be deprived of any salary or wages for the period of time he or she may be suspended, demoted or dismissed pending a hearing and decision unless such disciplinary action or removal shall be sustained by the Commission.

(Added—Ch. 553, Stats. 1973 p. 890)

ARTICLE X. MISCELLANEOUS PROVISIONS

Sec. 10.010 Severability of provisions.

If any portion of this Charter is held to be unconstitutional or invalid for any reason by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portion of this Charter. The Legislature hereby declares that it would have passed the Charter and each portion thereof, irrespective of the portion which may be deemed unconstitutional or otherwise invalid.

(Ch. 662, Stats. 1971 p. 1983)

Sec. 10.020 Effect of enactment of Charter.

1. All rights and property of every kind and description which were vested in the City prior to the enactment of this Charter shall be vested in the same municipal corporation on the effective date of this Charter. No right or liability, either in favor of or against such corporation existing at the time of becoming incorporated under this Charter, and no action or prosecution shall be affected by such change, but it shall stand and progress as if no change had been made.

2. Whenever a different remedy is given by this Charter, which may properly be made applicable to any right existing at the time of such City so becoming incorporated under this Charter, such remedy shall be cumulative to the remedy before provided, and used accordingly.

3. All ordinances and resolutions in effect in the City prior to the effective date of this Charter shall, unless in conflict with the provisions of this Charter, continue in full force and effect until amended or repealed.

4. The enactment of this Charter shall not effect any change in the legal identity of the City.

5. The enactment of this Charter shall not be construed to repeal or in any way affect or modify:

(a) Any special, local or temporary law.

(b) Any law or ordinance making an appropriation.

(c) Any ordinance affecting any bond issue or by which any bond issue may have been authorized.

(d) The running of the statute of limitations in force at the time this Charter becomes effective.

(e) Any bond of any public officer.

(Ch. 662, Stats. 1971 p. 1983)

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LEGISLATIVE HISTORY OF THE NEW RENO CITY CHARTER 1971

1. Senate Bill No. 612 of the 56th Session of the Nevada State Legislature; Chapter 662, Statutes of Nevada 1971.

An Act incorporating the City of Reno, in Washoe County, Nevada, and defining the boundaries thereof, under a new charter; and providing other matters properly relating thereto.
(Approved May 6, 1971; Effective July 1, 1973)

2. Senate Bill No. 659 of the 56th Session of the Nevada State Legislature; Chapter 669, Statutes of Nevada 1971.

An Act amending Section 2.120 and Section 5.060 of Senate Bill No. 612 of the 56th Session of the legislature, being the new Reno City Charter, to reflect the codification of the laws of evidence (Section 2.120) and to correct technical errors.
(Section 5.060).
(Approved May 6, 1971; Effective July 1, 1971)

1973

3. Senate Bill No. 346 of the 57th Session of the Nevada State Legislature; Chapter 306, Statutes of Nevada 1973.

An Act amending Section 6.010 of Article VI of the new Reno City Charter, being chapter 662, Statutes of Nevada 1971, empowering cities to use chapter 704A of NRS to construct or convert to or authorize the construction or conversion to underground electric and communication facilities.
(Approved April 13, 1973; Effective July 1, 1973)

4. Assembly Bill No. 660 of the 57th Session of the Nevada State Legislature; Chapter 343, Statutes of Nevada 1973.

An Act amending Section 4.020 of Article IV of the new Reno City Charter, being chapter 662, Statutes of Nevada 1971, providing qualifications for municipal court judges.
(Approved April 15, 1973; Effective July 1, 1973)

5. Senate Bill No. 347 of the 57th Session of the Nevada State Legislature; Chapter 344, Statutes of Nevada 1973.

An Act amending Section 2.120 of Article II of the new Reno City Charter, being chapter 662, Statutes of Nevada 1971, providing for the filing of municipal codes with the state supreme court.
(Approved April 15, 1973; Effective July 1, 1973)

6. Assembly Bill No. 831 of the 57th Session of the Nevada State Legislature; Chapter 482, Statutes of Nevada 1973.

An Act amending section 1.030 of Article I of the new Reno City Charter, being chapter 662, Statutes of Nevada 1971, by detaching certain real property from the City of Reno and adding the same to the City of Sparks.
(Approved April 21, 1973; Effective July 1, 1973)

7. Assembly Bill No. 142 of the 57th Session of the Nevada State Legislature; Chapter 553, Statutes of Nevada 1973.

An Act to amend an act entitled ″An Act incorporating the City of Reno, in Washoe County, Nevada, and defining the boundaries thereof, under a new charter; and providing other matters properly relating thereto,″ approved May 6, 1971, as amended.
(Approved April 25, 1973; Effective July 1, 1973)

1975

8. Assembly Bill No. 78 of the 58th Session of the Nevada State Legislature; Chapter 14, Statutes of Nevada 1975.

An Act to amend Section 14.4 of chapter 553, Statutes of Nevada, 1973, to correct technical defect in amendment of Reno City Charter; and providing other matters properly relating thereto.
(Approved February 21, 1975; Effective July 1, 1975)

9. Assembly Bill No. 666 of the 58th Session of the Nevada State Legislature; Chapter 414, Statutes of Nevada 1975.

An Act to amend an act entitled ″An Act incorporating the City of Reno, in Washoe County, Nevada, and defining the boundaries thereof, under a new charter; and providing other matters properly relating thereto,″ approved May 6, 1971, as amended. (Provides for compensation of Washoe County Treasurer)
(Approved May 13, 1975; Effective July 1, 1975)

10. Senate Bill No. 414 of the 58th Session of the Nevada State Legislature; Chapter 666, Statutes of Nevada 1975.

An Act to amend the Charters of the City of Las Vegas and the City of Reno to establish a salary for the city attorney of Las Vegas and to prohibit the private practice of law by the city attorneys of Las Vegas and Reno and their deputies and assistants after certain dates; and providing other matters properly relating thereto.
(Approved May 22, 1975; Effective July 1, 1975)

11. Senate Bill No. 419 of the 58th Session of the Nevada State Legislature; Chapter 715, Statutes of Nevada, 1975.

An Act to amend an act entitled ″An Act incorporating the City of Reno, in Washoe County, Nevada, and defining the boundaries thereto, under a new charter; and providing other matters properly relating thereto,″ approved May, 6, 1971, as amended. (Provided for appointment and removal of officers and employees by the city manager; and provides for duties of the chief deputy city clerk)
(Approved May 26, 1975; Effective July 1, 1975)

1977

12. Senate Bill No 25 of the 59th Session of the Nevada State Legislature; Chapter 98, Statutes of Nevada 1977.

An Act to amend the Charter of the City of Reno removing certain requirements for service in city and town offices; and providing other matters properly relating

thereto. (Amends certain qualifications for city council, city attorney and municipal judge.)
(Approved March 25, 1977; Effective July 1, 1977)

13. Assembly Bill No. 401 of the 59th Session of the Nevada State Legislature; Chapter 561, Statutes of Nevada 1977.

An Act to amend an act entitled ″An Act incorporating the City of Reno, in Washoe County, Nevada, and defining the boundaries thereof, under a new charter; and providing other matters properly relating thereto,″ approved May 6, 1971, as amended. (Provides for the election of a mayor, as well as to provide other substantial changes to the Reno City Charter.)
(Approved May 15, 1977; Effective July 1, 1977)

1979

14. Senate Bill No. 113 of the 60th Session of the Nevada State Legislature; Chapter 24, Statutes of Nevada, 1979.

An Act to amend chapter 561, Statutes of Nevada, 1977; making a technical correction; and providing other matters properly relating thereto. (Provides for six (6) month residency requirement for the city attorney prior to election; and corrects certain statutory references.)
(Approved March 1, 1979; Effective July 1, 1979)

15. Assembly Bill No. 730 of the 60th Session of the Nevada State Legislature; Chapter 373, Statutes of Nevada, 1979.

An Act to amend an act entitled ″An Act incorporating the City of Reno, in Washoe County, Nevada, and defining the boundaries thereof, under a new charter; and providing other matters properly relating thereto,″ approved May 6, 1971, as amended. (Provides for additional municipal court departments; the appointment of a records manager; the canvass of election returns; the authority of the city manager under civil service procedures; and employee appeals to the civil service commission.)
(Approved May 17, 1979; Effective July 1, 1979)

16. Assembly Bill No. 801 of the 60th Session of the Nevada State Legislature; Chapter 460, Statutes of Nevada, 1979.

An Act to amend an act entitled ″An Act incorporating the City of Reno, in Washoe County, Nevada, and defining the boundaries thereof under a new charter; and providing other matters properly relating thereto,″ approved May 6, 1971, as amended. (Provides for the addition of Article 7A regarding Tax Increment Financing.)
(Approved May 22, 1979; Effective July 1, 1979)

1981

17. Senate Bill No. 78 of the 61st Session of the Nevada State Legislature; Chapter 65, Statutes of Nevada, 1981.

An Act to amend an Act entitled ″An Act incorporating the City of Reno, in Washoe County, Nevada, and defining the boundaries thereof, under a new charter; and providing other matters properly relating thereto,″ approved May 6,

1971 as amended. (Further provides for residency requirements of the City Council Members, the qualifications of the City Clerk, and appeals to the City Civil Service Commission.)
(Approved April 6, 1981; Effective July 1, 1981)

18. Assembly Bill No. 167 of the 61st Session of the Nevada State Legislature; Chapter 482, Statutes of Nevada, 1981.

An Act relating to local government; simplifying and unifying the procedures for issuing bonds and other evidences of indebtedness; providing specifically for installment purchases; limiting certain activities of financial consultants; extending the authority to advance from the general fund money for improvements to be repaid from special assessments; and providing other matters properly relating thereto. (Amends Section 7.030 of the Charter of the City of Reno, ″Borrowing money,″ being Chapter 662, Statutes of Nevada 1971, at page 1980.)
(Approved June 3, 1981; Effective July 1, 1981)

19. Senate Bill No. 680 of the 61st Session of the Nevada State Legislature; Chapter 577, Statutes of Nevada, 1981.

An Act relating to the redevelopment of communities; permitting the merger of redevelopment project areas and tax increment areas; making certain related amendments to the Charter of the City of Reno; and providing other matters properly relating thereto. (Amends Section 7A.190 entitled ″Allocation, division and disposition of tax proceeds″ Tax increment Financing.)
(Approved June 5, 1981; Effective July 1, 1981)

1983

20. Assembly Bill No. 221 of the 62nd Session of the Nevada State Legislature: Chapter 160, Statutes of Nevada, 1983.

An Act relating to ordinances; lengthening the time required for publishing the notice of filing proposed ordinances; amending the Reno City Charter in that regard; and providing other matters properly relating thereto. (Amends Section 2.100 entitled ″Ordinances: Enactment procedure; emergency ordinances.″)
(Approved April 21, 1983; Effective July 1, 1983)

21. Assembly Bill No. 358 of the 62nd Session of the Nevada State Legislature; Chapter 182, Statutes of Nevada. 1983.

An Act relating to criminal procedure; shortening the time of imprisonment required for an unpaid fine; increasing the rate credited for public work against a fine; deleting or repealing corresponding sections in the Reno City Charter; and providing other matters properly relating thereto. (Amends Section 4.040 entitled ″Jurisdiction, additional imprisonment to satisfy fine or forfeiture.″)
(Approved April 26, 1983; Effective July 1, 1983)

22. Assembly Bill No. 550 of the 62nd Session of the Nevada State Legislature; Chapter 361, Statutes of Nevada, 1983.

An Act relating to local improvements; empowering local governments to erect walls around residential subdivisions to secure them against vandalism and to defray the cost by means of special improvement districts; and providing other

matters properly relating thereto. (Amends Section 6.010 Reno City Charter entitled ″Local improvement law.″)
(Approved May 18, 1983; Effective July 1, 1983)

1985

23. Assembly Bill No. 202 of the 63rd Session of the Nevada State Legislature; Chapter 208, Statutes of Nevada, 1985.

An Act relating to municipal courts; eliminating duplicate statutes; consolidating related provisions; amending the Reno City Charter in that regard; and providing other matters properly relating thereto. (Amends Section 4.010 entitled ″Municipal Court″; Section 4.020 entitled ″Municipal Court; qualifications of municipal judge; salary″; Section 4.040 entitled ″Procedure, additional judges″.)
(Approved May 17, 1985; Effective July 1, 1985)

24. Senate Bill No. 417 of the 63rd Session of the Nevada State Legislature; Chapter 253, Statutes of Nevada, 1985.

An Act relating to cities; permitting the submission of a proposed amendment to a City Charter at a special election; and providing other matters properly relating thereto. (Provides for Charter amendment by Special Election).
(Approved May 23, 1985; Effective July 1, 1985)

25. Assembly Bill No. 588 of the 63rd Session of the Nevada State Legislature; Chapter 439, Statutes of Nevada, 1985.

An Act relating to local governments; authorizing those governments to replace economic competition in certain areas of public services with regulated anticompetitive services; repealing corresponding sections in the Reno City Charter; and providing other matters properly relating thereto. (Repeals Section 7.040 entitled ″Franchises″)
(Approved June 2, 1985; Effective June 2, 1985)

1987

[No changes made by the 64th Session of the Nevada State Legislature to the Reno City Charter.]

1988

[No changes made by the 65th Session of the Nevada State Legislature to the Reno City Charter.]

1989

26. Acts of 1989 of the 66th Session of the Nevada State Legislature; Chapter 796, Statutes of Nevada, 1989.

An Act amending the Charter of the City of Reno by annexing territory.

27. Acts of 1989 of the 66th Session of the Nevada State Legislature; Chapter 854, Statutes of Nevada, 1989.

An Act amending the Charter of the City of Reno, specifically the provisions pertaining to vacancies in elective offices.

1990

[No changes made by the 67th Session of the Nevada State Legislature to the Reno City Charter.]

1991

28. Assembly Bill No. 166, of the 68th Session of the Nevada State Legislature; Chapter 104, Statutes of Nevada, 1991.

An Act relating to the City of Reno; authorizing the city council to fix the rate for any utility provided by public enterprise; providing that any charges due for services, facilities or commodities furnished by any utility owned by the city is a lien upon the property to which the service is rendered; and providing other matters properly relating thereto.

(Approved April 18, 1991)

1992

[No changes made by the 69th Session of the Nevada State Legislature to the Reno City Charter.]

1993

29. Assembly Bill No. 320, of the 70th Session of the Nevada State Legislature; Statutes of Nevada, 1993.

An Act relating to the City of Reno; requiring that candidates for councilmen who represent a specific ward be voted upon only by the registered voters of that ward at the primary election; and providing other matters properly relating thereto.

30. Assembly Bill No. 166, of the 70th Session of the Nevada State Legislature; Statutes of Nevada, 1993.

An Act relating to the City of Reno; changing the time for the election of certain officers of the City of Reno; and providing other matters properly relating thereto.

31. Assembly Bill No. 27, of the 70th Session of the Nevada State Legislature; Statutes of Nevada, 1993.

An Act relating to the City of Reno; authorizing an increase in the salary of a municipal judge during his term of office; requiring uniform salaries for all municipal judges; authorizing certain attorneys employed by the city attorney to engage in the private practice of law; requiring that the rules and regulations adopted by the civil service commission relating to eligibility lists for the appointment of persons to the civil service be approved by the city council; and providing other matters properly relating thereto.

1997

32. Senate Bill No. 44, Committee on Government Affairs.

An Act relating to the City of Reno, making various changed to the Charter of the City of Reno concerning elective and appointive offices; and providing other matters properly relating thereto.

33. Assembly Bill No 349.

An Act relating to cities; authorizing a special election to fill vacancies on the governing body of a city; and providing other matters properly relating thereto.

34. Assembly Bill No. 508.

An Act relating to local governmental financial administration; requiring a city or county that imposes certain fees upon a public utility to provide to the public utility information concerning the identification of its customers; requiring a public utility to pay certain fees in legal tender of the United States; prohibiting a public utility from collecting certain delinquent fees from its customers; authorizing a city or county to provide by ordinance that certain fees imposed of a public utility may be collected from a governmental entity of the state that entity is a customer of the public utility; prohibiting certain local governments from selling telecommunications service or the services of a community antenna television system to the general public; limiting the authority of certain local governments to purchase or construct facilities for providing telecommunications; limiting the authority of certain local governments to impose terms and conditions on franchises for the provision of telecommunications service, interactive computer service or the services of a community antenna television system; and providing other matters properly relating thereto.

35. Assembly Bill No. 414, Committee on Elections, Procedures and Ethics.

An Act relating to elections; requiring the notification of voters and certain county clerks when a registered is adjudicated insane or mentally incompetent; revising the provision that limits the authorized number of registered voters for a precinct in which a mechanical voting system is used; requiring the county and city clerks to prescribe the color of the ballots used in an election; revising the period during which a city clerk is required to provide a voting booth on the premises of his office for voting certain absentee ballots; authorizing early voting by personal appearance in city elections; revising the period for filing an affidavit of candidacy for a city office; revising the period for filing an application to vote; revising the period for testing automatic tabulating equipment used in an election in certain counties and cities; authorizing the printing of ballots and other election materials outside this state under certain circumstances and with noncommercial printing establishments; revising the period for filing certain ballot questions with the county or city clerk; and providing other matters properly relating thereto.

36. Assembly Bill No. 309, Committee on Government Affairs.

An Act relating to the charter of the City of Reno; providing that the boundaries of wards must be determined on the basis of population; revising provisions prohibiting certain officers from holding certain other offices or employment; revising the qualifications for certain offices; revising certain provisions governing the adoption of ordinances; providing that a misdemeanor offense under state law is deemed also to be a misdemeanor offense against the city if the offense is committed within the city; repealing certain provisions; and providing other matters properly relating thereto.

37. Assembly Bill No. 444, Committee on Elections.

An Act relating to city elections; clarifying the application of certain provisions of Title 24 of NRS to city elections; requiring city clerks to publish a notice of the

primary city election and general city election; authorizing the governing body of a city to establish the filing fee for candidates for city offices by resolution; eliminating the requirement that the special polling place must be maintained in the office of the city clerk; changing the date by which the city clerk must provide a voting booth for voting absent ballots in the office of the city clerk; prohibiting electioneering around or inside the office of the city clerk during the period for voting absent ballots in the office of the city clerk; changing the requirements for the appointment of members to the ballot board for early voting for a city election; providing a penalty; and providing other matters properly relating thereto.

PART 2 RENO ADMINISTRATIVE CODE

Title 1 GENERAL PROVISIONS

Ch. 1.01. Code Interpretation and Construction, §§ 1.01.010—1.01.090
Ch. 1.02. Wards, §§ 1.02.010—1.02.060
Ch. 1.04. Penalties and Arrest Procedure, §§ 1.04.010—1.04.100
Ch. 1.05. Code Enforcement—Administrative Provisions, §§ 1.05.010—1.05.605
Art. I. General Provisions, §§ 1.05.005—1.05.050
Art. II. Notice of Violation, §§ 1.05.100—1.05.135
Art. III. Administrative Citations and Fines, §§ 1.05.200—1.05.220
Art. IV. Abatements, §§ 1.05.300—1.05.335
Art. V. Code Enforcement Lien, §§ 1.05.400—1.05.410
Art. VI. Administrative Hearings, §§ 1.05.500—1.05.560
Art. VII. Appeal to Court, §§ 1.05.600, 1.05.605
Ch. 1.06. Miscellaneous Regulatory Provisions, § 1.06.010
Ch. 1.07. Moratorium Procedure, § 1.07.010
Ch. 1.08. Reduction or Subsidization of Impact Fees, Building Permit Fees and Sewer, §§ 1.08.010—1.08.060

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CHAPTER 1.01. CODE INTERPRETATION AND CONSTRUCTION

Sec. 1.01.010. Designation and citation.
Sec. 1.01.020. Definitions.
Sec. 1.01.030. Grammatical interpretation.
Sec. 1.01.040. Catchlines of sections and other headings.
Sec. 1.01.050. History notes.
Sec. 1.01.060. Editor's notes, references and annotations.
Sec. 1.01.070. Certain ordinances and acts not affected by Code.
Sec. 1.01.080. Unlawful to obstruct public officer.
Sec. 1.01.090. Severability of parts of Code.

Sec. 1.01.010. Designation and citation.

The ordinances embraced in this and the following chapters and sections shall constitute and be designated the "Reno Municipal Code" and may be so cited.

(Code 1966, § 1.01.010)
Charter reference—Codification authority, § 2.120.
State law reference—Codification authority, NRS 268.014.

Sec. 1.01.020. Definitions.

The following definitions shall be observed unless it shall be otherwise expressly provided in any section or unless inconsistent with the manifest intent of the city council or unless the context clearly requires otherwise:

(1) *"Board of health"* shall mean the county district board of health.

(2) *"Charter"* is deemed to mean and refer to the Charter of Reno, Nevada.

(3) *"City"* means the city of Reno, in the State of Nevada.

(4) *"Code"* shall mean the Reno Municipal Code, as amended.

(5) *"Council"* means the city council consisting off six (6) councilmembers and a mayor of the city. "All its members" or "all councilmembers" mean the total number of councilmembers and the mayor as provided for by the Charter of Reno, Nevada.

(6) *"County"* shall mean Washoe County, Nevada.

(7) *"Health department"* shall mean the county district health department of the board of health.

(8) *"Health officers"* shall mean the county district health officer or health administrator of the board of health or their designee.

(9) *"Person"* includes a corporation, firm, partnership, association, as well as individuals. It shall also include an executor, administrator, trustee, receiver or other representative appointed according to law.

(10) *"Public officer"* as used in this Code shall mean a person elected or appointed to a position which is created by the Charter or ordinance.

(11) *"May"* is permissive.

(12) *"Must"* and *"shall."* Each is mandatory.

(13) *"NRS."* The abbreviation "NRS" shall mean the Nevada Revised Statutes, as amended.

(14) *"Officers, departments, board, and commission."* Except as otherwise specifically provided, whenever any officer, department, board, commission or their agency is referred to by title alone, such reference shall be construed as if followed by the words "of the City of Reno, Nevada." Whenever in accordance with the provisions of this Code any specific act is required to be done by any designated officer or official of the city, such act may be performed by any duly authorized member of his department.

(15) *"Or, and."* "Or" may read "and," and "and" may be read "or" if the sense requires it.

(16) *"State."* The word "the state" or "this state" shall be construed to mean the State of Nevada.

(Code 1966, § 1.04.020)

Sec. 1.01.030. Grammatical interpretation.

The following grammatical rules shall apply in the ordinances of the city:

(1) Gender.
When any subject matter, party or person is described or referred to by words importing the masculine, female as well as males, and associations and bodies corporate as well as individuals, shall be deemed to be included.

(2) Singular and plural.
The singular number includes the plural and the plural includes the singular.

(3) Tenses.
Words used in the present tense include the past and the future tenses and vice versa, unless manifestly inapplicable.

(4) Use of words and phrases.
Words and phrases not specifically defined shall be construed according to the context and approved usage of the language.

(Code 1966, § 1.04.050)

Sec. 1.01.040. Catchlines of sections and other headings.

The catchlines of the several sections of this Code, as well as the title, chapter, article and division headings are intended as mere catchwords to indicate the contents of title, chapter, article, division or section, and shall not be deemed or taken to be titles of such provisions, nor as any part of the contents.

(Code 1966, § 1.04.010)

Sec. 1.01.050. History notes.

The history notes appearing in parentheses after sections in this Code are not intended to have any legal effect but are merely intended to indicate the source of matter contained in the section.

Sec. 1.01.060. Editor's notes, references and annotations.

The editor's notes, Charter references, cross references, state law references and case law annotations appearing throughout this Code are not intended to have any legal effect but are merely intended to assist the user of this Code.

Sec. 1.01.070. Certain ordinances and acts not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall be construed to repeal or otherwise affect the validity of the following, when not inconsistent with this Code:

(1) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing or amount due the city as a tax, fee or license before the effective date of this Code;

(2) Any ordinance promising or guaranteeing the payment of money by this city or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness;

(3) Any prosecution, suit or other proceeding pending or any judgment rendered on the day on which this Code became effective;

(4) Any appropriation ordinance or ordinance providing for the levy of taxes or for any annual budget;

(5) Any ordinance annexing territory to the city or excluding territory as a part of the city;

(6) Any ordinance granting any franchise, permit or other right;

(7) Any ordinance approving, authorizing or otherwise relating to any contract, agreement, lease, deed or other instrument;

(8) Any ordinance dedicating, accepting, naming, establishing, locating, relocating, opening, widening, improving or vacating any street or other public way;

(9) Any ordinance establishing or prescribing grades for streets;

(10) Any ordinance assessing costs of constructing or reconstructing streets and sidewalks;

(11) Any ordinance prescribing traffic regulations for specific streets, such as ordinance designating speed limits, one-way streets, no parking areas, parking zones, truck routes, loading zones, stop intersections, intersections where traffic is to be controlled by signals, etc.;

(12) Any ordinance zoning or rezoning specific property;

(13) Any temporary or special ordinance; and all ordinances and parts of ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length herein.

(Code 1966, § 1.04.040)

Sec. 1.01.080. Unlawful to obstruct public officer.

It shall be unlawful for any person to interfere with or obstruct any public officer in the performance of his duty imposed upon him by law.

Cross reference—Offenses against public administration, Ch. 8.06.

Sec. 1.01.090. Severability of parts of Code.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared invalid for any reason by the judgment of a court of competent jurisdiction, such invalidity shall not affect any of the

remaining phrases, clauses, sentences, paragraphs and sections of this Code, since the same would have been enacted by the city council without the incorporation in this Code of any of such invalid phrase, clause, sentence, paragraph or section.

(Code 1966, § 1.04.030)

CHAPTER 1.02. WARDS*

Sec. 1.02.010. Ward Boundaries and Official city map.
Sec. 1.02.020—1.02.060. Reserved.

Sec. 1.02.010. Ward Boundaries and Official city map.

The City shall be divided into six wards as required by Section 1.050 of the Reno City Charter, the boundaries of which shall be established as depicted on the map attached hereto as Exhibit "A" and incorporated by reference herein. The City Manager, or his designee, will maintain an official city map and shall incorporate the ward boundaries into such map.

(Code 1966, § 1.08.010; Ord. No. 2835, § 1, 5-27-80; Ord. No. 2916, § 1, 1-12-81; Ord. No. 3059, § 1, 1-10-83; Ord. No. 3233, § 1, 1-14-85; Ord. No. 3455, § 1, 1-12-87; Ord. No. 3757, § 1, 1-9-89; Ord. No. 4046, § 1, 1-8-91; Ord. No. 4289, § 1, 1-12-93; Ord. No. 4826, § 1, 1-13-98; Ord. No. 5280, § 1, 10-9-01; Ord. No. 5970, § 1, 9-12-07; Ord. No. 6215, § 1, 12-14-11; Ord. No. 6613, § 1, 12-1-21; Ord. No. 6659, § 1, 9-13-23)

Sec. 1.02.020—1.02.060. Reserved.

Editor's note—Ord. No. 4826, § 2, adopted Jan. 13, 1998, repealed §§ 1.02.020—1.02.060, which pertained to ward nos. 1—5. See the Code Comparative Table.

***Charter references—**Creation of wards mandated, § 1.050; one councilman for each ward, § 2.010.

Case law reference—Each councilman must be chosen by the electors of his ward only. *State v. Sadler,* 25 Nev. 131, 59 Pac. 546 (1889). See also State v. Ruhe, 24 Nev. 251, 52 Pac. 274 (1898).

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CHAPTER 1.04. PENALTIES AND ARREST PROCEDURE*

Sec. 1.04.010. General penalty; continuing violations.
Sec. 1.04.015. State misdemeanors and civil infractions.
Sec. 1.04.017. Minimum state law penalties.
Sec. 1.04.020. Amendment of section subject to penalty.
Sec. 1.04.030. Written notice to appear.
Sec. 1.04.040. Place to appear.
Sec. 1.04.050. Copy of notice to arrested persons.
Sec. 1.04.060. Copy to be filed; deposit of bail.
Sec. 1.04.070. No warrant to issue; conditions.
Sec. 1.04.080. Failure to appear.
Sec. 1.04.090. Warrant to issue; when.
Sec. 1.04.100. Reserved.

Sec. 1.04.010. General penalty; continuing violations.

(a) Whenever in any section of this Code the doing of any act is required or is prohibited or is declared to be unlawful, and no specific fine or penalty is provided for a violation thereof, any person who shall be convicted of a violation of any provision of this Code shall, for each offense, be fined not less than $1.00 nor more than $1,000.00 or be punished by imprisonment in the city jail not to exceed six months, or be punished by both fine and imprisonment.

(b) Each day's violation of, or failure, refusal or neglect to comply with, any provision of this Code shall constitute a separate and distinct offense.

(c) The provisions of this section shall not apply to any section of this Code in which it is expressly provided a penalty for its violation.

(Code 1966, § 1.12.010; Ord. No. 2956, § 1, 9-28-81)
Charter references—Disposition of fines, § 4.030; additional imprisonment to satisfy fine, § 4.040.
State law reference—Penalties for violations, NRS 268.019.

Sec. 1.04.015. State misdemeanors and civil infractions.

The commission of any act within the corporate limits of the City of Reno or the failure to perform any within such corporate limits which is made a misdemeanor or civil infraction by the laws of the State of Nevada is declared to be and shall constitute a misdemeanor or civil infraction under this Code.

(Ord. No. 5057, § 1, 10-12-99; Ord. No. 6639, § 1, 11-9-22)
State law reference—Power to establish misdemeanors by ordinance, NRS 268.018.

***Case law references—**(1) There is a broad distinction between the penal laws of the state and the penalties prescribed by the ordinances of municipal corporations. *State v. Swift,* 11 Nev. 128 (1876).

(2) Same act may constitute both offense against state and municipal corporation, both of whom may punish without violation of any constitutional principle. Ex parte Sloan, 47 Nev. 109, 217 Pac. 233 (1923). See also Ex parte Noyd, 48 Nev. 120, 227 Pac. 1020 (1924).

Sec. 1.04.017. Minimum state law penalties.

When under this Code an offense is set forth which is identical to or substantially similar to an offense set forth under state law and a minimum penalty is set forth under state law for that offense, the minimum penalty for the violation of the City Code provision shall be the same as that provided for the violation of state law.

(Ord. No. 5059, § 1, 10-12-99)

Sec. 1.04.020. Amendment of section subject to penalty.

In case of the amendment of any section of this Code containing provisions for which a penalty is provided in another section thereof, the penalty so provided in such other section shall be held to relate and apply to the section so amended, whether reenacted in the amendatory ordinance or not, unless specifically provided therein.

(Code 1966, § 1.12.020)

Sec. 1.04.030. Written notice to appear.

If any person is arrested in the city for violation of any ordinance of the city, and such person is not immediately taken before a magistrate, the arresting officer or other authorized person shall prepare a written notice to appear in court, containing the name and address of such person, the offense charged, and the time and place where and when such person shall appear in court.

(Code 1966, § 1.12.030)

Sec. 1.04.040. Place to appear.

The place specified in the notice to appear shall be before the municipal judge.

(Code 1966, § 1.12.040)

Sec. 1.04.050. Copy of notice to arrested persons.

The officer or other authorized person shall deliver one copy of the notice to appear to the arrested person, and the arrested person in order to secure release must give his written promise so to appear in court by signing a duplicate notice which shall be retained by the officer. Thereupon the arresting officer or other authorized person shall forthwith release the person arrested from custody.

(Code 1966, § 1.12.050)

Sec. 1.04.060. Copy to be filed; deposit of bail.

The officer or other authorized person shall, as soon as practicable, file a duplicate notice with the Reno municipal court, and shall sign a triplicate copy of the notice which shall be in the form of a municipal court complaint before the municipal judge or before some other officer authorized to administer oaths. Thereupon the municipal judge shall fix the amount of bail which in his judgment will be reasonable and sufficient for the appearance of the defendant. The defendant may, prior to the date upon which he promised to appear in court, deposit with the clerk of the municipal court the amount of the bail theretofore set by the municipal judge. Thereafter, at the time when the case is called for arraignment before the municipal judge, if the

defendant shall not appear, either in person or by counsel, the municipal judge may declare the bail forfeited, and may in his discretion order that no further proceeding shall be made in such case.

(Code 1966, § 1.12.060)

Sec. 1.04.070. No warrant to issue; conditions.

No warrant shall issue on such charge for the arrest of a person who has been given such written promise to appear in court, unless and until he has violated such promise or has failed to deposit bail, to appear for arraignment, trial or judgment, or to comply with the terms of the provisions of the judgment, as required by law.

(Code 1966, § 1.12.070)

Sec. 1.04.080. Failure to appear.

(a) It shall be unlawful for any person to wilfully fail to appear in accordance with his written promise to appear in court, regardless of the disposition of the charge upon which he was originally arrested.

(b) It shall be unlawful for any person to fail, refuse or neglect to comply with the terms of any order, judgment or other process issued by the municipal judge.

(c) The municipal judge may punish for contempt any person who violates the provisions of this section or who commits any acts or omissions in the same manner and with the same effect as to not exceed what is provided for judges in NRS Ch. 22.

(Code 1966, § 1.12.080; Ord. No. 3049, § 1, 11-22-82; Ord. No. 6495, § 1, 1-23-19)

Sec. 1.04.090. Warrant to issue; when.

When any person signs a written promise to appear at the time and place specified in the written promise to appear, and has not posted bail as provided in section 1.04.060, the municipal judge may issue and have delivered for execution a warrant for his arrest within 20 days after his failure to appear as promised.

(Code 1966, § 1.12.090; Ord. No. 6496, § 1, 1-23-19)

Sec. 1.04.100. Reserved.

Editor's note—Ord. No. 3279, adopted May 28, 1985, effective July 1, 1985, added § 1.04.100, concerning administrative fees for the municipal court; Ord. No. 3305, § 1, adopted Aug. 26, 1985, repealed the section.

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CHAPTER 1.05. CODE ENFORCEMENT—ADMINISTRATIVE PROVISIONS

Art. I. General Provisions

Sec. 1.05.005. Declaration of purpose.
Sec. 1.05.010. Conflict of ordinances.
Sec. 1.05.015. Administrative enforcement authority.
Sec. 1.05.020. Definitions.
Sec. 1.05.025. Authority to inspect.
Sec. 1.05.030. Recovery of administrative fees; purpose.
Sec. 1.05.035. Amount of administrative fees.
Sec. 1.05.040. Notification of assessment of administrative fees.
Sec. 1.05.045. Collection of administrative fees.
Sec. 1.05.050. Service of notices.

Art. II. Notice of Violation

Sec. 1.05.100. Notice of violation; procedures.
Sec. 1.05.105. Recording notices of violation; purpose.
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Art. V. Code Enforcement Lien

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Sec. 1.05.540. Standard of proof.
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Art. VII. Appeal to Court

Sec. 1.05.600. Appeal of administrative order to court.
Sec. 1.05.605. Time limits for repair, correction or abatement after appeal.

ARTICLE I. GENERAL PROVISIONS

Sec. 1.05.005. Declaration of purpose.

The council finds that the enforcement of the Reno Municipal Code ("Code") throughout the city is an important public service, and enforcement of the Code is vital to protection of the public's health, safety and quality of life. The council recognizes that enforcement starts with the implementation of regulations that can be applied in administrative enforcement hearings and appropriate appeals. The council further finds that a comprehensive Code Enforcement system requires a variety of administrative remedies for the effective enforcement of violations of the Code. The procedures established in this chapter shall be in addition to any civil or any other legal remedy established by law which may be pursued to address violations of the Code. The use of procedures established in this chapter, except as specifically provided otherwise, shall be in lieu of criminal sanctions.

The council also finds that there is a need to establish uniform procedures for administrative enforcement hearings conducted pursuant to the Code. It is the purpose and intent of the council to establish uniform minimum procedural requirements for administrative enforcement and adjudication procedures for the Code, and to provide for an administrative hearing and appeal.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.010. Conflict of ordinances.

(a) The operation of this chapter shall in no way change or diminish the effect of other ordinances in this Code dealing with like or similar matters.

(b) In any case where a provision of this chapter is found to be in conflict with a provision of any zoning, building, fire, safety or health ordinance or section of the Code, the provision which establishes the higher standard for the promotion and protection of the health and safety of the people shall prevail.

(c) It is not intended by this chapter to repeal, abrogate, annul, or in any way impair or interfere with existing provisions of other laws or ordinances or with private restrictions placed upon property by covenant, deed, or other private agreement except those specifically repealed by this chapter.

(d) In cases where two or more provisions of this chapter conflict, the most stringent or restrictive shall prevail.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.015. Administrative enforcement authority.

The enforcement official shall have the authority and powers necessary to determine whether a violation of the Code exists and the authority to take appropriate action to gain compliance with the provisions of the Code. These powers include the power to issue notices of violation, administrative citations, misdemeanor citations, notices and orders, the power to inspect public and private property and use the administrative remedies which are available under the Code.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.020. Definitions.

The following words when used in this chapter shall have the meanings respectively ascribed to them:

Business day shall mean each day the city is open to conduct business excluding Saturdays, Sundays and holidays designated as legal holidays for the State of Nevada pursuant to NRS 236.015.

Commercial property shall be defined as property associated with commercial use as defined in Title 18 of the Code.

Enforcement official shall mean the city manager, the chief of police, the director of parks, recreation and community services, director of public works, the fire chief, police officers, code enforcement officers, the building official, revenue officers, or their authorized designee.

Responsible person shall mean an owner, tenant, occupant, lessor, lessee, manager, licensee, or other person having control over a structure, dwelling, or parcel of land, or the parent or legal guardian of any person under 18 years who had done any act for which a penalty may be imposed under this chapter, or any other person required to comply with the provisions of the Code and, in the case where the demolition of a structure is suggested as a means of abatement, any lien holder, secured party, or other person who has properly recorded a security interest or other appropriate document evidencing an interest in the property, which has been recorded in the official records of Washoe County.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.025. Authority to inspect.

An enforcement official is authorized to enter upon any property or premises to ascertain if there is compliance with the provisions of the Code, and to make any investigations, examina-

tions and surveys as may be necessary in the performance of their enforcement duties. This may include, but is not limited to, the taking of photographs, samples or other physical evidence such as the use of a sound level measurement device to measure noise disturbances. The enforcement official may seek entry upon any premises at any reasonable time for the purpose of carrying out duties of enforcement of the Code. In the event that the owner or occupant of any premises located within the city refuses to permit entry to the enforcement official when such entry is sought pursuant to this section, the enforcement official may seek entry through any legal means including but not limited to making application to any court of competent jurisdiction for issuance of a warrant. Such sworn application shall identify the premises upon which entry is sought and the purpose for which entry is desired. The applicant shall state the facts giving rise to the belief that a condition which is in violation of the Code exists on such premises, or that a violation in fact exists and must be corrected or abated.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.030. Recovery of administrative fees; purpose.

The council finds there is a need to recover costs incurred by the city, through an administrate fee schedule, in its Code enforcement efforts. Administrative fees include time spent by city personnel reinspecting properties throughout the city in an effort to ensure compliance with the Code, and costs incurred in the investigation, inspection, reinspection, recording and canceling recording of notices, title search, and any other processing costs associated with the violations specified on the notice of violation or administrative citation.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.035. Amount of administrative fees.

An administrative fee schedule shall be established and revised as necessary by the council to reflect current costs. The administrative fee schedule shall be filed in the city clerk's office.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.040. Notification of assessment of administrative fees.

(a) Where the assessment of an administrative fee is authorized under this chapter, the enforcement official shall provide the responsible person with a written notice assessing the fee. The written assessment shall contain the following information:

(1) The amount of fee charged;

(2) The case number;

(3) The corresponding dates when the inspection took place; and

(4) A deadline by which the administrative fee must be paid.

(b) An administrative fee may be assessed as part of any administrative enforcement action as provided for in this chapter.

(c) An administrative fee collected pursuant to this chapter shall not be duplicated in any other action to recover these identical fees.

(d) The failure of any responsible person to receive notice of the administrative fees shall not affect the validity of any fees imposed under this chapter.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.045. Collection of administrative fees.

Collection of the administrative fees may be accomplished through all appropriate legal means, including but not limited to, referral to the finance department for collection or assessment against the property in the form of a code enforcement lien as set forth in section 1.05.400 through 1.05.410 of the Code.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.050. Service of notices.

Whenever a notice is required to be given under the Code for enforcement purposes unless specifically provided otherwise, it shall be served by any of the following methods:

(1) Personal service;

(2) Certified mail, postage prepaid, return receipt requested. Simultaneously, the same notice may be sent by regular mail. If a notice that is sent certified mail is returned unsigned, then service shall be deemed effective pursuant to regular mail, provided the notice that was sent by regular mail is not returned; or

(3) Posting the notice conspicuously on or in front of the property, business, or other place reasonably calculated to provide notice to the responsible person of a violation of the Code.

Service of a notice by any of the above methods shall be effective on the date of mailing or posting, as applicable. The failure of any responsible person to receive any notice served in accordance with this section shall not affect the validity of any proceedings taken under this Code.

(Ord. No. 5063, § 1, 11-9-99)

ARTICLE II. NOTICE OF VIOLATION

Sec. 1.05.100. Notice of violation; procedures.

Whenever it is determined that a violation of the Code exists, the enforcement official may issue a notice of violation to the responsible person. The notice of violation shall include the following information:

(1) The name and address of the responsible person in violation. If the notice pertains to events occurring on or the status or condition of property, the notice shall also be served on all property owners of record. The notice shall contain the address and assessor's parcel number of the property;

(2) A statement from the enforcement official identifying the conditions which violate the Code and the specific provisions of the Code which have been violated;

(3) A statement that the property owner or responsible person in violation may request an administrative hearing within ten business days after the date the notice is served;

(4) If applicable, a list of necessary corrections to bring the property into compliance;

(5) If applicable, a deadline or specific date to correct the violations listed in the notice of violation.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.105. Recording notices of violation; purpose.

The council finds that there is a need to give notice of pending enforcement actions to persons who may subsequently acquire property subject to a violation as a means to ensure the violations will be corrected. An appropriate method to accomplish this is through the issuance and recording of notices of violation.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.110. Procedures for recording notices of violation.

(a) Once an enforcement official has issued a notice of violation to a responsible person and the property is in violation after the deadline established in the notice of violation, the enforcement official may record the notice of violation in the official records of Washoe County.

(b) Before recording, an enforcement official shall provide to the responsible person, and all owners of record a notice of intent to record stating that a notice of violation will be recorded if the violation is not corrected within ten business days from the date of the notice of intent to record.

(1) The notice shall include a statement that a responsible person may, within ten business days after the date the notice is served, request an administrative hearing to be conducted in accordance with sections 1.05.500 through 1.05.560 of the Code.

(2) The notice shall include a statement that the responsible person will be liable for the fees and costs of removal of the notice of violation.

(c) Any costs associated with recording the notice of violation, will be assessed against the property as provided for in sections 1.05.030 through 1.05.045 of the Code.

(d) The failure of any person to file a request for administrative hearing in accordance with these provisions shall constitute a waiver of the right to an administrative hearing and shall not affect the validity of the recorded notice of violation.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.115. Service of notice of violation.

A copy of the recorded notice of violation shall be served on the responsible person and all owners of record as set forth in section 1.05.050 of the Code.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.120. Administrative hearing on recordation.

(a) The request for and the conduct of the administrative hearing shall be governed by Sections 1.05.500 through 1.05.560 of the Code.

(b) The purpose of the hearing is for the responsible person to state any reasons why a notice of violation should not be recorded.

(c) The Hearing Officer shall consider evidence to the following issues:

(1) Whether the conditions listed in the notice of violation violate the Code; and

(2) Whether the enforcement official afforded the responsible person due process by adhering to the notification procedures specified in this chapter; and

(3) Whether the conditions listed in the notice of violation continue unabated.

(d) If the hearing officer affirms the enforcement official's decision, the enforcement official may proceed to record the notice of violation.

(e) If the hearing officer determines that recording the notice of violation is improper, the hearing officer shall invalidate the enforcement official's decision to record the notice of violation.

(Ord. No. 5839, § 1, 6-14-06)
Note—See the editor's note at Section 1.05.125.

Sec. 1.05.125. Reserved.

Editor's note—Ord. No. 5839, § 1, adopted June 14, 2006, repealed former §§ 1.05.120 and 1.05.125, which pertained to procedures to request administrative hearing on recordation and administrative hearing; recordation of notice. Said ordinance also enacted provisions designated as a new § 1.05.120 to read as herein set out. See also the Administrative Code Comparative Table.

Sec. 1.05.130. Notice of compliance; notice of violation removal procedures.

(a) When the violation(s) listed on the notice of violation have been corrected, the responsible person may file with the enforcement official a written request for a notice of compliance on a form provided by the city clerk.

(b) Once the enforcement official receives a request for a notice of compliance, the enforcement official shall confirm the violation(s) have been corrected or abated, which confirmation may include the reinspection of the property. The enforcement official shall provide a notice of compliance to the responsible person if the enforcement official determines that:

(1) All violations listed in the recorded notice of violation have been corrected;

(2) All necessary permits have been issued and finalized;

(3) All administrative fines have been paid; and

(4) The party requesting the issuance of the notice of compliance has paid all administrative fees and costs due to the city.

(c) Pursuant to the request by the responsible person, the enforcement official shall either:

(1) Record or cause to be recorded the notice of compliance in the official records of Washoe County, and the responsible party will be liable for the fees and actual costs of recording the notice; or

(2) Serve the notice of compliance to the responsible person for the responsible person's own recording of such notice in the official records of Washoe County. If so requested by the responsible person, the notice of compliance shall be served by personal service or certified mail as listed in Section 1.05.050 of this code.

The notice of compliance shall include the same information as provided in the original recorded notice of violation. The recording of the notice of compliance shall have the effect of canceling the recorded notice of violation.

(d) If the enforcement official denies a request to issue a notice of compliance, the enforcement official shall serve the responsible person with a written explanation setting forth the reasons for the denial. The written explanation shall be served by personal service or certified mail as listed in section 1.05.050 of this Code.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.135. Prohibition against issuance of municipal permits and business licenses.

For properties where a notice of violation has been recorded, the city may withhold all approvals for applications of special use permits, business licenses and building permits until a notice of compliance has been issued by the enforcement official.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

ARTICLE III. ADMINISTRATIVE CITATIONS AND FINES

Sec. 1.05.200. Administrative citations and fines; authority.

The city may impose administrative fines for any of the acts or omissions set forth in this chapter. Administrative fines shall be imposed, enforced, collected and reviewed in compliance with the provisions of this chapter. Administrative fines may be imposed for any of the following acts or omissions:

(1) Violations of the provisions of any title or chapter of the Code which references the provisions of this chapter;

(2) Failing to comply with any condition imposed by any permit, license, variance, environmental documents, or other approvals issued by the city.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.205. Administrative citations; procedures.

(a) Upon discovering a violation of this chapter, an enforcement official may issue an administrative citation to any or all responsible person(s) in the manner prescribed in this chapter.

(b) Each and every day a violation of the chapter exists constitutes a separate and distinct offense.

(c) Administrative fines shall be assessed by means of an administrative citation issued by the enforcement official and shall be payable directly to the city unless otherwise noted on the citation.

(d) Administrative fines assessed by means of an administrative citation shall be collected in accordance with the procedures specified in this chapter.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.210. Contents of administrative citation.

Any administrative citation that is issued shall contain:

(1) The name and address of the responsible person in violation. If the administrative citation pertains to events occurring on or the status or condition of property, the administrative citation may also be served on all property owners of record. The administrative citation shall contain the address and assessor's parcel number of the property;

(2) A statement from the enforcement official identifying the conditions which violate the Code and the specific provisions of the Code which have been violated;

(3) Where appropriate, the action required to correct the violations, a deadline by which the violations must be corrected, and the consequences of failing to comply;

(4) A statement that each day that the responsible person does not correct or abate the condition after the date specified in the administrative citation shall constitute a separate violation subjecting the responsible person to the fines set forth in section 1.05.215 of the Code.

(5) The amount of the administrative fine imposed for the violations;

(6) A statement that the responsible person in violation may request an administrative hearing on the imposition of the administrative fine within ten business days of the date the administrative citation is served; and

(7) A statement that if the responsible person fails to request an administrative hearing on the imposition of the administrative citation, the citation imposing the fine shall be final.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.215. Fines for administrative citations.

(a) If the responsible person fails to correct the violation, subsequent administrative citations may be issued for the same and subsequent violations. The amount of the fine shall increase at a rate specified in subsection (1) and (2) below.

(1) The fines assessed for each administrative citation issued for the same and subsequent violations for residential property shall be as follows:

1st administrative citation	$100.00
2nd administrative citation	250.00
3rd or subsequent administrative citation	500.00

(2) The fines assessed for each administrative citation issued for the same and subsequent violations for commercial property shall be as follows:

1st administrative citation	$100.00
2nd administrative citation	250.00
3rd administrative citation	500.00
4th or subsequent administrative citations	1,000.00

(b) Payment of the fine shall not excuse the failure to correct the violations nor shall it bar further enforcement action by the city.

(c) All fines assessed shall be payable to the city unless otherwise directed on the citation.

(d) For all delinquent unpaid administrative fines, there shall be a penalty imposed in the amount of ten percent of the administrative fine amount, and an additional one percent per month of the total amount of the administrative fine and any penalty thereon for each month during the time that such fine remains unpaid after its delinquency date. The delinquency date for an administrative fine shall be 15 business days following the imposition of the fine, or the administrative determination of the hearing officer, whichever is later.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.220. Failure to pay administrative citation fine.

The failure of any person to pay the fines assessed by an administrative citation within the time specified on the citation may result in the enforcement official referring the matter to the finance department or other designated agent of the city for collection. Alternatively, the enforcement official shall pursue any other legal remedy to collect the fines.

(Ord. No. 5063, § 1, 11-9-99)

ARTICLE IV. ABATEMENTS*

Sec. 1.05.300. Abatements; purpose.

The council finds that it is necessary to establish appropriate procedures for the administrative and summary abatement of Code violations. These sections govern the abatement procedures established in all chapters of the Code unless other procedures are specifically stated to apply.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.305. Authority.

Any condition caused, maintained or permitted to exist in violation of any provisions of the Code may be abated by the city pursuant to the procedures set forth herein.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.310. Notice to abate; general procedures.

Whenever the enforcement official determines that public or private property or any portion of public or private property is in violation of any section of the Code, a notice to abate may be issued to the responsible person to abate the violation. If the notice pertains to events occurring on or the status or condition of property the notice shall also be served on all property owners of record. The notice to abate shall include the following information:

(1) The name and address of the responsible person in violation. The notice shall be served on all property owners of record. The notice shall contain the address and assessor's parcel number of the property;

(2) A statement from the enforcement official identifying the conditions which violate the Code and the specific provisions of the Code which have been violated;

(3) A statement that the property owner or responsible person in violation may, within ten business days after the date the notice is served, request an administrative hearing in accordance with section 1.05.500 through 1.05.560 of the Code;

(4) A description of the action required to abate the violation which may include, but is not limited to: corrections, repairs, demolition, removal, obtaining the necessary permits, vacation of tenants or occupants or other appropriate required actions; and when necessary, time frames for multiple corrective actions by which each action must occur in order of priority;

(5) A deadline or specific date to correct all violations listed in the notice to abate; and

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***State law references—**Abatement of dangerous structures and conditions, NRS 268.4122; abatement of chronic nuisance, NRS 268.4124; abatement of abandoned nuisance, NRS 268.4126.

(6) A description of consequences should the responsible person fail to comply with the terms of the notice.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.315. Reserved.

Editor's note—Ord. No. 5839, § 1, adopted June 14, 2006, repealed § 1.05.315, which pertained to service of notice to abate. See also the Administrative Code Comparative Table.

Sec. 1.05.320. Abatement by the city.

(a) Once the enforcement official follows the procedures set forth in section 1.05.310 of the Code, or an administrative order has been issued pursuant to section 1.05.555 of the Code, and the time for compliance has lapsed without abatement being fully completed by the responsible person, the conditions may be abated by city personnel or by a private contractor hired by the city for that purpose.

(b) City personnel or a private contractor can enter upon private property in a reasonable manner to abate the conditions as specified in the notice to abate or administrative order.

(c) When the abatement is completed, a report describing the work performed and an itemized accounting of the total abatement costs shall be prepared by the enforcement official. The report shall contain the names and addresses of the property owner(s), the assessor's parcel number and a legal description of the property.

(d) The enforcement official shall schedule a confirmation of costs hearing before a hearing officer pursuant to the procedures set forth in section 1.05.530 of the Code, unless waived in writing by all responsible persons.

(e) All administrative fees and actual costs incurred by the city in abating the violations may be assessed and recovered against the responsible person pursuant to the provisions set forth in this chapter.

(f) In addition to the foregoing, the City of Reno may cause to have the actual costs of the abatement collected on the county's tax roll in the same manner, by the same persons, and at the same time as, together with and not separately from, the county's general taxes. The City of Reno shall have the right to collect from such person(s) four percent of the amount of the delinquent charges for the abatement to be collected on the tax roll or the amount estimated by the county treasurer which is necessary to collect and distribute those delinquent charges, whichever is greater.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.325. Summary abatement.

Whenever the enforcement official determines that an imminent hazard, as defined in Chapter 8.22 of the Code, exists that requires immediate correction or elimination, the enforcement official may exercise the following powers to summarily abate the hazard without prior notice to the responsible person:

(1) Order the immediate vacation of any tenants and prohibit occupancy until all repairs are completed; or

(2) Post the premises as unsafe, substandard or dangerous; or

(3) Board, fence or secure the building or site; or

(4) Raze and grade that portion of the building or site to prevent further collapse and remove any hazard to the general public; or

(5) Make any minimal emergency repairs as necessary to eliminate any imminent health and safety hazard; or

(6) Remove or have removed any item(s) that appear to be an imminent hazard, to ensure the public's safety; or

(7) Take any other reasonable action deemed by the enforcement official as appropriate under the circumstances.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.330. Summary abatement; procedures.

(a) The enforcement official shall pursue only the minimum level of correction or abatement as necessary to eliminate the imminent hazard.

(b) Upon completion of the abatement, the enforcement official shall prepare a report and schedule a confirmation of costs hearing as set forth in section 1.05.320.

(c) Costs incurred by the city during the summary abatement process may be assessed, collected and recovered against the responsible person through the procedures available in sections 1.05.320 or 1.05.400 of the Code.

(d) The enforcement official may also pursue any other criminal, administrative or judicial remedy to abate any remaining violations.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.335. Disposition of property or materials resulting from abatement.

The City of Reno will reasonably dispose of property or materials removed from real property in the course of abatement by the city.

(Ord. No. 5839, § 1, 6-14-06)

ARTICLE V. CODE ENFORCEMENT LIEN

Sec. 1.05.400 Procedures for recording code enforcement lien.

(a) An enforcement official may record a code enforcement lien in the official records of Washoe County to collect all administrative fees, administrative fines, abatement costs and other costs provided for in this chapter.

(b) Before recording a code enforcement lien, an enforcement official shall provide to the responsible person and all owners of record a notice of intent to record stating that a code enforcement lien will be recorded unless payment of all monies due is paid in full on or before the date listed herein.

(c) The recorded code enforcement lien shall include the name of the property owner, the assessors parcel number, the street address, the parcel's legal description, and a copy of the latest amounts due to the city.

(d) Any costs associated with recording the code enforcement lien or removal thereof may be assessed against the property as provided for in sections 1.05.030 through 1.05.045 of the Code.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.405. Service of code enforcement lien.

A copy of the recorded code enforcement lien shall be mailed to the responsible person and all property owners of record and/or any other persons who have requested copies of such notices pursuant to any of the methods of service set forth in section 1.05.050 of the Code.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.410. Notice of satisfaction; lien removal procedures.

(a) When payment in full is received by the city for the outstanding administrative fines, fees and costs, or the amount is deemed satisfied pursuant to a subsequent administrative order, the responsible person may file with the enforcement official a written request for a notice of satisfaction on a form provided by the city clerk.

(b) Once the enforcement official receives a request for a notice of satisfaction, the enforcement official shall confirm that the city has received payment in full. The enforcement official shall provide a notice of satisfaction to the responsible person if such confirmation is made.

(c) Pursuant to the request by the responsible person, the enforcement official shall either:

(1) Record or cause to be recorded the notice of satisfaction in the official records of Washoe County, and the responsible party will be liable for the fees and actual costs of recording the notice; or

(2) Serve the notice of satisfaction to the responsible person for the responsible person's own recording of such notice in the official records of Washoe County. If so requested by the responsible person, the notice of satisfaction shall be served by personal service or certified mail as listed in section 1.05.050 of this Code.

The notice of satisfaction shall include the same information as provided in the original code enforcement lien. The recording of the notice of satisfaction shall have the effect of canceling the code enforcement lien.

(d) If the enforcement official denies a request to issue a notice of satisfaction, the enforcement official shall serve the responsible person with a written explanation setting forth the reasons for the denial. The written explanation shall be served by personal service or certified mail as listed in section 1.05.050 of this Code.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Editor's note—Ord. No. 5839, § 1, adopted June 14, 2006, repealed former § 1.05.410, which pertained to cancellation of code enforcement lien. Said ordinance also enacted provisions designated as a new § 1.05.410 to read as herein set out.

ARTICLE VI. ADMINISTRATIVE HEARINGS

Sec. 1.05.500. Administrative hearing procedures.

This chapter establishes the procedures for the use of hearing officers and the procedures governing administrative hearings.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.505. Appointment of hearing officer.

Any hearing officer presiding at administrative hearings shall be appointed and compensated by the city. The hearing officer shall not be an employee of the city.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.510. Disqualification of hearing officer.

Any person designated to serve as a hearing officer is subject to disqualification for bias, prejudice, interest, or for any other reason for which a judge may be disqualified in a court of law.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.515. Powers of hearing officer.

(a) The hearing officer shall preside over administrative hearings.

(b) The hearing officer may continue a hearing based on good cause shown by one of the parties to the hearing or if the hearing officer independently determines that due process has not been adequately afforded.

(c) The hearing officer, upon receipt of a written request which is submitted no later than five business days before the hearing, may issue a subpoena for witnesses, documents and other evidence where the attendance of the witness or the admission of evidence is deemed necessary to decide the issues at the hearing. All costs related to the subpoena, including witness and mileage fees shall be borne by the party requesting the subpoena.

(d) The hearing officer has continuing jurisdiction over the subject matter of an administrative hearing for the purposes of granting a continuance, ensuring compliance with an administrative order, modifying an administrative order, or where extraordinary circumstances exist, granting a new hearing.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.520. Failure to obey subpoena.

It is unlawful for any person to refuse to obey a subpoena issued by a hearing officer. Failure to obey a subpoena constitutes contempt and may be prosecuted as a misdemeanor.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.525. Procedures for requesting an administrative hearing.

(a) A responsible person served with one of the following documents, orders or notices may file a request for administrative hearing within ten business days from the service of the notice:

(1) A notice of violation issued pursuant to section 1.05.100 of the Code.

(2) A notice from the enforcement official indicating an intent to record a notice of violation pursuant to section 1.05.110 of the Code.

(3) A denial of a request for a notice of compliance pursuant to section 1.05.130 of the Code.

(4) A denial of a request for a notice of satisfaction pursuant to section 1.05.410 of the Code.

(5) A administrative citation issued pursuant to section 1.05.210 of the Code.

(6) A notice to abate pursuant to section 1.05.310 of the Code.

(b) The request for administrative hearing shall be made in writing on a form provided by the city clerk and shall state the grounds for requesting the hearing and be filed with the city clerk on or before ten business days after service of the notice or citation.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.530. Procedures for notification of administrative hearing.

(a) Where a responsible person has timely requested an administrative hearing, the city clerk shall schedule a day, time and place for the hearing.

(b) Written notice of the time and place of the hearing shall be served at least ten business days prior to the date of the hearing to the responsible person.

(c) The notice of hearing shall be served by any of the methods of service listed in section 1.05.050 of the Code.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.535. Procedures at administrative hearing; admission of evidence.

(a) The hearing shall be recorded and the record kept with the administrative file. The rules of evidence of courts of the State of Nevada will be generally followed but may be relaxed at the discretion of the hearing officer when deviation from the technical rules of evidence will aid in ascertaining the facts and to ensure fairness for all parties involved. The rules pertaining to discovery do apply.

(b) An objection to the admissibility of evidence may be made by any party of record and the objection will be ruled on by the hearing officer. When an objection is made to the admission or exclusion of evidence, the grounds upon which the relief is sought must be stated briefly. The hearing officer, with or without objection, may exclude inadmissible, incompetent, repetitious, or irrelevant evidence. Any evidence offered at the hearing must be material and relevant to the issues of the hearing.

(c) At the administrative hearing, the hearing officer shall only consider evidence that is consistent with the rules and procedures for administrative hearings set forth in sections 1.05.500 through 1.05.560 of the Code, and that is relevant to the following issues:

(1) Whether the conditions listed in the issued notice violate the Code;

(2) Whether the enforcement official afforded the responsible person due process by adhering to the notification procedures specified in this chapter.

(3) Whether costs associated with an abatement are reasonable.

(d) Each party shall have the opportunity to cross-examine witnesses and present evidence in support of his or her case.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06; Ord. No. 6553, § 1, 3-25-20)

Sec. 1.05.540. Standard of proof.

The city bears the burden of proof at an administrative hearing to establish the existence of a violation of the Code. The standard of proof to be used by the hearing officer in deciding the issues at an administrative hearing is by a preponderance of the evidence.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.545. Representation.

Representation in a contested case is limited to representation in proper persona or by an attorney who is licensed to practice law in the State of Nevada.

(Ord. No. 5063, § 1, 11-9-99)

Sec. 1.05.550. Failure to request or attend administrative hearing.

Any responsible person who;

(a) Does not request a hearing; or

(b) Requests a hearing or whose actions are the subject of an administrative hearing, and fails to appear at the hearing;

is deemed to waive the right to a hearing and all objections to the notice or administrative citation, provided that the hearing was properly noticed.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.555. Administrative order; compliance with administrative order.

(a) The decision of the hearing officer shall be entitled "administrative order".

(b) Once all evidence and testimony are completed, the hearing officer shall issue an administrative order which affirms, modifies or rejects the enforcement official's action. Where applicable, the administrative order may affirm, modify or reject the daily rate or duration of the administrative fines depending upon the review of the evidence and may increase or decrease the total amount of administrative fines assessed.

(c) The hearing officer may issue an administrative order that requires the responsible person to abate the violation of the Code and to make necessary corrections, repairs, or to complete any other reasonable act requested by the enforcement official, which may be modified by the hearing officer, to bring the property into compliance with the Code. The hearing officer shall include a specific time frame to complete the requested act and may order the city to perform the abatement if the responsible person fails to comply with the administrative order.

(d) As part of the administrative order, the hearing officer may establish specific deadlines for the payment of administrative fines, fees and costs and may condition the total or partial assessment of administrative fines on the responsible person's ability to complete compliance by specified deadlines.

(e) The hearing officer may issue an administrative order which imposes additional administrative fines with the maximum amount per violation to be as set forth in section

1.05.215 of the Code that will continue to be assessed for each day the violation continues until the responsible person complies with the hearing officer's decision and corrects the violation.

(f) The hearing officer may schedule subsequent review hearings as may be necessary or as requested by a party to the hearing to ensure compliance with the administrative order.

(g) The administrative order shall become final on the date of service of the order.

(h) The administrative order shall be served on all parties by any one of the methods listed in section 1.05.050 of the Code.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5839, § 1, 6-14-06)

Sec. 1.05.560. Failure to comply with the administrative order; misdemeanor.

Failure to comply with an administrative order constitutes a misdemeanor.

(Ord. No. 5063, § 1, 11-9-99)

ARTICLE VII. APPEAL TO COURT*

Sec. 1.05.600. Appeal of administrative order to court.

Within 30 calendar days from service of an administrative order or other decision by the hearing officer, any party may appeal the determination of the hearing officer to municipal court, unless appeal to another tribunal is required by law. Any party failing to timely file an appeal to court shall be deemed to have waived any and all objections to the administrative hearing officer's decision.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5413, § 1, 1-14-03; Ord. No. 6554, § 1, 3-25-20)

Sec. 1.05.605. Time limits for repair, correction, or abatement after appeal.

Unless otherwise provided in the court's order, the owner or responsible party shall complete all actions necessary to bring the property into compliance with the Code within 30 calendar days of service of the court's decision. The enforcement official may grant or deny a request for additional time to complete acts required for compliance with the Code that is made by the owner of record or any responsible person who is making reasonable progress in the repair, correction or abatement of violations. The request for and the granting or denial of additional time shall be made in writing.

(Ord. No. 5063, § 1, 11-9-99; Ord. No. 5414, § 1, 1-14-03)

***Editor's note—**Ord. No. 5413, § 1, adopted Jan. 15, 2003, amended the title of Art. VII to read as herein set out. Prior to inclusion of said ordinance, Art. VII was entitled, "Appeal to City Council."

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CHAPTER 1.06. MISCELLANEOUS REGULATORY PROVISIONS

Sec. 1.06.010. Training requirements for landlords.

Sec. 1.06.010. Training requirements for landlords.

(a) DEFINITIONS.

As used in this section, the following definitions apply, except where the context clearly indicates that a different meaning is intended:

Apartment complex means a building or group of buildings, each of which is arranged in several units of connecting rooms, with each unit designed for independent housekeeping.

Landlord training program means the landlord training program offered by the Reno Police Department in connection with its Reno Crime Free Multi-Housing Program.

(b) LANDLORD TRAINING PROGRAM.

1. Completion of landlord training program.

a. Licensees who manage one or more apartment complexes with 40 or more apartment units must complete a landlord training program.

b. The requirements of this ordinance do not apply to licensees whose apartment complexes will be managed by a person who is in compliance with the requirements of this section or to properties managed by persons who hold licenses issued pursuant to Chapter 645 of Nevada Revised Statutes.

c. Any employee or agent of a licensee who acts as the on-site manager of an apartment complex with 40 or more apartment units must have completed a landlord training program.

d. The following persons must complete a landlord training program within 180 days after the effective date of this section in order to continue to function in their respective capacities:

(1) A person who is licensed to manage one or more apartment complexes with 40 or more apartment units on the effective date of this ordinance and who has not complied with the requirements of this section.

(2) A person who is licensed to conduct or operate one or more apartment complexes with 40 or more apartment units on the effective date of this section and who has not complied with the requirements of this section, if applicable.

(3) An employee or agent of a licensee who acts as the on-site manager of an apartment complex with 40 or more apartment units on the effective date of this ordinance and who has not complied with the requirements of this section.

(b) TRAINING REQUIREMENTS FOR BUSINESS ENTITIES.

For purposes of this section, a partnership, corporation or other business entity satisfies the training requirements of this section if one or more of its principals has fulfilled those requirements.

(c) CHANGE IN MANAGEMENT OF APARTMENT HOUSE.

A person licensed to conduct or operate an apartment house with 40 or more apartment units shall notify the Reno Police Department, Community Services Division, of a change in the management of the apartment house within ten days after the change takes place. A new manager who has not completed the landlord training program shall have 45 days to complete the program.

(d) ENFORCEMENT.

1. Neither the payment of a license fee, nor the renewal or pending renewal of a license under this chapter, shall in any way limit the enforcement of this section.

2. Failure to meet the requirements of this section will subject the licensee to administrative citations for failure to comply with the requirements of the Reno Municipal Code, as set forth in RMC 1.05.200 through RMC 1.05.220. Each and every day a violation of these requirements exists constitutes a separate and distinct violation. Issuance of citations and/or payment of administrative fines shall not preclude other appropriate enforcement action as set forth in the Code.

(Ord. No. 5878, § 1, 10-11-06; Ord. No. 6026, § 1, 5-28-08)

CHAPTER 1.07. MORATORIUM PROCEDURE

Sec. 1.07.010. Moratorium procedure.

Sec. 1.07.010. Moratorium procedure.

The city council may declare a temporary moratorium on the acceptance, processing and approval of certain land use and/or business license applications. The moratorium procedure is a two-stage process, requiring the adoption of a pending moratorium resolution and a final moratorium resolution.

(a) *Pending moratorium resolution.*

(1) The purpose of a pending moratorium resolution is to notify the public that the city council will be considering a moratorium on the acceptance, processing and approval of certain land use and/or business license applications.

(2) A pending moratorium resolution shall include a clear and complete description of the moratorium being proposed for consideration by the city council.

(3) The city manager or a city council member may place a pending moratorium resolution on a city council meeting agenda for consideration by the city council.

(4) At a regular or special meeting, city council shall adopt, modify or deny the pending moratorium resolution.

(b) *Effect of pending moratorium resolution; period of effect.*

(1) Upon adoption, city staff shall not accept, process or approve any land use and/or business license applications described in the pending moratorium resolution.

(2) A pending moratorium resolution shall be effective upon adoption, and unless otherwise directed by city council, shall expire in 30 calendar days, or the day after the city council formally considers the adoption of a final moratorium ordinance, whichever is earlier.

(3) Subsection (1) does not apply to applications submitted to the city prior to the date of adoption of a pending moratorium resolution.

(c) *Final moratorium resolution.*

(1) The city clerk shall cause a copy of the pending moratorium resolution to be published in a newspaper of general circulation within the City of Reno at least ten calendar days before a public hearing scheduled to adopt the final moratorium resolution. The public notice by publication shall include the date, time, place and purpose of the public hearing, and a telephone number that may be used by interested persons to obtain additional information.

(2) Staff shall prepare a report outlining the need for the moratorium described in the pending moratorium resolution.

(3) At a public hearing properly noticed pursuant to subsection (1), city council shall receive public testimony and evidence; review the staff report; address the applicable findings set forth in subsection (4) below; and adopt, modify or deny a final moratorium resolution.

(4) To adopt a final moratorium resolution, city council must make the following findings, as applicable:

a. The moratorium is necessary to promote the health, safety, and welfare of the area described in the moratorium resolution;

b. The moratorium is in substantial conformance with the relevant purpose and/or intent provisions of the Reno Municipal Code, e.g., see §§ 4.04.005, 5.05.005, 18.02.103, and the master plan;

c. The moratorium is necessary to allow staff and city council time to review the existing Reno Municipal Code, hold public hearings and workshops, obtain testimony and evidence, and amend the Reno Municipal Code;

d. The moratorium is necessary because continued development during the proposed moratorium period possibly would result in actions that may conflict with potential amendments to Reno Municipal Code; and,

e. City council has received public comment and carefully considered the financial and economic impact associated with the adoption of the moratorium resolution.

(d) *Effect of final moratorium resolution; period of effect.*

(1) Upon adoption, city staff shall not accept, process or approve any land use and/or business license applications described in the final moratorium resolution.

(2) The moratorium shall be in effect for a reasonable period of time as set forth in the final moratorium resolution. The moratorium may be further extended upon a determination that the extension is necessary to promote the health, safety and welfare of the community.

(Ord. No. 6390, § 1, 1-27-16)

CHAPTER 1.08. REDUCTION OR SUBSIDIZATION OF IMPACT FEES, BUILDING PERMIT FEES AND SEWER CONNECTION FEES

Cross reference—Connection Fee, § 12.16.280

Sec. 1.08.010. Enabling clause.
Sec. 1.08.020. Definitions.
Sec. 1.08.030. Eligibility.
Sec. 1.08.040. Standards and criteria.
Sec. 1.08.050. Conditions.
Sec. 1.08.060. Other requirements.

Sec. 1.08.010. Enabling clause.

Pursuant to Statutes of Nevada 2019, enacted by the Nevada Legislature by passage of Senate Bill No. 103 (NRS 278.235(1)(a) and (2)) the city is enabled with the ability to reduce or subsidize in whole or in part impact fees, fees for the issuance of building permits collected pursuant to NRS 278.580 and fees imposed for the purpose for which an enterprise fund was created to assist in maintaining or developing a project for affordable housing.

(Ord. No. 6544, 2-12-20)

Sec. 1.08.020. Definitions.

(1) Impact fee has the meaning ascribed in Nevada Revised Statutes 278B.050.

(2) Sewer connection fees has the meaning ascribed in Reno Municipal Code 12.16.010.

(3) Building permit fees has the meaning ascribed in Nevada Revised Statutes 278.580 and NRS 354.59891(1)(d).

(Ord. No. 6544, 2-12-20)

Sec. 1.08.030. Eligibility.

(1) When the incomes of all the residents of the project for affordable housing are averaged, the housing would be affordable on average for a family with a total gross income that does not exceed 60 percent of the median gross income for Washoe County based upon the estimates of the United States Department of Housing and Urban Development of the most current median gross family income for Washoe County.

(Ord. No. 6544, 2-12-20)

Sec. 1.08.040. Standards and criteria.

(1) Projects providing housing for families with an average total gross income not exceeding 60 percent of the area median income (AMI) for Washoe County are eligible to apply for a 75 percent reduction in the associated fee(s) for those units at or below 60 percent of the AMI.

(2) Projects providing housing for families with an average total gross income not exceeding 50 percent of the AMI for Washoe County are eligible to apply for a 100 percent reduction in the associated fee(s) for those units at or below 60 percent of the AMI.

(3) Projects providing housing for families with an average total gross income not exceeding 30 percent of the AMI for Washoe County or 100 percent of the units being affordable for 50 percent of the AMI for Washoe County are eligible to apply for a 100 percent reduction in the associated fees.

(4) Projects meeting section 1.08.040 (1) are eligible to apply for an additional 10 percent reduction for the following:

(a) Project site is located within ¼ mile of a bus rapid transit route; or

(b) Project site is located within a mixed use area or within one mile of an employment area as identified within the structure plan of the City of Reno Master Plan.

(Ord. No. 6544, 2-12-20)

Sec. 1.08.050. Conditions.

(1) A public hearing shall be held to address the effect of the reduction or subsidization of the impact fees, building fees or sewer connection fees on the economic viability of the general fund and the affected enterprise fund.

(2) Council must make a determination that reducing or subsidizing the impact fees, building fees or sewer connection fees will not impair adversely the ability of the city to pay, when due, all interest and principal on any outstanding bonds or any other obligations for which revenue from such fees was pledged must be made.

(Ord. No. 6544, 2-12-20)

Sec. 1.08.060. Other requirements.

(1) An annual report shall be provided to the city manager by the applicant or property manager verifying compliance with all of the requirements specified in this chapter.

(2) Applicable building permits associated with fee reduction shall be obtained within 24 months of the date of approval of any reductions by city council or the approval shall expire. An applicant may reapply following the expiration of an approval.

(3) The income restriction(s) must remain in effect for 20 years or the reduced fee(s) will be reinstated and assessed on the property by recordation of a lien.

(4) A deed restriction or similar property restriction will be recorded against the property.

(Ord. No. 6544, 2-12-20)

Title 2 ADMINISTRATION*

Ch. 2.04. Office of City Clerk, §§ 2.04.010—2.04.080
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Ch. 2.18. Municipal Band, §§ 2.18.010—2.18.030
Ch. 2.20. Code of Ethics for Public Officials, §§ 2.20.010—2.20.210
Ch. 2.22. Registration and Regulation of Lobbyists, §§ 2.22.010—2.22.050

***Charter references—**Executive department, Art. III; civil service, Art. IX.
Cross references—Offenses against public administration, Ch. 8.06; public works and utilities, Title 12; administration of fire regulations, Ch. 16.04.

Ch. 2.24. [Government Improprieties and Unlawful Acts], §§ 2.24.010—2.24.280

Art. I. Unlawful Employment Discrimination, Harassment or Retaliation by City Council Members, the City Manager, the City Attorney or the City Clerk, §§ 2.24.010—2.24.080

Art. II. Improper Governmental Action, §§ 2.24.200—2.24.280

CHAPTER 2.04. OFFICE OF CITY CLERK*

Art. I. In General (Reserved)

Art. II. Records Management Division

Sec. 2.04.010. Definitions.
Sec. 2.04.020. Created.
Sec. 2.04.030. Duties.
Sec. 2.04.040. Responsibilities of city clerk.
Sec. 2.04.050. Department responsibility.
Sec. 2.04.060. City records committee.
Sec. 2.04.070. Disposal of public records.
Sec. 2.04.080. Transfer of public records.

ARTICLE I. IN GENERAL (RESERVED)

ARTICLE II. RECORDS MANAGEMENT DIVISION†

Sec. 2.04.010. Definitions.

The following words and phrases, when used in this article shall have the meanings respectively ascribed to them:

Management of public records means the creation, maintenance, protection, use and disposition of all city records. This shall include records on any and all media including paper, microfilm, magnetic tape, punched cards, maps and drawings.

Office of record means the office which has the primary responsibility for retaining a particular record series.

Preservation of public records means all city public records are and shall remain the property of the city. They shall be delivered by outgoing officials and employees to their successors and shall be preserved, stored, transferred, destroyed, and otherwise managed, only in accordance with the provisions of this article.

Public records means any paper, correspondence, form, book, photograph, film, sound recording, map, drawing or other document regardless of physical form or characteristics, that have been made by any department or official or received by them in connection with the transaction of public business, excepting those which may by law be deemed privileged or otherwise restricted.

Record series means documents, volumes or folders that are arranged under a single filing system, or are kept together as a unit because they relate to a particular subject, result from the same activity, or have a particular form.

Records center means a low-cost area for housing and servicing inactive or semi-active records whose reference rate does not warrant their retention in office space and equipment.

***Cross reference—**City clerk official license collector, § 4.04.090.

†State law references—Public records, NRS 239.005 et seq.; definition of local government records, NRS 239.121; program for managing local government records, NRS 239.125.

Records retention schedule means an itemized list of record series with the corresponding time periods for which they must be kept including location and final disposition.

(Code 1966, § 2.06.010; Ord. No. 2739, § 1, 4-9-79)
Cross reference—Definitions generally, § 1.01.020.

Sec. 2.04.020. Created.

A records management division in the office of the city clerk shall be created under a records systems manager.

(Code 1966, § 2.06.020)

Sec. 2.04.030. Duties.

The records management division shall:

(1) Establish guidelines for inventorying, cataloging, retaining and transferring all records of the city;

(2) Review and analyze all department filing systems and approve filing system equipment requests;

(3) Establish and operate a records center for the purpose of storing and servicing records that need not be retained in office space;

(4) Operate a central microfilm facility which will microfilm all records approved for filming by the office of official record and the records management division; and

(5) Approve microfilming projects and microfilm equipment purchases being considered by any city department.

(Code 1966, § 2.06.020)

Sec. 2.04.040. Responsibilities of city clerk.

The city clerk will assume the responsibility for the development and implementation of a city-wide records management program for the city.

(Code 1966, § 2.06.020)

Sec. 2.04.050. Department responsibility.

Departments shall:

(1) Appoint a department coordinator who shall act as liaison between the department and the city clerk's office in matters concerning records management;

(2) Manage the inventorying of all public records within the department for disposition, scheduling and transfer action in accordance with procedures prescribed by the city clerk's office and the city records committee;

(3) Analyze records inventory data and recommend to the city, clerk's office and the city records committee minimum retention periods for all copies of public records within the department; and

(4) Approve all records disposal requests which are submitted by the department to the city records committee.

(Code 1966, § 2.06.030)

Sec. 2.04.060. City records committee.

(a) There is established a committee to be known as the city records committee, composed of representatives of:

(1) The city attorney;

(2) The city clerk;

(3) The finance department; and

(4) The data processing department.

The representatives are to be designated by the heads of the respective departments, and their appointments shall be submitted in writing to the city clerk.

(b) The city records committee shall:

(1) Approve, modify or disapprove the recommendations on retention schedules and disposal of all public records;

(2) Provide general guidance and assistance for improvements of the records management process; and

(3) Meet at least quarterly, and serve without additional compensation.

(Code 1966, § 2.06.040)

Sec. 2.04.070. Disposal of public records.

Requests for the disposal of public records shall be submitted to the city records committee by the department concerned. No public record may be disposed of or destroyed without the unanimous approval of the city records committee and in accordance with state law. Copies of public records may be disposed of without the approval of the city records committee if the disposal is in accordance with an approved records retention schedule.

(Code 1966, § 2.06.050; Ord. No. 2739, § 2, 4-9-79)
State law reference—Procedure for destroying local government records, NRS 239.124.

Sec. 2.04.080. Transfer of public records.

(a) All public records not required in the current operation of the office where they are made or kept and all records of each department, commission, committee or any other activity of city government which may be abolished or discontinued shall be in accordance with approved records retention schedules, transferred to the city records center.

(b) When records are transferred to the records center, the department so doing loses none of its rights of control and access. The records center is only a custodian of department records, and access will only be by department approval.

(c) If a department does not wish to transfer records as provided in an approved retention schedule, the department shall, within 30 days, notify the city clerk's office and request a change in the schedule.

(Code 1966, § 2.06.060)

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CHAPTER 2.06. DEPARTMENTS

Art. I. In General

Sec. 2.06.010. City organization chart created.

Art. II. Appointive Offices

Sec. 2.06.020. Intent.
Sec. 2.06.030. Designation of appointive officers.
Sec. 2.06.035. Designation of appointive employees.
Sec. 2.06.040. Appointment of appointive officers and appointive employees.
Sec. 2.06.050. Qualifications of appointive officers and appointive employees.
Sec. 2.06.055. Existing and successor appointees.

Art. III. Police Department

Sec. 2.06.060. Property in custody of police.

Art. IV. Reserved

Secs. 2.06.070—2.06.120. Reserved.

Art. V. Department of Alternative Sentencing

Sec. 2.06.130. Purpose.
Sec. 2.06.140. Definitions.
Sec. 2.06.150. Duties of department.
Sec. 2.06.160. Qualifications of chief; removal.
Sec. 2.06.170. Duties of chief.
Sec. 2.06.180. Duties of assistant.
Sec. 2.06.190. Arrest of probationer.
Sec. 2.06.195. Violation of condition of suspended sentence by probationer.
Sec. 2.06.200. Fees for cost of supervision; imposition; waiver or reduction.
Sec. 2.06.210. Disclosure of information obtained in discharge of duties prohibited; exceptions.

ARTICLE I. IN GENERAL

Sec. 2.06.010. City organization chart created.

(a) There is hereby established a city organizational chart, maintained by the office of the city manager, consisting of and depicting, all of the departments, divisions and offices of the city administration. Such chart may refer to the rules and regulations of specific departments and prescribe the powers and duties of all offices of the city, except as otherwise provided by law. The appointive officers of each department or division of the city administration, their designation by position and name, along with the qualifications of the office therefor, may be incorporated as a part of the city organizational chart.

(b) The city council may establish from time-to-time as provided by the Charter, Article I, Section 1.09, such other departments, divisions or offices that may be deemed necessary for the good government of the city. The city organizational chart shall reflect all such amendments, additions, deletion or corrections.

ARTICLE II. APPOINTIVE OFFICES*

***Editor's note—**Ord. No. 3699, § 1, adopted July 11, 1988, repealed Art. II, §§ 2.06.020—2.06.050, concerning the golf course division of the parks and recreation department, as derived from Code 1966, §§ 2.09.010—2.09.040. Ord. No. 3703 subsequently added a new Article II as herein set out.

***Charter reference—**Appointive officers, §§ 1.090—1.110.

Sec. 2.06.020. Intent.

(a) It is the intention of the city council in adopting this article to ratify existing appointive positions, whether or not such positions were previously established, in compliance with the provisions of section 1.090 of the Charter.

(b) Nothing in this article shall be construed to affect the validity of appointive positions otherwise established by Charter or ordinance.

(Ord. No. 3703, § 1, 7-11-88)

Sec. 2.06.030. Designation of appointive officers.

Sec. 1.090(3) of the Reno City Charter designates the "appointive officers" within the City of Reno.

(Ord. No. 3703, § 1, 7-11-88; Ord. No. 3753, § 1, 12-12-88; Ord. No. 3869, § 1, 10-9-89; Ord. No. 4306, § 1, 4-13-93; Ord. No. 4544, § 1, 8-8-95; Ord. No. 4637, § 1, 6-25-96; Ord. No. 4687, § 1, 11-12-96; Ord. No. 5931, § 1, 6-13-07; Ord. No. 6333, § 1, 5-28-14, eff. 7-1-14; Ord. No. 6376, § 1, 9-23-15, eff. 10-1-15)

Sec. 2.06.035. Designation of appointive employees.

The following positions are hereby designated as "appointive employees" within the City of Reno:

APPOINTIVE EMPLOYEES
Benefits Manager
Building & Safety Manager
Communications Manager
Community Relationships Manager
Council Relations Manager
Council Relations Specialist
Digital Experience Manager
Employee Relations Manager
Executive Assistant
Executive Assistant to the City Manager
Government Affairs Manager
Housing Manager
Internal Auditor
Labor Relations Manager
Management Analyst - City Manager's Office
Mayoral Relations Administrator

APPOINTIVE EMPLOYEES
Organizational Development Manager
Payroll Manager
Planning Manager
Public Communications Specialist
Revitalization Manager
Risk Manager
Senior Administrative Assistant
Senior Management Analyst
Special Events Manager
Strategic Initiatives Manager
Sustainability Manager
Urban Economist

(Ord. No. 6333, § 2, 5-28-14, eff. 7-1-14; Ord. No. 6376, § 2, 9-23-15, eff. 10-1-1; Ord. No. 6485, § 1, 10-24-18; Ord. No. 6662, § 1, 9-13-23)

Sec. 2.06.040. Appointment of appointive officers and appointive employees.

Appointments of such officers and employees shall be made by the City Manager, except as otherwise provided in Section 1.090 of the Reno City Charter.

(Ord. No. 3703, § 1, 7-11-88; Ord. No. 5931, § 2, 6-13-07; Ord. No. 6333, § 3, 5-28-14, eff. 7-1-14)

Sec. 2.06.050. Qualifications of appointive officers and appointive employees.

Appointive Officers

(a) Assistant Chief of Police.

Education/Training/Experience: A Bachelor's Degree from an accredited college or university with major course work in criminal justice, police science, business or public administration, or a related field, and eight years of increasingly responsible law enforcement experience, including three years of management and administrative responsibility; or a combination of applicable education and law enforcement experience.

License or Certificate: Possession of an appropriate, valid driver's license. Possession of an appropriate, valid POST certificate.

(b) Assistant City Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, urban planning, or a related field. A Master's Degree is preferred.

Experience: Ten years of progressively responsible management, administrative, or staff experience in a business or organization including four years of department management experience.

License or Certificate: Possession of an appropriate, valid driver's license.

(c) Assistant Director of Development Services.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in urban planning, architecture, civil engineering, public administration, business administration, or a related field. A Master's Degree is desirable.

Experience: Eight years of increasingly responsible urban planning, civil engineering, or architecture experience, including three years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license. AICP certification, registration as a professional engineer, and/or registration as an architect is desirable.

(d) Assistant Director of Finance.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in finance, public administration, business administration or a related field.

Experience: Seven years of progressively responsible municipal finance experience including two years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(e) Assistant Director of Public Works.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in business administration, public administration, civil engineering, or a related field.

Experience: Seven years of increasingly responsible public works maintenance experience including four years of administrative and supervisory responsibility.

License or Certificate: Possession of an appropriate, valid driver's license. Possession of registration as a professional engineer in the State of Nevada is desirable.

(f) Assistant Director of Human Resources.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, human resources, or a related field.

Experience: Seven years of progressively responsible human resources experience including two years of public sector management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(g) Assistant Director of Utility Services.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in environmental engineering, civil engineering, or a related field.

Experience: Seven years of increasingly responsible civil or environmental engineering experience including four years of administrative and supervisory responsibility.

License or Certificate: Possession of an appropriate, valid driver's license. Possession of registration as a professional engineer in the State of Nevada or the ability to obtain one within six months of hire.

(h) Chief Equity and Community Relations Officer.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, sociology, public relations, communications, political science, project management, gender studies, or a related field. A Master's Degree is preferred.

Experience: Eight years of progressively responsible management/administrative analytical work experience including professional experience with cultural and social competency, program management, public outreach, diversity consulting, training, mediation, inclusion services, and/or working with diverse communities including three years of administrative and/or supervisory responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(i) Chief Innovation and Experience Officer.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, or a related field.

Experience: Eight years of increasingly responsible experience in program or project management, performance management, or business process improvement including three years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(j) Chief of Police.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in criminal justice, police science, business or public administration, or a related field.

Experience: Ten years of increasingly responsible law enforcement experience including five years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license. Possession of an appropriate, valid POST management certificate.

(k) Director of Business Licensing.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in accounting, business administration, public administration or a related field.

Experience: Ten years of increasingly responsible experience in accounting, business licensing and inspection experience including two years of administrative and supervisory responsibility; or any equivalent combination of training and experience.

License or Certificate: Possession of an appropriate, valid driver's license.

(l) Director of Communications.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, political science, public relations, marketing, journalism, or a related field.

Experience: Eight years of increasingly responsible community relations, public relations, or marketing experience including three years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(m) Director of Development Services.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in urban planning, architecture, civil engineering, public administration, business administration, or a related field. A Master's Degree is desirable.

Experience: Ten years of increasingly responsible urban planning, civil engineering, or architecture experience, including three years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license. AICP certification, registration as a professional engineer and/or registration as an architect is desirable.

(n) Director of Finance.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in finance, public administration, business administration, or a related field.

Experience: Ten years of increasingly responsible finance experience including three years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(o) Director of Housing and Neighborhood Development.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, housing, planning, economic development, project management, or a related field. A Master's Degree is preferred.

Experience: Ten years of progressively responsible experience in the area of housing, homeless services, or other related programs, including two years of administrative and/or supervisory responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(p) Director of Human Resources.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in personnel administration, business administration, public administration, or related field. A Master's Degree is desirable.

Experience: Ten years of increasingly responsible human resources experience including three years of public sector management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(q) Director of Information Technology.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in computer science, information systems, or a related field. A Master's Degree is desirable.

Experience: Ten years of increasingly responsible experience in information technology or systems management, including two years of administrative and supervisory responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(r) Director of Maintenance and Operations.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in engineering, construction management, public administration, or a closely related field.

Experience: Ten years of progressively responsible maintenance and operations of public infrastructure, public works, and/or engineering experience including three years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(s) Director of Parking and Code Enforcement.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, or a related field.

Experience: Five years of increasingly responsible code compliance/parking enforcement experience, including three years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(t) Director of Parks and Recreation.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in parks and recreation administration, public administration, or a related field.

Experience: Eight years of broad and extensive program experience in municipal recreation, leisure, senior services, and/or parks development and maintenance activities including three years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

National Recreation and Park Association Certified Park & Recreation Professional (CPRP) or Certified Park & Recreation Executive (CPRE).

(u) Director of Policy and Strategy.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, or a related field.

Experience: At least eight years of increasingly responsible experience in the analysis, design, implementation, and administration of long-range, far-reaching programs including three years of management and administrative responsibility. Experience in the coordination of work activities between varied organizational units is preferred.

License or Certificate: Possession of an appropriate, valid driver's license.

(v) Director of Public Safety Dispatch.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in business administration, public administration, or a related field.

Experience: Ten years of increasingly responsible experience in emergency communications or public safety dispatch including two years of administrative and supervisory responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

(w) Director of Public Works/City Engineer.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in civil, environmental, or traffic engineering or a related field.

Experience: Ten years of increasingly responsible public works and engineering experience including three years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license. Possession of registration as a Professional Engineer in the State of Nevada.

(x) Director of Utility Services.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in civil or environmental engineering or a related field.

Experience: Ten years of increasingly responsible water and wastewater resources management experience including capital projects, public utility, or public works; including three years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license. Possession of registration as a Professional Engineer in the State of Nevada.

(y) Fire Chief.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in fire science, public administration, business or organizational management or a related field.

Experience: Ten years of increasingly responsible fire service experience including three years of management and administrative responsibility.

License or Certificate: Possession of an appropriate, valid driver's license.

Preferred Qualifications: Graduation from the National Fire Academy's Executive Fire Officer Program or equivalent; Completion of an advanced management program; Professional management credential from a nationally recognized organization.

(z) Regional Infrastructure Administrator.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in urban planning, engineering, public administration, economics or a closely related field.

Experience: Ten years of progressively responsible experience in public administration that directly involved sewer or water resource and infrastructure management, and forecasting and analysis, including three years at the executive or department director level.

License or Certificate: Possession of an appropriate, valid driver's license.

Appointive Employees

(aa) Benefits Manager.

Education and Experience Guidelines - Any combination of education and experience that would likely provide the required knowledge and abilities is qualifying. A typical way to obtain the knowledge and abilities would be:

Education/Training: Bachelor's Degree from an accredited college or university in human resources, industrial relations, public administration, business administration, or a closely related field.

Experience: Five years of increasingly responsible administrative and professional analytical experience involving benefit administration.

License or Certificate: Possession of an appropriate, valid driver's license.

(bb) Building & Safety Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in building construction, engineering, architecture or a related field.

Experience: Six years of increasingly responsible plans examination, building construction and inspection experience including three years of administrative and supervisory responsibility in a building department preferred or an equivalent combination of training and experience.

License or Certificate: Possession of an appropriate, valid driver's license. ICC Certified Building Official.

(cc) Communications Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public relations, communications, journalism or a related field.

Experience: Four years of increasingly responsible experience in public relations, marketing, journalism, communications, media coverage or a related field.

License or Certificate: Possession of an appropriate, valid driver's license.

(dd) Community Relationships Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, or a field related to area of assignment.

Experience: Four years of increasingly responsible professional level administrative and community relations experience preferably within a local government environment, including one year in a supervisory capacity.

License or Certificate: Possession of an appropriate, valid driver's license.

(ee) Council Relations Manager.

Education/Training: Equivalent to completion of the twelfth grade supplemented by specialized business or administrative training. Additional specialized or college level coursework in business administration, office management, public administration or a related field is highly desirable.

Experience: Five years of increasingly responsible office administrative and secretarial experience that includes one year in a supervisory capacity. Experience in a municipal government is highly desirable.

License or Certificate: Possession of an appropriate, valid driver's license.

(ff) Council Relations Specialist.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in marketing, public relations, communications, journalism, public administration, or a related field.

Experience: Two years of increasingly responsible experience in public communications, community relations, or neighborhood services programs.

License or Certificate: Possession of an appropriate, valid driver's license.

(gg) Digital Experience Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in communication, public administration, marketing, journalism, or a related field. Formal training in graphic design is highly desirable. Knowledge and experience to expertly manipulate Adobe CS6.

Experience: Four years of increasingly responsible experience in leadership, communications, project management, public relations, website development, and social marketing.

License or Certificate: Possession of an appropriate, valid driver's license.

(hh) Employee Relations Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in personnel administration, labor relations, public administration, business administration, or a related field.

Experience: Five years of increasingly responsible employee or labor relations experience including experience in employment hearings, grievance hearings, arbitrations, impasse procedures, and/or experience with labor associations OR an equivalent combination of education and experience.

License or Certificate: Possession of an appropriate, valid driver's license.

(ii) Executive Assistant.

Education/Training: Equivalent to the completion of the twelfth grade, supplemented by specialized clerical support training. College level coursework in business administration, computer science or a related field is desirable.

Experience: Two years of increasingly responsible general office support and clerical experience.

License or Certificate: Possession of a valid driver's license.

(jj) Executive Assistant to the City Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, or a related field. A Master's Degree is highly desirable.

Experience: Three years of increasingly responsible professional level administrative and management analysis experience within a local government environment.

License or Certificate: Possession of an appropriate, valid driver's license.

(kk) Government Affairs Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, industrial relations, or a related field. A Master's or Juris Doctorate Degree is preferred.

Experience: Five years of progressively responsible experience in state or local government relations.

License or Certificate: Possession of an appropriate, valid driver's license. Registered Lobbyist with the State of Nevada.

(ll) Internal Auditor.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in business administration, accounting, finance, management, public administration, or a related field.

Experience: Five years of increasingly responsible auditing experience including responsibility for management, organizational, and performance analysis. Experience in a public sector organization is preferred.

License or Certificate: Possession of an appropriate, valid driver's license. Possession of certification as a Certified Public Accountant (CPA), Certified Internal Auditor (CIA), or Certified Information Systems Auditor (CISA).

(mm) Labor Relations Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in personnel administration, labor relations, public administration, business administration, or a related field.

Experience: Three years of increasingly responsible labor relations experience including experience in labor board hearings, grievance hearings, arbitrations, impasse procedures, and collective bargaining negotiations.

License or Certificate: Possession of an appropriate, valid driver's license.

(nn) Management Analyst - City Manager's Office.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, or a field related to area of assignment.

Experience: Two years of responsible professional level administrative and management analysis experience.

License or Certificate: Possession of an appropriate, valid driver's license.

(oo) Mayoral Relations Administrator.

Education/Training: Equivalent to completion of the twelfth grade supplemented by specialized business or administrative training. Additional specialized or college level course work in business administration, office management, public administration or a related field is highly desirable.

Experience: Five years of increasingly responsible office administrative and secretarial experience that includes two years at an executive level. Experience in a municipal government is highly desirable.

License or Certificate: Possession of an appropriate, valid driver's license.

(pp) Organizational Development Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, human resources, organizational development, psychology, education, or a related field. A Master's Degree is desirable.

Experience: Five years of increasingly responsible experience administering employee training and development programs.

License or Certificate: Possession of an appropriate, valid driver's license.

(qq) Payroll Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, accounting, finance, economics, statistics, or a closely related field. A Master's Degree is highly desirable.

Experience: Three years of increasingly responsible professional level payroll management experience, preferably within a local government environment.

License or Certificate: Possession of an appropriate, valid driver's license.

(rr) Planning Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in urban/regional planning or a related field.

Experience: Four years of increasingly responsible professional urban planning experience including one year of administrative or lead supervisory responsibility.

License or Certificate: Possession of an appropriate, valid driver's license. Possession of AICP certification from the American Planning Association is desirable.

(ss) Public Communications Specialist.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public relations, communications, journalism or a related field.

Experience: Four years of increasingly responsible experience in public relations, marketing, journalism, communications, media coverage or a related field.

License or Certificate: Possession of an appropriate, valid driver's license.

(tt) Revitalization Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, finance, economic development, planning, or a related field. A Master's Degree is preferred.

Experience: Four years of increasingly responsible experience in economic development, redevelopment, planning, land development, code enforcement, program administration or related field. Public sector operations and administration experience preferred.

License or Certificate: Possession of an appropriate, valid driver's license.

(uu) Risk Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in business administration, public administration, or a related field.

Experience: Five years of increasingly responsible experience working in a risk management program including experience for analyzing risk exposures and developing and implementing appropriate risk management responses.

License or Certificate: Possession of an appropriate, valid driver's license.

(vv) Senior Administrative Assistant.

Education/Training: Equivalent to the completion of the twelfth grade supplemented by specialized secretarial training. Additional specialized or college level course work in business administration, office management, or a related field is highly desirable.

Experience: Four years of increasingly responsible office administrative and secretarial experience. Experience in a municipal government is highly desirable.

License or Certificate: Possession of an appropriate, valid driver's license.

(ww) Senior Management Analyst.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in public administration, business administration, or a field related to area of assignment. A Master's Degree is highly desirable.

Experience: Three years of increasingly responsible professional level administrative and management analysis experience preferably within a local government environment.

License or Certificate: Possession of an appropriate, valid driver's license.

(xx) Special Events Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in tourism/recreation administration, marketing, business administration, or a related field with a specialization in event management preferred. A Master's Degree is preferred.

Experience: Five years of increasingly responsible experience planning, organizing, and overseeing large special events.

License or Certificate: Possession of an appropriate, valid driver's license. Possession of certified festival and event executive status is desirable.

(yy) Strategic Initiatives Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in business administration, public administration, or a related field.

Experience: Five years of increasingly responsible strategic planning experience including experience in local government.

License or Certificate: Possession of an appropriate, valid driver's license.

(zz) Sustainability Manager.

Education/Training: A Bachelor's Degree from an accredited college or university with major course work in environmental science, environmental engineering, or closely related field. A Master's Degree is preferred.

Experience: Five years of progressively responsible experience administering environmental programs.

License or Certificate: Possession of an appropriate, valid driver's license. Registration as a Certified Energy Manager is preferred.

(aaa) Urban Economist.

Education/Training: A Bachelor's Degree from an accredited college or university in mathematics, economics, statistics, urban planning, public administration, public policy, political science, or a closely related field. Master's Degree is preferred.

Experience: Four years of experience performing increasingly responsible statistical, economic and/or policy analysis and evaluation.

License or Certificate: Possession of an appropriate, valid driver's license.

(Ord. No. 3703, § 1, 7-11-88; Ord. No. 3753, § 1, 12-12-88; Ord. No. 3869, § 2, 10-9-89; Ord. No. 4306, § 2, 4-13-93; Ord. No. 4544, § 2, 8-8-95; Ord. No. 4637, § 2, 6-25-96; Ord. No. 4687, § 2, 11-12-96; Ord. No. 5931, § 3, 6-13-07; Ord. No. 6333, § 4, 5-28-14, eff. 7-1-14; Ord. No. 6376, § 3, 9-23-15, eff. 10-1-15; Ord. No. 6485, § 2, 10-24-18); Ord. No. 6560, § 1, 4-8-20; Ord. No. 6662, § 1, 9-13-23)

Sec. 2.06.055. Existing and successor appointees.

If any existing appointive officers and/or appointive employees do not substantially meet the qualifications to hold such a position at the time of the adoption of this ordinance, the City Manager may retain such individuals in those existing appointive positions. Provided, however, that when those individuals no longer hold the existing appointive position, the City Manager shall appoint a successor appointee who satisfies the qualifications set forth in R.M.C. Sec. 2.06.050.

(Ord. No. 6333, § 5, 5-28-14, eff. 7-1-14)

ARTICLE III. POLICE DEPARTMENT*

Sec. 2.06.060. Property in custody of police.

(a) Any person having property in the custody of the police department which was confiscated in connection with a case, shall be entitled to the restoration of the property upon the disposition of the case. Any and all property not claimed by its rightful owner or his duly constituted agent or other person entitled to the same by law within 90 days after the disposition of the case shall become the property of the city and shall be disposed of in accordance with the provisions of subsection (c).

(b) Any and all property turned over to the custody of the police department by one who has found property apparently lost or abandoned by its owner must be claimed by its rightful owner or his duly constituted agent within 90 days of receipt thereof by the police department. If the property is not claimed within this time periods the finder of the property may claim it within ten days after the expiration of the 90-day period.

(c) If neither the owner, his duly constituted agent or the finder claim the property within the time periods set forth in subsection (b), the property shall become the property of the city and shall be disposed of as follows: All moneys shall be forfeited to the city; all other property shall be auctioned publicly, retained for use by the city, sold to another law enforcement agency, or destroyed in a manner determined by the chief of police. All property not disposed of in any of these manners shall, at the discretion of the chief of police, be donated to a charitable institution.

(d) A written inventory shall be made by the police department on forms to be specified by the chief of police of the contents of each and every motor vehicle legally impounded by the city. Such inventory shall include the motor vehicle itself, the motor vehicle′s equipment, and any personal property within the motor vehicle. Upon completion of the inventory, the inventory form shall be filed at the police department and shall be open for inspection by the registered owner of the impounded motor vehicle or the driver of the motor vehicle at the time of its impoundment.

(Code 1966, § 11.12.001; Ord. No. 2800, § 1, 1-14-80)

ARTICLE IV. RESERVED†

***Cross references—**Licensing and regulation of process servers, polygraph operators, repossessors, canine security handlers, trainers, private security patrols and watchmen, and private detectives and detective agencies, Ch. 4.46; vehicle and traffic, Tit. 6; public peace, safety, and morals, Tit. 8.

†Editor's note—Ord. No. 6459, § 1, adopted Apr. 11, 2018, repealed art. IV, §§ 2.06.070—2.06.120, which pertained to downtown police special assessment district and derived from Ord. No. 4503, § 1, adopted Apr. 25 1995; Ord. No. 4749, § 1, adopted May 20, 1997; Ord. No. 5467, § 1, adopted June 25, 2003; Ord. No. 5812, § 1, Mar. 22, 2006; Ord. No. 6325, §§ 1, 2, adopted Apr. 16, 2014; and Ord. No. 6369, § 1, adopted June 10, 2015.

ARTICLE V. DEPARTMENT OF ALTERNATIVE SENTENCING

Sec. 2.06.130. Purpose.

There shall be and hereby is created a department of alternative sentencing, pursuant to NRS 211A.010 to 211A.140, inclusive, to provide for the supervision of misdemeanants who have received a suspended sentence usually conditioned on the completion of counseling, restitution or community service.

(Ord. No. 6165, § 1, 10-13-10)

Sec. 2.06.140. Definitions.

Unless the context otherwise requires, the words and terms used in this article shall have the meanings ascribed to them in NRS 211A.010 to 211A.070, as amended.

(Ord. No. 6165, § 1, 10-13-10)

Sec. 2.06.150. Duties of department.

The department shall:

(a) Supervise a probationer, who as a condition of a suspended sentence or a sentence to residential confinement, is released under the supervision of the department by the court.

(b) At the time a probationer is released under the supervision of the department:

(1) Provide the probationer with a written statement describing the terms or conditions of the suspended sentence or residential confinement imposed by the court; and

(2) Explain the terms or conditions to the probationer.

(c) Be knowledgeable about the conduct and activities of each probationer under the supervision of the department.

(d) Use all reasonable methods to assist a probationer under the supervision of the department to improve his or her conduct and comply with the terms or conditions of his or her suspended sentence or residential confinement.

(e) Collect and disburse any money in accordance with the orders of the court and make a written record of any money so collected or disbursed.

(f) Cooperate with and assist any agency of law enforcement and any agency providing social services as requested by the court, or as necessary to fulfill the duties of the department.

(Ord. No. 6165, § 1, 10-13-10)

Sec. 2.06.160. Qualifications of chief; removal.

(a) The chief:

(1) Must be appointed by the action of a majority of the city council from a list of candidates provided by the judges of the Reno Municipal Court.

(2) Must have at least five years of experience, with an increasing level of responsibility, in the field of law enforcement, corrections or supervision of persons on probation or parole.

(3) Is an at will employee in the unclassified service of the city, directly reporting to the court administrator and serving at the pleasure of the court.

(b) The court administrator may remove the chief or any assistants.

(Ord. No. 6165, § 1, 10-13-10)

Sec. 2.06.170. Duties of chief.

The chief shall:

(a) Hire assistant alternative sentencing officers and other employees as necessary to carry out the responsibilities of the department within the limitations of appropriations to the department by the city council.

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(b) Direct the work of all assistants and employees.

(c) Be responsible for the fiscal affairs of the department.

(d) Be responsible for the completion of any report regarding an investigation or the supervision of a probationer and any report requested by the court or the city council.

(e) After reviewing and considering recognized correctional programs and courses for training correctional staff, develop and provide to assistants and other employees training in methods and policies regarding the investigation and supervision of probationers, the recordkeeping of the department and the reporting on matters relating to probationers.

(f) Submit a written report, on or before January 31 of each year, to the city council and to each court having jurisdiction over a probationer under the chief's supervision, setting forth in detail the activities of the department during the previous calendar year. The report must include statistical data concerning the department's activities and operations and the probationers who were under the supervision of the department during that period.

(g) Advise the court of any probationer who has violated the terms or conditions of his or her suspended sentence or residential confinement.

(Ord. No. 6165, § 1, 10-13-10)

Sec. 2.06.180. Duties of assistant.

An assistant shall:

(a) Maintain detailed written records of his or her daily work;

(b) Make any report as required by the court or the chief; and

(c) Carry out any duty of the department as assigned by the chief.

(Ord. No. 6165, § 1, 10-13-10)

Sec. 2.06.190. Arrest of probationer.

(a) The chief or an assistant may arrest a probationer without a warrant if there is probable cause to believe that the probationer has committed an act that constitutes a violation of a condition of his or her suspended sentence or residential confinement.

(b) Any other peace officer may arrest a probationer upon receipt of a written order by a chief or an assistant stating that there is probable cause to believe that a probationer has committed an act that constitutes a violation of a condition of his or her suspended sentence or residential confinement.

(c) After making an arrest, the chief, assistant or other peace officer shall immediately notify the sentencing court of the arrest of the probationer and shall submit a written report setting forth the act that constituted a violation of a condition of the suspended sentence or residential confinement of the probationer.

(d) A chief, an assistant or another peace officer may immediately release from custody without any further proceedings any probationer arrested without a warrant pursuant to this section if the chief, assistant or other peace officer determines that there is not probable cause to believe that the person violated the condition of his or her suspended sentence or residential confinement.

(Ord. No. 6165, § 1, 10-13-10)

Sec. 2.06.195. Violation of condition of suspended sentence by probationer.

(a) If a probationer has violated a condition of his or her suspended sentence, the court may, upon its own motion or upon the report and recommendation of the chief or an assistant, do any or all of the following:

(1) Modify the conditions of the suspension of the sentence.

(2) Modify and extend the suspension of the sentence, in whole or in part, for a period of not more than one year after the date on which the court finds that the probationer has committed the violation, unless a longer period is authorized by specific statute.

(3) Revoke the suspension of the sentence, in whole or in part, and cause all or part of the sentence to be executed.

(b) Before taking any action described in subsection (a), the court shall provide the probationer with notice of the proposed action and an opportunity to be heard.

(Ord. No. 6190, § 1, 6-22-11)

Sec. 2.06.200. Fees for cost of supervision; imposition; waiver or reduction.

(a) The city council shall adopt a schedule of fees to be imposed on probationers to defray the cost of the supervision of a probationer. The schedule adopted must provide for a monthly fee of not less than $20.00 for the supervision of a probationer.

(b) Except as otherwise provided in subsection (c):

(1) The department shall charge each probationer the fee set forth in the schedule adopted pursuant to subsection (a).

(2) Payment of the required fee by the probationer is a condition of his or her suspended sentence or residential confinement.

(c) If the chief determines that payment of the fee would result in economic hardship to a probationer, the chief may waive the imposition of, or reduce the amount of, the fee. If the chief waives the imposition of the fee, payment of the fee by the probationer does not constitute a condition of his or her suspended sentence or residential confinement.

(Ord. No. 6165, § 1, 10-13-10)

Sec. 2.06.210. Disclosure of information obtained in discharge of duties prohibited; exceptions.

(a) Except as otherwise provided in NRS 239.0115, any information regarding a probationer obtained by the chief, an assistant or other employee of the department in the discharge of his or her duties shall be deemed confidential. Except as otherwise provided in subsection (b), the chief, an assistant or other employee of the department shall not disclose such information.

(b) The chief, an assistant or other employee of the department shall disclose information obtained in the discharge of his or her duties to the court or the district attorney upon request, or to any other person as ordered by the court or as provided by law.

(Ord. No. 6165, § 1, 10-13-10)

CHAPTER 2.08. BOARDS AND COMMISSIONS

Art. I. In General

Sec. 2.08.010. City ledgers created.

Art. II. Reserved

Secs. 2.08.020—2.08.090. Reserved.

Art. III. Reserved

Secs. 2.08.100—2.08.180. Reserved.

Art. IV. Reserved

Secs. 2.08.190—2.08.220. Reserved.

Art. V. Reserved

Secs. 2.08.230—2.08.310. Reserved.

Art. VI. Reserved

Secs. 2.08.320—2.08.370. Reserved.

Art. VII. Reserved

Secs. 2.08.380—2.08.476. Reserved.

Art. VIII. Reserved

Secs. 2.08.480—2.08.555. Reserved.

Art. IX. Reserved

Secs. 2.08.560—2.08.650. Reserved.

Art. X. Reserved

Secs. 2.08.660—2.08.750. Reserved.

Art XI. Reserved

Secs. 2.08.760—2.08.830. Reserved.

Art. XII. Reserved

Secs. 2.08.840—2.08.920. Reserved

Art. XIII. Reserved

Secs. 2.08.930—2.08.1000. Reserved.

Art. XIV. Reserved

Secs. 2.08.1010—2.08.1150. Reserved.

ARTICLE I. IN GENERAL

Sec. 2.08.010. City ledgers created.

(a) There are established in the city clerk's office, ledgers listing all of the city's boards and commissions authorized by the city council. Each ledger shall indicate the date and authority by which the board or commission was created, its purpose, membership and term, duties, rules and record of its proceedings when appropriate.

(b) The city manager's office shall keep the city council apprised of any vacancies occurring within City boards and commissions.

(c) The city council may establish such other boards and commissions that may be deemed necessary for the good government of the City. The city boards and commissions ledgers shall reflect all such amendments, additions, deletions or corrections.

(Ord. No. 6717, § 1, 8-27-25)

ARTICLE II. RESERVED*

Secs. 2.08.020—2.08.090. Reserved.

ARTICLE III. RESERVED†

Secs. 2.08.100—2.08.180. Reserved.

ARTICLE IV. RESERVED‡

Secs. 2.08.190—2.08.220. Reserved.

ARTICLE V. RESERVED**

Secs. 2.08.230—2.08.310. Reserved

***Editor's note—**Ord. No. 6721, § 1, adopted August 27, 2025, repealed Art. II, §§ 2.08.020—2.08.090, which pertained to Recreation and Parks Commission and derived from Ord. No. 5606, § 1, adopted October 13, 2004; Ord. No. 5921, § 1, adopted April 25, 2007; Ord. No. 6540, § 1, adopted January 22, 2020.

†Editor's note—Ord. No. 5041, § 1, adopted Sept. 14, 1999, repealed Art. III, §§ 2.08.090—2.08.180, which pertained to citizens' policy planning advisory commission on city-wide urban development. See the Code Comparative Table.

‡Editor's note—Ord. No. 4007, § 1, adopted September 11, 1990, repealed Art. IV, §§ 2.08.190—2.08.220, in its entirety. Former Art. IV, salary review commission, derived from Ord. No. 3784, § 1, adopted March 27, 1989.

****Editor's note—**Ord. No. 5043, § 1, adopted Sept. 14, 1999, repealed Art. V, §§ 2.08.230—2.08.310, which pertained to the commission on the status of women. See the Code Comparative Table.

ARTICLE VI. RESERVED*

Secs. 2.08.320—2.08.370. Reserved

ARTICLE VII. RESERVED†

Secs. 2.08.380—2.08.476. Reserved.

Editor's note—Ord. No. 4859, § 1, adopted April 14, 1998, repealed § 2.08.476, which pertained to subcommittees. See the Code Comparative Table.

ARTICLE VIII. RESERVED‡

Secs. 2.08.480—2.08.555. Reserved.

ARTICLE IX. RESERVED**

Secs. 2.08.560—2.08.650. Reserved.

ARTICLE X. RESERVED††

Secs. 2.08.660—2.08.750. Reserved.

ARTICLE XI. RESERVED‡‡

Secs. 2.08.760—2.08.830. Reserved.

***Editor's note—**Ord. No. 5042, § 1, adopted Sept. 14, 1999, repealed Art. VI, §§ 2.08.320—2.08.370, which pertained to the deferred compensation advisory committee. See the Code Comparative Table.

†Editor's note—Ord. No. 6720, § 1, adopted August 27, 2025, repealed Art. VII, §§ 2.08.380—2.08.474, which pertained to Financial Advisory Board and derived from Ord. No. 3850, § 1, adopted Aug. 14, 1989; Ord. No. 6372, § 1, adopted Aug. 12, 2015; Ord. No. 6647, § 1, adopted Feb. 8, 2023.

‡Editor's note—Ord. No. 6724, § 1, adopted August 27, 2025, repealed Art. VIII, §§ 2.08.480—2.08.555, which pertained to Youth City Council and derived from Ord. No. 3988, § 1, adopted Aug. 14, 1990; Ord. No. 4138, § 1, adopted Sept. 27, 1991; Ord. No. 4203, §§ 1, 2, adopted April 14, 1992; Ord. No. 5055, § 1, adopted Oct. 12, 1999; Ord. No. 5324, § 1, adopted April 23, 2002; Ord. No. 5510, § 1, adopted Nov. 5, 2003; Ord. No. 6525, § 1, adopted Sept. 11, 2019.

****Editor's note—**Ord. No. 4497, § 1, adopted April 11, 1995, repealed Art. IX, §§ 2.08.560—2.08.650, which pertained to the neighborhood council for the Northwest Reno Area. See the Code Comparative Table.

††Editor's note—Ord. No. 6722, § 1, adopted August 27, 2025, repealed Art. X, §§ 2.08.660—2.08.730, which pertained to Senior Citizen Advisory Committee and derived from Ord. No. 5615, § 1, adopted Oct. 27, 2004.

‡‡Editor's note—Ord. No. 6719, § 1, adopted August 27, 2025, repealed Art. XI, §§ 2.08.760—2.08.830, which pertained to City of Reno Arts and Culture Commission and derived from Ord. No. 4023, § 1, adopted Nov. 27, 1990; Ord. No. 4945, § 1, adopted Jan. 12, 1999; Ord. No. 5166, § 1, adopted Aug. 1, 2000; Ord. No. 6416, § 1, adopted Oct. 12, 2016.

ARTICLE XII. RESERVED*

Secs. 2.08.840—2.08.920. Reserved.

ARTICLE XIII. RESERVED†

Secs. 2.08.930—2.08.1000. Reserved.

ARTICLE XIV. RESERVED‡

Secs. 2.08.1010—2.08.1150. Reserved.

***Editor's note—**Ord. No. 6718, § 1, adopted August 27, 2025, repealed Art. XII, §§ 2.08.840—2.08.920, which pertained to Access Advisory Committee and derived from Ord. No. 4096, § 1, adopted April 23, 1991; Ord. No. 4378, § 1, adopted April 26, 1994.

†Editor's note—Ord. No. 6723, § 1, adopted August 27, 2025, repealed Art. XIII, §§ 2.08.930—2.08.1000, which pertained to Urban Forestry Commission and derived from Ord. No. 4195, § 1, adopted March 10, 1992; Ord. No. 4918, § 1, adopted Oct. 13, 1998; Ord. No. 6520, § 1, adopted July 24, 2019.

‡Editor's note—Ord. No. 5945, § 2, adopted June 27, 2007, repealed Art. XIV, §§ 2.08.1010—2.08.1150, which pertained to the board of massage examiners. See also the Administrative Code Comparative Table.

CHAPTER 2.10. FINANCES*

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State law references—Municipal finances, NRS 268.020 et seq.; Local Government Budget and Finance Act, NRS 354.472 et seq.; municipal obligations, NRS 350.0015 et seq.; City Bond Law, NRS 268.672 et seq.

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ARTICLE I. IN GENERAL (RESERVED)

ARTICLE II. FISCAL CONTROL*

Sec. 2.10.010. Fiscal year.

The fiscal year for the city shall commence on the first day of July of each year.

(Code 1966, § 2.44.010)

Sec. 2.10.020. Purchasing manager.

The purchasing manager shall establish adequate systems of internal checks of all departments, commissions and offices of the city relative to the procurement of and custody of all purchased materials and supplies.

(Code 1966, § 2.44.020; Ord. No. 2892, § 1, 8-11-80)

Sec. 2.10.030. Finance director to keep accounts.

The finance director shall establish and keep appropriate accounts showing the financial transactions of all departments, divisions of departments, commissions and offices of the city. Such accounts and the accounting procedures employed in connection therewith shall be adequate to record:

(1) All budgeted appropriations, together with any additions or transfers thereto or therefrom, and the amount of encumbrances, expenditures or transfers therefrom, and the balances thereof at all times;

(2) All revenues accrued and liabilities incurred, and all cash receipts and disbursements.

(Code 1966, § 2.44.030; Ord. No. 2892, § 1, 8-11-80)

Sec. 2.10.040. Monthly reports.

On or before the fifteenth day of each month the finance director shall prepare interim financial statements and reports of financial position, operating results and other pertinent information to facilitate management control of financial operations, legislative oversight, and, where necessary or desired, for external reporting purposes. The least that the monthly financial statements and reports shall reflect is the current financial position through the date of the report and compare actual financial results with budgetary estimates and limitations for the month and for the year to date. The reports shall be furnished to the city manager and each member of the city council.

(Code 1966, § 2.44.040; Ord. No. 2892, § 1, 8-11-80)

***State law reference—**Local Government Purchasing Act, NRS 332.005 et seq.

Sec. 2.10.050. Estimates of expenditures and revenue required.

All offices, departments, boards, commissions and other spending agencies of the city shall prepare and submit to the city manager as required by a calendar prepared by the city manager, estimates of their expenditure requirements and their estimated revenues for the ensuing

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budget year. The estimates of expenditures shall be classified so as to set forth the data by funds, functions, activities and subactivities. The revenue estimates shall be classified as to funds and sources of revenue.

(Code 1966, § 2.44.050; Ord. No. 2892, § 1, 8-11-80)

Sec. 2.10.060. Bid procedures on city purchases.

Except as otherwise provided by law, all purchases of goods or services of every kind or description shall be made in the manner provided for by Nevada Revised Statutes, Chapter 332, entitled Local Government Purchasing Act.

(Code 1966, § 2.44.060; Ord. No. 2892, § 1, 8-11-80)

Sec. 2.10.070. Emergency expenditures and transfer of funds, authority.

(a) In cases of emergency caused by act of God or the public enemy, or some contingency which could not have been foreseen at the time of adoption of the budget, the city council may authorize the expenditure of funds in excess of such budget, by resolution duly adopted by a two-thirds vote of the city council in office at the time the vote is taken. Such resolution shall set forth in full the facts concerning such emergency.

(b) In cases of emergency caused by act of God or the public enemy, or some other contingency which could not have been foreseen at the time of adoption of the budget, the city council may authorize, in accordance with law, the transfer of funds within the budget to meet such contingency. In the event such emergency requires a resolution authorizing the transfer of monies between funds within the budget, such resolution shall set forth in full the facts concerning the emergency. Due notice of the ordinance shall be given in accordance with statutory law.

(Code 1966, § 2.44.100; Ord. No. 2892, § 1, 8-11-80)

Sec. 2.10.080. Submission of bills.

All bills for goods or services furnished to the city pursuant to purchase order shall be submitted by the vendor or supplier thereof to the finance director. Each such bill shall be approved by the finance director, who shall cause the prices, quantities, extensions and footing thereon to be verified and who shall attach thereto a "materials received" report from the department, office or commission receiving such goods or services. Each such "materials received" report shall bear the written approval of the head of the department, office or commission or other authorized person.

(Code 1966, § 2.44.110; Ord. No. 2892, § 1, 8-11-80)

Sec. 2.10.090. Proposed budget, submission, city manager authority; summary statement.

The city manager shall submit the proposed budget in accordance with calendar developed to conform to the submission dates established by Nevada Revised Statutes to file the proposed budget to the Department of Taxation, State of Nevada. The city manager shall consolidate such budget estimates and transmit copies to the mayor and each member of the city council.

Included shall be a summary statement of appropriations proposed of each department, commission and office for the current year, which statement shall reflect the cash position of each fund and the unencumbered balance of the appropriations of each fund.

(Code 1966, § 2.44.140; Ord. No. 2892, § 1, 8-11-80)

Sec. 2.10.100. Notice and public hearing, taxpayer right to protest.

As required by Nevada Revised Statutes a notice shall be given for public hearing on the proposed budget subsequent to review by the city council. Any taxpayer of the city shall have the right to file or register a protest with the city council prior to the time of the adoption of the budget.

(Ord. No. 2892, § 1, 8-11-80)

Sec. 2.10.110. City clerk to collect funds and deposit the in appropriate accounts.

The city clerk shall collect and receive all funds and receipts paid into the city, except taxes and special assessments, and shall deposit said funds and receipts in the appropriate city accounts, in a bank or banks designated by the city council, and he must make a daily report to the finance director of monies received by him and deposits made by him not later than noon of the subsequent business day; the reports to be supported by duplicate bank deposit receipt and such other evidence or receipts as may be required.

(Code 1966, § 2.44.150; Ord. No. 2892, § 1, 8-11-80)

Sec. 2.10.120. Interest charge on accounts receivable.

The city clerk shall charge interest at the legal rate of interest on all accounts receivable of the City of Reno that are 30 days in arrears.

(Ord. No. 3429, § 1, 10-13-86)

Sec. 2.10.130. Reserved.

Editor's note—Ord. No. 3701, § 1, adopted July 11, 1988, repealed § 2.10.130, concerning the disbursement manager, as derived from Ord. No. 3645, § 1, adopted Feb. 22, 1988.

ARTICLE III. ROOM TAXES*

Sec. 2.10.200. Tax imposed.

(a) *Amount of tax.* There is fixed and imposed a license tax for revenue on each operator of transient lodging in the city in the amount of one percent of the gross receipts derived by each operator from the renting of transient lodging within the city limits. There will be a transient lodging tax for revenue on each operator of transient lodging in the amount of one percent of the gross receipts derived by each operator from the renting of transient lodging within the Assessment District created on April 4, 1995 to defray the cost of additional police protection beginning January 1, 1999. Additionally there will be a transient lodging tax for revenue on each operator of transient lodging in the amount of one and one-half percent of the gross receipts derived by each operator from the renting of transient lodging

***State law reference—**Tax on revenue from rental of transient lodging, NRS 268.804 et seq.

within the area determined by the city council on October 9, 2001 to specially benefit from the capital improvements projects to be financed by bonds issued by the Reno Redevelopment Agency.

(b) *Penalty and interest.* If the transient lodging tax imposed by subsection (a) is not paid prior to becoming delinquent, the Reno-Sparks Convention and Visitors Authority ("authority") shall charge and collect in addition to the tax:

(1) A penalty of ten percent of the amount due, exclusive of interest, or an administrative fee of $100.00, whichever is greater; and

(2) Interest on the amount due at the rate of one and one-half percent per month or fraction thereof from the date on which the tax became due until the date of payment.

(c) *Definitions.*

(1) *"Authority"* means the Reno-Sparks Convention and Visitors Authority.

(2) *"Gross receipts"* means the total actual charges for transient lodging received by operators for the reporting period. This includes, but is not limited to, actual rent payments or consideration received by an operator in money, cash-value player points, trade or barter, property or other consideration valued in money for lodgings, any forfeited deposits, cancellation fees and no-show charges received by operators from transient guests, the prorated lodging portion of package programs, commissions, and all other revenues and fees received by operators and associated with the rental of transient lodging as provided in the regulations promulgated by the authority. Gross receipts do not include the amount of the transient lodging tax imposed pursuant to statute or ordinance, whether billed to the transient guest as transient lodging tax or not.

(3) *"Occupancy"* means the use or possession, or the right to the use or possession of any room or portion thereof, in transient lodging for dwelling, lodging, or sleeping purposes.

(4) *"Occupant"* means any natural person who, for rent or consideration, uses, possesses or has the right to use or possess any room in a transient lodging facility under any lease, concession, permit, right of access, license, contract or agreement.

(5) *"Operator"* means the person who is the proprietor of transient lodging, whether in the capacity of owner, lessee, sub-lessee, mortgagee, licensee, realtor, real estate agency renting transient lodging, on-line discount booking agency, exchange company or any other capacity. Where the operator performs his or her functions through a managing agent of any type or character other than an employee, the managing agency shall also be deemed an operator for the purposes of this chapter and shall have the same duties and liabilities as his or her principal. Compliance with the provisions of this chapter by either the principal or the managing agent shall, however, be considered to be compliance by both.

(6) *"Transient guest"* means any individual occupant who has or shall have the right of occupancy to any room for dwelling, lodging or sleeping purposes in a transient lodging facility for less than 28 consecutive days.

(7) *"Transient lodging"* means any facility, structure, or portion thereof occupied or intended or designed for occupancy by transient guests who pay rent or other consideration for dwelling, lodging, or sleeping purposes, and includes, without limitation, any hotel, resort hotel, motel, motor court, motor lodge, bed and breakfast,

lodging house, rooming house, resident hotel and motel, guest house, tourist camp, resort and "dude" ranch, cabin, condominium, timeshare properties, vacation home, apartment house, recreational vehicle park/campground, guest ranch, or other similar structure or facility, or portion thereof. The term "transient lodging" does not include any of the following: any hospital, sanitarium, medical clinic, convalescent home, nursing home, home for aged people, foster home, or other similar facility operated for the care or treatment of human beings; any asylum, jail, prison, orphanage or other facility in which human beings are being detained and housed under legal restraint; and housing owned or controlled by an educational institution and used exclusively to house students, faculty or other employees, and any fraternity or sorority house or similar facility occupied exclusively by students and employees of such educational institution, and officially recognized by it; any housing operated or used exclusively for religious, charitable or educational purposes by any organization having qualifications for exemption from property taxes under the laws of the state; any housing owned by a governmental agency and used to house its employees for governmental purposes; any room within a private dwelling house or other single-family dwelling unit if the permanent or principal owner also resides in and occupies the dwelling; any unit within a time-share project occupied by an owner, or the nonpaying guests of an owner, of a time-share in the time-share project, or in the time-share plan of which the time-share project is a part, who has the right to use or occupy a unit, pursuant to (a) a time-share instrument or (b) a time-share exchange program. The burden of establishing that the housing or facility is not transient lodging as defined herein shall be on the owner thereof, who shall file with the tax administrator such information as the tax administrator may require to establish and maintain such status.

(8) *"Transient lodging tax"* means the license tax or taxes levied pursuant to NRS 244.3351 to NRS 244.3359 of the County Tax Act and NRS 268.096 to NRS 268.0968 of the City Tax Act and heretofore, hereby or hereafter any other license tax or taxes appropriated or assigned by the county or city levying, fixing or imposing the same for administration by the recreation board.

(Ord. No. 4921, § 1, 10-27-98; Ord. No. 5271, § 1, 10-9-01; Ord. No. 5985, § 1, 11-28-07; Ord. No. 6336, § 1, 6-25-14)

Sec. 2.10.210. License required.

It shall be unlawful for a person, either for himself or for another person, to commence or conduct the rental of transient lodging without having first obtained the license required by this article from the authority. The act of conducting the rental of transient lodging subject to the requirements of this article without first having procured the license required herein constitutes a separate and distinct violation for each day that such business is so conducted. The authority shall issue a written license to each operator in such a form as the authority may prescribe, upon the operator's application therefore.

(Ord. No. 4921, § 1, 10-27-98; Ord. No. 5985, § 1, 11-28-07)

Sec. 2.10.220. Exemption—Length of residence.

(a) There is hereby exempted from the transient lodging tax fixed and imposed by this article each rental by any operator of transient lodging for a period of 28 consecutive days or

more. Except as otherwise provided herein, no rental shall be deemed to have been made for a period of 28 days or more unless the room or rooms rented to the occupant are paid for at least such a period in advance, and continuously occupied by the occupant for the entire period of 28 days without any termination of the tenancy or any portion of the advance rental refunded to the occupant

(b) An operator is entitled to an exemption for any occupant who is a natural person, that signs a contract, lease, or other written rental agreement, to stay at that transient lodging facility for a period of at least 28 days. This exemption may be used at the operator's discretion. If the occupant does not honor the contract, lease or other written rental agreement and leaves before staying at least 28 days, the operator will owe the transient lodging tax for the period the room was occupied.

(c) An operator classified by the authority as a 28-day rental (property that derives at least one-third of its annual gross income from 28-day rentals exempt under this section 2.10.220), is entitled to an exemption for any occupant who is a natural person, that signs an affidavit of permanent residency in a form prescribed by regulation by the authority documenting that the room is the occupant's permanent residence and that the occupant intends to reside at the transient lodging facility for a period of at least ten days. No rental shall be deemed to have been made for a period of ten days or more unless the room or rooms rented to the occupant are continuously occupied by the occupant for the entire period of ten days without any termination of the tenancy. This exemption may be used at the operator's discretion. If the occupant leaves before staying at least ten days, the operator will owe the transient lodging tax for the period the room was occupied.

(Ord. No. 4921, § 1, 10-27-98; Ord. No. 5384, § 1, 11-5-02; Ord. No. 5985, § 1, 11-28-07)

Sec. 2.10.230. Reserved.

Editor's note—Ord. No. 5985, § 1, adopted November 28, 2007, repealed § 2.10.230, which pertained to exemption—certain existing contracts. See also the Code Comparative Table.

Sec. 2.10.240. Collection by operator.

(a) Each operator shall add the amount of the transient lodging tax imposed by this article to the amount of room rental charged and collect the transient lodging tax from each transient guest. The operator shall display the amount of the transient lodging tax separately from the amount of the rental of the room on the guest registration card or other proof of registration.

(b) The operator is liable for the transient lodging tax whether or not it is actually collected from the transient guest.

(Ord. No. 4921, § 1, 10-27-98; Ord. No. 5985, § 1, 11-28-07)

Sec. 2.10.250. Notice to guest.

Each operator shall prominently display in each room or suite or, at the operator's option, in a lobby at or in the immediate vicinity of the registration desk for the business, a sign, disclosing the existence and rate of the transient lodging tax to be collected from the transient guests.

(Ord. No. 4921, § 1, 10-27-98; Ord. No. 5985, § 1, 11-28-07)

Sec. 2.10.260. Collection and payment by authority.

(a) The authority is hereby designated, authorized and empowered to collect the proceeds of the transient lodging tax imposed by this article. The authority shall collect and pay over

to the city on a timely basis, such proceeds as collected on behalf of the city. The authority shall provide six months' written notice of its desire to terminate the collection authorized by this section.

(b) The authority shall pay the transient lodging tax collected over to the city on a monthly basis together with an accounting of all money received and accounts delinquent and transactions exempted pursuant to section 2.10.240 of this article. The amount received from the one percent allocated for railroad grade separation projects will be specified by the authority.

(Ord. No. 4921, § 1, 10-27-98; Ord. No. 5985, § 1, 11-28-07; Ord. No. 6566, § 1, 7-22-20)

Sec. 2.10.270. Payment of tax.

Effective February 1, 1990, the transient lodging tax imposed by this article becomes due and payable to the city on the first day of each month next succeeding the calendar month or fraction thereof which the transient lodging tax accrued and becomes delinquent after the fifteenth day of the same month.

(Ord. No. 4921, § 1, 10-27-98; Ord. No. 5985, § 1, 11-28-07)

Sec. 2.10.280. Examination of financial records.

(a) The authority is empowered, for and on behalf of the city so long as the authority serves as the collecting agent for the transient lodging tax imposed by this article, to examine and audit the books, papers and records of any operator of transient lodging and to make investigations in connection therewith.

(b) The authority shall permit the city's director of finance, or his/her designee, all reasonable access to the authority's financial records relating to the collection and payment of the transient lodging tax.

(Ord. No. 4921, § 1, 10-27-98; Ord. No. 5985, § 1, 11-28-07)

Sec. 2.10.290. Fund established.

There is hereby established the special room tax fund into which shall be paid the proceeds from the transient lodging tax imposed by this article. The money paid into this fund shall be accounted for separately.

(Ord. No. 4921, § 1, 10-27-98; Ord. No. 5985, § 1, 11-28-07)

Sec. 2.10.300. Revenue uses.

The revenue provided by the transient lodging tax imposed by this article must be used:

(a) One-half of the money, collected city-wide, for the purpose of developing, building, maintaining, expanding or repairing city parks and other recreational facilities administered by the department of parks and recreation, provided that none of the money spent for this fund may be used to replace or otherwise relived the present funding of such purposes or activity from any other source of city revenue.

(b) One-half of the money, collected city-wide, for city improvements or programs the primary purpose of which is the improvement or betterment of the city as a final destination for visitors and tourism, including, but not limited to:

(1) Development of downtown event facilities;

(2) Programs and facilities to improve the situation of the homeless;

(3) Development of new attractions and events; and

(4) Tourism-related social programs including, but not limited to, day-care, affordable housing and the arts.

(5) Additional public safety personnel and equipment not to exceed one-third of the revenue generated with regard to Sec. 11(b) herein.

(c) The additional one percent collected from within the boundaries of the Assessment District created on April 4, 1995 to defray the cost of additional police protection will be used solely for railroad grade separation projects.

(d) The additional one and one-half percent collected from within the boundaries of the area determined by the city council on October 9, 2001 to specially benefit from the capital improvements projects to be financed by bonds issued by the Reno Redevelopment Agency will be used solely to acquire, establish, construct, expand, equip, improve, operate and maintain capital improvement projects identified by the Truckee Meadows Tourism Facility and Revitalization Steering Committee and to pay principal and interest on notes, bonds or other obligations issued by the Reno Redevelopment Agency to fund the acquisition, establishment, construction or expansion of the projects so identified.

(Ord. No. 4921, § 1, 10-27-98; Ord. No. 5271, § 2, 10-9-01; Ord. No. 5985, § 1, 11-28-07)

ARTICLE IV. CAPITAL PROJECTS SURCHARGE

Sec. 2.10.400. Purpose.

There shall be and hereby is created a downtown capital projects surcharge district, pursuant to AB 376 enacted by the Nevada Legislature in 2011, for the purpose of imposing a $2.00 surcharge on the per night charge for the rental of hotel rooms within the district. The revenue collected shall be used by the city to pay the cost of improving and maintaining publicly owned facilities for tourism and entertainment in the district or within one mile outside the boundaries of the district, except for a minor league baseball stadium project as defined in NRS 244A.0344.

(Ord. No. 6195, § 1, 7-13-11)

Sec. 2.10.410. Boundaries.

The boundaries of the district shall be the exterior boundary of a portion of the City of Reno, Washoe County, Nevada, more particularly described as all those lots, blocks, parcels and rights-of-way bounded by the following named streets:

Beginning the intersection of West Fourth Street with Ralston Street; thence easterly along West Fourth Street to its intersection with North Arlington Avenue; thence northerly along North Arlington Avenue to its intersection with West Fifth Street; thence easterly along West Fifth Street to its intersection with West Street: thence northerly along West Street to its intersection with Elm Street; thence easterly along Elm Street to its intersection with North Sierra Street; thence northerly along North Sierra Street to Maple Street; thence easterly along Maple Street to its intersection with North Virginia Street; thence northerly along North Virginia Street to its intersection with East Eighth Street; thence easterly along East Eighth Street to its intersection with North Center Street;

Thence southerly along North Center Street to its intersection with West Seventh Street; thence westerly along West Seventh Street to its intersection with an unnamed alley lying equidistant between North Virginia and North Center Streets; thence southerly along said alley to its intersection with East Sixth Street; thence easterly along East Sixth Street to its intersection with North Center Street; thence southerly along North Center Street to its intersection with East Fifth Street; thence easterly along East Fifth Street to its intersection with Lake Street; thence southerly along Lake Street to its intersection with East Fourth Street; thence easterly along East Fourth Street to its intersection with Evans Avenue; thence southerly along Evans Avenue and its prolongation across the railroad right-of-way to its intersection with East Second Street; thence easterly along East Second Street to Museum Way; thence southerly along Museum Way and its prolongation across the Truckee River to its intersection with Mill Street;

Thence westerly along Mill Street to its intersection with South Center Street; thence southerly along South Center Street to its intersection with Stewart Street: thence westerly along Stewart Street to its intersection with South Virginia Street; thence northerly along South Virginia Street to that certain property line common to Assessor's Parcel Numbers 011-183-13 and 011-183-16; thence along said property line westerly to South Sierra Street; thence northerly along South Sierra Street to its intersection with Court Street; thence westerly along Court Street to its intersection with Rainbow Street; thence northerly along Rainbow Street to its intersection with Island Avenue; thence westerly along Island Avenue to its intersection with Arlington Avenue; thence northerly along Arlington Avenue to its intersection with West First Street; thence easterly along West First Street to its intersection with Roff Way; thence northerly along Roff Way to its intersection with West Second Street; thence westerly along West Second Street to its intersection with Ralston Street; thence northerly along Ralston Street to its intersection with West Fourth Street; the point of beginning, and

Beginning at the southwest corner of West Fourth Street with Vine Street; thence northerly along Vine Street to its intersection with West Fifth Street; thence along West Fifth Street to its intersection with Washington Street; thence south along Washington Street to its intersection with West Fourth Street; thence along West Fourth Street to its intersection with Vine Street to the point of beginning.

(Ord. No. 6195, § 1, 7-13-11)

Sec. 2.10.420. Surcharge.

(a) DEFINITIONS.

Except as otherwise provided below, all terms used in this article shall have the meanings attributed to them by Reno Municipal Code Sec. 2.10.200(c), entitled "Definitions," which section is incorporated herein by reference.

(1) *Operator* means the person who is the proprietor of transient lodging that holds a nonrestricted gaming license within the district defined by section 2.10.410, whether in the capacity of owner, lessee, sub-lessee, mortgagee, licensee, realtor, real estate agency renting transient lodging, on-line discount booking agency, exchange company or any other capacity. Where the operator performs his or her functions through a managing agent of any type or character other than an employee, the managing agency shall also be deemed an operator for the purposes of this chapter and shall

have the same duties and liabilities as his or her principal. Compliance with the provisions of this chapter by either the principal or the managing agent shall, however, be considered to be compliance by both.

(b) AMOUNT OF SURCHARGE.

There is fixed and imposed a surcharge on each operator of transient lodging in the amount of $2.00 on the per night charge derived by each operator from the renting of transient lodging within the district. The surcharge shall not be applied for any time during which the transient lodging is provided to an occupant free of charge.

(Ord. No. 6195, § 1, 7-13-11)

Sec. 2.10.430. Collection by operator.

(a) The surcharge imposed by this article shall be collected from the occupant by the operator as a flat rate for each occupied room (except transient lodging provided to an occupant free of charge). The operator shall display the amount of the surcharge separately from the amount of the rental of the room on the guest registration card of other proof of registration. No transient lodging tax shall be due or imposed on the surcharge imposed by this article.

(b) The operator is liable for the surcharge whether or not it is actually collected from the occupant.

(Ord. No. 6195, § 1, 7-13-11)

Sec. 2.10.440. Notice to guest.

Each operator shall prominently display in each room or suite or, at the operator's option, in a lobby at or in the immediate vicinity of the registration desk for the business a sign, disclosing the existence and rate of the surcharge to be collected from the occupants.

(Ord. No. 6195, § 1, 7-13-11)

Sec. 2.10.450. Payment of the surcharge.

(a) The authority, as defined in RMC 2.10.200(c)C1) is hereby designated, authorized and directed to collect the proceeds of the surcharge as imposed by this article and in accordance with rules and regulations promulgated by the authority.

(b) The authority shall collect and pay over to the city on a timely basis such proceeds as authorized by this article. The authority shall provide six months written notice of its desire to terminate the collection authorized by this action.

(c) The authority shall pay the surcharge collected over to the city on a monthly basis together with an accounting of all money received and accounts delinquent.

(Ord. No. 6195, § 1, 7-13-11)

Sec. 2.10.460. Fund established.

There is hereby established the capital projects surcharge fund into which shall be paid the proceeds from the surcharge imposed by this article. The money paid into this fund shall be accounted for separately.

(Ord. No. 6195, § 1, 7-13-11)

Sec. 2.10.470. Revenue uses.

(a) The proceeds of the surcharge imposed by this article must be used to pay the cost of improving and maintaining publicly owned facilities for tourism and entertainment in the district or within one mile outside the boundaries of the district. except for a minor league baseball stadium project as defined in NRS 244A.0344. The proceeds of the surcharge must not be transferred to any other fund or account or used for any other purpose.

(b) The use of the proceeds of the surcharge imposed by this article must be approved by a two-thirds majority vote of the city council.

(Ord. No. 6195, § 1, 7-13-11)

CHAPTER 2.11 CIVIL SERVICE COMMISSION COMPENSATION

Sec. 2.11.010. Civil service commission compensation.

Sec. 2.11.010. Civil service commission compensation.

The civil service commission members shall be compensated $50.00 per member for one regular meeting attended monthly and $25.00 per member for each special meeting attended monthly. No member shall be compensated more than $100.00 per month for all meetings attended during that month.

(Ord. No. 5156, § 1, 6-27-00)

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CHAPTER 2.12. SURETY BONDS*

Sec. 2.12.010. Character and type of bonds and suretiesg

Sec. 2.12.010. Character and type of bonds and sureties.

Whenever any section of this Code or any ordinance of the city, now in existence or which may hereafter be passed, requires any bond to be given by any official of the city, or any contractor, or any person whatsoever, for any purpose whatsoever, such bond may have as surety thereon either a surety company duly qualified to transact business in the state or may have personal sureties. Provided, that the city council may require either type of bond as herein mentioned as it may in its discretion see fit, and if a bond with personal sureties thereon is given in any instance the city council specifically reserves the right to approve the sureties thereon. Provided further, that this section shall not apply to any bail bond furnished by any defendant in any criminal case in which the city is a party, or by any party in a civil action or proceeding in which the city is a party.

(Code 1966, § 2.52.010)

***Cross reference—**Surety bond requirements of municipal court clerk, § 2.16.030.

State law reference—Official bonds, NRS 282.040 et seq.

Case law reference—Bond requiring faithful performance of official duty is as binding upon the principal and his surety as if all the statutory duties of the officer were inserted in the bond. State v. Nevin, 19 Nev. 162, 7 Pac. 650, Am. St. Rep. 873 (1885). See also Ex parte Counts, 32 Nev. 61, 153 Pac. 93 (1915).

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CHAPTER 2.13. RESERVED*

*__Editor's note—__Ord. No. 5602, § 1, and Ord. No. 5603 adopted Oct. 13, 2004, repealed §§ 2.13.010 and 2.13.020, which pertained to salaries for mayor and city council positions. See also the Code Comparative Table.

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CHAPTER 2.14. EMPLOYEE BENEFITS*

Art. I. In General

Sec. 2.14.010. Appointment of employees and conditions of employment.
Sec. 2.14.020. Salary administration.
Sec. 2.14.030. Change of residence.

Arts. II—IV. Reserved

Secs. 2.14.040—2.14.280. Reserved.

ARTICLE I. IN GENERAL†

Sec. 2.14.010. Appointment of employees and conditions of employment.

Except as otherwise specifically provided by Code or by Charter, the city manager or his delegate shall appoint all officers and employees of the city and may remove, with or without cause, any officer or employee of the city.

(Ord. No. 3691, § 1, 6-27-88; Ord. No. 4367, § 1, 2-8-94; Ord. No. 4685, § 1, 10-22-96; Ord. No. 4755, § 1, 6-10-97; Ord. No. 5347, § 1, 6-11-02)

Sec. 2.14.020. Salary administration.

(a) PAYMENT OF SALARIES.

Salaries for all employees of the city will be paid on a biweekly or semi-monthly basis as established by the city manager. Any conversion to a semi-monthly pay schedule shall be done without loss of salary or benefits to the employee.

(b) SALARY SCHEDULES.

Salary schedules and benefit levels for city employees who are represented under employee-management contracts or agreements shall be set forth in the duly executed agreements. Salary schedules and benefit levels for all other employees of the city shall be set forth in legally executed contracts of employment, or in resolutions of the city council.

(c) EMPLOYEE CLASSIFICATION.

(1) When it is determined to be in the best interest of the city, the city manager shall establish such additional classifications as may be necessary for the operation of the city. The city manager shall assign said classifications to the appropriate pay range and may adjust the pay range assignment of existing classifications within the limitations of current budgets and the salary schedule(s) adopted by city council.

(2) The total number of employees of any department and the total number of employees in each classification within any department shall be determined by the city manager, except that the city attorney shall determine the total number of employees and the

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***Cross reference—**Compensation of municipal band, § 2.18.030.

†Editor's note—Ord. No. 3691, § 1, adopted June 27, 1988, amended Articles I and II, §§ 2.14.010—2.14.190, in their entirety, to read as herein set out. Said former sections pertained to salaries and compensation in general. See also the Code Comparative Table.

total number of employees within each classification with the city attorney's office. Such determination shall be consistent with the moneys appropriated in any current fiscal year budget and subject to any applicable civil service rules and regulations.

(d) TEMPORARY APPOINTMENTS.

The city manager is authorized to employ temporary employees for the purpose of doing work which is of a seasonal or temporary nature. The work schedule for such employees shall be fixed by the city manager or assigned department head, consistent with any applicable Civil Service Rules.

(e) SALARY ADMINISTRATION.

The city manager shall determine and establish the salaries for employees paid under the salary schedule(s) adopted by city council. Salary determinations shall be based upon experience, ability and performance and shall be consistent with budgeted appropriations for the current fiscal year.

(Ord. No. 3691, § 1, 6-27-88; Ord. No. 4685, § 1, 10-22-96; Ord. No. 6333, § 6, 5-28-14, eff. 7-1-14)

Sec. 2.14.030. Change of residence.

Any employee who moves or relocates to a new address must notify the city of change of residency and address within 30 days of relocation.

(Ord. No. 3691, § 1, 6-27-88; Ord. No. 4685, § 1, 10-22-96)

ARTICLES II—IV. RESERVED*

***Editor's note—**Ord. No. 4684, §§ 1—3, adopted October 22, 1996, repealed Arts. II—IV, which pertained to salaries and compensation—certain regular, grant funded and limited term employees, salaries and compensation—Midmanagerial personnel, and salaries and compensation—Appointive/managerial. See the Code Comparative Table.

CHAPTER 2.16. MUNICIPAL COURT*

Sec. 2.16.010. Created.
Sec. 2.16.020. Qualifications of municipal judge; salary.
Sec. 2.16.025. Municipal court employees.
Sec. 2.16.030. Surety bond requirements of municipal court clerk.
Sec. 2.16.040. Court of record; recording.
Sec. 2.16.050. Recording; operation of equipment; transcription of recordings; use of transcript.
Sec. 2.16.060. Recording; preservation; destruction.
Sec. 2.16.070. Filing of appeals.
Sec. 2.16.080. Recording; payment of fees.
Sec. 2.16.090. Transmission of transcript, other papers, recording and copy of docket to district court.
Sec. 2.16.100. Court construction assessment.
Secs. 2.16.110—2.16.230. Reserved.
Sec. 2.16.235. Jury trial in municipal court.

Sec. 2.16.010. Created.

There shall be a municipal court of the city to which the provisions of Chapters 5 and 266 of NRS, relating to municipal courts shall apply. The municipal court may consist of two departments in the discretion of the city council.

(Code 1966, § 2.32.060)

Charter reference—Similar provisions, § 4.010.

Sec. 2.16.020. Qualifications of municipal judge; salary.

(a) The municipal court shall be presided over by a municipal judge or judges, as provided in section 2.16.010, who shall be:

(1) An attorney licensed to practice law in the state;

(2) A resident of the city for at least six months;

(3) A qualified elector to the city.

(b) The municipal judge or judges shall not engage in private practice of law.

(c) The salary of the municipal judge or judges shall be fixed by resolution of the city council.

(d) If there is more than one municipal court judge, the salaries of the municipal court judges shall be uniform.

(Code 1966, § 2.32.070; Ord. No. 4376, § 1, 4-26-94)

Sec. 2.16.025. Municipal court employees.

(a) The judges of the Reno Municipal Court shall have the power and authority to appoint and remove those employees appointed to perform the work of the Reno Municipal Court. Such employees of the Reno Municipal Court shall not be subject to the provisions of the civil service system.

***Charter reference—**Judicial department, Art. IV.

State law reference—Municipal courts, NRS 5.101 et seq.

Case law reference—See State v. Nevin, 19 Nev. 162, 7 Pac. 650; 3 Am. St. Rep. 873 (1885).

(b) The total number of employees of the Reno Municipal Court and the total number of employees in each classification with the Reno Municipal Court shall be determined by the judges of the Reno Municipal Court. Such determination shall be consistent with the money appropriated in any current fiscal year budget.

(Ord. No. 4755, § 2, 6-10-97)

Sec. 2.16.030. Surety bond requirements of municipal court clerk.

Immediately upon entering upon his duties as clerk of the municipal court of the city, the clerk shall execute and file with the city clerk his surety bond, to be approved by the city council, in the principal sum of $5,000.00 in favor of the city for the purpose of securing the city against any defalcations, misappropriations or other wrongful acts by the clerk. The premiums required to be paid for the surety bond shall be paid from the general fund of the city.

(Code 1966, §§ 2.32.040, 2.32.050)

Cross reference—Surety bonds generally, Ch. 2.12.

Sec. 2.16.040. Court of record; recording.

The Reno Municipal Court is hereby designated as a court of record in accordance with NRS 5.010. Proceedings in the municipal court may be recorded by any method recognized by the Nevada Supreme Court.

(Ord. No. 4199, § 1, 3-24-92)

Editor's note—Ord. No. 3099, § 1, adopted June 27, 1983, repealed former §§ 2.16.040—2.16.060, concerning the office of the marshal, which sections derived from Code 1966, §§ 2.32.010—2.32.030.

Sec. 2.16.050. Recording; operation of equipment; transcription of recordings; use of transcript.

(a) Each judge shall appoint a suitable person, who need not be a certified shorthand reporter and may have other responsibilities in the court to operate the recording equipment. The person so appointed shall subscribe to an oath that he or she will so operate it as to record all of the proceedings.

(b) The municipal court may designate any certified person to transcribe the recording into a written transcript. The person so designated shall subscribe to an oath that he or she has correctly transcribed it. The transcript may be used for all purposes for which transcripts are used and is subject to correction in the same manner as other transcripts.

(Ord. No. 4199, § 1, 3-24-92)

Sec. 2.16.060. Recording; preservation; destruction.

The recording of each proceeding in municipal court must be preserved until at least 30 days after the time for filing an appeal expires. If no appeal is taken, the judge may order the destruction of the recording at any time after that date. If there is an appeal to the district court, the recording must be preserved until at least 30 days after final disposition of the case on appeal. The municipal court may order the destruction of the recording at any time after that date.

(Ord. No. 4199, § 1, 3-24-92)

Sec. 2.16.070. Filing of appeals.

An appeal in a civil or criminal case must be taken and perfected in the same manner as the same type of appeal from the justice's courts, as provided in the Nevada Revised Statutes.

(Ord. No. 4199, § 1, 3-24-92)

Sec. 2.16.080. Recording; payment of fees.

(a) The fees for transcripts, processing an appeal, and copies must be paid by the party ordering them in accordance with the municipal court procedures.

(b) In a civil case the preparation of the transcript need not commence until the fees have been deposited.

(c) In a civil case, upon a finding of a party's indigency by the court, such fees shall be waived or paid by the court.

(Ord. No. 4199, § 1, 3-24-92)

Sec. 2.16.090. Transmission of transcript, other papers, recording and copy of docket to district court.

(a) The court shall transmit to the clerk of the district court the recording and/or transcript of the case, all other papers relating to the case and a certified copy of his or her docket in accordance with the Nevada Revised Statutes, District Court Rules, and the Washoe County District Court Rules.

(b) The judge shall give notice to the appellant or his or her attorney and to the other party that the recording and/or transcript, all other papers relating to the case, and a certified copy of the docket have been filed with the clerk of the district court.

(Ord. No. 4199, § 1, 3-24-92)

Sec. 2.16.100. Court construction assessment.

(a) Except as otherwise provided in subsection (b), when a defendant pleads guilty or guilty but mentally ill or is found guilty of a misdemeanor, the judge shall include in the sentence the sum of $10.00 as an administrative assessment for the provision of court facilities and tender a judgment against the defendant for the assessment.

(b) The provisions of subsection (a) do not apply to:

(1) An ordinance regulating metered parking; or

(2) An ordinance that is specifically designated as imposing a civil penalty or liability.

(c) The money collected for the administrative assessment established by this section must not be deducted from the fine imposed by the judge but must be taxed against the defendant in addition to the fine. The money collected for the administrative assessment must be stated separately on the court's docket and must be included in the amount posted for bail. If the defendant is found not guilty or the charges are dismissed, the money deposited with the court must be returned to the defendant. If the judge cancels a fine because the fine has been determined to be uncollectible, any balance of the fine and the administrative assessment remaining unpaid shall be deemed to be uncollectible and

the defendant is not required to pay it. If a fine is determined to be uncollectible, the defendant is not entitled to a refund of the fine or administrative assessment he has paid and the judge shall not recalculate the administrative assessment.

(d) If the judge permits the fine and administrative assessment for the provision of court facilities to be paid in installments, the payments must be applied in the following order:

(1) To pay the unpaid balance of an administrative assessment imposed pursuant to NRS 176.059;

(2) To pay the unpaid balance of the administrative assessment established by this action; and

(3) To pay the fine.

(e) The money collected for the administrative assessment for the provision of court facilities must be paid by the clerk of the court to the city treasurer on or before the fifth day of each month for the preceding month. The city treasurer shall deposit the money received in a special revenue fund. The city may use the money in the special revenue fund only to:

(1) Acquire land to which to construct additional facilities for the municipal courts or a regional justice center that includes the municipal courts.

(2) Construct or acquire additional facilities for the municipal courts or a regional justice center that includes the municipal courts.

(3) Acquire furniture, fixtures and equipment necessitated by the construction or acquisition of additional facilities for the municipal courts or a regional justice center that includes the municipal courts. This paragraph does not authorize the expenditure of money from the fund for furniture, fixtures or equipment for judicial chambers.

(4) Acquire advanced technology for use in the additional facilities.

(5) Pay debt service on any bonds issued pursuant to subsection 3 of NRS 350.020 for the acquisition of land or facilities or the construction of facilities for the municipal courts or a regional justice center that includes the municipal courts.

(f) Any money remaining in the special revenue fund after five fiscal years must be deposited in the municipal court general fund for the continued maintenance of court facilities if it has not been committed for expenditure pursuant to a plat for the construction or acquisition of court facilities. The city treasurer shall provide, upon request by a municipal court, monthly reports of the revenue credited to and expenditures made from the special revenue fund.

(g) The authorization for the imposition of the assessment established by this section shall expire 25 years after the passage of the ordinance establishing this section.

(Ord. No. 4848, § 1, 2-24-98)

Secs. 2.16.110—2.16.230. Reserved

Editor's note—Ord. No. 3777, § 1, adopted March 27, 1989, repealed §§ 2.16.100—2.16.230, which pertained to the jury commissioner and provisions relating to jurors, and derived from Ord. No. 3452, §§ 1—14, adopted Dec. 22, 1986. Subsequently, Ord. No. 4848, § 1, adopted Feb. 24, 1998, added § 2.16.100. See the Code Comparative Table.

Sec. 2.16.235. Jury trial in municipal court.

Chapter 6 of the Nevada Revised Statutes entitled Juries and Chapter 175 of the Nevada Revised Statutes entitled Trial shall be applied to jury trials conducted in the Reno Municipal Court. All jury trials in the Reno Municipal Court will be heard by petit juries.

(Ord. No. 6543, § 1, 2-12-20)

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CHAPTER 2.17. CHARTER COMMISSION*

Sec. 2.17.010. Charter committee compensation.
Sec. 2.17.020. Duties of the city clerk as the official record keeper for the charter committee.

Sec. 2.17.010. Charter committee compensation.

Members of the charter committee shall be compensated $50.00 per member for the first full meeting attended in a given month and $25.00 for each additional full meeting attended in the same month, provided that no member shall be compensated more than $100.00 per month for all full meetings attended during that month. No compensation shall be paid for attendance of members who attend a partial meeting of the charter committee.

(Ord. No. 6318, § 1, 2-12-14)

Sec. 2.17.020. Duties of the city clerk as the official record keeper for the charter committee.

In addition to the duties of the city clerk established by charter or other ordinance, the city clerk shall be the official record keeper for the charter committee, which duties shall include, without limitation, attendance at all meetings of the charter committee, maintaining an accurate journal of its proceedings, keeping attendance records for compliance with section 1.160 of Charter of the City of Reno, processing payments for compensation for members of the charter committee for each full meeting attended, in amounts as set forth in section 2.17.010 of the Reno Municipal Code, and performing those administrative functions needed to assist the charter committee in carrying out its required duties as established in Section 1.150 of the Reno City Charter.

(Ord. No. 6318, § 1, 2-12-14)

***Editor's note—**Ord. No. 4860, § 1, adopted April 14, 1998, repealed Ch. 2.17, §§ 2.17.010—2.17.130, which pertained to the internal auditor. See the Code Comparative Table. Subsequently, Ord. No. 6318, § 1, adopted February 12, 2014, added provisions designated as a new Ch. 2.17, §§ 2.17.010, 2.17.020, to read as herein set out. See also the Code Comparative Table.

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CHAPTER 2.18. MUNICIPAL BAND*

Sec. 2.18.010. Musical director—Appointment.
Sec. 2.18.020. Same—Powers and duties.
Sec. 2.18.30. Compensation.

Sec. 2.18.010. Musical director—Appointment.

The city manager shall, at such times as he may deem advisable, nominate a person to be musical director of the city who shall be the bandmaster of the municipal band, which nomination shall be made subject to confirmation by the city council. The musical director, when so nominated and confirmed, shall hold his office until a successor shall be nominated by the city manager and confirmed by the city council.

(Code 1966, § 2.40.020; Ord. No. 2724, § 1, 12-26-78)

Sec. 2.18.020. Same—Powers and duties.

The musical director shall have the power to appoint and remove all personnel of the municipal band; provided, however, that no appointment by such musical director shall continue beyond the term of office of the musical director making the appointment. The musical director shall, subject to the approval of the city manager, arrange the time and place for all public appearances to be made by the municipal band.

(Code 1966, § 2.40.020; Ord. No. 2724, § 1, 12-26-78)

Sec. 2.18.30. Compensation.

(a) The musical director shall receive as his compensation the sum of $30.00 for each rodeo appearance, and he shall receive $15.00 for each parade or concert or other public appearance by the municipal band, plus a sum equal to ten percent of the total monthly sum paid to the personnel of the band. Each of the other personnel of the municipal band shall receive as compensation the sum of $30.00 for each rodeo appearance by the band in which such person participates, and he shall receive as compensation the sum of $15.00 for each parade or concert or other public appearance by the band in which such person participates. Every member of the municipal band shall receive as compensation the sum of $5.00 for each rehearsal. People who perform who are nonmembers of the band may receive as compensation, therefor, costs and expenses as determined by the musical director.

(b) The musical director may appoint assistants as necessary to perform extra duties for the municipal band. All assistants appointed by the musical director shall be first approved and confirmed by the city manager. Such assistants when utilized by the musical director shall receive compensation in addition to the regular compensation: assistant bandmaster, $10.00 per performance, music arranger and librarian, $10.00 per performance; stage manager, $10.00 per performance; property man, $10.00 per performance; and stage hand, $4.00 per performance.

***Charter reference—**Authority to appropriate money for advertising and publicity and for the support of a municipal band, § 2.140.

(c) The payroll of the municipal band shall be prepared bi-weekly by the musical director and shall be approved by the city manager. No funds of the city shall be expended by, the musical director unless the approval of the city manager shall be first obtained.

(Code 1966, § 2.40.020; Ord. No. 2724, § 1, 12-26-78; Ord. No. 2890, § 1, 8-11-80)
Cross reference—Employee benefits generally, Ch. 2.14.

CHAPTER 2.20. CODE OF ETHICS FOR PUBLIC OFFICIALS*

Secs. 2.20.010—2.20.100. Reserved.
Sec. 2.20.110. Purpose and intent.
Sec. 2.20.120. Definitions.
Sec. 2.20.130. General requirements.
Sec. 2.20.140. Additional standards.
Sec. 2.20.150. Advisory opinions.
Sec. 2.20.160. Enforcement.
Sec. 2.20.170. Violations and penalties.
Sec. 2.20.180. Disclosure; public officers and candidates.
Sec. 2.20.190. Campaign contributions and expenditures; reports required.
Sec. 2.20.200. Distribution of code of ethics ordinance.
Sec. 2.20.210. Severability.

Secs. 2.20.010—2.20.100. Reserved.

Editor's note—Ord. No. 4506, § 1, adopted April 25, 1995, repealed §§ 2.20.010 through 2.20.100, which pertained to the code of ethics for public officials and enacted new provisions designated as §§ 2.20.110 through 2.20.210 as set out below. See the Code Comparative Table.

Sec. 2.20.110. Purpose and intent.

The city council hereby finds and declares as follows:

(1) The people has a right to expect from the elected and appointed representatives at all levels of government assurances of the utmost integrity, honesty and fairness to be assured in their dealings.

(2) The people further have a right to be assured to the fullest extent possible that the private financial dealings of their governmental representatives and of candidates for those offices, present no conflict of interest between the public trust and private gain.

(3) The representative form of government is founded upon a belief that those entrusted with the offices of government have nothing to fear from full public disclosure of their business holdings as they pertain to the business before the city. To these ends, the city council hereby enacts this chapter. The city council hereby intends to sustain, to the extent necessary, public confidence in government at all levels, by assuring the people of the impartiality of their officials in all governmental transactions and decisions.

The provisions of this chapter are to be construed liberally to the end that the public interest be fully protected.

(Ord. No. 4506, § 1, 4-25-95)

Sec. 2.20.120. Definitions.

For purposes of this chapter certain words and phrases are defined and certain provisions shall be construed as hereinafter set forth unless it is apparent from the context that a different

*__Charter references—__Elections, Art. V; civil service, Art. IX.

meaning is intended. Whenever any words and phrases used in this chapter are not defined in this section but are defined in the state laws regulating such matters, any such definition therein is deemed to apply to such words and phrases used in this chapter.

Business entity means any corporation, general or limited partnership, limited liability company, sole proprietorship (including a private consultant operation), syndicate, joint venture, unincorporated association or firm, institution, trust, foundation or any other organization whether or not organized for profit. Business entity does not include local, state or federal agencies or political subdivisions.

Campaign contributions means all donations of money, subscriptions, services in kind, pledges, loans, conveyances, deposits, payments, transfers, distributions of money or anything of economic value from all sources. "Service in kind" means any donation of materials or professional services which would otherwise require payment, the name of any individual who solicits funds on behalf of a candidate and the name of any individual who volunteers more than ten hours of their time to the candidate's campaign.

Campaign expenditure means any and all expenditures, whether paid for directly, provided as an in-kind service or gift, contracted for or made for advertising on television, radio, billboards, posters and in newspapers, and all other expenditures, disbursed from the campaign account or contracted for or made to further direct the campaign of the candidate.

Candidate: For the purpose of this chapter, includes any individual seeking election or appointment as a public officer as defined below in this section:

(1) Who files an affidavit of candidacy; or

(2) Who files an affidavit to fill a vacancy for the position of a public officer.

City means City of Reno and Redevelopment Agency.

Confidential information means all information whether transmitted verbally or in writing, which of such a nature that it is not, at the time, a matter of public record or public knowledge.

Family members means persons bearing the following relationships to the individual in question:

(1) Parents;

(2) Grandparents;

(3) Great grandparents;

(4) Children;

(5) Grandchildren;

(6) Great grandchildren;

(7) Brothers and sisters;

(8) Nephews and nieces;

(9) First cousins;

(10) Spouses;

(11) Aunts and uncles.

Gift means anything of economic value in excess of one hundred dollars ($100.00) but not including campaign contributions or gifts from a family member.

Interest, except as otherwise specifically provided, means direct pecuniary or other benefit accruing to a public officer, public appointee or city employee. For purposes of this chapter, a public officer, public appointee or city employee shall be deemed to have an interest in the business or affairs of (1) his or her spouse, child, or other family members; (2) any person or business entity with whom a contractual or business relationship exists with his or her spouse, child, or other family member; (3) any business entity in which his or her spouse, child, or other family member is an officer, director, member or employee; and (4) any business in which his or her spouse, child, or other family member controls or owns, directly or indirectly, one percent or more of the total outstanding stock.

Knowing or *knowingly* or *knows* means actual knowledge and "should have reasonably known" and such knowledge shall apply to and be imputed to the public officer, public appointee or city employee from his or her spouse and children.

Official act or *action* means any legislative, administrative, appointive or discretionary act of a public officer, public appointee or city employee of the city, board, committee or commission thereof.

Public appointee means any person appointed by a public officer to serve on any board, agency or commission charged with the responsibility of advising, recommending or setting policy.

Public officer means the mayor, city council members, city attorney, municipal courts judges, and planning commission members.

Real property means any interest in or option to purchase any interest in any real property in the Truckee Meadows, City of Reno and its spheres of influence, but not including the home in which the public officer resides.

Truckee Meadows, City of Reno and its spheres of influence means that area bounded generally by Virginia City-Mount Rose Highways on the south, Verdi and U.S. forest lands on the west, Reno city (Stead) limits on the north and Vista on the east.

Trust means a legal title of property held by one party, the trustee, for the benefit of another, the beneficiary.

(Ord. No. 4506, § 1, 4-25-95; Ord. No. 5729, § 14, 9-14-05)

Sec. 2.20.130. General requirements.

The following ethical standards are hereby established to govern the conduct of public officer[s], public appointees and city employees:

(1) A public officer, public appointee or city employee shall not seek or accept any gift, service, favor, employment, engagement, emolument or economic opportunity which would tend improperly to influence a reasonable person in his or her position to depart from the faithful and impartial discharge of his public duties.

(2) A public officer, public appointee or city employee shall not use his or her position in government to secure or grant unwarranted privileges, preferences, exemptions or advantages for him or herself, any family member, any business entity, or any other person.

(3) A public officer, public appointee or city employee shall not participate as an agent of government in the negotiation or execution of a contract between the city and any person or business entity in which he or she has an interest.

(4) A public officer, public appointee or city employee shall not accept any salary, retainer, gift, augmentation, expense allowance or other compensation from any private source for the performance of his or her public duties.

(5) A public officer, public appointee or city employee acquires, through his or her public duties or relationships, any information which by law is not at the time available to people generally, he or she shall not use the information to further the interests of him or herself or any other person or business entity.

(6) A public officer, public appointee or city employee shall not suppress any governmental report or other document because it might tend to affect unfavorably his or her interests.

(7) A public officer, public appointee or city employee shall not use governmental time, property, equipment or other facility for a nongovernmental purpose or to benefit his or her interests. This subsection does not prohibit:

(a) A limited use of governmental property, equipment or other facility for personal purpose if:

(1) The public officer who is responsible for and has authority to authorize the use of such property, equipment or other facility has established a policy allowing the use or the use is necessary as a result of emergency circumstances;

(2) The use does not interfere with the performance of his public duties;

(3) The cost or value related to the use is nominal; and

(4) The use does not create the appearance of impropriety.

(b) The use of mailings lists, computer data or other information lawfully obtained from a governmental agency which is available to members of the general public for nongovernmental purposes; or

(c) The use of telephones or other means of communication if there if not a special charge for that use.

If the city incurs a cost as a result of a use that is authorized pursuant to this subsection or would ordinarily charge a member of the general public for the use, the public officer or employee shall promptly reimburse the cost or pay the charge to the city.

(8) A public officer or city employee shall not attempt to benefit his or her personal or financial interest through the influence of a subordinate.

(9) A public officer, public appointee or city employee shall not seek other employment or contracts through the use of his or her official position.

(10) A public officer, public appointee or city employee shall not receive or acquire an interest in or an interest affected by a contract, transaction, land use decision or other matter at a time when such person knows the interest will be directly affected by an official act or action of the city.

(Ord. No. 4506, § 1, 4-25-95; Ord. No. 4781, § 1, 8-26-97)

Sec. 2.20.140. Additional standards.

(a) Except as otherwise provided in subsections (b) or (c), a public officer or public appointee may vote upon a matter if the benefit or detriment accruing to him or her as a result of the

decision, either individually or in a representative capacity as a member of a general business, profession, occupation or group, is not greater than that accruing to any other member of the general business, profession, occupation or group.

(b) In addition to the requirements of section 2.20.130, a public officer shall not vote upon or advocate the passage or failure of a matter with respect to which the independence of judgment of a reasonable person in his or her situation would be materially affected by:

(1) His or her acceptance of a gift or loan;

(2) His or her pecuniary interest; or

(3) His or her commitment in a private capacity to the interests of others.

It shall be presumed that the independence of judgment of a reasonable person would not be materially affected by his or her pecuniary interest or his or her commitment in a private capacity to the interests of others where the resulting benefit or detriment accruing to him or her or to the other person whose interests to which the member is committed in a private capacity is not greater than that accruing to any other member of the general business, profession, occupation or group.

(c) A public officer, public appointee or city employee shall not approve, disapprove, vote, abstain from voting, or otherwise act upon any matter:

(1) Regarding which he or she has accepted a gift or loan;

(2) Which would reasonably be affected by his commitment in a private capacity to the interest of others; or

(3) In which he or she has a pecuniary interest, without disclosing the full nature and extent of the gift, loan, commitment or interest. Such a disclosure must be made at the time the matter is considered. Such a disclosure must be made at the time the matter is considered. If the public officer, public appointee or city employee is a member of a body which makes decisions, he or she shall make the disclosure in public to the chairperson and other members of the body.

(d) If a public officer declares to the governmental body in which the vote is to be taken that he or she will abstain from voting because of the requirements of this section, the necessary quorum to act upon and the number of votes necessary to act upon the matter, as fixed by any statute, ordinance or rule, is reduced as though the member abstaining were not a member of the body or committee.

(Ord. No. 4506, § 1, 4-25-95; Ord. No. 4781, § 2, 8-26-97; Ord. No. 4896, § 1, 7-14-98)

Sec. 2.20.150. Advisory opinions.

(a) When any public officer, public appointee or city employee has a doubt as the applicability of any provision of this chapter to a particular situation or as to the definition of terms used herein, such officer, appointee or employee may apply to the city attorney for a formal opinion. The officer, appointee or employee shall have the opportunity to present his or her interpretation of the facts at issue and the applicability of provisions of the ordinance before such formal opinion is made. The city attorney may, where appropriate, refer the matter to the state ethics commission, the district attorney's office or to outside counsel if necessary.

(b) Such opinion, until amended or revoked, shall be binding on the city, the city council and the city attorney in any subsequent actions concerning the public officer, appointee or

employee who sought the opinion and acted on it in good faith, unless material facts were omitted or misstated in the request for a formal opinion. Such opinion shall not be binding in any action initiated by any private citizen.

(Ord. No. 4506, § 1, 4-25-95)

Sec. 2.20.160. Enforcement.

(a) The city attorney shall have the primary responsibility for enforcement of this chapter. The city attorney shall have the power to investigate any complaint, to initiate corrective action and to recommend any other appropriate action on behalf of the city where it believes such action is appropriate.

(b) The city council may direct the city attorney's office to investigate or prosecute, through the city attorney, any apparent violation of this chapter or the council may employ or appoint any qualified attorney to investigate or prosecute any violation or series of violations by one or more persons of this chapter consistent with the provisions of the Reno City Charter.

(c) Any person who believes that a violation of any portion of this chapter has occurred may file a complaint with the city attorney's office which may thereafter proceed as provided for under section 2.20.160 and 2.20.170. However, nothing in this chapter shall be construed to prevent complainants from filing a complaint with the state ethics commission or instituting direct legal action through the appropriate judicial authority.

(Ord. No. 4506, § 1, 4-25-95)

Sec. 2.20.170. Violations and penalties.

(a) When a public officer or a candidate violates a provision of this chapter or fails to file any statement required under this chapter, or when such statement appears to be in violation of any provision of this chapter, the city clerk shall send written notice to such candidate or public officer for the purpose of obtaining compliance herewith, or a corrective or completion of such statement.

(1) If the city clerk is unable, within ten days following such notification, to obtain compliance, the clerk shall file a complaint with the city attorney.

(b) Any candidate or public officer who fails to file the statements required under this chapter or refuses to correct or complete such statements is guilty of a misdemeanor.

(c) Any public officer who willfully and knowingly violates any of the provisions of this chapter shall be punishable [punished] by a fine not to exceed $1,000.00.

(d) Any public officer who willfully and knowingly violates this chapter shall also be subject to removal from office pursuant to section 3.150 of the charter of the city.

(e) Any contract, transaction, land use decision or other matter which was the subject of an official act or action of the city which involved the violation of the provision of this chapter shall be reconsidered at the next regular council meeting after discovery and shall be voidable at the option of the council.

(f) Any city employee who willfully and knowingly violates this chapter may be subject to removal by his or her appointing authority.

(g) Any candidate or public officer who willfully or knowingly falsifies any statement required under the provision of this chapter is guilty of a misdemeanor.

(h) Any public appointee who wilfully and knowingly violates this chapter shall be subject to immediate removal by his or her appointing public officer.

(i) Where the violation of the provisions of this chapter is threatened or has occurred, the city attorney, district attorney's office or special prosecutor, as may be required, may bring a civil action or proceeding at law or in equity for a judgment enjoining the violation of the provisions of this chapter.

(Ord. No. 4506, § 1, 4-25-95)

Sec. 2.20.180. Disclosure; public officers and candidates.

(a) FILING BY MAYOR, COUNCIL MEMBERS, AND CITY ATTORNEY.

The mayor, each member of the city council, and the city attorney shall file an annual financial disclosure statement with the secretary of state under penalty of perjury no later than January 15 as required by NRS. ch. 281.

(b) FILING BY CANDIDATE.

Each candidate for any city elective office shall file a candidate financial disclosure statement with the secretary of state under penalty of perjury no later than ten days after the close of candidate filing for the office as required by NRS. ch. 281.

(c) APPOINTIVE OFFICER.

Every appointive officer shall file an annual financial disclosure statement with the secretary of state under penalty of perjury no later than January 15 and a new appointment financial disclosure statement under penalty of perjury no later than 30 days after his or her appointment as required by NRS. ch. 281.

As used in this subsection, ″appointive officer″ has the meaning ascribed to it in Reno City Charter Section 1.0126.

(d) MUNICIPAL COURT JUDGES.

Every City of Reno Municipal Court Judge shall file with the city clerk an annual financial disclosure statement under penalty of perjury no later than January 15 covering the preceding calendar year. Every candidate for City of Reno Municipal Court Judge shall file with the city clerk a candidate financial disclosure statement under penalty of perjury no later than ten days after the close of candidate filing covering the preceding calendar year and January 1 of the year in which the election for the office will be held and the last day of candidate filing. The financial disclosure statements required by this subsection shall be on forms prescribed by the city clerk and shall require the disclosure of the same information and contents as the financial disclosure statements required by NRS. ch. 281.

(e) ADDITIONAL CANDIDATE DISCLOSURES.

In addition to disclosures required by subsections (a) through (d) herein, each candidate for any city elective office shall disclose the following information with the city clerk at the time at which he or she files for candidacy:

(1) Whether the candidate has ever been convicted of a felony during the last 15 years. If yes, an explanation of the circumstances.

(2) Whether the candidate has filed bankruptcy within the last seven years or has been subject to a debt collection judgment in federal, state or local court within the last three years.

(3) Whether the candidate has been subject to a judgment for child support arrearages within the last three years.

(4) The names and addresses of boards and commissions the candidate presently serves on except for any and all boards and commissions a candidate is appointed to by the city council.

(f) [COMPLIANCE WITH APPLICABLE PROVISIONS.]

In addition to the provisions of this section, the mayor, each member of the city council, the city attorney, appointive officers and candidates for city elective office must comply with the applicable provisions of NRS. ch. 281.

(Ord. No. 4506, § 1, 4-25-95; Ord. No. 6435, § 1, 8-9-17)

Sec. 2.20.190. Campaign contributions and expenditures; reports required.

(a) Every candidate for city office at a primary or general election shall report all campaign contributions and expenses on forms prescribed and provided by the secretary of state and signed by the candidate under penalty of perjury within such time frames and covering such periods as may be required by NRS ch. 294A.

(b) Every candidate for city office at a special election to fill a vacancy or a special election to determine whether a public officer will be recalled shall report his or her campaign contributions and expenses on forms prescribed and provided by the Nevada Secretary of State and signed by the candidate under penalty of perjury within such time frames and covering such periods as may be required by NRS ch. 294A.

(c) The mayor and each member of the city council shall report all contributions received during every year other than the year in which the general election is held for their respective office on forms prescribed and provided by the city clerk and signed by the mayor or member under penalty of perjury. The reports required by this subsection are in addition to the reports required of the mayor and each member of the city council by NRS ch. 294A. The reports required by this subsection shall be filed with the city clerk pursuant to time frames and deadlines as determined by resolution approved by the city council. As used in this subsection, ″contribution″ has the meaning ascribed to it in NRS 294A.007.

(d) In addition to the provisions of this section, candidates for city elective office must comply with the applicable provisions of NRS ch. 294A.

(Ord. No. 4506, § 1, 4-25-95; Ord. No. 5318, § 1, 3-26-02; Ord. No. 6435, § 2, 8-9-17)

Sec. 2.20.200. Distribution of code of ethics ordinance.

The city clerk shall cause a copy of this code of ethics ordinance to be distributed to every public officer or candidate as soon as possible after enactment of this chapter. Each public officer shall be furnished a copy before entering upon the duties of his office or employment.

(Ord. No. 4506, § 1, 4-25-95)

Sec. 2.20.210. Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this chapter or any part thereof is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the

remaining portions of this chapter or any part thereof. The city council of the City of Reno, Nevada, hereby that it would have passed each section, subsection, subdivision, paragraph, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, subdivisions, paragraphs, sentences, clauses or phrases be declared unconstitutional invalid or ineffective.

(Ord. No. 4506, § 1, 4-25-95)

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CHAPTER 2.22. REGISTRATION AND REGULATION OF LOBBYISTS*

Sec. 2.22.010. Definitions.
Sec. 2.22.020. Registration; form for filing.
Sec. 2.22.030. Identification badge.
Sec. 2.22.040. Registration fees
Sec. 2.22.050. Violations and penalties.

Sec. 2.22.010. Definitions.

Communication or *communicate* means all forms of communication, whether in person, in writing or in electronic form, intended to influence the mayor or a council member on any matter over which the City Council has supervision, control, jurisdiction or advisory power.

Family member means a person′s spouse, parent or child.

Lobbyist means a person who receives anything of value to communicate with a policymaker on behalf of someone other than himself or herself to influence a policymaker to take action on any matter over which the policymaker has supervision, control, jurisdiction or advisory power. ″Lobbyist″ does not include:

(1) Persons who confine their activities to formal appearances at public meetings before the city council and other city boards, commissions and committees and who clearly identify themselves and the interest or interests for whom they are testifying.

(2) Employees of a bona fide news medium who communicate with policymakers for the sole purpose of carrying out their news gathering function.

(3) City staff communicating with a policymaker within the course and scope of their employment or in furtherance of negotiations with any recognized employee organization pursuant to NRS Chapter 288.

(4) Employees and elected officers and of the State of Nevada, the federal government, and other local governments, agencies and Indian tribes communicating with a policymaker within the course and scope of their employment or the office to which they were elected.

(5) Persons who communicate with a policymaker within the course and scope of any judicial proceeding.

Policymaker means the mayor or a council member, a planning commission member, or an appointive officer as designated in section 1.090(3) of the Reno City Charter. ″Policymaker″ does not include chief deputy city attorneys as set forth in section 1.090(3)(c) of the Reno City Charter.

(Ord. No. 6415, § 1, 10-12-16)

Sec. 2.22.020. Registration; form for filing.

(a) *Registration.* Prior to any communication with a policymaker, a lobbyist shall complete and file a registration form with the city clerk, in a form prescribed by the city clerk. If a

***Editor's note—**Section 3 of Ord. No. 6415, states, ″This Ordinance shall be in effect from January 1, 2017, after its passage, adoption and publication in one issue of a newspaper printed and published in the City of Reno.″

communication occurs prior to the completion of the registration form, a registration form must be filed with the city clerk prior to the next scheduled city council or planning commission meeting, as applicable, or within five working days after the communication, whichever is earlier.

(b) *Form of filing.* At a minimum, the registration form shall contain the following information:

(1) The lobbyist's full name, permanent address, place of business and business address while lobbying, if different from place of business; and

(2) The full name and complete address of each person, if any, by whom the lobbyist is retained or employed or on whose behalf the registrant appears; and

(3) A description of the principal areas of interest on which the lobbyist expects to lobby, including the names and addresses of any employer, individual or entity from which the lobbyist will receive a salary or compensation for lobbying said area of interest; and

(4) A listing of any direct business associations or partnerships involving the policymaker and the lobbyist, any person by whom the lobbyist is retained or employed, or any household member or family member of the lobbyist. The listing must include any such association or partnership constituting a source of income or involving a debt or an interest in real estate. The listing must include the name of the policymaker that the lobbyist, any person by whom the lobbyist is retained or employed, or any household member or family member of the lobbyist has provided consulting, advertising or other professional services in connection with a political campaign.

(5) Signature of lobbyist and certification that all the information contained in the form is true and complete to the best of his or her knowledge, information and belief.

(c) *Continuing duty.* The duty to register shall be a continuing duty. A lobbyist shall file a supplemental registration with the city clerk whenever anyone engages the lobbyist to communicate with a policymaker to influence them to take action on any matter over which the policymaker has supervision, control, jurisdiction or advisory power. If any communication occurs prior to the completion of the supplemental registration form, a supplemental registration form must be filed with the city clerk prior to the next scheduled city council meeting, or within five working days after the communication, whichever is earlier.

(d) *The registration form shall be a public document.* The city clerk shall maintain a registration database which shall be made available to the public.

(e) The registration form may be filed with the city by delivering or mailing a hard copy, via electronic mail or via fax machine.

(Ord. No. 6415, § 1, 10-12-16)

Sec. 2.22.030. Identification badge.

The city clerk shall furnish an identification badge to each lobbyist filing a registration form. The identification badge must be worn by the lobbyist at city hall at all times.

(Ord. No. 6415, § 1, 10-12-16)

Sec. 2.22.040. Registration fees.

Lobbyists may be required to pay an annual fee set by the city council.

(Ord. No. 6415, § 1, 10-12-16)

Sec. 2.22.050. Violations and penalties.

(a) Any person who knowingly violates any of the provisions of this chapter is guilty of a misdemeanor.

(b) In addition to any criminal penalty imposed pursuant to this section, any person who knowingly violates this chapter is subject to a civil penalty in an amount not to exceed $500.00.

(c) The city attorney may recover the penalty in a civil action brought in the name of the City of Reno in City of Reno Municipal Court.

(Ord. No. 6415, § 1, 10-12-16)

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CHAPTER 2.24. GOVERNMENT IMPROPRIETIES AND UNLAWFUL ACTS

Art. I. Unlawful Employment Discrimination, Harassment or Retaliation by City Council Members, the City Manager, the City Attorney or the City Clerk

Sec. 2.24.010. Definitions.
Sec. 2.24.020. Policy.
Sec. 2.24.030. Complaint procedure.
Sec. 2.24.040. Special counsel.
Sec. 2.24.050. Confidentiality.
Sec. 2.24.060. Retaliation prohibited.
Sec. 2.24.070. Violations of policy.
Sec. 2.24.080. Administration.

Art. II. Improper Governmental Action

Sec. 2.24.200. Definitions.
Sec. 2.24.210. Policy.
Sec. 2.24.220. Complaint procedure.
Sec. 2.24.230. Special counsel.
Sec. 2.24.240. Confidentiality.
Sec. 2.24.250. Retaliation prohibited; appeal.
Sec. 2.24.260. Use of provisions for harassment prohibited; disciplinary procedures authorized for disclosure of untruthful information.
Sec. 2.24.280. Effect of provisions upon criminal law.

ARTICLE I. UNLAWFUL EMPLOYMENT DISCRIMINATION, HARASSMENT OR RETALIATION BY CITY COUNCIL MEMBERS, THE CITY MANAGER, THE CITY ATTORNEY OR THE CITY CLERK

Sec. 2.24.010. Definitions.

The following words and phrases, when used in this article shall have the meanings respectively ascribed to them:

City officer means the mayor, a city council member, the city manager, the city attorney or the city clerk.

Harassment means unwanted and unwelcome words, deeds, actions, gestures, symbols, or behaviors at the workplace or at employer-sponsored events based on an employee's race, sex (including pregnancy), gender (including gender nonconformity and status as a transgender or transsexual individual), religion, creed, national origin, ancestry, age, physical or mental disability, citizenship, genetic information, past, present or prospective service in the uniformed services, or any other characteristic protected under applicable federal, state, or local law. Forms of harassment include, without limitation:

(1) Verbal (for example, epithets, derogatory statements, slurs, derogatory comments or jokes).

(2) Physical (for example, assault or inappropriate physical contact).

(3) Visual (for example, displaying derogatory posters, cartoons, drawings or making derogatory gestures).

(4) Online (for example, derogatory statements or sexually suggestive postings in any social media platform including Facebook, Twitter, Instagram, Snapchat, etc.).

Sexual harassment means any harassment based on someone′s sex or gender. It includes harassment that is not sexual in nature (for example, offensive remarks about an individual′s sex or gender), as well as any unwelcome sexual advances or requests for sexual favors or any other conduct of a sexual nature, when any of the following is true:

(1) Submission to the advance, request or conduct is made either explicitly or implicitly a term or condition of employment.

(2) Submission to or rejection of the advance, request or conduct is used as a basis for employment decisions.

(3) Such advances, requests or conduct have the purpose or effect of substantially or unreasonably interfering with an employee′s work performance by creating an intimidating, hostile or offensive work environment.

(Ord. No. 6475, § 1, 7-18-18)

Sec. 2.24.020. Policy.

It is hereby declared to be the public policy of the City of Reno:

The city strictly prohibits and does not tolerate unlawful employment discrimination, harassment or retaliation against employees or any other covered persons because of race, religion, creed, national origin, ancestry, sex (including pregnancy), gender (including gender nonconformity and status as a transgender or transsexual individual), age, physical or mental disability, citizenship, genetic information, past, current or prospective service in the uniformed services, or any other characteristic protected under applicable federal, state, or local law.

The city is committed to enforcing this policy against all forms of unlawful employment discrimination, harassment and retaliation. However, the effectiveness of city efforts depends largely on employees or covered persons notifying the proper authorities about inappropriate or unlawful workplace conduct. If an employee or covered person feels that he, she or someone else may have been subjected to conduct that violates this policy, it should be reported immediately. If employees or covered persons do not report unlawful conduct, the City of Reno may not become aware of a possible violation of this policy and may not be able to take appropriate corrective action.

(Ord. No. 6475, § 1, 7-18-18)

Sec. 2.24.030. Complaint procedure.

(a) Except as otherwise provided by law, if an employee or covered person is subjected to any conduct by a city officer that they believe violates section 2.24.020 or witnesses any such conduct, the employee or covered person should promptly contact the director of human resources, ideally within ten days of the offending conduct. If a response is not received within five days after reporting an incident of perceived harassment, the complainant should immediately contact the city manager or the city attorney, as appropriate. These individuals will ensure that a prompt investigation is conducted.

(b) Although not mandatory to use, a complaint form is available at the human resources department to make a complaint. Employees or covered persons may also use the published city employee tip line or the electronic tip submission form to make a complaint. Any oral or written complaint should be candid, truthful, and as detailed as possible, including the names of all individuals involved and any witnesses. Any manager or supervisor who observes a city officer engage in unlawful employment discrimination, harassment or retaliation must report the conduct to the director of human resources so that an investigation can be made and corrective action taken, if appropriate.

(c) Upon receiving the complaint, the director of human resources will notify the mayor or city manager, as applicable, and consult with the city attorney or special counsel, as appropriate and/or required. The mayor may place the city manager or city clerk on paid administrative leave for the duration of an investigation. The investigative team, as determined appropriate by the circumstances, will promptly inform the city council of the complaint and the plan for the investigation, ideally within ten days. The city council shall be regularly apprised of the status of the investigation.

(d) The director of human resources will ensure that a prompt and thorough investigation is conducted. The city will directly and thoroughly investigate the facts and circumstances of all claims of unlawful employment discrimination, harassment or retaliation. At a minimum, the final investigative report will contain: (i) a summary of the issues raised; (ii) the relevant facts; (iii) the methodology used to conduct the investigation; (iv) the scope of the investigation; (v) applicable law and city policies; (vi) its findings; and (vii) any recommendations, if applicable and appropriate.

(e) Upon completion, the final investigative report shall be provided to city council.

(f) If the allegations are not confirmed by the investigator, the director of human resources will follow up with the city officer named in the complaint to inform him or her that the allegations have not been confirmed. The director of human resources will provide the city officer with a copy of the written policies, remind the city officer that the city takes allegations of unlawful discrimination, harassment and retaliation seriously, and stress that any retaliation against the complaining employee will not be tolerated.

(g) If the allegations are confirmed by the investigator, the city council may be asked to assess its options, determine the range of available corrective measures and impose appropriate discipline. The director of human resources will document all disciplinary and corrective measures taken.

(h) The director of human resources will notify the complaining employee that the city investigated the allegations, reached a conclusion and took required action, as appropriate.

(Ord. No. 6475, § 1, 7-18-18)

Sec. 2.24.040. Special counsel.

The mayor or the city manager shall have the ability to request, and the city council may authorize the mayor or the city manager on the behalf of the city council to employ special counsel to perform the civil duties of the city attorney under this article on an as-needed basis pursuant to Reno City Charter, article III, § 3.070.

The mayor or the city manager shall have the ability to request, and the city council may authorize the city attorney to employ special counsel to perform the civil duties of the city attorney under this article on an as-needed basis pursuant to NRS 41.0344.

(Ord. No. 6475, § 1, 7-18-18)

Sec. 2.24.050. Confidentiality.

City officers and employees are requested to cooperate fully in any investigation and use their best judgment and discretion when discussing the investigation with others. The investigative team for the City of Reno will work to maintain confidentiality to the extent possible throughout any investigation; however, complete confidentiality cannot be guaranteed. Any information revealed during the course of an investigation will be provided to individuals identified as those who have a need to know.

(Ord. No. 6475, § 1, 7-18-18)

Sec. 2.24.060. Retaliation prohibited.

(a) The City of Reno expressly prohibits any form of discipline, reprisal, intimidation or retaliation for good faith reporting of incidents of unlawful employment discrimination or harassment of any kind, pursuing any unlawful employment discrimination harassment claim of any kind or cooperating in related investigations. Any retaliatory conduct of any kind should be reported to the director of human resources.

(b) If false testimony is provided intentionally or in bad faith by an employee or covered person in connection with any investigation, the employee or covered person may be subjected to discipline, up to and including termination.

(Ord. No. 6475, § 1, 7-18-18)

Sec. 2.24.070. Violations of policy.

(a) If as a result of the investigation the city council determines that the city manager or city clerk subjected an employee or covered person to unlawful employment discrimination, harassment or retaliation in violation of this policy, the city manager or city clerk will be subject to discipline, up to and including termination of employment.

(b) If as a result of the investigation the city council determines that the mayor, a city council member, or city attorney subjected an employee or covered person to unlawful employment discrimination, harassment or retaliation in violation of this policy, the mayor, city council member, or city attorney will be subject to discipline, up to and including removal from office pursuant to NRS 283.440 (removal from office other than by impeachment or accusation), and Reno City Charter, Article III, 3.150.

(Ord. No. 6475, § 1, 7-18-18)

Sec. 2.24.080. Administration.

The human resources department is responsible for the administration of this policy. If an employee or covered person has any questions regarding this policy or questions about unlawful employment discrimination, harassment or retaliation that are not addressed in this policy, they should contact the human resources department or the city attorney's office.

(Ord. No. 6475, § 1, 7-18-18)

ARTICLE II. IMPROPER GOVERNMENTAL ACTION

Sec. 2.24.200. Definitions.

The following words and phrases, when used in this article shall have the meanings respectively ascribed to them:

City officer means a person elected or appointed to a position with the city that involves the exercise of a local governmental power, trust or duty, including:

(1) Actions taken in an official capacity which involve a substantial and material exercise of administrative discretion in the formulation of city policy; and

(2) The expenditure of money; and

(3) The enforcement of state law, regulation and city ordinances.

Employee means any person who performs public duties under the direction and control of a city officer for compensation paid by or through the city.

Improper governmental action means any action taken by a city officer or employee in the performance of the city officer's or employee's official duties, whether or not the action is within the scope of employment of the city officer or employee, which is:

(1) In violation of any state law or regulation, including the city Charter;

(2) In violation of an ordinance of the City of Reno;

(3) An abuse of authority;

(4) Of substantial and specific danger to the public health or safety; or,

(5) A gross waste of public money.

Official authority or influence includes taking, directing others to take, recommending, processing or approving any personnel action such as an appointment, promotion, transfer, assignment, reassignment, reinstatement, restoration, reemployment, evaluation or other disciplinary action.

Reprisal or retaliatory action includes:

(1) The denial of adequate personnel to perform duties;

(2) Frequent replacement of members of the staff;

(3) Frequent and undesirable changes in the location of an office;

(4) The refusal to assign meaningful work;

(5) The issuance of letters of reprimand or evaluations of poor performance;

(6) A demotion;

(7) A reduction in pay;

(8) The denial of a promotion;

(9) A suspension;

(10) A dismissal;

(11) A transfer;

(12) Frequent changes in working hours or workdays; or

(13) If the city officer or employee is licensed or certified by an occupational licensing board, the filing with that board, by or on behalf of the employer, of a complaint concerning the city officer or employee, if such action is taken, in whole or in part, because the city officer or employee disclosed information concerning improper governmental action.

(Ord. No. 6474, § 1, 7-18-18)

Sec. 2.24.210. Policy.

To the extent not expressly prohibited by law, it is hereby declared to be the public policy of the city council that city officers and employees are encouraged to disclose improper governmental action, and it is the intent of the city council to protect the rights of any city officer or employee who makes such a disclosure.

A city officer or employee shall not directly or indirectly use or attempt to use the official authority or influence of the city officer or employee to intimidate, threaten, coerce, command, influence or attempt to intimidate, threaten, coerce, command or influence another city officer or employee, as applicable, in an effort to interfere with or prevent the disclosure of information concerning improper governmental action.

The city council is committed to enforcing this policy. However, the effectiveness of city efforts depends largely on city officers and employees notifying the proper authorities about improper or unlawful governmental action. If a city officer or employee witnesses conduct that violates this policy, it should be reported immediately. If city officers or employees do not report improper governmental action, the city council or city manager, as applicable, may not become aware of a possible violation of this policy and may not be able to take appropriate corrective action.

(Ord. No. 6474, § 1, 7-18-18)

Sec. 2.24.220. Complaint procedure.

(a) Except as otherwise provided by law, if a city officer or employee witnesses conduct that they believe violates this policy, the city officer or employee should promptly contact the director of human resources, ideally within ten days of the offending conduct.

(b) Although not mandatory to use, a complaint form is available at the human resources department with which to make a complaint. City officers or employees may also use the published city employee tip line or the electronic tip submission form to make a complaint. Any oral or written complaint should be candid, truthful, and as detailed as possible, including the names of all individuals involved and any witnesses. Any manager or supervisor who observes a city officer or employee engage in improper governmental action must report the conduct to the director of human resources so that an investigation can be made and corrective action taken, if appropriate.

(c) Upon receiving the complaint, the director of human resources will notify the city manager or mayor, as applicable, and will consult with the city attorney or special counsel, as appropriate and/or required. The mayor may place the city manager or city clerk on paid administrative leave for the duration of the investigation as circumstances warrant. If the matter involves the mayor, a city council member, city manager, city attorney or city clerk, either the city attorney or the city manager, as applicable, will promptly inform the city council of the complaint and the plan for the investigation, ideally within ten days. The city council shall be regularly apprised of the status of the investigation.

(d) The director of human resources will ensure that a prompt and thorough investigation is conducted. The city will directly and thoroughly investigate the facts and circumstances of all allegations of perceived improper governmental action. At a minimum, the final investigative report will contain: (i) a summary of the issues raised; (ii) the relevant facts; (iii) the methodology used to conduct the investigation; (iv) the scope of the investigation; (v) applicable law and applicable city policies; (vi) its findings; and (vii) any recommendations, if applicable and appropriate.

(e) Upon completion, the final investigative report shall be provided to city council.

(f) If the allegations are not confirmed, the director of human resources will follow up with the city officer or employee named in the complaint to inform him or her that the allegations have not been confirmed. The director of human resources will remind the city officer or employee named in the complaint that allegations of improper governmental action are taken seriously. The director of human resources will provide the city officer or employee with a copy of the written policies and remind the city officer or employee that retaliation against the complaining city officer or employee is prohibited.

(g) If the allegations are confirmed, the city manager or city council, as applicable, will assess the options, determine the range of available corrective measures and impose appropriate discipline. The director of human resources will document all disciplinary and corrective measures taken.

Thereafter, the director of human resources will follow up with the complaining city officer or employee to inform him or her that the allegations have been investigated, a conclusion has been reached and, if appropriate, action has been taken where necessary. The director of human resources will explain to the complaining city officer or employee how the action taken has remedied the problem.

(Ord. No. 6474, § 1, 7-18-18)

Sec. 2.24.230. Special counsel.

The mayor or the city manager shall have the ability to request, and the city council may authorize the mayor or the city manager on behalf of the city council to employ special counsel to perform the civil duties of the city attorney under this article on an as-needed basis pursuant to Reno City Charter, article 3, § 3.070.

The city manager shall have the ability to request, and the city council shall authorize the city attorney to employ special counsel to perform the civil duties of the city attorney under this article on an as-needed basis pursuant to NRS 41.0344.

(Ord. No. 6474, § 1, 7-18-18)

Sec. 2.24.240. Confidentiality.

City officers and employees are requested to cooperate fully in any investigation and use their best judgment and discretion when discussing the investigation with others. The investigative team for the City of Reno will work to maintain confidentiality to the extent possible throughout any investigation; however, complete confidentiality cannot be guaranteed. Any information revealed during the course of an investigation will be provided to individuals identified as those who have a need to know.

(Ord. No. 6474, § 1, 7-18-18)

Sec. 2.24.250. Retaliation prohibited; appeal.

(a) The City of Reno expressly prohibits any form of reprisal or retaliatory action for good faith reporting of incidents of improper governmental action or cooperating in related investigations. Any retaliatory conduct of any kind should be reported to the director of human resources.

(b) If a city officer or employee has disclosed information concerning improper governmental action and believes that as a result of that disclosure, a reprisal or retaliatory action has been taken against the city officer or employee, the city officer or employee may submit a request for a hearing by filing a complaint with the director of human resources in accordance with section 2.24.220 not later than two years after the information is disclosed and within 60 days after the alleged reprisal or retaliatory action was taken.

(c) A special administrative hearing officer shall be appointed to hear the matter detailed in the request for a hearing in accordance with RMC Title 1, Chapter 1.05, Art. VI (administrative hearings). Upon completion, the final investigative report shall be provided to the hearing officer.

(d) If the special administrative hearing officer determines that the action taken by the city officer or employee named in the request for hearing was a reprisal or retaliatory action, the special administrative hearing officer may issue an order directing the proper person to desist and refrain from engaging in such action. If applicable, the director of human resources shall then consult with the mayor, the city manager, or the city attorney, as appropriate, to recommend options for action to the city council pursuant to section 2.24.220(g).

(Ord. No. 6474, § 1, 7-18-18)

Sec. 2.24.260. Use of provisions for harassment prohibited; disciplinary procedures authorized for disclosure of untruthful information.

(a) A city officer or employee shall not use the provisions of NRS 281.611 to 281.671, inclusive, or section 2.24.200 to section 2.24.260, inclusive, to harass a city officer, as applicable.

(b) If false testimony is provided intentionally or in bad faith by a city officer or employee in connection with any investigation, the city officer or employee may be subjected to discipline, up to and including termination or removal from office pursuant to NRS 283.440 (removal from office other than by impeachment or accusation), and Reno City Charter, article III, section 3.150.

Sec. 2.24.270. Summary of provisions to be prepared and made available to city officers and employees each year.

Each year the city manager, or designee, shall make available to each city officer or employee a written summary of section 2.24.200 to section 2.24.280, inclusive, and NRS 281.611 to 281.671, inclusive.

(Ord. No. 6474, § 1, 7-18-18)

Sec. 2.24.280. Effect of provisions upon criminal law.

Section 2.24.200 to section 2.24.280, inclusive, are intended to be directory and preventive rather than punitive, and do not abrogate or decrease the effect of any of the provisions of NRS or the municipal code which define crimes or prescribe punishments with respect to the conduct of city officers or employees.

(Ord. No. 6474, § 1, 7-18-18)

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Title 4 BUSINESS LICENSE CODE*

Ch. 4.04. General Provisions, §§ 4.01.010—4.04.230
Ch. 4.05. Mobile Vending Units, §§ 4.05.005—4.05.030
Ch. 4.06. Motel Inspection Program, §§ 4.06.005—4.06.030, 4.06.100—4.06.120, 4.06.200—4.06.230
Ch. 4.07. Adult Business, §§ 4.07.005—4.07.007, 4.07.20—4.07.40
Ch. 4.08. Sidewalk Vendors, §§ 4.08.010—4.08.120

Editor's note—Ord. No. 4763, § 1, adopted July 8, 1997, repealed Title 4, in its entirety, which pertained to business licenses and regulations. Subsequently, Ord. No. 4764, adopted July 8, 1997, added a new Ch. 4.04 to read as herein set out. See the Code Comparative Table.

Charter reference—Authority to regulate and impose a license tax for revenue upon all businesses, trades and professions, § 2.140.

State law reference—Power of municipal governing bodies to fix, impose and collect license taxes on all lawful businesses, NRS 268.095.

Case law reference—(1) City license and county license may be required for the same business. If a person combines within himself more than one distinct occupation or business, he could be compelled to take out a license for each occupation or business. Ex parte Siebenhaur, 14 Nev. 365 (1879).

(2) Licensee takes his license subject to such conditions as the legislature sees fit to impose. *Wallace v. Mayor of City of Reno,* 27 Nev. 71, 73 Pac. 528, 63 L.R.A. 337, 103 Am. St. Rep. 747 (1903).

(3) Purpose of an exaction from the public in the form of a tax or license, either for revenue or in the exercise of the police power, is for the benefit of the locality from which the money is collected. *State v. Boyd,* 27 Nev. 249, 74 Pac. 654 (1903).

(4) Under our statutes and decisions it is well settled that a license may be revoked. State v. Reno City Council, 36 Nev. 334, 136 Pac. 110, 50 L.R.A. (N.S.) 195 (1913).

(5) Under city ordinance providing that every person engaged in the business of selling at retail, or any manner other than at a fixed place of business within the city, any goods, wares, or merchandise shall obtain a license, a person owning a place of business outside the city limits where he manufactured and compounded certain articles used in the grocery trade, and acting as his own salesman, solicited orders in the city and sold to restaurants, hotels, bakeries, and confectioners other kinds of groceries than manufactured and compounded by him, in both small and large quantities and in broken and unbroken packages, and filled orders given to him by such customers, is a retailer and liable for the license mentioned in the ordinance. Bryan v. City of Sparks, 36 Nev. 573, Pac. 522 (1913).

(6) "The reasons given for sustaining the requirement of a bond are manifest and convincing as set forth in Ex Parte Cardinal (Calif.) 150 Pac. 348: `We see no reason to doubt the power of the state, or any county or municipality, in the exercise of its police power of regulation, to require security in the shape of a bond or insurance policy from its licensees in all cases where the giving of such security may fairly be held to a reasonable requirement for the protection of the public'." Ex parte Counts, 39 Nev. 61, 153 Pac. 93 (1915).

(7) An admission to the bar of a state is a vested and valuable right, but subject to taxation, including a city occupation tax. The imposition of a license tax upon an occupation is not illegal, because not expressly authorized by the state constitution, but is permissible, unless

prohibited thereby. There is no inherent vice in the taxation of vocations. On the contrary, business is as legitimate an object of the taxing power as property. Ex parte Dixon, 43 Nev. 196, 183 Pac. 642 (1919).

(8) Charter of Carson City which after enumerating many kinds of business upon which the city is authorized to impose a license tax, authorizes it to fix and have collected a license tax on all trades, professions, and classes of business not thereinbefore specified. "To the layman this provision would be clear and unequivocal, needing no interpretation, elucidation, amplification, or consideration. Why not so in the realm of jurisprudence? To the layman it no doubt appears at a glance that this general provision could have but one meaning, purpose, or object, for the discovery of which no prolonged or profound search should be necessary, namely, to make subject to a tax levy any business, trade or profession which through oversight had been omitted from the list of businesses enumerated . . . The sole purpose of the legislation was to enable the city to bring all kinds of business within its taxing power." Carson City v. Red Arrow Garage Auto Co., 47 Nev. 473, 225 Pac. 487 (1924).

(9) Power of the legislature under constitution to tax a business is . . . settled, and the authority to delegate it to municipal corporations cannot be questioned. Ex parte Nyod, 48 Nev. 120, 227 Pac. 1020 (1924).

Cross references—Food handlers, Ch. 10.06; child care facilities, Ch. 10.14.

CHAPTER 4.04. GENERAL PROVISIONS*

Sec. 4.04.005. Purpose and short title.
Sec. 4.04.006. Scope.
Sec. 4.04.007. Business definition.
Sec. 4.04.008. Other definitions.
Sec. 4.04.020. General requirement to have a business license; expressive merchandise exemption.
Sec. 4.04.030. Existing businesses.
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Sec. 4.04.060. Application process.
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Sec. 4.04.070. Approval process.
Sec. 4.04.080. Term of license.
Sec. 4.04.090. License for less than full period.
Sec. 4.04.100. Renewal of license.
Sec. 4.04.110. Fees.
Sec. 4.04.120. Payments.
Sec. 4.04.130. Duplicate licenses.
Sec. 4.04.140. Penalties.
Sec. 4.04.150. Grounds for denial, revocation, suspension and summary suspension of license.
Sec. 4.04.160. Appeals.
Sec. 4.04.170. Hearing.
Sec. 4.04.180. Duties of licensees.
Sec. 4.04.190. Authority of the city.
Sec. 4.04.200. Notice.
Sec. 4.04.210. Severability.
Sec. 4.04.220. Confidentiality.
Sec. 4.04.230. Miscellaneous.

Sec. 4.04.005. Purpose and short title.

This title establishes the minimum procedural requirements for business licenses issued by the city, and shall be known as the Business License Code.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.006. Scope.

The provisions of this title apply to all businesses in the city, including licenses pertaining to privileged businesses or franchises (Title 5). Nothing in this title shall be deemed or construed

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***Editor's note—**Ord. No. 6326, § 1, adopted April 16, 2014, changed the title of Ch. 4.04 from "In General" to "General Provisions."

State law reference—Power of municipal governing bodies to fix, impose and collect license taxes on all lawful businesses, NRS 268.095.

Cross references—Massage Establishments, Ch. 4.04; §§ 4.04.150, Grounds for denial, revocation, suspension and summary, suspension of license, grounds for denial of application or renewal; 4.04.160, Appeals; 4.04.180, Duties of licensees.

to exempt any organization from complying with the provisions of any other ordinance of the city, including but not limited to permit requirements, zoning requirements, nuisance ordinances and restrictions on privileged or illegal activities.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.007. Business definition.

Business or *doing business* means any business, enterprise, trade, occupation, calling, profession, vocation, or activity engaged in, conducted or carried on by any person, his agent or employee for the purpose of direct or indirect gain, benefit or advantage within the city and includes, but is not limited to:

(1) Any activity conducted by a person for which such person is required to file with the Internal Revenue Service a Schedule C (Form 1040), Profit or Loss From Business Form, or its equivalent or successor form, or a Schedule F (Form 1040), Farm Income and Expenses Form or its equivalent or successor form, for the activities;

(2) The performance of services for compensation that are not normally subject to withholding taxes, including but not limited to, independent contractors and commissioned sales agents; or

(3) The renting or leasing of:

a. Any commercial or industrial property in the city, or

b. Three or more residential dwelling units on one parcel of land in the city.

The terms "business" or "doing business" do not include:

(1) Activities conducted by, or for the exclusive benefit of, organizations that are certified as tax exempt entities pursuant to 26 U.S.C. Section 501(c), including but not limited to organizations operated for religious, charitable, scientific, literary, educational, or fraternal purposes.

(2) Activities of any federal or Nevada based governmental or quasi-governmental entity acting in its capacity as such.

(3) Wages earned as an employee.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.008. Other definitions.

As used in any title or ordinance regulating business or requiring a license for the operation of a business, the following definitions apply, except where the context clearly indicates that a different meaning is intended and except where an ordinance concerning a particular business contains a specific provision to the contrary:

Applicant means any person who has applied for a city business license.

Administrative hearing officer means the person designated by the city to hear disputes that arise from the administration of Title 4 and Title 5.

Charitable organization means an organization which:

(1) Is exempt from federal income tax pursuant to 26 U.S.C. 501(c) of the United States Internal Revenue Code, and

(2) Has received from the Nevada Secretary of State a certificate of nonprofit corporation, association or society.

Chief of police means the top ranking official at the Reno Police Department or such official's designee.

City means the City of Reno, Nevada.

Coin-operated amusement device means any machine, mechanical, electronic, or video, which upon the insertion of a coin, slug, token, plate or disc, may be operated by the public generally for use as a game, entertainment or amusement, whether or not registering a score. It includes such devices as marble machines, pinball machines, skill ball, mechanical grab machines and all games, operations or transactions similar thereto under whatever name they may be indicated.

Coin-operated music machine means any music vending machine, contrivance or device which, upon the insertion of a coin, slug, token, plate, disc, or key into any slot, crevice, or other opening, or by the payment of any price, operates or may be operated, for the emission of songs, music or similar amusement.

Coin-operated stationary amusement ride means any machine, which upon the insertion of a coin, slug, token, plate or disc, may be operated by the public generally, or which automatically operates as a stationary amusement ride or device, by shaking, bucking, or any other type of movement, or by any blinking or flashing of lights or other electronic device, whether specifically designed for children or not.

Commercial or industrial property includes but is not limited to any structure used primarily for a business purpose.

Distribution center, for the purpose of this chapter, means a warehouse or portion thereof whose primary purpose is for the receipt and transfer of goods, products or merchandise to another location. Also commonly referred to as a ″fulfillment center.″

Extraordinary circumstances means situations which pose an immediate threat to the public health, safety, morals or welfare and where such immediate threat can be remedied by prompt action.

Fire chief means the top ranking official at the Reno Fire Department or such official's designee.

Gross receipts as used in connection with the determination of license fees, means the total amount received for all goods sold or for the performance of any act or service within the city. Gross receipts shall include all receipts, cash, credits, services or property received without any deduction for the cost of property sold, cost of materials used, labor or service costs, interest paid or payable, losses or any other expense whatsoever.

Gross receipts shall not include:

(1) Any taxes required by law to be included in or added to the purchase price and collected from the consumer or purchaser.

(2) The portion of the receipts of a general contractor which represents payments to subcontractors provided that such subcontractors are licensed under this title and provided the general contractor furnishes the city license office with the names and addresses of the subcontractors and the amounts paid to each subcontractor.

(3) The receipts from sales of merchandise or services performed beyond the city limits where a business license for such sale or service is required by another political subdivision.

(4) Those receipts subject to a franchise agreement with the city.

(5) The gross receipts of an owner engaged in the business of renting or leasing such owner's commercial or industrial property shall be calculated at four percent of total gross receipts. An owner engaged in the business of renting or leasing such owner's commercial or industrial property and receives gross income in the amount of $500,000.00 (before the 96 percent exemption) or less, is not required to obtain a business license.

(6) Those receipts which the city is prohibited from taxing or imposing a licensee fee against pursuant to the Constitution or the laws of the United States or the Constitution or laws of the State of Nevada.

License means any license issued pursuant to this title.

Licensee means any person to whom a license has been issued pursuant to this title.

Manufacturing facility, for the purposes of this chapter, means an enclosed structure or a portion thereof and any associated land whose primary purpose is for fabrication, assembly, processing or packaging of goods, products or merchandise and related activities.

Person or *persons* means any natural persons, partnerships, firms, joint ventures, societies, associations, clubs, trustees, trusts or corporations, or officers, agents or any kind of personal representative acting, in any capacity, for himself or any other person.

Residential dwelling unit includes, but is not limited to:

(1) Any hotel, lodging house, apartment house, rooming house, motel or single-family dwelling, with any rental for a period of 28 consecutive days or more.

(2) Any unit which contains a home-based business as defined in Reno Municipal Code, section 18.06.060.

Warehouse, for the purposes of this chapter, means an enclosed structure or a portion thereof and any associated land whose primary purpose is for the storage of goods, products or merchandise.

(Ord. No. 4764, § 1, 7-8-97; Ord. No. 6359, § 1, 1-28-15; Ord. No. 6430, § 1, 6-7-17)

Sec. 4.04.020. General requirement to have a business license; expressive merchandise exemption.

(a) It shall be unlawful for any person to do business for himself or for any other person within the city or to hold themselves out as a business within the city unless such a person has first paid all applicable license fees and obtained all licenses required under Title 4 or Title 5. Any person conducting such activities without having procured a license from the city to do so or not complying with any and all regulations contained in this title shall be in violation of this title for each and every day that such activities are carried on. Any person found in violation of this section must immediately cease all non-licensed operations.

(b) The creation, display, offer and sale of First Amendment protected ″expressive merchandise″, as defined in RMC 5.14.010, in parks, sidewalks and other public fora, is hereby exempted from the requirement to obtain a business license.

(c) This section shall not be construed to require any person to obtain a business license prior to doing business within the city if such requirement conflicts with the United States Constitution, applicable statutes of the United States, Nevada Constitution or statutes of the state.

(Ord. No. 4764, § 1, 7-8-97; Ord. No. 6326, § 1, 4-16-14)

Sec. 4.04.030. Existing businesses.

When a new owner takes over an existing business, such new owner may continue to operate the existing business under the existing license[s], pending approval of the new owner's application, provided that:

(1) The existing business is operating under all required licenses;

(2) All required licenses are current;

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(3) The new owner has submitted a completed application and all appropriate fees for a new license[s]; and

(4) The outgoing owner agrees to remain accountable and liable for any violations under the existing license[s] for the first 60 days after the new ownership has submitted a completed application and has submitted all appropriate fees or until the new owner has received all required license[s], whichever is shorter.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.040. Branch locations.

All branch establishments or locations of a business must be registered with the city. "Branch locations" shall include any additional business location doing business under the same name as the primary business location.

Upon receipt of all applicable approvals and fees the city may group all such branch establishments or locations under a single business license.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.050. Transferability.

A license issued under any provision of this title shall not be transferred or assigned, in any manner, nor authorize any person other than the licensee to conduct business. Any purported transfer in violation of this section shall be void and of no effect whatsoever.

A license issued under any provision of this title shall not authorize the conduct of any business at any location other than those specified on the license.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.060. Application process.

Every person required to procure a license under the provisions of this title shall submit an application to the city. The application shall:

(1) Be a written statement upon forms provided by the city;

(2) Require disclosure of all information that the city shall find to be reasonably necessary to the fair and efficient administration of this title;

(3) Be accompanied by the full amount of the fees chargeable for such license; and

(4) Be signed by the applicant if he is a natural person; in the case of an association or partnership, by a member or partner with authority to bind the association or partnership; in the case of a corporation, by an executive officer or some person specifically authorized by the corporation to sign the application, to which must be attached the written evidence of the authority.

All license fees deposited or submitted upon application are nonrefundable unless authorized as refundable by the city finance director or his designee.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.065. Reserved.

Editor's note—Ord. No. 6341, § 1, adopted August 20, 2014, effective August 22, 2014, repealed § 4.04.065, which pertained to stay on the acceptance of business license applications related to medical marijuana establishments operating within the corporate limits of the city. See also the Code Comparative Table.

Sec. 4.04.067. Moratorium on the acceptance of business license applications for pet stores intending to conduct sales of dogs, cats or rabbits.

From and after the effective date of this ordinance, the city shall not file nor accept any business license applications to establish a pet store as defined in RMC 18.24.203.3790 specifically those intending to conduct sales of dogs, cats or rabbits within the corporate limits of the city or its sphere of influence for a period not to exceed 180 days.

(Ord. No. 6329, § 1, 4-16-14)

Sec. 4.04.070. Approval process.

All applications for licenses shall be referred to the appropriate city departments for review and investigation. These departments shall either recommend approval or denial of the application and forward the recommendation to the city license office. The city license office shall review the recommendations of all the applicable departments and decide whether to approve or deny the license. The city license office thereafter shall either issue a license or notify the applicant of denial, including the reason for such denial, in accordance with its decision. Notification shall be sent certified mail, return receipt requested, to the address provided on the license application or by personal service to the applicant. Any applicant that is denied a license shall have the right to be notified of the reason and the option of appealing the decision in accordance with the appeal procedures contained under section 4.04.160.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.080. Term of license.

All licenses shall be issued for a term of one year unless a provision is specifically made for the issuance of a daily or quarterly license. Any original quarterly license will be issued to expire at the end of the current calendar quarter.

All renewals of year-term licenses will be for one year effective the first day of the month in which the original license is issued.

All renewals of quarterly licenses will be for one quarter effective the first day of the subsequent calendar quarter.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.090. License for less than full period.

The city may issue a business license for less than a full year for any good cause shown.

When an existing business expands its operation in scope or manner in such a way that an additional license is required by this title, the additional license shall be issued for a term to expire on the same date as the original license. The fee charged for the additional license shall be prorated in accordance with the number of months remaining until the expiration of the original license, including the month the additional license is issued.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.100. Renewal of license.

A business license may be renewed, provided the renewal fees are received by the city prior to the expiration of the grace period provided for in this title. Any renewal received after that date shall be subject to the penalties provided in this title. All license renewal applications shall be subject to investigation prior to renewal.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.110. Fees.

The license and renewal fees charged pursuant to this title shall be contained in the fee schedule chart which shall be maintained by the city license office, and amended upon approval of the city council. For the privilege of doing business in the city, the city shall have the right to set application fees, administrative fees, investigative fees and any other fees necessary to the administration of this title.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.120. Payments.

All license fees required under this title shall be paid in the lawful money of the United States of America at the city license office. All monies paid for license fees shall be deemed timely if received at such office by 5:00 p.m. on the last day of any grace period under this title or if mailed, containing a postmark on the last day of such grace period as provided in NRS 238.100. All payments which are not so received or postmarked shall be subject to the penalties provided under section 4.04.140.

When the last day of a grace period falls on a Saturday, Sunday or holiday when the designated office is closed, the license fee will be accepted, without penalty, if received at the designated office on the first working day after such Saturday, Sunday or holiday. In all cases where renewal fees are not paid in accordance with this title, a penalty as prescribed in this title shall be imposed.

There shall be a grace period for all license renewal payments as follows:

(1) One day after the expiration date of a daily license;

(2) Fifteen days after the expiration date of a quarterly license; and

(3) Sixty days after the expiration date of an annual license. No license shall be issued until all fees and penalties have been paid.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.130. Duplicate licenses.

A duplicate license may be issued by the city to replace any license previously issued under this title which has been lost, stolen, defaced or destroyed provided the licensee requests a duplicate license, provides a supporting sworn statement and pays the appropriate fees.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.140. Penalties.

Civil: All license related fees shall be due and payable before any person required herein to obtain a license shall commence to do business. In all cases where, by the terms of this title, business licenses have not been obtained before a business is commenced, a penalty of 50 percent of the license fee shall be imposed.

If any license issued under this title becomes delinquent, a penalty of 50 percent of the license fee shall be added for the renewal thereof.

Nothing herein contained shall be construed to prevent the city from recovering the amount of any license fee or penalty provided in this title.

Waiver of civil penalties: Any penalty or portion thereof assessed pursuant to this title may be waived at the discretion of the city manager or his designee.

Criminal: Any violation of any of the provisions of the Reno Municipal Code shall be a misdemeanor and shall be punishable by a fine of not more than $1,000.00 and/or by imprisonment in a county jail for not more than six months.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.150. Grounds for denial, revocation, suspension and summary suspension of license grounds for denial of application or renewal.

Any application or renewal submitted to the city license office pursuant to this title may be denied for the following causes:

(1) The application or any other document is incomplete or contains false, misleading or fraudulent statements;

(2) The applicant or any of its principals fails to satisfy any qualification or requirement imposed by this title, or other local, state or federal laws or regulations that pertains to the particular license;

(3) The applicant or any of its principals is or has engaged in a business, trade or profession without having obtained a valid license, permit or work card when such applicant or principal knew or reasonably should have known that one was required;

(4) The applicant or any of its principals has been subject, in any jurisdiction, to disciplinary action of any kind with respect to a license, permit or work card to the extent that such disciplinary action reflects upon the qualification, acceptability or fitness of the applicant or principal to conduct such a business;

(5) The applicant or any of its principals has been convicted of any crime that involves any local, state or federal law or regulation arising out of the operation of a similar business;

(6) The applicant or any of its principals has been convicted of a crime as a result of having perpetrated deceptive practices upon the public within the last ten years;

(7) The applicant or any of its principals suffers from a legal disability under state or federal laws;

(8) The premises on which the business is proposed to be conducted does not satisfy all local, state or federal laws or regulations which relate to the activity that is to be licensed; or

(9) The applicant or any of its principals is in default on any payments owed to the city.

Grounds for suspension or revocation:

Any license issued pursuant to this title may be revoked or suspended by the city, after notice and opportunity to be heard as provided in this title, for any of the following causes:

(1) Any fraud, misrepresentation or false statement contained in the application for license or renewal;

(2) Any fraud, misrepresentation or false statement made in connection with conducting the business licensed under this title;

(3) Any violation of any law related to the operation of the business including but not limited to provisions of the Reno Municipal Code, the Nevada Revised Statutes or federal law;

(4) Any act or omission by the licensee or his employees or his agents, related to the operation of the business licensed, which violates any law including but not limited to provisions of the Reno Municipal Code, the Nevada Revised Statutes or federal law or constitutes a breach of the peace or nuisance under Reno Municipal Code, chapter 8.22;

(5) Knowingly, or under circumstances that reasonably indicate knowing or willful ignorance of criminal activity, allowing, permitting, aiding, fostering or promoting the conduct of criminal activity on the property of the licensed business, including failing to take reasonable measures to abate, decrease or lessen the frequency or severity of such conduct after receiving notice that such conduct is occurring on the property or otherwise becoming aware of such conduct; or

(6) The non-payment of any amounts owed to the city.

Grounds for summary suspension:

Any license issued pursuant to this title shall be subject to summary suspension by order of the chief of police or by the fire chief whenever there is probable cause to believe that extraordinary circumstances have arisen which are an immediate threat to the public health, safety or welfare and that business operations pursuant to that license increase the level of that threat.

(1) An order of the chief of police or the fire chief pursuant to this section prevails over all other provisions of this title pertaining to suspension of a business license. A suspension may continue until the conditions warranting the order have ceased.

(Ord. No. 4764, § 1, 7-8-97; Ord. No. 6447, § 1, 1-10-18)

Sec. 4.04.160. Appeals.

Denial of license:

Upon the denial of a license or renewal application under title 4 and all administrative decisions under title 5 as defined in section 5.05.017, the applicant is prohibited from conducting any business for which approval was denied until such time as an appeal has been heard and the denial has been reversed as provided herein. Any person aggrieved by the foregoing in the denial of an application for a license shall have the right of appeal to the administrative hearing officer. Such appeal shall be taken by filing with the administrative hearing officer at the city clerk's office within ten business days after notice of the denial has been mailed to such person's last known address, a written statement setting forth fully the grounds for the appeal. The administrative hearing officer shall set the matter for hearing within ten business days and cause notice of the time and place to be given to the applicant. Notice shall be given to the applicant no less than five business days prior to the date of such hearing. The hearing shall be conducted in the manner set forth in section 4.04.170. The decision and order of the administrative hearing officer shall be final and conclusive. Both the city and the applicant shall have the right to appeal the decision of the administrative hearing officer to municipal court, unless appeal to another tribunal is required by law. Any appeal from the hearing officer's decision must be taken within 30 calendar days after notice of the final decision.

Revocation or suspension:

The decision of the administrative hearing officer following a show cause hearing for revocation or suspension under section 4.04.190 may be appealed by the city or any aggrieved party to municipal court, or to another tribunal if required by law, within 30 days after notice of the final decision. If the license is revoked or suspended, no business shall be conducted under that license until such time as an appeal has been heard and the revocation or suspension has been reversed.

Summary suspensions:

Upon the summary suspension of any license issued under title 4 or title 5, the licensee shall have the right to a hearing to appeal the aggrieved action before the administrative hearing officer within 72 hours of such action. The hearing shall be conducted in the manner set forth in section 4.04.170. It shall be the responsibility of the aggrieved licensee to subpoena any and all witnesses relevant to such licensee's case. The decision and order of the administrative hearing officer shall be final and conclusive. Both the city and the licensee shall have the right to appeal the decision of the administrative hearing officer to municipal court, unless appeal to another tribunal is required by law. Any appeal from the summary suspension must be taken within 30 calendar days after notice of the summary suspension.

Fee dispute or other grievance:

Any person aggrieved by the action of the city in the determination of a license fee or any other grievance under title 4 or 5, except as otherwise provided in section 5.05.017, shall have the right of appeal to the administrative hearing officer. Such appeal shall be taken by filing with the administrative hearing officer at the city clerk's office within ten business days after notice of the aggrieved action has been mailed to such person's last known address, a written statement setting forth fully the grounds for the appeal. The administrative hearing officer shall

forthwith set the matter for hearing and cause notice of the time and place to be given to the applicant. Notice shall be given to the applicant no less than five business days prior to the date of such hearing. The hearing shall be conducted in the manner set forth in section 4.04.170. The decision and order of the administrative hearing officer shall be final and conclusive. Both the city and the licensee shall have the right to appeal the decision of the administrative hearing officer to municipal court, unless appeal to another tribunal is required by law. Any appeal from the hearing officer's decision must be taken within 30 calendar days after notice of the final decision.

(Ord. No. 4764, § 1, 7-8-97; Ord. No. 5415, § 1, 1-14-03; Ord. No. 5813, § 1, 3-22-06; Ord. No. 6555, § 1, 3-25-20)

Sec. 4.04.170. Hearing.

(a) All parties may be present at such hearing, may be represented by counsel, may present testimony, and may cross-examine witnesses.

(b) The hearing shall be recorded and the record kept with the administrative file. The rules of evidence of courts of the State of Nevada will be generally followed but may be relaxed at the discretion of the hearing officer when deviation from the technical rules of evidence will aid in ascertaining the facts and to ensure fairness for all parties involved. The rules pertaining to discovery do apply.

(c) The administrative hearing officer shall deliberate upon the evidence and render a decision. If a decision is not rendered within five business days after the conclusion of the presentation of evidence, the action will be deemed to be resolved in favor of the applicant or licensee.

(d) The administrative hearing officer shall file his or her written order. A copy of the order shall be served personally or by certified mail, return receipt requested, to the parties at the address set forth in the written appeal.

(Ord. No. 4764, § 1, 7-8-97; Ord. No. 6556, § 1, 3-25-20)

Sec. 4.04.180. Duties of licensees.

General standards of conduct. Every licensee under this title shall:

(1) Comply with governing law.
Ascertain and comply at all times with all laws and regulations applicable to such licensed business, including but not limited to, any changes in the Reno Municipal Code that may be imposed after the issuance of a license.

(2) Supervise employees.
Be responsible for the conduct of all employees or agents thereof where such conduct would be a violation of the provisions of this title if engaged in by the licensee.

(3) Display license.
Display all licenses issued pursuant to this title in a conspicuous place at the licensed business. Every person having such a license[s] and not having a fixed place of business shall carry such license[s] with him at all times while carrying on the business for which the license[s] was issued and shall exhibit the license[s] whenever requested by any authorized person. Branch establishments or locations grouped under a single license shall display a copy of such license in a conspicuous place at each branch establishment or location.

(4) Cease business.
Refrain from operating the licensed business after expiration of the license and any applicable grace periods and during any period the license is revoked or suspended.

(5) Maintain records.
Be responsible for maintaining the records of the business and shall:

a. Keep such records as may be necessary to determine the amount of business license fees, or any other records required by title 4 or title 5 of the Reno Municipal Code.

b. Preserve such records for not less than four years or until any proceedings under the Reno Municipal Code pertaining to the business are finally concluded, whichever is longer; and

c. Make the records available for inspection by the city upon demand at reasonable times.

(6) Permit inspection or audit.
Permit reasonable inspections of the business and examination of its books by the city and all authorized persons.

(7) Notify of changes.
Assure that a current and correct name, business address, business phone, residence address, residence phone and mailing address for each owner or principal of the business are on file with the city. Whenever a business address changes, the licensee must notify the city license office a minimum of three days prior to the date the new business location will be used to conduct business. Whenever either the name, residence address or phone provided by a licensee on his license application changes, the licensee shall notify the city in writing within 15 days of such a change and provide the city with the new name, address or phone.

(Ord. No. 4764, § 1, 7-8-97; Ord. No. 6447, § 2, 1-10-18)

Sec. 4.04.190. Authority of city.

The city manager may employ, in their specialties, accountants, auditors, investigators, assistants and clerks necessary for the efficient administration of this title and may delegate authority to conduct hearings, adopt regulations and perform any other duties imposed by this title.

Enforcement: Persons authorized: City officials who may enforce provisions of this chapter include the city manager, the finance director, the chief of police, the director of parks recreation and community services, the director of public works, the director of community development, the fire chief, police officers, code enforcement officers, the building official, revenue officers or their respective authorized designees.

Authority of inspectors without warrant.

(a) FINDINGS.

(1) The city is permitted by statute to regulate and collect revenues on businesses conducted within its corporate limits.

(2) Licensees are required at all times to display all licenses issued pursuant to this title in a conspicuous place at the licensed business.

(3) The city has a substantial interest in preserving the public's health, safety and quality of life through, among other programs, its business license regulation and collection program.

(4) Inspection of commercial property, within the bounds of this section, is a necessary component of enforcing the provisions of title 4 and title 5 and ensuring that a business has properly licensed itself to conduct business within the city.

(b) PURPOSE:

The provisions hereinafter contained and enacted are in pursuance of and for the purpose of securing and promoting the public health, morals and general welfare of persons patronizing or otherwise affected by a business so as to:

(1) Ensure that a business has undergone all relevant departmental licensing reviews for the purported conduct of business on the premises;

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(2) Ensure that the conduct of business on the premises is as the licensee has described to the city; and

(3) Ensure that the business has satisfied all licensing requirements and obtained all licenses required under Title 4 and Title 5 prior to the conduct of business.

(c) The finance director, the chief of police and their respective authorized designees all areas of licensed business premises to which the public normally has access during the operation of the business. Such authority shall only be exercised within reasonable times when a business establishment is open for the transaction of business. Inspection under this subsection shall be limited to verification that the licensee is doing business as the licensee has described to the city as a basis for the granting of the license and verification that persons doing business on a business premises are properly licensed and have obtained all licenses required under Title 4 or Title 5. Inspection under this subsection shall be limited to a reasonable length of time on the premises necessary to accomplish the goals of the inspection. These limitations shall not be construed to prohibit action based upon any other constitutionally recognized exception to the warrant requirement.

(d) REFUSAL TO ALLOW ENTRY PURSUANT TO THIS SUBSECTION SHALL CONSTITUTE GROUNDS FOR SUSPENSION OR REVOCATION OF A LICENSE.

Audit: The city may, for the purpose of ascertaining gross receipts or to verify the accuracy of any other information reported to the city, audit any information declared by the licensee in his application for license or renewal, any information presented in a hearing or appeal before the administrative hearing officer, or any other documentation provided to the city. After reasonable notice to the proprietor, books and records of the licensee should be made available to the inspector during business hours.

In accordance with Nevada Revised Statutes Chapter 364, any audit of the amount due from the enterprise must not include any period for the licensing of the business ending more than three years before the date of the audit, unless the enterprise has been operating without such a license or the auditor has reason to believe that the enterprise has made a fraudulent or material misstatement of its revenue.

The city will provide procedures for the proprietor of the enterprise to obtain a review of the results of an audit performed as follows:

(a) The city will disclose the results of the audit to the proprietor, discuss any relevant issues that have not previously been resolved and attempt to resolve those issues.

(b) If those issues are not resolved through compliance with paragraph (a):

1. The proprietor can prepare documentation of those issues and submit the documentation with a copy of the final audit report to the finance director and

2. The finance director will:

i. Within seven days after receiving the documentation, acknowledge that receipt; and

ii. Within 30 days after receiving the documentation, respond to the proprietor regarding those issues.

(c) If those issues are not resolved through compliance with paragraph (b);

1. The finance director will submit the documentation to the city manager and notify the proprietor that the matter is being reviewed by the city manager; and

2. The city manager within 60 days after receipt of the documentation by the finance director pursuant to paragraph (b), will review the documentation and inform the proprietor of his decision regarding the resolution of those issues.

(d) If the proprietor is not satisfied with the resolution to those issues pursuant to paragraph (c), the proprietor can appeal the matter to an administrative hearing officer.

(e) If the proprietor is not satisfied with the resolution of those issues pursuant to paragraph (d), the proprietor, except as otherwise provided in this paragraph, can appeal the matter to the municipal court. If the amount in controversy exceeds the jurisdiction of the municipal court, or if the municipal court makes a determination adverse to the proprietor, the proprietor may appeal the matter to the district court.

If an audit is performed pursuant to the chapter:

1. The proprietor of the enterprise has those rights set forth in NRS 360.291 that are applicable to the audit.

2. The proprietor must be informed of his rights in writing, including his rights relating to the proprietor required by the previous paragraph.

3. The proprietor must be given notice, in writing, of the amount of any interest or penalties to be paid as a result of the audit.

Exchange information: The city may agree to the continuing exchange of information concerning licensees with the federal government or any governing body of any state, county, city or town.

Violation: In addition to any penalties provided in this chapter, any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in section 1.04.010; or

(2) Shall be subject to provisions of Chapter 1.05 of the Code.

Suspension: The city may suspend any license issued under Title 4 or Title 5, after notice and opportunity to be heard, for good cause or for the violation of any provision of either title. The enforcement official shall have the right to request an order to show cause hearing on any business or privileged license. Upon such a request the licensee shall be required to appear before the administrative hearing officer and show cause as to why the license should not be suspended. At such hearing the enforcement official may present evidence of any activity of the licensee which violates any section of this title or any other section of the Reno Municipal Code.

Revocation: The city may revoke any license issued under Title 4 or Title 5, after notice and opportunity to be heard, for good cause or for the violation of any provision of either title. The police department shall have the right to request an order to show cause hearing on any business or privileged license. Upon such a request the licensee shall be required to appear before the administrative hearing officer and show cause as to why the license should not be revoked. At such hearing the police department may present evidence of any activity of the licensee which violates any section of this title or any other section of the Reno Municipal Code. Upon the revocation of a license as provided in this section, no part of the license fee paid therefor shall be returned; but such license fee shall be forfeited to the city. Whenever a license is revoked, the licensee shall return to the city license office any license, license stickers, or any similar evidence of a license which has been revoked.

Summary suspension: The chief of police or the fire chief shall have the right to suspend any license issued pursuant to Title 4 or Title 5 whenever there is probable cause to believe that extraordinary circumstances have arisen which are an immediate threat to the public health, safety, morals or welfare. At such hearing the police department may present evidence of any activity of the licensee which constitutes an immediate threat to the public health, safety, morals or welfare.

(Ord. No. 4764, § 1, 7-8-97; Ord. No. 4825, § 1, 1-13-98; Ord. No. 5064, § 1, 11-9-99; Ord. No. 5963, § 1, 9-12-07)

Sec. 4.04.200. Notice.

Unless otherwise specified, any notice required under the provisions of this title is deemed to have been served when the same has been delivered personally or deposited at Reno, in the United States Post Office enclosed in a sealed envelope, postage prepaid, addressed to such person at his place of business as such address appears in the records of the city license office.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.210. Severability.

If any section, subsection, sentence, clause, phrase or portion of this title is held to be invalid or unconstitutional by the final decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this title.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.220. Confidentiality.

Any statements or certificates filed or any information gathered by the city pursuant to the provisions in Title 4 or Title 5 shall be deemed confidential in character and shall not be subject to public inspection. Nothing in this section shall be construed to prevent the city from agreeing to the continuing exchange of such information with the federal government or any governing body of any state, county, city or town.

(Ord. No. 4764, § 1, 7-8-97)

Sec. 4.04.230. Miscellaneous.

Civil judgment no bar:

No civil judgment or act by the city attorney's office, the business license office or any other agency of the city shall bar or prevent a criminal prosecution for each and every violation of this title.

(Ord. No. 4764, § 1, 7-8-97)

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CHAPTER 4.05. MOBILE VENDING UNITS

Sec. 4.05.005. Purpose and short title.
Sec. 4.05.006. Scope.
Sec. 4.05.007. Definitions.
Sec. 4.05.020. Time, place and manner.
Sec. 4.05.030. Licensing and registration requirement.

Sec. 4.05.005. Purpose and short title.

This chapter establishes the minimum procedural requirements for mobile vending business licenses issued by the city. The City of Reno recognizes that the typical business operates within fixed structures and that mobile vendors are a new industry that requires standards that may be unique to this type of business in order to protect the public. A further intent of this chapter is to ensure mobile vendors do not circumvent the requirements for businesses that operate within a structure. This chapter shall be known as the Mobile Vending Code.

(Ord. No. 6222, § 1, 2-8-12)

Sec. 4.05.006. Scope.

The provisions of this title apply to all mobile vending businesses in the city, including any licenses pertaining to privileged businesses or franchises (Title 5). Nothing in this chapter shall be deemed or construed to exempt any organization from complying with the provisions of any other ordinance of the city, including but not limited to permit requirements, zoning requirements, nuisance ordinances and restrictions on privileged or illegal activities.

(Ord. No. 6222, § 1, 2-8-12)

Sec. 4.05.007. Definitions.

Ice cream truck means any motorized or non-motorized vehicle or trailer from which 50 percent or more of its inventory is prepackaged or soft serve or hand dipped frozen dairy or water-based food products; irrespective of whether or not the truck carries other prepackaged food or non-food products.

Mobile vendor means, but is not limited to, any person or employee or agent thereof carrying on or conducting the business of selling or offering for sale any inedible item with value or edible food/drinks, loose, pre-packaged or prepared to include candy, vegetables, meat, fruit, or other edible foods for human consumption from any motorized vehicle.

Mobile vending vehicle/unit means any motorized or non-motorized vehicle or trailer from which any inedible item with value or edible food/drinks, loose, pre-packaged or prepared to include candy, fruit, vegetables, meat or other edible foods are sold. Mobile vending vehicle/unit shall not include vending carts used by licensed sidewalk vendors as defined in Title 5.

(Ord. No. 6222, § 1, 2-8-12)

Sec. 4.05.020. Time, place and manner.

It shall be unlawful for any person to conduct any mobile vending activity in violation of the following rules:

(1) Mobile vending activities which include any food sales shall not be conducted without a valid Washoe County Health District permit.

(2) Mobile vending activities shall not be conducted for more than four hours (240 minutes) at any one location within a 24-hour period. After the duration of four hours, the vehicle/unit must move a minimum of four city blocks or two miles, whichever is the shortest distance, from the previous location.

(3) Mobile vending activities may take place on commercial private property provided that the mobile vendor maintains a letter from the property owner or responsible person granting him permission to conduct business there. The letter must be made available upon request by any City of Reno Enforcement Official. Mobile vending activities shall be prohibited on residentially zoned property.

(4) Mobile vending activities shall not take place upon any highway, street, alley, sidewalk or city-owned or city-operated public parking lot.

(5) Mobile vending activities shall be conducted in such a manner as not to obstruct or block any sidewalk or interfere with or impede any pedestrian or violate any other city ordinance.

(6) The mobile vending vehicle must be identifiable with the name of the business, and the business address thereof in lettering large enough to be visible and legible from ten feet away.

(7) Mobile vending activities shall not be conducted within 300 feet from the property line of any school, church, playground or park without the express written consent of the property owner or responsible person for the school, church, playground or park.

(8) Mobile vending vehicles/units shall not park or be placed within a city park or the parking area of a city park without obtaining a park permit pursuant to RMC 8.23.075.

(9) Mobile vending activities shall not be conducted within 100 feet of the entrance of a permanent restaurant business during open and operating hours.

(10) Each mobile vending vehicle/unit shall have a separate original City of Reno Mobile Vendor Business License posted on the vehicle/unit with information identifying the vehicle identification number or license plate number.

(11) Mobile vending activities may only be conducted between the hours of 7:00 a.m. and 11:00 p.m., unless the activities are conducted on a property within an area zoned for 24-hour operations or the property is under the privilege of a special use permit allowing such use.

(12) Use of amplified sound or other forms used for attracting attention, to include yelling and/or "hawking" is not allowed at any time.

(13) Advertising signs must be affixed to the vehicle/unit and may not be placed on the ground or in the public right-of-way and may only advertise the business of the mobile vendor.

(14) Vehicles/units must be self-contained:

- **a.** Use of onsite storage is prohibited;
- **b.** Use of an ancillary power source requires a carbon monoxide detector within the unit for generator use; and a method of protection (i.e. trip guard) for extension cord use.
- **c.** Connections to onsite water, sewer, gas or telephone is prohibited.

(15) Use of outdoor cooking facilities, including grills or BBQ's is prohibited.

(16) Vending within 300 feet of a permitted special event or activity is prohibited unless the vendor is included as part of the event and allowed by written permission of event organizer per Chapter 5.13.

(17) Sale or service of alcoholic beverages is not permitted at any time nor will any such license be issued for such sale/service to a mobile vending vehicle, unless the vendor is included as part of a special event and allowed by written permission of event organizer per Chapter 5.13.

(18) Ice cream trucks shall be subject to, and regulated by, provisions within Title 5. It shall be unlawful to operate an ice cream truck without the required privileged license.

(19) Mobile vendors operating as a caterer or conducting catering services for specific events shall not be subject to the provisions within this chapter.

(Ord. No. 6222, § 1, 2-8-12)

Sec. 4.05.030. Licensing and registration requirement.

(1) All mobile vendors must be licensed by the city and must maintain a valid Washoe County Health District permit if involved in the sale or handling of any type of food.

(2) A separate license will be required for any mobile vending activity. A business owner can not operate a mobile vending vehicle/unit under an existing business license; however,

(3) A mobile vendor may have more than one vehicle/unit under one business license; however each vehicle must be named as a part of the business description on the application with the Vehicle Identification Number (VIN) and the license plate. Each vehicle will have a separate license printout with these unique identifiers. Copies of the license placed in additional vehicles are not allowed.

(4) Any person in violation of this section shall be subject to the enforcement provisions provided within Title 4 of the Reno Municipal Code.

(Ord. No. 6222, § 1, 2-8-12)

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CHAPTER 4.06. MOTEL INSPECTION PROGRAM

Article I. General Provisions

Sec. 4.06.005. Title.
Sec. 4.06.010. Purpose and findings.
Sec. 4.06.020. Scope.
Sec. 4.06.030. Definitions.

Article II. Administration

Sec. 4.06.100. Rules and regulations.
Sec. 4.06.110. Authority to enter and inspect.
Sec. 4.06.120. Notification procedures.

Article III. Enforcement

Sec. 4.06.200. Enforcement.
Sec. 4.06.210. Violations and penalties.
Sec. 4.06.220. Enforcement independent of other officials.
Sec. 4.06.230. Work card requirement for motel managers.

ARTICLE I. GENERAL PROVISIONS

Sec. 4.06.005. Title.

This chapter shall be known as the ″Motel Inspection Program of the City of Reno″, may be cited as such, and will be referred to hereafter as ″MIP Chapter″.

(Ord. No. 6482, § 1, 8-22-18)

Sec. 4.06.010. Purpose and findings.

(a) Unsafe housing is a community blight often associated with unlawful activity. While the cost of enforcement is significant, the result of failing to abate substandard housing has more adverse and far-reaching consequences, such as the loss of housing and displacement of individuals.

(b) The purpose of this chapter is to address the shortage of safe, sanitary and affordable rental housing options for residents in the city. Non-transient lodging rental properties that were formerly built as motels have historically provided affordable rental options of last resort for low-income persons. This chapter proactively identifies blighted and deteriorated non-transient lodging rental properties and enables them to rehabilitate units that do not meet minimum building, housing and property maintenance code standards so as to provide safe, habitable rental units for low-income persons to occupy, and further, to preserve and enhance the quality of life for residents of the city.

(c) It is important that the city not only enforce on a complaint-initiated basis, but also conduct routine annual inspections in order to better address and reduce substandard housing within structures that were formerly built as transient motels in the city. It is important to

conduct routine inspections on non-transient lodging rental properties due to the inherent problems associated with properties that are essentially converted from transient to non-transient lodging.

(d) In the City of Reno it is imperative to establish enforceable minimum standards for non-transient lodging rental properties which typically consist of older motels converted from transient type occupancy to long term occupancy without the benefits of code compliant permits and process. Long term occupancy rentals are typically addressed similar to apartments or homes which have specific zoning, building and fire code requirements that are enforced upon development. These requirements typically do not apply to transient lodging rental properties. The purpose of this chapter is to establish standards for maintaining all converted non-transient lodging rental properties in the city and thereby safeguard life, limb, health, property, safety, and welfare of the public.

(e) The City of Reno finds as follows:

(1) There exists within the City of Reno, properties that were issued a certificate of occupancy and were approved to operate as transient lodging rental properties, which have been organically converted into non-transient lodging rental properties without review of compliance with all property related codes adopted by the City of Reno.

(2) These properties have served as affordable housing for many residents within the city, and although the properties have not received the appropriate inspections and approvals, the housing is necessary for many residents within the City of Reno.

(3) It is imperative to establish enforceable minimum standards for converted non-transient lodging rental properties and to provide a program for enforcing these standards.

(4) Residents of converted non-transient lodging rental property benefit from a property maintenance code enforcement program.

(5) It is recognized that these non-transient rental properties are necessary and serve as affordable housing and this chapter shall apply to all converted non-transient lodging rental properties, buildings, units, and premises within the city without regard to the date of construction or alteration.

(6) The implementation of an annual inspection program will ensure compliance with all laws, rules and ordinances established within the RMC to include the property maintenance, residential, building, and fire codes. This will also include any health or public safety related adopted city or county ordinances.

(Ord. No. 6482, § 1, 8-22-18)

Sec. 4.06.020. Scope.

The provisions of this chapter shall apply to all existing non-transient lodging rental units, properties, buildings, or portions thereof used, or designed or intended to be used, for human habitation. This chapter is not an exclusive regulation of housing within the City of Reno. It shall supplement, be accumulative with, and be in addition to any and all regulatory ordinances and state or federal law existing or hereafter enacted by the city, the state or federal government or any other legal entity that may have jurisdiction. This chapter shall not

apply to rental properties used entirely for transient lodging purposes and, that charge and pay transient lodging taxes pursuant to NRS Chapter 268 and, comply with all health department hotel/motel standards and regulations.

(Ord. No. 6482, § 1, 8-22-18)

Sec. 4.06.030. Definitions.

For purposes of this chapter, the following definitions shall apply:

Building means a structure or part thereof.

Building Code means the International Building Code adopted pursuant to RMC chapter 14.

City means the City of Reno.

City manager means the city manager of the City of Reno, or her/his designated representatives.

Complaint means notification by any person, lodged with the City of Reno, of a violation or a suspected violation of the property maintenance code or this chapter.

Council means the city council of the City of Reno.

Dwelling means any unit, building or structure, or part thereof, used and occupied for human habitation, or intended to be so used, and includes any garages or other accessory buildings belonging thereto, including those which are rented or leased for any term or duration, type or tenure.

Dwelling unit means any room or group of rooms located within a dwelling and forming a single unit with the facilities which are used, or intended to be used, for living, sleeping, cooking, or eating.

Enforcement means diligent effort to secure compliance or abatement, including review of plans and permit applications, response to complaints, citation of violations, and other legal process. Except as otherwise provided in this chapter, ″enforcement″ may, but need not, include inspections of existing buildings on which no complaint or permit application has been filed, in an effort to secure compliance as to such existing buildings.

Fire code means the International Fire Code adopted pursuant to RMC chapter 16.

Inspection means the act of examining areas within the exterior and interior of a residential rental unit for purposes of identifying compliance with all codes and regulations adopted by the City of Reno.

Motel manager means a person who is responsible for the daily operation of a non-transient motel or lodging rental property, to include but not limited to, collecting rent, access and control of room keys, and serves as an on scene contact for enforcement officials.

Non-transient lodging means a building or unit occupied or intended to be occupied, for compensation, as residence for guests, primarily persons who do not have residence elsewhere, and has any rental units subject to any exemptions from the delegated authority that requires payment of transient lodging tax in accordance with NRS Chapter 268. The burden of establishing that the housing or facility is non-transient as defined herein shall be on

the rental property owner or licensee. Where the rental property owner or licensee can not provide proof of the collection and payment of lodging tax as required for transient lodging, the business shall be deemed non-transient lodging.

Program means the motel inspection program created under this chapter.

Property maintenance code means International Property Maintenance Code adopted pursuant to RMC chapter 14.

RMC means Reno Municipal Code.

Transient lodging means a building or unit occupied or intended to be occupied, for compensation, as the temporary residence for transient guests, primarily persons who have residence elsewhere, and every rental unit is charged the required collection and payment of transient lodging taxes for at least 100 days per year to the delegated authority in accordance with NRS Chapter 268. The burden of establishing that the housing or facility is transient lodging as defined herein shall be on the rental property owner or licensee, who shall demonstrate the rental property or units are rented subject to the delegated authority that requires payment of transient lodging tax in accordance with NRS Chapter 268.

(Ord. No. 6482, § 1, 8-22-18)

ARTICLE II. ADMINISTRATION

Sec. 4.06.100. Rules and regulations.

(a) The city manager or their authorized designee shall have the authority to make and promulgate reasonable and necessary rules and regulations to carry out provisions of this chapter as provided in chapter 8.22 of this code.

(b) It shall be the responsibility of the property owner to ensure their units are inspected by the city at least once per calendar year.

(c) All non-transient properties with 12 or more units shall have a motel manager living onsite with access to every room on the property so as to provide access for first responders and enforcement personnel.

(d) All non-transient licensed property owners and motels managers shall be required to complete the City of Reno Hotel/Motel Crime Free Training at least once every 24 months.

(e) All motel managers shall maintain a valid and active work card issued by the Reno Police Department. Proof of said work card shall be available during the annual inspection of the property.

(f) Any owner or licensee of a non-transient property claiming an exemption from this chapter must subject their business license to auditing and provide proof their rental property is a motel or transient lodging property as defined in this chapter.

(g) Non-transient lodging rental properties shall maintain a clean set of sheets and pillow cases accessible for tenants to interchange for replacement at least once a week. Laundromat services provided onsite for tenants may serve as an alternative.

(Ord. No. 6482, § 1, 8-22-18)

Sec. 4.06.110. Authority to enter and inspect.

(a) The enforcement official as defined and provided in chapter 1.05 of the RMC is authorized to enter upon premises and directed to make inspections of property, buildings and premises and complete investigations to determine compliance with the RMC and shall follow the provisions as set forth in chapter 1.05 of the RMC.

(b) The enforcement official may expand the scope of any inspection to include other code violations noted during inspection.

(Ord. No. 6482, § 1, 8-22-18)

Sec. 4.06.120. Notification procedures.

(a) All necessary notifications, notices, or citations related to annual inspections of non-transient rental units shall be performed pursuant to chapter 1.05 of the RMC.

(b) Any violations identified as a result of the required annual inspection shall be subject to an initial courtesy notice or notice of violation with no civil citation attached. Such notice shall be provided once per calendar year. This does not exempt the issuance of citations for any violations identified in response to a complaint, or any future violations after the deadline date provided in the courtesy notices or notice of violation.

(Ord. No. 6482, § 1, 8-22-18)

ARTICLE III. ENFORCEMENT

Sec. 4.06.200. Enforcement.

The Reno Code Enforcement division is hereby authorized and directed to administer and enforce the MIP chapter, all of the provisions set forth in this chapter, chapter 1.05, chapter 8.22, and all regulations approved and adopted by the city council related to the maintenance of real property within the City of Reno.

(Ord. No. 6482, § 1, 8-22-18)

Sec. 4.06.210. Violations and penalties.

(a) Existence of a rental unit in violation of adopted codes. All dwellings, or portions thereof, shall be maintained, repaired or reconstructed in accordance with adopted codes within the RMC. Any dwelling, or portion thereof, which is deemed in violation or an uninhabitable dwelling by the Reno Code Enforcement division, is declared to be a nuisance.

(b) Rental without inspection. It shall be unlawful and a violation of this code for any owner or party in interest to rent to or otherwise allow another person a vacant non-transient rental unit which:

(1) Is the subject of a pending enforcement action under this chapter, until such rental unit has been inspected by the city for code compliance, and has passed such inspection;

(2) Has not received an annual inspection within 12 months prior to the date of the proposed rental.

(c) Any violation of this chapter shall be subject to the provisions and penalties provided under chapters 1.05 and 8.22 of the RMC.

(Ord. No. 6482, § 1, 8-22-18)

Sec. 4.06.220. Enforcement independent of other officials.

The authority of the city to enforce the provisions of this chapter is independent of and in addition to the authority of other city officials to enforce other provisions of any other title of this Code.

(Ord. No. 6482, § 1, 8-22-18)

Sec. 4.06.230. Work card requirement for motel managers.

(a) Every person working as a motel manager under this chapter shall be required to obtain a work card, permit his or her photograph to be taken, have his/her fingerprints taken through the chief of police, and comply with any other FBI or police department requirements necessary to obtain a national background check.

(b) It is unlawful for any business operating as a non-transient motel or lodging rental property to have a motel manager who does not have a valid work card as required by this chapter.

(c) Every person submitting an application for a work card pursuant to this chapter is subject to a background investigation to determine suitability for the work card, and shall submit all information required by the police department or the FBI. An FBI fingerprint-based investigation must be conducted prior to the issuance of any work card set forth in subsection (a) above.

(d) Pursuant to NRS 239B.010(1)(a) and P.L. 92-544, the police department is authorized to submit the fingerprints of an applicant for a work card set forth in subsection (a) above, plus any required fees and any information required for the background check, to the Central Repository for Nevada Records of Criminal History for a statewide background check and for submission by the Central Repository to the FBI to obtain the FBI nationwide background check of the applicant. The Nevada Department of Public Safety is hereby authorized to exchange such fingerprint data with the FBI for purposes of the background check.

(e) It is the duty of the chief of police to investigate the legal qualifications of each applicant for a work card before a permanent work card is granted, to periodically investigate the legal qualifications of each holder of a work card, and to verify that no work card shall be granted to unsuitable persons. The following persons are declared to be unsuitable to be granted or to hold any work card under the provisions of this chapter:

(1) A person who, within the five years immediately preceding the date of the application, has been convicted of any of the following criminal offenses, regardless of the jurisdiction of the conviction:

a. A felony or any crime which, under the laws of this state, would amount to a felony;

b. Any crime of which theft, fraud or intent to defraud is an element;

c. Unlawfully possessing or distributing controlled substances;

d. Solicitation, prostitution, or pandering; or

e. Any sex offense requiring the applicant to register under N.R.S. 179D.441 to 179D.470, if the applicant has been classified by the state as a Tier 1, Tier 2 or Tier 3 offender.

(f) Providing false or misleading information will be grounds for denial or revocation of a work card previously issued and/or prosecution as provided in section 1.04.010 of the Reno Municipal Code.

(g) The police department may investigate through the use of any state or federal law enforcement agencies or through other legal means reasonably available.

(h) The police department may revoke a work card when the person holding the card is convicted of any offense enumerated in subsection (e) above.

(i) Any person denied a work card or who has a work card revoked may make a written application for review to the chief of police. The chief of police or his designee may, having due consideration for the proper protection of the public health, safety, morals, good order and general welfare of the inhabitants of the city, and upon evidence of the good moral character and rehabilitation of the applicant, waive any of the above enumerated restrictions and conditions and grant said work card.

(j) Any person whose denial or revocation of a work card has been upheld by the chief of police or his designee may appeal the decision of the chief of police or designee in accordance with the procedure set forth in RMC section 4.04.160.

(Ord. No. 6482, § 1, 8-22-18)

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CHAPTER 4.07. ADULT BUSINESS

Sec. 4.07.005. Purpose and short title.
Sec. 4.07.006. Scope.
Sec. 4.07.007. Definitions.
Sec. 4.07.20. Adult interactive cabaret performer; license issuance or denial; revocation or suspension stayed pending appeal.
Sec. 4.07.30. Adult business dealing in sexual items, materials or devices; license issuance or denial; revocation or suspension stayed pending appeal.
Sec. 4.07.40. Severability.

Sec. 4.07.005. Purpose and short title.

This chapter establishes the minimum procedural requirements for business licenses issued to adult interactive cabaret performers and adult businesses dealing in sexual items, materials or devices, and shall be known as the Adult Business Code.

(Ord. No. 6511, § 1, 5-8-19)

Sec. 4.07.006. Scope.

The provisions of this chapter apply to adult interactive cabaret performers and adult businesses dealing in sexual items, materials or devices in the city. Nothing in this chapter shall be deemed or construed to exempt any organization from complying with the provisions of any other ordinance of the city, including but not limited to permit requirements, zoning requirements, nuisance ordinances and restrictions on privileged or illegal activities.

(Ord. No. 6511, § 1, 5-8-19)

Sec. 4.07.007. Definitions.

For purposes of this chapter, the following definitions shall apply:

Applicant means any person who has applied for a city business license.

Adult interactive cabaret performer also referred to as ″performer″ means any person male or female who:

(1) Is an employee or independent contractor of an adult interactive cabaret and who, with or without any compensation or other form of consideration, performs as a sexually-oriented dancer, exotic dancer, stripper or similar dancer, actor, model, entertainer or worker whose performance on a regular and substantial basis emphasizes exposure of and focus on the adult interactive cabaret performer′s specified anatomical areas; or

(2) Is a person who, while performing or conducting personal or individual grooming, maintenance or hospitality services such as barber, cosmetic, food or beverage service or personal property maintenance (such as car wash or laundry), nevertheless emphasizes exposure of and focus on the person′s specified anatomical areas; or

(3) Is a patron of an adult interactive cabaret where the patron is performing for other patrons as part of any publicized or promoted event that encourages adult interactive cabaret performance by such patrons such as an ″amateur night″ or a ″tryout night″.

The terms ″adult interactive cabaret performer″ and ″performer″ are synonymous as used in this chapter.

Adult bookstore, adult novelty store or *adult video store* means an establishment which has as its stock in trade, or derives a portion of its revenues from, or devotes a portion of its interior business or advertising to, or maintains a sales or display space for the distribution, display, or presentation of any one or more of the following:

(1) Books, magazines, periodicals, or other printed matter, pictures, drawings, photographs, sound recordings, films, negatives, slides, motion pictures or other video recordings or visual representations that are distinguished or characterized by their emphasis on matter depicting, describing or relating to ″specified sexual activities″ or ″specified anatomical areas″; and

(2) Instruments, objects, devices or paraphernalia that are designed for use or marketed primarily for stimulation of human genital organs or for sadomasochistic use or abuse of the user or others.

(Ord. No. 6511, § 1, 5-8-19)

Sec. 4.07.20. Adult interactive cabaret performer; license issuance or denial; revocation or suspension stayed pending appeal.

(a) A business license application for an adult interactive cabaret performer will be considered properly completed upon submission of all required application materials and information, including payment of all required application fees. The city shall issue or deny the license within the next business day from the date of receipt of the properly completed application.

(b) The city shall not issue the license if the applicant has made any false, misleading or incomplete statement of material fact in the application.

(c) If the applicant is denied, the city shall notify the applicant with the reason(s) stated for denial. Notification of the denial shall be provided by personal service to the applicant or by certified mail to the applicant's address provided on the license application which shall be considered to be the correct address. Each applicant has the burden to furnish any change of address to the city within 15 calendar days of any change.

(d) In the event of denial, revocation or suspension, the applicant may file or cause to be filed in the district court a petition labeled as a ″First Amendment Petition″ for judicial review of the validity of the denial as provided by NRS Chapter 34.

(e) Notwithstanding section 4.04.160, the holder of an adult interactive cabaret performer business license that is the subject of revocation or suspension shall remain able to conduct business under the license until appeal has been pursued through final decision.

(Ord. No. 6511, § 1, 5-8-19)

Sec. 4.07.30. Adult business dealing in sexual items, materials or devices; license issuance or denial; revocation or suspension stayed pending appeal.

(a) A business license application for an adult business dealing in the distribution, display or presentation of items, materials or devices which are distinguished by their emphasis on matter depicting, describing or relating to ″specified sexual activities″ or ″specified

anatomical areas," as defined by RMC 18.24.203.200, or are designed for sexual stimulation, sometimes known as an "adult bookstore" or "adult novelty store," will be considered properly completed upon submission of all required application materials and information, including payment of all required application fees. The applicant shall include sufficient information regarding the nature and conduct of the business to allow the city to properly consider and review the application.

(b) The city shall issue or deny the license within 30 calendar days from the date of receipt of the properly completed application. Failure of the city to approve or deny the license application within the 30-day period shall result in the license being granted under the following condition:

(1) That upon the expiration of the 30-day period without decision, the applicant may demand a license and begin operation of the business for which the license is sought, unless and until the city notifies the applicant of a denial of the license application and states the reason for the denial. This provision shall not create a reliance or estoppel situation as to this license or any other provision of this Code.

(c) The city shall not issue the license if:

(1) The applicant has made any false, misleading or incomplete statement of material fact in the application or in any report or record filed with the business licensing division; and

(2) The business will be conducted or carried on in a building, structure and a location which is not in full compliance with all applicable health, zoning, building fire and safety laws, regulations, and ordinances.

(d) If the applicant is denied, the city shall notify the applicant with the reason(s) stated for denial. Notification of the denial shall be provided by personal service to the applicant or by certified mail to the applicant's address provided on the license application which shall be considered to be the correct address. Each applicant has the burden to furnish any change of address to the city within 15 calendar days of any change.

(e) In the event of denial, revocation or suspension, the applicant may file or cause to be filed in the district court a petition labeled as a "First Amendment Petition" for judicial review of the validity of the denial as provided by NRS Chapter 34.

(f) Notwithstanding RMC Section 4.04.160, the holder of a license described in subsection (a) that is the subject of revocation, suspension or denial after beginning operation pursuant to subsection (b)(1) shall remain able to conduct business under the license until appeal has been pursued through final decision.

(Ord. No. 6511, § 1, 5-8-19)

Sec. 4.07.40. Severability.

If any section, paragraph, phrase or word of this chapter or portion thereof, is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such holding shall not invalidate the remaining portions of this chapter.

(Ord. No. 6511, § 1, 5-8-19)

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CHAPTER 4.08. SIDEWALK VENDORS

Sec. 4.08.010. Definitions
Sec. 4.08.020. License required.
Sec. 4.08.030. Prohibited acts with a license.
Sec. 4.08.040. Time, place, manner restrictions.
Sec. 4.08.050. License fee.
Sec. 4.08.060. Application for license.
Sec. 4.08.070. Inspections
Sec. 4.08.080. Form and condition of license.
Sec. 4.08.090. Renewal.
Sec. 4.08.100. Enforcement.
Sec. 4.08.110. Violation a nuisance, summary abatement.
Sec. 4.08.120. Severability.

Sec. 4.08.010. Definitions

City means the City of Reno, a municipal corporation of the State of Nevada.

Chief of Police means the City's Chief of Police, or designee.

City Manager means the City Manager, or designee.

Fire Chief means the City's Fire Chief, or designee.

Sidewalk vendor means a person who sells food, beverages or merchandise upon a public sidewalk or other pedestrian path from a conveyance, including, without limitation, a pushcart, stand, display, pedal-driven cart, wagon, showcase or rack. The term includes, without limitation, a nonstationary sidewalk vendor and a stationary sidewalk vendor.

Special event means any event, activity or assembly duly authorized by the City pursuant to the Reno Municipal Code.

(Ord. No. 6667, § 1, 1-17-24)

Sec. 4.08.020. License required.

It is unlawful for a person to engage in or carry on the business of sidewalk vendor upon any public street, sidewalk, alley, or any other public place in the City, without first having obtained a license from the City Manager.

Excluded from the provisions of this chapter are areas where First Amendment artisan display, elicit or accept contributions for, sell, offer for sale, expose for sale, or solicit offers to purchase any craft or work of his or her own creation pursuant to RMC § 5.14.010, et seq.

(Ord. No. 6667, § 1, 1-17-24)

Sec. 4.08.030. Prohibited acts with a license.

(a) Except as otherwise provided in subsection (b), it is unlawful for a person to sell food, beverages or merchandise upon a public sidewalk or pedestrian path from a conveyance, including, without limitation, a pushcart, stand, display, pedal-driven cart, wagon, showcase or rack, within 1,500 feet of:

(1) A resort hotel, as defined in NRS Chapter 463;

(2) An event facility that has seating capacity for at least 20,000 people and is constructed to accommodate a major or minor league sports team;

(3) A convention facility operated by a county fair and recreation board; or

(4) A median of a highway, if the median is adjacent to a parking lot.

(b) A person may sell food, beverages or merchandise within 1,500 feet of a location described in subsection (a) if the conveyance from which the person is selling food, beverages or merchandise is located in an area which is zoned exclusively for residential use, unless the area is on a public sidewalk or pedestrian path that is immediately adjacent to a location described in subsection (a).

(c) Sidewalk vendors shall not engage in or carry on the business of sidewalk vending within a 300-foot radius of any designated entrance or exit of a special event venue, without the prior express written permission of the event organizer.

(d) Sidewalk vendors shall not operate within 100 feet of an established business which sells the same type of food product or other merchandise or similar service as intended by the licensee.

(Ord. No. 6667, § 1, 1-17-24)

Sec. 4.08.040. Time, place, manner restrictions.

(a) A sidewalk vendor shall not:

(1) Allow carts to impede access to the entrance of any adjacent building or driveway;

(2) Occupy more than half of the available sidewalk width, or leave a space for pedestrian passage less than five feet wide;

(3) Make or solicit any sales to occupants of vehicles or engage in any activities which impede vehicular traffic;

(4) Locate any cart within ten feet of a fire hydrant, fire department standpipe connection, fire escape, driveway of a fire station, police station, hospital, bus stop, any entrance or exit doorway, loading zone, or obstruct a commercial business sign;

(5) Permit any cart or its products to be leaned against or hung from any building or any other structure, including, but not limited to, structures such as lamp posts, parking meters, mailboxes, traffic signal stanchions, fire hydrants, fire department standpipe connections, trees, tree boxes, benches, bus shelters, or traffic barriers which lawfully occupy public space;

(6) Be allowed to sell alcoholic beverages, used goods, any controlled substance or paraphernalia, dangerous weapons, or pyrotechnics;

(7) Use or permit the use of lights, noisemakers, bells, whistles, horns or similar devices to attract customers. A vendor may use battery-operated lights with appropriate protective shields for the purpose of illuminating merchandise; or

(8) Use or permit the use of adjacent City or privately-owned trash receptacles.

(Ord. No. 6667, § 1, 1-17-24)

Sec. 4.08.050. License fee.

Each application for a license to conduct business pursuant to this chapter shall be accompanied by an application fee. The application fee is nonrefundable and additional to the license fee. In addition, a license fee shall be collected prior to issuance of the license. The application fee and license fee shall be established by City Council.

(Ord. No. 6667, § 1, 1-17-24)

Sec. 4.08.060. Application for license.

When an application is submitted for a sidewalk vendor license, or for addition of products to an existing license, under this chapter, the City Manager shall make or cause to be made an investigation into the applicant's proposed sidewalk vending operation for the purpose of determining that said operation conforms with the provisions of this chapter and to all applicable state and local laws. An application for a sidewalk vendor's license shall contain all information deemed relevant and necessary to evaluate the proposed vending business, including but not limited to:

(a) The name and address to which notice, when required, is to be sent or mailed, and the name and address of a person authorized to accept service of process, if not otherwise set forth herein.

(b) A brief description of the food, beverages, goods and/or merchandise to be sold.

(c) If applicable, proof of registration of fictitious name with Washoe County Clerk.

(d) A valid copy of all necessary permits required by state or local health authorities.

(e) The nature of the application including whether the application is for a new license or the addition of products to an existing license.

(f) Such additional information deemed pertinent to the operation of the proposed activity not inconsistent with this chapter as the City Manager may require in addition to the other requirements of this section.

(Ord. No. 6667, § 1, 1-17-24)

Sec. 4.08.070. Inspections

Any vendor that is required to obtain permits or licenses through the local health authorities shall do so before selling any products and have them conspicuously displayed at all times during operation of the vending business.

(Ord. No. 6667, § 1, 1-17-24)

Sec. 4.08.080. Form and condition of license.

The license issued shall be in a form deemed suitable by the City Manager. In addition to naming the vendor and other information deemed appropriate by the City Manager, the license shall contain the following conditions:

(a) The license issued shall be personal only and not transferable in any manner;

(b) The license is valid for one conveyance, including, without limitation, a pushcart, stand, display, pedal-driven cart, wagon, showcase or rack;

(c) The applicant shall furnish a certificate of insurance showing coverage under an insurance policy issued by an insurance company licensed to do business in the

State of Nevada, protecting the vendor and the City from all claims or damages to property and bodily injury, including death, which may arise from operations under the license or in connection therewith. Such insurance shall provide coverage of not less than $1,000,000.00 combined single limit for bodily injury and property damage. Such certificate of insurance shall name as additional insured the City and shall provide the policy shall not terminate or be canceled nor the coverage hereunder amended or reduced prior to the expiration date without 30 days advance written notice to the City.

(d) The license is subject to the further restrictions of this chapter.

(Ord. No. 6667, § 1, 1-17-24)

Sec. 4.08.090. Renewal.

(a) Application for renewal of licenses shall be on an annual cycle. Applications shall be on a form deemed suitable by the City Manager and shall be reviewed to determine that:

(1) The applicant has a currently effective insurance policy in the minimum amount provided in section 4.08.080 naming the City as an additional insured;

(2) All applicable required permits are current; and,

(3) For the year prior, sidewalk vendor was in full compliance with all the terms conditions of its license, this chapter, and applicable local, state and federal law and regulations.

(b) If the City Manager finds that the application meets the requirements set forth in subsection (a) above, a new license shall be issued. The City Manager shall have the authority to modify the terms and conditions of the license consistent with his or her findings set forth in subsection (a) above.

(Ord. No. 6667, § 1, 1-17-24)

Sec. 4.08.100. Enforcement.

(a) Any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor crime that does not constitute a crime of moral turpitude; or

(2) If the violation occurs within a residential area the penalty is a civil violation only; or

(3) Shall be subject to provisions of RMC Chapter 1.05, et seq.

(b) The application of the above penalty referenced provisions shall not preclude the enforced removal of any condition violating this chapter or any license issued pursuant to this chapter ("prohibited condition"), or the closing of the place in which the prohibited conditions exist.

(c) The enforced removal of prohibited conditions or the closing of the place in which the prohibited conditions exist shall not preclude the application of the above penalty referenced provisions.

(Ord. No. 6667, § 1, 1-17-24)

Sec. 4.08.110. Violation a nuisance, summary abatement.

The placement of any cart or device on any sidewalk in violation of the provisions of this chapter is declared to be a public nuisance. In addition to any other legal remedies, the Chief

of Police may cause the removal of any cart or device found on a sidewalk in violation of this chapter and is authorized to store such cart or device until the owner thereof shall redeem it by paying the applicable removal and storage charges.

(Ord. No. 6667, § 1, 1-17-24)

Sec. 4.08.120. Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this chapter or any part thereof. The City Council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause, or phrase thereof irrespective of the fact that any one or more section, subsections, subdivisions, paragraphs, sentences, clauses or phrases be declared unconstitutional or invalid or ineffective.

(Ord. No. 6667, § 1, 1-17-24)

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Title 5 PRIVILEGED LICENSES, PERMITS AND FRANCHISES

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Ch. 5.06. Adult Interactive Cabarets, §§ 5.06.005—5.06.120
Ch. 5.07. Alcoholic Beverages, §§ 5.07.011—5.07.200
Ch. 5.08. Pawnbrokers and Secondhand Dealers, §§ 5.08.011—5.08.130
Ch. 5.09. Auctions and Auctioneers, §§ 5.09.011—5.09.130
Ch. 5.10. Escort and Out Call Services, §§ 5.10.011—5.10.050
Ch. 5.11. Gaming, §§ 5.11.005—5.11.030
Ch. 5.12. Peddlers, Solicitors and Temporary Merchants, §§ 5.12.011—5.12.030
Ch. 5.13. Special Events and Special Activities, §§ 5.13.010—5.13.230
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Ch. 5.18. Right-of-Way Toll, §§ 5.18.010, 5.18.020
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Ch. 5.20. Motion Picture and Television Production, §§ 5.20.010—5.20.150
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- Art. I. In General, § 5.90.005
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- Art. III. Reserved, §§ 5.90.100—5.90.210
- Art. IV. Discretionary Natural Gas Service, §§ 5.90.220—5.90.310
- Art. V. Electricity Distribution, §§ 5.90.320—5.90.430
- Art. VI. Gas Distribution, §§ 5.90.440—5.90.540
- Art. VII. Warren Estates Geothermal Water Distribution, §§ 5.90.550—5.90.650
- Art. VIII. Skyline Area Geothermal Water Distribution, §§ 5.90.660—5.90.790
- Art. IX. Master Cable Television Ordinance, §§ 5.90.800—5.90.1170
- Art. X. Reserved, §§ 5.90.1180—5.90.1600
- Art. XI. Reserved, §§ 5.90.2180—5.90.2620

Ch. 5.95. Telecommunications, § 5.95.010

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CHAPTER 5.05. LICENSES GENERALLY*

Sec. 5.05.005. Purpose and short title.
Sec. 5.05.006. Conformance with business license provisions.
Sec. 5.05.007. Approvable revocable privilege.
Sec. 5.05.008. General requirements.
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Sec. 5.05.017. Appeals.
Sec. 5.05.018. Severability.

Sec. 5.05.005. Purpose and short title.

This title regulates those activities which are found by the city to require a higher demand of city services by affecting the economic, social, health and general well-being of the city and its residents. The activities have commonly been referred to as "privileged" and must comply with this title which shall be known as the privileged licenses and permits code.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6512, § 1, 5-8-19)

Sec. 5.05.006. Conformance with business license provisions.

Businesses governed by this title must also comply with title 4 unless particular provisions of title 4 are superseded by the provisions herein. Unless specifically provided otherwise in a chapter of this title, no license applied for under this title shall be issued until the required annual business license is issued in accordance with title 4. No privileged license business activity may commence until a privileged license under this chapter is issued.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6242, § 1, 7-11-12)

Sec. 5.05.007. Approvable revocable privilege.

No applicant for a privileged license or permit has any right to such license or permit. Any license or permit issued pursuant to the provisions of this title is a revocable privilege, and no holder acquires any vested right therein or thereunder. The revocation process shall be conducted in accordance with the provisions of RMC section 4.04.190.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6242, § 1, 7-11-12)

***Cross reference—**Massage Establishments, Ch. 5.23, § 5.23.035, Background requirement on renewal of massage establishment license.

Sec. 5.05.008. General requirements.

(a) Every person submitting an application for a privileged business license specified in subsection (f) below is subject to a background investigation to determine suitability for the license, including an FBI fingerprint-based investigation prior to the issuance of any license. An interim license may be issued as specified in subsection (h) below.

A background investigation conducted by the city may be considered valid for 24 months as it relates to the requirements of this chapter unless otherwise set forth herein. If an applicant has received a privileged license pursuant to this chapter and, within 24 months, subsequently submits another application for a privileged license, then the city reserves the right to conduct a criminal case record check of local criminal justice agencies to confirm that the applicant has not been arrested or convicted for any offense that would preclude them from passing any complete fingerprint based background investigation.

(b) No business license may be issued until the prescribed license fee, and any fingerprint and investigation fees, have been paid to the city.

(c) An applicant for a business license specified in subsection (f) below shall submit all information required for a background check to the police department.

(d) Pursuant to NRS 239B.010(1)(a) and P.L. 92-544, the police department is authorized to submit the fingerprints of an applicant for a business license specified in subsection (f) below, plus any required fees and any information required for the background check, to the Central Repository for Nevada Records of Criminal History for a statewide background check and for submission by the Central Repository to the FBI to obtain the FBI nationwide background check of the applicant. The Nevada Department of Public Safety is hereby authorized to exchange such fingerprint data with the FBI for purposes of the background check.

(e) Failure of an applicant for a business license set forth in subsection (f) below to submit to fingerprinting or to provide information required by this section is grounds for denial of the application.

(f) An applicant for any of the following business licenses shall comply with the provisions of this section and any other FBI or police department requirements necessary to obtain a FBI nationwide background check:

- **(1)** Alcohol service and sales (RMC Chapter 5.07);
- **(2)** Pawnbrokers and secondhand dealers (RMC Chapter 5.08);
- **(3)** Auctions and auctioneers (RMC Chapter 5.09);
- **(4)** Escort and outcall services (RMC Chapter 5.10);
- **(5)** Peddlers, solicitors and temporary merchants (RMC Chapter 5.12);
- **(6)** Sidewalk vendors (RMC Chapter 5.15);
- **(7)** Towing and booting companies (RMC Chapter 5.16);
- **(8)** Vehicles for hire (RMC Chapter 5.17);
- **(9)** Tobacco paraphernalia retailers (RMC Chapter 5.19); and
- **(10)** Massage establishments (RMC Chapter 5.23).

(g) A business license application will be considered properly completed upon submission of all required application materials and information, including payment of all required application and investigation fees. Thereafter, and prior to issuance of a license, review

and approval will be obtained from all appropriate agencies which may include, but are not necessarily limited to, building, planning, fire, police, environmental control, city council and relevant district, county and state agencies.

(h) Thirty days after a properly completed application for a privileged license has been submitted, the applicant may obtain an interim privileged license under the following circumstances:

(1) All agency approvals have been obtained except for police;

(2) The police department background investigation, or criminal case record check of local criminal justice agencies (for privileged license holder having completed a complete background investigation as set forth in (a) above), has not been completed and approval not obtained;

(3) The applicant executes an interim privileged license declaration form;

(4) The applicant acknowledges the background investigation delay and stipulates that if the license is ultimately denied, business activity shall immediately cease upon receiving the denial notice.

(5) Appropriate conditions or limitations effective during the interim period may be imposed and the applicant shall hold the city harmless from any damages or claims arising out of its operation pursuant to the interim license.

(i) Any licensee who seeks an additional license for an additional business location is not subject to the 30-day wait for an interim license, if the present business location is being operated in accordance with the requirements of the Reno Municipal Code and has no history of violations.

(j) The police department shall, upon completion of the background investigation, recommend approval or denial of the application and forward its recommendation to the city license office. If an applicant is denied a license after investigation, the investigation fees shall not be returned to the applicant. The recommendation for denial of an application must be based upon good cause which includes but is not limited to:

(1) The application is incomplete or contains false, misleading or fraudulent statements.

(2) The applicant fails to satisfy any qualification or requirement imposed by this title, local, state or federal law, regulation or administrative policy pertaining to such activities.

(3) The applicant has been subject, in any jurisdiction, to administrative action of any kind imposing fines or other discipline relating to the operation of a business licensed in the jurisdiction, or denied a license or work card, due to suitability issues.

(4) The applicant has engaged in deceptive practices upon the public.

(5) The applicant has, within the five years immediately preceding the date of the application, been convicted of any of the following criminal offenses, regardless of the jurisdiction of the conviction:

a. A felony or any crime which, under the laws of this state, would amount to a felony;

b. Any crime of which theft, fraud or intent to defraud is an element;

c. Unlawfully possessing or distributing a controlled substance;

d. Solicitation, prostitution, or pandering; or

e. Any sex offense requiring the applicant to register under NRS 179D.441 to 179D.470, if the applicant has been classified by the state as a Tier 1 or below.

(6) A person who, within the ten years immediately preceding the date of the application, has been convicted of any sex offense requiring the applicant to register under NRS 179D.441 to 179D.470, if the applicant has been classified by the state as a Tier 2 or Tier 3 offender.

(7) Any cause reasonably related to furtherance of the public welfare.

(k) License applications for gaming, liquor, medical marijuana establishments, marijuana establishments, pawnbroker, secondhand merchandise, and escort services must be approved by the city council.

(l) The holder of a privileged license is, and shall be, liable for any and all acts of his or her employees, while acting within the scope of their employment, and for any violation by them of any of the provisions of title 4 and title 5.

(m) If employees of a privileged business are required to obtain work cards through the Reno Police Department, the holder of the privileged license has a duty to immediately notify the city if any employee having a work card has been convicted of an offense that would disqualify the employee from being issued a work card under RMC section 5.05.011(e). This duty applies if the holder of the privileged license knows or reasonably should know of the conviction.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 4780, § 1, 8-26-97; Ord. No. 6047, § 1, 8-20-08; Ord. No. 6100, § 1, 3-25-09; Ord. No. 6150, § 1, 5-12-10; Ord. No. 6242, § 1, 7-11-12; Ord. No. 6269, § 1, 11-7-12; Ord. No. 6341, § 2, 8-20-14, eff. 8-22-14; Ord. No. 6467, § 1, 6-6-18; Ord. No. 6512, § 1, 5-8-19; Ord. No. 6547, § 1, 2-26-20)

Sec. 5.05.009. Post office box address unacceptable.

A post office box address is unacceptable on a business license application where a fixed place of business from where the business will be conducted is required. An applicant may identify and designate on his application a post office box address as the address to which he prefers correspondence to be mailed.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6242, § 1, 7-11-12; Ord. No. 6512, § 1, 5-8-19)

Sec. 5.05.010. Reserved.

Editor's note—Ord. No. 6242, § 1, adopted July 11, 2012, repealed § 5.05.010, which pertained to branch locations. See also the Code Comparative Table.

Sec. 5.05.011. Work cards.

(a) Any person employed by each of the following businesses or acting as an independent contractor for any of the following businesses shall be required to obtain a work card, permitting his/her photograph to be taken, have his/her fingerprints taken through the chief of police, and comply with any other FBI or police department requirements necessary to obtain a national background check;

(1) Booting companies;

(2) Escort services;

(3) Out call entertainment services;

(4) Pawn shops;

(5) Secondhand dealers;

(6) Towing companies; and

(7) Vehicles for hire.

(b) A business establishment set forth in subsection (a), licensed under this title 5 shall not employ or contract for services with any person who does not hold a valid work card as required by this chapter.

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(c) Every person submitting an application for a work card pursuant to this title is subject to a background investigation to determine suitability for the work card, and shall submit all information required by the police department or the FBI. An FBI fingerprint-based investigation must be conducted prior to the issuance of any work card set forth in subsection (a) above.

(d) Pursuant to NRS 239B.010(1)(a) and P.L. 92-544, the police department is authorized to submit the fingerprints of an applicant for a work card set forth in subsection (a) above, plus any required fees and any information required for the background check, to the Central Repository for Nevada Records of Criminal History for a statewide background check and for submission by the Central Repository to the FBI to obtain the FBI nationwide background check of the applicant. The Nevada Department of Public Safety is hereby authorized to exchange such fingerprint data with the FBI for purposes of the background check.

(e) It is the duty of the chief of police or designee to investigate the legal qualifications of each applicant for a work card before a permanent work card is granted, to periodically investigate the legal qualifications of each holder of a work card, and to verify that no work card shall be granted to unsuitable persons. The following persons are declared to be unsuitable to be granted or to hold any work card under the provisions of this chapter:

(1) A person who, within the five years immediately preceding the date of the application, has been convicted of any of the following criminal offenses, regardless of the jurisdiction of the conviction:

a. A felony or any crime which, under the laws of this state, would amount to a felony;

b. Any crime of which theft, fraud or intent to defraud is an element;

c. Unlawfully possessing or distributing controlled substances;

d. Solicitation, prostitution, or pandering; or

e. Any sex offense requiring the applicant to register under NRS 179D.441 to 179D.470, if the applicant has been classified by the state as a Tier 1 or below.

(2) A person who, within the ten years immediately preceding the date of the application, has been convicted of any sex offense requiring the applicant to register under NRS 179D.441 to 179D.470, if the applicant has been classified by the state as a Tier 2 or Tier 3 offender.

(f) A person who applies for a work card, or reports a name change, change of contact information, or lost or stolen work card, while criminal charges enumerated in subsection (e) are pending, will be issued a temporary work card. The temporary work card will carry, as an expiration date, the date the charges are scheduled to be heard in a court of law. The expiration date will be extended, as necessary, until the criminal charges have been adjudicated. The disposition of the criminal matter will be the determining factor in whether or not a permanent work card is issued. It is the applicant's responsibility to obtain a temporary work card with a new expiration date.

(g) Providing false information, or omitting required information, will be grounds for denial or revocation of a work card previously issued and/or prosecution as provided in section 1.04.010 of the Reno Municipal Code.

(h) The police department may investigate through the use of any state or federal law enforcement agencies or through other legal means reasonably available.

(i) The police department may revoke a work card when the person holding the card is convicted of any offense enumerated in subsection (e) above.

(j) Upon submitting the application for a work card to the police department, the applicant will be issued a work card if no disqualifying information appears on the application. The work card will be subject to revocation upon return of the background investigation from the state repository and the FBI, if the return contains disqualifying information.

(k) Any person denied a work card or who has a work card revoked may make a written application for review to the chief of police. The chief of police or designee may, having due consideration for the proper protection of the public health, safety, morals, good order and general welfare of the inhabitants of the city, and upon evidence of the good moral character and rehabilitation of the applicant, waive any of the above enumerated restrictions and conditions and grant said work card.

(l) Any person whose denial or revocation of a work card has been upheld by the chief of police or designee may appeal the decision of the chief of police or designee in accordance with the procedure set forth in RMC section 4.04.160.

(m) A permanent work card will be valid for five years from the date of initial application and will expire thereafter. Appeals of adverse decisions or issuance of temporary work cards shall not serve to extend the expiration date. A permanent work card issued prior to the effective date of this ordinance will retain the expiration date in effect when the permanent work card was issued.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 5050, § 1, 9-28-99; Ord. No. 5527, § 1, 12-17-03; Ord. No. 5718, § 1, 7-6-05; Ord. No. 6047, § 2, 8-20-08; Ord. No. 6242, § 1, 7-11-12; Ord. No. 6512, § 1, 5-8-19)

Sec. 5.05.012. Adult interactive cabaret work card.

(a) Each adult interactive cabaret employee and adult interactive cabaret performer employed or conducting business as an independent contractor in an adult interactive cabaret, as defined under RMC section 5.06.011, shall obtain an adult interactive cabaret work card as described under this section, and have his/her fingerprints and photograph taken through the chief of police prior to the commencement of work.

(b) It is the duty of the police chief or designee to investigate the legal qualifications of each applicant for an adult interactive cabaret work card before any such work card is granted, and to periodically investigate the legal qualifications of each holder of such work card. An adult interactive cabaret performer shall maintain evidence of an active business license. The police chief may investigate through the use of any state or federal law enforcement agencies or through other legal means reasonably available.

(c) Pursuant to NRS 239B.010(1)(a) and P.L. 92-544, the police department is authorized to submit the fingerprints of an applicant for an adult interactive cabaret work card, plus any required fees and any information required for the background check, to the Central Repository for Nevada Records of Criminal History for a statewide background check and for submission by the Central Repository to the FBI to obtain the FBI nationwide background check of the applicant. The Nevada Department of Public Safety is hereby authorized to exchange such fingerprint data with the FBI for purposes of the background check.

(d) The chief of police or designee shall deny the issuance or cause the revocation of a work card required under this section for any of the following reasons:

(1) The applicant has provided false information, or has omitted required information, with respect to any material fact contained in the application for a work card;

(2) The applicant has been convicted of a crime in any state in a five-year period immediately prior to the date of the application for the work card for:

a. Solicitation of prostitution, prostitution or pandering;

b. Any crime of which theft, fraud or intent to defraud is an element;

c. Any crime on the premises of an adult interactive cabaret within the City of Reno;

d. Any sex offense requiring the applicant to register under NRS Chapter 179D; or

e. Unlawfully possessing or distributing controlled substances.

(3) The applicant has violated Code regulations, as set forth in section 5.06.080 (adult interactive cabaret operations), or has had an adult interactive cabaret work card revoked pursuant to this Code, within five years of the date of the current work card application; or

(4) The applicant has been denied the issuance or renewal of an adult interactive cabaret work card by the City of Reno, within five years of the date of the current work card application, for any reason set out in subsections (d)(1), (d)(2) or (d)(3) of this section. Denial for grounds set forth in this subsection will not serve to renew or extend the time from previous revocation or denial within which an applicant will be denied a work card.

(e) *Completed work card application.* A work card application for an adult interactive cabaret employee and adult interactive cabaret performer employed or conducting business as an independent contractor in an adult interactive cabaret, as defined by RMC section 5.06.011, will be considered properly completed upon submission of all required application materials and information, including submission of fingerprints and payment of all required application fees. The Work Applicant Unit of the Police Department shall issue or deny the work card no later than one full business day from the date of receipt of the properly completed application.

(f) *Denial.* An adult interactive cabaret work card shall only be denied for grounds set forth in subsection (d). If denial occurs, the work card applicant shall be notified either personally or by certified mail, mailed to the applicant′s address on file with the Work Applicant Unit.

(1) If the work card is denied, the applicant may request review of the denial by the police chief or designee and shall request review within ten business days of the date of denial. The failure to commence a timely appeal shall be deemed a waiver of any and all objections to the denial. The police chief or designee shall issue a review decision in writing within five business days of the request for review.

a. Notification of the review decision shall be provided either personally or by certified mail, mailed to the applicant′s address on file with the Work Applicant Unit. Each applicant has the burden to furnish any change of address to the Work Applicant Unit. Notice of the review decision shall officially commence on the day the decision is personally given or the day the decision is deposited into the mail under certification.

b. An applicant who seeks to engage in First Amendment expressive conduct and whose denial of a work card has been upheld on review may file or cause to be filed in the district court a petition labeled as a ″First Amendment Petition″ for judicial review challenging the validity of the revocation or denial of the work card as provided by NRS Chapter 34.

c. An applicant who does not seek to engage in First Amendment expressive conduct and whose denial of a work card has been upheld on review may appeal the decision of the chief of police or designee in accordance with the procedure set forth under RMC section 4.04.160.

(2) Upon request for review, except as addressed in subsection (f)(3), the applicant shall be issued a temporary work card. The temporary work card will carry an expiration date of thirty days from the date of the request for review.

(3) If the work card is denied for grounds set forth in subsection (d)(4), the applicant will not be issued a temporary work card. The applicant may nonetheless pursue review and appeal pursuant to subsection (f)(1).

(g) Revocation. An adult interactive cabaret work card shall only be revoked for grounds set forth in subsection (d). If revocation occurs, the police chief or designee shall notify the work card holder of such revocation in writing by certified mail, mailed to the work card holder′s address on file with the Work Applicant Unit of the Police Department.

(1) If the work card is revoked, the work card holder may appeal and request review of the revocation by the police chief or designee and shall request such review within ten business days of the date of revocation. The failure to commence such a timely appeal shall be deemed a waiver of any and all objections to the revocation or suspension. The police chief or designee shall issue a review decision in writing within five business days of the request for review.

a. Notification of the review decision shall be provided either personally or by certified mail, mailed to the work card holder′s address on file with the work applicant unit. Each work card holder has the burden to furnish any change of address to the work applicant unit. Notice of the review decision shall officially commence on the day the decision is personally given or the day the decision is deposited into the mail under certification.

b. An applicant who seeks to engage in First Amendment expressive conduct and whose revocation of a work card has been upheld on review may file or cause to be filed in the district court a petition labeled as a ″First Amendment Petition″ for judicial review challenging the validity of the revocation of the work card as provided by NRS Chapter 34.

c. An applicant who does not seek to engage in First Amendment expressive conduct and whose denial of a work card has been upheld on review may appeal the decision of the chief of police or designee in accordance with the procedure set forth under RMC section 4.04.160.

(2) An applicant who seeks to engage in First Amendment expressive conduct, upon request for review of the revocation, the work card holder shall be issued a temporary work card. The temporary work card will carry an expiration date of thirty days from the date of the request for review.

(3) If a work card is revoked, and after appeal has been pursued through final decision or the time for appeal has expired without pursuit of appeal, the city may notify, as applicable to the individual, adult interactive cabaret(s) within the City of Reno that the work card has been revoked.

(h) Pending charges. While criminal charges enumerated in subsection (d) are pending, a person who applies for a work card, reports a name change, change of contact information, or reports a lost or stolen work card, will be issued a temporary work card. The temporary work card will carry, as an expiration date, the date the criminal charges are scheduled to be heard in a court of law. The expiration date will be extended, as necessary, until the criminal charges have been adjudicated. If disposition of the criminal matter results in work card denial, the applicant may pursue review and appeal pursuant to subsection (f)(1). It is the applicant′s responsibility to obtain a temporary work card with a new expiration date.

(i) Validity. A permanent work card will be valid for five years from the date of initial application and will expire thereafter. Appeals of adverse decisions or issuance of temporary work cards shall not serve to extend the expiration date. A permanent work card issued prior to the effective date of this ordinance will retain the expiration date in effect when the permanent work card was issued. A work card issued under this section does not satisfy work card requirements for persons otherwise employed by or acting as an independent contractor for the businesses identified under RMC section 5.05.011.

(Ord. No. 6512, § 1, 5-8-19)

Sec. 5.05.013. Change of information; work card holder responsibilities.

A work card holder shall be responsible for informing the police department of any change in work card information. Every person required by this title to hold a valid work card shall notify the police department within five business days of any change of name, change of contact information or loss or theft of the work card. Upon payment of the applicable fees, the holder of such work card will be issued a replacement work card, unless otherwise restricted pursuant to this chapter. A change of information or reissuance of a work card shall not serve to extend the expiration date.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 5051, § 1, 9-28-99; Ord. No. 5527, § 2, 12-17-03; Ord. No. 5718, § 2, 7-6-05; Ord. No. 5952, § 1, 7-11-07; Ord. No. 6242, § 1, 7-11-12; Ord. No. 6512, § 1, 5-8-19)

Editor's note—Ord. No. 6512, § 1, adopted May 8, 2019, changed the title of § 5.05.013 from ″Change of information; applicant responsibilities″ to read as herein set out.

Sec. 5.05.014. Work cards to be in possession.

Every person required by this title to hold a valid work card is required to carry such work card with him or her, or have such work card immediately accessible to him or her, whenever he or she is engaged in the activity for which such a work card is required.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6512, § 1, 5-8-19)

Editor's note—Ord. No. 6512, § 1, adopted May 8, 2019, renumbered § 5.05.012 as § 5.05.014.

Secs. 5.05.015, 5.05.016. Reserved.

Editor's note—Ord. No. 6242, § 1, adopted July 11, 2012, repealed §§ 5.05.014 through 5.05.016, which pertained to change of information; applicant responsibilities; surety or undertaking required; and surety or undertaking is required; purposes. See also the Code Comparative Table.

Sec. 5.05.017. Appeals.

(a) ADMINISTRATIVE DECISIONS.

Appeals of administrative decisions concerning a privileged license, including denials, suspensions, revocations and grievances, shall be conducted in conformance with the provisions for appeals set forth in title 4. Administrative decisions are those license decisions made by city license office staff, including recommendations from other city departments on which the city license office staff relies in making the decision.

(b) CITY COUNCIL DECISIONS.

Judicial review of all city council decisions concerning a privileged license shall be sought as follows:

(1) In accordance with Chapter 34 of the Nevada Revised Statutes.

(2) Notwithstanding any right to initiate proceedings for judicial review under Chapter 34, the city shall, upon written request for the city to initiate judicial proceedings made by an aggrieved applicant and filed with the city clerk, within five business days of filing of the request, file an action with a court of competent jurisdiction seeking declaratory and/or injunctive relief, including temporary and/or preliminary relief, as to the propriety of the denial to determine the constitutionality of the denial on prior restraint grounds.

(3) The aggrieved applicant shall make his or her request under subsection (2) within 25 days after the date of filing of the final action or decision with the clerk of the governing body.

(4) For the purposes of subsections (2) and (3), an aggrieved applicant is a person who asserts in his or her written request for the city to initiate judicial proceedings that the constitutionality of the denial of the application is being challenged on prior restraint grounds under the First Amendment of the United States Constitution or Section 9 of Article 1 of the constitution of the State of Nevada.

(5) For purposes of subsection (2), business days do not include Saturday, Sunday, or those days declared legal holidays pursuant to NRS 236.015.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 5020, § 1, 7-6-99; Ord. No. 5416, § 1, 1-14-03; Ord. No. 5718, § 3, 7-6-05; Ord. No. 5814, § 1, 3-22-06)

Sec. 5.05.018. Severability.

If any section, paragraph, phrase or word of this title or portion thereof, is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such holding shall not invalidate the remaining portions of this title.

(Ord. No. 4765, § 1, 7-8-97)

CHAPTER 5.06. ADULT INTERACTIVE CABARETS*

Sec. 5.06.005. Purpose and findings.
Sec. 5.06.011. Definitions.
Sec. 5.06.020. Adult interactive cabaret records; advertising.
Sec. 5.06.030. Adult interactive cabaret license application.
Sec. 5.06.035. Adult interactive cabaret; license issuance or denial; revocation or suspension stayed pending appeal.
Sec. 5.06.040. Alcohol and other licenses separate.
Sec. 5.06.050. Penalty.
Sec. 5.06.060. Manager or designated responsible individual required on premises.
Sec. 5.06.070. Sufficient lighting.
Sec. 5.06.080. Adult interactive cabaret operations.
Sec. 5.06.090. Adult interactive cabaret electronic video monitoring.
Sec. 5.06.100. Licensee to ensure validity; maintain copy of documents; policies and procedures.
Sec. 5.06.110. Responsibility of licensee.
Sec. 5.06.120. Severability.

Sec. 5.06.005. Purpose and findings.

(a) The purpose of these adult business regulations is to prevent crime, protect the city tourist and retail trade, maintain property values, and preserve the quality of the city′s neighborhoods, commercial districts and urban life, and permit reasonable alternative avenues of communication to prevent the proliferation of illegal sex-related businesses. It is not the intent nor effect of this code to restrict or deny access by adults to adult businesses protected by the First Amendment; nor is it to suppress any speech activities protected by the First Amendment. Instead, the intent is to enact a content-neutral ordinance which addresses the adverse secondary effects of adult businesses.

The predominant concern of these regulations is the limitation and prevention of the adverse secondary effects of the operation of adult businesses which manifest through exposure of minors to adult business activities and materials (including in the form of exterior signage), distraction to motorists, harm to neighboring properties, businesses and tourism, spread of disease, commission of crime and exacerbation of these effects by the clustering of adult businesses and allowance and use of alcohol on the premises of adult businesses.

The provisions of these regulations have neither the purpose nor effect of imposing any limitation or restriction on the content of any communication, including adult business-related materials or performances. Similarly, it is neither the intent nor effect of these regulations to restrict or deny access by adults to adult business-related communication protected by the First Amendment, or to deny access by the distributors, exhibitors, and performers of adult business-related communication to their intended market. Likewise,

***Editor's note—**Ord. No. 6513, § 1, adopted May 8, 2019, amended ch. 5.06 in its entirety to read as herein set out. Former ch. 5.06, §§ 5.06.011—5.06.050, pertained to similar subject matter, and derived from Ord. No. 4765, § 1, adopted July 8, 1997; Ord. No. 5052, § 1, adopted Sept. 28, 1999; Ord. No. 5903, § 1, adopted Feb. 28, 2007; Ord. No. 5998, § 1, adopted Jan. 16, 2008.

the city seeks to assure adequate locations within the City of Reno for the conduct of adult businesses, and that regulations governing adult businesses are content neutral reasonable time, place and manner regulations furthering the purpose of these regulations.

(b) Based on evidence of the adverse secondary effects of the operation of adult businesses presented in hearings and in reports made available to the city council, including findings and interpretations incorporated in multiple court cases, and including multiple studies and reports concerning secondary effects occurring in and around adult businesses, the city council finds:

(1) Adult businesses, as a category of commercial uses, are associated with a wide variety of adverse secondary effects including, but not limited to, personal and property crimes, prostitution, potential spread of disease, lewdness, public indecency, obscenity, illicit drug use and drug trafficking, negative impacts on surrounding properties, urban blight, exposure of minors to adult business activities and materials (including in the form of exterior signage), exposure of minors to alcohol and adverse secondary effects associated with adult businesses, decrease in nearby property value in both commercial and residential areas, impairment to the economic vitality of nearby businesses, litter, and sexual assault and exploitation. Alcohol consumption impairs judgment and lowers inhibitions, thereby increasing the risk of and exacerbating adverse secondary effects.

(2) Adult businesses should be separated by suitable zoning location and reasonably spaced from sensitive land uses to minimize the impact of their secondary effects upon such uses.

(3) Each of the foregoing negative secondary effects constitutes a harm which the city has a substantial government interest in preventing and/or abating. This substantial government interest in preventing secondary effects, which is the city′s rationale for this section of code, exists independent of any comparative analysis between adult businesses and non-adult businesses. In addition, the city′s interest in regulating adult businesses extends to preventing future secondary effects of either current or future adult businesses that may locate in the city. The city finds that the cases and documentation relied on in this section of code are reasonably believed to be relevant to said secondary effects.

The city hereby adopts and incorporates herein its stated findings and legislative record related to the adverse secondary effects of adult businesses, including the judicial opinions, expert testimony, scholarly literature, and reports related to such secondary effects.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.011 Definitions.

In this chapter the following definitions shall apply unless the context clearly requires otherwise:

Adult interactive cabaret performer also referred to as ″performer″ means any person male or female who:

(1) Is an employee or independent contractor of an adult interactive cabaret and who, with or without any compensation or other form of consideration, performs as a

sexually-oriented dancer, exotic dancer, stripper or similar dancer, actor, model, entertainer or worker whose performance on a regular and substantial basis emphasizes exposure of and focus on the adult interactive cabaret performer's specified anatomical areas; or

(2) Is a person who, while performing or conducting personal or individual grooming, maintenance or hospitality services such as barber, cosmetic, food or beverage service or personal property maintenance (such as car wash or laundry), nevertheless emphasizes exposure of and focus on the person's specified anatomical areas; or

(3) Is a patron of an adult interactive cabaret where the patron is performing for other patrons as part of any publicized or promoted event that encourages adult interactive cabaret performance by such patrons such as an "amateur night" or a "tryout night".

The terms "adult interactive cabaret performer" and "performer" are synonymous as used in this chapter.

Adult interactive cabaret means any fixed place of business which offers to patrons the opportunity to view adult interactive cabaret performers whose attire, costume, clothing or lack thereof exposes specified anatomical areas, whose performance emphasizes exposure of and focus on specified anatomical areas, all of which is typically associated with allowing the performer to solicit from patrons present anything of value such as drinks, tips, gratuities or other compensation whether monetary or otherwise.

Employee describes and pertains to any person who performs any service on the premises of an adult interactive cabaret, on a full time, part time, or contract basis, regardless of whether the person is denominated an employee, independent contractor, agent, lessee, or otherwise. Employee does not include a person exclusively on the premises for repair or maintenance of the premises or for the delivery of goods to the premises.

Exposure means the presentation of a thing or an area to view, with less than a complete or opaque covering. Paint, dye or other coloring directly applied to or on a person's skin is neither complete nor opaque covering and does not prevent exposure.

Fondle or *fondling* means touching that is intended to sexually arouse or excite; it includes, but is not limited to, rubbing, stroking, licking, or biting.

RPD means the City of Reno Police Department.

Security guard means a person who acts as a doorman or bouncer or performs any function to secure or protect any interests of the business, on premises or in an attendant or assistant capacity.

Specified anatomical areas means:

(1) Less than completely or opaquely covered: human genitals or pubic region; buttock; or female breast below a point immediately above the top of the areola; and

(2) Human male genitals in a discernibly turgid state, even if completely or opaquely covered.

(3) Regular basis means the consistent and repeated doing of an act on an ongoing occurrence.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.020. Adult interactive cabaret records; advertising.

(a) For purposes of obtaining and maintaining a privileged license to operate an adult interactive cabaret, the licensee must maintain and make available upon reasonable request by authorized city personnel the following information for, and as applicable, to each employee and performer:

(1) Full legal name, aliases and/or stage names, current mailing address and telephone number, age, business license number, and work card number;

(2) A daily log or record of all adult interactive cabaret employees and performers and the arrival and departure times of their presence on the premises for the conduct of business. Each employee and performer shall provide a signature for each date he or she is present for the conduct of business. The log or record shall contain or be linked to the information required by subsection (a)(1);

(3) A daily summary of remuneration of any kind between each employee and performer and the licensed business;

(b) A record of any payments made by such employee and performer to the licensee or the licensee′s agents or employees;

(c) A record of any payments, benefits or gratuities provided to any employee and performer by the licensee or the licensee′s agents or, as applicable, other employees;

(d) Each such required record shall be maintained by the licensee for a period of three calendar years;

(e) No person, firm, partnership, corporation or other entity shall advertise, or cause to be advertised, as an adult interactive cabaret without a valid adult interactive cabaret license issued pursuant to title 4 and this title.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.030. Adult interactive cabaret license application.

(a) Every person submitting an application for an adult interactive cabaret license is subject to a background investigation to determine suitability for the license, including an FBI fingerprint-based investigation prior to the issuance of any license.

(1) A business license application will be considered properly completed upon submission of all required application materials and information, including payment of all required application and investigation fees. Required application information includes submission of all fingerprints and information necessary to enable the RPD to complete the background investigation.

(2) Pursuant to NRS 239B.010(1)(a) and P.L. 92-544, the police department is authorized to submit the fingerprints of an applicant for an adult interactive cabaret business license, plus any required fees and any information required for the background check, to the Central Repository for Nevada Records of Criminal History for a statewide background check and for submission by the Central Repository to the FBI to obtain the FBI nationwide background check of the applicant. The Nevada Department of Public Safety is hereby authorized to exchange such fingerprint data with the FBI for purposes of the background check.

(b) An application for an adult interactive cabaret license shall include the following information:

(1) A description of all other business conducted or intended to be conducted on the premises;

(2) Whether the applicant or anyone having a ten percent or more ownership interest in the business or proposed business has:

a. Ever been convicted of any crime, excluding minor traffic offenses and, if so, the application shall state the person involved, the charge, date, court and disposition of the charges;

b. Ever had a business license denied, revoked or charges filed therefor, and if so, the application shall state the name of the business, date, jurisdiction, and outcome of any hearing; and

c. Ever owned or operated an escort service, an out call promoter establishment, a brothel or adult nightclub, adult theater, adult bookstore or any other adult business and if so, the name of the business and address, dates involved and position of interest therein.

(c) Every applicant shall present herself or himself to the RPD for investigation and submit the applicable fingerprint fee, and shall reveal to the RPD such information as is required to properly identify the applicant and to enable the investigation of the applicant's arrests, convictions, and licensing record and verify the accuracy and completeness of the application. The applicant must also provide such information as may be required by the RPD to complete the background investigation.

(1) In all cases where the applicant for a license is a corporation, all of the principal officers of such corporation must present themselves for investigation and fingerprinting. All stockholders with ten percent or more stock, or who exercise management of the corporation, must present themselves for investigation and fingerprinting.

(2) In all cases where the applicant for a license is a limited liability company, all members having management authority for such limited-liability company must present themselves for investigation and fingerprinting. All members whose effective ownership percentage or beneficial interest in the limited-liability company is ten percent or more must present themselves for investigation and fingerprinting.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.035. Adult interactive cabaret; license issuance or denial; revocation or suspension stayed pending appeal.

(a) The city shall issue or deny an adult interactive cabaret license to the applicant within 30 days from the date of receipt of a properly completed application. Failure of the city to approve or deny the license application within the 30 days shall result in the license being granted under the following condition:

(1) Upon the expiration of the 30 days the applicant may demand a license and begin operation of the adult interactive cabaret for which the license is sought, unless and until the city notifies the applicant of a denial of the license application and states the reason for the denial. This provision shall not create a reliance or estoppel situation as to this license or any other provision of this Code.

(b) The city shall consider the application by examination of:

(1) The information provided within the submitted application;

(2) The circumstances of the applicant's criminal and business history;

(3) The proposed business operation of the applicant;

(4) The reports of all applicable departmental reviews.

(c) The license application shall be denied if:

(1) The applicant, whether an individual or any of the stockholders, officers or directors of a corporation, or any person having a ten percent or more ownership interest in the business or proposed business:

a. Has been convicted of any of the following offenses within the five years immediately preceding the date of the application, regardless of the jurisdiction of the conviction:

1. A felony or any crime which, under the laws of this state, would amount to a felony;
2. Any crime of which theft, fraud or intent to defraud is an element;
3. Unlawfully possessing or distributing a controlled substance;

b. Has been convicted of any of the following offenses within the ten years immediately preceding the date of the application, regardless of the jurisdiction of the conviction:

1. Solicitation, prostitution, or pandering; or
2. Any sex offense requiring the applicant to register under NRS 179D.441, et seq.

c. Has had a revocation of a business license for violations of code regulations pursuant to RMC Chapters 5.06 (Adult Interactive Cabarets) or 5.10 (Escort and Out Call Services), or RMC 18.08.202(b)(1) (Adult Businesses) within the two years immediately preceding the date of the application.

(2) The business operation as proposed by the applicant would not comply with all applicable laws, including but not limited to this title and the city's building, zoning, fire and health regulations.

(d) *Denial.* If the applicant is denied, the city shall notify the applicant with the reason(s) stated for denial. Notification of the denial shall be provided by certified mail, mailed to the applicant's address provided on the license application which shall be considered to be the correct address. Each applicant has the burden to furnish any change of address to the city. Notice of the review decision shall officially commence on the day the decision is personally given or the day the decision is deposited into the mail under certification.

(1) In the event of denial, the applicant may file or cause to be filed in the district court a petition labeled as a "First Amendment Petition" for judicial review challenging the validity of the denial as provided by NRS Chapter 34.

(e) Suspension or revocation. An adult interactive cabaret license may be suspended or revoked in accordance with title 4 and/or title 5 of this Code. In addition, a license for an adult interactive cabaret may be suspended or revoked on the following grounds:

(1) A licensee knowingly commits any act which would have constituted grounds for denial of an application for a license;

(2) A licensee has violated, or permitted, allowed or caused a violation of any provision of title 4 and/or title 5 of the Reno Municipal Code, any state law, or any condition of approval imposed upon the issuance of the license;

(3) The licensee has failed to maintain the premises in compliance with the requirements of: any state law, title 4 and/or title 5 of the Reno Municipal Code, the building official, the fire chief or any environmental or health department; and

(4) Any act or omission committed by any employee, agent, or independent contractor that occurs in the course of his or her employment, agency, or contract with the licensee shall be imputed to the licensee for the purpose of imposing any civil penalty, suspension, or revocation on the licensee.

(f) The holder of an adult interactive cabaret business license that is the subject of revocation or suspension as stated herein and/or under RMC 4.04.160, shall be permitted to conduct business under the license until appeal has been pursued through final decision or the time for appeal has expired without pursuit of appeal. The failure to commence a timely appeal shall be deemed a waiver of any and all objections to revocation or suspension.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.040. Alcohol and other licenses separate.

(a) If the holder of an adult interactive cabaret license wishes to sell or serve alcoholic beverages on the business premises, a separate alcoholic beverage license must be obtained.

(b) Licenses issued under this title shall clearly state on the license ″adult interactive cabaret.″

(c) A license allows the licensee to conduct only the business for which the license is obtained. Separate and additional licenses may be required.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.050. Penalty.

It is unlawful for any person or business entity to engage in business as an adult interactive cabaret within the incorporated areas of the City of Reno without first obtaining a business license as provided for in this title. Any person, firm or corporation violating this section or not complying with applicable adult business regulations contained under the RMC, including but not limited to, chapters 4.07, 5.05, and 5.06, shall be in violation for each and every day that the violation continues to exist or occur. This section does not negate the imposition of other penalties from other titles, chapters, and sections of this Code.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.060. Manager or designated responsible individual required on premises.

A manager or designated responsible individual shall be on duty at an adult interactive cabaret during all times a patron is present on the premises. Such person shall be responsible for all requirements of this chapter during his/her hours of work, and as specifically outlined under section 5.06.110 (responsibility of licensee). The manager or designated responsible individual

on duty pursuant to this section shall not be employed or contracted to provide services as an adult interactive cabaret performer on the day that he or she is acting as manager or responsible individual pursuant to this section.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.070. Sufficient lighting.

Adult interactive cabaret premises shall be equipped with lighting of sufficient intensity to illuminate every place in which patrons are permitted. Illumination shall be not less than one foot candles as measured at a point at least 36 inches but not more than 60 inches from the floor. Illumination shall be maintained at all times a patron, performer, or employee are present on the premises.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.080. Adult interactive cabaret operations.

(a) No adult interactive cabaret licensee shall allow an employee to work who does not have a valid work card and a performer to perform who does not have a valid business license and valid work card, as required by title 4 and title 5.

(b) No person, whether patron, performer, or otherwise, under the age of 18 years shall be admitted to, or permitted to remain on the premises of, an adult interactive cabaret. No person, including employees and performers, under the age of 21 years shall be admitted to, or allowed to remain on the premises of, an adult interactive cabaret wherein alcohol is provided, served, sold, or consumed.

(c) No adult interactive cabaret licensee shall serve, sell, distribute, permit or allow the consumption or possession of any intoxicating liquor, or any beverage represented as containing any alcohol, upon the premises of the licensee without a valid alcoholic beverage license.

(d) No patron shall be permitted at any time to enter into any of the nonpublic portions of the business, which shall include but are not limited to: dressing rooms, employee restrooms, or other rooms provided solely for the benefit of employees or independent contractors, in addition to the kitchen and storage areas.

(e) The adult interactive cabaret licensee, its managers, and security personnel shall maintain visual observation of each patron at all times a performer is present in any performance area or area to which patrons have access.

(f) At no time will a performer expose any portion of their pubic region, genitals, vulva and/or anus to view.

(g) No employee or performer shall fondle any patron. No employee or performer shall encourage or permit any patron to fondle any employee or performer.

(h) All adult interactive cabaret performance areas must be in complete view from the main floor area and may not be obscured by any design feature or artificial barrier including, but not limited to, curtains, doors, walls, screens and staircases. No booths, stalls, lounges, or similar areas of enclosure shall be installed for the private viewing of adult interactive cabaret performances by patrons. The requirement that performances must be in ″complete view from the main floor area″ under this section cannot be met through electronic monitoring means. Further, electronic monitoring does not absolve an area from being deemed ″private″ under language of this section.

(i) All areas where adult interactive cabaret performances occur must be open to public access.

(j) No performances shall be visible from the exterior of an adult interactive cabaret.

(k) No out call or escort service is permitted from an adult interactive cabaret.

(l) An adult interactive cabaret licensee shall conspicuously display its licenses as required by this chapter.

(m) All adult interactive cabarets shall post in at least two prominent locations within the nonpublic portions of the business, one of which shall include but are not limited to: the dressing rooms, restrooms, or other rooms provided solely for the benefit of employees or independent contractors and the kitchen and storage areas, with letters not less than three inches high stating:

″PROSTITUTION IS UNLAWFUL″

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.090. Adult interactive cabaret electronic video monitoring.

(a) Electronic video monitors with a recording resolution in low light conditions of at least 1920 by 1080, or the equivalent, at a rate of at least 15 frames per second, which have capability to provide coverage shall be maintained of all entrances and exits of the building, any point-of-sale location, performance stages and all areas to which patrons have access, including hallways, stairwells and any area that a patron may reasonably be expected to be present on the premises, except restrooms.

(b) Each electronic video monitor used and required pursuant to this section must:

(1) Include a date and time generator which possesses the capability to display the date and time of recorded events on the recording in a manner that does not significantly obstruct the recorded view.

(2) Include a failure notification system that provides an audible and visual notification of any failure in the electronic monitoring system.

(3) Include sufficient battery backup for video camera and recording equipment to support at least five minutes of recording in the event of a power outage.

(4) Be installed in a manner that will prevent the video camera from being readily obstructed, tampered with or disabled.

(5) Be inspected for adequate functionality on a regular basis and be repaired by an adult interactive cabaret licensee or its agent within 72 hours after a malfunction or other error is detected.

(c) Electronic video monitoring required by this section shall be operational at all times that the business is open to patrons. The adult interactive cabaret licensee shall ensure that all components of the video monitoring system are in good working order and shall immediately make repair to any malfunctioning or nonoperational component.

(d) If a video monitor used pursuant to this section malfunctions, licensee or its agent shall immediately provide alternative video camera coverage.

(e) Each adult interactive cabaret shall maintain a log that documents each malfunction and repair of the electronic monitoring equipment. The log must state the date, time, and

nature of each malfunction, the efforts taken to repair the malfunction and the date of each effort, the reason for any delay in repairing the malfunction, the date the malfunction is repaired and, if applicable, any alternative security measures that were taken. The adult interactive cabaret licensee shall maintain the log for at least two years after the date of last entry in the log.

(f) All video monitors shall be positioned to allow unobstructed view and capture of persons′ images, and images shall be of such quality to allow facial identification of persons within the premises and clearly at all entrances and exits of the premises.

(g) All electronic monitoring shall be recorded and the video recording shall be maintained on the premises for at least 90 days from the date of recording and provide on-demand access to the recordings and provide copies of the recordings to City of Reno representatives for review upon request and at the expense of the adult interactive cabaret.

(h) All adult interactive cabarets shall post at each entrance and in at least two places behind each bar a sign stating:

″All Activities on These Premises are Video Recorded″

Lettering must be black on a yellow background and the letters must be two inches high. The signs must be positioned between four and six feet above floor level and must be illuminated sufficiently to be read by a person with normal eyesight 20 feet from the sign.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.100. Licensee to ensure validity; maintain copy of documents; policies and procedures.

(a) The licensee of any adult interactive cabaret business shall not hold any original work card or business license for any performer or employee conducting business or employed by the adult interactive cabaret. However, the licensee shall regularly maintain a copy of work cards and business licenses for each performer or employee conducting business or employed by the adult interactive cabaret to ensure that:

(1) Each performer or employee has a current and valid work card;

(2) Each performer who is an independent contractor maintains a current and valid business license;

(3) The work card and business license are current and valid on each date that a performer conducts business on the premises of the licensee; and

(4) The work card is current and valid on each date that an employee or performer conducts business or works on the premises of the licensee.

(b) The licensee shall keep a copy of each individual work card and business license on file for every employee and performer employed or conducting business on the premises. The original work card and business license documents are the property of, and shall remain in the possession and control of the respective employee or performer.

(c) The licensee shall maintain and submit an updated copy of its policies and procedures annually to city clerk upon renewal of the licensee′s adult interactive cabaret business license. Those policies and procedures shall address the following:

(1) Where and how all copies of each employee′s and performer′s business license and work card records are maintained on the premises by the licensee.

(2) Prevention of loitering on the premises.

(3) Age verification procedures for entering the premises.

(4) Conducting electronic monitoring, including the location of every monitor on the premises and description of what the electronic monitoring system is made up of. A map representing the location of all electronic monitors shall be included.

(5) Procedure for addressing and maintaining records for malfunctioning or broken monitoring/recording units.

(6) Frequency and content of training provided to employees and performers, including but not limited to, addressing patron age verification, alcohol awareness, substance abuse awareness, human trafficking, on-site safety, and solicitation of prostitution.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.110. Responsibility of licensee.

(a) An adult interactive cabaret licensee shall not knowingly allow or take part in any pandering, prostitution or solicitation of prostitution on the licensed premises, whether such acts are committed by employees, performers, independent contractors, subcontractors or patrons.

(b) An adult interactive cabaret licensee shall not knowingly, or under circumstances that reasonably indicate such behavior is knowing or is willfully ignorant, negligent, or unaware, allow an employee to work or the performance on the adult interactive cabaret licensee′s premises of an adult interactive cabaret performer who does not possess current and valid work card and business license documentation as applicable and required by title 4 and title 5.

(c) The acts of any person or persons upon the licensed premises in violation of this chapter, whether the same person or several persons, and whether it is the licensee, an employee, agent, performer, independent contractor, or patron, that reasonably demonstrates a pattern of the adult interactive cabaret licensee′s unwillingness, negligence, or inability to control such acts and comply with title 4 and/or title 5, shall constitute grounds for suspension or revocation of the adult interactive cabaret license. Specifically, evidence of three acts of any person or persons upon the licensed premises that are documented in violation of RMC sections 5.06.020, 5.06.060—5.06.100 within any two-year period shall constitute a material violation, and may be considered as grounds for suspension or revocation of an adult interactive cabaret license.

(d) This section does not negate the imposition of other violations or responsibilities of licensee from other titles, chapters, and sections of this Code, or federal or state law.

(Ord. No. 6513, § 1, 5-8-19)

Sec. 5.06.120. Severability.

If any section, paragraph, phrase or word of this chapter or portion thereof, is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such holding shall not invalidate the remaining portions of this chapter.

(Ord. No. 6513, § 1, 5-8-19)

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CHAPTER 5.07. ALCOHOLIC BEVERAGES*

Sec. 5.07.011. Definitions.
Sec. 5.07.020. Access to establishment without warrant.
Sec. 5.07.024. Posting of business premises.
Sec. 5.07.030. Prohibited activities.
Sec. 5.07.040. Locational compatibility.
Sec. 5.07.045. Inactive licenses.
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Sec. 5.07.050. Individuals licensed only.
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Sec. 5.07.060. Special event alcohol permit.
Sec. 5.07.070. Alcoholic beverage manufacturer's license.
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Sec. 5.07.080. Wine and beer wholesaler's license.
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Sec. 5.07.100. Dining room wine and beer license.
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Sec. 5.07.121. Council action on licenses for package alcoholic beverage and package wine and beer.
Sec. 5.07.123. Downtown Safe Scape Area and Buffer Standards.
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Sec. 5.07.130. Nonprofit organization wine and beer license.
Sec. 5.07.140. Nonprofit organization alcoholic beverage license.
Sec. 5.07.150. On-premises wine and beer license.
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Sec. 5.07.170. Cabaret licenses.
Sec. 5.07.180. Dining room alcoholic beverage license.
Sec. 5.07.190. Caterer's alcoholic beverage license.
Sec. 5.07.200. Disciplinary action procedures and penalties.

Sec. 5.07.011. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

Alcohol means a product of the distillation of any fermented liquor, rectified either once or more often, whatever may be the origin thereof, and includes synthetic ethyl alcohol.

***Editor's note—**Ord. No. 6031, § 1, adopted June 11, 2008, amended portions of Ch. 5.07 to read as herein set out. See also the Code Comparative Table for a detailed analysis.
State law reference—Municipal power to license and regulate sale of intoxicating liquor, NRS 268.090.

Alcoholic beverage or *liquor* means:

(1) Beer, ale, porter, stout and other similar fermented beverages, including sake and similar products, of any name or description containing one-half of one percent (.50%) or more alcohol by volume, brewed or produced from malt, wholly or in part, or from any substitute.

(2) Any beverage obtained by the fermentation of the natural content of fruits or other agricultural products containing sugar, of not less than one-half of one percent (0.50%) of alcohol by volume.

(3) Any distilled spirits commonly referred to as ethyl alcohol, ethanol, or spirits of wine in any form, including all dilutions and mixtures thereof from whatever process produced.

Alcoholic beverage manufacturer means an establishment where the primary business is the manufacture, production, and bottling of alcoholic liquor and spirit-based products of all kinds, including brewing, distilling, and rectifying activities. An alcoholic beverage manufacturer licensee is subject to all federal and state laws and regulations applicable to such business activities.

Beer means and includes any fermented beverage of any name or description manufactured from malt, wholly or in part, or from any substance therefore and shall include such liquors as porter, beer, ale and stout.

Brew pub means an establishment which manufactures malt beverages and sells those malt beverages at retail pursuant to the provisions of NRS 597.230 as may be amended or renumbered.

Brewery means an establishment which manufactures malt beverages but does not sell those malt beverages at retail.

Cabaret license means a license for an establishment having any singing, dancing, floor show or other live entertainment to be conducted or carried on. This does not include adult interactive cabaret as defined in RMC chapter 5.06.

Caterer includes any licensed purveyor of food or provisions, for entertainment, special occasions, parties and social gatherings where food is provided for consumption on the premises or locations outside of the caterer's kitchen. A caterer's alcoholic beverage license is intended for the consumption on the premises as stated above in conjunction with food, and is prohibited from being dispensed from a mobile food vending vehicle/unit as defined in RMC chapter 4.05.

Convicted means a finding of guilt resulting from a plea of guilty, the decision of a court or magistrate or the verdict of a jury, irrespective of the pronouncement of judgment or the suspension thereof.

Craft distillery means an establishment which manufactures distilled spirits from agricultural raw materials through distillation and sells those distilled spirits pursuant to the provisions of NRS Chapter 597.

Department means, unless specifically used otherwise, the State of Nevada Department of Taxation.

Department application means the Nevada State Liquor License application for an importer/ wholesale liquor license or manufacturer liquor license to engage in business as an importer or wholesale dealer of wine, beer and spirits; operate a winery, instructional wine-making facility or rectifier; operate as a brewery or craft distillery; or, operate as a brew pub.

Dining room means a place which is regularly and in a bona fide manner used and kept open for the serving of meals to guests for compensation and which has suitable kitchen facilities connected therewith complying with all regulations of the state and health department and in which alcoholic beverages are not served over a bar or counter and are served only in connection with the service of meals.

Distillation means the process of producing or purifying spirituous liquor by successive evaporation and condensation.

Fondle or *fondling* means touching that is intended to sexually arouse or excite; it includes, but is not limited to, rubbing, stroking, licking, or biting.

Fresh or *frozen perishable food* means those foods likely to spoil, decay, or become unsafe to consume if not kept refrigerated or frozen. Examples of foods that must be kept refrigerated for safety include, but are not limited to, fruits, vegetables, egg, meat, poultry, seafood, and dairy products. Fresh food may also include foods that have extended expiration dates, including but not limited to, fruits and vegetables not requiring refrigeration, canned food, condiments, dried meat and bakery items.

Importer means any person who, in the case of liquors which are brewed, fermented or produced outside the state, is first in possession thereof within the state after completion of the act of importation.

Inactive means the doors to the business were closed to the public and/or alcohol was not sold for 90 consecutive days or more.

Instructional wine-making facility means an instructional wine-making facility operated pursuant to NRS 597.245. For the purposes of this chapter:

(1) A person who operates an instructional wine-making facility is not a wine maker or a supplier, brewer, distiller, manufacturer, producer, vintner, bottler, wholesaler, wholesale dealer, retailer or retail dealer of wine.

(2) An instructional wine-making facility is not a winery or a retail liquor store.

Intoxicating liquor means:

(1) The four varieties of liquor: Alcohol, spirits, wine and beer, and every liquor or solid, patented or not, containing one-half of one percent (0.50%) or more of alcohol by volume, and is intended for consumption by human beings as a beverage; and,

(2) Is synonymous with "alcoholic liquor" and "alcoholic beverage."

Any liquid containing beer or wine in combination with any other liquor shall not be construed to be beer or wine, but is construed to be an intoxicating liquor.

Licensee means any individual person to whom a license has been issued pursuant to this title.

Malt beverage means beer, ale, porter, stout and other similar fermented beverages of any name or description, brewed or produced from malt, wholly or in part.

New application means an application for a change of ownership, an application that is completed by a licensee or business owner for a business operating at a new location, or an application adding a new alcohol license to an existing business. The term new application shall not apply to a licensee who is changing locations for an existing business, or an add-on to an existing alcohol license at an existing location.

Nonprofit organization means an organization that is certified as a tax exempt entity pursuant to 26 U.S.C. Section 501(c), including but not limited to organizations operated for religious, charitable, scientific, literary, educational, or fraternal purposes.

Package means any immediate container of alcoholic beverage which is filled or packaged by the manufacturer or bottler for sale by the manufacturer or bottler.

Person means and includes a natural person, any form of business or social organization and any governmental entity other than the City's use of its property in a proprietary capacity.

Premises mean any and all places connected with and accessible to the licensed business.

Retail sale or *sale at retail* means a sale to a consumer or to any person for any purpose other than for resale.

Retailer means any person who sells at retail any alcoholic beverage.

Sale and *to sell* means any transfer, exchange or barter in any manner or by any means whatsoever for a consideration and includes to solicit or receive an order for, to keep or expose for sale and to keep with intent to sell and shall include delivery of any alcoholic beverage in the City.

Sales clerk means any principal, employee or other agent of the business who participates in making sales, operates the cash register or is otherwise behind the counter of the business at any time during which the business is open to the public.

Sample means an amount that is only of such quantity as is necessary to provide a taste of an alcoholic beverage. A sample may not exceed one-half ounce per drink.

Security employee or *contractor* means an individual, over the age of 21, whose job responsibilities include providing security to the employees and patrons of a business. Security employees or contractors shall comply with all state mandated alcohol training per NRS Chapter 369 and must provide proof of training upon request by any enforcement official as defined in the code.

Sensitive use means public parks, public recreation centers, primary or secondary schools, residential zoning districts, and facilities licensed by the State of Nevada for alcohol or drug abuse as outlined by NRS 449.00455, as amended.

Specified anatomical areas means:

(1) Less than completely or opaquely covered: human genitals or pubic region; buttock; or female breast below a point immediately above the top of the areola; and,

(2) Human male genitals in a discernibly turgid state, even if completely or opaquely covered.

Specified sexual activities means any of the following:

(1) Intercourse, oral copulation, masturbation or sodomy; or

(2) Excretory functions as a part of or in connection with any of the activities described in (1) above.

Wholesale sale or *sale at wholesale* shall mean sale to any person for purposes of resale.

Wholesaler means a person licensed to sell alcoholic beverages as it is originally packaged to retail stores or other licensed wholesalers, but not to sell to the consumer or general public.

Wine means any alcoholic beverages obtained by the fermentation of natural sugar contents of fruits or other agricultural products containing sugar, including fortified wines such as port, sherry, and champagne, and which does not contain more than twenty-four percent (24%) alcohol by volume.

(Ord. No. 6031, § 1, 6-11-08; Ord. No. 6262, § 1, 11-7-12; Ord. No. 6394, § 1, 3-9-16; Ord. No. 6514, § 1, 5-8-19; Ord. No. 6618, § 1, 1-12-22)

Sec. 5.07.020. Access to establishment without warrant.

(a) FINDINGS.

(1) The City is permitted by statute to regulate the conduct of alcohol sales businesses within its corporate limits.

(2) Alcohol sales businesses are part of a closely regulated industry.

(3) Through ordinances and statutes, alcohol licensees are required to conduct their business within particular parameters and are prohibited from permitting or engaging in particular acts.

(4) The City has a substantial interest in preserving the public's health, safety and quality of life through, among other programs, the regulation of alcohol sales businesses.

(5) Inspection of commercial property on which alcohol is sold, within the bounds of this Section, is a necessary component of enforcing alcohol-related ordinances and statutes.

(b) PURPOSE.

The provisions hereinafter contained and enacted are in pursuance of and for the purpose of securing and promoting the public health, morals and general welfare of persons patronizing or otherwise affected by a business so as to:

(1) Ensure that a licensee is conducting an alcohol sales business within laws specifically applying to alcohol sales businesses; and

(2) Ensure that a licensee is conducting an alcohol sales business without engaging in specific prohibited acts related to alcohol sales establishments.

(c) The community development director, the chief of police and their respective authorized designees shall have the authority to enter with or without a search warrant and free of charge, all areas of the licensed business premises to which the public normally has access during the operation of the business. Such authority shall only be exercised within reasonable times when a business establishment is open for the transaction of business. Inspection under this subsection shall be limited to verification that persons doing business on a business premises are properly licensed and have obtained all licenses required under Title 4 and 5, and verification of the conduct of business in compliance with the Reno Municipal Code. Inspection under this subsection shall be limited to a

reasonable length of time on the premises necessary to accomplish the goals of the inspection. These limitations shall not be construed to prohibit action based upon any other constitutionally recognized exception to the warrant requirement.

(d) Refusal to allow entry pursuant to this subsection shall constitute grounds for suspension or revocation of a license as described in RMC 5.05.007.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 5964, § 1, 9-12-07; Ord. No. 6262, § 1, 11-7-12; Ord. No. 6618, § 1, 1-12-22)

Sec. 5.07.024. Posting of business premises.

(a) In the case of a license application to sell alcoholic beverages at any premises not currently operating as an alcoholic beverage business, an applicant shall post notice of application for any alcohol license (excluding special event and special activity) on the proposed licensed premises within five business days of submitting a properly completed application for a license.

(1) The notice shall be prominently displayed and observable by persons in the public right-of-way outside of the premises.

(2) The applicant shall post notice with identification of the type of alcohol license for which application is made.

(3) The applicant shall return an affidavit of posting to the business licensing division reflecting that such posting has been made.

(b) The applicant may remove the posting upon receiving the pertinent alcohol license.

(Ord. No. 6131, § 1, 11-18-09)

Sec. 5.07.030. Prohibited activities.

It shall be unlawful for any licensee of an establishment to permit the creation of noises in such establishment, either by reason of boisterous conduct on the part of individuals or by reason of music or entertainment created by mechanical musical instruments or otherwise, or by dancing or other source of vibration which will unreasonably disturb any person or persons of ordinary sensibilities in any adjoining room or rooms, or building or premises or which emanate from and are audible outside the licensed premises.

It shall be unlawful for any licensee to display, present, or offer for purposes of amusement or entertainment, or allow to be displayed, presented, or offered for purposes of amusement or entertainment upon the premises of any licensed establishment, any floor show, act or presentation which is lewd, indecent or obscene.

It shall be unlawful for any licensee, under the provisions of this chapter, to knowingly allow or permit any person under the age of 21 years to remain on the premises. Nothing in this subsection shall apply to establishments where alcoholic beverages are served only in conjunction with regular meals and where dining tables or booths are provided separately from the bar or any store where alcoholic beverages are not sold by the drink for consumption on the premises.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.07.040. Locational compatibility.

(a) No new on-premises wine and beer licenses, on-premises alcoholic beverage licenses, package wine and beer licenses, package alcoholic beverage licenses, or cabaret

licenses shall be issued authorizing the sale of any alcoholic beverage for any location or premises which the city council deems unfavorable or undesirable due to its proximity to any sensitive use or its location in an area that is predominantly residential or, because of the specifics of the proposed use, either detrimental to the surrounding properties or burdensome for police monitoring purposes. Nothing in this subsection shall be construed to invalidate any license existing on September 14, 1963, or to prevent the continued sale of alcoholic beverages by the holder of such applicable license or his successor in interest at the location stipulated in the license.

(b) Additional locational standards and approval criteria for land uses requesting package wine and beer licenses or package alcoholic beverage licenses are outlined in Title 18. The Title 18 provisions shall not diminish the city council's discretion to further restrict any license to sell alcoholic beverages.

(Ord. No. 6618, § 1, 1-12-22)

Editor's note—Ord. No. 6618, § 1, adopted January 12, 2022, amended § 5.07.040 in its entirety to read as herein set out. Former § 5.07.040, pertained to prohibited locations, and derived from Ord. No. 6031, § 1, 6-11-08; Ord. No. 6099, § 1, 3-25-09; Ord. No. 6262, § 1, 11-7-12.

Sec. 5.07.045. Inactive licenses.

No license issued under this chapter shall be valid which has been inactive for a period of 90 days or more from the date of approval of the license, except that the licensee may make written request to the city council for an extension of the period of validity and the City may grant such extension. Any license which has remained inactive for more than 90 days from the date of approval shall be void and invalid, except that any license which has been extended as above provided and which has remained inactive through the last day of the extension period granted shall be void and invalid.

Upon request of the applicant, applicable license fees shall be refunded for the license which is allowed to remain inactive for a period of one year after the approval of the license.

(Ord. No. 6618, § 1, 1-12-22)

Sec. 5.07.046. Signage required.

The licensee of an establishment where alcohol is sold for consumption on the premises shall post a sign at all publicly-used exits of the establishment notifying patrons that it is unlawful to consume alcohol or to possess an open container of alcohol upon public property. The sign shall identify the ordinance that prohibits such consumption or possession (RMC 8.12.033, as amended), shall notify that a person violating such ordinance may be fined up to $1,000.00, may be punished by imprisonment in jail up to six months or may be both fined and imprisoned. The sign shall be posted so that it is clearly visible to patrons exiting the business.

(Ord. No. 6131, § 1, 11-18-09)

Sec. 5.07.050. Individuals licensed only.

Each license provided for in this article may only be issued to an individual person, it being the intention of the council to hold the individual, as the licensee, personally responsible for the orderly conduct of the business. If the applicant is not the sole owner of the business to be conducted on the premises for which the license is sought, or the owner(s), officer(s),

manager(s), or director(s) wish to appoint an individual to be licensed, the application must be accompanied by a sworn statement from an owner, officer, manager, or director of the business appointing the applicant as the individual to be licensed, authorizing him/her to apply for the license and to conduct the business. The licensing division reserves the right to require any and all owners, officers, managers, or directors to submit application materials.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6262, § 1, 11-7-12; Ord. No. 6618, § 1, 1-12-22)

Sec. 5.07.055. Nevada State Liquor License requirements and approval.

Any person engaged in business described in NRS Chapter 369 as an importer/wholesaler or manufacturer of beer, wine and liquors, winemakers, instructional wine-making facilities, breweries, brew pubs, and craft distilleries must obtain a Nevada State Liquor License to engage in these activities involving intoxicating liquor. Application approval for licenses relating to intoxicating liquor must be made to the governing body of the incorporated city where the applicant's business is physically located.

In addition to the limitations imposed by NRS Chapter 597, it shall be unlawful for any person(s) to conduct business as an importer/wholesaler of intoxicating liquors, and/or conduct business as a brew pub, brewery, craft distillery, instructional wine facility, rectifier, or winemaker in the City of Reno without first obtaining city council approval for the department application and the appropriate alcoholic beverage license from the City.

(a) The department application for any of the licenses described in this section must be made to the license division if the applicant maintains his or her principal place of business within the corporate boundaries of the City.

(b) Each department application must be made on the forms provided by the department and includes the name and address of the applicant. If the applicant is:

(1) A partnership, the application must include the names and addresses of all partners.

(2) A corporation, association or other organization, the application must include the names and addresses of the president, vice president, secretary and managing officer or officers.

(3) A person carrying on or transacting business in this state under an assumed or fictitious name, the person making the application shall attach thereto:

a. A certified copy of the certificate required by NRS 602.010 or a renewal certificate required by NRS 602.035.

b. A certificate signed by an officer of the corporation or by each person interested in, or conducting or carrying on such business, or intending so to do, and acknowledged before a person authorized to take acknowledgments of conveyances of real property, indicating the name of the authorized representative whose signature may be required on the license.

c. Specify the location, by street and number, of the premises for which the license is sought.

d. Specify the location, by street and number, of the premises where the intoxicating liquor is to be stored, if different from the business office location.

e. Be accompanied by the appropriate application processing fee(s) listed in the adopted fee schedule.

(c) Upon receipt of a complete department application, and all applicable fees, the license division shall place the department application on a city council agenda for consideration. The council shall examine the department application filed with the license division to determine if there is satisfactory evidence that the applicant is a person of good moral character.

(d) The council shall approve or disapprove the department application. If the department application is disapproved by the council, the license division shall notify the applicant in writing. If the council approves the department application, the license division shall forward it through the applicant to the department, together with the councils' written approval. The appropriate city licenses shall not be issued unless the department first issues the department license.

(e) The council may disapprove an application for any of the reasons listed in the intoxicating liquor provisions of this chapter or if it determines the applicant is not a suitable person for approval of such a license in accordance with the criteria in this chapter.

(f) Procedures for enforcement actions against any of the licenses described in this section are detailed in NRS Ch. 369.

(Ord. No. 6394, § 1, 3-9-16)

Sec. 5.07.060. Special event alcohol permit.

Any person desiring a special event alcohol permit must comply with the requirements set forth in the special events chapter of this title, RMC 5.13.

(Ord. No. 6031, § 1, 6-11-08; Ord. No. 6262, § 1, 11-7-12)

Sec. 5.07.070. Alcoholic beverage manufacturer's license.

It shall be unlawful for any person to manufacture or bottle any alcoholic beverage for sale without first obtaining an alcoholic beverage manufacturer's license from the City. The holder of an alcoholic beverage manufacturer's license is hereby authorized to manufacture and bottle any alcoholic beverage and to sell the manufactured or bottled product to other persons for resale only.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6618, § 1, 1-12-22)

Sec. 5.07.075. Alcoholic beverage manufacturer's package alcohol license.

The City of Reno is hereby authorized to issue licenses for the retail sale of package alcohol by a licensed alcoholic beverage manufacturer at the location where the alcohol product is produced. The following conditions shall apply to any alcoholic beverage manufacturer's package alcohol license:

(a) It shall be unlawful for any person to manufacture or bottle any alcoholic beverage for sale without first obtaining the appropriate alcoholic beverage manufacturer's license from the City as required by the guidelines set forth in the Reno Municipal Code and the Nevada Revised Statutes.

(b) An alcoholic beverage manufacturer's package alcohol license shall entitle the licensee to sell only the manufactured or bottled alcohol products licensed to produce on the premises to other persons at retail and only for off premises consumption.

Any new application for an alcoholic beverage manufacturer's package alcohol license shall be subject to the applicable fees as set forth in the adopted city fee schedule.

(Ord. No. 6423, § 1, 1-11-17; Ord. No. 6618, § 1, 1-12-22)

Sec. 5.07.080. Wine and beer wholesaler's license.

It shall be unlawful for any person to sell wine or beer at wholesale without first obtaining a wine and beer wholesaler's license or an alcoholic beverage wholesaler's license from the City. A wine and beer wholesaler's license shall entitle the holder to sell wine or beer only and only at wholesale.

(Ord. No. 6031, § 1, 6-11-08)

Sec. 5.07.090. Alcoholic beverage wholesaler's license.

It shall be unlawful for any person to sell alcoholic beverages other than wine or beer at wholesale without first obtaining an alcoholic beverage wholesaler's license from the City. Such license shall entitle the holder to sell all alcoholic beverages at wholesale only.

(Ord. No. 6031, § 1, 6-11-08)

Sec. 5.07.100. Dining room wine and beer license.

It shall be unlawful for any person to sell wine or beer in a dining room in the City unless such person shall have first obtained a dining room wine and beer license, or an on-premises dining room alcoholic beverage license, or an on-premises alcoholic beverage license, or a cabaret license from the City. A dining room wine and beer license shall entitle the holder to sell only wine and beer at retail in a dining room only for consumption on the premises.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.07.110. Package wine and beer license.

(a) It shall be unlawful for any person to sell wine or beer in packages without first obtaining from the City a package wine and beer license; and

(b) A package wine and beer license shall entitle the holder to sell wine or beer at retail in original sealed or corked containers only and only for consumption off the premises where the same are sold or provided free of charge.

(Ord. No. 6031, § 1, 6-11-08; Ord. No. 6618, § 1, 1-12-22)

Sec. 5.07.120. Package alcoholic beverage license.

The following conditions shall apply to package alcoholic beverage licenses:

(a) It shall be unlawful for any person to sell any alcoholic beverage in packages without first obtaining from the City a package alcoholic beverage license; and

(b) A package alcoholic beverage license shall entitle the holder to sell all alcoholic beverages at retail, in original sealed or corked containers only, and for consumption off the premises where the same are sold or provided free of charge, which includes businesses commonly known as convenience stores or liquor stores; and

(c) All new applications for package alcoholic beverage licenses shall be subject to an application fee that is equal to two times the annual cost of the package alcoholic beverage license fee. This application fee will cover the cost of up to two licensee background checks and all other applicable reviews and inspections required for a package alcoholic beverage license. Additional required background checks will incur the background check fee per the fee schedule at the time of application.

(Ord. No. 6031, § 1, 6-11-08; Ord. No. 6262, § 1, 11-7-12; Ord. No. 6618, § 1, 1-12-22)

Sec. 5.07.121. Council action on licenses for package alcoholic beverage and package wine and beer.

(a) The city council may, at its discretion approve, approve with conditions, deny, or take such other action with respect to the application for a business license as it considers appropriate and in the best interest of the welfare, health, or safety of the City.

(b) In considering whether to approve, approve with conditions, or deny a privilege license, the city council may consider, by way of example and without limitation, the factors set forth in the regulations as they apply to the City, the background of the applicant(s), past business practices of the applicant(s), business operational plan, location of the proposed business, suitability of the building for the proposed business, parking, traffic movement and aesthetics, impact on the surrounding neighborhood, and the type and degree of security if proposed or required.

(c) The city council may deny any application if it determines in its discretion that granting the privilege license will not be in the best interest of the welfare, health, or safety of the City; or if the applicant or location of the license is determined by the council to not be suitable.

(d) Notwithstanding any other provision of this chapter or state law, the city council may, in its discretion, approve, approve with conditions, deny, limit, or take such other action as it considers appropriate with respect to a change of physical location of the business, or change of ownership, to include change of legal entity.

(Ord. No. 6618, § 1, 1-12-22)

Sec. 5.07.123. Downtown Safe Scape Area and Buffer Area standards.

PURPOSE

The purpose of this section is to: (i) safeguard property and promote public health, safety and welfare in and around the businesses; (ii) prevent crime, illegitimate behavior and nuisance behavior in and around the businesses; (iii) protect the City's investment in the redevelopment of the downtown areas, (iv) maintain and revitalize downtown property values; (v) preserve and improve the quality of the City's downtown neighborhoods and commercial districts; and (vi) preserve and improve the quality of urban life.

(a) APPLICABILITY.

This section applies only to businesses with a package wine and beer license or a package alcoholic beverage license within the following areas: (i) Downtown Safe Scape Area and Downtown Safe Scape Buffer Area, as depicted in Figure 1 (Downtown Safe Scape Area and Downtown Safe Scape Buffer Area Map), and (ii) East 4th Street Corridor Safe Scape Buffer Area as depicted in Figure 2 (East 4th Street Corridor Safe Scape Buffer Area Map). The border in Figure 1 shall be measured to the centerline of the identified streets. The Buffer Areas depicted in Figure 1 and Figure 2 shall measure 1,000 feet outward from the Downtown Safe Scape Area and the East 4th Street, respectively. All existing businesses shall have eighteen months from the effective date of this ordinance to comply with this provision. The following exceptions apply:

(1) Off-Site sales as an incidental use.

a. Businesses having not more than 2,500 square feet of distinct floor space utilized for the sale of alcoholic beverages for off-site consumption which are located within, and accessory to, a primary business with a minimum of 20,000 additional square feet of floor space, if such distinct and accessory business is located entirely within the primary business and has neither an outdoor storefront nor a door leading immediately to the outdoors; or,

b. Businesses which hold a valid on-premise wine and beer license or an on-premise alcoholic beverage license in compliance with sections 5.07.150 and 5.07.160 respectively, where the sale of alcoholic beverages for off-site consumption is accessory to and located within the primary business.

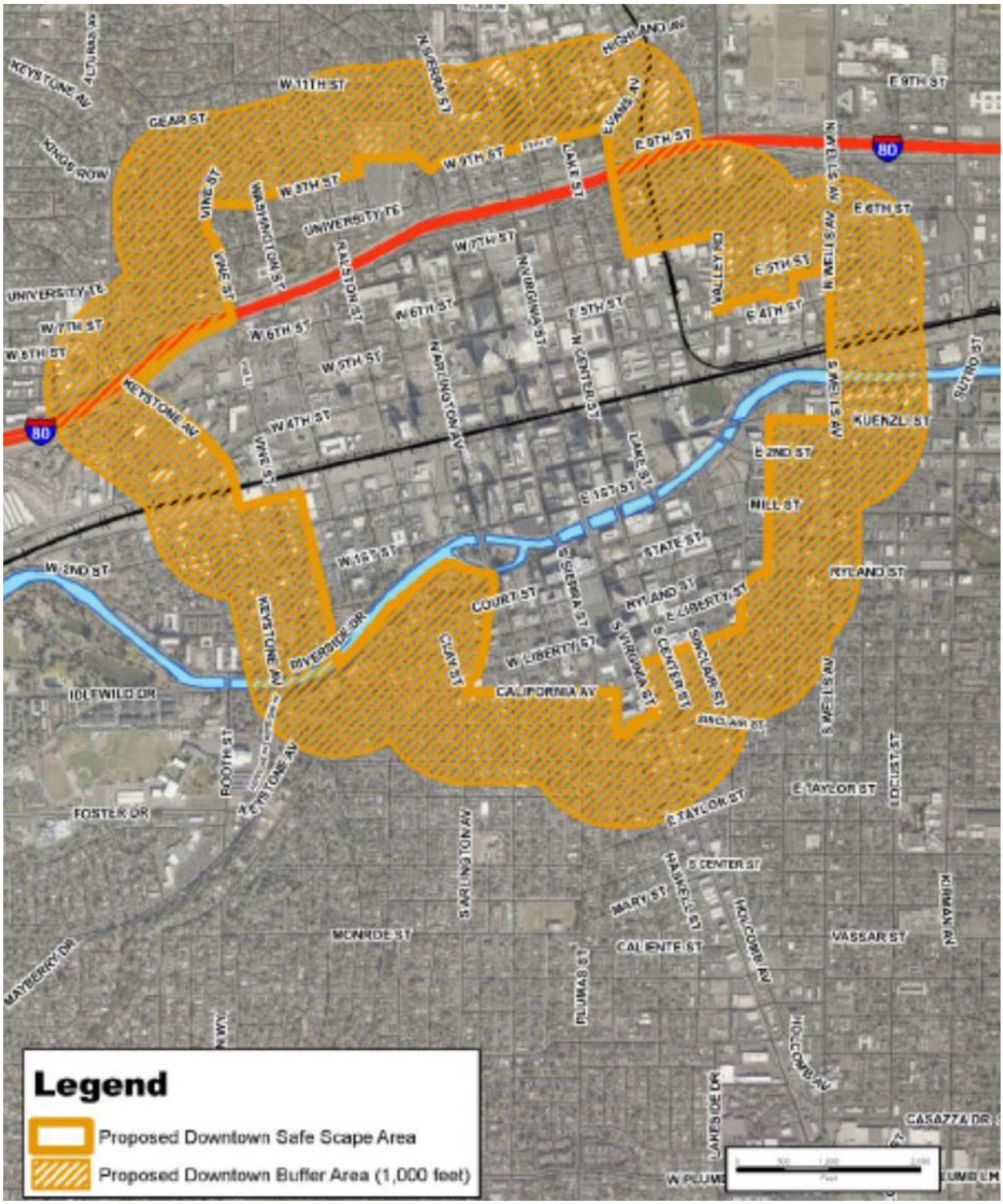

Legend
Proposed Downtown Safe Scape Area
Proposed Downtown Buffer Area (1,000 feet)
W 11TH ST
W 9TH ST
W 7TH ST
W 6TH ST
W 5TH ST
W 4TH ST
W 3RD ST
W 2ND ST
W 1ST ST
E 9TH ST
E 8TH ST
E 6TH ST
E 5TH ST
E 4TH ST
E 2ND ST
E 1ST ST
E TAYLOR ST
GEAR ST
KING'S ROW
UNIVERSITY TE
KEYSTONE AV
VINE ST
WASHINGTON ST
RALSTON ST
N VIRGINIA ST
N CENTER ST
N ARLINGTON AV
LAKE ST
EVANS AV
N WELLS AV
S WELLS AV
KUENZLI ST
NILL ST
RYLAND ST
STATE ST
RYLAND ST
E LIBERTY ST
W LIBERTY ST
COURT ST
RIVERSIDE DR
CLAY ST
CALIFORNIA AV
SINCLAIR ST
S VIRGINIA ST
S CENTER ST
S SIERRA ST
IDLEWILD DR
FOSTER DR
BOOTH ST
S ARLINGTON AV
MONROE ST
MARY ST
CALIENTE ST
VASSAR ST
PLUMAS ST
HOLCOMB AV
KIRMAN AV
LOCUST ST
MAYBERRY DR
LAKESIDE DR
CASAZZA DR
W PLUMB

Figure 1


Legend
East 4th St
Proposed East 4th Street Safe Scape Buffer Area (1,000 feet)
Proposed Downtown Buffer Area (1,000 feet)

Figure 2

(b) OPERATING HOURS AND CONDITIONS.

(1) Hours of Operation. A business subject to this chapter shall operate during the hours allowed per the designated zoning regulations and requirements unless otherwise conditioned.

(2) Height Marker. A height marker shall be placed at each exit to enable witnesses to a crime to estimate the height of the perpetrator.

(3) Storage. Outdoor storage of merchandise, boxes and other materials is prohibited.

(c) PRODUCTS OFFERED FOR SALE.

(1) Fresh or frozen perishable foods. At least ten percent (10%) of the retail floor space must be dedicated to fresh or frozen perishable foods. Accessory uses, as defined in Title 18, are exempt from providing a minimum area designated to fresh or frozen perishable foods if the use is accessory to a hotel with non-restricted gaming use, food processing facility, restaurant with alcohol service, bar, or pharmacy.

(2) The sale or distribution of the following shall be prohibited:

a. Wine in containers of less than 750 milliliters.

b. Beer, malt liquor, wine coolers, and similar alcoholic beverages in containers of less than 20 ounces not in original factory packages of four-packs or greater.

c. Distilled spirits in containers of less than 375 milliliters.

d. Paper or plastic cups in quantities less than their usual customary packaging.

(3) Businesses located in the Downtown Safe Scape Buffer Area shall comply with the provisions of RMC 5.07.123(c)(2) above between the hours of 8:00 a.m. and 5:00 p.m.

(d) SURVEILLANCE.

(1) Entry Detectors. A detector shall be placed at each entrance of the business open to the public to alert the sales clerk, other store personnel and customers of the entrance or exit of any customer or other person.

(2) ATMs and Vending Machines. All automated teller machines and vending machines shall be located inside the building, mounted securely to the floor and/or wall, located so as not to block required views of the cashier, within direct line of sight of the cashier, and not less than ten feet from the edge of any entrance or exit.

(e) VIDEO SURVEILLANCE CAMERAS.

(1) Each business shall have video surveillance cameras that allow sales clerks or other employees to monitor interior and exterior activities. These cameras shall always be recording at all times during which the business is open to the public. The data collected by the cameras shall be stored for at least 24 hours.

(2) Each business shall have a minimum of one sign in a conspicuous location stating that the premises is under active video surveillance.

(f) VISIBILITY.

(1) The total area of opaque objects, including but not limited to items such as signs, displays, coolers, merchandise, automatic teller machines, and calling card vending machines, which are located on or within three horizontal feet of the window shall not exceed twenty-five percent (25%) of the area of any window or door glass.

(2) Existing glass coverage on the storefront (including glass doors and windows) and other exterior glass coverage adjacent to and generally parallel to a public street or other public right-of-way shall not be reduced or eliminated.

(g) WINDOW AND FACADE SECURITY.

(1) Metal security bars or grates on windows, when used on a side of a building facing a public right-of-way, shall be located on the interior side of the window.

(2) The style and shape of windows must be consistent with the design of the facade, and with any design guidelines adopted by the City for the area in which the business is located.

(h) DOOR SECURITY.

(1) Metal accordion grate or grill-type doors, when located on the wall of a building facing a public right-of-way when such a building is subject to this section, shall be located within the building interior. Metal accordion grate or grill-type doors shall be equipped with metal guide tracks at top and bottom, and a cylinder lock and/or padlock. The bottom track shall be so designed that the door cannot be lifted from the track when the door is in a locked position.

(i) OUTDOOR MERCHANDISE.

(1) Outdoor merchandise and outdoor displays and racks shall not be permitted between the front facade of the main building and the adjacent right-of-way.

(j) COMPLIANCE REVIEW.

(1) Review Process. Each time a business subject to this chapter seeks a new license or renewal of an existing license, the City may conduct a review of the business for compliance with this section. The City may enter upon and review each business for compliance with the provisions (including all guidelines) of this section. No review shall take place within the first six months after the effective date of this section. To the extent the time frame for such provision has passed, the City's inspection may include a compliance review of all such provisions. This section does not preclude the City's ability to conduct unscheduled compliance checks related to this chapter.

(2) Annual Review. Upon renewal of the annual business license affiliated with the privileged package alcohol license, the city council may review the history of the business and consider approving, denying or conditioning the renewal of the license as it considers appropriate. Conditions may include, but are not limited to, requiring a security employee or contractor during specified hours and/or modifying hours of operation.

(3) Noncompliance. If a business is in noncompliance with the provisions of this section, it shall serve as grounds for suspension, revocation or non-renewal of the business's license for the sale of alcoholic beverages for off-site consumption pursuant to RMC 4.04.190, with the following additional provisions:

a. A business must comply with the provisions of this section in order to receive a new or renewed business license for the sale of alcoholic beverages for off-site consumption.

b. Two violations of RMC 5.07.123(c) within any 12-month period shall result in a mandatory 30-day suspension of the license for the sale of alcoholic beverages for off-site consumption.

c. Three violations of RMC 5.07.123(c) within any 12-month period shall result in a mandatory revocation of the license for the sale of alcoholic beverages for off-site consumption.

d. Any business license suspension or revocation under this chapter shall be subject to the appeal process provided in RMC Chapter 4.04.

e. If a business seeks renewal of an existing license but is denied renewal for failure to comply with the provisions of this section, then so long as the business voluntarily ceases selling packaged alcohol, it shall have six months to comply with the provisions of this section. If the business fails to comply with the provisions of this section within six months from the date it voluntarily ceases to sell packaged alcohol, such failure shall result in the mandatory revocation of the license for the sale of alcoholic beverages for off-site consumption.

(k) OTHER PENALTIES.

(1) Any person operating, maintaining or using any premises that is subject to this section or who causes the same to be done in violation of this section shall be guilty of a misdemeanor and shall be punished as provided in Title 1 of the RMC. This provision is in addition to any other remedy allowed by law.

(l) NUISANCES.

(1) Any premises subject to this article that is operated, maintained, or used contrary to the provisions of this article is declared to be unlawful and a nuisance. The City has cause to commence action or proceedings to seek remedy in the manner prescribed by law. The City shall take such steps and apply to such courts for relief to abate such nuisance, and restrain and enjoin any person, firm, or corporation operating, maintaining, or using any such premises contrary to the provisions of this article.

Editor's note—Ord. No. 6618, § 1, adopted January 12, 2022, repealed the former § 5.07.123, and enacted a new § 5.07.123, as set out herein. The former § 5.07.123, pertained to package alcohol license moratorium established and derived from Ord. No. 6083, § 1, 1-28-09; Ord. No. 6116, § 1, 7-15-09; Ord. No. 6136, § 1, 1-20-10.

Sec. 5.07.125. Maximum number of package alcoholic beverage licenses in Downtown Safe Scape Area; exceptions.

(a) From and after the effective date of this ordinance, the City establishes 18 as the maximum number of package alcoholic beverage licenses in the Downtown Safe Scape Area (See Figure 1).

(b) All package alcoholic beverage licenses in the area specified in subsection (a) in good standing as of the effective date of this ordinance shall remain valid as long as all requirements and conditions established by the City in Titles 4 and 5 are met. Upon surrender, revocation, or failure to renew such a license, no new license will be available for any applicant, until the number of existing licenses falls below the established maximum of 18.

(c) EXCEPTIONS:

Notwithstanding subparagraphs (a) and (b) above, so long as the applicant satisfies all other applicable sections of the Code and complies with requirements and conditions set forth in Reno Municipal Code, et seq., the following types of businesses may apply for and

receive a package alcoholic beverage license even if the business is located within the Downtown Safe Scape Area, as defined in subsection (a) above:

(1) a business having a minimum of 9,000 square feet of retail floor display space not including restrooms, office space, or storage space and which does not offer greater than five percent (5%) of its retail floor display space for packaged alcohol products.

a. the retail operations of the business employs at least ten full time employees, unless special circumstances exist demonstrating that the business is likely to generate substantial additional employment opportunities including employment for low to moderate income persons as defined by the Federal Housing and Urban Development Agency;

b. at least thirty percent (30%) of the retail floor space offered by the business constitutes fresh or frozen perishable foods, pharmaceuticals or other necessary health care products, household necessities and/or other retail products necessary for residential living;

c. the building in which the business will operate has been vacant and non-operational for at least 12 months prior to issuance of a license under this chapter; provided that prior to opening for business to the public with a license under this chapter, the business substantially rehabilitates the building, said rehabilitation to include bringing the building up to existing building code, health and fire safety standards;

d. the exterior of the building in which the business will operate was predominantly characterized by dislocation, deterioration and dilapidation; provided that prior to opening for business to the public with a license under this chapter, the business substantially improves the aesthetic qualities of the storefront, facade and all other exterior aspects of the building, preferably through the use of real brick or like-quality construction materials which are historically significant or otherwise tie the building to other positive aesthetic attributes of the Downtown Safe Scape Area;

e. the business is located in a portion of the Downtown Safe Scape Area which does not offer any significant outdoor amenity to downtown residents, employees or visitors; provided that prior to opening for business to the public with a license under this chapter, the business designs and constructs a significant outdoor amenity in the proximity of the business location, such as a pocket park, plaza, fountain, public art or other outdoor amenity which contributes to a high quality of urban life for residents, employees and visitors in the area and which is designed to promote health and safety and to minimize crime and public nuisance;

f. the business is characterized as a destination attraction which offers high quality retail or entertainment value or a business concept unique to the area which will either attract substantial business from outside of the Downtown Safe Scape Area into the Downtown Safe Scape Area or otherwise significantly benefit the Downtown Safe Scape Area;

g. the business makes a private investment in the building and related public infrastructure in excess of thirty percent (30%) of the fair market value of the building in which the business will operate;

h. the business by its very nature requires relatively insignificant ongoing public services such as police, fire, public works and code enforcement when compared to the benefits the business will create for the Downtown Safe Scape Area ;

i. the business is otherwise a valuable addition to the Downtown Safe Scape Area because it supports basic human needs of the residents, employees and visitors in terms of health, safety, enjoyment and quality of life.

Any person seeking a license under this exception shall submit an application provided by the business license division. In the application, the applicant shall identify relevant facts supporting at least five of the above factors. Prior to approving a license under this exception, after analysis is provided and a recommendation is made by the executive director of the redevelopment agency or his designee, the city council must make a finding that at least five redevelopment goals identified above will be satisfied as a result of issuing the license. Even if a business satisfies at least five redevelopment goals identified above, the city council may deny a license under this exception if under the facts and circumstances presented it determines that the overall goals of redevelopment would not be substantially furthered by the business. As a condition of issuance of a license under this exception, the applicant shall enter into an agreement prepared by the redevelopment agency requiring at a minimum that the business shall (i) maintain the exterior of its building and other exterior improvements of the business in a clean, orderly and safe condition; and (ii) conduct its business, without material modification, in accordance with the qualitative, quantitative, graphic, pictorial and other specific criteria represented to the city council in obtaining the license. To the extent that a business receives a license under this exception and the business fails to continuously comply in any material way with all qualitative, quantitative, graphic, pictorial, or other specific criteria represented to the city council in obtaining the license, it shall be grounds for immediate suspension and/or revocation of the license. If a license processed under this exception is suspended or revoked, the licensee may appeal as provided under section 5.05.017.

(2) a business having a location which is the same in all material respects to a predecessor business holding a business license for the sale of alcoholic beverages for off-site consumption, so long as each of the following conditions are satisfied:

a. the application for a business license for the sale of alcoholic beverages for off-site consumption must be filed prior to the date the predecessor business voluntarily surrenders such license (but the application will be limited to the type of business license applied for by the successor business or held by the predecessor business, whichever is more restrictive);

b. the predecessor business' license must not have been denied or revoked for any reason, including but not limited to those identified in sections 4.04.150 of the Code and the predecessor business must not be subject of denial or revocation proceedings or have received notice of future denial or revocation proceedings which ultimately result in the denial or revocation of the predecessor business' license;

c. if the predecessor business' license has been suspended, is subject of suspension proceedings or the predecessor business is on notice of a suspension proceeding, the application will not be considered until the suspension proceedings are resolved in favor of the predecessor business or the suspension has been fully served and the predecessor business's license is in good standing;

d. the predecessor business must not, prior to the filing of the business license application, have failed to timely renew its license; and

e. the predecessor business must continue doing substantial and continuous business with the public at the location up until the time the application is received by the City.

(3) an existing business located within the Downtown Safe Scape Area, which has been in good standing with the City of Reno and can demonstrate all of the following conditions are satisfied:

a. the business must have maintained an alcohol license (any type) with no infractions during the previous 24 months prior to filing an application for a package alcohol beverage license; and

b. the business is able to demonstrate compliance with the standards for the Packaged Alcoholic Beverage Sales Accessory to a Primary Use as outlined in Title 18.

(Ord. No. 6031, § 1, 6-11-08; Ord. No. 6618, § 1, 1-12-22)

Editor's note—Ord. No. 6618, § 1, adopted January 12, 2022, amended the title of § 5.07.125 to read as herein set out. The former § 5.07.125 title pertained to maximum number of privileged alcoholic beverage package licenses in the redevelopment area extended north to Ninth Street; exceptions.

Sec. 5.07.127. Maximum number of privileged alcoholic beverage package licenses in the Wells Avenue Neighborhood Planning Area Overlay District; exceptions.

(a) From and after the effective date of this ordinance, the City establishes six as the maximum number of alcoholic beverage package licenses in the Wells Avenue Neighborhood Planning ("WANP") Area Overlay District, as defined in RMC 18.02.603(g), as amended.

(b) All alcoholic beverage package licenses in the area specified in subsection (a) in good standing as of the effective date of this ordinance shall remain valid as long as all requirements and conditions established by the City in Titles 4 and 5 are met. Upon surrender, revocation, or failure to renew such a license, no new license will be available for any applicant, until the number of existing licenses falls below the established maximum of six.

(c) Notwithstanding subparagraphs (a) and (b) above, so long as the applicant satisfies all other applicable sections of the Code, the following type of business may apply for and receive an alcoholic beverage package license even if the business is located within the WANP area, as defined in subsection (a) above:

(1) a business having a location which is the same in all material respects to a predecessor business holding a business license for the sale of alcoholic beverages for off-site consumption, so long as each of the following conditions are satisfied:

a. the application for a business license for the sale of alcoholic beverages for off-site consumption must be filed prior to the date the predecessor business voluntarily surrenders such license (but the application will be limited to the type of business license applied for by the successor business or held by the predecessor business, whichever is more restrictive);

b. the predecessor business' license must not have been denied or revoked for any reason, including but not limited to those identified in sections 4.04.150 of the Code and the predecessor business must not be subject of denial or revocation proceedings or have received notice of future denial or revocation proceedings which ultimately result in the denial or revocation of the predecessor business' license;

c. if the predecessor business' license has been suspended, is subject of suspension proceedings or the predecessor business is on notice of a suspension proceeding, the application will not be considered until the suspension proceedings are resolved in favor of the predecessor business or the suspension has been fully served and the predecessor business's license is in good standing;

d. the predecessor business must not, prior to the filing of the business license application, have failed to timely renew its license; and

e. the predecessor business must continue doing substantial and continuous business with the public at the location up until the time the application is received by the City.

(Ord. No. 6142, § 1, 3-24-10; Ord. No. 6262, § 1, 11-7-12; Ord. No. 6618, § 1, 1-12-22)

Sec. 5.07.130. Nonprofit organization wine and beer license.

It shall be unlawful for any nonprofit organization as defined herein to sell wine or beer without first obtaining from the City a nonprofit organization wine and beer license or a nonprofit organization alcoholic beverage license. Such wine and beer license shall entitle the holder to sell wine or beer, only at retail for consumption on the premises where sold.

(Ord. No. 6031, § 1, 6-11-08; Ord. No. 6262, § 1, 11-7-12; Ord. No. 6618, § 1, 1-12-22)

Editor's note—Ord. No. 6618, § 1, adopted January 12, 2022, amended the title of § 5.07.130 to read as herein set out. The former § 5.07.130 title pertained to fraternal club or nonprofit organization wine and beer license.

Sec. 5.07.140. Nonprofit organization alcoholic beverage license.

It shall be unlawful for any nonprofit organization to sell any alcoholic beverage other than wine or beer without first obtaining from the City a nonprofit organization alcoholic beverage license. Such alcoholic beverage license shall entitle the holder to sell all alcoholic beverages, only at retail for consumption on the premises where sold.

(Ord. No. 6031, § 1, 6-11-08; Ord. No. 6618, § 1, 1-12-22)

Editor's note—Ord. No. 6618, § 1, adopted January 12, 2022, amended the title of § 5.07.140 to read as herein set out. The former § 5.07.140 title pertained to fraternal club or nonprofit organization alcoholic beverage license.

Sec. 5.07.150. On-premises wine and beer license.

It shall be unlawful for any person to sell wine or beer at retail for consumption on the premises without first obtaining from the City an on-premises wine and beer license or an on-premises alcoholic beverage license or an alcoholic cabaret license. An on-premises wine and beer license shall entitle the holder to sell wine or beer, only at retail for consumption on the premises where sold.

(Ord. No. 6031, § 1, 6-11-08)

Sec. 5.07.160. On-premises alcoholic beverage license.

The following conditions shall apply to on-premises alcoholic beverage licenses:

(a) It shall be unlawful for any person to sell for consumption on the premises any alcoholic beverage other than wine or beer unless such person shall first obtain from the City an on-premises alcoholic beverage license or an alcohol cabaret license; and

(b) An on-premises alcoholic beverage license shall entitle the holder to sell all alcoholic beverages, only for consumption on the premises where sold; and

(c) All new applications for on-premises alcoholic beverage licenses shall be subject to an application fee that is equal to two times the annual cost of the on-premise alcoholic beverage license fee. This application fee will cover up to two licensee background checks, and all other applicable reviews and inspections required for an on-premise alcoholic beverage license. Additional required background checks will incur the background check fee per the fee schedule at the time of application.

(Ord. No. 6031, § 1, 6-11-08; Ord. No. 6262, § 1, 11-7-12; Ord. No. 6514, § 2, 5-8-19)

Sec. 5.07.170. Cabaret licenses.

It shall be unlawful for any person to permit any singing, dancing, floor show or other live entertainment to be conducted or carried on in any establishment in the City without first obtaining a cabaret license. Such a license will be subject to revocation if it appears to the satisfaction of the council that the singing, dancing or entertainment unreasonably disturbs any person in any adjoining room or building or neighborhood.

It shall be unlawful for any person to permit live adult entertainment to be conducted or carried on in any establishment wherein said live adult entertainment involves the exposure of specified anatomical areas, whether or not alcoholic beverages are sold, without first obtaining an adult interactive cabaret license.

(Ord. No. 6031, § 1, 6-11-08; Ord. No. 6262, § 1, 11-7-12; Ord. No. 6514, § 2, 5-8-19)

Sec. 5.07.180. Dining room alcoholic beverage license.

The following conditions shall apply to dining room alcoholic beverage licenses:

(a) It shall be unlawful for any person to sell any alcoholic beverage other than wine or beer in a dining room unless such person shall first obtained a dining room alcoholic beverage license, or an on-premises alcoholic beverage license, or an alcohol cabaret license from the City; and

(b) A dining room alcoholic beverage license shall entitle the holder to sell all alcoholic beverages, only for consumption in a dining room on the premises, which includes businesses commonly known as a restaurant serving alcoholic beverages; and

(c) All new applications for dining room alcoholic beverage licenses shall be subject to an application fee that is equal to two times the annual cost of the dining room alcoholic beverage license fee. This application fee will cover the cost of up to two licensee background checks, and all other applicable reviews and inspections

required for a dining room alcoholic beverage license. Additional required background checks will incur the background check fee per the fee schedule at the time of application.

(Ord. No. 6031, § 1, 6-11-08; Ord. No. 6262, § 1, 11-7-12)

Sec. 5.07.190. Caterer's alcoholic beverage license.

It shall be unlawful for any person to sell any alcoholic beverage other than wine or beer in the City as described in definitions, unless such person shall have first obtained a caterer's alcoholic beverage license attached to the premises of his kitchen or place of food preparation. The caterer's alcoholic beverage license shall be in addition to any other alcoholic beverage license held by an individual.

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Caterers or other suppliers of alcoholic beverages whose principal place of business is outside the city shall still be required to obtain all caterers′ or suppliers′ of alcoholic beverages licenses prescribed herein if doing business within the city.

At such events, the licensee may exercise only those privileges authorized by his/her license and shall comply with all ordinances and provisions of the Code pertaining to the conduct of on-sale premises and violation of any such provisions may be grounds for suspension or revocation of the licensee′s license, as though such violation occurred on the licensed premises.

(Ord. No. 6031, § 1, 6-11-08)

Sec. 5.07.200. Disciplinary action procedures and penalties.

(a) Where a licensee licensed under this chapter, or any person selling alcohol under the licensee′s authority, is found guilty of selling an alcoholic beverage to a minor (RMC 8.16.090, or equivalent state statute) or of allowing a minor to remain on the premises where alcoholic beverages are served (RMC 5.07.030, or equivalent state statute), hereafter referred to as an ″alcohol violation″, the city may elect at its discretion to issue an administrative citation in lieu of pursuing a show cause hearing under RMC Chapter 4.04. The administrative citation shall 1) fine the licensee in the applicable amount; or 2) require the licensee to purchase age verification equipment for cash registers as set forth in section 5.07.200(d).

(b) The business license division shall maintain a list of approved age verification equipment devices. Within ten business days of mailing the administrative citation, the licensee may seek approval by the business license division of other age verification equipment devices not on the city′s list. The city manager or his designee shall approve or deny the request in writing within five business days of receipt of the request or the request will be deemed denied. Denial of the request shall be subject to appeal to the administrative hearing officer as provided in RMC 4.04.160 regarding grievances.

(c) The licensee shall, within 30 calendar days after the administrative citation has been mailed to the licensee′s address on file with the city, either 1) pay the fine or if required install approved age verification equipment devices; or 2) appeal the administrative citation pursuant to RMC 4.04.160 under the heading entitled fee dispute or other grievance. If the licensee fails to act timely as required herein, then the city may proceed with a show cause hearing and seek any remedy or penalty authorized by RMC Chapter 4.04 in addition to seeking enforcement of the administrative citation. Failure to act timely as required herein shall constitute additional good cause for suspension or revocation of the privileged license.

(d) Administrative citation fines shall be in the following amounts:

(1) *First offense:* For the first alcohol violation occurring within any 12-month period, regardless of the date of conviction, the business license division of the city may issue an administrative citation in the amount of $250.00.

(2) *Second offense:* For the second alcohol violation occurring within any 12-month period, regardless of the date of conviction, the business license division of the city may issue an administrative citation in the amount of $500.00 or require the licensee to purchase age verification equipment for the cash register where the alcohol violation occurred or at the point of entry to the business.

(e) *Third offense:* For the third alcohol violation occurring within any 12-month period, regardless of the date of conviction, a rebuttable presumption shall arise that good cause exists for a 30-day suspension of the alcoholic beverage license; provided, where the licensed business holds multiple alcoholic beverage licenses, the suspension would only apply to the add-on alcohol beverage license for the bar location where the third alcohol violation occurred. The 30-day suspension may be imposed by the business license division by mailing a notice of the suspension to the licensee′s address on file with the business license division, along with copies of the three convictions. The 30-day suspension shall begin ten business days following the mailing of the notice of suspension, unless the licensee files an appeal to the administrative hearing officer in accordance with RMC 4.04.160 under the heading entitled fee dispute or other grievance. An appeal shall stay imposition of the suspension.

(f) Nothing in this section shall prevent the city from pursuing other penalties for an alcohol violation in lieu of or in addition to these penalties.

(Ord. No. 6274, § 1, 1-16-13)

CHAPTER 5.08. PAWNBROKERS AND SECONDHAND DEALERS*

Sec. 5.08.011. Definitions.
Sec. 5.08.020. Term of license.
Sec. 5.08.030. Additional license required to use motor vehicle as collateral for loan.
Secs. 5.08.035, 5.08.036. Reserved.
Sec. 5.08.040. Clerks under 18 years of age not to be employed.
Sec. 5.08.050. Unlawful to receive goods from certain persons.
Sec. 5.08.060. Records to be kept and transmitted.
Sec. 5.08.080. Identification required.
Sec. 5.08.085. Thumbprint or fingerprint required.
Sec. 5.08.090. Pawn tickets; marking and retention of pledged articles.
Sec. 5.08.100. Period of redemption.
Sec. 5.08.102. Holding requirement.
Sec. 5.08.110. Location requirements for pawnshops.
Sec. 5.08.113. Transfer.
Sec. 5.08.120. Number of pawnbroker's licenses permitted.
Sec. 5.08.125. Conditions on secondhand dealer licenses.
Sec. 5.08.130. Penalties.

Sec. 5.08.011. Definitions.

Antiques means an object of personal property that is not less than 60 years old and has special value primarily because of its age.

Collectibles means an object of personal property that has a special value primarily because of its unique characteristics and the high level of demand for the object.

Commercial grade ingots means ingots of gold, silver, or platinum, or sterling silver art bars and medallions, provided that the ingots, art bars, and medallions are marked by the refiner or fabricator as to their assay fineness.

Junk means used or castoff articles or material of any kind, including but not limited to old iron, copper, brass, lead, zinc, tin, steel and other metals, metallic cables, wires, ropes, cordage, bottles, bagging, rags, rubber or paper.

Pawnbroker means a person engaged, in whole or in part, in the business of loaning money on the security of pledges, deposits or other secured transactions in personal property and includes any person who allows the use of a motor vehicle or title of a motor vehicle as collateral or security on a loan, if any of the loans involve the borrower forfeiting ownership of the vehicle at the expiration of the period of redemption. Pawnbroker shall not include banks,

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***Editor's note—**Ord. No. 6223, § 1, adopted February 8, 2012, amended the title of Ch. 5.08 to read as herein set out. Prior to inclusion of said ordinance, Ch. 5.08 was titled, "Antiques, Collectibles, Pawnbrokers, Secondhand Dealers." See also the Code Comparative Table.

State law references—Municipal licensing of pawnbrokers, NRS 268.0973; municipal licensing of secondhand dealers, NRS 268/0974; dealers in junk and secondhand materials, NRS 647.010 et seq.; local regulation of advertising by secondhand and junk dealers, NRS 647.0193.

savings banks, trust companies, savings and loan associations, thrift companies, credit unions, development corporations, mortgage companies, insurance companies or companies conducting business pursuant to chapter 675 of NRS.

Secondhand dealer means any person engaged in whole or in part in the business of buying, selling or trading metal junk, melted metals or secondhand or used personal property, other than used books, antiques, coins and collectibles.

The term "secondhand dealer" does not include a person engaged solely in the automobile wrecking business, as regulated by NRS chapter 487.

The term "secondhand dealer" does not include a person who engages in the business of buying or selling secondhand firearms or any antique parts, accessories or other equipment relating to those firearms if:

(1) The person engages in that business at an event or activity that:

(i) is held at a convention facility which is owned or operated by and located on the premises of a resort hotel or is held at a recreational facility which is owned or operated by a county fair and recreation board; and

(ii) is conducted for not more than seven days during any six-month period, and

(2) the person has been issued a license as a manufacturer, importer, dealer or collector pursuant to the provisions of 18 U.S.C. Section 923.

Personal property includes but is not limited to:

(1) All property which bears a serial number or personalized initials or inscription which, at the time it is acquired by any business licensed under this chapter, bears evidence of having had a serial number or personalized initials or inscription.

(2) All property, new or used, received at the business location in pledge as security for a loan or purchased by any business defined in this chapter.

Personal property shall not include any coins, monetized bullion, or commercial grade ingots of gold, silver, or other precious metal or merchandise purchased from any manufacturer, distributor or wholesaler.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 4783, § 1, 9-9-97; Ord. No. 6072, § 1, 12-3-08; Ord. No. 6223, § 2, 2-8-11)

Sec. 5.08.020. Term of license.

Every person engaged in, or proposing to engage in, the business of a pawnbroker in the city shall obtain an annual license during the first year of operation and a quarterly license thereafter.

Every person engaged in, or proposing to engage in, the business of a secondhand dealer or antique dealer in the city shall obtain an annual license.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 4783, § 1, 9-9-97)

Sec. 5.08.030. Additional license required to use motor vehicle as collateral for loan.

Any pawnbroker who accepts a motor vehicle or the title of a motor vehicle as pledged property, or in any manner allows the use of a motor vehicle as collateral for a loan, shall be required to

obtain an additional auto pawn license. A license authorizing a person to accept motor vehicles as pledged property or as collateral for a loan shall not be issued to a person who does not have a license to engage in the business as a pawnbroker.

(Ord. No. 4783, § 1, 9-9-97)

Secs. 5.08.035, 5.08.036. Reserved.

Editor's note—Ord. No. 6072, § 1, adopted December 3, 2008, repealed §§ 5.08.035 and 5.08.036, which pertained to employee fingerprinting require; convicted persons not to be employed and license liable for acts of employees. See also the Code Comparative Table.

Sec. 5.08.040. Clerks under 18 years of age not to be employed.

It shall be unlawful for any business licensed under this chapter to employ any clerk or person under the age of 18 years to receive any pledge or make any loan.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 4783, § 1, 9-9-97)

Sec. 5.08.050. Unlawful to receive goods from certain persons.

It is unlawful for any business licensed under this chapter to knowingly receive any goods, articles or things in pawn, pledge or sale from a person who is intoxicated or under the age of 18 years, or who appears incapable of understanding the transactions; or any person identified by law enforcement as reasonably believed to be involved in criminal activity.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 4783, § 1, 9-9-97)

Sec. 5.08.060. Records to be kept and transmitted.

(a) Every business licensed under this Chapter shall maintain in the place of business a book or other permanent record in which must be legibly written, at the time of each purchase or receipt of property, a record thereof containing:

(1) The date of the transaction.

(2) The name or other identification of the person or employee conducting the transaction.

(3) The name, age, sex, residence address and general description of the person with whom the transaction is had.

(4) If the transaction involves household furniture or other oversize property, the license number of the vehicle delivering the property.

(5) A thorough description of the property pawned, purchased or received. Where applicable, descriptions must include, but not be limited to:

(i) general identification of the item, including type or category, material, size and weight;

(ii) brand, make and model name or number;

(iii) serial numbers, identifying marks or symbols, watch works numbers and owner-applied markings or inscriptions; and

(iv) receipt numbers for the transaction, including pawn ticket numbers.

If the business purchases or receives property at a location other than the licensed place of business the contents of any house, room or unit actually inspected on the premises, a general record of the transaction is sufficient.

(6) The amount of money loaned, advanced or paid for the property.

(b) The record and all goods received must be in a form approved by the Reno Police Department and must at all times during the ordinary and reasonable hours of business be open to the inspection of any peace officer.

(c) The business shall cause to be transmitted to the Reno Police Department each preceding day's record of transactions, as recorded above, in which property is purchased, received or pledged. The record may be transmitted by mail, facsimile, electronic transmission or as otherwise approved by the Reno Police Department.

(1) The record transmission requirements do not apply to any transaction which only involves buying, selling or trading used books, periodicals, sound recordings, clothing or coins which are not part of any jewelry.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 4783, § 1, 9-9-97; Ord. No. 6072, § 1, 12-3-08)

Sec. 5.08.080. Identification required.

(a) It shall be unlawful for any business licensed under this chapter to receive property from any person without requiring at least one of the following forms of identification:

(1) A passport of the United States; or

(2) A driver's license issued by any state or Canada; or

(3) An identification card issued by any state; or

(4) An identification card issued by the United States; or

(5) A passport from any other country in addition to another item of identification bearing an address.

(b) If required by section 5.08.085, such business shall require that the person selling or delivering the property to the business submit a finger or thumb print to be included in the property receipt records required to be kept pursuant to this chapter.

(c) Except scrap metal processors subject to the requirements of NRS 647.094, if the business purchases or receives property at a location other than the licensed place of business, the business may exempt itself from subsections (a) and (b) of this section at the time of purchase or receipt, provided the business records all information regarding the location of the purchase or receipt and a name and physical description of the person or business selling the property. Examples of such locations include, but are not limited to estate sales, garage sales and auctions.

(Ord. No. 4783, § 1, 9-9-97; Ord. No. 6072, § 1, 12-3-08; Ord. No. 6161, § 1, 8-25-10)

Sec. 5.08.085. Thumbprint or fingerprint required.

(a) Secondhand dealers in metal junk, melted metals or other scrap metals shall obtain a legible thumbprint or fingerprint of the right index finger from any person from whom property is purchased or received. If the person providing the property is unable to provide a thumbprint or right index fingerprint, then the business shall obtain a legible fingerprint from another digit from either hand. The thumbprint or fingerprint shall be placed on any

open or blank area on a document to be included as part of the property receipt records required to be kept pursuant to this chapter. The business shall make written note of the identification of which digit is provided.

(b) Except scrap metal processors subject to the requirements of NRS 647.094, if the business purchases or receives property at a location other than the licensed place of business, the business may exempt itself from subsection (a) of this section at the time of purchase or receipt. Examples of such locations include, but are not limited to estate sales, garage sales and auctions.

(Ord. No. 6072, § 1, 12-3-08; Ord. No. 6161, § 2, 8-25-10)

Sec. 5.08.090. Pawn tickets; marking and retention of pledged articles.

Any pawnbroker or keeper of a pawnshop shall furnish to the pledgor a printed pawn ticket, plainly numbered, containing the name of the pledgor, a description of the article or thing pawned or received, date of receipt, the amount loaned, the time for redemption, amount to be paid on redemption, and name of the pledgee. The printed pawn ticket shall be marked in such a manner that the amounts of principal and interest paid by the pledgor can be clearly designated. Each payment shall be entered upon the receipt and shall designate how much of the payment is being credited to principal and how much to interest, with dates of the payments shown thereon. The pawnbroker shall affix to each article, or thing, a tag, upon which tag shall be inscribed a number of legible characters, which number shall correspond to the number on the pawn ticket, as provided in section 5.08.060; and such article or thing shall not be returned to any person, other than the owner or his agent, or otherwise disposed of or removed from the place of business within 30 days after the receipt thereof is reported to the appropriate law enforcement agency.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 4783, § 1, 9-9-97)

Sec. 5.08.100. Period of redemption.

All personal property pledged with any pawnbroker shall be held for redemption by the licensee for a period not less than 90 days from the date of pledge.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 4783, § 1, 9-9-97; Ord. No. 6072, § 1, 12-3-08; Ord. No. 6223, § 2, 2-8-11)

Sec. 5.08.102. Holding requirement.

All articles purchased or received by any secondhand dealer at the business location, other than those pledged with a pawnshop for later redemption, must be kept without concealment for a period of 15 days before selling, shipping or otherwise disposing of the same, except that large items of household furniture and carpets shall be kept for a period of three days only.

(Ord. No. 6072, § 1, 12-3-08)

Sec. 5.08.110. Location requirements for pawnshops.

To protect the city's investment in the redevelopment area and promote an attractive downtown for tourists, additional pawnbroker licenses will not be approved in the downtown area, as identified in Exhibit B ("the downtown area") in Chapter 18.06.

All pawnbrokers in the downtown area with approved business licenses or special use permits who received those permits prior to April 30, 1992, and maintain them in good standing may relocate within the following described area subject to securing all necessary city permits:

(a) *Northern boundary:* The south side of West Third Street from east line of West Street to east line of Sierra Street; thence northerly along the east line of Sierra Street to the centerline of West Fifth Street; thence easterly along the centerline of West Fifth Street to the west line of an alley being a north/south alley lying between North Virginia Street and Center Street; thence southerly along said west line to the south line of Plaza Street; thence easterly along the south line of Plaza Street to the west line of Lake Street;

(b) *Eastern boundary:* The west side of Lake Street from the south line of Plaza Street to East First Street;

(c) *Southern boundary:* The north side of First Street from Lake Street to West Street;

(d) *Western boundary:* The east side of West Street from West Third Street to West First Street.

As of April 30, 1992, 13 licensees were operating, or approved for operation in the downtown area. As these businesses relocate outside of the downtown area, go out of business, or otherwise cease operation, the number of licensees allowed in the downtown shall be reduced accordingly.

Nothing in this section shall be construed to limit the ability of an existing licensee to sell or transfer their pawnbroker license to a different operator subject to 5.08.113.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 4783, § 1, 9-9-97; Ord. No. 6072, § 1, 12-3-08)

Sec. 5.08.113. Transfer.

A pawnbroker license shall be nontransferable to any other person, or place of business except by a vote of the city council, and the filing of a new bond by the person to whom such license is or may be transferred or assigned; and it shall be unlawful for any person to do business, or attempt to do business under a license transferred to him without such consent of the city council.

(Ord. No. 4783, § 1, 9-9-97)

Sec. 5.08.120. Number of pawnbroker's licenses permitted.

Purpose. The city council finds that a mix of commercial uses attractive to tourists and residents is a necessary ingredient to a vital downtown. The city has expended large sums of money to make downtown viable through the redevelopment agency. The city council wants to provide the opportunity for the efforts of the redevelopment agency to come to fruition prior to its expiration in 2017. The city finds that the present ratio of pawn shops to population is too high and should not be increased in the future. The city hereby establishes the preferred ratio of pawn shops to population as the number licensed and in operation downtown in 1991, less one, divided by population, or one pawnshop per 15,500 residents.

(a) Licenses may be approved at a rate of one for every 15,500 residents. The basis for determining population increase shall be the City of Reno Community Development Department monthly population projection.

(b) The city recognizes all pawnbrokers with approved business licenses or special use permits who received these permits prior to April 30, 1992 and maintain them in good standing.

(c) The city council shall establish a procedure for selecting licensees when more licenses can be approved.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 4783, § 1, 9-9-97; Ord. No. 6072, § 1, 12-3-08)

Sec. 5.08.125. Conditions on secondhand dealer licenses.

(a) The City Council may place conditions, limitations or restrictions upon a secondhand dealer's license. Such conditions may include but are not limited to prohibiting a secondhand dealer from:

(1) Dealing in both precious metals and other types of secondhand goods at the same location;

(2) Pawnbrokering at the same location;

(3) Engaging in a business subject to regulation under NRS Chapter 604A at the same location.

(b) For purposes of this section, the term "precious metals" shall mean gold, silver, platinum or palladium or objects made in whole or in part therefrom. The term includes, but is not limited to, jewelry and melted precious metals. The term excludes coins made of precious metals and appliances to the extent that small amounts of precious metals are incorporated into the appliances solely for their functionality such as in electrical circuits.

(Ord. No. 6218, § 1, 1-18-12; Ord. No. 6227, § 1, 4-25-12; Ord. No. 6248, § 1, 9-12-12)

Sec. 5.08.130. Penalties

Any person in violation of any provision of this chapter shall, upon conviction, be punished as provided in section 1.04.010; provided that nothing herein shall be construed to prevent the city from recovering the amount of any license fee required by any provision of the Reno Municipal Code in a civil action brought for such purpose.

(Ord. No. 4783, § 1, 9-9-97)

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CHAPTER 5.09. AUCTIONS AND AUCTIONEERS

Sec. 5.09.011. Definitions.
Sec. 5.09.020. License required for exempt auction sale.
Sec. 5.09.030. Sales in street and public places prohibited.
Sec. 5.09.040. Records and reports.
Sec. 5.09.050. Public outcry.
Sec. 5.09.060. Announcement of terms and bids.
Sec. 5.09.070. False or misleading information.
Sec. 5.09.080. False bidding.
Sec. 5.09.090. Bidding by auctioneer.
Sec. 5.09.100. Drawings, gifts, entertainment.
Sec. 5.09.110. Examination of articles by bidders.
Sec. 5.09.120. Examination of articles by authorities.
Sec. 5.09.130. Additional requirements for conduct of jewelry auctions.

Sec. 5.09.011. Definitions.

Auctioneer means any individual who cries out for bids at an auction or holds himself out for employment to conduct an auction.

The provisions of this chapter relating to auction shall not apply to auction sales of property owned by, or in the lawful possession, custody or control of banks, trust companies, trustees in bankruptcy, assignees for the benefit of creditors, executors and administrators, nor of property sold at judicial sales; nor of unclaimed or undelivered property held by common carriers or public warehousemen, selling or disposing of the same for freight or storage charges; nor of property being sold solely for charitable or benevolent purposes.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.020. License required.

Any auctioneer engaged to conduct any exempt or non-exempt auction sale shall have a valid auctioneer's license as prescribed in this chapter.

Any auctioneer engaged to conduct such exempt auction sale, as in this section provided, shall notify the license division of the city ten days prior to the sale, of the time and place of the auction and, generally, of the nature of the articles sold.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.030. Sales in streets and public places prohibited.

It is unlawful for any auctioneer or other person to offer for sale or sell at public auction or public outcry any property upon any street or public place in the city.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.040. Records and reports.

The licensee must keep records of the amount paid, and the date of each sale, and make records available for the inspection by any officer of the city or any person interested therein.

The licensee shall also keep a daily record of the inventory number of each article sold, the date of the sale, and the name of the purchaser thereof. If any articles listed on the inventory are sold or disposed of other than by sale at public auction, such fact, with full particulars thereof, shall be entered on the record last above provided for and retained for a period of six months and available upon request by a police officer or duly authorized representative of the city.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.050. Public outcry.

No property shall be sold other than by public outcry and to the highest bidder.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.060. Announcement of terms and bids.

Each day before the commencement of the auction, the licensee shall announce the terms of the sale.

The licensee, at each time a bid is announced or accepted, shall give some description of the person making the bid, and also point out or designate the location of the bidder on the premises.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.070. False or misleading information.

No licensee, his agent, servants, employees, or the owner or other person on his behalf, shall make any false or misleading statement concerning the ownership, kind, character, quality, condition, make, size, price, or other fact pertaining to any article sold or offered for sale.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.080. False bidding.

No licensee, his employee, or the owner, or other person on his behalf, shall act as a by-bidder, false bidder, or what is commonly known as a "puffer," "shiller," "capper," or "booster," or make or accept any false or misleading bid, or falsely pretend to buy or sell any article, or conspire with any person to make a false or fictitious bid.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.090. Bidding by auctioneer.

No licensee, his employee, or the owner of the articles, or other person acting on his behalf, shall bid or purchase at the sale unless at the time such bid is made the licensee shall announce, in such tone and manner as to be plainly heard and understood in all parts of the room in which the sale is being conducted, that such bid is for the benefit of the licensee, his employee, or the owner, as the case may be.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.100. Drawings, gifts, entertainment.

No free drawing shall be conducted, nor gifts be given, nor any form of entertainment be given for the encouragement of attendance at such sale or for any other purpose.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.110. Examination of articles by bidders.

Upon request of any person who has bid upon an article offered for sale, the licensee shall allow such bidder a reasonable opportunity to examine such article, and such bidder may thereafter withdraw his bid at any time before the licensee declares the article sold.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.120. Examination of articles by authorities.

The licensee shall allow any police officer or duly authorized representative of the city, during regular business hours of the day, to examine any article held for sale by auction, offered for sale, or sold, at any time before such article is delivered to the purchaser.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.09.130. Additional requirements for conduct of jewelry auctions.

In addition to the general requirements prescribed in this chapter, all auctions for the sale of jewelry shall also be conducted as follows:

(1) Before accepting any bids upon any article, the licensee shall read in such manner as to be readily heard and understood at any place in the room where the auction is being conducted, the description of the article as it appears on the label or tag attached thereto.

(2) The licensee shall give to each purchaser of any article sold at auction, the selling price of which amounts to more than $20.00, a written invoice containing a full description of the article as it appears upon the inventory required herein, the selling price thereof; and a statement giving each and every warrant under which the article was sold. Duplicate copies of all invoices shall be kept by the licensee, within the city, available for inspection by police officers or duly authorized representatives of the city for six months after termination of each auction sale.

(3) No articles other than articles listed upon the inventory filed with the city license office shall be sold at the auction authorized by the license issued therefor.

(4) If an applicant for a license desires to sell at auction, in connection with such sale, articles other than articles of jewelry, such articles shall be separately listed upon the inventory filed with his application; and all provisions of this chapter with respect to ownership of property, inventory, time and method of sale, and record and reports of sales, shall apply to these articles.

(Ord. No. 4765, § 1, 7-8-97)

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CHAPTER 5.10. ESCORT AND OUT CALL SERVICES

Sec. 5.10.011. Definitions.
Sec. 5.10.020. Employees, subcontractors and independent contractors; hiring restrictions.
Sec. 5.10.030. Additional reasons for denial.
Sec. 5.10.040. Maintenance of records.
Sec. 5.10.050. Advertising.

Sec. 5.10.011. Definitions.

Chaperone means any person who, for a salary, fee, hire, or profit, and who is not a licensed owner of any business licensed under this chapter or is not an escort or out call entertainer, acts for any such business by contacting or meeting with escort patrons to make social engagements for escorts or protects or assists out call entertainers while they providing out call entertainment.

Entertainment location means a hotel or motel guest room or accommodation, or any other public lodging accommodation including recreational vehicle parking facilities, apartments and residential dwellings.

Escort means any person who, for a salary, fee, commission, hire, or profit, makes himself or herself available to the public for the purpose of accompanying other persons for social engagements.

Escort bureau means any business, agency or person who, for a fee, commission, hire, or profit furnishes or arranges for escorts to accompany other persons for social engagements.

Escort patron means any person who seeks the services of an escort bureau.

Out call entertainer means a natural person who is sent or referred to an entertainment location by an out call entertainment referral service to entertain a patron at an entertainment location.

Out call entertainment means a visit by an out call entertainer at an entertainment location in response to request to entertain a patron at the entertainment location.

Out call entertainment referral service means a business which for a fee sends or refers an entertainer to an entertainment location in response to a request to entertain a patron at the entertainment location.

Patron means a person who requests an entertainer to entertain at an entertainment location and who either pays or agrees to pay the fee of the out call entertainment referral service. "Patron" includes a person who is entertained by an out call entertainer at an entertainment location.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.10.020. Employees, subcontractors and independent contractors; hiring restrictions.

No escort or entertainer shall:

(1) Provide to a patron entertainment which may contribute to the delinquency of a minor if the patron is less than 18 years of age;

(2) Commit an act of prostitution; or

(3) Solicit any fee, gratuity or tip from any patron in addition to the basic entertainment fee.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.10.030. Additional reasons for denial.

In addition to the grounds provided in section 5.05.008 of this title, an escort or out call entertainment work card may be denied or revoked if the applicant or such work card holder:

(1) Has been convicted of a crime of prostitution or any other crime of sexual misconduct;

(2) Has committed a criminal act while providing services to a patron; or

(3) Is less than 21 years of age.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.10.040. Maintenance of records.

A record shall be kept by every licensee under this chapter showing every transaction whereby any escort or out call entertainer is employed, furnished or arranged for on behalf of any patron or customer, hour of the transaction, the name of the patron or customer, the address and telephone number of the entertainment location, the name of each escort or out call entertainer involved, the fee charged per hour to the patron, the total fee charged each patron, the amount paid the escort or out call entertainer, the amount retained by the licensee, and such other information as the council may reasonably require by rule or regulation. Such record shall be available and open to inspection by any duly authorized representative of the city at any time and shall be presented before the council at any time upon written request therefor.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.10.050. Advertising.

(a) No person shall advertise or cause to be advertised an escort bureau or out call entertainment referral service without first obtaining and thereafter maintaining a valid license pursuant to this chapter and this Code, provided, however, the city shall not accept, entertain or grant any application for a license under this chapter for a period not to exceed 180 days.

(b) No licensee, manager, subcontractor, independent contractor or employee of an escort bureau or out call entertainment referral service shall, in any manner, either directly or indirectly:

(1) Advertise, display or disseminate:

a. In any newspaper, magazine or other publication, or

b. By radio or television broadcasting, or

c. By telephone directory, or

d. By telephone, fax or Internet, or

e. By handbill, pictorial, representation or other advertising any information or illustrations or pictures of any person or object that contain any statement which implies or suggests to a reasonable, prudent person or would give the public a basis to infer or believe that prostitution or any other illegal act product or service is offered or provided by any business licensed under this chapter.

(2) Advertise in any manner set forth in paragraph (1) of this subsection any statement which implies or suggests to a reasonable, prudent person or would give the public a basis to infer or believe that escorts or out call entertainers have been medically examined or are free from contagious diseases.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 5669, § 1, 3-9-05)

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CHAPTER 5.11. GAMING

Sec. 5.11.005. Declaration of policy.
Sec. 5.11.011. Definitions.
Sec. 5.11.020. License required; license application.
Sec. 5.11.030. Operation of bar or bar-restaurant with restricted gaming.

Sec. 5.11.005. Declaration of policy.

(a) It is found and declared that the public health, safety, morals and welfare of the inhabitants of the city require the regulation and control of all persons engaged in, associated with, in control of, or having the right to any portion of the profits of the business of gaming. All such persons, as defined in this chapter, shall be licensed and controlled so to protect the public health, safety, morals, good order and general welfare of the inhabitants of the city and to safeguard the public and to assist the gaming industry to foster stability and growth.

(b) The right to obtain such a license is a privilege and that the operation of such a gaming facility, when authorized by such a license, is a privileged business subject to regulations, and that the license may be suspended, limited, or revoked for violation of the provisions of this chapter.

(c) The gaming requirements of this chapter are intended to supplement the provisions of state law, particularly NRS Chapter 463, other chapters as applicable, and the Nevada Gaming Statutes and Regulations, as amended. The requirements of this Code shall not be construed to limit any requirements imposed under state law.

(Ord. No. 6406, § 1, 7-20-16)

Sec. 5.11.011. Definitions.

As used in the gaming regulations contained herein, the words and terms defined in this section have the meanings ascribed to them unless a different meaning clearly appears in the context. Any word or term not defined in this section which appears in the regulation shall have the definition ascribed by the Nevada Gaming Control Act and statutes ancillary thereto, and as defined by the regulations of the Nevada Gaming Commission unless a different meaning clearly appears in the context.

Bar, for purposes of this chapter, means an establishment, also known as taverns, saloons, and cocktail lounges, which primarily engages in selling or serving alcoholic beverages at retail by the drink to the general public for on premise consumption, with the ability to request approval for the following ancillary activities: live entertainment, food service, and restricted gaming. The conduct of a bar business necessarily includes operation under a valid on-premises alcoholic beverage license and/or an alcohol cabaret license. Whenever packaged liquor is sold in a bar, it is unlawful to consume the contents of the package liquor on the premises. A restaurant may be operated on the same premises as a bar. See bar-restaurant definition in this section.

Bar-restaurant, for purposes of this chapter, means an establishment that operates as both a bar and a restaurant under the definitions in this section. Minors may be allowed in the restaurant provided there is separation between the bar and/or lounge area and the restaurant area by a structural barrier sufficient to exclude minors from the bar and/or lounge area, and

provided that no alcohol sales, consumption, or distribution occur in an area not licensed for alcohol sales or under the control of the licensee. Alcoholic beverages may be served to all patrons aged twenty-one and older throughout the premises, except that any person twenty-one and older accompanying a minor in the restaurant portion of the business may be served alcohol only in conjunction with meals at dining tables or booths. The restaurant kitchen in a bar-restaurant must be operated no less than twelve (12) hours each day that the bar is open for business to the public. The stools at the bartop, or seats in a lounge or outside dining area of a bar-restaurant, may not be included as meeting the minimum seating requirements for a restaurant defined in this section. Whenever packaged liquor is sold in a bar-restaurant, it is unlawful to consume the contents of the packaged liquor on the premises.

Bar receipts as used to determine incidental restricted gaming for purposes of this chapter means the total sum of the gross receipts of all beverages, food and all restricted gaming operations receipts (excluding complimentaries) received by the licensee, without any deduction for the cost of the property sold, the cost of the materials used, labor or service costs, interest paid or payable, losses or other expenses whatsoever, inclusive of any payment to a slot machine operator, as defined in NRS 463.018. Each licensee shall keep complete and accurate records of its bar receipts that distinguishes between the receipts from the slot machines and the sale of food and beverages. The licensee′s receipts from the sale of sundries shall not be included in the calculation of bar receipts. Sundries include, without limitation, the sale of cigarettes and other tobacco products, but do not include the sale of food and alcoholic beverages served on the premises.

Bartop means a physical structure with a flat horizontal counter, which when located in a licensed bar with restricted gaming or bar-restaurant with restricted gaming, shall be at least 42 inches in height (except for only that portion which is mandated to be a different height in order to comply with the Americans with Disabilities Act of 1990, as amended, or other applicable law) which fully encompasses the main work area of the bartender(s) or attendant(s), including the point of sale system or cash register, on one side of which alcoholic beverages are kept, maintained, and prepared and where seats are placed for patrons to sit on the side opposite from where the alcoholic beverages are kept, and where the sale and service of alcoholic beverages are by the drink across such structure.

Bartop machine means a slot machine which is installed into the flat horizontal counter of a ″bartop″, as defined in this section and for which the bartop is the cabinetry of the slot machine. Unless a different height is required for some of the bartop machines to comply with the Americans with Disabilities Act of 1990, as amended, or other applicable law, the screen of the bartop machine shall be at a minimum height of 40 inches, from the bottom of the bartop, on the patron′s side of the bartop. A bartop machine shall not be capable of operating except when installed into a ″bartop″ and any slot machine commonly referred to as ″stand-up″ or ″slant-top″ slot machine shall not qualify as a bartop machine.

Game means any banking or percentage game played with cards, dice or any mechanical, electromechanical or electronic device or machine for money, property, checks, credit or any representative of value, including, without limiting the generality of the foregoing, faro, monte, roulette, keno, bingo, fan-tan, twenty-one, blackjack, seven-and-a-half, big injun, klondike, craps, poker, chuck-a-luck, Chinese chuck-a-luck (dai shu), wheel of fortune, chemin de fer, baccarat, pai gow, beat the banker, pinging, slot machine or any other game or device

approved by the Nevada Gaming Commission, but does not include games played in private homes or residences for prizes or games operated by charitable or educational organizations which have been approved by the State Gaming Control Board.

Gaming or *gambling* means to deal, operate, carry on, conduct, maintain or expose for play any game, sports book, parimutuel or any other form of wagering.

Grandfathered bar or grandfathered bar-restaurant, means:

(1) That the licensee holds a valid business license for restricted gaming with 15 or fewer slot machines, the application for which was pending or approved prior to the effective date of the Nevada Clean Indoor Air Act (Nevada Revised Statutes 202.2483 et seq., effective December 8, 2006), and the license holder has not changed since the application or approval; or

(2) Any bar or bar-restaurant with restricted gaming, as of the date of ordinance adoption, that operated more 50 percent of the slot machines on its premises as bartop machines, regardless of the height of such bartop machines located in a bar or a bar-restaurant as defined in this chapter.

A bar or a bar-restaurant that has been determined to be a grandfathered bar or grandfathered bar restaurant pursuant to either of the foregoing provisions shall be considered to be a primary or principal commercial use of a restricted gaming operation to which the operation 15 or fewer slot machines shall be presumed to be incidental.

Nonrestricted gaming shall have the same meaning as ″non restricted license″ and ″non restricted operation″ as defined in NRS 463.0177 as may be amended of renumbered.

Restaurant, for purposes of this chapter, means a retail business licensed to serve food and beverages for on-premises consumption with a minimum floor area of 200 square feet and a suitable kitchen facility on the premises for food preparation where hot meals are prepared in compliance with all regulations of the state and district health department. A restaurant must be operated in a suitable building kept, used, maintained, advertised or held out to be a public place with a ″complete menu″ as defined in RMC Title 18, where meals are ordered from tables or booths in a dining area with seating capacity of at least 25 persons in a room separate from the on-premise kitchen. Pre-packaged or pre-prepared items which are merely reheated in a microwave oven for sale do not qualify in themselves as meals under this section.

Restricted gaming means a gaming operation consisting of the operation of 15 or fewer slot machines, and no other games or gaming devices, when the machines are operated as incidental to the business of the primary or principal commercial use. A restricted gaming operation is authorized to operate by the Nevada Gaming Commission under the terms of a restricted license, as defined by NRS 463.0189 as may be amended or renumbered.

Slot machine means that as defined by NRS 463.0191 as may be amended or renumbered.

Slot route operator or *slot operators* shall have the same meaning as defined in NRS 463.018 as may be amended or renumbered.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6406; § 1, 7-20-16)

Sec. 5.11.020. License required; license application.

(a) It is unlawful for any person, firm, corporation or other association, to operate, carry on, conduct, maintain or expose for play in the city any individual table, slot machine, gaming device, race book or sports pool, or other game or device for which a license is required under NRS 463 without first obtaining and maintaining a privileged license therefor.

(b) Every person who engages in the operation of any gambling game or devices in the city must first obtain a gaming license pursuant to the gaming provisions of this title. Application for a gaming license shall be made by submitting an application with the business license division on the forms provided by the division. Each application shall be accompanied by the required license fee and by proof that the applicant holds a valid gaming license or restricted gaming license issued by the Nevada Gaming Commission. In addition to the forms provided by the division, the application shall also contain a written declaration by the applicant that defines the primary or principal commercial use to be conducted at an establishment in which the operation of slot machines is incidental to the primary or principal business pursuant to NRS 463.161.

(c) The applicant shall furnish such additional information as may be needed for the licensing division to process the application for the license.

(Ord. No. 6406; § 1, 7-20-16)

Sec. 5.11.030. Operation of bar or bar-restaurant with restricted gaming.

The following shall apply to bars with restricted gaming and bar-restaurants with restricted gaming:

(1) Unless a bar is a grandfathered bar or a bar-restaurant is a grandfathered bar-restaurant, a licensee, in order to operate more than seven slot machines as incidental to a bar license, must no later than June 22, 2017 either:

a. Maintain a bartop in which all of the permitted slot machines on the premises are installed as bartop machines, and no less than 12 of such bartop machines meet the 40-inch height minimum set forth in the definition of bartop machines, unless the location operates less than 12 slot machines, in which instance all slot machines except for one slot machine shall meet the 40-inch height minimum, and operate a bar or bar-restaurant; or

b. Demonstrate to the satisfaction of the city manager or designee, that during the previous 12-month period, the receipts from the operation of slot machines on the premises is not more than 50 percent of its bar receipts, as defined in this code.

(2) A bar or a bar-restaurant that, upon licensing and thereafter, continues to meet either of the criteria set forth in subsection (a)(1) or (a)(2) above shall be considered to be a primary business, to which the operation of fifteen (15) or fewer slot machines shall be presumed to be incidental.

(3) Unless a bar with restricted gaming is grandfathered or a bar-restaurant with restricted gaming is grandfathered, each bar licensee operating more than seven slot machines shall file a yearly report with the city manager or designee setting forth its compliance with both subsection (a)(1) or (a)(2) above, on forms prescribed by the

city manager and signed by the licensee certifying the accuracy of the report. Each report shall be for a 12-month period beginning January 1 and concluding with December 31 of that year. The report shall be filed no later than 20 business days following the end of each reporting period. Failure to timely file the report, or filing a misleading or false report, may result in disciplinary action, up to and including revocation of the licensee's restricted gaming, bar and/or bar-restaurant licenses. If any licensee reports noncompliance with both subsections (a)(1) or (a)(2) above, it shall remove all but seven of the slot machines from the premises.

(4) The city manager or designee may conduct an annual audit of each bar licensee with restricted gaming and each bar-restaurant with restricted gaming that operates in excess of seven slot machines in conjunction with the operation of that bar. If the results of the audit establish a violation of this section, the number of slot machines operated by such licensee shall be reduced to seven slot machines. After such a reduction in slot machines has been in effect for at least a 12-month period from the date of the violation, the licensee may reapply for additional slot machines but must comply with the bar receipt determination for incidental restricted gaming. If the next annual audit does not establish compliance with the bar receipt determination, the licensee will again be reduced to seven slot machines and is not eligible for re-application for a three-year period from the date of the audit.

(5) The operation of seven or fewer slot machines in conjunction with the operation of a bar or a bar-restaurant is presumed to be incidental to the operation of the bar license and does not trigger the requirements of subsection (a) and (b) above.

(6) If a licensee continues to operate over seven slot machines after filing a report disclosing a failure to comply with the requirements of subsection (a) above, or after a finding by the city manager or designee of a failure to meet the requirements of subsection (a) above, the city manager or designee may immediately cause a complaint and citation to be issued pursuant to chapters 1.05 and 4.04 of this Code, and set a hearing to revoke the license or take other disciplinary action. This remedy is in addition to and not in place of any other remedy provided by this Code for a violation of any section thereof.

(Ord. No. 6406; § 1, 7-20-16)

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CHAPTER 5.12. PEDDLERS, SOLICITORS AND TEMPORARY MERCHANTS

Sec. 5.12.011. Definitions.
Sec. 5.12.020. Time, place and manner.
Sec. 5.12.030. Licensing and registration requirement.

Sec. 5.12.011. Definitions.

Peddle or *solicit* means selling, offering for sale or soliciting orders for goods or services or distributing, disseminating or gathering information by written or spoken word upon the streets, sidewalks or alleys of the city, or by going from place to place whether by foot or by other means of transportation.

Not for profit peddling or *not for profit soliciting* means any peddling or soliciting activity conducted by a charitable organization as defined in Title 4.

For profit peddling or *for profit soliciting* means any peddling or soliciting activity conducted by any organization not meeting the criteria for a charitable organization as defined in Title 4.

Local peddler means a person or business with a valid business license properly issued by a political subdivision within the boundaries of Washoe County, Nevada or whose residence is located within the boundaries of Washoe County, Nevada, where such residence is not a hotel, lodging house, apartment house, rooming house, motel or single-family dwelling with any rental period of less than 28 consecutive days.

Non-local peddler means a person or business who is not deemed to be a local peddler.

Temporary merchant means any person who engages in the business of selling, offering for sale or soliciting orders for goods or services from a single location for period of seven days or less.

Temporary merchant shall not include any person who has been issued a street vendor license under the provisions of this title.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 5313, § 1, 2-26-02)

Sec. 5.12.020. Time, place and manner.

It shall be unlawful for any person to conduct any peddling or soliciting activity in violation of the following rules:

(1) No solicitation or peddling shall be made within 15 feet of any door or driveway within a commercial or industrial zone.

(2) No solicitation or peddling shall be made within 30 feet of any gaming or gambling device or establishment.

(3) Solicitation or peddling, telephonic or otherwise, shall be made only during the hours of 9:00 a.m. to 9:00 p.m.

(4) No solicitation or peddling shall be made at any establishment, residential or commercial, where signs or warning such as "No Peddlers," "No Solicitors," "Day Sleeper" are clearly posted.

(5) Peddling or soliciting shall be conducted in such a manner as not to obstruct or block any sidewalk or interfere with or impede any pedestrian or vehicle traffic or violate any other city ordinance.

(6) Solicitors or peddlers over the age of 16 years may conduct their activities in groups of no more than two persons per group. A group is defined as any congregation of persons who are soliciting funds within 200 feet of one another.

(7) No solicitation or peddling shall be conducted by way of lottery, raffle, drawing or door prize in violation of NRS 462.010.

(8) If a vehicle is used in such activity, it must be identifiable with the name of the business, peddler or solicitor and the business address thereof in lettering large enough to be visible from at least 20 feet away.

It shall be unlawful for any person to conduct any activity as a temporary merchant in violation of the following rules:

(1) No temporary merchant activity shall be conducted within 15 feet of any door or driveway within a commercial or industrial zone.

(2) No temporary merchant activity shall be conducted within 30 feet of any gaming or gambling device or establishment.

(3) No temporary merchant activity shall be conducted in such a manner as to obstruct or block any sidewalk or interfere with or impede any pedestrian or vehicle traffic or violate any other city ordinance.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.12.030. Licensing and registration requirement.

All for profit peddlers, for profit solicitors and temporary merchants must be licensed by the city.

All not for profit peddlers and not for profit solicitors must register with the city upon forms provided by the city.

(Ord. No. 4765, § 1, 7-8-97)

CHAPTER 5.13. SPECIAL EVENTS AND SPECIAL ACTIVITIES*

Sec. 5.13.010. Definitions.
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Sec. 5.13.210. Cost recovery for events.
Sec. 5.13.220. Appeal.
Sec. 5.13.230. Penalty.

Sec. 5.13.010. Definitions.

The following definitions shall apply to this chapter unless separately defined in a specific section of this chapter:

Building means any fully enclosed permanent structure built for the support, shelter, or enclosure of person, animals, chattels, or property of any kind.

City means the City of Reno, a municipal corporation of the State of Nevada.

City manager means the city manager, or his or her designee.

***Editor's note—**Ord. No. 6030, § 1, adopted June 11, 2008, amended Ch. 5.13, in its entirety, to read as herein set out. Prior to inclusion of said ordinance, Ch. 5.13 was entitled, "Special Events." See also the Code Comparative Table.

Chief of police means the city's chief of police, or his or her designee.

Closed convention, for purposes of Titles 4 and 5, means a gathering of vendors and exhibitors, involving commercial activity, for the purpose of promotion of products and services to, or education of, the members of the occupation, avocation, trade, industry or identifiable body of study or discipline specifically for which the gathering is organized. The word "convention," as used in the context of "closed convention," includes all other similar gatherings, whether referred to as "trade shows," "exhibits," or any other such terms of common usage.

A closed convention shall not be open or advertised to members of the general public, shall be open only to members of the occupation, avocation, trade, industry or identifiable body of study or discipline specifically for which the closed convention is organized, shall be confined to a defined area into which the general public is not admitted, and shall be conducted no longer than seven days. If membership in the occupation, avocation, trade, industry or identifiable body of study or discipline specifically for which the closed convention is organized is offered to members of the general public, such membership shall require standards of inclusion imposed as on all other members of the occupation, avocation, trade, industry or identifiable body of study or discipline specifically for which the closed convention is organized, and not be offered on a temporary or transient basis solely for gaining admission to the closed convention.

Event includes any special event and/or special activity not exempt under section 5.13.040.

Event organizer means any person who conducts, manages, promotes, organizes, aids or solicits attendance at an event.

Expressive activity means non-commercial conduct, the principal object of which is the expression, dissemination or communication of opinions, views, messages or ideas by verbal, visual, literary or auditory means that are religious, scientific, political, philosophical or ideological in nature, or conduct that is on a whole inextricably intertwined with opinions, views, messages or ideas of a religious, scientific, political, philosophical or ideological nature; or conduct that is inherently expressive. This definition shall be interpreted to capture conduct which is protected under the First Amendment to the United States Constitution and interpretative case law which is subject to intermediate or strict scrutiny by the courts.

Fire chief means the city's fire chief, or his or her designee.

Fundraiser means money-raising activity that is intended to generate money to support a nonprofit or political organization including organizations operated for religious, charitable, scientific, literary, educational, or fraternal purposes.

Non-commercial special event means any special event organized and conducted by any organization created for religious, charitable or educational purposes as set forth in NRS 372.3261.

Parade means any organized movement or march of persons and/or things which requires the complete or partial closure of streets to prevent a conflict with the regular flow of vehicular traffic.

Permit means a temporary written license and includes all terms and conditions of the written permit issued by the city manager.

Person means and includes a natural person, any form of business or social organization and any governmental entity other than the city's use of its property in a proprietary capacity.

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Privileged activity means any of those activities which are found by the city to require a higher demand of city services by affecting the economic, social and moral well-being of the city and its residents. Privileged activity includes, but is not limited to:

(1) Sales and/or service of alcohol.

(2) Secondhand merchandise sales.

(3) Auctions.

(4) Temporary merchants.

A privileged activity does not include conduct requiring licensing pursuant to RMC Chapters 5.06 (Adult Interactive Cabarets), 5.10 (Escorts and Out Call Services), 5.11 (Gaming), 5.16 (Towing and Booting Companies), 5.17 (Vehicles for Hire), 5.18 (Right-of-Way Toll), 5.20 (Motion Picture and Television Productions), 5.90 (Franchises), 5.95 (Telecommunications).

Sidewalk means that portion of a highway, other than the roadway, set apart by curbs, barriers, markings or other delineation for pedestrian travel.

Special activity means any indoor or outdoor activity taking place on private property for a period of seven consecutive days or less, is open to the public and creates gross revenue through means different from activity that is otherwise licensed. This includes any privileged activity or vendor activity. Special activity does not include activity that is permitted as a special event or a fundraiser unless it includes a privileged activity or vendor activity. A business license is required for activities conducted which reflect a regular pattern of business not temporary in nature.

Special event means:

(1) Any planned gathering of 75 or more persons which is to assemble or travel in an organized manner on any street, park or other public property; or,

(2) Any planned activity conducted by a person for a common or collective use, purpose or benefit which directly or indirectly involves the use of, and has an impact on, city street(s), park(s) or other public property or facilities which reasonably requires city management, regulation or resources to protect the health, safety, welfare or property of the city or its residents, coordinate multiple uses of public property, control traffic or address other substantial governmental interests at or around the activity.

(3) Examples of special events include, but are not limited to:

(a) Parades;

(b) Street fairs and festivals;

(c) Live commercial music events;

(d) Athletic or sporting events (e.g., races, runs);

(e) Circuses and carnivals;

(f) Community celebrations and observances;

(g) Commercial shows, trade shows, and business promotions;

(h) Commercial promotional or fund-raising activities.

Special event or activity alcohol permit means a permit issued under this chapter that entitles the holder thereof to distribute certain types of alcohol for on-premises consumption at a designated special event venue or special activity venue.

Special event permit means a permit issued under this chapter, including any conditions imposed thereto.

Special event venue means that area for which a special event permit has been issued.

Special activity permit means a permit issued under this chapter, including any conditions imposed thereto.

Special activity venue means that area for which a special activity permit has been issued.

Street means a way or place of whatever nature, publicly maintained and open to use of the public for purposes of vehicular travel. Street includes highway.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6081, § 1, 1-14-09; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.020. Purpose.

It is the purpose of the city council to establish a consistent process for permitting special events conducted by the public or private sector to use city streets, facilities or services and for permitting special activities on private property. It is recognized that these special events and special activities enhance the lifestyle of northern Nevada residents and visitors and provide benefits to the citizens through the creation of unique venues for expression and entertainment that are not normally provided as a part of governmental services. By recognizing special event and special activity venues, this chapter is intended to supplement land use regulations, to provide a coordinated process for the regulation of certain activities to be conducted in conjunction with special events and special activities, to ensure the health and safety of patrons of special events and special activities, to prohibit illegal activity from occurring within special event and special activity venues, and to protect the rights and interests granted to a special event or special activity permit holder. It is also the intent and direction of the city council that this chapter be administered consistent with the First Amendment of the United States Constitution and/or Article I, Sections 9 and 10 of the Nevada Constitution and applicable case law so as to protect the rights of citizens to engage in expressive activities and yet allow for the least restrictive and reasonable, time, place and manner regulation necessary to serve substantial governmental interests affected by those expressive activities.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.030. Permit requirements and enforcement.

A permit shall be required for all events, privileged activities, special event alcohol or special activity alcohol as set forth in this chapter. In addition:

(1) It shall be unlawful for any person to register participants, sell or give away tickets to a special event without first having submitted a completed special event permit application to the city in accordance with the provisions of this chapter.

(2) It shall be unlawful for any person to undertake, conduct, operate, maintain or manage a special event without first having obtained a special event permit from the city in accordance with the provisions of this chapter, unless exempt from the permit requirement.

(3) It shall be unlawful for any person to register participants, sell or give away tickets to a special activity without first having submitted a completed special activity permit application to the city in accordance with the provisions of this chapter.

(4) It shall be unlawful for any person to undertake, conduct, operate, maintain or manage a special activity without first having obtained a special activity permit from the city in accordance with the provisions of this chapter unless exempt from the permit requirement.

(5) Attention is called to the fact that other laws may be applicable and other licenses and permits may be required. For example, a special event occurring in a park will also require a park permit pursuant to Reno Municipal Code Chapter 8.23 to ensure that there are no conflicting events and staff are aware of the event and all events will be subject to criminal laws and park regulations in chapter 8.23.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.035. Closed convention limited exemption.

(a) The event organizer of a closed convention is not required to obtain a business license for operation as a closed convention, and may operate only by virtue of the operation being a properly conducted closed convention.

(b) Vendors operating wholly within a closed convention are not required to obtain individual business licenses for operation within a closed convention, and may operate only by virtue of the operation being a part of a properly conducted closed convention.

(c) Operation of a closed convention or operation by vendors within a closed convention shall not constitute an exemption from the requirements otherwise prescribed by this Code including, but not limited to, regulation by Title 5, or other local, state or federal law or regulation or administrative policy pertaining to such activities. Inclusion in this section shall constitute only an exemption from the fee and informational requirements for the business licensing of any vendor at a closed convention which may otherwise defined as a ″business″ or ″doing business″ pursuant to section 4.04.007.

(Ord. No. 6081, § 2, 1-14-09)

Sec. 5.13.040. Exceptions to permit requirement.

(a) The following activities are exempt from the permit requirement set forth in section 5.13.030:

(1) Funeral processions by a licensed mortuary.

(2) Activities regularly conducted by the City of Reno acting within the scope of its authority.

(3) Picketing, assembling and marching on sidewalks, provided that traffic and pedestrian laws are obeyed and the activity is conducted in a manner which leaves the sidewalk free for reasonable use by non-participants.

(4) Gatherings in a park of 75 or fewer persons organized for expressive activities that do not involve the use of vehicles, animals, vendors, structures (other than a maximum of four tables no larger than three feet by seven feet to facilitate expressive activity), fireworks, pyrotechnics or equipment (other than sound equipment to facilitate expressive activity), provided that the chief of police is notified at least 24 hours in advance of the commencement of the gathering.

(5) Motion picture and television and commercial still photography production activities. A film permit for these activities is required in accordance with Reno Municipal Code Chapter 5.20.

(6) Private parties and non-commercial sporting events approved by the parks, recreation and community services department at city parks and recreation facilities including but not limited to picnics, weddings, bar mitzvahs, family reunions, graduations, baptisms and local adult/youth sports leagues.

(7) Picketing, assembling, and marching on city streets such that street closures are required to preserve public safety. Event organizers of groups who want to picket, assemble or march on city streets should provide written notification to the arts, culture, and events manager, or designee, of the event so that street closures can be coordinated by the city.

a. Notwithstanding any other provision of this chapter, any gathering or march organized as an expressive activity related to events occasioned by news or affairs coming into public knowledge within five days of such gathering or march may file the notification no later than two business days before the gathering or march. For news or affairs coming into public knowledge within 72 hours of the expressive event, the two business day requirement shall be shortened to one business day. If the notification cannot be timely submitted, the event organizer may conduct a gathering on the grounds of the city plaza, if not otherwise being used by or with the permission of the city for another event. If the notification cannot be timely submitted and the city plaza is not available, the expressive gathering may take place in a city park which is not being used for an organized recreational purpose or pursuant to a permit for another event.

(b) Although not required to get a special event or special activity permit, an event organizer of an activity pursuant to subsection (a)(1)—(7) is required to comply with general regulations governing public safety and health.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12; Ord. No. 6439, § 1, 10-11-17)

Sec. 5.13.045. Free speech areas, display stands and sales of First Amendment protected expressive merchandise.

(a) FINDINGS AND PURPOSE:

The city finds that special events are often crowded to the extent that there is a substantial need to create reasonable time, place and manner regulations governing the placement of display stands and expressive merchandise by those exercising their First Amendment rights in or adjacent to congested special events to ensure safety, facilitate crowd movement and ensure access for emergency personnel and equipment. The city further finds that special events contribute substantially to the city′s economic welfare and that event organizers, and therefore the city, have a substantial interest in protecting the event organizer′s theme and the interests of the event organizer′s sub-licensed commercial vendors justifying reasonable time, place and manner regulations governing the placement of expressive merchandise and display stands during special events. Free speech areas shall be located inside or immediately adjacent to special event venues where they will not unreasonably isolate speakers from the attending public or unreasonably interfere with permitted activities, crowd flow, or normal or emergency city functions.

(b) DEFINITIONS:

(1) As used in this section, unless the context otherwise requires, the words and terms defined in RMC 5.14.010, including but not limited to display stand and expressive merchandise, have the meanings ascribed to them in that section.

(2) *Free speech* area shall mean an area in or adjacent to a special event venue which shall be designated as a special area on special event venue maps available to the public from the city clerk, or which shall be designated by signage and physical means or markings at the special event area, wherein persons may exercise their First Amendment rights during a special event, including but not limited to using display stands and selling expressive merchandise.

(3) *Speaker* shall mean a person or persons exercising their First Amendment rights in a public forum.

(c) SPECIAL EVENT BOUNDARIES:

As part of the application process, an event organizer applicant shall propose, and city staff shall determine, specific boundaries and entrance-exit points for the special event venue. The boundaries of the free speech area(s) shall also be determined if the city manager determines during the special event permitting process that one or more free speech areas is necessary or desirable. The public shall be provided notice of the boundaries by the time the special event is open to the public through any reasonable means, including but not limited to special event venue maps made available through the city clerk or by mechanical means at the special event venue, including but not limited to combinations such as: physical barriers, streets, signage, paint, chalk marks and geographic features such as rivers.

(d) EXPRESSIVE SPEECH AND CONDUCT:

During special events, except as set forth hereafter in this section, expressive speech and conduct protected by the First Amendment shall be allowed in the free speech area(s) to the extent a speaker's conduct does not unreasonably interfere with the permitted activities of the special event or normal or emergency city functions.

(e) FREE SPEECH AREAS:

(1) The city manager shall designate and modify, as reasonably necessary, the location and size of one or more free speech areas sufficient to reasonably accommodate speakers and/or event organizers desiring a free speech area(s) at a special event. To the extent reasonably feasible, the minimum number, size and locations of the free speech area(s) shall be determined in advance of the special event.

(2) Any speaker who desires space for display stands, expressive merchandise or other expressive activity within a special event free speech area may advise the city clerk of their name, contact information and plans and the city clerk shall promptly notify the city manager's designee, who shall take the request into consideration when determining the need for special event free speech areas pursuant to the previous subsection.

(Ord. No. 6345, § 1, 9-24-14)

Sec. 5.13.050. Fees.

(a) APPLICATION FEE.

Each application for a permit to conduct a special event or special activity shall be accompanied by an application fee. The application fee is in addition to any other fee required under this chapter, and is non-refundable.

(b) CITY SERVICES FEE.

Event organizer shall pay an amount equal to the actual costs necessarily incurred by the city to reasonably ensure the health, safety and welfare of the special event or special activity. The city manager shall calculate and estimate such fee based on the information provided by the applicant. The estimated fee shall not include business license fees; fees for special permits or inspections such as building permits or fire permits; late fees; or fees levied by the Washoe County Health Department. The city manager shall send the event organizer an invoice for the estimated city services fee. The event organizer shall make full payment of the estimated city services fee along with any applicable late fee required pursuant to section 5.13.090 upon receipt, or 15 days prior to the date set for commencement of setup for the event, whichever is later. The city manager shall require the event organizer to hire reasonable additional personnel or equipment as circumstances necessarily require to secure health, safety and welfare, the cost of which shall be borne by the event organizer. In the event that the actual costs incurred by the city exceed the estimated city services fee, the event organizer shall pay the additional actual cost to the city within 60 days from the date the invoice for such fees is mailed. In the event that the actual costs incurred by the city are less than the estimated city service fee, the city shall refund the difference between the actual costs and the estimated costs within 60 days from the conclusion of the event, less any applicable late fee required pursuant to section 5.13.090. Fees shall not be based upon anticipated reaction to an event message or speaker.

(c) LICENSE, INSPECTION AND PERMIT FEES.

Fees for business license(s), fire inspections or other such necessary licenses or inspections shall be charged by the city at the time the permit application is accepted or prior to issuance of an event permit.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.060. When application for permit is deemed complete.

An application for a special event permit or a special activity permit is deemed complete when the event organizer has submitted a written application upon forms provided by the city, provided all of the information required in section 5.13.090, the application has been accepted by the city manager, and the event organizer has paid all application processing, licensing, and inspection fees. The city manager shall reject all incomplete permit applications. If an application is not deemed compete by the completion deadline in section 5.13.091(g), the application shall be deemed denied as of that date, unless extended by mutual agreement of the city manager and event organizer.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.070. Date of event not confirmed until permit issued.

Notwithstanding the city manager's acceptance of a completed application, no date shall be considered confirmed until a special event permit or a special activity permit is issued.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08)

Sec. 5.13.080. Issuance of a permit does not obligate city services.

(a) Issuance of a special event permit or a special activity permit under this chapter does not obligate or require the city manager to provide city services, equipment or personnel in support of an event.

(b) The city council may enter into sponsorship agreements with event organizers to provide city services, equipment, or personnel for special events. Approval of the city council is not required for the city manager to provide city services, equipment, or personnel for a special event, if the city manager makes provisions with the event organizer for cost recovery from the event.

(c) Subject to applicable rules and regulations adopted pursuant to section 5.13.085, the city manager may provide city services, equipment or personnel in direct support of a non-commercial special event, if the cost to the city does not exceed $10,000.00 for the entire event, if the cost is within budget limitations, and if the city manager finds that a public purpose will be served. The city manager may find that a public purpose is served if all six of the following conditions are met:

(1) The event is organized and conducted by a non-profit organization which operates from or provides services within the City of Reno; and,

(2) The event provides a benefit to the general public; and,

(3) The same or similar event has not received financial support from the city pursuant to subsection (c), or received financial support from the city on no more than one prior occasion in the last five years; and,

(4) The event includes participation by the general public (notwithstanding an admission or participation fee); and,

(5) Provision of city services will result in improved crowd or event control and general public safety; and,

(6) The event organizer agrees to reimburse the city for the cost of city services exceeding $10,000.00.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08)

Sec. 5.13.085. City manager authorized to adopt rules and regulations.

The city manager is authorized to promulgate additional rules and regulations that are consistent with and that further the terms and requirements set forth within this chapter and the provisions of law that pertain to the conduct and operation of a special event, special activity or demonstration.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08)

Sec. 5.13.090. Application for permit.

(a) APPLICATION SUBMISSION REQUIREMENTS.

(1) An event organizer seeking a special event permit shall submit a completed application to the city not less than 90 calendar days, nor more than 12 months, prior to the date requested for the commencement of setup for the special event. An application received less than 90 days before the date requested for the commencement of setup for the special event shall be denied if the application cannot reasonably be processed due to the delay, and if approved, is subject to a late fee in an amount equal to ten percent of the amount of the total estimated city service fee pursuant to section 5.13.050(b) or $100.00, whichever is greater.

(2) An event organizer seeking a special activity permit that requires a privileged license requiring a background check under Reno Municipal Code Title 5, such as an alcohol license, shall submit an application to the city not less than 90 calendar days, nor more than 12 months, prior to the time indicated for the commencement of the special activity. An application received more than 12 months or less than 90 calendar days prior to the time indicated for the commencement of the special activity shall be denied.

(3) An event organizer seeking a special activity permit that requires a privileged license under Reno Municipal Code Title 5, such as an alcohol license, and is or will be using the services of a business currently licensed by the city for such privileged license shall submit an application to the city not less than 30 calendar days, nor more than 12 months, prior to the time indicated for the commencement of the special activity. An application received more than 12 months in advance of the special activity shall be denied. On the first occurrence, an application received less than 30 calendar days but more than five calendar days before the special activity shall be denied if the application cannot reasonably be processed due to the delay, and if approved, is subject to a late fee in the amount equal to ten percent of the total applicable fees pursuant to section 5.13.050(a) and (c). An application received less than five calendar days before the special activity shall be denied if the application cannot reasonably be processed due to the delay, and if approved, is subject to a late fee in the amount equal to 15 percent of the total applicable fees pursuant to section 5.13.050 (a) and (c). All subsequent permit applications submitted after the deadlines listed above shall be denied if the application cannot reasonably be processed due to the delay, and if approved, are subject to the late fee in an amount equal to 50 percent of the applicable fees pursuant to section 5.13.050(a) and (c).

(4) An event organizer seeking a special activity permit which does not require another privilege license as part of the activity shall submit an application to the city not less than 15 calendar days, nor more than 12 months, prior to the time indicated for the commencement of the special activity. An application received more than 12 months in advance of the special activity shall be denied. On the first occurrence, an application received less than 15 calendar days but more than five calendar days before the special activity shall be denied if the application cannot reasonably be processed due to the delay, and if approved, is subject to a late fee in the amount equal to ten percent of the total applicable fees pursuant to section 5.13.050 (a) and (c). An application received less than five calendar days before the special activity shall be denied if the application cannot reasonably be processed due to the delay, and if approved, is subject to a late fee in the amount equal to 15 percent of the total applicable fees pursuant to section 5.13.050 (a) and (c). All subsequent applications submitted after the deadlines listed above shall be denied if the application cannot reasonably be processed due to the delay, and if approved, are subject to a late fee in an amount equal to 50 percent of the applicable fees pursuant to section 5.13.050 (a) and (c).

(5) Any late fee assessed pursuant to subsection (a)(1) to (4), above, must be paid in full in cash, check, credit card, cashier′s check, or certified check at the time the permit fee is due and payable, and cannot be waived, deducted, or subtracted from any amount pledged by the city to provide services, equipment or personnel in direct support of the special event or special activity.

(6) Any application received less than 15 days before a special event or three business days before a special activity shall be denied, unless the city manager finds that the applicant's delay in submission was due to circumstances beyond its reasonable control or not reasonably foreseeable.

(b) APPLICATION REQUIREMENTS.

An event organizer seeking a special event permit or a special activity permit shall submit an application to the city within the time limits established in subsection (a). The application shall:

(1) Be a written statement upon forms provided by the city;

(2) Require disclosure of all reasonable information that is necessary to the fair and efficient administration of this chapter;

(3) Be accompanied by the full amount of the application, license and inspection fees chargeable for such permit; and,

(4) Be signed by the event organizer, if a natural person; in the case of an association or partnership, by a member or partner with authority to bind the association or partnership; in the case of a corporation, by an executive officer or some person specifically authorized by the corporation to sign the application, to which must be attached the written evidence of the authority.

(c) In considering an application and any conditions to be imposed thereon, the city manager shall consult with the chief of police and fire chief and such city personnel as he or she deems appropriate, and may convene appropriate city representatives for this purpose as an advisory events committee.

(d) The city manager shall, in consultation with the events committee, determine whether the arrangements described in the application:

(1) Reflect a realistic estimate of the expected size of the crowd or number of participants at the event;

(2) Provide adequate security and crowd control measures to control potentially disruptive individuals or situations;

(3) Reflect that the method to be used in preparing, selling or distributing food and/or alcohol minimizes or prevents the distribution of glass, metal, or similar containers that could be used as weapons;

(4) Provide adequate measures for the proper sanitation, collection and removal of rubbish and trash during the event and at the conclusion of the event; and,

(5) Provide adequate insurance or other form of indemnification that will protect the city from potential claims arising from the event.

(e) If the city manager, in consultation with the events committee, is satisfied that the arrangements made by the event organizer as set forth in the application provide a reasonable assurance that the special event or special activity will be properly supervised and managed so as to ensure reasonable levels of health, safety, property protection and welfare, he or she shall issue the permit. In so doing, he or she shall require specific additional measures or commitments from the event organizer as shall be reasonable and necessary to address the specific issues mentioned in subsection (d).

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 5883, § 1, 10-11-06; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12; Ord. No. 6439, § 2, 10-11-17)

Sec. 5.13.091. Denial of permit issuance

(a) The city manager shall deny issuance of a permit if any of the following exist:

(1) The event organizer fails to meet any condition imposed pursuant to the provisions of this chapter.

(2) The proposed event will be held in a manner or location not meeting the health, zoning, fire or building and safety standards established by the ordinances of the city or the laws of the State of Nevada.

(3) The event organizer has knowingly made a false, misleading or fraudulent statement of material fact in the application for a permit.

(4) Except for an expressive activity, the event organizer, his employee, agent or any person connected or associated with the event organizer as partner, director, officer, stockholder, associate or manager has, within the previous five years, conducted the type of event indicated in the application which resulted in the creation of a public or private nuisance.

(5) Except for an expressive activity, the event organizer has, within the previous five years, failed to conduct a previously authorized or exempted special event or special activity in accordance with law or the terms of a permit, or both.

(6) Except for an expressive activity, the event organizer, his employee, agent or any person associated with the event organizer as partner, director, officer, stockholder, associate or manager has, within the previous five years, been convicted in a court of competent jurisdiction, by final judgment of:

a. An offense involving the presentation, exhibition or performance of an obscene production, motion picture or place, or of selling obscene matter;

b. An offense involving lewd conduct;

c. An offense involving the use of force and violence upon the person of another;

d. An offense involving misconduct with children; or

e. A felony.

(7) The application is materially deficient so as to reasonably raise substantial doubt as to the event organizer's ability to properly manage, supervise and control the event to prevent or minimize the occurrence of a public disturbance (other than hostile reaction to an applicant's message or identity), nuisance or other threat to public health, property, safety or welfare.

(8) The event will require the diversion of so many public employees from their normal duties that the city, with its available city resources, would be unable to reasonably provide for public safety protections and/or provision of public services to the remainder of the city.

(9) The concentration of persons, animals or vehicles will unreasonably interfere with the movement of police, fire, ambulance, and other emergency vehicles on the streets.

(10) The conduct of the event will substantially obstruct or interfere with any construction or maintenance work scheduled or necessarily required to take place upon or along the public streets or event venue.

(11) The event substantially interferes with any other special event or special activity for which a permit has already been granted or with the provision of city services in support of other scheduled events or unscheduled governmental functions such as visits of chiefs of state.

(12) The event organizer has not provided sufficient off-site parking or shuttle service, or both, when required to minimize substantial adverse impacts on general parking and traffic circulation in the vicinity of the event;

(13) The event will have an adverse impact which cannot be mitigated upon residential or business access and traffic circulation in and around the special event venue or special activity venue.

(14) The noise generated by the event will unreasonably disturb the peace of persons of reasonable and ordinary sensibilities outside the event venue.

(15) The non-payment of any amounts owed by the event organizer to the city that are more than 90 days past due.

(16) Failure by the event organizer to participate in a post-event review of a previously authorized special event with the city manager within 75 days of being requested to do so following the conclusion of the previous special event.

(17) The event will unreasonably jeopardize the health, safety, welfare or property of the public or the city and the risk cannot be reasonably mitigated.

(b) The city manager shall either deny the application or issue a permit within the following time frames following receipt by the city of a completed application. Failure to grant the event within the following time frames shall be deemed a denial for purposes of appeal or judicial review. The city manager and the event organizer may extend these time frames by mutual written agreement.

(1) At least 20 days before the event date if the application is completed 45 or more days before the event.

(2) At least ten days before the event date if the application is completed 20 to 44 days prior to the event.

(3) At least five days before the event date if the application is completed ten to 19 days prior to the event.

(4) Event applications shall not be accepted less than ten days before the scheduled event date, unless specifically authorized by another section.

(c) Notwithstanding the forgoing deadlines, the city manager shall use reasonable efforts to complete the application review process promptly.

(d) Where the application is denied, the city manager shall mail to the event organizer written notice of denial within three business days, which notice shall include a statement of the reasons the application was denied. Failure to grant the permit within the forgoing time frames shall be deemed a denial for purposes of judicial review. A denial may be appealed in accordance with section 5.13.220.

(Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.092. Special event reviews and advance or future permit denials.

(a) Within 75 days following a special event, the event organizer shall meet with the city manager to review the event. The city manager may extend this time for good cause. The review shall primarily focus on procedures to enhance future events.

(b) Following review of the event, or after the period set forth in subsection (a) if the event organizer fails to meet for a review, the city manager shall notify the event organizer that no permit will be issued to the event organizer for the same or similar event for a period of three years, provided the city manager finds the following:

(1) The event was conducted in violation of this chapter or in violation of the permit;

(2) Substantial doubt exists as to the ability of the event organizer and the organizer's associates to conduct the future event in compliance with this chapter and consistent with the health, welfare and safety of the public; and

(3) Good cause exists to believe event participants or visitors will suffer hardship if the future event application is not denied in advance.

(c) If the city manager denies a permit in advance, he or she shall send written notification to the event organizer notifying the event organizer that they and/or the event shall not be granted a special event permit for the same or similar event for a period of three years from

the conclusion of the event in question. The notification must specify the basis for the decision and be sent within the first 90 days following conclusion of the event in question.

(Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.095. Computation of time.

If any permit application deadline in this chapter falls on a weekend, holiday or non-business day, the application shall be allowed to be submitted no later than close of business on the next business day.

(Ord. No. 5883, § 2, 10-11-06; Ord. No. 6030, § 1, 6-11-08)

Sec. 5.13.100. Event alcohol permit.

(a) It shall be unlawful for any person to distribute any alcoholic beverage for consumption at any special event or special activity without first obtaining a special event or special activity alcohol permit from the city.

(b) Any event organizer desiring to obtain a special event or special activity alcohol permit shall submit an application to the city not less than 90 calendar days before the date of the special event or special activity. Alternatively, if the event organizer will be using the services of an alcohol vendor currently licensed by the city to manage the sales and service of alcoholic beverages at the special event or special activity, the application shall be submitted to the city not less than 30 calendar days before the date of the special event or special activity. The application shall:

- **(1)** Be a written statement upon forms provided by the city;
- **(2)** Require disclosure of all reasonable information that is necessary to the fair and efficient administration of this chapter;
- **(3)** Be accompanied by the full amount of the fees chargeable for such permit; and,
- **(4)** Be signed by the event organizer, if a natural person; in the case of an association or partnership, by a member or partner with authority to bind the association or partnership; in the case of a corporation, by an executive officer or some person specifically authorized by the corporation to sign the application, to which must be attached the written evidence of the authority.

(c) The application shall include:

- **(1)** Designated entry and exit points to the event venue(s), and a plan detailing how the event organizer will prevent the off premise consumption of alcohol;
- **(2)** Whether entry to the event alcohol service area(s) is restricted to invited guests or open to the public;
- **(3)** Type of alcohol to be sold or dispensed and the means or method which will be used to sell, dispense or distribute the alcohol to the crowd;
- **(4)** The identity of the on-site supervisor(s) of alcohol service;
- **(5)** The exact number and location(s) of alcohol service booths; and
- **(6)** Such other information as is deemed appropriate by the city manager, and/or the chief of police.

(d) If the city manager, in consultation with the chief of police, is satisfied that the arrangements made by the event organizer as set forth in the application provide a reasonable

assurance that the event will be properly supervised and managed so as to minimize or prevent the possibility of a public disturbance, he or she shall authorize the issuance of the special event or special activity alcohol permit. In so doing, he or she shall require such specific additional measures or commitments from the event organizer as is necessary to ensure the event is safely and reasonably managed, supervised and controlled.

(e) The city manager shall deny an application which is materially deficient so as to raise doubt as to the event organizer's ability to properly manage, supervise and control the event to prevent or minimize the occurrence of a public disturbance. A denial may be appealed in accordance with section 5.13.220.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.110. Form and condition of event permit.

(a) For the protection of the health, safety and property of local residents and persons attending special events or special activities, the city shall require the following conditions:

(1) A minimum number of law enforcement officers employed at the permittee's expense.

(2) Adequate drinking water.

(3) An adequate sewage system.

(4) Adequate food supplies.

(5) Adequate toilet facilities.

(6) Adequate medical facilities, including doctors and supplies.

(7) A minimum amount of parking space for vehicles.

(8) Indemnity or performance bonds.

(9) Adequate fire protection at the permittee's expense.

(10) Financial statements.

(11) A communication system.

(12) Adequate measures addressing business access and traffic circulation.

(13) Pursuant to section 5.13.140, timely and adequate impacted neighbor notification.

(14) Conditions or restrictions on the use of alcoholic beverages and authorization for and conditions of the exclusive control or regulation of vendors and related sales activity by the event organizer during the event.

(15) As a condition of the issuance of a special event permit, the event organizer shall be required to make adequate provisions for cleaning up the area or route of the event both during and upon completion of the event and to return the area or route to the same condition of material preservation and cleanliness as existed prior to the event.

(16) If the event is a firearm or gun show, adequate compliance with firearm and gun show regulations set forth by the chief of police.

(17) Conditions or restrictions to prevent unreasonable noise outside the event venue.

(18) Conditions or restrictions on the hours of operation.

(19) Other reasonable conditions necessary to protect the health, safety, welfare, and property of local residents and persons attending the event.

(b) It is unlawful for any event organizer to use a facsimile of the seal of the City of Reno, without the city's express written authorization.

(c) If requested by an applicant of an event organized as an expressive activity, the city shall provide a written explanation of the need for any condition within seven days of the request or, if the condition is imposed less than ten days before the event, within two business days of the request.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.120. Insurance and indemnification.

(a) Except as otherwise provided in subsection (c), below, it shall be a condition of the issuance and continued validity of any special event permit granted pursuant to this chapter that the event organizer first obtain, pay for and maintain a policy of general liability insurance approved as to form by the city manager which shall insure the city, its officers and employees against any liability, or claims of liability, brought or made by or on behalf of any person for personal injury or property damage caused by or arising out of any negligent act or omission of either the event organizer, agents or employees, including any officers or employees of the city, or caused by or arising out of the condition of any city-owned or controlled property, whether real or personal, and occurring during the period and as a result of the activities for which such event permit was issued. The amount of coverage to be provided by such policy shall not be less than $1,000,000.00 combined single limit. The event organizer may satisfy the requirement imposed by this section through the presentation of a certificate of insurance, for at least the required amount of coverage, which indicates that, by endorsement thereto, the city, its officers and employees have been added as additional insureds. Such certificate shall additionally provide that the required insurance will not be modified, changed or terminated without ten-day advance written notice delivered to the business license office.

(b) This subsection (b) shall be deemed to be incorporated in its entirety in any permit issued under this chapter unless expressly modified in writing in the permit. It shall be a condition of the issuance of any special event permit granted pursuant to this chapter that the event organizer, on behalf of himself or herself and on behalf of any legal entity he or she represents in seeking a special event permit, shall agree to indemnify, defend and hold the city, its officers, employees, and agents harmless from all claims and liabilities of any kind whatsoever (including costs and reasonable attorneys and experts fees), resulting from or arising out of the acts or omissions of the event organizer, the participants, except that the event organizer will not be held liable for the actions or omissions of spectators as long as the spectators' acts or omissions were not authorized or ratified by or on behalf of the event organizer or the event organizer's agents or employees.

(c) *Insurance exceptions.* A special event permit shall be exempt from the insurance requirements of subsection (a) if the following exist:

(1) The special event is organized for expressive activity; and

(2) The applicant or an officer of the sponsoring organization of a non-athletic event has filed a verified statement along with the initial application stating that he or she believes the event's purpose is First Amendment expression; and

(3) Either:

a. The applicant or officer of the sponsoring organization has determined and presented a verified statement with the initial application that the cost of obtaining insurance is financially burdensome and would constitute an unreasonable

burden on the right of the organization's First Amendment expression. The statement shall include the name and address of one insurance broker or other source for insurance coverage contacted to determine premium rates for coverage; or

b. The applicant, if not representing an organization, provides reasonable evidence that his or her individual (or family if living with a spouse) gross annual income falls below 125 percent of the current poverty guidelines updated periodically in the Federal Register by the U.S. Department of Health and Human Services under the authority of 42 U.S.C. 9902(2); or

c. The applicant presents a verified statement that it is objectively impossible to obtain insurance coverage. The statement shall be accompanied by statements from at least two independent licensed insurance brokers demonstrating the insurance is unavailable in the market place; and

(4) The event will not involve the use of equipment (other than sound equipment), vehicles, animals, fireworks or pyrotechnics; and

(5) No fee or donation is charged or required as a condition of admission or participation in the event.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.130. Business hours of regularly conducted businesses during events.

During a special event or special activity, the chief of police may alter the normally established business hours of any business licensed by the city. The decision to change business hours shall be reasonable and based upon public safety, health and welfare necessary to preserve the public peace.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.140. Impacted neighbor notification.

All special event permit applications requesting full or partial closure and/or restriction of a street or sidewalk shall include an impacted neighbor notification statement ("INNS") upon forms provided by the city which shall be submitted no later than 30 calendar days before the date of the special event. In the sole discretion of the city manager, an INNS received less than calendar 30 days before the special event may result in the denial of the permit. An INNS received less than 30 days before the special event shall result in the denial of the permit application, unless the city manager finds that applicant's delay in submission was due to circumstances beyond its reasonable control or not reasonably foreseeable.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.150. Authorized event vendors.

(a) The issuance of a special event permit or a special activity permit confers upon the permit holder or event organizer the right and duty to control and regulate the sale of goods, food, beverages and services within the event venue in accordance with the terms and conditions of the event permit.

(b) Vendors authorized to sell, resell or offer for sale any goods, food, beverages, or services in the special event venue or special activity venue shall display their authorization in the manner required by the event permit. Only vendors displaying the required authorization shall be allowed to sell goods, food, beverages or services in the event venue.

(c) The event organizer shall ensure and certify that vendors authorized to sell goods, food, beverages or services in the event venue have a current City of Reno business license. Upon request of the city manager or chief of police, the event organizer shall provide evidence that any vendor authorized pursuant to subsection (a) has a current City of Reno business license.

(d) It is unlawful for any person to sell, resell or offer for sale, any goods, food, beverages or services in a special event venue or a special activity venue without having a City of Reno business license or obtaining a temporary vendor license from the city.

(e) Vendors participating in a closed convention as defined by RMC 5.13.010 are exempt from the requirements of this section.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6081, § 3, 1-14-09; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.170. Unlawful to sell goods in event venue without authorization.

(a) It is unlawful for any person with a City of Reno business license to sell, resell, or offer to sell or resell, any goods, food, beverages or services in a special event venue or special activity venue, except:

(1) From any building; or,

(2) From any tent, booth or temporary structure expressly authorized pursuant to a special event permit or special activity permit.

(b) It is unlawful for any person without a City of Reno business license to sell, resell, or offer to sell or resell, any goods, food, beverages or services in a special event venue or special activity venue.

(c) Vendors participating in a closed convention as defined by RMC 5.13.010 are exempt from the requirements of this section.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6081, § 3, 1-14-09)

Sec. 5.13.180. Unlawful to interfere with event.

It is unlawful for any person to obstruct, impede or interfere with any permitted event.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.190. Expiration.

Unless otherwise provided in this chapter, every permit issued pursuant to the provisions of this chapter shall expire on the date specified in the application as the date on which the activity will conclude.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08)

Sec. 5.13.195. Transfer.

A special event permit or special activity permit issued to any person pursuant to the provisions of this chapter shall not be transferred to any other person nor apply to any other

location(s) than that specified in the permit application without the consent of the city manager. Failure to comply with this section shall constitute good cause to revoke or suspend the permit.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08)

Sec. 5.13.200. Suspension or revocation of permit.

(a) Any special event permit or special activity permit issued pursuant to this chapter is subject to suspension or revocation pursuant to this section.

(b) An event permit shall be suspended or revoked if the city manager, fire chief or chief of police reasonably determines the existence of one or more of the following subsections, except that technical violations shall be waived where they do not harm the policies furthered by the requirement:

(1) That the event cannot be conducted without violating the standards or conditions for event permit issuance; or,

(2) The event is being conducted in violation of any material condition of the event permit; or

(3) The event poses a threat to health or safety; or

(4) The event organizer or any person associated with the event has failed to obtain any other permit required pursuant to this chapter; or

(5) The special event permit was issued in error or contrary to law; or

(6) The non-payment of any amounts owed by the event organizer to the city that are more than 90 days past due.

(c) Except as provided in subsection (d), notices of suspension or revocation shall be in writing and specifically set forth the reasons for the suspension or revocation.

(d) If there is an emergency requiring immediate suspension or revocation of an event permit, the city manager, fire chief or chief of police may notify the permit holder verbally of the revocation and it shall be effective immediately. The city manager shall provide written reasons for the suspension or revocation within 24 hours.

(e) A suspension or revocation may be appealed in accordance with section 5.13.220.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.210. Cost recovery for events.

(a) Except as otherwise provided in this chapter, or when funded by city council, for any special event or special activity the city manager shall charge for the actual cost of:

(1) The salaries of city personnel requested by the event organizer or reasonably and necessarily involved in permit compliance, event traffic control, fire safety or other facility or event support; and

(2) The standard rental fee for use of city equipment and any other non-personnel expense requested by the event organizer or necessary to provide reasonable permit compliance, event traffic control, fire safety or other facility or event support.

(b) The city manager shall require payment of fees required pursuant to subsection (a), or a reasonable estimate thereof as provided in section 5.13.050.

(c) If the event organizer fails to comply with section 5.13.110(15), the event organizer will be billed for actual city costs for clean-up and repair of the area or route occasioned by the

event. In the event organizer failed to comply with section 5.13.110(15) under a previously issued event permit, the city manager may require the event organizer to deposit adequate surety in the form of cash or bond.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.220. Appeal.

(a) Except to the extent stated hereafter, any denial, suspension, revocation of a permit, imposition of a fine or grievance of an administrative decision may be appealed in accordance with Reno Municipal Code, section 4.04.160.

(b) If an application which has been clearly designated by the applicant as one involving First Amendment activity and is intended to respond to an imminent current event, the city clerk shall place such an appeal on the hearing officer's agenda for a hearing, which will be held within three days from the filing of the notice of intent to appeal, unless a greater time is agreed upon by both parties. If an administrative hearing within this time frame cannot be scheduled or will not address the issues of the appellant in a timely manner, the appellant may appeal directly to the appropriate state or federal court.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08; Ord. No. 6231, § 1, 5-23-12)

Sec. 5.13.230. Penalty.

(a) Any person in violation of any of the following provisions of this chapter shall, upon conviction, be punished as provided in section 1.04.010; provided that nothing herein shall be construed to prevent the city from recovering the amount of any fine imposed or fee required by this chapter in a civil action brought for such purpose.

(1) Holding a special event or special activity without a valid permit (5.13.030);

(2) Serving, providing or allowing alcohol without or contrary to the conditions of a special event alcohol permit or a special activity alcohol permit (5.13.100);

(3) Using a facsimile of the seal of the City of Reno, without the city's express written authorization (5.13.110(b));

(4) Failure to close a business when ordered by the chief of police under the authority of section 5.13.130;

(5) Selling, reselling or offering for sale, any goods, food, beverages or services in a special event venue or a special activity venue without having a City of Reno business license or obtaining a temporary vendor license from the city (5.13.150(d));

(6) Selling or reselling in violation of section 5.13.170;

(7) Obstructing, impeding or interfering in violation of section 5.13.180; or

(8) Continuing a special event or special activity after revocation or suspension of the permit (5.13.200).

(b) In addition to, or in place of, any other remedy or penalty, a violation of this chapter or of the terms or conditions of a permit issued under this chapter shall subject the event organizer to administrative fines of $100.00 for each separate violation. The fine may be imposed by any enforcement official as defined in Reno Municipal Code 1.05.020 by issuing an administrative citation in a form approved by the city manager containing the following information:

(1) Date and location;

(2) Name and signature of issuing officer;

(3) Description of the violation(s);

(4) Identification of the chapter section(s) or permit condition(s) violated;

(5) Amount of the fine(s); and

(6) Statement that pursuant to Reno Municipal Code section 5.13.220, the fine may be appealed by filing with the administrative hearing officer at the city clerk's office, within ten business days of issuance, a written statement setting forth fully the grounds for the appeal.

(c) In the event that any provisions of this chapter are violated by a firm or corporation, the officer or officers, or the person or persons responsible for the violation shall be subject to the penalty herein provided.

(Ord. No. 5695, § 2, 4-27-05; Ord. No. 6030, § 1, 6-11-08)

CHAPTER 5.14. FIRST AMENDMENT PROTECTED EXPRESSIVE MERCHANDISE AND DISPLAYS ON SIDEWALKS*

Sec. 5.14.010. Definitions.
Sec. 5.14.020. Purpose.
Sec. 5.14.030. Reserved.
Sec. 5.14.040. Reserved.
Secs. 5.14.050—5.14.080. Reserved.
Sec. 5.14.090. Regulations for display stands and sales of expressive merchandise.
Secs. 5.14.100—5.14.120. Reserved.
Sec. 5.14.130. Severability.

Sec. 5.14.010. Definitions.

Display stand means any objects used to create, display or sell merchandise or to facilitate expression protected by the First Amendment. By way of example and not limitation, the term includes tables and chairs to facilitate sales of commercial or expressive merchandise, petitioning or leafleting; artist's easels; booths; and props used to facilitate a performance or entertainment.

City means the City of Reno.

City council or *council* means the present governing body of the city or any future council constituting the legislative body of the city.

Commercial means activity or speech, including but not limited to the advertising or selling of merchandise, conducted for the primary purpose of proposing or completing a transaction for generation of profit and which is thereby subject to a lower standard of protection under the First Amendment than pure speech or expression.

Creative unit means two or more persons jointly engaged in the creation or production of items of artistic sell expression, no one of whom stands in an employer-employee relationship to any of the other members thereof. At least one member of the creative unit must be present to be protected by the First Amendment when creating, displaying, offering or selling items of artistic self expression on sidewalks, parks or other public forums.

Expressive merchandise means: (i) items of artistic self expression; (ii) items inextricably intertwined with a particularized message; and, (iii) any other items which have been held by the courts to be expressive and protected by the First Amendment of the United States Constitution.

Items inextricably intertwined with a particularized message means an item which is offered, displayed or sold that is inseparable from and intrinsically intertwined with the overall

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***Editor's note—**Ord. No. 5689, § 1, adopted April 27, 2005, repealed former Ch. 5.14, in its entirety, which pertained to street performers. Section 2 of said ordinance enacted provisions designated as a new Ch. 5.14 to read as herein set out. See also the Code Comparative Table.

Ord. No. 6327, § 1, adopted April 16, 2014, changed the title of Ch. 5.14 from "First Amendment Artisans and Sidewalk Speakers" to "First Amendment Protected Expressive Merchandise and Displays on Sidewalks."

expression of a political, religious, philosophical or ideological message, doctrine, concept, belief or idea. Examples include but are not limited to: bumper stickers; hats or buttons with messages such as "Earth Now", "Peace Not War" or "Support Unions"; bibles; religious brochures; election pamphlets; a toy stuffed whale with a "Greenpeace" logo or tag affixed so that it is intended to convey a philosophical message of "Save the Whales"; and an unlabeled toy doll of an emaciated child, with no apparent connection to any organization, distributed to donors by "Save the Children" at a booth with their name and educational handouts.

Items of artistic self expression means the creation, display, offer or sale by the item's creator or creative unit of one or more items which are inherently expressive of its creator's perspective and therefore fully protected by the First Amendment. These items include but are not necessarily limited to: paintings, drawings, sculpture, tattooing, photography, prints of self expression, engravings, stained glass as non-functional "art for art's sake", recordings of the artist's composition or performance of performing arts including music, dance, theater, and films.

Artistic self expression does not include items which are intended to serve any functional or utilitarian use or purpose, even if the item is decorative. Examples of such items include handcrafts, jewelry, tools, clothing, food, pottery, silver work, metal work, woodwork, leather goods, house wares, appliances, clothing, sunglasses, auto parts, oils, incense, perfume, lotions, candles, toys, stuffed animals and trinkets.

Artistic self expression may include items that appear on first impression to be functional or utilitarian, but have been modified to demonstrate the expressive "art for art's sake" intent of its creator, and are not intended to serve any utilitarian, functional or commercial uses or purposes. Examples include but are not limited to:

(1) A stained glass window presented as art for art's sake, and not intended or understood to be used as a functional window.

(2) Pottery as tableware is utilitarian even if it is decorative. However, pottery may become expressive where it has been modified and presented as art for art's sake, i.e., modified and presented to be expressive of its creator's perspective and intended for display rather than for use as tableware.

(3) While a macramé pot hanger has a functional purpose and would not be protected artistic self expression, a macramé soft sculpture with no other purpose than to hang on the wall as "art for art's sake" would be protected.

Merchandise means personal property, commodities or goods.

Sidewalk means areas lawfully open to public use or passage including walkways, paths, sidewalks and other public ways set apart by curbs, barriers, markings or other delineation for pedestrian travel, excluding streets and other public ways improved, used or designed for use by vehicular traffic.

Special event means any event, activity or assembly duly authorized by the city pursuant to RMC, § 5.13.010 et seq.

Special event permit means a permit issued under RMC, § 5.13.010 et seq.

Special event venue means that area for which a special event permit has been issued.

(Ord. No. 5689, § 2, 4-27-05; Ord. No. 6147, § 1, 4-14-10; Ord. No. 6327, § 1, 4-16-14)

Sec. 5.14.020. Purpose.

It is the purpose of the city council to protect the rights of its citizens to engage in protected free speech expression through the display and sale of fine art and other expressive merchandise. The city council recognizes that there are other forms of speech or conduct protected by the First Amendment which it supports, but which are not addressed in this chapter. It is also the purpose of the city council to keep the sidewalks free of congestion and to ensure free and safe public passage on sidewalks and streets by establishing narrowly tailored time, manner and place regulations governing the use of display carts and the display and sale of expressive merchandise on sidewalks.

(Ord. No. 5689, § 2, 4-27-05; Ord. No. 6147, § 1, 4-14-10; Ord. No. 6327, § 1, 4-16-14)

Sec. 5.14.030. Reserved.

Editor's note—Ord. No. 6147, § 1, adopted April 14, 2010, repealed § 5.14.030, which pertained to certificate required. See also the Code Comparative Table.

Sec. 5.14.040. Reserved.

Editor's note—Ord. No. 6327, § 1, adopted April 16, 2014, repealed § 5.14.040, which pertained to business license required. See also the Code Comparative Table.

Secs. 5.14.050—5.14.080. Reserved.

Editor's note—Ord. No. 6147, § 1, adopted April 14, 2010, repealed §§ 5.14.050—5.14.080, which pertained to age eligibility for First Amendment artisans and sidewalk speakers; fee setting procedure; First Amendment artisan application; expiration; and First Amendment artisan certificate: disclaimer, transfer and display. See also the Code Comparative Table.

Sec. 5.14.090. Regulations for display stands and sales of expressive merchandise.

(a) The use of display stands and the creation, display, offer or sale of expressive merchandise shall be allowed on city sidewalks to further expression protected by the First Amendment, subject to limitations that display stands and expressive merchandise shall:

(1) Leave at least five feet of clear passageway along any sidewalk.

(2) Not be located within 18 inches of the curb line of any sidewalk.

(3) Not extend more than eight feet above any sidewalk.

(4) Not impede access to the entrance of any adjacent building or driveway.

(5) Not be located within ten feet of a crosswalk, bridge, fire hydrant, fire department standpipe connection, fire escape, driveway of a fire station, police station, or hospital, bus stop, any entrance or exit doorway, wheel chair ramp, green, yellow or red zone, or obstruct a commercial business sign.

(6) Not lean against or hang from any building or any other structure, including, but not limited to, structures such as lamp posts, parking meters, mail boxes, traffic signal stanchions, fire hydrants, fire department standpipe connections, trees, tree boxes, benches, bus shelters, or traffic barriers which lawfully occupy public space.

(b) A person erecting or using a display stand or displaying expressive merchandise on a sidewalk, including but not limited to persons engaged in the creation, display, offer or sale of expressive merchandise, shall abide by the provisions of the Special Events Chapter, RMC Chapter 5.13, and particularly RMC Section 5.13.045 relating to vending and free speech areas, during special events.

(Ord. No. 5689, § 2, 4-27-05; Ord. No. 6147, § 1, 4-14-10; Ord. No. 6346, § 1, 9-24-14)

Secs. 5.14.100—5.14.120. Reserved.

Editor's note—Ord. No. 6147, § 1, adopted April 14, 2010, repealed §§ 5.14.100—5.14.120, which pertained to suspension or revocation of First Amendment artisan certificate; appeal; and criminal violations; penalties. See also the Code Comparative Table.

Sec. 5.14.130. Severability

If any section, subsection, subdivision, paragraph, sentence, clause or phrase in this chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this chapter or any part thereof. The city council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause or phrase thereof irrespective of the fact that any one or more sections, subsections, subdivisions, paragraphs, sentences, clauses or phrases be declared unconstitutional or ineffective.

(Ord. No. 5689, § 2, 4-27-05; Ord. No. 6147, § 1, 4-14-10)

CHAPTER 5.15. RESERVED*

*__Editor's note—__Ord. No. 6668, § 1, adopted January 17, 2020, repealed ch. 15, §§ 5.15.010—5.15.170, which pertained to sidewalk vendors and derived from Ord. No. 5694, § 2, adopted April 27, 2005; Ord. No. 6557, § 1, adopted March 25, 2000. Previously, Ord. No. 5694, § 1, adopted April 27, 2005, repealed former Ch. 5.15, in its entirety, which pertained to street vendors. Section 2 of said ordinance enacted provisions designated as a new Ch. 5.15 to read as herein set out. See also the Code Comparative Table.

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CHAPTER 5.16. TOWING AND BOOTING COMPANIES

Sec. 5.16.011. Definitions.
Sec. 5.16.020. Insurance required.
Sec. 5.16.030. Booting operational documents to be provided.
Sec. 5.16.040. List of booting properties.
Sec. 5.16.050. Chronological log to be maintained.

Sec. 5.16.011. Definitions.

Operator of a tow car means the owner, manager, employee or agent of a company engaged in the transportation of vehicles by the use of a tow car, and who holds himself out for hire for such towing. This includes any tow company who holds a certificate of public convenience and necessity issued by the public service commission.

Booting company means the owner, manager, employee or agent of a company engaged in the installation of automobile immobilizers, sometimes referred to as "Denver boots" or "French boots," operating within the city limits, and who holds himself out for hire for such installation (hereinafter called "booting").

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.16.020. Insurance required.

A booting company doing business within the City of Reno shall at all times keep in full force and effect an insurance policy naming the booting company as the covered entity responsible for property damage to booted vehicles and for personal injury to the person in possession of or related to the booted vehicle. Insurance coverage shall be maintained in an amount not less than twenty-five thousand dollars ($25,000.00) for property damage and not less than one hundred thousand dollars ($100,000.00) for personal injury.

(Ord. No. 6098, § 1, 3-11-09)

Sec. 5.16.030. Booting operational documents to be provided.

A booting company doing business within the City of Reno shall provide to the business licensing division, in addition to all standard business license application materials and information:

(a) A list of all vehicles owned, leased or in any way used by the booting company to conduct booting operations within the city. The list of vehicles shall include a description, including the model, make, year, license number and vehicle identification number, of each vehicle listed.

(b) A document or other written proof of insurance required pursuant to RMC 5.16.020.

(c) A copy of the printed authorization slip that the applicant intends to use prior to the booting of any vehicle when such booting is individually and specifically requested.

(d) A sample warning placard or sticker that the applicant intends to place upon a vehicle that has been immobilized by booting.

(e) The form for billing that the applicant intends to provide to the owner of a booted vehicle.

(f) A copy of the document that the applicant intends to provide to each person in possession of a booted vehicle to inform the person of his or her right to file a complaint with the Reno City Clerk.

(g) Proof that the applicant is capable of accepting payment of service fees by credit card.

(Ord. No. 6098, § 1, 3-11-09)

Sec. 5.16.040. List of booting properties.

A booting company shall, upon license application and on a quarterly basis thereafter, provide to the business licensing division a current list of all private properties where the booting company is authorized to perform booting services. The list shall identify whether the respective property is one on which booting is performed through periodic booting company patrols, performed through specific and individual requests or performed through both methods.

(Ord. No. 6098, § 1, 3-11-09)

Sec. 5.16.050. Chronological log to be maintained.

A booting company shall maintain a chronological log or record of all vehicles that the booting company immobilized within the city. The log shall contain the name of the person in possession of the vehicle at the time of booting, a description of the vehicle, including the model, make, year, license number and vehicle identification number, the location of the booting, the date and time of the booting, the date and time the person in possession of the vehicle requested release of the vehicle and the date and time the vehicle was released by the booting company.

(Ord. No. 6098, § 1, 3-11-09)

CHAPTER 5.17. VEHICLES FOR HIRE*

Sec. 5.17.011. Definitions.
Sec. 5.17.020. Identification.
Sec. 5.17.030. Penalty for unlisted license plate.
Sec. 5.17.040. Horse-drawn vehicles route and operations schedule.
Sec. 5.17.050. Issuance of horse-drawn vehicle business license.
Sec. 5.17.060. Operation of horse-drawn vehicle businesses.
Sec. 5.17.070. Temporary permits.
Sec. 5.17.080. Issuance of pedicab business license required.
Sec. 5.17.090. Operation of pedicab businesses.
Sec. 5.17.100. Safety and equipment regulation for pedicabs.
Sec. 5.17.110. Penalty for not displaying a pedicab business license.
Sec. 5.17.120. Additional reasons for denial.

Sec. 5.17.011. Definitions.

Horse-drawn vehicle means a carriage or trolley powered by being pulled by one or more horses. For purposes of this section, the term will be used interchangeably to refer to both two wheel and four wheel vehicles unless the context clearly indicates otherwise.

Limousine means every motor vehicle, except a taxicab, which was manufactured as having a capacity of nine or more persons but less than 16 persons, including the driver, engaged in the general transportation of persons for compensation and not operated on a regular schedule or over regular routes.

Limousine service means the business of operating one or more limousines.

Operate means driving a for-hire vehicle, using a for-hire vehicle to conduct a business, receiving money from the use of a for-hire vehicle, or causing or allowing another person to do the same.

Operator means the individual who actually operates the vehicle or pedicab whether as the owner, an employee of the owner or as an independent contractor.

Owner means any person who owns, leases, or otherwise has possession of the vehicle or pedicab.

Pedicab means:

(a) A bicycle with three or more wheels, that safely transports or is capable of transporting, passengers on seats attached to the bicycle, which is operated by a person, and which is used for transporting passengers for a fare, fee, gratuity, tip, or acceptance of any type of quid pro quo; or

(b) A bicycle that pulls a trailer, sidecar, or similar device, that safely transports or is capable of transporting, passengers on seats attached to the trailer, sidecar, or similar device, which is operated by a person to transport passenger for a fare, fee, gratuity, tip, or acceptance of any type of quid pro quo.

Pedicab operation means the business of operating one or more pedicabs.

***State law reference—**Licensing and regulation by municipalities of taxicab motor carriers, NRS 268.097.

Taxicab means a motor vehicle designated and constructed to accommodate and transport not more than six passengers, including the driver, which is fitted with taximeters or having some other device, method or system to indicate and determine the passenger fare charged for distance traveled and which is used in the transportation of passengers for a fee. "Taxicab" does not include:

(1) An ambulance.

(2) A vehicle operated in a fixed route operation.

(3) A vehicle operated by an employer for the transportation of his employees, whether or not the employees pay for the transportation.

Taxicab operation means the business of operating one or more taxicabs.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 4941, § 1, 12-8-98; Ord. No. 6298, § 1, 6-19-13)

Sec. 5.17.020. Identification.

Prior to the issuance of each taxicab license under this chapter the licensee shall provide to the city a list of all taxicab license plate numbers issued to it by the state pursuant to NRS 706.486. The numbers listed shall serve as an identifying device for city officials and also shall determine the number of taxicabs licensed to do business within the city.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6298, § 1, 6-19-13)

Sec. 5.17.030. Penalty for unlisted license plate.

Any taxicab observed on the street bearing an unlisted license plate shall subject the licensee to a penalty of 50 percent of the license fee.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.17.040. Horse-drawn vehicles route and operations schedule.

(a) Horse-drawn vehicle businesses shall operate only upon routes and pursuant to schedules approved as provided in this section. The proposed route and operations schedule shall be filed with the city license office and shall contain the following:

(1) A map of the routes on which the vehicles will operate;

(2) A schedule of hours of operation, which shall not include the hours of 6:00 a.m. to 9:00 a.m. or 3:00 p.m. to 6:00 p.m. except on Saturdays, Sundays and city holidays.

(3) The location of the site or sites to be used for off-street storage, stabling and loading of vehicles and horses;

(4) The location of any curbside areas to be designated as "stands" for regular pickup and discharge of passengers, including, in the case of established passenger and material loading zones, written permission of the permit holder to use such zone or zones, or a request for the designation of such a zone by the city.

(b) Route and operation schedules may be rejected on the basis that the route and operation schedule:

(1) is an unsafe or inappropriate use of the public streets;

(2) would present a hazard to the public safety on the public streets; or

(3) is inconsistent with the city's master plan or zoning ordinances.

(c) Any route and operation schedule approval shall be subject to the right of the city manager or designee to prohibit the use of any route at certain times, when such operation would be inconsistent with other special events or public safety requirements, by giving 48 hours notice of such prohibition to the licensee; provided, further, that any operation under this chapter shall be subject to the emergency powers of the city as set forth in RMC section 6.06.240 and section 8.34.060.

(Ord. No. 4941, § 1, 12-8-98; Ord. No. 6298, § 1, 6-19-13)

Sec. 5.17.050. Issuance of horse-drawn vehicle business license.

(a) The city council determines that to prevent disruption of the primary public uses of the city streets by pedestrians and motor vehicles, the number of horse-drawn vehicles permitted in the downtown corridor should be limited. At no time shall the holders of horse-drawn vehicle business licenses be authorized to operate more than six vehicles in aggregate in the downtown corridor, consisting of that area inside the following specified boundaries beginning at the outside curb line of all designated streets:

(1) North boundary:
I80 from North Arlington to Lake Street;

(2) South boundary:
Liberty Street from South Arlington Avenue to Sinclair Street;

(3) West boundary:
Arlington Avenue from I80 to Liberty Street, to include Wingfield Park West and Barbara Bennett Park; and

(4) East boundary:
Lake Street from I80 to Pine, Sinclair from Pine to Liberty Street.

No single licensee shall be authorized to operate more than three vehicles in the downtown corridor.

(Ord. No. 4941, § 1, 12-8-98)

Sec. 5.17.060. Operation of horse-drawn vehicle businesses.

Horse-drawn vehicle businesses shall be operated only in accordance with the following:

(1) A copy of the horse-drawn vehicle license shall be displayed in all vehicles used in such business.

(2) Each vehicle shall be operated by the holder of a valid work card issued by the chief of police or designee in accordance with section 5.05.011, who shall have said work card on his person at all times when operating such vehicle.

(3) When carrying persons for hire or by contract, the vehicle shall be operated only upon the routes and during the hours approved pursuant to section 5.17.050, or in accordance with a special ten-day permit issued pursuant to section 5.17.070.

(4) Rate cards shall be affixed by the owner to the vehicle in a prominent location to advise prospective clients of the rates and fares. Drivers shall also carry rate cards provided by the owner and exhibit them on demand, said cards to bear the name and business address of the license holder and a complete schedule of rates and fares. It shall be

the responsibility of the driver of a horse-drawn vehicle to inform any person hiring the vehicle of all the rates and charges before any service is rendered. Rates posted on the vehicle and rates quoted and charged to clients shall be the same as those on file with the city license office.

(Ord. No. 4941, § 1, 12-8-98; Ord. No. 6298, § 1, 6-19-13)

Sec. 5.17.070. Temporary permits.

The city license office shall, upon the direction of the city manager or designee, issue temporary permits to holders of a valid horse-drawn vehicle business license for operation on other routes for special purposes for periods not to exceed ten days. Any special purpose permit issued will be subject to the payment of an additional fee.

(Ord. No. 4941, § 1, 12-8-98)

Sec. 5.17.080. Issuance of pedicab business license required.

(a) Any pedicab operator or owner engaged in the transportation of passengers for a fare, fee, gratuity, tip, or acceptance of any type of quid pro quo, shall have a valid pedicab license as prescribed in this chapter.

(b) Operators and owners are subject to all applicable laws, rules and regulations of RMC Title 4, RMC Title 6 and the NRS pertaining to the operation of bicycles upon the street, except those provisions that by their very nature have no application.

(Ord. No. 6298, § 1, 6-19-13)

Sec. 5.17.090. Operation of pedicab businesses.

Pedicab businesses shall be operated only in accordance with the following:

(1) Each pedicab shall be operated by the holder of a valid work card issued by the chief of police or designee in accordance with section 5.05.011, and shall have said work card on his person at all times when operating the pedicab.

(2) A copy of the operator's pedicab business license shall be displayed on all pedicabs used in such business.

(3) A maximum occupancy sign as prescribed or recommended by the manufacturer shall be affixed to the pedicab in a prominent location to advise the general public of the maximum number of passengers the pedicab is designed and equipped to safely transport at one time. When carrying passengers for-hire, it shall be unlawful for an operator to exceed the posted pedicab maximum occupancy or the number of available seats.

(4) Pedicab operations shall be subject to the right of the city manager, chief of police, or their designees to prohibit the use of any route at certain times, when such operation would be inconsistent with special events or public safety requirements, by giving 48 hours written notice of such prohibition to the licensee; provided, further, that any operation under this chapter shall be subject to the emergency powers of the city as set forth in RMC section 6.06.240 and section 8.34.060.

(5) Rate cards shall be securely attached to the pedicab in a prominent location clearly visible to all passengers while seated in the pedicab. The required font type shall be "Arial Bold," in a color to produce the maximum contrast with the background,

adequately spaced for maximum readability. The rate card shall be a minimum size of 8½" in width x 6" in height with ½" letters. Drivers shall also carry rate cards and exhibit them on demand, said cards to bear the name and business address of the license holder and a complete schedule of rates and fares. It shall be the responsibility of the operator of a pedicab to inform any person hiring the pedicab of all the rates and charges before any service is rendered.

(6) Every operator and every owner is subject to all applicable parking provisions of RMC and the NRS. Owners and operators are subject to the same rights and responsibilities as a driver of a motor vehicle as it relates to parking violations. Pedicab parking violations will be issued to the owner. Pedicab parking fees will correspond with parking fees established for motor vehicles in RMC.

(7) It shall be unlawful for an operator to leave his pedicab unattended or to park a pedicab at a metered parking space.

(8) It shall be unlawful to permit a pedicab to remain standing upon the street for the purpose of loading and unloading passengers unless the side of said pedicab is as close to the curb or edge of the roadway as possible and in no circumstance more than three feet from the curb or edge of the roadway.

(9) A pedicab owner or operator shall at all times keep in full force and effect an insurance policy naming the pedicab operator as the covered entity responsible for property damage and for personal injury to the passengers. Insurance coverage shall be maintained in an amount not less than $25,000.00 for property damage and not less than $100,000.00 for personal injury. A copy shall be provided to the city risk manager.

(10) A pedicab operator shall comply with the provisions regarding solicitation listed under chapter 8.30 of the RMC.

(Ord. No. 6298, § 1, 6-19-13)

Sec. 5.17.100. Safety and equipment regulation for pedicabs.

Each pedicab shall meet the following safety and equipment requirements:

(1) All passengers shall be seated while the pedicab is in motion.

(2) A pedicab shall not operate on a roadway with a posted speed limit of more than 35 miles per hour.

(3) A pedicab may not be operated or parked on a sidewalk.

(4) A pedicab shall not be parked in any restricted zones identified for other vehicles, including but not limited to parking meter zones, residential permit parking zones, valet parking zones, bus zones, and taxicab zones without the prior written permission of the permit holder.

(5) At any time from one-half hour after sunset to one-half hour before sunrise, and at any other time when, due to insufficient light or unfavorable atmospheric conditions, persons and vehicles on the highway are not clearly discernible at a distance of 500 feet ahead, a pedicab shall be operated with a headlamp of sufficient intensity to reveal a person or a vehicle within 300 feet.

(6) At any time from one-half hour after sunset to one-half hour before sunrise, and at any other time when, due to insufficient light or unfavorable atmospheric conditions,

persons and vehicles on the highway are not clearly discernible at a distance of 500 feet ahead, a pedicab shall be operated with tail lamps capable of being seen from a distance of 500 feet.

(7) A pedicab operator shall wear a reflective vest whenever operating a pedicab. The vest shall meet the American National Standards Institute (ANSI) requirements for class II safety standards. Any deviation of this listed requirement shall be approved by the chief of police or designee.

(Ord. No. 6298, § 1, 6-19-13)

Sec. 5.17.110. Penalty for not displaying a pedicab business license.

Any pedicab observed on the street not displaying a valid pedicab business license shall subject the licensee to penalties as set fourth in RMC section 4.04.140.

(Ord. No. 6298, § 1, 6-19-13)

Sec. 5.17.120. Additional reasons for denial.

In addition to the grounds provided in section 5.05.008 of this title, a pedicab work card may be denied or revoked if the applicant or such work card holder:

(1) Has been convicted of driving under the influence of intoxicating liquor or drugs within the past three years.

(2) Has been involved in and found to be the driver responsible for any accident resulting in the death of or substantial bodily injury to another.

(3) Has a past driving record that shows he is a habitual reckless or negligent driver.

(4) Has failed on at least two occasions to keep his written promise to appear in court for any offense.

(Ord. No. 6298, § 1, 6-19-13)

CHAPTER 5.18. RIGHT-OF-WAY TOLL

Sec. 5.18.010. [Generally.]
Sec. 5.18.020. [Effective; when.]

Sec. 5.18.010. [Generally.]

As provided for in Article 32 of the Cooperative Agreement among the City of Reno, City of Sparks and Washoe County which created the Truckee Meadows Water Authority, the Truckee Meadows Water Authority, its successors and assigns, shall pay a right-of-way toll, to be charged to the water customer, to the City of Reno as follows:

(a) Equal to five percent of the gross receipts derived by it from each water bill of a customer within the City of Reno during each calendar year; said payments shall be made on or before the 15th day of January, the 15th day of April, the 15th day of July and the 15th day of October, and each such payment shall equal five percent of the aforesaid gross revenues obtained by the Truckee Meadows Water Authority, its successors or assigns, during three calendar months immediately next preceding the due date of each such payment; said Truckee Meadows Water Authority, its successors or assigns, shall use in computing said amount the gross revenue as reported by it or them to its certified or registered public accountant; the City Clerk of the City of Reno may at any reasonable time examine the books and records of the Truckee Meadows Water Authority for the purpose of verifying its gross revenue during the term herein.

(b) All funds received from the right-of-way toll shall be placed in the street fund.

(Ord. No. 5254, § 1, 6-26-01; Ord. No. 6115, § 1, 7-15-09; Ord. No. 6233, § 1, 6-13-12)

Sec. 5.18.020. [Effective; when.]

The right-of-way of tolls shall take effect as set forth above.

(Ord. No. 5254, § 2, 6-26-01)

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CHAPTER 5.19. TOBACCO PARAPHERNALIA

Sec. 5.19.010. Findings.
Sec. 5.19.015. Definitions.
Sec. 5.19.020. License requirement and term of license.
Sec. 5.19.030. Juvenile employee.
Sec. 5.19.040. Tobacco paraphernalia sales or display.
Sec. 5.19.060. Penalties

Sec. 5.19.010. Findings.

The Reno City Council finds and declares as follows:

(1) Tobacco use is the foremost preventable cause of premature death in the United States, causing over 400,000 deaths in the United States each year;

(2) Each day, nearly 4,000 children under 18 years of age smoke their first cigarette, and almost 1,500 children under 18 years of age begin smoking daily; more than 75 percent of all current smokers in 2001 began smoking before the age of 18;

(3) Tobacco companies sell products that are addictive and inherently dangerous, causing cancer, heart disease, and other serious illnesses;

(4) The City of Reno has a substantial interest in reducing the number of individuals of all ages who use cigarettes and other tobacco products, and a particular interest in protecting adolescents from tobacco dependence and the illnesses and premature death associated with tobacco use;

(5) An overwhelming majority of Americans who use tobacco products begin using such products while they are adolescents and become addicted to those products before reaching the age of 18;

(6) Tobacco paraphernalia displays lead juveniles to develop favorable beliefs about tobacco use, overestimate the prevalence of tobacco use, and engage in illegal purchases of tobacco products or paraphernalia;

(7) The display of tobacco paraphernalia plays a crucial role in the decision of individuals, and adolescents in particular, to begin using tobacco products;

(8) The World Health Organization has endorsed a ban on retail tobacco product displays as an effective method of reducing tobacco use;

(9) Research suggests that preventing the display of tobacco products will lead to a significant decrease in the number of adolescents becoming addicted to those tobacco products and will assist individuals in their efforts to quit smoking;

(10) The Center for Disease Control recognizes that a comprehensive, multi-faceted approach is necessary to adequately address the issue of youth tobacco use;

(11) Due to federal preemption, the City of Reno lacked the legal authority to limit the display of tobacco products prior to the enactment of the Family Smoking Prevention and Tobacco Control Act of 2009;

(12) 3,430 deaths in Nevada were attributable to smoking-related diseases;

(13) $3.57 billion was estimated total annual economic impact of smoking in Nevada;

(14) The 2009 Nevada Youth Risk Behavior Survey identified 17 percent of all high school students smoked at least one cigarette in the previous 30 days;

(15) It is estimated that in 2010, 18.7 percent of deaths in age 35+ in Nevada are attributed to smoking.

(16) In 2010, there were 433 deaths caused by exposure to secondhand smoke in the State of Nevada;

(17) Preventing the display of tobacco products or paraphernalia will reduce the number of adolescents who use tobacco products, while still affording tobacco companies numerous ways to communicate product information and provide other advertising to their legal adult customers;

(18) Reno City Council desires to reduce adolescent smoking and the public health consequences of smoking without prohibiting the sale of tobacco paraphernalia to adult consumers;

(19) The purpose of this legislation is to further the strong governmental interest in protecting the health of its citizens, and particularly its children, by restricting sales to juveniles and the display of tobacco paraphernalia in retail environments that are open to children; and

(20) This measure does not restrict expressive conduct any more than necessary and will leave tobacco companies with reasonable and adequate ways to communicate non-misleading commercial information to their legal adult customers.

(Ord. No. 6268, § 1, 11-7-12)

Sec. 5.19.015. Definitions.

As used in this chapter, the following terms shall have the meanings indicated:

Adults only establishment means a facility where the operator ensures or has a reasonable basis to believe (such as by checking the identification of any person appearing to be under the age of 25) that no person under the age of 18 is permitted entrance unless accompanied by an adult.

Clerk means any person employed to work the cash register and/or have control of the daily functions in a business.

Juvenile means any person less than 18 years of age.

Sell, sales or sold means to sell, offer to sell, exchange, or offer to exchange for any form of consideration.

Tobacco paraphernalia means cigarette papers or wrappers, pipes, holders of smoking materials of all types, cigarette rolling machines, and any other item designed for the smoking, preparation, storing or consumption of tobacco products.

Tobacco product means any substance containing tobacco leaf, including but not limited to cigarettes, cigars, pipe tobacco, hookah tobacco, snuff, chewing tobacco, dipping tobacco, bidis, or any other preparation of tobacco; and any product or formulation of matter containing biologically active amounts of nicotine that is manufactured, sold, offered for sale, or otherwise distributed with the expectation that the product or matter will be introduced into the human body, but does not include any cessation product specifically approved by the United States Food and Drug Administration for use in treating nicotine or tobacco dependence.

Tobacco paraphernalia retail business means any business location where tobacco paraphernalia are sold, without regard to the quantity of tobacco paraphernalia involved.

Tobacco paraphernalia retail clerk means any person employed at a tobacco paraphernalia retail business that stocks, handles, or sells tobacco paraphernalia at the tobacco paraphernalia retail business.

(Ord. No. 6268, § 1, 11-7-12)

Sec. 5.19.020. License requirement and term of license.

Every person engaged in, or proposing to engage in, the tobacco paraphernalia retail business in the city shall obtain an annual business license and a privileged license for such sales.

It shall be unlawful for any person to engage in the tobacco paraphernalia retail business in the city without the person, or an authorized representative of the person, first obtaining and maintaining a valid privilege license for the sale of tobacco paraphernalia pursuant to this chapter for each location where that activity is to occur.

(Ord. No. 6268, § 1, 11-7-12)

Sec. 5.19.030. Juvenile employee.

It shall be unlawful for any business licensed under this chapter to employ a juvenile as a tobacco paraphernalia retail clerk or to allow a juvenile employee to sell or remain in close proximity to tobacco paraphernalia.

(Ord. No. 6268, § 1, 11-7-12)

Sec. 5.19.040. Tobacco paraphernalia sales or display.

(a) Tobacco paraphernalia shall not be sold to any juvenile.

(b) Tobacco paraphernalia that is kept, displayed, sold, or delivered, must be stored or kept in a designated part of the licensed business premises that is not open to view by juveniles or to which juveniles do not have access. Each entrance to such part of the premises shall have a sign clearly posted in letters not less than three inches tall, which shall state: No juveniles allowed unless accompanied by a parent or legal guardian. Such designated area and signage shall be approved by the chief of police or his designee as part of the privilege license approval process.

(c) No owner, manager, proprietor, clerk, or other person in charge of any place of business selling or displaying for the purpose of sale, any tobacco paraphernalia shall allow or permit any juvenile to be, remain in, enter, visit, or view the designated area used for such sale or display unless the juvenile is accompanied by his or her parent or a legal guardian.

(d) Adults only establishments are not subject to the requirements set forth in subsection (b) in this section.

(Ord. No. 6268, § 1, 11-7-12)

Sec. 5.19.060. Penalties

(a) CIVIL:

Any violation of the requirements of this chapter shall be deemed a public nuisance per se and subject to the penalties in RMC Chapter 1.05, and the rules and regulations provided in RMC Chapter 8.22, or the provisions of RMC Section 4.04.150.

(b) CRIMINAL:

Any violation of any of the provisions of this chapter shall be a misdemeanor and shall be punishable by a fine of not more than $1,000.00 and/or by imprisonment in a county jail for not more than six months.

(Ord. No. 6268, § 1, 11-7-12)

CHAPTER 5.20. MOTION PICTURE AND TELEVISION PRODUCTION

Sec. 5.20.010. Definitions.
Sec. 5.20.020. Motion picture and television production.
Sec. 5.20.030. Permit required.
Sec. 5.20.040. Exceptions to film permit.
Sec. 5.20.050. Application for film permit.
Sec. 5.20.060. Conditions precedent to permit issuance.
Sec. 5.20.070. Insurance requirements.
Sec. 5.20.080. Investigation; issuance of permit.
Sec. 5.20.090. Transfer.
Sec. 5.20.100. Expiration.
Sec. 5.20.110. Unforeseen intervening events.
Sec. 5.20.120. Suspension or revocation of permit.
Sec. 5.20.130. Appeal.
Sec. 5.20.140. Penalty.
Sec. 5.20.150. Severability.

Sec. 5.20.010. Definitions.

(a) *City* means the City of Reno, a municipal corporation of the State of Nevada.

(b) *City council* or *council* means the present governing body of the city or any future council constituting the legislative body of the city.

(c) *City manager* means the city manager, or his or her designee.

(d) *Chief of police* means the city's chief of police, or his or her designee.

(e) *Film permit* means a permit issued under this chapter.

(f) *Fire chief* means the city's fire chief, or his or her designee.

(g) *News purposes* means the filming or videotaping for television news broadcasting by reporters and cameramen in the employ of a news service or similar entity, of news events concerning those persons, scenes or occurrences which are in the news.

(h) *Risk manager* means the city's risk manager, or his or her designee.

(i) *Permittee* means a person who holds a film permit issued under this chapter.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.020. Motion picture and television production.

It is the policy of the city to permit and encourage the motion picture and television production industry to use city locations and backdrops, services and crew members. Furthermore, it is the policy of the city to ensure that filming or videotaping does not unreasonably interfere with public health, safety or welfare or unreasonably endanger any property. It is further intended that this chapter be construed as consistent with the evolving technology of motion picture and television filming and production.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.030. Permit required.

It shall be unlawful for any person to engage in the activity of filming, videotaping or producing motion pictures on motion picture film, electronic videotape or on any other means of image reproduction now known or hereafter devised for public exhibition as motion pictures or for television, at any place, public or private, within the city without having obtained a filming permit from the city in accordance with the provisions of this chapter.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.040. Exceptions to film permit.

(a) The following activities are exempt from the film permit requirement:

- **(1)** The filming or videotaping of motion pictures solely for nonpublic broadcast or family use;
- **(2)** The filming or videotaping of motion pictures for use in a criminal investigation or civil proceedings;
- **(3)** The filming, videotaping or production of motion pictures for news purposes; and,
- **(4)** Activities at or in a motion picture or television production facility permanently located within the city that pays a general business license fee pursuant to title 4.

(b) Although not required to obtain a film permit, any person engaged in any activity listed in subsection (a)(1)—(4) is required to comply with general regulations governing public safety and health.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.050. Application for film permit.

Any person desiring a film permit pursuant to this chapter shall file an application with the city manager or designee.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.060. Conditions precedent to permit issuance.

(a) For the protection of the public health, safety, welfare and property of local residents and persons, the city may require one or more of the following conditions on a film permit:

- **(1)** Adequate crowd control;
- **(2)** A minimum number of law enforcement officers employed at the permittee's expense;
- **(3)** Adequate toilet facilities;
- **(4)** Adequate communication system;
- **(5)** Adequate traffic access and circulation plan;
- **(6)** Adequate fire protection at the permittee's expense;
- **(7)** Adequate medical facilities, including doctors and supplies; and,
- **(8)** Other conditions determined by the city to be necessary to protect the health, welfare, and property of local residents and persons attending the assembly.

(b) Issuance of a film permit under this chapter does not obligate or require the city manager to provide city services, equipment or personnel. The city manager shall charge for the actual cost of:

(1) The salaries of city personnel involved in traffic control, fire safety or other facility or production support; and

(2) The use of city equipment and other non-personnel expense.

(c) The city manager shall require payment of fees required pursuant to subsection (b), or a reasonable estimate thereof, at the time the completed application is approved, unless the city manager for good cause extends time for payment.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.070. Insurance requirements.

(a) It shall be a condition of the issuance and continued validity of any film permit granted pursuant to this chapter that the permittee first obtain, pay for and maintain a policy of general liability insurance approved as to form by the city manager which shall insure the city, its officers and employees against any liability, or claims of liability, brought or made by or on behalf of any person for personal injury or property damage caused by or arising out of any negligent act or omission of either the permittee, his agents or employees, including any officers or employees of the city, or caused by or arising out of the condition of any city-owned or controlled property, whether real or personal, and occurring during the period and as a result of the activities for which such film permit was issued. The amount of coverage to be provided by such policy shall not be less than $1,000,000.00 combined single limit. The permittee may satisfy the requirement imposed by this section through the presentation of a certificate of insurance, for at least the required amount of coverage, which indicates that, by endorsement thereto, the city, its officers and employees have been added as additional insureds. Such certificate shall additionally provide that the required insurance will not be modified, changed or terminated without written notice delivered to the city manager. If law enforcement personnel are hired to perform security duties, the endorsement must indicate coverage for same.

(b) It shall be a condition of the issuance of any film permit granted pursuant to this chapter that the permittee shall agree to indemnify, defend and hold the city, its officers, employees, and agents harmless from all claims and liabilities of any kind whatsoever, resulting from or arising out of the issuance or denial of such film permit.

(c) It may be a condition of the issuance of any film permit sought pursuant to the provisions of this chapter, if the city deems it in its best interest, that the permittee be required to take out, pay for, and maintain fidelity bonds in such amounts as the city may deem appropriate under the circumstances. Such documents must be submitted for review, and approved as to form by the city attorney, before the film permit is issued.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.080. Investigation; issuance of permit.

(a) Upon receipt of completed application, city manager or designee shall transmit the application to the appropriate city personnel including, but not limited to, the chief of police, the fire chief, the risk manager and other applicable departments for investigation and report. If the city manager is satisfied that the arrangements made by the applicant as set

forth in the application provide a reasonable assurance that filming will not unreasonably interfere with the public health, safety or welfare or unreasonably endanger any property, he or she shall authorize the business license office to issue a film permit to engage in the activity of filming, videotaping or producing motion pictures in accordance with the applicable provisions of this chapter.

(b) The city manager may deny issuance of a film permit based on any of the following:

(1) The applicant fails to meet any condition imposed pursuant to the provisions of this chapter.

(2) The proposed filming will be held in a manner or location not meeting the health, zoning, fire or building and safety standards established by the ordinances of the city or the laws of the State of Nevada.

(3) The applicant has knowingly made a false, misleading or fraudulent statement of material fact in the application for a permit.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.090. Transfer.

A permit issued to any person pursuant to the provisions of this chapter shall not be transferred to any other person nor apply to any other location(s) than that specified in the permit application without the written consent of the city manager. Failure to comply with this section shall constitute good cause to revoke or suspend the permit.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.100. Expiration.

Unless otherwise provided in this chapter, every permit issued pursuant to the provisions of this chapter shall expire on the date specified in the application as the date on which the activity will conclude.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.110. Unforeseen intervening events.

An unforeseen intervening event shall constitute reasonable grounds to reschedule the activity for which the permit was originally issued, if in the sole discretion of the city manager the following conditions are met:

(1) The intervening event was due to circumstances beyond the Permittee's reasonable control and was not reasonably foreseeable;

(2) The intervening event causes the permitted activity to be unreasonably difficult or physically infeasible;

(3) The city was promptly given actual written notice that the activity must be postponed; such notice shall include a written statement detailing the nature of the event and why the occurrence of said events mandates postponement; and,

(4) The permittee provides the city manager with alternate time(s) and date(s) for rescheduling the activity, and he/she approves the rescheduling.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.120. Suspension or revocation of permit.

(a) Any film permit issued pursuant to this chapter is subject to suspension or revocation pursuant to this section.

(b) A film permit may be suspended or revoked if the city manager or designee determines:

(1) That the filming cannot be conducted without violating the standards or conditions for film permit issuance, or any provision of this chapter; or,

(2) The filming is being conducted in violation of any condition of the film permit; or

(3) The filming poses a threat to public health, safety, welfare or property; or

(4) The film permit was issued in error or contrary to law.

(c) Except as provided in subsection (d), notices of suspension or revocation shall be in writing and shall specifically set forth the reasons for the revocation.

(d) If there is an emergency requiring immediate suspension or revocation of a film permit, the city manager may notify the permit holder verbally of the revocation.

(e) A suspension or revocation may be appealed in accordance with section 5.20.130.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.130. Appeal.

Upon the denial, suspension or revocation of a permit under this chapter, the applicant is prohibited from conducting filming, videotaping or producing motion pictures within the city until such time as an appeal has been heard and the denial has been reversed as provided herein. Any person aggrieved by the action of the city in the denial of an application for a film permit shall have the right of appeal to the administrative hearing officer. Such appeal shall be taken by filing with the administrative hearing officer at the city clerk's office within ten business days after notice of the denial has been mailed to such person's last known address, a written statement setting forth fully the grounds for the appeal. The administrative hearing officer shall set the matter for hearing within ten business days and cause notice of the time and place to be given to the applicant. Notice shall be given to the applicant no less than five business days prior to the date of such hearing. The hearing shall be conducted in the manner set forth in RMC § 4.04.170. The decision and order of the administrative hearing officer shall be final and conclusive. Both the city and the applicant shall have the right to appeal the decision of the administrative hearing officer to municipal court, unless appeal to another tribunal is required by law. Any appeal from the hearing officer's decision must be taken within 30 calendar days after notice of the final decision.

(Ord. No. 5601, § 2, 9-22-04; Ord. No. 6558, § 1, 3-25-20)

Sec. 5.20.140. Penalty.

Any person who violates any provision of this chapter shall be deemed guilty of a misdemeanor. Upon conviction, such person shall be punished by a fine of not to exceed $500.00 or by imprisonment for a period not to exceed six months, or by both such fine and imprisonment. In the event that any provisions of this chapter are violated by a firm or corporation, the officer or officers, or the person or persons responsible for the violation shall be subject to the penalty herein provided.

(Ord. No. 5601, § 2, 9-22-04)

Sec. 5.20.150. Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase of this chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this chapter or any part thereof. The city council hereby declares that it would have passed each section, subsection, subdivision, paragraph, sentence, clause, or phrase thereof irrespective of the fact that any one or more section, subsections, subdivisions, paragraphs, sentences, clauses or phrases be declared unconstitutional or invalid or ineffective.

(Ord. No. 5601, § 2, 9-22-04)

CHAPTER 5.21. RESERVED*

*__Editor's note—__Ord. No. 6622, § 1, adopted March 9, 2022, repealed ch. 5.21, §§ 5.21.005—5.21.076, which pertained to medical marijuana establishments and derived from Ord. No. 6341, § 3, 8-20-14, eff. 8-22-14; Ord. No. 6383, § 1, 12-16-15, eff. 12-18-15; Ord. No. 6431, §§ 1, 2, 6-7-17, eff. 6-9-17; Ord. No. 6383, § 1, 12-16-15, eff. 12-18-15; Ord. No. 6449, § 1, 2-14-18; Ord. No. 6467, § 2, 6-6-18. Said ordinance consolidated ch. 5.21 into ch. 5.22, to be entitled medical and adult-use cannabis establishments, as set out in ch. 5.22.

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CHAPTER 5.22. MEDICAL AND ADULT-USE CANNABIS ESTABLISHMENTS

Sec. 5.22.005. Findings.
Sec. 5.22.006. Purpose and short title.
Sec. 5.22.010. Definitions.
Sec. 5.22.011. Unlawful acts.
Sec. 5.22.012. Application and fee requirements.
Sec. 5.22.013. Council action on license.
Sec. 5.22.015. Renewal of business license.
Sec. 5.22.017. Ownership changes.
Sec. 5.22.020. Time, place and manner restrictions.
Sec. 5.22.025. Change of state approved location.
Sec. 5.22.030. Reserved.
Sec. 5.22.050. Access to establishment without warrant.
Sec. 5.22.060. Immediate revocation of business license, without hearing.
Sec. 5.22.065. Action upon suspension, revocation or closure.
Sec. 5.22.070. No city liability, indemnification.
Sec. 5.22.075. Restriction on city employees.
Sec. 5.22.076. Confidential information.
Sec. 5.22.077. Reserved.

Sec. 5.22.005. Findings.

Footnote: The following findings regarding medical cannabis establishments and adult-use cannabis establishments were made in 2014 and 2018 respectively. Subsequently, the Nevada Legislature modified governing law, definitions, and terminology relating to said establishments; therefore, portions of these findings were amended to reflect current information. Additionally, the 2019 Nevada Legislature enacted Assembly Bill 533 which created the Cannabis Compliance Board and transferred the responsibility of cannabis establishment licensure and regulation from the Department of Taxation to the Cannabis Compliance Board.

With regard to medical cannabis establishments, the Reno City Council finds and declares as follows:

(1) The Constitution of the State of Nevada Article 4, Section 38 directs the State of Nevada legislature to provide for, among other things, the authorization of appropriate methods to supply cannabis to patients authorized to use it for medical purposes. The 2013 Nevada Legislature enacted Senate Bill 374 (Chapter 457, Statutes of Nevada 2013) significantly amending NRS Chapters 372A (Tax on Controlled Substances) and Chapter 453A (Medical Use of Cannabis) to provide for exemption from criminal prosecution and the certification, taxation and regulation of medical

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Editor's note—Ord. No. 6622, § 1, adopted March 9, 2022, amended ch. 5.22 in its entirety to read as herein set out. Former ch. 5.22, §§ 5.22.005—5.22.077, pertained to marijuana establishments, and derived from Ord. No. 6467, § 3, adopted June 6, 2018. Former ch. 5.21, §§ 5.21.005—5.21.076, entitled medical marijuana establishments, was consolidated into amended ch. 22, as herein set out.

cannabis establishments, which include dispensaries, cultivation facilities, testing laboratories and production facilities of edible cannabis products by the Nevada Division of Public and Behavioral Health of the Department of Health and Human Services (the division). The 2017 Nevada Legislature enacted Senate Bill 487 and Assembly Bill 422 which transferred the responsibility for the regulation of medical cannabis establishments to the Nevada Department of Taxation (the department); and

(2) NRS provides that the department shall issue up to 13 registration certificates to operate medical cannabis dispensaries in the various local jurisdictions within Washoe County and shall further determine the appropriate number of other types of medical cannabis establishments and issue registration certificates to operate within the local jurisdictions in Washoe County. The City currently has four medical cannabis dispensaries; and

(3) NRS provides that if a local jurisdiction issues business licenses, the registration certificate issued by the department is deemed to be provisional until a business license is issued and the medical cannabis establishment is in compliance with all applicable rules and ordinances of the local jurisdiction; and

(4) To the extent that medical cannabis establishments are registered and authorized by the State of Nevada to operate in the corporate limits of the City, this city council desires to provide for their licensing and regulation to protect the public health, safety and general welfare of the citizens of the City and to regulate the use of buildings, structures, land use and business and other purposes; and

(5) Since the use, cultivation, distribution, production, possession and transportation of cannabis remains illegal under federal law, and cannabis remains classified as a Class I controlled substance by both Nevada and federal law, those involved with medical cannabis establishments may still be prosecuted under the Federal Controlled Substance Act ("CSA") regardless of whether the medical cannabis establishment is in compliance with state law or has received a license to operate a medical cannabis establishment in the City. The enforcement of the CSA is left to federal prosecutors who decide which cases to prosecute when weighing all relevant considerations, including federal law enforcement priorities set by the Attorney General. Previous nationwide guidance to federal prosecutors specific to cannabis enforcement was rescinded by Attorney General Jefferson B. Session's Memorandum dated January 4, 2018. This chapter is intended to implement NRS and to establish criteria for the issuance of licenses that are a prerequisite for the exemption from state prosecution provided for in NRS. A license issued pursuant to this chapter does not provide any exception, defense or immunity to any person in regard to any potential criminal liability the person may have for the possession, use, consumption, purchase, transportation or cultivation of cannabis under federal law. The city council does not have the authority to, and nothing in this chapter is intended to, authorize, promote, condone or aid the possession, use, consumption, purchase, transportation or cultivation of cannabis in violation of any applicable law, including, without limitation, the CSA; and

(6) The city council declares that this chapter is an exercise of the regulatory powers delegated to the city council pursuant to the city charter and NRS 268. The regulations contained in this chapter involve, to the highest degree, the economic,

social, physical and moral well-being of the residents and taxpayers of the City. The cultivation, distribution, production and sale of medical cannabis is not a matter of right but of privilege which would otherwise be unlawful under state law if it were not conducted pursuant to NRS, local land use regulations and a license under this chapter. Nothing in this chapter shall be construed to confer any claim of entitlement to any benefit which might otherwise devolve upon any licensee. This privilege may be denied, revoked, conditioned, suspended or subjected to any other disciplinary action by the City in the exercise of its police powers for the protection of the safety, welfare, health, peace and morals of the residents and taxpayers thereof. Medical cannabis establishments shall cooperate with the City and each of its departments in the exercise of their duties under this chapter.

With regard to adult-use cannabis establishments, the Reno City Council finds and declares as follows:

(1) On November 8, 2016, statewide ballot question number 2 (question 2) was passed by Nevada voters, legalizing the recreational use of cannabis by individuals aged 21 or over. Question 2 was codified NRS which exempts a person who is 21 years of age or older from state or local prosecution for possession, use, consumption, purchase, transportation or cultivation of certain amounts of adult-use cannabis.

(2) NRS provides that the department and/or Board shall issue up to 20 licenses to operate adult-use cannabis retail stores in the various local jurisdictions within Washoe County. The department's regulations allocate adult-use cannabis retail stores by population, and up to ten of adult-use cannabis retail stores may be allocated to the City; and

(3) To the extent that adult-use cannabis establishments are licensed by the department and/or Board to operate in the corporate limits of the City, this City council desires to provide for their licensing and regulation to protect the public health, safety and general welfare of the citizens of the City and to regulate the use of buildings, structures, land use and business and other purposes; and

(4) Since the use, cultivation, distribution, production, possession and transportation of cannabis remains illegal under federal law, and cannabis remains classified as a Class I controlled substance by both Nevada and federal law, those involved with adult-use cannabis establishments may still be prosecuted under the Federal Controlled Substance Act ("CSA") regardless of whether the adult-use cannabis establishment is in compliance with state law or has received a license to operate an adult-use cannabis establishment in the City. The enforcement of the CSA is left to federal prosecutors who decide which cases to prosecute when weighing all relevant considerations, including federal law enforcement priorities set by the attorney general. Previous nationwide guidance to federal prosecutors specific to cannabis enforcement was rescinded by Attorney General Jefferson B. Session's Memorandum dated January 4, 2018. A license issued pursuant to this chapter does not provide any exception, defense or immunity to any person in regard to any potential criminal liability the person may have for possession, use, consumption, purchase, transportation or cultivation of cannabis under federal law. The city council does not have the authority to, and nothing in this chapter is intended to, authorize, promote, condone or aid the possession, use, consumption, purchase, transportation or cultivation of cannabis in violation of any applicable law, including, without limitation, the CSA; and

(5) The city council declares that this chapter is an exercise of the regulatory powers delegated to the city council pursuant to the city charter and NRS Chapter 268. The regulations contained in this chapter involve, to the highest degree, the economic, social, physical and moral well-being of the residents and taxpayers of the City. The possession, use, consumption, purchase, transportation, cultivation, and sale of adult-use cannabis is not a matter of right but of privilege which would otherwise be unlawful under state law if it were not conducted pursuant to NRS, local land use regulations and a license under this chapter. Nothing in this chapter shall be construed to confer any claim of entitlement to any benefit which might otherwise devolve upon any licensee. This privilege may be denied, revoked, conditioned, suspended or subjected to any other disciplinary action by the City in the exercise of its police powers for the protection of the safety, welfare, health, peace and morals of the residents and taxpayers thereof. Adult-use cannabis establishments shall cooperate with the City and each of its departments in the exercise of their duties under this chapter.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.006. Purpose and short title.

This chapter establishes the minimum procedural requirements for business licenses issued by the City, and shall be known as the Medical and Adult-use Cannabis Code. Nothing in this chapter shall be deemed or construed to exempt any organization from complying with the provisions of any other ordinance of the City, including but not limited to permit requirements, zoning requirements, nuisance ordinances and restrictions on privileged or illegal activities.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.010. Definitions.

Unless the context requires otherwise, the scope of all words in this chapter shall be liberally construed in order to effectuate the purpose of this chapter, and, in particular, the following words shall have the meaning ascribed to them unless a different meaning clearly appears in the context. Any word or term not defined in this section shall have the definition ascribed to it in NRS Title 56 or the regulations, which at the time of this ordinance were as set forth below. In the event the definitions in NRS Title 56 or the regulations are revised, the definitions below shall be deemed to be amended to match the definitions in NRS Title 56 or the regulations. Any term not defined herein which is defined in NRS Title 56 or the regulations shall have the same meaning ascribed to such term in NRS Title 56 or the regulations.

Board means the Cannabis Compliance Board.

City means the City of Reno.

Community facility means a facility licensed to provide day care to children, a public park, a public playground, a public swimming pool, a licensed center or facility the primary purpose of which is to provide recreational opportunities or services to children or adolescents, or a licensed church, synagogue, or other building, structure, or place used for religious worship or other religious purpose.

Consumer means a person who is 21 years of age or older who purchases medical or adult-use cannabis or medical or adult-use cannabis products for use by persons 21 years of age or older, but not for resale to others.

Department means the Nevada Department of Taxation.

License division means the City of Reno Business License Division.

NRS Title 56 refers to Nevada Revised Statutes Title 56 - Regulation of Cannabis and all chapters thereunder.

Premises mean any and all places connected with and accessible to the licensed business.

Regulations mean the Nevada Cannabis Compliance Regulations ("NCCR") adopted by the Cannabis Compliance Board pursuant to NRS Title 56, and any subsequent amendments or supplements thereto.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.011. Unlawful acts.

In addition to the unlawful acts set forth in NRS Title 56 for the regulation of medical and adult-use cannabis, it is unlawful to: operate any medical or adult-use cannabis establishment in the City in violation of the provisions of NRS Title 56, the regulations, and/or the Reno Municipal Code.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.012. Application and fee requirements.

(a) Following issuance of a conditional medical or adult-use cannabis establishment license issued by the Board pursuant to NRS Title 56, the City will evaluate whether to grant any proposed medical or adult-use cannabis establishment a business license pursuant to Title 4 and 5 after the applicant has provided all documents required by this chapter and city staff, has agreed to all conditions of the license required by the City, if any, has paid all applicable fees, and an initial nonrefundable application fee as set forth in the adopted fee schedule which application fee does not exceed any similar fee imposed on a business pursuant to NRS Chapter 268 and 369. The City is authorized to grant licenses to only those establishments that have received conditional approval from the Board.

(b) There are five adult-use cannabis establishment business license categories:

(1) Adult-use cannabis independent testing laboratory;

(2) Adult-use cannabis cultivation facility;

(3) Adult-use cannabis production facility;

(4) Adult-use cannabis retail store; and

(5) Adult-use cannabis distributor.

A separate application and license is required for each adult-use cannabis establishment license a person holds and seeks to operate within the City. A person operating more than one type of adult-use cannabis establishment must apply for and receive a separate license for each type of adult-use cannabis establishment he seeks to operate within the City.

(c) There are four medical cannabis establishment business license categories:

(1) Medical cannabis independent testing laboratory;

(2) Medical cannabis cultivation facility;

(3) Medical cannabis production facility; and

(4) Medical cannabis retail store.

A separate application and license is required for each medical cannabis establishment license a person holds and seeks to operate within the City. A person operating more than one type of medical cannabis establishment must apply for and receive a separate license for each type of medical cannabis establishment he seeks to operate within the City.

(d) The City may impose and collect for revenues or for regulation, or both, a license tax on a medical or adult-use cannabis establishment as a flat fee, percentage of the gross revenue of the medical or adult-use cannabis establishment, or a combination of a flat fee and a percentage of gross revenue. The license tax and fees for medical and adult-use cannabis establishments may not exceed the limits set forth in NRS Chapter 268. If a license tax is collected in whole, or in part, on a percentage of the gross revenue of the medical or adult-use cannabis establishment, the gross revenue of the medical or adult-use cannabis establishment shall be determined by using the same method the department uses to calculate the sales price of the medical or adult-use cannabis for purposes of excise taxes due to the state under the regulations and NRS Chapters 372A and Title 56. The medical or adult-use cannabis establishment shall provide to the City all information the establishment provided to the Board, as required by the regulations and NRS Chapters 372A and Title 56, to determine the gross revenue of the establishment, and grants the City the same powers as granted to the department pursuant to the regulations and NRS Chapters 372A and Title 56. The tax imposed is separate from and in addition to any general sales and use taxes that apply to retail sales of tangible personal property.

(e) The license requirement set forth in this chapter shall be in addition to, and not in lieu of, any other licensing and permitting requirements imposed by any other law, code or ordinance. In addition, each application for a medical or adult-use cannabis establishment business license shall contain:

(1) A complete and accurate copy of the application and all accompanying documents filed with the Board pursuant to NRS Title 56 including, but not limited to all information required to be produced to the Board as required by the regulations.

(2) A copy of the conditional license issued by the Board for each medical or adult-use cannabis establishment.

(3) A site plan with the following:

a. Name of the medical or adult-use cannabis establishment.

b. Site address and assessor's parcel number.

c. The city regulatory zone for the parcel.

d. Proof of compliance, at the time of application for the business license with all spacing requirements set forth in RMC Title 18 and NRS shall be provided by a State of Nevada licensed surveyor. All required spacing criteria shall be measured in a straight line from the front door of the medical or adult-use cannabis establishment to the closest parcel line, as shown on the Washoe County Assessor's records.

e. Elevation drawings or photographs of the proposed building which demonstrate that the building is consistent with the traditional style of pharmacies and medical offices in the City.

f. A detailed rendering of proposed signage. In addition, the applicant shall provide evidence that the Board has approved the name, logo, sign(s) and advertisement(s) of the medical or adult-use cannabis establishment as required by NRS Title 56 and the regulations.

(4) A deed showing the applicant is the owner of the property where the medical or adult-use cannabis establishment will be operated. If the applicant is not the owner of the property where the establishment will be operated, a copy of the lease, rental agreement, license or authorization letter from the property owner acknowledging and giving permission for the proposed use of the property as a medical or adult-use cannabis establishment and acknowledgement that the property owner is aware that the use, cultivation, distribution, production, possession and transportation of medical or adult-use cannabis remains illegal under the CSA.

(5) A security plan, including a depiction of the location and configuration of security cameras, indicating how the security plan complies with the requirements related to monitoring and securing the licensed premises as required by NRS Title 56 and the regulations.

(6) Plans for the disposal of waste must be submitted to the Washoe County Health District for approval and an industrial waste permit obtained from the Washoe County Health District prior to the license division issuing any medical or adult-use cannabis establishment license pursuant to this section.

(7) If applicable, a copy of the conditions of approval the applicant has executed with the City, which terms will be a condition of any license issued, and may include, by way of example, and without limitation:

a. A limitation of the products and services to be produced or sold by the medical or adult-use cannabis establishment.

b. Hours of operation.

c. Accounting requirements that includes how sales and inventory will be tracked on a daily, weekly and monthly basis and how this information will be stored and safeguarded.

d. Restrictions on signs and advertisements including all proposed exterior and interior signage.

e. An acknowledgment that the applicant, and the owner of the property upon which the medical or adult-use cannabis establishment is located, understands applicable federal laws, any guidance or directives issued by the U.S. Department of Justice, the laws of the State of Nevada and the laws and regulations of the City applicable thereto concerning the operation of a medical or adult-use cannabis establishment. The written statement shall also acknowledge that any violation of any laws or regulations of the State of Nevada or of the City, or any activity in violation of any guidance or directives issued by the U.S. Department of Justice, in such place of business, or in connection therewith, or the commencement of any legal proceeding relating to such establishment by federal authorities, may render the permit and such license subject to immediate suspension or revocation.

f. A condition that the licensee, and its owners, managers, agents, employees and affiliates jointly and severally agree to indemnify, defend and hold harmless the

City, and any of its elected or appointed officers, agents, employees or attorneys from any and all claims, demands, actions, damages, decrees, judgments, attorney fees, costs and expenses which may be asserted against the City, or such elected or appointed officers, employees or attorneys arising out of or in any manner connected with the medical or adult-use cannabis establishment that is subject of the license, including, without limitation, any injury, loss or damage, including claims arising from bodily injury, personal injury, sickness, disease, death, property loss of damage or any other loss of any kind whatsoever arising there from. The licensee's duty to defend and indemnify the City hereunder shall apply regardless of the City's active or passive fault. The licensee's duty to defend the City is absolute and shall arise as soon as any demand or claim is asserted against the City and is not conditioned upon a finding of fault of the licensee. The City is entitled to choose the attorney assigned to defend against the claims and the licensee shall immediately pay all defense fees and costs charged by the attorney selected by the City.

g. The City may require the licensee to obtain a surety bond, in the minimum amount of five hundred thousand dollars ($500,000.00), at his own expense, for the benefit of the City and the applicant's defense and indemnity obligations, and remain in force throughout the term of the license and three years following expiration or termination of the license.

h. The licensee shall provide and maintain at all times and at its own expense a certificate of insurance at amounts and terms approved by the license division prior to issuance or renewal of a license. The minimum amount which may be required by the license division shall be one million dollars ($1,000,000.00) per occurrence, two million dollars ($2,000,000.00) general aggregate for bodily injury and property damage arising out of licensed activities and one million dollars ($1,000,000.00) products and completed operations aggregate, commercial automobile coverage in a minimum of one million dollars ($1,000,000.00) for any vehicles used in connection with the medical or adult-use cannabis establishment, and excess liability in a minimum of three million dollars ($3,000,000.00). The City shall be named as an additional insured on all general liability, umbrella, and excess insurance policies as City, its elected officials, officers, agents, employees and volunteers are included as additional insured. All policies shall be primary over any other valid and collectible insurance. If a licensee is unable to secure insurance coverage, this provision may be modified or waived by the City in its discretion.

i. Other conditions the City may require, in its sole and absolute discretion, as conditions to the license to protect the public health, safety and general welfare of the citizens of the City and to regulate the use of buildings, structures, land use, business and other purposes.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.013. Council action on license.

(a) The city council may, in its discretion, approve, deny, condition, limit, or take such other action with respect to the applications for medical or adult-use cannabis establishment licenses as it considers appropriate. All licenses issued will expire as assigned per the adopted fee schedule.

(b) The city council may deny any application if it determines in its sole and absolute discretion that granting the privilege license will not be in the best interest of the welfare, health, or safety of the City; or if the applicant or location of the medical or adult-use cannabis establishment is determined by the council to not be suitable. In considering whether to approve or deny a medical or adult-use cannabis, the city council may consider, by way of example and without limitation, the factors set forth in the regulations as it applies to the City, the background of the applicant, capitalization, past business practices of the applicant, operational plan, organizational structure, environmental sustainability and mitigation plans, location of the proposed establishment, odor control systems and suitability of the building for the use proposed, site plan as to parking, traffic movement and aesthetics, impact on the surrounding neighborhood and the type and degree of security personnel and facilities.

(c) A medical or adult-use cannabis establishment license applicant may not exercise any of the privileges of a medical or adult-use cannabis establishment license until the city council approves the license; the establishment has been inspected and approved by the Board and the City, as being in compliance with all requirements of NRS Title 56, the regulations, and all building code requirements; all applicable inspections and license fees are paid; and all conditions of the license have been satisfied.

(d) Notwithstanding any other provision of this chapter or state law, the city council may, in its sole discretion, approve, deny, condition, limit, or take such other action as it considers appropriate with respect to a license amendment application for a medical or adult-use cannabis establishment license.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.015. Renewal of business license.

In addition to the requirements of Title 4 and 5 of this Code, all applications for renewal of a city medical or adult-use cannabis establishment business license shall be accompanied by a copy of a valid and current state license from the Board and;

(1) If any changes are proposed to any item submitted with the initial application to the Board or the City, or to any condition of the issued license, a detailed proposal for changes to such items and submission of new documents which relate thereto, including all documents required by RMC 5.22.012(e);

(2) The license division may approve a renewal of the license based on a determination that no material changes have been made to the items submitted with the original application which would require additional review.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.017. Ownership changes.

Any change in ownership of a medical or adult-use cannabis establishment, conditional or otherwise, must be approved pursuant to NRS Title 56 and the regulations. All Board approved changes shall be reported to the license division within 30 days of the change and shall be accompanied by written approval from the Board and the appropriate city license change application.

(Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.020. Time, place and manner restrictions.

(a) Medical and adult-use cannabis establishments must be located in the corporate limits of the City and must be in conformance with Title 18 of the Annexation and Land Development Code.

(b) All medical and adult-use cannabis establishments, except for an adult-use cannabis distributor, shall be located in a permanent building that meets all requirements of NRS Title 56, the regulations and the City's building code for commercial buildings and shall not be located in a manufactured or mobile home, trailer, cargo container, motor vehicle or similar personal property, and shall not occur outdoors, whether or not covered or enclosed with security fencing. Each component medical or adult-use cannabis establishment shall maintain legal and operational separation from any other component establishment to the extent required by the regulations. A medical or adult-use cannabis retail store shall have a professional, orderly and dignified appearance which is consistent with the traditional style of pharmacies and medical offices.

(c) Each marijuana establishment licensee shall operate in compliance with all state laws, including NRS Title 56, the regulations, all city ordinances and any restrictions imposed in connection with issuance of the license.

(d) If an adult-use cannabis distributor is not able to deliver adult-use cannabis to the receiving adult-use cannabis establishment due to normal business operations, or unusual or extraordinary circumstances beyond its control, the distributor shall notify the Reno Police Department of the premises where the adult-use cannabis will be stored and the anticipated date and time of delivery to the same extent as is required to notify the Board. The temporary storage of adult-use cannabis must be done in accordance with the regulations, and may only be stored in areas which are zoned for adult-use cannabis establishments.

(e) Any medical or adult-use cannabis establishment, medical or adult-use cannabis establishment agent, or a third party delivering medical or adult-use cannabis to a consumer, shall comply with all requirements set forth in NRS Title 56 and the regulations, and shall provide the Reno Police Department, upon request, the trip plan and delivery manifest documenting the transportation of medical or adult-use cannabis to a consumer, as a condition of its license.

(f) Medical and adult-use cannabis waste materials shall be disposed of in a safe, sanitary and secure manner as required by the regulations, in a location and manner approved by the Board, the Reno Police Department and the Washoe County Health District. Waste containing medical or adult-use cannabis shall be rendered unusable before disposal as required by the regulations, shall be protected from being possessed or ingested by any person or animal and shall not be placed within the facility's exterior refuse containers.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.025. Change of state approved location.

(a) Any licensed medical or adult-use cannabis establishment, must apply in writing to request a public hearing to consider relocating to a new location within the corporate limits of the City of Reno from the previous location approved by the Board and City.

An application for the new location shall be submitted upon forms provided by the City and shall, at a minimum, contain the following information:

(1) The medical or adult-use cannabis establishment's name, current physical address for which the establishment is licensed, a copy of the license, and the proposed new address for the establishment; and,

(2) A zoning verification letter from the zoning administrator stating that the new location satisfies the regulatory zoning requirements set forth in RMC Title 18 of the Annexation and Land Development Code; and,

(3) A professional survey from a surveyor licensed within the State of Nevada verifying the new location meets the distance requirements for the medical or adult-use cannabis establishment as set forth in NRS Title 56 and RMC Title 18 of the Annexation and Land Development Code.

(4) Any other information required to be submitted to the Board as part of the medical or adult-use cannabis establishment's written request for relocation to the Board required by the regulations; and,

(5) Any other information required by the license division to process the application in a public hearing before the city council.

(b) The license division shall notify the city clerk when the application is complete and the clerk shall notice the time, place and purpose of the public hearing, together with a map or physical description of the proposed medical or adult-use cannabis establishment's new location.

(c) The city council shall hear testimony from staff, from the applicant, and from those public attending the hearing who wish to testify on the matter. The city council shall also receive any evidence submitted at the public hearing in addition to material provided as part of the application.

(d) At the conclusion of the public hearing, the city council may act to approve, approve with conditions, or deny the establishment's new location.

(e) Conditions imposed by the city council may address matters to be completed prior to the issuance of a medical or adult-use cannabis establishment business license and/or operational conditions attached to the medical or adult-use cannabis establishment business license pursuant to section 5.22.013 of this Code.

(f) An approval or approval with conditions is provisional:

(1) Pending the issuance of a license by the Board for the medical or adult-use cannabis establishment's new location; and,

(2) Pending successful issuance of a medical or adult-use cannabis establishment business license and any other required licenses and/or permits for the operation of the establishment and of the business.

(g) The license division shall provide the applicant and the Board notice of the city council's decision in writing.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.030. Reserved.

Editor's note—Ord. No. 6622, § 1, adopted March 9, 2022, repealed § 5.22.030, which pertained to age limitation and derived from Ord. No. 6467, § 3, adopted June 6, 2018.

Sec. 5.22.050. Access to establishment without warrant.

Submission and subsequent approval of an application for a medical or adult-use cannabis establishment business license constitutes permission of entry to and reasonable inspection of the establishment by the license division, chief of police, fire chief, or their designees, with or without notice at any time. Such inspection may require more than one visit to the establishment.

(1) Findings.

a. The City is permitted by statute to regulate the conduct of medical and adult-use cannabis establishments within its corporate limits.

b. Medical and adult-use cannabis businesses are part of a closely regulated industry. Through ordinances and statutes, licensees are required to conduct their business within particular parameters and are prohibited from permitting or engaging in particular acts.

c. The City has a substantial interest in preserving the public's health, safety and quality of life through, among other programs, the regulation of medical and adult-use cannabis businesses.

d. Inspection of commercial property on which medical or adult-use cannabis is cultivated, sold or manufactured within the bounds of this section is a necessary component of enforcing ordinances and statutes.

(2) Purpose.

a. The provisions hereinafter contained and enacted are in pursuance of and for the purpose of securing and promoting the public health, morals and general welfare of persons patronizing or otherwise affected by a business so as to:

1. Secure compliance with any provision of NRS Title 56, the regulations or the Reno Municipal Code; and
2. Prevent a violation of any provision of NRS Title 56, the regulations or the Reno Municipal Code; or
3. Conduct unannounced inspection of an establishment in response to an allegation of noncompliance with NRS Title 56, the regulations or the Reno Municipal Code.

(3) The license division, chief of police, fire chief or their designee may enter and inspect a medical or adult-use cannabis establishment at any time, with or without notice, each building or the premises of an establishment to ensure compliance with the standards and regulations for business licenses, safety, health and sanitation, NRS Title 56 and the regulations. The license division, chief of police, fire chief or their designee are also granted the powers to conduct inspections and examinations to the same extent as the Board is granted under the regulations. These limitations shall not be construed to prohibit action based upon any other constitutionally recognized exception to the warrant requirement.

(4) In addition, the license division, chief of police, fire chief or their designee may upon receipt of a complaint against a medical or adult-use cannabis establishment, except for a complaint concerning the cost of service, may enter and inspect an establishment at any time, with or without notice, to investigate the premises, facility,

qualifications of personnel, methods of operation, policies, procedures and records of that establishment or any other establishment which may have information pertinent to the complaint.

(5) Refusal to allow entry pursuant to this subsection shall constitute grounds for suspension or revocation of a license as described in the Reno Municipal Code.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.060. Immediate revocation of business license, without hearing.

In addition to the provisions of Title 4 and 5 of this Code, the business license for a medical or adult-use cannabis establishment shall be immediately revoked upon one or more of the following events occurring. There is no hearing before the administrative hearing officer for immediate revocation pursuant to this subsection. Immediate revocation pursuant to this subsection is subject to judicial review.

(1) Notification to the license division that the license issued by the Board has been surrendered, suspended or revoked;

(2) Failure to maintain a valid and current license issued by the Board.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.065. Action upon suspension, revocation or closure.

(a) A license may be suspended or revoked in accordance with Title 4 and 5 of this Code.

(b) Upon renewal of the annual business license affiliated with the privileged medical or adult-use cannabis establishment license, the license division, in conjunction with other city departments, may recommend that the city council review the history of the business and consider approving, denying, or conditioning the renewal of the license as it considers appropriate. Determining factors for denial or the addition of conditions may include, but are not limited to, evidence surrounding the best interest of the welfare, health, or safety of the residents of the City or if the city council determines that the applicant or location of the medical or adult-use cannabis establishment is no longer suitable for a privilege license.

(c) In the event of the suspension of any license, the license division shall provide written notice by certified mail addressed to the licensee and the building owner at the addresses of record. Notice shall also be sent to the Board.

(d) If the City revokes or suspends a license, or the business is no longer in operation, the establishment may not remove any medical or adult-use cannabis from the premises except under the supervision of the Reno Police Department and must dispose of it in a manner and location approved by the Board and/or the Reno Police Department.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.070. No city liability, indemnification.

(a) By accepting a license issued pursuant to this Code, the licensee waives and releases the City, its officers, elected officials, employees, attorneys and agents from any liability for

injuries, damages or liabilities of any kind that result from any arrest or prosecution of establishment owners, operators, employees, clients or customers for a violation of state or federal laws, rules or regulations.

(b) By accepting a license issued pursuant to this Code, the licensee, and its owners, managers, agents, employees and affiliates jointly and severally agree to indemnify, defend and hold harmless the City, and any of its elected or appointed officers, agents, employees or attorneys from any and all claims, demands, actions, damages, decrees, judgments, attorney fees, costs and expenses which may be asserted against the City, or such elected or appointed officers, employees or attorneys arising out of or in any manner connected with the medical or adult-use cannabis establishment that is subject of the license, including, without limitation, any injury, loss or damage, including claims arising from bodily injury, personal injury, sickness, disease, death, property loss of damage or any other loss of any kind whatsoever arising there from. The licensee's duty to defend and indemnify the City hereunder shall apply regardless of the City's active or passive fault. The licensee's duty to defend the City is absolute and shall arise as soon as any demand or claim is asserted against the City and is not conditioned upon a finding of fault of the licensee. The City is entitled to choose the attorney assigned to defend against the claims and the licensee shall immediately pay all defense fees and costs charged by the attorney selected by the City.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.075. Restriction on city employees.

No city employee responsible for the implementing or enforcing the provisions of this chapter or NRS Title 56 may have a direct or indirect financial interest in a medical or adult-use cannabis establishment or be employed by or volunteer at a medical or adult-use cannabis establishment.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.076. Confidential information.

The records regarding medical and adult-use cannabis establishments received by the City are confidential to the same extent that such records would be deemed confidential if provided to the Board pursuant to NRS Title 56 and the regulations. Such confidential records are not subject to subpoena, discovery or subject to inspection by the general public to the same extent, and with the same exceptions as provided in NRS Title 56 and the regulations. Notwithstanding this section, the City may release the confidential information to the Board, employees of the City to perform official duties of the City, and to any local, state, or federal law enforcement agencies as required to perform law enforcement responsibilities of such agencies.

(Ord. No. 6467, § 3, 6-6-18; Ord. No. 6622, § 1, 3-9-22)

Sec. 5.22.077. Reserved.

Editor's note—Ord. No. 6622, § 1, adopted March 9, 2022, repealed § 5.22.077, which pertained to effective date and derived from Ord. No. 6467, § 3, adopted June 6, 2018.

CHAPTER 5.23. MASSAGE ESTABLISHMENTS

Sec. 5.23.005. Purpose and short title.
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Sec. 5.23.110. Severability.

Sec. 5.23.005. Purpose and short title.

This chapter establishes the minimum procedural requirements for business licenses issued by the city, and shall be known as the Massage Establishment Code. Nothing in this chapter shall be deemed or construed to exempt any organization from complying with the provisions of any other ordinance of the city, including but not limited to permit requirements, zoning requirements, nuisance ordinances and restrictions on privileged or illegal activities.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.006. Findings.

The Reno City Council finds and declares that the public health, safety, or welfare of the inhabitants of the city require the regulation and control of persons engaged in the business of massage. All massage establishments shall be licensed and regulated so as to protect the public health, safety, good order and general welfare of the inhabitants of the city and to safeguard the public. It is further found and declared that the right to obtain such license is a privilege and that the operation of a massage establishment is a privileged business subject to regulations, and that the license may be revoked for violation of the laws or regulations of the state, the conditions of this chapter, and other ordinances of this city.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.007. Definitions.

The following definitions are in addition to the definitions set forth in chapter 5.05 of this title. Unless the context clearly indicates a different meaning, the definitions below shall govern the construction, meaning, and application of words and phrases used in this chapter:

Applicant means any person who has applied for a city business license.

Advertising means the intentional placement or issuance of any sign, card or device, or the permitting or allowing of any sign or marking on a motor vehicle, in any building, structure,

newspaper, magazine, handbill, flyer or other publication, any airway transmission, on the Internet or in any directory under the listing of "massage therapy" or "massage" or other words of similar import.

Ancillary employee means any employee of a massage establishment or of an independent massage therapist that is not a massage therapist.

Board means the Nevada State Board of Massage Therapy.

Chair massage means a massage administered by a massage therapist to a fully-clothed patron's neck, shoulders, back, arms, hands and feet utilizing a massage chair. A patron or guest at a hotel or resort hotel receiving a chair massage in the swimming pool area of the hotel or resort hotel shall be considered fully-clothed when wearing appropriate public swimming attire.

Control means the power to direct or cause the direction of the management and policies of a massage establishment, massage therapist, employee or agent in any way.

Employee means any of the following: (i) a massage therapist employed by a massage establishment to provide massage therapy, but who is not an independent contractor of the massage establishment; (ii) a manager in charge and (iii) an ancillary employee.

Independent massage therapist means: (i) a licensed massage therapist (LMT) who is licensed as an independent contractor by the city; or (ii) a person otherwise providing massage services as described in this chapter who is not an employee of a massage establishment.

Manager in charge means a person(s) designated as responsible for the operation of a massage establishment, which includes the first point of contact upon entering the establishment, and take payment and/or coordinate business transaction.

Massage or *massage therapy* means the application of a system of pressure to the muscular structure and soft tissues of the human body as described in Nevada Revised Statutes (NRS) and the Nevada Administrative Code (NAC) Chapters 640C.

Massage establishment means a fixed place of business where any individual, firm, company, association, partnership, corporation, or combination of individuals, engages in, conducts, carries on, or permits to be engaged in or conducted, for money or any other consideration, any massage therapy. This definition does not apply if massage therapy is an ancillary use to the primary business activity.

Massage therapist means any person who is licensed by the State of Nevada pursuant to the provisions of NRS and NAC Chapters 640C to engage in the practice of massage therapy or any person performing massage therapy as defined above. Massage therapist includes both independent massage therapists and massage therapists who are employees of a massage establishment unless otherwise specified.

Outcall massage service means any massage performed by a massage therapist or independent massage therapist upon a patron at a location other than a location licensed as a massage establishment.

Patron means any person who receives a massage or other service offered by a massage establishment or independent massage therapist.

RPD means the City of Reno Police Department.

Self-practitioner means a proprietor of a professional practice who is the owner of the business responsible for its debts, obligations, payment of their own personal income taxes and does not employ any employees.

Sexual activity means but is not limited to: sexual intercourse, masturbation or any other sex act, photographing or filming the body or any body part, and/or showing explicit photographs or video.

Specified anatomical area means the human genitals or pubic region, anus, or perineum of any person, or female breasts.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.008. Exemptions.

The provision of this chapter shall not apply to:

(1) A licensed independent massage therapist who is conducting his or her business from a commercial location as a self-practitioner with no employees; or

(2) A licensed independent massage therapist who performs massage therapy in a leased or rented room in a licensed massage establishment; or

(3) Any licensed health and care facility as defined in NRS 449; or

(4) Any licensed provider of health care as defined in NRS 629.031 where performing of massages is adjunct of providing health care; or

(5) Any person providing services under the direction and supervision of such licensed provider in conjunction with the providing of services by exempted facilities.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.020. Massage business license required: unlawful to operate without a license.

(a) It is unlawful for any person to operate, manage or maintain a business wherein massages are performed unless such a person holds a valid massage establishment business license pursuant to the provisions of this chapter.

(b) It is unlawful for any person to provide massage therapy services in the city without first having obtained, and thereafter maintaining a valid massage therapist license pursuant to NRS and NAC Chapters 640C.

(c) It is unlawful for a massage establishment or manager in charge, if applicable, of a massage establishment to allow massage therapy to be performed at the massage establishment by a person not licensed as a massage therapist.

(d) Any owner of a massage establishment who wishes to engage in the occupation of massage must also hold a valid massage therapist license by the Board in addition to the massage establishment business license required pursuant to this chapter.

(e) Any independent massage therapist that wishes to perform massage therapy within the city, including chair massage, must first be licensed as a massage therapist by the board pursuant to NRS and NAC Chapters 640C and must also hold a valid business license for massage therapy as an independent contractor pursuant to the provisions of title 4.

(f) A massage establishment business license shall be issued for a specific location and shall authorize the performing of a massage at the location specified in the license and on an outcall basis under such conditions as will ensure the legitimacy of such outcall massages.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.030. Massage establishment license application.

(a) Every person(s) required to procure a massage establishment license under the provisions of this title shall submit an application upon forms provided by the city.

(1) A business license application will be considered properly completed upon submission of all required application materials and information the city shall find to be reasonably necessary to the fair and efficient administration of this title, including payment of all required application, license and investigation fees. Required application information includes submission of all fingerprints and information necessary to enable the RPD to complete the background investigation pursuant to chapter 5.05.

a. In all cases where the applicant for a license is a corporation, all of the principal officers of such corporation must present themselves for investigation and fingerprinting.

b. In all cases where the applicant for a license is a limited liability company, all members having management authority for such limited-liability company must present themselves for investigation and fingerprinting.

(b) Every applicant(s) who does not hold a valid massage therapist license or who holds a valid massage therapist license issued pursuant to NRS and NAC Chapters 640C and has not conducted a background check for the massage therapist license in the past 24 months from the date of the adoption of this ordinance is subject to a background check to determine suitability for a massage establishment license prior to the issuance of any license.

(1) An applicant who has been issued a State of Nevada massage therapist license pursuant to NRS and NAC Chapters 640C in the past 24 months from the date of an accepted city license application or is certified from the National Certification Board for Therapeutic Massage and Bodywork (NCBTMB) shall be exempt from the background check requirements.

(c) An application for a massage establishment license shall, at a minimum, include the following information:

(1) A description of all business activity conducted or intended to be conducted on the premises;

(2) Whether the applicant or anyone having ownership interest in the business or proposed business has:

a. Ever been convicted of any crime, excluding minor traffic offenses and, if so, the application shall state the person involved, the charge, date, court and disposition of the charges;

b. Ever had a business license denied, revoked or charges filed therefore, and if so, the application shall state the name of the business, date, jurisdiction, and outcome of any hearing; and

c. Ever owned or operated an escort service, an outcall promoter establishment, a brothel or adult nightclub, adult theater, adult bookstore or any other adult business and if so, the name of the business and address, dates involved and position of interest therein.

(3) Be signed by the applicant if he is a natural person; in the case of an association or partnership, by a member or partner with authority to bind the association or partnership; in the case of a corporation, by an executive officer or a person specifically authorized by the corporation to sign the application, to which must be attached the written evidence of the authority.

All license fees deposited or submitted upon application are nonrefundable unless authorized as refundable by the city manager or his/her designee.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.035. Background requirement on renewal of massage establishment license.

(a) Upon renewal of a massage establishment license, every licensee who does not hold a valid massage therapist license or who holds a valid massage therapist license issued pursuant to NRS and NAC Chapters 640C and has not conducted a background check for the massage therapist license in the past 24 months from the date of the adoption of this ordinance is subject to a background check to determine suitability for the massage establishment license prior to the issuance of any license. The licensee must also provide such information as may be required by the RPD to complete the background investigation pursuant to chapter 5.05.

(b) Every licensee shall comply with this background requirement within six months from the date of the adoption of this ordinance.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.040. Advertising.

(a) No massage establishment or massage therapist shall place, publish or distribute or cause to be placed, published or distributed any advertisement, picture, or statement which is known or, through the exercise of reasonable care, should be known to be false, deceptive or misleading or which would reasonably suggest to prospective patrons that sexual stimulation or sexual gratification will be provided, in order to induce any person to purchase or utilize any massage services of the massage establishment or massage therapist.

(b) All advertising by a massage therapist must include his or her legal name, license number and the name of his or her employer, if applicable. All advertising by a massage establishment must include the business name and license number(s) of the massage establishment.

(c) In the event a massage establishment, licensee or manager in charge, if applicable, becomes aware of any advertising that: (i) directs the viewer of the advertisement to the massage establishment, either by name or address; and (ii) violates the provisions of this section, the massage establishment, licensee or manager in charge shall take reasonable steps to have such advertising removed or taken down, or in the event such advertising is on flyers or handbills, shall cease distributing them. With respect to internet advertising

or posting, reasonable efforts shall include, but not be limited to, requesting the host of the website on which the advertising is located, or the person posting the advertisement, to remove or delete the advertisement or post.

(d) Two or more violations of section 5.23.040 within a 24 month period may subject the massage establishment license or independent massage therapist to suspension or revocation pursuant to chapter 4.04.150.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.050. Massage establishment operations.

(a) A massage establishment license allows the conduct of massage services only in a properly zoned area within the city.

(b) The operating requirements of all massage establishments are as follows:

(1) The licensee or a person(s) designated as the manager in charge, shall be on the premises at all times of operation. The manager in charge shall be considered a key employee subject to the requirements of section 4.04.180. A massage establishment may have more than one manager in charge; provided, however, that at least the licensee or one manager in charge must be present on the premises of the massage establishment at all times while the massage establishment is open for business. Each person identified as a manager in charge shall be a licensed massage therapist pursuant to NRS and NAC Chapter 640C.

(2) The licensee or a person designated as the manager in charge shall be responsible for ensuring that all persons performing massage therapy at the massage establishment have a valid, unexpired license from the Board. The licensee or a person designated as the manager in charge shall maintain a list of all persons employed each day at the massage establishment, whether as independent massage therapists or employees and their license numbers, if any. Such list shall be available for viewing by agents or officers of the license division, code enforcement, police department or state or county regulatory agencies at all times the establishment is open for the conduct of business.

(3) Each massage establishment shall comply with regulations relating to sanitation, hygiene and safety adopted by the Board pursuant to NRS and NAC Chapters 640C.

(4) Each massage establishment shall provide all patrons clean, sanitary and opaque coverings capable of covering the patron's specified anatomical areas. No common use of such coverings shall be permitted and reuse of such coverings is prohibited until washed and cleaned.

(5) No massage establishment shall be equipped with any electronic, mechanical or artificial device used or capable of being used for recording either audio or video of activities, conversations or other sounds in any treatment rooms.

(6) No massage establishment shall be equipped with tinted or two-way mirrors in any treatment room.

(7) No person shall operate a massage establishment or administer a massage for money or any other consideration between the hours of 11:00 p.m. and 6:00 a.m.

(8) No massages shall be performed in any room where table showers or shower apparatus are located.

(9) No massage establishment shall place or operate an automated teller machine (ATM) within the premises where licensed.

(10) Exterior windows shall not be tinted, covered or blocked in such a manner as to impede a view inside the massage establishment from the exterior.

(11) Every massage establishment shall post a copy of the license(s) required by this chapter in a prominent place in the reception area of the establishment.

(c) If agents or officers of the license division, code enforcement, police department or state or county regulatory agencies observe that an establishment has failed to comply with any of the operating requirements set forth in this section 5.23.050, the agent or officer may take action pursuant to this chapter and provisions in title 4 and/or title 5.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.060. Reserved.

Sec. 5.23.070. Massage establishment; license issuance or denial; revocation or suspension.

(a) All applications for licenses shall be referred to the appropriate city departments for review and investigation. These departments shall either recommend approval or denial of the application and forward a recommendation to the city license office. The city license office shall review the recommendations of all the applicable departments and decide whether to approve or deny the license. The city license office thereafter shall either issue a license or notify the applicant of denial, including the reason for such denial, in accordance with its decision.

(b) The city shall consider the application by examination of:

(1) The information provided within the submitted application;

(2) The circumstances of the applicant's criminal and business history;

(3) The proposed business operation of the applicant; and

(4) The reports of all applicable departmental reviews.

(c) The license application shall be denied if:

(1) The applicant, whether an individual or any of the stockholders, officers or directors of a corporation, or any person having a ten percent or more ownership interest in the business or proposed business:

a. Has been convicted of any of the following offenses within the five years immediately preceding the date of the application, regardless of the jurisdiction of the conviction:

(1) A felony or any crime which, under the laws of this state, would amount to a felony;

(2) Any crime of which theft, fraud or intent to defraud is an element;

(3) Unlawfully possessing or distributing a controlled substance;

b. Has been convicted of any of the following offenses within the ten years immediately preceding the date of the application, regardless of the jurisdiction of the conviction:

(1) Solicitation, prostitution, or pandering; or

(2) Any sex offense requiring the applicant to register under NRS 179D.441, et seq.

(2) The business operation as proposed by the applicant would not comply with all applicable laws, including but not limited to this title and the city's building, zoning, fire and health regulations.

(d) Denial. If the applicant is denied, the city shall notify the applicant with the reason(s) stated for denial. Notification of the denial shall be provided by certified mail, mailed to the applicant's address provided on the license application which shall be considered to be the correct address. Each applicant has the burden to furnish any change of address to the city. Notice of the review decision shall officially commence on the day the decision is personally given or the day the decision is deposited into the mail under certification.

(1) Upon denial of a license or renewal application under title 4 and all administrative decisions under title 5 as defined in section 5.05.017, the applicant is prohibited from conducting any business for which the approval was denied until such time as an appeal has been heard and the denial has been reversed. Any person aggrieved by the foregoing in the denial of the application for a license shall have the right to appeal to the administrative hearing officer pursuant to section 4.04.060.

(e) Suspension or revocation. A massage establishment license may be suspended or revoked in accordance with title 4 and/or title 5 of this Code. In addition, a license for a massage establishment may be suspended or revoked on the following grounds:

(1) A licensee or manager in charge knowingly commits any act which would have constituted grounds for denial of an application for a license;

(2) A licensee or manager in charge has violated, or permitted, allowed or caused a violation of any provision of title 4 and/or title 5 of the Reno Municipal Code, any state law, or any condition of approval imposed upon the issuance of the license;

(3) The licensee or manager in charge has failed to maintain the premises in compliance with the requirements of: any state law, title 4 and/or title 5 of the Reno Municipal Code, the building official, the fire chief or any environmental or health department;

(4) Any act or omission committed by any employee, agent, or independent contractor that occurs in the course of his or her employment, agency, or contract with the licensee shall be imputed to the licensee for the purpose of imposing any civil penalty, suspension, or revocation on the licensee.

(f) The holder of a massage establishment business license that is the subject of revocation or suspension as stated herein and/or under RMC 4.04.160 shall be permitted to conduct business under the license until appeal has been pursued through final decision or the time for appeal has expired without pursuit of appeal. The failure to commence a timely appeal shall be deemed a waiver of any and all objections to revocation or suspension.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.080. Obtaining a license after revocation—Prohibition.

No massage establishment license shall be granted, and any existing massage establishment license may be revoked, limited or suspended, with respect to any person

whose business license, massage establishment license, massage therapy license or other similar license was revoked, limited or suspended in any jurisdiction, for the period of two years following the date of such revocation or suspension.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.090. Reserved.

Sec. 5.23.100. Responsibility of licensee.

(a) Any criminal conviction for pandering, prostitution or solicitation of prostitution on the licensed premises, whether such acts are committed by employees, independent contractors, subcontractors or patrons shall result in the revocation of licensing.

(b) A massage establishment licensee shall not knowingly, or under circumstances that reasonably indicate such behavior is knowing or is willfully ignorant, negligent, or unaware, allow an employee or independent contractor to perform massage therapy on the licensee's premises who does not have a valid massage therapy license issued by the board and a valid business license as required by title 4 and title 5.

(c) A massage establishment license shall train their employees, and shall ensure their independent massage therapists have training, regarding how to address patrons who initiate, request or suggest sexual activity.

(d) This section does not negate the imposition of other violations or responsibilities of licensee from other titles, chapters, and sections of this Code, or federal or state law.

(Ord. No. 6548, § 1, 2-26-20)

Sec. 5.23.110. Severability.

If any section, paragraph, phrase or word of this chapter or portion thereof, is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such holding shall not invalidate the remaining portions of this chapter.

(Ord. No. 6548, § 1, 2-26-20)

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CHAPTER 5.90. FRANCHISES*

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ARTICLE I. IN GENERAL

Sec. 5.90.005. Franchise agreement required.

Prior to operation or provision of any garbage, electricity, gas, geothermal water, cable television, sewer, phone service or placement of bus benches within the city limits, the owner or operator shall obtain a franchise agreement from the city, in addition to any other requirements of this Code.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 5255, § 1, 6-26-01)

ARTICLE II. COLLECTION AND TRANSPORTATION OF SOLID WASTE AND RECYCLABLE MATERIALS*

Sec. 5.90.005. Preamble.

The Reno City Council has determined that the health, safety and welfare of its residents require that certain solid waste and recyclable material collection services be provided under one or more exclusive municipal franchise agreements pursuant to NRS 268.081. The franchise agreements shall contain the terms, covenants and conditions required in this article, as the same may be modified as provided in the franchise agreements, and such other terms, covenants and conditions approved by the Reno City Council.

(Ord. No. 6260, § 1, 11-7-12)

Sec. 5.90.010. Definitions.

The following words and phrases, when used in this article, shall have the meanings respectively ascribed to them:

"Affiliate(s)" means an entity controlled by, controlling or under common control with contractor.

"Agreement" means a commercial or residential franchise agreement for an exclusive service area between the city and a contractor to collect, haul and/or dispose of collection materials.

"Applicable law" means all federal, state and local laws, ordinances, regulations, rules, orders, judgments, decrees, resolutions, permits, approvals, or other type of requirement imposed by any governmental agency having jurisdiction over the collection and disposition of solid waste or recyclable materials, including such additions and changes thereto as become effective by means of their enactment, amendment, issuance or promulgation at any time after the effective date of this ordinance.

"Approved recyclable materials" means the recyclable materials approved for recycling under an agreement, and which may be changed from time to time by mutual agreement between contractor and city, excluding certain materials excluded under the agreements.

***Editor's note—**Ord. No. 6260, § 1, adopted November 7, 2012, amended the title of Art. II to read as herein set out. Prior to inclusion of said ordinance, Art. II was titled, "Garbage Service." See also the Code Comparative Table.

State law reference—Municipal franchise for collection and disposal of garbage and other waste, NRS 268.081.

"Bin" means an industry standard receptacle for solid waste or other materials provided by the contractor, having a capacity less than seven cubic yards and that generally has a tight-fitting, attached lid, and is designed to be dumped mechanically into a front-loading or rear-loading collection vehicle.

"Bulky items" means all discarded waste matter that is too large to be placed in a cart, including appliances not containing chlorofluorocarbons, furniture, carpets, mattresses, and similar large items that require special handling due generally to their size, excluding excluded materials.

"Cart" means an industry standard, wheeled container of approximate 35-, 64-, and 96-gallon capacity provided by contractor to customers for collection of solid waste or recyclables.

"Cart service" means provision of collection services using carts.

"City council" means the governing legislative body of the City of Reno.

"City representative" means the city manager, or his/her designee, who may be a city official, employee or an agent of city specifically designated to serve as the city representative and authorized to act on behalf of the city hereunder.

"Change in law" means the following events or conditions:

(i) Enactment, adoption, promulgation, issuance, modification, or written change or initial public announcement or enforcement in administrative or judicial interpretation of any applicable law occurring on or after the effective date of this ordinance; or

(ii) Order or judgment of any governmental body, issued on or after the effective date of this ordinance, to the extent such order or judgment is not the result of willful or negligent action, error or omission or lack of reasonable diligence of Contractor; provided, however, that the contesting in good faith or the failure in good faith to contest any such order or judgment shall not constitute or be construed as such a willful or negligent action, error, or omission or lack of reasonable diligence.

"Change in scope" is a material change in the type, extent, or level of collection services or the exclusive service area.

"Collection" (and *"collect," "collected" and "collecting"*) means the pickup and removal by contractor from customers of solid waste and approved recyclable materials and transportation and delivery of such material to an appropriate designated facility for such materials.

"Collection materials" means all solid waste and approved recyclable materials generated, produced or accumulated by customers, as applicable, excluding certain materials excluded under the agreements.

"Collection services" means the collection of collection materials from customers in contractor's exclusive service area to be provided by a contractor, excluding certain services excluded under the agreements.

"Commercial activity" means all activity of a business, commercial, industrial, financial, institutional, governmental or similar nature, including without limitation multi-family complexes. Commercial activity hereunder is intended to be defined and interpreted broadly to include all activities other than residential activities and uses (other than multi-family complexes).

"Commercial agreement" means an agreement between the city and a contractor for the collection and transportation of solid waste and recyclable materials from commercial customers in an exclusive service area.

"Commercial customers" means all non-residential customers including businesses, institutions, governmental agencies conducting commercial activity in contractor's exclusive service area, including multi-family complexes.

"Community collection location(s)" means an area in which the contractor has placed a compactor or container in a central location to service multiple businesses at the specific request of the city or certain commercial customers, and agreed to by contractor.

"Compactor," "compactors," "compactor service" means any bin or other container incorporating a built-in mechanism to reduce waste volume by crushing action or other compacting method.

"Construction and demolition debris" means debris resulting from construction, remodeling, repair, renovation, demolition, excavation, dredging, grubbing and related cleanup of residential, commercial or governmental buildings or other structures and pavement, including without limitation construction materials, rubble, bricks, concrete, other masonry materials, soil, rock, lumber, rebar, paving materials and vegetation, including tree stumps. Materials resulting from landscape maintenance are not construction and demolition debris.

"Containers" means carts, bins, and drop boxes or other containers provided by contractor and identified on the scope of services for use to provide collection services.

"Contractor" means a party to an agreement with the city pursuant to this article.

"Control" and derivations thereof means the ability to control, through ownership of equity interests or contract, the management and affairs of the entity.

"Customer" means the persons or entities receiving collection services pursuant to an agreement.

"Designated facility" means the transfer station, disposal facility, material recovery facility, eco-center recycling facility or any similar facility designated by the city in accordance with a long-term disposal agreement entered into by the city, pursuant to which the city has provided for the environmentally safe and sound handling, processing, transfer, transport, recycling and disposal of all solid waste and approved recyclable materials generated within the city, and where contractor shall be required to deliver all collection materials.

"Disposal agreement" means a long term solid waste transfer and disposal agreement with a third party, to provide the city with an environmentally sound and cost effective solution for the transfer, processing, handling, recycling, and disposal of all solid waste and recyclable materials generated within the city, and all amendments, extensions, renewals and replacements thereof.

"Disposal," "disposing," "dispose," or *"disposed"* means the final landfill disposal of solid waste collected by contractor, but does not include other beneficial uses such as alternative daily cover.

"Diverted" means the tonnage or percentage of collected collection materials that are not disposed.

"Drop box" means an industry standard receptacle for solid waste or other materials provided by the contractor, generally having a capacity equal to or greater than ten cubic yards.

"Excluded materials" means:

(i) Hazardous waste;

(ii) Medical and infectious waste;

(iii) Volatile, corrosive, biomedical, infectious, biohazardous, and toxic substances or material, including without limitation batteries;

(iv) Waste that contractor reasonably believes would, as a result of or upon disposal, be a violation of federal, state, or local law, regulation or ordinance, including land use restrictions or conditions;

(v) Waste that in contractor's reasonable opinion would present a significant risk to human health or the environment, cause a nuisance or otherwise create or expose contractor or city to potential liability;

(vi) Electronic waste determined by contractor to be excluded materials (including without limitation television sets, computers and computer components);

(vii) Materials collected and processed at rendering facilities;

(viii) Special waste;

(ix) Incidental amounts of self-haul materials which are delivered by an individual directly to a transfer station, recycling facility or disposal facility in a manner consistent with city ordinances and codes and other applicable laws;

(x) Construction and demolition debris;

(xi) Materials which otherwise would constitute collection materials that are removed from premises by landscaping, gardening, cleaning service, appliance sale and service company or construction contractors as an incidental part of a gardening, landscaping, tree trimming, cleaning, maintenance, appliance sale or service or construction or similar service offered by that service provider, using its own personnel and equipment, rather than as a hauling service;

(xii) Scrap metals;

(xiii) Paper shredder materials;

(xiv) Bulky items and items contractor determines to be excessively bulky or heavy; and

(xv) Source separated recyclable materials donated by the generator to any United States Revenue Code Section 501(c)3 or other federally recognized non-profit organization, including charities, youth groups and civic organizations, which materials may be transported from the non-profit organization by self-haul or by a third party hauler.

"Excluded recyclable materials" means either or both

(i) Approved recyclable materials from commercial activity that are: (a) separated by the generator thereof from all other materials and which contain not less than 90 percent approved recyclable materials; and, (b) sold by the generator thereof directly to a buyer of recyclable material at market price, title to which materials transfers to the buyer upon collection or pickup of such materials, but excluding such materials collected and transported as a service; and

(ii) Any other recyclable materials that are not approved recyclable materials.

"Exclusive service area" means the geographic territory within the city in which the contractor shall have the exclusive right and obligation to conduct collection services, as such geographic territory may change from time to time as provided under an agreement.

"Exempted drop box" means an industry standard, open top metal roll-off container (also sometimes referred to as a "lugger" or "dino"), equipped for being mechanically rolled onto a vehicle, for collection and transportation of solid waste or recyclable materials:

(i) With a capacity of not less than ten cubic yards;

(ii) Which is delivered to and left at a customer's site for deposit therein of exempted drop box materials, then picked up and transported to a materials processing or disposal facility for emptying; and,

(iii) Excluding a) compactors, b) bins, c) containers or receptacles emptied or serviced by front loader vehicles, d) any vehicle into which the materials are deposited at the time of collection at the collection site and e) any other container, receptacle or vehicle not described in subsections (i) and (ii) above.

"Exempted drop box material" means solid waste and approved recyclable material collected and transported in an exempted drop box using exempted drop box services, but excludes;

(a) Garbage; and,

(b) Compacted solid waste and compacted approved recyclable materials.

"Exempted drop box services" means the collection and transportation by an exempted hauler of exempted drop box materials, using an exempted drop box, performed as temporary service and excluding any collection or transportation that would replace, limit or reduce permanent service collection by contractor. The provision of exempted drop box service shall not limit or amend the obligation of customers to subscribe to collection services under the agreements. Examples of exempted drop box services include, (each of which are hereby excluded from the exclusive franchise of contractor under this agreement and which may be collected and hauled by exempted haulers using exempted drop box services), in each case by exempted haulers using an exempted drop box,

(i) The collection and transportation of landscaping and related materials generated by a landscaper or similar landscaping, gardening, pruning, tree trimming and other landscape maintenance service providers

(ii) The collection and transportation of exempted drop box materials generated at special events (but excluding materials which are the subject of permanent services at the event location),

(iii) The collection and transportation of exempted drop box materials under single occurrence service contracts or arrangements for collection and transportation of exempted drop box materials and

(iv) Collection and transportation of exempted drop box materials generated in connection with occasional, irregularly scheduled cleanup and disposal by customers.

"Exempted facility" means the facility identified in the commercial agreement.

"Exempted facility materials" means collection materials delivered to and accepted, processed, and recycled or disposed by the exempted facility i) in an amount equal to or less than the exempted facility material limit and ii) excluding garbage.

"Exempted facility materials limit" for the exempted facility shall be a total annual volume of exempted facility materials under both commercial agreements in the amount specified and as adjusted as provided in the commercial agreements.

"Exempted hauler account" means a contract or account

(i) Established on or before October 24, 2012 and continuing as of October 24, 2012;

(ii) Under or pursuant to which contract or account an exempted hauler has provided collection and transportation of solid waste and/or recyclable materials from commercial activity on a regularly scheduled, recurring basis;

(iii) To a customer identified in a the commercial agreement; and

(iv) Approved by the city.

All approved exempted hauler accounts of each exempted hauler, including the name and address of each customer to which service is provided for each exempted hauler account, shall be identified in the commercial agreement.

"Exempted hauler account material" means solid waste and recyclable material collected from an identified customer under an exempted account and transported by such exempted hauler using exempted hauler account services, but excluding garbage.

"Exempted hauler account services" means the collection and transportation by an exempted hauler of exempted hauler account materials from an exempted hauler account.

"Exempted haulers" means "exempted haulers" means persons or entities: (i) licensed as of October 24, 2012 by the city and the Washoe County Health District to collect and transport solid waste and recyclable materials in the City of Reno; and, (ii) actively engaged, as its primary business, in the collection and transportation of solid waste and recyclable materials in the City of Reno as of October 24, 2012, including contractor.

"Food waste" means all source separated compostable pre-consumer and post-consumer food waste, such as whole or partial pieces of produce, meats, bones, cheese, bread, cereals, coffee grounds and egg shells, and food-soiled paper such as paper napkins, paper towels, paper plates, coffee filters, paper take-out boxes, pizza boxes, paper milk cartons or other paper products accepted by the contractor's selected composting facility or other processing facility and that has been source separated and placed in a container for recycling. Food waste shall not include dead animals weighing over 15 pounds, plastics, diapers, cat litter, liquid wastes, pet wastes or other materials prohibited by the selected composting or other processing facility. The materials accepted by composting site selected by contractor may change from time to time and the definition of food waste shall change accordingly.

"Franchise hauler terms" has the meaning provided in the disposal agreement.

"Garbage" means putrescible animal and vegetable waste resulting from the handling, storage, preparation, cooking and sale and serving of food and beverage, excluding excluded materials and source separated food waste that is actually recycled. The mixing, addition, or commingling of garbage with rubbish, trash or other waste matter, exclusive of items i) through viii), inclusive under the definition of excluded materials, renders the entire resulting mixture as garbage.

"Green waste" means source separated biodegradable materials including branches (less than three inches in diameter), brush, cut flowers, dead plants, grass clippings, house plants, leaves, pruning's, shrubs, weeds, wood (uncoated and untreated), wood chips, yard trimmings,

Christmas trees (placed in carts/bins, with no stands, flocking, and/or decorations, and cut into two-foot sections) that has been placed in a container for recycling, excluding excluded materials.

"Gross receipts" means the rate revenues actually received, including all money, cash, receipts, property or other thing of value collected by contractor from customers for the collection services described on the scope of services, but excluding any revenues, receipts or proceeds from other sources. Gross receipts does not include proceeds from special services or from the sale of recyclable materials.

"Hazardous waste" means hazardous waste as defined in Nevada Revised Statutes 459.430, hazardous substance as defined in Nevada Revised Statute 459.429 and other hazardous or toxic materials as defined under any other local, state or federal law.

"Medical and infectious waste" means biomedical waste generated at hospitals, public or private medical clinics, dental offices, research laboratories, pharmaceutical industries, blood banks, mortuaries, veterinary facilities, and other similar establishments.

"Menu rates" means the rates listed and identified as menu rates on the scope of services of an agreement, which are payable by customers to contractor for the menu services.

"Menu services" means the services listed and identified as menu services on the scope of services of an agreement.

"Multi-family complex" means a multiple-unit residence with five or more units, some of which are attached, which are billed collectively for collection services hereunder.

"Operating standards" means the additional terms and conditions attached to any agreement which are made a part thereof and incorporated therein by reference and which shall be applicable to all service providers under the agreements.

"Paper shredder materials" means paper and similar paper products and the products and residue resulting from shredding thereof collected and shredded by properly licensed service providers providing paper shredding services.

"Permanent services" means collection services that generally or usually occur on a regularly scheduled, recurring basis.

"Qualified service contract" means a binding service contract with a commercial customer for the collection and transportation in the city of solid waste or recyclable materials, or both, dated on or before September 15, 2012, by any service provider properly licensed to collect and transport such materials in the city.

"Rate revenues" means the revenues from the rates billed to and collected from customers by contractor for provision of collection services.

"Rates" or *"rate"* means the amount each and all customers shall be charged by contractor for collection services.

"Recyclable materials" or *"recyclables"* means materials that can be processed and returned to the economic mainstream in the form of raw materials or products, including without limitation materials that become capable of being recycled using new methods, processes or technology developed or implemented after the effective date of this ordinance.

"Recycle", "recycled", "recycling" means the process of collection, sorting, cleansing, treating and reconstituting of recyclable materials that would otherwise be disposed of, and returning them to the economy in the form of raw materials for new, reused, repaired, refabricated, remanufactured, or reconstituted products.

"Residence" or *"residential"* means a living space with a kitchen that is individually rented, leased or owned, including without limitation single family homes, mobile homes, multiple unit facilities with four or fewer units and multiple unit facilities containing five or more units if the units are each served and billed separately under any agreement, but excluding multi-family complexes.

"Residential agreement" means an agreement between the city and a contractor for the collection and transportation of solid waste and recyclable materials from residential customers in an exclusive service area.

"Residue" means materials which remain after processing recyclable materials which cannot be recycled, marketed, or otherwise utilized, including, but not limited to, materials such as contaminated paper, putrescible waste, and other debris.

"Return on revenue" means as provided in Section 6.2 [5.90.090] hereof.

"Scope of services" means portion of an agreement which specifies each category or type of collection services, the rates applicable to the collection services, certain other charges and fees which may be charged by contractor, and certain other terms.

"Self-haul" or *"self-hauler"* means that any generator of recyclable materials from commercial activity may itself (for a commercial generator, this means performance of all collection and transportation services by an individual listed on its payroll as an employee), but not by or through an agent, contractor or other third party, collect, transport and deliver those recyclable materials generated within the city by that generator only; provided, however, all self-haul owners and occupants shall be required to subscribe to collection services as provided under the agreements, unless exempted thereunder.

"Single-stream recycling" means the use of a single container to collect source separated recyclables on a co-mingled basis.

"Solid waste" means all putrescible and nonputrescible waste matter in solid or semi-solid form, including but not limited to rubbish, garbage, ashes, refuse, and residue, but excluding excluded materials.

"Source separated" means the separation of any material or category of materials from other materials by the generator at the point or place of generation.

"Source separated recyclables" means approved recyclable materials that are separated by the generator thereof from all materials other than approved recyclable materials and properly prepared and placed together in a recycling container for collection.

"Special services" means various collection and other services to which contractor is not granted the exclusive right of collection under an agreement and of which contractor is not required to provide collection under an agreement, but which services contractor at its option may offer to its customers and to others anywhere in the city at rates and charges determined by contractor.

"Special waste" includes any materials that under current or future statute, ordinance or regulation require the application of special treatment, handling, or disposal practices beyond those normally required for solid waste. "Special waste" shall be deemed to include, without limitation, all of the following: flammable waste; liquid waste transported in a bulk tanker; sewage sludge; pollution control process waste; residue and debris from cleanup of a spill or release of chemical substances, contaminated soil, waste, residue, debris, and articles from the cleanup of a site or facility formerly used for the generation, storage, treatment, recycling, reclamation, or disposal of any other special wastes; dead animals; manure; waste water; explosive substances; radioactive substances; fluorescent tubes; and abandoned or discarded automobiles, trucks, motorcycles or parts thereof, including tires and vehicle batteries.

"Standard service(s)" means the services listed and identified on the scope of services in the residential agreement, which includes the collection of i) solid waste, ii) source separated recyclables and iii) sticker materials, as well as disposal facility access.

"Temporary service" means exempted drop box service that is: (i) temporary and not recurring; (ii) provided for a period of 60 days or less; and, (iii) excludes permanent services.

"Transition period" means the period commencing on the effective date of this ordinance and ending on January 1, 2015.

"Transition rates" means the rates applicable during the transition period to each commercial customer who is a party to a qualified service contract.

"Working days" means, unless otherwise specified, Monday through Friday, excluding legal holidays.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 5100, § 1, 12-14-99; Ord. No. 6260, § 1, 11-7-12)

Sec. 5.90.020. Granting of franchise.

An agreement for the collection of residential or commercial collection materials will only be granted as provided in this article.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6260, § 1, 11-7-12)
Editor's note—Formerly § 5.90.015.

Sec. 5.90.030. Franchise right.

(a) This article establishes the exclusive right for contractors to provide collection services of collection materials pursuant to NRS 268.081, as amended.

(b) Contractors, and their respective successors or assigns, shall have the exclusive privilege of providing collection services of collection materials, subject to the limitations of any applicable agreement, and city, state and federal law.

(c) Subject to the rights of a contractor under an agreement, the city reserves the right to alter and amend this article in any manner necessary for the safety or welfare of the public, or to protect public interests.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6260, § 1, 11-7-12)
Editor's note—Formerly § 5.90.020.

Sec. 5.90.040. Title to the solid waste stream.

(a) RESIDENTIAL AGREEMENTS.

Ownership of all collection materials, upon placement in any container and left curbside, shall transfer to contractor and shall become the property of contractor.

(b) COMMERCIAL AGREEMENTS.

Ownership of all collection materials, upon placement in any container, shall transfer to contractor and shall become the property of contractor.

(c) Title to and ownership of all collection materials shall transfer from contractor to the designated facility upon delivery of the collection materials by contractor to the designated facility and acceptance by the designated facility of such collection materials.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 5100, § 1, 12-14-99; Ord. No. 6260, § 1, 11-7-12)
Editor's note—Formerly § 5.90.030.

Sec. 5.90.050. Written agreement required.

(a) Any agreement granted under this article shall be in writing, and must be approved and executed by the city council and contractor.

(b) An agreement shall grant a contractor the exclusive right, privilege, franchise and obligation to provide collection services pursuant to a scope of services to customers within an exclusive service area.

(c) No person or entity other than contractor and its subcontractors shall:

(1) collect collection materials in contractor's exclusive service area;

(2) transport anywhere in the city collection materials in contractor's exclusive service area; or,

(3) deliver any collection materials collected in contractor's exclusive service area to any disposal, processing, recycling or similar facility, except as expressly provided under an agreement.

(d) The exclusive right of each contractor hereunder to provide residential and commercial collection services shall not apply to excluded materials or special services. The exclusive right of contractor hereunder to provide commercial collection services also shall not apply to excluded recyclable materials.

(e) No person or entity other than the service provider under the disposal agreement shall accept, handle, process, recycle or dispose of any collection materials which are the subject of the exclusive rights granted under any agreement, except as expressly provided in such agreement.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6260, § 1, 11-7-12)

Sec. 5.90.060. Obligation to provide collection services; mandatory service; exemption.

(a) RESIDENTIAL AGREEMENTS.

Contractor shall make available collection services as provided under the residential agreement to all residential customers within the exclusive service area. Each and every owner of a residence which generates, produces, or accumulates or causes the generation or accumulation of solid waste within the exclusive service area shall subscribe to the standard services as required in the residential agreement and/or in the Reno Municipal Code and as necessary to properly collect and dispose of all solid waste generated or accumulated on such premises. It is presumed that every residence in an exclusive service area generates, produces or accumulates solid waste and is required to subscribe to standard services under the residential agreement. Any owner of a residence

seeking to be exempt from standard services hereunder must obtain an exemption from the city. Residential customers are encouraged, but are not obligated, to recycle or to subscribe to menu services; provided, however, no residential customer in an exclusive service area may allow or retain any person or entity other than the designated contractor to collect, pickup, transport or deliver approved recyclable materials or other collection materials that would be a violation of contractor's exclusive right under the residential agreement. With the approval of the owner of a residence, a tenant or occupant thereof may subscribe for collection services, but the owner of the residence shall remain responsible for compliance with all requirements of the residential agreement and the Reno Municipal Code.

(b) COMMERCIAL AGREEMENTS.

Contractor shall make available collection services as provided under any commercial agreement to all customers within the exclusive service area. Each and every person, firm, association, corporation, partnership, business, or other entity conducting any commercial activity ("operator") on or from any premises which generates, accumulates or causes the generation or accumulation of solid waste within the exclusive service area of contractor shall subscribe to the collection services of solid waste as required in the commercial agreement and/or the Reno Municipal Code and as necessary to properly dispose of all solid waste generated or accumulated on such premises. It is presumed that every premises in contractor's exclusive service area on or from which commercial activity is conducted generates, produces or accumulates solid waste and is required to subscribe to collection services under a commercial agreement. Commercial customers are encouraged, but are not obligated, to recycle; provided, however, no commercial customer in contractor's exclusive service area may allow or retain any person or entity other than contractor to collect, pickup, transport or deliver approved recyclable materials in violation of contractor's exclusive right under the commercial agreement. With the approval of the owner of a premises upon which commercial activity is being conducted, a tenant or occupant thereof may subscribe for collection services, but the owner shall remain responsible for compliance with all requirements of the commercial agreement and the Reno Municipal Code.

(c) EXEMPTION.

Any (i) owner of a residence seeking to be exempt from standard services, or (ii) operator seeking to be exempt from collections services of solid waste hereunder (collectively, the "applicant") must obtain an exemption from the city. To obtain the exemption, the applicant must apply to Washoe County Health District ("WCHD") and obtain written approval of the WCHD confirming a finding that: i) no solid waste, or as to exempted hauler accounts no garbage, is being generated, produced or accumulated on or from the premises, and ii) the applicant is not hauling, burying or otherwise disposing of solid waste in violation of any agreement, the Reno Municipal Code or other applicable law.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 5100, § 1, 12-14-99; Ord. No. 6260, § 1, 11-7-12)

Sec. 5.90.070. Reserved.

Editor's note—Ord. No. 6735, § 1, adopted February 25, 2026, repealed § 5.90.070, which pertained to franchise fees and derived from Ord. No. 6260, § 1, 11-7-12.

Sec. 5.90.080. Business license fees.

With regard to gross receipts subject to an agreement, and in accordance with RMC section 4.04.008, a franchise fee shall be in lieu of a city business license fee.

(Ord. No. 6260, § 1, 11-7-12)

Sec. 5.90.090. Customer rates and balancing adjustment.

The compensation to contractor under the residential agreement and commercial agreements shall include the rate revenues and the compensation to contractor under the residential agreement shall also include the balancing adjustment, as provided under the agreements. The collection of rate revenues by contractor from customers for collection services and the balancing adjustment (under the residential agreement) shall be contractors' sole compensation for provision of collection services; provided, however, contractor shall be entitled to charge other fees and charges for special services and other services and may charge other fees and charges for customer noncompliance as provided in the agreements. If a designated facility refuses to accept recyclable materials, contractor may collect and deliver such materials for disposal as solid waste and may charge the rate applicable to solid waste for such collection services.

(a) Residential rates.

Commencing for each residential customer on the date contractor begins the collection services to such residential customer, contractor shall charge and collect from customers for residential collection services the rates provided on the scope of services, which rates may be adjusted as provided in the residential agreement. The rates include the standard rates payable for standard services and the menu rates payable for menu services. Contractor shall not charge more than the rate specified for each service provided on the residential scope of services.

(1) Standard rate.

Contractor shall charge and collect from residential customers the standard rates for the standard services at the service level provided and residential customers shall be obligated to pay the standard rates (unless expressly exempted) whether or not the customer uses all standard services offered. Contractor will make the senior citizen rate for standard services available to qualified senior citizens upon request and verification of age.

(2) Menu rate.

Contractor shall charge and collect from residential customers the menu rates for any menu services requested by and provided to residential customers.

(b) Residential balancing adjustment.

(1) City and contractor acknowledge that the standard rates are not sufficient to pay the cost of providing the standard services under the residential agreement and a reasonable return on investment to contractor and that a shortfall ("shortfall") in compensation to contractor would exist if a balancing adjustment is not paid by city to contractor as provided in this article. Accordingly, city shall pay to contractor in monthly installments during the term of the residential agreement a

balancing adjustment ("balancing adjustment") equal to nineteen and 83/100 percent of the gross receipts, which balancing adjustment is subject to adjustment as provided in the residential agreement.

(2) The balancing adjustment for each calendar month ("subject month") during the term and any extensions of the term shall be paid by city to contractor on or before the 25th day of the following calendar month and shall be calculated by contractor on the basis of the gross receipts received and collected by contractor under the residential agreement during the subject month. Contractor shall provide to city on or before the 15th day of each calendar month a statement of the gross receipts and balancing adjustment for such payment, attested to by a representative of contractor as being true and correct. Any balancing adjustment not paid by the date due shall bear interest at seven percent per annum until paid and contractor may deduct and offset such past due amounts from any amounts payable by contractor to city under the residential agreement or any other agreement between contractor and the city. Contractor's gross receipts, the balancing adjustment and the calculation thereof and all related financial matters shall be subject to audit and inspection by the city under the residential agreement contractor shall cooperate fully in all such audits and inspections.

(c) Adjustment of rates and balancing adjustment.
The rates and the balancing adjustment shall be subject to adjustment as provided in the agreements.

(Ord. No. 6260, § 1, 11-7-12)

Sec. 5.90.100. Obligations and rights of contractors.

(a) The services to be provided by contractor under any agreement shall include the furnishing of all labor, supervision, vehicles, containers, other equipment, materials, supplies, and all other items necessary to perform all collection services, and the payment of all related expenses including all transfer and disposal fees, processing fees for recyclable materials, taxes, utility charges, etc. Contractor shall provide collection services using standard industry practice for comparable operations, in accordance with the applicable scope of services and operating standards.

(b) Each contractor shall provide the collection services in accordance with the terms, covenants and conditions of such contractor's agreement and shall have the rights and remedies provided in such contractor's agreement.

(Ord. No. 6260, § 1, 11-7-12)

Sec. 5.90.110. Compliance.

Persons generating, producing or accumulating collection materials in the city shall comply with the applicable terms, conditions and requirements of this article and the agreements. No person shall violate or impair the exclusive rights of any contractor under this article or any agreement. Contractor shall be entitled to independently enforce against third parties the terms, covenants, conditions and requirements of this and related articles and the agreements, including without limitation defending challenges thereto and to prevent violations by third parties thereof (including without limitation the exclusive right and obligation of contractor to provide the collection services).

(Ord. No. 6260, § 1, 11-7-12)

Sec. 5.90.120. Designated facilities.

City has entered into a disposal agreement with a third party. Except as expressly provided in the agreements, each contractor shall deliver all collection materials (excluding hazardous waste and other excluded materials) that it collects within its exclusive service area only to a designated facility which has been designated by the city pursuant to and in accordance with the requirements of the disposal agreement. Contractor will comply with the requirements of the agreements and the disposal agreement applicable to franchised haulers, including without limitation the franchise hauler terms. (Ord. No. 6260, § 1, 11-7-12)

Sec 5.90.130. Insurance.

(a) Contractor shall procure and maintain the following minimum insurance coverage:

(1) Commercial general liability:
Commercial general liability insurance with limits of not less than $2,000,000.00 per occurrence with an aggregate of $4,000,000.00. This policy shall be issued on a per-occurrence basis.

(2) Automobile liability:

Comprehensive automobile liability insurance with limits for bodily injury of not less than $2,000,000.00. Coverage shall include owned and non-owned vehicles used in connection with the agreement.

(3) Worker's Compensation:

A policy of Worker's Compensation insurance as may be required by the Nevada Revised Statutes.

(b) The insurance policies shall contain, or be endorsed to contain, the following provisions:

(1) City, its officers, officials, employees and volunteers are to be covered as additional insureds with respect to liability arising out of automobiles owned, leased, hired or borrowed by or on behalf of contractor; and with respect to liability arising out of work or operations performed by or on behalf of contractor including materials, parts or equipment furnished in connection with such work or operations.

(2) Contractor's insurance coverage shall be primary insurance in relation to the city, its officers, officials, employees, agents and volunteers. Any insurance or self-insurance maintained by city, its officers, officials, employees, agents or volunteers shall be excess of contractor's insurance and shall not contribute with it.

(3) Each insurance policy required by this clause shall be occurrence-based, or an alternate form as approved by the city representative and shall be endorsed to state that coverage shall not be canceled by the insurer or reduced in scope or amount except after 30 days' prior written notice has been given to city.

(4) Contractor's insurance shall apply separately to each insured against whom claim is made or suit is brought, except with respect to the limits of the insurer's liability.

(5) Worker's Compensation and Employers Liability Coverage. The insurer shall agree to waive all rights of subrogation against the city, its officers, officials, employees and volunteers for losses arising from work performed by contractor for city.

(c) Each insurance policy required by this article shall be occurrence-based or an alternate form as approved by the city representative and endorsed to state that coverage shall not be suspended, voided, canceled by either party, reduced in coverage or in limits except after 30 days' prior written notice by certified mail, return receipt requested, has been given to the city.

(d) Contractor shall furnish city, within 30 days after the effective date of its agreement and upon request of city thereafter, with original certificates evidencing coverage required under this article.

(e) All insurance policies required by this article shall be issued by admitted insurers in good standing with and licensed to do business in the State of Nevada, and possessing a current A.M. Best, Inc. rating of B+ FSC VIII or better.

(f) Contractor shall include all subcontractors as insureds under its policies or shall furnish separate certificates and endorsements for each subcontractor. All coverages for subcontractors shall be subject to all of the requirements stated in this article.

(g) The city council reserves the right to increase or decrease the insurance requirements upon 30 days' written notice.

(Ord. No. 6260, § 1, 11-7-12)

Sec. 5.90.140. Instrument for securing performance.

Not less than 30 days after the effective date of any agreement, contractor shall file with city an instrument, in form reasonably acceptable to city, securing such contractor's faithful performance of contractor's obligations under the agreement to which contractor is a party. The principal sum of the instrument shall be not less than $250,000.00. The instrument may be in the form of a letter of credit, performance bond, or other performance guarantee and shall remain in force during the term of the agreement. If the instrument is a performance bond it shall be executed by a surety company designated as an admitted insurer in good standing with and authorized to transact business in this State by the Nevada Department of Insurance and otherwise reasonably acceptable to the city. The premium for such bond or letter of credit, or any other charges related in any way to contractor's obtaining or maintaining any and all such instruments, shall be fully borne and paid by contractor. Recovery under the instrument shall not preclude city from seeking additional damages for contractors default under an agreement.

(Ord. No. 6260, § 1, 11-7-12)

Sec. 5.90.150. Compliance with other laws.

Subject to the rights of contractor under the agreements, the franchise under this article shall be subject to the provisions of the constitution and the laws of the state and ordinances enacted by the city council.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 5100, § 1, 12-14-99; Ord. No. 6260, § 1, 11-7-12)
Editor's note—Formerly § 5.90.090.

ARTICLE III. RESERVED*

Secs. 5.90.160—5.90.210. Reserved.

ARTICLE IV. DISCRETIONARY NATURAL GAS SERVICE†

Sec. 5.90.220 Definitions.

"Discretionary service" has the meaning ascribed to it in NAC 704. 79507.

"End-use customer" has the meaning ascribed to it in NAC 704.79509.

"Total gross revenue" does not include:

(1) Any fee amounts collected under Section 5.90.230(a).

(2) Any proceeds from the interstate sale of natural gas to a provider of electric energy which holds a certificate of public convenience and necessity issued by the Public Utilities Commission of Nevada.

***Editor's note—**Ord. No. 5255, § 1, adopted June 26, 2001, repealed Art. III, §§ 5.90.100—5.90.210, which pertained to water distribution. Subsequently, Ord. No. 6260, § 1, adopted November 7, 2012, amended Art. II to include provisions through 5.90.150. See the Code Comparative Table.
†Editor's note—Ord. No. 5018, § 1, adopted July 6, 1999, repealed Art. IV, §§ 5.90.220—5.90.310, which pertained to stead area water distribution. Subsequently, Ord. No. 6375, § 1, adopted September 9, 2015, effective September 11, 2015, added provisions designated as a new Art. IV, §§ 5.90.220, 5.90.230, to read as herein set out. See the Code Comparative Table.

(3) Write-offs for bad debt.

(4) Amounts due from the fraudulent or otherwise unlawful receipt of gas which are legally uncollectible or required to be refunded.

(5) Any tax on fuel or retail sales that are collected by any public utility.

(Ord. No. 6375, § 1, 9-9-15, eff. 9-11-15)

Sec. 5.90.230 Payment of quarterly fee on discretionary natural gas purchases.

(a) Commencing with the calendar quarter beginning October 1, 2015, every end-use customer purchasing natural gas to be consumed within the city limits of Reno, Nevada from a discretionary natural gas service provider licensed pursuant to NRS 704.997 or NRS 704.998 shall pay a fee as follows:

(1) Pursuant to NRS 704.9901, the fee shall be collected by the provider of the discretionary natural gas service and remitted quarterly to the city within thirty (30) days after the end of each calendar quarter.

(2) The fee shall be calculated by multiplying the franchise fee adopted in Reno Municipal Code, Chapter 5.90, Article VI, Section 5.90.450 by the total gross revenue earned from the provision of discretionary natural gas service to an end-use customer located within the city. This gross revenue pre-calculation may be offset by: (1) the amount of tax paid by the end-use customer to a public utility holding a franchise agreement in the city and (2) the amount of any taxes paid by the end-use customer on such gas to another state or governmental entity with the submission of proof of payment of said taxes.

(3) Each provider of discretionary natural gas service collecting the fee shall ensure that the amount which the end-use customer must pay pursuant to this section is set forth as a separate item or entry on each bill submitted to the end-use customer.

(b) Compliance with this ordinance shall satisfy the obligations of the end-use customer and the provider of discretionary natural gas service contained in NRS 704.9901.

(c) City shall provide 90 days' advance notice to each provider of discretionary natural gas service remitting the fee collected pursuant to this ordinance and each end-use customer of any change in the city's franchise fee adopted in RMC Section 90.450.

(Ord. No. 6375, § 1, 9-9-15, eff. 9-11-15)

Secs. 5.90.240—5.90.310. Reserved.

ARTICLE V. ELECTRICITY DISTRIBUTION

Sec. 5.90.320. Granting of franchise.

A franchise for the provision of retail electric services in the city is hereby created and will be granted and disposed of as provided in this article.

(a) Authority to grant franchises or licenses for retail electric services.
It shall be unlawful to engage in or commence construction, operation, or maintenance of a retail electrical system without a franchise issued under this article. The city council may award a nonexclusive franchise to construct, operate and maintain a retail electrical system which complies with the terms and conditions of this article subject to federal, state and local laws.

Any franchise granted pursuant to this article shall be nonexclusive and shall not preclude the city from granting other or further franchises or permits or preclude the city from using any roads, rights-of-way, streets or other public properties or affects its jurisdiction over them or any part of them; or limit the full power of the city to make all necessary changes, as the city in its sole discretion shall decide, including the dedication, establishment, maintenance and improvements of all new rights-of-way and thoroughfares and other public properties of any type. All franchise agreements granted subsequent to the effective date of this article shall be granted consistent with the terms and conditions of this article.

(b) Nature and extent of the franchise.
Any franchise granted hereunder by the city shall authorize the franchisee, subject to the provisions herein contained:

(1) To engage in the business of operating and providing retail electric service and the distribution and sale of such service to customers within the city.

(2) To construct, maintain and operate its electrical system on public property including air space, dedicated, granted, held, prescriptively used, or authorized by patent of the United States of America, for city public street and public utility purposes, except as limited by any underlying grant and except public streets in any federal aid highway or any highway controlled by the state within the city, to provide retail electric services to customers within the city, in accordance with the terms and conditions set forth in the Reno Municipal Code and franchise agreements granted subsequent to the effective date of this article.

(3) No privilege or exemption shall be granted or conferred upon the franchisee by any franchise except those specifically prescribed therein, and any use of any street consistent with any prior lawful occupancy of the street or any subsequent improvement or installation therein.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6104, § 1, 5-13-09)

Sec. 5.90.330. Franchise fee.

(a) Every public utility providing retail electric service to any customer located within the city must have a valid franchise agreement issued pursuant to this article, and remit to the city a quarterly franchise fee.

(b) The quarterly franchise fee required in subsection (a) of this section will be:

(1) Three (3) percent of the total gross revenue collected by the public utility commencing with the customer billing cycle starting June 1, 2009.

(2) Commencing with the customer billing cycle starting June 1, 2011, four (4) percent of the total gross revenue.

(3) Commencing with the customer billing cycle starting June 1, 2013, five (5) percent of the total gross revenue.

(c) For purposes of this section, "total gross revenue" means all revenue as defined in the franchise agreement earned from the provision of retail electric services to customers located within the city.

(Ord. No. 6104, § 3, 5-13-09)
Note—See the editor's note at §§ 5.90.340—5.90.430.

Secs. 5.90.340—5.90.430. Reserved.

Editor's note—Ord. No. 6104, § 2, adopted May 13, 2009, repealed §§ 5.90.330—5.90.430, which pertained to terms, conditions and purposes necessary to grant franchise; duration of franchise; installation areas; rights of franchisee to distribute electricity; rights allowed for safe installation; franchise fee; additional fees; conditions; written agreement to save city from damages; compliance with additional regulations; bids for franchise; and granting of franchise to person offering most advantageous terms to city. Section 3 of said ordinance enacted provisions designated as a new § 5.90.330 to read as herein set out. See also the Code Comparative Table.

ARTICLE VI. GAS DISTRIBUTION

Sec. 5.90.440. Granting of franchise.

A franchise for the provision of artificial or natural retail gas services in the city is hereby created and will be granted and disposed of as provided in this article.

(a) Authority to grant franchises or licenses for retail gas services.
It shall be unlawful to engage in or commence construction, operation, or maintenance of a retail gas system without a franchise issued under this article. The city council may award a nonexclusive franchise to construct, operate and maintain a retail gas system which complies with the terms and conditions of this article subject to federal, state and local laws.

Any franchise granted pursuant to this article shall be nonexclusive and shall not preclude the city from granting other or further franchises or permits or preclude the city from using any roads, rights-of-way, streets or other public properties or affects its jurisdiction over them or any part of them; or limit the full power of the city to make all necessary changes, as the city in its sole discretion shall decide, including the dedication, establishment, maintenance and improvements of all new rights-of-way and thoroughfares and other public properties of any type. All franchise agreements granted subsequent to the effective date of this article shall be granted consistent with the terms and conditions of this article.

(b) Nature and extent of the franchise.
Any franchise granted hereunder by the city shall authorize the franchisee, subject to the provisions herein contained:

(1) To engage in the business of operating and providing retail gas service and the distribution and sale of such service to customers within the city.

(2) To construct, maintain and operate its gas system on public property including air space, dedicated, granted, held, prescriptively used, or authorized by patent of the United States of America, for city public street and public utility purposes, except as limited by any underlying grant and except public streets in any federal aid highway or any highway controlled by the state within the city, to provide retail gas services to customers within the city, in accordance with the terms and conditions set forth in the Reno Municipal Code and franchise agreements granted subsequent to the effective date of this article.

(3) No privilege or exemption shall be granted or conferred upon the franchisee by any franchise except those specifically prescribed therein, and any use of any street consistent with any prior lawful occupancy of the street or any subsequent improvement or installation therein.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6103, § 1, 5-13-09)

Sec. 5.90.450. Franchise fee.

(a) Every public utility providing retail gas service to any customer located within the city must have a valid franchise agreement issued pursuant to this article, and remit to the city a quarterly franchise fee.

(b) The quarterly franchise fee required in subsection (a) of this section will be:

(1) Three (3) percent of the total gross revenue collected by the public utility commencing with the customer billing cycle starting June 1, 2009.

(2) Commencing with the customer billing cycle starting June 1, 2011, four (4) percent of the total gross revenue.

(3) Commencing with the customer billing cycle starting June 1, 2013, five (5) percent of the total gross revenue.

(c) For purposes of this section, "total gross revenue" means all revenue as defined in the franchise agreement earned from the provision of retail gas services to customers located within the city.

(Ord. No. 6103, § 3, 5-13-09)
Editor's note—See the editor's note at §§ 5.90.460—5.90.540.

Secs. 5.90.460—5.90.540. Reserved.

Editor's note—Ord. No. 6103, § 2, adopted May 13, 2009, repealed §§ 5.90.450—5.90.540, which pertained to terms, conditions and purposes needed to grant franchise; length of time franchise is effective; installation areas; gas rights of franchisee; franchise fee; additional fees; conditions; written agreement to protect city from damage; compliance with additional regulations; bids for franchise; and granting of franchise to person offering most advantageous terms to city. Section 3 of said ordinance enacted provisions designated as a new § 5.90.450 to read as herein set out.

ARTICLE VII. WARREN ESTATES GEOTHERMAL WATER DISTRIBUTION

Sec. 5.90.550. Definitions.

For all purposes the following terms, phrases, words, abbreviations, and their derivations shall have the same meaning given herein:

Geothermal resource: The natural heat of the earth and the energy associated with that natural heat, pressure and all dissolved or entrained minerals that may be obtained from the medium used to transfer that heat, but excluding hydrocarbons and helium.

Geothermal water distribution system: Includes all production, collection, transmission, distribution and disposal facilities located on or under any street, within the city.

Gross revenues: All revenues derived by the franchisee from the sale of geothermal water to its customers within the service area as reported by it to the public service commission of the state.

Service area: A parcel of land known commonly as Warren Estates situate within the northwest quarter and southwest quarter and the west half, northwest quarter, of Section 26, T. 19 N., R. 19 E., M.D.M., being more particularly described as follows: Beginning at the northwest corner of said Section 26; thence north 89 degrees 13 minutes 00 seconds east 788.91 feet along the north line of said Section 26; thence leaving said line and proceeding south 04 degrees 55 minutes 42 seconds west 218.30 feet; thence south 03 degrees 47 minutes 18 seconds east 115.00 feet; thence south 08 degrees 28 minutes 18 seconds east 100.00 feet; thence south 04 degrees 24 minutes 18 seconds east 80.00 feet; thence south 29 degrees 02 minutes 42 seconds west 100.00 feet; thence south 55 degrees 11 minutes 42 seconds west 100.00 feet; thence south 47 degrees 26 minutes 18 seconds east 100.00 feet; thence north 52 degrees 25 minutes 42 seconds east 195.00 feet; thence north 67 degrees 08 minutes 42 seconds east 175.50 feet; thence north 79 degrees 22 minutes 42 seconds east 180.80 feet; thence north 65 degrees 41 minutes 18 seconds east 55.63 feet; thence north 00 degrees 48 minutes 42 seconds east 356.30 feet; thence north 07 degrees 14 minutes 42 seconds east 177.90 feet to the northeast corner of the west half, northwest quarter said Section 26; thence south 00 degrees 48 minutes 42 seconds west 2,651.81 feet along the east line of said west half, northwest quarter; thence south 00 degrees 48 minutes 30 seconds west 1,318.89 feet along the east line of the northwest quarter, southwest quarter said Section 26 to the southwest corner of said northwest quarter, southwest quarter; thence north 89 degrees 32 minutes 04 seconds west 1,316.08 feet along the south line of said northwest quarter, southwest quarter to the southwest corner of said northwest quarter, southwest quarter; thence north 00 degrees 50 minutes 45 seconds east 1,316.63 feet along the west line of said Section 26 to the west quarter corner of said Section 26; thence continuing along said line north 00 degrees 51 minutes 09 seconds east 2,625.44 feet to the point of beginning.

Street: The surface of and the space above and below any public street, road, highway, freeway, land, path, public way, or place, alley, court, boulevard, parkway, drive or other easement now or hereafter held by the city for the purpose of public travel and shall include other easements or rights-of-way as shall be now held or hereafter held by the authority which shall, within their proper use and meaning, entitle the authority and its grantee to the use thereof for the purpose of erecting, constructing and maintaining all necessary, appropriate or convenient water mains and pipes, apparatus, appliances and equipment, underground or otherwise, in, upon, over, under, across and along the streets within the service area in order to construct, extend, maintain and operate a geothermal water distribution system.

Well: Any artificial opening or artificially altered natural opening, however made, by which geothermal fluids or groundwater is sought or through which geothermal fluids or groundwater flows under natural pressure or is artificially withdrawn, or is used to operate a heat exchanger within the well, provided that this definition shall not include a natural spring.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.560. Granting of franchise.

A franchise for the distribution of geothermal resources in the service area, as defined herein, in the city is hereby created and will be granted and disposed of as hereinafter provided.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.570. Terms, conditions and purposes.

Such franchise shall be granted to the qualified person, firm or corporation hereinafter called "franchisee" offering the best and most advantageous terms and conditions to the city; provided, however, that such franchise shall, in any event, contain the following terms, privileges, conditions and obligations as set forth in this article.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.580. Length of time franchise is effective.

Franchisee, its successors or assigns, is hereby granted a franchise and rights-of-way by the city to erect, construct and maintain all necessary, appropriate or convenient water mains and pipes, apparatus, appliances and equipment, underground or otherwise, in, upon, under, across and along the streets and alleys of the city, which shall include and be limited to the area depicted on the attached map shown as "Exhibit A" [not reproduced herein] and defined herein as "service area" in order to construct, extend and maintain and operate a geothermal water distribution system in a portion of the city for a period of 15 years, commencing upon passage, adoption and publication of this article.

The franchised geothermal water distribution system shall be subject to city acquisition at depreciated fair market value at any time during the term of the franchise.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.590. Rights of franchisee.

Franchisee, its successors and assigns, shall have the right to furnish and sell geothermal resources for domestic and other uses during the term of this franchise to all customers residing within the service area, and shall have the right to extend its distribution system over, under, upon, across and along the streets and public grounds within the service area.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.600. Franchise fee.

Franchisee, its successors and assigns shall pay a franchise fee to the city equal to two percent of the gross revenues derived by the franchise from the sale of geothermal resource to its customers within the service area during each calendar year. Payments shall be made on or before the fifteenth day of January, the fifteenth day of April, the fifteenth day of July, and the fifteenth day of October and each such payment shall equal two percent of the aforesaid gross revenues during the three calendar months immediately next preceding the due date of each such payment. Should the franchisee fail to make said payments by said due dates, the city shall assess a late penalty charge at the rate of ten percent for the immediately preceding three months or fraction thereof until all past due charges, plus penalties, have been paid. The franchisee, at the time of making payments, shall submit to the city a duly verified statement showing in detail the total revenue collected by the franchisee for the period covered by said payment, said payments to be computed and payable from the time the geothermal water distribution system is in operation in the city. Any neglect, omission or refusal by the franchisee to file the aforementioned verified statement or to pay the franchise fee and late penalty charges in the manner provided shall be grounds for the declaration of a forfeiture of the franchise agreement and all rights thereunder. The city shall be granted the right at any reasonable time to examine the books and records of the franchise for the purpose of verifying franchisee's gross revenue during the term of the franchise. In the event that the franchise does not derive any gross receipts from the sale of geothermal resource, the method of determining the franchise fee shall at such time be determined and agreed to by the franchisee and the city.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.610. Additional fees; conditions.

So long as the aforesaid franchise fee is paid by franchisee, its successors or assigns, no other general business license fees shall be imposed upon it or them by the city during the term of the franchise; provided however, such substitution of a franchise fee for other general business license shall not eliminate or otherwise modify franchisee's duty and obligation to pay building permit fees or other fees of a like nature or ad valorem taxes of franchisee's real and personal property in the city.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.620. Requirements of franchisee.

Franchisee, its successors and assigns shall at their expense:

(1) Lay and install the water mains, pipes, apparatus, appliances and equipment herein mentioned so as not unduly to interfere with the ordinary travel and use of the streets or public grounds within the service area and in accordance with, and in conformity

with, all of the ordinances, rules and regulations and specifications heretofore or hereafter adopted by the city council in the exercise of its police powers and in accordance with the provisions and general laws of the United States or the state relating to or applicable to the whole or any part of a geothermal Water distribution system and shall in like manner maintain the same during the term of the franchise agreement.

(2) Notify the city, in writing, at least six weeks prior to any proposed construction over, along, under, across or upon the streets, ways, alleys and public grounds when said construction involves the city and the franchisee.

(3) Schedule said construction on a date or dates mutually agreeable to the city and the franchisee.

(4) Restore all streets, ways, alleys and public grounds to their original condition upon completion of the construction.

(5) Pay to the city on demand the cost of all repairs made necessary by any operation under the franchise agreement.

(6) Furnish the city location maps of all current and future water mains and pipes, apparatus, appliance and equipment used in connection with the geothermal water distribution system.

(7) Relocate, reinstall or adjust any property of the franchisee, necessary for the realignment and modification of a street or public way or development, construction, or installation of any city public project, upon 60 days' notice from the city.

(8) Grant to the city the right to examine at any reasonable time the operational and maintenance records of the franchise.

(9) Guarantee that no geothermal well or facilities constructed shall be operated in such a manner as to cause the depletion of any geothermal resource, adversely interfere with other geothermal wells in the city or cause geothermal resources/fluids and/or thermal groundwater to be discharged onto the surface of the ground or into any public ditch, drainage facility or into the sewage system of the city.

(10) Agree that if the franchisee fails to perform any condition of the franchise, fails to abide by all the laws, rules and regulations pertaining to the franchise, or becomes bankrupt or insolvent, the city shall have the right to terminate the franchise and agreement so awarded, if the franchise fails to correct the deficiency if one exists or enter into negotiations with the city for determination of any contested deficiency within 30 days after receipt of notice in writing and addressed by registered mail to the franchisee's principal office.

(11) Agree that any franchise agreement awarded and any rights created thereby shall not be assigned, or control of the franchise transferred without the consent of the city and authorization by the Nevada Public Service Commission for the assignee to operate and provide geothermal water distribution service in the service area.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.630. City inspection and monitoring of wells and geothermal facilities.

City officials may enter upon any property of the franchisee and the service area for purposes of inspecting wells and/or geothermal facilities, or monitoring the operational characteristics of

such wells and/or facilities, when such inspection and/or monitoring is reasonably necessary to the assessment of groundwater or geothermal fluid temperatures, chemistry, static levels, quantities, and movements; the assessment of land subsidence or erosion; and/or the assessment of other indices related to geothermal or groundwater reservoir management, or protection of the public safety and welfare. The city shall provide reasonable notice describing the nature, purpose and duration of the necessary inspection and/or monitoring.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.640. Compliance regulations.

The franchisee agrees to:

(1) Obtain an operating permit from the public service commission of the state in accordance with section 3.1 of general order no. 35 of said commission and all other necessary permits required in connection with its operation and to comply with all existing or future federal, state and local statutes, ordinances or regulations which pertain to the activities conducted by the franchisee.

(2) Comply with the provisions of the Nevada Industrial Insurance Act and pay for and maintain industrial insurance coverage at the sole cost and expense of the franchisee.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.650. Written agreement.

Franchisee, its successors and assigns, shall file with the clerk of the city its written agreement to:

(1) Indemnify and hold harmless the city and the city council and the employees of the city for any and all liability for damages resulting from any operation under the franchise agreement and arising out of any act that impacts the normal operations of the geothermal water distribution system and geothermal resources in the city. The franchisee shall throughout the term of the franchise agreement, maintain in full force and effect with a carrier or carriers selected by the franchisee and approved by the city insurance in a minimum amount of not less than $1,000,000.00 per injury and $3,000,000.00 per occurrence, protecting all insured against liability arising out of any act or admission done pursuant to the franchise agreement and naming the city as an additional insured. Said certificates of insurance shall provide a 30-day notice of cancellation to all insureds.

(2) Hold the city harmless of and from, notwithstanding the existence of any insurance coverage, any and all liability, damages, claims and demands of every kind and character arising out of the granting of the franchise and the execution of a franchise agreement in the event, for any reason whatsoever, the term thereof shall be challenged or questioned by any person or persons whomsoever.

(Ord. No. 4765, § 1, 7-8-97)

ARTICLE VIII. SKYLINE AREA GEOTHERMAL WATER DISTRIBUTION

Sec. 5.90.660. Definitions.

For all purposes the following terms, phrases, words, abbreviations, and their derivations shall have the same meaning given herein:

Geothermal resource means the natural heat of the earth and the energy associated with that natural heat, pressure and all dissolved or entrained minerals that may be obtained from the medium used to transfer that heat, but excluding hydrocarbons and helium.

Geothermal water distribution system includes all production, collection, transmission, distribution, and disposal facilities located on or under any street within the city.

Gross revenues shall mean all revenues derived by the franchisee from the sale of geothermal water to its customers within the service area as reported by it to the public service commission of the state.

Service area shall mean a parcel of land situate within Skyline Subdivision No. 4-A, City of Reno, Washoe County, Nevada, being more particularly described as follows: Beginning at the northeast corner of Section 27, T. 19 N., R. 19 E., M.D.M.; thence south 0 degrees 05 minutes west, 613.03 feet; thence north 89 degrees 55 minutes west, 185.0 feet; thence south 0 degrees 05 minutes west, 2.40 feet; thence on a curve to the right with a central angle of 90 degrees 00 minutes and a radius of 20 feet an arc distance of 31.42 feet; thence on a curve to the left with a central angle of 44 degrees 32 minutes 47 seconds and a radius of 195.90 feet, an arc distance of 152.31 feet; thence south 45 degrees 32 minutes 13 seconds west, 142.98 feet; thence on a curve to the right with a central angle of 22 degrees 22 minutes 47 seconds and a radius of 275 feet, an arc distance of 107.42 feet; thence south 67 degrees 55 minutes west, 43.49 feet; thence on a curve to the left with a central angle of 27 degrees 00 minutes and a radius of 325 feet, an arc distance of 153.15 feet; thence south 40 degrees 55 minutes west, 100.0 feet; thence north 54 degrees 41 minutes 18 seconds west, 224.62 feet; thence north 27 degrees 06 minutes 24 seconds east, 54.27 feet; thence north 62 degrees 53 minutes 36 seconds west, 150.0 feet; thence north 27 degrees 06 minutes 24 seconds east, 303.72 feet; thence on a curve to the right, with a central angle of 17 degrees 14 minutes 37 seconds and a radius of 785 feet, an arc distance of 236.25 feet; thence north 44 degrees 21 minutes 01 seconds east, 273.72 feet; thence south 45 degrees 38 minutes 59 seconds east, 170.0 feet; thence north 39 degrees 11 minutes 42 seconds east, 273.22 feet and thence north 86 degrees 52 minutes east, 309.29 feet to the place of beginning, being an area of 15 acres, more or less and situate in the northeast quarter of said Section 27.

Street shall mean the surface of and the space above and below any public street, road, highway, freeway, land, path, public way, or place, alley, court, boulevard, parkway, drive or other easement now or hereafter held by the city for the purpose of public travel and shall include other easements or rights-of-way as shall be now held or hereafter held by the authority which shall, within their proper use and meaning, entitle the authority and its grantee to the use thereof for the purpose of erecting, constructing and maintaining all necessary, appropriate or convenient water mains and pipes, apparatus, appliances and equipment, underground or otherwise, in, upon, over, under, across and along the streets within the service area in order to construct, extend, maintain and operate a geothermal water distribution system.

Well shall mean any artificial opening or artificially altered natural opening, however made, by which geothermal fluids or groundwater is sought or through which geothermal fluids or groundwater flows under natural pressure or is artificially withdrawn, or is used to operate a heat exchanger within the well, provided that this definition shall not include a natural spring.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.670. Granting of franchise.

A franchise for the distribution of geothermal resources in the service area, as defined herein, in the city is hereby created and will be granted and disposed of as hereinafter provided.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.680. Terms, conditions and purposes.

Such franchise shall be granted to the qualified person, firm or corporation hereinafter called "franchisee" offering the best and most advantageous terms and conditions to the city; provided, however, that such franchise shall, in any event, contain the following terms, privileges, conditions and obligations set forth in this article.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.690. Length of time franchise is effective.

Franchisee, its successors or assigns, is hereby granted a franchise and rights-of-way by the city to erect, construct and maintain all necessary, appropriate or convenient water mains and pipes, apparatus, appliances and equipment, underground or otherwise, in, upon, under, across and along the streets and alleys of the city, which shall include and be limited to the area depicted on the attached map shown as Exhibit A [not reproduced herein] and defined herein as "service area" in order to construct, extend and maintain and operate a geothermal water distribution system in a portion of the city for a period of 15 years, commencing upon passage, adoption and publication of this article. The franchised geothermal water distribution system including a reasonable assessment of the geothermal resource shall be subject to city acquisition at fair market value at any time during the term of the franchise.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.700. Rights of franchisee.

Franchisee, its successors and assigns, shall have the right to furnish and sell geothermal resources for domestic and other uses during the term of this franchise to all customers residing within the service area, and shall have the right to extend its distribution system over, under, upon, across and along the streets and public grounds within the service area.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.710. Franchise fee.

Franchisee, its successors and assigns shall pay a franchise fee to the city equal to two percent of the gross revenues derived by the franchise from the sale of geothermal resource to its customers within the service area during each calendar year. Payments shall be made on or before the fifteenth day of January, the fifteenth day of April, the fifteenth day of July, and the fifteenth day of October and each such payment shall equal two percent of the aforesaid gross revenues during the three calendar months immediately next preceding the due date of each such payment. Should the franchisee fail to make said payments by said due dates, the city shall assess a late penalty charge at the rate of ten percent for the immediately preceding three months or fraction thereof until all past due charges, plus penalties, have been paid. The franchisee, at the time of making payments, shall submit to the city a duly verified statement showing in detail the total revenue collected by the franchisee for the period covered by said payment, said payments to be computed and payable from the time the geothermal water distribution system is in operation in the city. Any neglect, omission or refusal by the franchisee to file the aforementioned verified statement or to pay the franchise fee and late penalty charges in the manner provided shall be grounds for the declaration of a forfeiture of the franchise agreement and all rights thereunder. The city shall be granted the right at any reasonable time to examine the books and records of the franchise for the purpose of verifying franchisee's

gross revenue during the term of the franchise. In the event that the franchise does not derive any gross receipts from the sale of geothermal resource, the method of determining the franchise fee shall at such time be determined and agreed to by the franchisee and the city.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.720. Additional fees; conditions.

So long as the aforesaid franchise fee is paid by franchisee, its successors or assigns, no other general business license fees shall be imposed upon it or them by the city daring the term of the franchise; provided, however, such substitution of a franchise fee for other general business license shall not eliminate or otherwise modify franchisee's duty and obligation to pay building permit fees or other fees of a like nature or ad valorem taxes of franchisee's real and personal property in the city.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.730. Requirements of franchisee.

Franchisee, its successors and assigns shall at their expense:

(1) Lay and install the water mains, pipes, apparatus, appliances and equipment herein mentioned so as not unduly to interfere with the ordinary travel and use of the streets or public grounds within the service area and in accordance with, and in conformity with, all of the ordinances, rules and regulations and specifications heretofore or hereafter adopted by the city council in the exercise of its police powers and in accordance with the provisions and general laws of the United States or the state relating to or applicable to the whole or any part of a geothermal water distribution system and shall in like manner maintain the same during the term of the franchise agreement.

(2) Notify the city, in writing, at least six weeks prior to any proposed construction over, along, under, across or upon the streets, ways, alleys and public grounds when said construction involves the city and the franchisee.

(3) Schedule said construction on a date or dates mutually agreeable to the city and the franchisee.

(4) Restore all streets, ways, alleys and public grounds to their original condition upon completion of the construction.

(5) Pay to the city on demand the cost of all repairs made necessary by any operation under the franchise agreement.

(6) Furnish the city location maps of all current and future water mains and pipes, apparatus, appliance and equipment used in connection with the geothermal water distribution system.

(7) Relocate, reinstall or adjust any property of the franchisee, necessary for the realignment and modification of a street or public way or development, construction, or installation of any city public project, upon 60 days' notice from the city.

(8) Grant to the city the right to examine at any reasonable time the operational and maintenance records of the franchise.

(9) Guarantee that no geothermal well or facilities constructed shall be operated in such a manner as to cause the depletion of any geothermal resource, adversely interfere

with other geothermal wells in the city or cause geothermal resources/fluids and/or thermal groundwater to be discharged onto the surface of the ground or into any public ditch, drainage facility or into the sewage system of the city.

(10) Agree that if the franchisee fails to perform any condition of the franchise, fails to abide by all the laws, rules and regulations pertaining to the franchise, or becomes bankrupt or insolvent, the city shall have the right to terminate the franchise and agreement so awarded, if the franchisee fails to correct the deficiency, if one exists, or enter into negotiations with the city for determination of any contested deficiency within 30 days after receipt of notice in writing and addressed by registered mail to the franchisee's principal office.

(11) Agree that any franchise agreement awarded and any rights created thereby shall not be assigned, or control of the franchise transferred without the consent of the city and authorization by the state public service commission for the assignee to operate and provide geothermal water distribution service in the service area.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.740. City inspection and monitoring of wells and geothermal facilities.

City officials may enter upon any property of the franchisee and the service area for purposes of inspecting wells and/or geothermal facilities, or monitoring the operational characteristics of such wells and/or facilities, when such inspection and/or monitoring is reasonable necessary to the assessment of groundwater or geothermal fluid temperatures chemistry, static levels, quantities, and movements; the assessment of land subsidence or erosion; and/or the assessment of other indices related to geothermal or groundwater reservoir management, or protection of the public safety and welfare. The city shall provide reasonable notice describing the nature, purpose, and duration of the necessary inspection and/or monitoring.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.750. Compliance with regulations.

The franchisee agrees to:

(1) Obtain an operating permit from the public service commission of the state in accordance with section 3.1 of general order no. 35 of said commission and all other necessary permits required in connection with its operation and to comply with all existing or future federal, state and local statutes, ordinances or regulations which pertain to the activities conducted by the franchisee.

(2) Comply with the provisions of the state industrial insurance act and pay for and maintain industrial insurance coverage at the sole cost and expense of the franchisee.

(Ord. No. 4765, § 1, 7-8-97)

Sec. 5.90.760. Written agreement.

Franchisee, its successors and assigns, shall file with the clerk of the city its written agreement to:

(1) Indemnify and hold harmless the City of Reno and the Reno city council and the employees of the city for any and all liability for damages resulting from any operation

under the franchise agreement and arising out of any act that impacts the normal operations of the geothermal water distribution system and geothermal resources in the city. The franchisee shall throughout the term of the franchise agreement, maintain in full force and effect with a carrier or carriers selected by the franchisee and approved by the city insurance in a minimum amount of not less than $1,000,000.00 per injury and $3,000,000.00 per occurrence, protecting all insured against liability arising out of any act or admission done pursuant to the franchise agreement and naming the city as an additional insured. Said certificates of insurance shall provide a thirty-day notice of cancellation to all insureds.

(2) Hold the city harmless of and from, notwithstanding the existence of any insurance coverage, any and all liability, damages, claims and demands of every kind and character arising out of the granting of the franchise and the execution of a franchise agreement in the event, for any reason whatsoever, the term thereof shall be challenged or questioned by any person or persons whomsoever.

(Ord. No. 4765, § 1, 7-8-97)

Secs. 5.90.770—5.90.790. Reserved.

ARTICLE IX. MASTER CABLE TELEVISION ORDINANCE*

Sec. 5.90.800. Definitions.

(a) GENERAL DEFINITIONS.

Except as otherwise provided herein, all words shall have the customary dictionary meaning.

(1) The present tense includes the future tense.

(2) The singular number includes the plural and the plural number includes the singular.

(3) The masculine, feminine and neuter genders shall each be deemed to include the other or others whenever the context so indicates.

(4) The word "person" includes a firm, corporation, association, organization, trust, or partnership.

(5) The word "shall" is mandatory.

(6) The word "may" is permissive.

(b) SPECIFIC DEFINITIONS.

It is the intention of the City that the following definitions also be made part of subsequent cable franchise agreements.

(1) *Access channels* or *PEG channels* means free composite channels to be used for public, educational, and government purposes.

(2) *Adoption* shall mean the process necessary to formally enact the provisions of this article within the city's jurisdiction under applicable law.

***Editor's note—**Ord. No. 5565, § 1, adopted April 21, 2004, amended Art. IX, in its entirety, to read as herein set out. Prior to inclusion of said ordinance, Art. IX pertained to similar subject matter. See also the Code Comparative Table.

State law references—City may grant cable franchise, NRS 711.190; fees for franchise, NRS 711.200; renewal of franchise, NRS 711.210.

(3) *Basic services tier* means those broadcast and nonbroadcast services provided by the Cable Operator at the lowest monthly charge and consisting of local stations, access channels, and any other distant retransmission and/or satellite channels selected by the Cable Operator.

(4) *Cable Act* means the Cable Communications Policy Act of 1984, and any subsequent amendments.

(5) *Cable operator* shall mean any person or group of persons who provides cable service over a cable system and directly or through one or more affiliates, owns a significant interest in such cable system, or who otherwise controls or is responsible for the management and operation of such cable system in the Franchise Service Area.

(6) *Cable service* means (i) the one-way transmission to Subscriber of video programming or other programming service, and (ii) Subscriber interaction, if any, which is required for the selection by the Subscriber of such video programming or other programming service.

(7) *Channel* means a single path or section of the spectrum which carries a television signal.

(8) *City* means the City of Reno, a municipal corporation of the State of Nevada.

(9) *City Council* means the present governing body of the City or any future Council constituting the legislative body of the City.

(10) *City Manager* means the City Manager or the City Manager's designee.

(11) *Community antenna television system, CATV, cable television system,* or *system* means a system of antennas, cables, wires, lines, towers, transmission lines, equipment or facilities, designed and constructed for the purpose of producing, receiving, transmitting, amplifying, scrambling and distributing audio, video and other forms of electronic or electrical signals, located in whole or in part in the City, consistent with NRS 711.020 et seq., as subsequently amended.

(12) *Converter* or *digital converter* means an electronic device which converts signals to a frequency not susceptible to interference within the television receiver of a Subscriber, and with an appropriate channel selector which also permits a Subscriber to view all signals delivered at designated converter dial locations.

(13) *Council* means the present governing body of the City or any future board constituting the legislative body of the City.

(14) *Customer* or *Subscriber* shall mean any person who legally receives cable television service from the Cable Operator.

(15) *Customer Service Representative* (or *"CSR"*) shall mean any person employed by the Cable Operator to assist, or provide service to, Subscribers, whether by answering public telephone lines, writing service or installation orders, answering Subscribers' questions, receiving and processing payments, or performing other customer service-related tasks.

(16) *Disability.* A person is considered to have a disability if that person (1) has a physical or mental impairment which substantially limits one or more of that person's life

activities such as hearing, seeing, speaking, walking, breathing, performing manual tasks, caring for oneself, learning or working; and (2) has a medical record of such an impairment.

(17) *Dwelling unit* means residential living facilities as distinguished from temporary lodging facilities such as hotel and motel rooms and dormitories, and includes single-family residential units and individual apartments, condominium units, mobile homes within mobile home parks, and other multiple-family residential units.

(18) *FCC* means the Federal Communications Commission, or successor governmental entity thereto.

(19) *Gross revenues* includes, subject to federal, state and local law and any amendments thereto, without limitation, customer revenues including those for basic, expanded basic, or digital cable services; premium services; pay per view; installation, disconnection or service call fees; fees for the provision, sale, rental or lease of converters, remote controls, additional outlets and other customer premises equipment; amounts collected from Subscribers for franchise fees in accordance with federal statutory and case law, including but not limited to, *City of Dallas v. FCC,* 118 F.3d 393 (5th Cir. 1997), and all other services allowed by law. Gross revenues shall not include (1) any taxes, fees or assessments of general applicability collected by Cable Operator from Subscribers for pass-through to a government agency, including the FCC User Fee; (2) unrecovered bad debt; (3) any PEG amounts recovered from Subscribers or capital costs required by Cable Operator for PEG; (4) any incidental costs associated with the awarding or enforcing of the franchise including payments for bonds, security funds, letters of credit, insurance, indemnification, penalties or liquidated damages; and (5) any applicable deductions allowed pursuant to state law, including but not limited to, NRS 711.200.

(20) *Installation* means the connection of the system from feeder cable to Subscribers' terminals.

(21) *Institutional services* means a cable communications system designated principally for the provision of services to schools, public agencies or other non-profit agencies, separate and distinct from the subscriber network, or on secured channels of the subscriber network.

(22) *Interactive services* means services provided to Subscribers where the Subscriber either (i) both receives information consisting of either television or other signals and transmits signals generated by the Subscriber or equipment under his/her control for the purpose of selecting what information shall be transmitted to the Subscriber or for any other purpose; or (ii) transmits signals to any other location for any purpose.

(23) *Interconnect* means a link by various technical means to other cable systems for purposes of program distribution.

(24) *Leased access channels* means any channel or portion of a channel available for programming for a fee or charge by persons or entities other than the Cable Operator.

(25) *Local origination channel* means any channel or portion of a channel which is programmed by the Cable Operator.

(26) *Normal business hours* means those hours during which most similar businesses in the community are open to serve customers. Normal business hours includes some evening hours at least one night per week and/or some weekend hours.

(27) *Normal operating conditions* means those service conditions which are within the control of the Cable Operator. Those conditions which are not within the control of the Cable Operator include, but are not limited to, natural disasters, civil disturbances, power outages, telephone network outages, and severe or unusual weather conditions. Those conditions which are ordinarily within the control of the Cable Operator include, but are not limited to, special promotions, pay-per-view events, rate increases, regular or seasonal demand periods, and maintenance or upgrade of the cable system.

(28) *Pay-per-view (PPV)* means per-event video programming for which the Subscriber pays over and above the fee for regular cable service.

(29) *Premium services* means video programming over and above those provided by basic services for which there is additional charge.

(30) *Property of the Cable Operator* means all property owned, installed or used by a Cable Operator in the conduct of a cable business in the City under the authority of a franchise granted pursuant to this article.

(31) *Proposal* means the response, by an individual or organization, to a request by the City regarding the provision of cable services; or an unsolicited plan submitted by an individual or organization seeking to provide cable services in the city.

(32) *Public way* means the surface of, and the space above and below, any public street, highway, freeway, bridge, land path, alley, court, boulevard, sidewalk, parkway, way, lane, public way, drive, circle or other public right-of-way, including, but not limited to, public utility easements, dedicated utility strips or rights-of-way dedicated for compatible uses and any temporary or permanent fixtures or improvements located thereon now or hereafter held by the City in the service area which shall entitle the City and the Cable Operator to the use thereof for the purpose of installing or transmitting the Cable Operator's cable service or other service over poles, wires, cables, conductors, ducts, conduits, vaults, manholes, amplifiers, compliances, attachments and other property as may be ordinarily necessary and pertinent to the cable system.

(33) *Service interruption* or *loss of service* means the loss of picture or sound on one or more cable channels.

(34) *Subscriber* means a person or user of the cable system who lawfully receives cable services or other service therefrom with the Cable Operator's express permission.

(35) *Video programming* means programming provided by or generally considered comparable to programming provided by a television broadcast station.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.805. Regulation of basic service rates and charges.

(a) The City may regulate rates except to the extent prohibited by state and federal law.

(b) In connection with state and federal law, as set forth in paragraph (a) above, the City will ensure a reasonable opportunity for consideration of the views of interested parties.

(c) The City Manager, or his designees, is authorized to execute on behalf of the City and file with the FCC such certification forms or other instructions as are now or may hereafter be required by the FCC rate regulations in order to enable the City to regulate basic service rates and charges.

(d) Each Cable Operator shall file with the City Clerk an up-to-date rate schedule and user rates, fees and charges for all cable services and products provided at least 30 days before the changes go into effect.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.810. Terms.

(a) AUTHORITY TO GRANT FRANCHISES OR LICENSES FOR CABLE TELEVISION:
It shall be unlawful to engage in or commence construction, operation, or maintenance of a cable television system without a franchise issued under this article or a franchise granted prior to the adoption of this article. The Council may award a nonexclusive franchise to construct, operate and maintain a cable television system which complies with the terms and conditions of this article subject to federal, state and local laws.

Any franchise granted pursuant to this article shall be nonexclusive and shall not preclude the City from granting other or further franchises or permits or preclude the City from using any roads, rights-of-way, streets or other public properties or affects its jurisdiction over them or any part of them; or limit the full power of the City to make all necessary changes, as the City in its sole discretion shall decide, including the dedication, establishment, maintenance and improvements of all new rights-of-way and thoroughfares and other public properties of any type. All franchise agreements granted subsequent to the effective date of this master cable ordinance shall be granted consistent with the terms and conditions of this article.

(b) NATURE AND EXTENT OF THE FRANCHISE:
Any franchise granted hereunder by the City shall authorize the Cable Operator, subject to the provisions herein contained:

(1) To engage in the business of operating and providing cable service and the distribution and sale of such service to subscribers within the city;

(2) To erect, install, construct, repair, replace, reconstruct, maintain and retain in, on, over, under, upon, across and along any street, such amplifiers and appliances, lines, cables, conductors, vaults, manholes, pedestals, attachments, supporting structures, and other property as may be necessary and appurtenant to the cable communications system and, in addition, so to use, operate, and provide similar facilities, or properties rented or leased from other persons, firms or corporations, including but not limited to any public utility or other Cable Operator franchised or permitted to do business in the city;

(3) No privilege or exemption shall be granted or conferred upon the Cable Operator by any franchise except those specifically prescribed therein, and any use of any street consistent with any prior lawful occupancy of the street or any subsequent improvement or installation therein.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.815. Violation—Penalty

(a) Any notice of violation issued pursuant to this article shall be adjudicated in accordance with the provisions of the Reno Municipal Code, section 1.05.005 et seq.

(b) In addition to any other remedies provided for in this article or otherwise available by law, the City's hearing officer shall have the power to impose monetary penalties in the event a

Cable Operator violates any provision of this article or other provision of the Municipal Code, a franchise agreement, or any rule or regulation lawfully adopted thereunder. The amounts of such penalties shall be based on the following principles:

(1) Penalties shall exceed the financial benefits to a Cable Operator delaying or failing to comply with the applicable requirement;

(2) Even where such benefits are not easily discernible, the penalties shall be high enough to have a significant deterrent effect on a Cable Operator; and

(3) Penalties shall be sufficient to protect the City and other affected parties against loss of revenues resulting from violations.

(c) A franchise shall also provide for fines, liquidated damages and other monetary sanctions, the amounts of which shall also reflect the foregoing principles.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.820. Application for new franchise.

An applicant for a new franchise to construct, operate, and maintain a cable television system within the city shall file an application as required by the City. The application shall be accompanied by a nonrefundable filing fee in an amount of $7,500.00. Such fee may be used as partial payment of franchise fees provided that all direct costs incurred by the City in the franchising process have been paid; otherwise such filing fee will be applied to any such unreimbursed costs.

The City shall require information in a cable franchise application pertaining but not limited to the following:

(1) Experience:
Detailed description of the applicant's experience in providing cable service to other municipalities.

(2) Financial:
Copies of annual reports and pro forma financial projections pertaining to the requested franchise.

(3) Character:
Full disclosure by the applicant of any criminal convictions or other misconduct affecting Cable Operator's performance including false/misleading advertising, perjury, anti-trust violations as well as data pertaining to civil proceedings, if any, pertinent to the City' s evaluation of the applicant.

(4) Conflicts of interest:
The nature of any potential conflict of interest will be required.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.830. Plans and specifications.

Each application for a new franchise shall include detailed plans and specifications for the cable television system to be installed. Upon completion, the applicant shall file "as built" plans with the City Clerk-in both hard copy and electronic mapping format compatible with the current

City electronic mapping format-showing the detailed location of all underground cable plant and active electronics, including but not limited to, all transmitting and receiving pickup locations, the fiber and coaxial plant, and coaxial amplifiers and pedestal locations.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.840. Hearing.

After the application for a new franchise has been received, the City Council shall conduct a public hearing and shall consider the following factors among others in granting said franchise:

(1) That the public will be benefited by the granting of a franchise to the applicant;

(2) The economic impact upon private property within the franchise area;

(3) That the applicant has the necessary financial, legal, and technical ability to provide the services, facilities, and equipment as set forth in the applicant's proposal, and

(4) That the applicant's proposal is reasonable to meet the future cable-related community needs and interests taking into account the cost of meeting such needs and services;

(5) That the applicant is capable of complying with all relevant federal, state and local regulations pertaining to the construction, operation and maintenance of the facilities and systems incorporated in its application for a franchise;

(6) The capacity of public rights-of-way to accommodate the cable systems;

(7) The present and future use of the public rights-of-way to be used by the cable system;

(8) The potential disruption to existing users of the public rights-of-way to be used by the cable system and the resultant inconvenience which may occur to the public;

(9) The applicant has substantially complied with the material terms and applicable law in other franchises that may have been granted in other jurisdictions, if applicable;

(10) The quality of the applicant's service has been reasonable in the light of the needs of other communities that the applicant has provided service, if applicable;

(11) Other societal interests as are generally considered in cable television franchising;

(12) Other matters that the City may determine to be relevant to the public interest.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.850. Franchise renewal.

A cable franchise renewal shall be conducted in accordance with the Cable Act.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.870. Police power.

In accepting any franchise, the Cable Operator acknowledges that its rights hereunder are subject to the lawful police power of the City to adopt and enforce general ordinances necessary to the safety and welfare of the public and it agrees to comply with all applicable general laws enacted by the City pursuant to such power.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.880. Construction requirements.

(a) DUTY TO REPORT:

Commencing at the end of the first full calendar quarter following the issuance of a new franchise pursuant to the provisions of this article, and continuing every calendar quarter thereafter until the date cable television services are made available to 100 percent of the dwelling units within each franchise area, the Cable Operator shall file with the City Clerk a written declaration identifying the number and percentage of dwelling units in each franchise area to which such services have been made available as of the last day of the quarter for which the declaration is made. Upon request the Cable Operator shall make available to the City such maps, documents and other data as were used by the Cable Operator to compile the aforesaid declaration. Cable Operator shall provide City the opportunity to inspect at its office any information which is considered proprietary and confidential or competitively sensitive, however, City may not copy or remove said documents. Said quarterly declarations shall be filed not later than the first day of the second calendar month following the end of the quarter for which the report is filed.

(b) COMPLETION OF NEW FRANCHISE:

(1) A final order of completion shall be issued by the City Council when:

a. Construction of the cable television system under a new franchise agreement has been completed within the entirety of each franchise area in compliance with construction standards and the design and other requirements of this article;

b. Cable television services have been made available to 100 percent of the dwelling units within each franchise area;

c. Any and all studio facilities, equipment, channels and other services, resources or benefits required for public, educational, and governmental access purposes pursuant to the provisions of this article or the franchise agreement have been completed and made available;

d. Complete and accurate "as built" plans pursuant to section 5.90.830 have been filed by the Cable Operator with the City Clerk; and

e. A notice of completion has been filed by the Cable Operator.

(2) For purposes of this article, cable television service shall be deemed to be made available when cable television services are offered on a nondiscriminatory basis for immediate provision to the owner or legal representative of the owner empowered to consent to use of the property of such individual dwelling units.

(3) During the period of new construction of the cable television system and the 60-day period following the filing of the notice of completion, all elements and components thereof, and all equipment and studio facilities required by the franchise documents shall be subject to inspection by City employees or authorized agents or representatives thereof, for the purpose of determining whether the system and related facilities comply with the franchise and the provisions of this article. The Cable Operator shall authorize such inspection and provide such information and cooperation as is required in order to permit an adequate investigation to determine the existence or nonexistence of such compliance.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.885. Construction notification.

The city may establish reasonable minimum requirements for advance notification to residents adjacent to proposed construction areas.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.890. Communications with regulatory agencies.

The Cable Operator shall maintain a list and description of all regular, special and non-routine communications filed with regulatory agencies regarding the cable television systems within the City, which shall be filed with the City Clerk on a quarterly basis within 15 days following the end of each calendar quarter. Copies of any petitions, applications, communications, and reports submitted by the Cable Operator to the FCC, or any other federal or state regulatory commission or agency having jurisdiction in respect to any matters affecting construction or operation of the cable television system or services provided through the system, shall be filed upon request with the City Clerk. Copies of responses or any other communications from the regulatory agencies to the Cable Operator, shall likewise be filed upon the request of the City Manager or designee with said Clerk.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.900. Technical standards.

The Cable Operator shall, at a minimum, comply with technical standards of the FCC Regulations Part 76, Subpart K.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.910. Access availability.

If more than one Cable Operator provides service in the City of Reno, the Cable Operators shall cooperate with one another in making available their signal distribution capabilities for the public, educational, and government access channels if one Cable Operator should so request. The expense of labor and material to effectuate such a juncture shall be the responsibility of the Cable Operator requiring such services. Further, the requesting Cable Operator shall indemnify and hold harmless the Cable Operator furnishing the services from all damages and liabilities of whatever nature stemming from the requesting Cable Operator's use thereof.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.920. System capability and standards.

(a) GENERAL CAPABILITY:

Each cable television system shall, at minimum:

(1) Relay to Subscriber terminals those broadcast signals required by the FCC;

(2) Distribute in color all television signals which it receives in color;

(3) As per FCC requirement, make available upon request by any subscribers receiving channels showing premium services and pay per view events, a lockout device which prevents the unauthorized viewing of such channels.

(b) STANDBY/EMERGENCY POWER:

Each cable television system shall include equipment capable of providing standby power for the headend. The equipment shall be so constructed as to automatically notify the

Cable Operator when it is in operation or to automatically revert to the standby mode when the AC power returns.

(c) TECHNICAL STANDARDS:

Each Cable Operator shall construct, install and maintain its cable television system in a manner consistent and in compliance with all applicable laws, ordinances, construction standards, governmental requirements, and technical standards equivalent to, at a minimum, those established by the FCC. Each Cable Operator shall provide to the City Clerk written reports of the Cable Operator's annual proof of performance tests conducted pursuant to FCC standards and requirements.

(1) Each Cable Operator shall at all times comply with the National Electrical Safety Code (National Bureau of Standards); National Electrical Code (National Bureau of Fire Underwriters); applicable FCC and other federal, state and local regulations; and codes and other ordinances of the City.

(2) In any event, the cable television system shall not endanger or interfere with the safety of persons or property within the city or other areas where the Cable Operator may have equipment located.

(3) All working facilities, conditions, and procedures used or occurring during construction of the cable television system shall comply with the standards of the Occupational Safety and Health Administration.

(4) Construction, installation and maintenance of the cable television system shall be performed in an orderly and workmanlike manner, and in close coordination with public and private utilities serving the city following accepted construction procedures and practices.

(5) All cable and wires shall be installed, where possible, parallel with electric and telephone lines, and multiple cable configurations shall be arranged in parallel and bundled with due respect for engineering consideration.

(6) Any antenna structure used in the cable television system shall comply with construction, marking and lighting of antenna structures required by the United States Department of Transportation.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.930. Leased access channels.

The Cable Operator shall be in compliance with Section 612 of the Cable Act.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.950. Restrictions and obligations regarding street rights.

(a) The following restrictions and obligations in the use or construction of streets shall be complied with by the Cable Operator notwithstanding the grant to use streets made by the franchise.

(1) Nothing in the franchise shall be construed to prevent the City from constructing, maintaining, repairing or relocating sewers; grading, paving, maintaining, repairing, relocating and/or altering any street; constructing, laying down, repairing, maintaining or relocating any water mains; or constructing, maintaining, relocating or repairing any sidewalk or other public work. The City shall exercise best efforts to ensure that all

such work is done in such manner as not to obstruct, injure or prevent the free use and operation of the poles, wires, conduits, ducts, pipes or appurtenances of the Cable Operator. If any such property of the Cable Operator shall interfere with the construction or relocation, maintenance or repair of any street or public improvement, whether it be construction, repair, maintenance, removal or relocation of a sewer, public sidewalk, water main, street or any other public improvement, 30 days' notice shall be given to the Cable Operator by the City and all such poles, wires, conduits, or other appliances and facilities shall be removed or replaced by the Cable Operator in such manner as shall be directed by the City so that the same shall not interfere with the said public work of the City and such removal or replacement shall be at the expense of the Cable Operator.

(2) The Cable Operator shall construct and maintain the system so as not to unreasonably interfere with other uses of streets.

(3) If the City shall make improvements or changes on all or any parts of streets, sewer, water main or public sidewalk, over, under or along which any part of the system has been installed, then in such case the Cable Operator shall, after 30 days' notice from the City, proceed to alter, change, vacate or remove from the right-of-way or easement any part of the Cable Operator's system necessary to conform with said City improvements or changes without cost whatsoever to the City.

(b) The Cable Operator shall have the option to request and the City shall not unreasonably withhold the extending of deadlines for removal of the system due to the Cable Operator's need to purchase equipment or on a showing of some other legitimate need for an extension of time.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.990. New developments, future services.

In the case of new developments where utilities are to be placed underground, the developer shall have the responsibility for insuring that cable service is made available to that new development by providing the cable company with at least four weeks advance notice of any construction or development, including a copy of any final plan, and of the particular date on which open trenching or other facilities shall be available for the Cable Operator's installation of cable. The developer shall be solely responsible for the cost of opening and closing of such trenches and for the installation of conduit. Upon request the Cable Operator shall also provide specifications to the developer as needed for trenching, or other technical data that may be required.

If technical equipment such as prewiring or distribution system is installed by the developer, it is the developer's responsibility to make certain that such equipment meets FCC as well as state, City and the Cable Operator's standards.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1000. Movement of facilities.

Whenever any person shall have obtained permission from the City to use any street for the purpose of moving any large object, vehicle, building or other structure, a Cable Operator, upon seven days written notice from the City Manager or his designee, shall raise or remove, at the expense of that person desiring to move the large object, vehicle, building or other structure,

any of its or their wires which may obstruct the removal of such large object, vehicle, building or other structure provided that the moving of such large object, vehicle, building or other structure shall be done in accordance with regulations and general ordinances of the City, including but not limited to, RMC § 14.22.010, et. seq. Where more than one street is available for the moving of such building, the building shall be moved on such street as shall cause the least interference with the lines of the Cable Operator and other franchise holders. It is further provided that the person or persons moving such building shall indemnify and save harmless said Cable Operator of and from any and all damages or claims of whatsoever kind or nature caused directly or indirectly for such temporary arrangement of the lines and poles of the franchise.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1010. Tree trimming.

Upon the City's Manager's or his designee's written approval, which shall not be unreasonably withheld, the Cable Operator shall have the authority to trim trees upon and overhanging public streets and ways and places so as to prevent the branches of such trees from coming in contact with the wires and cables of the Cable Operator and if necessary to clear the microwave path. The Cable Operator shall be responsible for debris removal from such activities. At the option of the City, and with advance written notice and approval by the Cable Operator, which shall not be unreasonably withheld, such trimming may be done by the City or under its supervision and direction, with reasonable costs to be borne by the Cable Operator.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1011. Customer service.

(a) COURTESY.

All employees, contractors, subcontractors, and agents of the Cable Operator shall be courteous, knowledgeable and helpful and shall provide effective and satisfactory service in all contacts with Subscribers.

(b) SERVICE CENTER.

The Cable Operator shall provide at least one customer service center or business office (the "Service Center") within a 10-mile radius of Reno City Hall. The Service Center shall be open Monday through Friday from 8:00 a.m. to 6:00 p.m., and shall be open from 9:00 am to 1:00 p.m. on Saturdays. The Service Center shall be fully staffed, during the hours noted above, with trained and experienced customer service representatives and shall offer services including but not limited to: bill payment, equipment exchange, processing of change of service requests, and response to Subscriber inquiries and requests. The Cable Operator shall post a sign at each Service Center advising customers of its hours of operation and of the addresses and telephone numbers at which to contact the Cable Operator if the office is closed. The hours of operation and location of the Service Center shall also be printed prominently on all billing statements.

(c) TELEPHONES.

The Cable Operator shall maintain local, toll-free, and/or call collect telephone numbers and access lines that shall be available 24 hours a day, seven days a week for service/ repair requests and billing inquiries and CSRs shall be on duty or on call to initiate after-hours service and repair calls. The Cable Operator shall have customer service technicians on call 24 hours a day, seven days a week, including legal holidays, who will be

dispatched to respond to urgent and emergency service and repair calls after-hours. The Cable Operator shall retain sufficient customer service representatives and telephone line capacity to ensure that telephone calls to service/repair and billing inquiry lines are answered by a customer service representative within 30 seconds or less, and that any transfers are made within 30 seconds. These standards shall be met no less than 90 percent of the time measured monthly. The percentage of calls receiving busy signals shall not exceed three percent of the total telephone calls. This standard shall be met 90 percent or more of the time measured monthly with reports submitted to the City Clerk on a quarterly basis. All Customer Service Representatives shall identify themselves to callers immediately following the greeting during each telephone contact with the public. Customer service telephone numbers and hours of operation shall be printed prominently on all billing statements.

(d) FACSIMILE MACHINE ("FAX").

The Cable Operator shall maintain, 24 hours per day and seven days per week, a facsimile machine accessible via a local telephone number which Subscribers may use to convey service and repair requests to the Cable Operator's customer service department. Such requests received by FAX shall be processed and handled in the same manner as Subscriber service requests that are received by telephone. The FAX access lines shall be subject to the same requirements as mentioned above for telephone services shall be measured, similarly, on a monthly basis. Customer service FAX numbers and hours of operation shall be printed prominently on all billing statements.

(e) ELECTRONIC MAIL ("E-MAIL").

The Cable Operator shall maintain, 24 hours per day and seven days per week, an E-mail address accessible via the internet which Subscribers may use to convey service and repair requests to the Cable Operator's customer service department. Such requests received by E-mail shall be processed and handled in the same manner as customer service requests that are received by telephone. Customer service E-mail addresses and hours of operation shall be printed prominently on all billing statements.

(f) GUARANTEED SEVEN-DAY STANDARD INSTALLATION.

The Cable Operator shall complete all standard installations requested by Subscribers within seven business days after the order is placed, unless a later date for installation is requested. "Standard" residential installations are those located up to 125 feet from the existing distribution system. If the Subscriber requests a nonstandard residential installation, or the Cable Operator determines that a nonstandard residential installation is required, the Cable Operator shall provide the Subscriber in advance with a total installation cost estimate and an estimated date of completion. All underground cable drops from the curb to the home shall be buried at a depth of no less than 12 inches, and within no more than one calendar week from the initial installation unless inclement weather occurs within that calendar week and then within no more than two calendar weeks from the initial installation, or at a time mutually agreed upon between the Cable Operator and the Subscriber.

(g) TRACKING OF SERVICE AND REPAIR REQUESTS.

The Cable Operator shall operate and maintain a system to record all Subscriber requests for service and repairs and the efforts undertaken by the Cable Operator to fulfill, individually, every Subscriber request (the "Tracking System"). A description of all Cable Operator efforts related to a particular customer service matter, including but not limited to,

the efforts undertaken by customer service representatives, supervisors, dispatchers, field technicians, contractors, sub-contractors, and management to provide or cause to provide services and repairs related to each matter, shall be recorded and maintained so as to provide a comprehensive list or description of all of the Cable Operator's efforts undertaken to fulfill each service or repair request. The information recorded within the tracking system shall be made available to all customer service representatives for the purpose of providing informative responses to Subscriber inquiries related to the status of requested service and repairs. Furthermore, Cable Operator's Customer Service Representatives shall be fully trained in the use of the tracking system and the information maintained therein so that they are able to utilize the system to provide complete and accurate information to Subscribers and potential Subscribers related to service and repair matters. The City shall, upon request, have access to the tracking system and the detailed records of the system for the purpose of:

(1) Auditing the reliability and integrity of the system and the information it contains, and

(2) Determining or inquiring about the status of efforts undertaken by the Cable Operator related to specific service requests.

(h) PROBLEM RESOLUTION.

The Cable Operator's customer service representatives shall have the authority to provide credit for interrupted service, waive fees, schedule service appointments, and promptly forward service and repair requests to appropriate management and/or dispatchers for appropriate corrective action. Any Subscriber shall be entitled, upon request, oral or written, to Cable Operator to a refund equal to one day's service for each Subscriber's loss of service caused by Cable Operator: (1) for each continuous 24-hour period or (2) a total of two or more hours of any four days within a monthly billing period. Any difficulties that cannot be resolved by the customer service representative shall be immediately referred to the appropriate supervisor who shall, if the problem was reported during normal business hours, contact the Subscriber within four hours. Otherwise, the appropriate supervisor shall contact the Subscriber no later than the following business day. The appropriate supervisor shall resolve the problem within 24 hours, or within such other time frame as is acceptable to the Subscriber and the Cable Operator. Any difficulties that cannot be resolved by the appropriate supervisor shall be immediately referred to the City.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1012. Standard installation and service appointments.

(a) SERVICE APPOINTMENT TIMES.

Subscribers requesting cable installation or service may choose any two-hour block of time mutually agreed upon by the Subscriber and the Cable Operator between the hours of 8:00 a.m. and 5:00 p.m.

(b) CANCELLATION OF SERVICE APPOINTMENTS.

Under normal operating conditions, the Cable Operator may not cancel an appointment with a Subscriber after the close of business on the day before the scheduled appointment. In cases where an appointment has been canceled, the Cable Operator shall immediately offer the Subscriber the next available appointment. Cable Operator shall exercise best efforts to schedule a new appointment within 24 hours.

(c) CUSTOMER SATISFACTION FOLLOW-UP.

With respect to service installation and work completed, throughout the term of this franchise the Cable Operator shall contact a representative sample, no less than 25 percent of all customers who receive service each week, to assess and assure satisfaction. Cable Operator shall maintain a data base of all responses, and all responses shall be recorded, and retained by the Cable Operator, and made easily available to the City upon request for a period of three years.

(d) EFFECT OF CUSTOMER ABSENCE ON CABLE OPERATOR COMPLIANCE.

The Cable Operator shall be deemed to have responded to a request for service under the provisions of this section when:

(1) A technician arrives within the agreed upon time, and

(2) If the Subscriber is absent when the technician arrives, the technician leaves written notification of arrival and return time, and

(3) A copy of that notification is kept by the Cable Operator for three years.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1013. Service interruptions.

(a) SERVICE INTERRUPTIONS GENERALLY.

All service interruptions resulting from Cable Operator equipment failure, which are in the control of the Cable Operator and excluding such equipment that is located within Subscriber's residences or commercial establishments, shall be corrected within 24 hours from the time that the Cable Operator is first made aware of such outage unless conditions exist beyond the control of the Cable Operator in which case the Cable Operator shall restore service within 24 hours after the conditions beyond its control have been corrected.

(b) SYSTEM OUTAGES.

In the event of service interruptions causing the loss of reception on all channels ("System Outages") affecting three or more Subscribers, the Cable Operator shall begin working to correct such failure within two hours after the third (3rd) Subscriber call is received.

(c) SCHEDULED INTERRUPTIONS.

Scheduled interruptions shall be preceded by reasonable notice to the City and to affected Subscribers and shall occur during periods of minimum use of the system, preferably between midnight and 6:00 a.m. The Cable Operator shall render efficient service, make repairs and improvements promptly, and interrupt service only for good cause and for the shortest time possible.

(d) LOG OF SERVICE INTERRUPTIONS.

Consistent with federal and state law, a log of all service interruptions within the City shall be maintained on a quarterly basis by the Cable Operator and provided to the City Clerk within 15 days following the end of every quarter, i.e., March, June, September and December.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1014. Signal quality.

(a) SIGNAL QUALITY TO MEET OR EXCEED FCC TECHNICAL STANDARDS.

The Cable Operator shall provide clear signal quality that meets or exceeds technical standards established by the FCC.

(b) CABLE OPERATOR TO REPAIR POOR SIGNAL QUALITY.

If a Subscriber experiences poor signal quality attributable to the Cable Operator's equipment or operation thereof, and the Subscriber provides the Cable Operator with the required access to his dwelling unit, the Cable Operator shall fully investigate the problem within 24 hours, and repair the problem within 48 hours following the Subscriber call. If an appointment is necessary, Subscriber may choose the same blocks of time described above. At the Subscriber's request, the Cable Operator shall repair the problem at a later time convenient to the Subscriber.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1015. Billing, credits and refunds.

(a) PAYMENT PERIOD.

The Cable Operator shall allow at least 25 days from the beginning date of the applicable service period for payment of a Subscriber's service bill for that period. If a Subscriber's service bill is not paid within that period of time the Cable Operator may charge a reasonable administrative fee, i.e., no more than the cost of actually administering the late payment, to the Subscriber's account. If a Subscriber's service bill is not paid within 60 days of the beginning date of the applicable service period, the Cable Operator may disconnect the Subscriber's service, provided it has given ten days prior written notice to the Subscriber that such disconnection may result.

(b) CREDITS AND REFUNDS ARE TO BE ISSUED IN A TIMELY MANNER.

The Cable Operator shall issue a credit or refund to a Subscriber no later than either the Subscriber's next billing cycle following resolution of the request or 30 days after determining the Subscriber's entitlement to a credit or refund, whichever is earlier.

(c) LOG OF CREDITS AND REFUNDS.

A log of all credits and refunds for Subscribers within the City shall be maintained on a monthly basis by the Cable Operator and provided to the City Clerk within 15 days following the end of each quarter.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1016. Treatment of private property.

(a) TREES AND SHRUBS.

The Cable Operator shall keep tree trimming to a minimum; trees and shrubs or other landscaping that are damaged by the Cable Operator, any employee or agent of the Cable Operator during installation or construction shall be restored to their prior condition or replaced. Trees and shrubs shall not be removed without the prior permission of the owner or legal tenant of the property on which they are located.

(b) PROPERTY DAMAGES AND RESTORATION.

The Cable Operator shall, at its own cost and expense, and in a manner approved by the property owner and the City, restore any property to as good condition as before the work causing such disturbance was initiated. The Cable Operator shall repair, replace or compensate a property owner for any damage resulting from the Cable Operator's installation, construction, service or repair activities.

(c) REASONABLE NOTICE OF WORK ON PRIVATE PREMISES REQUIRED.

Except in the case of an emergency involving public safety or service interruption to a large number of Subscribers, the Cable Operator shall give reasonable notice to property

owners, legal tenants, property managers, and/or community interest community managers, as applicable, prior to entering upon private premises, and the notice shall specify the work to be performed; provided that in the case of construction operations such notice shall be delivered or provided in writing at least 24 hours prior to entry. Nothing herein shall be construed as authorizing access or entry to private property, or any other property, where such right to access or entry is not otherwise provided by law. If damage is caused by any Cable Operator activity, the Cable Operator shall reimburse the property owner 100 percent of the cost of the damage or replace the damaged property. For the installation of pedestals or other major construction or installation projects, property owners shall also be notified in writing at least 24 hours in advance. In the case of an emergency, the Cable Operator shall attempt to contact the property owner or legal tenant in person, and shall leave a door hanger notice in the event personal contact is not made.

(d) WORKSITES ARE TO BE KEPT CLEAN AND REFUSE IS TO BE DISPOSED OF IN AN APPROPRIATE MANNER.

Cable Operator personnel shall clean all areas surrounding any work site and ensure that all refuse and excess materials have been disposed of properly on a daily basis.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1017. Service for customers with disabilities.

(a) EQUIPMENT PICKUP AND DELIVERY REQUIRED FOR CUSTOMERS WITH DISABILITIES.

For any Subscriber with a disability, the Cable Operator shall at no charge deliver and pick up cable equipment at Subscribers' homes. In the case of a malfunctioning cable device, the technician shall provide a replacement device, hook it up and ensure that it is working properly, and shall return the defective device to the Cable Operator.

(b) TELECOMMUNICATION DEVICE FOR THE DEAF OR HEARING IMPAIRED (TDD) SERVICES REQUIRED.

The Cable Operator shall provide, at no charge, TDD service with trained operators who can provide every type of assistance rendered by the Cable Operator's customer service representatives for any hearing-impaired Subscriber upon request by such Subscriber or Subscriber's representative.

(c) REQUESTS FOR SPECIAL SERVICES.

Any Subscriber with a disability may request the special services described above by providing the Cable Operator with a letter from the Subscriber's physician stating the need, or by making the request to the Cable Operator's installer or service technician, where the need for the special services can be visually confirmed.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1018. Customer information and notices.

(a) NOTICES AND INFORMATION REQUIRED TO BE PROVIDED BY THE CABLE OPERATOR TO CUSTOMERS.

Upon installation, at least annually thereafter, and at any time the Subscriber may request, the Cable Operator shall provide all of the following information, in clear, concise written form:

(1) Products and services offered by the Cable Operator;

(2) The channel positions of programming carried on the cable system;

(3) Prices and options of services and conditions of subscription to services;

(4) The Cable Operator's billing, collection, installation, service, maintenance, credit for outages, and disconnection policies;

(5) Subscriber privacy policies;

(6) Billing and complaint procedures including complaint forms, the location of local Service Centers, telephone numbers, FAX numbers, E-mail addresses, and mailing addresses of the Cable Operator, the FCC, and the City to whom the complaints should be addressed;

(7) Instruction on the use of cable TV services;

(8) The availability of parental control devices;

(9) Special services available for Subscribers with disabilities.

(b) Upon installation and at any time the Subscriber may request, the Cable Operator shall provide the following information at no charge, in clear, concise written form:

(1) Instructions for hookup and use of common consumer electronic equipment including, but not limited to:

a. Standard television hookups;

b. Standard VCR hookups;

c. Standard DVD hookups;

d. Standard Video Game hookups;

e. Standard Picture-in-Picture hookups.

(2) Instructions for hookups and use of all equipment provided by the Cable Operator including, but not limited to:

a. Digital converters;

b. Remote control devices;

c. A/B switches;

d. Parental control/lock out devices;

e. Any other devices that the Cable Operator provides for Subscriber use.

(c) COPIES OF CUSTOMER SERVICE STANDARDS.

At any time the Subscriber may request, the Cable Operator shall provide a copy of this article and any other applicable customer service standards;

(d) NOTICE OF CHANGES IN RATES, PROGRAMMING, OR CHANNEL POSITIONS REQUIRED 30 DAYS IN ADVANCE.

The Cable Operator shall provide Subscribers with written notification of any change in rates, programming, or channel positions, at least 30 days before the effective date of change.

(e) COPIES OF CUSTOMER NOTICES MUST BE PROVIDED TO CITY.

Copies of all Subscriber notices specified in subsections 5.90.1018(a), (b) and (d) shall be provided concurrently or preferably, in advance, to the City Clerk by mail, delivery service, fax, or electronic mail.

(f) IDENTIFICATION REQUIRED FOR CERTAIN CABLE OPERATOR EMPLOYEES AND VEHICLES.

All officers, agents, and employees of the Cable Operator or its contractors or subcontractors who are in personal contact with cable Subscribers shall wear on their outer clothing identification cards bearing their name and photograph. The Cable Operator shall account for all identification cards at all times. Every vehicle of the Cable Operator shall be clearly visually identified to the public as working for the Cable Operator. Every vehicle of a subcontractor or contractor shall be labeled with the name of the contractor and further identified as contracting or subcontracting for the Cable Operator.

(g) NOTICE OF COST ESTIMATE TO BE PROVIDED BY CABLE OPERATOR PRIOR TO PROVIDING WORK OR SERVICE.

Each Customer Service Representative, technician, agent, or employee of the Cable Operator in each contact with a Subscriber shall state the estimated cost of the service, repair, or installation orally prior to delivery of the service or before any work is performed, and shall provide the Subscriber with an oral statement of the total charges before terminating the telephone call or before leaving the location at which the work was performed.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1019. Customer privacy.

(a) At the time of entering into an agreement to provide any cable service or other service to a Subscriber and at least once a year thereafter, a Cable Operator shall provide notice in the form of a separate, written statement to such Subscriber which clearly and conspicuously informs the Subscriber of:

(1) The nature of personally identifiable information collected or to be collected with respect to the Subscriber and the nature of the use of such information;

(2) The nature, frequency, and purpose of any disclosure which may be made of such information, including any identification of the types of persons to whom the disclosure may be made;

(3) The period during which such information will be maintained by the Cable Operator;

(4) The times and place at which the Subscriber may have access to such information in accordance with subsection (a)(2) of this section; and

(5) The limitations provided by this section with respect to the collection and disclosure of information by a Cable Operator and the right of the Subscriber under subsections (i) and (j) to enforce such limitations.

(b) For purposes of this section, the term "personally identifiable information" does not include any record aggregate data which does not identify particular persons. The term "other service" includes any wire or radio communications service provided using any of the facilities of a Cable Operator that are used in the provision of cable service.

(c) Except as provided in subsection (d) of this section, a Cable Operator shall not use the cable system to collect personally identifiable information concerning any Subscriber without the prior written or electronic consent of the Subscriber concerned, and shall take such actions as are necessary to prevent unauthorized access to such information by a person other than the Subscriber or Cable Operator.

(d) A Cable Operator may use the cable system to collect personal identifiable information in order to:

(1) Obtain information necessary to render a cable service or other service provided by the Cable Operator to the Subscriber; or

(2) Detect unauthorized reception of cable communications.

(e) Except as provided in subsection (f) of this section, a Cable Operator shall not disclose personally identifiable information concerning any Subscriber without the prior written or electronic consent of the Subscriber concerned.

(f) A Cable Operator may disclose such information if the disclosure is:

(1) Necessary to render, or conduct a legitimate business activity related to a cable service or other service provided by the Cable Operator to the Subscriber;

(2) Subject to subsection (j), made pursuant to a court order authorizing such disclosure, if the Subscriber is notified of such order by the person to whom the order is directed; or;

(3) A disclosure of the names and addresses of Subscribers to any cable service or other service, if:

a. The Cable Operator has provided the Subscriber the opportunity to prohibit or limit such disclosure, and

b. The disclosure does not reveal, directly or indirectly, the extent of any viewing or other use by the Subscriber of a cable service or other service provided by the Cable Operator; or, the nature of any transaction made by the Subscriber over the cable system of the Cable Operator.

(g) A Subscriber shall be provided, free of charge, access to all personally identifiable information regarding that Subscriber which is collected and maintained by a Cable Operator. Such information shall be made available to the Subscriber at reasonable times and at a convenient place designated by Cable Operator. A cable Subscriber shall be provided reasonable opportunity to correct any error in such information.

(h) A Cable Operator shall destroy personally identifiable information if the information is no longer necessary for the purpose for which it was collected and there are no pending requests or orders for access to such information under subsection (g) or pursuant to a court order.

(i) Any person aggrieved by any act of a Cable Operator in violation of this section may bring a civil action in a court of general jurisdiction, as provided in Section 631 of the Cable Act.

(j) Nothing in this chapter shall be construed to prohibit the City from enacting or enforcing additional laws consistent with this section for the protection of Subscriber privacy.

(k) A governmental entity may obtain personally identifiable information only if, in the court proceeding relevant to such court order:

(1) Such entity offers clear and convincing evidence that the subject of the information is reasonably suspected of engaging in criminal activity and that the information sought would be material evidence in the case; and

(2) The subject of the information is afforded the opportunity to appear and contest such entity's claim.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1020. Safety.

(a) The Cable Operator shall install and locate its facilities, cable system, and equipment in compliance with all federal, state, local, and company safety standards, and in such manner as shall not unduly interfere with or endanger persons or property.

(b) The Cable Operator shall, at all times, employ professional care and shall install and maintain and use commonly accepted methods and devices for preventing failures and accidents which are likely to cause damages, injuries, or nuisances to the public.

(c) Whenever the Cable Operator receives notice that an unsafe condition exists with respect to its equipment, the Cable Operator shall investigate such condition immediately, and shall take such measures as are necessary to remove or eliminate any unsafe condition.

(d) All structures and all lines, equipment and connections in, over, under and upon the streets, sidewalks, alleys, and public ways or places of the franchise area, wherever situated or located, shall at all times be kept and maintained in a safe, suitable condition, and in good order and repair.

(e) The City reserves the general right to see that the system of the Cable Operator is constructed and maintained in a safe condition. If an unsafe condition is found to exist by the City, it may order the Cable Operator to make necessary repairs immediately from the receipt of the City's notification stating the exact nature thereof and, if not so made, the City may make the repairs itself or have them made and collect all reasonable costs thereof from the Cable Operator.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1021. Satisfaction guaranteed.

Any Subscriber who requests disconnection of new service within 30 days from its date of activation shall receive a credit to his/her account in the amount of one month's subscription charge for the service that has been disconnected but not to exceed the amount that such Subscriber paid for the new service excluding installation fees.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1022. Complaints and security fund.

(a) CABLE OPERATOR SHALL MAINTAIN AND MAKE AVAILABLE ACCURATE RECORDS OF CUSTOMER COMPLAINTS.

The Cable Operator shall, in a manner consistent with the privacy rights of Subscribers and federal and state law, keep accurate and comprehensive files of any and all complaints regarding the cable system, operation of the cable system, and the Cable Operator's actions in response to those complaints. These files shall remain open to the City and the public during normal business hours. Cable Operator shall provide the City Clerk an executive summary monthly, which shall include information concerning Subscriber complaints. A summary of service requests, identifying the number and nature of the requests and their disposition, shall also be completed by the Cable Operator for each month and submitted to the City, upon request, by the fifteenth (15th) day of the following month. The Cable Operator shall retain, and make available to the City Clerk the records and reports specified in this section for a period of three years.

(b) SECURITY FUND.

Within 30 days of the effective date of any franchise granted by the City, or renewal thereof, the Cable Operator shall supply a commercial surety bond to the City in a form approved by the City for a reasonable amount of money to protect Subscribers within its jurisdiction. Such reasonable amount shall be the greater of:

(1) $100,000.00 or

(2) $1.00 per Subscriber within the franchise area. The number of Subscribers within the franchise area shall be determined and documented by the Cable Operator as of the effective date of each franchise granted or renewed and shall be updated on January 1st of each year thereafter.

The surety bond shall constitute a "Security Fund" for ensuring compliance with this article for the benefit of the City and the Subscribers within the Franchise Area. The surety bond shall be maintained by the Cable Operator at $100,000.00, or such greater amount accepted by the City, even if amounts are withdrawn pursuant to any provision of this article. At any time during the term of this agreement, the City may require the Cable Operator to increase the amount of the Security Fund, if it finds that new risk factors exist, which necessitate such an increase. The Security Fund shall serve as security for the payment of any penalties, fees, charges or credits as provided for herein and for the dutiful performance by the Cable Operator of all its obligations under this article and any franchise agreement. The rights reserved to the City with respect to the Security Fund are in addition to all other rights of the City, whether reserved by any applicable franchise agreement or authorized by law, and no action, proceeding or exercise of a right with respect to same shall in any way affect, or diminish, any other right the City may otherwise have.

(c) COMPLAINT PROCEDURE.

The Cable Operator shall establish written procedures, which are consistent with this article, for receiving, acting upon, and resolving Subscriber complaints, and crediting Subscriber accounts and shall publicize such procedures through printed documents at the Cable Operator's sole expense. Said written procedures shall prescribe a simple manner in which any Subscriber may submit a complaint by telephone, FAX, E-mail, in-person, or in writing to the Cable Operator that it has violated any provision of this article, any terms or conditions of the Subscriber's contract with the Cable Operator, or reasonable business practices. At the conclusion of the Cable Operator's investigation of a Subscriber complaint, but in no more than 15 calendar days after receiving the complaint, the Cable Operator shall notify the Subscriber of the results of its investigation and its proposed action or credit. The Cable Operator shall also notify the Subscriber of the Subscriber's right to file a complaint with the City in the event the Subscriber is dissatisfied with the Cable Operator's decision, and shall thoroughly explain the necessary procedures for filing such complaint with the City. The Cable Operator shall immediately report all Subscriber complaints that it does not find valid to the City. A copy of the Cable Operator's complaint procedures, and changes to thereof, shall be provided to the City prior to implementation.

(d) COMPLAINTS TO THE CITY.

Pursuant to NRS 711.250, any Subscriber who is dissatisfied with any decision of the Cable Operator or who has not received a decision within the 15-day period as required shall be entitled to have the complaint reviewed by the City. The Subscriber may initiate the review either by calling the City or by filing a written complaint together with the Cable

Operator's written decision, if any, with the City Clerk. The Subscriber shall make such filing and notification within 60 days of receipt of the Cable Operator's decision or, if no decision has been provided, within 90 days after filing the original complaint with the Cable Operator. If the City decides that further evidence is warranted, the City shall require the Cable Operator and the Subscriber to submit, within ten days of notice thereof, a written statement of the facts and arguments in support of their respective positions. The Cable Operator and the Subscriber shall produce any additional evidence, including any reports from the Cable Operator, which the City may deem necessary to an understanding and determination of the complaint. The City's hearing officer shall issue a determination within 15 days after examining the materials submitted, setting forth its basis for the determination. The City's hearing officer may extend these time limits for reasonable cause and may intercede and attempt to negotiate an informal resolution. If the City's hearing officer determines that the Subscriber's complaint is valid and that the Cable Operator did not provide the complaining Subscriber with the proper solution and/or credit, the hearing officer may reverse any decision of the Cable Operator in the matter, and provide an appropriate amount of money to the Subscriber, in lieu of a credit, by means of a withdrawal from the Security Fund.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1023. Verification of compliance.

(a) The Cable Operator shall establish its compliance with this article by providing reports to the City Clerk that demonstrate such compliance within the Franchise Area, including but not limited to:

(1) Quarterly comments on citizen relations, such as the number of billing disputes, repair service disputes, complaints referred by the City and how those issues were resolved;

(2) A quarterly summary by category of complaints, identifying the number and nature of complaints and their dispositions;

(3) Quarterly telephone call analysis showing the telephone answer times and wait times; and

(4) Quarterly telephone call analysis showing the percentage of calls receiving busy signals; and

(5) Quarterly log of service interruptions; and

(6) Quarterly log of credits and refunds to Subscribers; and

(7) Subject to applicable federal and state laws and regulations, any other information requested by the City.

(b) In the event the City documents a pattern of complaints during a single 30-day period that is unrelated to a force majeure condition, City may require Cable Operator to provide monthly reports for any of the above listed reports for a period not to exceed six months, unless the pattern of complaints remains uncured.

(c) The Cable Operator shall retain, and make available to the City upon request, the reports specified in subsection (a) for a period of three years.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1024. Overall quality of service.

(a) The City may evaluate the overall quality of customer service provided by the Cable Operator to Subscribers in conjunction with any performance review provided for in the franchise agreement; and

(b) The City may evaluate the overall quality of customer service provided by the Cable Operator to Subscribers at any other time, at its sole discretion, based on the number of Subscriber complaints received by the Cable Operator and the City, and the Cable Operator's response to those complaints.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1025. Noncompliance.

Non-compliance with any provision of this article is deemed to be a violation of this article and a violation of the terms of the Cable Operator's franchise agreement.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1026. Remedies and sanctions for noncompliance.

(a) The City Manager shall precede the issuance of a notice of violation of the article with a reasonable period of time for the Cable Operator to remedy the situation. The City Manager shall grant the Cable Operator no less than five and no more than 30 days to cure the violation before issuing a notice of violation. If, however, the City has received reports of the same or similar alleged noncompliance on two or more separate occasions within the preceding 12 month period, the City Manager may issue a notice of violation without allowing the Cable Operator further opportunity to cure.

(b) Upon issuance of a notice of violation, the City Manager shall schedule an administrative hearing in accordance with the provisions of Reno Municipal Code, section 1.05.005 et seq. to determine if the noncompliance occurred. The Cable Operator shall be provided with ten days written notice of the time and the place of the hearing, the allegations of noncompliance and the possible consequences of the noncompliance if substantiated. After the hearing, the City's hearing officer shall determine whether the noncompliance has been substantiated. If the noncompliance is substantiated, the hearing officer may order the Cable Operator to correct or remedy the noncompliance within 30 days (except where the noncompliance constitutes a material safety hazard) and in the manner and on the terms and conditions that the hearing officer establishes. In addition, the hearing officer may:

(1) Impose assessments of up to $200.00 per occurrence to be withdrawn by the City from the Security Fund; and/or

(2) Order, after further hearing, such rebates and credits to affected Subscribers as in its sole discretion it deems reasonable and appropriate for degraded or unsatisfactory services that constituted noncompliance with this article; and/or

(3) In its sole discretion, declare a violation of the franchise agreement, and in such case, the noncompliance shall be a violation of the franchise agreement for the purposes of the franchise agreement, triggering all available obligations and remedies under the franchise agreement; and/or

(4) Withhold licenses and permits for work by the Cable Operator or its subcontractors in accordance with applicable law; and/or

(5) Pursue any other legal or equitable remedy available under any applicable franchise agreement or law.

(c) Any assessment or remedy shall not constitute a waiver by the City of any other right or remedy it may have under any applicable franchise agreement or law including any right to recover from the Cable Operator any additional damages, losses, costs, and expenses, including actual attorney's fees that are incurred by the City by reason of, or arise out of noncompliance with this article.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1027. Notice of rate change.

Subject to federal, state and local law, the city may establish and regulate the rates or charges for providing cable service and prescribe rate regulation procedures. Subject to federal, state and local law, prior to implementation of any change in rates or charges for any service or equipment provided by the cable operator, the cable operator shall provide the city and all subscribers a minimum of 30 days prior written notice of such change.

(Ord. No. 5565, § 1, 4-21-04; Ord. No. 5632, § 1, 12-1-04)

Sec. 5.90.1030. Franchise fee.

The Cable Operator shall be required to pay a franchise fee in an amount determined by the City in accordance with federal, state and local laws.

(1) Late payment:
Any franchise fee not paid by the Cable Operator within 60 days of date due shall bear interest at the rate of 12 percent per annum of the amount due, if such percentage does not exceed the legal maximums, from the date due, until paid.

(2) Financial reports:
Each franchise fee payment shall be accompanied by a financial report in a form approved by the City showing the basis for the Cable Operator's computation separately indicating revenues received by the Cable Operator within the City from basic service, pay TV service, other applicable sources of revenue, and such other information directly related to confirming the amount of the Cable Operator's gross revenues as may be reasonably required by the City.

(3) Accounting standards:
Not less than annually, the Cable Operator shall provide the City Manager or his designee with an unqualified certification of a certified public accountant attesting to the accuracy of the quarterly franchise fee payments paid within the preceding 12 months as hereinabove set forth. Said certification shall be prepared in accordance with generally accepted accounting standards as established by the financial accounting standards board (FASB).

(4) Auditing and financial records:

During the term of each franchise, the City may, not more frequently than once a year, conduct an audit of the books, records and accounts of the Cable Operator for the purpose of determining whether the Cable Operator has paid franchise fees in the amount hereinabove prescribed. The audit may be conducted by an auditor of the City or by a consultant retained by the City, and shall be conducted at the sole expense of the City. The party conducting the audit shall prepare a written report containing its findings, and the report shall be filed with the City Clerk, and mailed to the City and Cable Operator.

Each Cable Operator shall make available for inspection by authorized representatives of the City, its books, accounts, and all other financial records reasonably related to the computation of franchise fees at reasonable times and upon reasonable advance notice for the purpose of permitting exercise of the authorities conferred by this section.

In the event that such audit discloses a discrepancy of more than five percent between the financial report submitted by the Cable Operator with a payment and the actual gross revenues collected by the Cable Operator, the Cable Operator agrees to pay to City the reasonable costs of such audit. In the event that such audit results in a determination that additional franchise fees are due the City, the Cable Operator shall pay the additional franchise fees due and payable together with interest as required for late payment on such additional franchise fees computed from the date on which such additional franchise fees were due and payable.

(5) Nonwaiver:

No acceptance of any franchise fee payment by the City shall be construed as an agreement by the City that the franchise fee paid is in fact the correct amount, nor shall its acceptance of payment be construed as a release or waiver of any claim the City may have for further or additional sums payable under the provisions of this article.

(6) Taxes:

Nothing in this section shall limit the Cable Operator's obligation to pay applicable local, state, or federal taxes.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1040. Consumer protection.

The quality of service provided to the residents of Reno by the Cable Operator is of utmost concern to the City. To that end, periodic meetings and certain reports will be required. In addition to these meetings and reports, the City Manager or his designee shall maintain an oversight review of the Cable Operator's performance in those areas in accordance with Section 632 of the Cable Act.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1041. Reports.

(a) Throughout the term of the franchise, the Cable Operator shall be required to furnish to the City Clerk by March 31 of each year a report of its activities within the City of Reno, including, but not limited to the following:

(1) A revenue report certified as correct by an officer of the Company;

(2) A list of officers and members of the board of directors of the Cable Operator and its parents;

(3) A list of stockholders holding five percent or more of the voting stock of the Cable Operator or its parents;

(4) A copy of the Cable Operator's annual report and those of its parent;

(5) Listings of the number of Subscribers within the City of Reno;

(6) The number of homes passed;

(7) The number of Subscribers with basic services;

(8) The number of Subscribers with premium services;

(9) The number of Subscribers using interactive services;

(10) The number of hook-ups in period;

(11) The number of disconnects in period;

(12) The number of miles of cable laid in period;

(13) Total number of miles of cable in the City of Reno;

(14) A complete listing of all Subscriber and user rates, fees and charges and their effective dates for all cable services provided;

(15) Plans for future technical upgrading;

(16) Plans for future programming and/or changes;

(17) Maps indicating existing location of headend equipment, trunk and distribution lines;

(18) A statement of its current billing practices;

(19) Report on operations—Such report with respect to its operation, affairs, transactions or property, as may be determined to be within the purview of the City;

(20) Status of emergency power supply;

(21) Current service policy procedures.

(b) SURVEYS.

In addition to providing such other information as may be requested under subsection (a), the Cable Operator shall provide the following special reports:

(1) Once every three years, an opinion survey report approved by the City as to form and content, which identifies subscriber satisfaction/dissatisfaction with cable services offered by the Cable Operator. Surveys required to make said report shall be statistically valid and reliable. In lieu of this obligation, a Cable Operator may agree in a franchise agreement to pay a sum to the City so that the City may perform the survey.

(2) Consistent with FCC requirements, an annual plant survey report, which shall be a survey of the Cable Operator's plant and a full report thereon including new construction and complete annual outages by area of the City. The purpose of the report is to assure the City that the plant is being operated and maintained in accordance with applicable law. Said report shall include but not be limited to an appropriate engineering evaluation and shall be conducted in conformance with standard engineering practices. This requirement does not apply during a period of initial construction, or upgrade mandated by a franchise agreement.

(c) MATERIAL MISREPRESENTATIONS.

Any material misrepresentation made by the Cable Operator in any report required by this section shall subject the Cable Operator to the penalty provisions of this chapter and shall subject the Cable Operator to all remedies available to the City by law.

(d) ACCESS TO BOOKS AND RECORDS.

(1) The City may inspect and copy books and records of the Cable Operator that are reasonably necessary to the enforcement of any provision of this chapter; the franchise agreement; to the conduct of performance evaluation sessions; or to the exercise of any authority that the City may have under the same or any other provision of applicable law. Without limiting the foregoing, a Cable Operator shall provide the City access to complaint data to enable the City to fully investigate subscriber complaints. Books and records shall be produced to the City for inspection at City Hall or at such other mutually agreed upon location within the City. The City will not unreasonably refuse a request that it inspect documents at the Cable Operator's facilities within the City. Provided, however, that nothing in this chapter shall be read to require the Cable Operator to violate any provision of federal or state law relating to Subscriber privacy. Information requested shall be made available for inspection within 14 business days of a request therefor, which period shall be subject to extension for good cause shown where no harm will result to the public interest from the delay.

(2) A Cable Operator must produce the books and records requested by the City Manager or his designee even if the Cable Operator does not believe that the request satisfies the standard set out above, unless the City Council waives the requirement, or the Cable Operator obtains a court order from a court of competent jurisdiction enjoining the request.

(3) A Cable Operator may not refuse City inspection of Cable Operator books and records in Cable Operator's local office on the ground that such books and records contain proprietary information.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1042. Cable system evaluation.

(a) Cable Operator shall supply City with copies of its bi-annual FCC Performance Tests. In addition to FCC Performance Tests, the City Manager or his designee may require reasonable technical evaluation sessions at any time during the time of the franchise no more often than once every three years, or in the event of a documented pattern of uncured complaints relating to technical issues.

(b) To assist in the technical evaluation, the City Manager or his designee may enlist an independent consultant to conduct an analysis of the cable system and its performance and to submit a report of such analysis to the City.

(c) During a technical evaluation session, the Cable Operator shall fully cooperate with the City or its consultant and shall provide without cost such information and documents as the City or its consultant may reasonably request to perform technical evaluation.

(d) If, as a result of the evaluation session, or at any other time, the City Manager or his designee determines that reasonable evidence exists of inadequate cable system perfor-

mance, it may require the Cable Operator to perform technical tests and analyses directed toward such suspected inadequacies. The report prepared by the Cable Operator shall include at least:

(1) A description of the problem in cable system technical performance, which precipitated the special tests.

(2) What cable system components were tested.

(3) The equipment used and procedures employed in testing.

(4) The method, if any, by which such cable system technical performance problem was resolved.

(5) Any other information pertinent to said tests and analyses which may be required by the City Manager or his designee, or determined when the test is performed.

(e) If the tests indicate that the system is not in substantial compliance with FCC standards, the Cable Operator shall reimburse the City for any reasonable costs involved in such test such as consultant fees or other expenses.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1043. Formal performance reviews.

(a) The City and the Cable Operator agree that it is in the Cable Operator's, the City's, and the Subscribers' best interest to conduct formal performance reviews every three years. The subjects which shall be discussed at the review shall include, but not be limited to, those items covered in the periodic reports (section 5.90.1041) as well as other possible items, such as:

(1) Subscriber service procedures for subsequent period and evaluation of performance of past period;

(2) Interconnection;

(3) Franchise fees;

(4) Penalties;

(5) Free or discounted services;

(6) Application of new technologies;

(7) Technical standards;

(8) System performance;

(9) Services provided;

(10) Programming offered;

(11) Access channels, facilities and support;

(12) Municipal uses of cable;

(13) Use and promotion of institutional networks;

(14) Local origination;

(15) Consumer protection;

(16) Privacy;

(17) EEO compliance;

(18) Proposed amendments to the franchise;

(19) Judicial rulings;
(20) Channel utilization;
(21) Congressional actions;
(22) FCC rulings;
(23) The need for providing other installations in public buildings;
(24) Emergency standby power;
(25) Telephone answering;
(26) Other matters of concern.

(b) The City also reserves the right to conduct periodic reviews from time to time on subjects of concern.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1050. Continuity of service.

It shall be the right of all Subscribers to continue receiving service so long as their financial and other obligations to the Cable Operator are fulfilled.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1060. Modification.

In the event the Cable Operator shall seek to have the existing franchise modified, Section 625 of the Cable Act shall govern the procedure for the modification request unless the City and the Cable Operator shall otherwise agree.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1070. Nondiscrimination.

The Cable Operator shall not as to rates, charges, service facilities, rules, regulations or in any other respect make or grant any preferences or advantage to any person nor subject any person to any prejudice or disadvantage, provided that nothing in this article shall be deemed to prohibit the establishment of a graduated scale of charges and classified rate schedules to which any customer coming within such classification would be entitled, and provided further that connection and/or service charges may be waived or modified during promotional campaigns of the Cable Operator.

The Cable Operator will not deny access to cable television service to any group of potential subscribers because of the income of the residents of the local area in which the group resides.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1080. Equal employment opportunity.

The Cable Operator shall be required to comply with state and City regulations pertaining to equal employment opportunity and in accordance with Section 635 of the Cable Act.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1090. Transfer of ownership.

Any franchise awarded by the City shall be based upon an evaluation by the City of the technical, financial and legal qualifications of the Cable Operator, and other lawful criteria that may pertain to each particular assignee.

An assignment of the franchise shall be deemed to occur where there is an actual change in control or where ownership of 50 percent or more of the beneficial interests, singly or collectively, is obtained by any third party(ies); provided, however, that the Cable Operator shall have the right to assign the Franchise to a wholly owned Affiliate, upon 30 day's written notice to the City.

Every change, transfer or acquisition of control of the Cable Operator's company shall make the franchise subject to cancellation unless and until the City shall have consented thereto subject to federal law.

As part of the transfer application, the Cable Operator shall furnish to the City the following documents:

(1) A financial statement that verifies that assignee has the ability to comply with all terms and conditions in this article and the franchise agreement.

(2) A list of all cable systems owned and operated by assignee within the State of Nevada.

(3) If assignee is a corporation, a list of officers, directors and shareholders owning five percent or more of the outstanding stock. If assignee is a partnership, a listing and biographical statement of the partners.

(4) A summary of current litigation with any franchising authority located within the State of Nevada.

(5) Consistent with federal and state law, any other documents and information necessary by the City in order to render and informed transfer decision.

The City shall review and act on any and all requests for franchise transfer within 120 days after receipt of a transfer application as required by federal law and the franchise, unless the City and the Cable Operator mutually agree to an extension of this time in accordance with federal law.

Approval of any transfer or change in ownership shall not be unreasonably withheld. Any transfer or assignment approved by the City shall be evidenced by a written instrument, a duly executed copy of which shall be filed within 60 days after the approval of the transfer or assignment by the City. By said instrument the assignee shall agree to comply with all terms of this article and the franchise agreement. The City shall have the right to require that any conditions in the original franchise be fulfilled prior to such transfer.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1100. Right of City to purchase.

The City reserves the right to purchase the existing system pursuant to Section 627 of the Cable Act.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1110. Alternative remedies.

No provision of this article shall be deemed to bar the right of the City to seek or obtain judicial relief from a violation of any provision of the franchise documents or any rule, regulation, requirement or directive promulgated thereunder. Neither the existence of other remedies identified in said chapter nor the exercise thereof shall be deemed to bar or otherwise limit the right of the City to recover monetary damages (except where liquidated damages are otherwise

prescribed) for such violation by the Cable Operator, or judicial enforcement of the Cable Operator's obligations by means of specific performance, injunction, relief or mandate, or any other judicial remedy at law or in equity.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1120. Anti-competitive practices.

No franchise issued pursuant to the provisions of this article shall be deemed to expressly or impliedly authorize the Cable Operator to utilize its cable television system to provide any service in such manner as to unlawfully damage any business competitor or other third party or violate any statutes or regulations of the United States or the State of Nevada. Nor shall any Cable Operator, by act or omission, engage in any anti-competitive practice in violation of any statutes or regulations of the United States or the State of Nevada. The provisions of this section shall be enforceable in courts of competent jurisdiction against a Cable Operator by any party who alleges injury as a result of an alleged violation thereof.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1130. Insurance.

The Cable Operator shall provide evidence to the City Clerk of both liability and property damage insurance in an amount determined by the City. A certificate evidencing such insurance showing the City as additional insured shall be delivered to the City Clerk or the Clerk's designee with their written acceptance or renewal of the franchise within 30 days. The City shall be notified by the insurance company at least 30 days prior to cancellation. The Cable Operator must maintain insurance for the duration of the franchise.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1140. Bonds.

The Cable Operator shall comply with all present and future ordinances and regulations of the City regarding excavation or construction and, in whatever amount deemed necessary by the City, shall be, unless specifically excepted, required to post a reasonable performance bond in favor of the City warranting, among other things, that all restoration shall be done promptly and in a workmanlike manner.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1150. Inconsistency.

If any portion of this article should be inconsistent with any rule or regulation now or hereinafter adopted by the FCC or other federal legislation, then to the extent of the inconsistency, the rule or regulation of the FCC or other federal legislation shall control so long, but only for so long, as such rule or regulation shall remain in effect, but the remaining provisions of this article shall not thereby be effected.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1160. Severability.

Each section, subsection or other portion of this article shall be severable and the invalidity of any section, subsection, or other portion shall not invalidate the remainder.

(Ord. No. 5565, § 1, 4-21-04)

Sec. 5.90.1170. Force majeure.

In the event that the Cable Operator's performance of any of the terms, conditions, obligations or requirements of this article is prevented or impaired due to any cause(s) beyond its reasonable control or not reasonably foreseeable, such inability to perform shall be deemed to be excused and no penalties or sanctions shall be imposed as a result thereof.

(Ord. No. 5565, § 1, 4-21-04)

ARTICLE X. SYSTEM OF DOCKLESS BICYCLES, ELECTRIC BICYCLES, AND/OR ELECTRIC SCOOTERS WITHIN CITY LIMITS

Sec. 5.90.1180. Granting of franchise.

The city council may award an exclusive or non-exclusive franchise to install, operate, maintain and manage a system of dockless bicycles, electric bicycles, and/or electric scooters on public property within the corporate limits of the city.

It shall be unlawful to install, operate, maintain and/or manage a commercial dockless bicycle, electric bicycle, or electric scooter system on public property without a franchise issued under this article.

(Ord. No. 6533, § 1, 12-4-19)

Secs. 5.90.1181—5.90.1600. Reserved.

ARTICLE XI. RESERVED*

Secs. 5.90.2180—5.90.2620. Reserved.

***Editor's note—**Ord. No. 5565, § 1, adopted April 21, 2004, repealed Art. XI, §§ 5.90.2180—5.90.2620, which pertained to franchise ordinance. See also the Code Comparative Table.

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CHAPTER 5.95. TELECOMMUNICATIONS

Sec. 5.95.010. Telecommunications service.

Sec. 5.95.010. Telecommunications and video service.

(a) Every business entity providing telecommunications service within the city must obtain and pay for an annual business license. Every business entity providing video service within the city as defined by NRS 711.141 must obtain a certificate of authority issued by the Secretary of State pursuant to NRS chapter 711. The fee for such license, or franchise fee for such certificate of authority, is payable to the city not later than 30 calendar days after the end of each calendar quarter and shall be five percent of the total gross receipts.

(b) "Total gross receipts" means:

(1) Revenue received from customers located within the city for local or intrastate telecommunications service;

(2) In the case of a "commercial mobile radio service" as defined in Part 20 of Title 47 of the Code of Federal Regulations, revenue received from the first $15.00 charged monthly for each line of access for each of its customers located within the city; or,

(3) In the case of a "video service provider", "gross revenue" as defined by NRS 711.066, as amended.

(c) A license or franchise fee not received or postmarked within 30 calendar days after the end of each calendar quarter shall be delinquent and the business entity that is subject to this ordinance shall pay, in addition to the fee, a penalty of two percent per month of the delinquent amount.

(d) Each telecommunications company which derives or intends to derive revenue from customers located within the city shall, not later than 60 calendar days after the effective date of this ordinance or 30 calendar days before the company begins to provide telecommunications service to those customers, whichever occurs later, provide to the city:

(1) An acknowledgment that the company is operating or intends to operate within the city; and

(2) The date that the company began or intends to begin to derive revenue from customers located within the city.

(e) A business entity that is subject to this ordinance shall, not later than 30 calendar days after the end of each calendar quarter, provide to the city a statement of the amount of revenue the public utility derived during that calendar quarter from the sale of a telecommunication or video service to each of its customers located within the city.

(f) Rights-of-way.

(1) Subject to state law, the provisions contained herein, and to any other applicable provisions of the Reno Municipal Code, licensees shall have a nonexclusive revocable privilege to construct, install, operate and maintain communications lines in, under, along, over and across public ways in the city. As used herein, the term public ways means the surface of and the space above and below any public street, sidewalk, rights-of-way, alley, right-of-way easements, or other public way of any type.

(2) Construction or installation in the public ways shall be subject to the provisions contained in Chapter 12.08 of the Reno Municipal Code, the latest adopted edition of

the Standard Specifications for Public Works Construction, the Standard Details for Public Works Construction, the City of Reno Public Works Design Manual and the City of Reno Standard Details. Such publications shall be available for public inspection and review at the office of the city engineer.

(3) A business entity that is subject to this ordinance shall submit construction drawings for city approval prior to performing any construction or installation in the public way. In the case of excavations in the public way, the licensee shall reimburse the city for related administrative costs, costs of asphalt replacement and the cost of full-time inspection of the construction or installation.

(4) Upon completion of any construction or installation in the public way, the business entity must provide the city with "as built" construction drawings within 30 days of the completion of the work.

(5) When directed by the city, in writing, a business entity that is subject to this ordinance shall, at its own expense, perform any necessary alterations, maintenance or relocation of its property installed or located in the public way.

(6) All excavations and other construction in the public ways shall be carried on to interfere as little as practicable with the use of public and private property and in accordance with any direction given by the city under the police and regulatory powers of the city.

(g) A business entity that is subject to this ordinance shall maintain in full force and effect commercial general liability insurance with an insurance company licensed to do business in the State of Nevada.

(1) Limits of liability shall be at least $3,000,000.00 combined single limit per occurrence. Any deductibles or self-insured retentions must be approved by the city.

(2) The city, its officers, agents, and employees must be named as additional insureds and the policy must contain a provision for 30 days' notice to the city of cancellation, non-renewal, or material change.

(Ord. No. 4765, § 1, 7-8-97; Ord. No. 6134, § 1, 12-2-09)

Title 6 VEHICLES AND TRAFFIC*

Ch. 6.04. Definitions, §§ 6.04.010—6.04.800
Ch. 6.06. Rules of the Road, §§ 6.06.010—6.06.875
Ch. 6.07. Residential Permit Parking, §§ 6.07.010—6.07.060
Ch. 6.08. Parking Meters, §§ 6.08.010—6.08.090
Ch. 6.09. Regulation of Parking Lots, §§ 6.09.010—6.09.070
Ch. 6.10. Towing and Booting Companies, §§ 6.10.010—6.10.220
Ch. 6.11. Encroachment Permit, §§ 6.11.010—6.11.080
Ch. 6.12. Equipment, §§ 6.12.010—6.12.050
Ch. 6.14. Truck Regulations, §§ 6.14.010—6.14.170
Ch. 6.15. Permits for Charter Buses, §§ 6.15.010—6.15.060
Ch. 6.16. Operation of Aircraft, §§ 6.16.010—6.16.110
Ch. 6.17. Golf Carts, §§ 6.17.010—6.17.050
Ch. 6.18. Bicycles, §§ 6.18.010—6.18.240
Art. I. In General, §§ 6.18.010—6.18.185
Art. II. License, §§ 6.18.190—6.18.240
Ch. 6.20. Penalties and Procedure on Arrest, §§ 6.20.010—6.20.090
Ch. 6.30. Parking Violations/Civil Infractions, §§ 6.30.010—6.30.620
Ch. 6.40. Regulation of Cruising, §§ 6.40.010—6.40.080

***Cross references—**Any ordinance prescribing traffic regulations for specific streets, such as ordinance designating speed limits, one-way streets, no parking areas, parking zones, truck routes, loading zones, stop intersections, intersections where traffic is to be controlled by signals, etc., § 1.01.070(11); police department, Ch. 2.06, Art. III; placing handbills in vehicles, § 8.24.030.

State law references—Traffic laws, NRS Ch. 484; powers of local authorities, NRS 484.779.

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CHAPTER 16.01. FIRE ADMINISTRATION AND CODES

Sec. 16.01.010. Reserved.
Sec. 16.01.011. Reserved.
Sec. 16.01.012. Adoption.

Sec. 16.01.010. Reserved.

Editor's note—Ord. No. 6306, § 1, adopted September 25, 2013, repealed the former section 16.01.010 in its entirety, which pertained to adoption, and derived from Ord. No. 5682, § 1, adopted April 13, 2005.

Sec. 16.01.011. Reserved.

Editor's note—Ord. No. 6499, § 1, adopted February 13, 2019, repealed § 1, which pertained to adoption and derived from Ord. No. 6306, § 2, 9-25-13.

Sec. 16.01.012. Adoption.

The 2024 edition of the International Fire Code and appendices B, C, D, E, H, L and N, as amended, together with the corrections made thereto, a copy of which is appended to the ordinance codified herein and marked "Exhibit A;" and the 2024 International Wildland-Urban Interface Code and appendices A, B and C, as amended, attached hereto as "Exhibit B," making the same applicable to the City, all of which are adopted by reference and incorporated herein and made a part hereof as if set forth in full, effective January 1, 2026.

(Ord. No. 6499, § 1, 2-13-19; Ord. No. 6726, § 1, 9-24-25)

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CHAPTER 6.04. DEFINITIONS*

Sec. 6.04.001. Findings for civil infractions.
Sec. 6.04.010. Generally.
Sec. 6.04.020. Alley.
Sec. 6.04.030. Authorized emergency vehicle.
Sec. 6.04.040. Bicycle.
Sec. 6.04.050. Bus.
Sec. 6.04.060. Bus stand.
Sec. 6.04.070. Business district.
Sec. 6.04.080. Center or centerline.
Sec. 6.04.090. Central business district.
Sec. 6.04.100. Combination of vehicles.
Sec. 6.04.110. Commercial motor vehicle.
Sec. 6.04.120. Common carrier.
Sec. 6.04.130. Controlled-access highway.
Sec. 6.04.140. Crosswalk.
Sec. 6.04.150. Curb loading zone.
Sec. 6.04.160. District no. 1.
Sec. 6.04.170. Divided highway.
Sec. 6.04.180. Double parking.
Sec. 6.04.190. Driver.
Sec. 6.04.200. Explosives.
Sec. 6.04.210. Farm tractor.
Sec. 6.04.220. Flammable liquid.
Sec. 6.04.230. Freight curb loading zone.
Sec. 6.04.240. Commercial garage.
Sec. 6.04.250. Highway.
Sec. 6.04.255. Horse-drawn vehicle.
Sec. 6.04.260. House coach.
Sec. 6.04.270. House trailer.
Sec. 6.04.280. Intersection.
Sec. 6.04.290. Laned highway.
Sec. 6.04.300. License to drive a motor vehicle.
Sec. 6.04.310. Local authority.
Sec. 6.04.320. Metal tire.
Sec. 6.04.330. Moped.
Sec. 6.04.340. Motor vehicle.
Sec. 6.04.350. Motorcycle.
Sec. 6.04.360. Official traffic-control device.
Sec. 6.04.370. Owner.
Sec. 6.04.380. Park and parking.

***Cross reference—**Definitions generally, § 1.01.020.

State law reference—Similar definitions, NRS 484.013 et seq.

Case law references—See *State v. Mills,* 52 Nev. 10, 279 Pac. 759 (1929); State ex rel. Callahan v. District Court, 54 Nev. 377, 18 P. (2d) 449 (1933); Ex parte Oh1, 59 Nev. 309, 92 P. (2d) 976 (1939); Styris v. Folk, 62 Nev. 209, 146 P. (2d) 783 (1943).

Sec. 6.04.385. Parking enforcement officer.
Sec. 6.04.390. Parking meter.
Sec. 6.04.400. Parking meter district.
Sec. 6.04.410. Parking meter space.
Sec. 6.04.420. Passenger curb loading zone.
Sec. 6.04.430. Pedestrian.
Sec. 6.04.440. Pneumatic tire.
Sec. 6.04.450. Police officer.
Sec. 6.04.460. Power cycle.
Sec. 6.04.465. Premises to which the public has access.
Sec. 6.04.470. Private way, driveway.
Sec. 6.04.480. Public authority.
Sec. 6.04.485. Qualified alternative fuel vehicles.
Sec. 6.04.490. Railroad.
Sec. 6.04.500. Railroad sign and railroad signal.
Sec. 6.04.510. Railroad train.
Sec. 6.04.520. Repair shop.
Sec. 6.04.530. Residence district.
Sec. 6.04.540. Right-of-way.
Sec. 6.04.550. Roadway.
Sec. 6.04.560. Safety zone.
Sec. 6.04.570. School bus.
Sec. 6.04.580. Security agreement.
Sec. 6.04.590. Security interest.
Sec. 6.04.600. Semitrailer.
Sec. 6.04.610. Sidewalk.
Sec. 6.04.620. Solid rubber tire.
Sec. 6.04.630. Stand and standing.
Sec. 6.04.640. Stop.
Sec. 6.04.650. Stopping.
Sec. 6.04.660. Street.
Sec. 6.04.670. Taxicab.
Sec. 6.04.680. Taxicab stand.
Sec. 6.04.690. Through highway.
Sec. 6.04.700. Tow car.
Sec. 6.04.710. Traffic.
Sec. 6.04.720. Traffic-control signal.
Sec. 6.04.730. Traffic division.
Sec. 6.04.740. Trailer.
Sec. 6.04.750. Traveled portion of highway.
Sec. 6.04.760. Truck.
Sec. 6.04.770. Two-directional highway.
Sec. 6.04.780. U-turn.
Sec. 6.04.790. Vehicle.
Sec. 6.04.800. Definitions under state law.

Sec. 6.04.001. Findings for civil infractions.

On January 1, 2023, AB 116 (2021 Legislative Session) was enacted which converts traffic violations in Nevada from a misdemeanor crime to a civil infraction. To comply with the change

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in state law, violations of Title 6 Vehicles and Traffic of the Reno Municipal Code are a civil infraction starting January 1, 2023 unless otherwise stated by the Nevada Revised Statutes or there is a state equivalent municipal code that is to remain a misdemeanor.

(Ord. No. 6640, § 1, 11-9-22)

Sec. 6.04.010. Generally.

The following words and phrases when used in this title shall for the purpose of this title have the meanings respectively ascribed to them in this chapter, except where the context clearly indicates a different meaning.

(Code 1966, § 8.04.010)

Sec. 6.04.020. Alley.

"Alley" means a highway:

(1) Within a city block set apart for public use, vehicular traffic and local convenience;

(2) Which primarily services access to the rear entrance of abutting property;

(3) Designed for the special accommodation of abutting property, but not a cul-de-sac.

(Code 1966, § 8.04.020)
State law reference—Similar definition, NRS 484.015.

Sec. 6.04.030. Authorized emergency vehicle.

"Authorized emergency vehicle" means a vehicle permitted to depart from certain traffic laws when equipped and operated in the manner provided by law.

(Code 1966, § 8.04.030)
State law reference—Similar definition, NRS 484.017.

Sec. 6.04.040. Bicycle.

"Bicycle" means a device propelled by human power upon which a person may ride, having two tandem wheels either of which is over 14 inches in diameter, or every such device generally recognized as a bicycle though equipped with two front or two rear wheels except a moped.

(Code 1966, § 8.04.040)
State law reference—Similar definition, NRS 484.019.

Sec. 6.04.050. Bus.

"Bus" means:

(1) A vehicle owned by the state, a political subdivision or a private school or nursery, designed for carrying more than ten passengers and used for the transportation of persons, or

(2) A vehicle, other than a taxicab, designed and used for the transportation of persons for compensation.

(Code 1966, § 8.04.050; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.021.

Sec. 6.04.060. Bus stand.

"Bus stand" means a fixed area in or adjacent to the highway to be occupied exclusively by buses for layover and operating schedules or in receiving or discharging passengers.

(Code 1966, § 8.04.060)
State law reference—Similar definition, NRS 484.023.

Sec. 6.04.070. Business district.

"Business district" means the territory contiguous to and including a highway when within any 600 feet along such highway there are buildings in use for business or industrial purposes, including but not limited to hotels, banks or office buildings, railroad stations and public buildings which occupy at least 300 feet of frontage on one side or 300 feet collectively on both sides of the highway.

(Code 1966, § 8.04.070)
State law reference—Similar definition, NRS 484.027.

Sec. 6.04.080. Center or centerline.

"Center" or "centerline" means a continuous or broken line marked upon the surface of a highway by paint or otherwise to indicate each portion of a highway allocated to traffic proceeding in the two opposite directions, and, if a line is not marked, it is an imaginary line in the highway equally distant from the edges or curbs of the highway.

(Code 1966, § 8.04.080; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.029.

Sec. 6.04.090. Central business district.

"Central business district" means all highways within the area described as such by section 6.04.160 as "district no. 1."

(Code 1966, § 8.04.090)
State law reference—Similar definition, NRS 484.031.

Sec. 6.04.100. Combination of vehicles.

"Combination of vehicles" means two or more vehicles coupled together.

(Code 1966, § 8.04.120)
State law reference—Similar definition, NRS 484.035.

Sec. 6.04.110. Commercial motor vehicle.

"Commercial motor vehicle" means any self-propelled or towed motor vehicle used on a highway in inter/intrastate commerce to transport passengers or property when the vehicle

(1) Has a gross vehicle weight rating or gross combination weight rating, or gross vehicle weight or gross combination weight, of 4,536 kg (10,001 pounds) or more, whichever is greater; or

(2) Is designed or used to transport more than eight passengers (including the driver) for compensation; or

(3) Is designed or used to transport more than 15 passengers, including the river, and is not used to transport passengers for compensation; or

(4) Is used in transporting material found by the Secretary of Transportation to be hazardous under 49 U.S.C. § 5103 and transported in a quantity requiring placarding under regulations prescribed by the Secretary under 49 CFR, subtitle B, Chapter I, subchapter C.

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(Code 1966, § 8.04.130; Ord. No. 6048, § 1, 8-20-08; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.037.

Sec. 6.04.120. Common carrier.

"Common carrier" means every common carrier of passengers operating between fixed termini, over regular routes and on fixed schedules.

(Code 1966, § 8.01.140)

Sec. 6.04.130. Controlled-access highway.

"Controlled-access highway" means every highway which owners or occupants of abutting lands and other persons have no legal right of access except at such points only and in such manner as may be determined by a public authority.

(Code 1966, § 8.04.150; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.041.

Sec. 6.04.140. Crosswalk.

"Crosswalk" means:

(1) That part of a highway at an intersection included within the connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curbs, or, in the absence of curbs, from the edges of the traveled portions of highways; or

(2) Any portion of a highway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

(Code 1966, § 8.04.160; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.043.

Sec. 6.04.150. Curb loading zone.

"Curb loading zone" means a space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials, so marked or indicated by adequate signs as to be plainly visible at all times.

(Code 1966, § 8.04.170)
State law reference—Similar definition, NRS 484.045.

Sec. 6.04.160. District no. 1.

"District no. 1" is all of those streets and portions of alleys in the city within the following described boundaries: Beginning at the intersection of the easterly line of South Virginia Street with the southerly line of Moran Street; thence northeasterly along the southerly line of Moran Street to its intersection with the easterly line of Holcomb Avenue; thence northeasterly along the easterly line of Holcomb Avenue to its intersection with the southerly line of Second Street, thence easterly to the easterly line of High Street; thence northeasterly to the intersection of the southerly line of the Southern Pacific Railroad Company right-of-way; thence northwesterly to the easterly line of Valley Road and northerly line of Southern Pacific Railroad Company right-of-way; thence northeasterly along the easterly line of Valley Road to its intersection with the southerly line of the proposed Freeway (Interstate 80); thence westerly along the southerly line of said Freeway to its intersection with the westerly line of Ralston Street; thence southerly

along the westerly line of Ralston Street to its intersection with the northerly line of Riverside Drive; thence southeasterly to the intersection of the northerly line of Court Street with the westerly line of Clay Street; thence southeasterly along the westerly line of Clay Street to its intersection with the southerly line of California Avenue; thence easterly along the southerly line of California Avenue with its intersection with the easterly line of Forest Street; thence northeasterly along the southerly line of California to its intersection with the westerly line of South Virginia Street; thence southeasterly to the intersection of the easterly line of South Virginia Street with the southerly line of Moran Street and the point of beginning.

(Code 1966, § 8.04.200; Ord. No. 4716, § 1, 3-11-97)

Sec. 6.04.170. Divided highway.

"Divided highway" means a highway divided into two or more roadways by means of a physical barrier or dividing section, constructed so as to impede the conflict of vehicular traffic traveling in opposite directions.

(Code 1966, § 8.04.205)
State law reference—Similar definition, NRS 484.048.

Sec. 6.04.180. Double parking.

"Double parking" or "double standing" or "double stopping" means the parking, standing or stopping of a vehicle upon the highway side of another vehicle parking, standing or stopping, but not illegally within or adjacent to an open parking space.

(Code 1966, § 8.04.210)

Sec. 6.04.190. Driver.

"Driver" means every person who drives or is in actual physical control of a vehicle.

(Code 1966, § 8.04.220)
State law reference—Similar definition, NRS 484.053.

Sec. 6.04.200. Explosives.

"Explosives" means any chemical compound or mechanical mixture that is commonly used or intended for the purpose of producing an explosion and which contains any oxidizing and combustive units or other ingredients in such proportions, quantities or packing that an ignition by fire, by friction, by concussion, by percussion or by detonator of any part of the compound or mixture may cause such a sudden generation of highly heated gases that the resultant gaseous pressures are capable of producing destructive effects on contiguous objects or of destroying life or limb.

(Code 1966, § 8.04.230)
State law reference—Similar definition, NRS 484.057.

Sec. 6.04.210. Farm tractor.

"Farm tractor" means every motor vehicle designed and used primarily as a farm implement for drawing plows, mowing machines and other implements of husbandry.

(Code 1966, § 8.04.240; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.059.

Sec. 6.04.220. Flammable liquid.

"Flammable liquid" means any liquid which has a flash point of 70° F., or less, as determined by a tagliabue or equivalent closed-cup test device.

(Code 1966, § 8.04.250; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.061.

Sec. 6.04.230. Freight curb loading zone.

"Freight curb loading zone" means a space adjacent to a curb for the exclusive use of vehicles during the loading or unloading of freight.

(Code 1966, § 8.04.260)
State law reference—Similar definition, NRS 484.063.

Sec. 6.04.240. Commercial garage.

"Commercial garage" means a building or other place wherein the business of storing or safekeeping vehicles which belong to diverse members of the public is conducted for compensation.

(Code 1966, § 8.04.270; Ord. No. 6266, § 1, 11-7-12)

Sec. 6.04.250. Highway.

"Highway" means the entire width between the boundary lines of every way dedicated to a public authority when any part of the way is open to the use of the public for purposes of vehicular traffic, whether or not the public authority is maintaining the way.

(Code 1966, § 8.04.280; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.065.

Sec. 6.04.255. Horse-drawn vehicle.

"Horse-drawn vehicle" means a carriage or trolley powered by being pulled by one or more horses. For purposes of this title, the term will be used interchangeably to refer to both two- and four-wheel vehicles unless the context clearly indicates otherwise.

(Ord. No. 4752, § 1, 5-20-97; Ord. No. 6266, § 1, 11-7-12)

Sec. 6.04.260. House coach.

"House coach" means a motor vehicle which is designed, constructed and equipped as a dwelling place or living abode, either permanently or temporarily.

(Code 1966, § 8.04.290)
State law reference—Similar definition, NRS 484.067.

Sec. 6.04.270. House trailer.

"House trailer" means:

(1) A trailer or a semitrailer which is designed, constructed and equipped as a dwelling place, living abode or sleeping place, either permanently or temporarily, and is equipped for use as a conveyance on a highway; or

(2) A trailer or semitrailer whose chassis and exterior shell is designed and constructed for use as a house trailer, as defined in subsection (1), but which is used instead permanently or temporarily for the advertising, sales, display or promotion of merchandise or services, or for any other commercial purpose except the transportation of property for hire or the transportation of property for distribution by a private carrier.

(Code 1966, § 8.04.300)
State law reference—Similar definition, NRS 484.069.

Sec. 6.04.280. Intersection.

"Intersection" means:

(1) The area embraced within the prolongation or connection of the lateral curb lines, or, if none, then the lateral boundary lines of the roadways of two highways which join one another at, or approximately at, right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict.

(2) Where a highway includes two roadways 30 feet or more apart, then every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. If such intersecting highway also includes two roadways 30 feet or more apart, then every crossing of two roadways of such highways shall be regarded as a separate intersection.

(3) The junction of an alley with a street, road or highway shall not constitute an intersection.

(Code 1966, § 8.04.310)
State law reference—Similar definition, NRS 484.073.

Sec. 6.04.290. Laned highway.

"Laned highway" means a highway which is divided into two or more clearly marked lanes for vehicular traffic.

(Code 1966, § 8.04.320)
State law reference—Similar definition, NRS 484.075.

Sec. 6.04.300. License to drive a motor vehicle.

"License to drive a motor vehicle" means any license or permit to drive a motor vehicle issued under the laws of this state, including:

(1) Any temporary license or instruction permit;

(2) The privilege of any person to drive a motor vehicle whether or not such person holds a valid license;

(3) Any nonresident's driving privilege.

(Code 1966, § 8.04.330)
State law reference—Similar definition, NRS 484.077.

Sec. 6.04.310. Local authority.

"Local authority" means the governing board of a county, city or other political subdivision having authority to enact laws or ordinances or promulgate regulations relating to traffic over a highway.

(Code 1966, § 8.04.340)
State law reference—Similar definition, NRS 484.079.

Sec. 6.04.320. Metal tire.

"Metal tire" is a tire the surface of which in contact with the highway is wholly or partly of metal or other hard, nonresilient material.

(Code 1966, § 8.04.350)

Sec. 6.04.330. Moped.

"Moped" means a motor-driven scooter, motor-driven cycle or similar vehicle that is propelled by a small engine which produces not more than two gross brake horsepower, has a displacement of not more than 50 cubic centimeters or produces not more than 1,500 watts final output, and:

(1) Is designed to travel on not more than three wheels in contact with the ground

But is not a tractor; and

(2) Is capable of a maximum speed of not more than 30 miles per hour on a flat surface with not more than one percent grade in any direction when the motor is engaged.

The term does not include an electric bicycle.

(Ord. No. 2839, § 1 (8.04.355), 5-27-80; Ord. No. 4794, § 1, 10-14-97; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.0798.

Sec. 6.04.340. Motor vehicle.

"Motor vehicle" means every vehicle which is self-propelled but not operated upon rails.

(Code 1966, § 8.04.360)
State law reference—Similar definition, NRS 484.081.

Sec. 6.04.350. Motorcycle.

"Motorcycle" means every motor vehicle equipped with a seat or saddle for the use of the driver and designed to travel on not more than three wheels in contact with the ground, excluding an electric bicycle, a tractor or a moped.

(Code 1966, § 8.04.370; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.083.

Sec. 6.04.360. Official traffic-control device.

"Official traffic-control device" means every sign, signal, marking and device not inconsistent with this title, chapters 484A to 484E, inclusive of Nevada Revised Statutes or prohibited by law, placed or erected by a public authority or railroad for the purpose of regulating, warning or guiding traffic.

(Code 1966, § 8.04.390; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.089.

Sec. 6.04.370. Owner.

"Owner" means a person who holds the legal title to a vehicle. The term includes a conditional vendee or lessee, if a vehicle is the subject of an agreement for the conditional sale or lease thereof, with or without the right of purchase upon performance of the conditions stated in the agreement and with an immediate right of possession vested in the conditional vendee or lessee. The term also includes a mortgagor, in the event of a mortgage of the vehicle, when the mortgagor of a vehicle is entitled to possession.

(Code 1966, § 8.04.400)
State law reference—Similar definition, NRS 484.091.

Sec. 6.04.380. Park and parking.

"Park" or "parking" means the standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading merchandise or passengers.

(Code 1966, § 8.04.410; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.097.

Sec. 6.04.385. Parking enforcement officer.

"Parking enforcement officer" means an enforcement official authorized by this ordinance to enforce this title and all state laws used for the purpose of regulating parking, including the issuance of citations and assistance in the impoundment or immobilization of vehicles in violation of this title and state parking laws.

(Ord. No. 6678, § 1, 5-22-24)

Sec. 6.04.390. Parking meter.

"Parking meter" means a mechanical timing device authorized by an ordinance of a municipality to be used for the purpose of regulating parking.

(Code 1966, § 8.04.420; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.099.

Sec. 6.04.400. Parking meter district.

"Parking meter district" means any restricted street upon which parking meters are installed and in operation.

(Code 1966, § 8.04.430)

Sec. 6.04.410. Parking meter space.

"Parking meter space" means any space within a parking meter district, alongside or next to which a parking meter or traffic-control signage indicating metered parking is located and which is duly designated for the parking of a single vehicle by lines painted or otherwise durably marked on the curb or on the surface of the street.

(Code 1966, § 8.04.440; Ord. No. 6221, § 1, 1-18-12)

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Sec. 6.04.420. Passenger curb loading zone.

"Passenger curb loading zone" means an area adjacent to a curb or the edge of a highway reserved for the exclusive use of vehicles during the loading or unloading of passengers.

(Code 1966, § 8.04.450; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.109.

Sec. 6.04.430. Pedestrian.

"Pedestrian" means any person afoot, a person in a manual or motorized wheelchair, or a person on an electric personal assistive device as defined in NRS 482.029.

(Code 1966, § 8.04.460; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.111.

Sec. 6.04.440. Pneumatic tire.

"Pneumatic tire" means a tire inflated or capable of inflation with compressed air.

(Code 1966, § 8.04.480)

Sec. 6.04.450. Police officer.

"Police officer" means every officer authorized to direct or regulate traffic or to make arrests for violations of traffic laws, ordinances or regulations.

(Code 1966, § 8.04.490)
State law reference—Similar definition, NRS 484.118.

Sec. 6.04.460. Power cycle.

"Power cycle" means every motor vehicle equipped with a seat or saddle for the use of the driver and propelled by a motor or engine of 70 cc displacement or less which produces not to exceed six and one-half horsepower at the rear wheel under full throttle, without a governor or other restriction on the intake or exhaust passages, and designed to travel on not more than three wheels in contact with the ground.

(Code 1966, § 8.04.500)

Sec. 6.04.465. Premises to which the public has access.

(a) "Premises to which the public has access" means property in private or public ownership onto which members of the public regularly enter, are reasonably likely to enter, or are invited or permitted to enter as invitees or licensees, whether or not access to the property by some members of the public is restricted or controlled by a person or a device.

(b) The term includes, but is not limited to:

- **(1)** A parking deck, parking garage or other parking structure.
- **(2)** A paved or unpaved parking lot or other paved or unpaved area where vehicles are parked or are reasonably likely to be parked.
- **(3)** A way that provides access to or is appurtenant to:
  - **a.** A place of business;
  - **b.** A governmental building;

c. An apartment building;

d. A mobile home park;

e. A residential area or residential community which is gated or enclosed or the access to which is restricted or controlled by a person or device; or

f. Any other similar area, community building or structure.

(c) The term does not include:

(1) A private way on a farm.

(2) The driveway of an individual dwelling.

(Ord. No. 3112, § 1, 8-8-83; Ord. No. 6266, § 1, 11-7-12)

Sec. 6.04.470. Private way, driveway.

"Private way or driveway" means every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

(Code 1966, § 8.04.510)
State law reference—Similar definition, NRS 484.124.

Sec. 6.04.480. Public authority.

"Public authority" means the department of transportation or the local authority having jurisdiction to enact laws or ordinances or adopt regulations relating to traffic over a highway.

(Code 1966, § 8.04.520; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.126.

Sec. 6.04.485. Qualified alternative fuel vehicles.

"Qualified alternative fuel vehicle" has the meaning as ascribed to that term in NRS 484A.197.

(Ord. No. 6221, § 1, 1-18-12)

Sec. 6.04.490. Railroad.

"Railroad" means carrier of persons or property upon cars, other than streetcars, operated upon stationary rails.

(Code 1966, § 8.04.530)
State law reference—Similar definition, NRS 484.128.

Sec. 6.04.500. Railroad sign and railroad signal.

"Railroad sign" or "railroad signal" means any sign, signal or device erected by a public authority or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train.

(Code 1966, § 8.04.540; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.131.

Sec. 6.04.510. Railroad train.

"Railroad train" means a steam, electric or other motor engine, with or without cars coupled thereto, operated upon stationary rails, except streetcars.

(Code 1966, § 8.04.550; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.134.

Sec. 6.04.520. Repair shop.

A "repair shop" is a place where vehicles are repaired, rebuilt, reconditioned, repainted or in any way maintained for the public at a charge.

(Code 1966, § 8.04.560)

Sec. 6.04.530. Residence district.

"Residence district" means the territory contiguous to a highway not comprising a business district when the frontage on such for a distance of 300 feet or more is mainly occupied by dwellings or by dwellings and buildings in use for residences.

(Code 1966, § 8.04.570)
State law reference—Similar definition, NRS 484.136.

Sec. 6.04.540. Right-of-way.

"Right-of-way" means the right of one vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or pedestrian approaching under such circumstances of direction, speed and proximity as to give rise to danger of collision unless one grants precedence to the other.

(Code 1966, § 8.04.580)
State law reference—Similar definition, NRS 484.141.

Sec. 6.04.550. Roadway.

"Roadway" means that portion of a highway which is improved and ordinarily used for vehicular travel, exclusive of the shoulder.

(Code 1966, § 8.04.590; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.145.

Sec. 6.04.560. Safety zone.

"Safety zone" means the area officially set within a highway for the exclusive use of pedestrians and which is so plainly marked or indicated by proper signs as to be plainly visible at all times while set apart as a safety zone.

(Code 1966, § 8.04.600; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.146.

Sec. 6.04.570. School bus.

"School bus" means every motor vehicle owned by or under the control of a public or governmental agency or a private school and regularly operated for the transportation of children to or from school or a school activity or privately owned and regularly operated for compensation for the transportation of children to or from school or a school activity.

(a) "School bus" does not include a passenger car operated under a contract to transport children to and from school, a common carrier or commercial vehicle under the jurisdiction of the Surface Transportation Board or the Nevada Transportation Authority when such vehicle is operated in the regular conduct of its business in interstate or intrastate commerce within the State of Nevada.

(Code 1966, § 8.04.610; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.148.

Sec. 6.04.580. Security agreement.

"Security agreement" means a written agreement which reserves or creates a security interest.

(Code 1966, § 8.04.620; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.157.

Sec. 6.04.590. Security interest.

"Security interest" means an interest in a vehicle reserved or created by agreement and which secures payment or performance of an obligation. The term includes the interest of a lessor under a lease intended as security. A security interest is perfected when it is valid against third parties generally, subject only to specific statutory exceptions.

(Code 1966, § 8.04.630)
State law reference—Similar definition, NRS 484.159.

Sec. 6.04.600. Semitrailer.

"Semitrailer" means every vehicle so designed and used in conjunction with a motor vehicle that some part of its own weight and that of its own load rests upon or is carried by another vehicle, except a pole trailer.

(Code 1966, § 8.04.640)
State law reference—Similar definition, NRS 484.168.

Sec. 6.04.610. Sidewalk.

"Sidewalk" means that portion of a highway between the curb lines, or the lateral lines of a highway, and the adjacent property lines intended for use of pedestrians.

(Code 1966, § 8.04.650; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.171.

Sec. 6.04.620. Solid rubber tire.

"Solid rubber tire" means a tire made of rubber other than a pneumatic tire.

(Code 1966, § 8.04.660)

Sec. 6.04.630. Stand and standing.

"Stand" or "standing" means the halting of a vehicle, whether occupied or not, otherwise than for the purpose of and while actually engaged in receiving or discharging passengers.

(Code 1966, § 8.04.670; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.183.

Sec. 6.04.640. Stop.

"Stop" when required, means complete cessation from movement.

(Code 1966, § 8.04.680; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.185.

Sec. 6.04.650. Stopping.

"Stop" or "stopping" means, when prohibited, any halting, even momentarily, of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic-control device.

(Code 1966, § 8.04.690; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.187.

Sec. 6.04.660. Street.

"Street" means the entire width between the boundary lines of every highway inside the territorial limits of a city when any part of such highway is open to the use of the public for purposes of vehicular travel.

(Code 1966, § 8.04.700; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.189.

Sec. 6.04.670. Taxicab.

"Taxicab" means a motor vehicle designed or constructed to accommodate and transport not more than six (6) passengers, including the driver, and used to transport passengers for a charge or fee.

(Code 1966, § 8.04.710)
State law reference—Similar definition, NRS 484.191.

Sec. 6.04.680. Taxicab stand.

"Taxicab stand" means a fixed area in a highway parallel and adjacent to the curb or edge of the highway and set aside for taxicabs to stand for passengers.

(Code 1966, § 8.04.720)
State law reference—Similar definition, NRS 484.193.

Sec. 6.04.690. Through highway.

"Through highway" means every highway or portion thereof on which vehicular traffic is given the right-of-way, and at the entrances to which vehicular traffic from intersecting highways is required by law to yield right-of-way to vehicles on such through highway in obedience to either an authorized stop sign or a yield sign, or other official traffic-control device.

(Code 1966, § 8.04.730)
State law reference—Similar definition, NRS 484.199.

Sec. 6.04.700. Tow car.

"Tow car" means a motor vehicle which has been altered or designed and equipped for and exclusively used in the business of towing vehicles by means of a crane, hoist, tow bar, towline or dolly, or is otherwise exclusively used to render assistance to other vehicles.

(Code 1966, § 8.04.740)
State law reference—Similar definition, NRS 484.201.

Sec. 6.04.710. Traffic.

"Traffic" means pedestrians, ridden or herded animals, vehicles, and other conveyances either singly or together while using any street or highway for purposes of travel.

(Code 1966, § 8.04.750)
State law reference—Similar definition, NRS 484.203.

Sec. 6.04.720. Traffic-control signal.

"Traffic-control signal" means any official traffic-control device, whether manually, electrically or mechanically operated, placed or erected by a public authority or railroad, by which traffic is alternately directed to stop and to proceed.

(Code 1966, § 8.04.760; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.205.

Sec. 6.04.730. Traffic division.

"Traffic division" of the police department, or if a traffic division is not established, then the term whenever used herein shall be deemed the police department of this city.

(Code 1966, § 8.04.770)

Sec. 6.04.740. Trailer.

"Trailer" means every vehicle designed to be drawn by a motor vehicle and so constructed that no part of its weight rests upon the towing vehicle, except a pole trailer.

(Code 1966, § 8.04.780)
State law reference—Similar definition, NRS 484.207.

Sec. 6.04.750. Traveled portion of highway.

"Traveled portion of highway" means that portion of a highway improved, designed or ordinarily used for vehicular traffic, exclusive of the berm or shoulder.

(Code 1966, § 8.04.790)
State law reference—Similar definition, NRS 484.209.

Sec. 6.04.760. Truck.

"Truck" means every motor vehicle which is used for the transportation or delivery of goods with a body built and designed for that purpose.

(Code 1966, § 8.04.800)
State law reference—Similar definition, NRS 484.211.

Sec. 6.04.770. Two-directional highway

"Two-directional highway" means an undivided highway upon which vehicles are allowed to proceed in opposite directions.

(Code 1966, § 8.04.810)
State law reference—Similar definition, NRS 484.215.

Sec. 6.04.780. U-turn.

"U-turn" means the turning of a vehicle upon a highway so as to proceed in the opposite direction, whether accomplished by one continuous movement or not.

(Code 1966, § 8.04.815)
State law reference—Similar definition, NRS 484.216.

Sec. 6.04.790. Vehicle.

"Vehicle" means every device in, upon or by which any person or property is or may be transported or drawn upon a highway, except:

(1) Devices moved by human power or used exclusively upon stationary rails;

(2) Electric personal assistive mobility devices as defined in NRS 482.029.

(Code 1966, § 8.04.820; Ord. No. 6266, § 1, 11-7-12)
State law reference—Similar definition, NRS 484.217.

Sec. 6.04.800. Definitions under state law.

Whenever any words and phrases used in this title are not defined in this chapter but are defined in the state laws regulating the operation of vehicles, any such definition therein is deemed to apply to such words and phrases used in this title.

(Code 1966, § 8.04.830)
State law reference—Traffic law definitions, NRS 484.013 et seq.

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CHAPTER 6.06. RULES OF THE ROAD*

Sec. 6.06.010. Authority of police and fire department officials.
Sec. 6.06.020. Merchants required to make certain disclosures in connection with the sale of mini motorcycles, motorized scooters, and motorized skateboards.
Sec. 6.06.030. Use of coasters, roller skates, roller blades, skateboards and similar devices restricted.
Sec. 6.06.040. Authority to install.
Sec. 6.06.050. Same—Specifications.
Sec. 6.06.060. Same—Manual on Uniform Traffic Control Devices.
Sec. 6.06.070. Interference, destruction and obstruction of traffic-control devices or railroad signs or signals, and obstruction of vision at intersections.
Sec. 6.06.080. Same—Play streets.
Sec. 6.06.090. Same—Designation of crosswalks and safety zones.
Sec. 6.06.100. Same—Traffic lanes.
Sec. 6.06.110. Signs required at through streets.
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Sec. 6.06.130. Authority to place and obedience to turning markers.
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Sec. 6.06.200. Stopping or standing prohibited when signs required.
Sec. 6.06.210. Restricted parking zones.
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Sec. 6.06.240. Qualified alternative fuel vehicles parking program.
Sec. 6.06.250. Parking limited.
Sec. 6.06.260. Preferential parking rights.
Sec. 6.06.265. Service and business parking.
Sec. 6.06.270. Towing and repossessing vehicles; notice; penalty.
Sec. 6.06.280. Zones of quiet.
Sec. 6.06.290. Amplified noise emissions from motor vehicles.
Sec. 6.06.300. Sports in streets.
Sec. 6.06.310. Machinery in motion on motor vehicles at a standstill.
Sec. 6.06.320. Draining of gasoline and oil.
Sec. 6.06.330. Driving on sidewalk or public parks prohibited.
Sec. 6.06.340. Transferring loads.
Sec. 6.06.350. Emergency and experimental regulations.
Sec. 6.06.360. Horse-drawn vehicles.

***Editor's note—**Ord. No. 6267, § 1, adopted November 7, 2012, amended Ch. 6.06, in its entirety, to read as herein set out. Prior to inclusion of said ordinance, Ch. 6.06 pertained to similar subject matter. Subsequently, Ord. No. 6316, § 1, adopted January 29, 2014, amended Ch. 6.06, in its entirety, to read as herein set out. The user's attention is directed to the Code Comparative Table for a detailed analysis of inclusion of Ord. No. 6267 and Ord. No. 6316.

Secs. 6.06.370—6.06.500. Reserved.
Sec. 6.06.510. Obedience to traffic and police officers.
Sec. 6.06.515. Authorized emergency vehicles—Privileges.
Sec. 6.06.520. Same—Designation.
Sec. 6.06.525. Duty to stop, give information and render aid.
Sec. 6.06.530. Duty to stop and give information in accident involving unattended vehicle or other property.
Sec. 6.06.535. Obedience.
Sec. 6.06.540. Signal legend.
Sec. 6.06.545. Flashing signals.
Sec. 6.06.550. Display of unauthorized signs, signals or markings.
Sec. 6.06.555. Vehicles to be driven on right side of highway.
Sec. 6.06.560. Vehicles not to be driven on left side of highway.
Sec. 6.06.565. Passing on the right.
Sec. 6.06.570. Overtaking a vehicle.
Sec. 6.06.575. Following too closely.
Sec. 6.06.580. Right-of-way at intersections.
Sec. 6.06.585. Vehicle turning left.
Sec. 6.06.590. Vehicle entering stop or yield intersection.
Sec. 6.06.595. Vehicle entering through highway.
Sec. 6.06.600. Vehicle entering highway from alley, driveway or building.
Sec. 6.06.605. Operation of vehicles on approach of authorized emergency vehicles.
Sec. 6.06.610. Starting a parked vehicle.
Sec. 6.06.620. Temporary roadblock; establishment; minimum requirements.
Sec. 6.06.625. Traffic administrative roadblock; establishment; minimum requirements.
Sec. 6.06.630. Required position and method of turning at intersections or driveways.
Sec. 6.06.635. Signals on turning or stopping.
Sec. 6.06.640. Means of making signals.
Sec. 6.06.645. Method of giving hand signals.
Sec. 6.06.650. U-turns.
Sec. 6.06.655. Turning on curve or crest of grade prohibited.
Sec. 6.06.660. Obedience to right or left turn-control devices.
Sec. 6.06.670. Obedience to one-way traffic-control devices.
Sec. 6.06.680. Unlawful rates of speed.
Sec. 6.06.685. Duty to decrease speed at certain places.
Sec. 6.06.690. Minimum speed.
Sec. 6.06.695. Speed racing and other speed violations.
Sec. 6.06.700. Slower traffic to drive on right.
Sec. 6.06.705. Regulation of speed by traffic signals.
Sec. 6.06.710. Restrictions as to alcoholic beverages in or about any motor vehicle within the city.
Sec. 6.06.715. Reckless driving.
Sec. 6.06.720. Careless driving.
Sec. 6.06.725. Inattentive driving.
Sec. 6.06.730. Subject to traffic-control signals.
Sec. 6.06.735. Right-of-way in crosswalks.

Sec. 6.06.740. Crossing at right angles.
Sec. 6.06.745. When pedestrians shall yield.
Sec. 6.06.750. Obedience to railroad signals.
Sec. 6.06.755. Walking on roadway and soliciting rides or business.
Sec. 6.06.760. Duties of driver of motor vehicle to pedestrian.
Sec. 6.06.765. Pedestrian safety zones.
Sec. 6.06.770. Right-of-way of blind or sight-impaired person.
Sec. 6.06.775. Traffic regulations to assist mobility-impaired persons.
Sec. 6.06.780. Interference with driver's control.
Sec. 6.06.785. Mufflers on motor vehicles.
Sec. 6.06.790. Loud noises from mufflers.
Sec. 6.06.795. Backing of vehicles.
Sec. 6.06.800. Throwing tacks, materials liable to injure tires.
Sec. 6.06.805. Throwing burning cigarette or other material from moving vehicle.
Sec. 6.06.810. Driving through processions prohibited.
Sec. 6.06.815. Vehicles in procession.
Sec. 6.06.820. Opening and closing vehicle doors.
Sec. 6.06.825. Clinging to vehicles.
Sec. 6.06.830. Riding on certain portions of vehicles prohibited.
Sec. 6.06.835. Boarding vehicles in motion.
Sec. 6.06.840. Tires on traction engines.
Sec. 6.06.845. Driving on new pavements prohibited.
Sec. 6.06.850. Sifting or leaking loads.
Sec. 6.06.855. Covering of license plates.
Sec. 6.06.860. Damage to public, private roads, guideboards unlawful.
Sec. 6.06.865. Traffic division to designate method of identifying funeral processions.
Sec. 6.06.870. Driving in violation of curfew prohibited.
Sec. 6.06.875. Highway closed to traffic; removal of barriers and signs unlawful; driving on highway unlawful.

Sec. 6.06.010. Authority of police and fire department officials.

(a) It shall be the duty of the officers of the police department or such officers as are assigned by the chief of police to enforce all street traffic laws of this city and all of the state vehicle laws applicable to street traffic in this city.

(b) Officers of the police department and other such persons as are designated by the chief of police are hereby authorized to direct all traffic by voice, hand or signal in conformance with traffic laws, provided that, in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department and other such persons as are designated in writing by the chief of police may direct traffic as conditions may require notwithstanding the provisions of the traffic laws.

(c) Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.

(d) Parking enforcement officers shall have a primary duty to enforce all parking regulations of this city and all state vehicle parking laws applicable to streets, public property, and public rights-of-way in this city.

(Code 1966, § 8.12.010; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14; Ord. No. 6678, § 1, 5-22-24)
Editor's note—Formerly § 6.06.005.

Sec. 6.06.020. Merchants required to make certain disclosures in connection with the sale of mini motorcycles, motorized scooters, and motorized skateboards.

(a) For the purposes of this section:

"Mini motorcycle" means a vehicle resembling a motorcycle designed to travel on not more than three wheels that is powered by an electric or gas powered motor with a displacement of less than 50 cubic centimeters and is capable of a maximum speed of not more than 30 mile per hour on a flat surface.

"Motorized scooter" means a vehicle having handlebars and a saddle-like seat mounted on the footboard that is powered by an electric or gas powered motor having a maximum displacement of less than 50 cubic centimeters and is capable of a maximum speed of not more than 30 miles per hour on a flat surface. The term does not include any scooter that is designed or intended by its manufacturer to be used primarily as an assistive device to increase, maintain, or improve the mobility of an individual with a disability or other physical condition that limits or impairs the individual's ability to walk.

"Motorized skateboard" means a vehicle that has a deck on which a person may ride and at least two tandem wheels in contact with the ground that is powered by an electric or gas powered motor having a maximum displacement of less than 50 cubic centimeters and is capable of a maximum speed of not more than 30 miles per hour on a flat service.

"Vehicle" means every device in, upon or by which any person or property is or may be transported or drawn upon a public highway. The term does not include:

(1) Devices moved by human power or used exclusively upon stationary rails or tracks;

(2) Mobile homes or commercial coaches as defined in Chapter 489 of NRS; or

(3) Electric personal assistive mobility devices.

(b) It is unlawful for a merchant to sell a mini motorcycle, motorized scooter, or motorized skateboard without making the disclosures required by subsection (c) below.

(c) Any merchant who sells mini motorcycles, motorized scooters, or motorized skateboards within the city shall:

(1) Post, in a prominent place at each location where mini motorcycles, motorized scooters, or motorized skateboards are on display, a notice advising that the operation of mini motorcycles, motorized scooters, or motorized skateboards on public streets is subject to Nevada motor vehicle laws that govern the operation of mopeds, including laws pertaining to operator licensing and minimum vehicle equipment. The required notice shall include references to:

a. NRS 482.135 "Vehicle" defined;

b. NRS 483.230 Licensing of drivers required;

c. NRS 484.541 General requirements for equipment;

(2) Provide a copy of the required notice to each purchaser of a mini motorcycle, motorized scooter, or motorized skateboard, either before or in connection with the purchase.

(3) Violation of this section shall be a misdemeanor.

(Ord. No. 5638, § 1, 1-19-05; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.012.

Sec. 6.06.030. Use of coasters, roller skates, roller blades, skateboards and similar devices restricted.

(a) No person upon roller skates, roller blades, skateboards or riding in or by means of any coaster, toy vehicle or similar device, shall go upon any roadway except while crossing a street on a crosswalk and when so crossing such person shall be granted all the rights and shall be subject to all of the duties applicable to pedestrians. This section shall not apply upon any street while set aside as a play street as authorized by RMC 6.06.070.

(b) It is unlawful for any person to use a skateboard, coaster, roller skates, roller blades, or any similar device upon a side walk within the boundaries of the downtown business district. For the purpose of this section, the downtown business district is defined as that area bordered on the north and south by Sixth and Second Streets, respectively, and on the east and west by Lake and Sierra Streets respectively.

(c) It is unlawful for any person to use a skateboard, coaster, roller skates, roller blades, or any similar device upon any public property that is posted with reference to this section.

(d) It is unlawful for any person, where such use is permitted, to operate or use a skateboard, coaster, roller skates, roller blades, or similar device to jump on or over any object, to jump off or onto stairs, handrails, benches, planters or any structure not designed for such use; or to operate these and similar devices in other than a careful or prudent manner, or at a rate of speed greater than is reasonable and proper, having due regard for the traffic and pedestrians on and the surface and width of the street, sidewalk or walkway; or such rate of speed as to endanger the life, safety, or property of any person.

(e) Where otherwise lawful, the use of coasters, roller skates, roller blades, skateboards and similar devices is prohibited on public streets and sidewalks in the Downtown Tax District, as defined in RMC 2.06.080, between the hours of 10:00 p.m. and 5:00 a.m. and in city parks, during the hours the parks are closed, as posted.

(Code 1966, § 8.12.040; Ord. No. 3344, § 1, 12-23-85; Ord. No. 3409, § 1, 7-14-86; Ord. No. 4822, § 1, 11-8-97; Ord. No. 5856, § 1, 7-5-06; Ord. No. 5894, § 1, 12-4-06; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.020.

Sec. 6.06.040. Authority to install.

The city traffic engineer shall place and maintain traffic-control signs, signals, markings and devices when and as required under the traffic ordinances of this city to make effective the provisions of such ordinances, and may place and maintain such additional traffic-control devices and markings as he may deem necessary to regulate traffic under the traffic ordinances of this city or under state law or to guide or warn traffic.

(Code 1966, § 8.16.010; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.060.

Sec. 6.06.050. Same—Specifications.

All signs and signals required under this title for a particular purpose shall so far as practicable be uniform as to type and location throughout the city. All traffic-control devices so erected and not inconsistent with the provisions of state law or this title shall be official traffic-control devices.

(Code 1966, § 8.16.020; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.065.

Sec. 6.06.060. Same—Manual on Uniform Traffic Control Devices.

In order to establish uniform standards for the placement of traffic control devices, the 2003 Edition of the Manual on Uniform Traffic Control Devices for Streets and Highways, developed and published by the U.S. Department of Transportation, Federal Highway Administration, is hereby adopted by reference and incorporated herein as if set forth in full.

Upon adoption by the Nevada Department of Transportation, subsequent revisions and editions shall be adopted and incorporated by reference herein. The 2003 Edition of the Manual on Uniform Traffic Control Devices for Streets and Highways and any subsequent revisions or editions shall be deposited in the Office of the Reno City Clerk and be available for public inspection.

(Ord. No. 4526, § 1, 6-27-95; Ord. No. 6044, § 1, 8-20-08; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.067.
State law reference—Devices used by local authorities must conform to manual adopted by state department of transportation, NRS 484.781.

Sec. 6.06.070. Interference, destruction and obstruction of traffic-control devices or railroad signs or signals, and obstruction of vision at intersections.

(a) No person shall, without lawful authority, attempt to, or in fact, alter, deface, injure, knock down or remove any traffic-control device or any railroad sign or any inscription, shield or insignia thereon, or any other part thereof.

(b) It is unlawful for any person to hide or obscure any official traffic-control device, railroad signal or signals, by the erection of any object, or by allowing bushes, trees or other vegetation to grow and obscure the same.

(c) It is unlawful for the property owner or occupant on all lots, regardless of zone classification, to allow any sign, fence, ornamental hedge, shrub, tree, display or any other object obstructing any part of the sidewalk, or, to allow structures, signs, hedges, shrubbery, natural growth, berms, mounds, or other obstructions not covered under subsection (d), to obstruct the stopping sight distance of motorists.

(d) Clear view areas shall be established at all intersections that are not controlled by all way stop signs or traffic signals. The clear view area shall be determined by the appropriate sight distance as defined in the latest edition of the American Association of State Highway and Transportation Officials (AASHTO), A Policy on Geometric Design of Highways and Streets, Chapter IX - "At Grade Intersections" and shall be provided at all intersections. Clear view areas at uncontrolled intersections where the posted speed is 25 miles per hour or less, by establishing a point at which the centerlines of the respective streets intersect and measuring from said point a distance of 110 feet along each centerline to a second point and connecting each such second point by a straight line. The area encompassed by the straight lines shall be the clear view area. It shall be unlawful to place or maintain within any clear view area any structures, signs, hedges, shrubbery, natural growth, berms, or mounds, or other obstructions to view at a height of between two and one-half and eight feet above the level of the street except for structures already in existence as of June 30, 1983. Exceptions shall be made for public utility poles, trees that are trimmed to the trunk at a height of two and one-half and eight feet above the level of the street whose trunk size does not constitute an obstruction of view, official traffic control devices, signs mounted eight feet or more above the level of the street that do not constitute an obstruction of view.

(e) Every such object or vegetation, as set forth above, is hereby declared a public nuisance, and will be abated or removed in accordance with the procedure outlined in chapter 8.22. In addition, such violations listed above, shall also be subject to other lawful remedies and actions legally afforded to the City of Reno.

(Ord. No. 6316, § 1, 1-29-14)

Sec. 6.06.080. Same—Play streets.

(a) The city traffic engineer shall have authority to declare any street or part thereof a play street and to place appropriate signs or devices in the roadway indicating and helping to protect the same.

(b) Whenever authorized signs are erected indicating any street or part thereof as a play street, no person shall drive a vehicle upon any such street or portion thereof except

drivers of vehicles having business or whose residences are within such closed area, and then any such driver shall exercise the greatest care in driving upon any such street or portion thereof.

(Code 1966, §§ 8.16.110, 8.16.120; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Note—Formerly § 6.606.070.

Sec. 6.06.090. Same—Designation of crosswalks and safety zones.

The city traffic engineer is hereby authorized to designate and maintain, by appropriate devices, marks, or lines upon the surface of the roadway, crosswalks at intersections.

(Code 1966, § 8.16.130; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.080.

Sec. 6.06.100. Same—Traffic lanes.

(a) The city traffic engineer is hereby authorized to mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary.

(b) Where such traffic lanes have been marked, it shall be unlawful for the operator of any vehicle to fail or refuse to keep such vehicle within the boundaries of any such lane except when lawfully passing another vehicle or preparatory to making a lawful turning movement.

(Code 1966, § 8.16.140; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.090.

Sec. 6.06.110. Signs required at through streets.

Whenever any street is designated as a through street it shall be the duty of the city traffic engineer to place and maintain a stop sign, or on the basis of an engineering and traffic investigation at any intersection a yield sign, on each and every street intersecting such through street unless traffic at any intersection is controlled at all times by traffic-control signals, provided, however, that at the intersection of two such through streets or at the intersection of a through street and a heavy traffic street not so designated, stop signs shall be erected at the approaches of either of the streets as may be determined by the city traffic engineer upon the basis of an engineering and traffic study.

(Code 1966, § 8.36.010; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.100.

Sec. 6.06.120. Stop when traffic obstructed.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal indication to proceed.

(Code 1966, § 8.36.070; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.110.

Sec. 6.06.130. Authority to place and obedience to turning markers.

(a) The city traffic engineer is authorized to place markers, buttons, or signs within or adjacent to intersections indicating the course to be traveled by vehicles turning at such intersections, and such course to be traveled as so indicated may conform to or be other than as prescribed by law or ordinance.

(b) When authorized markers, buttons or other indications are placed within an intersection indicating the course to be traveled by vehicles turning thereat, no driver of a vehicle shall disobey the directions of such indications.

(Code 1966, § 8.24.020; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.120.

Sec. 6.06.140. Authority to designate one-way streets and alleys.

Whenever any street or alley is designated as a one-way street or alley, the city traffic engineer shall place and maintain signs giving notice thereof, and no such designation shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited.

(Code 1966, § 8.32.010; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.130.

Sec. 6.06.150. Authority to restrict direction of movement on streets during certain periods.

(a) The city traffic engineer is hereby authorized with the approval of the city council, to determine and designate streets, parts of streets or specific lanes thereon upon which vehicular traffic shall proceed in one direction during one period and the opposite direction during another period of the day and shall place and maintain appropriate markings, signs, barriers or other devices to give notice thereof. The city traffic engineer may erect signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the center line of the roadway.

(b) It is unlawful for any person to operate any vehicle in violation of such marking, signs, barriers or other devices so placed in accordance with this section.

(Code 1966, § 8.32.030; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.140.

Sec. 6.06.160. Restrictions as to speed.

Indication of maximum speeds. No person shall drive a vehicle upon a street or highway in excess of that indicated as follows:

(1) Fifteen miles per hour:

a. When passing a school building or the grounds thereof during school recess or while children are going to or leaving or playing about the school; or

b. When turning a corner from one street or highway into another in any district, or on going through any street intersection within the city, except when traveling along a through street;

c. In public parks within the city;

d. When approaching or upon a curve or any other part of a street or highway if the driver's view is obstructed within a distance of 100 feet along the street or highway in the direction in which such driver is proceeding;

e. In public alleys within the city.

(2) Twenty-five miles per hour upon any street or highway except as otherwise provided in this title.

(3) In excess of 25 miles per hour upon any street or highway marked and signed by the city traffic engineer, when the marking and signing indicate the allowance of such speed.

(4) Where city council has designated a pedestrian safety zone in compliance with RMC 6.06.765 and state law, the speed limit for that street or highway containing the zone may be lowered by ten miles per hour from the current posted speed limit.

(5) The city traffic engineer may reduce a speed limit by ten miles per hour for a defined distance upon any street or highway when the following conditions are met:

a. Within a residence district as defined by NRS 484B.053; and

b. Adjacent to a park with a designated children's playground that is located adjacent to the street or highway, or where an uncontrolled marked crosswalk is located within 200 yards of a park; and

c. If a speed limit is reduced pursuant to this subsection, the reduced speed limit shall be no less than 20 miles per hour.

(Ord. No. 6316, § 1, 1-29-14; Ord. No. 6584, § 1, 12-2-20)

Sec. 6.06.170. Reserved.

Editor's note—Ord. No. 6655, § 1, adopted May 24, 2023, which pertained to spectators prohibited at illegal speed racing and other speed violations and derived from Ord. No. 5465, § 1, adopted June 25, 2003; Ord. No. 6267, § 1, adopted Nov. 7, 2012; Ord. No. 6316, § 1, adopted Jan. 29, 2014; Ord. No. 6479, § 1, adopted Aug. 22, 2018. Formerly § 6.06.150. Subsequently, Ord. No. 6479, § 1, adopted Aug. 22, 2018, changed the title of § 6.06.170 from "Spectators prohibited at illegal speed contests or exhibitions of speed" to read as herein set out.

Sec. 6.06.180. Parking between 2:00 a.m. and 6:00 a.m.

A person, except physicians or other persons on emergency calls, shall not park a vehicle on any highway, street or alley which has an official traffic-control device prohibiting parking between the hours of 2:00 a.m. and 6:00 a.m. of any day.

(Ord. No. 6316, § 1, 1-29-14)

Sec. 6.06.190. Parking in alleys.

No vehicle shall be parked in an alley or left so parked temporarily within District No. 1 or outside District No. 1 where designated by the city council and signs are placed giving notice thereof, except for such period of time as is reasonably necessary for the purpose of loading or unloading such vehicle. If commercial vehicles are required to be parked in alleys for the purpose of making utility installation, maintenance, or repairs, the vehicles shall be so parked as not to block the passage of other vehicles and shall not be so parked in alleys unless written consent to do so is first obtained from the city manager or his designated representative or as permitted for service parking as allowed by section 6.06.505. The penalty for the violation of this section shall be the sum of $15.00, minimum.

(Ord. No. 6316, § 1, 1-29-14)

(2) "Preparations" for "Speed racing or other speed violations" include, but are not limited to, situations in which:

a. A group of motor vehicles or individuals has arrived at a location for the purpose of participating in or being spectators at the event;

b. A group of individuals has lined one or both sides of a public street or highway for the purpose of participating in or being a spectator at the event;

c. A group of individuals has gathered on private property open to the general public without the consent of the owner, operator, or agent thereof for the purpose of participating in or being a spectator at the event;

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Sec. 6.06.200. Stopping or standing prohibited when signs required.

(a) The city engineer is hereby authorized to designate "no parking" or stopping areas, and shall cause such areas to be appropriately signed and/or marked by red paint placed and maintained upon the entire curb surface within such area, omitting any crosswalk area, disabled access ramp, and driveway.

(b) It shall be unlawful for any person to stop, stand or park a vehicle in any area so designated as a "No Parking" or stopping area; except that a bus may stop in such a red zone when the same has been authorized to be, and has been marked or signed as, a bus stop, and a taxi or vehicle for the transportation of persons or property for hire may stop in certain red zones as provided in this title, and vehicles of the city and of the officials of the city may stop in such red zone which has been authorized to be, and has been marked or signed, for "municipal cars only." The penalty for the violation of this section shall be the sum of $25.00, minimum.

(Ord. No. 6316, § 1, 1-29-14)

Sec. 6.06.210. Restricted parking zones.

A person shall not stop, stand or park a vehicle for any purpose or length of time in any restricted parking zone other than for the purpose to which parking in such zone is restricted, except that a driver of a passenger vehicle may stop temporarily in such zone for the purpose of and while actually engaged in loading or unloading of passengers when such stopping does not interfere with any vehicle which is waiting to enter or about to enter the zone for the purpose of parking in accordance with the purpose to which parking is restricted.

(Ord. No. 6316, § 1, 1-29-14)

Sec. 6.06.220. Unlawful to park at certain places.

A person shall not park a vehicle at any time on any of the following parts of highways, sidewalks or sidewalk areas, where official traffic-control devices are erected giving notice thereof:

(a) In front of a theater entrance;

(b) In front of the entrance or exit of a hotel;

(c) In front of the entrance of any building where any such device has been erected by a local authority.

(Ord. No. 6316, § 1, 1-29-14)

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Sec. 6.06.230. Stopping for loading or unloading only.

When such areas as the city engineer may hereafter designate as "loading zones" have been appropriately marked by yellow paint placed and maintained upon the entire curb surface along such area, with a proper sign erected and designated "loading zone" along the yellow zone, it shall be unlawful for any person to stop or stand a vehicle except for the purpose of loading or unloading passengers or materials except under certain restrictions, as follows:

(1) *Private vehicles.* The loading or unloading of passengers shall not consume more than three minutes and that of unloading or loading of passengers and their luggage or miscellaneous cargo shall not consume more than five minutes. If it is determined by the city engineer that the aforementioned loading and unloading time limits are not adequate for adjacent property needs, the city engineer may extend the time limits, up to a maximum of 20 minutes, as deemed appropriate by a parking study. If the time limits are extended, the limits shall be posted by regulatory signage.

(2) *Commercial vehicles.* The loading or unloading of passengers, materials, cargo, delivery or pickup of express and parcel post packages and United States mail shall not consume more than 20 minutes unless permission be obtained from the police department authorizing the standing of a vehicle for a longer period of time while unloading or loading.

(3) *Hotel loading zone.* Where a proper sign is erected in front of a hotel, the time for loading and unloading passengers and their luggage shall not consume more than ten minutes. Hotel loading zones shall not be subject to the provisions of paragraph (4) of this section.

(4) *Application of restrictions and exceptions.* The aforementioned restrictions shall be effective on weekdays and also on Saturdays between the hours commencing with 8:00 a.m. and concluding at 6:00 p.m., unless the areas are posted otherwise. If the areas are posted by signs, as, for example, stating "day or night" or "24 hours," then and in such instances the restrictions shall be in effect for the period indicated by the signs. Except as indicated by such appropriate signs, all loading zones shall be open to public parking on weekdays and Saturdays between the hours commencing with 6:00 p.m. and concluding with 8:00 a.m., and they shall likewise be open to public parking on Sundays and holidays for the full 24 hours of such days. The penalty for violation of this section shall be the sum of $15.00, maximum.

(Ord. No. 6316, § 1, 1-29-14)

Sec. 6.06.240. Qualified alternative fuel vehicles parking program.

(1) *"Qualified alternative fuel vehicle"* has the meaning as defined in section 6.04.485 of the Reno Municipal Code.

(2) The city shall issue to the owner or long-term lessee of a qualified alternative fuel vehicle a distinctive decal, label or other identifier that clearly distinguishes the qualified alternative fuel vehicle from other vehicles.

(3) The decal, label or other identifier may be obtained by the owner or long-term lessee of a qualified alternative fuel vehicle by:

(a) Submitting an appropriate application to the traffic engineer and/or his designee on forms developed or approved by the city;

(b) Providing such other documentation and verification as the traffic engineer or his designee may require, including without limitation:

(i) Documentation regarding vehicle identification, ownership and vehicle registration;

(ii) Visual confirmation of vehicle identification and license plate information; and

(iii) Certification or other verification acceptable to the traffic engineer or his designee that the vehicle is a qualified alternative fuel vehicle.

(4) A decal, label or other identifier issued pursuant to this chapter shall be valid for no more than one year, renewable upon application and upon such documentation and verification as the traffic engineer or his designee may require.

(5) A fee of $10.00 for each decal, label or other identifier issued pursuant to this chapter, whether in connection with initial issuance, renewal or replacement will be charged.

(6) Except as otherwise provided in (7) herein, the driver of a qualified alternative fuel vehicle displaying the distinctive decal, label or other identifier issued for that vehicle pursuant to this chapter may:

(a) Stop, stand or park the qualified alternative fuel vehicle in any public metered parking zone within the City's Parking Meter District No. 1 without making payment therefore in a manner otherwise required; and

(b) Stop, stand or park the qualified alternative fuel vehicle in any public parking lot or parking area within the City's Parking Meter District No. 1 without paying the parking fee otherwise required.

(7) The driver of a qualified alternative fuel vehicle shall:

(a) Comply with any limits on the amount of time for stopping, standing or parking imposed on other drivers; and

(b) Pay applicable parking fees during certain special events or activities designated by the city, regardless of whether the vehicle displays a decal, label or other identifier issued pursuant to this chapter.

(Ord. No. 6316, § 1, 1-29-14)

Sec. 6.06.250. Parking limited.

(a) When signs, as authorized by the city engineer, are in place giving notice thereof, no person shall stop, stand or park any vehicle upon any street or city-owned or -operated public parking lot for a period of time longer than the period specified on the sign.

(b) When signs, as authorized by the city engineer, are in place giving notice thereof, no person shall stop, stand or park any vehicle upon any street or city-owned or -operated public parking lot between the hours specified on the sign or as otherwise specified on the sign.

(c) The provisions of this section shall be subject to the application of special or more restrictive provisions contained in this chapter and relating to the parking of vehicles.

(d) The penalty for the violation of this section shall be the sum of $5.00, minimum.

(Ord. No. 6316, § 1, 1-29-14)

Sec. 6.06.260. Preferential parking rights.

Whenever a space is vacant next to a curb, sufficient only for the parking of one vehicle, and any vehicle has been stopped in the line of traffic for the purpose of backing into the space, such vehicle shall have the preferential right to such parking space over any following vehicle.

(Ord. No. 6316, § 1, 1-29-14)

Sec. 6.06.265. Service and business parking.

(1) The city engineer or designee is authorized to issue a permit for "service parking," which term means use of parking meter space while rendering service in cleaning, painting, adjusting or making minor repairs or replacements in or to buildings or building equipment or to public utilities in the vicinity of the service parking space, or service parking in an alley, loading zone, taxicab stand, or bus stand upon the following conditions:

(a) Application shall be made to the city engineer or designee on a form provided by the city. The applicant shall set forth the applicant's business and the necessity for such permit.

(b) If it appears that a necessity exists, the city engineer or designee may authorize the issuance of such permit upon payment of the fees and under the conditions hereinafter prescribed.

(c) Upon payment of the prescribed fee, the city engineer or designee may authorize the number of vehicles eligible for "service parking" deemed necessary or convenient for the applicant.

(d) Upon entering any space available, the permittee shall follow the prescribed method as set forth by the public works department for the use of the "service parking" permit.

(e) The city engineer or designee, or the police department may revoke any permit if used for any purpose other than that authorized herein, or for any violation of the terms and conditions of this section. Upon revocation, any issued device used to indicate "service parking" status shall be immediately returned to the city engineer or designee and all fees paid shall be forfeited. Police officers finding vehicles in "service parking" status shall investigate the use being made thereof, and if it is found in violation of this section, shall issue a citation to the permittee and shall remove the vehicle from "service parking" status.

(f) The fee for a permit shall be in accordance with a set list of fees approved by the city council and kept on file in the office of the city engineer.

(g) It is unlawful for any permittee to violate any of the provisions of this section, or for any other person to have in his possession any issued device used to indicate "service parking" status issued by the city engineer when not authorized by the permittee, and violations shall be punished as provided in this Code.

(2) The city engineer is authorized to issue a permit for "business parking," which term means use of parking space for general business use upon the following conditions:

(a) The business property has no off-street parking.

(b) The permit shall only be valid in a metered parking space immediately adjacent to the business property, except as otherwise allowed under the permit issued by the city engineer.

(c) No more than one permit shall be issued to any one business.

(d) Application shall be made to the city engineer on a form provided by the city. The applicant shall set forth the applicant's business name and the necessity for such permit.

(e) If it appears that a necessity exists, the city engineer may authorize the issuance of such permit upon payment of the fees and under the conditions hereinafter prescribed.

(f) Upon entering any metered space available, the permittee shall follow the prescribed method as set forth by the public works department for the use of the "business parking" permit.

(g) The city engineer or designee, or the police department may revoke any permit if used for any purpose other than that authorized herein, or for any violation of the terms and conditions of this section. Upon revocation, any issued device used to indicate "business parking" status shall be immediately returned to the city engineer or designee and all fees paid shall be forfeited. Police officers finding vehicles in "business parking" status shall investigate the use being made thereof, and if it is found in violation of this section, shall issue a citation to the permittee and shall remove the vehicle from "business parking" status.

(h) The fee for a permit shall be in accordance with a set list of fees approved by the city council and kept on file in the office of the city engineer.

(i) It is unlawful for any permittee to violate any of the provisions of this section, or for any other person to have in his possession any issued device used to indicate "business parking" status issued by the city engineer when not authorized by the permittee, and violations shall be punished as provided in this Code.

(Ord. No. 6316, § 1, 1-29-14)

Sec. 6.06.270. Towing and repossessing vehicles; notice; penalty.

(a) Any person who repossesses or tows any vehicle from any location in the city without the knowledge of the registered owner thereof shall immediately report such repossession or towage by oral communication to the police department of the city. The oral communication shall include the description of the vehicle, identification number, license number, the time of such repossession or towage, and the location from which and to which the vehicle has been repossessed or towed.

(b) Any person violating this section shall be guilty of a misdemeanor.

(Ord. No. 4654, § 1, 7-9-96; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.170.

Sec. 6.06.280. Zones of quiet.

(a) Every street or highway within 200 feet of a hospital building is hereby declared to be a "zone of quiet" and the chief of police is hereby authorized to declare any portion of a street, highway or alley within 200 feet of a sick chamber a "zone of quiet" for temporary purposes.

(b) It is unlawful for any person to sound gongs, whistles horns, sirens, or to make unnecessary noise or itinerant music in any such "zone of quiet."

(Code 1966, § 8.68.070; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.180.

Sec. 6.06.290. Amplified noise emissions from motor vehicles.

It shall be unlawful for any person, while parked or operating a motorized vehicle upon a highway to create or allow amplified sound within the vehicle which is audible at a distance of 25 feet from the vehicle. This section shall not apply to emergency vehicles or to the emission of sound to alert persons to the existence of an emergency or break-in.

(Ord. No. 6153, § 1, 6-9-10; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.190.

Sec. 6.06.300. Sports in streets.

It is unlawful for any person to engage in any sport, amusement or occupation likely to impede the passage of vehicles upon any street.

(Code 1966, § 8.68.080; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.200.

Sec. 6.06.310. Machinery in motion on motor vehicles at a standstill.

It is unlawful for any person to leave unattended upon any public street or highway or alley any motor vehicle while any part of its machinery is running, or is in motion, except for the purpose of operating refrigeration equipment on such vehicle or a trailer or semitrailer connected therewith.

(Code 1966, § 8.68.110; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.210.

Sec. 6.06.320. Draining of gasoline and oil.

It is unlawful for any person owning or operating any vehicle or any machinery or apparatus using gasoline, or other product of petroleum to drain, or to permit the same to drip or run from the crank or gear case, or from any other part of vehicle or machinery any gasoline, oil or other petroleum product upon any street or highway.

(Code 1966, § 8.68.120; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.220.

Sec. 6.06.330. Driving on sidewalk or public parks prohibited.

The driver of a vehicle shall not drive or park upon or within any sidewalk area or upon any area designated as a public park, except at a permanent or temporary driveway or alley entrance.

(Ord. No. 6316, § 1, 1-29-14)

Sec. 6.06.340. Transferring loads.

It is unlawful to transfer merchandise from one vehicle to another upon any street, except if one such vehicle has been damaged or become disabled and cannot be removed from the street with safety until the same has been unloaded.

(Code 1966, § 8.68.320; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)
Editor's note—Formerly § 6.06.230.

Sec. 6.06.350. Emergency and experimental regulations.

(a) The chief of police, by and with the approval of the city traffic engineer, is empowered to make regulations necessary to make effective the provisions of the traffic ordinances of this city and to make and enforce temporary or experimental regulations to cover emergencies or special conditions. No such temporary or experimental regulations shall remain in effect for more than 90 days.

(b) The city traffic engineer may test traffic control devices under actual conditions of traffic.

(Ord. No. 2847, § 1 (8.68.360), 5-27-80; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)

Editor's note—Formerly § 6.06.240.

Sec. 6.06.360. Horse-drawn vehicles.

(a) No horse-drawn vehicle shall be operated on a public street as a business enterprise unless all the requirements for licensing contained in of Title 5 of the Reno Municipal Code for licensing have been met.

(b) The driver of any vehicle operated under this section shall have a valid driver's license.

(c) No horse-drawn vehicle may be operated as a business on a two land street in the city unless specifically approved in accordance with section 5.17.040 of this Code.

(d) Horse-drawn vehicles, when in motion shall be operated only in the curb-most traffic lane on any public street, except when making a left turn, and the driver shall obey all applicable state and local traffic laws, ordinances and regulations.

(e) Horses in service will be driven at a walk at all times unless clearing an intersection, when a trot is authorized. No horse may be driven at a canter or gallop.

(f) Horse-drawn vehicles shall pick up and discharge passengers only in authorized loading zones.

(g) Horse-drawn vehicles shall park only in ″stands″ designated and approved in accordance with section 5.17.040 of this Code.

(h) Occupancy of a horse-drawn vehicle shall not exceed the rated seating capacity of the vehicle.

(i) No passenger shall be allowed to ride on any part of the vehicle when in motion except seated inside the vehicle.

(j) Drivers shall not solicit patronage in a loud tone of voice or in any manner to annoy or obstruct the movement of a person, or follow any person for the purpose of soliciting patronage.

Any violation of this section constitutes a misdemeanor.

(Ord. No. 4752, § 1, 5-20-97; Ord. No. 4942, § 1, 12-8-98; Ord. No. 6267, § 1, 11-7-12; Ord. No. 6316, § 1, 1-29-14)

Editor's note—Formerly § 6.06.250.

Secs. 6.06.370—6.06.500. Reserved.

Sec. 6.06.510. Obedience to traffic and police officers.

(a) It is unlawful for any person to refuse or fail to comply with any lawful order, signal or direction of any police officer of the city, county or state while he is performing his duties in the enforcement of this title.

(b) Officers of the police department are hereby authorized to direct all traffic by means of visible or audible signal. It is unlawful for any person to refuse or fail to comply with any lawful order, signal or direction of a traffic or police officer.

(c) It is unlawful for any person driving or operating, propelling or causing to be propelled, any vehicle to fail to stop opposite or in advance of any flagman, signal device or person directing traffic at or in advance of a school pedestrian lane and giving warning that children are about to or are crossing the street; and it is further declared to be unlawful to proceed until such signal has stopped, been raised or removed, or the flagman, or person stationed at or in advance of such pedestrian lane, has given a signal to go, or has left the locality.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.010
State law reference—NRS 484B.100 and 484B.330

Sec. 6.06.515. Authorized emergency vehicles—Privileges.

(a) The driver of an authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual or suspected violator of the law or when responding to but not upon returning from a fire alarm, may exercise the privileges set forth in this section, but subject to the conditions herein stated.

(b) The driver of an authorized emergency vehicle may:

(1) Park or stand, irrespective of the provisions of this title;

(2) Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation;

(3) Exceed the maximum speed limits so long as he does not endanger life or property;

(4) Disregard regulations governing direction of movement or turning in specified directions.

(c) The exemptions herein granted to an authorized emergency vehicle shall apply only when the driver of any such vehicle while in motion sounds audible signal by bell, siren, or exhaust whistle as may be reasonably necessary, and when the vehicle is equipped with at least one lighted lamp displaying a red light visible under normal atmospheric conditions from a distance of 500 feet to the front of such vehicle, except that an authorized emergency vehicle operated as a police vehicle need not be equipped with or display a red light visible from in front of the vehicle.

(d) The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.035
State law reference—NRS 484B.700

Sec. 6.06.520. Same—Designation.

(a) Except as provided in subsection (d) of this section, authorized emergency vehicles are vehicles publicly owned and operated in the performance of the duty of:

(1) A police or fire department;

(2) A sheriff's office;

(3) The state highway patrol;

(4) A public ambulance agency;

(5) A public lifeguard or lifesaving agency.

(b) A vehicle publicly maintained in whole or in part by the state, or by a city or county, and privately owned, and operated by a regularly salaried member of a police department, sheriff's office or traffic law enforcement department, is an authorized emergency vehicle under the following conditions:

(1) When such vehicle has such a permit from the state department of motor vehicles;

(2) Where such person operates such vehicle so owned by him in responding to emergency calls or fire alarms or highway patrol duty or operates such vehicle in the pursuit of actual or suspected violators of the law; and

(3) When the state, county or city does not furnish to such officer a publicly-owned vehicle for the purposes stated in subsection (2).

(c) When a vehicle is operated as an authorized emergency vehicle it shall display a flashing red light and an audible siren which have been approved by the state department of motor vehicles.

(d) The following are not emergency vehicles and shall not be permitted to operate as such:

(1) Tow cars;

(2) Public utility vehicles;

(3) Vehicles used in merchant patrols;

(4) Vehicles used in private escort service;

(5) Privately-owned vehicles of volunteer firemen;

(6) Privately-owned vehicles of reserve members of a police department or a sheriff's office; and

(7) Vehicles of private detectives.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.040

Sec. 6.06.525. Duty to stop, give information and render aid.

The driver of any vehicle involved in an accident within the city on a street, highway, alley or premises to which the public has access resulting in damage to any vehicle or other property which is driven, occupied or attended by any person or which accident involves a person shall:

(1) Immediately stop such vehicle at the scene of such accident or as close thereto as possible, and shall forthwith return to and in every event shall remain at the scene of such accident until he has fulfilled the requirements of this section. Such stop shall be made without obstructing traffic more than necessary; and

(2) Give his name, address and the registration number of the vehicle he is driving, and shall upon request exhibit his license to operate a motor vehicle to any person injured in such accident or to the driver or occupant of or person attending any vehicle or other property damaged in such accident; and

(3) Give such information and upon request surrender such license to any police officer at the scene of the accident or who is investigating the accident; and

(4) Render to any person injured in such accident reasonable assistance, including the carrying, or the making of arrangements for the carrying, of such person to a physician, surgeon or hospital for medical or surgical treatment if it is apparent that such treatment is necessary, or if such carrying is requested by the injured person.

(5) If no police officer is present, the driver of any vehicle involved in such accident shall forthwith report such accident to the nearest office of the police and submit thereto all necessary information including the information required by this section.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.045
State law reference—NRS 484E.030

Sec. 6.06.530. Duty to stop and give information in accident involving unattended vehicle or other property.

(a) The driver of any vehicle which collides with or is involved in an accident within the city on a street, highway, alley or premises to which the public has access with any vehicle or other property which is unattended, resulting in any damage to such other vehicle or property, shall immediately stop and shall then and there locate and notify the operator or owner of such vehicle or other property of the name and address of the driver and owner of the vehicle striking the unattended vehicle or other property or shall attach securely in a conspicuous place in or on such vehicle or property a written notice giving the name and address of the driver and of the owner of the vehicle doing the striking.

(b) The driver of a vehicle which collides with or is involved in an accident with any vehicle or other property which is unattended, resulting in any damage to such other vehicle or property, shall immediately by the quickest means of communication give notice of such accident to the nearest office of police.

(c) Whenever the driver of a vehicle is physically incapable of giving an immediate notice of an accident as required by subsection (b) and there was another occupant in the vehicle at the time of the accident capable of doing so, such occupant shall make or cause to be given the notice not given by the driver.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.050
State law reference—NRS 484E.040, 484E.050

Sec. 6.06.535. Obedience.

(a) It is unlawful for any driver to disobey the instructions of any official traffic-control device placed in accordance with the provisions of this chapter, unless at the time otherwise directed by a police officer.

(b) No provision of this chapter for which such devices are required shall be enforced against an alleged violator if at the time and place of the alleged violation such device in not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular provision of this chapter does not state that such devices are required, such provisions shall be effective even though no devices are erected or in place.

(c) Whenever devices are placed in position approximately conforming to the requirements of this chapter, such devices shall be presumed to have been so placed by the official act or direction of a public authority, unless the contrary is established by competent evidence.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.070
State law reference—NRS 484B.300

Sec. 6.06.540. Signal legend.

(a) When the traffic-control signal is circular green alone:

(1) Vehicular traffic facing such signal may proceed straight through or turn right or left unless another device at such place prohibits either or both such turns. Such vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.

(2) Pedestrians facing such a signal may proceed across the highway within any marked or unmarked crosswalk, unless directed otherwise by another device as provided in section 6.06.735 (right-of-way in crosswalks).

(b) Where the traffic-control signal is circular green with a turn arrow:

(1) Vehicular traffic facing such a signal may proceed to make the movement indicated by the green turn arrow or such other movement as is permitted by the circular green signal, but such traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection at the time such signal is exhibited. Drivers turning in the direction of the arrow when displayed with the circular green signal are thereby advised that so long as a turn arrow is illuminated, oncoming or opposing traffic simultaneously faces a steady red signal.

(2) Pedestrians facing such a signal may proceed across the highway within any marked or unmarked crosswalk, unless directed otherwise by another device as provided in section 6.06.735 (right-of-way in crosswalks).

(c) Where the traffic-control signal is a green turn arrow alone:

(1) Vehicular traffic facing such a signal may proceed only in the direction indicated by the arrow signal so long as the arrow is illuminated, but such traffic shall yield the right-of-way to pedestrians lawfully within the adjacent crosswalk and to other traffic lawfully using the intersection.

(2) Pedestrians facing such a signal shall not enter the highway until permitted to proceed by another device as provided in section 6.06.735 (right-of-way in crosswalks).

(d) Where the traffic-control signal is a green straight through arrow alone:

(1) Vehicular traffic facing such a signal may proceed through but shall not turn right or left. Such vehicular traffic shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.

(2) Pedestrians facing such a signal may proceed across the highway within the appropriate marked or unmarked crosswalk, unless directed otherwise by another device as provided in section 6.06.735 (right-of-way in crosswalks).

(e) Where the traffic-control signal is a steady yellow signal alone:

(1) Vehicular traffic facing such a signal is thereby warned that the related green movement is being terminated or that a steady red indication will be exhibited immediately thereafter, and such vehicular traffic shall not enter the intersection when the red signal is exhibited.

(2) Pedestrians facing such a signal, unless otherwise directed by another device as provided in section 6.06.735 (right-of-way in crosswalks), are thereby advised that there is insufficient time to cross the highway.

(f) Where the signal is a flashing yellow turn arrow, displayed alone or in combination with another signal:

(1) Vehicular traffic facing the signal is permitted to cautiously enter the intersection only to make the movement indicated by the arrow signal, or other such movement as is permitted by other signal indications displayed at the same time. Such vehicular traffic must yield the right-of-way to pedestrians lawfully within the intersection or an adjacent crosswalk and yield the right-of-way to other traffic lawfully in the intersection.

(2) Pedestrians facing such a signal, unless otherwise directed by another device as provided in section 6.06.735 (right-of-way in crosswalks), are thereby advised that there may be insufficient time to cross the highway, but may proceed across the highway within the appropriate marked or unmarked crosswalk.

(g) Where the signal is a steady red signal alone:

(1) Vehicular traffic facing such a signal shall stop in all cases before entering the intersection, and shall stop before entering the crosswalk on the nearest side of the intersection where the sign or pavement marking indicates where the stop shall be made, or in the absence of any such crosswalk, sign or marking, then before entering the intersection, and shall remain stopped or standing until the green signal is shown.

(2) Pedestrians facing such a signal shall not enter the highway unless permitted to proceed by another device as provided in section 6.06.735 (right-of-way in crosswalks).

(3) Vehicular traffic facing such a signal and situated on the extreme right of the highway after stopping may proceed into the intersection for a right turn only when the intersecting highway is two-directional or one-way to the right, or vehicular traffic facing such a signal and situated on the extreme left of a one-way highway may proceed into the intersection for a left turn only when the intersecting highway is one-way to the left, but shall yield the right-of-way to pedestrians and other traffic proceeding as directed by the signal at such intersection.

(4) Where the signal is a steady red arrow alone, vehicular traffic facing such a signal shall stop in all cases before entering the intersection, and shall stop before entering the crosswalk on the nearest side of the intersection where the sign or pavement marking indicates where the stop shall be made, or in the absence of any such crosswalk, sign or marking then before entering the intersection, and shall remain stopped or standing until the green turn arrow is shown.

(h) Where the signal is a steady red with a green turn arrow then:

(1) Vehicular traffic facing such a signal may enter the intersection only to make the movement indicated by the green turn arrow, but shall yield the right-of-way to

pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection. Drivers turning in the direction of the arrow are thereby advised that so long as the turn arrow is illuminated, oncoming or opposing traffic simultaneously faces a steady red signal.

(2) Pedestrians facing such a signal shall not enter the highway unless permitted to proceed by another device as provided in section 6.06.735 (right-of-way in crosswalks).

(i) If a traffic-control signal is erected and maintained at a place other than an intersection, the provisions of this section shall be applicable except as to those provisions, which by their nature can have no application. Any stop required shall be made at a sign or pavement marking indicating where the stop shall be made, but in the absence of any such device, the stop shall be made at the signal.

(j) Whenever traffic-control signals are placed over the individual lanes of a highway, such signals shall indicate and apply to drivers of vehicles as follows:

(1) A downward-pointing green arrow means that a driver facing such signal may drive in any lane over which the green signal is shown.

(2) A red ″X″ symbol means a driver facing such signal shall not enter or drive in any lane over which such red signal is shown.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.075
State law reference—NRS 484B.307

Sec. 6.06.545. Flashing signals.

(a) Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal it shall require obedience by vehicular traffic as follows:

(1) *Flashing red (stop signal).* When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked, or if none, then before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(2) *Flashing yellow (caution signal).* When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.080
State law reference—NRS 484B.310

Sec. 6.06.550. Display of unauthorized signs, signals or markings.

(a) No person shall place, maintain or display upon or in view of any highway an unauthorized sign, signal, marking or device which purports to be or in an imitation of or resembles an official traffic-control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal.

(b) No person shall place or maintain nor shall any public authority permit upon any highway any traffic sign or signal bearing thereon any commercial advertising.

(c) This section shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs.

(d) Every such prohibited sign, signal or marking is hereby declared to be a public nuisance and the authority having jurisdiction over the highways is hereby empowered to remove the same or cause it to be removed without notice.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.085
State law reference—NRS 484B.313

Sec. 6.06.555. Vehicles to be driven on right side of highway.

Upon highways of sufficient width a vehicle shall be driven upon the right half of the highway, except as follows:

(1) When overtaking and passing another vehicle proceeding in the same direction under the laws governing such movements;

(2) When the right half of the highway is closed to traffic;

(3) Upon a highway divided into three lanes for traffic under the laws applicable thereon; or

(4) Upon a highway designated and posted for one-way traffic; or

(5) When the highway is not sufficient width.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.110
State law reference—NRS 484B.200

Sec. 6.06.560. Vehicles not to be driven on left side of highway.

(a) A vehicle shall not be driven on the left of the center of a two-lane, two-directional highway and overtaking and passing another vehicle proceeding in the same direction, unless such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the safe operation of any vehicle approaching from the opposite direction or any vehicle overtaken.

(b) A vehicle shall not be driven to the left side of the highway at any time:

(1) When approaching the crest of a grade or upon a curve in the highway where the driver's view is obstructed within such distance as to create a hazard in the event another vehicle might approach from the opposite direction;

(2) When approaching within 100 feet or traversing any intersection or railroad grade crossing;

(3) When the view is obstructed upon approaching within 100 feet of any bridge, viaduct or tunnel.

(c) Subsection (b) does not apply upon a one-way highway.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.115
State law reference—NRS 484B.213

Sec. 6.06.565. Passing on the right.

(a) The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

(1) When the driver of the vehicle overtaken is making or signaling to make a left turn and when such movement may be made safely;

(2) Upon a highway with unobstructed pavement (but not including that portion of the roadway designated as a parking lane, emergency parking lane, loading zone or red zone);

(3) Upon any highway on which traffic is restricted to one direction of movement, where the highway is free from obstruction and of sufficient width for two or more lines of moving vehicles (but not including that portion of the roadway designated as a parking lane, emergency parking lane, loading zone or red zone).

(b) The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety.

(c) The driver of a vehicle shall not overtake and pass another vehicle upon the right when such movement requires driving off the paved portion of the highway.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.125
State law reference—NRS 484B.210

Sec. 6.06.570. Overtaking a vehicle.

Except as otherwise provided in subsection 6.06.560(a) (vehicles not to be driven on left side of highway), the following rules shall govern the overtaking and passing of vehicles:

(1) The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the highway until safely clear of such overtaken vehicle.

(2) The driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle upon observing the overtaking vehicle or hearing a signal. The driver of an overtaken vehicle shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

(3) If vehicles on a street or highway are moving in two or more substantially continuous lines, the provisions of subsections (1) and (2) shall not be considered as prohibiting the vehicles in one such line overtaking or passing the vehicles in another such line either upon the right or left, nor shall the provisions of subsections (1) and (2) be construed to prohibit a driver overtaking and passing upon the right of another vehicle which is making or about to make a left turn.

(4) The driver of an overtaking motor vehicle, when traveling under such conditions as to make it necessary to insure safe operation, shall give audible warning with his horn or other warning device before passing or attempting to pass a vehicle proceeding in the same direction.

(5) The driver of a motor vehicle shall not pass another vehicle proceeding in the same direction within any intersection.

(6) Meeting or overtaking school bus:

a. Except as provided in subsection b, below, the driver of any vehicle upon a street, highway, alley, or premises to which the public has access, when meeting or overtaking, from either direction, any school bus, equipped with signs and signals required by the laws of the state; which has stopped on the street, highway, alley or premises to which the public has access for the purpose of receiving or discharging any pupil and is displaying a flashing red light signal visible from the front and rear, shall bring his vehicle to a stop immediately and shall not proceed past the school bus until the flashing red signal ceases operation.

b. The driver of a vehicle upon the street, highway, alley, or premises to which the public has access with separate roadways, need not stop upon meeting or passing a school bus which is upon the other roadway. The driver of a vehicle need not stop upon meeting or passing a school bus when the school bus is stopped at an intersection or other place which is controlled by a traffic-control signal or at an intersection or other place where traffic is controlled by a traffic officer.

(7) The driver of a vehicle shall not overtake and pass another vehicle traveling in the same direction in an area designated as a school zone or school crossing zone.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.135
State law reference—NRS 484B.207, 484B.210

Sec. 6.06.575. Following too closely.

(a) The driver of a vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicles and the traffic upon the condition of the highway.

(b) The driver of any truck or combination of vehicles 80 inches or more in overall width, which is following a truck, or combination of vehicles 80 inches or more in overall width, shall, whenever conditions permit, leave a space of 500 feet so that an overtaking vehicle may enter and occupy such space without danger, but this shall not prevent a truck or combination of vehicles from overtaking and passing any vehicle or combination of vehicles. This subsection does not apply to any vehicle or combination of vehicles while moving on a highway on which there are two or more lanes available for traffic moving in the same direction.

(c) Motor vehicles being driven upon any highway outside of a business district in a caravan or motorcade, whether or not towing other vehicles, shall be operated to allow sufficient space between each such vehicle or combination of vehicles so as to enable any other vehicle or combination of vehicles to enter and occupy such space without danger.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.140
State law reference—NRS 484B.127

Sec. 6.06.580. Right-of-way at intersections.

(a) The driver of a vehicle approaching an intersection shall yield the right-of-way to a vehicle which has entered an intersection from a different highway.

(b) When two vehicles enter an intersection from different highways at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right.

(c) When a vehicle enters an intersection controlled by a traffic-control signal which is installed and has its vehicular signals uncovered, but is inoperative at the time the vehicle enters the intersection, the driver of the vehicle shall proceed as if a stop sign had been erected at each entrance to the intersection and shall stop at a clearly marked stop line or, if there is none, before entering the crosswalk on the near side of the intersection or, if there is none, at the point nearest the intersection where the driver has a view of approaching traffic on the through highway. After making such a stop, the driver shall proceed cautiously, yielding to vehicles which have previously completed a stop or are within the intersection.

(d) This section shall not apply at intersections controlled by official traffic-control devices that are functioning properly or to vehicles approaching each other from opposite directions, when the driver of one of such vehicles is intending to or is making a left turn.

(e) Any person who violates this section is guilty of a misdemeanor.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.160
State law reference—NRS 484B.250

Sec. 6.06.585. Vehicle turning left.

(a) The driver of a vehicle within an intersection intending to turn to the left shall yield the right-of-way to any vehicle approaching from the opposite direction which is within the intersection or so close thereto as to constitute an immediate hazard, but such driver, having so yielded and having given a signal when as required, may make such left turn and the drivers of all other vehicles approaching the intersection from the opposite direction shall yield the right-of-way to the vehicle making the turn.

(b) The driver of a vehicle intending to turn to the left shall yield the right-of-way to any vehicle or bicycle approaching from the opposite direction and which is so close as to constitute a hazard at any time during the turning movement and shall continue to yield the right-of-way to such approaching vehicles until such time as the left turn can be made with reasonable safety.

(c) A driver having so yielded and having given a signal when and as required by section 6.06.600 (method of giving a hand signal) may turn left and the drivers of all other vehicles approaching from said opposite direction shall yield the right-of-way.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.165
State law reference—NRS 484B.253

Sec. 6.06.590. Vehicle entering stop or yield intersection.

(a) Ever driver of a vehicle approaching a stop intersection indicated by a stop sign shall stop before entering the crosswalk on the near side of the intersection or, if there is no crosswalk, shall stop at a clearly marked stop line, or if none, then at the point nearest the intersecting highway and before entering the intersection.

(b) The driver of a vehicle approaching a yield sign if required for safety to stop shall stop before entering the crosswalk, on the nearest side of the intersection or, if there is no crosswalk, at a clearly marked stop line, or if none, then at the point nearest the intersecting highway and before entering the intersection.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.170

Sec. 6.06.595. Vehicle entering through highway.

Except when traffic is being controlled by a police officer of a traffic-control signal:

(1) After having stopped or, in the event of a yield sign, slowed or stopped, as required pursuant to section 6.06.590 (vehicle entering stop or yield intersection), the driver shall yield the right-of-way to other vehicles which have entered the intersection from such through highway or which are approaching so closely on such through highway as to constitute an immediate hazard during the time such driver is moving across or within the intersection.

(2) The driver of a vehicle shall stop in obedience to a stop sign or yield in compliance with a yield sign in compliance with the manner prescribed in subsection (1) prior to entering an intersection if a stop sign or a yield sign is erected at one or more entrances thereto although not a part of a through highway and shall proceed cautiously, yielding to vehicles not so obligated to stop or yield and which are within the intersection or approaching so closely as to constitute an immediate hazard during the time such driver is moving across or within the intersection.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.175
State law reference—NRS 484B.257

Sec. 6.06.600. Vehicle entering highway from alley, driveway or building.

The driver of a vehicle about to enter or cross a highway from an alley, driveway or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto a sidewalk area extending across any alleyway or driveway, and shall yield the right-of-way to any pedestrian as may be necessary to avoid a collision, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on such roadway and if crossing such roadway shall also yield the right-of-way to any pedestrian using the opposite sidewalk area as may be necessary to avoid collision.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.180
State law reference—NRS 484B.260

Sec. 6.06.605. Operation of vehicles on approach of authorized emergency vehicles.

(a) Upon the immediate approach of an authorized emergency vehicle making use of audible and visual signals meeting the requirements of the laws of this state, or of a police vehicle properly and lawfully making use of an audible and visual signal, the driver of every other vehicle shall yield the right-of-way and shall immediately drive to a position parallel to, and

as close as possible to, the right-hand edge or curb of the roadway clear of any intersection and shall stop and remain in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

(b) This section shall not operate to relieve the driver of an authorized emergency vehicle from this duty to drive with due regard for the safety of all persons using the highway.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.185
State law reference—NRS 484B.267

Sec. 6.06.610. Starting a parked vehicle.

(a) A person, except when stopping, standing or parking where no parking is permitted, shall not start a vehicle which is stopped, standing or parked on a highway nor enter upon a highway unless and until such movement can be made with safety.

(b) A person may not travel in the parking lane while awaiting the opportunity to enter the flow of traffic or execute a right turn but must exit the parking lane directly into a travel lane as soon as it is safe to do so.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.195
State law reference—NRS 484B.410

Sec. 6.06.620. Temporary roadblock; establishment; minimum requirements.

(a) Police officers may establish temporary roadblocks:

(1) To apprehend persons known to be wanted for violation of the laws of the city, this state, another state or the United States, and using the streets or highways for the purpose of escape; or

(2) To control traffic at or near the scene of a potential or existing emergency or hazard.

(b) To warn and protect traveling public, temporary roadblocks established by police officers must meet the following requirements:

(1) The temporary roadblock must be established at a point on the street or highway clearly visible at a distance of not less than 100 yards in either direction.

(2) At the point of the temporary roadblock, an authorized emergency vehicle, plainly and clearly marked as such and with its warning lights in operation, must be placed so as to be clearly visible to traffic affected by the roadblock at a distance of not less than 100 yards. When so placed, at least one of the vehicle′s flashing red lights must be visible to approaching traffic at a distance of not less than 100 yards.

(3) At the same point of the temporary roadblock, sufficient cones, reflectors, burning flares or similar devices must be in place to identify the point of the roadblock and direct, as necessary, the path to be followed by a vehicle approaching the roadblock. The devices, when in place, must be clearly visible to traffic affected by the roadblock at a distance of not less than 100 yards.

(4) At a point located not less than 200 yards away, but no more than 400 yards, from the point of the temporary roadblock, cones, reflectors, burning flares or similar devices

must be placed on both shoulders of the highway and near the centerline of the street or highway to warn traffic that a condition hazardous to traffic exists in the immediate vicinity.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.215
State law reference—NRS 484B.570

Sec. 6.06.625. Traffic administrative roadblock; establishment; minimum requirements.

(a) Police officers may establish traffic administrative roadblocks upon the streets or highways for any lawful purpose other than identifying the occupants of a vehicle or because of the existence of an emergency.

(b) To warn and protect the traveling public, traffic administrative roadblocks established by police officers must meet the following requirements:

(1) The traffic administrative roadblock must be established at a point on the street or highway clearly visible to approaching traffic at a distance of not less than 100 yards in either direction.

(2) At the point of the traffic administrative roadblock, a sign must be placed near the centerline of the street or highway displaying the word ″stop″ in letters of sufficient size and luminosity to be readable at a distance of not less than 50 yards in the direction affected by the roadblock, either in daytime or darkness.

(3) At the same point of the traffic administrative roadblock, at least one red flashing, or intermittent light, on and burning, must be placed at the side of the street or highway, clearly visible to the oncoming traffic at a distance of not less than 100 yards.

(4) At a distance of not less than one-quarter of a mile from the point of the traffic administrative roadblock, warning signs must be placed at the side of the street or highway, containing any wording of sufficient size and luminosity to warn the oncoming traffic that a ″police stop″ lies ahead.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.216

Sec. 6.06.630. Required position and method of turning at intersections or driveways.

When the driver of a vehicle intends to turn at an intersection or driveway:

(1) When the turn is a right turn both the approach for the right turn and the right turn shall be made as closely as practicable to the right-hand side of the roadway as hereinafter set forth. Right turns must be made from the right-hand traffic lane except vehicles parked in the right-handed parking lane may turn right after yielding to traffic turning right from the right-hand traffic lane;

(2) Where both the intersecting highways are two-directional, the approach for a left turn shall be made in that portion of the right half of the highway nearest the centerline thereof or the center left turn lane, and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the centerline but in the traffic

lane nearest the centerline or the center left turn lane of the highway being entered; and in all cases, except where otherwise directed by official traffic control devices, simultaneous left turns by opposing traffic shall be made in front of each other;

(3) When the turn is a left turn from a two-directional highway into a one-way highway, the approach for a left turn shall be made in that portion of the right half of the highway nearest the centerline thereof or the center left turn lane and the turn shall be made by turning from the right of such centerline or the center left turn lane where it enters the intersection as close as practicable to the left-hand curb of the one-way highway;

(4) When making a left turn from a one-way highway into a two-directional highway, such turn shall be made by passing to the right of the centerline but in the traffic lane nearest the centerline or the center left turn lane of the highway being entered upon leaving the intersection, and the approach of such turn shall be made as close as practicable to the left-hand curb of the one-way highway;

(5) When making a left turn where both intersecting highways are one-way, both the approach for the left turn and the left turn shall be made as close as practicable to the left-hand curb or edge of the highway;

(6) When the turn is a left turn from a two-directional highway into a driveway or alley, the approach for a left turn shall be made in that portion of the right half of the highway nearest the centerline thereof or the center left turn lane of the highway;

(7) When the turn is a left turn from a one-way highway into a driveway or alley, the approach for the left turn shall be made as close as practicable to the left-hand curb or edge of the highway;

(8) When the driver of a vehicle exiting an alley or drive intends to turn right the approach for the right turn shall be made as close as practicable to the right-hand side of the alley and completed as close as practicable to the right-hand side of the roadway;

(9) When the driver of a vehicle exiting an alley or drive intends to turn left the approach for the left turn shall be made as close as practicable to the center of the alley or drive and completed to the right of the centerline but in the traffic lane nearest the centerline of the highway being entered.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.220
State law reference—NRS 484B.400

Sec. 6.06.635. Signals on turning or stopping.

(a) A driver shall not turn a vehicle from a direct course upon a highway unless and until such movement can be made with reasonable safety, and then only after giving a clearly audible signal by sounding the horn if any pedestrian may be affected by such movement and after giving an appropriate signal if any other vehicle may be affected by such movement.

(b) A signal of intention to turn right or left, or otherwise turn a vehicle from a direct course, shall be given continuously during not less than the last 100 feet traveled in a business or residential district and not less than the last 300 feet traveled in any other area prior to changing the course of a vehicle. This rule shall be observed, regardless of the weather.

(c) A driver shall not stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal to the driver of any vehicle immediately to the rear.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.230
State law reference—NRS 484B.413

Sec. 6.06.640. Means of making signals.

Any signal required by this chapter to be made by a driver when making a turn or a stop shall be given either by means of a hand and arm or by a signal lamp or signal device of a type approved by the department of motor vehicles, but when a vehicle is so constructed or loaded that a hand and arm signal would not be visible both to the front and rear of such vehicle then such signals shall be given by a signal lamp or signal device.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.235
State law reference—NRS 484B.417

Sec. 6.06.645. Method of giving hand signals.

All signals given by hand and arm shall be given by hand and arm extended beyond the left side of the vehicle in the following manner, and shall indicate the turns that follow:

(1) *Left turn:* Hand and arm extended horizontally.

(2) *Right turn:* Hand and arm extended upward.

(3) *Stop or decrease speed:* Hand and arm extended downward.

(4) *Reentering lane of traffic from parked position:* Hand and arm extended horizontally.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.240
State law reference—NRS 484B.420

Sec. 6.06.650. U-turns.

(a) The driver of a vehicle shall not make a U-turn upon any highway in a business district, except at an intersection or on a divided highway where an appropriate opening or crossing place exists.

(b) If an official traffic-control device indicates that a U-turn is prohibited, the driver shall obey the directions of the device.

(c) A U-turn may be made on any road where such turn can be made with safety, except as prohibited by this section and by the provisions of 6.06.655 (Turning on a curve or crest of grade prohibited).

(d) Whenever any highway has been divided into two highways by leaving an intervening space or by a physical barrier or clearly indicated dividing section so constructed as to impede vehicular traffic, every vehicle shall be driven only upon the right-hand highway and a vehicle shall not be driven over, across or within any such dividing space, barrier or section nor make any left turn, semicircle turn or U-turn, except through an opening in such physical barrier by dividing section or space or at a crossover or intersection established by a public authority.

(e) The driver of a vehicle shall not make a U-turn in an area designated as a school zone or school crossing zone.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.245
State law reference—NRS 484B.403

Sec. 6.06.655. Turning on curve or crest of grade prohibited.

A vehicle shall not be turned so as to proceed in the opposite direction upon any curve, or upon the approach to or near the crest of a grade, where such vehicle cannot be seen by the driver of any other vehicle approaching from either direction within 500 feet.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.246

Sec. 6.06.660. Obedience to right or left turn-control devices.

Whenever official traffic-control devices are erected indicating that no right or left turn is permitted, it is unlawful for any driver of a vehicle to disobey the directions of any such sign.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.250
State law reference—NRS 484B.303

Sec. 6.06.670. Obedience to one-way traffic-control devices.

(a) Upon a highway designated and signposted for one-way traffic a vehicle shall be driven only in the direction designated.

(b) A vehicle passing around a rotary traffic island shall be driven only to the right of such island.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.265
State law reference—NRS 484B.220

Sec. 6.06.680. Unlawful rates of speed.

It is unlawful for any person to drive or operate a vehicle of any kind or character at:

(1) A rate of speed greater than is reasonable or proper, having due regard for the traffic, surface and width of the highway; or

(2) Such a rate of speed as to endanger the life, limb or property of any person; or

(3) A rate of speed greater than that posted by a public authority for the particular portion of highway being traversed.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.280
State law reference—NRS 484B.600

Sec. 6.06.685. Duty to decrease speed at certain places.

The fact that the speed of a vehicle is lower than the prescribed limits does not relieve a driver from the duty to decrease speed when approaching and crossing an intersection, when

approaching and going around a curve, when approaching a hill crest, when traveling upon any narrow or winding highway, or when special hazards exist or may exist with respect to pedestrians or other traffic, or by reason of weather or other highway conditions, and speed must be decreased as may be necessary to avoid colliding with any person, vehicle or other conveyance on or entering a highway in compliance with legal requirements and the duty of all persons to use due care.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.285
State law reference—NRS 484B.603

Sec. 6.06.690. Minimum speed.

(a) A person shall not drive a motor vehicle at such a slow speed as to impede the normal and reasonable movement of traffic except when reduced speed is necessary for safe operation or in compliance with law.

(b) When a public authority determines on the basis of an engineering and traffic investigation that slow speeds on any part of a highway consistently impede the normal and reasonable movement of traffic, such authority may establish a minimum speed limit below which no person shall drive a vehicle except when necessary for safe operation or in compliance with law.

(c) Such speed limit shall be in effect after the erection of appropriate signs.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.290
State law reference—NRS 484B.623

Sec. 6.06.695. Speed racing and other speed violations.

(a) A person commits the offense of speed racing or other speed violations if, on alleys, highways, roads, or streets in this city, the person drives a vehicle or participates in any manner in any of the following in which a vehicle is involved:

(1) A race or drag race.

(2) An acceleration contest.

(3) An exhibition of speed.

(4) The making of a speed record.

(b) *Definitions.*

(1) *A race.* For purposes of this section, racing is the use of one or more vehicles in an attempt to outgain, outdistance or prevent another vehicle from passing, to arrive to a given destination ahead of another vehicle or vehicles or to test the physical stamina or endurance of drivers over long distance driving routes.

(2) *A drag race.* For purposes of this section, drag racing is the operation of two or more vehicles from a point side by side at accelerating speeds in a competitive attempt to outdistance each other, or the operation of one or more vehicles over a common selected course, from the same point to the same point for the purpose of comparing the relative speeds or power of acceleration of the vehicle or vehicle within a certain distance or time limit.

(3) *An exhibition of speed.* For purposes of this section, exhibition of speed is the act of accelerating or driving a vehicle at a dangerous speed, in order to show off or make an impression on someone else.

(c) *Penalties.* A violation is a misdemeanor and:

(1) For a first offense within a three-year time period a minimum fine of $500.00;

(2) For a second offense within a three-year time period a minimum fine of $800.00;

(3) For a third or subsequent offense within a three-year time period a minimum fine of $1,000.00 and the court shall order the motor vehicle driver to be retested by the department of motor vehicles.

(Ord. No. 6392, § 1, 2-10-16; Ord. No. 6478, § 1, 8-22-18)
Editor's note—Formerly § 6.06.295. Subsequently, Ord. No. 6479, § 1, adopted Aug. 22, 2018, changed the title of § 6.06.695 from ″Speed contest/exhibition of speed″ to read as herein set out.

Sec. 6.06.700. Slower traffic to drive on right.

If any driver drives a motor vehicle at a speed so slow as to impede the forward movement of traffic proceeding immediately behind such vehicle, on any highway whereon a higher speed is lawful, the driver shall; when the width of the highway permits, drive to the extreme right side of the highway until such impeded traffic has passed by.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.300
State law reference—NRS 484B.627

Sec. 6.06.705. Regulation of speed by traffic signals.

The director of traffic and transportation is authorized to regulate the timing of traffic signals so as to permit the movement of traffic in an orderly and safe manner at speeds slightly at variance from the speeds otherwise applicable with the district or at intersections and may erect appropriate signs giving notice thereof.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.305

Sec. 6.06.710. Restrictions as to alcoholic beverages in or about any motor vehicle within the city.

(a) *Drinking in motor vehicle.* It is unlawful for any person to drink any alcoholic beverage within any motor vehicle in the city.

(b) *Possession of open container.* It is unlawful for any person to have in his or her possession on his or her person, while in a privately owned motor vehicle within the city, any bottle, can, or other receptacle, containing any alcoholic beverage which has been opened, or a seal broken, or the contents of which has been partially removed.

(c) *Storage of opened containers.* It is unlawful for the registered owner of any privately owned motor vehicle or the driver, if the registered owner is not then present in the vehicle, to keep in a motor vehicle, when such vehicle is within the city, any bottle, can, or other receptacle containing any alcoholic beverage which has been opened, or a seal broken, unless such bottle, can, or other receptacle is kept in the trunk of the vehicle, if

such vehicle is equipped with a trunk, or kept in some other area of the vehicle not normally occupied by the driver or passengers, if the vehicle is not equipped with a trunk. A utility compartment or glove compartment shall be deemed to be within the area occupied by the driver and passenger.

(d) *Possession by minor.* It is unlawful for any person under the age of 21 years to knowingly possess, transport, or have under his control in any motor vehicle within the city, any alcoholic beverage, unless such person is accompanied by a parent or legal guardian or is employed as a driver to deliver such alcoholic beverages in a motor vehicle under his control during regular hours and in the course of his employment.

(e) *Possession of alcoholic beverage; exceptions.* The provisions of subsections (a), (b), (c), and (d) shall not apply to any person who, upon the recommendation of a doctor, carries alcoholic beverages in his motor vehicle for medicinal purposes. Such sections shall also not apply to any clergyman who carries alcoholic beverages in his motor vehicle for religious purposes.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.320

Sec. 6.06.715. Reckless driving.

Any person who drives any vehicle within the city on a street, highway, alley or premises to which the public has access in willful or wanton disregard for the safety of persons or property is guilty of reckless driving.

(Ord. No. 6392, § 1, 2-10-16)

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Editor's note—Formerly § 6.06.325
State law reference—NRS 484B.653

Sec. 6.06.720. Careless driving.

It is unlawful for any person to drive or operate a vehicle of any kind or character in a careless manner within the city on a street, highway, alley or premises to which the public has access; or in other than a careful or prudent manner; or at a rate of speed greater than is reasonable and proper, having due regard for the traffic on, and the surface and width of the street or highway; or at such a rate of speed as to endanger the life, limb or property of a person; provided further that the mere fact that a vehicle is operated within the speed restrictions contained in this chapter will not constitute prima facie evidence that the vehicle was operated in a lawful manner.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.330

Sec. 6.06.725. Inattentive driving.

No person while driving a motor vehicle may be engaged or occupied with an activity, other than driving the vehicle, that interferes or reasonably appears to interfere with the person′s ability to drive the vehicle safely.

Telephonic device use is an excluded activity pursuant to NRS 707.375 and violations are enforced through NRS 484B.165.

(Ord. No. 6392, § 1, 2-10-16)

Sec. 6.06.730. Subject to traffic-control signals.

Pedestrians shall be subject to traffic-control signals as heretofore declared in chapter 6.06 (rules of the road), but all other places pedestrians shall be granted those rights and be subject to the restrictions stated in this title.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.345

Sec. 6.06.735. Right-of-way in crosswalks.

(a) Except as provided in section 6.06.745 (when pedestrians shall yield), when official traffic-control devices are not in place or not in operation the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be so to yield, to a pedestrian crossing the highway within a crosswalk when the pedestrian is upon the half of the highway upon which the vehicle is traveling, or when the pedestrian is approaching so closely from the opposite half of the highway as to be in danger.

(b) No pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield.

(c) Whenever a vehicle is stopped at a marked crosswalk or at an unmarked crosswalk at an intersection, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle until such driver has determined that the vehicle being overtaken was not stopped for the purpose of permitting a pedestrian to cross the highway.

(d) Whenever signals exhibiting ″Walk″ or ″Don't Walk,″ or their respective symbols, are in place, such signals shall indicate as follows:

(1) While the ″Walk″ indication, or the relevant symbol, is illuminated, pedestrians facing the signal may proceed across the highway in the direction of the signal and shall be given the right-or-way by the drivers of all vehicles.

(2) While the ″Don't Walk″ indication, or the relevant symbol, is illuminated, either steady or flashing, a pedestrian shall not start to cross the highway in the direction of the signal, but any pedestrian who has partially completed his crossing during the ″Walk″ indication, or the related symbol, shall proceed to a sidewalk, or to a safety zone if one is provided.

(3) Whenever the word ″Wait,″ or the relevant symbol, still appears in a signal, such indication has the same meaning as assigned in this section to the ″Don't Walk″ indication, or the related symbol.

(4) Whenever a signal system provides a signal phase for the stopping of all vehicular traffic and the exclusive movement of pedestrians, and ″Walk″ and ″Don't Walk″ indications, or their respective symbols, control such pedestrian movement, pedestrians may cross in any direction between corners of the intersection offering the shortest route within the boundaries of the intersection when the ″Walk″ indication, or the relevant symbol, is exhibited, and when signals and other official traffic control devices direct pedestrian movement in such manner as provided in this section and in section 6.06.540 (signal legend).

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.350
State law reference—NRS 484B.283

Sec. 6.06.740. Crossing at right angles.

No pedestrian shall cross a roadway at any place other than by a route at right angles to the curb or by the shortest route to the opposite curb except in a crosswalk.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.360

Sec. 6.06.745. When pedestrians shall yield.

(a) Every pedestrian crossing a highway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the highways.

(b) Any pedestrian crossing a highway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the highway.

(c) Between adjacent intersections at which official traffic-control devices are in operation pedestrians shall not cross at any place except in a marked crosswalk.

(d) A pedestrian shall not cross an intersection diagonally unless authorized by official traffic-control devices.

(e) When authorized to cross diagonally, pedestrians shall cross only in accordance with the official traffic-control devices pertaining to such crossing movements.

(Ord. No. 6392, § 1, 2-10-16)

Editor's note—Formerly § 6.06.365
State law reference—NRS 484B.287

Sec. 6.06.750. Obedience to railroad signals.

No pedestrian shall pass through, around, over, or under any crossing gate or barrier at a railroad grade crossing or bridge while such gate or barrier is closed or is being opened or closed.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.370

Sec. 6.06.755. Walking on roadway and soliciting rides or business.

(a) Where sidewalks are provided it is unlawful for any pedestrian to walk along and upon an adjacent highway.

(b) Pedestrians walking along highways where sidewalks are not provided shall walk on the left side of such highways facing the approaching traffic.

(c) A person shall not stand in a highway for the purpose of soliciting a ride or any business from the driver or any occupant of a vehicle.

(d) It is unlawful for any pedestrian who is under the influence of intoxicating liquors or any narcotic or stupefying drug to be within the traveled portion of any highway.

(e) Unless otherwise permitted no person shall stop, stand, or remain in a painted or raised traffic island or median not designated for use by pedestrians except to wait to cross the roadway at the next pedestrian signal or, in the absence of a pedestrian signal, when traffic has cleared or yielded.

(f) The provisions of this section apply also to riders of animals.

(Ord. No. 6392, § 1, 2-10-16; Ord. No. 6457, § 1, 3-28-18)
Editor's note—Formerly § 6.06.375
State law reference—NRS 484B.297

Sec. 6.06.760. Duties of driver of motor vehicle to pedestrian.

A driver of a motor vehicle shall:

(a) Exercise due care to avoid a collision with a pedestrian;

(b) Give audible warning with the horn of the vehicle if appropriate and when necessary to avoid such a collision;

(c) Exercise proper caution upon observing a pedestrian:

(1) On or near a highway, street or road;

(2) At or near a bus stop or bench, shelter or transit stop for passengers of public mass transportation or in the act of boarding a bus or other public transportation vehicle; or

(3) In or near a school crossing zone or a marked or unmarked crosswalk.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.380
State law reference—NRS 484B.280

Sec. 6.06.765. Pedestrian safety zones.

(a) The governing body of a local government or the department of transportation may designate a pedestrian safety zone on a highway if the governing body or the department of transportation:

(1) Makes findings as to the necessity and appropriateness of a pedestrian safety zone, including, without limitation, any circumstances on or near a highway which make an area of the highway dangerous for pedestrians; and

(2) Complies with the requirements of subsection (d) and NRS 484A.430 and 484A.440.

(b) A person who is convicted of a violation of a speed limit, or of NRS 484B.165, 484B.223, 484B.227, 484B.650, 484C.110, 484C.120, RMC 6.06.160, 6.06.535—550, inclusive, 6.06.555—575, inclusive, 6.06.605, 6.06.625, 6.06.630, 6.06.655, 6.06.660, 6.06.705, 6.06.725, 6.06.680, that occurred in an area designated as a pedestrian safety zone may be punished by imprisonment or by a fine, or both, for a term or an amount equal to and in addition to the term of imprisonment or amount of the fine, or both, that the court imposes for the primary offense. Any term of imprisonment imposed pursuant to this subsection runs consecutively with the sentence prescribed by the court for the crime. This subsection does not create a separate offense, but provides an additional penalty for the primary offense, whose imposition is discretionary with the court and contingent upon the finding of the prescribed fact.

(c) The additional penalty imposed pursuant to subsection (b) must not exceed a total of $1,000.00, six months of imprisonment or 120 hours of community service.

(d) A governmental entity that designates a pedestrian safety zone shall cause to be erected:

(1) A sign located before the beginning of the pedestrian safety zone which provides notice that higher fines may apply in pedestrian safety zones;

(2) A sign to mark the beginning of the pedestrian safety zone; and

(3) A sign to mark the end of the pedestrian safety zone.

(e) A person who would otherwise be subject to an additional penalty pursuant to this section is not subject to such an additional penalty if, with respect to the pedestrian safety zone in which the violation occurred:

(1) A sign is not erected before the beginning of the pedestrian safety zone as required by paragraph (1) of subsection (d) to provide notice that higher fines may apply in pedestrian safety zones; or

(2) Signs are not erected as required by paragraphs (2) and (3) of subsection (d) to mark the beginning and end of the pedestrian safety zone.

(Ord. No. 6392, § 1, 2-10-16)

Sec. 6.06.770. Right-of-way of blind or sight-impaired person.

A blind or sight-impaired person who is on foot and using a guide dog or other service animal or carrying a cane or walking stick white in color, or white tipped with red, has the right-of-way when entering or when on a highway, street, or road. Any driver of a vehicle who approaches or encounters such person shall yield the right-of-way, come to a full stop, if necessary, and take precautions before proceeding to avoid a collision with such person.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.381

Sec. 6.06.775. Traffic regulations to assist mobility-impaired persons.

Whenever a pedestrian is in the process of crossing a public street or highway and the pedestrian is mobility-impaired using a walker, crutch, an orthopedic cane, wheelchair,

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motorized wheelchair, or motorized cart, the driver in a vehicle who approaches or encounters such person shall yield the right-of-way, come to a full stop, if necessary, and take precautions before proceeding to avoid a collision with such person.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.382

Sec. 6.06.780. Interference with driver′s control.

(a) A person shall not drive a vehicle when it is so loaded, or when there are in the front seat such a number of persons, exceeding three, as to obstruct the view of the driver to the front or sides of the vehicle or as to interfere with the driver′s control over the driving mechanism of the vehicle.

(b) A passenger in a vehicle shall not ride in such position as to interfere with the driver′s view ahead or to the sides, or to interfere with his control over the driving mechanism of the vehicle.

(c) A vehicle shall not be operated upon any highway unless the driver′s vision through any required glass equipment is normal.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.535
State law reference—NRS 484B.163

Sec. 6.06.785. Mufflers on motor vehicles.

(a) It is unlawful for any person to ride, drive, or propel, or to cause or permit to be ridden, driven or propelled, any motor vehicle in, upon, or along any street or highway or to operate or cause or permit to be operated the motor in any such vehicle in any street or other public place if such motor vehicle or the motor in such a vehicle is not provided with a good and sufficient muffler properly attached thereto, or if the exhaust from the motor in such vehicle is ejected otherwise than through such muffler, or if such exhaust is ejected toward the surface of the street or ground.

(b) The engine and power mechanism of every motor vehicle shall be so equipped and adjusted as to prevent the escape of excessive fumes or smoke.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.580
State law reference—NRS 484D.415

Sec. 6.06.790. Loud noises from mufflers.

It is unlawful for any person operating a self-propelled vehicle upon the streets to permit the pipes, mufflers or other devices to emit the sound of exhaust in a loud and annoying manner, it being the intention of this section to compel the operation of such self-propelled vehicles in as noiseless a manner as possible.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.585
State law reference—NRS 484D.410

Sec. 6.06.795. Backing of vehicles.

(a) The driver of a vehicle:

(1) Shall not back the vehicle unless such movement can be made with reasonable safety and without interfering with other traffic; and

(2) Shall not back into an intersection, on or over a crosswalk, or around a street corner; and

(3) Shall in every case yield the right- of-way to moving traffic and pedestrians.

(b) Before backing, ample warning shall be given by blowing the horn of said vehicle, and while backing unceasing vigilance shall be exercised so as not to injure or damage those behind and in all events the approaching car shall have the right-of-way.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.600
State law reference—NRS 484B.113

Sec. 6.06.800. Throwing tacks, materials liable to injure tires.

It is unlawful for any person to throw, deposit or place in or upon public street any nails, tacks, crockery, scrap iron, tin, wire, bottles, glass, thorns, or thorny clippings, or thorny branches of trees or bushes, or any other articles or things likely to puncture or injure the tires of any vehicle.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.605
State law reference—NRS 484B.903

Sec. 6.06.805. Throwing burning cigarette or other material from moving vehicle.

(a) It is unlawful for any person willfully or negligently to throw or otherwise discard from a moving vehicle any lighted cigarette, cigar, ash or other material which may cause a fire.

(b) Any person convicted under this section shall be punished for a misdemeanor.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.606

Sec. 6.06.810. Driving through processions prohibited.

(a) The operator of a motor vehicle shall not drive between the vehicles, persons, or animals comprising a funeral or other authorized procession when such funeral or procession vehicles are properly identified by pennants or other authorized insignia and while such funeral or procession is in motion, except when otherwise directed by a police officer.

(b) This section does not apply to authorized emergency vehicles.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.620
State law reference—NRS 484B.703

Sec. 6.06.815. Vehicles in procession.

(a) All vehicles, persons or animals comprising a funeral or other procession shall proceed as near to the right-hand edge of the highway as practicable and shall follow the preceding vehicles, persons or animals in such procession as closely as is practicable and safe.

(b) The escort personnel may, while on duty as such, wear uniforms or insignia which have been first approved by the chief of police.

(Ord. No. 6392, § 1, 2-10-16)

Editor's note—Formerly § 6.06.625
State law reference—NRS 484B.707

Sec. 6.06.820. Opening and closing vehicle doors.

No person shall open the door of a motor vehicle on the side available to moving traffic unless and until it is reasonably safe to do so, nor shall any person leave a door open on the side of a motor vehicle available to moving traffic for a period of time longer than necessary to load or unload passengers.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.635

Sec. 6.06.825. Clinging to vehicles.

No person riding upon any bicycle, coaster, roller skates, sled, or toy vehicle shall attach the same or himself to any vehicle upon a roadway.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.645
State law reference—NRS 484B.773

Sec. 6.06.830. Riding on certain portions of vehicles prohibited.

(a) No person shall ride on any vehicle or upon any portion thereof not designed or intended for the use of passengers.

(b) No person driving a truck shall permit any person under the age of 18 years to ride in the unenclosed cargo area of a truck.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.650
State law reference—NRS 484B.160

Sec. 6.06.835. Boarding vehicles in motion.

A person shall not board or alight from any vehicle while such vehicle is in motion.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.655
State law reference—NRS 484B.153

Sec. 6.06.840. Tires on traction engines.

It is unlawful for any person to drive or cause or permit to be driven, along or upon any paved street, any vehicle to any tire or wheel of which is attached cleats or spikes or uneven surfaces, or any device that will cause damage to the pavement of such street.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.660
State law reference—NRS 484D.510

Sec. 6.06.845. Driving on new pavements prohibited.

No person shall ride or drive any horse or vehicle over or across any pavement newly laid or repaired across or around which there has been placed a barrier, or at or near which there

is a person or a sign warning persons against riding or driving over such pavement, or a sign stating that the street or highway is closed. The provisions of this section shall not apply to the persons actually engaged in the paving or repair of such street or highway.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.665

Sec. 6.06.850. Sifting or leaking loads.

It is unlawful for any person to drive or move any vehicle on any street or highway unless such vehicle is so constructed or loaded as to prevent its contents from dropping, sifting, leaking or otherwise escaping therefrom.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.670

Sec. 6.06.855. Covering of license plates.

It is unlawful for the owner or operator of any vehicle to place, or cause to be placed, over the license plate of such vehicle any glass or other transparent material of a color other than clear.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.680

Sec. 6.06.860. Damage to public, private roads, guideboards unlawful.

Every person who shall willfully and maliciously remove, damage or destroy:

(1) A highway or a private way laid out by authority of law, or a bridge upon such public or private road, or willfully or maliciously cause to be placed thereon, or overlapping, any substance or thing dangerous to any person or animal traveling thereon or which might injure or puncture the tire of any vehicle; or

(2) A mile board, milestone or guidepost erected upon a highway or street, or any inscription thereon, shall be guilty of a misdemeanor.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.690

Sec. 6.06.865. Traffic division to designate method of identifying funeral processions.

(a) The traffic division shall designate a type of pennant or other identifying insignia to be displayed upon or other method to be employed to identify the vehicles in funeral processions.

(b) Such funeral escort personnel may, while on duty as such wear uniforms or insignia which have been first approved by the chief of police.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.695

Sec. 6.06.870. Driving in violation of curfew prohibited.

A person shall not operate a motor vehicle in the City of Reno during any time when he is in violation of a curfew ordinance as provided in section 8.16.010.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.725

Sec. 6.06.875. Highway closed to traffic; removal of barriers and signs unlawful; driving on highway unlawful.

(1) It shall be unlawful for any person to remove any barrier or sign stating that a highway is closed to traffic.

(2) It shall be unlawful to pass over a highway that is marked, signed or barricaded to indicate that it is closed to traffic.

(Ord. No. 6392, § 1, 2-10-16)
Editor's note—Formerly § 6.06.730

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CHAPTER 6.07. RESIDENTIAL PERMIT PARKING*

Sec. 6.07.010. Definitions.
Sec. 6.07.020. Designation of area and restrictions.
Sec. 6.07.030. Permit required, application and requirements.
Sec. 6.07.040. Exceptions.
Sec. 6.07.050. Violations.
Sec. 6.07.060. Individual resident parking.

Sec. 6.07.010. Definitions.

(a) For the purposes of this chapter, the term ″resident″ shall be deemed to mean a person who customarily resides and maintains a place of abode within the permit parking district, exclusive of University of Nevada-Reno property within (i) a single-family dwelling having an address on a public street within an existing residential parking permit area, (ii) where lawful, a two-family dwelling having an address on a public street within an existing residential parking permit area, and (iii) a multi-family dwelling (a structure arranged or designed to be occupied by three or more families) having an address on a public street within an existing residential parking permit area, but only if, in the determination of the city′s traffic engineer, such multifamily dwelling does not have sufficient off street parking spaces to meet the city′s minimum off street parking requirements for new construction. A rental unit without a full kitchen, such as a room and bath, shall not qualify as an individual dwelling unit for purposes of determining whether a dwelling is a single-, two- or multi-family dwelling.

(b) For purposes of this chapter, the term ″visitor″ shall mean a person who, for a short period of time visits a resident within the parking permit district and who solely by reason of that visit needs a temporary place to park (including, without limitation a person who is employed and actually at work within such household). The term visitor does not mean or include a person who meets the definition of a resident as defined in this section. A visitor may not use or attempt to use a visitor permit to park in a residential parking permit district while he or she attends school, college classes or work in or near such zone.

(c) For the purposes of this chapter, the term ″homeowner or long-term resident″ shall mean an owner/occupant who (1) is an owner of record of the property as shown on the most recent Washoe County Assessor′s tax roll, and (2) occupies a dwelling on the property for a minimum of 6 months of each calendar year. A ″homeowner or long-term resident″ includes a person who does not own the property but has resided at the address associated with the property for more than four years.

(Ord. No. 3397, § 1, 5-27-86; Ord. No. 5990, § 1, 12-12-07; Ord. No. 6398, § 1, 4-27-16)

***Editor's note—**Ord. No. 3397 § 1, adopted May 27, 1986, amended the Code by adding provisions designated as Ch. 6.07, §§ 6.07.010—6.07.040. In order to avoid duplication of section numbers, however, the editor has redesignated § 6.07.020, permit required, application, as § 6.07.030; and §§ 6.07.030, 6.07.040 as §§ 6.07.040. 6.07.050, respectively. Subsequently, Ord. No. 5990, adopted December 12, 2007, amended Ch. 6.07, in its entirety, to read as herein set out. See also the Code Comparative Table.

Sec. 6.07.020. Designation of area and restrictions.

The city council may establish a particular area as a residential permit parking district upon the completion of the following:

(1) The city traffic engineer shall conduct a study to ascertain whether parking spaces on the streets within a particular residential area are used for the parking of vehicles not belonging to residents to such an extent as to create congestion, excessive noise, air pollution, and cause the residents of the area unreasonable burdens in gaining access to their residences, and

(2) If the majority of the contiguous property owners to the streets in such an area, or portion thereof, do not object to the establishment of a permit parking area, the city council may then establish such area as a residential permit parking district.

(3) Permits issued shall be limited to actual on-street parking spaces available as determined by the traffic engineer or his or her designee. Once capacity has been reached, no additional permits shall be issued for the period.

(4) Permits shall be limited to one permit per bedroom of the address associated with the property as determined by the Washoe County Assessor.

(5) Residents residing in developments that have been granted parking reductions by the City of Reno are not eligible to receive residential or visitor parking permits.

(6) No permits will be issued to the residents of multi-family dwellings.

(Ord. No. 3397, § 1, 5-27-86; Ord. No. 5990, § 1, 12-12-07; Ord. No. 6398, § 1, 4-27-16)

Sec. 6.07.030. Permit required, application and requirements.

(a) Unless a valid zone parking permit is properly displayed, no vehicle shall be parked upon any street or public way within a permit parking district.

(b) Residents within a permit parking district may apply to the city clerk′s office for a permit to park their vehicle(s) upon the streets or public ways of the permit parking district in which such applicant resides. All outstanding citations must be paid prior to issuances of a permit. Failure to remedy the balance shall result in denial of the issuance of permits.

(c) Each applicant shall submit a completed application, current proof of residency and current motor vehicle registration issued by a state department of motor vehicles. Acceptable forms of proof of residence will be as follows depending on whether a Resident, Homeowner or Long-Term Resident:

(1) A real estate tax statement;

(2) A deed;

(3) A municipal water or utility bill; with the applicant′s name;

(4) Homeowner′s insurance policy;

(5) Voter′s registration; or

(6) A current lease/rental agreement.

(d) Once proof of residency is assured by the city clerk and payment of the fee is made, the residential parking permit may be issued.

(e) The resident permit shall be placed and displayed in the windshield area in front of the rearview mirror in a manner as not to interfere with the vision of the operator. The permit shall not be obstructed by any object, and all permit information shall be clearly visible.

(f) A fee shall be charged pursuant to the fee schedule as adopted by the Reno City Council for the issuance of each permit or replacement permit, and such fee shall be used by the city to defray the cost of enforcement of the provisions of this chapter.

(g) Permits issued under the provisions of this chapter shall be valid commencing either January first and expiring June thirtieth of the same year or commencing July first and expiring December thirty-first of the same year for non-homeowners or non-long-term residents. Homeowners and long-term residents will be issued an annual permit, valid commencing July first and expiring June thirtieth of the next calendar year.

(h) A permit issued under the provisions of this chapter shall be personal, nonassignable and nontransferable. Each such permit shall be valid only for a specifically prescribed vehicle.

(i) Except as provided herein, each address may receive one visitor pass at no additional charge. Violations in the use of the visitor pass will result in the revocation of such pass issued to the address.

(j) Multi-family dwellings in excess of 20 units, may apply for and receive one visitor pass per every five units at the property. Passes will be issued to the owner of the property, and must be managed and maintained by the owner of the property.

(k) Owners of a property within the residential permit program not residing in the home (i.e. landlord) may apply for a temporary 48 hour landlord pass through the city clerk′s office. The fee for such temporary passes shall be pursuant to the fee schedule as adopted by the Reno City Council, and shall be limited to ten per calendar year.

(Ord. No. 3397, § 1, 5-27-86; Ord. No. 5990, § 1, 12-12-07; Ord. No. 6398, § 1, 4-27-16)

Sec. 6.07.040. Exceptions.

The parking prohibitions of this chapter shall not apply to clearly marked service or delivery vehicles which are being used to provide temporary services to or make immediate deliveries to residents of the permit parking district.

(Ord. No. 3397, § 1, 5-27-86; Ord. No. 5990, § 1, 12-12-07)

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Sec. 6.07.050. Violations.

(a) In any prosecution charging a violation of this chapter, proof that the vehicle described in the complaint, summons or warrant was parked in violation of this chapter, together with proof that the defendant was at the time of such parking the registered owner of the vehicle, shall constitute in evidence a prima facie presumption that such registered owner of the vehicle was the person who parked the vehicle at the place where, and for the time during which, such violation occurred.

(b) If any person transfers, or allows to use or possess any parking permit issued to him/her, or gives false answers upon application therefor, or uses or continues to use such parking permit after termination or expiration thereof by expiration of time or operation of law or cessation of residence, or violates any of the terms, conditions, rules or regulations applicable to same, such person shall be guilty of a misdemeanor.

(Ord. No. 3397, § 1, 5-27-86; Ord. No. 5990, § 1, 12-12-07)

Sec. 6.07.060. Individual resident parking.

(a) *Definition.* Individual resident parking (IRP) is a tool to be used in limited situations to temporarily dedicate an on-street parking space, adjacent to a single family residential home, for the use of the current resident of the adjacent single family home.

(b) *Applicability.* This section applies to all applications for IRP spaces submitted after the adoption of this ordinance. Any IRP spaces in existence prior to adoption of this ordinance will be reviewed and are subject to these provisions one year following the adoption of this ordinance, but until that time are governed by the prior ordinance.

(c) *Application.* An individual, meeting the criteria listed below, may apply through the public works department to be granted an IRP space. The application shall be provided by the public works department.

(d) *Review.* The public works department, upon receipt of the above mentioned application, shall conduct a preliminary study within 45 days. A report of the conclusion of the study, together with a recommendation, will be forwarded to the city manager or designee within 60 days of receipt of the request.

(e) *Fees.*

(1) If the request is granted, the applicant shall pay the cost of signing the area in the amount in accordance with the set list of fees approved by the city council and kept on file in the office of the city clerk. The fee shall cover the signage for one year or until such time as sign replacement is necessary. If the sign requires replacement, the cost shall be borne by the applicant.

(2) If the sign is removed by the city within one year of the fee being paid a financial reimbursement will be paid by the city to the applicant on a prorated basis. If the sign is removed beyond one year of the fee being paid no reimbursement shall be paid to the applicant by the city.

(f) *Criteria.* Granting of an IRP space will only be considered under the following criteria:

(1) The residence is a single family home as identified with the Washoe County Assessor's Office; and

(2) There is an on-street parking space located adjacent to the residence where the applicant resides; and

(3) The applicant is disabled, has been issued a parking permit or license plate by the Nevada State Department of Motor Vehicles and Public Safety pursuant to NRS 482.384 and 482.377, and any qualified off-street parking spaces cannot be accessed by the applicant; or

(4) The applicant is a senior citizen as defined by the State of Nevada in NRS 439.650.

(g) *Reasons for denial.* The city manager or designee may deny applications under the following criteria:

(1) The associated residence is not used as a single family residence; or

(2) The adjacent street has controlled access or controlled parking; or

(3) The area is located within a residential permit parking district as identified in RMC 6.07.020 (Designation of area and restrictions); or

(4) At least one on-site parking space exists either in a garage or outside, on the associated residential site; or

(5) When previous off-street parking spaces have been removed, which includes but is not limited to garage conversions and building additions.

(h) *Review.* The public works department may review, at its option, all IRP designations for compliance with the criteria of this section. Should the public works department determine that the sign should be removed, they shall provide notice to the resident 30 days prior to removal. The public works department may remove any IRP space sign for the following reasons:

(1) The applicant no longer resides at the associated residence; or

(2) The residence is no longer used as a single family residence; or

(3) The public works department determines that continued use of the IRP space is unsafe;

(4) The street classification or use has changed which no longer supports the use of an IRP space;

(5) If an applicant has been issued an IRP under subsection (f)(3), and the applicant no longer possesses a parking permit or license plate by the Nevada State Department of Motor Vehicles and Public Safety pursuant to NRS 482.384 and 482.377.

(Ord. No. 3876, § 1, 11-13-89; Ord. No. 5250, § 1, 7-24-01; Ord. No. 5990, § 1, 12-12-07; Ord. No. 6071, § 1, 12-3-08; Ord. No. 6580, § 1, 10-14-20)

CHAPTER 6.08. PARKING METERS*

Sec. 6.08.010. Parking meter districts.
Sec. 6.08.020. Designation of parking spaces.
Sec. 6.08.030. Installation of parking meters.
Sec. 6.08.040. Operation of parking meters.
Sec. 6.08.050. Parking time limits.
Sec. 6.08.060. Violations.
Sec. 6.08.070. Collections.
Sec. 6.08.080. Reservation of powers.
Sec. 6.08.090. Exercise of police power.

Sec. 6.08.010. Parking meter districts.

Parking meter district no. 1 within the city shall be the same as district no. 1 as stated in section 6.04.160.

(Code 1966, § 8.56.010; Ord. No. 6193, § 1, 7-6-11)

Sec. 6.08.020. Designation of parking spaces.

The traffic engineer may cause to be marked off individual parking spaces in the parking zones designated in section 6.08.010 and in such other districts as may hereafter be established, such parking spaces to be designated by lines painted or durably marked on the curbing or surface of the street. At each space so marked off it shall be unlawful to park any vehicle in such a way that the vehicle shall not be entirely within the limits of the space so designated.

(Code 1966, § 8.56.020; Ord. No. 6193, § 1, 7-6-11)

Sec. 6.08.030. Installation of parking meters.

In the parking meter district, the traffic engineer may cause parking meters to be installed upon the curb or sidewalk, and the city manager, or designee, shall be responsible for the regulation, control, operation, maintenance and use of such parking meters. Each device shall be so set as to show legal parking upon the payment of appropriate fee, for the period of time prescribed by this chapter.

(Code 1966, § 8.56.030; Ord. No. 6193, § 1, 7-6-11)

Sec. 6.08.040. Operation of parking meters.

Except in a period of emergency to be determined by an officer of the fire department or police department, or in compliance with the direction of a police officer or traffic-control sign or signal, and unless otherwise provided in section 6.06.475, when any vehicle shall be parked in any parking space alongside or next to which a parking meter or traffic-control signage indicating metered parking is located, the operator of such vehicle shall, upon entering the parking meter space, immediately transact or cause to be transacted the proper payment as is required for such parking meter and as is designated by proper directions on the meter, and failure to transact such proper payment shall constitute a violation of this title. Upon the transaction of such payment the parking space may be lawfully occupied by such vehicle during the period of

***State law reference—**Parking in metered parking zones, NRS 484.443.

time which has been prescribed for the parking space, provided that any person placing a vehicle in a parking meter space controlled by a meter which indicates that unused time has been left in the meter by the previous occupant of the space shall not be required to transact payment so long as his occupancy of the space does not exceed the indicated unused parking time. When each device indicates the expiration of the lawful time limit, the lawful parking period has expired and in such cases the right of such vehicle to occupy such space shall cease and the operator, owner, possessor or manager thereof shall be subject to the penalties provided in this Code.

(Code 1966, § 8.56.040; Ord. No. 6193, § 1, 7-6-11; Ord. No. 6220, § 1, 1-18-12)

Sec. 6.08.050. Parking time limits.

(a) The city engineer shall have the power to establish the days of operation, time limitations in the parking spaces in the parking meter districts. The days of operation, time limitations and rates charged need not be uniform throughout the district. The rates will be established by the city council by resolution during the budget process.

(b) The days of operation and time limitations pursuant to subsection (a) may be appealed to the city manager or his designee by filing a letter in his office stating the reasons for the appeal. The city manager shall have final authority in such appeals.

(Code 1966, § 8.56.050; Ord. No. 3384, § 1, 4-14-86; Ord. No. 4708, § 1, 1-28-97; Ord. No. 4868, § 1, 5-12-98; Ord. No. 6193, § 1, 7-6-11)

Sec. 6.08.060. Violations.

Unless otherwise provided in section 6.06.475, it shall be unlawful and a violation of this chapter subject to a civil fine and penalties as set forth in section 6.30.620 of the Reno Municipal Code for any person:

(1) To cause, allow, permit or suffer any vehicle registered in the name of, or operated by such person to be parked overtime, or beyond the period of legal parking time established for any parking meter district as herein described, or to transact payment for the purpose of parking beyond the maximum legal parking time for the particular designated space in a parking meter district.

(2) To park any vehicle across any line or marking of a parking meter space or in such position that the vehicle shall not be entirely within the area designated by such lines or markings.

(3) To permit any vehicle to remain or be placed in any parking space adjacent to any parking meter or traffic-control signage indicating metered parking while said meter is indicating that the vehicle occupying such parking space has already been parked beyond the period prescribed for such parking space.

(4) To deface, injure, tamper with, open or willfully break, destroy, or impair the usefulness of any parking meter or associated traffic-control signage under the provisions of this chapter.

(5) To transact or cause to be transacted in any parking meter any slug, device or metal substance, or other substitute for lawful payment.

(Code 1966, § 8.56.060; Ord. No. 3108, § 1, 8-8-83; Ord. No. 3297, § 1, 7-8-85; Ord. No. 6065, § 1, 11-10-08; Ord. No. 6193, § 1, 7-6-11; Ord. No. 6220, § 1, 1-18-12)

Sec. 6.08.070. Collections.

Regular collections of the payment deposited in the parking meters or transacted through computerized systems shall be made by persons so designated by the city manager, and it shall be the duty of such person so designated to remove from the parking meters the payment so deposited in such meters and to deliver or transfer the payment to the city clerk who shall count the funds so collected and deposit such funds.

(Code 1966, § 8.56.070; Ord. No. 6193, § 1, 7-6-11)

Sec. 6.08.080. Reservation of powers.

Nothing in this chapter shall be construed as prohibiting the city from providing for bus stops, for taxicab stands, and other matters of similar nature, including the loading and unloading of trucks or other commercial vehicles.

(Code 1966, § 8.56.090; Ord. No. 6193, § 1, 7-6-11)

Sec. 6.08.090. Exercise of police power.

This entire chapter shall be deemed and construed to be an exercise of the police power of the city for the preservation and protection of public safety, and all of its provisions shall be liberally construed with a view to the effectuation of purpose.

(Code 1966, § 8.56.100; Ord. No. 6193, § 1, 7-6-11)

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CHAPTER 6.09. REGULATION OF PARKING LOTS

Sec. 6.09.010. Definitions.
Sec. 6.09.020. Designation of space; method of parking.
Sec. 6.09.030. Signs; standards.
Sec. 6.09.040. Commercial parking lot, impoundment of illegally parked vehicle, conditions precedent.
Sec. 6.09.043. Owner may refuse service to a repeat violator.
Sec. 6.09.045. Contents of receipt required by Sec. 6.09.040: Release of impounded vehicle at no charge if receipt produced.
Sec. 6.09.050. Patron parking lot, enforcement during business hours, warning signs required.
Sec. 6.09.055 Acceptable methods of payment.
Sec. 6.09.060. Owner liable for cost of wrongful impound.
Sec. 6.09.070. Name of owner of parking lot to be furnished to police.

Sec. 6.09.010. Definitions.

As used in this chapter:

Commercial parking lot means a parking lot for which a charge is made and which is held open for use by the general public.

Impound means the act of depriving the operator of a vehicle of the use of that vehicle to compel the payment of a charge due for parking or for the payment of a charge associated with the deprivation of the use of the vehicle. The term includes, without limitation, the physical removal of the vehicle from the lot or location at which the operator left it or the disablement of the vehicle to prevent its removal from the lot.

Lease parking lot means a parking lot for which a charge is made pursuant to agreement with the owner on a daily, weekly or monthly basis.

Owner means the person owning the property or structure and specifically includes any employee, lessee or contractor engaged in the operation of the lot or in the provision of a service to the operation of the lot.

Parking lot means a building, structure or space where one or more motor vehicles may be parked, stored or kept other than a space reserved by the owner thereof for his personal use.

Patron parking lot means a parking lot provided exclusively for the use and convenience of a person doing business at or with a business establishment located within or immediately adjacent to the lot and for which no charge for parking is made whether or not a parking ticket must be validated.

Vehicle means any device upon or by which a person or property is transported.

(Ord. No. 3912, § 1, 1-9-90)

Sec. 6.09.020. Designation of space; method of parking.

(a) The owner of a parking lot shall:

(1) By appropriate signage or marking of the pavement designate:

a. The external boundary of the parking lot if physical access is not limited to a designated entrance;

b. The space in the parking lot to be used for parking including the manner of parking and the restrictions, if any, upon the type or size of vehicle permitted to use the space;

c. If the parking lot is divided into different types of parking, the space reserved for each type of parking.

(2) Maintain at each entrance to the parking lot, a sign approved by the zoning administrator or his designee, stating:

a. The hours of operation of the parking lot;

b. The fee, if any, charged for parking;

c. If the parking lot or a portion of it is reserved for patron parking, the terms upon which the patron parking is permitted;

d. The identity of the business or businesses for which parking is allowed, or to which parking is restricted, in the subject parking area.

e. If a vehicle parked in violation of the conditions under which the parking is permitted may be impounded, the fact that impoundment may be used and the charge that will be required of the operator of the vehicle to recover the vehicle.

(Ord. No. 3912, § 1, 1-9-90; Ord. No. 6097, § 1, 3-11-09)

Sec. 6.09.030. Signs; standards.

(a) Each sign required or permitted to be used by a provision of this chapter must:

(1) Be printed using black lettering on a white background;

(2) Use uniform lettering legible to a person of normal visual acuity from at least 25 feet when mentioning the:

a. Rate or rates to be charged for parking;

b. Threat of impoundment for illegal parking;

c. Charge made for the recovery of an impounded vehicle; and

d. Prohibition of the occupied overnight parking of a recreational vehicle.

(3) Be placed on the parking lot in a manner so that the center of the sign is not less than three nor more than six feet above the surface of the lot;

(4) Not be placed so that it is obscured or obstructed by an intervening object and will not be obscured or obstructed by a lawfully parking vehicle;

(5) If located at a designated entrance to the parking lot, be illuminated so as to be easily readable and noticeable from the center of the entrance;

(6) Be approved by the zoning administrator or his designee.

(Ord. No. 3912, § 1, 1-9-90; Ord. No. 4009, § 1, 9-11-90; Ord. No. 6097, § 1, 3-11-09)

Sec. 6.09.040. Commercial parking lot, impoundment of illegally parked vehicle, conditions precedent.

(a) The owner of a commercial parking lot shall not impound a vehicle which he believes to be illegally parked in his parking lot unless:

(1) He has physically limited access to the parking lot so that a vehicle may enter or leave the lot only by the entrances designated by him pursuant to this chapter; and

(2) Either:

a. At the time that a person entering the parking lot tenders payment, the owner issues a receipt therefor that meets the standards set forth in section 6.09.045; or

A receipt issued pursuant to this section must consist of two duplicate reciprocal parts each bearing a common serial number and the date and time of issue. One part must bear the legend, in twenty-four-point sans-serif type, "KEEP THIS RECEIPT WITH YOU," while the other must bear the legend, in the same size and style of type, "PLACE FACE- UP ON THE LEFT SIDE OF DASHBOARD." If the receipt is issued with the parts attached together, it must be serrated or scored to facilitate separation of the parts;

b. If a receipt is not customarily issued and the vehicle is impounded for the failure to pay the parking fee, the person is given the opportunity to immediately pay the parking fee due and, in addition, a charge not exceeding ten percent of the parking fee collected, or $5.00, whichever is the greater amount. The owner shall not impose any other charge or penalty as a condition of releasing the vehicle from impoundment.

(3) The preceding conditions are in addition to any condition precedent imposed by state law permitting the towing of a vehicle from private property.

(4) The impoundment of a vehicle from a parking lot or a parking space in violation of this section is a basis for the suspension or, in the case or repeated violations, revocation of the owner's business license.

(Ord. No. 3912, § 1, 1-9-90; Ord. No. 4247, § 1, 7-14-92; Ord. No. 6097, § 1, 3-11-09)

Sec. 6.09.043. Owner may refuse service to a repeat violator.

Nothing in section 6.09.040 limits or prohibits the owner of a commercial parking lot from immediately impounding a vehicle from his parking lot, pursuant to the authority and under the conditions of state law, which has been previously parked in a commercial lot operated by him without the payment of the parking fee therefor.

(Ord. No. 4247, § 2, 7-14-92)

Sec. 6.09.045. Contents of receipt required by Sec. 6.09.040: Release of impounded vehicle at no charge if receipt produced.

(a) A receipt issued pursuant to subsection (2)a. of section 6.09.040. must consist of two duplicate reciprocal parts each bearing a common serial number and the date and time of issue. One part must bear the legend, in twenty-four-point sans-serif type, "KEEP THIS RECEIPT WITH YOU," while the other must bear the legend, in the same size and size and style of type, "PLACE FACE-UP ON LEFT SIDE OF DASHBOARD." If the receipt is issued with the parts attached together, it must be serrated or scored to facilitate separation of the parts.

(b) If a dispute arises between a person who has parked in a commercial lot for which a receipt has been issued and the vehicle has been impounded because the receipt was not left in the vehicle as described in the receipt, the production by the person of the receipt is conclusive proof of payment and the owner shall immediately release the vehicle back to the person without any charge.

(Ord. No. 4247, § 3, 7-14-92)

Sec. 6.09.050. Patron parking lot, enforcement during business hours, warning signs required.

(a) The owner of a patron parking lot or a lot of which only a portion is reserved for patron parking may enforce the reservation of parking during the hours of operation of his business by means of impounding a vehicle if he maintains a sign to that effect at the entrance to the parking lot if it is dedicated exclusively to patron parking or, if a certain space is reserved for a patron of a business, the owner shall identify that space by a sign stating that the space is reserved for the patrons of a particular business and that a vehicle illegally parked will be impounded.

(b) This section does not apply to the removal of a vehicle from private property pursuant to the authority of NRS 487.038.

(c) The impoundment of a vehicle from a parking lot or a parking space in violation of this section is a basis for the suspension or, in the case of repeated violations, revocation of the owner's business license.

(Ord. No. 3912, § 1, 1-9-90; Ord. No. 4247, § 4, 7-14-92)

Sec. 6.09.055. Acceptable methods of payment.

(a) The owner of a parking lot shall not demand that the payment for release of a vehicle be made only in cash.

(1) The parking lot owner shall allow the vehicle owner the additional ability to pay with cashier's check, money order, or major credit card in accordance with the generally accepted business practices of the community.

(2) The parking lot owner may also allow other forms of lawful payment including entering into a contract with the vehicle owner to make payment arrangements at a later date without being subjected to further costs or other enforcement action, if the vehicle owner fulfills his or her obligations under the contract.

(Ord. No. 6097, § 1, 3-11-09)

Sec. 6.09.060. Owner liable for cost of wrongful impound.

The owner of a parking lot not meeting the standards required by the relevant provisions of sections 6.09.020 to 6.09.050; inclusive and at which a vehicle has been impounded is liable to the operator of the vehicle for the amount paid by the operator in recovering the vehicle.

(Ord. No. 3912, § 1, 1-9-90)

Sec. 6.09.070. Name of owner of parking lot to be furnished to police.

The owner of a parking lot shall furnish to the police department his name and telephone number, or that of a responsible agent or employee who is available during the hours of operation of that lot or during any other time during which the owner proposes to enforce the conditions upon parking in that lot by impoundment of a vehicle. The furnishing of a number for an answering service or to which an answering machine is merely attached does not constitute compliance with requirement of this section.

(Ord. No. 3912, § 1, 1-9-90)

CHAPTER 6.10. TOWING AND BOOTING COMPANIES

Sec. 6.10.010. Scope.
Sec. 6.10.020. Definitions.
Sec. 6.10.030. Release of vehicles.
Sec. 6.10.040. Authority to tow or immobilize vehicles on private property; display of signs on and marking of property.
Sec. 6.10.045. Identification required.
Sec. 6.10.050. Disposition of personal property.
Sec. 6.10.060. Prohibited acts.
Sec. 6.10.065. Booting and towing company general conduct.
Sec. 6.10.070. Requirements for towing, booting and storing towed motor vehicles, cargo and personal property.
Sec. 6.10.080. Booting companies required to inform owner of booted motor vehicle to the right to file complaint with city clerk or authorized agent.
Sec. 6.10.090. Circumstances under which charges prohibited.
Sec. 6.10.100. Conditions for person other than owner of a motor vehicle to request booting or towing.
Sec. 6.10.110. Bills for towing or booting.
Sec. 6.10.120. Forms for billing; distribution, maintenance and inspection of bills.
Sec. 6.10.130. Logs for dispatch.
Sec. 6.10.140. Notice of towing and storage.
Sec. 6.10.150. Disclosure of business interest.
Sec. 6.10.160. Prohibited acts concerning recommendations of facilities for repair.
Sec. 6.10.170. Agreements for private property removal or booting services.
Sec. 6.10.180. Other required duties by law.
Sec. 6.10.190. Acceptable methods of payment.
Sec. 6.10.200. Service fees.
Sec. 6.10.210. Location of demand and collection.
Sec. 6.10.220. Civil liability of owner of private property.

Sec. 6.10.010. Scope.

This chapter applies to any towing or booting company operating within the Reno city limits that tows vehicles or installs automobile immobilizers on vehicles for either official city agencies or private persons, on city streets, commercial lots, and private property.

(Ord. No. 4754, § 1, 6-10-97)

Sec. 6.10.020. Definitions.

Booting company means the owner, manager, employee or agent of a company engaged in the installation of automobile immobilizers, sometimes referred to as "Denver boots" or "French boots," operating within the city limits, and who holds himself out for hire for such installation (hereinafter called "booting").

Operator of a tow car means the owner, manager, employee or agent of a company engaged in the transportation of vehicles by the use of a tow car, and who holds himself out for hire for such towing. This includes any tow company who holds a certificate of public convenience and necessity issued by the public service commission.

Categories of tariffs. Tariffs for tow cars will be divided into the following categories:

(1) Category A: Towing or removing a vehicle at the request of a law enforcement agency, the owner of the vehicle, his agent or the driver of the vehicle which requires the use of a tow car with an unladen weight of 9,000 pounds or more.

(2) Category B: Towing or removing a vehicle at the request of a law enforcement agency, the owner of the vehicle, his agent or the driver of the vehicle which does not require the use of a tow car with an unladen weight of 9,000 pounds or more.

(3) Category C: Towing or removing a vehicle at the request of a person other than a law enforcement agency, the owner of the vehicle, his agent or the driver of the vehicle.

Vehicle owner means the registered owner, and the registered owner's authorized agent, representative, or permissive user exercising control over any vehicle that has been booted. For purposes of this chapter, any keyholder of the booted vehicle shall be presumed to be the vehicle owner.

(Ord. No. 4754, § 1, 6-10-97; Ord. No. 4830, § 1, 1-13-98; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.030. Release of vehicles.

(a) The operator of a tow car shall allow the vehicle owner of a motor vehicle that has been connected to a tow car to obtain the release of the vehicle at the point of origination of the towing if:

(1) A request is made to release the vehicle: and

(2) The owner or agent pays the fee for releasing the vehicle.

(Ord. No. 4754, § 1, 6-10-97; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.040. Authority to tow or immobilize vehicles on private property; display of signs on and marking of property.

(a) Except as otherwise provided in subsection (e), an operator of a tow car or booting company shall not tow a vehicle from or boot a vehicle on private property at the request of the owner or person in lawful possession of the property, or a designated agent of the owner or person in lawful possession of the property, unless a sign or signs are displayed on the property in accordance with NRS 487.038, any applicable municipal and county ordinances and subsection (d). For purposes of this section, the operator of a tow car or booting company is not an authorized agent of the owner of the real property unless such company is a booting company under contract with the owner or the person in lawful possession of the property.

(b) In residential complexes, reserved parking spaces and areas in which parking is prohibited must be clearly identified and marked. In addition, tenants of a residential complex in which patrolling for the purpose of booting parking violators is not currently being used, must be notified in writing a minimum of 15 days prior to commencing such patrolling.

(c) If a sign is removed, destroyed or damaged, it must be replaced or repaired within a reasonable time. No vehicle shall be towed or booted until the sign or signs have been up for at least 24 hours.

(d) A sign or signs displayed on a parking lot pursuant to subsection (a) must:

(1) Be printed with contrasting white background and black lettering;

(2) Use uniform lettering legible to a person of normal visual acuity situated at least 25 feet distant from the sign;

(3) Be visible at night through the use of either direct or indirect lighting;

(4) Be placed on the parking lot in such a manner that it is in the field of view of all drivers entering and using the lot, be placed in a manner so that the center of the sign is neither less than three nor more than six feet above the surface of the lot and not be placed so that it is obscured or obstructed by an intervening object including a lawfully parked vehicle;

(5) Be of sufficient quantity and placement to notify all users of the lot of its parking restrictions; and

(6) Include the name and telephone number of the towing or booting company available to facilitate the recovery of the vehicle by the vehicle owner, and of the local law enforcement agency which is notified, and the charge made for the recovery of an impounded vehicle.

(7) Identify the business or businesses for which parking is allowed, or to which parking is restricted, in the subject parking area.

(8) In lieu of placing signs throughout the private street, lot or garage in which parking is restricted, a property owner and booting company will be deemed in compliance with this section if signs containing the information and format required by this section are conspicuously posted and maintained by the owner of the property at each designated entrance and exit of the property as to be readily visible and legible to a vehicle operator entering the property. If vehicular access to the property is not physically limited to a designated entrance and exit, the external boundary of the property must be designated by appropriate signage or marking of the pavement.

(e) This section does not apply:

(1) If the owner or person in lawful possession of private property or the designated agent of the owner or person in lawful possession of the property has entered into a written contract with the owner of the vehicle which describes the circumstances under which a vehicle may be towed or booted. For purposes of this section, the operator of a tow car or booting company is not an authorized agent of the owner of the real property unless such company is a booting company under contract with the owner or the person in lawful possession of the property;

(2) If the owner or person in lawful possession of private property, or designated agent of the owner or person in lawful possession of the property, requests that the vehicle be towed because it is parked in a "no parking" area such as a marked fire lane, red zone, travel lane of a roadway, driveway, lawn or any other area commonly recognized as a "no parking" area;

(3) If the property on which booting or towing occurs is residential real property upon which only a single-family dwelling is located;

(4) To towing or booting of a vehicle at the direction of a peace officer; or

(5) To the towing of a vehicle from an unimproved area or an area where no sign is displayed if a notice has been posted on the vehicle for not less than 24 hours.

(Ord. No. 4754, § 1, 6-10-97; Ord. No. 4830, § 2, 1-13-98; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.045. Identification required.

(a) A vehicle used by a booting company, during use, must be equipped with:

(1) A prominent and conspicuous display on both sides of the vehicle showing the booting company's business name, business telephone number and dispatch telephone number. No identification or insignia shall be used, and no wording shall be used, that would reasonably cause a person to confuse the booting company with any public law enforcement agency.

(b) Each person conducting booting operations within the city shall wear outside of his or her clothing an identification card clearly displaying the person's photograph, name and business name. No identification or insignia shall be worn, and no wording shall be used, that would reasonably cause a person to confuse the booting company with any public law enforcement agency.

(Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.050. Disposition of personal property.

(a) The operator of a tow car or booting company shall not use or hold any cargo or personal property as a bailment for the rates and charges incurred in the towing or booting of a vehicle, except that cargo may be held as security for payment of charges associated with cleaning the area where cargo has spilled or for loading, transporting, securing or storing the cargo or personal property.

(b) The operator of the tow car shall ensure that all property which comes into his possession because of the operation of a tow car is adequately protected. Any personal property in a towed vehicle must be released to the owner of the vehicle or his agent upon request.

(c) Accessories and equipment for the vehicle shall be deemed part of the vehicle rather than personal property for the purposes of this section.

(d) Cargo and personal property left unclaimed when final disposition is made of the associated vehicle may be sold or otherwise disposed of by the operator of a booting or tow car.

(Ord. No. 4754, § 1, 6-10-97)

Sec. 6.10.060. Prohibited acts.

(a) The operator of a tow car shall not drive upon the streets or highways or drive through parking lots searching for the opportunity to tow.

(b) The operator of a tow car or booting company shall not give any remuneration or other consideration to any person who requests, authorizes or in any way notifies the operator of a potential tow or boot. Providing signs to a property owner which displays the name, address and telephone number of the operator of a tow car or booting company is not remuneration for the purposes of the section.

(c) A booting company shall not boot a vehicle on public property within the limits of the city, unless directed to do so by a law enforcement agency.

(d) Under no circumstances shall a vehicle be immobilized in any manner in any marked fire lane, in any red zone, in any travel lane of a roadway, in front of or immediately adjacent to a fire hydrant, fire connection or building emergency exit, or in any area where such booting would cause a hazard to the public safety, health or welfare.

(e) A vehicle shall not be immobilized as parked in the vehicular entrance to or exit from a parking lot.

(f) Any ambulance, police, fire or any emergency vehicle, as that term is defined by NRS Chapter 484, shall not be immobilized.

(Ord. No. 4754, § 1, 6-10-97; Ord. No. 4830, § 3, 1-13-98; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.065. Booting and towing company general conduct.

(a) *Booting by periodic check or by individual request:*

(1) Booting companies may contract with private property owners to perform periodic property checks. A booting company so employed must use an independent dispatch service to track the booting company's activities in performance of its contract, including recording the vehicles booted and the relevant time entries for booting. The booting company shall call the dispatch service upon the initial identification of a violation and provide the service with the license number and make and model of the vehicle intended to be booted. A period of at least ten minutes must elapse between the time of notification of the dispatch service and placement of the boot on the offending vehicle. Upon placement of the boot, the booting company shall notify the dispatch service of the time the boot was placed. Designation of times by the dispatch service must be accurately entered at the time of each booting company call, verifiable and not entered only in anticipation of compliance with the timing requirements of this Section.

(2) Private property owners, or those in legal possession of private property, or their authorized agents, may use the services of a licensed towing or booting company to address individual parking violations. The service must be specifically requested for each incident through a dispatch service, and a tow service or booting company properly dispatched on each occasion. The time of the call shall be logged by an independent dispatch service, and an authorization slip to boot or tow must be signed by the property owner or his agent that indicates the time the boot is placed on the vehicle or the vehicle is towed. A period of at least ten minutes must elapse between the time of the logged property owner request and the placement of the boot or towing apparatus on the vehicle. The name and business address of the requesting individual must be entered on the bill. The person requesting and authorizing the tow or boot must remain present while the towing or booting is being performed. Designation of times by the dispatch service must be accurately entered at the time of each booting company call, verifiable and not entered only in anticipation of compliance with the timing requirements of this Section.

(b) Upon installation of a boot, the booting company shall affix a blaze orange warning placard or sticker to the center of the driver's side window or to the front windshield directly in front of the steering wheel to the booted vehicle. The sticker or placard must be no smaller than 44 square inches and must clearly and legibly state that a locking device has been installed on the vehicle, state that attempting to move the vehicle will cause serious damage to the vehicle, display the date and time the vehicle was booted, display the booting company's business name, business telephone number and dispatch telephone number. A release or waiver of any kind appearing on a warning decal purporting to limit or avoid liability for damages to a vehicle that has been booted is not valid. Upon payment of the service fee, the booting company shall offer to remove the decal and shall have in possession the appropriate materials to remove the decal and residue.

(c) Beginning upon the time a vehicle owner requests from a booting company or its dispatch to release a vehicle, a booting company must respond within 45 minutes to the booted vehicle. The dispatch service shall be notified by the booting company of the time of arrival at the booted vehicle, and the time of arrival shall not be recorded as sooner than the booting company's vehicle being parked at the booted vehicle.

(d) Thereafter, upon payment of the charge for booting, the booting company shall immediately release the booted vehicle.

(e) If a vehicle owner arrives to his or her vehicle prior to the running of the ten minute waiting period for booting, the vehicle owner shall be permitted to remove his or her vehicle without installation of a boot and without assessment of a charge against him or her.

(Ord. No. 6097, § 1, 3-11-09)

Sec. 6.10.070. Requirements for towing, booting and storing towed motor vehicles, cargo and personal property.

(a) In towing, booting or storing a towed motor vehicle, cargo and personal property, the operator shall:

(1) Treat original and substituted accessories and equipment of the motor vehicle as part of the vehicle rather than personal property.

(2) Protect from theft and personal damage a towed motor vehicle, cargo and personal property which comes into his possession as a result of a tow.

(3) Provide access during normal business hours to motor vehicles which were towed by the owner or the agent of the owner. The operator of a tow car shall not deny the vehicle owner access to the vehicle unless required to do so by a law enforcement agency. No charges shall be levied for the first visit or to pick up a vehicle during regular business hours. Additional charges will apply after the first visit.

(4) Establish procedures that allow the vehicle owner of a towed motor vehicle access to the vehicle or to obtain the release of the vehicle during those periods in which the operator is not normally open for such transactions.

(5) Afford the vehicle owner the opportunity to inspect and inventory the vehicle before release to detect damage or theft of property while vehicle was in the custody of the tow company. If damage or theft is detected, the operator shall:

a. Resolve the complaint to the satisfaction of the claimant; or

b. Identify the carrier of its insurance and explain the procedure for filing a claim.

(Ord. No. 4754, § 1, 6-10-97; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.080. Booting companies required to inform owner of booted motor vehicle to the right to file complaint with city clerk or authorized agent.

A booting company shall inform each vehicle owner of a booted motor vehicle that the owner or agent may file a complaint with the City of Reno regarding any violation of RMC, NRS, or any other applicable law. The booting company shall give the person paying a bill information on the procedures for filing complaints, including all contact information for the City of Reno call center through which complaints are submitted. The information regarding the right to file a complaint

shall be provided in writing. This information may be printed on a separate document to be given to the person in possession of a booted motor vehicle, and may be printed on the bill for booting if it is in a prominent place on the bill in ten-point or larger type.

(Ord. No. 4754, § 1, 6-10-97; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.090. Circumstances under which charges prohibited.

(a) For boots or tows other than those requested by a law enforcement officer, no charges may be assessed against the vehicle owner under the following circumstances, and any charges so paid must be returned by the operator:

(1) If either the person who requested the boot or tow was not the owner of the real property from which the vehicle was towed or his authorized agent or if, in the case of an unrequested boot or tow, the boot or tow company was not licensed as a private patrolman or security guard and had a contract to act as such by the owner of the property upon which the tow or boot occurred.

(2) The property from which the boot or tow was made was required by statute, ordinance or NAC to have particular signs displayed and there were no such signs.

(3) In the case of a parking facility that charges a fee, the operator of the facility did not comply with provisions of NRS, RMC, NAC or any other applicable law.

(4) In the case of tow cars, notification of the appropriate law enforcement agency pursuant to RMC 6.10.140 was not made.

(5) If the booting company fails to respond to the booted vehicle within 45 minutes after the vehicle owner requests release of a booted vehicle.

(Ord. No. 4754, § 1, 6-10-97; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.100. Conditions for person other than owner of a motor vehicle to request booting or towing.

(a) If booting or towing is individually requested by a person other than the vehicle owner or a law enforcement officer:

(1) The person requesting the boot or tow must be the owner of the real property from which the vehicle is to be booted or towed or his authorized agent and must sign a specific request for towing or booting. For the purposes of this section, the operator is not an authorized agent of the owner of the real property unless such company is a licensed private patrolman or security guard under contract with the owner or the person in lawful possession of the property.

(2) The area from which the vehicle is to be booted or towed must be appropriately posted in accordance with state or local requirements.

(3) Notice must be given to the appropriate law enforcement agency pursuant to state and local requirements.

(Ord. No. 4754, § 1, 6-10-97; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.110. Bills for towing or booting.

(a) The operator of a tow car or booter shall itemize on the bill for towing or booting each rate used or fee charged to compute the total bill. All charges must be substantiated in writing and attached to the bill. In addition to the rates and fees, each bill must contain:

(1) The name, address, telephone number of the operator of the tow car or booting company;

(2) The address of the facility where the towed vehicle is stored, if it is different from the address of the operator of the tow car;

(3) The date and time of the request for towing or booting, including a designation of "a.m." or "p.m.";

(4) The name, address and, if available, signature of the person requesting that the vehicle be towed or booted, except for a boot or tow pursuant to a law enforcement officer, the signature of the person requesting the boot or tow must be affixed to the bill;

(5) The name and address of the registered owner of the vehicle if available;

(6) The name and address of the person responsible for paying the charges incurred in towing or booting the vehicle, if available;

(7) The model, make, VIN, number of the license plate, state of registration and year of manufacture of the vehicle, if available;

(8) The exact location from which the vehicle is towed or booted;

(9) The exact location to which the vehicle was initially towed if different from the address of the facility where the vehicle is stored;

(10) The time when the tow car or booter was sent to the vehicle and for the tow cars;

(11) The time of the arrival of the tow car or booter at the site of the vehicle to be towed or booted and the reading on the odometer at its arrival;

(12) For placement of a boot, the actual time the boot was placed and called to the independent dispatch service;

(13) The time of the departure of the tow car or booter from the site of the vehicle to be towed or booted;

(14) The time of the arrival of the tow car at the location to which the vehicle was towed and the reading of the odometer upon its arrival;

(15) A statement of the total charges; and

(16) For placement of a boot, the notice to the public that there must be a ten minute delay between the identification of the violation, whether by private property owner or by a booting company performing a periodic check, and the application of the boot.

(Ord. No. 4754, § 1, 6-10-97; Ord. No. 4830, § 4, 1-13-98; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.120. Forms for billing; distribution, maintenance and inspection of bills.

(a) The forms to be used for billing must be preprinted and numbered. The operator shall account for each such numbered form.

(b) A copy of the bill for towing or booting must be given to the person paying the rates and charges. The operator shall retain a copy of each bill for three years. The operator shall, upon request, open his books for inspection and audit by the finance director, chief of police or other authorized designee, during normal business hours.

(Ord. No. 4754, § 1, 6-10-97)

Sec. 6.10.130. Logs for dispatch.

(a) A tow or booting operator shall maintain a log for dispatch which contains the following information for towing or booting:

(1) The date and time of the request for towing or booting, including a designation of the "a.m." or "p.m.";

(2) The name and address of the person requesting that a vehicle be towed or booted; and

(3) The model, make, VIN, number of the license plate, state of registration and year of manufacture of the towed or booted vehicle, if available.

(Ord. No. 4754, § 1, 6-10-97; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.140. Notice of towing and storage.

The operator of a tow car shall notify the law enforcement agency having jurisdiction over the site from which the vehicle was towed of the make, model and license number of each vehicle towed under Category C within one hour after the vehicle is towed.

(Ord. No. 4754, § 1, 6-10-97)

Sec. 6.10.150. Disclosure of business interest.

(a) The operator of a towing or booting business shall file a complete disclosure with the chief of police or his designee, and the city business licensing division, detailing any business interest he or his employees, family members or partners in other businesses may have in any:

(1) Facility for the repair of vehicles;

(2) Parking facility;

(3) Business which manages property;

(4) Business providing parking services;

(5) Wrecking yards or parts sales or distribution; or

(6) Auto pawn businesses.

(Ord. No. 4754, § 1, 6-10-97; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.160. Prohibited acts concerning recommendations of facilities for repair.

An operator of a tow car shall not solicit or accept any remuneration or consideration in any form from any person which is to influence the operator's decision concerning where a vehicle is to be taken for repairs. Any remuneration or other consideration given to the operator of a tow car by any person in the business of repairing vehicles shall be deemed to be for that purpose.

(Ord. No. 4754, § 1, 6-10-97)

Sec. 6.10.170. Agreements for private property removal or booting services.

A copy of any written agreement for private property removal or booting must be on file and available for review in the operator's office.

(Ord. No. 4754, § 1, 6-10-97)

Sec. 6.10.180. Other required duties by law.

All operators must comply with the requirements of NRS, NAC or other state, local or federal laws and are subject to prosecution for such violations.

(Ord. No. 4754, § 1, 6-10-97)

Sec. 6.10.190. Acceptable methods of payment.

(a) The booting company shall not demand that payment be made only in cash.

(1) The booting company shall allow the vehicle owner the additional ability to pay with cashier's check, money order, or major credit card in accordance with the generally accepted business practices of the community.

(2) The booting company may also allow other forms of lawful payment including personal check, electronic check or entering into a contract with the vehicle owner to make payment arrangements at a later date without being subjected to further costs or other enforcement action, if the vehicle owner fulfills his or her obligations under the contract.

(Ord. No. 4830, § 5, 1-13-98; Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.200. Service fees.

(a) For a single booting incident, the booting company may collect no more than $100.00 for the first 24 hours during which the boot is installed on the vehicle.

(1) After the first 24-hour period has elapsed, and for each subsequent 24-hour period during which the boot is installed on the vehicle, the booting company may collect no more than $25.00.

(b) The booting company may not charge or collect, or attempt to charge or collect, a service fee if a vehicle is subsequently towed by a towing company.

(c) The booting company may not charge or collect, or attempt to charge or collect, any fees, costs or charges related to a booting except the service fee specified in this section.

(Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.210. Location of demand and collection.

A booting company may demand and collect the fee for booting only in the immediate proximity of the booted vehicle.

(Ord. No. 6097, § 2, 3-11-09)

Sec. 6.10.220. Civil liability of owner of private property.

(a) If the owner of private property or his agent authorizes a booting by signing a printed authorization slip or by contract with the booting company for periodic parking enforcement, the owner of the property is liable to the vehicle owner for:

(1) Any damage or loss to the booted vehicle or its contents arising from the booting of the vehicle, including damage resulting from attempting to drive a booted vehicle that does not have the required warning placard or sticker securely affixed thereto.

(2) Any civil judgment incurred by the booting company or its employees or agents for any violation of this chapter pertaining to the booted vehicle.

(Ord. No. 6097, § 2, 3-11-09)

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CHAPTER 6.11. ENCROACHMENT PERMIT

Sec. 6.11.010. Scope.
Sec. 6.11.020. Traffic control requirements.
Sec. 6.11.030. Application.
Sec. 6.11.040. Fees.
Sec. 6.11.050. Hours of work.
Sec. 6.11.060. Basis for denial of application or revocation of permit.
Sec. 6.11.070. Additional permits required.
Sec. 6.11.080. Violations.

Sec. 6.11.010. Scope.

This chapter applies to any temporary encroachment permits on public rights-of-way for the purposes of construction, repair, and maintenance and to revocable occupancy permits for the use of the public rights-of-way for other approved purposes such as utilities, signage, and awnings. As used herein, the term public rights-of-way includes the surface of and the space above and below any public street, sidewalk, trail, alley, easement, or other public way of any type to which the city owns or has rights.

(Ord. No. 4400, § 1, 6-28-94; Ord. No. 4440, § 1, 10-25-94; Ord. No. 4669, § 1, 8-27-96; Ord. No. 6344, § 1, 9-10-14)

Sec. 6.11.020. Traffic control requirements.

All encroachments within public rights-of-way shall be in accordance with the latest editions of the Manual on Uniform Traffic Control Devices, the Nevada Department of Transportation, Work Zone Traffic Control Handbook and Public Rights-of-Way Accessibility Guidelines. This section applies to all exceptions as listed in 6.11.030(e) below. Proper and adequate traffic control shall be in place, prior to commencement of any activity.

(Ord. No. 4400, § 1, 6-28-94; Ord. No. 4440, § 1, 10-25-94; Ord. No. 4669, § 1, 8-27-96; Ord. No. 6344, § 1, 9-10-14)

Sec. 6.11.030. Application.

(a) Request for permission to use public right-of-way under this section shall be made in writing to the engineering division, on the application form provided for such purpose. The application, when approved by the city engineer or his designee, will constitute the permit for such work. Traffic control plans shall only be required for work on collectors, arterials and all detours. These traffic control plans must be approved by the city engineer or his designee prior to any encroachment into the public right-of-way.

(b) In order to ensure proper notification of affected properties, application shall be made a minimum of 48 hours in advance for complete closures of arterials and collector streets; for all other temporary encroachments, the application shall be made a minimum 24 hours in advance of the encroachment. Applications for emergency operations shall be filed by the next business day whether the emergency work is completed or not.

(c) An encroachment permit shall be required for each location where a sewer service lateral is rehabilitated by any type of trenchless technology. A sewer lateral rehabilitation inspection fee shall be paid to provide for the city inspection of the point of connection to the city

sewer subsequent to the completion of the sewer lateral rehabilitation. Lateral rehabilitation shall conform to the city standards and the standard specifications for public works construction.

(d) A revocable occupancy permit is required for any surface, aerial or underground occupancy of the public rights-of-way which is intended to be in place for an extended period of time.

(e) Exceptions to the encroachment permit requirement:

(1) Firms with valid county or state public works contracts, or performing public utility work for a government entity, are excused from the usage fee requirements of this section if full-time inspection is provided by the responsible entity.

(2) Firms with valid city public contracts are exempt from the usage fee because of the existing internal review of the traffic control plans.

(3) Private developments which are conditioned by the city council to reconstruct/overlay city streets are exempt from usage fees provided that the need for the reconstruct/overlay was not caused by the permitted work.

(4) Single temporary lane closures for service maintenance or deliveries that do not exceed one hour will fall under RMC Section 6.30.230. "Service vehicle standing zones in street." As provided under Section 6.30.150 "Method of parking." These closures will be in accordance with Section 6.11.020 "Traffic control requirements" and shall be considered lower priority than permitted encroachments. If traffic control conflicts between service vehicle standing zones and permitted encroachments occur, the service vehicle standing zone encroachment may be required to cease as determined by the city engineer.

(5) Utilities with prior existing legal rights are exempt from the requirement to obtain a revocable occupancy permit.

(Ord. No. 4400, § 1, 6-28-94; Ord. No. 4440, § 1, 10-25-94; Ord. No. 4669, § 1, 8-27-96; Ord. No. 6199, § 1, 8-24-11; Ord. No. 6344, § 1, 9-10-14)

Sec. 6.11.040. Fees.

(a) Any applicant who, in conjunction with such encroachment, is also performing work which is regulated in Chapter 12.08, "Street Excavations," shall also obtain an excavation permit and pay the appropriate fee.

(b) A usage fee shall be charged for any temporary encroachment greater seven calendar days from the initial encroachment for each project, which shall be based on the extent of traffic disrupted, the duration of the encroachment, and/or the amount of right-of-way used. Fees will be applied in accordance with a set list of fees approved by the city council and kept on file in the office of the city engineer. A separate fee shall be charged for each street blocked. Only affected city rights-of-way shall have usage fees charged.

(c) If the encroachment begins before a permit is issued, the fees shall be double the normal fees incurred up to the time when the permit is actually issued, unless the encroachment is of an emergency nature, as determined by the city engineer.

(d) An applicant who has a franchise granting it to the right to use the city's streets, alleys, public ways and public grounds shall not be required to pay a permit fee to exercise the rights granted by the franchise.

(e) A sewer lateral rehabilitation inspection fee shall be charged as part of the required encroachment permit for each private lateral rehabilitated. Fees will be applied in accordance with a set list of fees approved by the city council and kept on file in the office of the city engineer.

(f) A yearly fee shall be charged for any revocable occupancy permit in the city rights-of-way. Fees will be applied in accordance with a set list of fees approved by the City Council and kept on file in the office of the city engineer. Business entities covered under Reno Municipal Code 5.95.010 which pay license or franchise fees for customers served in the Reno area through the City of Reno Business License are exempt from fees associated with a revocable occupancy permit.

(g) Bike racks in the public rights-of-way for use by the public are exempt from yearly fees associated with the revocable occupancy permit.

(Ord. No. 4400, § 1, 6-28-94; Ord. No. 4440, § 1, 10-25-94; Ord. No. 4669, § 1, 8-27-96; Ord. No. 6070, § 1, 12-3-08; Ord. No. 6199, § 1, 8-24-11; Ord. No. 6344, § 1, 9-10-14)

Sec. 6.11.050. Hours of work.

(a) The city engineer or his designee may limit or restrict traffic interference on arterials or collectors to non-peak traffic hours. The city engineer or his designee may also limit or restrict traffic interference during other hours if special circumstances exist.

(b) The city engineer or his designee may delay requested encroachments in order to minimize the inconvenience to the public.

(Ord. No. 4400, § 1, 6-28-94; Ord. No. 4440, § 1, 10-25-94; Ord. No. 4669, § 1, 8-27-96; Ord. No. 6344, § 1, 9-10-14)

Sec. 6.11.060. Basis for denial of application or revocation of permit.

(a) The city engineer may deny a permit application if in his judgment the encroachment unreasonably interferes with the City's public right-of-way, easement or fee rights or is detrimental to the health, safety and welfare of the general traveling public. The decision of the city engineer may be appealed to the city council. Appeals shall be by written notice and filed at the city clerk's office within ten days after the notice of denial or revocation. Review by city council is de novo.

(b) Except for correction of potentially hazardous conditions or code violations, which are subject to 6.11.080, occupancy permits are revocable upon 30 days' written notice by the city engineer or as conditioned in the permit. Permittee is responsible for removal of all items and restoration of the rights-of-way.

(Ord. No. 4400, § 1, 6-28-94; Ord. No. 4440, § 1, 10-25-94; Ord. No. 4669, § 1, 8-27-96; Ord. No. 6344, § 1, 9-10-14)

Sec. 6.11.070. Additional permits required.

(a) No person shall excavate, tunnel, or fill in, any sidewalk, curb, gutter, public street, highway, avenue, alley or public right-of-way within the city limits, without first obtaining permit to do so from the city engineer as described in Chapter 12.08, "Street Excavations."

(b) Building permits, sign permits, outdoor dining permits or other permits may also be required in association with a revocable occupancy permit, depending on proposed use.

(Ord. No. 4400, § 1, 6-28-94; Ord. No. 4440, § 1, 10-25-94; Ord. No. 4669, § 1, 8-27-96; Ord. No. 6344, § 1, 9-10-14)

Sec. 6.11.080. Violations.

(a) If an encroachment into the public right-of-way is discovered without an approved encroachment permit, all work shall immediately cease and any encroachments removed if ordered by the city engineer or his designee, until the proper application is filed and such permit is approved. The city engineer, at his discretion, may order all materials and equipment removed from the public right-of-way until the permit is obtained.

(b) If the permittee violates the terms of the encroachment permit, the city engineer or his designee shall notify the permittee and indicate what corrections are necessary. Safety hazards shall be corrected immediately, and other violations shall be corrected within 24 hours. Failure of the permittee to correct such violations during such time period shall be sufficient authorization for the city to remove the permittee from the public right-of-way until all fines are paid and new plan is approved by the city engineer and successfully implemented.

(c) Any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in section 1.04.010; or

(2) Shall be subject to provisions of Chapter 1.05 of the Code.

(Ord. No. 4400, § 1, 6-28-94; Ord. No. 4440, § 1, 10-25-94; Ord. No. 4669, § 1, 8-27-96; Ord. No. 5065, § 1, 11-9-99; Ord. No. 5066, § 1, 11-9-99; Ord. No. 6344, § 1, 9-10-14)
Editor's note—Formerly § 6.11.090.

CHAPTER 6.12. EQUIPMENT*

Sec. 6.12.010. Unlawful to drive improperly equipped vehicle.
Sec. 6.12.020. Brakes.
Sec. 6.12.030. Horns and warning devices.
Sec. 6.12.040. Flag or light at end of load.
Sec. 6.12.050. Horse-drawn vehicles.

Sec. 6.12.010. Unlawful to drive improperly equipped vehicle.

(a) A person shall not drive, move, stop or park any vehicle, or cause or knowingly permit any vehicle to be driven, moved, stopped or parked, on any highway if such vehicle:

(1) Is in such unsafe condition as to endanger any person or property;

(2) Is not equipped with lamps, reflectors, brakes, horn and other warning and signaling devices, windows, windshield, mirrors, safety glass, mufflers, fenders and tires, and other parts and equipment in the position, condition and adjustment required by the laws of this state as to such parts and equipment of a vehicle on the highways of the state at the time, under the conditions and for the purposes provided in such laws.

(b) With respect to any vehicle being driven, moved, stopped or parked on any highway, it is unlawful for any person to do any act forbidden, or fail to perform any act required, by the laws of this state relating to the lamps, brakes, fenders and other parts and equipment, size, weight and load as to such vehicle on the highways.

(c) This section does not prohibit an authorized emergency vehicle from being equipped with and displaying flashing lights which do not indicate a right or left turn.

(d) Any violation under this section may be mitigated if the person so charged produces in court satisfactory written proof that the unsafe condition or the equipment violation has been corrected.

(Code 1966, § 8.60.010)
State law reference—Similar provisions, NRS 484.541.

Sec. 6.12.020. Brakes.

(a) Every motor vehicle, other than a motorcycle, when operated within the city shall be equipped with brakes adequate to control the movement of, and to stop and hold such vehicle, including means which shall be effective to apply the brakes to at least two wheels.

(b) It is unlawful for any person to operate any vehicle within the city which shall not be capable at all times and under all conditions of loading, of being stopped on a dry, smooth, level street free from loose material, upon application of the service brake, of being decelerated at such a sustained rate as is specified by the statutes of the state.

(Code 1966, § 8.60.020)
State law reference—Brakes, NRS 484.593.

Sec. 6.12.030. Horns and warning devices.

(a) It is unlawful for any person to operate any vehicle upon the streets or alleys of the city which is not equipped with a horn in good working order and capable of emitting sound

*__State law reference—__Equipment of vehicles, NRS 484.541 et seq.

audible under normal conditions from a distance of not less than 200 feet; but no horn shall emit an unreasonably loud or harsh sound or a whistle. Every person operating a vehicle shall when reasonably necessary to insure safe operation, give audible warning with his horn and it shall be unlawful to otherwise use such horn.

(b) It is unlawful for any person to use upon a vehicle any siren, whistle, bell or red light except on emergency equipment of the city or other governmental agency or other emergency equipment authorized by the state.

(c) Any authorized emergency vehicle may be equipped with a siren, whistle, or bell capable of emitting sound audible under normal conditions from a distance of not less than 500 feet but it is unlawful to use such siren except when such vehicle is operated in response to an emergency call or in the immediate pursuit of an actual or suspected violator of the law, in which events the driver of such vehicle shall sound the siren when necessary to warn pedestrians and other drivers of the approach thereof.

(Code 1966, § 8.60.030)
State law reference—Similar provisions, NRS 484.607.

Sec. 6.12.040. Flag or light at end of load.

(a) Whenever the load of any vehicle shall extend more than four feet beyond the rear of the bed or body thereof, there shall be displayed at the end of such load in such position as to be clearly visible at all times from the rear of such load a red flag not less than 12 inches both in length and width, except that between one-half hour after sunset and one-half hour before sunrise, there shall be displayed at the end of any such load a yellow or red light plainly visible under normal atmospheric conditions at least 200 feet from the rear of such vehicle.

(b) The driver of every vehicle carrying explosives or flammable liquids shall do so in accordance with chapters 16.08 and 16.16.

(Code 1966, § 8.60.040; Ord. No. 2828, § 1, 4-14-80)
State law reference—Length of vehicles, NRS 484.739.

Sec. 6.12.050. Horse-drawn vehicles.

Only horse-drawn vehicles constructed and equipped as follows may be used by a business licensed under Title 5 of the Reno Municipal Code:

(1) Each vehicle must have its rated seating capacity posted on the vehicle;

(2) Vehicles will have no less than one and one-fourth inch spoked wheels with a rubber covering thick enough to protect the streets from damage and to keep noise to a minimum;

(3) All vehicles will be equipped with brakes, taillights, brake lights and turn signals on the rear of the vehicle that will be visible from a distance of 500 feet;

(4) Vehicles will be equipped with front lights on both sides that will emit light to the front and side visible from a distance of 500 feet;

(5) Each vehicle will be equipped with a slow-moving vehicle sign approved by the State of Nevada and attached to the rear of the vehicle, in accordance with NRS 484.646;

(6) Each vehicle will be equipped with a device to catch horse manure from falling to the pavement.

Any violation of this section constitutes a misdemeanor.

(Ord. No. 4752, § 1, 5-20-97; Ord. No. 4942, § 1, 12-8-98)

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CHAPTER 6.14. TRUCK REGULATIONS

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Sec. 6.14.050. Police officers may weigh vehicles and require removal of excess loads.
Sec. 6.14.060. Penalties for violation of weight limitations.
Sec. 6.14.070. Maximum width and length of vehicles; exception.
Sec. 6.14.080. Issuance of special permits for increased size and weight; conditions; applications therefor.
Sec. 6.14.090. Issuance of special permits for movement of building and other structures; conditions; applications therefor.
Sec. 6.14.100. Revocation of continuous special permit.
Sec. 6.14.110. Carrying and inspection of special permits.
Sec. 6.14.120. Penalties for operation of oversize, overweight vehicles without permits.
Sec. 6.14.130. Loads on vehicles.
Sec. 6.14.140. Regulations concerning loading and securement of loads.
Sec. 6.14.150. Carrying of explosives and flammable liquids.
Sec. 6.14.160. Truck routes.
Sec. 6.14.170. Parking of overweight vehicles in residence district prohibited.

Sec. 6.14.010. Scope.

This chapter shall apply within the corporate limits of the city and each and every public street, highway or alley therein.

(Code 1966, § 8.52.010)

Sec. 6.14.015. Adoption and enforcement of federal and state regulations for motor carrier safety.

The Reno City Council hereby adopts by reference the federal regulations contained in 49 C.F.R. Parts 40, 382, 383, 385, 387, 390-393, inclusive, 395, 396, and 397, 49 C.F.R. § 386.72, and Appendices B and G of 49 C.F.R. Chapter III, Subchapter B relating to motor carrier safety, as those regulations existed on February 28, 2025, and as subsequently revised by the United States Department of Transportation, unless the State of Nevada Director of the Department of Public Safety gives notice pursuant to subsection 4 of Nevada Administrative Code (NAC) 706.742 that a revision is not suitable for the State of Nevada. City of Reno further adopts by reference all applicable State of Nevada amendments to the federal regulations contained in 49 C.F.R. Parts 40, 382, 383, 385, 387, 390-393, inclusive, 395, 396, and 397, 49 C.F.R. § 386.72, and Appendices B and G of 49 C.F.R. Chapter III, Subchapter B relating to motor carrier safety adopted by the State of Nevada Department of Public Safety pursuant to Nevada Revised Statute (NRS) 706.171 and 706.173. The Reno Police Department is hereby authorized to enforce all regulations adopted in this section for motor carriers operating within the City of Reno, and issued citations to violators.

(Ord. No. 6731, § 1, 12-3-25)

Sec. 6.14.020. Weight limitations of vehicles.

Except as otherwise provided in sections 6.14.040, 6.14.080, 6.14.090, and NRS 484.769, no vehicles shall be operated or moved upon any public street, highway or alley within the city, except upon the following conditions:

(a) The maximum weight on any single axle shall not exceed 20,000 pounds.

(b) The maximum weight on any tandem axle shall not exceed 34,000 pounds.

(c) The maximum weight on any tridem axle shall not exceed 42,000 pounds.

(d) The maximum allowable weight for a single vehicle is 80,000 pounds.

(e) The maximum allowable weight for a combination of vehicles is 80,000 pounds.

(f) Every vehicle, whether operated singly or in a combination of vehicles, must comply with the following:

1. The total gross weight with load imposed on the street, highway or alley by any group of two or more consecutive axles or a vehicle or of a combination of vehicles where the distance between the first and last of the two or more consecutive axles is 18 feet or less, shall not exceed that given for the respective distance in the following table:

Distance in Feet Between First and Last Axles of Group	Allowed Load in Pounds on Group of Axles
4	32,000
5	32,000
6	32,200
7	32,900
8	33,600
9	34,300
10	35,000
11	35,700
12	36,400
13	37,100
14	43,200
15	44,000
16	44,800
17	45,600
18	46,400

2. Except as to any street or highway which is part of the National System of Interstate and Defense Highways, as described in subsection (d) of Section 103 of Title 23 U.S.C., the total gross weight with load imposed on the street, highway or alley by any vehicle or combination of vehicles where the distance between the first and last axles is more than 18 feet shall not exceed that given for the respective distances in the following table:

Distance in Feet	Allowed Load in Pounds
18	46,400
19	47,200
20	48,000
21	48,800
22	49,600
23	50,400
24	51,200
25	55,250
26	56,100
27	56,950
28	57,800
29	58,650
30	59,500
31	60,350
32	61,200

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Distance in Feet	Allowed Load in Pounds
33	62,050
34	62,900
35	63,750
36	64,600
37	65,450
38	66,300
39	68,000
40	70,000
41	72,000
42	73,280
43	73,280
44	73,280
45	73,280
46	73,280
47	73,280
48	73,280
49	73,280
50	73,280
51	73,280
52	73,600
53	74,400
54	75,200
55	76,000
56 (or over)	76,800

(Code 1966, § 8.52.020; Ord. No. 6052, § 1, 8-20-08)
State law reference—Maximum weight on axles, NRS 484.745.

Sec. 6.14.030. Measurement of distance between axles.

The distance between axles shall be measured to the nearest even foot. When a fraction is exactly one-half foot, the next larger whole number shall be used.

(Code 1966, § 8.52.030)
State law reference—Similar provisions, NRS 484.751.

Sec. 6.14.040. Traction engines, tractors excepted.

(a) The provisions of section 6.14.020 shall not apply to traction engines or tractors, the propulsive power of which is exerted not through wheels resting upon the ground but by means of a flexible band or chain known as a movable track, when the portions of the movable tracks in contact with the surface of the street, highway or alley present plain surfaces.

(b) No traction engine or tractor having lugs, grousers or other mechanical contrivances on its wheels or tracks designed to give tractive effect shall be operated on any public street,

highway or alley within the city unless a circular metal band of a width of not less than three inches is placed entirely around the periphery of such wheels or tracks, such band to serve as a protection against the tearing up or marring of the surface of the street, highway or alley.

(Code 1966, § 8.52.040)

State law reference—Similar provisions, NRS 484.753.

Sec. 6.14.050. Police officers may weigh vehicles and require removal of excess loads.

(a) Any officer of the police department or state highway patrol having reason to believe that the weight of any load is unlawful is authorized to require the driver to stop and submit to a weighing of the same, either by means of portable or stationary scales, and may require that such vehicles be driven to the nearest public scales within the corporate limits of the city.

(b) Whenever an officer, upon weighing a vehicle and load as provided in subsection (a) of this section, determines that the weight thereof is unlawful, such portion of the load as may be necessary shall be unloaded to reduce the gross weight of such vehicle to those limits permitted under section 6.14.020. All materials so unloaded shall be cared for by the carrier of such material and shall be cared for at the expense of the carrier. The officer may allow the driver of the inspected vehicle to continue on his journey if any overload does not exceed by more than five percent the limitations prescribed by section 6.14.020, but the penalties provided in section 6.14.060 shall be exercised for the overload violation.

(c) Any driver of a vehicle who fails or refuses to stop and submit the vehicle and load to a weighing, or who fails or refuses, when directed by an officer of the police department or state highway patrol upon a weighing of the vehicle, to stop and otherwise comply with the provisions of this chapter, shall be guilty of a misdemeanor.

(Code 1966, § 8.52.050)

State law reference—Similar provisions, NRS 484.755.

Sec. 6.14.060. Penalties for violation of weight limitations.

(a) Except as otherwise provided in subsection (e), a person convicted of a violation of any limitation of weight imposed by NRS 484.739 to 484.755, inclusive, shall be punished by a fine as specified in the following table:

Pounds of Excess Weight	Fine
1 to 1,500	$10.00
1,501 to 2,500	1 cent per pound of excess weight
2,501—5,000	2 cents per pound of excess weight
5,001—7,500	4 cents per pound of excess weight
7,501—10,000	6 cents per pound of excess weight
10,001 and over	8 cents per pound of excess weight

(b) If the resulting fine is not a whole number of dollars, the nearest whole number above the computed amount must be imposed as the fine.

(c) The fines provided in this section are mandatory, must be collected immediately upon a determination of guilt and must not be reduced under any circumstances by the court.

(d) Any bail allowed must not be less than the appropriate fine provided for in this section.

(e) A person convicted of a violation of a limitation of weight imposed by NRS 484.739 to 484.755, inclusive, shall be punished by a fine that is equal to twice the amount of the fine specified in subsection (a) if that violation occurred on or after February but before May 1 on a highway designated by the director of the department of transportation as restricted pursuant to NRS 408.214. This subsection does not create a separate offense but provides an additional penalty for the primary offense, whose imposition is contingent upon the finding of the prescribed fact.

(Code 1966, § 8.52.060; Ord. No. 6052, § 2, 8-20-08)
State law reference—Similar provisions, NRS 484.757.

Sec. 6.14.070. Maximum width and length of vehicles; exception.

(a) As used in this section and in sections 6.14.080 and 6.14.090, "special mobile equipment" means a vehicle, not self-propelled, not designed or used primarily for the transportation of persons or property, and only incidentally operated or moved over a street, highway or alley.

(b) Except as otherwise provided in this section and in sections 6.14.080 and 6.14.090, the legal maximum width of any vehicle, combination of vehicles, special mobile equipment, or load thereon shall not exceed 96 inches.

(c) If a vehicle is equipped with pneumatic tires, the maximum width from the outside of one wheel and tire to the outside of the opposite outer wheel and tire shall not exceed 102 inches, but in such event the outside width of the body of such vehicle or load thereon shall not exceed 96 inches.

(d) Lights or devices which are required to be mounted upon a vehicle under any provisions of this Code or of the state law may extend beyond the permissible width of the vehicle to a distance of not exceeding ten inches on each side of the vehicle, except that the maximum width shall not exceed 120 inches.

(e) Door handles, hinges, cable cinches and chain binders may extend three inches on each side except that the maximum width of body and door handles, hinges, cable cinchers or chain binders shall not exceed 102 inches.

(f) No passenger vehicle shall be operated on any street, highway or alley within the city with any load carried thereon extending beyond the line of the hubcaps of its left side or more than six inches beyond the line of the hubcaps on its right side.

(g) Except as otherwise provided in sections 6.14.080 and 6.14.090, the following vehicles shall not exceed a width of 120 inches:

- **(1)** Any trailer or semitrailer, including lift carriers and tipbed trailers, used exclusively for the transportation of implements of husbandry of farmers or implement dealers;
- **(2)** Special mobile equipment;
- **(3)** Highway construction and maintenance equipment.

This subsection does not apply to any street or highway which is a part of the National System of Interstate and Defense Highways, as described in subsection (d) of Section 103 of Title 23, U.S.C.

(h) No person shall operate any bus, motor truck or combination of vehicles, including any attachments thereto coupled together in excess of seventy (70) feet, upon the streets of the city, except on those routes described in schedule A, copies of which shall be maintained for public inspection in the office of the city clerk, the director of traffic and transportation, and the city engineer and may be amended from time to time by resolution of the city council.

(i) The provisions of this section shall not apply to any specially designed equipment operated by any duly franchised public utility for the purpose of the installation, maintenance or repair of public facilities; provided, however, that the public utility desiring to operate any such specially designed equipment in excess of the maximum widths and lengths set forth in this section shall first register the same with the city engineer or director of traffic and transportation.

(Code 1966, § 8.52.070)
State law references—Length of vehicles, NRS 484.739; width of vehicles, NRS 484.759.

Sec. 6.14.080. Issuance of special permits for increased size and weight; conditions; applications therefor.

(a) The city engineer or director of traffic and transportation may in their discretion, upon application in writing, issue a special permit in writing authorizing the applicant to operate or move a vehicle, combination of vehicles, special self-propelled equipment, special mobile equipment, or load thereon of a size or weight in excess of the legal maximums set forth in this chapter, in the following instances:

(1) Continuous special permits may be issued for the operation or movement of a vehicle or combination of vehicles of a size or weight in excess of the legal maximum when such vehicle or combination of vehicles does not exceed 144 inches in overall width, or when the total gross weight imposed on any single axle or group of two or more consecutive axles does not exceed the legal maximum weight for such vehicle or combination of vehicles by more than 25 percent.

(2) Single-trip special permits may be issued for the operation or movement of vehicles or combinations of vehicles on an overall width in excess of 144 inches or when the total gross weight of such vehicle or combination of vehicles exceeds by more than 25 percent of the legal maximum weight for such vehicle or combination of vehicles; provided, however, that if several movements to and from the same points in the city with the same vehicles or combinations of vehicles may be required, continuous special permits for that specific operation may be issued.

(3) Continuous or single-trip special permits may be issued for the operation or movement of special self-propelled equipment, such as truck cranes, truck shovels, loaders and similar equipment, of a size or weight in excess of the legal maximums set forth in this chapter.

(b) In issuing any of the special permits provided for in this section, the city engineer or director of traffic and transportation may impose such conditions thereon, such as routes to be followed, place of operation or movement, time of operation or movement or other matters, as it shall deem necessary or proper to protect the streets, highways and alleys from damage or to minimize the inconvenience or delays to the general public.

(c) The application for any of the special permits provided for in this section shall:

(1) Specifically describe the vehicles, combinations of vehicles, special self-propelled equipment, and load thereon, and the particular streets, highways or alleys over which the special permit to operate or move the same is requested;

(2) State whether such special permit is requested for a single trip or for continuous operation.

(d) Nothing in this section contained shall be deemed to authorize the issuance of special permits for the movement of buildings or other structures of a size or weight in excess of legal maximums, within, into or through the city. If such a permit is sought, application therefor shall be made in accordance with chapter 14.22.

(Code 1966, § 8.52.080)
State law reference—Similar provisions, NRS 484.759.

Sec. 6.14.090. Issuance of special permits for movement of building and other structures; conditions; applications therefor.

(a) The city council, in their discretion, shall, upon petition, give their consent authorizing the applicant to operate or move a vehicle, combination of vehicles or special mobile equipment for the purpose of transporting a building or other structure of a size or weight in excess of the legal maximum set forth in this chapter, within, into or through the city.

(b) Such permits shall be issued on a single-trip basis only.

(c) Upon issuance of such special permits the city engineer or director of traffic and transportation may impose such conditions thereon, such as routes to be followed, place of operation or movement, time of operation or movement or other matters as they shall deem necessary or proper to protect the streets, highways and alleys from excessive damage or to minimize the dangers, inconveniences or delays to the general public.

(d) The application for special permit provided for in this section shall:

(1) Specifically describe the vehicle, combination of vehicles or special mobile equipment, and load thereon, including the width, length, total gross weight with load imposed and number of axles of the vehicle or equipment and width, length and height of the building or other structure to be moved thereby;

(2) Indicate the particular streets, highways or alleys over which the special permit to operate or move is requested;

(3) State the date and time for which such special permit is requested.

(e) Before the city engineer or director of traffic and transportation approves or designates the route over which the building or structure shall pass, the applicant shall first have obtained from the department of building and safety the permit required and shall have paid to and deposited the license fee and bond required by sections 14.22.030 and 14.22.040.

(Code 1966, § 8.52.090)
State law reference—Similar provisions, NRS 484.762.

Sec. 6.14.100. Revocation of continuous special permit.

If after the issuance of a continuous special permit by the city engineer or director of traffic and transportation pursuant to the provisions of section 6.14.080, such officers determine that the

traffic authorized by such continuous special permit has caused substantial highway distress, then such permit may be revoked summarily, but such revocation shall not operate to prevent a subsequent filing of a new application for another continuous special permit.

(Code 1966, § 8.52.100)

Sec. 6.14.110. Carrying and inspection of special permits.

Every special permit or a photocopy thereof, issued pursuant to sections 6.14.080 and 6.14.090 shall:

(1) Be carried in each vehicle, combination of vehicles, special self-propelled equipment or special mobile equipment to which it refers;

(2) Be open to inspection at all times by any officer of the police department or agent of the city engineer or director of traffic and transportation.

(Code 1966, § 8.52.110)

State law reference—Similar provisions, NRS 484.767.

Sec. 6.14.120. Penalties for operation of oversize, overweight vehicles without permits.

(a) It is unlawful for any person to operate or move any vehicle or equipment designated in section 6.14.070 over any public street, highway or alley within the city without first obtaining a special permit pursuant to the provisions of sections 6.14.080 and 6.14.090, or to violate or evade any of the terms or conditions of such permit when issued, and any person violating any of the provisions of section 6.14.070, shall be guilty of a misdemeanor.

(b) Any person operating or moving any vehicle or equipment designated in section 6.14.070 over any public street, highway or alley within the city under the authority of a continuous special permit issued pursuant to the provisions of section 6.14.080 and who violates any weight limitation in excess of weight authorized by such permit shall be punished, upon conviction, as provided in section 6.14.060.

(Code 1966, § 8.52.120)

State law reference—Similar provisions, NRS 484.769.

Sec. 6.14.130. Loads on vehicles.

(a) No vehicle shall be driven or moved on any public street, highway or alley within the city unless such vehicle is so constructed or loaded as to prevent any of its load from dropping, sifting, leaking or otherwise escaping therefrom, except that sand may be dropped for the purpose of securing traction, or water or other substance may be sprinkled on roadway in cleaning or maintaining such roadway.

(b) No person shall operate on any public street, highway or alley within the city any vehicle with any load unless the load and any covering thereon is securely fastened so as to prevent the covering or load from becoming loose, detached or in any manner a hazard to other users of the highway.

(Code 1966, § 8.52.130)

State law reference—Similar provisions, NRS 484.771.

Sec. 6.14.140. Regulations concerning loading and securement of loads.

The city engineer or director of traffic and transportation may, after reasonable notice and hearing, make and publish reasonable rules and regulations providing for minimum binder requirements to secure loads on vehicles against dangerous displacement and governing the loading and securement of loads for transportation over the public streets, highways or alleys within the city.

(Code 1966, § 8.52.140)

State law reference—Similar provisions, NRS 484.773.

Sec. 6.14.150. Carrying of explosives and flammable liquids.

The driver of every vehicle carrying explosives or flammable liquids shall do so in accordance with Chapters 16.08 and 16.16.

(Code 1966, § 8.52.150)

State law reference—Certain vehicles required to stop at all grade crossings of railroad, NRS 484.353.

Sec. 6.14.160. Truck routes.

(a) Notwithstanding any of the other provisions of this chapter, no commercial motor vehicle and towed units in excess of 10,000 pounds shall be operated or moved upon any public street, highway or alley within the city, except upon truck routes, as set forth in Schedule A truck routes, copies of which shall be maintained for public inspection in the office of the city clerk and the city engineer and may be amended from time to time by resolution of the city council, or upon temporary truck routes hereafter designated by the city engineer pursuant to subsection (a)(3) of this section, unless merchandise, freight or other supplies are to be picked up by or delivered from such vehicle or unless such vehicle is required in the performance of service, repair, construction or similar essential use; provided, however, that in such event such vehicle shall use the shortest possible route from a designated truck route to the point of pickup, delivery or essential use and shall return therefrom to the nearest designated truck route; provided, further that the following additional restrictions shall apply:

(1) No commercial motor vehicle and towed units in excess of 10,000 pounds shall be operated or moved upon any street unless the use of such route is required in the pickup or delivery of merchandise, freight or other supplies or in some essential use at some point not served by a truck route but served by such direct route street.

(2) No commercial motor vehicle and towed units in excess of 10,000 pounds shall be operated or moved upon any street, except truck routes, or in any residence district between the hours of 10:00 p.m. and 6:00 a.m.; provided, however, that the city traffic engineer or designee may, upon application in writing, issue a special permit authorizing the applicant to operate or move such vehicle between the hours of 10:00 p.m. and 6:00 a.m. In issuing such permit, the city traffic engineer or designee may impose conditions thereon, such as routes to be followed, time of operation or movement or other matters deemed necessary or desirable.

(3) Streets, other than truck routes, shall not be used as through routes from one truck route to another unless pickup, delivery or essential use is required enroute.

(b) The city traffic engineer shall have authority to designate additional, temporary truck routes for the purpose of directing and controlling traffic along necessary detours or between designated truck routes and construction projects or other areas where commercial vehicles are required to be employed over extended periods of time. Such temporary routes, when so designated, shall be posted with appropriate signs as temporary truck routes, and the use of such routes shall be subject to the same conditions as set forth in this section for permanent truck routes.

(c) The provisions of this section shall not apply to any specially designated equipment operated by a duly franchised public utility or governmental agency when such equipment is required in providing an essential public service.

(d) The truck routes provided for in this section shall be posted with adequate signs indicating that such routes are truck routes.

(Code 1966, § 8.52.160; Ord. No. 5030, § 1, 8-17-99; Ord. No. 6052, § 3, 8-20-08)

Sec. 6.14.170. Parking of overweight vehicles in residence district prohibited.

(a) It is unlawful for the driver or owner of a commercial motor vehicle, as defined in RMC 6.04.110, rated by the manufacturer's nominal rating in excess of 10,000 unladen pounds, to park such commercial motor vehicle, whether attended or unattended, except for the purpose of loading or unloading passengers, materials or merchandise or for any purpose incident to any lawful construction project located within the immediate vicinity of such parked vehicle, upon streets or alleys within the city.

(b) It is unlawful for the driver or owner of a commercial motor vehicle as defined in RMC 6.04.110, rated by the manufacturer's nominal rating in excess of 10,000 unladen pounds, to park such commercial motor vehicle, whether attended or unattended, except for the purpose of loading or unloading passengers, materials or merchandise, or for any purpose incident to any lawful construction project located within the immediate vicinity of such parked vehicle upon any street located within any area zoned residential under Title 18 of the Reno Municipal Code.

(Code 1966, § 8.52.170; Ord. No. 6052, § 4, 8-20-08)

CHAPTER 6.15. PERMITS FOR CHARTER BUSES

Sec. 6.15.010. Defined.
Sec. 6.15.020. Required for stands.
Sec. 6.15.030. Application referred to city manager for recommendation.
Sec. 6.15.040. Determination by city council.
Sec. 6.15.050. Fees.
Sec. 6.15.060. Revocation.

Sec. 6.15.010. Defined.

The words "charter bus," when used in this chapter, means a motor vehicle owned by one party which is leased, rented, hired, loaned, used to or by another party by agreement or contract for use in transporting passengers.

(Ord. No. 4538, § 1, 7-25-95)

Sec. 6.15.020. Required for stands.

A permit must first be obtained by the party leasing, renting, hiring, borrowing or using the charter bus, from the city in order to use the charter bus stand or charter bus parking stand.

(Ord. No. 4538, § 1, 7-25-95)

Sec. 6.15.030. Application referred to city manager for recommendation.

All applications shall be referred to the city manager for his recommendation.

(Ord. No. 4538, § 1, 7-25-95)

Sec. 6.15.040. Determination by city council.

Jurisdiction to designate areas on any street, alley or other public place in the city as charter bus stands or charter bus parking spaces, and jurisdiction to issue permits for a charter bus stand or charter bus parking space, shall be vested in the city council.

(Ord. No. 4538, § 1, 7-25-95)

Sec. 6.15.050. Fees.

The holder of each permit for a charter bus stand or charter bus parking space upon any street, alley or other public place in the city, is required to pay in advance a fee of:

(1) Five hundred dollars per year for each charter bus place, space or stand allotted to him by the permit when it is determined that the charter bus parking place, space or stand encompasses more than the area equal to one parking meter space as defined elsewhere in this Code; and

(2) If the space exceeds two parking meter spaces the fee shall be $250.00 for each additional parking meter space utilized.

(3) When it is determined that the charter bus parking place, space or stand encompasses an area equal to one parking meter space, the fee for such permit shall be $250.00 per year.

(4) When it is determined that the charter bus parking place, space or stand is shared concurrently with a permittee of a taxicab parking place, space or stand, the taxicab parking permittee and the charter bus parking permittee shall share the cost of the fee equally.

(Ord. No. 4538, § 1, 7-25-95)

Sec. 6.15.060. Revocation.

All permits shall be revocable at the pleasure of the city council.

(Ord. No. 4538, § 1, 7-25-95)

CHAPTER 6.16. OPERATION OF AIRCRAFT*

Sec. 6.16.010. Definitions.
Sec. 6.16.020. Federal and state rules in effect.
Sec. 6.16.030. Take-off and landing places.
Sec. 6.16.040. Reserved.
Sec. 6.16.050. Unnecessary loud noises.
Sec. 6.16.060. Sound amplification from aircraft.
Sec. 6.16.070. Reckless operation.
Sec. 6.16.080. Acrobatics.
Sec. 6.16.090. Dropping of articles.
Sec. 6.16.100. Parachuting.
Sec. 6.16.110. Operation of heliports and flight of helicopters within the city.

Sec. 6.16.010. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

Aerial acrobatics means any manipulation of the controls of an aircraft which tends, or may tend, to divert the aircraft from a normal flight in a horizontal plane parallel to the surface of the earth, save and excepting only such manipulation of the controls as may be necessary to cause the aircraft to ascend or descend from one altitude to another, by means of a gradual ascent or descent with every consideration for stability and safety.

Aircraft means any contrivance now known or hereafter invented, used or designated for navigation or for flight in the air. The word "aircraft" includes helicopters and lighter-than-air dirigibles and balloons.

Fly and flight includes every kind of locomotion by any aircraft.

Heliport shall be interpreted so as to include the meanings of both helipad and helistop.

Sound amplifying equipment means any machine or device for the amplification of music, the human voice, or any other noise or sound. "Sound amplifying equipment" shall not be construed as including warning devices on authorized emergency aircraft or any horns, or other warning devices used only for traffic safety purposes.

(Code 1966, § 9.08.010; Ord. No. 2749 § 1, 6-25-79)
Cross reference—Definitions generally, § 1.01.020.

Sec. 6.16.020. Federal and state rules in effect.

The rules and regulations promulgated by the civil aeronautics administration of the government of the United States and the laws of the state of Nevada are hereby declared to be in effect for all purposes and shall be followed by all aircraft operating in or over the city limits. The city council hereby declares that if any provision recited herein is more stringent than federal or state regulations the provisions of this chapter shall apply.

(Code 1966, § 9.08.050; Ord. No. 2749, § 1, 6-25-79)

***State law reference—**Uniform State Law for Aeronautics, NRS 493.010 et seq.

Sec. 6.16.030. Take-off and landing places.

It is unlawful for any person to begin or terminate any flight at any place within the city limits except at the Reno International Airport, or at a place approved by the city council.

(Code 1966, § 9.08.020; Ord. No. 2749, § 1, 6-25-79)

Sec. 6.16.040. Reserved.

Editor's note—Ord. No. 6715, § 1, adopted August 13, 2025, which pertained to altitude and derived from Code 1966, § 9.08.020; Ord. No. 2749, § 1, adopted June 25, 1979.

Sec. 6.16.050. Unnecessary loud noises.

It is unlawful for any person to cause or allow unnecessary loud noises to be emitted from an aircraft engine while in flight or from the propeller thereof, which may create a disturbance or nuisance while in flight over the city.

(Code 1966, § 9.08.020; Ord. No. 2749, § 1, 6-25-79)

Sec. 6.16.060. Sound amplification from aircraft.

It is unlawful for any person to operate, or cause to be operated, any aircraft for any purpose in or over the city with sound amplifying equipment in operation without first having secured the permission of the city council.

(Code 1966, § 9.08.040; Ord. No. 2749, § 1, 6-25-79)

Sec. 6.16.070. Reckless operation.

It is unlawful for any person to operate any aircraft over the city limits in a careless and reckless manner so as to endanger the life or property of others.

(Code 1966, § 9.08.030; Ord. No. 2749, § 1, 6-25-79)

Sec. 6.16.080. Acrobatics.

It is unlawful for any person to engage in aerial acrobatics over any part or section within the city limits.

(Code 1966, § 9.08.020; Ord. No. 2749, § 1, 6-25-79)

Sec. 6.16.090. Dropping of articles.

It is unlawful for any person to cause to be dropped or permit to be dropped from such aircraft or anything attached thereto, any articles or objects, unless special waiver has been issued by the civil aeronautics administration and permission has also been obtained from the city council.

(Code 1966, § 9.08.020; Ord. No. 2749, § 1, 6-25-79)

Sec. 6.16.100. Parachuting.

It is unlawful for any person to parachute from an aircraft within the city limits without first obtaining permission from the city council.

(Code 1966, § 9.08.020; Ord. No. 2749, § 1, 6-25-79)

Sec. 6.16.110. Operation of heliports and flight of helicopters within the city.

(a) Helicopters shall be allowed to take off or land on the heliport authorized by the city council and the civil aeronautics administration on the roof of the Riverside Garage building or at any other heliport hereafter authorized by the city council and the civil aeronautics administration.

(b) Helicopters shall use the Truckee River channel only in leaving or approaching the heliport located on the roof of the Riverside Garage building so as not to fly at low altitudes over congested areas of the city and in the event other heliports are established within the city the approach lanes to the heliports shall be established and authorized only by the city council and the civil aeronautics administration.

(c) The operators of the heliport established on the roof of the Riverside Garage or operators of other heliports hereafter authorized shall comply with all safety regulations now in effect or hereafter prescribed by the civil aeronautics administration, safety regulation division, and all regulations prescribed by the chief of the fire department of the city and the National Board of Fire Underwriters, and they shall maintain a metal fence not less than three feet in height and 75 feet in diameter around the helicopter landing platform so as to protect those persons using helicopter transportation.

(d) All aircraft owners and operators shall be required to obtain and maintain in force and effect liability insurance in the minimum amount of $1,000,000.00 covering injury to any one person and $5,000,000.00 covering injury to more than one person and in the amount of $2,000,000.00 covering property damage arising out of any one occurrence. Evidence of such insurance shall be furnished to the city clerk.

(Code 1966, § 9.08.060; Ord. No. 2749, § 1, 6-25-79)

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CHAPTER 6.17. GOLF CARTS

Sec. 6.17.010. Enabling clause.
Sec. 6.17.020. Definitions.
Sec. 6.17.030. Operation of golf carts; where allowed.
Sec. 6.17.040. Golf cart equipment.
Sec. 6.17.050. Operation of golf carts; unlawful.

Sec. 6.17.010. Enabling clause.

Nevada Revised Statutes 482.210.1(e)(1) and 482.398(3) provide that golf carts are exempt from registration by the department of motor vehicles and do not need a permit to operate on city streets or city right-of-way when the city designates the city street or city right-of-way as appropriate for the operation of golf carts, if the golf cart is equipped with an emblem or placard for slow moving vehicles; and operated solely upon that portion of highway designated by the city.

(Ord. No. 6243, § 1, 7-11-12)

Sec. 6.17.020. Definitions.

For the purposes of this chapter, the term "golf cart" means a motor vehicle which:

(1) Has no fewer than three wheels in contact with the ground; and

(2) Is designed to carry golf equipment and no more than four persons, including the driver.

(Ord. No. 6243, § 1, 7-11-12)

Sec. 6.17.030. Operation of golf carts; where allowed.

Those streets, parts of streets, or areas as approved by resolution of the city council, a copy which is to be maintained for public inspection in the office of the city clerk and the traffic engineer, are declared to be public street segments where operation of a golf cart during daylight by a person holding a current driver's license is allowed in accordance with the Nevada Revised Statues 482.210.1(e) and 482.398(3).

(Ord. No. 6243, § 1, 7-11-12)

Sec. 6.17.040. Golf cart equipment.

A golf cart must have the following equipment when operated under the provisions of section 6.17.030:

(a) Headlamps;

(b) Tail lamps, reflectors, stop lamps and an emblem or placard for slow moving vehicles;

(c) A mirror; and

(d) Brakes.

Each of these items of equipment must meet the standards prescribed for motor vehicles generally.

(Ord. No. 6243, § 1, 7-11-12)

Sec. 6.17.050. Operation of golf carts; unlawful.

Except in locations designated by resolution of the city council by a person holding a current driver's license, and except where crossing a public street at a marked and signed crossing authorized by the traffic engineer during daylight, it shall be unlawful to operate a golf cart on any city street or right-of-way.

(Ord. No. 6243, § 1, 7-11-12)

CHAPTER 6.18. BICYCLES*

Art. I. In General

Sec. 6.18.010. Definitions.
Sec. 6.18.020. Scope.
Sec. 6.18.030. Responsibility of parent.
Sec. 6.18.040. Requirements imposed on rental agencies.
Sec. 6.18.050. Applicability of traffic laws.
Sec. 6.18.055. Applicability of bicycle laws to electric scooters.
Sec. 6.18.060. Obedience to traffic laws.
Sec. 6.18.070. Method of riding; number of riders.
Sec. 6.18.080. Riding on roadways and bicycle paths.
Sec. 6.18.090. Speed.
Sec. 6.18.100. Emerging from alley, driveway, bicycle path, etc.; entering bicycle lane or roadway.
Sec. 6.18.110. Riding on sidewalks, playgrounds, etc.
Sec. 6.18.120. Careless operation of a bicycle.
Sec. 6.18.130. Parking.
Sec. 6.18.140. Lamps.
Sec. 6.18.150. Brakes.
Sec. 6.18.160. Direction of travel.
Sec. 6.18.170. Walking bicycles.
Sec. 6.18.180. Driving vehicles upon or across paths or lanes.
Sec. 6.18.185. Unlawful operation of a pedicab business.

Art. II. License

Sec. 6.18.190. Required.
Sec. 6.18.200. Application; service charge.
Sec. 6.18.210. Inspection prerequisite to issuance.
Sec. 6.18.220. Removal, transfer.
Sec. 6.18.230. Expiration, transfer.
Sec. 6.18.240. Record keeping.

ARTICLE I. IN GENERAL

Sec. 6.18.010. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

Bicycle means a device propelled by human power upon which a person may ride, having two tandem wheels either of which is over 14 inches in diameter, or every such device generally recognized as a bicycle though equipped with two front or two rear wheels.

Bicycle lane means that portion of a roadway set aside for the use of bicycles and so designated by the city traffic engineer.

***State law reference—**Operation of bicycles and play vehicles, NRS 484.501 et seq.

Bicycle path means a course, path or route constructed for the use of bicycles and maintained by public authority.

Highway means the entire width between the boundary lines of every way, highway, roadway, street or alley maintained by a public authority when any part of such way is open for use of the public for purposes of vehicular traffic.

(Code 1966, § 8.64.010)
Cross reference—Definitions generally, § 1.01.020.

Sec. 6.18.020. Scope.

(a) The provisions applicable to bicycles in this chapter shall apply whenever a bicycle is operated upon any highway, upon any street, upon any roadway, upon any sidewalk (unless otherwise provided in this chapter), upon any bicycle lane or any bicycle path, subject to those exceptions stated herein.

(b) Except as otherwise provided in this section, a peace officer, a fireman, an emergency medical technician certified pursuant to chapter 450B of NRS, or an employee of a pedestrian mall, hotel/casino or private security company, who operates a bicycle while he is on duty in uniform, is not required to comply with any provisions of the Reno Municipal Code relating to the operation of a bicycle while on duty in uniform if he:

(1) Is responding to an emergency call or the peace officer is in pursuit of a suspected violator of the law; or

(2) Determines that noncompliance with any such provision is necessary to carry out his duties.

(c) The provisions of subsection (b) do not:

(1) Relieve a peace officer, fireman, emergency medical technician or employees of pedestrian malls, hotel/casino security or private security companies from the duty to operate a bicycle with due regard for the safety of others.

(2) Protect such a person from the consequences of his disregard for the safety of others.

(d) As used in this section, "pedestrian mall" means an area including portions of one or more streets or alleys that has been set aside for use primarily by pedestrians and to which access by motor vehicles is prohibited or restricted. The term includes all improvements and appurtenances thereto that are designed to be used primarily for the movement, safety, convenience, enjoyment, entertainment, recreation or relaxation of pedestrians.

(Code 1966, § 8.64.030; Ord. No. 4656, § 1, 7-9-96; Ord. No. 4810, § 1, 10-28-97)

Sec. 6.18.030. Responsibility of parent.

The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this chapter.

(Code 1966, § 8.64.020)
State law reference—Similar provisions, NRS 484.501.

Sec. 6.18.040. Requirements imposed on rental agencies.

A rental agency shall not rent or offer any bicycle for rent unless a bicycle is licensed and a license insignia is attached thereto as provided in this chapter and such bicycle complies with the equipment provisions contained in this chapter.

(Code 1966, § 8.64.050)

Sec. 6.18.050. Applicability of traffic laws.

Every person riding a bicycle within the city limits shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by the laws of this city and this state, except as to those provisions of law or ordinances which by their nature can have no application, and except as otherwise provided in this chapter.

(Code 1966, § 8.64.100)
State law reference—Similar provisions, NRS 484.503.

Sec. 6.18.055. Applicability of bicycle laws to electric scooters.

All electric scooters as defined in Nevada Revised Statutes shall be granted all of the rights and shall be subject to all of the duties applicable to bicycles provided in this chapter unless otherwise stated by law or permit.

(Ord. No. 6534, § 1, 12-4-19)

Sec. 6.18.060. Obedience to traffic laws.

It is unlawful for any person operating a bicycle to not obey the instructions of official traffic-control signs, and other control devices applicable to vehicles or bicycles, unless otherwise directed by a police officer.

(Code 1966, § 8.64.110)

Sec. 6.18.070. Method of riding; number of riders.

(a) A person propelling a bicycle shall not ride other than astride a permanent and regular seat attached thereto.

(b) No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped.

(Code 1966, § 8.64.120)
State law reference—Similar provisions, NRS 484.505.

Sec. 6.18.080. Riding on roadways and bicycle paths.

(a) Every person operating a bicycle upon a highway shall ride as near to the right-hand side of the highway as practicable, exercising due care when passing a standing vehicle or one proceeding in the same direction.

(b) Persons riding bicycles upon a highway shall not ride more than two abreast, except on paths or parts of roadways set aside for the exclusive use of bicycles.

(c) Whenever a usable path for bicycles has been provided adjacent to a highway, bicycle riders shall use such path and shall not use the highway.

(Code 1966, § 8.64.130)
State law reference—Similar provisions, NRS 484.509.

Sec. 6.18.090. Speed.

(a) No person shall operate a bicycle at a speed greater than is reasonable and prudent under the conditions then existing.

(b) No person shall operate a bicycle at a speed greater than that posted by a public authority for the particular highway or path.

(Code 1966, § 8.64.140)

Sec. 6.18.100. Emerging from alley, driveway, bicycle path, etc.; entering bicycle lane or roadway.

The operator of a bicycle emerging from an alley, driveway, bicycle path, building or otherwise approaching upon a sidewalk or a sidewalk area extending along any such area shall yield the right-of-way to all pedestrians approaching on such sidewalk or sidewalk area, and upon entering a bicycle lane, shall yield the right-of-way to all bicycles approaching on such lane, and upon entering the highway shall yield the right-of-way to all vehicles or bicycles approaching on such highway.

(Code 1966, § 8.64.150)

Sec. 6.18.110. Riding on sidewalks, playgrounds, etc.

(a) It is unlawful for any person to operate a bicycle upon any sidewalk within the central business district or any prohibited-signed roadway.

(b) Any person riding a bicycle on a sidewalk shall yield the right-of-way to pedestrians and give an audible signal before overtaking and passing pedestrians.

(Code 1966, § 8.64.160)

Sec. 6.18.120. Careless operation of a bicycle.

It is unlawful for any person to operate a bicycle of any kind or character in a careless manner in the city or in other than a careful or prudent manner, or in a manner such as to endanger the life, limb or property of any person.

(Code 1966, § 8.64.170)

Sec. 6.18.130. Parking.

No person shall park a bicycle upon a street or highway other than against a curb, or in a rack to support the bicycle, or against a building or at a curb. No person shall park a bicycle, on a sidewalk in such a manner so as to obstruct pedestrian traffic or otherwise create a hazardous situation.

(Code 1966, § 8.64.180)

Sec. 6.18.140. Lamps.

Every bicycle when in use at nighttime shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least 500 feet to the front and with a red reflector on the rear of any type approved by the state department of motor vehicles, which can be

visible from all distances from 50 feet to 300 feet to the rear when directly in front of lawful upper beams of headlamp on a motor vehicle. A lamp emitting a red light visible from a distance of 500 feet to the rear may be used in addition to the red reflector.

(Code 1966, § 8.64.190)
State law reference—Similar provisions, NRS 484.513.

Sec. 6.18.150. Brakes.

Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheel skid on dry, level, clean pavement.

(Code 1966, § 8.64.200)
State law reference—Similar provisions, NRS 484.513.

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Sec. 6.18.160. Direction of travel.

No person shall ride or operate a bicycle within a bicycle lane in any direction except that permitted of vehicular traffic traveling on the same side of the highway; provided, that bicycles may proceed either way along a lane where arrows appear on the surface of the lane designating two-way traffic.

(Code 1966, § 8.64.210)

Sec. 6.18.170. Walking bicycles.

Bicycles may be walked subject to all provisions of law applicable to pedestrians.

(Code 1966, § 8.64.220)

Sec. 6.18.180. Driving vehicles upon or across paths or lanes.

(1) The driver of a motor vehicle shall yield the right-of-way to any person riding a bicycle on the pathway or lane. The driver of a motor vehicle shall not enter, stop, stand, park or drive within a pathway or lane provided for bicycles except:

- **(a)** When entering or exiting an alley or driveway;
- **(b)** When operating or parking a disabled vehicle;
- **(c)** To avoid conflict with other traffic;
- **(d)** In the performance of official duties;
- **(e)** In compliance with the directions of a police officer; or
- **(f)** In an emergency.

(2) Except as otherwise provided in subsection (1), the driver of a motor vehicle shall not enter or proceed through an intersection while driving within a pathway or lane provided for bicycles.

(Code 1964, § 8.64.230; Ord. No. 5379, § 1, 10-22-02)

Sec. 6.18.185. Unlawful operation of a pedicab business.

It is unlawful and a misdemeanor for any person to operate a pedicab business within the corporate limits of the city in violation of any provision of chapter 5.17. Nothing herein, however, shall be construed to prevent the city from recovering the amount of any license fee required by any provision of the Reno Municipal Code in a civil action brought for such purpose.

(Ord. No. 6299, § 1, 6-19-13)

Editor's note—Ord. No. 6299, § 1, adopted June 19, 2013, enacted provisions intended for use as section 6.18.190. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as section 6.18.185.

ARTICLE II. LICENSE

Sec. 6.18.190. Purpose; required.

(a) Licensing of bicycles makes it easier for bicycles that have been lost or stolen to be returned to their owners.

(b) A purchaser of a new or used bicycle may pay for and obtain a bicycle license at the time of purchase. Owners of bicycles purchased before the date of enactment of this section may obtain a license for the bicycle at one of the participating retail bicycle outlets by doing one of the following:

(1) Present an original purchase receipt,

(2) Present evidence of warranty registration,

(3) Present a notarized affidavit of ownership,

presenting a valid picture identification or be accompanied by a legal guardian or school official and paying the required service charge.

(Code 1966, § 8.64.070; Ord. No. 4311, § 1, 4-27-93)

Sec. 6.18.200. Application; service charge.

(a) Application for a bicycle license shall be made to the chief of police or his designated representative. A service charge of $5.00 shall be paid before each license is issued. The funds collected for each bicycle license shall be apportioned as follows:

(1) One dollar shall be retained by the retailer to cover the time and cost of record keeping.

(2) One dollar shall be paid to the City of Reno to cover the cost of maintaining the list of registered owners.

(3) Three dollars shall be deposited into a special account, with the funds to be used exclusively for bicycle route and land improvements, public education about bicycles and other bicycle-related purposes.

(b) At least every two weeks, on the tenth and the twenty-fifth of the month, the retailer shall submit a copy of the list of licensees to the Reno Police Department. The department will use this listing to identify stolen bicycles to the owners. Four dollars for every license issued shall be delivered to the City of Reno on the tenth of every month.

(c) The chief of police may, from time to time, authorize free bicycle registration for students enrolled in Reno schools up to and including the eighth grade.

(Code 1966, § 8.64.060; Ord. No. 4311, § 1, 4-27-93)

Sec. 6.18.210. Inspection prerequisite to issuance.

The chief of police or his representative shall inspect, or cause such inspection, of each bicycle before licensing. The chief of police shall not license any bicycle which violates any provision of this chapter. An owner who wishes to license a previously owned bicycle shall verify to the chief of police or his representative that the bicycle is equipped with functioning brakes, as described in section 6.18.150.

(Code 1966, § 8.64.090; Ord. No. 4311, § 1, 4-27-93)

Sec. 6.18.220. Removal, transfer.

It is unlawful for any person other than the owner to remove a license insignia from a bicycle.

(Code 1966, § 8.64.070; Ord. No. 4311, § 1, 4-27-93)

Sec. 6.18.230. Expiration, transfer.

The bicycle license shall not expire unless ownership of the bicycle is changed, transferred, or if the registration sticker is destroyed. If the license has expired, the owner or the purchaser may contact the police department, or its representative, provide proof of ownership and pay the $5.00 service charge.

(Code 1966, § 8.64.060; Ord. No. 4311, § 1, 4-27-93)

Sec. 6.18.240. Record keeping.

Records shall be maintained of the number of each bicycle license, the date issued, the name, address and telephone number of the person to whom issued, the serial number, style of bicycle, wheel size, number of speeds, color, and manufacturer of the bicycle for which issued, the name of the issuing retailer and a record of all bicycle license service charges collected. The retailer shall establish the original record at the point of sale, and transfer it to the police department twice a month, as described in section 6.18.200(b).

(Code 1966, § 8.64.080; Ord. No. 4311, § 1, 4-27-93)

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CHAPTER 6.20. PENALTIES AND PROCEDURE ON ARREST*

Sec. 6.20.010. Forms and records of traffic citations and arrests.
Sec. 6.20.020. Procedure upon arrest.
Sec. 6.20.030. Failure to obey notice.
Sec. 6.20.040. Notice on illegally parked vehicle.
Sec. 6.20.050. Failure to comply with notice attached to parked vehicle.
Sec. 6.20.060. When warrant to be issued.
Sec. 6.20.070. Illegally parked or unattended vehicles.
Sec. 6.20.080. Presumption in reference to violations.
Sec. 6.20.090. Reports on convictions to be sent to state department of motor vehicles.

Sec. 6.20.010. Forms and records of traffic citations and arrests.

(a) The chief of police shall provide books to include traffic citation forms for notifying alleged violators to appear and answer the charges of violating traffic laws and ordinances in the municipal court.

(b) The chief of police shall be responsible for the issuance of such books to individual members of the police department. The chief of police shall require a written receipt for every book so issued and shall maintain a record of every such book and each set of citations contained therein.

(Code 1966, § 8.72.010)

State law reference—Similar provisions, NRS 484.811.

Sec. 6.20.020. Procedure upon arrest.

Any police officer may take a person arrested for a violation of any of the traffic laws before a magistrate for the fixing of bail or may, in lieu thereof, upon making an arrest for the violations of the traffic laws or ordinances of the city, take the name, address, and operator's license number of the alleged violator and the registration number of the vehicle involved and issue to him in writing on a form provided by the chief of police a notice to answer to the charge against him at a place and time to be specified in the notice in which event the police officer, upon receiving the written representation of the alleged violator to answer as specified in such notice, shall release such person from custody.

(Code 1966, § 8.72.020)

Sec. 6.20.030. Failure to obey notice.

No person shall fail to appear before the municipal court of the city after having represented in writing to a police officer of the city that he will so appear to answer to a charge of having violated any provisions of this title.

(Code 1966, § 8.72.030)

Sec. 6.20.040. Notice on illegally parked vehicle.

Whenever any motor vehicle without a driver is found parked or stopped in violation of any of the restrictions imposed by this title or other provisions of this Code, the police officer finding

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***State law reference—**Procedure upon arrest, NRS 484.791 et seq.

such vehicle shall take its registration number and may take other information displayed on the vehicle which may identify its user, and shall conspicuously affix to such vehicle a notice in writing, on a form provided by the chief of police, for the driver to answer to the charge against him at a place and during the hours specified in the notice.

(Code 1966, § 8.72.040)

Sec. 6.20.050. Failure to comply with notice attached to parked vehicle.

If a violator of the restrictions on stopping, standing or parking vehicles imposed by this title does not appear in response to a notice affixed to such vehicle at the place and during the hours specified in the notice within 20 days from the date of the affixing of such notice, he shall be guilty of violating the provisions of this title regardless of the disposition of the charge for which the notice was affixed. In imposing sentence, the court may exercise its discretion and reduce or increase the fine or penalty as the circumstances of the case may warrant. If bail is not posted or an appearance made and plea entered within the time prescribed, a bench warrant of arrest may issue.

(Code 1966, § 8.72.050; Ord. No. 2774, § 1, 10-8-79; Ord. No. 2908, § 1, 10-27-80)

Sec. 6.20.060. When warrant to be issued.

(a) If any person fails to comply with a traffic citation given to such person or attached to a vehicle, or fails to make appearance pursuant to a summons directing an appearance in the municipal court of this city, or if any person fails or refuses to deposit bail as required and within the time permitted by ordinance, the clerk of the court may secure and issue a warrant for his arrest.

(b) If any person fails to comply with a traffic citation given to such person or attached to a vehicle or fails to make appearance pursuant to a summons directing an appearance in the municipal court, or if any person fails or refuses to deposit bail as required and within the time permitted by ordinance, the clerk of the court may issue an order for impounding of vehicle registered to driver listed on citation, or registration plate number thereon displayed on vehicle listed on parking ticket, and the vehicle to remain impounded until any or all of the above conditions are complied with.

(Code 1966, § 8.72.060; Ord. No. 6497, § 1, 1-23-19)

Sec. 6.20.070. Illegally parked or unattended vehicles.

Any vehicle of any kind or description whatever found parked at a place or in a manner prohibited or declared to be unlawful by this title or in violation of the restrictions on stopping, standing or parking, imposed by this title or sections of this Code, or any vehicle of any kind or description whatever found to be unattended for a period of 48 hours on any street, highway, alley or municipally owned parking lot within the city may be impounded by any police officer and shall only be surrendered to the duly identified owner or to the duly authorized agent of such owner upon the payment of towing and storage charges. Any vehicle reported as unattended shall be posted with a notice requiring the owner to move the vehicle within 48 hours. In the event of failure to move such vehicle within 48 hours after posting such notice, it may be impounded by the police department as prescribed herein.

(Code 1966, § 8.72.070; Ord. No. 6050, § 1, 8-20-08)

Sec. 6.20.080. Presumption in reference to violations.

In any proceedings for the violation of any of the provisions of this title or of any of the restrictions imposed by this title, the registration plate or number thereon displayed on the vehicle involved shall be received as prima facie evidence that the registered owner of such vehicle was then operating the same. If, at any hearing or proceedings, the registered owner of the vehicle shall testify, under oath, that he was not operating the vehicle at the time of the alleged violation of this title and shall submit himself to an examination as to who, at that time, was operating such vehicle and reveal the name of the person, or show that the vehicle was stolen, then the prima facie evidence arising from the registration plate or number thereon shall be overcome and the burden of proof shifted.

(Code 1966, § 8.72.080)

Charter reference—Registration plates as evidence of a traffic violation, § 4.050.

Sec. 6.20.090. Reports on convictions to be sent to state department of motor vehicles.

(a) The chief of police shall cause to be kept a full report of every case in which a person is charged with violations of any provisions of this title, and if such person is convicted or that his bail is forfeited, an abstract of such report shall be sent forthwith by the municipal judge to the state department of motor vehicles.

(b) Abstracts required by this section shall be made upon forms prepared by and shall contain such detail as may be requested by the state department of motor vehicles.

(Code 1966, § 8.72.090)

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CHAPTER 6.30. PARKING VIOLATIONS/CIVIL INFRACTIONS*

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Sec. 6.30.320. Unlawful parking with locked doors.
Sec. 6.30.330. Parking for certain purposes.
Sec. 6.30.340. Emergency parking signs.

***Editor's note—**Ord. No. 4054, § 1, adopted February 12, 1991, has been treated as superseding the provisions of Ord. No. 3995, § 1, adopted September 11, 1990, from which Ch. 6.30 derived. Ord. No. 4082, § 1, adopted March 26, 1991, extended the effective date of Ord. No. 4054 to June 3, 1991, for implementation of the decriminalization of parking tickets program.

State law reference—Local authority to regulate parking, NRS 484.441.

Sec. 6.30.350. Preferential parking rights.
Sec. 6.30.360. Service and business parking.
Sec. 6.30.370. Lights on parked vehicles.
Sec. 6.30.380. Parking on one-way streets.
Sec. 6.30.390. Special parking restriction.
Sec. 6.30.400. Handicapped parking.
Sec. 6.30.410. Authority of police officer to move vehicle.
Sec. 6.30.420. Registration of vehicles.
Sec. 6.30.430. Display of license plates.
Sec. 6.30.440. Parking on sidewalks or public parks prohibited.
Sec. 6.30.450. Parking in residential permit parking district.
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Sec. 6.30.590. Automobile immobilizers—Authorized placement.
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Sec. 6.30.610. Previously issued citations.
Sec. 6.30.620. Schedule of civil fines.

Sec. 6.30.010. Violation—Infraction.

It is a civil infraction, for which both the registered owner and the operator of a vehicle are liable, for such vehicle to be parked or found in violation of any of the parking (non-moving traffic) laws which are set forth in this chapter.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.020. Same—Notice of infraction.

Whenever any vehicle is found in violation of the parking (non-moving traffic) laws which are set forth in this chapter, a notice of infraction must be issued.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.030. Notice of infraction—Form.

The notice of infraction must be on the form which is prescribed by the public works department and must contain the following information:

(1) The state and license number and make of the vehicle which is parked in violation of the provisions of this Code;

(2) The location at which the violation occurred;

(3) The date and time of the violation;

(4) The number of the parking meter which is adjacent to the vehicle, or the parking space number, if the vehicle is violating a parking regulation respecting the use of parking meters, as provided for in Chapter 6.08 of this Code;

(5) The signature of the person who issues the notice of infraction;

(6) The section of this Code which allegedly is being violated;

(7) Information which advises of the manner in which, and the time within which, the notice of infraction should be answered;

(8) A warning that repeated violations may result in the impounding or immobilizing of vehicle;

(9) Any other reasonable information which is prescribed by the City of Reno.

(b) Vehicles without a license plate shall be identified by the vehicle identification number (VIN) and the make of the vehicle. Vehicles without a license plate or visible VIN shall be identified by make, model, color, style, and any other information that will facilitate identifying the vehicle in the future. Vehicles without a license plate or VIN shall not be exempt from the requirements of the Reno Municipal Code.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.040. Same—Issuance.

The notice of infraction may be issued by any peace officer, parking enforcement officer, or by any person who is authorized by the city manager or the Reno Police Department.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.050. Same—Filing.

The original notice of infraction, or a facsimile thereof, must be filed with the Reno City Clerk and retained by the Reno City Clerk and is deemed to be a public record of matters which are observed pursuant to a duty which is imposed by law and is prima facie evidence of the facts which are alleged therein. A duplicate of the notice of infraction must be served on the person to whom it is issued as provided in section 6.30.060.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.060. Same—Service.

(a) The notice of infraction must be served upon the owner and/or operator of the vehicle by affixing the notice to the vehicle in a conspicuous place. Service of the notice of infraction by affixation has the same force and effect and is subject to the same penalties for the disregard thereof, as if the notice of infraction were personally served on the owner and/or operator of the vehicle. In lieu of service by affixation, the notice of infraction may be personally served upon the owner and/or operator of the vehicle.

(b) For the purposes of this chapter, an operator of a vehicle who is not the owner thereof but who uses or operates the vehicle with the permission of the owner, express or implied, is

deemed to be the agent of the owner to receive a notice of infraction, whether it is personally served on the operator or served by affixation, and service in either manner is also deemed to be lawful service upon the owner.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.070. Liability.

The operator of a vehicle is liable for the civil fines which are imposed pursuant to this chapter. The registered owner of the vehicle, even if he is not the operator thereof, is also liable for such civil fines, unless he is able to demonstrate that the vehicle was used without his permission, express or implied. A registered owner who pays any civil fine pursuant to this chapter has the right to recover from the operator of the vehicle the civil fines so paid, and has a cause of action in any court which has appropriate jurisdiction against the operator of the vehicle for the amount so paid.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.080. Notice of infraction—Duties of respondent.

(a) A person who responds to a notice of infraction must:

(1) "Admit" the commission of the infraction and pay the appropriate civil fine.

(2) "Deny" liability for the infraction.

(b) The burden to prove any defense shall be upon the person raising such defense.

(c) A person may "admit" pursuant to paragraph (1) of subsection (a) of this section by paying the amount of the civil fine which is appropriate for the violation which has committed to the Reno City Clerk.

(d) A person may "deny" liability pursuant to paragraph (2) of subsection (a) of this Section only by appearing in person before the Reno City Clerk at which time a date for a hearing on the infraction shall be scheduled by the Reno City Clerk.

(e) If the hearing officer finds that the infraction has not occurred or an infraction has been committed but one or more of the defenses set forth below is applicable, the hearing officer may dismiss the notice of infraction and release the registered owner and/or operator from liability thereunder. Such defenses include, but are not limited to:

(1) At the time of the receipt of the notice, possession of the subject vehicle had been acquired in violation of the criminal laws of the State of Nevada.

(2) If the notice of authorized use alleges a violation of any ordinance pertaining to a parking meter, such meter was mechanically malfunctioning to the extent that its reliability is questionable.

(3) Compliance with the subject ordinances would have presented an imminent and irreparable injury to persons or property.

(4) In cases in which the provisions of RMC 6.06.070(b) are found to apply.

(f) If the hearing officer finds that the infraction has been committed, but the subject vehicle was mechanically incapable of being moved from such location for a period less than six hours, the hearing officer may reduce the civil fine associated therewith, but in no event shall such civil fines be reduced below the sum of $5.00.

(g) If the hearing officer finds that an infraction has been committed and no applicable defense exists, the hearing officer may, in the interest of justice and on behalf of the city, enter into an agreement for the timely or periodic payment of the applicable penalty.

(h) (1) In a contested citation proceeding, a party against whom the hearing officer has entered a finding of liability and assessment of fine, by default or otherwise may, if the assessed fine has been paid, appeal to the Reno Municipal Court within ten days from the date of entry of the finding and assessment. Appeal shall be made by filing with the Reno City Clerk a written notice containing the appellant's name, current address, phone number, citation number, and a statement that the appellant appeals the finding and assessment.

(2) Upon receipt of timely notice of appeal, the city clerk shall forward the notice, together with a copy of the citation and a copy of the hearing officer's finding and assessment to the Reno Municipal Court and a copy of the same to the office of the city attorney.

(3) On appeal, the matter shall be resolved in a civil action, except that no formal complaint need be filed nor summons issued. The proceedings shall be governed by section 6.30.110 of this chapter. The filing of the notice of appeal shall constitute a submission by the appellant to the jurisdiction of the Reno Municipal Court and to all notices and orders issued by said court during appeal, and to final judgment of said court on resolution of the appeal.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.090. Same—Judicial enforcement.

Judicial enforcement of notices of infraction must be by way of civil suit in the Reno Municipal Court. A certified copy of the notice of infraction constitutes a prima facie showing that an infraction occurred.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.100. Commencement of civil action—Procedure.

The action may be commenced at any time after the expiration of 40 days following the date on which the notice of infraction was served pursuant to section 6.30.110, by the filing of a complaint in the name of the City of Reno and the issuance of a summons with respect thereto, and service of such complaint and summons on the defendant must be made by certified mail, return receipt requested, addressed to the registered owner of the vehicle at his last known address, as indicated by the vehicle registration which is maintained by the Nevada Department of Motor Vehicles or in any other manner which is authorized by law. The proceedings in Reno Municipal Court for actions commenced pursuant this chapter shall be governed by Rules 1 and 3 through 87 of the Justice Court Rules of Procedure.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.110. Same—Time limit.

Civil actions pursuant to this chapter may only be commenced within two years after the date on which the infraction occurred, except as provided in section 6.30.610, and the standard of proof which is applied is the preponderance of the evidence. The city has satisfied its burden of proof if it shows that an infraction occurred and that the vehicle was registered to

the defendant on the date on which the infraction occurred, unless either of these elements is satisfactorily rebutted by the defendant. The defendant may assert the defenses set forth in section 6.30.080(e) and (f), and the court may dismiss the notice of the infraction if it finds the defenses set forth in section 6.30.080(e) are applicable and may reduce the fine if the court finds that the defenses set forth in section 6.30.080(f) are applicable.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.120. Monetary sanctions for parking violations—Not exclusive.

The enforcement of parking (non-moving traffic) laws under this chapter is not exclusive and shall not prevent the institution and the prosecution of criminal proceedings in the Reno Municipal Court against the registered owner and/or operator of such vehicle, who has been served with six or more infractions to which the registered owner and/or operator of such vehicle has not responded.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.130. Stopping or standing prohibited generally.

(a) A person shall not stop, stand or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with law or the directions of a police officer, or official traffic-control device in any of the following places:

(1) On a sidewalk, bike lane, or parkway;

(2) In front of a public or private driveway;

(3) Within an intersection;

(4) Within 15 feet of a fire hydrant;

(5) On a crosswalk;

(6) Within 20 feet of a crosswalk;

(7) Within 50 feet of the nearest rail of a railroad except in an authorized parking area or other area designated by the traffic engineer or designee;

(8) Within 20 feet of a driveway entrance to any fire station and, on the side of a highway opposite the entrance to any fire station, within 75 feet of such entrance;

(9) Alongside or opposite any highway excavation or obstruction when such stopping, standing or parking would obstruct traffic;

(10) Upon any bridge or other elevated structure or within a highway tunnel, except in an authorized parking area or other area designated by the traffic engineer or designee;

(11) Within five feet of a public or private driveway;

(12) At any place where official traffic-control devices prohibit stopping, standing or parking; and

(13)(a) On the highway side of any vehicle stopped or parked at the edge of or curb of a highway.

(b) It is unlawful for the owner or driver of any vehicle or trailer or commercial motor vehicle, as defined in RMC 6.04.110, with or without towed units, having an overall length of more than 24 feet to stand or park the same within District No. 1 at any time except with a permit

issued in accordance with RMC Chapter 6.11; provided, however, that a vehicle carrying passengers may stop for the purpose of picking up or discharging passengers at designated bus stops.

(c) It is unlawful for the owner or driver of any vehicle or trailer or commercial motor vehicle, as defined in RMC 6.04.110, with or without towed units, having an overall length of more than 24 feet or a height of more than eight feet or a width of more than eight feet exclusive of side-view mirrors to stand or park the same at any time on any street or highway or alley except while such vehicle is picking up or discharging passengers.

(1) The owner or driver of a recreational vehicle may stand or park the recreational vehicle immediately in front of the real property of the owner or driver of the recreational vehicle for the purpose of picking up or discharging passengers or preparing the recreational vehicle for use or storage in a lawful manner. For purposes of the subsection, a motor vehicle is defined as a vehicular-type unit primarily designed as temporary living quarters for travel, recreational or camping use, which may be self propelled or mounted upon or drawn by a motor vehicle.

(2) No motor vehicle and/or trailer shall remain standing or parked for a period of more than (48) consecutive hours.

(3) For the purposes of this section, a vehicle and/or trailer or commercial motor vehicle, as defined in RMC 6.04.110, with or without towed units, not otherwise prohibited in subsection (d) shall be considered to have been parked or left standing for 48 consecutive hours if it is still visible on the same street after being posted.

(4) At the conclusion of the 48-hour period as described in subsection (d)(1), at least 48 hours must elapse before the start of a new 48-hour period, during which time the vehicle and/or trailer or commercial motor vehicle as defined in RMC 6.04.110, with or without towed units, not otherwise prohibited in subsection (d) must be removed from in front of the real property of the owner of the vehicle and/or trailer or agent of the owner thereof.

(d) It is unlawful for the driver of any placarded vehicle and/or trailer or commercial motor vehicle, as defined in RMC 6.04.110, with or without towed units to stop, stand or park the vehicle and/or trailer or commercial motor vehicle as defined above on any street or highway or alley for any purpose except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control signal. Violation of RMC 6.30.130 (d) shall be deemed a public nuisance and the registered business identified on the vehicle shall be subject to the penalties provided in RMC Chapter 8.22 titled "Nuisances".

(e) It is unlawful for the driver of any vehicle to stand or park the same upon any street or highway for the purpose of introducing gasoline, petroleum product, fuel or other combustible material into the vehicle, and it is unlawful for any person to introduce gasoline, petroleum product, fuel or other combustible material into any vehicle while the same is standing or parked upon any street or highway; provided, however, that it shall be lawful to so introduce gasoline, petroleum product, fuel or other combustible material into a vehicle from a container not exceeding five gallons in capacity in the event the fuel supply in the vehicle has become exhausted.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 5341, § 1, 5-28-02; Ord. No. 5738, § 1, 9-14-05; Ord. No. 5776, § 1, 12-1-05; Ord. No. 5967, § 1, 9-12-07; Ord. No. 6051, § 1, 8-20-08; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.135. Permits for temporary oversize vehicle parking.

(a) The city clerk or designee may issue a temporary permit for the parking of a vehicle and/or trailer or commercial motor vehicle as described in RMC 6.06.390(d), with or without towed units, only pursuant to findings set forth in this section.

(1) The vehicle and/or trailer or commercial motor vehicle, with or without towed units, belongs to visitors or house guests temporarily residing in the city. Such permit shall be valid for a maximum period of seven days, will not be issued for successive periods, and will not be issued to vehicles registered to a residence in the City of Reno. Such permit will not be issued more than six times within any 12-month period.

(2) The vehicle and/or trailer or commercial motor vehicle, with or without towed units, belongs to a new resident, or is newly purchased, and suitable permanent parking or storage is being arranged. Such permit will not be issued for successive periods and shall be valid for a maximum period of 30 days.

(3) The vehicle and/or trailer or commercial motor vehicle is used as the sole means of transportation, and the parking of such vehicle is not reasonably possible on the owner's premises. Such permit shall be valid for a maximum period of 12 months and may be renewed for successive 12-month periods. The owner is required to provide an affidavit under penalty of perjury and any other documentation showing the vehicle and/or trailer or commercial motor vehicle is the owner's sole means of transportation.

(b) Such permit as is issued pursuant to this section must be prominently displayed in the front windshield of the permitted vehicle and/or trailer or commercial motor vehicle for ease of inspection.

(c) Nothing in this section shall be construed to permit the use of a vehicle and/or trailer or commercial motor vehicle for sleeping or dwelling purposes outside a recreational vehicle park as governed by Title 18 of the Reno Municipal Code.

(Ord. No. 5738, § 2, 9-14-05; Ord. No. 5776, § 2, 12-1-05; Ord. No. 6051, § 2, 8-20-08; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.140. Stopping or standing at hazardous places prohibited.

When official traffic-control devices are erected at hazardous or congested places, a person shall not stop, stand or park a vehicle in any such designated place.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.150. Method of parking.

(a) It is unlawful for any person to stand or park a vehicle in a roadway other than parallel with the edge of the roadway headed in the direction of traffic and with the right-hand wheels of the vehicle within 18 inches of the curb line or edge of the roadway, except on one-way

streets where the wheels of either side of the vehicle shall be within 18 inches of the curb line or edge of the roadway, and except culs-de-sac in residential zones where parking may be other than parallel.

(b) It is unlawful to park any vehicle so as to be on or overlap any parking line which is marked upon the surface of any street or highway for the purpose of designating a parking space; provided, however, that outside the boundaries of District No. 1 it shall be lawful to back a vehicle to the curb only for such time as shall be necessary to load or unload merchandise or material, and then only if ample space be left in the roadway for one lane of traffic to pass such a vehicle, and that within the boundaries of District No. 1 it shall only be lawful to back a vehicle to a curb for the purpose of loading or unloading merchandise or material at the time and place and under the conditions specified in a permit issued by the city traffic engineer.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.160. Angle parking.

Upon those highways which have official traffic-control devices permitting angle parking, a person shall not stop, stand or park a vehicle other than at the angle to the curb or edge of the highway indicated by such devices.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.165. Qualified alternative fuel vehicles parking charging stations.

(a) No person shall stop, stand, or park a vehicle other than a qualified alternative fuel vehicle as defined in section 6.04.485 within any space marked or signed as reserved for ″electric or alternative fuel vehicle parking while charging only.″

(b) It is unlawful to park or permit to be parked any qualified alternative fuel vehicle in a space with a charging station that is marked as ″vehicle parking while charging only″ if such vehicle is not in the process of charging.

(c) Qualified alternative fuel vehicles may be parked in any space designated for public parking, subject to the restrictions that would apply to any other vehicle that would park in that space or complies with section 6.06.240.

(d) For purposes of this section, the following definitions apply:

Electric or alternative fuel vehicle parking space means any marked parking space that identifies the use to be exclusively for the parking of a qualified alternative fuel vehicle.

Vehicle charging station means a public parking space that is served by battery charging station equipment that has as its primary purpose the transfer of electric energy (by conductive or inductive means) to a battery or other energy storage device in an electric vehicle, and that is 1) publicly owned and publicly available (e.g., Park and Ride parking, public library parking lot, on-street parking), or 2) privately owned and publicly available (e.g., shopping center parking, nonreserved parking in multi-family parking lots).

(e) Violations of this section shall be subject to a civil fine and penalty set forth in section 6.30.620 of the Reno Municipal Code.

(Ord. No. 6434, § 1, 8-9-17)

Sec. 6.30.170. Unattended motor vehicle.

(a) The person driving or in charge of any motor vehicle, loading or unloading goods shall not permit it to stand unattended without first stopping the engine, locking the ignition and removing the key.

(b) A vehicle shall not be permitted to stand unattended upon any perceptible grade without stopping the engine and effectively setting the brake thereon and turning the front wheels to the curb or side of the highway.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.180. Unlawful to park on main-traveled portion of highway.

(a) Upon any highway outside of a business or residence district no person shall stop, park or leave standing any vehicle, whether attended or unattended, upon the paved or main-traveled part of the highway when it is practicable to stop, park or so leave such vehicle off such part of the highway; but in every event an unobstructed width of the highway opposite a standing vehicle shall be left for the free passage of other vehicles and a clear view of such stopped vehicles shall be available from a distance of 200 feet in each direction upon such highway.

(b) This section shall not apply to the driver of any vehicle which is disabled while on the paved or main-traveled portion of a highway in such manner and to such extent that it is impossible to avoid stopping and temporarily leaving such disabled vehicle in such position.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.190. Parking between 2:00 a.m. and 6:00 a.m.

A person, except physicians or other persons on emergency calls, shall not park a vehicle on any highway, street or alley which an official traffic-control device is erected prohibiting parking between the hours of 2:00 a.m. and 6:00 a.m. of any day.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.200. Parking adjacent to school.

When official traffic-control devices are erected giving notice thereof, a person shall not park a vehicle upon either side of any highway adjacent to any school.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.210. Parking upon narrow highway.

When official traffic-control devices are erected prohibiting parking upon a narrow highway, a person shall not park a vehicle upon any such highway.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.220. Parking in alleys.

No vehicle shall be parked in an alley or left so parked temporarily within District No. 1 or outside District No. 1 where designated by the city council and signs are placed giving notice thereof, except for such period of time as is reasonably necessary for the purpose of loading

or unloading such vehicle. If commercial vehicles are required to be parked in alleys for the purpose of making utility installation, maintenance, or repairs, the vehicles shall be so parked as not to block the passage of other vehicles and shall not be so parked in alleys unless written consent to do so is first obtained from the city manager or his designated representative, or as permitted for service parking as allowed by section 6.30.360.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.230. Service vehicle standing zones in street.

If a business requiring a service vehicle standing zone, as provided under section 6.30.150 shall be situated without access to an alley, the city council by formal action is empowered to grant such zones on the street.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.240. Stopping or standing prohibited when signs required.

(a) In such areas as the city council has heretofore or may hereafter designate as ″no parking″ or stopping areas, the director of traffic and transportation shall cause such areas to be appropriately marked by red paint placed and maintained upon the entire curb surface within such area, omitting any crosswalk area.

(b) It shall be unlawful for any person to stop, stand or park a vehicle in any area so designated as a ″no parking″ or stopping area; except that a bus may stop in such a red zone when the same has been authorized to be, and has been marked or signed as, a bus stop, and a taxi or vehicle for the transportation of persons or property for hire may stop in certain red

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zones as provided in this title, and vehicles of the city and of the officials of the city may stop in such red zone which has been authorized to be, and has been marked or signed, for "municipal cars only."

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.250. Reserved.

Editor's note—Ord. No. 5270, § 1, adopted Sept. 25, 2001, repealed § 6.30.250, which pertained to restricted parking zones. See the Administrative Code Comparative Table.

Sec. 6.30.260. Bus and taxicab parking.

(a) The operator of a bus or taxicab shall not stop, stand or park upon any highway in any business district at any place other than a bus stop or taxicab stand, respectively, except that this provision does not prohibit the driver of any such vehicle from temporarily stopping in accordance with other stopping, standing or parking regulations at any place for the purpose of and while engaged in the expeditious unloading or loading of passengers.

(b) All taxicab stands as herein provided shall be so-called "open stands," meaning that no given taxicab company shall have any superior right to occupy any particular stand over any other taxicab company.

(c) When a taxicab stand is of such length to accommodate two or more vehicles, taxicabs from any one company may not occupy more than one-half of the vehicle spaces.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 5270, § 1, 9-25-01; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.270. Bus stops and taxicab stands.

A person shall not stop, stand or park a vehicle other than a bus in a bus stop, or a taxicab in a taxicab stand, when such stop or stand has been officially designated with red curb painted on top and curb face, stenciled with "bus only " or "taxi only" in white paint. Limit lines shall be placed at each end of the zone with white marking paint extending eight feet perpendicular to the curb face. Appropriate signs shall be erected at the beginning and end of each zone stating the type of zone. The penalty for the violation of this section shall be the sum of $15.00, minimum.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 5270, § 1, 9-25-01; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.280. Unlawful to park at certain places.

A person shall not park a vehicle at any time on any of the following parts of highways, sidewalks or sidewalk areas, where official traffic-control devices are erected giving notice thereof:

(a) In front of a theater entrance;

(b) In front of the entrance or exit of a hotel; or

(c) In front of the entrance of any building where any such device has been erected by a local authority.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 5969, § 1, 9-12-07; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.290. Stopping for loading or unloading only.

When such areas as the city council may hereafter designate as "loading zones" have been appropriately marked by yellow paint placed and maintained upon the entire curb surface along such area, with a proper sign erected and designated "loading zone" along the yellow zone, it shall be unlawful for any person to stop or stand a vehicle except for the purpose of loading or unloading passengers or materials except under certain restrictions, as follows:

(a) *Private vehicles, or vehicles for personal use.* The loading or unloading of passengers shall not consume more than three minutes and that of unloading or loading of passengers and their luggage or miscellaneous cargo shall not consume more than five minutes.

(b) *Commercial vehicles, or vehicles used for commercial purposes*. The loading or unloading of passengers, materials, cargo, delivery or pickup of express and parcel post packages and United States mail shall not consume more than 20 minutes unless permission be obtained from the police department authorizing the standing of a vehicle for a longer period of time while unloading or loading.

(c) *Application of restrictions and exceptions*. The aforementioned restrictions shall be effective on weekdays and also on Saturdays between the hours commencing with 8:00 a.m. and concluding at 6:00 p.m., unless the areas are posted otherwise. If the areas are posted by signs, as, for example, stating "day or night" or "24 hours," then and in such instances the restrictions shall be in effect for the period indicated by the signs. Except as indicated by such appropriate signs, all loading zones shall be open to public parking on weekdays and Saturdays between the hours commencing with 6:00 p.m. and concluding with 8:00 a.m., and they shall likewise be open to public parking on Sundays and holidays for the full 24 hours of such days.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 5969, § 2, 9-12-07; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.300. Limited parking at specified places and hours.

(a) Such areas as the city council has heretofore or may hereafter designate as "24 minute parking areas," the traffic engineer shall cause to be appropriately marked by green paint placed and maintained upon the entire curb surface within such area or areas and the traffic engineer shall cause signs to be erected designating the extent of such areas.

(b) It is unlawful for any person to stop, stand or park a vehicle in any area so designated as a "24 minute parking area," when such area is duly marked and signed as hereinabove provided, for a longer period than 24 minutes between the hours of 9:00 a.m. and 6:00 p.m. of any day except Sundays and legal holidays specified by laws of the state.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.301. Parking of overweight vehicles prohibited.

It is unlawful for the driver or owner of a commercial motor vehicle, as defined in RMC 6.04.110, with or without towed units, rated by the manufacturer's nominal rating in excess of 10,000 unladen pounds, to park such commercial motor vehicle, whether attended or

unattended, except for the purpose of loading or unloading passengers, materials or merchandise or for any purpose incident to any lawful construction project located within the immediate vicinity of such parked vehicle, upon streets or alleys within the city.

(Ord. No. 4997, § 1, 4-13-99; Ord. No. 6051, § 3, 8-20-08; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.310. Parking limited in parking lots.

(a) When signs, authorized by action of the city council, are in place giving notice thereof, no person shall stop, stand or park any vehicle upon any city-owned or city-operated public parking lot for a period of time longer than the period specified on the sign.

(b) When signs, authorized by action of the city council, are in place giving notice thereof, no person shall stop, stand or park any vehicle upon any city-owned or city-operated public parking lot between the hours specified on the sign or as otherwise specified on the sign.

(c) The provisions of this Section shall be subject to the application of special or more restrictive provisions contained in this chapter and relating to the parking of vehicles.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.320. Unlawful parking with locked doors.

It is unlawful for any person to leave standing or parked any vehicle when the doors of the same are locked in which there is a person who cannot readily escape therefrom.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.330. Parking for certain purposes.

(a) No person shall park any vehicle or trailer or semitrailer or any vehicle and trailer or semitrailer upon any highway, street, alley, or city-owned or city-operated public parking lot for the principal purpose of:

(1) Displaying such vehicle or trailer or semitrailer or vehicle and trailer or semitrailer for sale:

(2) Washing, greasing, repairing or constructing such vehicle or trailer or semitrailer or vehicle and trailer or semitrailer, except repairs necessitated by an emergency;

(3) Soliciting business;

(4) Selling merchandise from such vehicle or trailer or semitrailer or vehicle and trailer or semitrailer;

(5) Storage, or dead storage, for more than 72 hours.

(b) Storage, or dead storage, will be deemed in compliance if the vehicle is registered and moved from the location where it was originally posted. If the vehicle is not registered, missing license plates, or appears abandoned, it will be deemed in compliance if the vehicle is not visible from the location where it was originally posted.

(c) No person whose business involves the repairing, servicing, towing, wrecking or salvaging of vehicles or trailers or semitrailers shall park, leave standing, or store any vehicle or trailer or semitrailer or any vehicle and trailer or semitrailer on any highway, street, alley, or city owned or city-operated public parking lot after that person has accepted, obtained or exercised custody of the vehicle or trailer or semitrailer or vehicle and trailer or semitrailer.

(d) Violation of RMC 6.30.330 (c) shall be deemed a public nuisance, and the registered business licensee shall be subject to the penalties provided in RMC Chapter 8.22 titled "Nuisances".

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 5521, § 1, 12-3-03; Ord. No. 5738, § 3, 9-14-05; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.340. Emergency parking signs.

(a) Whenever the traffic engineer shall determine that an emergency traffic congestion is likely to result from the holding of public or private assemblages, gatherings or functions, or for other reasons, the traffic engineer shall have the power and authority to order temporary signs to be erected or posted indicating that the operation, parking or standing of vehicles is prohibited on such streets and alleys as the traffic engineer shall direct during the time such temporary signs are in place. Such signs shall remain in place during the existence of such emergency and the traffic engineer shall cause such signs to be removed promptly thereafter.

(b) When signs authorized by the provisions of this section are in place giving notice thereof, it is unlawful for any person to operate, park or stand any vehicle contrary to the directions and provisions of such signs.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.350. Preferential parking rights.

Whenever a space is vacant next to a curb, sufficient only for the parking of one vehicle, and any vehicle has been stopped in the line of traffic for the purpose of backing into the space, such vehicle shall have the preferential right to such parking space over any following vehicle.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.360. Service and business parking.

(1) The city engineer or designee is authorized to issue a permit for "service parking," which term means use of parking meter space while rendering service in cleaning, painting, adjusting or making minor repairs or replacements in or to buildings or building equipment or to public utilities in the vicinity of the service parking space, or service parking in an alley, loading zone, taxicab stand, or bus stand, upon the following conditions:

(a) Application shall be made to the city engineer or designee on a form provided by the city. The applicant shall set forth the applicant's business and the necessity for such permit.

(b) If it appears that a necessity exists, the city engineer or designee may authorize the issuance of such permit upon payment of the fees and under the conditions hereinafter prescribed.

(c) Upon payment of the prescribed fee, the city engineer or designee may authorize the number of vehicles eligible for "service parking" deemed necessary or convenient for the applicant.

(d) Upon entering any space available, the permittee shall follow the prescribed method as set forth by the Public Works Department for the use of the "service parking" permit.

(e) The city engineer or designee, or the police department may revoke any permit if used for any purpose other than that authorized herein, or for any violation of the terms and conditions of this section. Upon revocation, any issued device used to indicate "service parking" status shall be immediately returned to the city engineer or designee and all fees paid shall be forfeited. Police officers finding vehicles in "service parking" status shall investigate the use being made thereof, and if it is found in violation of this section, shall issue a citation to the permittee and shall remove the vehicle from "service parking" status.

(f) The fee for a permit shall be in accordance with a set list of fees approved by the city council and kept on file in the office of the city engineer.

(g) It is unlawful for any permittee to violate any of the provisions of this section, or for any other person to have in his possession any issued device used to indicate "service parking" status issued by the city engineer when not authorized by the permittee in this Code.

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(2) The city engineer is authorized to issue a permit for "business parking," which term means use of parking space for general business use upon the following conditions:

(a) The business property has no off-street parking.

(b) The permit shall only be valid in a metered parking space immediately adjacent to the business property, except as otherwise allowed under the permit issued by the city engineer.

(c) No more than one permit shall be issued to any one business.

(d) Application shall be made to the city engineer on a form provided by the city. The applicant shall set forth the applicant's business name and the necessity for such permit.

(e) If it appears that a necessity exists, the city engineer may authorize the issuance of such permit upon payment of the fees and under the conditions hereinafter prescribed.

(f) Upon entering any metered space available, the permittee shall follow the prescribed method as set forth by the Public Works Department for the use of the "business parking" permit.

(g) The city engineer or designee, or the police department may revoke any permit if used for any purpose other than that authorized herein, or for any violation of the terms and conditions of this section. Upon revocation, any issued device used to indicate "business parking" status shall be immediately returned to the city engineer or designee and all fees paid shall be forfeited. Police officers finding vehicles in "business parking" status shall investigate the use being made thereof, and if it is found in violation of this section, shall issue a citation to the permittee and shall remove the vehicle from "business parking" status.

(h) The fee for a permit shall be in accordance with a set list of fees approved by the city council and kept on file in the office of the city engineer.

(i) It is unlawful for any permittee to violate any of the provisions of this section, or for any other person to have in his possession any issued device used to indicate "business parking" status issued by the city engineer when not authorized by the permittee, and violations shall be punished as provided in this Code.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.370. Lights on parked vehicles.

(a) Whenever a vehicle is lawfully parked upon a street or highway during the hours between a half hour after sunset and a half hour before sunrise and in the event there is sufficient light to reveal any person or object within a distance of 1,000 feet upon any street or highway no lights need be displayed upon such parked vehicle.

(b) Whenever a vehicle is parked or stopped upon a roadway or shoulder adjacent thereto, whether attended or unattended, during the hours between a half hour after sunset and a half hour before sunrise, and there is not sufficient light to reveal any person or object within a distance of 1,000 feet upon such highway, such vehicle so parked or stopped shall be equipped with one or more lights meeting the following requirements: At least one light shall display a white or amber light visible from a distance of 500 feet to the front of the vehicle, and the same light or at least one other light shall display a red light visible from a

distance of 500 feet to the rear of the vehicle, and the location of the light or lights shall always be such that at least one light or combination of lights meeting the requirements of this Section is installed as near as practicable to the side of the vehicle which is closest to passing traffic. The foregoing provisions shall not apply to a motor-driven vehicle.

(c) Any lighted head lights upon a parked vehicle shall be depressed or dimmed.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.380. Parking on one-way streets.

(a) When official traffic-control devices are erected giving notice thereof, a person shall not stand or park a vehicle upon the left-hand side of a one-way street.

(b) If a laned roadway is restricted to one direction, a person shall not stand or park a vehicle upon the left-hand side of such one-way roadway unless official traffic-control devices are erected permitting such standing or parking.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.390. Special parking restriction.

No person shall stop, stand or park any vehicle for a period of time in excess of 20 minutes within the area bound on the south by Mill Street, on the west by Virginia Street, on the north by the Truckee River and on the east by Center Street, except when a different period of time is indicated on any parking meter within such area.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.400. Handicapped parking.

(a) Any parking space designated for the handicapped must be indicated by a sign:

(1) Bearing the international symbol of accessibility with or without the words "Parking," "Handicapped Parking," "Handicapped Parking Only," or "Reserved for the Handicapped," or any other word or combination of words indicating that the space is designated for the handicapped; and

(2) Stating "Minimum fine of $250.00 for use by others" or equivalent words; and

(3) The bottom of which must be not less than four feet above the ground.

(b) In addition to the requirements of subsection (a), a parking space designed for the handicapped which:

(1) Is designed for the exclusive use of a vehicle with a side-loading wheelchair lift; and

(2) Is located in a parking lot with 60 or more spaces, must be indicated by a sign using a combination of words to state that the space is for the exclusive use of a vehicle with a side-loading wheelchair lift.

(c) If a parking space is designed for the use of a vehicle with a side-loading wheelchair lift, the space which is immediately adjacent and intended for use in the loading and unloading of a wheelchair into or out of such a vehicle must be indicated by a sign:

(1) Stating "No Parking" or similar words which indicate that parking in such a space is prohibited;

(2) Stating "Minimum fine of $250.00 for violation" or similar words indicating that the minimum fine for parking in such a space is $250.00; and

(3) The bottom of which must not be less than four feet above the ground.

(d) An owner of private property upon which is located a parking space described in subsection (a), (b) or (c) shall erect and maintain or cause to be erected and maintained any sign required pursuant to subsection (a), (b), or (c), whichever is applicable. If a parking space described in subsection (a), (b), or (c) is located on public property, the governmental entity having control over that public property shall erect and maintain or cause to be erected and maintained any sign required pursuant to subsections (a), (b), or (c), whichever is applicable.

(e) A person shall not park a vehicle in a space designed for the handicapped by a sign that meets the requirements of subsection (a), whether on public or privately owned property, unless he is eligible to do so and the vehicle displays:

(1) Special license plates issued pursuant to NRS 482.384;

(2) A special or temporary parking placard issued pursuant to NRS 482.384;

(3) A special or temporary parking sticker issued pursuant to NRS 482.384;

(4) Special license plates, a special or temporary parking sticker, or a special or temporary parking placard displaying the international symbol of access issued by another state or a foreign country; or

(5) Special license plates for a disabled veteran issued pursuant to NRS 482.377.

(f) Except as otherwise provided in this subsection, a person shall not park a vehicle in a space that is reserved for the exclusive use of a vehicle with a side-loading wheelchair lift and is designated for the handicapped by a sign that meets the requirements of subsection (b), whether on public or privately owned property, unless:

(1) He is eligible to do so;

(2) The vehicle displays the special license plates or placard set forth in subsection (e); and

(3) The vehicle is equipped with a side-loading wheelchair lift.

A person who meets the requirements of paragraphs (1) and (2) may park a vehicle that is not equipped with a side-loading wheelchair lift in such a parking space if the space is in a parking lot with fewer than 60 parking spaces.

(g) A person shall not park in a space which:

(1) Is immediately adjacent to a space designed for use by a vehicle with a side-loading wheelchair lift; and

(2) Is designated as a space in which parking is prohibited by a sign that meets the requirements of subsection (c), whether on public or privately owned property.

(h) A person shall not use a plate, sticker or placard set forth in subsection (e) to park in a space designed for the handicapped unless he is a person with a permanent disability, disability of moderate duration or temporary disability, a disabled veteran, or the driver of a vehicle in which any such person is a passenger.

(i) A person with a permanent disability, disability of moderate or temporary disability to whom a:

(1) Special license plate, or a special or temporary parking sticker, has been issued pursuant to NRS 482.384 shall not allow any other person to park the vehicle or motorcycle displaying the special license plate or special or temporary parking sticker

in a space designed for the handicapped unless the person with the permanent disability, disability of moderate duration or temporary disability is a passenger in the vehicle or on the motorcycle, or is being picked up or dropped off by the driver of the vehicle or motorcycle, at the time that the vehicle or motorcycle is parked in the space designed for the handicapped.

(2) Special or temporary parking placard has been issued pursuant to NRS 482.384 shall not allow any other person to park the vehicle which displays the special or temporary parking placard in a space designated for the handicapped unless the person with the permanent disability, disability of moderate duration or temporary disability is a passenger in the vehicle, or is being picked up or dropped off by the driver of the vehicle, at the time that it is parked in the space designated for the handicapped.

(j) An operator who is physically handicapped or who is transporting a physically handicapped person may park a motor vehicle displaying a special parking permit or special plates issued pursuant to NRS 482.384 or 482.377 for not more than four hours at any one time in parking zones restricted as to the length of time parking is permitted, without penalty or removal of such vehicle, if such parking is otherwise consistent with public safety.

(k) An operator of a motor vehicle displaying license plates issued pursuant to NRS 482.377 is exempt from the payment of any parking fees, including those collected through parking meters, charged by the city.

(l) Violations of any of the provisions of this section shall be subject to the following fines:

(1) $250.00 for the first and second violations; and

(2) $500.00 for the third and all subsequent violations.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 5799, § 1, 1-25-06; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.410. Authority of police officer to move vehicle.

Whenever any police officer finds a vehicle standing upon a highway in violation of any of the provisions of this Code, such officer may move such vehicle, or require the driver or person in charge of the vehicle to move it to a position off the paved or improved or main, traveled part of such highway.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.420. Registration of vehicles.

It is unlawful to park any vehicle of any kind or description whatever on any street, highway or alley within the city unless the same has a valid current registration placed in the vehicle, and has attached and conspicuously displayed on the vehicle the number of plate or plates currently assigned thereto by the state motor vehicle department or any other state of the United States.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.430. Display of license plates.

(a) The license plates for a motor vehicle other than a motorcycle, power cycle or motor vehicle being transported by a licensed vehicle transporter shall be attached thereto, one in the rear, and except as otherwise provided in subsection (b), one in the front. The license plate

issued for all other vehicles required to be registered shall be attached to the rear of the vehicle. The license plates shall be so displayed during the current calendar year or registration period.

(b) If the motor vehicle was not manufactured to include a bracket, device or other Contrivance to display and secure a front license plate, and if the manufacturer of the motor vehicle provided no other means or method by which a front license plate may be displayed upon and secured to the motor vehicle:

(1) One license plate must be attached to the motor vehicle in the rear; and

(2) The other license plate may, at the option of the owner of the vehicle, be attached to the motor vehicle in the front.

(c) Every license plate shall at all times be securely fastened to the vehicle to which it is assigned so as to prevent the plate from swinging and at a height not less than 12 inches from the ground, measuring from the bottom of such plate, in a place and position to be clearly visible, and shall be maintained free from foreign materials and in a condition to be clearly legible.

(d) It is unlawful for any person to display, or cause or permit to be displayed, or to have in possession any registration certificate, license plate, certificate of ownership, or other document of title knowing the same to be fictitious or to have been cancelled, revoked, suspended or altered.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 5954, § 1, 7-11-07; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.440. Parking on sidewalks or public parks prohibited.

No vehicle shall be parked upon or within any sidewalk area or upon any area designated as a public park, except at a designated parking lot, designated parking space, permanent or temporary driveway or alley entrance.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.450. Parking in residential permit parking district.

(a) Unless a valid zone parking permit be properly displayed, no vehicle shall be parked upon any street or public way within a permit parking district.

(b) Permanent residents within a permit parking district may apply to the city clerk's office for a permit to park their vehicle(s) upon the streets or public ways of the permit parking district in which such applicant resides.

(c) A fee shall be charged pursuant to the fee schedule as adopted by the Reno City Council for the issuance of each permit or replacement permit, and such fee shall be used by the city to defray the cost of enforcement of the provisions of this chapter.

(d) Permits shall be limited to one permit per bedroom of the address associated with the property as determined by the Washoe County Assessor.

(e) Permits issued under the provisions of this chapter shall be valid commencing either January first and expiring June thirtieth of the same year or commencing July first and expiring December thirty-first of the same year for non-homeowners and non-long-term residents. Homeowners and long-term residents providing the aforementioned proof of status shall be issued an annual permit, valid commencing July first and expiring June thirtieth of the next calendar year.

(f) A permit issued under the provisions of this chapter shall be personal, nonassignable and nontransferable. Each such permit shall be valid only for a specifically prescribed vehicle.

(g) Each address shall receive one visitor pass at no additional charge. Violations in the use of the visitor pass will result in the revocation of such pass issued to the address.

The parking prohibitions of this section herein shall not apply to clearly marked service or delivery vehicles which are being used to provide temporary services to or make immediate deliveries to residents of the permit parking district.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6399 § 1, 4-27-2016)

Sec. 6.30.460. Parking meters.

It shall be unlawful and a violation of this chapter subject to a civil fine and penalties as set forth in section 6.30.620 of the Reno Municipal Code for any person:

(a) To cause, allow, permit or suffer any vehicle registered in the name of, or operated by such person to be parked overtime, or beyond the period of legal parking time established for any parking meter district as herein described, or to transact with any parking meter any payment for the purpose of parking beyond the maximum legal parking time for the particular designated space in a parking meter district.

(b) To park any vehicle across any line or marking of a parking meter space or in such position that the vehicle shall not be entirely within the area designated by such lines or markings.

(c) To permit any vehicle to remain or be placed in any parking space adjacent to any parking meter, or traffic-control signage indicating metered parking, while said meter is indicating that the vehicle occupying such parking space has already been parked beyond the period prescribed for such parking space.

(d) To deface, injure, tamper with, open or willfully break, destroy, or impair the usefulness of any parking meter, or traffic-control signage indicating metered parking, under the provisions of this chapter.

(e) To transact or cause to be transacted in any parking meter any slug, device or metal substance, or other substitute for lawful payment.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 5969, § 3, 9-12-07; Ord. No. 6066, § 1, 11-10-08; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.470. Parking in fire lane.

No person shall park any vehicle in a fire apparatus access road or otherwise obstruct such road or public or private property, provided the fire apparatus access roads shall be identified by signs which state "No Parking Fire Lane" and if curbing exists it shall be painted red, or otherwise designated as a fire lane.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.480. Parking obstructing fire hydrant.

No person shall stop, stand or park a vehicle near any fire hydrant that would prevent such hydrant from being immediately discernible or in any other manner deter or hinder the fire department from gaining immediate access to said hydrant.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.490. Removal of vehicle—Circumstances.

Members of the Reno Police Department are authorized to remove a vehicle from a street or highway to the nearest garage or other place of safety, or to a garage which is designated or maintained by the police department or otherwise maintained by the city, under the circumstances hereinafter enumerated:

(a) When any vehicle is left unattended upon any street, alley, roadway, dedicated city property, highway, bridge, viaduct or causeway, or in any tube or tunnel, if such vehicle constitutes an obstruction to traffic;

(b) When a vehicle upon a street, alley, roadway, dedicated city property, highway, bridge, viaduct or causeway, is so disabled as to constitute an obstruction to traffic and the person who is in charge of such vehicle is, by reason of physical injury or other reason, incapacitated to the extent that he is unable to provide for its custody or removal, or is not in the immediate vicinity of the disabled vehicle;

(c) When any vehicle is illegally parked in a parked space or location for 24 hours or more or is parked so illegally as to constitute a definite hazard or obstruction to the normal movement of traffic;

(d) When the person who is driving or in actual physical control of a vehicle is arrested for any alleged offense for which the arresting officer is required by law to take such person before a proper magistrate without unnecessary delay;

(e) When any vehicle is found parked in such a manner as to constitute a fire hazard or an obstruction to fire-fighting apparatus, including marked fire hydrants;

(f) When any vehicle has three or more notices of infraction which have not been responded to by the registered owner and/or operator of such vehicle, after being warned that repeated violations may result in impounding or immobilizing the vehicle;

(g) Whenever impoundment is ordered by the Reno Municipal Court after a show cause hearing has been conducted in connection with the immobilization of such vehicle, as provided by sections 6.30.580 and 6.30.520 to 6.30.560, inclusive; or

(h) Whenever impoundment is ordered by the hearing officer after a hearing has been conducted in connection with the immobilization of such vehicle, as provided by sections 6.30.570 and 6.30.580.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 5969, § 4, 9-12-07; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.500. Same—Notice—Known owner.

Whenever a person removes a vehicle from a street, as authorized in section 6.30.490, and such person knows or is able to ascertain from the registration records in the vehicle or by other reasonable means the name and address of the owner thereof, such person must immediately give, or cause to be given, notice in writing, if possible, to the owner of the fact of such removal, the reasons therefore and the place to which the vehicle has been removed. In the event that the vehicle is stored in a public garage, a copy of the notice shall be given to the proprietor of the garage.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.510. Same—Notice—Unknown owner.

Whenever a person removes a vehicle from a street pursuant to section 6.30.490 and does not know and is not able to ascertain the name of the owner, or for any other person is unable to give the notice to the owner, as provided in section 6.30.500, and the vehicle is not returned to the owner within a period of three days, such person must immediately send or cause to be sent a written notice of such removal by mail to the Nevada Department of Motor Vehicles and file a copy of such notice with the proprietor of the garage or place in which the vehicle is stored. Such notice must include a complete description of the vehicle, the date, time and place from which it was removed, the reasons for such removal and the name of the garage in which the vehicle is stored.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.520. Automobile immobilizers—Authorized.

The use of automobile immobilizers, sometimes referred to as "Denver boots" or "French boots," is hereby authorized within the city as an aid in the enforcement of the parking ordinances of the city.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.530. Same—Conditions for use.

An automobile immobilizer may be used if one of the following conditions exists:

(1) The complaint and summons in a civil suit, commenced pursuant to section 6.30.100 in respect to a notice of infraction which was affixed to the vehicle on which the immobilizer is placed, has been returned by the United States Postal Service as undeliverable at the address which is shown thereon, and service of such complaint and summons has been attempted with due diligence and not affected within ten days after the date of such return; or

(2) The registered owner of the vehicle on which the immobilizer is placed has a judgment for civil fine against him in respect of such vehicle which remains unpaid for at least 30 days after such judgment has been served upon him, either personally or by certified mail, return receipt requested.

(3) Whenever any vehicle has three or more notices of infraction which have not been responded to by the registered owner and/or operator of such vehicle, after being warned that repeated violations may result in the impounding or immobilizing the vehicle.

(4) It is a misdemeanor for any unauthorized person to deface, injure, tamper with, open, break, destroy or remove the immobilizer, impair the usefulness thereof or attempt to do any of those acts.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.540. Same—Procedure.

If either of the conditions which are set forth in section 6.30.530(1) and (2) exists, the procedures which are prescribed in sections 6.30.550 to 6.30.590, inclusive, must be followed before an immobilizer may be placed on the vehicle and the vehicle may be impounded.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.550. Order to immobilize.

(a) Upon receipt of an affidavit by the Reno Police Department or the public works director which states that either of the conditions which are set forth in section 6.30.530(a) or (b) exists and requests the use of the immobilizer, the Reno Municipal Court Judge may issue an order to immobilize the vehicle, the registration of which is shown on the notice of infraction which forms the basis of the civil action in which the complaint and summons or the judgment, as the case may be, was issued.

(b) The order to immobilize must declare, among other things:

(1) That the vehicle has been immobilized for failure to pay the civil fine in connection with a notice of infraction within 45 days after its issuance;

(2) That it is a misdemeanor for any unauthorized person to deface, injure, tamper with, open, break, destroy or remove the immobilizer, impair the usefulness thereof or attempt to do any of those acts;

(3) That the registered owner of the vehicle is afforded a hearing in the Reno Municipal Court on the following day to show cause why the vehicle should not be impounded; and

(4) That, if the registered owner or owner's agent does not appear at the scheduled hearing, an order to impound the vehicle shall be issued.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.560. Same—Impoundment procedure.

(a) If an immobilizer is placed on the vehicle, a copy of the order to immobilize must be affixed thereto, and the registered owner must be afforded a hearing on the following day to show cause why the vehicle should not be impounded. In no case may a vehicle be immobilized on a day which precedes a day on which the City of Reno offices are closed.

(b) At the hearing, the registered owner or his/her agent may present such evidence and argument as he deems appropriate in order to persuade the court not to enter an order to impound. The court must order the immobilizer to be removed if the owner pays a $50.00 removal fee, plus the civil fine, in connection with the notice of infraction with respect to which the immobilizer was placed on the vehicle, if a judgment in respect of the notice of infraction has been entered or if the owner does not desire a trial on that infraction. If a judgment in respect of that notice of infraction has not been entered and the owner desires a trial on that infraction, the court must set a date for that trial and order the immobilizer to be removed, if the owner pays the $50.00 removal fee and agrees to appear for trial.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.570. Vehicles with five or more outstanding notice of infractions—Impoundment procedures.

(a) Except as provided in section 6.30.610, whenever any vehicle has three or more notices of infraction within two years which have not been responded to by the registered owner and/or operator of such vehicles, after being warned that repeated violations may result in the impounding or immobilizing the vehicle, and an immobilizer is placed on the vehicle,

a notice to immobilize shall be affixed thereto and the registered owner, or the owner's agent, must be afforded a hearing before a hearing officer designated by the city on the following day, Saturdays, Sundays and city holidays excepted.

(b) The notice to immobilize must state among other things:

(1) That the vehicle has been immobilized for having three or more notices of infraction which have not been responded to by the registered owner and/or operator of such vehicle, after being warned that repeated violations may result in the impounded or immobilizing the vehicle;

(2) That it is a misdemeanor for any unauthorized person to deface, injure, tamper with, open, break, destroy or remove the immobilizer, impair the usefulness thereof or attempt to do any of those acts;

(3) That the registered owner of the vehicle is afforded a hearing before a hearing officer on the following day to determine whether there was probable cause to immobilize the vehicle and why the vehicle should not be impounded; and

(4) That if the registered owner or owner's agent does not appear at the scheduled hearing, an order to impound the vehicle shall be issued.

(c) (1) The hearing proceedings shall be conducted in an informal manner and shall not be bound by the formal rules of evidence or procedure. The owner or owner's agent shall be accorded the essential elements of due process of law, including notice, and an opportunity to be heard and defend the owner's position.

(2) The hearing officer shall determine whether the city had probable cause pursuant to subsection (3) of section 6.30.530 to immobilize the vehicle in question.

(3) At the conclusion of the hearing, the hearing officer shall prepare a written decision and a copy of such decision shall be provided to the person requesting the hearing. The decision of the hearing officer may be appealed to the Reno Municipal Court as set forth in section 6.30.090 of this chapter. Failure of the registered owner or the owner's agent to request or attend such a scheduled post-seizure hearing shall be deemed a waiver of the right to such hearing.

(4) The hearing officer shall determine whether there was probable cause to immobilize the vehicle and, in appropriate cases, whether fees and charges should be reduced in the interest of justice. In the event that the hearing officer determines that the vehicle should be released without fees or with a reduction in fees, the hearing officer shall prepare and date a written waiver of such fees. Copies of the waiver shall be furnished the vehicle owner or vehicle owner's agent and the police department. The vehicle shall then be released to the owner or the owner's agent for fees paid to recover the vehicle from impound. If the hearing officer determines the immobilization was justified pursuant to subsection (3) of section 6.30.530, the owner or his agent shall be responsible for costs of removal fees of $50.00, plus civil fines, in connection with the notices of infraction.

(d) In the event the registered owner or his/her agent does not appear, or does not pay the removal fee and refuses to pay the civil fines, the hearing officer shall enter an order to impound the vehicle. In hardship cases, the hearing officer may allow the fines to be paid in installments.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.580. Impoundment and release.

Upon the issuance of an order to impound, the vehicle must be taken to the impound yard, impounded and the immobilizer removed. If a vehicle is impounded pursuant to this section, it may be released by a further order of the court or the hearing officer, and only then, if all of the charges for the removal of the immobilizer and for towing and storage are paid in full, in addition to the civil fine, and penalties in connection with the notice of infraction with respect to which the vehicle was impounded.

If the vehicle has not been claimed for more than seven consecutive days, the vehicle shall be deemed abandoned and be disposed of in accordance with the provisions of NRS 487.205 to 487.270, inclusive.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.590. Automobile immobilizers—Authorized placement.

Automobile immobilizers may be placed under the authority of the Reno Police Department or officials designated by the city manager of the City of Reno.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6678, § 1, 5-22-24)

Sec. 6.30.600. Same—Unlawful acts.

It is unlawful for any unauthorized person to deface, injure, tamper with, open, break, destroy or remove any automobile immobilizer, impair the usefulness thereof or attempt to do any of those acts.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.610. Previously issued citations.

All unpaid parking tickets cited as misdemeanors under Chapters 6.06 and 6.08 of the Reno Municipal Code shall become notices of infractions upon the effective date of this chapter. Said tickets shall be subject to the terms and conditions set forth herein, except that there shall be no increase in fines or penalties, nor shall said tickets be subject to the time limitations set forth herein for the placement of the immobilizers set forth in section 6.30.570 or the commencement of civil actions set forth in section 6.30.110.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 6194, § 1, 7-6-11)

Sec. 6.30.620. Schedule of civil fines.

(a) The civil fines and penalties imposed for infractions of the parking (non-moving traffic) laws and regulations set forth in this chapter shall be listed on the city council adopted fee schedule effective July 1, 2024.

(Ord. No. 4054, § 1, 2-12-91; Ord. No. 5736, § 1, 9-14-05; Ord. No. 5969, § 5, 9-12-07; Ord. No. 6066, § 2, 11-10-08; Ord. No. 6194, § 1, 7-6-11; Ord. No. 6317, § 1, 1-29-14; Ord. No. 6399 § 1, 4-27-2016; Ord. No. 6434, § 2, 8-9-17; Ord. No. 6678, § 1, 5-22-24)

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CHAPTER 6.40. REGULATION OF CRUISING

Sec. 6.40.010. Cruising prohibited.
Sec. 6.40.020. Definitions.
Sec. 6.40.030. Warning against cruising.
Sec. 6.40.040. Violation of this chapter.
Sec. 6.40.050. Penalty for violations.
Sec. 6.40.060. Posting of no-cruising zones.
Sec. 6.40.070. Exceptions.
Sec. 6.40.080. Severability.

Sec. 6.40.010. Cruising prohibited.

No person shall engage in the activity known as "cruising," as defined in this chapter, on the public streets, alleys or highways in any area of the City of Reno which has been posted as a no-cruising zone in accordance with this chapter.

(Ord. No. 4600, § 1, 3-12-96)

Sec. 6.40.020. Definitions.

(a) *"Cruising" defined.* For purposes of this chapter, "cruising" shall be defined as the repetitive driving of any motor vehicle past a traffic control point in congested traffic at or near the traffic control point.

(b) *"Congested traffic" defined.* For purposes of this chapter, "congested traffic" means traffic on any public street or highway which is delayed to the point that:

(1) Motor vehicles cannot move through a 100 yard approach corridor to an intersection controlled by a traffic light within two complete green light cycles where the delay in forward movement is due to the position of other motor vehicles; or

(2) Motor vehicles cannot move through a 100 yard approach corridor to an intersection controlled by a traffic light within a five minute period of time where the delay in forward movement is due to the position of other motor vehicles; or

(3) Motor vehicles cannot readily move forward on portions of public streets or highways between intersections because traffic speed has slowed to less than five miles per hour, and the delay in movement is due to the position of other motor vehicles.

The determination that a street or highway is congested shall be made by the ranking police officer on duty in the affected area.

(c) *"Green light cycle" defined.* For purposes of this chapter, a "green light cycle" shall mean the period commencing upon the switching of a traffic light from a red light to a green light through to the return of a red light.

(d) *"Traffic control point" defined.* For purposes of this chapter, "traffic control point" shall mean a location along a public street, alley or highway utilized by a police officer on duty in the affected area as an observation point in order to monitor traffic conditions for potential violations of this chapter.

(Ord. No. 4600, § 1, 3-12-96)

Sec. 6.40.030. Warning against cruising.

A police officer may issue a written notice to any person operating or occupying any motor vehicle passing a traffic control point that any subsequent passage past that traffic control point within the next succeeding two hours will be a violation of this chapter.

(Ord. No. 4600, § 1, 3-12-96)

Sec. 6.40.040. Violation of this chapter.

Any person who, after having received a written notice as described in section 6.40.030, subsequently drives past or is a passenger in a vehicle passing the same traffic control point within the next succeeding two hour period shall be in violation of this chapter.

(Ord. No. 4600, § 1, 3-12-96)

Sec. 6.40.050. Penalty for violations.

Violation of this chapter is a misdemeanor.

(Ord. No. 4600, § 1, 3-12-96)

Sec. 6.40.060. Posting of no-cruising zones.

This chapter will be enforced in any area which has been posted as a no-cruising zone. No-cruising signs shall be posted at the beginning and end of any public street, alley or highway or portion thereof, which is a no-cruising zone. The signs shall reference the Reno Municipal Code. The city manager, in consultation with the chief of police is hereby authorized to designate no-cruising zones where it is found that conditions of congested traffic exist resulting from continual cruising.

(Ord. No. 4600, § 1, 3-12-96)

Sec. 6.40.070. Exceptions.

The provisions of this chapter shall not apply to:

(a) Special events sponsored, or participated in, by the City of Reno, as designated by the city council, and

(b) Commercially licensed passenger-carrying vehicles.

(Ord. No. 4600, § 1, 3-12-96)

Sec. 6.40.080. Severability.

If any provision, clause, sentence or paragraph of this chapter or the application thereof to any person or circumstances shall be held invalid, such invalidity shall not affect the other provisions or application of the provisions.

(Ord. No. 4600, § 1, 3-12-96)

Title 8 PUBLIC PEACE, SAFETY AND MORALS*

Ch. 8.04. Miscellaneous Offenses, §§ 8.04.010—8.04.060
Ch. 8.06. Offenses Against Public Administration, §§ 8.06.010—8.06.060
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Ch. 8.36. Registration of Convicted Persons, §§ 8.36.010—8.36.060
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***Cross reference—**Police department, Ch. 2.06, Art. III.

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CHAPTER 8.04. MISCELLANEOUS OFFENSES

Sec. 8.04.010. Noises to attract attention.
Sec. 8.04.020. Hydrogen-inflated toy balloons unlawful.
Sec. 8.04.030. Commission or marathon dancing prohibited.
Sec. 8.04.040. Reserved.
Sec. 8.04.050. Affixing advertisement to sidewalks, poles, trees, etc.
Sec. 8.04.060. Violations.

Sec. 8.04.010. Noises to attract attention.

(a) It shall be unlawful for any person to make, continue, or cause to be made or continued any loud, unnecessary or unusual noise or any noise which either annoys, disturbs, injures or endangers the comfort, repose, health, peace or safety of others within the limits of the city.

(b) Without first obtaining the permission of the city council, it shall be unlawful:

(1) For any person to yell, shout or cry his wares, or cause any person to yell or shout or cry his wares in the public streets, or other places, in the city;

(2) For any person to use, operate or permit to be played, used, or operated any radio receiving set, musical instrument, phonograph, loudspeaker, sound amplifier, or other machine or device for the producing or reproducing of sound which is cast upon the public streets for the purpose of commercial advertising or attracting the attention of the public to any public building or structure, provided, however, the city shall not accept, entertain or grant any application for permission by the city council to produce sound in any manner which is broadcast upon public streets for the purpose of commercial advertising or attracting the attention of the public to any public building or structure in the City of Reno or its sphere of influence for a period not to exceed 180 days; or

(3) For any person to announce by shout or yelling or singing on the public streets, or other public places of the city, any event or sale or other affair in the city.

(Code 1966, § 11.12.380; Ord. No. 5653, § 1, 2-9-05)
State law reference—Authority to prevent excessive noise, NRS 268.412.

Sec. 8.04.020. Hydrogen-inflated toy balloons unlawful.

It is unlawful to inflate toy balloons with hydrogen or to sell or to use toy balloons so inflated.

(Code 1966, § 11.12.450)

Sec. 8.04.030. Commission or marathon dancing prohibited.

It is unlawful for any person to carry on, conduct or maintain any marathon dancing or marathon walking contest or any other exhibition of like nature, or any dance where commissions are paid to the dancers therein, or any other exhibition of a similar or like nature in the city.

(Code 1966, § 11.12.130)

Sec. 8.04.040. Reserved.

Editor's note—Ord. No. 5739, § 1, adopted Sept. 14, 2005, repealed § 8.04.040, which pertained to removal of snow from sidewalks. See also the Code Comparative Table.

Sec. 8.04.050. Affixing advertisement to sidewalks, poles, trees, etc.

It shall be unlawful for any person to post, stick, stamp, paint or otherwise affix, or cause the same to be done by another, any notice, placard, bill, poster or advertisement to or upon any sidewalk, curbing, hydrant, shade tree or tree box, fence, enclosure, or to place the same upon any building, telegraph, telephone or electric lighting pole, without first obtaining the permission of the owner, agent or occupant thereof, in the city; provided, that this section shall not apply to the posting of legal notices of any kind.

(Code 1966, § 11.12.360)

State law reference—Unlawful erection, placement of outdoor advertisements, NRS 405.030.

Sec. 8.04.060. Violations.

Any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in section 1.04.010; or

(2) Shall be subject to provisions of Chapter 1.05 of the Code.

(Ord. No. 5067, § 1, 11-9-99)

CHAPTER 8.06. OFFENSES AGAINST PUBLIC ADMINISTRATION*

Sec. 8.06.010. Obstructing or resisting officer.
Sec. 8.06.015. Possession of document to establish false status or identity.
Sec. 8.06.020. Impersonation of officer or wearing a police uniform.
Sec. 8.06.030. Reserved.
Sec. 8.06.040. Automatic and dialing alarm systems.
Sec. 8.06.050. Police alarm provisions.
Sec. 8.06.055. Alarm systems; regulation and response.
Sec. 8.06.060. False fire alarms.
Sec. 8.06.070. Reserved.

Sec. 8.06.010. Obstructing or resisting officer.

(a) Definitions.

(1) Obstructing is defined as physically impeding or delaying a peace officer during the conduct of the officer's official duties.

(2) Resisting is defined as the physical opposition or noncompliance to a peace officer's authority when the officer is conducting official law enforcement business.

(3) Flight is defined as the going away from a peace officer to avoid detention or arrest.

(b) A person shall not interfere with a peace officer or a person acting at the direction of a peace officer, in the performance of his lawful duty, by:

(1) Obstructing or resisting;

(2) Preventing or attempting to prevent the arrest of himself or another;

(3) Freeing or attempting to free a person being detained or being taken into custody by a peace officer;

(4) Flight; or

(5) Verbally abusing a peace officer or a person acting at the direction of a peace officer with language or gestures intended or reasonably understood to incite an imminent breach of the peace.

(c) A person shall not misrepresent or misidentify himself to a peace officer upon lawful detention or arrest for the purpose of evading process of a court or to evade the proper identification of the person by the officer if:

(1) The misleading information is given to the peace officer while the peace officer is engaged in the performance of his duties; and

(2) The person providing the misleading information knows or should know from the circumstances surrounding the inquiry that the person seeking the information is a peace officer.

***Cross references—**Unlawful to obstruct public officer, § 1.01.080; administration generally, Tit. 2.

State law reference—Crimes against public justice, NRS 199.010 et seq.

(d) Every person who deliberately reports to any peace officer that a felony or misdemeanor has been committed, which causes a law enforcement agency to conduct a criminal or internal investigation, knowing such report to be false, is guilty of a misdemeanor.

(Code 1966, § 11.12.160; Ord. No. 3716, § 1, 8-22-88; Ord. No. 4413, § 1, 8-9-94; Ord. No. 4712, § 1, 2-11-97; Ord. No. 5955, § 1, 7-11-07)

State law references—Resisting public officer, NRS 199.280; intimidating public officer, NRS 199.300.

Sec. 8.06.015. Possession of document to establish false status or identity.

(a) It is unlawful for a person to possess any document for the purpose of establishing a false status, occupation, membership, license or identity for himself or any other person.

(b) Any person convicted under this section shall be punished for a misdemeanor.

(Ord. No. 4938, § 1, 11-24-98)

Sec. 8.06.020. Impersonation of officer or wearing a police uniform.

(a) It shall be unlawful for any unauthorized person to wear a uniform adopted by the police department, or in any other way to represent himself falsely to be a police officer or any other officer of the city.

(b) It is unlawful for any private security guard, watchman or other person acting in a security or crowd control position to wear a uniform which is the same color and style as the uniform worn by the Reno Police Department or the Washoe County Sheriff's Office which so resembles either uniform that the wearer reasonably appears to be a member of the Reno Police Department or the Washoe County Sheriff's Office.

(c) It is unlawful for any person, business entity or corporation which employs security guards, watchmen or other persons acting in a security or crowd control position to direct such employees to wear a uniform which violates subsection (b) hereof.

(d) Subsections (b) and (c) shall only apply to uniforms adopted by any person, business entity or corporation after the effective date of this ordinance.

(e) Any person convicted under this section shall be punished for a misdemeanor.

(Code 1966, § 11.12.230; Ord. No. 4895, § 1, 7-14-98)

State law reference—Impersonation of officer, NRS 199.430.

Sec. 8.06.030. Reserved.

Editor's note—Ord. No. 6107, § 1, adopted June 10, 2009, repealed § 8.06.030, which pertained to escape from city jail. See also the Administrative Code Comparative Table.

State law reference—Escapes, NRS 212.030 et seq.

Sec. 8.06.040. Automatic and dialing alarm systems.

(a) No person shall use or cause to be used any telephone device or telephone attachment that automatically selects a public primary telephone trunk line of the city, and then reproduces any prerecorded message to report any burglary or other emergency.

(b) Any person licensed by the city in the business of selling or leasing alarm systems who desires to have private secondary telephone lines terminate at one location in any city building shall submit an application for such privilege in writing to the city council. Such application shall contain specific provisions relating to false alarms and testing procedures. The city council shall approve such application provided the application includes the following information to the satisfaction of the city council:

(1) The termination of such telephone lines will constitute no hindrance to regular city activities.

(2) The person seeking the termination agrees that no messages will be telephoned on such lines except by an agent of his with access to customer files, or they be terminated into an annunciator designed to operate in the mountings supplied or approved by the city.

(3) The person seeking the termination maintains adequate equipment and work force to repair, maintain or otherwise service alarms sold or leased by him.

(c) No person shall place any monitoring panels and annunciation or receiving equipment other than those specified on private telephone lines as provided by the above subsection (b) in any city building.

(d) All costs and recurring charges incurred in the installation and maintenance of such a private secondary telephone or lines shall be borne by the person requesting the termination.

(e) In addition to any other remedy provided by law, the chief of the fire department or the chief of police may, whenever he shall have knowledge of the use of any device or attachment not operated or maintained in accordance with the provisions of this section, order the removal of such device or attachment or such line termination to which such device or attachment is connected.

(Code 1966, § 11.12.480)

Sec. 8.06.050. Police alarm provisions.

(a) FALSE POLICE ALARM.

It is unlawful for any person to intentionally give or make, or cause to be given or made, any false police alarm. This shall not be deemed to prohibit brief tests of an audible alarm system without having obtained permission from the police, all tests of other alarm systems with advance permission of the police department.

(b) FAILURE TO RESPOND TO POLICE ALARM.

When an alarm system has been activated entailing police department response, the owner or other person in responsible control of the location wherein such system is located, must be present at such location within a reasonable time after being requested to do so by the police department. Intentional failure to respond is unlawful.

(c) AUTOMATIC TELEPHONE DIALING DEVICES.

(1) Automatic telephone dialing devices will not be programmed to any telephone of the City of Reno to include the regional emergency 9-1-1 number.

(2) All security alarm users shall disconnect or reprogram an automatic dialing device which is programmed to select a primary trunk line to the city, or city contracted emergency service within 72 hours of receipt of written notice from the city that it is so programmed.

(3) Violation of any provisions of this section shall be punishable by a fine only of not more than $500.00.

(Code 1966, § 11.12.485; Ord. No. 4450, § 1, 12-13-94; Ord. No. 5147, § 1, 4-25-00)

Sec. 8.06.055. Alarm systems; regulation and response.

(a) PREAMBLE.

The Reno City Council finds and declares that:

(1) The vast majority of emergency alarms to which law enforcement officials respond are false alarms, which are reported to police by alarm companies.

(2) Most false alarms are the result of improper maintenance or improper or careless use of an alarm system.

(3) Alarm companies are able to control the number of false alarms to which law enforcement must respond by appropriately and diligently screening alarms before calling them in to police.

(4) The public and the police are subjected to needless danger when the police are called to respond to false alarms.

(5) Police officers responding to false alarms are not available to carry out other police duties.

(6) In the interest of using limited law enforcement resources most effectively and efficiently, the number of false alarms can and must be reduced.

(7) The purpose of this section is to reduce the dangers and inefficiencies associated with false alarms and to encourage alarm companies and property owners to maintain the operational reliability, properly use alarm systems, and to reduce or eliminate false alarm dispatch requests.

(8) This section governs systems intended to summon police response, establishes fees for violations, establishes a system of administration, sets conditions for the suspension of police response and establishes a public education and training program.

(b) DEFINITIONS.

(1) *Alarm administrator* means the person designated by the chief of police to administer the provisions of this section.

(2) *Alarm installation company* means a person in the business of selling, providing, maintaining, servicing, repairing, altering, replacing, moving or installing an alarm system at an alarm site for compensation, and includes individuals or firms that install and service alarm systems used in a private business or proprietary facility.

(3) *Alarm dispatch request* means a notification to the police department that an alarm, either manual or automatic, has been activated at a particular alarm site.

(4) *Alarm Response Manager (ARM)* means a person designated by an Alarm Installation Company to handle alarm issues for the company and act as the primary point of contact for the jurisdiction's Alarm Administrator.

(5) *Alarm permit* means a permit issued by the alarm administrator to an alarm user which authorizes the operation of an alarm system.

(6) *Alarm site* means a location served by one or more alarm systems. In a multi-unit building or complex, each unit shall be considered a separate alarm site if served by

a separate alarm system. In a single unit building that houses two or more separate businesses with separate alarm systems, each business will be considered a separate alarm site.

(7) *Alarm system* means a device or series of devices which emit or transmit an audible or remote visual or electronic alarm signal which is intended to summon law enforcement response. The term includes hardwired systems and systems interconnected with a radio frequency method such as cellular or private radio signals, and includes local alarm systems, but does not include an alarm installed in a motor vehicle or on one's person. Alarm system does not include a system which will not emit a signal either audible or visible from the outside of the building or residence but is designed solely to alert the occupants of a building or residence.

(8) *Alarm user* means any person who has contracted for monitoring, repair, installation or maintenance service for an alarm system from an alarm installation company or monitoring company, or who owns or operates an alarm system which is not monitored, maintained or repaired under agreement.

(9) *Alarm user awareness class* means a class conducted for the purpose of educating alarm users about the responsible use, operation, and maintenance of alarm systems and the problems created by false alarms.

(10) *Arming station* means a device that controls an alarm system.

(11) *Automatic voice dialer* means any electronic, mechanical, or other device which, when activated, is capable of being programmed to send a prerecorded voice message to a law enforcement agency requesting a police dispatch to an alarm site.

(12) *Business license* means a business license issued by the City of Reno's business license division to an alarm installation company or monitoring company to sell, install, monitor, repair, or replace alarm systems. The term does not include a security alarm license issued by the police department or a license issued by the State Fire Marshal for fire alarm systems.

(13) *Cancellation* means the termination of a police response to an alarm site after dispatch request is made but before an officer is dispatched.

(14) *Conversion* means the transaction or process by which one alarm installation company or monitoring company begins the servicing or monitoring of a previously unmonitored alarm system or an alarm system that was previously serviced or monitored by another alarm company.

(15) *Duress alarm* means a silent alarm system signal generated by the entry of a designated code into an arming station in order to signal that the alarm user is being forced to turn off the system and requires an officer's response.

(16) *False alarm* means an alarm dispatch request to the police department which results in the responding officer finding no evidence of a criminal offense or attempted criminal offense after completing an investigation of the alarm site. It also includes an alarm dispatch request that is cancelled after an officer is dispatched, whether or not the officer has arrived.

(17) *Holdup alarm* means a silent alarm signal generated by the manual activation of a device intended to signal a robbery in progress.

(18) *Intrusion alarm* means an alarm signal generated by the activation of any system, device or mechanism on or near the premises intended to signal when an intrusion of any kind has occurred. Any alarms other than holdup, duress or robbery alarms are categorized as intrusion alarms, to include glass-break, burglar, burglary, general, perimeter, yard or any other similar alarm.

(19) *Local alarm system* means an unmonitored alarm system that annunciates an alarm only at the alarm site.

(20) *Monitoring* means the process by which a monitoring company receives signals from an alarm system and relays an alarm dispatch request to the police department.

(21) *Monitoring company* means a person in the business of providing monitoring services.

(22) *One plus duress alarm* means the manual activation of a silent alarm signal by entering a code that adds one number to the last digit of the normal arm/disarm code (e.g., normal code = 1234, one plus duress code = 1235).

(23) *Panic alarm* means an alarm system signal generated by the manual activation of a device intended to signal a life threatening or emergency situation requiring an officer's response.

(24) *Person* means an individual, corporation, limited liability company, partnership, association, organization or similar entity.

(25) *Police* or *police department* means the Reno Police Department.

(26) *Protective or reactive alarm system* means an alarm system that produces a temporary disability or sensory deprivation through use of chemical, electrical, sonic or other means, including use of devices that obscure or disable a person's vision.

(27) *Responsible party* means a person capable of appearing at the alarm site upon request who has access to the alarm site, the code to the alarm system and the authority to approve repairs to the alarm system.

(28) *Robbery alarm* means an alarm signal generated by the manual or automatic activation of a device, or any system, device or mechanism on or near the premises intended to signal that a robbery or other crime is in progress, and that a person is in need of immediate police assistance in order to avoid bodily harm, injury or death. The term has the same general meaning as "holdup alarm."

(29) *Security alarm license* means the license issued by the police department to an alarm installation company or monitoring company to sell, install, monitor, repair or replace alarm systems. The term does not include a business license issued by the City of Reno's business license division or a license issued by the State Fire Marshal for fire alarm systems.

(30) *SIA Control Panel Standard CP-01* means the ANSI - American National Standard Institute-approved Security Industry Association - SIA CP-01 Control Panel Standard, as may be updated from time to time, that details recommended design features for security system control panels and their associated arming and disarming devices to reduce the incidence of false alarms. Control panels built and tested to this standard by Underwriters Laboratory (UL), or other nationally recognized testing organizations are marked as follows: "Design evaluated in accordance with SIA CP-01 Control Panel Standard Features for False Alarm Reduction."

(31) *Takeover* means the transaction or process by which an alarm user takes over control of an existing alarm system which was previously controlled by another alarm user.

(32) *Verify* means an attempt by the monitoring company, or its representative, to contact the alarm site and/or alarm user, or both, by telephone or other electronic means to determine whether an alarm signal is valid before making an alarm dispatch request.

(33) *Zones* means division of devices into which an alarm system is divided to indicate the general location from which an alarm system signal is transmitted.

(c) ADMINISTRATION; FUNDING; INCREASES IN FEES; ANNUAL EVALUATION.

(1) Responsibility for administration of this section is vested with the chief of police.

(2) The chief of police shall designate an alarm administrator to carry out the duties and functions described in this section.

(3) The fees set forth in this section may only be increased by a duly-adopted resolution of the City Council. For purposes of this subsection, "fees" include any type or class of fee and includes late fees and penalties.

(4) The alarm administrator shall conduct an annual evaluation and analysis of the effectiveness of this section and identify and implement system improvements as warranted.

(d) ALARM SITES MUST HAVE A PERMIT.

(1) An alarm user shall not operate, or cause to be operated, any alarm system without a valid alarm permit. A separate alarm permit is required for each alarm site having a distinct address or business name. The initial alarm permit fee must be paid by the alarm user to the alarm administrator within 30 days after any alarm system installation or alarm system takeover.

(2) Alarm Fees.

The fees charged pursuant to this title shall be contained in the fee schedule which shall be maintained by the police department, and amended upon approval of the City Council.

The City shall offer a rate for senior citizens, 60 or older, for residential locations only. In order to qualify for the senior rate, applicants must provide proof of age, be listed as the property owner or lessee, and must have the alarm agreement in their name.

(3) Late fee.

Alarm users who fail to obtain and/or make payment for an alarm permit within 30 days after notification will be assessed a late fee.

(4) Refunds.

No refund of a permit or permit renewal fee will be made.

(5) Existing alarm systems.

Any alarm system which was installed before the effective date of this ordinance must be registered by the alarm user within 90 days after that date. An alarm installation company or monitoring company shall, within 30 days after being notified in writing from the alarm administrator, provide a list of existing alarm users in the city, including name, address, billing address, telephone number and the telephone number of the law enforcement agency for that jurisdiction, to the alarm administrator.

(6) New alarm systems.
Any alarm installation company that installs an alarm system on premises within the city after the effective date of this ordinance must notify the alarm administrator within ten days after the date of installation and provide the name, address, billing address, telephone number and the telephone number of the law enforcement agency for that jurisdiction of the alarm user and a copy of the customer false alarm prevention checklist. The failure to notify in accordance with the terms of this subsection shall result in a $100.00 administrative penalty against the alarm installation company.

(7) Upon receipt of a completed alarm permit application form and the alarm permit fee, the alarm administrator shall issue a permit to the applicant unless:

a. The applicant has failed to pay a false alarm fee or fine assessed under RMC 8.06.055(l); or

b. An alarm permit for the alarm site has been suspended, and the violation causing the suspension has not been corrected.

(8) Upon receipt of the permit application form and fee, the alarm administrator shall issue a permit to the alarm user which is valid for a one-year period. Renewal permits are valid for one year.

(9) Government entities, including but not necessarily limited to the City of Reno, Washoe County and the Washoe County School District, must obtain permits for all alarm systems on property under their control within the corporate boundaries of the City of Reno, but are exempt from payment of permit and renewal fees.

(e) PERMIT APPLICATION; CONTENTS.
An application for an alarm permit must be on a form provided by the police department and must contain the following information:

(1) The name, complete address, including apartment or suite number, and telephone numbers of the person who will be the holder of the permit and be responsible for the proper maintenance and operation of the alarm system and payment of fees assessed under this subsection;

(2) The physical address and classification of the alarm site as either residential (includes apartment, condo, mobile home, etc.) or commercial;

(3) The classification of the alarm system (i.e. intrusion, holdup, duress, or panic alarm) for each alarm system located at the alarm site, and, for each classification, whether the alarm is audible or silent;

(4) The applicant's mailing address, if different from the address of the alarm site;

(5) Any dangerous or special conditions present at the alarm site such as dogs or other animals or any type of protective or reactive alarm system;

(6) The names and telephone numbers of at least two individuals who are able and have agreed to:

a. Receive notification of an alarm system activation at any time;

b. Respond to the alarm site at any time; and

c. Provide access to the alarm site and deactivate the alarm system, if necessary.

(7) The type of business conducted at a commercial alarm site;

(8) A written certification from the alarm user setting forth the following:

a. The date of installation, conversion or takeover of the alarm system, whichever is applicable;

b. The name, address, and telephone number of the alarm installation company or companies performing the alarm system installation, conversion or takeover and of the alarm installation company responsible for providing repair service to the alarm system;

c. The name, address, and telephone number of the monitoring company if different from the alarm installation company;

d. That a set of written operating instructions for the alarm system, including written guidelines on how to avoid false alarms, have been left with the applicant by the alarm installation company; and

e. That the alarm installation company has trained the applicant in proper use of the alarm system, including instructions on how to avoid false alarms.

(9) An acknowledgement that the police response may be influenced by factors including, but not limited to, the availability of officers, priority of calls, traffic conditions, emergency conditions and staffing levels.

Any false statement of a material fact made by an applicant for the purpose of obtaining an alarm permit is sufficient cause for refusal to issue a permit or revocation of an existing permit.

(f) TERM OF ALARM PERMIT; TRANSFER OF PERMIT PROHIBITED.

(1) An alarm permit cannot be transferred to another person or alarm site. An alarm user shall inform the alarm administrator of any change to the information listed on the alarm permit application within 30 business days after such change. Exceptions may be made in the discretion of the alarm administrator when the transfer proposed is among members of the family of the original permit holder or successors in interest to the property for which the permit has been issued.

(2) An alarm permit shall expire one year after the date of issuance, and must be renewed annually by submitting a renewal application and a renewal fee to the alarm administrator. The alarm administrator shall notify each alarm user of the need to renew 30 days prior to the expiration of the registration. It is the responsibility of the alarm user to submit a renewal application prior to the expiration date. A late fee shall be assessed if the renewal is more than 30 days late.

(g) DUTIES OF ALARM USERS.

(1) An alarm user shall:

a. Maintain the alarm site and the alarm system in a manner that will minimize or eliminate false alarms;

b. Make every reasonable effort to arrive at the alarm system's location within 30 minutes after being requested by the monitoring company or law enforcement agency in order to:

1. Deactivate an alarm system;
2. Provide access to the alarm site; and/or
3. Provide alternative security for the alarm site.

c. Not activate an alarm system for any reason other than an occurrence of an event that the alarm system was intended to report.

(2) No person shall operate or cause to be operated any automatic dialing device which, when activated, uses a telephone device or attachment to automatically dial a telephone line leading into the police department or the city and then transmit any pre-recorded message or signal.

(3) An alarm user shall keep a set of written operating instructions for each alarm system at each alarm site.

(4) All alarm users shall agree with their alarm installation company or monitoring company to go through an "acclimation period" for the first seven (7) days after installation of an intrusion alarm system, during which time the alarm installation company or monitoring company will have no obligation to respond to, nor will it respond to, any alarm signal from the alarm site, or make an alarm dispatch request to law enforcement, even if the alarm signal is the result of an actual alarm event. Exceptions to the "acclimation period" of non-response can be made by the police department in special circumstances, including but not limited to, domestic violence and stalking.

(h) AUDIBLE ALARMS; RESTRICTIONS.

After the effective date of this ordinance, it is a violation of this section for any person to operate an alarm system in the City of Reno that has a siren, bell or other signal audible from any property adjacent to the alarm site that sounds for longer than ten consecutive minutes after the alarm is activated, or that repeats the ten minute alarm cycle more than three consecutive times without resetting. Violators will be fined in accordance with the penalties for false alarms.

(i) DUTIES OF ALARM INSTALLATION COMPANIES AND MONITORING COMPANIES.

(1) Each alarm installation company and alarm monitoring company must designate one individual as the alarm response manager (ARM) for the company. The individual designated as the ARM must be knowledgeable of the provisions of this section, as well as have the knowledge and authority to deal with false alarm issues and respond to requests from the alarm administrator. The name, contact number, and email address of the ARM must be provided to the alarm administrator. Failure to comply will result in the suspension of the company's security alarm license.

(2) Upon the installation or activation of an alarm system, the alarm installation company shall distribute to the alarm user information summarizing:

a. The applicable law relating to false alarms, including the potential for penalties and revocation or suspension of an alarm permit;

b. How to prevent false alarms; and

c. How to operate the alarm system.

(3) After the effective date of this ordinance, alarm installation companies shall not program alarm systems so that they are capable of sending one plus duress alarms. Monitoring companies may continue to report one plus duress alarms received from alarm systems programmed with one plus duress alarms installed prior to the effective date of this ordinance.

(4) Alarm installation companies shall install a device to activate a holdup alarm which is a dual action button, a button with time-delayed activation, or a single pull device on all systems installed after the effective date of this ordinance.

(5) Ninety days after the effective date of this ordinance, an alarm installation company shall, on new installations, use only alarm control panel(s) which meet ANSI/SIA CP-01- Control Panel Standard - Features for False Alarm Reduction.

(6) An alarm company shall not install any automatic dialing device which, when activated, uses a telephone device or attachment to automatically dial a telephone line leading into the police department or the city and then transmit any pre-recorded message or signal.

(7) After completion of the installation of an alarm system, an employee of the alarm installation company shall review with the alarm user the false alarm prevention checklist or an equivalent checklist approved by the alarm administrator.

(8) A monitoring company shall not make an alarm dispatch request to an intrusion alarm signal during the first seven-day "acclimation period" after an intrusion alarm system installation. Exceptions to the "acclimation period" of non-response can be made by the police department in special circumstances, including but not limited to, domestic violence and stalking.

(9) A monitoring company shall:

a. Report alarm signals by using telephone numbers designated by the alarm administrator.

b. Employ enhanced call verification by attempting to verify by telephone the validity of every alarm signal, except a duress or holdup alarm activation, before requesting an officer's response to an alarm system signal. Verification before requesting officer dispatch also requires that a second telephone call be made to a different phone number if the first attempt fails to reach an alarm user who can determine whether an alarm signal is valid. Names and telephone numbers of those persons contacted or attempted to be contacted must be provided to the alarm administrator or police department upon request.

c. Communicate alarm dispatch requests to the police department in a manner and form determined by the alarm administrator.

d. Communicate cancellations to the police department in a manner and form determined by the alarm administrator.

e. Ensure that all alarm users of alarm systems equipped with a duress, holdup or panic alarm are given adequate training as to the proper use of the alarm.

f. Communicate any available information (north, south, front, back, floor, etc.) about the location of an alarm signal as part of an alarm dispatch request.

g. Communicate the type of alarm activation (silent or audible, interior or perimeter), if available, on any alarm dispatch request.

h. Notify the City of Reno Emergency Communications (Dispatch) of any alarm site that it knows, or reasonably should know, is fitted with a protective-reactive device. During any alarm at such a site, a responsible party must be contacted and confirm that he or she will respond to the alarm site to disarm the device. In

all cases where a protective-reactive device is present at an alarm site, the police dispatch request shall include a warning for officers not to enter the alarm site until the responsible party is present and has disarmed the device.

i. Prior to making an alarm dispatch request, attempt to notify the alarm user to send a responsible party to the alarm site, in order to:

1. Deactivate an alarm system;
2. Provide access to the alarm site; and/or
3. Provide alternative security for the alarm site.

j. After an alarm dispatch request, promptly advise the police department if the monitoring company knows that the alarm user or a responsible party is on the way to the alarm site;

k. Each monitoring company must maintain, for a period of at least one year after the date of an alarm dispatch request, all records relating to the alarm dispatch request. Records must include the name, address and telephone number of the alarm user, each alarm system zone activated, the time of alarm dispatch request and evidence of all attempts to verify. The alarm administrator may request copies of such records for any individual alarm user. If the request is made within 60 days after an alarm dispatch request, the monitoring company shall furnish requested records within three business days after receiving the request. If the records are requested between 60 days and one year after an alarm dispatch request, the monitoring company shall furnish the requested records within 30 days after receiving the request. Failure to comply with this subsection will result in a $50.00 fine.

l. Each monitoring company shall, upon request, immediately provide the police department with the names and phone numbers of the alarm user's emergency contacts at the time of each alarm dispatch request.

(10) Existing accounts.

On or before the first day of January of each year, an alarm installation company or monitoring company shall provide the alarm administrator with a complete list of active customers whose premises are located within the city, to assist the alarm administrator with creating and maintaining tracking data. The customer information must be provided in a format the alarm company is capable of producing and must include the following:

a. Customer name;

b. Customer billing address;

c. Customer telephone number;

d. Alarm site address; and

e. Alarm company license number.

(11) Purchased accounts.

An alarm installation company or monitoring company that purchases any alarm system account from another company shall notify the alarm administrator of such purchase and shall provide to the alarm administrator, within 30 days from the date of acquisition, a complete list of the acquired customers, in a format the alarm company is capable of producing, that includes the following:

a. Customer name;

b. Customer billing address;

c. Customer telephone number;

d. Alarm site address; and

e. Alarm company license number.

(12) The customer lists described in subsections (9) and (10) above are proprietary and confidential information and will not be released to anyone absent a court order.

(13) Failure to provide customer lists to the alarm administrator, as required in subsections (9) and (10) above, will result in a fine of $50.00 per working day until the alarm installation company or monitoring company complies with the requirement. Failure to comply after ten working days will result in the suspension of the company's security alarm license.

(14) Alarm installation companies or alarm monitoring companies whose security alarm licenses have been suspended as a result of violations of the duties specified in this subsection may seek reinstatement upon compliance with the requirements herein. The city will assess reinstatement fees, if users have been notified of the suspension in accordance with subsection j(4) below.

(j) SPECIAL LICENSING OF ALARM INSTALLATION AND MONITORING COMPANIES.

(1) Every alarm installation company and every alarm monitoring company shall obtain a City of Reno security alarm license from the police department and pay an annual fee to the City of Reno. Failure to pay the annual fee within 30 days after notice requires the payment of a late fee.

(2) The police department will not respond to any alarm dispatch request from any alarm installation company or monitoring company that does not possess a current, valid security alarm license issued pursuant to this section and a current, valid City of Reno business license.

(3) The alarm administrator shall notify all known alarm users subscribing to an unlicensed alarm installation company or an unlicensed alarm monitoring company that the company is unlicensed and that the police department will no longer respond to the user's alarms.

(4) The fee imposed by this section is in addition to the business license fee and all other fees levied by the City.

(k) DUTIES AND AUTHORITY OF THE ALARM ADMINISTRATOR.

(1) The alarm administrator shall:

a. Designate the manner and form of alarm dispatch requests and the telephone numbers to be used for such requests; and

b. Establish a procedure to accept cancellation of alarm dispatch requests.

(2) The alarm administrator shall establish a procedure to acquire and record information on alarm dispatch requests including the following information:

a. Identification of the alarm site;

b. The date and time alarm dispatch request was received, including the name of the monitoring company and the monitoring operator's name or number;

c. Date and time of an officer's arrival at the alarm site;

d. The alarm zone and zone description, if available;

e. Name of alarm user's personal representative present at the alarm site, if any;

f. Whether an officer was unable to locate the address of the alarm site; and

g. The cause of the alarm signal, if known.

(3) The alarm administrator shall establish and implement a procedure to notify the alarm user of a false alarm. The notice shall include the following:

a. The date and time of an officer's response to the false alarm; and

b. A statement urging the alarm user to ensure that the alarm system is properly operated, inspected, and serviced in order to avoid false alarms and resulting false alarm fees.

c. The false alarm fees recorded.

(4) The alarm administrator may require that a conference be held with an alarm user and the alarm installation company or monitoring company responsible for repairing or monitoring of the alarm system to review the circumstances of each false alarm. The conference may be held in person or through a conference telephone call, at the alarm administrator's discretion. Failure to participate will result in suspension of either the alarm permit, the security alarm license, or both as indicated by the facts of the case. Reinstatement after compliance will require payment of an additional permit fee for the alarm user or will be under the terms of subsection (i)(14) for alarm installation companies and monitoring companies.

(5) The alarm administrator may establish an alarm user awareness class. The alarm administrator may request the assistance of associations, alarm companies and law enforcement agencies in developing and implementing the class. The class shall inform alarm users of the problems created by false alarms and teach alarm users how to avoid creating false alarms.

(6) If a false holdup alarm has occurred and the alarm was triggered using a single action, non-recessed button, the alarm administrator may consider a waiver of the false alarm fee if action is taken by the alarm user to remove or replace the single action, non-recessed button.

(7) The alarm administrator will make a copy of this ordinance and/or an ordinance summary sheet available to each alarm user.

(l) FALSE ALARM FEES.

(1) False alarm fees.

An alarm user shall pay fees to the alarm administrator for police response to any false alarm. The fees charged pursuant to this title shall be contained in the fee schedule which shall be maintained by the police department, and amended upon approval of the city council.

(2) If a false alarm fee is not paid within 30 days after the invoice is mailed, a late fee will be imposed.

(3) Fees for false alarms by unregistered alarm systems.
In addition to the fees set forth in subsections (1) and (2), a supplemental fee is hereby imposed upon any person operating an unregistered alarm system. The alarm administrator may waive this additional fee for an unregistered system if the alarm user submits an application for alarm registration within ten business days after receiving notice of such violation.

(4) If cancellation of police response occurs prior to the police officer being dispatched, the response is not considered a false alarm for the purpose of fees, and no penalty will be assessed.

(5) The alarm administrator may waive a false alarm fee due to a history of false alarms that is identified as chronic equipment failure.

(6) The alarm installation company shall be assessed a fee if the officer responding to the false alarm determines that an on-site employee of the alarm installation company directly caused the false alarm. Such false alarms are not included in the total number of false alarms for the alarm user.

(7) A fee is hereby imposed against any monitoring company that fails to verify alarm system signals as required in subsection (i)(9)(b).

(8) A fine in the amount of $200.00 is hereby imposed against an alarm installation company if the alarm administrator determines that an employee of the alarm installation company knowingly made a false statement concerning the inspection of an alarm site or the performance of an alarm system.

(9) Notice of the right of appeal under this ordinance will be included with notice of any penalty.

(m) NOTICE TO ALARM USERS OF FALSE ALARMS AND SUSPENSION OF POLICE RESPONSE.

(1) The alarm administrator shall notify the alarm user in writing after each false alarm. The notice shall include the amount of the fee for the false alarm, the fact that response will be suspended after the third false alarm during the permit year, (excluding duress, holdup and panic alarms) and a description of the appeals procedure available to the alarm user.

(2) The alarm administrator shall notify the alarm user and the alarm installation company or monitoring company in writing 30 days before an alarm response is to be suspended. Suspension of alarm response does not apply to duress, robbery, holdup and panic alarms. The notice of suspension must also include the amount of the fine for each false alarm and a description of the appeals procedure available to the alarm user and the alarm installation company or monitoring company.

(n) VIOLATION TO MAKE ALARM DISPATCH REQUEST FOR SUSPENDED ALARM SITE.

(1) The alarm administrator shall notify the police department of each alarm user whose intrusion alarm permit qualifies for suspension under this section. The alarm administrator shall suspend an intrusion alarm permit if it is determined that:

a. The alarm user has had three or more false intrusion alarms within one year after the date of issuance of their annual permit, except that the alarm administrator

may waive a suspension of a permit upon receipt of documented work orders showing reasonable attempts to repair the alarm system. The alarm administrator may impose a one week acclimation period upon reinstatement of the permit.

b. There is a false statement of a material fact in the application for a permit; or

c. The alarm user fails or refuses to pay a false alarm fee or late fee assessed under this section.

(2) It is a violation of this section for a person to operate an intrusion alarm system during the period in which the alarm permit is suspended. It is a violation of this section for a monitoring company to make an alarm dispatch request to an intrusion alarm site after the company has been notified by the alarm administrator that the permit for that alarm site has been suspended. The monitoring company must pay a $50.00 fine to the alarm administrator for each such dispatch to an alarm site. If the penalty is not paid to the alarm administrator within 30 days, a late fee is hereby imposed on the monitoring company.

(3) Unless there is a separate indication that there is a crime in progress, Emergency Communications shall not dispatch an officer to an intrusion alarm site for which the alarm permit is suspended.

(4) If an intrusion alarm permit is reinstated, the police department may again suspend the permit if it is determined that two false alarms have occurred within 180 days after the reinstatement date. The exception set forth in paragraph (n)(1)(a) applies to any such suspension.

(5) This subsection applies only to intrusion alarm systems. Holdup alarms, robbery alarms and panic alarms are not subject to suspension.

(o) APPEALS OF DETERMINATIONS REGARDING ALARM PERMITS AND FEES.

(1) If the alarm administrator assesses a fee, suspends an alarm permit or denies the issuance, renewal or reinstatement of an alarm permit, the alarm administrator shall send written notice of the action and a statement of the right to appeal to the affected applicant or alarm user and the alarm installation company or monitoring company.

(2) The alarm user, alarm installation company or alarm monitoring company may appeal any action described in (1) above to the chief of police or designee by setting forth in writing the reasons for the appeal and delivering the appeal to the chief of police or designee within 20 business days after receipt of notice of the action. Failure to deliver the appeal within that time period is a waiver of the right to appeal.

(3) The procedure for an appeal to the chief of police or designee is as follows:

a. The applicant, alarm user, alarm installation company or monitoring company may file a written request for appeal by paying an appeal fee to the police department and setting forth the reasons for the appeal. The appeal must be entitled "Appeal from Alarm Administrator's Action." Appeal fees will be returned to the appealing party if the appeal is successful. Upon good cause shown, the alarm administrator may, in the exercise of discretion, waive the appeal fee for residential alarm users.

b. The chief of police or designee shall conduct a recorded hearing within 30 days after receipt of the request for review and shall consider the evidence submitted by the appealing party and the alarm administrator. The chief of police or

designee must base the decision on the preponderance of evidence presented at the hearing and must render a decision within 15 days after the date of the hearing. The decision shall affirm or reverse the decision or action taken by the alarm administrator.

c. Any person aggrieved by the decision of the chief of police or designee may appeal in accordance with the procedure set forth in Reno Municipal Code 1.05.500, et seq.

d. Filing of an appeal stays any action by the alarm administrator to suspend an alarm permit or require the payment of a fee or penalty until the appeal process has been exhausted. This provision applies only to the action of the alarm administrator that is the subject of the appeal. This provision does not operate as a bar to enforcement action on violations of this section that occur thereafter.

(4) The alarm administrator or the chief of police, or their respective designees, may adjust the count of false alarms based on:

a. Evidence that a false alarm was caused by action of the telephone company;

b. Evidence that a false alarm was caused by a power outage;

c. Evidence that an alarm dispatch request was not a false alarm; or

d. The occurrence of multiple alarms within in a 24-hour period, which may be considered as one false alarm to allow the alarm user time to take corrective action, unless the false alarms are directly caused by the alarm user.

e. On review of fees or penalties assessed to an alarm installation company or monitoring company, the alarm administrator, or, if appealed, chief of police, or designee, or the administrative hearing officer, may consider whether the alarm or monitoring company has engaged in a consistent pattern of violations.

(p) REINSTATEMENT OF SUSPENDED ALARM PERMITS.

(1) On the first suspension of a permit, a person whose alarm permit has been suspended may obtain reinstatement of the permit by the alarm administrator if the person:

a. Submits a new application and pays a reinstatement fee;

b. Pays, or otherwise resolves, all outstanding fees and penalties;

c. Submits a certification from an alarm installation company stating that the alarm system has been inspected and repaired (if necessary) by the alarm installation company; and

d. The alarm user successfully completes an on-line alarm awareness class and test.

(2) On the second and every subsequent suspension of a permit, reinstatement may be obtained by compliance with (1) above and compliance with any of the following conditions that the alarm administrator may require:

a. Proof that an employee of the alarm installation company or monitoring company caused the false alarm.

b. Upgrade the alarm control panel to meet SIA Control Panel Standard CP-01.

c. A written statement from an independent inspector designated by the chief of police or designee that the alarm system has been inspected and is in good working order.

d. Confirmation that all motion detectors are "dual technology" type.

e. Confirmation that the alarm system requires two independent zones to trigger before transmitting an alarm signal to the monitoring company.

f. Confirmation that the alarm system requires two independent detectors to trigger before transmitting an alarm signal to the monitoring company.

g. Certification that the monitoring company will not make an alarm dispatch request unless the need for an officer is confirmed by a listen-in device. This condition does not apply to residential property.

h. Certification that the monitoring company will not make an alarm dispatch request unless the need for an officer is confirmed by a camera device. This condition does not apply to residential property.

i. Certification that the monitoring company will not make an alarm dispatch request unless the need for an officer is confirmed by a person at the alarm site.

j. The alarm user successfully completes an on-line alarm awareness class and test.

(3) The police department shall reinstate its response to an intrusion alarm site as soon as is practicable after receiving notice of reinstatement from the alarm administrator.

(q) REVOCATION OF ALARM PERMIT.

(1) The chief of police or designee may revoke an alarm permit if it is determined that:

a. There is a violation of this chapter by the alarm user;

b. There is a false statement of a material fact in the application for a permit;

c. The permitted alarm system has generated more than 12 false alarms during any 12 month period; or

d. The alarm user has failed to pay an alarm permit fee or late fee, a late renewal fee or any fee or penalty assessed under this section, more than 30 days after the fee is due.

(2) A revocation made pursuant to this section is not subject to administrative review.

(3) The chief of police or designee may, for good cause shown, reinstate a permit that has been revoked pursuant to this section.

(r) POLICE DEPARTMENT RESPONSE.

The police department will respond to all "in progress" robbery or panic alarms as promptly as possible, taking into account pending calls for service, following notification of the receipt of the alarm from the alarm or monitoring company.

(s) CONFIDENTIALITY OF ALARM INFORMATION.

All information contained in documents gathered through alarm registrations, the submission of customer lists and in the alarm appeal process must be held in confidence by all employees of the alarm administrator and the City of Reno. Such information is proprietary and is hereby declared confidential and not a public record. Absent special circumstances, such information must not be released to the public or any person other than a law

enforcement agency or the applicable alarm user, alarm installation company or alarm monitoring company except pursuant to court order.

(t) SCOPE OF POLICE DUTY; IMMUNITIES PRESERVED.

The issuance of alarm permits does not create a contract between the police department and/or the city and any alarm user, alarm installation company or monitoring company, nor does it create a duty or obligation, either expressed or implied, on the police department to respond to any alarm. Any and all liability and consequential damage resulting from the failure of the police department to respond to an alarm dispatch request is hereby disclaimed and full governmental immunity as provided by law is retained. By applying for an alarm permit, the alarm user acknowledges that the police department response is influenced by the availability of officers, priority of calls, traffic conditions, emergency condition and staffing levels.

(Ord. No. 4628, § 1, 5-14-96; Ord. No. 4840, § 1, 1-27-98; Ord. No. 5148, § 1, 4-25-00; Ord. No. 5977, § 1, 10-10-07)

Sec. 8.06.060. False fire alarms.

It is unlawful for any person to intentionally give or make, or cause to be given or made, any false alarm of fire.

(Code 1966, § 11.12.460)
Cross reference—Private fire alarm systems, Ch. 16.40.
State law reference—False alarms unlawful, NRS 475.100.

Sec. 8.06.070. Reserved.

Editor's note—Ord. No. 6107, § 2, adopted June 10, 2009, repealed § 8.06.070, which pertained to peddlers and solicitors. See also the Administrative Code Comparative Table.

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CHAPTER 8.08. OFFENSES AGAINST PERSONS*

Sec. 8.08.010. Assault.
Sec. 8.08.011. Provoking assault prohibited.
Sec. 8.08.020. Reserved.
Sec. 8.08.022. Reserved.
Sec. 8.08.025. Harassment.
Sec. 8.08.030. Soliciting, coaxing, enticing or luring children.
Sec. 8.08.040. Stalking.
Sec. 8.08.050. Taking and soliciting commercial photographs on certain streets.

Sec. 8.08.010. Assault.

Intentionally placing another person in reasonable apprehension of immediate bodily harm is an assault and any person convicted thereof shall be punished for a misdemeanor.

(Code 1966, § 11.12.030; Ord. No. 5375, § 1, 10-22-02)

State law references—Assault or battery with intent to commit a crime, NRS 200.400 et seq.; assault and battery, NRS 200.471 et seq.

Sec. 8.08.011. Provoking assault prohibited.

It shall be unlawful for any person, by word, sign or gesture, to willfully provoke, or attempt to provoke, another person to commit an assault.

(Ord. No. 4984, § 1, 4-13-99)

Sec. 8.08.020. Reserved.

Editor's note—Ord. No. 6502, § 1, adopted Feb. 27, 2019 repealed § 8.08.020, which pertained to battery and derived from Code 1966, § 11.12.035; Ord. No. 3328, § 1, adopted Oct. 28, 1985; Ord. No.3862, § 1, adopted Sept. 25, 1989; Ord. No. 4451, § 1, adopted Dec. 13, 1994; Ord. No. 4579, § 1, adopted Nov. 28, 1995; Ord. No. 4808, § 1, adopted Oct. 28, 1997; and Ord. No. 4897, § 1, adopted July 14, 1998.

Sec. 8.08.022. Reserved.

Editor's note—Ord. No. 6502, § 1, adopted Feb. 27, 2019 repealed § 8.08.022, which pertained to penalties and derived from Ord. No. 4821, § 1, adopted Nov. 18, 1997.

Sec. 8.08.025. Harassment.

(a) A person is guilty of harassment if:

(1) Without lawful authority, the person knowingly threatens:

a. To cause bodily injury in the future to the person threatened or to any other person;

b. To cause physical damage to the property of another person;

c. To subject the person threatened or any other person to physical confinement or restraint; or

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***State law reference—**Crimes against the person, NRS 200.010 et seq.

d. To do any act which is intended to substantially harm the person threatened or any other person with respect to his physical or mental health or safety; and

(2) The person by words or conduct places the person receiving the threat in reasonable fear that the threat will be carried out.

(b) The penalties provided in this section do not preclude the victim from seeking any other legal remedy available.

(c) Harassment shall be deemed to have been committed where the conduct occurred, or at the place from which the threat was made, or at the place where the threat was received.

(d) If a defendant charged with a crime involving harassment is released from custody before trial or is found guilty at the trial, the court may issue an order or provide as a condition of the release or sentence that the defendant;

(1) Stay away from the home, school, business or place of employment of the victim of the alleged offense and any other location specifically named by the court.

(2) Refrain from contacting, intimidating, threatening or otherwise interfering with the victim of the alleged offense and any other person, including a member of the family or the household of the victim, specifically named by the court.

(e) A court order issued pursuant to this section must:

(1) Be in writing; and

(2) Contain the warning that violation of the order will subject the defendant to prosecution for criminal contempt.

(f) Any law enforcement agency in this state may enforce a court order issued pursuant to this section.

(g) The prosecuting attorney in any trial brought against a person on a charge of harassment shall inform the alleged victim of the final disposition of the case.

(h) If the defendant is found guilty and the court issues an order or provides a condition of his sentence restricting the ability of the defendant to have contact with the victim or witnesses, the clerk of the court shall:

(1) Keep a record of the order or condition of the sentence; and

(2) Provide a certified copy of the order or condition of the sentence to the victim and other persons named in the order.

(Ord. No. 3865, § 1, 9-25-89)
State law reference—Harassment and stalking, NRS 200.571 et seq.

Sec. 8.08.030. Soliciting, coaxing, enticing or luring children.

(a) DEFINITIONS.

As used in this section:

(1) *"Children"* means individuals under the age of 16.

(2) *"Communication"* means verbal, non-verbal or written expression transmitted from one person to another.

(3) *"Course of conduct"* means a pattern of conduct which consists of a series of acts over a period of time which evidences a continuity of purpose directed at a specific child.

(4) *"Sexual conduct"* means sexual intercourse, lewd exhibition of the genitals, fellatio, cunnilingus, bestiality, anal intercourse, excretion, sado-masochistic abuse, masturbation, or the penetration of any part of a person's body or of any object manipulated or inserted by a person into the genital or anal opening of the body of another.

(b) It shall be unlawful for any person to:

(1) Engage in a course of conduct involving communication with, or following, a child for the purpose of committing one or more of the offenses listed below.

(2) Knowingly, by any means and without privilege to do so, solicit, coax, entice or lure any child to enter into any vehicle, as defined in NRS 482.135, or structure, if both of the following apply:

(A) The suspect does not have the express or implied permission of the parent, guardian or other legal custodian of the child in undertaking the activity; and

(B) The suspect is not a law enforcement officer, medic, firefighter, other person who regularly provides emergency services, or social services employee and is not an employee or agent of, or a volunteer acting under the direction of, any board of education, or the suspect is any of such persons, but, at the time the suspect undertakes the activity, he is not acting within the scope of his lawful duties in that capacity.

(3) Solicit, coax, entice or lure a child to engage in sexual conduct.

(c) Any person convicted under this section shall be punished for a misdemeanor.

(Code 1966, § 11.12.260; Ord. No. 5424, § 1, 2-11-03)

Cross references—Private kindergarten and school permits, Ch. 4.45; child care facilities, Ch. 10.14.

State law references—Annoyance, molestation of minor, NRS 207.260; loitering about schools or public places where children congregate, NRS 207.270.

Sec. 8.08.040. Stalking.

(a) A person who, without lawful authority, wilfully or maliciously engages in a course of conduct that would cause a reasonable person to feel terrorized, frightened, intimidated or harassed, and that actually causes the victim to feel terrorized, frightened, intimidated or harassed, commits the crime of stalking.

(b) A criminal penalty provided for in this section may be imposed in addition to any penalty that may be imposed for any other criminal offense arising from the same conduct or for any contempt of court arising from the same conduct.

(c) The penalties provided in this section do not preclude the victim from seeking any other legal remedy available.

(d) As used in this section:

(1) "Course of conduct" means a pattern of conduct which consists of a series of acts over time that evidences a continuity of purpose directed at a specific person.

(2) "Without lawful authority" includes acts which are initiated or continued without the victim's consent. The term does not include acts which are otherwise protected or authorized by constitutional or statutory law, regulation or order of a court of competent jurisdiction, including, but not limited to:

a. Picketing which occurs during a strike, work stoppage or any other labor dispute.

b. The activities of a reporter, photographer, cameraman or other person while gathering information for communication to the public if that person is employed or engaged by or has contracted with a newspaper, periodical, press association or radio or television station and is acting solely within that professional capacity.

c. The activities of any person that are carried out in the normal course of his lawful employment.

d. Any activities carried out in the expression of the constitutionality protected rights of freedom of speech and assembly.

(e) Stalking shall be deemed to have been committed where the conduct occurred.

(Ord. No. 4329, § 1, 9-14-93)

State law reference—Stalking, NRS 200.575.

Sec. 8.08.050. Taking and soliciting commercial photographs on certain streets.

(a) Within the following described area of the city:

Commencing at the joint of intersection of the north line of West Fourth Street with the centerline of Sierra Street; thence northerly alone the centerline of Sierra Street to the point of its intersection with the northerly line of West Fifth Street; thence easterly along the northerly line of West Fifth and East Fifth Streets to the point of its intersection with the easterly line of Center Street to the northerly line of East Fourth Street; thence along the northerly line of East Fourth Street to the easterly line of Lake Street; thence southerly along the easterly line of Lake Street to the point of its intersection with the southerly line of Mill Street; thence westerly along the southerly line of Mill Street to the point of its intersection with the easterly line of South Center Street; thence southerly along the easterly line of South Center Street to the point of its intersection with the southerly line of East Liberty Street; thence westerly along the southerly line of East Liberty Street to the point of its intersection with the easterly line of South Virginia Street; thence southerly along the easterly line of South Virginia Street to the point of its intersection with the southerly line of California Avenue; thence westerly along the southerly line of California Avenue to the point of its intersection with the westerly line of South Sierra Street; thence northerly along the westerly line of South Sierra Street to the southerly line of Court Street; thence westerly along the southerly line of Court Street to the point of its intersection with the westerly line of Arlington Avenue; thence northerly along the westerly line of Arlington Avenue to the northerly line of West Fourth Street; thence easterly along the northerly line of West Fourth Street to the centerline of Sierra Street, the point of beginning as described on the map attached hereto as Exhibit ″A.″

It is unlawful for any person, on any public street, alley or sidewalk, to take by any process any photograph, picture or snapshot of any person or persons for the purpose of offering same to the person or persons whose picture was taken for any consideration or gain, and it is unlawful for any person, directly or indirectly, to solicit, offer or agree so to take any such photograph, picture or snapshot for such purpose.

(b) In no event shall the provisions of this section be construed to apply in any manner to the taking of a picture solely for the purpose of reproducing it in a book, newspaper, magazine, periodical, movie, or television film, or to the taking of a picture solely for the

purpose of using it in any art display; and the sale of any book, newspaper, magazine, periodical, movie or television film, containing such pictures likewise shall not be a violation of the provisions of this section.

(Ord. No. 4645, § 1, 7-9-96)

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CHAPTER 8.10. OFFENSES AGAINST PROPERTY*

Sec. 8.10.010. Trespassing.
Sec. 8.10.011. Trespassing upon railroad tracks.
Sec. 8.10.012. Loitering prohibited when posted on private property.
Sec. 8.10.015. No climbing on structure.
Sec. 8.10.020. Destruction of property.
Sec. 8.10.021. Throwing substance at or damaging bicycle, horse, horse drawn carriage or motor vehicle prohibited.
Sec. 8.10.025. Destruction of notices.
Sec. 8.10.030. Injuring trees or shrubbery.
Sec. 8.10.035. Receiving, possessing or withholding stolen goods prohibited.
Sec. 8.10.040. Petit larceny.
Sec. 8.10.045. Reserved.
Sec. 8.10.050. Defrauding proprietors of hotels, inns, restaurants, motels, trailer parks, and taxicab drivers.
Sec. 8.10.055. Unauthorized removal of shopping carts.
Sec. 8.10.060. Embezzlement.
Sec. 8.10.070. Obtaining property, services under false pretenses.
Sec. 8.10.080. Registration books required.
Sec. 8.10.090. Unlawful to occupy a room without registering.
Sec. 8.10.100. Reserved.
Sec. 8.10.110. Possession of catalytic converter.

Sec. 8.10.010. Trespassing.

(a) Every person who goes upon the land or into any building of another with intent to vex or annoy the owner or occupant thereof, or to commit any unlawful act, or wilfully goes or remains upon any land or in any building after having been warned by the owner or occupant thereof not to trespass, is guilty of a misdemeanor. If the premises were at the time open to the public, the warning must have been given within the previous six months. The meaning of this subsection is not limited by subsections (b), (c), (d) and (e) of this section.

(b) Every owner or other occupant of any land shall be deemed to have given a sufficient warning against trespassing, within the meaning of this section, who posts in a conspicuous manner on each side thereof, upon or near the boundary at intervals of not more than 700 feet, signs, legibly printed or painted in the English language, warning persons not to trespass, or who fences the area.

(c) It is prima facie evidence of trespass for any person to be found on private or public property which is posted or fenced as provided in subsection (b) without lawful business with the owner or occupant of the property.

(d) An entryman on land under the laws of the United States is an owner within the meaning of this section.

***State law reference—**Crimes against property, NRS Ch. 205.

(e) As used in this section, "fence" means a barrier sufficient to indicate an intent to restrict the area to human ingress, including, but not limited to, a wall, hedge or chain link or wire mesh fence.

(Code 1966, § 11.12.002; Ord. No. 4408, § 1, 7-26-94)
State law reference—Similar provisions, NRS 207.200.

Sec. 8.10.011. Trespassing upon railroad tracks.

(a) Preamble. As adopted by the United States Department of Transportation Federal Railroad Administration, the Reno City Council finds and declares as follows:

(1) It is illegal to access private railroad property anywhere other than a designated pedestrian or roadway crossing.

(2) Trespassers are most often pedestrians who walk across or along railroad tracks as a shortcut to another destination.

(3) Some trespassers are loitering or engaged in recreational activities such as taking photographs, jogging, bicycling, hunting, or operating recreational off-highway vehicles (ROVs).

(4) Riding ROVs along railroad tracks leads to erosion of an important part of the track foundation known as ballast, or the rock and soil material that supports the ties and rail.

(5) Damage to the ballast degrades the entire track structure and can lead to a train derailment, which can cause a hazardous materials spill or damage to other people and property.

(6) Finally, ReTRAC creates a unique landscape to the City of Reno which makes it a matter of local concern pursuant to NRS 268.003.

(b) Any person who enters or remains within 100 feet of a railroad track without the permission of the owner of the land, the owner's agent, or the person in lawful possession and whose entry, presence, or conduct upon the property interferes with, interrupts, hinders, or which, if allowed to continue would interfere with, interrupt, or hinder the safe and efficient operation of any locomotive, railway car or train is guilty of a misdemeanor.

(c) The measurement of 100 feet shall be from the most outer points of the railroad track extending out in each direction.

(d) This section does not prohibit picketing in the immediately adjacent area of the property of any railroad property or any lawful activity by which the public is informed of the existence of an alleged labor dispute.

(Ord. No. 6684, § 1, 8-28-24)

Sec. 8.10.012. Loitering prohibited when posted on private property.

(a) It is unlawful for any person to enter or remain on any posted property without the permission of the owners, tenant or the occupant in legal possession or control thereof.

(b) Property may be posted in the following manner:

(1) If the property does not contain any lineal dimension exceeding 300 feet, by posting signs at each corner of the area and at intervals not exceeding 100 feet and, if such property has a definite entrance or entrances, at each entrance.

(2) If property has lineal dimensions exceeding 300 feet, by posting signs at each corner of the area and at intervals not exceeding 200 feet and, if such property has a definite entrance or entrances, at each such entrance.

(c) For law enforcement to cite or arrest for loitering there must be a letter of authority filed by the property owner with law enforcement as well as signs posted.

(1) The letter of authority must be completed and contain the property owner's name, address and telephone number.

(2) At minimum, the property owner must provide at least one alternative contact person who is aware law enforcement may contact them and agrees with the conditions outlined in the Letter of Authority.

(3) The letter of authority is valid until either party terminates.

(4) The letter of authority is not interpreted as a request to obligate law enforcement to provide exclusive patrol of the owner's private property.

(5) This request for assistance and loitering enforcement letter does not create a special relationship between the responsible party or any other person and the City of Reno, The Reno Police Department or any of its agents, officers, employees or volunteers.

(6) The Reno Police Department may terminate the Letter of Authority for any reason or no reason by giving the property owner ten days written notice. Such notice may be sent by regular mail or email. If the notice is mailed, the ten day time period begins on the date of the letter.

(Ord. No. 6699, § 1, 1-22-25)

Sec. 8.10.015. No climbing on structure.

(a) It shall be a misdemeanor for any person to climb, walk upon, jump from, stand, sit, or lie on any public structure not designated or customarily used for such purpose, or prohibited by posting.

(b) "Structure" is defined as any physical improvement or facility including building, bridge, sign, parking meter, street light, traffic signal, fence, wall, utility box, or art installation.

(Ord. No. 6456, § 1, 3-28-18)

Sec. 8.10.020. Destruction of property.

(a) It shall be unlawful for any person within the City to wilfully, unlawfully and maliciously destroy, burn, cut or otherwise injure any goods, chattels or property of any description whatever belonging to another.

(b) It shall be unlawful for any person within the City to wilfully, unlawfully or maliciously break, destroy or injure the door or window of any dwelling house, shop, store or other house or building, or the door or window, grating, platform, wheels or other part of any railroad, or sever therefrom, or from any gate, fence or enclosure any part thereof, or any material of which it is formed, or sever from the freehold any produce thereof, or anything attached thereto, or pull down, injure, or destroy any gate, post, railing, or fence, or any part thereof, or break, destroy, or injure any boat, or cut down, lap, girdle, or to otherwise injure or destroy any fruit or shade tree, being the property of another, or who shall, without the consent of the owner, agent, or occupant of the premises or property herein mentioned, deface, disfigure or cover up any fruit tree, or ornamental tree, fence, house,

wall, shop, or building property of another, by pasting upon or in any way fastening thereto, any printed bill, signboard, show poster or other device whatsoever or who shall, without a written permit from the city council, deface, disfigure, or cover up by pasting upon or in any way fastening thereto any printed bill, signboard, show poster or other device whatsoever, upon any public building, monument, grave stone, ornamental tree, or other object or property under the supervision and control of the City or of any association or society whatsoever.

(Code 1966, § 11.12.060)

Cross reference—Unlawful signs, § 14.16.130(b).

State law reference—Malicious mischief, NRS 206.005 et seq.

Case law references—Malicious mischief action does not involve any question of title or right of possession to real estate; guilt of defendant depends not at all upon his right to the property, as against one in adverse possession but wholly upon his motive. *State ex rel. Murphy and Lutz v. Rising,* 10 Nev. 97 (1875).

Sec. 8.10.021. Throwing substance at or damaging bicycle, horse, horse drawn carriage or motor vehicle prohibited.

It is unlawful for any person:

(a) To throw any stone, rock, missile or any substance at any bicycle, motorbus, truck, horse, horse drawn carriage, or other motor vehicle; or

(b) To throw any stone, rock, missile, or any substance which injures, defaces or damages any bicycle, motorbus, truck, horse, horse drawn carriage, or other motor vehicle, or any part thereof.

(Ord. No. 4986, § 1, 4-13-99)

Sec. 8.10.025. Destruction of notices.

It shall be unlawful for any person, without proper authority, to tear down or deface any ordinance, bill, notice, advertisement, or any other paper, of a business of legitimate character lawfully posted at any time before the object of such notice has been accomplished.

(Ord. No. 4646, § 1, 7-9-96)

Sec. 8.10.030. Injuring trees or shrubbery.

It shall be unlawful for any person to cut or mutilate any ornamental tree or shrubbery of any kind, upon or along any of the public streets, highways, alleys, public or private parks or grounds, or to tie, hitch or fasten any horse or other animal to any ornamental tree or shrubbery on or upon any of the public streets, highways, alleys, public or private parks or grounds, within the corporate limits of the City, without the consent which shall be first obtained in writing from the owner, person or officer or duly authorized agent, of the property or premises upon or in front of which such tree or shrubbery stands.

(Code 1966, § 11.12.120)

Cross reference—Trees and shrubs generally, Ch. 8.32.

State law reference—Entering yard with intention to destroy plants and trees, NRS 206.040.

Sec. 8.10.035. Receiving, possessing or withholding stolen goods prohibited.

(a) Every person who, for his own gain, or to prevent the owner from again possessing his property, buys, receives, possesses or withholds stolen goods, or anything the stealing of which is declared to be larceny, or property obtained by robbery, burglary or embezzlement, the value of which is less than $1,200.00:

(1) Knowing that the goods or property were so obtained; or

(2) Under such circumstances as should have caused a reasonable person to know that the goods or property were so obtained, shall be punished for a misdemeanor. Every such person may be tried, convicted and punished as well before as after the trial of the principal.

(b) Possession by any person of three or more items of the same or a similar class or type of personal property on which a permanently affixed manufacturer's serial number or manufacturer's identification number has been removed, altered or defaced, is prima facie evidence that the person has violated this section.

(Ord. No. 4374, § 1, 3-22-94; Ord. No. 6568, § 1, 8-12-20)

Sec. 8.10.040. Petit larceny.

It is unlawful for any person to take or carry away the property of another with the intent to deprive the owner of his property therein, in any value less than $1,200.00 and for his conviction therefore, he shall be fined in an amount not more than $1,000.00 and/or be incarcerated not more than six months. In addition to any other penalty, the court shall order the person to pay restitution.

(Code 1966, § 11.12.003; Ord. No. 2762, § 1, 8-13-79; Ord. No. 3866, § 1, 9-25-89; Ord. No. 4815, § 1, 10-28-97; Ord. No. 5058, § 1, 11-12-99; Ord. No. 6237, § 1, 6-27-12; Ord. No. 6569, § 1, 8-12-20)

State law reference—Petit larceny, NRS 205.240.

Sec. 8.10.045. Reserved.

Editor's note—Ord. No. 4823, § 1, adopted January 13, 1998, repealed § 8.10.045, which pertained to shoplifting. See the Code Comparative Table.

Sec. 8.10.050. Defrauding proprietors of hotels, inns, restaurants, motels, trailer parks, and taxicab drivers.

(a) It is unlawful for any person:

(1) To obtain food, foodstuffs, lodging, merchandise or other accommodations at any hotel, inn, trailer park, motor court, boardinghouse, rooming house, lodging house, furnished apartment house, furnished bungalow court, furnished auto camp, eating house, restaurant, grocery store, market or dairy, without paying therefor, with intent to defraud the proprietor or manager thereof; or

(2) To obtain credit at a hotel, inn, trailer park, motor court, boardinghouse, rooming house, lodging house, furnished apartment house, furnished bungalow court, furnished auto camp, eating house, restaurant, grocery store, market or dairy by the use of any false pretense; or

(3) After obtaining credit, food, lodging, merchandise or other accommodations at a hotel, inn, trailer park, motor court, boardinghouse, rooming house, lodging house, furnished apartment house, furnished bungalow court, furnished auto camp, eating house, restaurant, grocery store, market or dairy, to abscond or surreptitiously, or by force, menace or threats, to remove any part of his baggage therefrom, without paying for his food or accommodations;

(4) Any person refusing to pay the driver of a taxicab after being transported to any location within the City with intent to defraud is guilty of a misdemeanor.

(b) Any person who violates any of the provisions of subsection (a) of this section shall, upon conviction, be punished by a fine of not more than five hundred ($500.00) and/or imprisonment in the city jail for not more than six months, or any combination thereof, where the total value of the credit, food, foodstuffs, lodging, merchandise or other accommodations received from any one such establishment is one thousand two hundred dollars ($1,200.00) or less.

(c) Proof that lodging, food, foodstuffs, merchandise or other accommodations were obtained by false pretense, or by false or fictitious show or pretense of any baggage or other property, or that the person refused or willfully neglected to pay for such food, foodstuffs, lodging, merchandise or other accommodations, or that he gave in payment for such food, foodstuffs, lodging, merchandise or other accommodations negotiable paper on which payment was refused, or that he absconded without paying or offering to pay for such food, foodstuffs, lodging, merchandise or other accommodations, or that he surreptitiously removed or attempted to remove his baggage, shall be prima facie evidence of the fraudulent intent mentioned in this section.

(d) This section shall not apply where there has been an agreement in writing for delay in payment for a period to exceed ten days.

(Code 1966, § 11.12.500; Ord. No. 3159, § 1, 2-27-84; Ord. No. 6570, § 1, 8-12-20)
State law reference—Similar Provisions, NRS 205.445.

Sec. 8.10.055. Unauthorized removal of shopping carts.

(a) "*Shopping cart*" means a small, wheeled vehicle, drawn or pushed by hand which has a basket and which is used by customers, agents or employees:

(1) In a retail store, to transport goods of any kind; or

(2) In a laundry or establishment for dry cleaning, to transport fabrics and the supplies necessary to clean or launder them.

(b) "*Premises*" includes the area within a retail store, laundry or establishment for dry cleaning and any area provided for a customer's use to park his vehicle.

(c) "*Authorization*" means a written document which grants authority to retrieve shopping carts for the owner.

(d) It shall be unlawful for:

(1) Any person to wrongfully remove a shopping cart from the owner's premises.

(2) Any person to wrongfully possess a shopping cart that has been removed from the owner's premises.

(3) Any person to possess a shopping cart with the serial numbers removed, obliterated or altered with the intent to deprive the owner of its possession either temporarily or permanently.

(4) Any person to leave or abandon a shopping cart at a location other than the owner's premises with the intent to deprive the owner of its possession either temporarily or permanently.

(5) Any person to alter, convert or tamper with a shopping cart.

(6) Any person to remove, obliterate or alter the shopping cart's serial numbers.

(e) This section does not apply to:

(1) The owner of the shopping cart, his agents or employees.

(2) A customer of a retail store, laundry or establishment for dry cleaning who has written permission from the owner of the shopping cart, his agents or employees to possess the shopping cart or remove it from the owner's premises.

(3) The operator of a service to retrieve shopping carts if he has complied with subsection (f).

(f) Any person who retrieves shopping carts from areas not on the owner's premises, whether as a volunteer or for compensation, must obtain written authorization from the owner authorizing him to retrieve the shopping carts. Each vehicle used to retrieve shopping carts must have a copy of the authorization from the owner of the shopping carts.

(g) It is unlawful for the owner of the vehicle used to retrieve shopping carts to fail or refuse to surrender, upon demand, to a peace officer, the copy of the authorization required by subsection (f).

(h) The owner of any shopping cart shall place a sign on his premises in a conspicuous place which contains:

(1) The name, address and telephone number of his business; and

(2) A statement that the unauthorized removal or possession of the shopping cart is a misdemeanor.

(i) Any person violating any of the provisions of this section:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in section 1.04.010; or

(2) Shall be subject to provisions of Chapter 1.05 of the Code.

(Ord. No. 3334, § 1, 11-25-85; Ord. No. 5068, § 1, 11-9-99)

Sec. 8.10.060. Embezzlement.

(a) Any bailee of any money, or other property, valued at an amount not exceeding $1,200.00, who shall convert the same to his own use, with the intent to steal the same or to defraud the owner thereof, shall be guilty of misdemeanor embezzlement, and upon conviction thereof shall be sentenced to a fine not exceeding $1,000.00 and/or incarceration for not more than six months.

(b) The term "bailee," as used in this section, means:

(1) All persons with whom any money or other property has been deposited;

(2) All persons to whom any money or other property has been entrusted, loaned, or hired;

(3) All persons to whom money or other property shall be delivered, for any purpose whatsoever; and

(4) All persons who shall as agent, collector, or servant be empowered, authorized, or entrusted to carry, collect, or receive any money or other property of another.

(c) Any use of any money or other property by any bailee thereof, other than that use for which the same was in the custody of the bailee, shall be prima facie evidence of conversion and of intent to steal the same or to defraud the owner thereof.

(d) If any person whosoever, to whom any money or other property shall be entrusted for any purpose whatsoever, by his employer or any other person or corporation, by whom he may be entrusted, shall withdraw himself and shall go away with the money or other property, or any part thereof, it shall be prima facie evidence of the intent to steal the same or defraud his employer or any other person thereof.

(Ord. No. 2805, § 1 (11.12.005), 2-11-80; Ord. No. 3958, § 1, 5-22-90; Ord. No. 6571, § 1, 8-12-20)

State law reference—Similar provisions, NRS 205.300, 205.305.

Sec. 8.10.070. Obtaining property, services under false pretenses.

(a) A person shall not knowingly, by any false pretenses, obtain from another person any money, goods, personal property, service performed by another not his employee, or anything else of value having a value of less than $1,200.00 with the intent to cheat or defraud the other person.

(b) In addition to any criminal penalty, the court shall order a person convicted of a violation of this section to restore the property fraudulently obtained, if it can be done, or tender payment for the property or service fraudulently obtained.

(Ord. No. 3930, § 1, 3-13-90; Ord. No. 4449, § 1, 12-13-94; Ord. No. 6238, § 1, 6-27-12; Ord. No. 6572, § 1, 8-12-20)

Sec. 8.10.080. Registration books required.

Every person within the City, who keeps, maintains or controls any hotel, apartment house, tenement, rooming house, auto court, or other house or establishment where rooms for lodging are available, shall provide, keep and maintain a register or registration system and shall require every person who rents or occupies a room in any such establishment, to write or cause to be written in such register, or upon a registration card, his or her name and place of residence, and if the person who so rents or occupies a room in any such establishment is wearing a uniform of any of the armed naval or military services of the United States of America, such person shall also enter, or cause to be entered, on such register or registration card, his or her rank, serial number, home station, and nature of authority for being away from the home station, which information shall be verified by an examination of the written credentials in the possession of such person. Every such registration shall be made upon a page of the register, or upon a registration card, properly dated with reference to the day of the year, month and the time of day the person rents or arranges to occupy such lodging shall also be entered therein.

(Ord. No. 4767, § 2, 7-8-97)

Sec. 8.10.090. Unlawful to occupy a room without registering.

It shall be unlawful for any person to occupy a room in any establishment without entering or causing to be entered his or her true name in the register maintained by such establishment in compliance with the terms of this chapter.

(Ord. No. 4767, § 2, 7-8-97)

Sec. 8.10.100. Reserved.

Editor's note—Ord. No. 6446, § 1, adopted Jan. 10, 2018, repealed § 8.10.100, which pertained to registers open for inspection and derived from Ord. No. 4767, § 2, adopted July 8, 1997.

Sec. 8.10.110. Possession of catalytic converter.

(a) It is unlawful to possess, sell, or transport a catalytic converter or any nonferrous part of a catalytic converter removed from a vehicle without proper documentation to include all of the following:

- **(1)** The name of the person or company that removed the catalytic converter.
- **(2)** The name of the person for whom the work was completed.
- **(3)** The make and model of the vehicle from which the catalytic converter was removed.
- **(4)** The vehicle identification number [VIN] of the vehicle from which the catalytic converter was removed.
- **(5)** The part number or other identifying number of the catalytic converter that was removed.
- **(6)** A copy of the certificate of title or certificate of registration of the vehicle from which the converter was removed.

(b) Exempt from this provision are properly licensed automotive businesses under Title 4 and permitted secondary metals recyclers under Title 5 of the code.

(Ord. No. 6611, § 1, 12-1-21)

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CHAPTER 8.12. OFFENSES AGAINST PUBLIC PEACE

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Sec. 8.12.010. Disorderly conduct.

Every person who commits any of the following acts is guilty of disorderly conduct:

(1) Solicits anyone to engage in or who engages in lewd or dissolute conduct in any public place or in any place open to the public or exposed to public view;

(2) Seeks admission to a house upon frivolous pretexts for no other apparent motive than to see who may be therein, or to gain an insight to the premises;

(3) Keeps a place where lost or stolen property is concealed;

(4) Loiters in or about any toilet open to the public for the purpose of engaging in or soliciting any lewd, or lascivious or other unlawful act;

(5) Who, while entering, prowling or wandering upon the private property of another, at night, peeks in the door or window of any building or structure located thereon, without having the permission of, or lawful business with the owner or occupant thereof. For the purpose of this section, "night" is defined as the period from one hour after sunset to sunrise.

(Code 1966, § 11.12.070; Ord. No. 2891, § 1, 8-11-80; Ord. No. 3744, § 1, 11-14-88; Ord. No. 4283, § 1, 12-8-92; Ord. No. 4371, § 1, 3-8-94; Ord. No. 4838, § 1, 1-27-98)

State law reference—Vagrants, NRS 207.030 et seq.

Case law reference—(1) Person having apparent reason and business for going from place to place can not properly be found guilty of a violation of disorderly person ord. *Giese v. Chief of Police of Reno,* 87 Nev. 522, 489 P. 2d 1163 (1971).

(2) See *Lemel v. Smith,* 64 Nev. 545, 187 P. (2d) 169 (1947).

Sec. 8.12.011. Sitting, lying, sleeping or camping on a public place including but not limited to sidewalks, streets, alleys, sensitive areas or within doorways prohibited.

(a) No person may sit, lie, sleep or camp on a public place at any time. "Camp" shall be defined to include, but not be limited to; sitting, lying, storing belongings, placing a tent or other structure or furniture, making a fire, carrying on cooking activities, doing any digging or earth breaking on a public place. "Public Place" shall be defined to include, but not be limited to, sidewalks, streets, alleyways, doorways or other public space.

(b) No person may sit, lie, sleep or camp in any pedestrian or vehicular entrance to public or private property abutting a public sidewalk.

(c) No person may sit, lie, sleep or camp on a property designated as a sensitive use. For a property to be designated as a "sensitive use," the property must be a school, childcare facilities, hospitals, public park, public library, city facility, governmental facility located in the City of Reno, warming and cooling centers, city-permitted shelters for the unhoused or the Truckee River.

(d) No person may use a motor vehicle on a public place for camping purposes unless specifically designated for such use.

(e) The prohibition in (a) through (d) shall not apply to any person:

(1) Sitting or lying down due to a medical emergency;

(2) Who, as the result of a disability, utilizes a wheelchair, walker or similar device to move about the public;

(3) Operating or patronizing a commercial establishment conducted on the public place pursuant to a permit; or a person participating in or attending a parade, festival, performance, rally, demonstration, meeting, or similar event conducted on the public place pursuant to a use or other applicable permit.

(4) Sitting on a chair or bench located on the public place which is supplied by a public agency or by the abutting private property owner; or

(5) Sitting on a public place with a bus stop zone while waiting for public or private transportation.

Nothing in any of these exceptions shall be construed to permit any conduct which is prohibited by section 8.12.042 of the Reno Municipal Code (blocking of sidewalks).

(f) No person shall be charged with a violation of this section unless the person engages in conduct prohibited by this section after having been notified by a city employee or designee that the conduct violates this section.

(g) In addition to any other remedy provided by law, any person found in violation of this section may be immediately removed from the premises.

(h) A violation of this ordinance is a misdemeanor.

Any individual charged with violation of this article, in lieu of being taken to jail may, at the election of the citing police officer and with the consent of the individual, when feasible, be taken to a facility providing social services related to mental health, housing, and/or substance abuse treatment.

As an alternative to a fine or jail sentence, the city would encourage the court to grant diversion or probation with a condition the offender complete a rehabilitation program.

(i) The city shall adhere to all laws as it pertains to mobile and sidewalk vendors.

(Ord. No. 6694, § 1, 1-22-25)

Sec. 8.12.012. Reserved.

Editor's note—Ord. No. 6695, § 1; and Ord. No. 6696, § 1, adopted January 22, 2025, repealed § 8.12.012, which pertained to prohibition against sitting or lying in doorways; penalty and derived from Ord. No. 5850, § 1, 6-28-06.

Sec. 8.12.015. Reserved.

Editor's note—Ord. No. 6697, § 1, adopted January 22, 2025, repealed § 8.12.015, which pertained to sitting or lying down on public sidewalks in the Downtown Reno Regional Center and derived from Ord. No. 4482, § 1, 2-28-95; Ord. No. 6168, § 1, 12-1-10; Ord. No. 6257, § 1, 10-24-12.

Sec. 8.12.018. Urinating/defecating in public prohibited.

(a) No person shall urinate or defecate in or upon any street, sidewalk, alley, plaza, park, beach, public building or publicly maintained facility, or in any place open to the public or exposed to public view. This section shall not apply to urinating or defecating in any restroom or other facility designed for the sanitary disposal of human waste.

(b) Any person convicted under this section shall be punished for a misdemeanor.

(Ord. No. 4607, § 1, 3-26-96)

Sec. 8.12.020. Disturbing the peace.

It is unlawful for any person to commit a breach of the peace. Such breach shall consist of:

a. Fighting or challenging to fight; or

b. Conduct or words calculated to provoke violence or a violation of the law by the person to whom the conduct or words are addressed; or

c. Making annoying, lewd, malicious or threatening telephone calls; or

d. Willfully and unreasonably subjecting a person or neighborhood to any noise which is likely to disturb the peace of persons of reasonable and ordinary sensibilities.

(Code 1966, § 11.12.090; Ord. No. 5047, § 1, 9-28-99; Ord. No. 5387, § 1, 11-5-02)
State law reference—Disturbing the peace, NRS 203.010.

Sec. 8.12.021. Provoking commission of breach of peace prohibited.

It shall be unlawful for any person, by word, sign or gesture, to willfully provoke, or attempt to provoke, another person to commit a breach of the peace.

(Ord. No. 4985, § 1, 4-13-99)

Sec. 8.12.022. Commission of act in public building or on public property interfering with peaceful conduct of activities.

(a) A person shall not commit any act in a public building or on the public grounds surrounding the building which interferes with the peaceful conduct of activities normally carried on in the building or on the grounds.

(b) A person shall not commit any act on any public property set aside for use during a special event licensed in accordance with Title 5 which interferes with the peaceful conduct of the special event.

(c) A person shall not remain on public property that has been set aside for use during a special event licensed in accordance with Title 5 after the daily activities for the special event have ended, until the public entity has concluded all cleaning and other ministerial duties and the property has been reopened for general public access.

(1) To constitute a violation of this subsection, there must be a general announcement that the day's activities have concluded and an individual remaining on the public property must be warned to leave until the property has been reopened for public access.

(2) The prohibition in this subsection does not apply to:

a. Vendors with a permit to sell at the special event or their employees, independent contractors or volunteers, while actively engaged in work related to their business as a vendor.

b. Businesses having fixed premises located within the perimeter of the special event or their employees, independent contractors or volunteers, while actively engaged in work related to the business at such premises.

c. Employees, independent contractors or volunteers of the city or special event promoter actively engaged in clean-up, law enforcement or other activities related to the special event.

d. Individuals in transit from one business to another within the perimeter of the special event, or from a business to transportation leaving the area.

e. Public safety, medical and ambulance personnel responding to medical or other emergencies.

(d) Any person whose conduct is prohibited by paragraph (a), (b) or (c), who refuses to leave the building, grounds, or public property set aside for use during a special event upon request by the proper official, is guilty of a misdemeanor.

(e) Any person who aids, counsels or abets another to commit an act prohibited by paragraph (d) is guilty of a misdemeanor.

(f) For purposes of this section:

(1) "Proper official" means the person or persons designated by the administrative officer or board in charge of the building and its grounds or by a departmental head or his/her designated agent or the person or persons in charge of the special event or his/her designated agent.

(2) "Public building" means any building owned by:

a. Any component of the University and Community College System of Nevada and used for any purpose related to the system.

b. The State of Nevada or any county, city, school district or other political subdivision of the state and used for any public purpose.

(3) "Public property set aside for use during a special event" means any real property owned by the City of Reno and/or any real property over which the city has control which, for the duration of the licensed special event, has restrictions on ingress and egress.

(Ord. No. 4873, § 1, 5-26-98; Ord. No. 5011, § 1, 6-22-99; Ord. No. 5956, § 1, 7-11-07)

Sec. 8.12.023. Assembling to disturb the peace or to commit unlawful act prohibited.

If two or more persons assemble for the purpose of disturbing the public peace, or committing any unlawful act, and do not disperse on being commanded to do so by a peace officer, City of Reno elected official or head of a City of Reno governmental agency, the persons so offending shall be guilty of a misdemeanor.

(Ord. No. 5012, § 1, 6-22-99)

Sec. 8.12.024 Conduct disrupting city council meeting prohibited.

(a) DECORUM IN COUNCIL MEETINGS.

Meetings of the city council should be conducted in an orderly manner to ensure that the deliberative process of the council is retained at all times and that the public has an opportunity to be heard. The presiding officer of the council, who shall be the mayor, assistant mayor, or, in their absence, another council member so designated by a majority of the council members present, shall have the authority to maintain the order and decorum of meetings in accordance with subsections (b), (c), and (d) below.

(b) RULES OF DECORUM.

While any meeting of the city council is in session, the following rules of order and decorum shall be observed:

(1) Persons Addressing the Council.

Any person addressing the council during a council meeting who engages in any conduct which disrupts, disturbs or otherwise impedes the orderly conduct of any council meeting shall be subject to the provisions of subsection (c) below.

(2) Members of the Audience.

Any person in the audience at a council meeting who engages in any conduct which disturbs, disrupts or otherwise impedes the orderly conduct of any council meeting shall be subject to the provisions of subsection (c) below.

(c) ENFORCEMENT OF DECORUM.

This ordinance shall be enforced in the following manner:

(1) Removal from meeting.

If any person willfully disrupts a council meeting in violation of this ordinance, the presiding officer, after giving a warning if reasonable under the circumstances, may order him or her to leave the meeting, and may, at the discretion of the presiding officer, bar such person from further audience before the council during that meeting. If such person does not remove himself or herself, the presiding officer may request the city manager or the designee of the city manager to remove or cause the removal of that person from the council meeting.

(2) Penalty.

Any person who willfully violates any provision of this ordinance shall be guilty of a misdemeanor.

(d) ADJOURNMENT.

If a meeting of the council is disrupted in such a manner as to make the restoration of order improbable or infeasible, the meeting may be adjourned or continued by the presiding

officer or a majority of the council members present, and any remaining council business may be considered at the next meeting.

(Ord. No. 5604, § 1, 10-13-04)

Secs. 8.12.025, 8.12.026. Reserved.

Editor's note—Ord. No. 6114, § 1, adopted July 15, 2009, repealed §§ 8.12.025, 8.12.026, which pertained to aggressive or fraudulent solicitation prohibited and soliciting without invitation. See also the Administrative Code Comparative Table.

Sec. 8.12.027. Conduct disrupting redevelopment agency meeting prohibited.

(a) DECORUM IN REDEVELOPMENT AGENCY MEETINGS.

Meetings of the redevelopment agency should be conducted in an orderly manner to ensure that the deliberative process of the redevelopment agency board is retained at all times and that the public has an opportunity to be heard. The presiding officer of the redevelopment agency board, who shall be the chair, assistant chair, or, in their absence, another board member so designated by a majority of the board members present, shall have the authority to maintain the order and decorum of meetings in accordance with subsections (b), (c), and (d) below.

(b) RULES OF DECORUM.

While any meeting of the redevelopment agency is in session, the following rules of order and decorum shall be observed:

(1) Persons Addressing the Redevelopment Agency Board.

Any person addressing the board during a board meeting who engages in any conduct which disrupts, disturbs or otherwise impedes the orderly conduct of any board meeting shall be subject to the provisions of subsection (c) below.

(2) Members of the Audience.

Any person in the audience at a board meeting who engages in any conduct which disturbs, disrupts or otherwise impedes the orderly conduct of any board meeting shall be subject to the provisions of subsection (c) below.

(c) ENFORCEMENT OF DECORUM.

This ordinance shall be enforced in the following manner:

(1) Removal from Meeting.

If any person willfully disrupts a board meeting in violation of this ordinance, the presiding officer, after giving a warning if reasonable under the circumstances, may order him or her to leave the meeting, and may, at the discretion of the presiding officer, bar such person from further audience before the board during that meeting. If such person does not remove himself or herself, the presiding officer may request the city manager or the designee of the city manager to remove or cause the removal of that person from the meeting.

(2) Penalty.

Any person who willfully violates any provision of this ordinance shall be guilty of a misdemeanor.

(d) ADJOURNMENT.

If a meeting of the board is disrupted in such a manner as to make the restoration of order improbable or infeasible, the meeting may be adjourned or continued by the presiding officer or a majority of the board members present, and any remaining board business may be considered at the next meeting.

(Ord. No. 5605, § 1, 10-13-04)

Sec. 8.12.030. Camping on public property in the Truckee River Corridor.

(a) *Preamble.* The Reno City Council finds and declares as follows:

(1) The Truckee River runs from the outlet of Lake Tahoe, through Truckee and directly through downtown Reno on its way to Pyramid Lake, and is an important natural resource shared by our city and surrounding communities.

(2) The Truckee River watershed includes all of the land draining into the river, either directly, through our urban storm water system, or into creeks which feed the Truckee River.

(3) Once a thriving, wild waterway with hundreds of bird species and 40-pound Lahontan cutthroat trout, the Truckee has been highly degraded over the past century.

(4) Proper management of the Truckee River, which provides 85 percent of the water delivered in the Truckee Meadows, is vital to sustaining a healthy community.

(5) Unregulated camping in and around the Truckee River threatens to pollute the area's primary source of drinking water, and detracts from the scenic beauty of the river.

(6) Limited regulation of camping within the Truckee River Corridor is reasonably necessary to protect and enhance water quality or water resources of the Truckee River and appropriately balances the public interest and individual rights.

(b) Unless a permit is obtained in accordance with section 8.23.075 or other applicable provision of the Reno Municipal Code, it shall be unlawful to camp on public property within 350 feet of the shore of the Truckee River within city limits (the "Truckee River Corridor"). For the purpose of this section, "to camp" or "camping" means to use real property of the city for overnight living accommodation purposes such as:

(1) Sleeping activities or making preparations to sleep including the laying down of bedding for the purpose of sleeping;

(2) Storing personal belongings;

(3) Making any fire, other than in a fire or barbecue pit provided or area designated for such use by the city or portable propane grill used according to manufacturer's instructions;

(4) Using any tent, shelter, other structure or vehicle for sleeping; or

(5) Cooking, other than in a fire or barbecue pit provided or area designated for such use by the city or portable propane grill used according to manufacturer's instructions.

For purposes of this section, "overnight" is defined as the period from one-half hour after sunset to sunrise.

The above listed activities constitute camping when it reasonably appears in light of all the circumstances that the participant, in conducting these activities is in fact using the area for overnight living accommodation purposes, regardless of the intent of the participant or the nature of any other activities in which they may also be engaging.

(c) The prohibition in subsection (b) shall not apply to any person:

(1) Sitting or lying down on public property due to a medical emergency;

(2) Who, as the result of a disability, utilizes a wheelchair, walker or similar device to move about the public property;

(3) Operating or patronizing a commercial establishment conducted on the public property pursuant to an applicable permit;

(4) Participating in or attending a parade, festival, performance, rally, demonstration, meeting, or similar event conducted on public property pursuant to an applicable permit.

(d) No person shall be charged with a violation of this section unless the person engages in conduct prohibited by this section after having been notified by a law enforcement officer that the conduct violates this section.

(e) The provisions of this section are declared to be separate and severable. The invalidity of any clause, sentence, paragraph, subdivision, section or portion of this section, or the invalidity of the application thereof to any person or circumstance shall not affect the validity of the remainder of this section, or the validity of its application to other persons or circumstances.

(f) Any person who violates this section shall be guilty of a misdemeanor.

(Ord. No. 6184, § 1, 5-11-11)

Sec. 8.12.033. Drinking or possessing an open container in a public place prohibited.

(a) For purposes of this section and section 8.12.035, "open container" is defined as any vessel filled or partially filled with an alcoholic beverage, including but not necessarily

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limited to, bottles or cans purchased at retail that have been opened, had the seal broken or had the contents partially removed, cups, glasses, flasks, and any other vessel manufactured for or used to contain alcohol if, based upon a police officer's experience, the officer concludes the vessel contains alcohol.

(b) Except as permitted in section 8.12.035 or section 8.23.120, a person shall not consume any alcoholic beverage while upon any public property or facility held out to the public's use or any place where the public is likely to congregate.

(c) Except as permitted in section 8.12.035 or section 8.23.120, a person shall not have in his possession any open container of alcoholic beverage with the intent to consume said alcoholic beverage while upon any public property or facility held out to the public's use or any place where the public is likely to congregate.

(d) Possession of an open container containing an alcoholic beverage by any person shall create a rebuttable presumption that such person did intend to consume the contents thereof in violation of this section.

(e) Penalties. Any person convicted under this section shall be punished for a misdemeanor.

(Ord. No. 3756, § 1, 1-9-89; Ord. No. 5013, § 1, 6-22-99; Ord. No. 5231, § 1, 4-10-01; Ord. No. 5378, § 1, 10-22-02)

Sec. 8.12.035. Drinking or possessing an open container during a special event.

(a) A person may consume an alcoholic beverage or have in his possession an open container while attending a special event which has been permitted pursuant to Title 5, provided however, the person is physically within the boundaries of the event and the open container complies with the terms of the special event alcohol permit issued therefor.

(Ord. No. 3756, § 1, 1-9-89; Ord. No. 5014, § 1, 6-22-99)

Sec. 8.12.038. Reserved.

Editor's note—Ord. No. 5161, § 1, adopted July 11, 2000, repealed § 8.12.038, which pertained to park and public property use. See the Code Comparative Table.

Sec. 8.12.040. Reserved.

Editor's note—Ord. No. 4876, § 1, adopted May 26, 1998, repealed § 8.12.040, which pertained to use of public streets and places for assemblages. See the Code Comparative Table.

Sec. 8.12.041. Maintenance of stands or wagons on streets or sidewalks.

It shall be unlawful for any person to occupy any part or portion of any street, alley, sidewalk, court, public park or grounds, except as provided for in Titles 4 and 5 and section 8.12.015, or as otherwise authorized by the city, for the purpose of keeping or maintaining any newspaper stand, bootblack stand, drinking stand, popcorn stand, sandwich wagon, any stand or similar obstruction, for the sale of goods, wares or merchandise.

(Ord. No. 4647, § 3, 7-9-96; Ord. No. 4877, § 1, 5-26-98)

Sec. 8.12.042. Blocking of sidewalks.

(a) A person shall not with the intention of interfering with the free passage of pedestrians thereon, physically block or attempt to block with his own body or an object or vehicle, that portion of a public sidewalk used for pedestrian travel.

(b) A person shall not, with the intent of interfering with the free ingress to or egress from, physically block or attempt to block with his own body or any object or vehicle, the passage of pedestrians or vehicular traffic at an entrance to any public or private property abutting a public sidewalk.

(Ord. No. 3888, § 1, 11-13-89)

Sec. 8.12.043. Reserved.

Editor's note—Ord. No. 4878, § 1, adopted May 26, 1998, repealed § 8.12.043, which pertained to obstructing public sidewalks. See the Code Comparative Table.

Sec. 8.12.044. Reserved.

Editor's note—Ord. No. 4879, § 1, adopted May 26, 1998, repealed § 8.12.044, which pertained to interference with traffic upon a sidewalk. See the Code Comparative Table.

Sec. 8.12.045. Benches and seats on public sidewalks.

No person shall place or maintain any chair, bench or permanent seat on any street, alley or sidewalk, except as provided for in Titles 4 and 5 and section 8.12.015, or as otherwise authorized by the city without first obtaining written permission from the city council.

(Ord. No. 4647, § 5, 7-9-96; Ord. No. 4880, § 1, 5-26-98)

Sec. 8.12.050. Reserved.

Editor's note—Ord. No. 5740, § 1, adopted Sept. 14, 2005, repealed § 8.12.050, which pertained to unlawful assemblage. See also the Code Comparative Table.

Sec. 8.12.060. Affray.

If two or more persons, by agreement, fight in a public place within the city, the persons so offending are guilty of an affray, and shall be punished as provided in this Code.

(Code 1966, § 11.12.010; Ord. No. 4052, § 1, 1-22-91)
State law reference—Similar provisions, NRS 203.050.

Sec. 8.12.070. Rout.

If two or more persons shall meet to do an unlawful act, upon a common cause of quarrel and make advances toward it, they shall be deemed guilty of a rout, and upon conviction shall be punished as provided in this Code.

(Code 1966, § 11.12.190)
State law reference—Similar provisions, NRS 208.070(1).

Sec. 8.12.080. Riot.

If two or more persons shall actually do an unlawful act of violence, either with or without a common cause of quarrel, or even do a lawful act in a violent, tumultuous and illegal manner, they shall be deemed guilty of a riot, and upon conviction, shall be punished as provided in this Code.

(Code 1966, § 11.12.180)

State law reference—Similar provisions, NRS 203.070(2).

Sec. 8.12.090. Parades and public demonstrations.

It shall be unlawful for any person to parade, march or exhibit on the public streets and highways or other public places of the city without first having obtained permission from the city council.

(Code 1966, § 11.12.240)

Sec. 8.12.100. Motorcycle groups.

If two or more persons operating or in possession of a motorcycle assemble for the purpose of disturbing public peace or committing any unlawful act within the city, and do not disperse upon being directed or commanded so to do by a police officer of the city, or other public officer, such persons shall be deemed to have committed an unlawful act and shall, upon conviction, be severally guilty and shall be punished as provided in this Code.

(Code 1966, § 11.12.280)

Sec. 8.12.110. Certain picketing unlawful.

It is unlawful for any person to watch, beset or picket the premises of another, where any person is employed, or any approach thereto, or any place or approach thereto, where such employee lodges or resides, for the purpose of inducing any such employee, by compulsion, threats, coercion, intimidation, or by any act of violence, or by putting such employee in fear, to quit his or her employment or to refrain from seeking or freely entering into employment.

(Code 1966, § 11.12.400)

State law reference—Compelling person to join labor organization or to strike against his will or to leave his employment prohibited, NRS 613.270.

Sec. 8.12.120. Assembly to induce employee to quit employment unlawful.

It is unlawful for any person in association or agreement with one or more persons to assemble, congregate or meet together in the vicinity of any premises where other persons are employed or upon the streets, approaches, or places adjacent thereto, for the purpose of inducing any such employee by compulsion, threats, coercion, intimidation or by any act of or by putting such employee in fear, to quit his or her employment therein or to refrain from seeking or freely entering into employment therein.

(Code 1966, § 11.12.410)

Case law reference—Sections 2 and 4 of City Ordinance No. 80 held unconstitutional in *City of Reno v. Second Judicial District Court,* 59 Nev. 416, 95 P. (2d) 994, 125 A.L.R. 948 (1939). ″Sections 2 and 4 are a sweeping prohibition of any form of picketing, irrespective of its nature,

purpose or number of pickets, and constitute an interdiction of all activities and free speech sought to be exercised in the form of peaceful picketing." See: *State ex rel. Culinary Workers Union, Local No. 226 et al. v. Eighth Judicial District Court,* 65 Nev. _____, 207 P. (2d) (1949); rehearing petition: 65 Nev. _____ 210 P. (2d) (1949); rehearing petition: 65 Nev. _____ 210 P (2d) 454 (1949); *Jensen v. Labor Council,* 65 Nev. _____, _____ P. (2d) _____ (1951).

Sec. 8.12.130. Derogatory, opprobrious epithets or gestures to induce employee to quit employment unlawful.

It is unlawful for any person, for the purpose of compelling, coercing or inducing any person to quit his or her employment, or to refrain from seeking or freely entering into employment, to utter to or within the hearing of such person or persons, any derogatory or opprobrious or indecent epithets or language or gestures or threats of violence.

(Code 1966, § 11.12.420)

Sec. 8.12.140. Domestic violence temporary or extended restraining orders.

(a) It shall be unlawful for any person to violate a domestic violence temporary or extended restraining order issued pursuant to NRS 33.020 or an out-of-state order for protection.

(b) If the violation is accompanied by a violent physical act by the adverse party against a person protected by the order, the court shall:

(1) Impose upon the adverse party a fine of $1,000.00 or require him to perform a minimum of 100 hours of work for the community;

(2) Sentence him to imprisonment in the county jail for not fewer than five days nor more than six months;

(3) Order him to reimburse the applicant, in an amount as determined by the court, for all costs and attorney's fees incurred by the applicant in seeking to enforce the temporary, extended, or out-of-state order, and for all medical expenses of the applicant and any minor child incurred as a result of the violent physical act; and

(4) Order him to participate in and complete a program of professional counseling, at his own expense, if such counseling is available.

(Ord. No. 3036, § 1, 9-27-82; Ord. No. 3863, § 1, 9-25-89; Ord. No. 4112, § 1, 5-28-91; Ord. No. 4809, § 1, 10-28-97; Ord. No. 5056, § 1, 10-12-99)

Sec. 8.12.150. Tampering with vehicles prohibited.

A person shall not climb upon or into or swing upon or hold on to the outside of any motor vehicle, whether it is in motion or at rest, sound any horn or any other signaling device, or attempt to manipulate any of the levers, the starter, brakes or machinery thereof, or set it in motion, or damage, tamper or interfere with it. This provision shall not apply to persons with authority of the owner or the person lawfully in charge of a motor vehicle while it is at rest.

(Ord. No. 3743, § 1(8.12.12), 11-14-88)

Editor's note—Ord. No. 3743, § 1, adopted Nov. 14, 1988, added provisions designated as § 8.12.12 to the Code; said provisions have been redesignated as § 8.12.150 at the editor's discretion, in order to conform to the numbering system used herein.

Sec. 8.12.160. Courthouse security.

(a) No person shall enter or remain upon the premises of the Reno Municipal Court while in possession of a weapon or instrumentality capable of being used as a dangerous weapon.

(b) No person shall enter or remain upon the premises of the Reno Municipal Court while unlawfully in possession of any controlled substance.

(c) The Reno Municipal Court may utilize full time screening devices and court security personnel at the entrance to the municipal court premises to implement this section.

(d) It is unlawful for any person to refuse to obey a lawful order of a court security officer.

(e) The Reno Municipal Court may, by order, exempt certain peace officers, bailiffs and other law enforcement personnel from the provisions of subsection (a), above.

(Ord. No. 4427, § 1, 9-27-94)

Sec. 8.12.170. Spectators prohibited at illegal race, drag race, competition, contest, test, stunt, trick, takeover or exhibition.

Unless otherwise permitted no person on any highway, roadway, or on a premises to which the public has access shall be a spectator to an illegal race, drag race, competition, contest, test, stunt, trick, takeover or exhibition. A violation of this section shall constitute a misdemeanor offense.

Burnout means a maneuver performed while operating a motor vehicle whereby the motor vehicle is kept stationery, or is in motion, while the wheels are spun, resulting in friction which causes the motor vehicle's tires to heat up and emit smoke.

Doughnut means a maneuver performed while operating a motor vehicle whereby the front or rear of the motor vehicle is rotated around the opposite set of wheels in a continuous motion which may cause a circular skid-mark pattern of rubber on the driving surface or the tires to heat up and emit smoke from friction, or both.

Drag race means the operation of two or more motor vehicles from a point side by side at accelerating speeds in a competitive attempt to outdistance each other, or the operation of one or more motor vehicles over a common selected course, from the same point to the same point, for the purpose of comparing the relative speeds or power of acceleration of such motor vehicle or motor vehicles within a certain distance or time limit.

Drifting means a maneuver performed while operating a motor vehicle whereby the motor vehicle is steered so that it makes a controlled skid sideway through a turn with the front wheels pointed in a direction opposite to that of the turn.

Race means the use of one or more motor vehicles in competition, arising from a challenge to demonstrate superiority of a motor vehicle or driver and the acceptance or competitive response to that challenge, either through a prior arrangement or in immediate response, in which the competitor attempts to outgain or outdistance another motor vehicle, to prevent another motor vehicle from passing, to arrive at a given destination ahead of another motor vehicle or motor vehicles, or to test the physical stamina or endurance of drivers over long-distance driving routes. A race may be prearranged or may occur through a competitive response to conduct on the part of one or more drivers which, under the totality of the circumstances, can reasonably be interpreted as a challenge to race.

Spectator means a person who is present at and views a race, drag race, competition, contest, test, stunt or trick, takeover ride, or exhibition.

Stunt driving means to perform or engage in any burnouts, doughnuts, drifting, wheelies, or other dangerous motor vehicle activity on a highway, roadway, or on a premises where the public has access.

Takeover means the unlawful operation of a motor vehicle that cause the movement of traffic to slow or stop for any race, drag race, competition, contest, test, stunt or trick, including, but not limited to, drifting, burnouts, wheelies, and reckless driving, or exhibition of a vehicle's performance capabilities or of a driver's ability in violation of state law.

Wheelie means a maneuver performed while operating a motor vehicle whereby a motor vehicle is ridden for a distance with the front wheels or any wheels raised off the ground.

(Ord. No. 6656, § 1, 5-24-23)

CHAPTER 8.14. RESERVED*

*__Editor's note—__Ord. No. 6106, § 1, adopted June 10, 2009, repealed Ch. 8.14, §§ 8.14.010—8.14.035, which pertained to offenses against public morals. See also the Administrative Code Comparative Table.

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CHAPTER 8.16. OFFENSES PERTAINING TO MINORS

Sec. 8.16.010. Curfew.
Sec. 8.16.020. Purchase or consumption, or impairment through the use, of alcoholic beverage by a minor prohibited.
Sec. 8.16.030. Loitering in places where alcoholic beverages are sold.
Sec. 8.16.040. Possession of alcoholic beverages.
Sec. 8.16.050. False representation by minor.
Sec. 8.16.060. Duties of parents, guardians and all adult persons.
Sec. 8.16.080. Gaming or employment in gaming prohibited for persons under 21 years of age.
Sec. 8.16.090. Sale or furnishing of alcoholic beverage to minor; aiding minor to purchase or procure alcoholic beverage.
Sec. 8.16.100. Preparation, transfer, use, or possession of false identification regarding person under 21 years of age; penalties; demand of proof of age as defense to certain proceedings.
Sec. 8.16.110. Reserved.
Sec. 8.16.120. Saloon keeper allowing minor to remain in establishment.

Sec. 8.16.010. Curfew.

(a) PREAMBLE.

The Reno City Council finds and declares as follows:

(1) There has been an increase in juvenile violence, juvenile gang activity, and crime by persons under the age of 18 in the City of Reno;

(2) Persons under the age of 18 are particularly susceptible by their lack of maturity and experience in participate in unlawful and gang-related activities;

(3) Persons under the age of 18 are particularly vulnerable by their lack of maturity and experience to being victimized by older perpetrators of crimes;

(4) The downtown corridor is geographically the largest concentration of businesses providing gaming, alcohol and adult entertainment in the city, participation in which is prohibited to minors, thus requiring additional regulation in that area;

(5) The City of Reno has an obligation to provide for the protection of minors from each other and from other persons, for the enforcement of parental control over and responsibility for children, for the protection of the general public, and for the reduction of the incidence of juvenile criminal activities;

(6) A curfew for those under the age of 18 will be in the interest of the public health, safety, and general welfare and will help to attain the foregoing objectives and to diminish the undesirable impact of such conduct on the citizens of and visitors to the City of Reno.

(b) Except as provided in subsections (c) and (d) of this section, it is unlawful for any minor under the age of 18 to be in or upon any public street, sidewalk, highway, park, vacant lot or other public place between the hours of 12:00 midnight and 5:00 a.m.

(c) It is unlawful for any minor under the age of 18 to be in or on the streets of the downtown corridor between the hours of 9:00 p.m. and 5:00 a.m. of the succeeding day.

The downtown corridor consists of that area inside the following specified boundaries beginning at the outside curb line of all designated streets:

(1) North Boundary:
I80 from North Arlington to Lake Street;

(2) South Boundary:
Liberty Street from South Arlington Avenue to Sinclair Street;

(3) West Boundary:
Arlington Avenue from I80 to Liberty Street, to include Wingfield Park West and Barbara Bennett Park; and

(4) East Boundary:
Lake Street from I80 to Pine, Sinclair from Pine to Liberty Street.

(d) EXCEPTIONS.

It is an exception to the operation of the curfew that the minor is:

(1) Accompanied by the minor's parent or guardian;

(2) On an errand as directed by the minor's parent or guardian, without any detour or stop;

(3) Engaged in an employment activity, or going to or returning home from an employment activity, without any detour or stop;

(4) Attending a meeting or place of public entertainment, such as a movie, play or sporting event, or a school, social or religious activity; or going to or returning home therefrom, without any detour or stop;

(5) In a motor vehicle engaged in interstate travel;

(6) Involved in an emergency;

(7) On the sidewalk abutting the minor's residence or abutting the residence of a next-door neighbor if the neighbor did not complain to the police department about the minor's presence;

(8) Exercising First Amendment rights protected by the United States Constitution, such as the free exercise of religion, freedom of speech, and the right of assembly; or

(9) Is married or has been judicially emancipated in accordance with Chapter 129 of Nevada Revised Statutes.

(e) PERMITTING VIOLATION BY CHILD UNLAWFUL.

It is unlawful for any parent, guardian, or other person having legal care, custody, or control of any minor under the age of 18 to allow or permit such minor to be in or upon any place in violation of this section.

(f) ENFORCEMENT.

Before taking any enforcement action under this section, a peace officer shall ask the apparent offender's age and reason for being in the public place. The officer shall not issue a citation or make an arrest under this section unless the officer reasonably believes that an offense has occurred and that, based on any response and other circumstances, no exception in subsection (d) is applicable. Any peace officer who reasonably believes that a violation of this section has occurred may cite the minor for such violation and release the minor into the custody of the minor's parent or guardian, release the minor, or take the minor into custody for the purpose of placing the minor into a juvenile detention facility.

(g) PENALTY.

A person violating a provision of this section is guilty of a misdemeanor.

(Code 1966, § 11.12.310; Ord. No. 4599, §§ 1, 2, 3-12-96; Ord. No. 4655, § 1, 7-9-96; Ord. No. 4776, § 1, 7-22-97)

Sec. 8.16.020. Purchase or consumption, or impairment through the use, of alcoholic beverage by a minor prohibited.

(a) It shall be unlawful for any person under the age of 21 years to:

(1) Purchase or consume any alcoholic beverage in public; or

(2) Be impaired to any degree by the use of an alcoholic beverage.

(b) For the purposes of this section, "impairment" is defined as any observable signs or symptoms commonly associated with the use of alcoholic beverages.

(c) For the purposes of this section, possession "in public" includes possession:

(1) On any street or highway;

(2) In any place open to the public; and,

(3) In any private business establishment which is in effect open to the public.

(d) Exceptions:

(1) Possession or consumption for an established religious purpose;

(2) Possession or consumption in the presence of the person's parent, spouse or legal guardian who is 21 years of age or older within a private residence. This exception does not relieve the parent, spouse or legal guardian of their responsibilities or legal obligations in relation to child neglect or abuse laws;

(3) Possession or consumption in accordance with a prescription issued by a person statutorily authorized to issue prescriptions;

(4) The selling, handling, serving, or transporting of alcoholic beverages by a person in the course of his lawful employment by a licensed manufacturer, wholesaler or retailer of alcoholic beverages.

(Code 1966, § 11.02.010; Ord. No. 5048, § 1, 9-28-99)

State law reference—Similar provisions, NRS 202.020.

Sec. 8.16.030. Loitering in places where alcoholic beverages are sold.

(a) Any person under 21 years of age who shall loiter or remain on the premises of any saloon, bar, club, or resort where spirituous, malt or fermented liquors or wines are sold shall be guilty of a misdemeanor.

(b) Nothing in this section shall apply to:

(1) Establishments wherein spirituous, malt or fermented liquors or wines are served only in conjunction with regular meals and where dining tables or booths are provided separate from the bar; or

(2) Any grocery store, discount store or drugstore where spirituous, malt or fermented liquors or wines are not sold by the drink for consumption on the premises.

(Code 1966, § 11.02.020)

State law reference—Similar provisions, NRS 202.030.

Sec. 8.16.040. Possession of alcoholic beverages.

It shall be unlawful for any person under the age of 21 years to have any alcoholic beverage in his custody or possession at any time.

(Code 1966, § 11.02.030)

Sec. 8.16.050. False representation by minor.

(a) It is unlawful for any minor to counterfeit, forge, alter, erase or obliterate any card, writing, paper or document which bears the age of the holder or purported holder thereof, with the intention that such card, writing, paper or document should be used by a minor for the purpose of obtaining any alcoholic beverage, to gain access to premises restricted to minors, or for the purpose of any illegal act, or to sell, lend or give away any such card, writing, paper or document to any minor.

(b) It is unlawful for any minor to use or attempt to use or proffer any counterfeited, forged, erased or obliterated card, writing, paper or document of the kind mentioned in subsection (a) for any purpose considered illegal to minors.

(Code 1966, § 11.02.040)

State law reference—False representation by minor to obtain intoxicating liquor, NRS 202.040.

Sec. 8.16.060. Duties of parents, guardians and all adult persons.

(a) It is unlawful for any adult to contribute to the delinquency of any minor without regard to age. The crime shall consist in any act by such adult in aiding, abetting or furthering the breach of any municipal ordinance or state statute by any minor, either before, after or during the fact thereof.

(b) It shall be unlawful for any person who is a parent or guardian, or for any person who has been entrusted by a parent or guardian, to fail to supervise and attend a child or children under the age of ten years.

(Code 1966, § 11.12.320; Ord. No. 4369, § 1, 2-22-94; Ord. No. 4380, § 1, 5-10-94; Ord. No. 4661, § 1, 8-13-96)

Note—Formerly §§ 8.16-060 and 8.16.070.

Sec. 8.16.080. Gaming or employment in gaming prohibited for persons under 21 years of age.

(a) A person under the age of 21 years shall not:

- **(1)** Play, be allowed to play, place wagers at, or collect winnings from, whether personally or through an agent, any gambling game, slot machine, race book, sports pool or pari-mutuel operator.
- **(2)** Loiter, or be permitted to loiter, in or about any room or premises wherein any licensed game, race book, sports pool or pari-mutuel wagering is operated or conducted.
- **(3)** Be employed as a gaming employee except in a counting room.

(b) Any licensee, employee, dealer or other person who violates or permits the violation of any of the provisions of this section is guilty of a misdemeanor.

(c) In any prosecution or other proceeding for the violation of any of the provisions of this section, it is no excuse for the licensee, employee, dealer or other person to plead that he believed the person to be 21 years old or over.

(d) It is unlawful for a parent or guardian, or other person having the charge, care, custody or control of any person under the age of 21 years, to permit such person to play any gambling game or gaming device, or any slot machine, or to loiter about any room or premises where nay gambling game, gaming device or slot machine device is operated or conducted.

(Ord. No. 4767, § 3, 7-8-97)

Sec. 8.16.090. Sale or furnishing of alcoholic beverage to minor; aiding minor to purchase or procure alcoholic beverage.

(a) A person is guilty of a misdemeanor if he/she:

(1) Sells, gives or otherwise furnishes an alcoholic beverage to any person under 21 years of age;

(2) Leaves or deposits any alcoholic beverage in any place with the intent that it will be procured by any person under 21 years of age; or

(3) Furnishes, gives, or causes to be given any money or thing of value to any person under 21 years of age with the knowledge that the money or thing of value is to be used by the person under 21 years of age to purchase or procure any alcoholic beverages.

(b) Paragraph (a) of subsection (1) does not apply to a parent, guardian or physician of the person under 21 years of age.

(Ord. No. 4767, § 3, 7-8-97; Ord. No. 5110, § 1, 1-11-00)

Sec. 8.16.100. Preparation, transfer, use, or possession of false identification regarding person under 21 years of age; penalties; demand of proof of age as defense to certain proceedings

(a) Every person who counterfeits, forges, alters, erases, or obliterates, or who attempts to counterfeit, forge, alter, erase, or obliterate any card, writing, paper, or document, or any photocopy print, photostat, or other replica of any card, writing, paper or document which is designed for the purpose of personal identification and which bears the age of the holder or purported holder thereof, or which, although not designed for the purpose of personal identification, is commonly used, or capable of being used for the purpose of personal identification and bears the age of the holder or purported holder thereof, with the intention that such card, writing, paper or document, or photocopy print, photostat or other replica thereof, be used by a person under the age of 21 years to establish falsely or misrepresent his actual age for the purpose of purchasing alcoholic liquor or being served alcoholic liquor in a place where it is served for consumption on the premises, or entering gaming establishments, or engaging in gambling in gambling establishments, shall be guilty of a misdemeanor. For the purposes of this subsection, the cards, writings, papers or documents and the photocopy prints or other replicas thereof which, although not designed for the purpose of personal identification, are commonly used, or capable of being used, for the purpose of personal identification, include, but are not limited to, an operator's license, chauffeur's license, fishing or hunting license, selective service card, organizational membership card, certificate of discharge from the Armed Forces, or certificate or other record of birth.

(b) Every person under the age of 21 years who uses or attempts to use or proffers any counterfeited, forged, erased or obliterated card, writing, paper, document, or any photocopy print, photostat or other replica thereof, of the kind mentioned in subsection (a), for the purpose and with the intention of purchasing alcoholic liquor or being served alcoholic liquor in a place where it is served for consumption on the premises, or entering gambling establishments, or engaging in gambling in gambling establishments, or who actually purchases alcoholic liquor or is actually served alcoholic liquor in a place where it is served for consumption on the premises, or actually enters a gambling establishment or actually gambles therein, when the purchase, service, entering or gambling is induced or permitted by the presentation of any such card, writing, paper, or document, or any photocopy print, photostat or other replica thereof, shall be guilty of a misdemeanor.

(c) Every person under the age of 21 years who possesses any document for the purpose of establishing a false status, occupation, membership, license, or identity for himself or any other person shall be guilty of a misdemeanor. For purposes of this section, identity shall include age.

(Ord. No. 4767, § 3, 7-8-97; Ord. No. 4937, § 2, 11-24-98)

Sec. 8.16.110. Reserved

Editor's note—Ord. No. 4937, § 1, adopted Nov. 24, 1998, repealed § 8.16.110, which pertained to possession of document to establish false status or identity. See the Code Comparative Table.

Sec. 8.16.120. Saloon keeper allowing minor to remain in establishment.

Any proprietor, keeper or manager of a saloon or resort where spirituous, malt or fermented liquors or wines are sold, who shall, knowingly, allow or permit any person under the age of 21 years to remain therein shall be guilty of a misdemeanor. Nothing in this section shall apply to:

(1) Establishments wherein spirituous, malt or fermented liquors or wines are served only in conjunction with regular meals, and where dining tables or booths are provided separate from the bar; or

(2) Any grocery store or drugstore where spirituous, malt or fermented liquors or wines are not sold by the drink for consumption on the premises.

(Ord. No. 4767, § 3, 7-8-97)

CHAPTER 8.17. MISDEMEANOR MARIJUANA, DRUG PARAPHERNALIA AND RELATED OFFENSES*

Sec. 8.17.010. "Drug paraphernalia" defined.
Sec. 8.17.020. Factors for identifying object as item of drug paraphernalia.
Sec. 8.17.030. Prohibitions: Unlawful use or possession.
Sec. 8.17.040. Unlawful acts relating to imitation controlled substances.
Sec. 8.17.050. Unlawful possession of marijuana
Sec. 8.17.060. Penalty for unlawful possession of marijuana.
Sec. 8.17.070. Distribution of fines collected for drug offenses.
Sec. 8.17.080. No public ingestion or consumption.
Sec. 8.17.090. Loitering.
Sec. 8.17.100. Penalty and punishment.
Sec. 8.17.110. Affirmative defenses for medical marijuana.

Sec. 8.17.010. "Drug paraphernalia" defined.

As used in RMC 8.17.020, 8.17.030, and 8.17.090, unless the context otherwise requires:

Drug paraphernalia means all equipment, products, and materials of any kind which are used, intended for use, or designed for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, ingesting, inhaling, or otherwise introducing into a human body a controlled substance in violation of Chapter 453 of Nevada Revised Statutes. The term includes, but is not limited to:

(1) Kits used, intended for use, or designed for use in planting, propagating, cultivating, growing, or harvesting of any species of plant, which is a controlled substance or from which a controlled substance can be derived;

(2) Kits used, intended for use, or designed for use in manufacturing, compounding, converting, producing or preparing controlled substances;

(3) Isomerization devices used, intended for use, or designed for use in increasing the potency of any species of plant which is a controlled substance;

(4) Testing equipment used, intended for use, or designed for use in identifying, or in analyzing the strength, effectiveness, or purity of controlled substances;

(5) Scales and balances used, intended for use, or designed for use in weighing or measuring controlled substances;

(6) Diluents and adulterants, such as quinine hydrochloride, mannitol, mannite, dextrose, and lactose, used, intended for use, or designed for use in cutting controlled substances;

(7) Separation gins and sifters used, intended for use, or designed for use in removing twigs and seeds from, or in otherwise cleaning or refining marihuana;

***Editor's note—**Ord. No. 5494, § 1, adopted Sept. 10, 2003, amended the title of Ch. 8.17 to read as herein set out. Prior to inclusion of said ordinance, Ch. 8.17 was entitled, "Drug Paraphernalia." Subsequently, Ord. No. 6025, § 1, adopted May 28, 2008, amended the title of Ch. 8.17, to read as herein set out. See also the Code Comparative Table.

State law reference—Similar provisions, NRS 453.554 et seq.

(8) Blenders, bowls, containers, spoons, and mixing devices used, intended for use, or designed for use in compounding controlled substances;

(9) Capsules, balloons, envelopes, and other containers used, intended for use, or designed for use in packaging small quantities of controlled substances;

(10) Containers and other objects used, intended for use, or designed for use in storing or concealing controlled substances; and

(11) Objects used, intended for use, or designed for use in ingesting, inhaling, or otherwise introducing marihuana, cocaine, hashish, or hashish oil into the human body, such as:

a. Metal, wooden, acrylic, glass, stone, plastic, or ceramic pipes with or without screens, permanent screens, hashish heads, or punctured metal bowls;

b. Water pipes;

c. Smoking masks;

d. Roach clips, which are objects used to hold burning material, such as a marihuana cigarette, that has become too small or too short to be held in the hand;

e. Cocaine spoons and cocaine vials;

f. Carburetor pipes and carburetion tubes and devices;

g. Chamber pipes;

h. Electric pipes;

i. Air-driven pipes;

j. Chillums;

k. Bongs; and

l. Ice pipes or chillers.

(Ord. No. 4063, § 1, 3-12-91; Ord. No. 6351, § 1, 10-22-14)

Sec. 8.17.020. Factors for identifying object as item of drug paraphernalia.

In determining whether an object is an item of drug paraphernalia, a court or other authority, as the case may be, shall consider, in addition to all other logically relevant factors, the following:

(1) Statements by an owner or by anyone in control of the object concerning its use;

(2) Prior convictions, if any, of an owner, or of anyone in control of the object, under any state or federal law relating to any controlled substance;

(3) The proximity of the object, in time and space, to a direct violation of Chapter 453 of Nevada Revised Statutes;

(4) The proximity of the object to controlled substances;

(5) The existence of any residue of controlled substances on the object;

(6) Direct or circumstantial evidence of the intent of any owner, or of anyone in control of the object, to deliver it to persons whom he knows, or should reasonably know, intend to use the object to facilitate a violation of Chapter 453 of Nevada Revised Statutes;

(7) Instructions, oral or written, provided with the object concerning its use;

(8) Descriptive materials accompanying the object which explain or depict its use;

(9) National and local advertising concerning its use;

(10) The manner in which the object is displayed for sale;

(11) Direct or circumstantial evidence of the ratio of sales of the object to the total sales of the business enterprise; and

(12) Expert testimony concerning its use.

The innocence of an owner or of anyone in control of the object as to a direct violation of Chapter 453 of Nevada Revised Statutes does not prevent a finding that the object is intended for use or designed for use of an item of drug paraphernalia.

(Ord. No. 4063, § 1, 3-12-91)

Sec. 8.17.030. Prohibitions: Unlawful use or possession.

It is unlawful for any person to use, or possess with intent to use, drug paraphernalia to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale, or otherwise introduce into the human body a controlled substance in violation of Chapter 453 of Nevada Revised Statutes, unless the person is exempt from state prosecution pursuant to NRS 453A.200, and the use or possession is in compliance with NRS 453A, which is entitled "Medical Use of Marijuana."

(Ord. No. 4063, § 1, 3-12-91; Ord. No. 6351, § 2, 10-22-14)

Sec. 8.17.040. Unlawful acts relating to imitation controlled substances.

(a) For purposes of this section, imitation controlled substance means a substance, not a controlled substance, which:

(1) In the form distributed, is shaped, marked, packaged or colored so as to lead a reasonable person to believe it is a controlled substance; or

(2) Is represented to be a controlled substance. In determining whether such a representation was made, the court shall consider, in addition to all other logically relevant factors:

a. Statements made by the defendant regarding the nature of the substance, its quality, its use or its effect.

b. Statements made by the defendant regarding the recipient's ability to resell the substance at a substantially higher price than is customary for the substance.

c. Whether the substance is packaged in a manner normally used for illicit controlled substances.

(b) It shall be unlawful for any person to manufacture, distribute, sell or possess, with the intent to distribute or sell, an imitation controlled substance.

(c) It shall be unlawful for any person to offer or agree to purchase an imitation controlled substance, believing the same to be real.

(Ord. No. 5494, § 2, 9-10-03)

Sec. 8.17.050. Unlawful possession of marijuana

It is unlawful, within the City of Reno, for any person to knowingly or intentionally possess one (1) ounce or less of marijuana, as that term is defined in NRS 453.096, unless the person is

exempt from state prosecution pursuant to NRS 453A.200 and it is lawfully possessed in compliance with the provisions of NRS Chapter 453A, which is entitled "Medical Use of Marijuana," or except as otherwise authorized by the provisions in NRS 453.005 to 453.552, inclusive.

(Ord. No. 6025, § 1, 5-28-08; Ord. No. 6351, § 3, 10-22-14)

Sec. 8.17.060. Penalty for unlawful possession of marijuana.

Unless a greater penalty is provided in NRS Chapter 453, a person who violates the provisions of RMC 8.17.050 is guilty of a misdemeanor and upon conviction shall be punished:

(1) *For a first offense:*

(a) By a fine of not more than $600.00; or

(b) Shall be examined by an approved facility for the treatment of abuse of drugs to determine whether he is a drug addict and is likely to be rehabilitated through treatment and, if the examination reveals that he is a drug addict and is likely to be rehabilitated through treatment, assigned to a program of treatment and rehabilitation pursuant to NRS 453.580.

(2) *For a second offense:*

(a) By a fine of not more than $1,000.00; or

(b) Shall be assigned to a program of treatment and rehabilitation pursuant to NRS 453.580.

(Ord. No. 6025, § 1, 5-28-08)

Sec. 8.17.070. Distribution of fines collected for drug offenses.

Money collected from fines imposed for violating this chapter shall be remitted monthly to the City of Reno Finance Director, or his designee, and shall be placed in a restricted account. Funds in the account may only be distributed when requested by the Reno Municipal Court and must be evenly allocated by the City of Reno among:

(1) Nonprofit programs for the treatment of abuse of alcohol or drugs that are certified by the Health Division of the Nevada Department of Human Resources;

(2) A program of treatment and rehabilitation established by a court pursuant to NRS 453.580, if any; and

(3) Local law enforcement agencies, in a manner determined by the Reno Municipal Court.

(Ord. No. 6025, § 1, 5-28-08; Ord. No. 6351, § 4, 10-22-14)

Sec. 8.17.080. No public ingestion or consumption.

It is unlawful for any person to engage or assist in the medical use of marijuana on the property or premises of a medical marijuana establishment, in any public place, or in any place open to the public or exposed to public view.

(Ord. No. 6351, § 5, 10-22-14)

Sec. 8.17.090. Loitering.

It is unlawful for any person to loiter in, about, or within 20 feet of the property line of any medical marijuana establishment with the intent to purchase, sell, solicit or distribute marijuana

or drug paraphernalia, unless the person is authorized to be on the premises of the medical marijuana establishment pursuant to NRS 453A and the regulations adopted related thereto, and is acting in accordance with the provisions of NRS 453A and the regulations adopted related thereto. This intent may be evidenced by acting in a manner and under circumstances which openly demonstrate the purpose of buying, selling, soliciting, or distributing marijuana or drug paraphernalia by any person who is not exempt from state prosecution pursuant to NRS 453A.200, or in a manner not authorized by NRS 453A.

(Ord. No. 6351, § 5, 10-22-14)

Sec. 8.17.100. Penalty and punishment.

Unless a greater penalty is provided in NRS Chapter 453, a person who violates the provisions of Section 5.21.011, 8.17.030, 8.17.040, 8.17.080, or 8.17.090 of the Reno Municipal Code is guilty of a misdemeanor punishable by a fine of not more than $1,000.00 or imprisonment in a county jail for not more than six months, or by both fine and imprisonment, unless a statute in force at the time of commission of such misdemeanor prescribes a different penalty.

(Ord. No. 6351, § 5, 10-22-14)

Sec. 8.17.110. Affirmative defenses for medical marijuana.

A person charged with a crime pursuant to RMC 8.170.030 or 8.170.050 may assert an affirmative defense to such charges to the extent allowed and in the manner as set forth in NRS 453A.310.

(Ord. No. 6351, § 5, 10-22-14)

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CHAPTER 8.17A. RESERVED*

*__Editor's note—__Ord. No. 6024, § 1, adopted May 28, 2008, repealed Ch. 8.17A, in its entirety, which pertained to drugs.

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CHAPTER 8.18. WEAPONS*

Sec. 8.18.010. Reserved.
Sec. 8.18.020. Reserved.
Sec. 8.18.025. Discharge of firearms.
Sec. 8.18.030. Duty to report injury inflicted by dangerous or deadly weapons.
Sec. 8.18.035. Unlawful use of a whip.

Sec. 8.18.010. Reserved.

Editor's note—Ord. No. 5035, § 1, adopted Sept. 14, 1999, repealed § 8.18.010, which pertained to concealed and dangerous weapons. See the Code Comparative Table.

Sec. 8.18.020. Reserved.

Editor's note—Ord. No. 5232, § 1, adopted April 10, 2001, repealed § 8.18.020, which pertained to sale of switch blade knives. See the Code Comparative Table.

Sec. 8.18.025. Discharge of firearms.

(a) Preamble. The Reno City Council finds and declares as follows: For purposes of this ordinance, Nevada Revised Statutes and the prohibition on the discharge of firearms within the city limits, all areas within the city limits of the City of Reno are deemed to be populated areas.

(b) It is unlawful for any person to discharge any gun, pistol or other firearm in or upon any of the public streets, highways, alleys or other public place, or in, upon or about any building, vacant lot, or anywhere within the limits of the City; provided that nothing herein shall prevent the establishment and running of a shooting gallery properly enclosed and permitted by license of the city council under an ordinance of the City; and provided further, that nothing herein shall apply to any sheriff, deputy sheriff, policeman or other peace officer, who shall discharge any pistol or firearm in the lawful exercise of the duties of his office.

(Ord. No. 4648, § 1, 7-9-96; Ord. No. 4894, § 1, 7-14-98)

Sec. 8.18.030. Duty to report injury inflicted by dangerous or deadly weapons.

It shall be the duty of every physician and of the superintendent or person in charge of any hospital and of any other person in the City who has knowledge of any harm or injury done to a person by the use of a dangerous or deadly weapon in the City, to report the same to the chief of police immediately upon receiving such knowledge.

(Code 1966, § 11.36.010)

State law reference—Provider of health care to report persons having certain injuries, NRS 629.041.

***Cross reference—**Discharge of firearms as a nuisance, § 8.22.060.

State law references—Dangerous weapons and firearms, NRS 202.253 et seq.; tear gas bombs and weapons, NRS 202.370 et seq.

Sec. 8.18.035. Unlawful use of a whip.

Definitions.

"Whip" means a pliant, flexible instrument, such as a flexible rod or thong or lash attached to a handle used for flogging or beating a person and/or used to create a sharp "crack" sound for directing or herding animals. The definition of whip shall include all variations of whips, including but not limited to: bullwhip, stock whip, yard whip, cattle drafter, bullock-whip, Raman whip, Rose whip, Florida cow whip, signal whip, snake whip, equestrian whips, buggy whip, and Qilinbian.

"Downtown Corridor" is defined as the area within the exterior boundary by the following named streets: commencing at the south right-of-way line of I-80 and the east side of South McCarran Boulevard, then south along South McCarran Boulevard to north side of Plumb Lane, then east along Plumb Lane to the east side of Kietzke Lane, then north along Kietzke Lane until the west right-of-way line of Highway 580, then north along the west right-of-way line of Highway 580 to the south right-of-way line of I-80, then west along the south right-of-way line of I-80 to South McCarran Boulevard.

It shall be unlawful for any person to possess, use, or carry a whip within the Downtown Corridor without a permit.

It shall be unlawful for any person to crack or use a whip so as to injure, annoy, interfere with, or endanger the comfort, repose, health, peace or safety of others within the limits of the City.

(Ord. No. 6607, § 1, 10-13-21)

CHAPTER 8.20. RESERVED*

*__Editor's note—__Ord. No. 6239, § 1, adopted June 27, 2012, repealed Ch. 8.20, in its entirety, which pertained to obscene material. See also the Code Comparative Table.

State law references—Obscenity, NRS 201.235 et seq.; exhibition and sale of obscene material to minors, NRS 201.256 et seq.

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CHAPTER 8.21. ESCORT AND OUT CALL SERVICES*

Secs. 8.21.010—8.21.110. Reserved.
Sec. 8.21.120. Definitions.
Sec. 8.21.130. Escort/out call regulations.
Sec. 8.21.140. Responsibility.

Secs. 8.21.010—8.21.110. Reserved.

Editor's note—Ord. No. 6515, § 1, adopted May 8, 2019, repealed §§ 8.21.010—8.21.110, which pertained to adult interactive cabarets and derived from Ord. No. 5999, § 1, adopted Jan. 16, 2008. Similar provisons may be found at ch. 5.06.

Sec. 8.21.120. Definitions.

Chaperon means any person who, for a salary, fee, hire, or profit, and who is not a licensed owner of any business licensed under this chapter, or is not an escort or out call entertainer, acts for any such business by contacting or meeting with escort patrons to make social engagements for escorts, or protects or assists out call entertainers while they are providing out call entertainment.

Entertainment location means a hotel or motel guest room or accommodation, or any other public lodging accommodation including recreational vehicle parking facilities.

Escort means any person who, for a salary, fee, commission, hire, or profit, makes himself or herself available to the public for the purpose of accompanying other persons for social engagements.

Escort bureau means any business, agency or person who, for a fee, commission, hire, or profit furnishes or arranges for escorts to accompany other persons for social engagements.

Escort patron means any person who seeks the services of an escort bureau.

Out call entertainer means a natural person who is sent or referred to an entertainment location by an out call entertainment referral service to entertain a patron at an entertainment location.

Out call entertainment means a visit by an out call entertainer at an entertainment location in response to request to entertain a patron at the entertainment location.

Out call entertainment referral service means a business which for a fee sends or refers an entertainer to an entertainment location in response to a request to entertain a patron at the entertainment location.

***Editor's note—**The title of Ch. 8.21, has been amended in order to accommodate the inclusion of Ord. No. 4750 as §§ 8.21.120—8.21.140, at the discretion of the editor. Subsequently, Ord. No. 5999, § 1, adopted January 16, 2008, amended ch. 8.21, in its entirety, to read as herein set out. See also the Code Comparative Table. Ord. No. 6515, § 1, adopted May 8, 2019, changed the title of ch. 8.21 from ″Adult Interactive Cabarets; Escort and Out Call Services″ to read as herein set out.

Patron means a person who requests an entertainer to entertain at an entertainment location and who either pays or agrees to pay the fee of the out call entertainment referral service. ″Patron″ includes a person who is entertained by an out call entertainer at an entertainment location.

(Ord. No. 5999, § 1, 1-16-08)

Sec. 8.21.130. Escort/out call regulations.

(a) No person, firm, partnership, corporation, or other entity shall advertise, or cause to be advertised, as an escort/out call business without a valid escort/call license issued pursuant to Title 5 of the Reno Municipal Code.

(b) No later than the fifteenth day of the month succeeding the annual license period an escort/out call licensee shall file a verified report with the department showing the amounts if paid to escorts, dancers or out call entertainers for the preceding annual period.

(c) An escort/out call licensee shall maintain and retain for a period of three years the legal names and aliases, addresses, identifying information, and ages of all persons employed by the licensee.

(d) No escort/out call licensee shall employ a person under the age of 21 years, or a person who does not have a valid work identification card as required by Title 5 of the Reno Municipal Code.

(e) No escort/out call licensee shall serve, sell, distribute or suffer the consumption or possession of any intoxicating liquor, or any beverage represented as containing any alcohol, during the course of the contract with a patron without a valid liquor license.

(f) An escort/out call licensee shall conspicuously display all licenses required by this chapter at the office of the licensee.

(g) At no time will a licensee or employee of a licensee expose any portion of their pubic region, genitals, vulva and/or anus to view, nor shall a male licensee or employee appear in a discernibly turgid state, even if completely and opaquely covered, except in a private residence. This shall include all entertainment locations defined in section 8.21.120 or any locations to which the public has access.

(h) Licensees or their employees will not work if grossly intoxicated or under the influence of any controlled substance.

(i) No licensee or employee shall fondle or caress any patron, and no patron shall fondle or caress any dancer. At no time will a licensee or employee touch either's genitals, breast, anus or pubic area.

(j) Licensee or employees will not simulate any sexual acts with a patron or use any artificial device or inanimate object, animal or simulation thereof, to simulate the same.

(k) Licensees or employees at no time shall make dates with patrons while performing or solicit prostitution in any form.

(l) The escort/out call licensee shall maintain at all times during open hours a schedule or list of all employees. This schedule or list shall list all employees on duty and their shift times. The list shall be made available to law enforcement on demand.

(m) ″Lap dancing,″ whereby a performer sits upon the lap of a patron and ″couch dancing,″ or any other location where similar activity may occur, whereby a performer moves between

a patrons legs are specifically prohibited, unless the following regulation is adhered to: no licensee or employee shall fondle or caress any patron and no patron shall fondle or caress any licensee or employee during or while performing.

(Ord. No. 5999, § 1, 1-16-08)

Sec. 8.21.140. Responsibility.

(a) The holder of an escort/out call license is responsible for the acts of its employees and independent or subcontractors, including but not limited to attendants, servers, security personnel, managers, performers and dancers. An escort/out call license may be revoked for act of such agent, employee or subcontractor which violates any provision of this chapter. It is the duty of the licensee to prevent disturbances, fraudulent acts, prostitution and the solicitation of prostitution, and violations of the escort/out call regulations as defined in the above sections and Title 4 and Title 5 of the Reno Municipal Code.

(b) The owners or operators of any escort/out call service shall ensure that all independent contractors or subcontractors, including but not limited to attendants, servers, security personnel, managers, performers and dancers shall have a current business license prior to contracting for their services. The owner/operators shall keep a copy of each individual business license on file for every independent contractor or subcontractor not acting as a regular employee.

(Ord. No. 5999, § 1, 1-16-08)

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CHAPTER 8.22. NUISANCES*

Article I. General Provisions

Sec. 8.22.010. Title.
Sec. 8.22.020. Purpose and scope.
Sec. 8.22.030. Definitions.

Article II. Unlawful Acts

Sec. 8.22.040. Unlawful acts.
Sec. 8.22.050. Unsafe or dangerous buildings.
Sec. 8.22.060. Property and premises maintenance.
Sec. 8.22.070. Graffiti.
Sec. 8.22.075. Accessibility to graffiti materials.
Sec. 8.22.080. Junk, abandoned, inoperative and/or unregistered vehicles.
Sec. 8.22.090. Abatement of public nuisance.
Sec. 8.22.100. Reserved.
Sec. 8.22.105. Chronic nuisance violation.
Sec. 8.22.110. Abandoned nuisances.

Article III. Administration

Sec. 8.22.200. Authority to enforce.
Sec. 8.22.210. Rules and regulations.
Sec. 8.22.220. Authority to inspect.
Sec. 8.22.230. Notification procedures for a chronic nuisance and for the abatement of an abandoned nuisance.
Sec. 8.22.235. Procedures for filing action to abate a chronic nuisance, or an abandoned nuisance.

Article IV. Enforcement

Sec. 8.22.240. Violations and penalties.
Sec. 8.22.250. Special assessments.
Sec. 8.22.260. Relocation of occupants.

***Editor's note—**Ord. No. 6448, § 1, adopted Jan. 10, 2018, amended Ch. 8.22, §§ 8.22.010—8.22.290, in its entirety to read as herein set out. Former Ch. 8.22 pertained to similar subject matter and derived from Ord. No. 5091, § 1, adopted Nov. 9, 1999; Ord. No. 5281, § 1, adopted Oct. 23, 2001; Ord. No. 5863, § 1, adopted Aug. 23, 2006; Ord. No. 5926, § 1, adopted May 9, 2007; Ord. No. 5946, § 1, adopted June 27, 2007; Ord. No. 6056, § 1, adopted Sept. 10, 2008; Ord. No. 6252, § 1, adopted Oct. 10, 2012; and Ord No. 6337, § 1, adopted July 16, 2014. See also the Code Comparative Table.

Cross references—Health and sanitation, Tit. 10; general sanitary nuisances, § 10.04.030.

State law reference—Public nuisances, NRS 202.450 et seq.

Case law reference—Suppression of nuisances injurious to public health or morals is a ″governmental″ power. Kelly v. Clark County Commissioners, 61 Nev. 293, 127 P. (2d) 221 (1942).

Sec. 8.22.270. Enforcement independent of other officials.
Sec. 8.22.280. Liability for costs of the fire department.

Article V. Social Host

Sec. 8.22.300 Social host liability.

ARTICLE I. GENERAL PROVISIONS

Sec. 8.22.010. Title.

This chapter shall be known as the ″Nuisance Ordinance of the City of Reno,″ may be cited as such, and will be referred to hereafter as ″ordinance.″

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.020. Purpose and scope.

(a) It is determined and declared as follows:

(1) The city has a substantial and legitimate interest in seeing that its community, including property, buildings and premises within its limits, is kept in a safe and aesthetically pleasing condition;

(2) The keeping or maintaining of property, buildings and premises at variance with the level of maintenance of surrounding properties will result in blighting and/or unsafe conditions and substantial diminution in the employment, use, aesthetic and property values of such surrounding properties;

(3) It is desirous to promote the maintenance of property, buildings and premises in order to enhance the livability, community appearance, and the safe, social and economic conditions of the community;

(4) The increase of graffiti on both public and private buildings, structures and places is creating a condition of blight within the city which results in the deterioration of property and business values for adjacent and surrounding properties, all to the detriment of the city;

(5) A significant portion of the graffiti now appearing is related to the activities of youth gangs and that the prompt elimination of such graffiti from public view would contribute to the city's efforts to control and minimize the presence of youth gangs within the community; and

(6) The graffiti is obnoxious constituting a nuisance which must be abated so as to avoid the detrimental impact of such graffiti upon the city and to prevent the further spread thereof.

(b) The purpose of this chapter is to protect the health, safety and welfare of the citizens of Reno and to promote the maintenance of property, buildings and premises in order to enhance the livability, community appearance, and the safe, social and economic conditions of the community.

(c) This chapter shall apply to all property, buildings and premises within the city without regard to the use, the date of construction or alteration.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.030. Definitions.

The following definitions will be used in this ordinance unless the context otherwise requires:

Abandoned structure. Any structure:

(1) That has been vacant or substantially vacant for a period of 12 months or more; or

(2) That has been vacant for any period of time creating an attractive nuisance, a health hazard, an imminent hazard or an incipient hazard.

Abandoned vehicle. Any vehicle:

(1) That has been left unattended and dangerously close to a travel lane on a city street, highway or road so as to possibly impede traffic; or

(2) Which reasonably appears to have been discarded and has not been moved or used for more than three consecutive days. [Reference NRS 487.210]

Aerosol paint container. Any aerosol container, regardless of the material from which it is made, which is adopted or made for the purpose of spraying paint or other substance capable of defacing property.

Antique old timer vehicle. Any vehicle entitled to be registered with the Nevada Department of Motor Vehicles as an ″old timer″ as a model manufactured more than 40 years before the date of application for registration. [Reference NRS 283.381]

Blight. Any condition which substantially impairs the livability or community appearance, or the safe, social or economic conditions of the community.

Boarded. Secured against entry by apparatus which is visible off the premises and is not both lawful and customary to install on occupied structures.

Building. Any structure used or intended for supporting or sheltering any use or occupancy.

Brush. Shrubs or growth which present or may present a blight, safety or fire hazard.

Chronic nuisance. Means the existence of any of the following conditions:

(1) When three or more nuisance activities exist or have occurred during any 30-day period on a property;

(2) When a person associated with the property has engaged in three or more nuisance activities during any 30-day period on the property or within 100 feet of the property;

(3) When the property has been the subject of a search warrant based on probable cause of continuous or repeated violations of NRS chapter 459; or

(4) When a building or place is used for the purpose of unlawfully selling, serving, storing, keeping, manufacturing, using or giving away a controlled substance, immediate precursor as defined in NRS 453.086 or controlled substance analog as defined in NRS 453.043.

Classic rod. Any passenger car or light commercial vehicle entitled to registration with the Nevada Department of Motor Vehicles as a ″classic rod″ which:

(1) Has a manufacturer′s rated carrying capacity of one ton or less; and

(2) Was manufactured not earlier than 1949, but at least 20 years before the date of application for registration. [Reference NRS 283.3814]

Classic vehicle. Any passenger car or light commercial vehicle entitled to registration with the Nevada Department of Motor Vehicles as a ″classic vehicle″ which:

(1) Has a manufacturer′s rated carrying capacity of one ton or less;

(2) Was manufactured at least 25 years before the date of application for registration; and

(3) Contains only the original parts which were used to manufacture the vehicle or replacement parts that duplicate those original parts. [Reference NRS 283.3816]

Criminal activity. Any activity punishable as a misdemeanor under the Reno Municipal Code or as a misdemeanor, gross misdemeanor or felony under NRS title 15, or which is in violation of any federal law.

Debris. Substance of little or no apparent economic value, which may be present in a state of apparent unpremeditated disarray.

Dangerous building. Any building or structure which has any or all of the conditions or defects as specified in the International Property Maintenance Code, International Building Code or the International Fire Code, as those codes may be amended from time to time, provided that such conditions or defects exist to the extent that life, health, property or safety of the public or its occupants are endangered.

Dwelling. Any building or portion thereof which contains not more than two dwelling units.

Dwelling unit. Any building or portion thereof which, provides complete independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking, and sanitation as defined in the International Property Maintenance Code.

Enforcement official. Shall have the meaning set forth in section 1.05.020 of the Code.

Excavation. Wells, shafts, basements, cesspools, septic tanks, swimming pools, fish ponds, and other like or similar conditions more than six inches in diameter and three feet in depth.

Exterior opening. An open or closed window, door, or passage between interior and exterior spaces.

Facilities/building, service and equipment. Plumbing, piping and/or fixtures that convey or dispose of liquid waste and gas, electric wiring components and/or fixtures, mechanical heating/cooling equipment, duct work and/or fixtures.

Fences, fencing screen walls and/or retaining walls. Self-standing structures designed to provide semi-privacy, security, or bank retention between grade separations.

Garbage. Swill, offal, and any accumulation of animal, vegetable or other matter associated with the preparation, handling, consumption, storage or decay of plant and animal matter including meats, fish, fowl, buds, fruits, vegetable or dairy products and the waste wrappers or containers thereof and filthy or odoriferous objects.

Garage sale. A sale from a residence or residential property of personal property which has been owned or used previously by an individual. A yard, patio, or tag sale shall be included within the definition of ″garage sale.″

Graffiti. Unauthorized markings, such as initials, slogans, inscriptions, figures, marks or drawings commonly known and referred to as graffiti, written, spray-painted, etched or sketched on a sidewalk, wall, building, fence, sign, or any other public or private surface or property, including vehicles. [Reference NRS 268.4075]

Graffiti materials. Materials used to facilitate the placement of graffiti, as defined above, including but not limited to, aerosol paint containers, aerosol paint container tips, broad-tipped markers with a width greater than one-quarter-inch, paint sticks, graffiti sticks, engraving devices, and etching tools, or any other implement capable of marking on and/or scarring glass, metal, concrete or wood.

Hazardous waste. Any waste or combination of wastes, including solids, semisolids, liquids or contained gases, which:

(a) Because of its quantity or concentration or its physical, chemical or infectious characteristics may:

(1) Cause or significantly contribute to an increase in mortality or serious irreversible or incapacitation illness; or

(2) Pose a substantial hazard or potential hazard to human health, public safety or the environment when it is given improper treatment, storage, transportation, disposal or other management.

(b) Is identified as hazardous by the health department as a result of studies undertaken for the purpose of identifying hazardous wastes.

The term includes, among other wastes, toxins, corrosives, flammable materials, irritants, strong sensitizers and materials which generate pressure by decomposition, heat or otherwise. [Reference NRS 459.430]

Health hazard, hazardous condition and/or dangerous condition. The presence of any item(s) or condition which adversely impact or jeopardize the well being or health of an individual. Such items may be inclusive of human/animal waste, medical or biological waste, sharp, gaseous or combustible materials, radioactive waste, dangerous and/or corrosive chemicals/liquids, flammable and/or explosive materials, friable asbestos, offal and decay matter, and any other condition constituting a health hazard under the Nevada Revised Statutes. In addition, evidence of occupancy without adequate facilities as required by the International Property Maintenance Code, shall be considered an imminent health hazard, hazardous condition and/or dangerous condition.

Horseless carriage. Any vehicle entitled to registration with the Nevada Department of Motor Vehicles as a ″horseless carriage″ which is a model manufactured during or before 1915. [Reference NRS 283.380]

Imminent hazard. Condition of property, including real property, that places a person′s life, health, or property in high risk of peril when such condition is immediate, impending, or on the point of happening and menacing.

Incipient hazard. Condition of property, including real property, that can become an imminent or health hazard if further deterioration occurs that can cause unreasonable risk or death or severe personal injury.

Infestation. The apparent presence of damaging, or unhealthful insects, rodents, or reptiles.

Inoperative vehicle. Any motor vehicle which is inoperative:

(1) Cannot be moved under its own power; or

(2) Cannot be operated lawfully on a public street or highway due to removal of, damage to, or deterioration of, or inoperative condition of any component part; or

(3) Lacks an engine, transmission, wheels, tires, doors, windshield or windows or, any other component part necessary for movement or lawful operation.

Interior furnishings. Items created or built to be used in the interior of a home. Such items include sofas, kitchen furniture, toilets, bathtubs, futons, sinks, televisions, and other types of furniture or fixtures. This does not include outdoor or lawn furniture.

Junk vehicle. A vehicle, including component parts which:

(1) Has been ruined, wrecked, or dismantled; or

(2) Is unfit for further use in accordance with the original purpose for which it was constructed; or

(3) Is not registered with the Nevada Department of Motor Vehicles and has value principally as scrap which does not exceed $200.00.

Litter. Rubbish which is non-decaying, decaying or solid and semi-solid wastes, including but not limited to, both combustible and noncombustible wastes, such as paper, trash, cardboard, waste material, tin cans, yard clippings, wood, glass, bedding, or debris, scrap paving material, discarded appliances, discarded furniture, bedding, dry vegetation, weeds, dead trees and branches, overgrown vegetation and trees which may harbor insect or rodent infestations or may become a fire hazard, piles of earth mixed with any of the above or any foreign object, including junk or abandoned vehicles, without regard to value.

Occupant. Legal entity that, through rights of ownership, rental, or residence, has the use and enjoyment of the subject real property for residential or commercial purposes.

Owner. Means any person having a legal or equitable interest in real property within the city. For purposes of providing notice under this chapter to an owner of real property, the term also includes any agent or representative of the owner, or any person who acts as a manager or collects rents regarding that property.

Paint stick or graffiti stick. A device containing a solid form of paint, chalk, wax epoxy, or other similar substance capable of being applied to a surface by pressure, and upon application, leaving a mark at least one-sixteenth of an inch in width.

Paved surface. As used in this chapter any asphalt, concrete or other reasonably improved surface with a minimum depth of three inches. As used herein, a reasonably improved surface must effectively mitigate dust, erosion and run-off as well as provide a reasonably strong, compacted, and smooth surface suitable for use by vehicles.

Person associated with property. Means a person who, on the occasion of a nuisance activity, has:

(1) Entered, patronized or visited;

(2) Attempted to enter, patronize or visit; or

(3) Waited to enter, patronize or visit,

a property or a person present on the property.

Polluted water. As used in this chapter, any water which contains bacterial growth, remains of garbage, refuse, debris, papers, and any other foreign matter or material which constitutes an unhealthy or unsafe condition.

Pond/pool. An in-ground body of water that is at least 18 inches deep and eight feet or greater in any dimension. Ponds that meet these conditions are subject to the provisions of this ordinance.

Premises. Land and the buildings or structures upon it.

Property. Any real property, real estate, land, lot, or part of real property, real estate, land or lot.

Property manager. A legal entity with the authority and ability to make emergency repairs and with the responsibility to:

(1) Oversee the property and the maintenance of the property; and

(2) Represent the owner's interest.

Public nuisance, nuisance, or nuisance activity. Means any of the following conditions:

(1) An unsafe or dangerous building;

(2) Unoccupied buildings or unoccupied structures with boarded-up windows or entry-ways that have been opened and unsecured, or windows without opaque coverings or entryways without boards for more than ten calendar days;

(3) Buildings or structures where more than 25 percent of the exterior of the building was damaged or destroyed and is left in such condition for more than ten calendar days;

(4) Buildings, property, or structures in a state of partial unprogressing construction for more than 90 days;

(5) Property, buildings, structures or premises with barricades, fencing, screen walls or retaining walls which are not of sound condition, damaged or in disrepair;

(6) Unoccupied buildings or unoccupied structures where exterior lighting is less than one footcandle of light at ground level around the exterior of the building, and unoccupied commercial properties not providing the minimum one footcandle of light on site;

(7) Property, buildings, structures or premises where dead plants, dead materials, overgrown weeds, brush, and debris have not been removed for a period of more than ten days;

(8) Property, buildings, structures or premises which display dilapidation, disrepair, structural defects or unsightly appearances that constitute a blight to adjoining property, the neighborhood or the city;

(9) Property, buildings, structures or premises which contain debris, scrap material, garbage, hazardous waste, a health hazard, a dangerous condition, an imminent hazard, an incipient hazard, infestation, litter, rubble or overgrown vegetation that constitute a blight to adjoining property, the neighborhood or the city, or a health, safety or fire hazard;

(10) Wells, shafts, basements, cesspools, septic tanks, swimming pools, recreational/architectural pools, ponds and other like or similar excavations where it appears that such are abandoned or not maintained or secured or unattended;

(11) Graffiti capable of being viewed by a person using any public area or right-of-way in the city;

(12) Any obstruction including vegetation, which may endanger, in any way, the security or usefulness of or any access to any street, utility line (above or underground), sewer or public place;

(13) Any vegetation located anywhere within the city which is determined by the director of parks, recreation and community services or his/her designee to be afflicted with any dangerous and infectious insect infestation or plant disease;

(14) Any tree of all species and varieties of Ulmus, Zelkova, and Planera infected with the fungus Certostomella ulmi, as determined by laboratory analysis conducted at the direction of the director of parks, recreation and community services or his/her designee, located anywhere within the city;

(15) Any tree which is in a dead or dying condition located anywhere in the city, that may serve as a breeding place for any infectious insects or disease or is a dangerous condition for surrounding persons or property;

(16) Any property on which a swimming pool, pond, stream or other body of water is abandoned, unattended, unfiltered or not otherwise maintained, resulting in the water becoming polluted or becoming or likely to become a breeding area for insects;

(17) Any property whereon any condition or object obscures the visibility of a public street intersection to the public so as to constitute a hazard, including but not limited to vegetation, signs, posts or equipment;

(18) Any criminal activity occurring at any building or premises;

(19) A building or place used for the purposes of unlawfully selling, serving, storing, keeping, manufacturing, using or giving away a controlled substance, immediate precursor as defined in NRS 453.086 or controlled substance analog as defined in NRS 453.043; or

(20) Any garage sale which exceeds the following limitations:

(a) No more than four garage sales shall be conducted on premises per calendar year;

(b) No garage sale shall be conducted for longer than 48 hours consecutively;

(21) Parking in front of the front building line of single-family residential dwellings except:

(a) On paved standard driveway areas; or

(b) Upon a paved surface as defined in this chapter which is directly adjacent to the approved driveway and the nearest property line with its access made through the approved driveway approach without driving over required landscape;

(22) Using any mobile home, recreational vehicle or vehicle for sleeping purposes outside of a mobile home park, mobile home subdivision or recreational vehicle park;

(23) The display of any vehicle for the purpose of sale or lease upon any vacant lot or unimproved portion of a public right-of-way; (Per NRS 482.548);

(24) Any shopping cart upon any public property or any private property, other than the premises at which the shopping cart owner provides such shopping cart for use by customers;

(25) Any area, structure, or object which by its nature, location, or character would tend to attract and endanger the safety of any minor person;

(26) Unreasonably creating, allowing, or engaging in any activity, conduct, or use of property that subjects a person or neighborhood to noise which is likely to disturb the peace of persons of reasonable and ordinary sensibilities;

(27) Any violation of conditions or requirements set forth in the International Fire Code, International Building Code, International Property Maintenance Code, Washoe County Solid Waste Management Code, or any other Reno Municipal Code or Washoe County Code or the Nevada Revised Statutes.

Recreational architectural pool. A constructed (above-ground) or excavated (below-ground) exterior area designed to contain a regular supply of water.

Responsible party. Shall have the meaning of responsible person set forth in section 1.05.020 of the Code.

Rubble. Broken fragments resulting from the decay or destruction of a building, or miscellaneous mass of broken or apparently worthless materials.

Sound condition. Able to support itself under reasonable loading or weather conditions, free from decay or defect.

Scrap material. Fragments of discarded or leftover wood, plastic, metal, or other types of fragmented material. Neatly stacked firewood shall not be considered scrap material.

Street rod. Any passenger car or light commercial vehicle entitled to registration with the Nevada Department of Motor Vehicles as a ″street rod″ which:

(1) Has a manufacturer′s rated carrying capacity of one ton or less; and

(2) Was manufactured not later than 1948. [Reference NRS 482.3812]

Structure. That which is built or constructed, or an edifice or building of any kind or any piece of work artificially built up or composed of parts joined together in some definite manner.

Swimming pool. Artificial basin, chamber, or tank constructed and used, or designed to be used for swimming, diving, bathing or wading.

Unauthorized. Without the prior permission or consent of the property owner or responsible party.

Unregistered vehicle. Any vehicle or component thereof on which there is not display evidence of current registration with the Nevada Department of Motor Vehicles or current registration with a similar agency of another state.

Unsafe building. Buildings or structures which are structurally unsafe or not provided with adequate egress, or which constitute a fire hazard or are otherwise dangerous to human life, or which, in relation to existing use, constitute a hazard to safety, health or public welfare by reason of inadequate maintenance, dilapidation, obsolescence, fire hazard, disaster, damage or abandonment as specified in the Reno Municipal Code, International Property Maintenance Code, International Building Code, International Residential Building Code, International Fire Code or Nevada Revised Statutes.

Unsecured structure, property, or premises. Any structure, property, or premises, that is vacant with a damaged or open door, window or other exterior opening not secured in accordance with the city's standards to prevent unauthorized entry; or any property easily accessible to the public, or to animals.

Vegetation. Plants of any kind.

Vehicle. A piece of mechanical equipment intended for the conveyance or temporary housing of persons or personal property or parts thereof including, but not limited to, automobiles, trucks, boats, campers, camper shells, vans, motor homes, converted buses and similar vehicles.

Weeds. A useless and troublesome plant of negligible or no value and usually of uncontrolled growth.

(Ord. No. 6448, § 1, 1-10-18)

ARTICLE II. UNLAWFUL ACTS

Sec. 8.22.040. Unlawful acts.

(a) Every person who causes, maintains, allows, permits, procures, aids, fosters, promotes or solicits a public nuisance or chronic nuisance, or who wilfully omits or refuses to abate such a nuisance, is guilty of a misdemeanor.

(b) Every person who deliberately ignores the establishment or continuation of a public nuisance or chronic nuisance involving or upon property under the person's control is guilty of a misdemeanor if done either intentionally or in a criminally negligent manner.

(1) For purposes of this section, deliberate ignorance is done in a criminally negligent manner if it jeopardizes another's health, safety or welfare; interferes with the objectively reasonable use and enjoyment of adjacent property or any public property; or has a detrimental effect upon adjacent property values.

(c) Each day that a violation continues constitutes a separate violation for purposes of criminal prosecution.

(d) Criminal prosecution is a separate action to any civil action that may be taken to address a nuisance or chronic nuisance in chapter 1.05 of the Code.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.050. Unsafe or dangerous buildings.

(a) No person owning, leasing, renting, having charge or control of or occupying any building, including any part or cellar or basement thereof, shall permit the building to become an unsafe or dangerous building.

(b) No person owning, leasing, renting, or having charge, control or possession of any cellar way, exterior opening or entrance to any cellar way, basement or other excavation beneath the sidewalk along any street or alley, shall cause or permit the cellar way, exterior opening or entrance to be opened or remain open, except during the time the cellar way, exterior opening or entrance is actually in use, or cause or permit the cellar way, exterior opening or entrance to remain open without a proper guardrail around the

same. The guardrail is to be constructed of metal, not less than three and one-half feet from the ground level with metal mesh screen, and is to be maintained in a nonhazardous condition to pedestrians when closed or open.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.060. Property and premises maintenance.

(a) No person owning, leasing renting, having charge or control of, or occupying any property, premises or building, shall fail, refuse or neglect to remove any nuisance from the property or sidewalk or alley abutting such property, premises or building.

(b) No person owning, leasing, renting, having charge or control of, or occupying any property, premises or building, shall fail, refuse or neglect to remove any garbage, scrap material, debris, litter, or obstruction including, but not limited to, weeds, dry grass, dead trees, abandoned, unregistered or junk vehicles or parts thereof, asphalt, concrete, rubble, refuse or waste materials of any kind, from the property, sidewalk, street, or alley abutting such property, premises or building, nor shall said persons refuse or neglect to remove the storage of personal property, from the sidewalk, street, or alley abutting such property, premises, or building. This provision does not prohibit the legal parking of registered vehicles in the street.

(c) No person owning, leasing, renting, having charge or control of, or occupying any property, premises or building, shall remove any landscaping as required per conditions placed against said premises or as required per the zoning code. No front yard required landscape areas may be substituted with bare dirt, in order to prevent the bare dirt from contributing to air pollution, erosion and blight within the community.

(d) Large, remote acreage in excess of an acre that in its natural state is hazardous to service with large machinery due to its terrain, and acreage owned by governmental agencies are exempt from subsection (b) with regards to vegetation (i.e. weeds, dry grass, dead trees). In the case of dry vegetation only, a fire break may be cut separating any flammable structure from standing weeds to the minimum width of 30 feet. In the case of property owned by the City of Reno, the occupant of said structure shall seek approval by the director of parks, recreation and community services or designee to enter the property and create the required fire break. A larger width of fire break may be specified by the city in its notice of violation if such is necessary to protect any person or property, or to allow for safe operation of fire department equipment. This exemption is not operable when a nuisance or actual and probable danger exists with respect to a condition.

(e) No person shall plant on or along any street, parkway or public place any fruit, nut or seed-bearing trees, unless the urban forester shall issue a permit therefore, after determining that the roots will not interfere with any public sidewalk, curb, sewer, water and gas lines and that the fruit, nuts or seeds of such trees will not pose a public hazard.

(f) No person shall plant any species of the genus Ulmus (elm) anywhere in the city.

(g) No person shall plant any species of the genus Populus (poplar/cottonwood/aspen) tree, or the genus Salix (willow) tree on or along any street, parkway or other public property. Special exception may be allowed by the urban forester for the purpose of maintaining riparian vegetation and habitat along the Truckee River or other natural riparian areas.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.070. Graffiti.

(a) No person shall cause graffiti to be applied to any public or private property, building or premises.

(b) POSSESSION OF GRAFFITI MATERIALS.

(1) By juveniles.
It shall be unlawful for any person under the age of 18 years to possess any graffiti materials while on any school property, grounds, facilities, buildings, or structures or within 500 feet of those specific locations except where necessary for proper school related purposes, or upon public property or upon private property without the prior written consent of the owner or occupant of such private property.

(2) In designated public places.
It shall be unlawful for any person to possess any graffiti materials with the intent to place graffiti on any public property while in or upon any public facility, school, park, playground, swimming pool, recreational facility, or other public building or structure owned or operated by the city or while in or within 50 feet of any underpass, bridge abutment, storm drain, or similar types of infrastructure unless otherwise authorized by the city. Possession of more than three items defined as graffiti materials by any person while in or upon any location specified in this subsection shall create a rebuttable presumption that such person did intend to place graffiti on property.

(c) Juvenile offenders are under the jurisdiction of the juvenile court and will be sanctioned in accordance with applicable Nevada Revised Statutes, including NRS chapter 62.

(d) Notwithstanding the abatement provisions set forth in chapter 1.05 of the Code and this chapter, if the enforcement official determines that the graffiti is so located on a public or privately owned property, building, structure or premises within the city so as to be capable of being viewed by a person using any public right-of-way in the city, he or his authorized designee may provide for the removal of the graffiti at city expense without reimbursement from the owner of record and/or responsible party upon whose property, building, structure or premises the graffiti has been applied if:

(1) The painting or repair is confined to removing or obliterating the graffiti only;

(2) The property, building, structure or premises is owned by a public entity other than the city, and removal of the graffiti is authorized with the consent of the public entity having jurisdiction over the property, building, structure or premises; or

(3) The property, building, structure or premises is privately owned, the removal by the city may be authorized only after securing consent and waiver of liability from the owner. If the owner cannot be determined or refuses to abate the graffiti, the city may pursue abatement procedures as set forth in chapter 1.05 of the Code.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.075. Accessibility to graffiti materials.

(a) For purposes of this section only, graffiti materials shall be defined as aerosol paint containers, broad-tipped markers with a surface area greater than one-quarter-inch width, and paint sticks.

(b) SALE OF GRAFFITI MATERIALS.

It shall be unlawful for any person, other than a parent, legal guardian or school teacher, to sell, exchange, give, loan, or otherwise furnish or cause or permit to be exchanged, given, loaned, or otherwise furnished, any graffiti materials to any juvenile without the prior written consent of the parent or guardian of the juvenile.

(c) DISPLAY AND STORAGE.

(1) Every person who owns, conducts, operates, or manages a retail commercial establishment selling graffiti materials shall store the graffiti materials in an area continuously observable, through direct visual observation or surveillance equipment by employees of the retail establishment during the regular course of business.

(2) In the event that a commercial retail establishment is unable to store the graffiti materials as provided above, the establishment shall store the graffiti materials in an area not accessible to the public in the regular course of business without employee assistance.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.080. Junk, abandoned, inoperative and/or unregistered vehicles.

(a) Except as stated herein, no person shall keep, for any reason:

(1) Any junk, inoperative and/or unregistered vehicle or vehicles on any highway, street or other thoroughfare, or upon any public property within the city.

(2) More than two junk and/or inoperative vehicles that do not qualify under section 8.22.080(c)(1) through (4) on any private parcel of property.

(3) More than two unregistered vehicles which are on private property.

(4) Any vehicle which is not on any surface which is not a paved surface within the front yard area, as front yard area is defined in title 18 of the Code.

(b) Except as provided under section 8.22.080(c)(1) through (4), section 8.22.080(a) shall not be construed to allow more than a total of two junk, inoperative, and/or unregistered vehicles on their private property. Any junk or inoperative vehicles on private property must be fully screened within a fence or enclosure, so as to avoid being viewed from any public or private property when standing at ground level with the property.

(c) The provisions of subsection (a) above do not apply to:

(1) Persons licensed as automobile wreckers or salvage pool operators pursuant to NRS chapter 487;

(2) Junk, inoperative or unregistered vehicles on private property of a licensed dealer, manufacturer, distributor or rebuilder of vehicles;

(3) Junk, inoperative or unregistered vehicles on private property used as a farm, ranch, mine or licensed vehicle repair shop;

(4) Junk, inoperative or unregistered vehicles on private property, contained within a garage or accessory building so as to prevent viewing of the vehicle from any property line by persons standing at ground level, used by any person engaged in the restoration of one or more vehicles entitled to registration as a horseless carriage, antique old timer, street rod, classic rod or classic vehicle as defined in section 8.22.030, respectively.

(d) No person shall abandon a vehicle, upon any highway, street or other public thoroughfare, or upon any public or private property within the city.

(e) Any city police or other authorized enforcement official who has reasonable grounds to believe a vehicle has been abandoned shall attach a notice to the vehicle, in the form of a citation or notice of infraction for illegal parking, and if the vehicle has not been removed within three days after such notice is attached to the vehicle, the city police or other authorized enforcement official is authorized to remove or have such vehicle removed from any street, highway, public thoroughfare, public or private property with the consent of the property owner, for the purpose of storage or disposition, to any garage within the city. Vehicles abandoned on public lands shall be addressed in accordance with the Nevada Revised Statutes.

(f) If the owner of a junk, inoperative and/or unregistered vehicle fails to remove the vehicle as designated in a notice pursuant to chapter 1.05, the enforcement official is authorized to have the junk, inoperative and/or unregistered vehicle towed from the place of violation to a designated place. The owner and any secured parties of the junk, inoperative and/or unregistered vehicle, as well as the property owner or responsible party where the junk, inoperative and/or unregistered vehicle is improperly located, shall be held liable for the costs of removal.

(g) Any city police or other authorized enforcement official who identifies a vehicle on public property in such a state of disrepair or dismantled to the point that the vehicle is unidentifiable, so as to appear to be a health hazard, hazardous condition, or dangerous condition to the public, may remove the vehicle immediately without notice.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.090. Abatement of public nuisance.

No owner, occupant, agent, property manager, or anyone having charge or control of any property, building, or premises within the city shall permit or allow the existence of a public nuisance as defined in this chapter, upon any public or private property, building, structure or premises owned, occupied or controlled by him.

If the nuisance condition or a chronic nuisance exists on property owned by him and:

(a) Is not an immediate danger to the public health, safety or welfare; and

(b) Was caused by the criminal activity of a person other than the owner, the owner must be afforded a minimum of 30 days to abate the condition.

Any nuisance condition shall not be considered to have been abated if the condition remains unchanged but for the addition of a temporary covering such as a tarp, sheet or other non-permanent covering.

Any person violating any of the provisions of this chapter shall be subject to provisions of chapter 1.05 of the Code.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.100. Reserved.

Sec. 8.22.105. Chronic nuisance violation.

No owner, occupant, agent, person associated with the property or anyone having charge or control of any property, building or premises within the city shall permit or allow the

existence of a chronic nuisance upon any property building, structure, or premises owned, occupied or controlled by him and shall be subject to the remedies and enforcement provisions of this chapter.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.110. Abandoned nuisances.

No owner, occupant, agent, person associated with the property or anyone having charge or control of any property, building or premises within the city shall permit or allow the existence of an abandoned nuisance upon any property building, structure, or premises owned, occupied or controlled by him and shall be subject to the remedies and enforcement provisions of this chapter.

(a) An ″abandoned nuisance″ exists on any property where a building, structure, or any improvements are located on the property, the property has been vacant or substantially vacant for 12 months or more and:

(1) Two or more abandoned nuisance activities exist or have occurred on the property during any 12-month period; or

(2) A person associated with the property has caused or engaged in two or more abandoned nuisance activities during any 12-month period on the property or within 100 feet of the property.

(b) ″Abandoned nuisance activity″ means:

(1) Instances of unlawful breaking and entering or occupancy by unauthorized persons;

(2) The presence of graffiti, debris, litter, garbage, rubble, abandoned materials, inoperable vehicles or junk appliances, or any nuisance per se;

(3) The presence of unsanitary conditions or hazardous materials;

(4) The lack of adequate lighting, screening, fencing or security;

(5) Indicia of the presence or activities of gangs;

(6) Environmental hazards;

(7) Violations of city codes, ordinances or other adopted policy; or

(8) Any other activity, behavior, conduct or condition defined by the governing body of the city to constitute a threat to the health, safety or welfare of the residents of or visitors to the city.

(Ord. No. 6448, § 1, 1-10-18)

ARTICLE III. ADMINISTRATION

Sec. 8.22.200. Authority to enforce.

The maintenance of property, buildings, structures and premises, in order to enhance the livability, community appearance, and the safe, social and economic conditions of the community as described herein, reasonably relates to the proper exercise of police power to protect the health, safety and general welfare of the public.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.210. Rules and regulations.

(a) The city manager or his authorized designee shall have the authority to make and promulgate reasonable and necessary rules and regulations to carry out provisions of this chapter.

(b) The city manager or his authorized designee shall have the authority to place and maintain signs and placards posting regulations, conditions of property, and rules, on private property, and regulating the use of city owned or managed property, buildings, facilities, lands, parks and rights-of-way within the city.

(c) It shall be unlawful to remove, destroy, deface, mutilate, conceal or in any way interfere with any sign or placard posted on private property or on city owned or managed property, buildings, facilities, lands, parks and rights-of-way by the city manager or his authorized designee regulating the use of such city property, buildings, facilities, lands, parks and rights-of-way. Any person found removing destroying, defacing, mutilating, concealing or in any way interfering with such signs or placards posted in city owned or managed property, buildings, facilities, lands, parks and rights-of-way shall be guilty of a misdemeanor.

(d) It shall be unlawful to engage in conduct in violation of such posted signs and placards regulating the use of private property and city owned or managed property, buildings, facilities, lands, parks and rights-of-way and any person found using such private or city property, buildings, facilities, lands, parks and rights-of-way in violation of such posted signs and placards shall be guilty of a misdemeanor.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.220. Authority to inspect.

(a) The enforcement official is authorized and directed to make inspections of property, buildings and premises and complete investigations to determine compliance with this chapter.

(b) If, in the judgment of the enforcement official, such a nuisance does in fact exists or an unlawful act has been or is being committed, the enforcement official, shall use the remedies set forth in chapter 1.05 of the Code or if a violation of section 8.22.105 or 8.22.110 has been, or is being committed, issue a notice of violation and declaration of chronic or abandoned nuisance in accordance with section 8.22.230.

(c) The enforcement official may expand the scope of any inspection to include other Code violations noted during inspection.

(d) If the enforcement official determines that any building or structure on the property must be demolished as an unsafe or dangerous building, under the requirements of the International Fire Code or the International Property Maintenance Code, he shall consult with the building official whose approval must first be obtained for such a notice of demolition. If the notice of demolition is issued, the notice shall require that the building be vacated within such time as the enforcement official shall set forth therein, not to exceed 60 days from the date of the notice, and that all required permits be promptly secured and demolition completed within such reasonable time frame as set forth in the notice.

(e) When it is necessary to inspect the building, property or premises, the enforcement official is authorized to and shall follow the provisions as set forth in chapter 1.05 of the Code.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.230. Notification procedures for a chronic nuisance and for the abatement of an abandoned nuisance.

(a) Notice of violation and declaration of chronic nuisance.

(1) If, after inspection, the enforcement official determines that a person is in violation of section 8.22.105, the city shall notify the owner of record and any responsible party through the issuance of a notice of violation and declaration of chronic nuisance. The notice shall be sent via certified mail, return receipt requested, shall advise the owner of record and any responsible party of the existence on his property of two or more nuisance activities and the date by which he must abate the condition to prevent the matter from being submitted to the city attorney for legal action.

(2) The notice of violation and declaration of chronic nuisance shall include the provisions set forth in section 1.05.100, subdivisions (1), (2), and (5) of the Code, including a description of the conditions or activities which constitutes the chronic nuisance. The notice of violation and declaration of chronic nuisance shall also include a notice of an opportunity for a hearing before a court of competent jurisdiction and the procedure therefor.

(3) The date specified in the notice of violation and declaration of chronic nuisance for abatement is tolled for the period during which the owner of record or responsible party requests a hearing before a court of competent jurisdiction and receives a decision. [Reference NRS 268.4124; 1997]

(4) The notice of violation and declaration of chronic nuisance shall include a notice of intent to record according to the provisions of sections 1.05.105 through 1.05.130 of the Code.

(b) Notice of violation and abatement of an abandoned nuisance.

(1) If, after inspection, the enforcement official determines that a violation of section 8.22.110 exists, he shall notify the owner of record or any responsible party through the issuance of a notice of violation and abatement of an abandoned nuisance. The notice shall be sent via certified mail, return receipt requested, shall advise the owner of record and any responsible party of the existence on his property of two or more abandoned nuisance activities and the date by which he must abate the abandoned nuisance to prevent the matter from being submitted to the city attorney for legal action.

(2) The notice of violation and abatement of an abandoned nuisance shall include the provisions set forth in section 1.05.100, subdivisions (1), (2), and (5) of the Code, including a description of the conditions or activities which constitute an abandoned nuisance. The notice to abate an abandoned nuisance shall also include a notice of an opportunity for a hearing before a court of competent jurisdiction and the procedure therefor.

(3) The date specified for abatement shall be tolled for the period during which the owner of record or responsible party requests a hearing before a court of competent jurisdiction and receives a decision.

(4) The notice of violation and abatement of an abandoned nuisance shall include a notice of intent to record according to the provisions of sections 1.05.105 through 1.05.130 of the Code.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.235. Procedures for filing action to abate a chronic nuisance, or an abandoned nuisance.

(a) If the owner of the property fails to abate the condition(s) by the date specified in the notice of violation and declaration of chronic nuisance, or notice of violation and abatement of an abandoned nuisance, or if the owner of the property requests an opportunity for a hearing before a court of competent jurisdiction prior to the date by which the condition(s) must be abated as specified in the notice of violation and declaration of chronic nuisance, or notice of violation and abatement of an abandoned nuisance, then the enforcement official shall submit the matter to the city attorney for legal action.

(b) The city attorney may file an action in a court of competent jurisdiction to:

(1) Seek the abatement of a chronic or abandoned nuisance that is located or occurring within the city;

(2) If applicable, seek the closure of the property where the chronic nuisance is located or occurring;

(3) If applicable, seek repair, safeguard or demolish of any structure or property where the abandoned nuisance is located or occurring;

(4) If applicable, seek penalties against the owner of the property within the city and any other appropriate relief.

(Ord. No. 6448, § 1, 1-10-18)

ARTICLE IV. ENFORCEMENT

Sec. 8.22.240. Violations and penalties.

(a) The remedies herein are cumulative and the city may proceed under one or more such remedies.

(b) In addition to any cost incurred, any person, other than a juvenile violating any of the provisions of the chapter:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in section 1.04.010;

(2) Shall be subject to the abatement notices, appeal procedures and lien or civil action provisions of chapter 1.05 of the Code, except violations pertaining to chronic nuisances and pertaining to abandoned nuisances, shall not be subject to the abatement notices, appeal procedures, and lien or civil action provisions of chapter 1.05 of the Code, except to the extent provided in this chapter;

(3) Upon a finding by a court of competent jurisdiction that a chronic nuisance exists and emergency action is necessary to avoid immediate threat to the public welfare or safety, the court shall order the city to secure the property for a period not to exceed one year or until the chronic nuisance has been abated, whichever occurs first. In addition, the court may:

a. Impose a civil penalty of not more than $500.00 per day for each day that the condition was not abated after the date specified in the notice by which the owner was required to abate the condition;

b. Order the owner to pay the city for all costs incurred and fees imposed by the city in abating the condition;

c. If applicable, order the owner to pay reasonable expenses for the relocation of any tenants who are affected by the chronic nuisance; and

d. Order any other appropriate relief. [Reference NRS 268.4124; 1997]

(4) Upon a finding by a court of competent jurisdiction that an abandoned nuisance exists, the court shall order the owner of the property to abate the abandoned nuisance or repair, safeguard or demolish any structure or property where the abandoned nuisance is located or occurring, and may:

a. If applicable, order the owner of the property to pay reasonable expenses for the relocation of any tenants who occupy the property legally and who are affected by the abandoned nuisance;

b. If the owner of the property fails to comply with the order:

1. Direct the city to abate the abandoned nuisance or repair, safeguard or demolish any structure or property where the abandoned nuisance is located or occurring; and
2. Order the owner of the property to pay the city for the cost incurred by the city in taking the actions described in subparagraph (1); and

c. Order any other appropriate relief. [Reference NRS 268.4124; 2001]

(c) In addition to any other reasonable means authorized by the court for the recovery of money expensed by the city to abate the chronic nuisance or an abandoned nuisance, costs incurred by the city in abating the chronic nuisance or an abandoned nuisance, shall be a lien upon the property upon which such a chronic nuisance or abandoned nuisance, is located or occurring. The lien must be perfected by:

(1) Mailing by certified mail a notice of the lien, separately prepared for each lot affected, addressed to the last known owner of the property at his last known address, as determined by the real property assessment roll in Washoe County; and

(2) Filing with the Washoe County recorder a statement of the amount due and unpaid and describing the property subject to the lien.

(d) The transfer of any and all interest in any manner of any property, building, or premises against which a notice of violation and declaration of chronic nuisance or notice of violation and abatement of an abandoned nuisance, has been issued shall not relieve the party(ies) served with such notice.

(e) Any person who transfers an interest, including but not limited to, a sale, trade, lease, gift or assignment, in any property, building or premises against which a notice of violation and declaration of chronic nuisance or notice of violation and abatement of an abandoned nuisance, has been served shall either:

(1) Obtain a written assumption of liability from the new owner of record for the items listed in the notice of violation and declaration of chronic nuisance or notice of violation and abatement of an abandoned nuisance; or

(2) Acknowledge, in writing, its responsibility for compliance with the notice of violation and declaration of chronic nuisance or notice of violation and abatement of an abandoned nuisance. A copy of the assumption or acknowledgment shall be presented to the city within ten days of the transfer.

(f) The owner of record, as recorded in the Washoe County Recorder's office records, of the property upon which a violation of this ordinance exists, shall be presumed to be a person

having lawful control over the property, building or premises. If more than one person shall be recorded as the owner, said person shall be recorded as the owner, said person shall be jointly and severally presumed to be persons having lawful control over the property, building or premises.

(g) Unless a greater penalty is provided by law, any person violating section 8.22.070 shall be punished by a fine of up to $250.00 for the first offense; up to $500.00 for the second offense within six months of the first offense; and up to $1,000.00 for each subsequent offense within six months of the second offense or all subsequent offenses, or by imprisonment in the county jail for a term not to exceed 60 days, or by both fine and imprisonment in the discretion of the court.

(1) In the case of a juvenile violating section 8.22.070, the juvenile court shall have jurisdiction over the juvenile for the purpose of imposing sanctions in accordance with applicable provisions of Nevada Revised Statutes, including NRS chapter 62.

(2) Restitution. In addition to any punishment specified in this section, the court shall order any violator of section 8.22.070 to make restitution to the victim for damages or loss caused directly or indirectly by the violator′s offense in the amount or manner determined by the court. Any restitution due as the result of an act of a juvenile shall fall within the discretion of the juvenile court.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.250. Special assessments.

In addition to any other reasonable means for recovering money expended by the city to abate the condition and, except as otherwise provided in subsection (a) [below], for collecting administrative penalties imposed pursuant to chapter 1.05, the governing body may make the expense and civil penalties a special assessment against the property upon which the condition is or was located. The special assessment may be collected at the same time and in the same manner as ordinary county taxes are collected, and is subject to the same penalties and the same procedure and sale in case of delinquency as provided for ordinary county taxes. All laws applicable to the levy, collection and enforcement of county taxes are applicable to such a special assessment.

(a) Any civil penalties that have not been collected from the owner of the property may not be made a special assessment against the property by the city unless:

(1) At least 12 months have elapsed after the date specified in the notice by which the owner must abate the condition or the date specified in the order of the governing body or court by which the owner must abate the condition, whichever is later;

(2) The owner has been billed, served or otherwise notified that the civil penalties are due; and

(3) The amount of the uncollected civil penalties is more than $5,000.00.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.260. Relocation of occupants.

Any person occupying a property, building or premises after the city has posted on the structure, a notice of its hazardous condition, shall not be eligible for relocation assistance or be considered a displaced person.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.270. Enforcement independent of other officials.

The authority of the city to enforce the provisions of this chapter is independent of and in addition to the authority of other city officials to enforce other provisions of any other title of this Code.

(Ord. No. 6448, § 1, 1-10-18)

Sec. 8.22.280. Liability for costs of the fire department.

Ten calendar days after service of the notice of violation, the owner of record or any responsible party shall be jointly and severally liable for any and all reasonable charges incurred by reason of the fire department being required to respond to the property not abated as required by the notice of violation. When incurred, such charges shall be treated in the same manner and be subject to the same rights of appeal as charges incurred in bringing the property into compliance.

(Ord. No. 6448, § 1, 1-10-18)

ARTICLE V. SOCIAL HOST

Sec. 8.22.300 Social host liability.

(a) LEGISLATIVE FINDINGS.

The City Council of the City of Reno finds as follows:

(1) The City of Reno, pursuant to the police powers delegated to it by the State of Nevada, has the authority to enact laws which promote the public health, safety and general welfare of its residents, and, pursuant to NRS 202.020, is authorized to enact by ordinance additional or broader restrictions on underage drinking than exist by state statute.

(2) The occurrence of disruptive gatherings on private property where alcoholic beverages are served to attendees, including underage persons, is a threat to public health, safety, quiet enjoyment of residential property and general welfare, and is harmful to the underage persons themselves.

(3) Underage persons often obtain alcoholic beverages at gatherings held at private residences or at rented residential and commercial premises that are under the control of a person who knows or should know of the underage service and/or consumption. Persons responsible for the occurrence of disruptive gatherings on private property over which they have possession or control have failed to ensure that alcoholic beverages are neither served to nor consumed by underage persons at these gatherings.

(4) Due to the differing nature of responsible persons at a given location, the fact that landlords often do not reside at the property and are not in a position to immediately address the impact of a disruptive gathering, and the transient nature of tenants, it has proven difficult to address disruptive gatherings

(5) Problems associated with disruptive gatherings at which alcoholic beverages are served, including those where underage persons are permitted to consume alcoholic beverages, are difficult to prevent and deter unless the City of Reno Police Department has the legal authority to direct the host to disperse the gathering.

(6) Persons held responsible for abetting or tolerating disruptive gatherings will be more likely to properly supervise or stop such conduct at gatherings held on property under their possession or control.

(7) Law enforcement, fire and other emergency response services personnel are required to respond, sometimes on multiple occasions, to disruptive gatherings on private property, including those at which alcoholic beverages are served to or consumed by underage persons.

(8) Responses to such gatherings result in a disproportionate expenditure of public safety resources of the City of Reno, which are underwritten by general municipal taxes paid to the city by its taxpayers and residents and delaying police responses to regular and emergency calls to the rest of the city.

(9) Such gatherings are deemed a public nuisance.

(10) The intent of this article is to protect the public health, safety, quiet enjoyment of residential property, and general welfare.

(b) PURPOSES.

The purposes of this article are:

(1) To protect public health, safety and general welfare;

(2) To enforce laws prohibiting the service to and consumption of alcoholic beverages by underage persons; and

(3) To reduce the burden on police, fire and other emergency response services caused by disruptive gatherings, including those where alcoholic beverages are served to or consumed by underage persons.

(4) To protect and foster the quiet enjoyment of residential property and prevent the disturbance of the peace of persons thereon.

(c) DEFINITIONS.

For the purposes of this section, the following terms shall have the following meanings:

(1) ″Alcoholic beverage″ means:

a. Beer, ale, porter, stout and other similar fermented beverages, including sake and similar products, or any name or description containing one-half of one percent or more alcohol by volume, brewed or produced from malt, wholly or in part, or from any substitute therefor;

b. Any beverage obtained by the fermentation of the natural content of fruits or other agricultural products containing sugar, of not less than one-half of one percent of alcohol by volume; and

c. Any distilled spirits commonly referred to as ethyl alcohol, ethanol or spirits of wine in any form, including all dilutions and mixtures thereof from whatever process produced.

(2) ″Disruptive gathering″ means a gathering of three or more persons on any private property, including property used to conduct business, in a manner which creates a public nuisance by disturbing the quiet enjoyment of private or public property by any person or persons. Such disturbances include, but are not limited to:

a. Noise which is likely to disturb the peace of persons of reasonable and ordinary sensibilities;

b. Excessive traffic that can reasonably be attributed to the gathering;

c. Obstruction of public streets by crowds or vehicles;

d. Drinking in public;

e. Service of alcohol to, or consumption of alcohol by, underage persons;

f. Assaults, batteries, fights, or other disturbances of the peace;

g. Littering;

h. Vandalism; or

i. Any other conduct which constitutes a threat to public health, safety, quiet enjoyment of residential property or general welfare.

(3) ″Juvenile″ means any person under the age of 18 years of age.

(4) ″Residence or other private property″ means a home, yard, apartment, condominium, hotel or motel room, or other dwelling unit, or a hall or meeting room, whether occupied on a temporary or permanent basis, whether occupied as a dwelling or for a party or other social function, and whether owned, leased, rented, or used with or without compensation.

(5) ″Underage person″ means any person under 21 years of age.

(d) A disruptive gathering is unlawful and constitutes a violation of the Reno Municipal Code. A disruptive gathering may be abated by reasonable means including, but not necessarily limited to:

(1) An order requiring the gathering to be disbanded;

(2) Citation or arrest of violators under applicable criminal ordinances or state statutes; and/or

(3) Issuance of an administrative citation for failure to comply with the requirements of the Reno Municipal Code, as set forth in sections 1.05.200 through 1.05.220.

Administrative citations shall be issued pursuant to this chapter only after a warning letter has been issued, and violations are successively, repeatedly or continuously committed at a single residence or other private property. The warning letter shall issue upon the second violation within six months at a single residence or other private property.

After a warning letter is issued for the second violation within six months at a single residence or other private property, administrative citations may be issued beginning with the third violation within six months of the second violation, and thereafter, for each following violation without regard to limitations based on a six-month period. Administrative citations may continue to be issued for each violation until there are no further violations at the residence or other private property for a period of one year. Thereafter, in the case of renewed violations at the single residence or other private property, the six-month period limitation shall renew.

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Sec. 8.23.160. Skateboards, bicycles, in-line skates, snowmobiles, motorized recreational vehicles and other recreational conveyances.
Sec. 8.23.165. Diving and jumping into the Truckee River.
Sec. 8.23.170. Parks and recreation facility parking lots.
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Sec. 8.23.210. Reasonable time, place and manner restrictions.

ARTICLE I. GENERAL PROVISIONS

Sec. 8.23.005. Purpose, interpretation, and application.

The purpose of this chapter shall be held to be the minimum requirements adopted to regulate the use of parks and recreation facilities, as defined in this chapter, of the City in order that all persons may enjoy and make use of such parks, lands and facilities. Among other purposes, these provisions are intended to authorize the director, under the supervision and control of the City Manager, to promulgate rules and regulations relative to the use of parks and recreation facilities. This chapter shall govern the use of all parks and recreation facilities, and the observance of such provisions shall be a condition under which the public may use such parks and recreation facilities.

The provisions of this chapter shall not apply to any public officer, public employee or peace officer who is acting within the course and scope of the public business or pursuant to lawful authority.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.010. Jurisdiction.

The department of parks, recreation, and community services shall have jurisdiction over all areas and their facilities which are declared parks, public lands, recreation facilities, and such other areas and/or facilities as may be designated by the city council to be under the jurisdiction of parks, recreation, and community services (collectively "parks and recreation facilities").

"Park" means a land owned, operated or maintained by the City of Reno and specifically set apart for the recreational use of the public or for the beautification of public streets or facilities.

"Recreation facility" means any building or facility owned, operated or maintained by the City of Reno and specifically set apart for the recreation use of the public.

"Public lands" mean a parcel of land or unimproved excess right-of-way owned, operated or maintained by the City of Reno and specifically set apart as public open space.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.012. Public plazas defined.

(a) City Plaza, located at First Street and Virginia Street;

(b) West Street Plaza, located at First Street and West Street;

(c) ReTrac Plaza, located at Commercial Row and Virginia Street;

Sec. 8.23.020. Authority shall reside in authorized subordinates.

Wherever the title of a city officer, official or employee is used in this chapter that title shall include not only the person holding the positions named but also the authorized subordinates and representatives of the person in the position named.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.025. Enforcement.

The responsibility for the enforcement of the provisions of this chapter and the Reno Municipal Code (the "Code"), including the rules and regulations promulgated pursuant to the authority granted in this chapter, shall be vested in the city manager, and subject to the direction and control of the city manager, in the director, and their duly authorized subordinates, assistants or agents. Should the title of the position of director be changed, the authority and duties provided for in this chapter shall, without further action, be granted to the person whose duties and responsibilities include the management of the city's parks and recreation facilities.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

ARTICLE II. ENFORCEMENT AND APPEALS

Sec. 8.23.030. Park and recreation facilities may be closed to public when imminent threat to the public health, safety, or health exists.

The director or the chief of police may close parks and recreation facilities, or any portion thereof, when conditions appear to exist that pose an imminent threat to public health, safety or peace. It shall be unlawful for any person to remain in, refuse to leave immediately, or to enter any parks and recreation facilities after the same has been closed at the direction of the director or the chief of police. Any person who violates this section shall be guilty of a misdemeanor.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.035. Authority of park rangers.

Park rangers and enforcement officials as defined in RMC 1.05.020 are authorized to issue administrative notices and citations for violations of this chapter and other applicable municipal ordinances when violations are committed in parks and recreation facilities in accordance with Chapter 1.05 of the Code.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.040. Effect of violation of chapter.

Any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor; or

(2) Shall be subject to the provisions of Chapter 1.05 of the Code.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.045. Notice of violation and administrative citation—Form.

A notice of violation or administrative citation must contain the following information:

(1) The location where the violation occurred;

(2) The date and time of the violation;

(3) The signature of the person who issues the notice of violation; and

(4) The section of this chapter or other section of the Code which allegedly is being violated.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.050. Right to contest notice of violation.

Any person issued a notice of violation or administrative citation of the provisions of this chapter may contest the citation in accordance with Chapter 1.05 of the Code.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.055. Rules and regulations.

The director is authorized and directed to adopt rules and regulations to carry out the purpose of this chapter, to protect the public health, safety and welfare and to improve the fair, safe and efficient use of parks and recreation facilities by the public. Copies of the rules and regulations adopted shall be kept on file at the office of the city clerk and the office of the director for distribution to the public.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.060. Modification or waiver of strict enforcement.

The director is authorized to waive or modify enforcement of any rule or policy promulgated by the director where practical difficulties in carrying out the strict letter of such rule or policy would result in hardship to a particular person or persons, or to the public. Such waiver or modification must be of a character which will not impair the purpose and intent of this chapter and must not be based upon the identity of a person or group or the content of any message.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.061. Rules to be followed; posting

It is unlawful for any person, firm or entity within the limits of any park or recreation facility of the City of Reno to do any act or acts contrary to the rules established by the director for the use of any park or recreation facility, provided, however, that the rules shall be conspicuously posted.

(Ord. No. 5652, § 1, 2-9-05)

ARTICLE III. REGULATION OF PARKS AND RECREATION FACILITIES

Sec. 8.23.065. Hours of parks and recreation facilities.

Unless authorized by the director or specifically posted otherwise, parks and recreation facilities shall generally be open to the public from 5:00 a.m. until 10:00 p.m. from April 1 through

Sec. 8.23.020. Authority shall reside in authorized subordinates.

Wherever the title of a city officer, official or employee is used in this chapter that title shall include not only the person holding the positions named but also the authorized subordinates and representatives of the person in the position named.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.025. Enforcement.

The responsibility for the enforcement of the provisions of this chapter and the Reno Municipal Code (the "Code"), including the rules and regulations promulgated pursuant to the authority granted in this chapter, shall be vested in the City Manager, and subject to the direction and control of the City Manager, in the director, and their duly authorized subordinates, assistants or agents. Should the title of the position of director be changed, the authority and duties provided for in this chapter shall, without further action, be granted to the person whose duties and responsibilities include the management of the City's parks and recreation facilities.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

ARTICLE II. ENFORCEMENT AND APPEALS

Sec. 8.23.030. Park and recreation facilities may be closed to public when imminent threat to the public health, safety, or health exists.

The director or the chief of police may close parks and recreation facilities, or any portion thereof, when conditions appear to exist that pose an imminent threat to public health, safety or peace. It shall be unlawful for any person to remain in, refuse to leave immediately, or to enter any parks and recreation facilities after the same has been closed at the direction of the director or the chief of police. Any person who violates this section shall be guilty of a misdemeanor.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.035. Authority of park rangers.

Park rangers and enforcement officials as defined in RMC 1.05.020 are authorized to issue administrative notices and citations for violations of this chapter and other applicable municipal ordinances when violations are committed in parks, recreation facilities, all city trails, open spaces, and public property within 350 feet of the shore of the Truckee River within city limits ("the Truckee River Corridor") in accordance with Chapter 1.05 of the Code.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12; Ord. No. 6612, § 1, 12-1-21)

Sec. 8.23.040. Effect of violation of chapter.

Any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor; or

(2) Shall be subject to the provisions of Chapter 1.05 of the Code.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.045. Notice of violation and administrative citation—Form.

A notice of violation or administrative citation must contain the following information:

(1) The location where the violation occurred;

(2) The date and time of the violation;

(3) The signature of the person who issues the notice of violation; and

(4) The section of this chapter or other section of the Code which allegedly is being violated.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.050. Right to contest notice of violation.

Any person issued a notice of violation or administrative citation of the provisions of this chapter may contest the citation in accordance with Chapter 1.05 of the Code.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.055. Rules and regulations.

The director is authorized and directed to adopt rules and regulations to carry out the purpose of this chapter, to protect the public health, safety and welfare and to improve the fair, safe and efficient use of parks and recreation facilities by the public. Copies of the rules and regulations adopted shall be kept on file at the office of the city clerk and the office of the director for distribution to the public.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.060. Modification or waiver of strict enforcement.

The director is authorized to waive or modify enforcement of any rule or policy promulgated by the director where practical difficulties in carrying out the strict letter of such rule or policy would result in hardship to a particular person or persons, or to the public. Such waiver or modification must be of a character which will not impair the purpose and intent of this chapter and must not be based upon the identity of a person or group or the content of any message.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.061. Rules to be followed; posting

It is unlawful for any person, firm or entity within the limits of any park or recreation facility of the City of Reno to do any act or acts contrary to the rules established by the director for the use of any park or recreation facility, provided, however, that the rules shall be conspicuously posted.

(Ord. No. 5652, § 1, 2-9-05)

ARTICLE III. REGULATION OF PARKS AND RECREATION FACILITIES

Sec. 8.23.065. Hours of parks and recreation facilities.

Unless authorized by the director or specifically posted otherwise, parks and recreation facilities shall generally be open to the public from 5:00 a.m. until 10:00 p.m. from April 1 through

(7) A statement that the excluded person shall have the right to a hearing within ten business days (excluding city holidays and weekends) of such request; and

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CHAPTER 8.23. PARKS AND RECREATION

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ARTICLE I. GENERAL PROVISIONS

Sec. 8.23.005. Purpose, interpretation, and application.

The purpose of this chapter shall be held to be the minimum requirements adopted to regulate the use of parks and recreation facilities, as defined in this chapter, of the city in order that all persons may enjoy and make use of such parks, lands and facilities. Among other purposes, these provisions are intended to authorize the director, under the supervision and control of the city manager, to promulgate rules and regulations relative to the use of parks and recreation facilities. This chapter shall govern the use of all parks and recreation facilities, and the observance of such provisions shall be a condition under which the public may use such parks and recreation facilities.

The provisions of this chapter shall not apply to any public officer, public employee or peace officer who is acting within the course and scope of the public business or pursuant to lawful authority.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.010. Jurisdiction.

The department of parks, recreation, and community services shall have jurisdiction over all areas and their facilities which are declared parks, public lands, recreation facilities, and such other areas and/or facilities as may be designated by the city council to be under the jurisdiction of parks, recreation, and community services (collectively ″parks and recreation facilities″).

″Park″ means a land owned, operated or maintained by the City of Reno and specifically set apart for the recreational use of the public or for the beautification of public streets or facilities.

″Recreation facility″ means any building or facility owned, operated or maintained by the City of Reno and specifically set apart for the recreation use of the public.

″Public lands″ mean a parcel of land or unimproved excess right-of-way owned, operated or maintained by the City of Reno and specifically set apart as public open space.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.012. Public plazas defined.

(a) City Plaza, located at First Street and Virginia Street;

(b) West Street Plaza, located at First Street and West Street;

(c) ReTrac Plaza, located at Commerical Row and Virginia Street;

(8) A statement that if the excluded person fails to request an administrative hearing on the imposition of the notice, the notice shall be final.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 5849, § 2, 6-28-06; Ord. No. 6183, § 1, 5-11-11)

Sec. 8.23.074. Reserved.

Editor's note—Ord. No. 6183, § 1, adopted May 11, 2011, repealed § 8.23.074, which pertained to service of order of exclusion. See also the Code Comparative Table.

Sec. 8.23.075. Park permits.

(a) No person shall conduct or participate in any activity requiring a permit pursuant to this chapter, or any business activity, bazaar, sale, swap meet, barter activity or other activity of a commercial nature in parks and recreation facilities without obtaining a valid business license, as applicable, and a permit.

(b) No person shall sell food products for human consumption at parks and recreation facilities unless that person has first obtained a City of Reno business license, a park permit, and a health permit issued by the Washoe County District Health Department. Certificates of health permit shall be properly and conspicuously displayed at all times.

(c) No group meetings or functions, concerts, or other similar activities with attendance in excess of 25 persons shall be held within a public park except pursuant to a permit. Groups of 75 or fewer persons gathering in a parks and recreation facility for the purpose of expressive activity, as defined in RMC Chapter 13, shall not require a park permit, but may not disrupt a permitted event and are encouraged to obtain a park permit to facilitate their activity.

(d) The director may designate certain parks and recreation facilities, such as picnic areas and shelters, athletic fields and other equipment or facilities, which are reservable for exclusive use. Any person desiring exclusive use of these facilities shall apply for a permit.

(e) Any person applying for a permit under this chapter shall file an application for such permit in accordance with the policies of parks, recreation and community services. A permit may be granted when the applicant complies with this chapter, the conditions set forth in such policies and all applicable fees and insurance provisions have been met by the applicant.

(f) A permit may be issued by the director with reasonable restrictions with regard to the time, place and manner of the activity to be conducted. The following factors, as applicable, shall be used in determining if a permit should be issued, and if issued, the terms and conditions of the permit:

1. Past problems of a significant nature by the same group;

2. Planned park renovation or maintenance;

3. Impact on other previously planned activities or events;

4. To maximize public use and limit monopolization of use;

5. Activity or event is compatible with the park;

6. Safety of park patrons;

7. Impact on park neighbors; and,

8. Other reasonable time, place and manner considerations.

(g) A "special event", as defined in RMC Chapter 5.13, occurring in whole or in part in a park shall require a special event permit under, and be subject to, the provisions of RMC Chapter 5.13, in addition to the requirement to obtain a park permit under this section.

(h) The creation, display, offer or sale of First Amendment protected "expressive merchandise", as defined in RMC 5.14.010, in parks is hereby exempted from the requirement to obtain a park permit.

(i) Violation of any of the terms and conditions of the permit, and/or facility rules, by the applicant, or any agent, servant, employee, guest or participant of the applicant, may result in closure of the event, loss of deposit, and/or additional fees.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12; Ord. No. 6328, § 1, 4-16-14)

Sec. 8.23.080. Restrictions on use without permit.

(a) It shall be a code violation for any person to fail to observe or respect written permits issued pursuant to this chapter. Any person using any parks and recreation facilities, or any portion thereof, which may be reserved by obtaining a permit, but who has not obtained such a permit, shall vacate said area when the holders of a valid permit present themselves. When no permit has been issued, then the use of such areas shall be on a first come, first serve basis consistent and compatible with their intended use.

(b) The City further reserves the right to restrict use of all areas when conflicts arise with scheduling, maintenance, public safety or other reasons beyond the City's control.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.085. Sound amplifying equipment.

It shall be unlawful to use sound amplification devices or sound equipment in any parks and outdoor recreation facilities in excess of 50 decibels measured within 50 feet from the location of the sound amplification device or sound equipment, without first obtaining a sound amplification permit. Even with a permit, sound amplification device or sound equipment shall not exceed 75 decibels at the boundaries of the permitted area. Violation of this section is a misdemeanor.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.090. Reserved.

Editor's note—Ord. No. 6698, § 1, adopted January 22, 2025, repealed § 8.23.090, which pertained to camping and derived from Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12.

Sec. 8.23.095. Bathing, swimming and wading.

(a) Except as set forth in subsection (b), it shall be a misdemeanor for any person to enter, bathe, swim or wade in any basin, fountain, pool, lagoon, lake, pond or watercourse in any parks and recreation facilities without first obtaining a park permit in accordance with section 8.23.075. This section does not apply to parks and recreation facilities specifically set apart for bathing, swimming, wading or other specific purposes.

(b) Access to the Truckee River is allowed without a permit from any park or open space for the purpose of wading or swimming, unless prohibited by city council and posted

otherwise. No park permit shall be required to enter, swim, wade in, operate boats, canoes, float tubes and other water craft within the boundaries of the Truckee River Whitewater Park, unless posted otherwise. The director may authorize temporary Truckee River access closure for a period up to two weeks, for the purpose of the public's safety.

(c) It shall be a misdemeanor for any person to tie or anchor any rope, cord, cable or wire to any fixed object or structure within the Truckee River Whitewater Park for the purpose of holding on while swimming, surfing, or operating any boat, float tube or other watercraft.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.100. Boats, float tubes and other water craft.

(a) It shall be a misdemeanor for any person to operate any boat, canoe, float tube, or any other water craft on any basin, fountain, pool, lagoon, lake, pond or watercourse in any parks and recreation facilities, without a permit or unless the city council designates that such use is appropriate in a particular parks and recreation facility. The use of non-motorized water craft shall be permitted on the ponds at Paradise Park only provided they meet all U.S. Coast Guard regulations. Boats operated by the City or the state shall be exempt from this section when used for official duties. This section does not apply to radio controlled wind powered sail boats and electric powered scale boats, provided that such crafts are not driven or ridden by any person. Gas powered scale boats are prohibited.

(b) It shall be a misdemeanor for any person to go upon the frozen surface of any river, ditch, creek, reservoir, flume, canal, pond, lake, or other open waters in any parks and recreation facilities, unless such frozen surface shall have been posted and designated by the parks, recreation and community services department as being of suitable thickness.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.105. Nature study area.

A nature study area is public land set aside for the purpose of viewing native flora and fauna in a natural, undisturbed environment. A nature study area is distinguished by minimal development and minimal disturbance of the natural habitat.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.110. Oxbow Nature Study Area.

The Oxbow Nature Study Area located at 3100 Dickerson Road, Reno, Nevada, is hereby designated as a nature study area. In order to protect the wildlife in such area and preserve its uniqueness, all activities therein shall comply with the following:

(1) It shall be a misdemeanor for any person owning or having control, care, or custody of any domestic or wild animal, to allow or permit such animal to enter or remain in Oxbow Nature Study Area, except a guide dog, or helper dog assisting persons with disabilities;

(2) It shall be a misdemeanor to use any type of sound amplifying equipment at Oxbow Nature Study Area;

(3) It shall be a misdemeanor to push, operate, ride, or drive any vehicle, skateboards, bicycle, in-line skates, shopping cart, or other wheeled or unwheeled conveyances on any unpaved surface located in the Oxbow Nature Study Area. This section does not apply to strollers, wheelchairs or any other wheeled conveyance utilized by a handicapped or disabled person.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.115. Glass containers.

It shall be a misdemeanor for any person to possess any beverage container, cup, tumbler, or bottle made of glass within any parks and outdoor recreation facilities.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.120. Alcohol restrictions and permits.

(a) No person shall consume, possess, or bring into any of the parks and recreation facilities, or other areas under the jurisdiction of the parks, recreation and community services department, any beer, wine, liquor, malt or any other alcoholic beverage whatsoever without obtaining a permit in accordance with section 8.23.075.

(b) The director may designate outdoor locations where beer and wine may be allowed to be consumed by permit with terms and conditions, and indoor locations where alcoholic beverages may be allowed to be consumed by permit with terms and conditions.

(c) The director may refuse to issue a beer and wine permit if, in the reasonable exercise of her or his discretion and judgment, it would be inappropriate or inadvisable to permit the consumption of alcohol.

(d) Violation of this provision is a misdemeanor.

(Ord. No. 5652, § 1, 2-9-05)

September 30, and from 6:00 a.m. until 7:00 p.m. from October 1 through March 31, except where other hours are posted. Paved recreational pathways with pathway lights remain open to the public while lighted. Indoor recreation facilities will be open as posted at each facility. It is a misdemeanor for any person to enter, be in or remain within, a parks and recreation facility in violation of this ordinance, except those obtaining permits or authorization by the director to remain in the parks and recreation facility beyond the general or posted hours, as applicable. Notwithstanding the open hours provided for in this section, the director may, to carry out the purposes of this chapter, to protect the public health, safety and welfare and to improve the fair, safe and efficient use of parks and recreation facilities by the public, close any parks and recreation facilities or portion thereof to public use.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.070. Park exclusions; penalty for violation.

(a) In addition to other remedies provided for violation of this Code, or of any of the laws of the State of Nevada, the city manager, the director and the chief of police, or their designee, may exclude any person who violates any provision of law relating to behavior in a city park from that park in accordance with the provisions of this section.

(b) Nothing in this section shall be construed to authorize the exclusion of any person lawfully exercising free speech rights or other rights protected by the state or federal constitutions. However, a person engaged in such protected activity who commits acts that are not protected, but that violate applicable provisions of law, shall be subject to exclusion as provided by this section.

(c) An exclusion issued under the provisions of this section shall be for 90 days. If the person to be excluded has been excluded from any park at any time within two years before the date of the present exclusion, the exclusion shall be for 120 days. If the person to be excluded has been excluded from one or more parks on two or more occasions within two years before the date of the present exclusion, the exclusion shall be for 180 days.

(d) Before issuing an exclusion under this section, the issuing person shall first give the person a warning and a reasonable opportunity to desist from the violation. An exclusion shall not be issued if the person promptly complies with the direction and desists from the violation.

Notwithstanding the provisions of this subsection, no warning shall be required if the person is to be excluded for engaging in conduct that:

(1) Is classified as a felony or as a gross misdemeanor under any chapter of the Nevada Revised Statutes, or is an attempt, solicitation or conspiracy to commit any such felony or gross misdemeanor as defined in the Nevada Revised Statutes:

(2) Involves a controlled substance; or

(3) Has resulted in injury to any person or damage to any property; or

(4) Is conduct for which the person previously has been warned or excluded for committing in any park; or

(5) Constitutes a violation of any of the following provisions of this Code:

a. Chapter 8.06—Crimes Against Public Administration;

b. Chapter 8.08—Crimes Against Persons;

c. Chapter 8.10—Crimes Against Property;

d. Chapter 8.12—Public Peace except 8.12.033;

e. Chapter 8.16—Sections 8.16.020, 8.16.040, 8.16.060, and 8.16.090; or

f. Chapter 8.17—Misdemeanor Marijuana, Drug Paraphernalia and Related Offenses.

g. Chapter 8.23—Section 8.23.140, Carrying dangerous weapons.

(e) A person receiving such notice of exclusion may appeal to an administrative hearing officer in accordance with the provisions of Chapter 1.05 of this Code. The hearing officer shall uphold the exclusion if, upon the hearings officer's de novo review, the preponderance of evidence admissible under the provisions of Chapter 1.05 of this Code convinces the hearings officer that, more likely than not, the person in fact committed the violation, and if the exclusion is otherwise in accordance with law.

(f) If an appeal of the exclusion is timely filed under Chapter 1.05 of this Code, the effectiveness of the exclusion shall be stayed, pending the outcome of the appeal. If the exclusion is affirmed, the remaining period of exclusion shall be effective immediately upon the issuance of the hearings officer's decision, unless the hearings officer specifies a later effective date.

(g) If a person is issued a subsequent exclusion while a previous exclusion is stayed pending appeal (or pending judicial review, should a court stay the exclusion), the stayed exclusion shall be counted in determining the appropriate length of the subsequent exclusion under section (c) above. If the predicate exclusion is set aside, the term of the subsequent exclusion shall be reduced, as if the predicate exclusion had not been issued. If multiple exclusions issued to a single person for a single park are simultaneously stayed pending appeal, the effective periods of those which are affirmed shall run consecutively.

(h) No person shall enter or remain in any park at any time during which there is in effect a notice of exclusion issued under this section excluding that person from that park.

(i) Any person who violates a notice of exclusion is guilty of a misdemeanor.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 5849, § 1, 6-28-06; Ord. No. 6183, § 1, 5-11-11; Ord. No. 6273, § 1, 1-16-13)

Sec. 8.23.072. Contents of notice of exclusion.

Any notice of exclusion ("notice") that is issued shall be in writing and shall contain, at a minimum, the following:

(1) The name and address of the person subject to the notice (the "excluded person");

(2) The law or regulation violated, and the date and location of the violation(s);

(3) The name, address or location and description of the excluded area;

(4) The notice shall specify the date, and length of the exclusion, shall identify the provision of law the person has violated and shall contain a brief description of the offending conduct.

(5) A statement that the notice shall constitute a warning to the excluded person, in accordance with RMC 8.10.010, not to trespass in the excluded area identified in subsection (c), and that it is a misdemeanor for an excluded person to violate such notice;

(6) A statement that the excluded person has the right to appeal, including the time limit and place of delivering the appeal and may request an administrative hearing on the imposition of the notice in accordance with Chapter 1.05 of this Code, within ten business days of the date the notice is served;

(7) A statement that the excluded person shall have the right to a hearing within ten business days (excluding city holidays and weekends) of such request; and

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(8) A statement that if the excluded person fails to request an administrative hearing on the imposition of the notice, the notice shall be final.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 5849, § 2, 6-28-06; Ord. No. 6183, § 1, 5-11-11)

Sec. 8.23.074. Reserved.

Editor's note—Ord. No. 6183, § 1, adopted May 11, 2011, repealed § 8.23.074, which pertained to service of order of exclusion. See also the Code Comparative Table.

Sec. 8.23.075. Park permits.

(a) No person shall conduct or participate in any activity requiring a permit pursuant to this chapter, or any business activity, bazaar, sale, swap meet, barter activity or other activity of a commercial nature in parks and recreation facilities without obtaining a valid business license, as applicable, and a permit.

(b) No person shall sell food products for human consumption at parks and recreation facilities unless that person has first obtained a City of Reno business license, a park permit, and a health permit issued by the Washoe County District Health Department. Certificates of health permit shall be properly and conspicuously displayed at all times.

(c) No group meetings or functions, concerts, or other similar activities with attendance in excess of 25 persons shall be held within a public park except pursuant to a permit. Groups of 75 or fewer persons gathering in a parks and recreation facility for the purpose of expressive activity, as defined in RMC Chapter 13, shall not require a park permit, but may not disrupt a permitted event and are encouraged to obtain a park permit to facilitate their activity.

(d) The director may designate certain parks and recreation facilities, such as picnic areas and shelters, athletic fields and other equipment or facilities, which are reservable for exclusive use. Any person desiring exclusive use of these facilities shall apply for a permit.

(e) Any person applying for a permit under this chapter shall file an application for such permit in accordance with the policies of parks, recreation and community services. A permit may be granted when the applicant complies with this chapter, the conditions set forth in such policies and all applicable fees and insurance provisions have been met by the applicant.

(f) A permit may be issued by the director with reasonable restrictions with regard to the time, place and manner of the activity to be conducted. The following factors, as applicable, shall be used in determining if a permit should be issued, and if issued, the terms and conditions of the permit:

1. Past problems of a significant nature by the same group;

2. Planned park renovation or maintenance;

3. Impact on other previously planned activities or events;

4. To maximize public use and limit monopolization of use;

5. Activity or event is compatible with the park;

6. Safety of park patrons;

7. Impact on park neighbors; and,

8. Other reasonable time, place and manner considerations.

(g) A "special event", as defined in RMC Chapter 5.13, occurring in whole or in part in a park shall require a special event permit under, and be subject to, the provisions of RMC Chapter 5.13, in addition to the requirement to obtain a park permit under this section.

(h) The creation, display, offer or sale of First Amendment protected "expressive merchandise", as defined in RMC 5.14.010, in parks is hereby exempted from the requirement to obtain a park permit.

(i) Violation of any of the terms and conditions of the permit, and/or facility rules, by the applicant, or any agent, servant, employee, guest or participant of the applicant, may result in closure of the event, loss of deposit, and/or additional fees.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12; Ord. No. 6328, § 1, 4-16-14)

Sec. 8.23.080. Restrictions on use without permit.

(a) It shall be a code violation for any person to fail to observe or respect written permits issued pursuant to this chapter. Any person using any parks and recreation facilities, or any portion thereof, which may be reserved by obtaining a permit, but who has not obtained such a permit, shall vacate said area when the holders of a valid permit present themselves. When no permit has been issued, then the use of such areas shall be on a first come, first serve basis consistent and compatible with their intended use.

(b) The city further reserves the right to restrict use of all areas when conflicts arise with scheduling, maintenance, public safety or other reasons beyond the city's control.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.085. Sound amplifying equipment.

It shall be unlawful to use sound amplification devices or sound equipment in any parks and outdoor recreation facilities in excess of 50 decibels measured within 50 feet from the location of the sound amplification device or sound equipment, without first obtaining a sound amplification permit. Even with a permit, sound amplification device or sound equipment shall not exceed 75 decibels at the boundaries of the permitted area. Violation of this section is a misdemeanor.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.090. Camping.

Unless a permit is obtained in accordance with section 8.23.075, camping shall be unlawful in any parks and recreation facility. For the purpose of this section, the word "camping" means to use real property of the city for living accommodation purposes such as:

(1) Sleeping activities or making preparations to sleep including the laying down of bedding for the purpose of sleeping;

(2) Storing personal belongings;

(3) Making any fire, other than in a fire or barbecue pit provided or area designated for such use by the city or portable propane grill used according to manufacturer's instructions;

(4) Using any tent, shelter, other structure or vehicle for sleeping; or

(5) Cooking, other than in a fire or barbecue pit provided or area designated for such use by the city or portable propane grill used according to manufacturer's instructions; or

(6) Washing or laundering clothes or other personal items in any park or recreation facilities.

The above listed activities constitute camping when it reasonably appears in light of all the circumstances that the participant, in conducting these activities is in fact using the area for living accommodation purposes, regardless of the intent of the participant or the nature of any other activities in which they may also be engaging. Any person who violates this section shall be guilty of a misdemeanor.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.095. Bathing, swimming and wading.

(a) Except as set forth in subsection (b), it shall be a misdemeanor for any person to enter, bathe, swim or wade in any basin, fountain, pool, lagoon, lake, pond or watercourse in any parks and recreation facilities without first obtaining a park permit in accordance with section 8.23.075. This section does not apply to parks and recreation facilities specifically set apart for bathing, swimming, wading or other specific purposes.

(b) Access to the Truckee River is allowed without a permit from any park or open space for the purpose of wading or swimming, unless prohibited by city council and posted otherwise. No park permit shall be required to enter, swim, wade in, operate boats, canoes, float tubes and other water craft within the boundaries of the Truckee River Whitewater Park, unless posted otherwise. The director may authorize temporary Truckee River access closure for a period up to two weeks, for the purpose of the public's safety.

(c) It shall be a misdemeanor for any person to tie or anchor any rope, cord, cable or wire to any fixed object or structure within the Truckee River Whitewater Park for the purpose of holding on while swimming, surfing, or operating any boat, float tube or other watercraft.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.100. Boats, float tubes and other water craft.

(a) It shall be a misdemeanor for any person to operate any boat, canoe, float tube, or any other water craft on any basin, fountain, pool, lagoon, lake, pond or watercourse in any parks and recreation facilities, without a permit or unless the city council designates that such use is appropriate in a particular parks and recreation facility. The use of non-motorized water craft shall be permitted on the ponds at Paradise Park only provided they meet all U.S. Coast Guard regulations. Boats operated by the city or the state shall be exempt from this section when used for official duties. This section does not apply to radio controlled wind powered sail boats and electric powered scale boats, provided that such crafts are not driven or ridden by any person. Gas powered scale boats are prohibited.

(b) It shall be a misdemeanor for any person to go upon the frozen surface of any river, ditch, creek, reservoir, flume, canal, pond, lake, or other open waters in any parks and recreation facilities, unless such frozen surface shall have been posted and designated by the parks, recreation and community services department as being of suitable thickness.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.105. Nature study area.

A nature study area is public land set aside for the purpose of viewing native flora and fauna in a natural, undisturbed environment. A nature study area is distinguished by minimal development and minimal disturbance of the natural habitat.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.110. Oxbow Nature Study Area.

The Oxbow Nature Study Area located at 3100 Dickerson Road, Reno, Nevada, is hereby designated as a nature study area. In order to protect the wildlife in such area and preserve its uniqueness, all activities therein shall comply with the following:

(1) It shall be a misdemeanor for any person owning or having control, care, or custody of any domestic or wild animal, to allow or permit such animal to enter or remain in Oxbow Nature Study Area, except a guide dog, or helper dog assisting persons with disabilities;

(2) It shall be a misdemeanor to use any type of sound amplifying equipment at Oxbow Nature Study Area;

(3) It shall be a misdemeanor to push, operate, ride, or drive any vehicle, skateboards, bicycle, in-line skates, shopping cart, or other wheeled or unwheeled conveyances on any unpaved surface located in the Oxbow Nature Study Area. This section does not apply to strollers, wheelchairs or any other wheeled conveyance utilized by a handicapped or disabled person.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.115. Glass containers.

It shall be a misdemeanor for any person to possess any beverage container, cup, tumbler, or bottle made of glass within any parks and outdoor recreation facilities.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.120. Alcohol restrictions and permits.

(a) No person shall consume, possess, or bring into any of the parks and recreation facilities, or other areas under the jurisdiction of the parks, recreation and community services department, any beer, wine, liquor, malt or any other alcoholic beverage whatsoever without obtaining a permit in accordance with section 8.23.075.

(b) The director may designate outdoor locations where beer and wine may be allowed to be consumed by permit with terms and conditions, and indoor locations where alcoholic beverages may be allowed to be consumed by permit with terms and conditions.

(c) The director may refuse to issue a beer and wine permit if, in the reasonable exercise of her or his discretion and judgment, it would be inappropriate or inadvisable to permit the consumption of alcohol.

(d) Violation of this provision is a misdemeanor.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.123. Smoking prohibited.

Smoking and tobacco use of any kind, including, but not limited to, the use of electronic or vaporized smoking devices, are prohibited in any park, trail or recreation facility or within 100 feet of sporting fields, spectator area, the entrances to all recreation facilities, and all sport and play areas unless within a designated smoking area.

(Ord. No. 6476, § 1, 8-8-18)

Sec. 8.23.125. Destruction to parks and recreation facilities.

It shall be a misdemeanor for any person, within any parks and recreation facilities, without first obtaining a permit in accordance with section 8.23.075, to:

(1) Deposit or install any earth, sand, turf, plant, rock, stone, structure or other substance within any park, recreation facility, community center or public lands, nor shall any person dig or remove any material therefrom; or

(2) Dig up, pick, remove, mutilate, injure, cut, or destroy any turf, tree, plant, shrub, bloom, flower or portion thereof; or

(3) Cut, break, injure, deface, or damage any building, sign, fence, bench, structure, apparatus, equipment, or other park property, or any portion thereof; or

(4) Make or place on any tree, plant, shrub, bloom, flower, building, sign, fence, bench, structure, apparatus, equipment, or property, or any portion thereof, any rope, wire, mark, writing, printing, sign, card, display, or similar inscription or device.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.130. Use of trash receptacles and dumpsters.

Trash receptacles and dumpsters located in parks and recreational facilities are for use by park patrons. It shall be a code violation for any person to bring trash, rubbish or other waste material into parks and recreation facilities for the purpose of depositing it into a trash receptacle or dumpster.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.135. Fishing license required.

It shall be a misdemeanor for any person to fish in any lake, pond, stream, ditch, or the Truckee River within the Reno City limits without first having procured a State of Nevada fishing license and applicable state stamps pursuant to NRS 502.010, or to violate any provision of the state game code while fishing within the city limits of Reno. A violation of this section is a misdemeanor, except that:

(1) No license is required of a resident or non-resident who is under 12 years of age.

(2) No license shall be required on the one day each year that the state game commission declares a free fishing day.

(3) The director may close any facility to fishing two days prior to a city-sponsored fishing derby.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.140. Carrying dangerous weapons.

Any person in possession of a dangerous weapon during commission of a violation of any section of this chapter shall be guilty of a misdemeanor.

(a) Dangerous weapon means any explosive or incendiary device as defined in NRS 202.260 or any other weapon as defined by NRS 202.350.

(b) No archery or like devices shall be allowed in a park or recreation facility.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12; Ord. No. 6401, § 1, 5-11-16)

Sec. 8.23.145. Golf.

It shall be a Code violation to golf in parks and recreation facilities not established for that purpose except in conjunction with a city sponsored or approved program.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.150. Metal detectors.

It shall be a Code violation to operate a metal detector within any parks and recreation facilities except by permit issued by the director or his or her designee.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.155. Hot air balloons.

It shall be a Code violation to launch or retrieve a hot air balloon in any park under conditions other than those specified by the director. No person shall launch or retrieve a hot air balloon in any park without a written permit issued by the director.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.157. Helicopters.

Except in cases of emergency or if the helicopter is official military, government or medical equipment or utilized for rescue response purposes, it shall be a misdemeanor to launch or land a helicopter in any park without a written permit issued by the city manager or director. In no event shall the city be civilly liable, by reason of this ordinance, for the actions or omissions of any helicopter utilizing any park and any damages or any other form of liability associated therewith shall remain with the pilot, owner, or other person or entity legally responsible therefore.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.160. Skateboards, bicycles, in-line skates, snowmobiles, motorized recreational vehicles and other recreational conveyances.

(a) The director or designee shall have the authority to close any area within any parks and recreation facilities, or portion thereof, to skateboards, bicycles, in-line skates, snowmobiles or other wheeled or unwheeled recreational conveyances when visitor safety or the protection of natural or manmade features are at conflict with possession or use of such skateboards, bicycles, in-line skates, snowmobiles or other conveyances.

(b) It shall be a misdemeanor for any person to operate any skateboard, bicycle, in-line skates, snowmobiles or other wheeled or unwheeled recreational conveyance on any

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surface, in any area in which such use is prohibited by signs or after having been directed by the director or his or her representative not to operate such conveyances in a specified area.

(c) It shall be a misdemeanor for any person to operate any skateboard, bicycle, in-line skates, snowmobiles or other wheeled or unwheeled recreational conveyance upon any bench, picnic table, handrail, shelter or other structure or piece of equipment not designated for such use.

(d) It shall be a misdemeanor for any person to operate a motorized skateboard, motorized scooter, mini-motorcycle or other similar motorized recreational conveyance on any pedestrian sidewalk, footpath, trail, walkway, or on any park equipment or appurtenance not specifically designated for such use at parks and recreation facilities.

(e) This section does not apply to any wheelchair or wheeled conveyance for use by a person with a disability.

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.165. Diving and jumping into the Truckee River.

(a) It is a misdemeanor for any person to jump, dive, attempt to jump or dive, or cause another person to jump, dive or fall into the Truckee River from a bridge, building or other structure, or any natural point connected to land which is greater than five feet above the mean level of the water at the time of the jump, dive, fall or attempted jump or dive.

(b) It is a misdemeanor for the parent of any juvenile to knowingly permit, or by insufficient control allow, the juvenile to be in violation of subsection (a).

(Ord. No. 5652, § 1, 2-9-05)

Sec. 8.23.170. Park and recreation facility parking lots.

(a) Parking lots located in parks and recreation facilities are for use by park and recreation facility patrons only.

(b) Excluding dedicated public streets, it shall be a Code violation to leave a vehicle in a park or recreation facility parking lot when that park or recreation facility is closed to the general public without first obtaining a permit to do so.

(c) It shall be a Code violation to clean, wash, or polish any motorized vehicle in a park or recreation facility parking lot without a permit.

(d) It shall be a Code violation to perform any maintenance or repairs on a motorized vehicle in a park or recreation facility parking lot, except for emergency repairs which do not result in the spillage of motor oil, gasoline, or other hazardous fluids.

(e) It shall be a Code violation to park any vehicle on a park trail, sidewalk, landscaped area or other area not designed as a parking lot.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.175. Feeding of waterfowl, birds and wildlife prohibited.

(a) Except in the following designated areas and subject to posted signage, feeding waterfowl, birds or wildlife in any park is prohibited. Public feeding of waterfowl shall be allowed only in water and only at the following locations:

(1) At Idlewild Park, on the north side of the eastern pond and the south side of the western pond.

(2) At Teglia's Paradise Park, at the northeastern pond from any of the three boat docks.

(3) At Virginia Lake Park, at the north end of the lake along the retaining wall and on the east shore from the bulbout.

(b) Any person feeding waterfowl, birds or wildlife within a designated area shall only use a commercially available product formulated expressly for waterfowl, birds and/or wildlife. Use of bread, crackers or other food products meant for human consumption is prohibited.

(c) Violation of this section shall be a Code violation.

(Ord. No. 5652, § 1, 2-9-05; Ord. No. 5968, § 1, 9-12-07; Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.180 Motorized vehicles prohibited.

(a) No motorized vehicle may be driven or ridden on any parks and recreation land or vacant land owned by the City of Reno, if the property is posted with a sign prohibiting motorized vehicles at that location.

(b) The prohibition contained in this section does not apply to emergency vehicles responding to a call for assistance, or to vehicles operating with a permit issued pursuant to section 8.23.075, to utility and service vehicles responding to emergency situations, or to city vehicles engaged in city business.

(c) Any person who violates this section is guilty of a misdemeanor.

(Ord. No. 6018, § 1, 4-9-08)

Sec. 8.23.190. Prohibited conduct of persons attending athletic events.

(a) *"Athletic events"* include games or practices conducted at parks and recreation facilities pursuant to a permit issued by the city or through the Reno Youth Sports Association in its capacity to authorize field permits on behalf of the city.

(b) It shall be a misdemeanor for any person at an athletic event, within the city to engage in any of the following acts:

(1) Substantially interfere with, disrupt or interrupt the athletic event without proper authority from the city or from the Reno Youth Sports Association or one of its officials;

(2) Throw any article at any of the participants or officials of the athletic event, or into the area where the participants and officials are conducting the athletic event;

(3) Discharge any firework or firecracker on the premises of the athletic event;

(4) Enter upon the area where the participants and officials are conducting the athletic event without permission from officials;

(5) Engage in any physical altercation with any of the participants, officials or other attendees during the progress of the athletic event or immediately thereafter;

(6) Injure or destroy property where the athletic event is being held.

(Ord. No. 6217, § 1, 1-18-12)

Sec. 8.23.200. Reserved.

Sec. 8.23.210. Reasonable time, place and manner restrictions.

(a) As used in this section, unless the context otherwise requires, the words and terms defined in RMC 5.14.010, including but not limited to *display stand* and *expressive merchandise,* have the meanings ascribed to them in that section.

(b) A person erecting or using a display stand or displaying expressive merchandise within a park, including but not limited to persons engaged in the creation, display, offer or sale of expressive merchandise, shall:

(1) Not occupy an area greater than is reasonably necessary for their activity or mode of expression.

(2) Promptly relocate to another location when requested to do so by city employees or agents to enable them to carry out routine mowing, necessary maintenance or repairs or to protect turf from unreasonably excessive wear. In the event that persons are asked to relocate, they shall be afforded the opportunity to relocate to the closest spot to their original location as is practicable.

(3) Assume full responsibility for damage to their display stand, merchandise or personal possessions caused by automated sprinkler systems.

(4) Not unreasonably interfere with any activity permitted or authorized by the city such as special events or league sports events.

(5) Not unreasonably interfere with or prevent any activity in an area specifically designed for that activity. Areas designed for specific activities include by way of example and not limitation, picnic tables, picnic areas, playgrounds, sports courts, skate parks, sports fields and swimming pools.

(6) Abide by the provisions of the Special Events Chapter, RMC Chapter 5.13, and particularly RMC Section 5.13.045 relating to sales and free speech areas, during special events.

(7) Not unreasonably interfere with a preexisting and ongoing use of the park by the public. Subject to contrary permits or other city authorization, this provision is meant to facilitate a system of first in time, first in right.

(8) Not obstruct any driveway, entrance, exit, sidewalk, trail, road, structure, facility, emergency access route or emergency vehicle. Sidewalks in parks shall be considered obstructed if less than five feet is available for passage. Trails shall be considered obstructed if less than six feet is available for passage by pedestrians and bicyclists.

(9) Remove all display stands, merchandise and personal property before the park closes and before being absent from the display stand or other personal property for more than one hour.

(10) Not set up or leave any display stand, merchandise or other personal property in a park parking lot.

(11) Weigh down with sandbags or otherwise secure display stands, merchandise or other wind prone objects sufficiently to prevent them from being blown over or blown away. No object may be staked or otherwise secured into the ground or secured to or supported by any park fixture or amenity, including by way of example and not limitation, fences, posts, trees, buildings, landscaping, artwork, benches, picnic tables or light poles.

(12) Not erect or place any display stand, tent, sign, banner or other object such that it extends more than eight feet above the ground.

(13) Abide by rules and laws generally applicable to park users.

(Ord. No. 6347, § 1, 9-24-14)

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CHAPTER 8.24. DISTRIBUTION OF HANDBILLS*

Sec. 8.24.010. Definitions.
Sec. 8.24.020. Depositing in public places.
Sec. 8.24.030. Placing in vehicles.
Sec. 8.24.040. Distribution on uninhabited or vacant private premises.
Sec. 8.24.050. Prohibiting distribution where properly posted.
Sec. 8.24.060. Violations.

Sec. 8.24.010. Definitions.

The following words, terms and phrases, when used in this chapter have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Commercial handbill means and includes any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, paper, booklet, or any other printed or otherwise reproduced original or copies of any matter or literature not distributed by the United States Postal Service:

(1) Which advertises for sale any merchandise, product, commodity or thing; or

(2) Which directs attention to any business, or to any mercantile or commercial establishment, or to any other commercial activity for the purpose of either directly or indirectly promoting the interests thereof by sales; or

(3) Which, while containing reading matter other than advertising matter is predominantly and essentially an advertisement, and is distributed or circulated for advertising purposes, or for the private benefit and gain of any person so engaged as advertiser or distributor.

Newspaper means and includes any newspaper of general circulation as defined by general law, any newspaper duly entered with the Post Office Department of the United States in accordance with federal statute or regulation, and any newspaper filed and recorded with any recording officer as provided by general law; and, in addition thereto, means and includes any periodical or current magazine regularly published with not less than four issues per year, and sold to the public. A newspaper, as defined herein, is not a handbill.

Noncommercial handbill means and includes any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, newspaper, magazine, paper booklet, or other printed or otherwise reproduced original or copies of any matter or literature not included in the aforesaid definitions of a commercial handbill, or a newspaper.

Public place means and includes any and all streets, boulevards, avenues, lanes, alleys, or other public ways, and any and all public parks, squares, spaces, sidewalks, plazas, grounds, and buildings. "Public place" does not include a privately owned parking facility, a parking facility leased to any private person, or any other property which is owned by or leased to any private person notwithstanding the fact that same is open to public view and use.

(Code 1966, § 11.12.490)

Cross reference—Definitions generally, § 1.01.020.

***Case law reference—**Ordinance prohibiting distribution of handbills is unconstitutional as impairing freedom of speech. The city may, under its police power, enact ordinances to regulate, control or prohibit paid commercial advertising. In Re. Philipie, 82 Nev. 215, 414 P. 2d 949 (1966).

Sec. 8.24.020. Depositing in public places.

It is unlawful for any person to deposit, place, throw, scatter or cast any handbill in or upon any public place within this city; provided, however, it is not unlawful for any person to hand out or distribute any noncommercial handbill in any public place to any person willing to accept such handbill.

(Code 1966, § 11.12.490; Ord. No. 4667, § 1, 8-27-96)

Sec. 8.24.030. Placing in vehicles.

It is unlawful for any person to distribute, deposit, place, throw, scatter or cast any handbill in or upon any automobile or other vehicle parked in any public place.

(Code 1966, § 11.12.490; Ord. No. 4667, § 1, 8-27-96)
Cross reference—Vehicles and traffic, Tit. 6.

Sec. 8.24.040. Distribution on uninhabited or vacant private premises.

It is unlawful for any person to distribute, deposit, place, throw, scatter or cast any handbill in or upon any private premises which are uninhabited or vacant.

(Code 1966, § 11.12.490; Ord. No. 4667, § 1, 8-27-96)

Sec. 8.24.050. Prohibiting distribution where properly posted.

It is unlawful for any person to distribute, deposit, place, throw, scatter or cast any handbill upon any premises, if requested by anyone thereon not to do so, or if there is placed on the premises in a conspicuous position near the entrance thereof a sign bearing the words, "No Trespassing," "No Peddlers or Agents," "No Advertisements," or any similar notice, indicating in any manner that the occupants of the premises do not desire to be molested or to have their right of privacy disturbed, or to have any such handbills left upon such premises.

(Code 1966, § 11.12.490; Ord. No. 4667, § 1, 8-27-96)

Sec. 8.24.060. Violations.

Any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in section 1.04.010; or

(2) Shall be subject to provisions of Chapter 1.05 of the Code.

(Ord. No. 5069, § 1, 11-9-99)

CHAPTER 8.26. SOUND TRUCKS*

Sec. 8.26.010. Definitions.
Sec. 8.26.020. Sound trucks prohibited; exception.
Secs. 8.26.030, 8.26.040. Reserved.

Sec. 8.26.010. Definitions.

The following words and phrases, when used in this chapter shall have the meanings respectively ascribed to them:

Sound amplifying equipment means any machine or device for the amplification of the human voice, music or any other sound. "Sound amplifying equipment" shall not be construed as including standard automobile radios when used and heard only by occupants of the vehicle in which installed or warning devices on authorized emergency vehicles, or horns or other warning devices on other vehicles used only for traffic safety purposes.

Sound truck means any motor vehicle, or horsedrawn vehicle, having mounted thereon, or attached thereto, any sound amplifying equipment. (Code 1966, § 11.28.010)
Cross reference—Definitions generally, § 1.01.020.

Sec. 8.26.020. Sound trucks prohibited; exception.

No person shall operate, or cause to be operated, any sound truck in the city with sound amplifying equipment in operation without first having obtained the permission of the city council.

(Code 1966, § 11.28.060; Ord. No. 4033, § 1, 11-27-90)

Secs. 8.26.030, 8.26.040. Reserved.

Editor's note—Ord. No. 4033, § 2, adopted November 27, 1990, repealed § 8.26.030 and § 8.26.040 in their entirety. The aforesaid sections were concerned with registration and regulation of sound trucks for noncommercial use, and derived from the Code of 1966, §§ 11.28.020—11.28.050.

***State law reference—**Permits required for sound trucks, NRS 484.471.

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CHAPTER 8.28. ANIMAL CONTROL*

Sec. 8.28.000. Interlocal agreement for animal services.
Secs. 8.28.010—8.28.700. Reserved.

Sec. 8.28.000. Interlocal agreement for animal services.

(a) ADOPTION AND RATIFICATION OF INTERLOCAL AGREEMENT.

Washoe County, the City of Sparks and the City of Reno have entered into an Interlocal Agreement providing for the consolidation of animal control services in Washoe County. A copy of the Interlocal Agreement is attached hereto and incorporated by reference herein. The adoption of this ordinance by the City of Reno constitutes adoption and ratification of the attached Interlocal Agreement, which agreement shall be effective on the effective date of this ordinance.

(b) REPEAL OF SECTIONS 8.28.010 THROUGH AND INCLUDING SECTION 8.28.700 OF THE RENO MUNICIPAL CODE.

Sections 8.28.010 through and including Section 8.28.700 of the Reno Municipal Code shall be repealed on the date the County assumes the responsibility to perform shelter operations for the Regional Animal Services Shelter and Field Operations for the City of Reno, which at the latest will be July 1, 2005, the date referred to herein and in the attached Interlocal Agreement as "Closing".

(c) NO ORDINANCES ADOPTED RELATED TO ANIMAL CONTROL AND ANIMAL SERVICES AFTER CLOSING.

The City of Reno hereby commits that on and after Closing and so long as this ordinance is in effect, the City will not enact or attempt to enforce City of Reno ordinances covering animal control and animal services as set forth in the Interlocal Agreement.

(d) CITY LAW ENFORCEMENT TO ASSIST COUNTY ANIMAL CONTROL OFFICERS.

After closing, all law enforcement personnel of the City shall have the authority and power while on duty to assist all County animal control officers in carrying out their duties under the County's animal control ordinance(s) when those animal control officers are operating within the jurisdiction of the City of Reno.

(e) NOTICE.

The City shall give notice to the City of Sparks and Washoe County in the event the City of Reno takes action to introduce or otherwise act upon an ordinance repealing the ordinance adopting this Interlocal Agreement.

(f) EFFECTIVE DATE.

This ordinance shall be in force and effect on and after July 1, 2003.

(Ord. No. 5464, § 1, 6-25-03)

Secs. 8.28.010—8.28.700. Reserved.

Note—See the editor's note at Ch. 8.28.

***Editor's note—**Ord. No. 5742, §§ 1—70, adopted Sept. 14, 2005, repealed §§ 8.28.010—8.28.700, which pertained to animal control regulations. See also the Code Comparative Table.
Cross references—Health and sanitation, Tit. 10; regulation of pig pens, § 10.04.080.

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CHAPTER 8.29. RESERVED*

*__Editor's note—__Ord. No. 5743, §§ 1—10, adopted Sept. 14, 2005, repealed Ch. 8.29, §§ 8.29.010—8.29.100, which pertained to restricted animals. See also the Code Comparative Table.

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CHAPTER 8.30. SOLICITATION*

Art. I. In General

Sec. 8.30.005. Policy.
Sec. 8.30.010. Definitions.
Sec. 8.30.020. Exemptions from chapter.
Sec. 8.30.040. Time, place and manner.
Sec. 8.30.045. Aggressive solicitation prohibited.
Sec. 8.30.065. Solicitation at posted premises prohibited.
Sec. 8.30.075. Duties of solicitors.
Sec. 8.30.085. Penalty.

ARTICLE I. IN GENERAL

Sec. 8.30.005. Policy.

As an aid in the interpretation and enforcement of this section, the city council finds that:

(a) The maintenance and improvement of the quality of life and economic vitality of the City of Reno are significant government interests.

(b) The preservation of the health, safety and welfare of all members of the public, including prevention of assault, battery, theft, and disturbances of the peace, as well as other crimes and disorder, are significant government interests.

(c) The public has a right to the access to, and use and enjoyment of public property and public places, free from intimidation, fear and unwarranted confrontation. Protection of this right of the public is a significant government interest. The government has a legitimate interest in minimizing fear, intimidation and unwarranted confrontations of the public during the night hours, a time when criminal activity is more likely to occur.

(d) Aggressive solicitations threaten these significant government interests by diminishing access to, and use and enjoyment of public places, and also threaten the commercial well being of local businesses, and create an environment of fear, intimidation, and confrontation.

(e) Solicitations in certain locations, at certain times affecting a solicitation environment, or in locations where members of the public are less able to avoid solicitations, also threaten these significant government interests. Such solicitations also diminish access to and enjoyment of public places, threaten the commercial well being of local businesses, and create an environment of fear, intimidation, and confrontation.

(f) It is the intent of the council to protect the public from persons who engage in aggressive solicitations, or who engage in other methods of solicitation that diminish or prevent the public's right to access to, and use and enjoyment of public places, but without prohibiting any person's such right and without impinging on the use of the public forum by all.

***Editor's note—**Ord. No. 6113, § 1, adopted July 15, 2009, amended Ch. 8.30, in its entirety, to read as herein set out. Prior to inclusion of said ordinance, Ch. 8.30 was entitled, "Solicitation of Funds." See also the Administrative Code Comparative Table.

(g) Regulation of solicitation is necessary to meet council's intent; to protect quality of life, economic vitality, health, safety and welfare, and the rights of the public.

(Ord. No. 6113, § 1, 7-15-09)

Sec. 8.30.010. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them, whether or not capitalized:

Aggressive manner means engaging in conduct that is the same or similar to:

(a) Approaching or intentionally touching a solicited person in a manner that is intended to or is likely to cause a reasonable person to fear imminent bodily harm or the commission of a criminal act upon property in the person's possession;

(b) Approaching or intentionally touching a solicited person in a manner that is intended to or is likely to intimidate or coerce a reasonable person into responding affirmatively to the solicitation;

(c) Intentionally following behind, ahead or alongside, blocking the path of, or continuing to solicit a person with the intent to intimidate;

(d) Continuing to solicit a person who walks or drives away from the solicitor(s) or who gives notice or demonstrates verbally or physically that such solicitation is offensive, unwelcome or that the solicitation should cease;

(e) Intentionally blocking or interfering with the safe or free passage of a person, or the entrance to any building or vehicle by any means, including unreasonably causing a person or the driver of a vehicle to take evasive action to avoid physical contact; or

(f) Using obscene, profane or abusive language or gestures either during the solicitation or following a refusal, or making any statement, gesture or other communication that would cause a reasonable person to be fearful or would be reasonably perceived as a threat.

Funds means money, credit, property, financial assistance, or other thing of value.

Goods means one or more tangible items, wares, objects of merchandise, perishables of any kind, subscriptions, or manufactured products offered, provided or sold.

Invite means to request someone's presence or participation.

No solicitation sign means a reasonably visible and legible sign that states "No Soliciting," "No Solicitors," "No Salespersons," "No Trespassing," "Day Sleeper" or words of similar import prohibiting solicitation.

Obstruct pedestrian or vehicular traffic means to walk, stand, sit, lie or place an object in such a manner as to block passage by another person or a vehicle, or to require another person or a driver of a vehicle to take evasive action to avoid physical contact. Acts authorized as an exercise of one's constitutional right to picket or to legally protest, participation in a legal event such as watching a parade or a special event and acts authorized by a permit or license issued pursuant to the Reno Municipal Code, shall not constitute obstruction of pedestrian or vehicular traffic.

Public place means an area open to the general public, whether publicly or privately owned, and includes alleys, bridges, buildings, driveways, parking lots, parking garages, parks, plazas, sidewalks, streets, any public transportation vehicle and the doorways and entrances to buildings or dwellings and the grounds enclosing them.

Residence means any living unit contained within any building or structure that is occupied by a person as a dwelling consistent with the zoning laws of the city, together with the lot or other real property on which the living unit is located. This does not include the sidewalk, public places, public street, or public rights-of-way.

Services means those intangible goods, personal benefits, or offers of employment offered, provided, or sold to a person.

Solicit or *solicitation* means and includes any request for, or enticement or action which communicates a request for, any donation or provision of funds, goods or other property. The term includes a verbal offer or provision of an item or service of little or no value to another in exchange for a donation, under circumstances where a reasonable person would understand that the transaction is in substance a donation. However, "solicit" or "solicitation" shall not include the act of passively standing, sitting, or engaging in a performance of art with a sign or other indication that a donation is being sought, without any vocal request other than in response to an inquiry by another person.

Solicitor or *solicitors* means a person(s) engaged in solicitation or seeking to solicit as defined in this section.

(Ord. No. 6113, § 1, 7-15-09)

Sec. 8.30.020. Exemptions from chapter.

The following are exempt from the provisions of this chapter:

(1) Any solicitation made upon premises owned, leased or otherwise legally occupied by the group, association or other organized body of persons upon whose behalf such solicitation is made;

(2) Any group, association or other organized body of persons soliciting contributions solely from persons who are members thereof at the time of solicitation.

(Ord. No. 6113, § 1, 7-15-09)

Sec. 8.30.040. Time, place and manner.

It shall be unlawful for any person, in a public place, to solicit in violation of the following rules:

(1) Solicitations shall not be made within 20 feet of any door or driveway within a commercial or industrial zone.

(2) Solicitations shall not be made within 20 feet of any automatic teller machine (ATM), entrance to a bank, check cashing business, or other financial institution.

(3) Solicitations shall not be made in any public transportation vehicle or within 20 feet of any designated or posted transportation vehicle stop or crosswalk.

(4) Solicitations shall not be made in any indoor or outdoor dining area open to the public without being invited.

(5) Solicitations shall not be made in any public restroom.

(6) A solicitor shall not obstruct pedestrian or vehicular traffic for the purpose of soliciting from pedestrians or occupants of vehicles.

(7) A solicitor shall not conduct solicitation while in violation of, or in a manner that violates, any ordinance, rule, statute or regulation.

(Ord. No. 6113, § 1, 7-15-09; Ord. No. 6236, § 1, 6-3-12)

Sec. 8.30.045. Aggressive solicitation prohibited.

It is unlawful for a person or persons to, in a public place, intentionally solicit or engage in solicitation in an aggressive manner.

(Ord. No. 6113, § 1, 7-15-09)

Sec. 8.30.065. Solicitation at posted premises prohibited.

(a) Any occupant or inhabitant of a residence may give notice of a desire to refuse solicitors or solicitation by clearly and unequivocally asking the solicitor to leave. Such notice may be, and is deemed to have been given, by displaying a no solicitation sign which shall be posted on or near the main entrance door or on or near the property line adjacent to the sidewalk or other entrance leading to the residence.

(b) It is unlawful for any person to:

(1) Solicit at a residence where the occupant has properly posted a "No Solicitation Sign".

(2) Fail to peaceably depart from or continue to solicit at a residence after being clearly and unequivocally notified by the occupant or inhabitant of the residence, whether by posting or by other means, to leave the property or of their desire to refuse or cease the solicitation.

(Ord. No. 6113, § 1, 7-15-09)

Sec. 8.30.075. Duties of solicitors.

(a) Every person engaged in solicitation shall check each residence for the presence of a "No Solicitation" sign. If a "No Solicitation Sign" is posted, the person shall desist from any efforts to solicit at the residence and shall immediately depart from such property.

(b) Any solicitor who is at any time clearly and unequivocally asked by an occupant of a residence to leave shall immediately and peacefully depart from such property.

(Ord. No. 6113, § 1, 7-15-09)

Sec. 8.30.085. Penalty.

Any person convicted under this chapter shall be punished for a misdemeanor.

(Ord. No. 6113, § 1, 7-15-09)

CHAPTER 8.32. TREES AND SHRUBS

Sec. 8.32.005. Purpose.
Sec. 8.32.010. Definitions.
Sec. 8.32.020. Enforcement.
Sec. 8.32.030. Control and supervision in public places.
Sec. 8.32.035. Designation of landmark trees.
Sec. 8.32.040. Necessity for permit to plant, prune, cut, spray, chemically treat or remove in public places.
Sec. 8.32.050. Exemptions from permits.
Sec. 8.32.060. Application for permits, power of revocation and appeal.
Sec. 8.32.070. Injuring plants on public property.
Sec. 8.32.080. Prohibited trees.
Sec. 8.32.090. Certain plants to constitute a public nuisance.
Sec. 8.32.100. Private plants, diseases and infestations constituting a public nuisance.
Sec. 8.32.110. Dutch elm disease constituting a public nuisance.
Sec. 8.32.120. Infected or decaying trees constituting a public nuisance.
Sec. 8.32.130. Inspection of premises.
Sec. 8.32.140. Notice of compliance, unless emergency.
Sec. 8.32.150. Service of notice.
Sec. 8.32.160. Duty to remove.
Sec. 8.32.170. Sale of diseased elm, zelkova and planera prohibited.
Sec. 8.32.180. Penalty for violations.
Sec. 8.32.190. Criminal prosecution or suit for expenses not prevented.

Sec. 8.32.005. Purpose.

It is the purpose of this chapter to promote and protect the public health, safety and welfare by prohibiting the planting and care of the types or kinds of trees that may be hazardous, susceptible to disease and insects, or injurious to sidewalks and curbs and by providing for the planting and growth of trees for the beautification of the streets of the city, and to that end to control and regulate the types or kinds of trees permitted to be planted on, or along the streets.

(Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.010. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

ANSI A300 means the current edition of the American National Standards Institute Standard Practices for Trees, Shrubs, and Other Woody Plant Maintenance.

Approved list includes all species of trees approved by the Reno Urban Forestry Commission as amended from time to time.

Direct supervision means the supervisor shall be within normal voice range and within sight of the persons being supervised.

ISA certified arborist and certified tree worker means an individual who holds a valid and current certification as an arborist or tree worker issued by the International Society of Arboriculture.

Landmark trees includes those trees on public property having special status due to their age, size, shape, species, location, historical association, visual quality or other contribution to the city's character.

Parkway includes that portion of public right-of-way situated between the curbline of any street and the property line abutting and adjoining any street. In the absence of a curb, the curbline of a street shall be deemed to be the edge of that portion of public right-of-way maintained and open to the use of the public for purposes of vehicular travel.

Proper pruning means pruning that conforms to the current edition of the ANSI A300 Standards and includes cutting or removing any part of the branching structure of a tree in the crown, trunk, or root areas.

Public place includes all land or property owned, or held, or under the control of the city.

Red tag means an order to stop work until certain specific conditions are met.

Street or highway includes all lands lying between the property lines on either side of all highways, public streets, roads, and alleys as defined in section 6.04.020. This definition includes, but is not limited to, sidewalks.

Topping, also known as heading, stubbing, dehorning, or *lopping,* refers to the cutting back of the central leader, stem, or limbs to stubs within the tree's crown so as to remove the normal canopy and disfigure the tree. Because of numerous problems caused by topping, it is not an accepted practice and shall not be performed on any tree protected under this chapter unless a specific exemption is approved by the urban forester under section 8.32.060(e).

Trees, plants, shrubs, and vines shall include all woody vegetation; and where applicable, the word "plants" herein shall include all of these things.

Urban forester is that person who shall have such duties and perform such functions as shall be prescribed herein and who shall be subject to the direction and control of the city manager or his designee.

Value of trees shall be determined by the urban forester using the most current edition of the International Society of Arboriculture "Guide for Establishing Values of Trees and Other Plants" as amended from time to time.

(Code 1966, § 11.56.010; Ord. No. 4196, § 1, 3-10-92; Ord. No. 4917, § 1, 10-13-98)

Sec. 8.32.020. Enforcement.

The urban forester or his authorized representative shall be charged with the duty of enforcing the provisions of this chapter. The urban forester, subject to the provisions of this chapter, is hereby authorized to:

(1) Plant, prune, spray, preserve and remove trees in public places to ensure safety or preserve the symmetry and beauty of such public places.

(2) Order the pruning, preservation or removal of trees upon private property when he shall find such action necessary for public safety or to prevent the spread of disease or insects to public trees and places.

(3) Supervise all work done under a permit issued in accordance with the terms of this chapter.

(4) Provide for the spacing of, or distance permitted from paved city areas of, all such trees.

(5) Provide for the form of application for removal, or the planting of any such tree.

(6) Establish and maintain a nursery for the growing of the types and kinds of trees permitted, and plant the same on public property.

(7) "Red tag" jobs without permits, issue citations.

(8) Advise the Reno Urban Forestry Commission for purposes of adding, amending or deleting procedures.

(9) Enter upon private premises, with notice, at all reasonable hours, to inspect the premises where he may reasonably suspect a violation of this chapter.

(10) Give notice to private property owners or residents of violations of this Code.

(11) Take remedial measures as required by this Code when property owners or residents, after notice has been properly served, fail to take required action.

(Code 1966, § 11.56.020; Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.030. Control and supervision in public places.

The urban forester is hereby vested with the control and maintenance of the trees, plants, shrubs and vine upon the public streets, highways, parks and public places of the city. He may institute procedures for the setting out, care, and maintenance of such trees and shrubs. He may, at the request of the adjoining property owner, upon the payment of the appropriate fee by such property owner, supply and plant a tree(s) on public property.

(Code 1966, § 11.56.030; Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.035. Designation of landmark trees.

(a) Landmark trees shall be designated by the Reno Urban Forestry Commission.

(b) The urban forester shall maintain a list of all trees so designated and their location.

(Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.040. Necessity for permit to plant, prune, cut, spray, chemically treat or remove in public places.

(a) No tree, plant, shrub or vine shall be planted or set out upon any street or public place in the city, and no tree, plant, shrub or vine located upon any street or public place shall be removed, pruned, cut, shaped, sprayed or chemically treated without a written permit first being obtained from the urban forester. When such permit is for the setting out of trees, plants, shrubs or vines, it may prescribe the number, kind and distance apart thereof. Once planted, all such plants and any subsequent biomass resulting from tree removal or pruning, including firewood, becomes property of the City of Reno.

(b) When for the removal, trimming, pruning, cutting, spraying or chemically treating thereof, the permit shall prescribe the number of such plants to be affected thereby and the manner and the performance of the work. Such permit shall be operative only when exercised subject to such regulations as the urban forester may adopt for the purpose as hereinabove mentioned. The urban forester, as a condition for a removal permit, may require compensation to the city for the value of the removed tree or trees or replacement.

(c) Approval to remove landmark trees shall be at the discretion of the city council upon recommendation of the Reno Urban Forestry Commission. Removal of any landmark trees for construction activities shall require payment to the city for the value of the landmark tree.

(Code 1966, § 11.56.040; Ord. No. 4196, § 1, 3-10-92; Ord. No. 4917, § 1, 10-13-98)

Sec. 8.32.050. Exemptions from permits.

There shall be exempted from the provisions the requirement for a permit for any cutting or pruning done or performed by the city in order to comply with the provisions of this chapter.

(Code 1966, § 11.56.060; Ord. No. 4196, § 1, 3-10-92; Ord. No. 4917, § 1, 10-13-98)

Sec. 8.32.060. Application for permits, power of revocation and appeal.

(a) Any person desiring to obtain a permit required by this chapter shall first file an application with the urban forester on a form prescribed by him. Every permit granted hereunder shall specifically describe the work to be done and the manner in which the work should be done, and shall be valid not more than 60 days after the date of its issuance. The urban forester shall issue permits as provided herein when he finds that the desired action or treatment is necessary and that the proposed method and workmanship are satisfactory, and that it will not be detrimental to the city or its inhabitants.

(b) The urban forester may revoke any permit issued hereunder at any time the urban forester shall find that the terms of the permit have been or are, being violated by the permittee.

(c) Permittee shall have the right to appeal denial of a permit or subsequent revocation within ten days from the date of denial or revocation to the Reno Urban Forestry Commission by filing notice with the city clerk.

(d) Permittee shall have the right to appeal an adverse decision by the Reno Urban Forestry Commission within ten days of said decision by filing an appeal to the city council with the city clerk.

(e) All work performed under a permit as required by this chapter shall conform to current ANSI A300 Standards. Exceptions to the ANSI A300 Standards may be permitted by the urban forester in cases involving storm damaged trees or trees in conflict with overhead utility lines.

(f) Effective January 1, 2000, any person desiring to obtain a permit as required by this chapter must hold a valid and current International Society of Arboriculture Arborist or Tree Worker Certification, except that:

(1) Tree planting may be performed by a person holding a valid and current Nevada Nursery Certification acquired through the University of Nevada Cooperative Extensions; and

(2) Pesticide application must be performed by a person holding a valid and current license to apply pesticides issued by the State of Nevada.

(g) Effective January 1, 2000, all work performed under a permit as required by this chapter must be performed by or directly supervised by a person holding a valid and current International Society of Arboriculture Arborist or Tree Worker Certification.

(Code 1966, § 11.56.056; Ord. No. 4196, § 1, 3-10-92; Ord. No. 4917, § 1, 10-13-98)

Sec. 8.32.070. Injuring plants on public property.

It shall be unlawful to do any of the following acts:

(a) Removing without permit, destruction, topping, mutilation, breaking, or killing any trees, plants, shrubs or vines upon or along any of the public streets, highways, alleys, public parks or public places.

(b) Tying, hitching or fastening any horse or other animal to any of such plants on or upon any of the public streets, highways, alleys, public parks or public places, within the corporate limits of the city, without consent in writing from the urban forester.

(c) Painting, posting, or otherwise affixing or allowing the same to be done by another, any poster, sign, wire, rope or other material on or around any trees, plants, shrubs or vines in any street or other public place.

(d) Depositing, placing, storing or maintaining upon any street or public place any stone, brick, cement, concrete or other material which may unreasonably impede the free passage of water, air or fertilizer to the roots of any trees, plants, shrubs or vines growing therein.

(e) Permitting any fire to burn where such fire will injure any portion of any trees, plants, shrubs or vines in any street or public place.

(f) Knowingly permitting any leak to exist in any gas pipe within the root zone of any trees, plants, shrubs or vines in any street or public place.

(g) Permitting any toxic chemical to seep, drain or be emptied on or about any street or public place.

(h) Knowingly permitting electrical wires to come in contact with any trees, plants, shrubs, or vines in any street or public place, unless protected by methods approved by the urban forester.

(i) Attaching any electrical installation to any trees, plants, shrubs or vines in any street or public place or excavating any ditches, tunnels or trenches, or laying any driveway within a radius of ten (10) feet from any such plant in any street or public place; unless a permit is issued by the urban forester.

(Code 1966, § 11.56.070; Ord. No. 4196, § 1, 3-10-92; Ord. No. 4917, § 1, 10-13-98)
State law reference—Malicious injury to trees, NRS 206.015.

Sec. 8.32.080. Prohibited trees.

It shall be unlawful for any person to:

(1) Plant on or along any street, parkway or public place any fruit, nut or seed-bearing trees, unless the urban forester shall issue a permit therefor, after determining that the roots will not interfere with any public sidewalk, curb, sewer, water, electric and gas lines and that the fruit, nuts or seeds of such trees will not pose a public hazard.

(2) Plant any and all species of genus *Ulmus* (elm) anywhere in the city.

(3) Plant any and all species of genus *Populus* (poplar/cottonwood/aspen) tree, or genus *Salix* (willow) tree on or along any street, parkway or other public property. Special exception may be allowed by the urban forester for the purpose of maintaining riparian vegetation and habitat along the Truckee River or other natural riparian areas.

(Code 1966, § 11.56.080; Ord. No. 3079, § 1, 5-9-83; Ord. No. 4126, § 1, 7-9-91; Ord. No. 4196, § 1, 3-10-92; Ord. No. 4917, § 1, 10-13-98)

Sec. 8.32.090. Certain plants to constitute a public nuisance.

Any tree, plant, shrub or vine not maintained and trimmed as provided in this chapter, and each of such plants which is dead or is endangered, or which may in any way endanger the security or usefulness of any street, utility line (above or underground), sewer or public place is hereby declared to be a public nuisance. Then the provisions of sections 8.32.140, 8.32.150 and 8.32.160 shall be followed.

(Code 1966, § 11.56.090; Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.100. Private plants, diseases and infestations constituting a public nuisance.

Any tree, plant, shrub or vine located anywhere within the city which is determined by the urban forester to be afflicted with any dangerous and infectious insect infestation or plant disease is hereby declared a public nuisance. The provisions of sections 8.32.140, 8.32.150 and 8.32.160 shall be followed.

(Code 1966, § 11.56.100; Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.110. Dutch elm disease constituting a public nuisance.

Trees of all species and varieties of elm, zelkova and planera infected with the fungus *Certostomella ulmi*, as determined by laboratory analysis conducted at the direction of the urban forester, located anywhere within the city, are hereby declared to be a public nuisance. The provisions of sections 8.32.140, 8.32.150 and 8.32.160 shall be followed.

(Code 1966, § 11.56.110; Ord. No. 4196, § 1, 3-10-92; Ord. No. 4917, § 1, 10-13-98)

Sec. 8.32.120. Infected or decaying trees constituting a public nuisance.

Any trees or parts thereof in a dead or dying condition located anywhere in the city, that may serve as breeding places for any infectious insect or disease are hereby declared to be public nuisances. The provisions of sections 8.32.140, 8.32.150 and 8.32.160 shall be followed.

(Code 1966, § 11.56.120; Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.130. Inspection of premises.

The urban forester may enter with notice upon private property at all reasonable hours for purposes of inspecting trees, shrubs, plants or vines thereon, and the urban forester may remove such specimens as are required for purposes of analysis to determine whether or not the same are infected. It shall be unlawful to interfere with the urban forester in the lawful performance of his duties under the provisions of this chapter.

Written notice is to be given in person to the property owner or resident of record 24 hours prior to entry, or by mail, return receipt requested, 48 hours prior to entry. Due to the public interest in preventing the spread of disease, the urban forester need not wait for return of the mail receipt.

(Code 1966, § 11.56.130; Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.140. Notice of compliance, unless emergency.

(a) If trees, plants, shrubs or vines on private property located anywhere within the city, are found to be a public nuisance, the urban forester shall give to the owner of the premises, his agent or the occupant thereof, where such plants are situated, written notice of the existence of the nuisance, ordering the removal, destruction or reasonable curative measures within a period of ten days following such notice, unless a time extension is granted by the urban forester with due regard for the purposes of this chapter or unless the situation is deemed by the urban forester to be an emergency. Such notice shall also notify the owner of the premises that unless such tree, plant, shrub or vine is removed, destroyed or curative action initiated in compliance with the terms thereof within such ten day period, the city will proceed with the removal, destruction or cure of such tree, and assess the cost thereof as a lien against the property. The notice shall describe the tree, plant, shrub or vine, its location, the type of violation involved in specifics and the exact measures to be taken.

(b) In the event an emergency condition is determined by the urban forester to exist, the urban forester shall proceed in such manner as is required under the circumstances with due regard for public health and safety, endangerment to other trees and shrubs and, to the extent possible, notice and cooperation with affected property owners.

(Code 1966, § 11.56.140; Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.150. Service of notice.

Service of notice shall be by personal service when the owner of the premises is a resident of the city, if such service can then be conveniently and expeditiously made. In all other cases the notice shall be mailed by certified mail, return receipt requested, but if neither such place of business nor residence is known, then no mailing shall be necessary and the urban forester shall post a copy of the notice on the premises. For the purposes of this section, mailing to the owner of the parcel of property as shown by the records or last assessment roll of the county assessor shall be deemed mailing notice to the property owner.

(Code 1966, § 11.56.150; Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.160. Duty to remove.

It shall become the duty of the owner of the premises, within ten days after delivery of the notice under section 8.32.150, to cause such tree, plant, shrub or vine to be removed, destroyed, or to initiate curative measures under the direction and supervision of the urban forester. The removal, destruction or cure of an infected tree shall be under the direction and supervision of the urban forester. If the city shall remove, destroy or attempt curative measures to any tree, plant, shrub or vine, all expenses incurred in connection therewith shall be reported to the city council for assessment against the lands whereon the plant was situated, in accordance with the applicable provisions of sections 8.22.320 and 8.22.330. The city may undertake any curative measures itself, or contract with a private contractor to perform such service. Any such private contractor hired to perform shall provide proof of coverage of public liability, property damage insurance and workers compensation coverage for his employees to the urban forester. A performance bond may also be required as necessary.

(Code 1966, § 11.56.160; Ord. No. 4196, § 1, 3-10-92; Ord. No. 4917, § 1, 10-13-98)

Sec. 8.32.170. Sale of diseased elm, zelkova and planera prohibited.

It shall be unlawful for any person to give, to sell, or to offer for sale, as firewood, any part of a diseased tree of any species of elm, zelkova or planera.

(Code 1966, § 11.56.170; Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.180. Penalty for violations.

(a) It is unlawful, prohibited and a misdemeanor for any person to violate the provisions in this chapter, including failure to comply with any notice of the urban forester or any decision and notice of the Reno Urban Forestry Commission or city council following appeal.

(b) In the event any of the acts enumerated in (a) above occur, the city must be compensated for any resulting damage or the loss of any tree as determined by the urban forester in accordance with this chapter.

(Code 1966, § 11.56.180; Ord. No. 4196, § 1, 3-10-92)

Sec. 8.32.190. Criminal prosecution or suit for expenses not prevented.

Nothing contained in this chapter shall prevent the maintenance of a suit by the city against any person mentioned in this chapter to collect the expenses of such abatement or removal or the prosecution criminally under the ordinances of the city of any person creating, maintaining, causing or committing a nuisance, or owning or in possession, charge or control of the real property upon which a nuisance is created, maintained, caused or committed.

(Code 1966, § 11.56.200; Ord. No. 4196, § 1, 3-10-92)

CHAPTER 8.34. EMERGENCY MANAGEMENT*

Sec. 8.34.010. Definitions.
Sec. 8.34.020. Creation of emergency management chapter; purpose.
Sec. 8.34.030. Emergency management coordinator: Position created; appointment; powers and duties.
Sec. 8.34.040. Duties of the office.
Sec. 8.34.050. Declaration of emergency; procedure.
Sec. 8.34.060. Emergency regulation and control.
Sec. 8.34.070. Removal of debris: Power of the incident commander.
Sec. 8.34.080. Eligibility of emergency service worker for benefits for injury sustained in emergency service.
Sec. 8.34.090. Payment of worker's compensation premiums.
Sec. 8.34.100. Succession of authority.
Sec. 8.34.110. Unlawful acts; penalties.

Sec. 8.34.010. Definitions.

As use in sections 8.34.020 to 8.34.110, inclusive, unless the context otherwise requires:

Board means the City of Reno Emergency Management Board.

Council means the Reno City Council.

Coordinator means the emergency management coordinator for the city.

Disaster means an emergency which is so severe or widespread that it is beyond the ability of local governments or private relief agencies to alleviate the damage, loss, hardship or suffering caused thereby.

Emergency means any man-made or natural event or circumstance causing or threatening loss of life, injury to person or property, human suffering or financial loss to the extent that extraordinary measures must be taken to protect the public health, safety, and welfare. Such events include, but are not limited to fire, explosion, flood, severe weather, drought, earthquake, volcanic activity, spills of oil or other hazardous substances, disease, blight, infestation, disruption of utility or transportation service, civil disturbance, riot, sabotage and war. An emergency can exist without an official declaration of a state of emergency.

Emergency management means all tasks and activities necessary to coordinate and maintain the emergency services system needed to resolve any emergency/disaster.

Emergency services includes those activities provided by the state, local government, private agencies, and organizations with emergency operational responsibilities to prepare for and carry out any activity to prevent, minimize, respond to or recover from an emergency. These activities include, without limitation, coordination, planning, training, interagency liaison, fire

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***Editor's note—**Ord. No. 4145, § 1, adopted September 10, 1991, has been treated as superseding the provisions of Ch. 8.34, §§ 8.34.010—8.34.050, concerning civil emergencies. Former Ch. 8.34 derived from the Code of 1966, §§ 11.60.010—11.60.050.
State law reference—Local organization for emergency management, NRS 414.090.

fighting, hazardous substance management, law enforcement, medical, health, and sanitation services, engineering and public works, search and rescue activities, public warning and information, damage assessment, administration and fiscal management.

Emergency services agency means an organization within the emergency services system which performs essential services for the public's benefit before, during or after an emergency. This term includes, but is not limited to, organizational units within local governments such as law enforcement, fire control, health, medical, and sanitation services, public works, engineering, social services, and public information and communications.

Emergency services system means that system composed of federal, state, and local governmental agencies and private agencies and organizations involved in the coordinated delivery of emergency services.

Emergency services worker means a person who performs emergency services and who is subject to the order or control of, or who performs the services pursuant to a request of, an emergency service agency or the division of emergency management.

Incident Command System (ICS) is a means of providing for the overall management of the response to an emergency/disaster.

Incident commander can be a single person or the emergency management board and is charged with the overall management of the emergency/disaster response.

Mayor means the mayor of the City of Reno.

(Ord. No. 4145, § 1, 9-10-91)

Sec. 8.34.020. Creation of emergency management chapter; purpose.

(a) There is hereby created the City of Reno Emergency Management chapter.

(b) The purpose of this chapter is to:

(1) Authorize and empower the city council and the city manager to provide safety, welfare and protection for people and property within the City of Reno during an emergency or disaster through organized emergency operations by:

a. The creation of the City of Reno Emergency Management Board. This board shall be made up of the mayor, the city manager, the fire chief, the police chief, the public works director and others from the management team as designated by the city manager.

b. The board shall be responsible for the resolution of emergencies/disasters and shall have the power to and authority to take what ever action is required to accomplish that goal.

c. The board shall be responsible for the city's emergency management plan evaluating and revising when needed.

(2) Provide for coordination of training exercises and those operations within the emergency services system, maintain communications with the state, the county, other cities and other public and private organizations.

(3) Provide for continuity of government under the threat or occurrence of any emergency condition that could disrupt such processes and services.

(Ord. No. 4145, § 1, 9-10-91)

Sec. 8.34.030. Emergency management coordinator: Position created; appointment; powers and duties.

(a) The position of emergency management coordinator is hereby created. The coordinator shall be appointed by the city manager in accordance with Article III, section 2.14.200 of the City of Reno Charter at a salary set by section 2.14.220 which is fixed by the city council; or whose duties at the discretion of the city manager shall be assigned to the assistant city manager or another city employee.

(b) The coordinator is authorized and empowered with the authority to petition, acquire and accept funds from the United States Federal Government or any agency or office thereof, or from the State of Nevada, for emergency management purposes, as provided in the provisions of NRS 414.130.

(c) The coordinator may:

(1) Represent the city council and city manager at meetings pertaining to emergency management.

(2) Request and receive cooperation of city officials in the preparation, implementation of and training on emergency management plans.

(d) The coordinator shall annually submit a budget to the city manager. Except during an emergency, the administrator shall operate within that budget and comply with city purchasing procedures.

(Ord. No. 4145, § 1, 9-10-91)

Sec. 8.34.040. Duties of the office.

The coordinator shall:

(1) Recommend to the council any ordinance, policies, or procedures which would assist the council and other city officials in the performance of their duties in preparing for, responding to and recovering from an emergency or disaster.

(2) Establish a resource list of federal, state, county, city, public and private organizations for utilization during emergency management operations.

(3) Work with the emergency management board in maintaining the city's emergency operations plan and an emergency resource management plan that is in support of and consistent with any other city, county, state and federal emergency plan.

(4) Review and evaluate operating procedures for the emergency operation center from which centralized direction and control of the emergency services system may be exercised.

(5) Test the emergency services system by conducting drills and take such other steps as may be necessary to develop the system to effectuate the purposes of sections 8.34.020 to 8.34.110 inclusive.

(6) Assist in development of mutual aid arrangements for reciprocal emergency management aid and assistance in case of an emergency or disaster.

(7) Provide assistance during local emergencies.

(Ord. No. 4145, § 1, 9-10-91)

Sec. 8.34.050. Declaration of emergency; procedure.

(a) When in the judgement of the mayor or in his absence the assistant mayor or in his absence the city manager that an emergency/disaster is deemed to exist, they shall forthwith proclaim in writing the existence of same.

(b) The mayor, assistant mayor, the city council, or the city manager shall terminate the state of emergency when the emergency no longer exists or the threat of an emergency has passed.

(Ord. No. 4145, § 1, 9-10-91)

Sec. 8.34.060. Emergency regulation and control.

(a) If a declared state of emergency exists within the city, the council may, if it deems it necessary to maintain peace and protect the public, order and enforce the measures listed in subsection (b). If circumstances prohibit the timely action of the council, the mayor, the assistant mayor, or the city manager may, under the same circumstances, order the emergency measures listed in subsection (b) and shall report his actions to the council at its next regularly scheduled meeting.

(b) Subject to the limitations imposed by subsection (a), the mayor, the assistant mayor, the city council, or city manager may:

(1) Establish a curfew for the area designated as an emergency area which fixes the hours during which persons other than officially authorized personnel may be upon the public streets or other public places.

(2) Prohibit or limit the number of persons who may gather or congregate upon any public street, public place or any outdoor place within the area designated as an emergency area.

(3) Barricade streets and roads, as well as access points onto streets and roads, and prohibit or restrict vehicular or pedestrian traffic in the area.

(4) Prohibit the sale, distribution or giving away of gasoline or any other flammable or combustible product in any container except a gasoline tank properly affixed to a motor vehicle, or a type of container generally used in connection with normal use or legitimate commercial use.

(5) Order the closing of all or portions of gasoline stations and other establishments which sell, distribute or dispose of flammable liquids or combustible products.

(6) Order the closing of retail intoxicating liquor stores.

(7) Prohibit the sale of intoxicating liquor.

(8) Prohibit the sale, distribution or giving away of firearms or ammunition.

(9) Order the closing of any or all establishments or portions thereof which sell, distribute, dispense or give away firearms, ammunition or explosives.

(10) Enter into contracts and incur obligations necessary to mitigate, prepare for, respond to or recover from emergencies or disasters.

(11) Redirect funds for emergency use.

(12) Suspend standard procurement procedures to obtain necessary services or equipment.

(13) Commit to mutual aid agreements.

(14) Perform and exercise such other functions, powers and duties as are necessary to promote and secure the safety and protection of the civilian population.

(Ord. No. 4145, § 1, 9-10-91)

Sec. 8.34.070. Removal of debris: Power of the incident commander.

(a) To the extent necessary during or after the existence of a declared emergency or disaster, the incident commander may remove debris from public or privately owned property which threatens the public health or safety. In exercising this power, he may:

(1) Use city departments, mutual aid agreements with other governmental entities or, if necessary, private resources.

(2) Accept funds from the federal government or the state and utilize those funds for the purpose of removing such debris.

(b) Debris which exists on city-owned property may be removed at the city expense, provided that the expense of removing any debris caused by the negligent or intentional act of any person may be recovered from that person.

(c) The incident commander may order that debris which exists on privately owned property be removed by the owner of the property or the person responsible for the property at the owner's or other person's expense. Each order must specify the nature of the threat to the public and the minimum quantity of debris which must be removed to eliminate the threat. During an emergency, the order is effective when orally conveyed to the owner or other person responsible for the property. At all other times a written order must be made, and is effective only upon approval by the council and service upon the owner or other persons responsible for the property.

(d) Upon the failure of a person to comply with an order described in subsection (c), the incident commander may remove or cause the removal of the debris. The owner of the property or the person responsible for the property is liable to the city for costs incurred.

(e) When immediate emergency measures are determined necessary for the protection of public health and safety, or public or private property, and oral or written authorization cannot be obtained from the owner or other person responsible for the property, the incident commander may authorize the entry upon public or private lands or waters and perform such tasks necessary to the emergency removal or clearance operations.

(Ord. No. 4145, § 1, 9-10-91)

Sec. 8.34.080. Eligibility of emergency service worker for benefits for injury sustained in emergency service.

An emergency service worker may apply for and receive such benefits as are provided in Chapters 616 and 617 of the Nevada Revised Statutes (NRS) for an injury sustained in emergency service performed within or without the city.

(Ord. No. 4145, § 1, 9-10-91)

Sec. 8.34.090. Payment of worker's compensation premiums.

Premiums for worker's compensation coverage for emergency service workers must be paid for by the emergency service agency that accepts the services of the emergency service worker.

(Ord. No. 4145, § 1, 9-10-91)

Sec. 8.34.100. Succession of authority.

The city manager shall prepare a succession of authority listing to be maintained in the city's emergency management plan in case he is unavailable or otherwise unable to perform his duties during an emergency as set forth in this chapter.

(1) This list shall not be less than three positions deep.

(2) The list shall be reviewed and if necessary updated every six months or anytime one of the positions becomes vacant.

(Ord. No. 4145, § 1, 9-10-91)

Sec. 8.34.110. Unlawful acts; penalties.

It is unlawful during an emergency or disaster for any person to:

(1) Willfully obstruct, hinder or delay any authorized emergency relief worker in the performance of duties.

(2) Do any act forbidden by an order issued pursuant to sections 8.34.020 to 8.34.110, inclusive, of this chapter.

(3) Wear, carry or display without authority any mark or identification specified by the incident commander.

(Ord. No. 4145, § 1, 9-10-91)

CHAPTER 8.36. REGISTRATION OF CONVICTED PERSONS*

Sec. 8.36.010. Convicted person defined.
Sec. 8.36.020. Registration and information required.
Sec. 8.36.030. Change of residence of convicts.
Sec. 8.36.040. Photographing and fingerprinting.
Sec. 8.36.050. Records confidential.
Sec. 8.36.060. False statements.

Sec. 8.36.010. Convicted person defined.

For the purpose of this chapter, a "convicted person" is:

(1) A person convicted in the State of Nevada or convicted in any place other than the State of Nevada of two or more offenses punishable as felonies.

(2) A person convicted in the State of Nevada of an offense punishable as a category A felony.

(3) A person convicted in the State of Nevada, or convicted in any place other than the State of Nevada of a crime that would constitute a category A felony if committed in this state on July 1, 2003.

(4) A person whose conviction is or has been set aside in the manner provided by law, or whose civil rights have been restored, shall not be deemed a convicted person.

(Code 1966, § 11.32.010; Ord. No. 3027, § 1, 9-13-82; Ord. No. 4816, § 1, 10-28-97; Ord. No. 5522, § 1, 12-3-03)

State law reference—Similar provisions, NRS 179C.010.

State law reference—Similar provisions, NRS 207.080.

Sec. 8.36.020. Registration and information required.

(a) It is unlawful for a convicted person to be or remain in the City of Reno for a period of more than 48 hours, without, during such 48-hour period, registering with the chief of police of the City of Reno in the manner hereinafter prescribed.

(b) A convicted person who does not reside in the City of Reno, but who has a temporary or permanent place of abode outside the City of Reno and who comes into the city on five occasions or more during any 30-day period, is subject to the provisions of this chapter.

(c) A person who has registered as a convicted person with the chief of police of the City of Reno, shall register again as provided in this section if he subsequently commits another offense described or referred to in NRS 179C.010.

***State law reference—**Registration and fingerprinting of convicted persons, NRS 179C.010 et seq.

Case law reference—See: In the Matter of The Application of Emory G. Smith For Writ of Habeas Corpus, Second Judicial District Court, Dept. No. 2, No. 125242 (July 29, 1949) where the Court said: The ordinance was regularly enacted according to the provisions of the Charter of the City of Reno, and the City Council had the right to enact it as a regulatory measure under its police power. Writ denied and prisoner remanded.

(d) A person required by this section to register shall do so by filing with the chief of police a statement in writing, upon a form prescribed and furnished by the chief of police, which is signed by the person and which provides the following information:

(1) His true name and each alias that he has used or under which he may have been known;

(2) A full and complete description of his person;

(3) The kind, character and nature of each crime of which he has been convicted;

(4) The place in which he was convicted of each crime;

(5) The name under which he was convicted in each instance and the date thereof;

(6) The name, if any, and the location of each prison, reformatory, jail or other penal institution in which he was confined or to which he was sentenced;

(7) The location and address of his residence, stopping place, living quarters or place of abode in the city, and if more than one residence, stopping place, or place of abode, that fact must be stated and the location and address of each given;

(8) The kind of residence, stopping place or place of abode in which he resides, including whether it is a private residence, hotel, apartment house, or other building or structure;

(9) The length of time he has occupied each place of residence, stopping place or place of abode; and the length of time he expects or intends to remain in the city; and

(10) Any further information that may be required by the chief of police for the purpose of aiding and assisting in carrying into effect the provisions and intent of this chapter.

(e) When so ordered in the individual case by the district court in which the conviction was obtained, by the state board of parole commissioners or by the state board of pardons commissioners, whichever is appropriate, the provisions of this chapter do not apply to a convicted person who has had his civil rights restored.

(f) A convicted person who is required to register under this chapter is not required to carry a registration card.

(g) A person who has been convicted of a sexual offense as defined in Nevada Revised Statutes Chapter 179D must register in accordance to the provisions set forth in Chapter 179D.

(Code 1966, § 11.32.020; Ord. No. 4705, § 1, 1-28-97; Ord. No. 4816, § 2, 10-28-97; Ord. No. 5522, § 2, 12-3-03)

State law reference—Similar provisions, NRS 207.090.

Sec. 8.36.030. Change of residence of convicts.

A convicted person, except a nonresident, who is required to register under the provisions of this chapter, who changes his place of residence, stopping place or place of abode, shall, within 48 hours after the change, and a nonresident mentioned in section 8.36.020(b) who has registered and changes his place of residence, stopping place or place of abode, shall, upon his next entry into the city after the change, notify the chief of police of the change and furnish to the chief of police the address of his new residence, stopping place or place of abode by filing with the chief of police a written statement, upon a form prescribed and furnished by the chief of police which is signed by the person and which provided the following information:

1. His true name and each alias that he has used under which he may have been known;

2. The kind, character and nature of each crime of which he has been convicted;
3. The place in which he was convicted of each crime;
4. The name under which he was convicted in each instance and the date thereof; and
5. The location and address of his residence, stopping place, living quarters or place of abode, and, if there is more than one, the location and address of each residence, stopping place, living quarters or place of abode.

(Code 1966, § 11.32.030; Ord. No. 4816, § 3, 10-28-97)
State law reference—Similar provisions, NRS 179C.110.

Sec. 8.36.040. Photographing and fingerprinting.

Each convicted person, at the time of registering and furnishing the information required by section 8.36.030, shall be photographed and fingerprinted by the chief of police, who shall cause such photographs and fingerprints to be made a part of the record provided for by section 8.36.050.

(Code 1966, § 11.32.040)
State law reference—Fingerprinting of convicted persons, NRS 179C.120.

Sec. 8.36.050. Records confidential.

(a) The statements, photographs and fingerprints provided for in this chapter shall at all times be kept by the chief of police in a file separate and apart from other files and records maintained and kept by the office of the chief of police, and shall not be open to inspection by the public, or by any person other than a regular member of the police department. Any such photograph, or duplicates thereof, may be exhibited to persons other than members of the police department for the purpose of assisting in identifying perpetrators of any crime. Copies of such statements, photographs and fingerprints may be transmitted to the sheriff of any county in the state, to the head of any organized police department of any municipality in the state, or to the head of any department of the state engaged in the enforcement of any criminal law of this state, or to the head of any federal law enforcement agency, or to any sheriff or chief of police of a municipality, or to the head of any other law enforcement agency of the state in any state or territory outside of the state, when request is made, in writing, by such sheriff or other head of a law enforcement agency asking for the record of a certain person named therein, or for the record of a person whose photograph or fingerprints reasonably correspond with the photographs or fingerprints submitted with such request, and stating that such record is deemed necessary for the use of such law enforcement officer or agency, in or concerning the investigation of any crime, or any person who is accused of committing a crime, or any crime which is reported to have been committed, and further stating that the record will be used only for such purpose.

(b) Nothing contained in this chapter shall prevent the chief of police from furnishing to the sheriff of any county, the chief of police of any municipality, or the head of any other law enforcement agency which maintains any system of registration of convicted persons copies of the statements required to be filed under the provisions of this chapter, together with photographs and fingerprints procured by him, and it is hereby made the duty of the chief of police to arrange for the exchange of such information.

(Code 1966, § 11.32.050)
State law reference—Statements, fingerprints confidential, NRS 179C.170.

Sec. 8.36.060. False statements.

(a) No person required by any provision of this chapter to furnish a statement, shall in such statement give any false or fictitious address or any address other than a true address or intended address, or furnish in the making of any such report any false, untrue or misleading information or statement, relating to any information required by any of the provisions thereof to be made or furnished.

(b) The duty to furnish statements when and in the manner provided by this chapter, is hereby declared to be a continuing one, and for each day that any person required under the provisions of this chapter to furnish a statement fails to do so, such failure shall constitute a separate offense; provided, however, that no person may be convicted more than once on account of violations occurring by reason of failure, on a series of days, to furnish such statements; provided, further, that nothing contained herein shall be deemed a bar to subsequent prosecutions for violations of the provisions of this chapter occurring subsequent to a prior conviction or acquittal of a violation thereof.

(Code 1966, § 11.32.060)

State law reference—Similar provisions, NRS 179C.200.

CHAPTER 8.38. ODOR NUISANCES

Sec. 8.38.010. Definitions.
Sec. 8.38.020. Odor nuisances prohibited.
Sec. 8.38.030. Applicability—Exceptions.
Sec. 8.38.040. Marijuana odor nuisances.

Sec. 8.38.010. Definitions.

As used in this chapter, unless the context otherwise indicates, the following terms shall have the meanings ascribed to them:

DT is an abbreviation for dilution to threshold, which is an odor quantification unit.

Hedonic tone means the offensiveness of a particular odor.

Nasal Ranger® refers to a manufactured product used to quantify odor by diluting the air stream with odor categorizing the odor by dilutions to threshold.

Odor means the perceived experience when one or more chemicals come into contact with and stimulate the olfactory nerve.

Odor episode means the occurrence and perception of odor that may constitute an odor nuisance under this chapter.

Odor intensity means the overall strength of an odor.

Odor nuisance means an odor which is injurious to health, offensive to the senses of a reasonable person, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property.

Odorant refers to any chemical in the air that is part of the perception of odor.

Olfactometer means a device used in the field to measure or quantify odor or odor intensity, including a scentometer or Nasal Ranger®.

Ppbv means parts per billion by volume, a common gas phase compound quantitative unit.

Ppmv means parts per million by volume, a common gas phase compound quantitative unit.

Scentometer means a measurement device used to quantify odor intensity using a calibration standard.

(Ord. No. 6461, § 1, 4-25-18)

Sec. 8.38.020. Odor nuisances prohibited.

(a) Except as otherwise provided in this chapter, no person shall cause or knowingly allow to be caused an odor nuisance.

(b) When a complaint regarding an odor episode is received, an authorized official may contact the complainant, gather specific information regarding the odor episode, and conduct an investigation accordingly. An authorized official may also conduct an investigation in a case where he or she independently perceives the existence of odor

that might constitute an odor nuisance. As part of the investigation, the official may attempt to identify and quantify the odor intensity using an olfactometer and may also define or describe the hedonic tone of the odor associated with the odor episode.

(c) An authorized official may process an odor episode as a public nuisance under chapter 8.22 if, on a parcel adjacent to or nearby the parcel that is the source of the odor, an objective measurement is made as follows:

(1) The ambient odor has a persistent odor intensity measured at seven DT or greater and measured as such at least three times in a 48-hour time period; or

(2) The existence of hydrogen sulfide or ammonia is measured as follows:

a. Hydrogen sulfide: 100 ppbv (instantaneous), 30 ppbv (30-minute average), ten ppbv (one-hour average); or

b. Ammonia: Ten ppmv (instantaneous), three ppmv (30-minute average), one ppbv (one-hour average).

(d) An objective measurement that qualifies under subsection (c) shall be based on appropriate technology, including without limitation the use of olfactometers, instruments that measure the presence of specific chemicals or odorants (such as color-changing tubes and Jerome analyzers), and air monitoring equipment for compounds emitted into the air. An objective measurement that qualifies under subsection (c) presumptively establishes the existence of an odor nuisance under this chapter and chapter 8.22.

(Ord. No. 6461, § 1, 4-25-18)

Sec. 8.38.030. Applicability—Exceptions.

(a) This chapter applies to all business operations within the city including home base operations.

(b) This chapter does not apply to:

(1) Only the food preparation operations of restaurants.

(2) Regulated natural gas utility operations, including odorized natural gas and the chemicals or products used to achieve the required odorization of natural gas.

(Ord. No. 6461, § 1, 4-25-18)

Sec. 8.38.040. Marijuana odor nuisances.

In the case of an odor episode that qualifies under subsection (d) of section 8.38.020, where the source of the odor is a marijuana establishment licensed pursuant to title 5 of the Reno Municipal Code and the operator or owner disagrees with the objective measurement, an authorized official may require the operator or property owner to conduct air monitoring, at the operator's or owner's cost, in accordance with the code enforcement division's procedures manual for testing and measurement of odor, noise and lighting complaints.

(Ord. No. 6461, § 1, 4-25-18)

Title 10 HEALTH AND SANITATION*

Ch. 10.04. General Sanitary Matters, §§ 10.04.010—10.04.150
Ch. 10.06. Food Handlers, § 10.06.010
Ch. 10.08. Accumulation and Disposal of Solid Waste, §§ 10.08.010—10.08.080
Ch. 10.10. Air Pollution, §§ 10.10.010, 10.10.020
Ch. 10.12. Reserved, §§ 10.12.010—10.12.100
Ch. 10.14. Child Care Facilities, §§ 10.14.010, 10.14.140

***Cross reference—**Nuisances generally, Ch. 8.22.
State law references—Public health and safety, NRS Chs. 439—461; state board of health supreme in all health matters, NRS 439.150.

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CHAPTER 10.04. GENERAL SANITARY MATTERS

Sec. 10.04.010. General powers.
Sec. 10.04.020. Duties of health officer generally.
Sec. 10.04.030. Nuisances generally.
Sec. 10.04.040. Disposal of rubbish.
Sec. 10.04.050. Care of slaughterhouses.
Sec. 10.04.060. Receptacles in slaughterhouses.
Sec. 10.04.070. Operation of manufactories.
Sec. 10.04.080. Pig pens.
Sec. 10.04.090. Disposal of drainage.
Sec. 10.04.100. Individual sewage disposal systems or other receptacles.
Sec. 10.04.110. Burial and transit permits.
Sec. 10.04.120. Duties of sextons and undertakers.
Sec. 10.04.130. Physicians and midwives to make returns.
Sec. 10.04.140. Reserved.
Sec. 10.04.150. Violations.

Sec. 10.04.010. General powers.

The provisions of this chapter contemplate the general supervision by the health officer of all matters pertaining to the sanitary conditions of the city and the public institutions thereof over all questions of defective drainage, disinfecting and sanitary cleaning of all public places, and the abatement of all nuisances prejudicial to the health of the citizens, or any of them, and for the prevention of the development and spread of infectious and contagious diseases.

(Code 1966, § 5.04.005)

State law references—Duties of city board of health, NRS 439.460; powers of city board of health, NRS 439.470.

Sec. 10.04.020. Duties of health officer generally.

The health officer shall see that all laws and ordinances relating to the health and sanitary condition of the city and the regulations and orders of the board of health are strictly enforced and observed. He shall keep a full record of all transactions of the board, as well as all reports pertaining thereto. He shall have the power of a police officer in the enforcement of all sanitary laws, ordinances and regulations of the board of health of the affairs pertaining to his office, including mortuary and other statistics, with such observations and recommendations in relation to the sanitary conditions of the city as he may deem proper. He shall also render to the city council each month a brief report of the sanitary and health conditions of the city, together with such recommendations and observations as the board of health may desire to make.

(Code 1966, § 5.04.160)

State law reference—Duties of local health officers, NRS 439.480.

State law reference—Duties of local health officers, NRS 439.500.

Sec. 10.04.030. Nuisances generally.

Whatever is injurious to human life or health, whatever renders the air or food or water or other drink unwholesome, and whatever building, erection or part or cellar or basement thereof is overcrowded or not provided with adequate means of ingress and egress, or is not sufficiently

supported, ventilated, sewered, drained, cleaned or lighted, are declared to be nuisances and to be illegal; and every person having aided in creating or contributing to the same shall be deemed guilty of a violation of this section.

(Code 1966, § 5.04.010)

Cross reference—Nuisances, Ch. 8.22.

State law reference—Public nuisances, NRS 202.450 et seq.

Case law reference—The suppression of nuisances injurious to public health . . . . is among the most important duties of government. It is a governmental power as distinguished from matters of purely local concern. *Kelly v. Clark County Commissioners,* 61 Nev. 293, 127 P. (2d) 221 (1942).

Sec. 10.04.040. Disposal of rubbish.

It shall be unlawful for any person to deposit, throw, spill, or otherwise place in or upon any street, alley or highway, or public place in the city, any house refuse, offal, rubbish, garbage, dead animals, decaying vegetable or organic waste substance of any kind, and no putrid or decaying animal or vegetable matter shall be kept in any premises for more than twenty-four (24) hours.

(Code 1966, § 5.04.020)

State law reference—Deposit of unwholesome substance, NRS 202.180.

Sec. 10.04.050. Care of slaughterhouses.

(a) No person, without the consent of the board of health, shall build or use any slaughterhouse within the city limits, and the keeping and slaughtering of all animals and fowl, and the preparation of all meat, fish and fowl shall meet current federal, state and county district board of health standards and regulations.

(b) Every person owning, leasing or occupying any place, room or building wherein any cattle, sheep or swine or fowl have been or are killed and dressed shall, cause such place, room or building to conform to current federal, state and county district board of health standards and regulations pertaining to the preparation of foods and the slaughtering, killing, or dressing of animals.

(Code 1966, § 5.04.040)

State law reference—Insanitary conditions of slaughterhouses, NRS 583.040.

Sec. 10.04.060. Receptacles in slaughterhouses.

No blood-pit, dung-pit, offal-pit, or privy wall shall remain or be constructed within any slaughterhouse within the city limits.

(Code 1966, § 5.04.050)

Sec. 10.04.070. Operation of manufactories.

No person shall erect or maintain within the city limits any manufactory or place of business dangerous to life or detrimental to health, that is in noncompliance with any current federal, state or county district board of health standards and regulations or that is in noncompliance with the landuse plan of this city. All such establishments, where allowed, shall be kept clean

and wholesome so as not to be offensive or prejudicial to public health; nor shall any offensive or deleterious waste substance, refuse or injurious matter be allowed to accumulate upon the premises.

(Code 1966, § 5.04.060)

Sec. 10.04.080. Pig pens.

No pig pen shall be built or maintained within the city limits without first being in compliance with the land use plan of this city and after receiving approval from the board of health.

(Code 1966, § 5.04.070)

Sec. 10.04.090. Disposal of drainage.

No individual sewage disposal system, privy, vault, or reservoir into which a privy, watercloset, or sink is drained, shall be constructed, dug or permitted to remain within any section in the city which is provided with sewerage facilities.

(Code 1966, § 5.04.080)

Sec. 10.04.100. Individual sewage disposal systems or other receptacles.

No person shall maintain, use or permit to be used, any individual sewage disposal system or other receptacle for human excrement unless such individual sewage disposal system or other receptacle is approved and a permit obtained from the health officer.

(Code 1966, § 5.04.090)

Sec. 10.04.110. Burial and transit permits.

Every undertaker or person acting as undertaker in the final disposition of the remains of a dead person shall be responsible for completing a certificate of death, including certification of the cause of death, for that dead person, with the form prescribed by and in accordance with the applicable regulations of the board of health; and shall present the same to the local registrar of vital statistics and obtain a burial-transit permit thereupon; and he shall not remove any dead body until such burial-transit permit shall have been procured. No burial-transit permit shall be issued and no interments shall be made in the cemeteries of this city nor any other final disposition shall occur unless said local registrar is satisfied with the correctness and reliability of the certificate of death as presented. The local registrar shall have power to reject certificates of death which do not comply with the provisions of this section or the regulations of the board of health.

(Code 1966, § 5.04.110)

State law reference—Prerequisites to disposal of body, NRS 440.450 et seq.

Sec. 10.04.120. Duties of sextons and undertakers.

Every person who acts as a sexton or undertaker, or cemetery keeper, within the city limits, or has the charge or care of any tomb, vault, burying ground or other place for the reception of the dead, or where the bodies of any human beings are deposited, shall so conduct his business and so care for any such place above named as to avoid detriment or danger to the public

health; and every person undertaking preparations for the burial of a dead body where death resulted from any communicable disease shall adopt such precautions as the board of health may prescribe to prevent the spread of such disease.

(Code 1966, § 5.04.120)

Sec. 10.04.130. Physicians and midwives to make returns.

Physicians and midwives shall comply with the time periods required by regulation of the board of health in certifying deaths and births which occur in their practice. In the absence of an attendant, the parents shall insure that the birth of their child is reported to the local registrar of vital statistics within the time period required by regulation of the board of health.

(Code 1966, § 5.04.140)

Sec. 10.04.140. Reserved.

Editor's note—Ord. No. 5909, § 1, adopted March 28, 2007, repealed § 10.04.140, which pertained to privately owned wastewater treatment facilities. See also the Code Comparative Table.

Sec. 10.04.150. Violations.

Any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in Section 1.04.010; or

(2) Shall be subject to provisions of Chapter 1.05 of the Code.

(Ord. No. 5071, § 1, 11-9-99)

CHAPTER 10.06. FOOD HANDLERS*

Sec. 10.06.010. Basement kitchen facilities.

Sec. 10.06.010. Basement kitchen facilities.

(a) In any food establishment where a food product is prepared, handled, cooked, stored, packed, canned, processed, manufactured, sold, served, furnished, dispensed or distributed for human consumption for a price or without a price in a basement, subbasement, cellar or any other location completely or partially below the adjacent street grade as established by the city engineer, the following specifications must be met or exceeded:

(1) The structure of the basement, subbasement, cellar below the street grade shall be type "I," as defined in the Uniform Building Code, as adopted by chapter 14.04.

(2) The ceiling height of such basement shall be not less than nine feet from finished floor to finished ceiling.

(3) There shall be not less than two exits to stairs at opposite points in such basements.

(4) All portions of such basement food establishments shall be illuminated by natural or artificial light producing ten footcandles of illumination on all floor surfaces and 20 footcandles on all working surfaces.

(5) All portions of a basement food establishment shall be ventilated by mechanical means from a fresh air intake located on the roof of the structure or at least 30 feet above street grade. The volume of air supplied to the basement shall produce a positive pressure and shall provide a complete change of air each four minutes for the basement. Exhaust air shall be discharged through an exhaust outlet located on the roof of the building or at least 30 feet above street grade.

(6) No exposed pipes, fixtures or other plumbing apparatus shall pass overhead in any area of the basement food establishment where a food product is prepared, stored handled, cooked, packed, canned, manufactured, sold, served, furnished, dispensed, distributed or transported.

(7) Immediately adjacent to basement food establishments, there shall be provided separate rest rooms for each sex. Rest rooms shall contain toilets, hand basins, and be separated from the food establishment by an anteroom. The rest room and anteroom shall be equipped with self-closing doors. Rest rooms shall be ventilated by a mechanical exhaust system.

(8) In any location in the city where a basement food establishment operates below the grade of the sewer lines servicing the structure, there shall be provided a positive ejection system in duplicate, discharging to a sewage collection line flowing by gravity not more than one-half full at normal flow, approved by the health department for the removal of sewage from the basement.

(9) All openings to the basement food establishment shall be rodentproof.

(10) All walls and ceilings in the basement food establishment shall be smooth, tight and impervious and finished in a light color.

***Cross reference—**Business licenses and regulations, Tit. 4.

State law reference—Food and drink establishments, NRS Ch. 446.

(11) There shall be a type "I" wall with self-closing doors separating the basement food establishment from any portion of the basement not used in the preparation, storing, handling, cooking, packing, canning, manufacturing, selling, serving, furnishing, dispensing, distributing or transporting of food or food products.

(b) All basement food establishments shall be operated in accordance with and under the provisions of applicable NRS, city ordinances, rules and regulations of the state health department, and the city and county health department.

(c) Existing basement food establishments may continue to operate until they are abandoned. No new business license shall be issued to any basement food establishments unless a written, signed approval is issued for the operation of much establishment by the health department.

(d) The requirements for basement kitchen facilities, as contained in this section, may be modified in individual cases by the city council upon the recommendation of the health officer and the building inspector.

(Code 1966, § 5.16.010)

CHAPTER 10.08. ACCUMULATION AND DISPOSAL OF SOLID WASTE*

Sec. 10.08.010. Definitions.
Sec. 10.08.020. Unlawful dumping of waste matter.
Sec. 10.08.030. Unlawful to permit accumulations of waste matter, etc.
Sec. 10.08.040. Exclusive right to collect solid waste and recyclable materials in city; disposal.
Sec. 10.08.045. Mandatory use of solid waste and recyclable materials collection service within the city.
Sec. 10.08.050. Job hauling license necessary for swill collection.
Sec. 10.08.060. Reserved.
Sec. 10.08.070. Dumpster requirements in public rights-of-way.
Sec. 10.08.080. Cans and receptacles to be accessible for emptying.
Sec. 10.08.090. Violations.

Sec. 10.08.010. Definitions.

Unless otherwise provided, capitalized words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them in RMC chapter 5.90.

(Code 1966, § 5.28.010; Ord. No. 3069, § 1, 3-14-83; Ord. No. 5072, § 1, 11-9-99; Ord. No. 6261, § 1, 11-7-12)

Cross reference—Definitions generally, § 1.01.020.

Sec. 10.08.020. Unlawful dumping of waste matter.

It shall be unlawful for any person to dump, spill, throw, place or bury in any parcel of land, lot, street, highway, gutter, or in any alley or in any water or stream or in any canal or ditch within the limits of the city any solid waste, recyclable materials, excluded materials, or any deleterious or offensive substances (collectively, "waste matter").

(Code 1966, § 5.28.020; Ord. No. 6261, § 1, 11-7-12)

Sec. 10.08.030. Unlawful to permit accumulations of waste matter, etc.

It is unlawful for any person owning or occupying any building, lot or premises in the city to suffer, allow or permit to collect and remain upon any lot or premises, any waste matter; provided, however, that this provision shall not be construed as interfering with building under a building permit, or wood neatly piled for kitchen or household use.

(Code 1966, § 5.28.030; Ord. No. 6261, § 1, 11-7-12)

Sec. 10.08.040. Exclusive right to collect solid waste and recyclable materials in city; disposal.

(a) No person or entity other than the city, its duly authorized agents, servants, employees or contractors and its subcontractors shall i) collect collection materials in contractor's

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***Editor's note—**Ord. No. 6261, § 1, adopted November 7, 2012, amended Ch. 10.08, in its entirety, to read as herein set out. Prior to inclusion of said ordinance, Ch. 10.08 pertained to garbage, rubbish and waste matter. See also the Code Comparative Table.

State law references—Deposit of unwholesome substance, NRS 203.150; unlawful deposits of dirt, garbage and rubbish on public highway, NRS 202.185.

exclusive service area, ii) transport anywhere in the city collection materials collected in contractor's exclusive service area, or iii) deliver any collection materials collected in contractor's exclusive service area to any disposal, processing, recycling or similar facility, except as expressly provided under this article and the agreements. The preceding sentence is intended to be broadly interpreted to preclude, without limitation except as expressly provided in the agreements, any activity relating to the collection or transportation of collection materials from residences and commercial activities that is solicited, arranged, brokered, or provided by any person or combination of persons in exchange for the payment, directly or indirectly, of a fee, charge, rebate, discount, commission, or other consideration, in any form or amount. Notwithstanding any other provision of any agreement, the exclusive right of contractor shall not apply to excluded materials, exempted drop box materials, exempted hauler account materials and subject to and as provided in the agreements, excluded recyclable materials and exempted facility material delivered to exempted facilities. Contractors and other service providers may collect and transport excluded materials and exempted drop box materials in the exclusive service area and elsewhere in the city and may charge fees and charges for services as the service provider may elect.

(b) No person or entity other than the service provider under the disposal agreement shall accept, handle, process, recycle or dispose of any collection materials which are the subject of the exclusive rights granted under any agreement.

(Code 1966, § 5.28.040; Ord. No. 6261, § 1, 11-7-12)

Sec. 10.08.045. Mandatory use of solid waste and recyclable materials collection service within the city.

Every responsible person which accumulates or causes the accumulation of solid waste upon any premises in the city shall subscribe to the collection, hauling and disposal of solid waste pursuant to the provisions of RMC chapter 5.90 and the applicable agreements.

(Ord. No. 3069, § 2, 3-14-83; Ord. No. 5072, § 1, 11-9-99; Ord. No. 6261, § 1, 11-7-12)

Sec. 10.08.050. Job hauling license necessary for swill collection.

Any person accumulating garbage suitable for feeding to animals and keeping such garbage separate from all other solid waste and recyclable materials may contract for the hauling of only such garbage as may be suitable for feeding to animals with any person having a job hauling license issued by the city, and having for such purpose equipment that is staunch, tight and closely covered so as to wholly prevent leakage or smell, and it is unlawful for any such person to haul any such garbage in equipment that is not of such type as to wholly prevent leakage or smell.

(Code 1966, § 5.28.050; Ord. No. 6261, § 1, 11-7-12)

Sec. 10.08.060. Reserved.

Editor's note—Ord. No. 6294, § 1, adopted May 22, 2013, repealed § 10.08.060, which pertained to solid waste and recyclable materials cans. See also the Code Comparative Table.

Sec. 10.08.070. Dumpster requirements in public rights-of-way.

(a) GENERAL REQUIREMENTS.

Dumpsters and large mobile receptacles shall be kept locked shut except when loading or unloading, must not leak, shall not overflow, shall be kept uniformly painted and free of

graffiti, and the area around the container must be kept free of trash and debris. Dumpsters shall be secured to prevent unintentional rolling. Dumpsters with lockable lids shall be made available to all commercial users who request such containers at a special service charge set forth in the applicable rate schedule.

(b) PERMITS IN PUBLIC RIGHTS-OF-WAY.

Dumpsters or other large mobile receptacles shall not be placed in the public right-of-way unless the user first obtains a permit from the City of Reno.

(1) Application process.

Applications shall be made to the code enforcement division of the community development department. The application shall:

(i) Be upon forms provided by the code enforcement division, which is hereby authorized to require information reasonably necessary to carry out the intendments of this section;

(ii) Be accompanied by the full amount of the fees chargeable for such permit.

(2) Approval process.

Following review and investigation, the code enforcement division shall recommend either approval or denial of the application. The code enforcement division may require reasonable conditions on the placement or movement of the dumpster as may be necessary to keep the right-of-way fit for its intended purposes. The code enforcement division thereafter shall either issue a one-year permit or notify the applicant of denial, including the reason for such denial. Notification shall be sent certified mail, return receipt requested, to the address provided on the permit application or by personal service to the applicant.

(3) Grounds for denial.

Any original or renewal application for a permit may be denied for the following causes:

(i) The application or any other document is incomplete or contains false, misleading or fraudulent statements;

(ii) The applicant or anyone in privity with the applicant has been subject to disciplinary action with respect to a permit to place a dumpster or other large mobile receptacle in a public right-of-way;

(iii) The location of the dumpster or mobile receptacle presents an unreasonable safety or health hazard;

(iv) The appurtenant premises has sufficient room, without causing unreasonable expense or interruption, to store the dumpster or large mobile receptacle; or

(v) The appurtenant premises undergoes structural rebuilding or remodeling costing in excess of $50,000.00.

(4) Violations; grounds for suspension or revocation.

Violators shall be subject to the provisions of Chapter 1.05 of the Code. In addition, any permit issued pursuant to this title may be revoked, suspended, or summarily suspended by the code enforcement division utilizing the procedures for such discipline set forth in RMC 4.04.190, for any of the following causes:

(i) Material fraud, misrepresentation or false statement contained in the application for a permit;

(ii) Any violation of the provisions of this article or the Reno Municipal Code; or

(iii) The non-payment of any amounts owed to the city or the franchisee.

(5) Appeals.

Appeals of denials, suspensions or revocations shall be conducted in conformance with the provisions for appeals set forth in Title 4.

(Code 1966, § 5.28.070; Ord. No. 3069, § 4, 3-14-83; Ord. No. 5072, § 1, 11-9-99; Ord. No. 6261, § 1, 11-7-12; Ord. No. 6294, § 2, 5-22-13)

Sec. 10.08.080. Cans and receptacles to be accessible for emptying.

All receptacles for the receiving and holding of all solid waste and recyclable materials shall at all times be located in such place as to be readily accessible for removing and emptying the matter therefrom, but they shall not be placed within the limits of any street or alley, or where they will become a public nuisance or in any degree offensive. In all cases of disputes or complaints arising from or concerning the place where such receptacles shall be placed while awaiting removal of their contents, the district health officer shall forthwith designate the place, and the decision of such officer shall be final. It is unlawful to keep such a receptacle in a locked building or enclosure.

(Code 1966, § 5.28.080; Ord. No. 3069, § 5, 3-14-83; Ord. No. 6261, § 1, 11-7-12)

Sec. 10.08.090. Violations.

Any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in section 1.04.010; or

(2) Shall be subject to provisions of Chapter 1.05 of the Code.

(Ord. No. 5072, § 1, 11-9-99; Ord. No. 6261, § 1, 11-7-12)

CHAPTER 10.10. AIR POLLUTION*

Sec. 10.10.010. Air pollution regulations adopted.
Sec. 10.10.020. Burners and incinerators.

Sec. 10.10.010. Air pollution regulations adopted.

The Air Pollution Control Regulations, August 19, 1975, Edition, adopted by the district board of health of Reno, Sparks and Washoe County, which regulations are marked Exhibit "A" and which are on deposit in the city clerk's office, are adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Code 1966, § 5.32.010)

Sec. 10.10.020. Burners and incinerators.

The following places, things and acts are hereby declared to be unlawful:

(a) Burning refuse, sawdust or other material in such a manner as to cause ashes, smoke, sawdust, soot or cinders to be cast or fall upon the streets or alleys of the city, or upon the premises of any considerable number of persons in such quantity as to injure or endanger the property, health, comfort or repose of such persons;

(b) Burning refuse, sawdust or other material in such a manner as to cause or permit fire, sparks, burning or ignited material to be cast or fall upon the streets or alleys of the city, or upon the premises of any considerable number of persons in such quantity or in such a manner as to injure or endanger the property, lives, health, comfort or reposes of such persons;

(c) Maintaining or operating in a residential district of the city any burner or incinerator used for burning refuse, sawdust or other material in large quantities;

(d) Maintaining or operating any burner or incinerator used for burning refuse, sawdust, or other material wherein such refuse, sawdust or other material is forced into the combustion chamber of such burner or incinerator by a draft or force of air causing fire, sparks, burning or ignited material to come out of emit from the burner or incinerator in large quantities;

(e) Maintaining or operating any burner or incinerator which emits or throws off fire, sparks, burning or ignited material, ashes, smoke, sawdust, soot or cinders in such quantities or in such a manner as to injure or endanger the property, health, comfort or repose of any considerable number of persons.

(Ord. No. 4650, § 1, 7-9-96)

***State law reference—**Municipal regulation of air pollution, NRS 268.410.
Cross reference—Business licenses and regulations, Tit. 4.

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CHAPTER 10.12. RESERVED*

*__Editor's note—__Ord. No. 4445, § 1, adopted Nov. 22, 1994, repealed Ch. 10.12, §§ 10.12.010—10.12.100, which pertained to animal hospitals. See the Code Comparative Table.

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CHAPTER 10.14. CHILD CARE FACILITIES*

Sec. 10.14.010. Licensing agency designated.
Sec. 10.14.140. Building and life safety requirements.

Sec. 10.14.010. Licensing agency designated.

The Washoe County Welfare Department is hereby designated as the child care licensing agency of the city pursuant to subsection 2 of NRS 432A.131 and subsection 1 of NRS 277.110.

(Ord. No. 2928, § 1, 4-13-81)

Sec. 10.14.140. Building and life safety requirements.

(a) COMPLIANCE WITH TECHNICAL CODES.

All child care facilities must comply with all applicable sections of the currently adopted Uniform Building Code, National Electrical Code, Uniform Plumbing Code, Uniform Fire Code, Life Safety Code, environmental health and zoning codes. Where there is a difference between the state and local code, the more stringent will apply.

(b) SUBMITTAL OF BUILDING PLANS TO COUNTY WELFARE DEPARTMENT.

Whenever applying for a building permit for construction of or additions or alterations to, or remodeling of a child care facility, a draft copy of the building plans shall be submitted to the county welfare department for review.

(c) INSPECTIONS.

At the time of original application, the child care facility shall be inspected and approved by the fire department and the building and safety department having jurisdiction. Thereafter and at least annually, the designated department will inspect the child care facility to insure that applicable fire and safety standards are being met and maintained. The department may request a fire inspection at any time it deems appropriate.

(d) USE OF GROUND FLOOR ONLY FOR CHILDREN; EXCEPTION.

Only the ground floor of any building of a child care facility shall be used by children unless a specific exception is granted by the fire marshal, the director of building and safety and the director of social services.

(Ord. No. 3818, 6-12-89)

***Editor's note—**Section 1 of Ord. No. 2927, adopted April 13, 1981, repealed Code 1966, Ch. 5.40, §§ 5.40.010—5.40.230, concerning child care facilities, codified as Ch. 10.14, Art. I, §§ 10.14.010—10.14.200, and Art. II, §§ 10.14.210—10.14.310 hereof. Section 1 of Ord. No. 2928, also adopted April 13, 1981, added a new § 5.40.010 to the 1966 Code, included herein as § 10.14.010.

Cross reference—Business licenses and regulations, Tit. 4.

State law reference—Licensing and registration of child care facilities by counties and cities, NRS 432A.131.

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Title 12 PUBLIC WORKS AND UTILITIES*

Ch. 12.04. Reserved
Ch. 12.06. Grades and Elevations, §§ 12.06.010—12.06.080
Ch. 12.08. Street Excavations, §§ 12.08.010—12.08.120
- Art. I. In General, §§ 12.08.010—12.08.040
- Art. II. Permit, §§ 12.08.050—12.08.120

Ch. 12.10. Driveways and Curbs, §§ 12.10.010—12.10.050
Ch. 12.12. Water Service, §§ 12.12.010—12.12.020
Ch. 12.14. Water Conservation, §§ 12.14.010—12.14.210
Ch. 12.16. Sewer Service, §§ 12.16.010—12.16.3500
- Art. I. In General, §§ 12.16.010—12.16.015
- Art. II. Sewer Service Charge Regulations, §§ 12.16.020—12.16.490
  - Div. 1. Generally, §§ 12.16.020—12.16.100
  - Div. 2. Sewer User Charges, §§ 12.16.110—12.16.160
  - Div. 3. Wastewater Surcharge, §§ 12.16.170—12.16.200
  - Div. 4. Reserved, §§ 12.16.210—12.16.270
  - Div. 5. Connection Fees, §§ 12.16.280—12.16.370
  - Div. 6. Billing, Collection and Enforcement of Sewer User Charges, §§ 12.16.380—12.16.455
  - Div. 7. Wastewater Facilities Construction, §§ 12.16.460—12.16.490
- Art. III. Regulation of Wastewater Discharge, §§ 12.16.500—12.16.817
  - Div. 1. Generally, §§ 12.16.500—12.16.525
  - Div. 2. Wastewater Regulations, §§ 12.16.530—12.16.605
  - Div. 3. Wastewater Discharge Permits, §§ 12.16.610—12.16.670
  - Div. 4. Reporting and Notification Requirements, §§ 12.16.680—12.16.790
  - Div. 5. Compliance and Enforcement, §§ 12.16.800—12.16.817
- Art. IV. Storm Water Management and Discharge Control, §§ 12.16.820—12.16.3500
  - Div. 1. In General, §§ 12.16.820—12.16.895
  - Div. 2. Storm Water Regulations and Requirements, §§ 12.16.895—12.16.1800
  - Div. 3. Storm Water Discharge Permits, §§ 12.16.1900—12.16.2100
  - Div. 4. Enforcement, §§ 12.16.2200—12.16.3500

Ch. 12.18. Identification of Sewer Service Lateral, §§ 12.18.010—12.18.060
Ch. 12.20. Sidewalk, Curb and Gutter or Trail Reconstruction, §§ 12.20.005—12.20.050
Ch. 12.22. Drainage and Waterways, §§ 12.22.010—12.22.050
Ch. 12.24. Reclaimed Water Service, §§ 12.24.010—12.24.080
Ch. 12.26. Conditions for Small Cell Deployment, §§ 12.26.010—12.26.060

***Charter reference—**Local improvements, art. VI.

Cross references—Any ordinance dedicating, accepting, naming, establishing, locating, relocating, opening, widening, improving or vacating any street or other public way saved from repeal, § 1.01.070(8); any ordinance assessing cost of constructing or reconstructing streets and sidewalks saved from repeal, § 1.01.070(1); administration. Tit. 2; franchises, Ch 4.22; removal of snow from sidewalks, § 8.04.040; plumbing code, Ch. 14.08.

Ch. 12.28. Maintenance Districts of Landscaping, Public Lighting, and Security Walls, §§ 12.28.010—12.28.985
[Art. I. In General], §§ 12.28.010—12.28-190
Art. II. Maintenance District 1, §§ 12.28.200—12.28.290
Art. III. Maintenance District 3, §§ 12.28.300—12.28.390
Art. IV. Maintenance District 4, §§ 12.28.400—12.28.490
Art. V. Maintenance District 2, §§ 12.28.500—12.28.590
[Art. VI. Maintenance District 5], §§ 12.28.600—12.28.690
Art. VII. Reserved, §§ 12.28.700—12.28.790
Art. VIII. [Maintenance District 7], §§ 12.28.800—12.28.855
Art. IX. Administrative Maintenance Districts, §§ 12.28.900—12.28.985
Ch. 12.30. Downtown Streetscape Design Standards, §§ 12.30.010—12.30.060

CHAPTER 12.04. RESERVED*

*__Editor's note—__Ord. No. 6343, § 1, adopted September 10, 2014, repealed Ch. 12.04, § 12.4.010, which pertained to adoption of standard specifications for public works construction. See also the Code Comparative Table.

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CHAPTER 12.06. GRADES AND ELEVATIONS*

Sec. 12.06.010. Base or plane of reference established.
Sec. 12.06.020. Primal bench mark.
Sec. 12.06.030. Establishment of street grades and profile maps.
Sec. 12.06.040. Description of official elevations.
Sec. 12.06.050. Elevation of curbs.
Sec. 12.06.060. Shape and elevation of cross-sections.
Sec. 12.06.070. Longitudinal slopes or grades.
Sec. 12.06.080. Street excavation permit obtained; alignment and grade approval from city engineer; service costs.

Sec. 12.06.010. Base or plane of reference established.

The official city base or plane of reference for elevations in the city is hereby fixed at a point 4499.271 feet above sea level.

(Code 1966, § 7.04.010)

Sec. 12.06.020. Primal bench mark.

The brass ring stamped "City of Reno Monument," set at the northwest corner of the city hall reflecting pool facing South Center Street, is hereby declared to be the primal bench mark of the city, and the elevation thereof is 4499.400 feet above sea level.

(Code 1966, § 7.04.020)

Sec. 12.06.030. Establishment of street grades and profile maps.

Whenever the city engineer shall deem it advisable to establish a grade on any street where no grade has been heretofore established, or to change any established grade, he shall cause the necessary survey to be made, and prepare and file in his office a profile map of such proposed grade. Whenever any such profile map shall have been filed in the office of the city engineer the grade on any such street shall thereafter be considered as established as shown on such profile map. It shall be unlawful for any person to erect or to construct or commence the erection or construction of any building or other structure upon the line of any street, where the grade of the street has already been established, without first making application to the city engineer to indicate the grade of the street upon which the building or other structure is to be erected or to thereafter build to any grade other than that indicated by the city engineer.

(Code 1966, § 7.04.030)

Sec. 12.06.040. Description of official elevations.

All official elevations hereafter established in the city shall be described with reference to their elevations as compared with the official base, in feet and decimal parts of a foot, or the elevation as set by the United States Coast and Geodetic Survey. No grade or official elevation shall be established other than in the manner described in this chapter.

(Code 1966, § 7.04.040)

***Cross reference—**Any ordinance establishing or prescribing grades of streets saved from repeal, § 1.07.070(9).

Sec. 12.06.050. Elevation of curbs.

The elevation of curbs shall be fixed at the time of filing of the profile map in the office of the city engineer as provided for in section 12.06.030, and the slope of the property line to the curb across the sidewalk shall not be less than one-eighth of an inch per foot.

(Code 1966, § 7.04.050)

Sec. 12.06.060. Shape and elevation of cross-sections.

The shape of the cross-section and the elevations thereof shall be fixed at the time the street is improved.

(Code 1966, § 7.04.060)

Sec. 12.06.070. Longitudinal slopes or grades.

The longitudinal slope or grade of the street shall be on straight lines connecting the points where the elevations are fixed or shall hereafter be fixed as provided in this chapter; excepting where the grade breaks in the block between intersecting streets, then the roadway and curbs shall be on vertical curves of such length and kind that the allowable cross slope of the sidewalk will be maintained.

(Code 1966, § 7.04.070)

Sec. 12.06.080. Street excavation permit obtained; alignment and grade approval from city engineer; service costs.

(a) It shall be unlawful for any person to construct or reconstruct a sidewalk, curbing, gutter or any other street improvement whatsoever within the public right-of-way without first making application for a street excavation permit and gaining approval from the city engineer. Any person violating any of the provisions of this section:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in section 1.04.010; or

(2) Shall be subject to provisions of Chapter 1.05 of the Code.

(b) Responsibility for establishment of line and grade to control any of the purposes set forth in subsection (a), shall be with the permittee, provided, however, the city shall retain the option to establish control at the discretion of the city engineer.

(c) In the event the city engineer exercises the option to establish control as provided for in section (b), the permittee shall pay a nonrefundable service charge to the city as a reimbursement of its costs to provide this service. The service charge will be set by city council by resolution during the budget process.

(Code 1966, §§ 7.04.090, 7.04.100; Ord. No. 4117, § 1, 6-25-91; Ord. No. 4869, § 1, 5-12-98; Ord. No. 5073, § 1, 11-9-99)

CHAPTER 12.08. STREET EXCAVATIONS*

Art. I. In General

Sec. 12.08.010. Scope.
Sec. 12.08.020. Specifications.
Sec. 12.08.030. Restrictions on doing work.
Sec. 12.08.040. Backfilling and restoration

Art. II. Permit

Sec. 12.08.050. Required.
Sec. 12.08.060. Application.
Sec. 12.08.070. State permission for federal and state highways.
Sec. 12.08.080. Fees.
Sec. 12.08.090. Bond required.
Sec. 12.08.100. Transfer.
Sec. 12.08.110. Term
Sec. 12.08.120. Revocation.

ARTICLE I. IN GENERAL

Sec. 12.08.010. Scope.

This chapter applies only to those streets, highways and public rights-of-way accepted by the city council as an integral part of the city.

(Code 1966, § 7.08.010)

Sec. 12.08.020. Specifications.

At the time of issuance of a permit as provided in this chapter, the city engineer shall supply the person obtaining such permit the specifications designating the method of street cutting, excavation, disposal of excavated material, backfilling, and the replacement of concrete or asphaltic materials. It is unlawful for any person to deviate from the provisions of these specifications.

(Code 1966, § 7.08.060)

Sec. 12.08.030. Restrictions on doing work.

(a) INTERFERENCE WITH TRAFFIC.

No opening or excavation in any street shall extend beyond the centerline of the street without providing adequate traffic facilities across the opened or excavated portion of the street so as to cause as little inconvenience as possible to the general public.

(b) INTERFERENCE WITH EXISTING FACILITIES.

The permittee under this chapter will not interfere with any existing facilities without the consent of the owner of the facility. Pipe drains, culverts, sewer lines, signal conduits or other facilities owned by the city shall not be disturbed without the approval of the city engineer, and the permittee will do everything necessary to support, sustain and protect

*__State law reference—__Excavations, NRS Ch. 455.

the facilities. If city facilities are damaged, they shall be repaired at the permittee's expense.

(c) LIMITED TO ONE BLOCK.

No more than one city block, measured longitudinally, shall be opened in any street at any one time, except by special permission of the city engineer.

(d) DISTURBANCE OF MONUMENTS.

Monuments of concrete, iron or other lasting material set for the purpose of locating or preserving the lines of any street or property subdivision, or a precise survey reference point or a permanent survey bench mark within the city shall not be removed or disturbed or caused to be removed or disturbed unless permission to do so is first obtained in writing from the city engineer.

(e) PROTECTION OF ADJOINING PROPERTIES.

The permittee will at all times and at his own expense preserve and protect from injury any properties adjoining the work.

(f) INTERFERENCE WITH DRAINAGE SYSTEM.

When work performed by the permittee interferes with the established drainage system of any street, provision shall be made by the permittee to provide proper drainage to the satisfaction of the city engineer.

(g) REMOVAL OF MATERIAL FROM STREET.

When any earth, gravel or other excavated material is caused to roll, flow or wash upon any street, the permittee shall cause the same to be removed from the street within 24 hours after deposit. If the earth, gravel or other excavated material so deposited is not removed, the city engineer shall cause such removal and the cost incurred shall be paid by the permittee.

(h) BARRIERS, WARNING DEVICES.

Every permittee shall place around the project such barriers, barricades, lights, warning flags and danger signs as shall be determined by the city engineer to be necessary for the protection of the public. Whenever any permittee fails to provide proper safety devices, within a reasonable time after being notified, such devices may be installed and maintained by the city. The cost incurred shall be paid by the permittee.

(i) ACCESS TO ESSENTIAL FACILITIES AND PRIVATE DRIVEWAYS.

Free access must be provided at all times to fire hydrants and fire stations, and all other vital and essential public structures, equipment and facilities; access to private driveways shall be provided.

(j) PLACEMENT OF EXCAVATED MATERIAL.

Excavated materials shall be laid neatly along the side of the trench and kept trimmed so as to cause as little inconvenience as possible to public travel. In order to expedite the flow of traffic or to abate a dirt or dust nuisance, the city engineer may require the permittee to provide toe boards or bins; and if the excavated area is muddy and causes inconveniences to pedestrians, temporary wooden plank walks shall be installed by the permittee as directed by the city engineer.

(k) CONDITIONS FOR GRANTING PERMITS.

In granting any permit, the city engineer may attach such other conditions thereto as may be reasonably necessary to prevent damage to public or private property or to prevent the

operation from being conducted in a manner hazardous to life or property or in a manner likely to create a nuisance. Such conditions may include but shall not be limited to:

(1) Limitations on the hour, the day and the period of the year in which the work may be performed;

(2) Restrictions as to the size and type of excavating equipment;

(3) Designation of routes upon which materials may be transported;

(4) The manner of removal of excavated materials;

(5) Requirements as to the control of dust nuisance, the cleaning of street, the prevention of noise, and other results offensive or injurious to the neighborhood, the general public, or any portion thereof; and

(6) Regulations as to the use of streets in the course of the work.

(Code 1966, § 7.08.030)

Sec. 12.08.040. Backfilling and restoration.

(a) GENERALLY.

All pavement cuts, openings and excavations shall be properly made, backfilled and temporarily surfaced by the permittee under this chapter according to the city specifications. Temporary surfacing must be installed within 24 hours after the trench is backfilled.

(b) NOTICE OF BEGINNING OF BACKFILLING.

The city engineer must be notified by the permittee during the 48 hour period preceding beginning of backfilling of the date and approximate time at which backfilling will be begun.

(c) TEMPORARY PATCHING.

Temporary patching shall be done by the permittee, and it is the responsibility of the permittee to maintain the temporary patch for a period not to exceed 60 days, or until weather conditions permit placement of the permanent patch.

(d) FINAL RESTORATION OF PAVING SURFACE.

The work of final restoration of the paving surface shall be performed by the city under the direction of the city engineer.

(e) RESURFACING INSTEAD OF PATCHING.

If the city engineer finds that paving surfaces adjacent to the street opening may be damaged where trenches are made parallel to the street, or where a number of cross trenches are laid in close proximity to one another or where the equipment used may cause such damage, he may require a negotiated contribution from the permittee for the resurfacing in place of patching of such street if the total area of the proposed patch or probably damaged area exceeds 25 percent of the total pavement surfacing between curb faces or between concrete gutter edges in any block. Such negotiations shall be carried on and contributions agreed upon prior to issuance of a permit. Such contribution shall be in lieu of the standard permit fee.

(f) PERFORMANCE OF WORK DILIGENTLY.

After the excavation is commenced, the work to be performed under the permit shall be prosecuted with due diligence to completion.

(g) INSPECTIONS.

The city engineer shall make such inspections as he may deem necessary of all work authorized by a permit.

(h) ABANDONMENT OF FACILITIES.

If the permittee abandons any facilities within the public area, the city may require the permittee to remove at his expense, or to reimburse the city for removal of such abandoned facilities.

(i) DEPTH OF FACILITIES.

The top of any structure or facility, excepting entrances thereto, shall not hereinafter be placed less than eighteen (18) inches below the surface of a public area unless approved by the city engineer.

(j) CERTIFICATE OF FINAL INSPECTION.

The permittee shall notify the city engineer in writing upon completion of all work accomplished under the provisions of the permit. A certificate of final inspection will be issued by the city engineer to each permittee no sooner than three years after the permanent restoration of the excavation has been made, provided the work authorized by the permit has been performed according to city specifications. Any settlement in a restored area which has occurred within the three year period, following completion of the permanent restoration shall be repaired by the permittee or any expense incurred by the city in correcting such settlement shall be paid by the permittee unless the permittee submits proof satisfactory to the city engineer that the settlement was not due to defective backfilling.

(Code 1966, § 7.08.040)

ARTICLE II. PERMIT

Sec. 12.08.050. Required.

No person shall excavate, tunnel under or fill in, any sidewalk, curb, gutter, public street, highway, avenue, alley or public right-of-way within the city limits, without first obtaining a written permit to do so from the city engineer.

(Code 1966, § 7.08.010)

Sec. 12.08.060. Application.

(a) The permit under this article shall be requested upon the application form as provided at the office of the city engineer; and the application, when approved by the city engineer, will constitute the permit.

(b) In the event of an emergency occurring after office hours, at night, on Sundays, or legal holidays, when an emergency excavation may be necessary for the protection of public or private property; the same can be made after the person making such excavation has notified the police and fire departments of such work; an application for a written permit as provided herein shall be made on the next succeeding business day whether the emergency work had been completed or not.

(Code 1966, § 7.08.010)

Sec. 12.08.070. State permission for federal and state highways.

If any person desires to excavate, tunnel under, or fill in any federal aid highway or any highway controlled by the state within the city, he shall, before making application for a written permit from the city engineer as herein provided, receive permission from the state highway engineer to make such excavation, tunneling or filling.

(Code 1966, § 7.08.010)

Sec. 12.08.080. Fees.

(a) Before a permit is issued as set forth in this article, the director of public works/city engineer shall collect from the applicant an excavation permit fee to pay for the cost of inspection and permanent patching in accordance with a set list of fees approved by the city council and kept on file in the office of the director of public works/city engineer.

(b) The excavation permit fee shall be increased whenever an excavation is to be made in a street or alley on which the permanent surfacing is less than five years old. The amount of the increase shall be 300 percent of the fee during the first year form the date of the street paving was accepted by the city and the amount of the increase shall thereafter be reduced by 60 percentage points on each annual anniversary of the date of acceptance.

(c) The excavation permit fee is not intended to cover or pay for any costs required for the repair or replacement of any improvement other than the surface of the street or alley affected by the excavation. It is the responsibility of the permittee to repair or replace any such removed, damaged or disturbed existing improvement.

(d) For the purpose of computing the amount of the fee, the director of public works/city engineer shall rely upon information listed in the excavation permit application to determine the size of area to be excavated. The area shall be computed from the linear measurement of the length and the width of the opening as shown in the application with each such measurements increased a minimum of one and one-half feet. Provided, however, if excessive cave-in occurs, field measurements shall be utilized to determine the size of the area excavated.

(e) If a work of excavation begins prior to obtaining a permit, the excavation permit fee shall be triple the amount that would otherwise be due. If a subsequent offense occurs within a five-year period from the first offices, the permit fee shall be quadruple the amount that would otherwise be due if no such offense has occurred.

(f) An additional separate sewer lateral connection inspection fee shall be charged for each new or replaced sewer lateral. The fee will be charged in accordance with a set list of fees approved by the city council and kept on file in the office of the director of public works/city engineer.

(g) The director of public works/city engineer may, for good cause, modify the provisions of this section.

(Code 1966, § 7.08.020; Ord. No. 4849, § 1, 2-24-98; Ord. No. 6198, § 1, 8-24-11)

Sec. 12.08.090. Bond required.

(a) Any person obtaining a permit under this article shall, before renewing or in any manner changing the surface of the sidewalk, curb, gutter, street, highway, avenue or alley, execute to the city a bond, to be approved by the city attorney, in such sum as shall be designated

by the city engineer as necessary for the proper protection of the city, conditioned that the obligors of the bond will pay to the city the amount of the bond, should the person obtaining such permit fail, neglect, or refuse to complete the excavating, or filling in, the sidewalk, curb, gutter, public street, highway, avenue or alley in proper conditions to the satisfaction of the city engineer after the work provided for in the permit has been finished; provided, however, that instead of special bonds to cover particular work, any person intending to make excavations in sidewalks, curbs, gutters, public streets, alleys, or any public places in the city may make and maintain with the city a general bond in the sum of $5,000.00, which general bond shall be conditioned and used for the same purpose as the special bond hereinbefore described in this section, covering all work to be done instead of any particular piece of work; and while such general bond is maintained at the sum of $5,000.00, such person shall not be required to make the special bond previously provided in this section, but shall be required to comply with all the other provisions of this chapter.

(b) Before a permit shall be issued under this article, any applicant, with the exception of all public utilities under the jurisdiction of the state public service commission, shall file with the city clerk, upon review and approval of the city attorney, a certificate of insurance showing a minimum combined single limit comprehensive liability insurance policy of $1,000,000.00, such policy to include but not be limited to collapse and underground damage.

(c) Before a permit shall be issued under this article, any applicant, with the exception of all public utilities under the jurisdiction of the state public service commission, shall file with the city clerk, upon review and approval of the city attorney, a payment bond in a sum as shall be designated by the city engineer if the applicant has any unpaid or underpaid account with the city stemming from the issuance of previous permits under this article which account is delinquent for a period of 30 days or more following presentations. The amount of the bond will be based upon either an average of the previous delinquent accounts or, if a single instance, the amount of the current delinquency.

(Code 1966, § 7.08.050; Ord. No. 4566, § 1, 10-10-95)

Sec. 12.08.100. Transfer.

Permits under this article are nontransferable from one person to another and the work shall not be made in any place other than the location specified in the permit.

(Code 1966, § 7.08.010)

Sec. 12.08.110. Term.

Work for which a permit has been issued under this article shall commence within 15 calendar days after issuance; if not so commenced, the permit shall be automatically terminated unless the permittee applies to the city engineer for an extension of time within which to commence work, and if such an extension is granted, the original permit shall remain in force for the period of time specified in the extension. Every permit shall expire at the time stated in the permit at which time the excavation must be closed and brought to grade unless an extension of time is granted by the city engineer. Permits which terminate may be renewed only upon payment of an additional permit fee as originally required.

(Code 1966, § 7.08.010)

Sec. 12.08.120. Revocation.

The city engineer may revoke any permit for violation of any provision of the permit, provision of this chapter, or provision of any other applicable ordinance relating to this work.

(Code 1966, § 7.08.010)

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CHAPTER 12.10. DRIVEWAYS AND CURBS

Sec. 12.10.010. Construction of driveways.
Sec. 12.10.020. Obstruction of drains.
Sec. 12.10.030. Curb cuts.
Sec. 12.10.040. Unlawful to drive across curbs.
Sec. 12.10.050. Violations.

Sec. 12.10.010. Construction of driveways.

It is unlawful for any person to construct, leave, place or cause, permit or suffer to be placed any planks, metal, or other structure, article or thing of whatever nature on any street in the city, to be used as a driveway for driving any vehicle over the curb on any street in the city; provided, however, that in constructing a driveway from the street over the sidewalk on any street in the city, the driveway must be constructed by removing the curbing and paving that portion of the street between the inner edge of the sidewalk and the gutter line for the full width of the driveway or the full width of where the curbing was removed, the pavement to be not less than six inches in thickness, and to meet the approval of the city engineer; provided, further, that in constructing the driveway or driveways, the flow line of the gutter shall not be obstructed in any manner whatsoever.

(Code 1966, § 7.12.020)

Sec. 12.10.020. Obstruction of drains.

It is unlawful for any person to construct, leave, place or deposit, or cause, permit or suffer to be left, placed or deposited, in or upon any street or alley in the city, any structure, article or thing whatsoever, that will obstruct any gutter, pipeline or waterway used or serving as a drain from the streets or alleys in the city.

(Code 1966, § 7.12.010)

Sec. 12.10.030. Curb cuts.

(a) Curb cuts installed for the purpose of ingress to and egress from residential property shall not exceed 15 feet in width; provided, however, that this limitation may be deviated from upon application in writing directed to the city engineer, together with a plan, and approval having been granted on the application by the city engineer, the city manager and the chief of police.

(b) Curb cuts for ingress to and egress from business property shall not be made until an application in writing together with a detailed plan depicting the property to be serviced, the approximate location of all buildings or structures on the property, and the location of the proposed curb cuts, shall have been filed with the city engineer and approval thereof having been given by the city engineer, the city manager and the chief of police.

(c) If curb cuts are proposed to be made on or in any federal-aid highway or highway controlled by the state, the person desiring to make such curb cut shall first receive permission from the state highway engineer before making application to the city engineer in the manner herein provided.

(Code 1966, § 7.12.030)

Sec. 12.10.040. Unlawful to drive across curbs.

It shall be unlawful for any person to drive or propel any vehicle over or across any curbs, gutters or sidewalks in the city, unless driveways, as provided in this chapter, have been constructed across the same.

(Code 1966, § 7.12.040)

Sec. 12.10.050. Violations.

Any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in section 1.04.010; or

(2) Shall be subject to provisions of Chapter 1.05 of the Code.

(Ord. No. 5074, § 1, 11-9-99)

CHAPTER 12.12. WATER SERVICE

Sec. 12.12.010. Requirements for installation of service pipes.
Sec. 12.12.020. Installation of service pipes prior to paving.

Sec. 12.12.010. Requirements for installation of service pipes.

All service pipes connecting with water mains in the city hereafter installed, repaired, replaced or maintained, must be laid at least 2½ feet below the surface of the ground and be so arranged that the supply to each separate house or premises may be controlled by a separate stopcock placed within and near the line of the street curb.

(Code 1966, § 7.16.010)

Sec. 12.12.020. Installation of service pipes prior to paving.

Service pipes connecting with water mains shall be installed along each and every street, avenue and alley of the city, prior to the paving or repaving, macadamizing or remacadamizing, surfacing or resurfacing of the same, upon reasonable notice being given to the person owning or in control of such water mains and service pipes that such paving or repaving, macadamizing or remacadamizing, surfacing or resurfacing is to be done.

(Code 1966, § 7.16.010)

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CHAPTER 12.14. WATER CONSERVATION*

Sec. 12.14.010. Purpose and intent.
Sec. 12.14.020. Authority.
Sec. 12.14.030. Definitions.
Sec. 12.14.040. Enforcement.
Sec. 12.14.050. Waste of water prohibited.
Sec. 12.14.060. Installation of water facilities that bypass or hamper normal operation of water measurement or flow-restricting devices prohibited.
Sec. 12.14.070. Accidental wastage of water; notice of violation a precondition to finding of violation.
Sec. 12.14.080. Furnishing water that is used in violation of this chapter prohibited.
Sec. 12.14.085. Prohibited uses of water and planting of lawns.
Sec. 12.14.090. Planting or installing new lawns or using seed or hydroseed unlawful during certain time periods.
Sec. 12.14.095. Conditions constituting the wasteful use of water under emergency conditions.
Sec. 12.14.100. Hotels, motels and restaurants required to post notice of a declared water scarcity condition.
Sec. 12.14.110. Presumption of a violation.
Sec. 12.14.120. Notice of infraction—Issuance.
Sec. 12.14.130. Same—Form.
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Sec. 12.14.160. Liability.
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Sec. 12.14.175. Same—Notice.
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Sec. 12.14.190. Commencement of civil action—Procedure.
Sec. 12.14.200. Same—Time limit.
Sec. 12.14.210. Schedule of civil fines.
Sec. 12.14.220. Schedule of civil fines upon adoption and publication of a resolution declaring a water emergency pursuant to this chapter.

Sec. 12.14.010. Purpose and intent.

It is the purpose and intent of this chapter to prohibit an unwarranted increase in the water demand in the city and to eliminate the waste of water. This chapter shall be liberally construed to effectuate such purpose and intent.

(Code 1966, § 11.64.120; Ord. No. 4613, § 1, 4-9-96)

Sec. 12.14.020. Authority.

Pursuant to NRS Chapter 268, the city council hereby exercises its lawful authority to prohibit any waste of water within the city by customers of a public water system; to classify the conditions under which specified kinds and amounts of the use, consumption or expenditure of

*__State law reference—__Water conservancy districts, NRS 541.010 et seq.

water are wasteful; to provide for reasonable notice to water users who are customers of a public water system in the city of the existence of such conditions; to require any person, group of persons, partnership, corporation or other business or governmental entity which is not a public water utility regulated by the Public Service Commission of Nevada and which furnishes water by means of a public water system to any person, customer or user who wastes water within the meaning of this chapter to reduce or terminate water service to any such customer or user; to prohibit the wasteful use of water at the times and places designated in this chapter and in resolutions implementing such prohibitions; and to provide appropriate penalties for violation of this chapter. This chapter is adopted to ensure the general health, safety and welfare of all persons resident in the city.

(Code 1966, § 11.64.010; Ord. No. 4068, § 1, 3-26-91; Ord. No. 4613, § 1, 4-9-96)

Sec. 12.14.030. Definitions.

The following words and phrases, when used in this chapter, shall have the meanings respectively ascribed to them:

City means the City of Reno, a municipal corporation of the State of Nevada.

Customer refers to any person who is an owner, occupant or user of real property to which water is supplied by a public water system. The term "customer" shall also refer to any person who uses water supplied by a public water system, or to any person who is billed for the supply of water from a public water system, or to any person who is responsible for or otherwise has the right or permission to utilize the supply of water provided by a public water system.

Department. Unless specified otherwise in this chapter, "department" refers to the department of maintenance and engineering of the City of Reno, which department is designated as the official governmental agency responsible for coordinating and supervising the enforcement of this chapter.

Excessive, as used in relation to the use, expenditure or application of water that is the subject of this chapter, means any immoderate or unreasonable consumption of water which results in water:

(1) Running to waste into any street, road, parking lot, gutter, drainway, swale, sewage system, or any place for the disposal of water, in a steady stream or flow; or

(2) In the course of running to waste, collecting in pools or in any depressed area to a depth of one inch or more; or

(3) Using, expending or applying the water supply provided by any public water system in a manner contrary to any water conservation regulation, policy, rule, condition, directive, or request that has been issued to the customers of the public water system in question or that has been given general public notice by the public water system in question; or

(4) Any combination of the above subparts of this definition.

Hand watering refers to the use, expenditure, or application of water supplied to a customer or any person through a hose connected to a piping system which such hose is hand-held and such water is used for any exterior purposes or is otherwise expended outside any dwelling, building or structure.

Irrigate means to apply or to expend water onto land, whether by channels, by flooding, by sprinkling, or by any other means whatsoever, except handwatering. This term shall also refer to any act of irrigation.

Person means any natural person, any group of persons, any firm, partnership, association, corporation, company, or any other organization or entity that is not a public utility regulated by the Public Service Commission of Nevada.

Public water system refers to any publicly or privately owned network of pipes, conduits, wells, machinery, reservoirs, holding tanks and any other components, including any combination thereof, which supplies water to customers who are charged a fee of any kind or nature for such service or which is designed to supply water or is capable of supplying water to customers for a fee at two or more dwellings, buildings, or lots. Within the meaning of this chapter, a public water system includes any such system operated under the regulatory authority of the Nevada Public Service Commission and any other such system.

Running to waste means the application, expenditure or use of water in such a way that the water can be observed collecting in pools or in any depressed area, or flowing or running across the ground or any surface area in a manner that is excessive for the use or nonuse to which the water is being put.

Wastage of water refers to any act of a customer involving the use, application, or expenditure of water supplied from a public water system that results in such water running to waste. However, nothing contained in this term may be construed so as to prohibit any person having a direct legal right or owning any appropriated water right from using water in accordance with the express terms and conditions of any permit to use or appropriate water issued under authority of the state engineer, or pursuant to any order or directive of any federal water master having authority in the city, or pursuant to any lawful court order or decree.

Wastewater means treated effluent from any sewage treatment plant operated by a governmental entity, or effluent emitted from an individual sewage disposal system approved by a governmental entity.

Water refers to all water, except wastewater, supplied from a public water system to any customer who uses water.

(Code 1966, § 11.64.020; Ord. No. 3707, § 1, 8-1-88; Ord. No. 3735, § 1, 9-26-88; Ord. No. 4068, § 1, 3-26-91; Ord. No. 4613, § 1, 4-9-96)

Cross reference—Definitions generally, § 1.01.020.

Sec. 12.14.040. Enforcement.

A. The public works department and the Truckee Meadows Water Authority within its service territory and their officers and employees and the public works director or his agents or representative have the duty and are hereby authorized to enforce the provisions of this chapter, including the issuance of any notice required or authorized in this chapter.

B. In addition, each peace officer employed by the police department shall, in connection with his duties imposed by law, diligently enforce the provisions of this chapter.

(Code 1966, § 11.64.080; Ord. No. 4297, § 1, 3-23-93; Ord. No. 4613, § 1, 4-9-96; Ord. No. 5326, § 1, 4-23-02)

Sec. 12.14.050. Waste of water prohibited.

A. It is a civil infraction for any customer of a public water system to waste water in the city. For the purposes of this chapter, the use, consumption or expenditure of water under any of the conditions classified in subsection (B) shall be presumed to be wasteful and a violation of this chapter; provided, that nothing contained in this section may be construed to prohibit any person having a direct legal right or owning an appropriated water right from using water in accordance with the express terms and conditions of any permit to use or appropriate water issued under authority of the state engineer, or pursuant to any order or directive of any federal water master having authority in the city, or pursuant to any lawful court order or decree.

B. The existence of any of the following conditions involving the use, consumption or expenditure of water shall constitute prima facie evidence of the waste of water within the meaning the this chapter:

(1) Wastage of water;

(2) Use of water through any meter or other facility when the customer or his agent or representative responsible for the use of such water has been given 24 hours personal notice to repair one or more leaks in any piping system or any plumbing fixture connected directly or indirectly to such meter or other facility and such customer or his agent or representative has failed to complete such repairs;

(3) Using water or permitting the use of water in violation of any notice served on any person by the director of maintenance and engineering or his agent or representative as provided in this chapter;

(4) Using water in violation of any of the conditions restricting the use of water as set forth in sections 12.14.085(B) and 12.14.095;

(5) The washing of automobiles, trucks, trailers or any other type of mobile equipment, except in washing facilities operating with a water recycling system or using a nonpotable water source approved by the maintenance and engineering director with a prominently displayed sign in public view so stating, except where required by health and sanitary regulations, and except from a bucket or other container not exceeding a three gallon capacity used in conjunction with a hose to which a self-closing nozzle is attached.

(Code 1966, §§ 11.64.030, 11.64.040; Ord. No. 2725, § 1, 1-8-79; Ord. No. 4068, § 1, 3-26-91; Ord. No. 4297, § 1, 3-23-92; Ord. No. 4613, § 1, 4-9-96)

Sec. 12.14.060. Installation of water facilities that bypass or hamper normal operation of water measurement or flow-restricting devices prohibited.

It is a violation of this chapter for any customer or his agent or representative, other than a person employed by or representing a public water system, to install or operate any water facilities which bypass or interfere with the operation of water measurement or flow-restricting devices or components thereof utilized to measure or restrict the flow of water supplied by a public water system.

(Code 1966, § 11.64.050; Ord. No. 4613, § 1, 4-9-96)

CHAPTER 12.16. SEWER SERVICE*

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***State law references—**Municipality may operate and maintain sewerage project, NRS 268.730; "sewerage project" defined, NRS 268.714.

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Sec. 12.16.450. Use of charges collected.
Sec. 12.16.455. Use of customer lists.

Division 7. Wastewater Facilities Construction

Sec. 12.16.460. Prior approval of plans.
Sec. 12.16.470. Plumbing fixture unit standards.
Sec. 12.16.480. Sewer main line extensions.
Sec. 12.16.490. Construction.

Art. III. Regulation of Wastewater Discharge

Division 1. Generally

Sec. 12.16.500. Applicability and objectives.
Sec. 12.16.510. Regulation of industrial users from outside jurisdictions.
Sec. 12.16.520. Administration.
Sec. 12.16.525. Responsibility of City of Reno.

Division 2. Wastewater Regulations

Sec. 12.16.530. Prohibited discharges.
Sec. 12.16.535. Prohibition of unpolluted water.
Sec. 12.16.540. Septic tank wastes.
Sec. 12.16.545. Wash floor or slab.
Sec. 12.16.555. Sector control programs.
Sec. 12.16.565. Limitations on wastewater strength.
Sec. 12.16.570. Revision of wastewater regulations.
Sec. 12.16.575. Sample collection and analytical methods.
Sec. 12.16.580. Recordkeeping.
Sec. 12.16.590. Confidential information—Disclosure of information and availability to the public.
Sec. 12.16.595. Right of entry.
Sec. 12.16.600. Treatment required.

Shall is mandatory; *may* is permissive.

Significant industrial user or *SIU*. Except as provided in subsection 12.16.610(a), a significant industrial user is:

(a) An industrial user subject to categorical pretreatment standards; or

(b) An industrial user that:

(1) Discharges an average of 25,000 gallons per day (25,000 gpd) or more of process wastewater to the POTW (excluding sanitary, noncontact cooling, and boiler blowdown wastewater);

(2) Contributes a process wastestream which makes up five percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or

(3) Is designated as such by the city on the basis that the industrial user has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement.

Single-family dwelling means a building designed and/or used to house not more than one family, including necessary employees of such family.

Slug load or *slug discharge* means any discharge at a flow rate or concentration, which could cause a violation of the specific prohibitions in section 12.16.530. A slug discharge is any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge, or a discharge which exceeds the hydraulic or design of a industrial users treatment system or any part of the treatment unit including a discharge which has a reasonable potential to cause interference or pass through or in any other way violate an applicable pretreatment standard or requirement or a wastewater discharge permit issued by the city.

Standard industrial classification or *SIC* is a classification pursuant to the Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget, as amended.

Storm drain or *storm sewer* means every pipe, culvert, flume, ditch, gutter, storm sewer, cistern, tank, drain, lake, pond, stream, ravine, gully or other facility or natural feature, that contains, holds, transports, diverts, channels, impounds, or drains water, into which any naturally occurring stormwater runoff within the city may seep, percolate or flow; and every street, sidewalk, alley, gutter, roof, parking lot, yard, field, driveway, patio and other surface within the city across which any naturally occurring stormwater runoff may seep, percolate or flow.

Surcharge means a charge to an industrial/commercial discharger whose discharge waste strength is in excess of local domestic wastewater.

Total dissolved solids (TDS) are the "residue-on-evaporation" of the filterable solids in water or wastewater, otherwise known as that portion of solids that passes through a glass fiber filter and dried at 180 degrees Celsius (180°C) using a method approved in 40 CFR Part 136.

Total suspended solids means the total suspended matter, expressed in milligrams per liter, that floats on the surface of, or is suspended in, water, wastewater or other liquids, and which is removable by laboratory filtering in accordance with procedures approved in 40 CFR Part 136, as amended.

Total inorganic nitrogen includes nitrites, nitrates and ammonia. The total inorganic nitrogen is expressed as N and is determined by methods approved in 40 CFR Part 136.

Total phosphate includes orthophosphates, polyphosphates, and organic phosphate. The total phosphate is expressed as P and is determined by methods approved in 40 CFR Part 136.

Toxic pollutant means any pollutant or combination of pollutants listed as toxic in regulations promulgated by the administrator of the Environmental Protection Agency under Section 307(a) of the Act or as otherwise listed in 40 CFR Part 122, Appendix D.

Upsets are prohibited except as allowed by under 40 CFR 403.16.

User means a "discharger" as defined herein.

User charge means the sewer service charge to users of the "wastewater facilities".

Vacancy means the property is habitable but not occupied.

Waste includes sewage and all other waste substances, liquid, solid, gaseous, or radioactive, associated with human habitation, or of human or animal origin, or from any producing, manufacturing, or processing operation of whatever nature, including such waste placed within containers of whatever nature prior to, and for purposes of disposal.

Wastewater means wastes and water, whether treated or untreated, discharged to the city's "wastewater facilities."

Wastewater discharge permit is a permit issued to an industrial user by the city that regulates the discharge of pollutants and flow to the POTW and applies pretreatment standards and requirements, as appropriate, as set forth in article III of this chapter.

Wastewater facilities includes "wastewater" collection interceptor sewers, wastewater treatment works (Reno-Sparks JWPCP and Reno-Stead treatment plant), pumping plants, and outfall sewers. Also see "Publicly-owned treatment works."

(Ord. No. 2899, § 1, (7.20.010), 8-25-80; Ord. No. 2993, § 1, 6-28-82; Ord. No. 3494, § 1, 5-11-87; Ord. No. 3924, § 1, 2-27-90; Ord. No. 4038, § 1, 12-11-90; Ord. No. 4535, § 1, 7-11-95; Ord. No. 4543, § 1, 8-8-95; Ord. No. 4915, § 1, 9-22-98; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6305, § 1, 8-28-13; Ord. No. 6356, § 1, 12-10-14; Ord. No. 6438, § 2, 9-27-17; Ord. No. 6586, § 1, 1-13-21)

Cross references—Definitions generally, § 1.01.020; 1.08.020.

Sec. 12.16.015. Abbreviations.

The following abbreviations shall have the designated meanings:

°C	degrees Celsius.
§	Section.
BMP	Best management practice.
BOD_5	Biochemical oxygen demand.
CFR	Code of Federal Regulations.
COD	Chemical oxygen demand.
CWA	Clean Water Act.
EPA	Environmental Protection Agency.

FOG	Fats, oils and grease.

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(6) The signature of the person who issues the notice of infraction.

(Ord. No. 4297, § 1, 3-23-93; Ord. No. 4613, § 1, 4-9-96)

Sec. 12.14.140. Same—Filing.

The original notice of infraction, or a facsimile thereof, must be filed with the Reno City Clerk and is deemed to be a public record of matters which are observed pursuant to a duty which is imposed by law and is prima facie evidence of the facts which are alleged therein. A duplicate of the notice of infraction must be served on the person to whom it is issued as provided in section 12.14.150. If the infraction occurs within the service territory of the Truckee Meadows Water Authority, a copy of the notice of infraction must be filed with the general manager of the Truckee Meadows Water Authority and maintained as a public record.

(Ord. No. 4297, § 1, 3-23-93; Ord. No. 4613, § 1, 4-9-96; Ord. No. 5326, § 1, 4-23-02)

Sec. 12.14.150. Same—Service.

A. The notice of infraction must be served upon the customer by fixing the notice to the property of the customer in a conspicuous place. Service of the notice of infraction by affixation has the same force and effect and is subject to the same penalties for the disregard thereof, as if the notice of infraction were personally served on the customer. In lieu of service by affixation, the notice of infraction may be personally served upon the customer.

B. For purposes of this chapter, a customer who is not the owner of the real property to which water is supplied by a public water system, but who occupies or uses said real property with the permission of the owner, express or implied, is deemed to be the agent of the owner to receive a notice of infraction, whether it is personally served on the occupier/user or served by affixation, and service in either manner is also deemed to be lawful service upon the owner.

(Ord. No. 4297, § 1, 3-23-92; Ord. No. 4613, § 1, 4-9-96)

Sec. 12.14.160. Liability.

A customer is liable for the civil fines which are imposed pursuant to this chapter. The owner of the real property, even if he is not the occupant or user thereof, is also liable for such civil fines, unless he is able to demonstrate that the waste of water was without his permission, express or implied. An owner who pays any civil fine pursuant to this chapter has the right to recover from the occupant or user of the real property the civil fines so paid, and has a cause of action in any court which has the appropriate jurisdiction against the occupant or user of the real property for the amount so paid.

(Ord. No. 4297, § 1, 3-23-93; Ord. No. 4613, § 1, 4-9-96)

Sec. 12.14.170. Notice of infraction—Duties of respondent.

A. A person who responds to a notice of infraction must:

(1) "Admit" the commission of the infraction and pay the appropriate civil fine;

(2) "Deny" the liability for the infraction.

B. The burden to prove any defense shall be upon the person raising such defense.

C. A person may "admit" pursuant to paragraph (1) of subsection A. of this section by paying the amount of the civil fine which is appropriate for the violation which has been committed to the Reno City Clerk.

D. A person may "deny" liability pursuant to paragraph (2) of subsection A. of this section only by appearing in person before the Reno City Clerk at which time a date for a hearing on the infraction shall be scheduled by the Reno City Clerk.

E. If the hearing officer finds that the infraction has not occurred or an infraction has been committed, but a reasonable defense exists for the commission thereof, the hearing officer may dismiss the notice of infraction and release the customer from liability thereunder.

F. If the hearing officer finds that an infraction has been committed and no reasonable defense exists, the hearing officer may, in the interest of justice and on behalf of the city, enter into an agreement for the timely or periodic payment of the applicable fines.

G. Procedure for appeal to Reno Municipal Court.

(1) In a contested citation proceeding, a party against whom the hearing officer has entered a finding of liability and assessment of fine, by default or otherwise, my, if the assessed fine has been paid, appeal to the Reno Municipal Court within ten days from the date of entry of the finding and assessment. Appeal shall be made by filing with the Reno City Clerk a written notice containing the appellant's name, current address, telephone number, citation number, and a statement that the appellant appeals the finding and assessment.

(2) Upon receipt of timely notice of appeal the Reno City Clerk shall forward the notice of appeal, together with a copy of citation and a copy of the hearing officer's finding and assessment to the Reno Municipal Court and a copy of the same to the office of the city attorney. The Reno City Clerk shall provide a copy of the notice of appeal and of citation to the Truckee Meadows Water Authority.

(3) On appeal, the matter shall be resolved in a civil action, except that no formal complaint need be filed or summons issued. The proceeding shall be governed by section 12.14.200 of this chapter. The filing of the notice of appeal shall constitute a submission by the appellant to the jurisdiction of the Reno Municipal Court and to all notices and orders issued by said court during appeal, and to final judgment of said court on resolution of the appeal.

(Ord. No. 4297, § 1, 3-23-93; Ord. No. 4613, § 1, 4-9-96; Ord. No. 5326, § 1, 4-23-02)

Sec. 12.14.175. Same—Notice.

The Reno City Clerk shall notify the Truckee Meadows Water Authority when the infraction has been resolved, either through payment of the fine or by dismissal.

(Ord. No. 5326, § 1, 4-23-02)

Sec. 12.14.180. Same—Judicial enforcement.

Judicial enforcement of notices of infraction must be by way of civil suit in the Reno Municipal Court. A certified copy of the notice of infraction constitutes a prima facie showing that an infraction occurred.

(Ord. No. 4297, § 1, 3-23-93; Ord. No. 4613, § 1, 4-9-96)

DIVISION 2. SEWER USER CHARGES

Sec. 12.16.110. Purpose.

The purpose of the sewer user charge is to recover administration, collection, treatment and disposal, operation, maintenance, and repair and replacement costs, and costs connected to the City of Reno and Sparks jointly owned Truckee Meadows Water Reclamation Facility National Pollutant Discharge Elimination System Permit or any other NPDES permit issued to the City of Reno and the costs are distributed based on volume and equivalent normal domestic strength wastewater. The operation and maintenance costs will be distributed to the users as a monthly service charge.

(Ord. No. 2899, § 1 (7.20.031), 8-25-80; Ord. No. 4638, § 2, 6-25-96; Ord. No. 5102, § 1, 12-14-99; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.120. Dwelling unit or residential unit.

Customer classes are those user categories that have similar wastewater discharge characteristics. The three customer classes defined for user fee rates are single-family, multifamily and commercial/industrial.

Residential condominium, townhouse condominium, community apartment, mobile home park are multifamily for the purpose of establishing user fee rates.

Duplex, triplex, fourplex, mobile home lot, single-family residence, zero lot line single-family and mobile home subdivision are single-family for the purpose of establishing user fee rates.

A residential user class not defined shall be assigned to that user class that is most closely representative of a multifamily or single-family class.

The sewer service user charge for each type of residential unit, multifamily or single-family, is a flat monthly rate per residential unit plus a customer service charge in the amount of two dollars and forty cents ($2.40) per bill effective on the dates indicated as listed below.

Effective on October 1, 2011 through September 30, 2015 per the table titled Sewer Fee Rates the following user fee rates shall be applicable except properties that sewer to the South Truckee Meadows Water Reclamation Facility and are annexed into the City of Reno will continue to pay the applicable Washoe County rate.

Sewer Fee Rates

(All Fees Are Per Month Rates)			Multiple-Family Residential Dwelling Unit with Shared Kitchen		Rooming House	
Effective Date	Single-Family	Multifamily	Per Kitchen	Per Bedroom	Per Kitchen	Per Room Rental
October 1, 2010	$29.50	$24.20	$18.51	$9.02	$18.51	$9.02
October 1, 2011	$31.86	$26.14	$19.99	$9.74	$19.99	$9.74
October 1, 2012	$34.41	$28.23	$21.59	$10.52	$21.59	$10.52
October 1, 2013	$37.16	$30.49	$23.32	$11.36	$23.32	$11.36
October 1, 2014	$40.13	$32.92	$25.18	$12.27	$25.18	$12.27
October 1, 2015	$43.35	$35.56	$27.20	$13.25	$27.20	$13.25

*Per RMC 12.16.120, multi-family units up to a four-plex are charged at the single-family rate.

Effective October 1, 2016, the rate effective October 1, 2015 shall be subject to an automatic increase by an amount equal to the increase of the Consumer Price Index-All Urban Consumers (CPI-U) for the west urban area, as published by the Bureau of Labor Statistics. The measurement period shall end with the published index for December of each year and the resulting increases shall be implemented with the October billings which will be reflected in the fee resolution adopted by city council and kept on file in the office of the clerk and the finance department.

(Ord. No. 2899, § 1(7.20.032), 8-25-80; Ord. No. 2954, § 1, 9-14-81; Ord. No. 3456, § 1, 1-26-87; Ord. No. 3754, § 1, 12-12-88; Ord. No. 4375, § 1, 3-22-94; Ord. No. 4560, § 1, 9-26-95; Ord. No. 5102, § 1, 12-14-99; Ord. No. 5518, § 1, 12-3-03; Ord. No. 5717, § 1, 7-6-05; Ord. No. 5817, § 1, 4-5-06; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6412, § 1, 8-24-16; Ord. No. 6438, § 3, 9-27-17)

Sec. 12.16.130. Industrial/commercial discharger.

The industrial/commercial discharger sewer service charges are based on weighted fixture units in accordance with the rate under (1), herein, until data is available to charge according to metered flow. The sewer service charge under (2), herein, shall be based on 100 percent of the water consumed which shall include all unmetered and metered water usage. There is an availability-of-service charge such that the charge determined from (1) or (2) hereinafter shall not be less than the rate for a single-family dwelling unit including quarterly charge and customer service charge for each discharger. If an industrial/commercial discharger has a significant quantity of water which is not discharged to the wastewater facilities, the discharger may submit a waiver of nonsewered water request in accordance with (3), herein.

(1) Weighted Fixture Unit Charge.

Weighted fixture units shall pay a quarterly sewer use charge.

Effective on the stated dates the annual sewer use charge for each weighted fixture unit plus $4.20 per bill is the following:

	Weighted Fixture Unit Charge For Each Weighted Fixture Unit
October 1, 2010	16.99
October 1, 2011	18.35
October 1, 2012	19.82
October 1, 2013	21.40
October 1, 2014	23.11
October 1, 2015	24.96

Rates shall be subject to an automatic increase by an amount equal to the increase of the Consumer Price Index-All Urban Consumers (CPI-U) for the west urban area, as published by the Bureau of Labor Statistics. The measurement period shall end with the published index for December of each year and the resulting increases shall be implemented with the October billings which will be reflected in the fee resolution adopted by city council and kept on file in the office of the clerk and the finance department.

(2) Commercial/Industrial User Class Rates:

Commercial/Industrial sewer use rates are based upon comparable costs for an equivalent single-family dwelling. Surcharges for predefined user classes in Table I are included. Rates for undefined classes of users may be established pursuant to section 12.16.200. (Surcharge).

Commercial/industrial accounts serviced by one or more water meters but having multiple dischargers or user categories (such as shopping malls), or that are not directly assignable under Table I shall have user fee rates established under section 12.16.200 (Surcharge) and be billed in $0.10 increments rounded to the nearest $0.10 increment of cost per 1,000 gallons. Multiple use facilities user fees shall be calculated and billed based upon water usage per user category or fixture unit counts and hours of operation to obtain a proportional allocation of costs for billing use. A customer service charge of $4.20 shall be added per bill for all customer classes.

Gallonage charge of metered flow for Commercial/industrial user fees with effective date as shown on Table I per 1,000 gallons.

TABLE I COMMERCIAL/INDUSTRIAL USER CLASS RATES**

	Description	*Charge in Dollars per 1,000 Gallons*	*Charge in Dollars per 1,000 Gallons*	*Charge in Dollars per 1,000 Gallons*	*Charge in Dollars per 1,000 Gallons*	*Charge in Dollars per 1,000 Gallons*	*Charge in Dollars per 1,000 Gallons*
*	*Rate effective*	*10/1/2010*	*10/1/2011*	*10/1/2012*	*10/1/2013*	*10/1/2014*	*10/1/2015*
A.	Large Hotel w/ Restaurant	$5.37	$5.80	$6.26	$6.76	$7.31	$7.89
B.	Small Hotel w/ Restaurant	$4.61	$4.98	$5.38	$5.81	$6.27	$6.77
C.	Casino w/ Restaurant	$5.37	$5.80	$6.26	$6.76	$7.31	$7.89
D.	Full Service Restaurant	$6.46	$6.98	$7.53	$8.14	$8.79	$9.49
E.	Fast Food	$6.36	$6.87	$7.42	$8.01	$8.65	$9.34
F.	Pizza Parlor	$5.13	$5.54	$5.98	$6.46	$6.98	$7.54
G.	Meat, Seafood Prep	$5.29	$5.71	$6.17	$6.66	$7.20	$7.77
H/I	Commercial/ Industrial Laundry	$6.95	$7.51	$8.11	$8.75	$9.46	$10.21
J	Car Wash	$4.30	$4.64	$5.02	$5.42	$5.85	$6.32
K	Bakery	$4.09	$4.42	$4.77	$5.15	$5.56	$6.01
L	Market w/ Bakery	$4.99	$5.39	$5.82	$6.29	$6.79	$7.33
M	Hospital, Conv Home	$4.41	$4.76	$5.14	$5.56	$6.00	$6.48
N	Service and Repair Garage	$4.70	$5.08	$5.48	$5.92	$6.39	$6.91
P	Mortuaries	$7.12	$7.69	$8.30	$8.97	$9.69	$10.46
Q	Laundromat	$4.61	$4.98	$5.38	$5.81	$6.27	$6.77
R	Schools w/ Cafeteria	$4.17	$4.50	$4.86	$5.25	$5.67	$6.13
S	Doctor/ Dentists/Vet	$4.14	$4.47	$4.83	$5.22	$5.63	$6.08
T	Bottling Plant	$5.20	$5.62	$6.07	$6.55	$7.07	$7.64
UA	Dairy Process-ing	$7.88	$8.51	$9.19	$9.93	$10.72	$11.58
WW	Photographic Studios	$8.59	$9.28	$10.02	$10.82	$11.69	$12.62

	Description	*Charge in Dollars per 1,000 Gallons*	*Charge in Dollars per 1,000 Gallons*	*Charge in Dollars per 1,000 Gallons*	*Charge in Dollars per 1,000 Gallons*	*Charge in Dollars per 1,000 Gallons*	*Charge in Dollars per 1,000 Gallons*
*	*Rate effective*	*10/1/2010*	*10/1/2011*	*10/1/2012*	*10/1/2013*	*10/1/2014*	*10/1/2015*
Z	All Other Commercial and Nevada System of Higher Education Dormitories	$4.61	$4.98	$5.38	$5.81	$6.27	$6.77

Rates shall be subject to an automatic increase by an amount equal to the increase of the Consumer Price Index-All Urban Consumers (CPI-U) for the west urban area, as published by the Bureau of Labor Statistics. The measurement period shall end with the published index for December of each year and the resulting increases shall be implemented with the October billings which will be reflected in the fee resolution adopted by city council and kept on file in the office of the clerk and the finance department.

**Includes applicable surcharges or cost of service allocations for each user class

(3) Waiver of Nonsewered Water Request.

Industrial/commercial dischargers may request an allowance be made for water which flows through the water meter but is not discharged to the sewer. The waiver will be reviewed and acted on by the director, once the discharger has submitted a completed application, "waiver of nonsewered water," to the director. The nonsewered allowance determined by the waiver will be applied to second and third quarter billings. Forms for a waiver application can be obtained from the public works department. The director may require verification by metering. The meter type and location must have approval from the director prior to installation and must be accessible to authorized city personnel for inspection. Quarterly readings of the meter will be obtained by the city. Authorized representatives shall have access to read and inspect the meters. There will be a $15.00 charge per meter per quarter to read the meters. All new meter installation are required to have remote readouts. Any existing meter that fails or is not accessible to be read due to mud, water, debris, or other reason determined by the director shall be required to install a meter with a remote readout. If an allowance meter is not functioning or cannot be read, the industrial/commercial discharger will be notified and the discharger will not receive any allowance until the meter is repaired. The repair and maintenance of the meters shall be the responsibility of the industrial/commercial discharger.

(Ord. No. 2899, § 1 (7.20.033), 8-25-80; Ord. No. 2949, § 1, 7-27-81; Ord. No. 3456, § 2, 1-26-87; Ord. No. 3496, § 1, 5-11-87; Ord. No. 3754, § 1, 12-12-88; Ord. No. 3924, § 3, 2-27-90; Ord. No. 4375, § 2, 3-22-94; Ord. No. 4560, § 1, 9-26-95; Ord. No. 4565, § 1, 10-10-95; Ord. No. 4619, § 1, 4-23-96; Ord. No. 5102, § 1, 12-14-99; Ord. No. 5511, § 1, 11-5-03; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6438, § 4, 9-27-17; Ord. No. 6586, § 1, 1-13-21)

Sec. 12.16.140. Unmetered water source.

Any industrial/commercial discharger with an unmetered water source must install, operate and maintain a meter on that source. All new meter installations after October 1, 1995, will be required to have remote readouts. Any existing meter that fails or is not accessible to be read due to mud, water, debris, or other reason determined by the director shall be required to

install a meter with a remote readout. The meter type and location must have approval from the director prior to installation. Quarterly records of the meter will be obtained by the city. Authorized representatives of the director shall have access to read and inspect these meters. There will be a $15.00 charge per meter per quarter to read these meters.

(Ord. No. 2899, § 1 (7.20.034), 8-25-80; Ord. No. 2949, § 1, 7-27-81; Ord. No. 2990, § 1, 6-28-82; Ord. No. 3497, § 1, 5-11-87; Ord. No. 3924, § 4, 2-27-90; Ord. No. 4565, § 1, 10-10-95; Ord. No. 4620, § 1, 4-23-96; Ord. No. 5717, § 1, 7-6-05)

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Sec. 12.16.605. Monitoring equipment required.

Division 3. Wastewater Discharge Permits

Sec. 12.16.610. Permit for industrial users.
Sec. 12.16.615. Permits required.
Sec. 12.16.620. Permit application and fees.
Sec. 12.16.630. Terms and conditions of permit.
Sec. 12.16.635. Wastewater discharge permit contents.
Sec. 12.16.640. Wastewater discharge permit modification.
Sec. 12.16.650. Wastewater discharge permit suspension or revocation.
Sec. 12.16.660. Administrative appeals.
Sec. 12.16.670. Special agreements and contracts.

Division 4. Reporting and Notification Requirements

Sec. 12.16.680. Self monitoring report.
Sec. 12.16.690. Baseline monitoring reports (BMR)—Categorical industrial users.
Sec. 12.16.700. 90-Day compliance reports—Categorical industrial users.
Sec. 12.16.710. 24-hour notice and 30-day re-sampling.
Sec. 12.16.720. Slug discharge control plan.
Sec. 12.16.730. Reports of potential problems—Slug and spills.
Sec. 12.16.740. Reports for non-significant industrial users.
Sec. 12.16.750. Signatory certification.
Sec. 12.16.760. Compliance schedules.
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Division 5. Compliance and Enforcement

Sec. 12.16.800. Enforcement authority.
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Sec. 12.16.810. Administrative enforcement actions.
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Sec. 12.16.813. Public nuisance.
Sec. 12.16.814. Damage to facilities.
Sec. 12.16.815. Correction of violations; collection of costs fee.
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Art. IV. Storm Water Management and Discharge Control

Division 1. In General

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Sec. 12.16.830. Purpose and policy.
Sec. 12.16.840. Administration.
Sec. 12.16.850. Regulatory consistency.

Sec. 12.16.860. Discharges subject to these regulations.
Sec. 12.16.870. Discharges outside the city limits.
Sec. 12.16.880. Severability.
Sec. 12.16.890. Disclaimer of liability.
Sec. 12.16.895. Adoption of the Truckee Meadows Structural Controls Design and Low Impact Development Manual.

Division 2. Storm Water Regulations and Requirements

Sec. 12.16.900. Discharge regulations and requirements.
Sec. 12.16.910. General requirements.
Sec. 12.16.920. Prohibited discharges.
Sec. 12.16.930. Good housekeeping practices.
Sec. 12.16.940. Illicit connections.
Sec. 12.16.950. Surface cleaning.
Sec. 12.16.960. Outdoor storage areas—Commercial and industrial facilities.
Sec. 12.16.970. Secondary containment.
Sec. 12.16.980. Non-storm water discharges.
Sec. 12.16.990. Discharge pursuant to NPDES permit.
Sec. 1216.1000. Discharge in violation of permit.
Sec. 12.16.1100. Compliance with general permits.
Sec. 12.16.1200. Notification of spills.
Sec. 12.16.1300. Maintenance of private storm water facilities.
Sec. 12.16.1400. Inspection.
Sec. 12.16.1500. Monitoring facilities, reports and access by city personnel.
Sec. 12.16.1600. Best Management Practices (BMP′s).
Sec. 12.16.1700. Soil tracking and drag out.
Sec. 12.16.1800. Recycling facilities.

Division 3. Storm Water Discharge Permits.

Sec. 12.16.1900. Permit for industrial/commercial storm water discharges.
Sec. 12.16.2000. Storm water permit application and fees.
Sec. 12.16.2100. Terms and conditions of permit.

Division 4. Enforcement

Sec. 12.16.2200. Enforcement authority.
Sec. 12.16.2300. Enforcement procedures.
Sec. 12.16.2400. Reconsideration.
Sec. 12.16.2500. Public nuisance.
Sec. 12.16.2600. Damage to facilities.
Sec. 12.16.2700. Injunction.
Sec. 12.16.2800. Civil liabilities and penalties.
Sec. 12.16.2900. Criminal penalties.
Sec. 12.16.3000. Termination of service.
Sec. 12.16.3100. Correction of violations; collection of costs; reinspection fee.

Sec. 12.16.3200. Falsifying of information.
Sec. 12.16.3300. Misdemeanor.
Sec. 12.16.3400. Remedies are cumulative.
Sec. 12.16.3500. Specific remedies do not impair other rights.

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ARTICLE I. IN GENERAL

Sec. 12.16.010. Definitions.

The following terms have the meanings ascribed to them in this chapter:

Act means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended (33 U.S.C. 1251, et seq.).

Administrative hearing officer means the person designated by the city to hear matters pursuant to section 12.16.395 and article III.

Apartment house shall mean the same as "multiple-family residential units."

Approval authority means the state director in an NPDES state with an approved state pretreatment program or the regional administrator of the EPA in a non-NPDES state or NPDES state without an approved state pretreatment program.

Authorized representative of the industrial user means:

(a) If the industrial user is a corporation:

(1) The president, secretary, treasurer, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision making functions for the corporation; or

(2) The manager of one or more manufacturing, production, or operating facilities, provided the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for wastewater discharge permit requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(b) If the user is a partnership or sole proprietorship: A general partner or proprietor, respectively.

(c) If the user is a federal, state, or local government facility: A city or district or highest official appointed or designated to oversee the operation and performance of the activities of the governmental facility, or their designee.

(d) The individuals described in paragraphs (a) through (c), above, may designate another authorized representative if the authorization is made in writing, the authorization specifies the individual or a position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the director.

Best management practices or *BMPs* means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the general and specific prohibitions listed in section 12.16.530 of this chapter. BMPs may also include, but are not limited to, treatment requirements, operating procedures, and practices to control plant site

runoff, spillage or leaks, sludge or waste disposal, or drainage from raw material storage. BMPs shall be considered local limits and pretreatment standards for the purposes of this article, Section 307(d) of the Act and 40 CFR Section 403.5(c)(4).

BOD or *biochemical oxygen demand* means the measure of decomposable organic material in domestic or industrial wastewaters as represented by the oxygen utilized over a period of five days at 20 degrees Celsius and expressed in terms of milligrams per liter (mg/L).

Bypasses are prohibited except as allowed under 40 CFR Section 403.17.

Casino means a place where games of chance or gambling devices are made available for play by the public and is associated with a hotel or is a separate establishment. Businesses with less than 20 slot machines are not to be classified as a casino.

Categorical industrial user means an industrial user subject to a categorical pretreatment standard.

Categorical pretreatment standard or *categorical standard* means any regulation containing pollutant discharge limits promulgated by the EPA in accordance with Section 307(b) and (c) of the Act (33 U.S.C. Section 1317) that apply to a specific category of industrial users and that appear in 40 CFR Chapter I, Subchapter N, Parts 405-471.

City means the City of Reno, Nevada.

COD or *chemical oxygen demand* means the measure of the amount of oxygen required to oxidize organic and oxidizable inorganic compounds that is susceptible to oxidation by a strong chemical oxidant under laboratory procedures and expressed in milligrams per liter (mg/L).

Composite sample means a representative flow-proportioned sample generally collected within a 24-hour period and combined according to flow. Time-proportional sampling may be approved or used by the city where time-proportional samples are believed representative of the discharge.

Connection fees mean the payment made for the permission to make a direct or indirect connection to the sewer system.

Daily maximum discharge limit means the maximum allowable concentration of a pollutant(s) that may be discharged during a 24-hour period or as specified in an industrial user wastewater discharge permit. Where daily maximum limitations are expressed in units of mass, the discharge is the total mass discharged over the sampling period.

Director means the public works director or his duly authorized representative.

Discharge means the addition of any substance to the sewer system.

Discharger means any person that discharges or causes a discharge to a public sewer.

Domestic sewage means domestic (sanitary) wastes and wastewater from residential sources including, but not limited to, wastewater from kitchen, bath, and laundry facilities; or wastewater from the personal sanitary conveniences (toilets, showers, bathtubs, fountains, noncommercial sinks and similar structures) of commercial, industrial or institutional buildings, provided that the wastewater exhibits characteristics that are similar to those of wastewater from normal residential activities.

Dwelling units means a building or portion thereof designed and/or used to house not more than one family, including necessary employees of each such family.

Easement means an acquired legal right held by the city for the specific use of land owned by others.

Environmental Protection Agency or *EPA* means the U.S. Environmental Protection Agency, or where appropriate the term may also be used as a designation for the administrator or other duly authorized official of said agency.

Existing source means a source of discharge by an industrial user, the construction of which commenced prior to the publication of the proposed categorical pretreatment standard which is subsequently promulgated in accordance with Section 307 of the Clean Water Act, or as otherwise specified in the applicable categorical pretreatment standard.

Fats, oil and grease or *FOG* means the non-petroleum organic polar compounds derived from animal or plant sources such as fats, non-hydrocarbons, fatty acids, soaps, waxes, and oils that contain multiple carbon chain triglyceride molecules. These substances are detectable and measurable using analytical procedures established in 40 CFR Part 136.

Fixture means a device which drains or ″discharges″ to the sewage collection system and includes but is not limited to, bathtub, sinks, drinking fountain, dishwasher, lavatory, water closet, showers, etc.

Geothermal water is water heated naturally by the earth and all dissolved or entrained minerals contained therein.

Grab sample means a sample which is taken from a waste stream on a one-time basis with no regard to the flow and over a period of time not to exceed 15 minutes.

Hazardous waste means any waste designated as hazardous under the provisions of 40 CFR Part 261.

Hotel means a building occupied or intended to be occupied for compensation, as the temporary residence for transient guests, primarily persons who have residence elsewhere, with interior hall and lobby, and with access to each room from such interior hall or lobby.

Indirect discharge or *discharge* mean the introduction of pollutants into a POTW from any non-domestic source regulated under Section 307(b), (c) or (d) of the Act (including holding tank waste discharged into the system).

Industrial means of, or pertaining to, industry, manufacturing, commerce, trade, or business as distinguished from domestic or residential.

Industrial (non-domestic) wastes means the liquid or solid wastes from industrial manufacturing processes, trade or business activities producing non-domestic or non-residential sewage as distinct from domestic sewage.

Industrial user means a commercial, industrial, or governmental entity that has a sewer connection to the POTW or that generates wastewater discharged to the POTW through waste hauling.

Infiltration means the water which enters the sewer lines from the ground, usually through pipe and manhole joints.

Inflow means the water discharged into the wastewater system from such sources as but not limited to roof leaders, cellar, yard, and area drains; foundation drains; drains from springs, manhole covers; cross-connections from storm sewers and combined sewers, surface runoff; etc.

Instantaneous limit means the maximum or minimum concentration or measurement of a pollutant property allowed to be discharged at any time for any length of time. For pollutants, compliance is typically determined by use of a grab sample.

Interference means a discharge, which alone of in conjunction with a discharge or discharges from other sources, both:

(a) Inhibits or disrupts the POTW treatment processes, or operations or its sludge processes, use or disposal; and

(b) Is a cause of violation of any requirement of the city's NPDES permit (including an increase in the magnitude or duration of a violation) or of the prevention of sewage sludge use or disposal in compliance with any of the following statutory/regulatory provisions or permits issued hereunder, or any more stringent state or local regulations: Section 405 of the Act; the Solid Waste Disposal Act (SWDA), including Title II commonly referred to as the Resources Conservation and Recovery Act (RCRA); any state regulations contained in any state sludge management plan prepared pursuant to Subtitle D of the Solids Waste Disposal Act; the Clean Air Act; the Toxic Substances Control Act; and the Marine Protection, Research, and Sanctuaries Act.

Local limits mean any regulation containing pollution discharge limits promulgated by the city in accordance with 40 CFR Section 403.5(c) and (d), which are deemed to be pretreatment standards and contained in subsection 12.16.565(c) of this chapter.

Mobile home means a structure, intended for use as a single-family dwelling, eight feet or greater in width and 28 feet or greater in length, designed to be moveable but not self-motive.

Mobile home estate means a lot or parcel of land upon which there can be placed a single mobile home for occupancy as a single-family dwelling.

Mobile home park means a parcel or tract of land having as its principal use the rental, leasing, or occupancy of space by two or more mobile homes on a permanent or semipermanent basis, including accessory buildings, or uses customarily incidental thereto.

Motel means a building occupied or intended to be occupied, for compensation, as the temporary residence for transient guests, primarily persons who have residence elsewhere, with access to each room or unit from an outside porch or landing and with accessible parking spaces on or near the premises under the same ownership.

Multiple-family residential unit means a building designed and/or used to house two or more families, living independently of each other, including necessary employees of each such family and includes units which may have shared kitchen facilities.

National Pollution Discharge Elimination System or *NPDES Permit* means the State of Nevada program for issuing, conditioning, and denying permits for the discharge from point sources into waters of the state pursuant to NAC 445A Sections 228-263 and Section 402 of the Act.

Sec. 12.16.150. Weighted fixture unit schedule.

(a) Sewer Fixture Unit weights shall be determined by the 2018 Uniform Plumbing Code drainage fixture unit values - table 702.1. The number of weighted sewer fixture units for new installation or determination of credit based upon existing fixtures shall be determined from the following schedule:

Fixture Description	*Quantity of Fixtures*	*Sewer Weighting Value*	*Total Sewer Fixture Units (SFU)*
Bar Sink	-	2.0	-
Bathroom Group (Hotel or motel only)	-	8.0	
Bathtub	-	2.0	-
Car Wash—Self Serve (per bay)	-	28.0	-
Car Wash—Auto Wash	-	100.0	-
Clinic Sink	-	6.0	-
Coffee Making Station, Commercial	-	-	-
Dipper Well	-	3.0	-
Dishwasher—Commercial	-	35.0	-
Dishwasher—Conveyor	-	100.0	-
Dishwasher—Residential Type	-	2.0	-
Disposal—Commercial (with Independent Water Supply)	-	50.0	-
Drinking Fountain or Watercooler	-	0.5	-
Floor Drain or Floor Sink	-	2.0	-
Hair Wash Sink	-	5.0	-
Kitchen Sink—Domestic	-	2.0	-
Kitchen Sink—Commercial (3 Compartment Sink or Similar)	-	3.0	-
Laundry Machine—Residential Type <4.5 cu. Ft. (12—20 lbs. capacity)	-	3.0	-
Laundry Machine—Commercial (max 35 lb. Capacity)	-	50.0	-
Laundry Machine—Commercial—Per lb. Capacity (above 35 lbs.)	-	1.5	-
Laundry Sink	-	2.0	-
Lavatory	-	1.0	-
Mop Sink or Service Sink	-	2.0	-
RV Dump Station	-	25.0	-
RV Park per Wet Space	-	7.0	-
Shower Stall—Per Head	-	2.0	-
Urinal	-	2.0	-
Washfountain, Circular Spray	-	3.0	-

Fixture Description	*Quantity of Fixtures*	*Sewer Weighting Value*	*Total Sewer Fixture Units (SFU)*
Wash-Up Sink	-	2.0	-
Water Closet	-	3.0	-
Whirlpool Bath or Combination Bath/ Shower	-	2.0	-
Trench Drains (for up to 2 inch trap size)	-	4.0	-
Other	-	-	-

(1) Multiply by one and five-tenths (1.5) for industrial/commercial facilities with greater than 12-hour and less than 16-hour operation. Multiply by two and zero-tenths (2.0) for industrial/commercial facilities with greater than 16-hour operation.

(b) For fixtures not listed, weights may be assumed by comparing the fixture to a listed one using water in similar quantities and at similar rates.

(Ord. No. 2899, § 1 (7.20.035), 8-25-80; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6651, § 1, 4-12-23)

Sec. 12.16.155. Sewer connection fee credit policy.

(1) The purpose of a connection fee is to reserve sewer capacity for treatment and conveyance.

(2) The sewer connection fee credit will be determined by:

(a) Evidence of the original basis of the connection fee which must be provided as follows:

(i) If the structure was a single family residence, evidence showing the structure as a single family residence.

(ii) If the structure was an industrial, commercial or multi-family structure the following detail must be provided:

(a) The original sewer connection fee receipt or documentation associated with the original building of the structure, or

(b) A re-creation of fixture unit counts for the structure using building plans acceptable to the director of public works, or

(c) Performance of a physical fixture unit count which is accepted by the director of public works.

(b) And, the current weighting values.

(3) If a structure is rebuilt on the property or contiguous property under common ownership or agreement (providing it flows into the same collection system and causes no capacity problems), the connection fee at the current rate associated with that sewer capacity will be applied.

(4) If the fixture units shown in the plans for the new structure to be built exceed the connection fee credit, the balance of the calculated connection fees must be paid at the current rate prior to the issuance of a building permit or certificate of occupancy pursuant to RMC 12.16.280.

(5) It is incumbent upon the owner to maintain the records to confirm the credit.

(Ord. No. 6197, § 1, 8-24-11; Ord. No. 6408, § 1, 8-10-16; Ord. No. 6704, § 1, 3-26-25)

Sec. 12.16.160. Uses of charges collected.

The proceeds from the sewer user charges shall be used solely for the operation, maintenance and replacement of the wastewater facilities and stormwater facilities, including costs connected to the City of Reno and Sparks jointly owned Truckee Meadows Water Reclamation Facility's National Pollutant Discharge Elimination System Permit and State Water Quality Standards, and including indirect allocated costs as well as funding depreciation expense and the interest and principal payments of debt incurred for the sewerage system.

(Ord. No. 2899, § 1 (7.20.036), 8-25-80; Ord. No. 3456, § 3, 1-26-87; Ord. No. 4543, § 1, 8-8-95; Ord. No. 4638, § 3, 6-25-96; Ord. No. 5102, § 2, 12-14-99; Ord. No. 5717, § 1, 7-6-05)

DIVISION 3. WASTEWATER SURCHARGE

Sec. 12.16.170. Purpose.

The purpose of a waste surcharge is to recover collection, treatment, disposal and administration expenses associated with higher concentrations of waste than normal domestic strength wastewater as defined in section 12.16.010. The funds collected will be used solely for the purposes under section 12.16.110. All sewer charges in division 2 of this article are based on flow and equivalent strength to domestic wastewater discharges. For discharges in excess of normal domestic strength wastewater concentrations, a waste surcharge shall be charged in addition to the sewer user charge.

(Ord. No. 2899, § 1(7.20.041), 8-25-80; Ord. No. 5102, § 2, 12-14-99; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.180. Scope.

The wastewater surcharge will be implemented in cooperation with the city's wastewater discharge regulations. Wastewater discharge data from industrial users shall be supplied by the user as specified in a wastewater discharge permit as required under article III of this chapter. Charges for wastewater surcharge shall commence upon notice to the industrial user.

(Ord. No. 2899, § 1(7.20.042), 8-25-80; Ord. No. 2949, § 1, 7-27-81; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.190. Reserved.

Editor's note—Ord. No. 4560, § 1, adopted Sept. 26, 1995, repealed § 12.16.190, which pertained to local domestic wastewater strength. See the Code Comparative Table.

Sec. 12.16.200. Surcharge rates.

Surcharge commercial/industrial user class rates are included in the actual billed rate for nonresidential user fee rates. The wastewater fees of commercial/industrial dischargers are

based upon the following applicable equation (in accordance with the findings and methodology of the Sewer Equity Study by Brown and Caldwell dated June 1995 and the Wastewater Rate Study Report by Red Oak Consultants dated June 2005) or are predefined in Table I of section 12.16.130 for commercial/industrial user class rates.

Commercial/Industrial User Class Rates are based upon the following:

Effective Date	Commercial/Industrial User Class Surcharge Calculations
October 1, 2011	4.97671870 + (BOD5 - 174) × (0.00277678) + (SS - 150) × (0.00340486) + (P - 7) × (0.06384208) + (N - 20.2) × (0.02679774)
October 1, 2012	5.37485620 + (BOD5 - 174) × (0.00299892) + (SS - 150) × (0.00367725) + (P - 7) × (0.06894945) + (N - 20.2) × (0.02894156)
October 1, 2013	5.80484469 + (BOD5 - 174) × (0.00323883) + (SS - 150) × (0.00397143) + (P - 7) × (0.07446541) + (N - 20.2) × (0.03125688)
October 1, 2014	6.26923227 + (BOD5 - 174) × (0.00349794) + (SS - 150) × (0.00428915) + (P - 7) × (0.08042264) + (N - 20.2) × (0.03375743)
October 1, 2015	6.77077085+(BOD-174)*(0.00377777)+(SS-150)*(0.00463228)+(P-7)*(0.08685645)+(N-20.2)*(0.03645803)

BOD = Commercial/industrial customer's BOD concentrations, mg/l

SS = Commercial/industrial customer's SS concentration, mg/l

P = Commercial/industrial customer's P concentration, mg/l (Total Phosphorus)

N = Commercial/industrial customer's N concentration, mg/l (Total Nitrogen)

A commercial/industrial customer class not assignable in Table I of section 12.16.130 shall have a user fee rate established by the above equation and the methodology of the Sewer Equity Study dated June 1995.

Effective October 1, 2016, the rate effective October 1, 2015 shall be subject to an automatic increase by an amount equal to the increase of the Consumer Price Index-All Urban Consumers (CPI-U) for the west urban area, as published by the Bureau of Labor Statistics. The measurement period shall end with the published index for December of each year and the resulting increases shall be implemented with the October billings which will be reflected in the fee resolution adopted by city council and kept on file in the office of the clerk and the finance department.

(Ord. No. 2899, § 1, (7.20.044), 8-25-80; Ord. No. 2991, § 1, 6-28-82; Ord. No. 3924, § 5, 2-27-90; Ord. No. 4560, § 1, 9-26-95; Ord. No. 5102, § 3, 12-14-99; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6305, § 1, 8-28-13; Ord. No. 6356, § 1, 12-10-14; Ord. No. 6438, § 4, 9-27-17)

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DIVISION 4. RESERVED *

Secs. 12.16.210—12.16.270. Reserved.

DIVISION 5. CONNECTION FEES

Sec. 12.16.280. Connection fee

(a) If a sewage allocation program is in effect, the connection fee will be paid as specified in section 12.16.310.

(b) Except as provided for in (c) and (d) of this section, the connection fee for connection to city facilities will be paid prior to building permit issuance.

(c) The connection fee for new connections to city facilities or change of occupancy may be deferred until prior to the issuance of a certificate of occupancy. No certificate of occupancy will be issued until such time as the connection fees are paid in full.

(d) For affordable housing projects:

(1) Temporary deferral of the connection fee for connection to city facilities may be approved by city council pursuant to the terms of an affordable housing deferral agreement.

(2) Connection fees may be reduced or subsidized pursuant to the Reno Municipal Code 1.08.

(e) If a connection is made to the wastewater facility without a building permit and payment of connection fees, the discharger will be subject to a connection fee which is twice the applicable connection fee plus all applicable costs required to determine the illegal connection.

(Ord. No. 2899, § 1, (7.20.061), 8-25-80; Ord. No. 3082, § 1, 5-23-83; Ord. No. 4346, § 1, 10-12-93; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6409, § 1, 8-10-16; Ord. No. 6545, § 1, 2-12-20; Ord. No. 6651, § 2, 4-12-23)

Sec. 12.16.290. Dwelling unit or residential unit.

The connection fee is at a flat rate for each residential unit and shall be in accordance with the following schedule and effective dates:

***Editor's note—**Ord. No. 2993, § 1, adopted June 28, 1982, repealed Div. 4. §§ 12.16.210—12.16.270, "Industrial Cost Recovery," as derived from Ord. No. 2899. § enacted Aug. 25, 1980.

RESIDENTIAL CONNECTION FEE RATES

Type of Residential Unit	TMWRF	Lawton-Verdi/ TMWRF	RSWRF
Single-Family Dwelling up to 31 fixture units (per dwelling)	$12,002	$14,594	$11,906
Single-Family Dwelling >31 fixture units (per dwelling)	$12,002 + ($554 x number of fixture units exceeding 31)	$14,594 + ($673 x number of fixture units exceeding 31)	$11,906 + ($549 x number of fixture units exceeding 31)
Multi-Family Residential Dwelling (per dwelling unit)	$10,202	$12,463	$10,168
Multi-Family Residential Dwelling (micro-unit) 600 sq. ft. or less up to 15 fixture units	$8,310	$10,095	$8,235
Mobile Home Estates or Subdivisions*	$12,002	$14,594	$11,906
Mobile Home Parks (per space)	$12,002	$14,594	$11,906
Residential Dwelling Unit Shared Kitchen or Rooming House Kitchen	$4,275	$5,198	$4,241
Rooming House (per room rental)	$3,842	$4,672	$3,811
Fixture Unit Fee (see fixture unit weight table at 12.16.150 for calculation)	$554	$673	$549

* (Per Each Mobile Unit Space)
The connection fee for each bedroom unit used in connection with a shared kitchen shall be the fee for a rooming house (per room rental).

Beginning July 1, 2024, the effective rate shall be subject to an automatic increase by an amount equal to the increase of the Consumer Price Index-All Urban Consumers (CPI-U) for the west urban area, as published by the Bureau of Labor Statistics. The measurement period shall end with the published index for December of each year and the resulting increases shall be implemented on July 1 of the following year which will be reflected in the fee resolution adopted by city council and kept on file in the office of the clerk and the finance department.

(Ord. No. 2899, § 1 (7.20.062), 8-25-80; Ord. No. 2954, § 1, 9-14-81; Ord. No. 3456, § 4, 1-26-87; Ord. No. 3945, § 1, 4-24-90; Ord. No. 4055, § 1, 2-26-91; Ord. No. 5102, § 4, 12-14-99; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6646, § 1, 1-25-23; Ord. No. 6651, § 3, 4-12-23)

Sec. 12.16.300. Industrial/commercial connection fee.

(1) The sewer connection fee will be based on the number of weighted fixture units which are being connected times the current fixture unit fee per weighted fixture unit. The number of weighted fixture units shall be in accordance with the weighted fixture unit schedule in section 12.16.150. The connection fee shall not be less than the current residential connection fee in section 12.16.290 for a single-family dwelling per connection.

Fixture Unit Industrial/Commercial Fee Schedule
INDUSTRIAL/COMMERCIAL FIXTURE UNIT FEE AND EFFECTIVE DATES

TMWRF	Lawton-Verdi/TMWRF	RSWRF
$554	$673	$549

Beginning July 1, 2024, the effective rate shall be subject to an automatic increase by an amount equal to the increase of the Consumer Price Index-All Urban Consumers (CPI-U) for the west urban area, as published by the Bureau of Labor Statistics. The measurement period shall end with the published index for December of each year and the resulting increases shall be implemented on July 1 of the following year which will be reflected in the fee resolution adopted by city council and kept on file in the office of the clerk and the finance department.

(2) Effective April 1, 2000, in addition to a sewer connection fee based upon weighted fixture units, any new commercial/industrial sewer connection fee shall include an additional fee component for any wastes greater in strength than 20 percent of normal domestic wastes. The basis of cost for the additional connection fee charge shall be the unit cost of each cost category (flow, BOD, SS, P and N) for which a residential connection is charged as determined by the Sewer Service Commission. Each discharger covered by this section shall be required to submit a wastewater connection fee application containing the estimated maximum monthly quantities and peak daily quantities for flow, BOD, SS, P, N and Total Dissolved Solids (TDS). The additional connection fee for Commercial/Industrial users will be based upon estimates furnished in the wastewater connection fee application and approved by the director. The environmental control discharge permit issued for which the connection fee was paid will contain the allowed flow and loading specific to the property from which the discharge will occur. The environmental control discharge permit issued under section 12.16.610. (Permit for industrial/commercial discharges) may contain provisions requiring the discharger to report future flows and strength. The environmental control discharge permit may limit actual discharge based upon the estimate furnished in the wastewater connection fee application. In the event flow and/or loading increases occur either incrementally or all at once after a connection fee is paid, additional connection fees will be assessed. The fee calculation shall be based upon the difference between the permitted flows and loads as contained in the original wastewater discharge permit and the maximum monthly flows and loads reported. The payment for the additional fees will become due and payable by the discharger 120 days after receipt of bill. The user may, within three years of occupancy, request a one-time reevaluation of the connection fee for reimbursement of the additional connection fee. Any reimbursement shall be at the rate charged at the time the connection fee was paid.

(Ord. No. 2899, § 1 (7.20.063), 8-25-80; Ord. No. 3456, § 5, 1-26-87; Ord. No. 3945, § 1, 4-24-90; Ord. No. 4055, § 1, 2-26-91; Ord. No. 5102, § 4, 12-14-99; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6646, § 2, 1-25-23)

Sec. 12.16.310. Prepayment of sewer connection fees by prospective users.

(a) If the city council determines the need to establish a sewer allocation list for either the Truckee Meadows Water Reclamation Facility or Reno Stead Water Reclamation Facility applicants will be required to prepay sewer connection fees prior to being placed on the allocation list.

(b) Prepayment of sewer connection fees must be made in cash only.

(c) Each applicant for residential allocation shall pay his sewer connection prepayment fee, pursuant to section 12.16.290 and any amendments thereto, prior to filing each final map. No consideration for gallonage allocation shall be given to any applicant until the filing of the final map and the said prepayment of fees as required herein.

(d) Prepayment of sewer connection fees, pursuant to section 12.16.290 and any amendment thereto, shall be paid at the time application is made for issuance of a building permit for construction of any structure other than residential.

(e) The amount of prepaid fees shall be based upon the connection charges in effect at the time the prepayments are paid.

(f) Acceptance of prepayment of sewer connection fees shall not be deemed nor construed as a guarantee that sewage treatment capacity will be available at any point in time nor shall any person or user acquire any rights of any kind by reason of prepayment of sewer connection fees in the event that sewage treatment capacity should, at any time, be insufficient to accommodate all user applicants.

(Ord. No. 2899, § 1 (7.20.064), 8-25-80; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.320. Expenditure of funds limited.

(a) Upon timely receipt by the city of prepaid sewer connection fees in cash sufficient to fund a project or projects for expansion as stated below, the city council shall immediately implement the procedures for the issuance of appropriate contracts to provide for additions to the treatment plant, so as to increase the capacity of the treatment plant by additional facilities or for additions to the sewerage system equal to the amount of prepaid fees received by the city. Contracts shall include necessary engineering design and construction which must be eligible for all approvals, permits, and requirements of all applicable regulatory agencies.

(b) All cash monies received by the city as prepayments of sewer connection fees shall be expended and utilized only for the purpose specified in subsection (a) of this section.

(Ord. No. 2899, § 1 (7.20.064A), 8-25-80; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6356, § 1, 12-10-14)

Sec. 12.16.150. Weighted fixture unit schedule.

(a) The number of weighted sewer fixture units for new installation or determination of credit based upon existing fixtures shall be determined from the following schedule:

Fixture Description	*Quantity of Fixtures*	*Sewer Weighting Value*	*Total Sewer Fixture Units (SFU)*
Bar Sink	-	2.0	-
Bathroom Group (Hotel or motel only)	-	8.0	
Bathtub	-	2.0	-
Car Wash—Self Serve (per bay)	-	28.0	-
Car Wash—Auto Wash	-	100.0	-
Clinic Sink	-	3.0	-
Coffee Making Station, Commercial	-	-	-
Dipper Well	-	3.0	-
Dishwasher—Commercial	-	35.0	-
Dishwasher—Conveyor	-	100.0	-
Dishwasher—Residential Type	-	2.0	-
Disposal—Commercial (with Independent Water Supply)	-	50.0	-
Drinking Fountain or Watercooler	-	0.5	-
Floor Drain or Floor Sink	-	2.0	-
Hair Wash Sink	-	5.0	-
Kitchen Sink—Break Room	-	2.0	-
Kitchen Sink—Commercial (3 Compartment Sink or Similar)	-	4.0	-
Laundry Machine—Residential Type <4.5 cu. Ft. (12—20 lbs. capacity)	-	8.0	-
Laundry Machine—Commercial (max 35 lb. Capacity)	-	50.0	-
Laundry Machine—Commercial—Per lb. Capacity (above 35 lbs.)	-	1.5	-
Laundry Sink	-	4.0	-
Lavatory	-	1.0	-
Mop Sink or Service Sink	-	2.0	-
RV Dump Station	-	25.0	-
RV Park per Wet Space	-	7.0	-
Shower Stall—Per Head	-	2.0	-
Urinal	-	2.0	-
Washfountain, Circular Spray	-	3.0	-
Wash-Up Sink	-	2.0	-
Water Closet	-	4.0	-
Whirlpool Bath or Combination Bath/ Shower	-	4.0	-
Trench Drains (per 30 ft. of trench drain)	-	15.0	-
Other	-	-	-

(1) Recycle: Reduced by percentage rate as determined by director.

(2) Multiply by one and five-tenths (1.5) for industrial/commercial facilities with greater than 12-hour and less than 16-hour operation. Multiply by two and zero-tenths (2.0) for industrial/commercial facilities with greater than 16-hour operation.

(3) Weighted fixture units required for a dwelling unit is established at 21.67.

(b) For fixtures not listed, weights may be assumed by comparing the fixture to a listed one using water in similar quantities and at similar rates.

(Ord. No. 2899, § 1 (7.20.035), 8-25-80; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.155. Sewer connection fee credit policy.

(1) The purpose of a connection fee is to reserve sewer capacity for treatment and conveyance.

(2) Effective August 26, 2011, the sewer connection fee credit will be determined by:

(a) Evidence of the original basis of the connection fee which must be provided as follows:

(i) If the structure was a single family residence, evidence showing the structure as a single family residence.

(ii) If the structure was an industrial, commercial or multi-family structure the following detail must be provided:

(a) The original sewer connection fee receipt or documentation associated with the original building of the structure, or

(b) A re-creation of fixture unit counts for the structure using building plans acceptable to the director of public works, or

(c) Performance of a physical fixture unit count which is accepted by the director of public works.

(b) And, the current weighting values.

(3) If a structure on a property is demolished or is destroyed by fire on or after August 26, 2011, the sewer capacity or ″sewer connection fee credit″ associated with that structure will be considered valid for a period of five years from the date the structure was demolished or destroyed.

(a) Proof of such must be accepted by the director of public works and the building department pursuant to Title 12.16 to terminate billing.

(b) If a building permit is not issued utilizing the approved sewer ″connection fee credit″ within the five years, the credits will no longer be considered valid.

(4) If a structure is rebuilt on the property or contiguous property under common ownership or agreement (providing it flows into the same collection system and causes no capacity problems), the connection fee at the current rate associated with that sewer capacity will be applied.

(5) If the fixture units shown in the plans for the new structure to be built exceed the connection fee credit, the balance of the calculated connection fees must be paid at the current rate prior to the issuance of a building permit or certificate of occupancy pursuant to RMC 12.16.280.

DIVISION 6. BILLING, COLLECTION AND ENFORCEMENT OF SEWER USER CHARGES

Sec. 12.16.380. Charges payable by owner.

The finance director shall bill the owner of the premises connected to the wastewater facilities for payment of sewer user charges and waste surcharges.

(a) In the case of industrial/commercial users, billing may be rendered the lessee or lessees obligated to pay such rates and charges upon written notice delivered to the finance director and executed by both the owner and lessee; however, any such billing to a lessee shall not relieve the owners of responsibility for payment of the bill.

(b) In the case of residential or non-industrial/non-commercial users, billing may be rendered the tenant or tenants or property management companies obligated to pay such rates and charges upon written notice delivered to the finance director and executed by both the owner and tenant; however, any such billing to a tenant or property management companies shall not relieve the owners of responsibility for payment of the bill.

(Ord. No. 2899, § 1 (7.20.070), 8-25-80; Ord. No. 2993, § 1, 6-28-82; Ord. No. 4167, § 1, 11-26-91; Ord. No. 6129, § 1, 10-7-09; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.390. Billing period.

(a) The billing period for the charges shall be quarterly in advance for residential users, and the payments shall be due and payable upon receipt of the bill and shall be delinquent if not fully paid on the last day for the quarter in which the bill is sent to the user by the city. Apartments, mobile homes and room rentals shall be classified as residential users for sewer billing purposes.

(b) The billing period for the charges shall be quarterly in arrears for industrial/commercial users, and payments shall be due and payable upon receipt of the bill and shall be delinquent if not fully paid on the last day of the quarter in which the bill is sent to the user by the city.

(c) All payments for charges if not actually received at the office of the city clerk by 5:00 p.m., or deposited in any drop box provided by the city, on the last day of any period described in subsections (a) and (b) above, shall nevertheless be deemed timely paid if postmarked on the last day of the period as provided in NRS 238.100. All payments which are not so received or postmarked by the last day of the applicable period shall be subject to the penalties provided in subsection (d) below.

(d) There shall be added to all such charges which are delinquent a penalty of 15 percent of the charges assessed on all unpaid amounts and will be compounded each billing period.

(e) Any penalty or portion thereof assessed pursuant to this title may be reversed or modified at the discretion of the city manager or their designee in accordance with established Finance Department policy.

(Ord. No. 2899, § 1 (7.20.072), 8-25-80; Ord. No. 2938, § 1, 6-28-82; Ord. No. 3456, § 6, 1-26-87; Ord. No. 3835, § 1, 7-24-89; Ord. No. 4140, § 1, 8-27-91; Ord. No. 4565, § 1, 10-10-95; Ord. No. 4829, § 1, 1-13-98; Ord. No. 5519, § 1, 12-3-03; Ord. No. 6128, § 1, 10-7-09)

Sec. 12.16.395. Appeals to the administrative hearing officer.

(a) Any director or staff decision relating to the imposition and/or collection of the fees and charges provided for in this article II may be appealed to the administrative hearing officer by filing with the administrative hearing officer at the city clerk's office, within 30 calendar days after the date on which any such fees or charges are due, a written statement setting forth fully the grounds for the appeal. The administrative hearing officer may modify or reverse any such decision based on legal justification.

(b) The hearing before the administrative hearing officer shall be conducted in accordance with the procedures specified in section 4.04.170.

(c) The decision of the administrative hearing officer may be appealed to municipal court, unless appeal to another tribunal is required by law, within 30 calendar days after written notification of the administrative hearing officer's action by filing a statement of appeal or complaint setting forth the facts, grounds and legal justification for the appeal. Failure to file a timely appeal to court shall be deemed a waiver of any and all objections to the administrative hearing officer's decision.

(d) Representation is limited to representation in proper persona or by an attorney who is licensed to practice law in the State of Nevada.

(Ord. No. 4915, § 3, 9-22-98; Ord. No. 6130, § 1, 10-7-09; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6224, § 1, 2-22-12; Ord. No. 6230, § 1, 5-23-12; Ord. No. 6305, § 1, 8-28-13; Ord. No. 6559, § 1, 3-25-20)

Sec. 12.16.400. Notification.

Each user shall be notified at least annually, in conjunction with a regular bill, of the rate and that portion of the user charges which are attributable to wastewater treatment services.

(Ord. No. 2899, § 1 (7.20.073), 8-25-80)

Sec. 12.16.410. Biennial review of sewer service charges.

The city shall review at least once every two years the wastewater contribution of users or user classes, the total costs of operation and maintenance of the treatment works, and its appropriate user charge. The city shall revise the charges for users or use classes to accomplish the following:

(1) Maintain the proportionate distribution of operation and maintenance costs among users and user classes;

(2) Generate sufficient revenue to pay the total operation and maintenance costs necessary for the proper operation and maintenance of the treatment works (including replacement);

(3) Apply excess revenues collected from a class of users to the operation and maintenance costs attributable to that class for the next year and adjust the rate accordingly.

(Ord. No. 2899, § 1 (7.20.074), 8-25-80)

Sec. 12.16.420. Sewer user fees when vacant or fire damaged.

(1) There shall be no reduction in sewer user charges for dwelling unit or residential unit for any premises to which a sewer service connection exists during any period of vacancy

and the user charge will be the applicable rate pursuant to section 12.16.120. Commercial/industrial dischargers during periods of vacancy shall pay the metered rate or the rate for a single family unit whichever is greater.

(2) For a fire damaged structure that has been determined by an authorized city official as unsafe for human occupancy and is being repaired or rebuilt, sewer user charges will be waived during the period where the structure is being repaired or rebuilt which time period commences from the date of determination by the authorized city official to the date of final inspection for the applicable permit by the City of Reno Building Department or after the expiration of five years, whichever occurs first. Upon resumption of the billing, the sewer user charge shall be the applicable rate in accordance with the fee schedule.

(Ord. No. 2899, § 1 (7.20.075), 8-25-80; Ord. No. 3498, § 1 5-11-87; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6451, §§ 1, 2, 2-28-18; Ord. No. 6704, § 2, 3-26-25)

Editor's note—Ord. No. 6451, §§ 1, 2, adopted Feb. 28, 2018, changed the title of § 12.16.420 from "Vacancy or demolition provisions" to read as herein set out.

Sec. 12.16.430. Termination of charges.

The sewer user charge shall be terminated as follows:

(a) Upon the receipt of an affidavit by the property owner of sewer connection severance and verification by the building department. The affidavit must be accompanied with a copy of the invoice from the person who severed the connection. Any discharger that has the sewer user charge terminated will only be allowed to reconnect to the sewer system after obtaining a building permit and paying the applicable connection fees.

(Ord. No. 2899, § 1 (7.20.076), 8-25-80; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6704, § 3, 3-26-25)

Sec. 12.16.440. Method of collection of delinquent charges.

(a) All charges imposed by this chapter become a lien against the property serviced, until paid.

(b) In addition to the foregoing, the sewer service commission may, after a determination has been made at a publicly noticed meeting of the name of the person chargeable, the premises, and the delinquent charges due, order the sewer connection to be severed for default in payment of sewer fees and the cost of such severance assessed to the person chargeable for the sewer fees.

(c) In addition to the foregoing, the City of Reno Finance Department may cause to have a person's delinquent charges for sewerage collected on the county's tax roll in the same manner, by the same persons, and at the same time as, together with and not separately from, the county's general taxes. The City of Reno Finance Department shall have the right to collect from such person(s) four percent of the amount of the delinquent charges for sewerage to be collected on the tax roll or the amount estimated by the county treasurer which is necessary to collect and distribute those delinquent charges, whichever is greater.

(Ord. No. 2899, § 1 (7.20.077), 8-25-80; Ord. No. 4543, § 1, 8-8-95; Ord. No. 4623, § 1, 4-23-96)

Sec. 12.16.450. Use of charges collected.

The proceeds from connection charges shall be used solely for the capital costs required to construct improvements, expansion, extension or betterment of the wastewater and storm-water facilities, and reasonable appurtenances of the city, and for costs connected to the Reno-Sparks Joint Water Pollution Control Plant's National Pollutant Discharge Elimination System Permit or any other NPDES permit issued to the City of Reno.

(Ord. No. 2899, § 1 (7.20.078), 8-25-80; Ord. No. 4543, § 1, 8-8-95; Ord. No. 4638, § 4, 6-25-96; Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.455. Use of customer lists.

Customer lists of commercial and industrial users received by the city from Truckee Meadows Water Authority for the purposes of sewer billing shall not be available for inspection by the public, and water consumption data received from Sierra Pacific Power Company d/b/a Nv Energy relating to those users shall not be available for inspection by the public except on a need-to-know basis on individual accounts. Submittal, maintenance and release of records from industrial users that are deemed confidential or trade secrets shall be done in accordance with the requirements of section 12.16.590.

(Ord. No. 2948, § 1, 7-27-81; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6305, § 1, 8-28-13)
Editor's note—Ord. No. 2948, § 1, adopted July 27, 1981, added § 7.20.079A to the 1966 Code; the editor has designated it as § 12.16.455 hereof.

DIVISION 7. WASTEWATER FACILITIES CONSTRUCTION

Sec. 12.16.460. Prior approval of plans.

All construction plans and specifications of connection to the wastewater or stormwater systems must be approved by the community development director before issuance of any permits. This applies to all incorporated areas of the city and those unincorporated areas which will use the city's wastewater facilities. The community development director may require that the plans be prepared under the supervision of and signed by an engineer of suitable training registered in the state. Prior to the issuance of any permits to replace any plumbing fixture or equipment, all such fixture units or equipment must be approved by the community development director. If required the plans must include the requirements in section 12.16.650.

(Ord. No. 2899, § 1 (7.20.081), 8-25-80; Ord. No. 3499, § 1, 5-11-87; Ord. No. 4543, § 1, 8-8-95)

Sec. 12.16.300. Industrial/commercial connection fee.

(1) The sewer connection fee will be based on the number of weighted fixture units which are being connected times the current fixture unit fee per weighted fixture unit. The number of weighted fixture units shall be in accordance with the weighted fixture unit schedule in section 12.16.150. The connection fee shall not be less than the current residential connection fee in section 12.16.290 for a single-family dwelling per connection.

Fixture Unit Industrial/Commercial Fee Schedule
INDUSTRIAL/COMMERCIAL FIXTURE UNIT FEE AND EFFECTIVE DATES

Effective Through October 1, 2005 Connection Fees	*Effective October 1, 2005 Connection Fees*	*Effective October 1, 2006 Connection Fees*	*Effective October 1, 2007 Connection Fees*	*Effective October 1, 2008 Connection Fees*	*Effective October 1, 2009 Connection Fees*
$179	$200	$211	$223	$234	$244

Effective Through October 1, 2010 Connection Fees	*Effective on October 1, 2011 Connection Fees*	*Effective on October 1, 2012 Connection Fees*	*Effective on October 1, 2013 Connection Fees*	*Effective on October 1, 2014 Connection Fees*
$254	$264	$275	$285	$295

(2) Effective April 1, 2000, in addition to a sewer connection fee based upon weighted fixture units, any new commercial/industrial sewer connection fee shall include an additional fee component for any wastes greater in strength than 20 percent of normal domestic wastes. The basis of cost for the additional connection fee charge shall be the unit cost of each cost category (flow, BOD, SS, P and N) for which a residential connection is charged as determined by the Sewer Service Commission. Each discharger covered by this section shall be required to submit a wastewater connection fee application containing the estimated maximum monthly quantities and peak daily quantities for flow, BOD, SS, P, N and Total Dissolved Solids (TDS). The additional connection fee for Commercial/Industrial users will be based upon estimates furnished in the wastewater connection fee application and approved by the director. The environmental control discharge permit issued for which the connection fee was paid will contain the allowed flow and loading specific to the property from which the discharge will occur. The environmental control discharge permit issued under section 12.16.610. (Permit for industrial/commercial discharges) may contain provisions requiring the discharger to report future flows and strength. The environmental control discharge permit may limit actual discharge based upon the estimate furnished in the wastewater connection fee application. In the event flow and/or loading increases occur either incrementally or all at once after a connection fee is paid, additional connection fees will be assessed. The fee calculation shall be based upon the difference between the permitted flows and loads as contained in the original wastewater discharge permit and the maximum monthly flows and loads reported. The payment for the additional fees will become due and payable by the discharger 120 days after receipt of bill. The user may,

within three years of occupancy, request a one time reevaluation of the connection fee for reimbursement of the additional connection fee. Any reimbursement shall be at the rate charged at the time the connection fee was paid.

(Ord. No. 2899, § 1 (7.20.063), 8-25-80; Ord. No. 3456, § 5, 1-26-87; Ord. No. 3945, § 1, 4-24-90; Ord. No. 4055, § 1, 2-26-91; Ord. No. 5102, § 4, 12-14-99; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.310. Prepayment of sewer connection fees by prospective users.

(a) If the city council determines the need to establish a sewer allocation list for either the Truckee Meadows Water Reclamation Facility or Reno Stead Water Reclamation Facility applicants will be required to prepay sewer connection fees prior to being placed on the allocation list.

(b) Prepayment of sewer connection fees must be made in cash only.

(c) Each applicant for residential allocation shall pay his sewer connection prepayment fee, pursuant to section 12.16.290 and any amendments thereto, prior to filing each final map. No consideration for gallonage allocation shall be given to any applicant until the filing of the final map and the said prepayment of fees as required herein.

(d) Prepayment of sewer connection fees, pursuant to section 12.16.290 and any amendment thereto, shall be paid at the time application is made for issuance of a building permit for construction of any structure other than residential.

(e) The amount of prepaid fees shall be based upon the connection charges in effect at the time the prepayments are paid.

(f) Acceptance of prepayment of sewer connection fees shall not be deemed nor construed as a guarantee that sewage treatment capacity will be available at any point in time nor shall any person or user acquire any rights of any kind by reason of prepayment of sewer connection fees in the event that sewage treatment capacity should, at any time, be insufficient to accommodate all user applicants.

(Ord. No. 2899, § 1 (7.20.064), 8-25-80; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.320. Expenditure of funds limited.

(a) Upon timely receipt by the city of prepaid sewer connection fees in cash sufficient to fund a project or projects for expansion as stated below, the city council shall immediately implement the procedures for the issuance of appropriate contracts to provide for additions to the treatment plant, so as to increase the capacity of the treatment plant by additional facilities or for additions to the sewerage system equal to the amount of prepaid fees received by the city. Contracts shall include necessary engineering design and construction which must be eligible for all approvals, permits, and requirements of all applicable regulatory agencies.

(b) All cash monies received by the city as prepayments of sewer connection fees shall be expended and utilized only for the purpose specified in subsection (a) of this section.

(Ord. No. 2899, § 1 (7.20.064A), 8-25-80; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6356, § 1, 12-10-14)

Sec. 12.16.330. Administration of procedures by public works.

(a) The director shall administer the allocation of sewer capacity and issuance of sewer connection permits.

(b) The director shall not withhold issuance of sewer connection permits indiscriminately provided sufficient capacity exists. Upon determination by the city council that the remaining sewage capacity available for allocation from the city's portion of any sewage plant is at such a level so as to endanger the health, safety and welfare of the citizens of the city, or is in the best interest of the city, it shall institute an allocation program for the remaining capacity. Any allocation system will divide the capacity proportionately between commercial and residential according to historical data of construction within the community prior to 1977.

(c) At such time as available capacity for allocation is increased by plant expansion so as to alleviate any harm to the citizens of the city, the allocation system shall be discontinued. Any action taken pursuant to the procedures established for the allocation of any remaining capacity may be appealed to the city council upon 30 days written notice of such action.

(d) Each application for sewer connection shall be dated and time stamped. If an allocation program is implemented, date and time will determine the order of issuance of available capacity.

(e) The following shall be exempt from allocation regulations and are permitted to move to the front of the allocation list. The maximum allocation shall be limited to 10,000 gallons per day per project in any given month.

- **(1)** A single-family residence for the owner's use and occupancy or individuals remodeling their own single-family residence for their own use;
- **(2)** Commercial application with a requirement of 500 gallons per day or less;
- **(3)** Public health, safety and welfare projects;
- **(4)** Affordable housing as defined by ordinance;
- **(5)** Elderly and handicapped housing;
- **(6)** All projects requiring consideration because of a regulatory agency's order or rule for health, welfare or safety purposes with a sewage treatment demand of six fixture units or less will be issued permits upon a sufficient showing of need;
- **(7)** When it is deemed by the health department that an existing septic tank is no longer usable and is a hazard to health;
- **(8)** Residential applicants with a requirement of 1,000 gallons per day, or less, per year per single family builder or developer.

(f) Any allocation made under subsection (e) shall be charged against the total sewage treatment capacity before any consideration is given to the allocation for residential and commercial.

(g) The director shall post current copies of all allocation, abeyance and waiting lists in a conspicuous place in the director's office for viewing by any person and copies shall be furnished upon request to any person.

(Ord. No. 2899, § 1 (7.20.064B), 8-25-80; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.340. No delegation of city council power.

By the enactment of section 12.16.310, the city council is not delegating, relinquishing or waiving any of its powers with respect to zoning, major project review, special use permit conditions, required compliance with building or other codes, or any other rule, procedure, policy or regulation of the city.

(Ord. No. 2899, § 1 (7.20.064C), 8-25-80; Ord. No. 5717, § 1, 7-6-05)

Sec. 12.16.350. Regulations recommendation of sewer service commission.

The sewer service commission shall recommend to the city council regulations and policies consistent with the provisions of this chapter for the implementation of the provisions contained herein. Each prepayment of a sewer connection fee must be assigned to a specific project and shall not be transferable.

(1) If a specific project is unable to proceed, a return of up to 95 percent of the prepaid sewer connection fee may be made if the funds deposited have not been committed for capital projects construction. If funds have been committed, the percentage return will be 100 percent minus the percent developed by taking the amount of capital projects construction committed between the date of the prepayment and the date of the request for the return divided by the unreserved retained earnings in the capital sewer projects division of the sanitary sewer enterprise fund on the date of the request for the return. The return will never be more than 95 percent nor less than zero percent. However, if the prepayment of a sewer connection fee resulted in the city issuing a notice to the county department of health that sewage services will be provided to a subdivision, "a will-serve letter," refunds will not be made.

(2) Whenever a subdivision has prepaid sewer connection fees and is issued a "will-serve letter" for sewage treatment, and said subdivision subsequently reverts to acreage, a return not exceeding 95 percent of the sewer connection fee will be returned as set forth in subsection (1) above. Exception: The calculation will be made as of the date of recordation of the map of reversion or abandonment and not on the date of request for return.

(Ord. No. 2899, § 1, (7.20.064D), 8-25-80; Ord. No. 2977, § 1, 3-8-82; Ord. No. 3047, § 1, 11-22-82; Ord. No. 5717, § 1, 7-6-05)

Sec. 12.16.360. Expiration of chapter by limitation.

If the city determines that circumstances occur outside of the control of the city which would prevent execution of any of the change orders or contracts under this chapter, this chapter shall expire by limitation, be of no further force and effect, and all uncommitted monies shall be returned prorata by the city to the payers thereof without interest, and the provision of section 12.16.290 will be applicable. Any prepayments made pursuant to this chapter shall be nonrefundable.

(Ord. No. 2899, § 1 (7.20.064E), 8-25-80; Ord. No. 5717, § 1, 7-6-05; Ord. No. 6356, § 1, 12-10-14)

Sec. 12.16.370. Reserved.

Editor's note—Ord. No. 6197, § 1, adopted August 24, 2011, repealed § 12.16.370 which pertained to connection fees adjusted. See also the Code Comparative Table.

DIVISION 6. BILLING, COLLECTION AND ENFORCEMENT OF SEWER USER CHARGES

Sec. 12.16.380. Charges payable by owner.

The finance director shall bill the owner of the premises connected to the wastewater facilities for payment of sewer user charges and waste surcharges.

(a) In the case of industrial/commercial users, billing may be rendered the lessee or lessees obligated to pay such rates and charges upon written notice delivered to the finance director and executed by both the owner and lessee; however, any such billing to a lessee shall not relieve the owners of responsibility for payment of the bill.

(b) In the case of residential or non-industrial/non-commercial users, billing may be rendered the tenant or tenants or property management companies obligated to pay such rates and charges upon written notice delivered to the finance director and executed by both the owner and tenant; however, any such billing to a tenant or property management companies shall not relieve the owners of responsibility for payment of the bill.

(Ord. No. 2899, § 1 (7.20.070), 8-25-80; Ord. No. 2993, § 1, 6-28-82; Ord. No. 4167, § 1, 11-26-91; Ord. No. 6129, § 1, 10-7-09; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.390. Billing period.

(a) The billing period for the charges shall be quarterly in advance for residential users, and the payments shall be due and payable upon receipt of the bill and shall be delinquent if not fully paid on the last day for the quarter in which the bill is sent to the user by the city. Apartments, mobile homes and room rentals shall be classified as residential users for sewer billing purposes.

(b) The billing period for the charges shall be quarterly in arrears for industrial/commercial users, and payments shall be due and payable upon receipt of the bill and shall be delinquent if not fully paid on the last day of the quarter in which the bill is sent to the user by the city.

(c) All payments for charges if not actually received at the office of the city clerk by 5:00 p.m., or deposited in any drop box provided by the city, on the last day of any period described in subsections (a) and (b) above, shall nevertheless be deemed timely paid if postmarked on the last day of the period as provided in NRS 238.100. All payments which are not so received or postmarked by the last day of the applicable period shall be subject to the penalties provided in subsection (d) below.

(d) There shall be added to all such charges which are delinquent a penalty of 15 percent of the charges assessed on all unpaid amounts and will be compounded each billing period.

(e) Any penalty or portion thereof assessed pursuant to this title may be reversed or modified at the discretion of the city manager or their designee in accordance with established Finance Department policy.

(Ord. No. 2899, § 1 (7.20.072), 8-25-80; Ord. No. 2938, § 1, 6-28-82; Ord. No. 3456, § 6, 1-26-87; Ord. No. 3835, § 1, 7-24-89; Ord. No. 4140, § 1, 8-27-91; Ord. No. 4565, § 1, 10-10-95; Ord. No. 4829, § 1, 1-13-98; Ord. No. 5519, § 1, 12-3-03; Ord. No. 6128, § 1, 10-7-09)

Sec. 12.16.395. Appeals to the administrative hearing officer.

(a) Any director or staff decision relating to the imposition and/or collection of the fees and charges provided for in this article II may be appealed to the administrative hearing officer by filing with the administrative hearing officer at the city clerk's office, within 30 calendar days after the date on which any such fees or charges are due, a written statement setting forth fully the grounds for the appeal. The administrative hearing officer may modify or reverse any such decision based on legal justification.

(b) The hearing before the administrative hearing officer shall be conducted in accordance with the procedures specified in section 4.04.170.

(c) The decision of the administrative hearing officer may be appealed to municipal court, unless appeal to another tribunal is required by law, within 30 calendar days after written notification of the administrative hearing officer's action by filing a statement of appeal or complaint setting forth the facts, grounds and legal justification for the appeal. Failure to file a timely appeal to court shall be deemed a waiver of any and all objections to the administrative hearing officer's decision.

(d) Representation is limited to representation in proper persona or by an attorney who is licensed to practice law in the State of Nevada.

(Ord. No. 4915, § 3, 9-22-98; Ord. No. 6130, § 1, 10-7-09; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6224, § 1, 2-22-12; Ord. No. 6230, § 1, 5-23-12; Ord. No. 6305, § 1, 8-28-13; Ord. No. 6559, § 1, 3-25-20)

Sec. 12.16.400. Notification.

Each user shall be notified at least annually, in conjunction with a regular bill, of the rate and that portion of the user charges which are attributable to wastewater treatment services.

(Ord. No. 2899, § 1 (7.20.073), 8-25-80)

Sec. 12.16.410. Biennial review of sewer service charges.

The city shall review at least once every two years the wastewater contribution of users or user classes, the total costs of operation and maintenance of the treatment works, and its appropriate user charge. The city shall revise the charges for users or use classes to accomplish the following:

(1) Maintain the proportionate distribution of operation and maintenance costs among users and user classes;

(2) Generate sufficient revenue to pay the total operation and maintenance costs necessary for the proper operation and maintenance of the treatment works (including replacement);

(3) Apply excess revenues collected from a class of users to the operation and maintenance costs attributable to that class for the next year and adjust the rate accordingly.

(Ord. No. 2899, § 1 (7.20.074), 8-25-80)

Sec. 12.16.420. Sewer user fees when vacant, fire damaged, or demolished.

(1) There shall be no reduction in sewer user charges for dwelling unit or residential unit for any premises to which a sewer service connection exists during any period of vacancy

and the user charge will be the applicable rate pursuant to section 12.16.120. Commercial/industrial dischargers during periods of vacancy shall pay the metered rate or the rate for a single family unit whichever is greater.

(2) For a fire damaged structure that has been determined by an authorized city official as unsafe for human occupancy and is being repaired or rebuilt, sewer user charges will be waived during the period where the structure is being repaired or rebuilt which time period commences from the date of determination by the authorized city official to the date of final inspection for the applicable permit by the City of Reno Building Department or after the expiration of five years, whichever occurs first. Upon resumption of the billing, the sewer user charge shall be the applicable rate in accordance with the fee schedule. If final inspection has not occurred within five years, the sewer service connection will be terminated pursuant to section 12.16.430(b).

(3) For a structure demolished pursuant to a permit for demolition, sewer user charges will be waived for five years from date of final demolition inspection by the City of Reno Building Department. If no certificate of occupancy is issued after the expiration of five years, the sewer service connection will be terminated pursuant to section 12.16.430(b).

(Ord. No. 2899, § 1 (7.20.075), 8-25-80; Ord. No. 3498, § 1 5-11-87; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6451, §§ 1, 2, 2-28-18)

Editor's note—Ord. No. 6541, §§ 1, 2, adopted Feb. 28, 2018, changed the title of § 12.16.420 from ″Vacancy or demolition provisions″ to read as herein set out.

Sec. 12.16.430. Termination of charges.

The sewer user charge shall be terminated as follows:

(a) Upon the receipt of an affidavit by the property owner of sewer connection severance and verification by the building department. The affidavit must be accompanied with a copy of the invoice from the person who severed the connection. Any discharger that has the sewer user charge terminated will only be allowed to reconnect to the sewer system after obtaining a building permit and paying the applicable connection fees; or

(b) In the case of a demolished structure where no certificate of occupancy is issued after the expiration of five years. Reconnection to the sewer system will only be allowed after obtaining a building permit and paying the current connection fees.

(Ord. No. 2899, § 1 (7.20.076), 8-25-80; Ord. No. 6197, § 1, 8-24-11)

Editor's note—Ord. No. 6454, § 2, adopted Feb. 28, 2018, changed the title of § 12.16.420 from ″Vacancy or demolition provisions″ to read as herein set out.

Sec. 12.16.440. Method of collection of delinquent charges.

(a) All charges imposed by this chapter become a lien against the property serviced, until paid.

(b) In addition to the foregoing, the sewer service commission may, after a determination has been made at a publicly noticed meeting of the name of the person chargeable, the premises, and the delinquent charges due, order the sewer connection to be severed for default in payment of sewer fees and the cost of such severance assessed to the person chargeable for the sewer fees.

(c) In addition to the foregoing, the City of Reno Finance Department may cause to have a person's delinquent charges for sewerage collected on the county's tax roll in the same manner, by the same persons, and at the same time as, together with and not separately from, the county's general taxes. The City of Reno Finance Department shall have the right to collect from such person(s) four percent of the amount of the delinquent charges for sewerage to be collected on the tax roll or the amount estimated by the county treasurer which is necessary to collect and distribute those delinquent charges, whichever is greater.

(Ord. No. 2899, § 1 (7.20.077), 8-25-80; Ord. No. 4543, § 1, 8-8-95; Ord. No. 4623, § 1, 4-23-96)

Sec. 12.16.450. Use of charges collected.

The proceeds from connection charges shall be used solely for the capital costs required to construct improvements, expansion, extension or betterment of the wastewater and storm-water facilities, and reasonable appurtenances of the city, and for costs connected to the Reno-Sparks Joint Water Pollution Control Plant's National Pollutant Discharge Elimination System Permit or any other NPDES permit issued to the City of Reno.

(Ord. No. 2899, § 1 (7.20.078), 8-25-80; Ord. No. 4543, § 1, 8-8-95; Ord. No. 4638, § 4, 6-25-96; Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.455. Use of customer lists.

Customer lists of commercial and industrial users received by the city from Truckee Meadows Water Authority for the purposes of sewer billing shall not be available for inspection by the public, and water consumption data received from Sierra Pacific Power Company d/b/a Nv Energy relating to those users shall not be available for inspection by the public except on a need-to-know basis on individual accounts. Submittal, maintenance and release of records from industrial users that are deemed confidential or trade secrets shall be done in accordance with the requirements of section 12.16.590.

(Ord. No. 2948, § 1, 7-27-81; Ord. No. 6197, § 1, 8-24-11; Ord. No. 6305, § 1, 8-28-13)
Editor's note—Ord. No. 2948, § 1, adopted July 27, 1981, added § 7.20.079A to the 1966 Code; the editor has designated it as § 12.16.455 hereof.

DIVISION 7. WASTEWATER FACILITIES CONSTRUCTION

Sec. 12.16.460. Prior approval of plans.

All construction plans and specifications of connection to the wastewater or stormwater systems must be approved by the community development director before issuance of any permits. This applies to all incorporated areas of the city and those unincorporated areas which will use the city's wastewater facilities. The community development director may require that the plans be prepared under the supervision of and signed by an engineer of suitable training registered in the state. Prior to the issuance of any permits to replace any plumbing fixture or equipment, all such fixture units or equipment must be approved by the community development director. If required the plans must include the requirements in section 12.16.650.

(Ord. No. 2899, § 1 (7.20.081), 8-25-80; Ord. No. 3499, § 1, 5-11-87; Ord. No. 4543, § 1, 8-8-95)

Sec. 12.16.470. Plumbing fixture unit standards.

(a) All new plumbing fixture units and plumbing fixtures installed after September 12, 1977 must meet the following design standards:

(1) Toilets and water closets discharge shall not exceed four gallons per flush.

(2) Shower heads discharge shall not exceed three and five-tenths gallons per minute under normal working pressure. (Orifices may be used to reduce flow.)

(3) No fixture shall be allowed that has a continuous flow of water of a constant or automatic nature.

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(4) Grease trap and grease interceptors shall be of such type which does not allow any bypass of prohibited wastes to the POTW.

(5) Except for emergency equipment of public utilities during routine maintenance and emergency operation, facilities using water for cooling shall not discharge the cooling water to the wastewater system or storm drainage system. Recirculation of such cooling water shall be required.

(6) Industrial user wastewater shall be pretreated, if necessary, to meet all applicable pretreatment standards and requirements as required in article III of this chapter. If process water can be recirculated or reused, equipment shall be installed to accomplish the recirculation or reuse.

(7) Car wash facilities must recycle a minimum of 80 percent of the wash/rinse water.

(b) All existing installations that do not satisfy subsection (a) (3), (4), (5), and (6) must be retrofitted to meet these requirements within three years after August 25, 1980.

(Ord. No. 2899, § 1 (7.20.082), 8-25-80; Ord. No. 3500, § 1, 5-11-87; Ord. No. 3875, § 1, 11-13-89; Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.480. Sewer main line extensions.

Sewer main facilities, hereinafter referred to as "sewer main," must be extended by a subdivider or other property owner in accordance with plans and specifications submitted to and approved by the director. The following requirements apply to sewer main extensions:

(1) The inside diameter of every sewer main to be installed shall not be less than eight inches. The subdivider or other property owner shall construct all sewer mains in accordance with the plans and specifications as submitted and approved by the director and pay any and all costs for the minimum size sewer main required for his development with the exception of subsection (4).

(2) The infiltration rate shall not exceed 200 gallons per day per inch diameter per mile of length on all new sewers. Inflow sources to the wastewater system are prohibited.

(3) Upon connection to the sewer system, the subdivider or other property owner shall dedicate all sewer mains located on property owned or controlled by the city to the city. Upon dedication, the city will operate and maintain the sewer mains located on the property.

(4) Construction of larger mains:

a. Whenever a subdivider or other property owner, hereinafter referred to as "owner." is required to construct sewer mains from owner's respective property to the nearest sewer main outside of owner's respective property, and where, in the opinion of the city council, it is necessary that a sewer main be constructed of a larger capacity than the minimum capacity needed to serve such subdivision or other property and that such extended sewer main will be or can be used in the disposal of sewage from adjacent properties not in such subdivision or other properties, the city council shall require the owner to construct the larger capacity sewer main in accordance with the plans and specifications as submitted and approved by the director and pay any and all costs for the sewer main. The director shall determine the amount of money necessary to cover the cost of construction of said sewer main.

b. Upon connection to the sewer system, the owner shall dedicate all oversized mains located on property owned or controlled by the city to the city. Upon dedication, the city will operate and maintain the sewer mains located on said property.

c. The city council shall contract with the owner so as to provide a means of reimbursement to the owner for all costs incurred for construction of said sewer main, and said contract to be based on the guidelines listed below:

1. The amount of money determined by the director under subsection (4)a., above, shall be prorated by the director against the subject parcel as well as all parcels of land that may later be served by connection to the sewer main. In no event shall any owners of property to be served by such extended sewer line or other facility be permitted to connect thereto without first paying to the city the prorated charge above and the connection costs provided by division 5 of this article.

2. All money mentioned in subsection (4)a., above, except the prorated cost to the owner, shall be refunded to the owner who constructed such main lines or facilities. Such refunds shall be made as soon as payments are received by the city or at such other time as the city and the owner may agree. If the entire amount of money due to the owner under the contract with the city has not been refunded in full within the maximum period of 20 years from the date of contract, the same shall terminate and be of no further force and effect.

(Ord. No. 2899, § 1(7.20.083), 8-25-80; Ord. No. 2921, § 1, 1-26-81; Ord. No. 3278, § 1, 5-28-85; Ord. No. 3810, § 1, 5-22-89)

Sec. 12.16.490. Construction.

(a) After a permit has been obtained and all connection fees have been paid, the permittee or authorized representative of the permittee may construct sewer connections in accordance with approved plans and specifications.

(b) The permittee or authorized representative shall give notice to the city of the connection, cutting or physical alteration of the city's sewer or storm drain and shall not commence unless a city inspector is present. Forty-eight hours notice must be given to the building department. No wastewater shall be discharged into the city's sewer prior to obtaining inspection and approval of construction by the city.

(Ord. No. 2899, § 1 (7.20.084), 8-25-80; Ord. No. 4543, § 1, 8-8-95)

ARTICLE III. REGULATION OF WASTEWATER DISCHARGE*

DIVISION 1. GENERALLY

Sec. 12.16.500. Applicability and objectives.

(a) APPLICABILITY:

This article sets forth uniform requirements for all industrial users discharging to the POTW and enables the city to comply with all applicable state and federal laws including the Clean Water Act (33 United States Code, Section 1251 et seq.) and the General Pretreatment Regulations (40 CFR Part 403). Any industrial user, the discharge from which directly or indirectly enters the city's POTW from areas within or without the city limits, shall be bound by this article and the definitions in article I as they now exist or may hereafter be amended. This article may be enforced against any industrial user.

(b) OBJECTIVES:

The objectives of this article are:

(1) To prevent the introduction of pollutants into the publicly-owned treatment works (POTW) that will interfere with the operation of the system or contaminate the resulting sludge;

(2) To prevent the introduction of pollutants into the POTW which will pass through the system, inadequately treated, into receiving waters or the atmosphere or otherwise be incompatible with the system;

(3) To improve the opportunity to recycle and reclaim wastewaters and sludges from the system;

(4) To provide for and promote the general health, safety and welfare of the citizens residing within the city and connecting jurisdictions;

(5) To enable the city to comply with its NPDES permit conditions, sewage sludge use and disposal requirements, and any other applicable federal or state laws or regulations to which the POTW is subject;

(6) To prevent adverse impacts to worker health and safety due to the discharge of pollutants from industrial users; and

(7) To provide for fees for the equitable distribution of the cost of operation, maintenance, and improvement of the POTW.

(c) PROGRAM COST RECOVERY:

The city may recover the costs incurred by implementing the pretreatment program established by this article and adopt charges and fees as established by the current fee resolution and any amendments thereto which establish the services charges and fees for the city, including, but not limited to the following:

(1) Fees for monitoring, inspection, re-inspection and surveillance activities;

***Editor's note—**Ord. No. 6305, § 1, adopted August 28, 2013, amended article III in its entirety to read as herein set out. Formerly, article III, divisions 1—4, pertained to similar subject matter. For a complete derivation, see the Code Comparative Table.

State law reference—Discharge and treatment of liquid waste and wastewater, NAC 444.8301 et seq.

(2) Fees for reviewing accidental discharge procedures and construction;

(3) Fees for permit applications;

(4) Fees for filing appeals and other legal expenses;

(5) Such other fees as the city may deem necessary to administer and enforce the requirements contained herein.

(d) NON-DOMESTIC INDUSTRIAL USERS:

It shall be unlawful for any industrial user to discharge any domestic or non-domestic wastewater into any natural waterway, any surface drainage, or storm drain in any area under the jurisdiction of the city. In the event that an industrial user obtains a general permit from the Nevada Division of Environmental Protection to discharge polluted water to a storm drain, discharge shall not occur unless the director provides written approval of such discharge.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.510. Regulation of industrial users from outside jurisdictions.

The city is required to administer and enforce its pretreatment program in accordance with this chapter and its NPDES permit. In order for the city to effectively implement and enforce pretreatment standards and requirements for all industrial users discharging to the POTW and as required by 40 CFR Section 403.8(f), the city will enter into interlocal cooperative agreements (ICAs) with contributing jurisdictions. Prior agreements shall be unaffected by these requirements until such time as the city determines that modifications are necessary.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.520. Administration.

Except as otherwise provided in this article, the director shall administer, implement and enforce the provisions of this article. Any powers granted or duties imposed upon the director may be delegated by the director to persons acting in the beneficial interest of or in the employment of the city.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.525. Responsibility of City of Reno.

(a) The city shall attempt to notify in writing any industrial user whom they have cause to believe is subject to a National Categorical Pretreatment Standard or Requirement, or other applicable requirements promulgated by the EPA under the provisions of Section 204(b) or 405 of the Act, or under the provisions of Sections 3001, 3004, or 4004 of the Solid Waste Disposal Act. Failure of the city to so notify industrial users shall not relieve said industrial users from the responsibility of complying with applicable requirements. It is the responsibility of significant industrial users to apply for and receive a permit prior to discharge, whether or not the industrial user has been identified and formally requested to do so.

(b) If wastewaters containing any pollutant, including excess flow, or as otherwise defined in this article, are discharged or proposed to be discharged to the POTW, the city may take any action necessary to:

(1) Prohibit the discharge of such wastewater;

(2) Require an industrial user to demonstrate that in-plant facility modifications will reduce or eliminate the discharge of such substances in conformity with this article;

(3) Require treatment, including storage facilities or flow equalization necessary to reduce or eliminate the potential for a discharge to violate this article;

(4) Require the industrial user making, causing or allowing the discharge to pay any additional cost or expense incurred by the city for handling, treating, disposing or remediation costs as a result of wastes discharged to the wastewater treatment system;

(5) Require the industrial user to apply for and obtain a permit;

(6) Require timely and factual reports from the industrial user responsible for such discharge; or

(7) Take such other action as may be necessary to meet the objectives of this article.

(Ord. No. 6305, § 1, 8-28-13)

DIVISION 2. WASTEWATER REGULATIONS

Sec. 12.16.530. Prohibited discharges.

(a) GENERAL PROHIBITIONS.

An industrial user may not introduce into a POTW any pollutant(s) which cause pass through or interference. These general prohibitions and the specific prohibitions in paragraph (b) of this section apply to each industrial user introducing pollutants into a POTW whether or not the industrial user is subject to other pretreatment standards or requirements.

(b) SPECIFIC PROHIBITIONS.

The following pollutants and pollutant properties are specifically prohibited to be discharged to the POTW by an industrial user:

(1) Stormwater drainage from ground resulting in infiltration and inflow (I&I) through the industrial user's service line(s) or surface, roof drains, catch basins, unroofed area drains (e.g. commercial car washing facilities) or any other source unless otherwise approved by the director and the user applies for and obtains a permit for discharge from the city. Specifically prohibited is the connection of roof downspouts, exterior foundation drains, areaway drains, or other sources of surface runoff or ground water to a building sewer or building drain which in turn is connected directly or indirectly to the city's wastewater collection system. No person shall connect or discharge water from underground drains, sump pump discharges, natural springs and seeps, water accumulated in excavation or grading or any other water associated with construction activities.

(2) Pollutants which create a fire or explosion hazard in the POTW, including, but not limited to, wastestreams with a closed cup flashpoint of less than 140 degrees Fahrenheit (140°F) or 60 degrees Celsius (60°C) using the test methods specified in 40 CFR Section 261.21. The director may require industrial users with the potential to discharge flammable, combustible or explosive substances to install and maintain an approved combustible gas detection meter or explosion hazard meter. No two suc-

cessive readings on an explosion hazard meter at the point of discharge shall be more than five percent or any one reading more than ten percent, of the lower explosive limit (LEL) of the meter.

(3) Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems.

(4) Pollutants which will cause corrosive structural damage to the POTW, but in no case discharges with pH lower than 5.5 or greater than 10.5.

(5) Any solid or viscous pollutants wastes that may cause obstruction or reduction of flow in the POTW resulting in interference. These objectionable substances include, but are not limited to asphalt, dead animals, offal, ashes, sand, mud, straw, industrial process shavings, metal, glass, rags, feathers, tar, plastics, wood, paunch manure, bones, hair, fleshings, entrails, paper dishes, paper cups, milk containers, or other similar paper products, either whole or ground.

(6) Any petroleum oil, non-biodegradable cutting oil, or products of and mineral origin in amounts that will cause pass through or interference. The city may include sampling and reporting requirements in a permit or require compliance with permit specific limits or best management practices where the concentration has the reasonable potential to exceed 100 mg/L.

(7) Any radioactive, radiological, chemical or biological warfare agent waste or material discharged in violation of a state or federal standard or otherwise causes pass through or interference.

(8) Any pollutant, including oxygen-demand pollutants, released in a discharge at a flow rate and/or pollutant concentration which will cause interference at the POTW.

(9) Any heat in amounts which will inhibit biological activity in the POTW resulting in interference, but in no case heat in such quantities that the temperature exceeds 40 degrees Celsius (40°C) or 104 degrees Fahrenheit (104°F) at the treatment plant.

(10) Any water or waste containing free or floating oil and grease, or any discharge containing animal fat or grease by-product in excess of 300 milligrams per liter (300 mg/L). Removing wastes collected in a grease trap, grease interceptor, waste collection tank or other treatment device and reintroducing any portion of the wastes back into the wastewater collection system either directly or indirectly is prohibited except as authorized in a permit issued by the city.

(11) Any pollutant which may cause the POTW's effluent, sludge, or residue to be unsuitable for, or interfere with, the reclamation or reuse process.

(12) Any pollutant which will cause the POTW to violate its NPDES permit and/or the receiving water quality standards.

(13) Any wastewater with objectionable color not removed in the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions.

(14) Any pesticides, herbicides or fungicides that cause or contribute to pass through, interference or other problems at the treatment works or in the receiving waters. In no case, shall an industrial user discharge wastewater that is generated from the rinsing of any container that contains or contained any concentrated or formulated pesticide, herbicide or fungicide.

(15) Any discharge of geothermal water, that being water heated naturally by the earth and all dissolved or entrained minerals contained therein, from any commercial, industrial, or residential source.

(16) Any trucked or hauled pollutants, except at discharge points designated by the city.

(17) A slug discharge as defined in section 12.16.720.

(18) Liquid wastes from chemical toilets, and trailers, campers or other recreational vehicles which have been collected and/or held in tanks or other containers shall not be discharged into the POTW except at locations authorized by the city to collect such wastes.

(19) No chemicals, materials, or substances, including but not limited to, paints, solvents, boiler or water treatment chemicals, sludges, chemicals, or wastes shall be stored in proximity to a floor drain or other sewer openings. Containers shall be clearly labeled and stored in a place where the chemicals, materials, substances or wastes, in case of leakage or rupture of the container, cannot enter the wastewater collection system. The storage of any chemicals, materials, substances or wastes that leak or have potential to leak or discharge into the wastewater collection system which may create an explosion hazard or in any way have a deleterious effect to the POTW or constitute a nuisance or a hazard to POTW personnel, the general public, the environment, or the receiving stream shall be prohibited.

(20) Any water contaminated as a result of discharge from aboveground and/or underground gasoline, diesel fuels, fuel oil, kerosene, and jet fuel tanks, tank accessories, and/or pipelines without applying for and obtaining a permit prior to discharge unless the director has approved such discharge in writing.

(21) Any wastes containing detergents, surface-active agents, or other substances in concentrations which cause excessive foaming in the POTW or cause or contribute to interference or pass through.

(22) Any pollutant or wastewater containing pollutants with UV (254 nm) absorbing substances which causes interference with UV disinfection at the treatment plant.

(23) Wastes that have been collected and/or held in a tank or other container and where such wastes fail to comply with any pretreatment standard.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.535. Prohibition of unpolluted water.

(a) Unpolluted water, including but not limited to rainwater, stormwater, groundwater, street drainage, subsurface drainage, roof drainage, and yard drainage, shall not be discharged through direct or indirect connection to the city's wastewater facilities unless a permit is issued by the director for such discharge. The director may approve the discharge of such water when no reasonable alternative method of disposal is available and such permit does not violate other sections of this chapter.

(b) If a permit is granted for the discharge of such water into the wastewater facilities, the user shall pay the applicable charges and fees and shall meet such other conditions required by the director.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.540. Septic tank wastes.

It is unlawful to discharge any septic tank or cesspool wastes to the city's wastewater facilities, unless specifically authorized in writing by the director or is accepted and approved by the Truckee Meadows Water Reclamation Facility or the Reno Stead Water Reclamation Facility. The time and place for the specific discharge and required characteristics of the matter discharged shall be designated by the discharge facility. It is unlawful to store septic tank or cesspool waste in the city once the waste is pumped from any septic tank, cesspool, chemical toilet or any other such similar chamber or receptacle. Once septic tank or cesspool waste is pumped, it shall be properly disposed of the same day.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.545. Wash floor or slab.

All private or public wash rack and/or floor or slab used for steam cleaning, high pressure wash or cleaning of vehicles, vehicle parts, machinery, machinery parts, restaurant equipment or fixtures shall be adequately protected against storm or surface water runoff by a raised pad, bermed area and/or covered work area as approved by the director. The drain shall discharge to the wastewater facility through a pretreatment device of an approved design for this use.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.555. Sector control programs.

(a) GENERAL REQUIREMENTS.

(1) Authority. The city may establish specific sector control programs for industrial users to control specific pollutants as necessary to meet the objectives of this chapter. Pollutants subject to these sector control programs shall generally be controlled using best management practices (BMPs).

(2) Facility identification and compliance. The city shall implement procedures to identify industrial users for inclusion into applicable sector control programs. Once identified and included into one or more sector control program, the facility shall be required to comply with the applicable sector control program requirements.

(3) Notification to the city by the industrial user and management review. The city shall review new construction and existing facilities undergoing any physical change, change in ownership, change in operations, or other change that could change the nature, properties, or volume of wastewater discharge, to ensure that current sector control program requirements are incorporated and implemented.

(4) The industrial user shall inform the city prior to:

(i) Sale or transfer of ownership of the business; or

(ii) Change in the trade name under which the business is operated; or

(iii) Change in the nature of the services provided that affect the potential to discharge sector control program pollutants; or

(iv) Remodeling of the facility where the cost is $10,000.00 or more and that may result in an increase in flow or pollutant loading or that otherwise requires the facility to submit plans or specifications for approval through a building or zoning department, or any other formal approval process of a city, county, or other jurisdiction.

(5) Inspections.

(i) The city may conduct inspections of any facility with or without notice for the purpose of determining applicability and/or compliance with sector control program requirements.

(ii) If any inspection reveals non-compliance with any provision of a sector control program requirement, corrective action shall be required pursuant to the applicable sector control program.

(6) Closure. The city may require closure of plumbing, treatment devices, storage components, containments, or other such physical structures that are no longer required for their intended purpose. Closure may include the removal of equipment, the filling in and/or cementing, capping, plugging, etc.

(7) Enforcement and compliance.

(i) These requirements form a part of this chapter. Enforcement of this regulation is governed by the express terms herein and the enforcement provisions of article III, division 5.

(ii) Any extraordinary costs incurred by the city due to interference, damage, pass through, or maintenance necessary in the treatment and/or collection system may be paid by the industrial user to the city. The direct costs of all labor, equipment and materials incurred in rectifying the Interference or damage shall be billed directly to the owner or the industrial user by the city, and such costs shall become part of the total charges due and owed to the city.

(b) BEST MANAGEMENT PRACTICES FOR THE INSTALLATION AND MAINTENANCE OF GRAVITY GREASE INTERCEPTORS.

(1) These best management practices (BMPs) establish requirements for any facility that has the potential to discharge fats, oil, and grease (FOG). These pollutants can contribute to sewer blockages, causing sanitary sewer overflows and backups into homes and businesses. All facilities subject to these BMPs must comply with the requirements which include both the requirement for installation and proper operation and maintenance of an interceptor or separator and other reporting requirements.

(2) Permit required. All FOG facilities will be issued a permit as referenced in subsections 12.16.610(a)(2), 12.16.615(a) and 12.16.620(a).

(3) Applicability. The requirements established in this BMP shall apply to industrial users where preparation, manufacturing, processing of food or washing/sanitizing of dishes or equipment occurs and includes, but are not limited to, restaurants, cafes, fast food outlets, pizza outlets, delicatessens, sandwich shops, coffee shops, schools, nursing homes and other facilities that prepare, service, or otherwise make foodstuff available for consumption. These users shall install and maintain a gravity grease interceptor as directed by the city.

(4) Definitions.

Best management practices (BMPs): Schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the general and specific prohibitions listed in section 12.16.530 of this article. BMPs may also include, but are not limited to, treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw material storage. BMPs are pretreatment standards.

Fats, oil and grease (FOG): Non-petroleum organic polar compounds derived from animal or plant sources such as fats, non-hydrocarbons, fatty acids, soaps, waxes, and oils that contain multiple carbon chain triglyceride molecules. These substances are detectable and measurable using analytical procedures established in the 40 CFR Part 136.

Gravity grease interceptor: A plumbing appurtenance or appliance that is installed in a sanitary drainage system to intercept FOG (fats, oil and grease) from a wastewater discharge and are designed for gravity separation. Such interceptors are at least 750 gallons, include baffle(s) and a minimum of two compartments. This is an in-ground interceptor that is located outside the facility.

(5) FOG Variance.

(i) A FOG variance as to the requirements may be granted by the director for good cause. The facility has the burden of proof of demonstrating through data and other information why a FOG variance should be granted. In no case shall a variance result in violation of any pretreatment standard or requirement specified in this chapter and applicable to the discharge. The granting of any FOG variance shall be at the sole discretion of the city and may be revoked at the sole discretion of the city. The denial of a FOG variance by the director may be appealed in accordance with section 12.16.660.

(ii) If a FOG variance is granted, the facility shall institute best management practices and other mitigation measures as specified by the city. These BMPs may include, but not be limited to:

a. Allow the installation of a grease trap or continue to allow the use of an existing grease trap in lieu of installing a grease interceptor where the grease trap is shown to be effective. If a grease trap is not shown to be effective, the city may require the industrial user to install a grease interceptor.

b. Provide quarterly cleaning of its private service line to prevent the buildup of oil, grease and solids or as otherwise specified in the wastewater discharge permit;

c. Submit records of the private service line cleaning as specified by the city;

d. Pay the costs incurred by the city for accelerated sewer line cleaning on the city's sewer line providing service to the facility, costs to the city for treating the excess strength waste and any costs for sampling and analysis. The city believes that these costs will be comparable to costs incurred by a user that installs and maintains a grease interceptor.

(6) Program requirements.

(i) General control requirements.

a. A gravity interceptor shall be required for all new industrial users the proper handling of liquid wastes which may be harmful to, or cause obstruction in the wastewater collection system or cause or contribute to interference or pass through.

b. It shall be the responsibility of the industrial user and owner of the property, business or industry or an authorized representative of the industrial user to contact the city for the purpose of obtaining a plan review. The plan review

shall determine the need, size, location, and other requirements of the interceptor required to control discharges into the POTW. Written approval from the city must be obtained prior to installation of the interceptor. The review of such plans and operating procedures shall in no way relieve the industrial user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to the city under the provisions of this chapter.

c. The design and sizing of gravity interceptors shall be in accordance with requirements established by the city as set forth below. The gravity interceptor shall be designed, sized, installed, maintained and operated so as to accomplish their intended purpose of intercepting pollutants from the industrial user's wastewater and minimizing the discharge of such pollutants to the city's wastewater collection system.

Sizing of Grease Interceptors

Number of Meals Per peak hour[1]	x Waste flow rate[2]	x Retention time[3]	x Storage factor[4]	Interceptor size = (liquid capacity)

[1] Meals Served at Peak Hour

[2] Waste Flow Rate

a. With dishwasher. . . . . .6 gallon (22.7 L) flow

b. Without dishwasher. . . . . .5 gallon (18.9 L) flow

c. Single service kitchen. . . . . .2 gallon (7.6 L) flow

d. Food waste disposer. . . . . .1 gallon (3.8 L) flow

[3] Retention Times

Commercial kitchen waste

Dishwasher . . . . . .2.5 hours

Single service kitchen

Single serving . . . . . .1.5 hours

[4] Storage Factors

Fully equipped commercial kitchen

0—8 hour operation: 1.5

8—16 hour operation:. 2

16—24 hour operation: 3

Single Service Kitchen 1.5

Construction and Size of Sand Oil Interceptor:

This formula is based upon square footage area of the facility and other factors. The size calculation is listed below:

Size = square footage area of the facility/facility factor x 7.48 gal/cu ft x 2 (minimum size shall be 750 gallons).

Facility Factor	Facility
15	Truck washes, heavy equipment wash
50	Automatic car wash
75	Manual car wash
100	Machine shop, work area automotive workshops
2000	Parking garages where cars are washed
3000	Parking garages

d. Upon change of ownership of any existing facility which would be required to have an interceptor under this section, the applicant for sanitary sewer service shall have the burden to demonstrate that a properly sized and functioning grease interceptor is installed.

e. Hydromechanical grease interceptors shall not be permitted in lieu of a gravity interceptor to comply with the requirements of this chapter.

f. Toilets, urinals and similar fixtures shall not waste through a gravity interceptor. Such fixtures shall be plumbed directly into the building sewer and waste system.

g. All fixtures not equipped with a garbage disposal (garbage grinder) which are connected to a gravity interceptor shall be equipped with a fixed or removable mesh or screen which shall catch garbage and food debris and prevent it from entering the gravity interceptor.

h. The industrial user shall implement procedures that minimize the discharge of food solids to the POTW, a grease trap or interceptor. In no case shall food waste be discharged that exceeds one-half inch in any dimension. It is prohibited to use garbage grinders for disposal of any non-food waste.

i. The industrial user must ensure interceptors are easily accessible for inspection, cleaning, and removal of FOG.

j. The industrial user must maintain interceptors at their expense and keep in efficient operating condition at all times by the regular removal of accumulated FOG.

(ii) Required maintenance.

a. Gravity interceptors shall be maintained by regularly scheduled cleaning so that they will properly operate as intended to efficiently intercept the fats, oil and grease from the facility's wastewater and prevent the discharge of said materials into the city's wastewater collection system. A gravity interceptor shall be serviced at a frequency that is specified in the industrial user's permit. Interceptors must be cleaned whenever the combined thickness of the floating greases and settled solids is greater than 25 percent of the design hydraulic depth of the interceptor.

b. The city may require more frequent cleaning than that prescribed in subsection (ii)(a). A variance from the requirement may be obtained if the industrial user can demonstrate less frequent cleaning is sufficient.

c. Maintenance of gravity interceptors shall be done by a licensed plumber or contractor normally engaged in the servicing of such plumbing fixtures.

d. In the event an interceptor is not properly maintained by the industrial user, owner, lessee, or other authorized representative of the facility, the city may authorize such maintenance work be performed on behalf of the industrial user. The costs of such maintenance shall be billed directly to the tenant/owner and shall become part of the charges due and owed to the city.

e. Biological treatment or enzyme treatment shall not be a substitute for the servicing of gravity interceptors or grease traps at the frequency required by the city. Use of enzymes or any other chemical or biological treatment or product that emulsifies or acts to emulsify FOG is prohibited.

f. The industrial user must document each pump-out with a waste manifest or trip ticket which must be provided to the city as required and kept by the industrial user on site for at least three years.

g. The industrial user must take reasonable steps to assure that all waste is properly disposed of at a facility in accordance with federal, state and local regulations (i.e. through a certification by the hauler included on the waste manifest or trip ticket for each load).

(c) BEST MANAGEMENT PRACTICES FOR DRY CLEANERS.

(1) No person shall discharge, dispose or place dry cleaning solvent, filters, lint etc. from dry cleaning machine cleanout, button trap cleanout, pre-filter cleanout, spent diatomaceous earth, sludge, condensate or separator water, vacuum press condensate, mop water, still bottoms or any other regulated waste material containing dry cleaning solvent into:

(i) Any drain;

(ii) Sanitary sewer or POTW;

(iii) Storm sewer;

(iv) Septic tank or leach field;

(v) Boiler or cooling tower;

(vi) Any underground structure (e.g. tank);

(vii) Dumpster or trash receptacle; or

(viii) On the ground or in any location other than in an appropriate waste storage container.

(2) All waste storage containers shall be properly labeled and such material shall be handled, stored, and disposed of as hazardous waste.

(3) Prior to the purchase and installation of a wastewater treatment unit, such as, but not limited to, an evaporator, atomizer or filtration, the business owner or their authorized representative shall submit detailed plans and specifications of the wastewater treatment unit to the city.

(i) All wastewater treatment equipment shall meet the definition of a wastewater treatment unit as defined in 40 CFR Section 260.10 paragraphs (1) and (2) of the definition.

(ii) The wastewater treatment unit shall be operated and maintained according to all the manufacturer's recommendations and requirements. An operation and maintenance manual of said equipment shall be kept onsite at all times.

(4) A dry cleaning facility wastewater treatment unit shall:

(i) Include a primary solvent water separator settling chamber. This chamber shall recover free-phase dry cleaning solvent from wastewater exiting the dry cleaning machine water separator. Wastewater exiting a primary solvent settling chamber shall be directed into an initial filter having filter media capable of removing dissolved solvent.

(ii) Include a monitor-alarm which shall shut down the wastewater treatment unit and or provide an audio alarm when the initial filter becomes saturated with solvent, indicating mandatory filter replacement.

a. If the monitor-alarm shuts down the wastewater treatment unit, the dry cleaning operator or their authorized representative shall follow the manufacturer's operation and maintenance recommendations for filter replacement and reactivation of the treatment unit.

b. The audio alarm shall be installed to allow users in the office, retail and processing area to hear the alarm. Wastewater treatment units with only an audio alarm shall not be operated except during business hours when the business is staffed. If the audio alarm activates, the operator shall immediately shut down the equipment and wastewater treatment system to prevent the discharge of wastewater to the sewer. The wastewater treatment unit shall not be restarted until proper maintenance and filter replacement is completed.

c. Operation of the treatment unit with the monitor-alarm being bypassed, deactivated or removed shall be a violation of this article and will result in an enforcement action.

(iii) Require wastewater exiting the initial filter be directed into a secondary filter having filter media capable of removing residual dissolved dry cleaning solvent.

(iv) Require exiting the secondary filtration, treated wastewater to be evaporated, misted or atomized. These methods of discharge shall not result in a visible liquid deposition or accumulation so to create a safety hazard or nuisance.

(v) Solvent used shall be as specified by the equipment manufacturer of the dry cleaning unit and approved by the city.

(5) Wastewater generated in a dry cleaning operation may be treated with an alternative device or alternative solvent other than what has been outlined in this article, provided the dry cleaning facility can demonstrate to the city that the alternative unit utilizes a technology that is capable of providing equivalent or better levels of solvent removal and automatic shutdown capabilities. All requests for the installation of an alternative wastewater treatment unit or solvent shall be submitted to the city in writing prior to installation or changing solvents.

(6) All invoices and/or manifests generated as a result of, but not limited to chemical and equipment purchases, equipment maintenance, disposal of dry-cleaning solvent and associated wastes shall be made available for review and copying upon request. All documentation shall be kept onsite for a period of three years.

(7) Secondary containment is a level of containment that is external to and separate from a vessel containing a liquid or solid. It is required for, but not limited to, all dry cleaning equipment, wastewater treatment unit(s) unused cleaning solvent, waste cleaning solvent, used filters, sludge, lint and solids contaminated with cleaning solvent.

(i) Secondary containment shall be constructed of material impermeable to solvent and cleaning fluids used, and able to withstand the weight of the equipment and/or vessels stored within it.

(ii) Secondary containment shall be capable of containing a minimum of 110 percent of the capacity of the largest vessel and be leak proof.

(iii) The secondary containment shall extend beyond the outside perimeter of all dry cleaning equipment to enable collection of any solution that may leak, drip or escape from the equipment.

(iv) Outdoor storage of dry cleaning process chemicals and waste shall be secondarily contained, secured to prevent unauthorized access and covered to protect from contact with precipitation and stormwater.

(d) BEST MANAGEMENT PRACTICES FOR THE ACCEPTANCE OF TRUCKED AND HAULED WASTE.

The requirements established in this section shall apply to persons and operators of companies who discharge trucked and hauled waste at the POTW, including any discharge that enters the city's sewerage system. Where the city elects to accept hauled waste, the following conditions will apply:

(1) Hauled wastes may be introduced into the POTW only at locations designated by the director, and at such times as are established by the director;

(2) The city shall have the right to refuse any hauled waste load;

(3) Waste haulers are prohibited from discharging wastes that would violate any prohibited discharge standards identified in section 12.16.530 of this article;

(4) Waste haulers are prohibited from discharging hazardous wastes to the POTW;

(5) The waste hauler shall comply with specific pollutant limitations established by the city;

(6) The city shall require waste haulers to obtain a permit. The director may require generators of hauled wastes to obtain a permit;

(7) The city may sample and analyze the hauled wastes or require the hauler to perform such sampling and analysis to verify that each hauled load complies with applicable standards and/or requirements;

(8) The city may sample and analyze the hauled wastes or require the hauler to perform such sampling and analysis at the location where the waste is generated;

(9) The city may require the industrial waste hauler to receive prior approval or consent before discharging;

(10) The waste hauler must notify the city of any new commercial or industrial customers or changes in the nature of hauled waste originating from existing customers. Customer lists shall be considered confidential business information if so designated by the waste hauler;

(11) The city may restrict the maximum number of loads that a waste hauler may discharge during a specific period of time, and the discharge rate of each load;

(12) Waste haulers must provide a manifest form or similar for every load prior to discharge. The manifest form shall include, at a minimum:

(i) The name and address of each customer or source of waste;

(ii) Permit number;

(iii) Truck identification;

(iv) Volume of wastewater from each source;

(v) Type of waste to be discharged;

(vi) Known or suspected pollutants present in load(s); and

(vii) Certification that the hauled waste is not hazardous.

(13) The waste hauler shall use a manifest form supplied or approved by the city; and

(14) The city may impose fees or charges for hauled wastes.

(15) The waste hauler shall:

(i) Maintain tanks, pumps, valves, hoses, racks, cylinders, diaphragms, pipes, connections, and other appurtenances on a vehicle in good repair and free from leaks;

(ii) Provide a safety plug or cap for each tank;

(iii) Ensure that the vehicle exterior is clean at the beginning of each work day (prior to entry to the POTW);

(iv) Clean the inside of tanks to ensure that non-permitted residual wastes are not left in the tank and allowed to mix with permitted wastes;

(v) Ensure that tanks are an integral part of a vehicle to transport liquid waste. Portable tanks or other containers temporarily installed in vehicles are prohibited (unless prior approval is obtained from the city, e.g. portable toilets);

(vi) Piping, valves, and connectors (excluding the discharge hose) shall be permanently attached to tank and/or vehicle;

(vii) Tanks must be liquid tight and tanks constructed so that every interior and exterior portion can be easily cleaned;

(viii) Opening of tank to be constructed so that collected waste will not spill during filling, transfer, transport or disposal;

(ix) Outlet connections to be constructed so that no liquid waste will leak, run, or spill out from the vehicle;

(x) Outlets to be of a design and type suitable for the liquid waste handled and capable of controlling flow or discharge without spillage and undue spray on or flooding of immediate surroundings while in use; and

(xi) Pumps, valves, cylinders, diaphragms, and other appurtenances to be of a design and type suitable for the type of waste handled, capable of operation without spillage, spray, or leakage, and capable of being easily disassembled for cleaning.

(16) **Permit suspension and revocation.** Any permit issued in accordance with this article will be subject to suspension or revocation by the city, at its discretion, for failure

to submit accurate reports, failure to submit timely reports, failure to pay proper charges, failure to maintain the vehicle as required, failure to discharge at authorized disposal site(s), failure to meet sanitation standards, discharging of industrial sludges or other unacceptable wastes into the system, for any other infraction of this chapter, or if the director determines it is necessary to protect the city's facilities. The permittee shall maintain valid and current registrations, permits, and licenses as required by any local, state or federal regulation or requirement.

(17) Authorized disposal site(s). Only those disposal site(s) authorized in the permit or otherwise specified in writing by the director shall receive trucked and hauled waste. Disposal of trucked and hauled wastes at sites other than those allowed by permit is prohibited and a violation of this article.

(18) Sanitation and safety standards. Each hauler who discharges wastes to the system shall be responsible for the cleanliness and safety practices at the points of disposal. It shall be the responsibility of the permittee to discharge wastes in such a manner as to keep the area clean and free from spills or other debris. Any spills shall be promptly cleaned up. The permittee is also responsible for keeping his vehicle and related facilities clean and in good repair while being used for disposal to the POTW. These sanitary and safety practices shall be carried out in a manner acceptable to the city. Failure to comply with these sanitation and safety standards shall be grounds for suspension or revocation of the permit.

(19) Quality of wastes. Wastes discharged to the POTW under a permit or approval granted by this article shall be representative of what the permittee disclosed in the permit application and/or manifest and/or manifest specified in subsection 12.16.555(d)(12) and conform to any local, state or federal standards or requirements. The waste hauler consents to the city's right to sample and analyze the contents of any vehicle utilizing the POTW for the discharge of wastes and charge the user for such sampling and analytical costs. The purpose of such sampling and analysis will be to determine conformance with this article, the permit and any local, state or federal regulation. It shall be the responsibility of the waste hauler to assist in sample collection as directed by the city.

(20) Performance bond. The city may decline to issue or reissue a permit to any user who has failed to comply with any provision of this article, a previous permit, or any applicable pretreatment standard or requirement, unless such waste hauler first files a satisfactory bond, payable to the city, in a sum not to exceed a value determined by the city to be necessary to achieve consistent compliance. All trucked and hauled waste haulers shall be bonded in an amount as specified by the city and indemnifying the city against damages sustained by any reason; any spill, dumping or discharge of any liquid waste, hazardous waste, or incompatible waste within the jurisdictional limits of the city. Proof of bonding shall be provided to the city prior to permit issuance.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.565. Limitations on wastewater strength.

(a) SPECIFIC DISCHARGE LIMITATIONS.

It shall be unlawful for any Class III, IV or V industrial user or other permit limited industrial user to discharge, deposit, cause, or allow to be discharged any waste or wastewater which fails to comply with the limitations imposed by this section.

(b) Dilution is prohibited as a substitute for treatment and shall be a violation of this article. Except where expressly authorized to do so by an applicable pretreatment standard or requirement, no industrial user shall ever increase the use of process water, or in any other way attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with a pretreatment standard or requirement. The city may impose mass limitations on industrial users which are using dilution to meet applicable pretreatment standards or requirements or in other cases where the imposition of mass limitations is appropriate.

(c) No Class III, Class IV or Class V industrial user shall discharge wastewater that exceeds the following limits:

Pollutant	Daily Maximum Discharge Limits (1) for IUs discharging to TMWRF(3)	Daily Maximum Discharge Limits(1) for IUs discharging to RSWRF(3)	Daily Maximum Discharge Limits(1) for IUs discharging to STMWRF(3)
Arsenic	1.73	1.49	<0.005
Boron	No Limit	No Limit	<0.10
Cadmium	0.138	0.119	0.44
Chromium	4.32	3.27	4.22
Copper	0.87	4.72	3.10
Lead	0.73	0.636	0.78
Mercury	0.214	0.211	0.217
Nickel	4.23	0.44	0.51
Selenium	0.40	0.44	0.58
Silver	0.182	0.34	0.62
Zinc	4.37	6.4	6.9
5-Day Biochemical Oxygen Demand (BOD_5)	10,010(2)	4,404(2)	4,363(2)
Total Suspended Solids (TSS)	13,937(2)	979(2)	2,615(2)
Phosphorus	202.8(2)	No Limit	No Limit
Total Dissolved Solids (TDS)	19,598(2)	No Limit	No Limit
Total Nitrogen (TKN +NO_3)	566(2)	No Limit	No Limit

(1) All limits are in milligrams per liter (mg/L) unless otherwise specified and shall be analyzed as total.

(2) Total mass in pounds per day (lbs/day) available for allocation to all significant industrial users and other designated and permitted non-significant industrial users. The total combined lbs/day allocated in all permits issued cannot exceed this value for the given water reclamation facility.

(3) TMWRF is the Truckee Meadows Water Reclamation Facility; RSWRF is the Reno—Stead Water Reclamation Facility and STMWRF is the South Truckee Meadows Water Reclamation Facility.

(d) A significant industrial user or other designated industrial user who introduces wastewater into the POTW may be required to submit a salinity control plan if monitoring of the industrial user's discharge shows it exceeds 1,200 mg/L total dissolved solids (TDS). This plan shall contain a description of the chemicals and materials used that contribute to the TDS concentration and the source control measures that could be implemented to reduce the TDS concentration in the discharge to less than 1,200 mg/L or to a level specified by the city that prevents discharges that cause or contribute to pass through or interference.

(e) The following limits shall apply to wastewaters that are discharged from

(1) Groundwater cleanup of petroleum or gasoline underground storage tanks or other remediation wastewaters containing these pollutants;

(2) Discharges where one or more of these pollutants are present; or

(3) Where these pollutants are appropriate surrogates.

It shall be unlawful for any industrial user to discharge or cause to be discharged any waste or wastewater to the POTW that exceeds the following limits, as applicable.

Pollutant [(a)]	Daily Maximum Discharge Limit
Benzene	0.050 mg/l
BTEX [(b)]	0.750 mg/l

[(a)] All pollutants shown in the table are total.

[(b)] BTEX shall be measured as the sum of benzene, ethylbenzene, toluene and xylenes.

(Ord. No. 6305, § 1, 8-28-13; Ord. No. 6490, § 1, 11-28-18)

Sec. 12.16.570. Revision of wastewater regulations.

(a) Upon the promulgation of the categorical pretreatment standards for a particular industrial subcategory, the categorical pretreatment standard, if more stringent than limitations imposed under this article for sources in that subcategory, shall immediately supersede the limitations imposed under this article. Compliance with categorical pretreatment standards shall be achieved in the timeframe specified in the applicable categorical pretreatment standard.

(b) State requirements and limitations on discharges shall apply in any case where they are more stringent than federal pretreatment standards and requirements or those in this article.

(c) The city may establish more stringent pollutant limits, additional site-specific pollutant limits, best management practices, or additional pretreatment requirements when, in the judgment of the city, such limitations or requirements are necessary to implement the provisions of this article.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.575. Sample collection and analytical methods.

(a) SAMPLE COLLECTION.

Compliance determinations with respect to the prohibitions and limitations established in this article may be made on the basis of either grab or composite samples of wastewater as specified by the city. Such samples shall be taken at a point or points which the city determines to be suitable for obtaining a representative sample of the discharge. Composite samples may be taken over a 24-hour period, or over a shorter time span, as determined by the city to meet specific circumstances.

(b) SAMPLE TYPE.

Samples collected to satisfy reporting requirements must be based on data obtained through appropriate sampling and analysis performed during the period covered by the report, and based on data that is representative of conditions occurring during the reporting period.

(1) Except as indicated in subparagraphs (2) and (3) below, the industrial user must collect representative wastewater samples using 24-hour flow proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is required by the city. Where time-proportional composite sampling or grab sampling is authorized by the city, the samples must be representative of the permitted discharge.

(2) Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques. Using protocols (including appropriate preservation) specified in 40 CFR Part 136 and appropriate EPA guidance, multiple grab samples collected during a 24-hour period may be composited prior to the analysis as follows: for cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composited samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the city, as appropriate. In addition, grab samples may be required to show compliance with instantaneous local limits, including pH.

(3) For sampling required in support of baseline monitoring and 90-day compliance reports required in division 4 and consistent with 40 CFR Part 136, a minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organic compounds for facilities for which historical representative sampling data do not exist. Where historical data are available, the city may authorize a lower minimum. For the reports required by division 4, the industrial user is required to collect the number of grab samples necessary to assess and assure compliance with applicable pretreatment standards and requirements.

(c) ANALYTICAL REQUIREMENTS.

All pollutant analysis, including sampling techniques, to be submitted as part of a wastewater discharge permit application, report, permit or other analyses required under this article shall be performed in accordance with the techniques prescribed in 40 CFR Part 136 and amendments thereto, unless otherwise specified in an applicable categorical pretreatment standard. If 40 CFR Part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the EPA determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question,

sampling and analyses shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the city or other parties approved by the EPA.

(d) Records shall include for all samples:

(1) The date, exact place, method, and time of sampling and the name of the person(s) taking the samples;

(2) The date(s) analyses were performed;

(3) Who performed the analyses;

(4) The analytical techniques/methods used, including method detection limits and QA/QC sample results;

(5) Calibration and maintenance records;

(6) All chain-of-custody records; and

(7) The results of such analyses.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.580. Recordkeeping.

(a) All industrial users shall retain, and make available for inspection and copying, all records, reports, monitoring or other data, applications, permits and all other information and documentation required by this article including documentation associated with best management practices.

(b) Industrial users shall retain such records and shall keep such records available for inspection for at least three years. This recordkeeping period shall be extended automatically for the duration of any litigation concerning the industrial user's compliance with any provision of this article, or when the industrial user has been specifically and expressly notified of a longer records retention period by the director.

(c) Written reports shall be deemed to have been submitted on the date postmarked if mailed and the stamped receipt date if hand delivered.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.590. Confidential information—Disclosure of information and availability to the public.

(a) All records, reports, data or other information supplied by any person or industrial user as a result of any disclosure required by this article or information and data from inspections shall be available for public inspection except as otherwise provided in this Section, 40 CFR Section 403.14 and the Nevada Public Records Act (Chapter 239 of the Nevada Revised Statutes).

Effluent data from any industrial user whether obtained by self-monitoring, monitoring by the city or monitoring by any state or federal agency, shall be considered a public record and available for public inspection.

When requested by the persons furnishing a report or permit application or questionnaire, the portions of the report or other document which might disclose trade secrets or secret processes shall not be made available for inspection by the public but shall be made available for governmental agencies for use in making studies; provided, however, that

such portions of a report or other document shall be available for use by the city or state or any state agency in judicial review or enforcement proceedings involving the person furnishing the report; and, provided further, that nothing contained in this section shall limit public access to information considered to be effluent data as defined in 40 CFR 2.302.

Any such claim of confidentiality must be asserted at the time of submission. If no claim is made at the time of submission, the city may make the information available to the public without further notice.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.595. Right of entry.

(a) Whenever it shall be necessary for the purposes of this article, the city may enter upon any industrial user's facility, property, or premises subject to this article for the purposes of:

(1) Performing all inspection, surveillance and monitoring procedures necessary to determine, independent of information supplied by industrial users, compliance or noncompliance with applicable pretreatment standards and requirements by an industrial user. Compliance monitoring and inspection shall be conducted at a frequency as determined by the city and may be announced or unannounced;

(2) Examining and copying any records required to be kept under the provisions of this article or of any other local, state or federal regulation;

(3) The city may use a camera to photograph any areas of the facility as deemed necessary for carrying out the duties of the industrial pretreatment program including, but not limited to, documentation of the industrial user's regulated process, waste storage and treatment, compliance status and for documentation for inspection reports. The industrial user shall be allowed to review copies of photographs for confidentiality claims;

(4) Inspecting any monitoring equipment or method, pretreatment system equipment and/or operation;

(5) Sampling any discharge of wastewater into the POTW; and/or

(6) Inspecting any production, manufacturing, fabricating or storage area where pollutants, regulated under this article, could originate, be stored, or be discharged to the POTW.

(b) The occupant of such property or premises shall render all proper assistance in such activities. Where an industrial user has security measures in place which require proper identification and clearance before entry into its premises, the industrial user shall make necessary arrangements with its security personnel so that authorized representatives of the city will be permitted to enter without delay to perform their specified functions.

(c) The director and other duly authorized agents and employees of the city are entitled to enter all private properties through which the city or any connecting jurisdiction holds an easement.

(d) Failure to allow entry or unreasonable delays: In the event the city or other duly authorized representative of the city is refused admission or unreasonably delayed is a violation and may result in enforcement action as allowed for under this article including revocation of the wastewater discharge permit.

(e) Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the industrial user at the written or verbal request of the director and shall not be replaced. The costs of clearing such access shall be borne by the industrial user.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.600. Treatment required.

(a) An industrial user shall provide necessary wastewater treatment at the industrial user′s expense as required to comply with this article and shall achieve compliance with all pretreatment standards and requirements within the time limitations specified by the EPA, the state, or the city, whichever is more stringent. Upon written notice from the city of the requirement for pretreatment of discharge, the industrial user shall have ten working days to reply to the director as to a plan of compliance and shall be in compliance within 90 days unless a time extension is otherwise granted by the city. Detailed plans showing the pretreatment facilities and operating procedures shall be submitted to the director for review and shall be acceptable before construction of the facility. The review of such plans and operating procedures will in no way relieve the industrial user from the responsibility of modifying the facility as necessary to produce an effluent acceptable to the city under the provisions of this article. Any subsequent changes in the pretreatment facilities or method of operation shall be reported to and be approved by the director.

(b) Wastewater discharge control: The city may require an industrial user to restrict discharge during peak flow periods, designate that certain wastewater be discharged only into specified sewers, relocate and/or consolidate points of discharge, separate sewage

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wastestreams from industrial wastestreams, and such other conditions as may be necessary to protect the POTW and demonstrate the industrial user's compliance with the requirements of this article.

(c) Flow equalization: The city may require any industrial user discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. An industrial discharge permit may be issued solely for flow equalization.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.605. Monitoring equipment required.

(a) The director may require the industrial user to install, at the industrial user's expense, suitable monitoring facilities or equipment that allows for the representative sampling and accurate observation of wastewater discharges. Whether constructed on public or private property, the monitoring facilities shall be constructed in accordance with the city's requirements and all applicable construction standards and specifications. Monitoring equipment and structures shall be maintained in proper working order and kept safe and accessible at all times to city personnel. The monitoring equipment shall be located and maintained on the industrial user's premises outside of the building unless otherwise approved by the city. If the monitoring structure is located within the secured perimeter of the industrial user, there shall be accommodations to allow safe and immediate access for city personnel. This may include immediate access through security gates or installation of a separate gate secured with a city lock. When installation of monitoring facilities at a location within the industrial user's facility would be impractical, the city may allow such facility to be constructed in the public street or easement area, with the approval of the agency having jurisdiction over such street or easement, and located so that it will not be obstructed by public utilities, landscaping or parked vehicles.

(b) When more than one industrial user can discharge into a common service line, the director may require installation of a separate monitoring facility and equipment for each industrial user. Also when, in the judgment of the director, there is a significant difference in wastewater constituents and characteristics produced by different operations of a single industrial user the director may require that separate monitoring facilities be installed for differing discharge.

(c) Monitoring facilities shall be operated and maintained at the industrial user's expense.

(d) Flow, pH and LEL meters: If the director determines that an industrial user needs to measure and report wastewater flow, discharge process wastewaters necessitating continuous pH measurement or discharge wastewater that may contain flammable substances may be required to install and maintain, at the industrial user's expense, approved meters, structures and equipment.

(e) Unless approved by the director in writing, no industrial user shall cover any manhole, sewer cleanout, or other openings in the wastewater collection system with earth, paving, or otherwise render it inaccessible.

(f) When, in the judgment of the city, an existing user requires a monitoring facility, the user will be so notified in writing. Construction must be completed within 90 days following written notification unless a time extension is otherwise granted by the city.

(Ord. No. 6305, § 1, 8-28-13)

DIVISION 3. WASTEWATER DISCHARGE PERMITS

Sec. 12.16.610. Permit for industrial users.

(a) Industrial users are categorized into one of the five classes.

(b) Upon finding by the city that an industrial user meeting the criteria in subsection (b) of this definition has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement, the city may at any time, on its own initiative or in response to a petition received from an industrial user, and in accordance with 40 CFR Section 403.8(f)(2), determine that such industrial user is not a significant industrial user.

(1) Class I:
Those industrial users with sanitary facilities only or which have other activities that would not pose a reasonable potential to discharge pollutants of concern to the city. These industrial users may be required to periodically submit an industrial waste survey. If the industrial user believes that it performs or will perform any activities resulting in reclassification as a Class II, III, IV or V facility, it shall report this change to the director. These industrial users are not required to obtain wastewater discharge permits.

(2) Class II:
Industrial users, not meeting the definition of significant industrial user, that discharge wastewater or have the reasonable potential to discharge pollutants of concern to the city or otherwise have operations that the city believes could result in the discharge of pollutants. These industrial users shall receive a permit and/or reporting requirements and may be required by the city to meet specific discharge limits and/or specific best management practices.

(3) Class III:
Industrial users meeting the definition of significant industrial user under section 12.16.010 and which are not categorical industrial users.

(4) Class IV:
Industrial users that perform categorical processes listed in 40 CFR Chapter I, subchapter N, Parts 405-471 with categorical discharge standards, but do not discharge or have the potential to discharge wastewater to the POTW from such categorical processes. Class IV industrial users may discharge domestic sewage and industrial wastewater that is not regulated by an applicable categorical standard and complies with any other applicable pretreatment requirements.

(5) Class V:
Industrial users meeting the definition of ″significant industrial user″ and ″categorical industrial user″ as defined in section 12.16.010 and which discharge non-domestic waste to the POTW.

(Ord. No. 6305, § 1, 8-28-13; Ord. No. 6438, § 5, 9-27-17)

Sec. 12.16.615. Permits required.

(a) PERMITS REQUIRED.
All Class III, IV and V industrial users shall not discharge to the POTW without an unexpired wastewater discharge permit issued by the city. A separate permit may be required for each

industrial user, building or complex of buildings. All other industrial users that are determined to be Class II industrial users shall be notified by the city with applicable permitting and/or reporting requirements.

(b) NEW INDUSTRIAL USERS: APPLYING FOR A WASTEWATER DISCHARGE PERMIT.

All Class III, IV and V industrial users shall apply for and obtain a wastewater discharge permit prior to discharging to the POTW. The industrial user shall file a permit application on forms provided by the city containing the information specified in subsection 12.16.620(b). The completed application for the wastewater discharge permit must be filed at least 90 days prior to the date upon which any discharge will begin or recommence.

(c) EXISTING INDUSTRIAL USERS: APPLYING FOR A WASTEWATER DISCHARGE PERMIT RE-ISSUANCE.

A Class III, IV and V industrial user with an expiring wastewater discharge permit shall apply for a new permit by submitting a complete permit application at least 90 days prior to the expiration of the industrial user's existing wastewater discharge permit. The industrial user shall file a permit application on forms provided by the city containing the information specified in subsection 12.16.620(b). An industrial user with an existing permit that has filed a complete and timely application may continue to discharge as approved in writing by the city through an administrative extension of the existing permit if the delay in permit issuance is not due to any act or failure to act on the industrial user's part.

(d) ENFORCEABILITY.

Any violation of the terms and conditions of a wastewater discharge permit, failure to apply for a permit as required, or discharging without a required permit shall be deemed a violation of this article and subjects the industrial user to enforcement by the city. Obtaining a wastewater discharge permit does not relieve a permittee of its obligation to comply with all state and federal pretreatment standards or requirements.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.620. Permit application and fees.

(a) CLASS II INDUSTRIAL USERS:

These industrial users will be inspected and issued a permit by the city and are not required to provide a permit application prior to discharge except as may be required through the city's business licensing program and building permits process.

(b) CLASS III, CLASS IV AND CLASS V INDUSTRIAL USERS:

To obtain a wastewater discharge permit, the industrial user shall complete and file with the director an application in the form prescribed by the director. In support of the application, the industrial user shall submit, in units and terms appropriate for evaluation, the following information:

(1) Name of business, address of the facility, location of the discharge if different from facility address, contact information of the authorized representative of the industrial user, and standard industrial classification (SIC) number or numbers applicable to the business;

(2) Environmental permits. A list of any environmental control permits held by or for the facility.

(3) Description of operations.

(i) A brief description of the nature, average rate of production (including each product produced by type, amount, processes, and rate of production) and an estimate of the industrial user's long-term production rate;

(ii) The standard industrial classification(s) of the operation(s) carried out by such industrial user;

(iii) A schematic process diagram, which indicates all process tanks, process lines, treatment systems, drains, and points of discharge to the POTW from the regulated process;

(iv) Types of wastes generated;

(v) A list of all raw materials and chemicals used or stored at the facility which are, or could accidentally or intentionally be, discharged to the POTW;

(vi) A list of hazardous waste(s) generated and a description of the storage area and procedures for the wastes;

(vii) Number of employees; and

(viii) Hours of operation, and proposed or actual hours of operation.

(4) Time and duration of discharges including the date the industrial user first began discharge or plans to discharge to the POTW.

(5) The location for sampling the wastewater discharges from the industrial user.

(6) **Flow measurement.** Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined wastestream formula set out in 40 CFR Section 403.6(e). For new sources and new permittees not currently discharging, an estimate of flows may be used for meeting the requirements of the baseline monitoring report required in section 12.16.690.

(7) **Measurement of pollutants.**

(i) The pretreatment standards applicable to each regulated process;

(ii) The results of sampling and analysis identifying the nature and concentration, and/or mass of regulated pollutants in the discharge from each regulated process where required by the standard or by the city;

(iii) Instantaneous, daily maximum and long-term average concentrations, or mass, where required, shall be reported;

(iv) The sample shall be representative of daily operations and shall be collected in accordance with procedures set out in section 12.16.575. Where the standard requires compliance with a BMP or pollution prevention alternative, the industrial user shall submit documentation as required by the city or the applicable standards to determine compliance with the standard; and

(v) Analyses must be performed in accordance with procedures set out in subsection 12.16.575(c).

(8) A list of hazardous waste(s) generated and a description of the storage area and procedures for the wastes.

(9) Slug discharge control plan for significant industrial users as described in section 12.16.720 shall be submitted as required by the city and for non-significant industrial user as required by the city.

(10) **Compliance schedule.** If additional pretreatment and/or operation and maintenance (O&M) will be required to meet the pretreatment standards, the shortest schedule by

which the industrial user will provide such additional pretreatment and/or O&M. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard.

The following conditions shall apply to this schedule:

(i) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable pretreatment standards (e.g. hiring an engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, etc.). No such increment shall exceed nine months.

(ii) Not later than 14 days following each date in the schedule and the final date for compliance, the industrial user shall submit a progress report to the director including, as a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for delay, and the steps being taken by the industrial user to return the construction to the schedule established. In no event shall more than nine months elapse between such progress reports to the director.

(11) Certification. A statement, reviewed by an authorized representative of the industrial user and certified to by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required for the industrial user to meet the pretreatment standards and requirements.

(12) Signatory certification. All wastewater discharge permit applications and certification statements must be signed by an authorized representative of the industrial user and contain the applicable certification statement(s) in section 12.16.750.

(13) Any other information as may be deemed by the director to be necessary to evaluate the permit application.

(c) Fees for wastewater discharge permits and monitoring shall be determined in accordance with a set list of fees approved by the city council and kept on file in the office of the city engineer and payable upon billing by the city.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.630. Terms and conditions of permit.

(a) WASTEWATER DISCHARGE PERMIT ISSUANCE.

(1) Wastewater discharge permits shall be issued for a specified time period, not to exceed five years. A permit may be issued for a period less than five years or may be stated to expire on a specific date.

(2) The city shall issue a wastewater discharge permit to the applicant if the city finds that all of the following conditions are met:

(i) The applicant has provided a timely and complete permit application to the city;

(ii) The proposed discharge by the applicant is in compliance with the limitations established in this article;

(iii) The proposed operation and discharge of the applicant would permit the normal and efficient operation of the POTW; and

(iv) The proposed discharge by the applicant would not result in a violation by the city of the terms and conditions of its wastewater discharge permit or cause pass through or interference.

(3) If the city finds that the condition set out in subsection (2)(ii) of this section is not met, the city may, at their discretion, issue a wastewater discharge permit to the applicant if the conditions set out in subsections (2)(i), (2)(iii) and (2)(iv) of this section have been met and if the applicant submits, and the city approves, a compliance schedule setting out the measures to be taken by the applicant and the dates that such measures will be implemented to insure compliance with applicable pretreatment standards. At no time shall a discharge be allowed to cause a violation of any general or specific prohibitions established in section 12.16.530 nor shall the final compliance date for a categorical pretreatment standard be extended.

(b) TRANSFER OF A PERMIT.

Wastewater discharge permits are issued to a specific industrial user for a specific operation. A wastewater discharge permit shall not be reassigned or transferred or sold to a new owner, new industrial user, different premises, or a new or changed operation.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.635. Wastewater discharge permit contents.

Wastewater discharge permits issued to Class III, IV, and V industrial users shall be expressly subject to all provisions of this article and all other applicable regulations, user charges and fees established by the city. Permits may contain the following:

(a) A statement that indicates the permit's issuance date, expiration date and effective date;

(b) A statement on permit transferability;

(c) The unit charge or schedule of user charges and fees for the wastewater to be discharged into a public sewer;

(d) Limits on the average and/or maximum wastewater constituents and characteristics including, but not limited to, effluent limits, including best management practices, based upon applicable pretreatment standards;

(e) Limits on average and maximum rate and time of discharge or requirements for flow;

(f) Requirements for installation and maintenance of inspection and sampling facilities and equipment;

(g) Self-monitoring, sampling, reporting, notification and record-keeping requirements including, but not limited to, identification of the pollutants to be monitored, sampling location, sampling frequency and sample type, based on federal, state and local law;

(h) Best management practices (BMPs) to control specific pollutants as necessary to meet the objectives of this article;

(i) Compliance schedules;

(j) Requirements for notification of the city of any new introduction of wastewater constituents or any significant change in the volume or character of the wastewater constituents being introduced into the wastewater treatment system;

(k) Requirements to control and report any slug discharges and notify the city immediately of any changes at its facility affecting potential for a spill or slug discharge and to notify the POTW immediately in the event of a slug, spill or accidental discharge to the POTW;

(l) Statements of applicable administrative, civil and/or criminal penalties for the violation of pretreatment standards and requirements, the permit, this article, and any applicable compliance schedule;

(m) Requirements to reapply for a new permit prior to expiration of the existing permit;

(n) Additional monitoring to be reported;

(o) Requirements for the installation of pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of pollutants into the treatment works;

(p) Closure requirements for permitted facilities undergoing partial or complete closure activities to ensure closure activities are completed and wastes have been properly disposed and remaining access to sanitary and storm sewers are protected;

(q) Other conditions as deemed appropriate by the city or the director to ensure compliance with all applicable rules and regulations.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.640. Wastewater discharge permit modification.

The industrial user shall be informed of any proposed changes in its permit at least 30 days prior to the effective date of change. The notification of a wastewater discharge permit modification does not stay any wastewater discharge permit condition. The city may modify a wastewater discharge permit for good cause, including, but not limited to, the following reasons:

(a) To incorporate any new or revised federal, state, or local pretreatment standards or requirements;

(b) To address significant alterations or additions to the industrial user's operation, processes, or wastewater volume or character since the time of the wastewater discharge permit issuance;

(c) A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

(d) Information indicating that the permitted discharge poses a threat to the POTW, city personnel, or the receiving waters;

(e) Violation of any terms or conditions of the industrial discharge permit;

(f) Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge permit application or in any required reporting;

(g) To reflect a transfer of the facility ownership and/or operation to a new owner/operator;

(h) To correct typographical or other errors in the wastewater discharge permit; or

(i) Upon request of the permittee, provided such request does not result in a violation of any applicable pretreatment standards or requirements, or this article. The filing of a request by the permittee for a permit modification does not stay any permit condition.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.650. Wastewater discharge permit suspension or revocation.

A violation of the conditions of a permit or of this article or of applicable state and federal regulations shall be reason for suspension or revocation of such permit by the city. Upon suspension or revocation of the permit, any wastewater discharge from the affected industrial user shall be considered prohibited and in violation of this article. Grounds for suspension or revocation of a permit include, but are not limited to, the following:

(a) Failure to pay sewer charges, surcharges, or pretreatment programs fees;

(b) Failure of the industrial user to report significant changes in operations or wastewater constituents and characteristics as required;

(c) Refusal of access to the industrial user's premises for the purpose of inspection or monitoring;

(d) Falsification of records, reports or monitoring results;

(e) Tampering with monitoring equipment;

(f) Misrepresentation or failure to fully disclose all relevant facts in the wastewater discharge permit application;

(g) Failure to pay fines or penalties;

(h) Failure of an industrial user to accurately disclose or report the wastewater constituents and characteristics of any discharge;

(i) Failure to meet compliance schedules;

(j) Failure to provide required reports, including but not limited to, a wastewater survey, baseline monitoring report, 90-day compliance report, permit application, self monitoring report or other permit required reports or notifications within the timeframe required by the city; or

(k) Violation of any pretreatment standard or requirement, or any terms of the wastewater discharge permit or this article.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.660. Administrative appeals.

(a) WASTEWATER DISCHARGE PERMITS.

The industrial user, may appeal the terms or, denial of issuance of a wastewater discharge permit within 30 calendar days of the permit issuance pursuant to paragraph (c). Failure to submit a timely petition for review shall be deemed to be a waiver of the administrative appeal. In its petition, the appealing party must indicate the permit provisions objected to, the reasons for this objection, and the alternative condition, if any, it seeks to place in the wastewater discharge permit. The effectiveness of the wastewater discharge permit shall not be stayed pending the appeal.

(b) ENFORCEMENT ACTIONS.

An industrial user may appeal the issuance of an administrative enforcement action, such as suspension or revocation of a permit or assessed administrative penalty to the city within ten business days of an enforcement action pursuant to paragraph (c). Failure to submit a timely petition for review shall be deemed to be a waiver of the administrative appeal. In its petition, the appealing party must indicate the provisions objected to and the

reasons for this objection. No action ordered in an enforcement action that is designed to compel the industrial user to comply with all applicable pretreatment standards or requirements shall be stayed pending the appeal nor shall additional enforcement responses for continuing violations be stayed.

(c) ADMINISTRATIVE HEARINGS.

(1) The appeal will be heard by the administrative hearing officer who can take the following actions:

(i) Issue subpoenas requesting the attendance and testimony of witnesses and the production of evidence relevant to any matter involved in such hearings, and the director or the industrial user may petition the municipal court to enforce any subpoena issued pursuant to this section through the court's contempt powers.

(ii) Receive evidence from both the industrial user and the director on any relevant issue involved in such hearings, provided however, that the Nevada Rules of Evidence shall not apply strictly to such evidence.

(iii) Render a decision on a permit appeal or for the appeal of an enforcement action, issue an order to the industrial user responsible for the discharge directing that, following a specified time period, the sewer service be discontinued unless adequate treatment facilities, devices or other related appurtenances shall have been installed or existing treatment facilities, devices or other related appurtenances are properly operated. Further orders and directives as are necessary and appropriate to correct the violation may be issued.

(2) The decision of the administrative hearing officer may be appealed to district court within 30 calendar days after written notification of the administrative hearing officer's decision by filing a petition for judicial review pursuant to the Nevada Rules of Civil Procedure. The appeal in district court will be a review of the administrative record. Failure to file a timely appeal to court shall be deemed a waiver of any and all objections to the administrative hearing officer's decision.

(3) Representation is limited to representation in proper persona or by an attorney who is licensed to practice law in the State of Nevada.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.670. Special agreements and contracts.

No statement contained in this article shall be construed as prohibiting special written agreements between the city and any industrial user allowing industrial waste of unusual strength or character to be admitted to the POTW system, provided the industrial user compensates the city for any additional costs of treatment. The agreement shall not be used in lieu of a wastewater discharge permit. The director may execute an agreement to exceed the specific limitations contained in subsection 12.16.565(c) only if the director finds that:

(a) Acceptance of the discharge does not adversely affect the wastewater utility nor cause violation of the city's NPDES permit, cause a violation of the general and specific prohibitions specified in section 12.16.530, does not cause the city to exceed its approved maximum allowable industrial loading (MAIL) or applicable federal and state laws; and

(b) The agreement does not waive compliance with categorical pretreatment standards.

(Ord. No. 6305, § 1, 8-28-13)

DIVISION 4. REPORTING AND NOTIFICATION REQUIREMENTS

Sec. 12.16.680. Self monitoring report.

(a) All Class III, IV and V industrial users or other industrial user specifically required by the city, subject to a federal, state, or a pretreatment standard or requirement must submit reports, at a frequency determined by the city but no less than once per six months, indicating the nature, concentration of pollutants in the discharge which are limited by pretreatment standards and the average and maximum daily flows for the reporting period. In cases where the pretreatment standard requires compliance with a best management practices (BMPs) or pollution prevention alternatives, the industrial user must submit documentation required by the city or the pretreatment standard necessary to determine compliance status of the industrial user. All self monitoring reports must be signed and certified in accordance with section 12.16.750.

(b) All wastewater samples must be representative of the industrial user's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of an industrial user to keep its monitoring facility in good working order shall not be grounds for the industrial user to claim that the sample results are unrepresentative of its discharge.

(c) If an industrial user subject to the reporting requirement in this section monitors any regulated pollutant at the appropriate sampling location more frequently than required by the city, using the methods and procedures prescribed in section 12.16.575, the results of this monitoring shall be included in the report.

(d) The sampling and analyses required for the reporting outlined above may be performed by the city in lieu of the permittee. Where the city itself makes arrangements with the industrial user to collect all the information required for the report, the industrial user will not be required to submit the report.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.690. Baseline monitoring reports (BMR)—Categorical industrial users.

(a) Within either 180 days after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under 40 CFR Section 403.6(a)(4), whichever is later, existing industrial users currently discharging to or scheduled to discharge to the POTW shall submit to the city a report which contains the information listed in paragraph (2) below. At least 90 days prior to commencement of their discharge, new sources, and sources that become categorical industrial users subsequent to the promulgation of an applicable categorical pretreatment standard, shall submit to the city a report which contains the information listed in paragraph (b) below. A new source shall report the method of pretreatment it intends to use to meet applicable pretreatment standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged from regulated process streams and other non-process streams.

(b) Industrial users described above shall submit the information set forth below.

(1) All information required in subsection 12.16.620(b).

(2) Measurement of pollutants.

(3) The industrial user shall take a minimum of one representative sample to compile the data necessary to comply with the requirements of this paragraph.

(4) Samples should be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment, the industrial user should measure the flows and concentrations necessary to allow use of the combined wastestream formula in 40 Section CFR 403.6(e) in order to evaluate compliance with the pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with 40 CFR Section 403.6(e) this adjusted limit along with supporting data shall be submitted to the city.

(5) Sampling and analysis shall be performed in accordance with section 12.16.575.

(6) The city may allow the submission of a BMR which utilizes only historical data so long as the data provides information sufficient to determine the need for industrial pretreatment measures.

(7) The BMR shall indicate the time, date, and place of sampling and methods of analysis, and shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the POTW.

(8) Signature and report certification. All baseline monitoring reports must be signed in accordance with section 12.16.750 and signed by an authorized representative as defined in section 12.16.010.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.700. 90-Day compliance reports—Categorical industrial users.

(a) New sources: All new sources subject to existing categorical pretreatment standards shall submit a report to the city within 90 days from the date of first discharge to the POTW demonstrating actual and continuing compliance with those standards.

(b) Existing sources: All existing sources required to comply with newly promulgated categorical pretreatment standards shall submit a report to the city within 90 days of the date on which compliance is required with those standards demonstrating that actual and continuing compliance with such standards has been achieved.

(c) Such 90-day compliance report shall contain at a minimum the information required in subsection 12.16.620(b), subparagraphs (3)(i), (6), (7), (11), (12) and (13).

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.710. 24-hour notice and 30-day re-sampling.

(a) If sampling performed by an industrial user indicates a violation of this article, the industrial user shall notify the city within 24 hours of becoming aware of the violation. The industrial user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the city within 30 days after becoming aware of the violation.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.720. Slug discharge control plan.

(a) Each industrial user shall provide protection from accidental and slug discharges of pollutants regulated under this article. Facilities to prevent the discharge of spills or slug loads shall be provided and maintained at the industrial user's expense.

(b) The city shall evaluate whether each significant industrial user needs a slug discharge control plan or other action to control spills and slug discharges. The city may require an industrial user to develop, submit for approval, and implement a slug discharge control plan or take such other action that may be necessary to control spills and slug discharges.

(c) A slug discharge control plan shall address, at a minimum, the following:

(1) Detailed plans (schematics) showing facility layout and plumbing representative of operating procedures;

(2) Description of contents and volumes of any process tanks;

(3) Description of discharge practices, including non-routine batch discharges;

(4) Listing of stored chemicals, including location and volumes;

(5) Procedures for immediately notifying the city of any spill or slug discharge. It is the responsibility of the industrial user to comply with the reporting requirements in section 12.16.730;

(6) Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response; and

(7) Any other information as required by the city.

(d) **Notice to employees.** A notice shall be permanently posted on the industrial user's bulletin board or other prominent place advising employees who to call in the event of an accidental or slug discharge. Employers shall ensure that all employees who work in any area where an accidental or slug discharge may occur or originate are advised of the emergency notification procedures.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.730. Reports of potential problems—Slug and spills.

(a) In the case of any changes at its facility affecting potential for a slug discharge as defined in section 12.16.720 or any actual discharge, including, but not limited to, spills, accidental discharges, discharges of a nonroutine, episodic nature, a noncustomary batch discharge, or a discharge that may cause potential problems for the POTW, the industrial user shall immediately telephone and notify the city of the incident. This notification shall include:

(1) Name of the facility.

(2) Location of the facility.

(3) Name of the caller.

(4) Date and time of discharge.

(5) Date and time discharge was halted.

(6) Location of the discharge.

(7) Estimated volume of discharge.

(8) A general description of the material that was discharged.

(9) Estimated concentration of pollutants in discharge.

(10) Corrective actions taken to halt the discharge.

(11) Method of disposal if applicable.

(b) Within five working days following such discharge, the industrial user shall, unless waived by the city, submit a detailed written report describing the cause(s) of the discharge and the measures to be taken by the industrial user to prevent similar future occurrences. Such notification shall not relieve the industrial user of any expense, loss, damage, or other liability which might be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the industrial user of any fines, penalties, or other liability which may be imposed pursuant to this article.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.740. Reports for non-significant industrial users.

If the city deems it necessary to assure compliance with provisions of this article, any industrial user of the POTW may be required to submit a permit application, questionnaire or other reports and notifications in a format and timeframe as specified by the city.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.750. Signatory certification.

All reports and other submittals required to be submitted to the city shall include the following statement and signatory requirements:

(a) The authorized representative of the industrial user signing any application, questionnaire, any report or other information required to be submitted to the city must sign and attach the following certification statement with each such report or information submitted to the city.

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to ensure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or the persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of a fine and imprisonment for knowing violations."

(b) If the authorized representative is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of this section and meeting the definition in section 12.16.010 must be submitted to the city prior to or together with any reports to be signed by an authorized representative.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.760. Compliance schedules.

Should any schedule of compliance be established in accordance with the requirements of this article, the following conditions shall apply to such schedule:

(a) The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the industrial user to meet the applicable categorical pretreatment standards (e.g., hiring an engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, etc.);

(b) No increment referred to above shall exceed nine months;

(c) Not later than 14 days following each date in the schedule and the final date for compliance, the industrial user shall submit a progress report to the city including, at a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for delay, and the steps being taken by the industrial user to return the construction to the schedule established. In no event shall more than nine months elapse between such progress reports to the city.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.770. Change in discharge or operations.

(a) Every permitted industrial user shall file a notification with the city a minimum of 14 days prior to any planned significant change in operations or wastewater characteristics. A significant change shall be a change equal to or greater than 20 percent in the mass of a pollutant or volume of flow discharged to the POTW. In addition, this notification shall include changes to:

(1) Adding or removing processing, manufacturing or other production operations.

(2) New pollutants used which may be discharged.

(3) Changes in the listed or characteristic hazardous waste for which the industrial user has submitted or is required to submit to the city under section 12.16.780 and 40 CFR Section 403.12(p) as amended.

(b) Known or anticipated facility closure. The industrial user is required to notify the city at least 30 days prior to facility shutdown or closure which might alter the character, nature, quality, or volume of its wastewater.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.780. Notification of the discharge of hazardous waste.

(a) The industrial user shall notify the city, the EPA Regional Waste Management Division Director, and state hazardous waste authorities in writing of any discharge into the POTW of a substance, which, if otherwise disposed of, would be a hazardous waste under 40 CFR Part 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other).

(b) If the industrial user discharges more than 100 kilograms of such waste per calendar month to the POTW, the notification shall also contain the following information to the

extent such information is known and readily available to the industrial user: An identification of the hazardous constituents contained in the wastes, an estimation of the mass and concentration of such constituents in the wastestream discharged during that calendar month, and an estimation of the mass of constituents in the wastestream expected to be discharged during the following 12 months.

(c) All notifications must take place within 180 days of the effective date of this rule. Industrial users who commence discharging after the effective date of this rule shall provide the notification no later than 180 days after the discharge of the listed or characteristic hazardous waste. Any notification under this paragraph need be submitted only once for each hazardous waste discharged. However, notifications of changed discharges must be submitted under section 12.16.770. The notification requirement in this section does not apply to pollutants already reported under the self-monitoring requirements of sections 12.16.680, 12.16.700 and 12.16.710.

(d) Dischargers are exempt from the requirements of paragraphs (a), (b) and (c) of this section during a calendar month in which they discharge no more than 15 kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 CFR Sections 261.30(d) and 261.33(e). Discharge of more than 15 kilograms of non-acute hazardous wastes in a calendar month, or of any quantity of acute hazardous wastes as specified in 40 CFR Sections 261.30(d) and 261.33(e), requires a one-time notification. Subsequent months during which the industrial user discharges more than such quantities of any hazardous waste do not require additional notification.

(e) In the case of any new regulations under Section 3001 of RCRA identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the industrial user must notify the city, the EPA Regional Waste Management Waste Division Director, and state hazardous waste authorities of the discharge of such substance within 90 days of the effective date of such regulations.

(f) In the case of any notification made under this section, the industrial user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.790. Requests for information.

(a) A permittee shall furnish to the city, within the timeframe set by the director, any information which the city may request to determine whether cause exists for modifying, revoking, and reissuing, or terminating a wastewater discharge permit, or to determine compliance with the wastewater discharge permit or this article. A permittee shall also, upon request, provide to the city, within the timeframe required by the director, copies of any records that are required by the wastewater discharge permit or this article.

(b) When requested by the city, any industrial user shall submit information to the director regarding industrial processes, nature and characteristics of wastes and wastewaters generated at the industrial facility, method of disposal of wastes, or other information required by the director to meet the responsibilities under this article, state law, and 40 CFR Part 403. Failure to provide information within the timeframe specified shall be a violation of this article.

(Ord. No. 6305, § 1, 8-28-13)

DIVISION 5. COMPLIANCE AND ENFORCEMENT

Sec. 12.16.800. Enforcement authority.

The director shall enforce the provisions and requirements herein prescribed. The chief of police shall deputize the environmental control officer for the purpose of enforcing the pretreatment standards and requirements of this article and a wastewater discharge permit. When so deputized the environmental control officer shall have the power and authority of a peace officer to prevent and abate all such violations.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.805. Enforcement procedures.

(a) Enforcement response plan. The city may adopt policies and procedures as set forth in the city's enforcement response plan for carrying out the provisions of this article, provided that such policies and procedures are not in conflict with this article or any applicable state or federal law or regulation.

(b) *Significant noncompliance* or *SNC* is a significant industrial user that meets any of the following criteria or any industrial user that meets paragraphs (3), (4), or (8) shall be in significant noncompliance:

(1) Chronic violations of wastewater discharge limits, defined here as those in which 66 percent or more of all of the measurements taken during a six-month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits.

(2) Technical review criteria (TRC) violations, defined here as those in which 33 percent or more of all of the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the numeric pretreatment standard or requirement including instantaneous limits multiplied by the applicable TRC (TRC = 1.4 for BOD, TSS, fats, oil, and grease, and 1.2 for all other pollutants except pH).

(3) Any other violation of a pretreatment standard or requirement (daily maximum, long-term average, instantaneous limit, or narrative standard) that the POTW determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of POTW personnel or the general public).

(4) Any discharge of a pollutant that has caused imminent endangerment to human health, welfare, or the environment or has resulted in the POTW's exercise of its emergency authority to halt or prevent such a discharge.

(5) Failure to meet, within 90 days after the schedule date a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance.

(6) Failure to provide, within 30 days after the due date, required reports such as baseline monitoring reports, compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules.

(7) Failure to accurately report noncompliance.

(8) Any other violation or group of violations, which may include a violation of best management practices, which the POTW determines may adversely affect the operation or implementation of the local pretreatment program.

(c) Publication of industrial users in significant noncompliance. The city shall publish annually, in a newspaper of general circulation that provides meaningful public notice within the jurisdictions served by the POTW, a list of the significant industrial users which, at any time during the previous 12 months, were in significant noncompliance with applicable pretreatment standards or requirements as defined in paragraph (b) of this section. In addition, any industrial user found to be in significant noncompliance with paragraphs (3), (4), or (8) shall also be published in the newspaper.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.810. Administrative enforcement actions.

(a) NOTICE OF VIOLATION (NOV).

When the city finds that an industrial user has violated, or continues to violate, any provision of this article, a permit, or order issued hereunder, or any other pretreatment standard or requirement, the city may serve upon the industrial user a written notice of violation. Within ten business days of the receipt of such notice, an explanation of the violation and a plan for the satisfactory correction of prevention thereof, to include specific required actions, shall be submitted by the industrial user to the city. Submission of such a plan in no way relieves the industrial user of liability for any violations occurring before or after receipt of the notice of violation. Nothing in this section shall limit the authority of the city to take any action, including emergency actions or any other enforcement action, without first issuing a notice of violation.

(b) ADMINISTRATIVE CITATION.

When the city finds that an industrial user has violated, or continues to violate, any provision of this article, a permit, or order issued hereunder, or any other pretreatment standard or requirement, the city may serve upon the industrial user an administrative citation as allowed for in chapter 1.05. The industrial user receiving such citation shall comply with the requirements and response requirements specified in the citation. Nothing in this section shall limit the authority of the city to take any action, including emergency actions or any other enforcement action, without first issuing a administrative citation.

(c) ADMINISTRATIVE COMPLIANCE ORDER.

When the city finds that an industrial user has violated, or continues to violate, any provision of this article, a permit, or order issued hereunder, or any other pretreatment standard or requirement, the city may issue an order to the industrial user responsible for the discharge directing that the industrial user come into compliance within a specific time. If the industrial user does not come into compliance within the time provided, sewer service may be discontinued unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. Compliance orders also may contain other requirements to address the noncompliance, including additional self-monitoring and management practices designed to minimize the amount of pollutants discharged to the POTW. A compliance order may not extend the deadline for compliance established for a pretreatment standard or requirement, nor does a compliance order relieve the industrial user of liability for any violation, including any continuing violation. Issuance of a compliance order shall not be a bar against, or a prerequisite for, taking any other action against the industrial user.

(d) CONSENT AGREEMENT.

The city may enter into a consent agreement, assurances of compliance, or other similar documents establishing an agreement with any industrial user responsible for noncompli-

ance. Such documents shall include specific actions to be taken by the industrial user to correct the noncompliance within a time period specified by the document. A consent agreement may include penalties (assessed and stipulated), supplemental environmental projects, or other conditions and requirements as agreed to by the city and the industrial user.

(e) SHOW CAUSE HEARING.

(1) The city may order any industrial user who causes or allows an unauthorized discharge to enter the POTW to show cause before the city why the proposed enforcement action should not be taken. A notice shall be served on the industrial user specifying the time and place of a hearing to be held by the city regarding the violation, the reasons why the proposed action is to be taken, and directing the industrial user to show cause before the city why the proposed enforcement action should not be taken. The notice of the hearing shall be served personally or be sent by registered or certified mail (return receipt requested) at least ten calendar days before the hearing. Service may be made on any agent or officer of a corporation. The hearing will generally follow the procedures established at subsection 12.16.660(c).

(f) CEASE AND DESIST ORDER.

(1) When the director finds that an industrial user is violating this division, a permit, any order issued hereunder, or any other pretreatment standard or requirement, or that the industrial user's past compliance history indicates that violations are likely to recur, the director may issue an order to the user directing it to cease and desist all such violations and directing the industrial user to:

(i) Immediately comply with all requirements;

(ii) Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge.

(2) Issuance of a cease and desist order shall not be a bar against, or a prerequisite for, taking any other action against the industrial user.

(g) SUSPENSION OF SERVICE.

(1) Endangerment to health or welfare of the community: The city, through other than a formal notice to the affected industrial user, may immediately and effectively halt or prevent any discharge of pollutants into any natural waterway, surface drainage within the city, any area under jurisdiction of the city, the POTW of the city or any wastewater system tributary thereto, by any means available to them, including physical disconnection from the wastewater system, whenever it reasonably appears that such discharge presents an imminent endangerment to the health or welfare of the community.

(2) Endangerment to environment or treatment works: The city, after written notice to the discharger may halt or prevent any discharge of pollutants into any natural waterway, surface drainage within the city, any area under jurisdiction of the city, the POTW, wastewater system tributary thereto, by any means available to them, including physical disconnection from the wastewater system, whenever such discharge presents or may present an endangerment to the environment or threatens to interfere with the operation of the POTW.

(3) Any person notified by the city of a suspension or revocation of the wastewater treatment service and/or a permit shall immediately stop or eliminate the contribution. In the event of a failure of the person to comply voluntarily with the suspension order, the city shall take such steps as deemed necessary including immediate severance of the sewer connection, to prevent or minimize damage to the POTW system or endangerment to individuals or the environment. The city may reinstate the wastewater discharge permit and/or the wastewater treatment service upon proof of the elimination of the non-complying discharge.

(4) A detailed written statement submitted by the industrial user describing the causes of the harmful contribution and the measure taken to prevent any future occurrence shall be provided to the city within ten business days of the date of occurrence. Suspension of service shall not be a bar against, or a prerequisite for, taking any other action against the industrial user.

(Ord. No. 6305, § 1, 8-28-13)

Sec. 12.16.811. Judicial enforcement remedies.

(a) INJUNCTIVE RELIEF.

When the city finds that an industrial user has violated, or continues to violate, any provision of this article, a permit, or order issued hereunder, or any other pretreatment standard or requirement, the city may petition a court of competent jurisdiction for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the a permit, order, or other requirement imposed by this article on activities of an industrial user. The city may also seek such other action as is appropriate for legal and/or equitable relief, including a requirement for the industrial user to conduct environmental remediation. A petition for injunctive relief shall not be a bar against, or a prerequisite for, taking any other action against an industrial user.

(b) CIVIL PENALTIES.

(1) An industrial user who has violated, or continues to violate, any provision of this article, a permit, or order issued hereunder, or any other pretreatment standard or requirement may be subject to the imposition of a court imposed civil penalty not to exceed $1,000.00 per day per violation. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of violation.

(2) The city may recover reasonable attorneys' fees, court costs, and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by the city.

(3) Filing a suit for civil penalties shall not be a bar against, or a prerequisite for, taking any other action against an industrial user.

(c) CIVIL ADMINISTRATIVE FINE PASS THROUGH.

In the event that an industrial user discharges such pollutants which cause the city to violate any condition of its wastewater discharge permit and the city is fined by the EPA or the state for such violation, then such industrial user shall be fully liable for the total amount of the fine assessed against the city by the EPA and/or the state.

(d) CRIMINAL PROSECUTION.

(1) The city may refer violations that warrant criminal prosecution to the U.S. Attorney General's Office, State Attorney General, EPA Criminal Investigation Division or other appropriate agency. This referral shall not preclude the city from taking a parallel administrative or civil enforcement action.

(Ord. No. 6305, § 1, 8-28-13)
Editor's note—Ord. No. 6305, § 1, adopted August 28, 2013, enacted provisions intended for use as sections 12.16.820—12.16.880. Inasmuch as there are already provisions so designated as sections 12.16.820—12.16.880, and at the discretion of the editor, said provisions have been redesignated as sections 12.16.811—12.16.817.

Sec. 12.16.812. Search warrants.

If the director has been refused access to a building, structure, or property, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this article, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program of the city designed to verify compliance with this article or any permit or order issued hereunder, or to protect the overall public health, safety and welfare of the community, the director may seek issuance of a search warrant from a court of competent jurisdiction.

(Ord. No. 6305, § 1, 8-28-13)
Note—See editor's note at section 12.16.811.

Sec. 12.16.813. Public nuisance.

Any violation of this article, a wastewater discharge permit, or order issued hereunder, is hereby declared a public nuisance and shall be corrected or abated as directed by the director or his designee. Any person(s) creating a public nuisance shall be subject to the provisions of section 1.05 of the City Code governing such nuisances, including reimbursing the city for any costs incurred in removing, abating, or remedying said nuisance.

(Ord. No. 6305, § 1, 8-28-13)
Note—See editor's note at section 12.16.811.

Sec. 12.16.814. Damage to facilities.

When a discharge causes an obstruction, damage or other impairment to city wastewater or stormwater facilities, the city may assess a charge against the user for the work required to clean or repair the facility and add such charge to the user's sewer service charge.

(Ord. No. 6305, § 1, 8-28-13)
Note—See editor's note at section 12.16.811.

Sec. 12.16.815. Correction of violations; collection of costs fee.

In order to enforce the provisions of this article, the city may correct any violation hereof. The cost of such correction may be added to any sewer service charge payable by the industrial user violating this article or the owner or tenant of the property upon which the violation occurred. The city shall have such remedies for the collection of such costs as it has for the collection of sewer service charges. The city will charge an administrative service fee for reinspection as set forth in the current resolution and any amendments thereto which estab-

lishes the service charges and fees for the city. In addition, an industrial user violating any of the provisions of this article may be subject to the provisions of chapter 1.05 of the Reno Municipal Code.

(Ord. No. 6305, § 1, 8-28-13)
Note—See editor's note at section 12.16.811.

Sec. 12.16.816. Remedies nonexclusive.

The remedies provided for in this article are not exclusive of any other remedies that the city may have under the provisions of Nevada State law. The city may take any, all, or any combination of these actions against a noncompliant industrial user. Enforcement of violations will generally be in accordance with the enforcement response plan. However, the city may take other action against any industrial user when the circumstances warrant and may take more than one enforcement action against any noncompliant industrial user.

(Ord. No. 6305, § 1, 8-28-13)
Note—See editor's note at section 12.16.811.

Sec. 12.16.817. Specific remedies do not impair other rights.

No remedy or sanction provided herein impairs any right which the city or any person has under any statute or common law.

(Ord. No. 6305, § 1, 8-28-13)
Note—See editor's note at section 12.16.811.

ARTICLE IV. STORM WATER MANAGEMENT AND DISCHARGE CONTROL

DIVISION 1. IN GENERAL

Sec. 12.16.820. Definitions.

The terms as used in this article shall have the following meanings:

Best Management Practice ("BMP") is defined at 40 CFR §122.2 and in addition the term shall include erosion and sediment controls, storm water conveyance, storm water diversion, and treatment structures, and any procedure or facility used to minimize the exposure of pollutants to storm water or to remove pollutants from storm water.

Clean Water Act (CWA) formerly known as the Federal Water Pollution Act, is legislation which provides statutory authority for both NPDES pretreatment and storm water programs. (33 U.S.C. 1251 et seq.).

EPA or *Environmental Protection Agency* means the U.S. Environmental Protection Agency. Where appropriate, the term may also mean the administrator or other duly authorized official of said agency.

Inspector and environmental control officer mean a person authorized by the public works director to inspect wastewater and storm water generation, conveyance, processing and disposal facilities.

Illicit connection means any physical connection to a publicly maintained storm sewer system composed of non-storm water which has not been permitted by the public entity responsible for the operation and maintenance of the system.

Illicit discharge means any discharge to a storm sewer system that is not composed entirely of storm water except discharges pursuant to a NPDES permit, discharges resulting from fire fighting activities, and discharges further exempted in 12.16.980 of this article.

Impervious surface means a surface which prevents or retards the penetration of water into the ground, including, but not limited to, roofs, sidewalks, patios, driveways, parking lots, concrete and asphalt paving, gravel, compacted native surfaces and earthen materials, and oiled, macadam, or other surfaces which similarly impede the natural infiltration of storm water.

Local agency means one or more of the agencies involved with providing review, approval or oversight of the site′s (a) activities; (b) pollution prevention controls; or (c) storm water discharge.

Maximum extent practicable (MEP).

Municipal ″NPDES permit means an area-wide NPDES permit issued to a government agency or agencies for the discharge of storm water from a storm drain system.

Municipal separate storm sewer system (MS4) includes, but is not limited to, those facilities located within the city and owned or operated by a public entity by which storm water may be collected and conveyed to waters of the United States, including any roads with drainage systems, public streets, inlets, curbs, gutters, piped storm drains and retention or detention basins, which are not part of a

Publicly owned treatment works (″POTW″) as defined at 40 CFR Section 122.2.

NDEP means the Nevada Division of Environmental Protection.

NPDES permit or *National Pollutant Discharge Elimination System Permit* means a permit issued pursuant to Section 402 of the Act (33 U.S.C.1251).

Person means any individual, partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity or any other legal entity, or their legal representative, agents or assigns.

Pollutant means substances including, but not limited to:

(1) Commercial and industrial waste (such as fuels, solvents, chemicals, detergents, plastic pellets, hazardous materials or substances, hazardous wastes, fertilizers, pesticides, soot, slag, ash, and sludge);

(2) Metals (such as cadmium, lead, zinc, copper, silver, nickel, chromium, and arsenic) and nonmetals (such as carbon, chlorine, fluorine, phosphorous, sand, sulfur);

(3) Petroleum hydrocarbons (such as fuels, oils, lubricants, surfactants, waste oils, solvents, coolants, and grease);

(4) Eroded soils, sediment, and particulate materials in amounts which may adversely affect the beneficial use of the receiving waters, flora, or fauna of the state;

(5) Animal wastes (such as discharges from confinement facilities, kennels, pens, recreational facilities, stables, and show facilities);

(6) Substances having acidic or corrosive characteristics such as a pH of less than five and five-tenths or greater than nine units; and

(7) Substances having unusual coloration or turbidity, levels of fecal coliform, fecal streptococcus, or enterococcus, which may adversely affect the beneficial use of the receiving waters, flora, or fauna of the state.

Pollution means the manmade or man-induced alteration of the chemical, physical, biological or radiological integrity of air, water or earth.

Premises means a parcel of real estate or portion thereof including any improvements thereon which is determined by the city to be a single user for the purposes of receiving, using, and paying for storm water conveyance including adjacent sidewalks and parking strips.

Public works director means the public works director or his authorized representative.

Secondary containment means a level of containment that is external to and separate from primary containment (e.g. concrete dike, wall, barrier, berm, bin, drum or tank).

Stormwater means surface runoff and drainage associated with rainstorm events and snow melt.

Stormwater management means the process of collection, conveyance, storage, treatment, and disposal of storm water to ensure control of the magnitude and frequency of runoff to minimize the hazards associated with flooding and the impact on water quality caused by manmade changes to the land.

Stormwater management plan details of the drainage system, structures, Best Management Practices (BMP′s), concepts and techniques that will be used to control storm water, including drawings, engineering calculations, computer analyses, maintenance and operations procedures, and all other supporting documentation.

Stormwater pollution prevention plan (SWPPP) means a plan required by storm water regulations or permits that includes but is not limited to site map(s), an identification of industrial, construction/contractor activities that could cause pollutants in the storm water, and a description of measure or practices to control these pollutants.

Waters of the U.S. defined at 40 CFR 122.2 and in addition means discharges to storm drain systems that in turn discharge to the waters of the U.S. are considered to be discharges to the waters of the U.S.

Stormwater discharge permit means a permit issued to an industrial/commercial user by an environmental control officer for discharges into the municipal separate storm sewer system (MS4) and sanitary sewer system.

(Ord. No. 5469, § 1, 7-16-03; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.830. Purpose and policy.

The purpose and intent of this article is to:

(1) Protect and enhance the water quality of our watercourses, water bodies, groundwater and wetlands in a manner pursuant to and consistent with the Clean Water Act.

(2) Control non-storm water discharges to storm drain systems and reduce pollutants in storm water discharges.

(3) Encourage the recharge of ground water, where appropriate, and prevent the degradation of ground water quality.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.840. Administration.

This article shall apply to all activities which may potentially affect the municipal separate storm sewer system (MS4), any private storm sewer system or any body of water within the City of Reno. Additionally, permanent and temporary storm water management controls and facilities, constructed as part of any activities listed in this article, which are located within Reno City limits, are also subject to this requirement. The storm water management standards shall apply to industrial, commercial, institutional, and multifamily residential development, as well as subdivision projects with private access.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.850. Regulatory consistency.

This article shall be construed to assure consistency with the requirements of the federal Clean Water Act and acts amendatory thereof or supplementary thereto, applicable implementing regulations, the State of Nevada Division of Environmental Protection (NDEP) Storm Water ″Associated with Industrial Activity″ General Permit and the municipal NPDES permit and any amendments, revisions or re-issuance thereof. No permit or approval issued pursuant to this article shall relieve a person of the responsibility to secure permits and approvals required for activities regulated by any other applicable rule, code, act, permit or ordinance.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.860. Discharges subject to these regulations.

All storm water discharges to the city′s storm water facilities, whether within or outside the city limits, are equally subject to any storm sewer charges and construction requirements.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.870. Discharges outside the city limits.

The city shall accept storm water from dischargers located outside the city limits.

Those dischargers not located within a sanitary district, storm sewer district or storm sewer utility district may be incorporated into the city limits, upon the city′s agreement. The city will bill all dischargers outside the city limits through the sanitary district, storm sewer district or storm sewer utility district in accordance with the charges prescribed in this article.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.880. Severability.

If any provision, clause, sentence, or paragraph of this article or the application thereof to any person, establishment, or circumstance shall be held invalid, such invalidity shall not affect the other provisions or application of this article which can be given effect without the invalid provision or application, and to this end, the provisions of this article are hereby declared to be severable.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.890. Disclaimer of liability.

The degree of protection required by this article is considered reasonable for regulatory purposes and is based on scientific, engineering and other relevant technical considerations. The standards set forth herein are minimum standards and this article does not imply that compliance will ensure that there will be no unauthorized discharge of pollutants into the waters of the United States. This article shall not create liability on the part of the city, any agent or employee thereof for any damages that result from reliance on this chapter or any administrative decision lawfully made thereunder.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.895. Adoption of the Truckee Meadows Structural Controls Design and Low Impact Development Manual.

The Truckee Meadows Structural Controls Design and Low Impact Development Manual, together with all addendum, all of which are on deposit in the office of the city clerk, are adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 5469, § 1, 7-16-03; Ord. No. 6386, § 1, 1-13-16)

DIVISION 2. STORM WATER REGULATIONS AND REQUIREMENTS

Sec. 12.16.900. Discharge regulations and requirements.

An intentional non-storm water discharge to any storm sewer system, including both the municipal storm sewer system (MS4) and private storm sewer systems, is a violation of this article unless exempted by provisions 12.16.980 and 12.16.990 of this article.

(Ord. No. 5469, § 1, 7-16-03; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.910. General requirements.

(a) Any person engaged in activities which will or may result in pollutants entering a storm sewer system shall undertake pollution prevention measures and controls to the maximum extent practicable (MEP) to reduce such pollutants. Examples of such activities include, but are not limited to, proper use and disposal of household chemicals such as pesticides and fertilizers; and ownership, use and maintenance of facilities which may be a source of pollutants such as parking lots, fueling stations, industrial facilities, retail establishments, etc.

(b) No person shall throw, deposit, leave, maintain, keep, or permit to be thrown, deposited, placed, left or maintained, any refuse, rubbish, garbage, animal waste, or other discarded or abandoned objects, articles, and accumulations, in or upon any street, alley, sidewalk, storm sewer inlet, catch basin, conduit or other drainage structures, parking area, or upon any public or private plot of land so that the same might be or become a pollutant, except where such pollutant is being temporarily stored in properly contained waste receptacles or is part of a well defined compost system.

(Ord. No. 5469, § 1, 7-16-03)

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Sec. 12.16.920. Prohibited discharges.

The following discharges from industrial or commercial activities are prohibited unless the discharge is in compliance with a NPDES permit:

(1) No person shall cause or permit any dumpster, solid waste bin, animal vegetable oil and grease rendering bin or similar container to leak such that any pollutant is discharged into any street, alley, sidewalk, storm sewer, inlet, catch basin, conduit or other drainage structures, business place, or upon any public or private plot of land in the city.

(2) The occupant or owner of any real property in the city where there is located a paved sidewalk or parking area shall maintain said paved surface free of dirt or litter to the maximum extent practicable (MEP) and provide an adequate means for the disposal of refuse, rubbish, garbage, or other articles so as to prevent such matter from entering a storm sewer system. Sweepings from said sidewalk shall not be swept or otherwise made or allowed to go into the gutter or roadway, but shall be disposed of in receptacles maintained on said real property.

(3) No person shall throw or deposit any pollutant in any fountain, pond, lake, stream, or any other body of water in a park or elsewhere within the city, except as otherwise permitted under local, state or federal law.

(4) No person shall cause the disposal of sanitary or septic waste or sewage into the storm drain system from any property or residence or any type of recreational vehicle, camper, bus, boat, holding tank, portable toilet, vacuum truck or other mobile source of waste holding tank, container or device.

(5) No person shall cause a discharge or disposal of wastewater into the storm sewer system from activities including, but not limited to, mobile washing, steam cleaning, carpet cleaning, lunch wagon cleaning, floor scrubbing and/or mopping, washing, rinsing enclosures, shopping carts, sidewalks, building exteriors and parking lots unless otherwise stated in section 12.16.950.

(6) No person shall cause a discharge or disposal of wastewater into the storm sewer system from cleaning tools, vehicles, and equipment associated with any building materials i.e., concrete, plaster, stucco and painting etc.

(7) No person shall discharge from the washing or rinsing of restaurant mats, equipment or garbage bins or cans in such a manner that causes non-storm water to enter into the storm water system.

(Ord. No. 5469, § 1, 7-16-03; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.930. Good housekeeping practices.

The occupant or owner of any real property shall perform good housekeeping practices to minimize the impact of pollution to the maximum extent practicable into the storm sewer system. The practices include, but are not limited to:

(1) Monitoring areas around trash dumpster/enclosures, storage areas, loading docks and outdoor processing to ensure they are maintained in a clean and orderly manner.

(2) Measures to eliminate or reduce exposure of garbage and refuse materials to precipitation or runoff prior to disposal.

(3) Institute best management practices (BMP's) to eliminate or reduce exposure to precipitation and runoff from the storage of raw finished products, equipment, machinery, motor vehicles, parts or regulated and hazardous materials.

(4) Ensure immediate containment, cleanup and reporting of a leak or spill of raw or process liquids.

(5) Employ cleaning practices for parking lots, sidewalks, industrial and commercial properties and residential vehicles to ensure compliance with all provisions of federal, state and local agency codes.

(6) Water line flushing, foundation/footing drainage, swimming pool and air conditioning condensate discharges shall be conducted in a manner not to cause a violation with any provision of federal, state and local agency codes.

(7) Institute a storm water pollution prevention employee training program to reduce or eliminate storm water pollution.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.940. Illicit connections.

It is prohibited to establish, use, maintain or continue illicit drainage connections to the municipal separate storm sewer system (MS4), or to commence or continue any illicit discharges to the municipal separate storm sewer system (MS4).

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.950. Surface cleaning.

(a) Surface cleaning of equipment such as, but not limited to, over the road commercial motor vehicles, paved parking lots, private streets or roads, fuel dispensing sites, or similar structure, shall be allowed by the local agency under the following conditions:

(1) Wastewater shall be directed to or collected and disposed of into the sanitary sewer system through an approved pretreatment device.

(2) Written permission shall be obtained and provided to the local agency for approval if wastewater is to be removed from the cleaning site for pretreatment and sanitary sewer disposal.

(3) Cleaning may be performed using detergents and cleaners appropriate for the pretreatment and sanitary sewer systems.

(b) Surface cleaning of garbage and/or grease rendering container enclosures shall be allowed by the local agency under the following conditions:

(1) Wastewater shall be disposed of into the sanitary sewer system through an approved pretreatment device.

(2) Cleaning may be performed using detergents and cleaners appropriate for the pretreatment and sanitary sewer systems.

(c) Surface cleaning of equipment such as, but not limited to shopping carts, bread racks and plastic milk storage crates shall be allowed by the local agency under the following conditions:

(1) Wastewater shall be disposed of into the sanitary sewer system.

(2) Cleaning may be performed using detergents and cleaners appropriate for the sanitary sewer system.

(d) Wastewater from surface cleaning of motor vehicles for sale or resale shall be allowed to discharge into the storm sewer system by the local agency under the following conditions:

(1) Vehicles are rinsed without the use of detergents.

(2) Only the cleaning of the exterior surface of vehicles will be conducted.

(3) No cleaning of the under carriage or engine compartment will be conducted.

(e) Wastewater from surface cleaning of sidewalks, paved drive-throughs, patios and building exteriors shall be allowed to discharge into the storm sewer system by the local agency under the following conditions:

(1) Pollutants such as, but not limited to petroleum, food waste, grease, gum, cigarette butts, garbage, and paint chips are collected and properly disposed of.

(2) Cleaning is conducted without the use of cleaners (i.e. detergents, degreasers solvents, etc).

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.960. Outdoor storage areas—Commercial and industrial facilities.

In outdoor areas, no person shall store regulated or hazardous substances whether dry or liquid in such a manner that allows contact with storm water where pollutants may discharge into the storm sewer system. These materials include, but are not limited to used motor vehicle parts, batteries, brake shoes, new and spent grease, oil, antifreeze, sludge or any other contaminated substance. To prevent the discharge of regulated or hazardous substances to the municipal separate storm sewer system (MS4), the city may require the installation of a secondary containment system. Secondary containment may consist of a system of concrete dikes, walls, barriers, berms, or other devices as required by the public works director. No person shall operate a spill containment system such that it allows incompatible products to mix and there by create a hazardous condition.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.970. Secondary containment.

When the public works director deems it necessary to reduce the risk of exposing the populace, environment, sanitary or storm drain systems to incompatible substances, secondary containment shall be installed.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.980. Non-storm water discharges.

Discharges from the following activities will not be considered significant contributors of pollutants to waters of the state or U.S. when properly managed: fire sprinkler and water line flushing and other discharges from potable water sources, landscape irrigation and lawn watering, irrigation water, diverted stream flows, rising ground waters, groundwater infiltration to separate storm drains, uncontaminated pumped ground water, foundation and footing drains, roof drains, water from crawl space pumps, residential air conditioning condensation,

springs, individual residential and non-profit group exterior car washes, flows from riparian habitats and wetlands, de-chlorinated swimming pool discharges or flows from fire fighting activities and training. Accordingly, discharges from such activities are not subject to this prohibition. With written concurrence of the NDEP, the city may exempt in writing other non-storm water discharges which are not a source of pollutants to the waters of the state or U.S.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.990. Discharge pursuant to NPDES permit.

The prohibition of discharges shall not apply to any discharge regulated under a NPDES permit issued and administered by the Nevada Division of Environmental Protection (NDEP), provided that the discharger is in full compliance with all requirements of the permit and other applicable laws or regulations.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.1000. Discharge in violation of permit.

Any discharge that would cause a violation of a Municipal NPDES Permit and any amendments, revisions or re-issuance thereof, either separately considered or when combined with other discharges, is prohibited. Liability for any such discharge shall be the responsibility of the person(s) causing or responsible for the discharge, and the city shall seek to have such persons defend, indemnify and hold harmless the city in any administrative or judicial enforcement action against the permit holder relating to such discharge as provided by applicable rules of law.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.1100. Compliance with general permits.

Any industrial discharger, discharger associated with construction activity, or other discharger subject to any NPDES permit issued by the Nevada Division of Environmental Protection (NDEP), shall comply with all provisions of such permits, including notification to and cooperation with local entities as required by state and federal regulations. Proof of compliance with said NPDES general permits may be required in a form acceptable to the director of public works prior to issuance of any grading, building or occupancy permits.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.1200. Notification of spills.

All persons in charge of a facility or responsible for emergency response for a facility are responsible to train facility personnel, maintain records of such training and maintain notification procedures to assure that immediate notification is provided to the public works director upon becoming aware of any suspected, confirmed or unconfirmed release of material, pollutants or waste creating a risk of discharge into the municipal separate storm sewer system (MS4). As soon as any person in charge of a facility or responsible for emergency response for a facility has such knowledge, such person shall take all necessary steps to ensure the public works director is immediately notified of the occurrence and that containment and clean up of such release is performed.

The notification requirements of this section are in addition to any other notification requirements set forth in federal, state or local regulations and/or laws.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.1300. Maintenance of private storm water facilities.

(a) Private storm water facilities shall be maintained per manufacturer's recommendation and at the frequency recommended by the manufacturer or upon the request of the public works director by the owner or other responsible party and shall be repaired and/or replaced by such person when such facilities are no longer functioning as designed.

(b) Disposal of waste from maintenance of facilities shall be conducted in accordance with applicable federal, state and local laws and regulations.

(c) Records of maintenance and repair shall be retained by the owner or other responsible party for a period of three years and shall be made available to the public works director upon request.

(d) Any failure to maintain facilities or correct problems with facilities after receiving due notice from the city may result in criminal or civil penalties and the city may perform corrective or maintenance work which shall be at the owner's expense.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.1400. Inspection.

(a) The public works director shall have the right of entry for inspection purposes of the facilities discharging to the municipal separate storm sewer system (MS4) to ascertain compliance with the city's storm water regulations. Persons or occupants of the premises where storm water is discharged shall allow the public works director ready access to all parts of the premises for the purpose of inspection, records examination, random sampling and/or sampling in areas with evidence of storm water pollution, illicit discharges, or similar factors or in the performance of any other duties as called for in this article.

(b) The owner or other responsible party shall make annual inspections of the facilities and maintain records of such inspections for a period of three years.

(c) Routine or area inspections shall be based upon such reasonable selection processes as may be deemed necessary to carry out the objectives of this article.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.1500. Monitoring facilities, reports and access by city personnel.

(a) The public works director may require the discharger, at his own expense, to construct, operate and maintain monitoring facilities and equipment, and to submit monitoring reports for inspection. The monitoring facility will normally be required to be located on the discharger's premises outside of the building.

(b) Flow measurement and sampling may be conducted periodically by city personnel. The city may install, maintain and operate sampling and measuring equipment on the premises of the discharger. Where a discharger has security guards so that upon presentation of suitable identification, personnel from the city will be permitted to enter without delay for the purposes of performing the specific responsibilities of this article.

(c) There shall be accommodations to allow safe and immediate access for city personnel, as may be required by the public works director. It is unlawful for any person to prevent, or attempt to prevent, any such entrance or obstruct or interfere with any such officer or employee of the city while so engaged.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.1600. Best Management Practices (BMP's).

When it becomes necessary or desirable to discharge into the storm sewer system any matter from any source which does not conform to the requirements outlined in this article, it is required that before such matter may be discharged into the storm sewer system, the producer therefore shall pre-treat same using best management practices (BMP's) to the maximum extent practicable (MEP) at his own expense. Upon written notice from the city of the requirement to utilize best management practices (BMP's), the user shall have ten working days to reply to the public works director as to a plan of compliance and shall be in compliance within 90 days unless a time extension is granted by the city. If analytical procedures are used to determine compliance, it will be those specified in 40 CFR Part 136. Such best management practices (BMP's) may include but are not limited to sedimentation chambers, oil separators, fiber rolls, storm drain catch basin filters, silt fences, secondary containment and any other device which effect a change of any nature in the characteristics of the matter being treated. Any and all such devices and equipment shall not be put into operation without a written permit of approval issued by the public works director and shall be provided with all necessary features of construction to permit inspection of operations and testing of material passing through them, and shall be open to the inspection of the public works director. Any best management practice (BMP) used to pre-treat storm water to the maximum extent practicable (MEP) shall be provided and maintained at the user's expense. Detailed plans showing the best management practices (BMP's) and operating procedures shall be submitted to the public works director for review and shall be approved by the public works director before construction or installation. The review and approval of such plans and operating procedures will in no way relieve the user from the responsibility of modifying the facility as necessary to produce an effluent complying with the provisions of this article. Any subsequent changes in the best management practices (BMP's) or method of operation shall be reported to and be approved by the public works director.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.1700. Soil tracking and drag out.

To limit the tracking of mud and sediment onto public roadways, a discharge into the storm sewer system or the spread of air borne dust by vehicles and equipment exiting an industrial commercial site having exposed soil, best management practices shall be installed. Best management practices at a minimum may include, but are not limited to:

(1) Installation of aggregate base at the soil exposed exit of the premises. The aggregate applied should be a minimum of one- to three-inch washed, well-graded gravels or crushed rock with a minimum depth of 12 inches. The minimum exit length and width shall be 50 feet long and ten feet wide respectively.

(2) Straw waddles, silt fences or inserts may be used to protect storm sewer catch basins on the premises where exposed soil is present.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.1800. Recycling facilities.

Prior to staging any material outdoors on a site for the purpose of recycling, the industrial commercial user shall take all measures necessary to prevent a prohibited storm water discharge by securing, removing and properly storing regulated or hazardous materials whether it is a liquid or solid. These regulated or hazardous materials include, but are not limited to, paper products, motor oil, transmission fluid, brake fluid, gear oil, batteries, cutting oil, soluble oil, gasoline, and toner cartridges.

(Ord. No. 5469, § 1, 7-16-03)

DIVISION 3. STORM WATER DISCHARGE PERMITS

Sec. 12.16.1900. Permit for industrial/commercial storm water discharges.

(a) Commercial/industrial storm water discharges will be categorized into one of the four classes described below:

(1) Class I:

Those commercial establishments with storm water facilities only, who could not discharge any wastes greater in strength than normal storm water runoff and do not have potentially hazardous materials used or stored on their property. These dischargers may require a cursory inspection to verify specific operations within these facilities upon start up or relocation of the business.

(2) Class II:

Those commercial/industrial establishments with storm water collection facilities, which may discharge storm water of a strength greater than that normally discharged from domestic dwelling. These establishments will have a minimal potential of discharging toxic materials to the system, and may have a requirement to pretreat storm water in a regulated manner. Also, those commercial/industrial establishments which have small amounts of toxic materials or waste on hand but which present only a slight hazard of being discharged to the system. These establishments will normally be inspected and have records verified once per year.

(3) Class III:

Those commercial/industrial establishments whose storm water may contain materials which may be considered toxic, but which are not treatable or which could potentially cause a hazard to the system. Those establishments which store and/or repackage or generate large amounts of hazardous (toxic) materials or waste which are not normally discharged to the system but which could enter the system through stormwater collection facilities and thus present a potential hazard to the system. Those businesses that have multiple pretreatment systems and multiple operations at one facility that require more time consuming and complex inspections. These businesses will normally be inspected and have records verified once per year but may require additional inspections or records verification.

(4) Class IV:

Those industrial/commercial dischargers which are subject to federal storm water regulations and are classified as categorical industries or significant industrial dischargers that discharge storm water that may contain toxic or hazardous materials and the city monitors this discharge to assure it meets discharge requirements. These establishments are inspected 4 times a year with sampling during storm water events.

(b) Dischargers will be classified based upon this information. All industrial commercial dischargers who are not classified as Class I dischargers must obtain a storm water discharge permit from the public works director. It is unlawful for these industrial/commercial users to discharge to the system without such a permit.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.2000. Storm water permit application and fees.

(a) To obtain a storm water discharge permit, the industrial/commercial user shall complete and file with the public works director an application in the form prescribed by the public works director. The application shall require the following information:

(1) Name, address and Standard Industrial Classification (S.I.C.) number or numbers of applicants;

(2) Estimated volume of storm water to be discharged;

(3) Storm water constituents and characteristics as prescribed by the public works director;

(4) Site plans, floor plans, mechanical and plumbing plans, and details to show all storm drain and appurtenances by size, location, and elevation as required by the public works director;

(5) Description of business activities including type of products, raw materials used, variation in operation, and number and type of employees;

(6) Any other information as may be deemed by the public works director to be necessary to evaluate the permit application.

(b) The public works director will evaluate the data furnished by the discharger. After evaluation and approval of all data required, the public works director may issue a storm water discharge permit subject to terms and conditions provided herein.

(c) Before a new industrial/commercial discharger to the city's storm water collection facilities is allowed, the discharger must first obtain a storm water discharge permit. All existing industrial/commercial dischargers must complete and submit to the public works director a permit application for industrial/commercial storm water discharge permit. Violation of this provision shall subject the discharger to enforcement and penalties as provided in Division 4 of this article.

(d) Fees for wastewater discharge permits and monitoring shall be determined in accordance with a set list of fees approved by the city council and kept on file in the office of the city engineer and payable upon billing by the city.

(Ord. No. 5469, § 1, 7-16-03; Ord. No. 6157, § 1, 7-7-10)

Sec. 12.16.2100. Terms and conditions of permit.

(a) DURATION OF PERMITS.

Storm water discharge permits shall be issued for a specified time period, not to exceed five years. A permit may be issued for a period less than a year or may be stated to expire on a specific date. Timely renewal of a permit shall be the sole responsibility of the permit holder. The terms and conditions of the permit may be subject to modification and change by the public works director during the life of the permit as limitations or requirements as identified in Division 2 of this article are modified and changed. The user shall be informed

of any proposed changes in his permit at least 30 days prior to the effective date of change. Any changes or new conditions in the permit shall include a reasonable time schedule for compliance.

(b) CONDITIONS.

Industrial/commercial storm water discharge permits may contain any or all of the following conditions:

(1) Pretreatment of storm water before discharge;

(2) Restriction of storm water discharges;

(3) Restriction of peak flow discharges;

(4) Discharge of certain storm water only to specified storm water collection facilities. of the city;

(5) Relocation of discharge points;

(6) Prohibition of discharge of certain storm water components;

(7) Payment of user charges;

(8) Installation of a monitoring station;

(9) Periodic storm water flow and strength measurement and reporting;

(10) Notification to, and prior approval by, the city of any new introduction of storm water constituents or any substantial change in the volume or character of the discharge;

(11) Development of a compliance schedule for the installation of technology required to meet applicable pretreatment standards and requirements;

(12) Notification of accidental discharges or spills to storm water facilities;

(13) Other conditions necessary to accomplish the purpose of this article.

(c) TIME SCHEDULE.

The permit may include a time schedule which allows the discharger time to meet the conditions of the permit. The permitted industrial/commercial discharger will be responsible for all costs required to comply with conditions of the permit.

(d) TRANSFER OF A PERMIT.

Storm water discharge permits are issued to a specific user for a specific operation. A storm water discharge permit shall not be reassigned or transferred or sold to a new owner, new user, different premises, or a new or changed operation.

(Ord. No. 5469, § 1, 7-16-03; Ord. No. 6197, § 1, 8-24-11)

DIVISION 4. ENFORCEMENT

Sec. 12.16.2200. Enforcement authority.

The public works director shall enforce the provisions and requirements herein prescribed. The chief of police shall deputize the environmental control officer for the purpose of enforcing the storm water discharge regulations, and, when so deputized the environmental control officer shall have the power and authority of a peace officer to prevent and abate all such violations.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.2300. Enforcement procedures.

(a) When a discharge of storm water has taken place in violation of this article or the provisions of a storm water discharge permit, the public works director or environmental control officer may issue a cease and desist order and direct those persons not complying with such prohibitions, limits, requirements, or provisions to:

(1) Comply forthwith;

(2) Comply in accordance with a time schedule set forth by the city; or

(3) Take appropriate remedial or preventative action.

(b) The public works director, environmental control officer, or employees bearing proper credentials, have the authority to issue an on-site citation to any discharger whose discharge is in violation of this chapter.

(c) Any user who violates the following conditions of this chapter is subject to having his permit revoked by the public works director:

(1) Failure of a user to factually report the constituents and characteristics of his discharge;

(2) Failure of the user to report significant changes in operations, or constituents and characteristics;

(3) Refusal of reasonable access to the user's premises for the purpose of inspection or monitoring; or,

(4) Violation of conditions of the permit.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.2400. Reconsideration.

Any user, permit applicant, or permit holder affected by any decision, action, or determination, including cease and desist orders made by the public works director, interpreting or implementing the provisions of this article or in any permit issued herein, may file with the public works director of public works a written request for reconsideration within ten days of such decision, action or determination, setting forth in detail the facts supporting the user's request for reconsideration and requesting reconsideration of the decision, action, or determination by the sewer service commission.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.2500. Public nuisance.

Discharges of storm water in any manner in violation of this article or of any order issued by the public works director as authorized by this article, is hereby declared a public nuisance and shall be corrected or abated as directed by the city.

(Ord. No. 5469, § 1, 7-16-03; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.2600. Damage to facilities.

When a discharge causes an obstruction, damage or other impairment to city storm water facilities, the city may assess a charge against the user for the work required to clean or repair the facility and add such charge to the user's sewer service charge.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.2700. Injunction.

Whenever a discharge of storm water is in violation of the provisions of this article or otherwise causes or threatens to cause a condition of contamination, pollution or nuisance, the city may petition the appropriate court for the issuance of a preliminary or permanent injunction, or both, as may be appropriate in restraining the continuance of such discharge.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.2800. Civil liabilities and penalties.

Any person who violates or aids or abets the violation of any provisions of this article, requirements or conditions set forth in permits duly issued or who discharges storm water which causes pollution, or violates any cease and desist order, prohibition, effluent limitation, national standard of performance, pretreatment or toxicity standard shall be liable civilly to liabilities imposed on the city. Such civil liability imposed on the city may be in the sum of $25,000.00 for each day in which such violation occurs.

(Ord. No. 5469, § 1, 7-16-03; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.2900. Criminal penalties.

Any person who discharges storm water in violation of this article, the storm water discharge permit, or cease and desist order shall be guilty of a misdemeanor; and upon conviction thereof, may be punished as provided for in this chapter.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.3000. Termination of service.

(a) The public works director may terminate or cause to be terminated sewer service to any premises in violation of any provisions of this chapter if a discharge of effluent causes or threatens to cause a condition of contamination, pollution or nuisance. Prior to termination of service, the public works director shall notify the owner in writing of such property that service is intended to be so terminated and conduct a hearing. Such notice shall be mailed to the owner as his name and address are shown on the real property assessment rolls on which general taxes are collected, and a copy shall be delivered to the tenant or posted conspicuously on the property. The notice shall state the date of proposed termination of service and the reasons therefore and the date the city council shall hold a hearing upon such intended termination. Such hearing shall not be held less than ten days subsequent to the giving of notice as herein required.

(b) The public works director may suspend the storm water treatment service when such suspension is necessary to stop an actual or threatened discharge in violation of this chapter. Any person notified of such suspension shall immediately stop or eliminate the contribution. In the event of a failure of the person to comply voluntarily, the public works director shall take such steps as deemed necessary.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.3100. Correction of violations; collection of costs; reinspection fee.

In order to enforce the provisions of this article, the city may correct any violation hereof. The costs of such correction may be added to any sewer service charge payable by the person

violating this article or the owner or tenant of the property upon which the violation occurred, and the city shall have such remedies for the collection of such costs as it has for the collection of sewer service charges. The city shall charge an administrative service fee for reinspection as set forth in the current resolution and any amendments thereto which establishes the service charges and fees for the city. in addition, a person violating any of the provisions of this article may be subject to the provisions of Chapter 1.05 of the Reno Municipal Code.

(Ord. No. 5469, § 1, 7-16-03; Ord. No. 6197, § 1, 8-24-11)

Sec. 12.16.3200. Falsifying of information.

Any person who knowingly makes any false statements, representation, record, report, plan or other document filed with the city or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this chapter, is hereby declared to be in violation of this chapter, and subject to the civil liabilities imposed under section 12.16, or subject to prosecution and punishment under section 12.16.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.3300. Misdemeanor.

Any person violating any provision of this chapter shall be guilty of a misdemeanor, and, upon conviction thereof, may be punished as provided in this Code. Each violation of these regulations per day shall be deemed a separate violation.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.3400. Remedies are cumulative.

The remedies and sanctions provided herein are cumulative and the institution of any proceeding or action seeking any one of such remedies or sanctions does not bar any simultaneous action or proceeding seeking any other of such remedies or sanctions.

(Ord. No. 5469, § 1, 7-16-03)

Sec. 12.16.3500. Specific remedies do not impair other rights.

No remedy or sanction provided herein impairs any right which the city or any person has under any statute or common law.

(Ord. No. 5469, § 1, 7-16-03)

CHAPTER 12.18. IDENTIFICATION OF SEWER SERVICE LATERAL

Sec. 12.18.010. Enabling clause.
Sec. 12.18.020. Definitions.
Sec. 12.18.030. Methods of identification of sewer laterals.
Sec. 12.18.040. Administrative costs.
Sec. 12.18.050. Disclaimer.
Sec. 12.18.060. Conflict provisions.

Sec. 12.18.010. Enabling clause.

Chapter 278, Statutes of Nevada 2009, at pages 1167 to 1172, was enacted by the Nevada Legislature by passage of Assembly Bill No. 80, portions of which are effective October 1, 2009, which relates to duties and rights associated with identification of sewer service lateral connections connected to a sewer main, methods of identification, costs associated therewith, and other matters relating thereto.

(Ord. No. 6125, § 1, 9-23-09)

Sec. 12.18.020. Definitions.

The words and terms used herein, unless otherwise stated, have the meanings ascribed to them in Chapter 278, Statutes of Nevada 2009, at pages 1167 to 1172.

(Ord. No. 6125, § 1, 9-23-09)

Sec. 12.18.030. Methods of identification of sewer laterals.

(1) Except as provided in subsection (2), a person who connects a new sewer service lateral to the city's sewer main or replaces an existing sewer service lateral shall identify the exact location of the sewer service lateral per the following requirements:

(a) Permanently marking the sewer service lateral at the point where it exits the public right-of-way or easement through the installation of a cleanout, per the City Standard Specifications for Public Works Construction, that is visible from above the surface of the ground; and

(b) Providing the city with coordinate points identifying the sewer service lateral connection to the city sewer main and the top of the service lateral cleanout where it exits the public right-of-way or easement by:

(i) A global positioning device (hereafter may be referred to as "GPS") with an accuracy of no more than one-foot in the horizontal direction. The two coordinate points shall be collected based on North American Datum of 1983.

(2) A person who owns and occupies a single-family dwelling, as defined in RMC 12.16.010, that replaces an existing sewer service lateral shall identify the exact location of the sewer service lateral per the following requirements:

(a) Permanently marking the sewer service lateral at the point where it exits the public right-of-way or easement through the installation of a cleanout, per the City Standard Specifications for Public Works Construction, that is visible from above the surface of the ground; and

(b) Providing the city with coordinate points identifying the sewer service lateral connection to the city sewer main and the top of the service lateral cleanout where it exits the public right-of-way or easement by:

(i) A GPS with an accuracy of no more than one-foot in the horizontal direction. The two coordinate points shall be collected based on North American Datum of 1983; or

(ii) Request that the city collect the GPS coordinate points upon installation of a new sewer service lateral connection to the city main and cleanout where it exits the public right-of-way or easement. It shall be the responsibility of the person requesting the assistance of the city under this section to coordinate and schedule this activity with the city during a time that the lateral connection is adequately exposed for identification.

(Ord. No. 6125, § 1, 9-23-09)

Sec. 12.18.040. Administrative costs.

(1) The city will charge from the person responsible for excavation or demolition in the public right-of-way, the actual cost incurred by the city in using any of the methods for identification of an existing sewer service lateral as provided in Section (4) of Chapter 278, Statutes of Nevada 2009, at pages 1167 to 1168.

(a) For identification of the location of the connection of the sewer service lateral to the sewer main or for placement of a triangular green marking indicating the location of the sewer service lateral is unknown, in accordance with the set list of fees under excavation permits approved by the city council and kept in the office for the director of public works/city engineer.

(b) For providing copies of documents relating to the location of the sewer service lateral, in accordance with Section (4) of Chapter 278, Statutes of Nevada 2009, at pages 1167 to 1168.

(2) This section expires on December 31, 2010.

(Ord. No. 6125, § 1, 9-23-09)

Sec. 12.18.050. Disclaimer.

The city does not assume any duty, liability or responsibility with regard to sewer service laterals by the enactment of this chapter.

(Ord. No. 6125, § 1, 9-23-09)

Sec. 12.18.060. Conflict provisions.

If conflicts exist between Title 12.18 and Chapter IV of the Public Works Design Manual, City Standard Details or the Standard Specifications for Public Works Construction, provisions of Title 12.18 shall apply.

(Ord. No. 6125, § 1, 9-23-09)

CHAPTER 12.20. SIDEWALK, CURB AND GUTTER OR TRAIL RECONSTRUCTION*

Sec. 12.20.005. Duty to maintain sidewalk, curb and gutter, or trail.
Sec. 12.20.010. Determination by public works director and notification for repair, reconstruction or rehabilitation.
Sec. 12.20.020. Time to acknowledge and remedy for repair, reconstruction or rehabilitation.
Sec. 12.20.030. Failure to remedy for repair, reconstruction or rehabilitation.
Sec. 12.20.040. Failure to maintain sidewalk.
Sec. 12.20.050. Owner's liability for injuries.

Sec. 12.20.005. Duty to maintain sidewalk, curb and gutter, or trail.

(a) This chapter shall apply to sidewalk, curb and gutter, or trail constructed of concrete, asphalt concrete, paving stones, pavers or similar type materials.

(b) It shall be the duty of the owner of any property along which any curb, gutter, sidewalk, or trail has been constructed to maintain the same in good repair and safe condition in accordance with the provisions set forth in the "Guidelines for Determination of Deteriorated Sidewalks, Curb and Gutter" and any addendum thereto which are adopted by reference and incorporated herein and made a part hereof as set forth in full and in accordance with Nevada Revised Statute 278.02313(d) and any amendments thereto. Specifically, the owner shall be responsible for:

(i) The repair and reconstruction of a sidewalk in the public right-of-way that abuts the property of the owner if the owner caused the need for such repair or reconstruction.

(ii) The general maintenance of a sidewalk in the public right-of-way that abuts the property of the owner, including, without limitation, sweeping, removal of snow, ice and weeds, and maintenance of any grass, shrubs or trees that encroach on the sidewalk.

(Ord. No. 5508, § 1, 10-22-03; Ord. No. 6313, § 1, 1-15-14)

Sec. 12.20.010. Determination by public works director and notification for repair, reconstruction or rehabilitation.

(a) Upon determination by the director of public works or his designee that certain curbs, gutters, sidewalks or trails in the city are in need of repair, reconstruction or rehabilitation, the director of public works shall prepare a written notice of the specific violations associated with the curbs, gutters, sidewalks or trails in question.

(b) The property owner in violation of this chapter shall be notified by mailing said notice by certified mail addressed to the address shown on the latest available assessment roll in the county assessor's office.

(Ord. No. 5508, § 1, 10-22-03; Ord. No. 6313, § 1, 1-15-14)

***Editor's note—**Ord. No. 5508, § 1, adopted Oct. 22, 2003, amended the title of Ch. 12.20 to include the words "or trail." Said ordinance also amended the provisions of the chapter to read as set out in §§ 1.202.005—12.20.040. See the Code Comparative Table.

Sec. 12.20.020. Time to acknowledge and remedy for repair, reconstruction or rehabilitation.

(a) The property owner receiving notice of violation of section 12.20.010 shall have 30 days from the date listed on the notification letter to acknowledge receipt of the certified letter and make arrangements to address the deficiency listed in the notice of violation. The director of public works or his designee shall determine if the property owner in violation of this chapter has made adequate arrangements to cure the deficiency, and if additional time should be allotted to the property owner to make the prescribed repairs.

(b) If the property owner fails to respond within the allotted time, or fails to make adequate arrangements to cure the deficiency in the allotted time, the director of public works or his designee shall prepare a second written notice of violation of this chapter. The property owner shall correct the violation in 21 days from the date of the notification letter. Failure to correct the violation in the time frame allotted may result in the citations and/or penalties as listed in Chapter 1.05.

(Ord. No. 5508, § 1, 10-22-03; Ord. No. 6313, § 1, 1-15-14)

Sec. 12.20.030. Failure to remedy for repair, reconstruction or rehabilitation.

The property owner failing to remedy a violation of section 12.20.010 within the prescribed time frame may have an administrative citation issued and penalties as set forth in Chapter 1.05 and additional enforcement actions as set forth in Chapter 1.05 may also be imposed to correct the violation(s) in question.

(Ord. No. 5508, § 1, 10-22-03; Ord. No. 6313, § 1, 1-15-14)

Sec. 12.20.040. Failure to maintain sidewalk.

Should any such owner fail to maintain the sidewalk per Section 12.20.005(b)(ii), the owner shall be considered in violation and subject to the provisions as set forth in Chapter 1.05.

(Ord. No. 6313, § 1, 1-15-14)

Sec. 12.20.050. Owner's liability for injuries.

A person who owns property is liable in a civil action for any injury or damage that occurs as a result of the use of a sidewalk, curb or gutter in a public right-of-way that abuts his property if the person fails to comply with this chapter; or if the person creates the dangerous condition that caused the injury or damage.

(Ord. No. 5508, § 1, 10-22-03; Ord. No. 5508, § 1, 10-22-03; Ord. No. 6313, § 1, 1-15-14)
Note—Formerly § 12.20.040.

CHAPTER 12.22. DRAINAGE AND WATERWAYS

Sec. 12.22.010. Certain flumes unlawful.
Sec. 12.22.020. Unlawful to permit accumulation of rubbish which would cause an overflow.
Sec. 12.22.030. Unlawful to flood streets or sidewalks.
Sec. 12.22.040. Drains required when grading and filling.
Sec. 12.22.050. Bridging or piping required.
Sec. 12.22.060. Violations.

Sec. 12.22.010. Certain flumes unlawful.

It shall be unlawful for any person to construct or maintain above the surface line of any street, alley or sidewalk in the city any flume or other structure for the purpose of conducting or carrying water.

(Code 1966, § 11.48.010)

Sec. 12.22.020. Unlawful to permit accumulation of rubbish which would cause an overflow.

It shall be unlawful for any ditch or canal company or association, or any person having the management or control of the same or of any ditch, canal or water way running through the city, to permit the accumulation or depositing therein of any driftwood, rubbish, offal, filth or other matter or substance tending to make the waters therein impure, unwholesome or offensive or which would cause the same to overflow into any street, alley or public place.

(Code 1966, § 11.48.020)

Sec. 12.22.030. Unlawful to flood streets or sidewalks.

No person owning or controlling any hose, water pipe, ditch, canal, flume or waterway or through or from either of any other source shall allow or permit water from the same or any part thereof to flow over or into any sidewalk, street, alley or public place; provided, nothing in this chapter shall be so construed as to prevent the wetting of any sidewalk, alley, street or public place for the purpose of cleaning the same or allaying the dust thereon, nor the accidental breaking of any such hose, water pipe, ditch or flume; provided, such break be repaired or the flow of water through the same be abated within two (2) hours after personal notice of such break being given the person owning, controlling or maintaining the same or having any pecuniary interest therein. If such break be not repaired or the water turned off within such time, it shall be the duty of the city engineer to cause the water flowing through such hose, water pipe, ditch, canal, flume or waterway to be shut off, and it shall be unlawful for any person to again turn such water through the same until proper repairs have been made.

(Code 1966, § 11.48.030)

Sec. 12.22.040. Drains required when grading and filling.

It shall be unlawful to grade, re-grade, fill, or to dump dirt or other aggregate or any other material upon any property in the city containing a spring, artesian well, or percolating waters which run upon the surface of the land during any time of the year, without first providing drains or an adequate drainage system to remove the percolating waters to the nearest natural drain

or watercourse at ground level, or to a storm drain or other adequate drainage ditch. Plans and specifications for such drainage system shall be prepared by a licensed civil or hydraulic engineer and submitted to the city engineer for approval.

(Code 1966, § 11.48.040)

Sec. 12.22.050. Bridging or piping required.

(a) Every person owning, operating or controlling any ditch, canal, waterway or flume running through, over, or under any street or alley within the city, or any portion thereof, shall within 15 days after having been notified in writing by the city council, commence in good faith and cause to be completely bridged or piped from side to side, across any street or alley through, over or under which any ditch, canal, waterway or flume owned by such person may flow or run, and shall keep the same in good repair.

(b) The notice mentioned in subsection (a) shall specify the material or materials and the manner in which such bridge shall be built or constructed; provided, that the city council may, if deemed by it practicable and advisable for the protection, comfort, safety and welfare of the inhabitants of the city, or the protection of any property in any portion thereof, require the water in any ditch, canal, flume or waterway to be conducted through, over or under any street, alley or highway, through or under which it may now or hereafter flow, by means of a pipe or pipes, or underground conduit, or waterway, in which case the notice hereinbefore mentioned shall state the dimensions of such pipe or conduit, and direct the manner in which the same shall be constructed.

(Code 1966, §§ 11.48.050, 11.48.060)

Sec. 12.22.060. Violations

Any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in section 1.04.010; or

(2) Shall be subject to provisions of Chapter 1.05 of the Code.

(Ord. No. 5094, § 1, 11-23-99)

CHAPTER 12.24. RECLAIMED WATER SERVICE*

Sec. 12.24.010. Definitions.
Sec. 12.24.020. Purpose and policy.
Sec. 12.24.030. Conditions of reclaimed water service.
Sec. 12.24.040. Schedule of rates and charges.
Sec. 12.24.050. Billings and payments.
Sec. 12.24.060. Reclaimed water service.
Sec. 12.24.070. Termination of service.
Sec. 12.24.080. Appeals.

Sec. 12.24.010. Definitions.

Reclaimed water means water that has been processed at a permitted water reclamation facility and is approved by the Nevada Division of Environmental Protection for reuse, meeting the requirements of that division for the intended reuse.

(Ord. No. 6287, § 1, 4-17-13)

Sec. 12.24.020. Purpose and policy.

(1) This chapter is to establish requirements and a schedule of rates and charges for reclaimed water service.

(2) The city will furnish systems used for the filling of construction water trucks with reclaimed water at locations designated by the city. For such services, the city will charge fees as set forth in this chapter.

(Ord. No. 6287, § 1, 4-17-13)

Sec. 12.24.030. Conditions of reclaimed water service.

(1) PLAN AND PERMIT REQUIREMENTS.

a. An approved effluent management plan for the use of reclaimed water will be available for public inspection at the City of Reno Office of the City Clerk and Public Works Department, 1 East First Street, Reno, Nevada.

(2) GENERAL CONDITIONS OF SERVICE.

a. Service may be provided for construction water and other uses permitted by law.

b. Each applicant applying for reclaimed water service or a future change to service is required to complete and submit the appropriate application forms provided by the city, and to pay all required fees and charges then in effect.

c. The city is not responsible for any loss or damage caused by any negligence or wrongful act of a customer or his authorized representative in installing, maintaining, operating or using any or all appliances, facilities, or equipment for which reclaimed water service is supplied.

***Editor's note—**Ord. No. 5644, § 2, adopted Feb. 9, 2005, repealed Ch. 12.24, §§ 12.24.010—12.24.190, which pertained to flood hazard areas. Subsequently, Ord. No. 6287, § 1, adopted April 17, 2013, added provisions designated as a new Ch. 12.24, to read as herein set out. See also the Code Comparative Table.

d. For the failure of the customer to comply with all or any part of this chapter, discharge permit, effluent management plan, or city requirements, the customer's service may be discontinued until the customer is in compliance. Termination of reclaimed water service shall be in accordance with section 12.24.070 of this chapter.

e. All decisions of the public works director shall be final unless appealed in writing pursuant to section 12.24.080.

f. The following conditions and restrictions apply to all reclaimed water service:

(i) Each customer shall provide a copy of a brief, clearly worded document that describes the possible hazards and proper hygiene of working with and around treated wastewater to all affected personnel. Copies shall be included in the emergency management plan.

(ii) The use of reclaimed water shall be in compliance with the approved effluent management plan and any applicable state regulations.

g. A notice provided under this chapter from the city to a customer will normally be given in writing and either delivered or mailed to him at his last known address.

h. Notice from the customer to the city may be given in writing at the city's operating office. The city's operating office is:

City of Reno Public Works Department
1 East First Street, 7th Floor
Reno, Nevada 89501
Or
P.O. Box 1900 Reno, Nevada 89505

i. City employees or a designated representative shall have the right of access to customer's property at all reasonable hours for any purpose related to the furnishing of reclaimed water.

j. All reclaimed water service will be billed in accordance with section 12.24.040.

k. No customer shall knowingly permit leaks or waste of water. Where water is wastefully or negligently used on a customer's premises, or is flowing onto adjacent properties, roads, or drainage ditches, or seriously affecting the general service or operation of the system, the city, through the director of public works or his designee, may discontinue the service if such conditions are not corrected within five days after giving the customer notice.

l. A customer shall hold the city harmless from any and all legal liability or loss sustained as a result of the quality or quantity of reclaimed water provided under this chapter and provided by the city in compliance with all the terms and provisions of this chapter.

(Ord. No. 6287, § 1, 4-17-13)

Sec. 12.24.040. Schedule of rates and charges.

(1) Charges for bulk reclaimed water service apply to metered use of water, trucked from a city truck fill facility or temporary connection, during development and construction within subdivisions, dust control, or other approved uses. A water usage charge of $1.84 per 1,000 gallons of water used which shall be subject to an automatic increase by an amount equal to the Consumer Price Index-All Urban Consumers (CPI-U) for the west urban area, as published by the Bureau of Labor Statistics with the measurement period ending with

the published index for December of each year with the published index implemented in October; and, a minimum charge of $25.00 per quarter will be applied while the account is open. If applicable, the minimum charge will be billed at the end of each quarter year (end of March, June, September and December).

(2) A one-time fee of $25.00 per card will be charged to set up a truck fill card. Cards are issued to a specific truck and may not be transferred or shared with other trucks regardless of the ownership of the truck.

(3) A fee of $10.00 will be charged to replace a lost or damaged truck fill card.

(4) If payment is not received by the due date of payment specified on the bill, a late payment-processing fee on the outstanding balance and a handling fee will be charged in the amount of $5.00 and the service may be discontinued.

(Ord. No. 6287, § 1, 4-17-13)

Sec. 12.24.050. Billings and payments.

(1) All customer accounts shall be billed monthly from April 1st through September 30th of each year, and quarterly on December 31st and March 31st unless the minimum fee of $25.00 applies per 12.24.040(1). All user charges resulting from water consumption incurred on truck fill cards shall be the responsibility of the owner stated in the application on file.

(2) Customers are responsible for payment of all reclaimed water taken from the truck fill station regardless of whether the reclaimed water was put to use.

(3) Upon presentation, all bills shall be due and payable at the office of the director of finance.

(4) Failure to receive a bill does not relieve the customer of the obligation to pay for services received.

(5) Checks presented in payment of bills that are returned by a bank shall be treated as though no payment was made and a $25.00 handling charge will be levied by the city. Redemption of returned checks may be required to be by cash or equivalent.

(Ord. No. 6287, § 1, 4-17-13)

Sec. 12.24.060. Reclaimed water service.

(1) The city does not recognize any customer priority with respect to access to reclaimed water from the truck fill station(s). All available reclaimed water will be provided on a first-come, first-served basis.

(2) The city will maintain ownership of all water rights associated with reclaimed water use. The granting of a permit to use reclaimed water shall in no way imply transfer of the ownership of the underlying water right.

(3) Interruptions

a. Emergency Interruptions.

The city will make reasonable efforts to prevent interruptions to service and when such interruptions occur, the city will endeavor to reestablish service without unreasonable delay. The city will not be liable for interruptions or shortage or insufficiency of supply or any loss or damage of any kind or character if caused by an act of God, fire, strike, riot, war, accident, breakdown, action by governmental agency, or other cause beyond the control of the city.

b. Scheduled Interruptions.
Whenever the city finds it necessary to schedule an interruption to its service, it will, within 24 hours, where feasible, notify all customers to be affected by the interruption, stating the approximate time and anticipated duration of the interruption. Scheduled interruptions will be made at such hours as will provide the least inconvenience to the customers, consistent with reasonable city operations.

c. Shortage Interruptions.
The city reserves the right to interrupt reclaimed water service during times of shortages. The city will limit the quantity of reclaimed water available during times of shortage. The city will, within 24 hours, where feasible, notify all customers to be affected by the interruption, stating the approximate time and anticipated duration of the interruption. Scheduled interruptions will be made at such hours as will provide the least inconvenience to the customers, consistent with reasonable city operations.

(4) A customer shall notify the city within 24 hours of any situation constituting a material violation of the city's discharge permit or effluent management plan.

(Ord. No. 6287, § 1, 4-17-13)

Sec. 12.24.070. Termination of service.

(1) A customer may terminate service by giving not less than five days' advance notice to the city, and provide a mailing address to which the closing bill will be mailed. Failure to notify the city of termination of service shall not relieve the customer of responsibility for payment of reclaimed water bills.

(2) The city may terminate service:

a. For nonpayment of a bill if the bill is not paid within 30 days after its due date, provided the city has given the customer at least five days prior notice of such termination.

b. For a customer's failure to comply with this chapter, state laws governing use of reclaimed water or for any negligence, unsafe, damaging or fraudulent use of service.

(Ord. No. 6287, § 1, 4-17-13)

Sec. 12.24.080. Appeals.

(1) Any director decision under this chapter may be appealed to the administrative hearing officer by filing with the administrative hearing officer at the city clerk's office, within 30 calendar days after the decision has been rendered, a written statement setting forth fully the grounds for the appeal. The administrative hearing officer may modify or reverse any such decision based on legal justification.

(2) The hearing before the administrative hearing officer shall be conducted in accordance with the procedures specified in section 4.04.170.

(3) The decision of the administrative hearing officer may be appealed to municipal court, unless appeal to another tribunal is required by law, within ten calendar days after written notification of the administrative hearing officer's action by filing a statement of appeal or complaint setting forth the facts, grounds and legal justification for the appeal. Trial in municipal court shall be de novo. Failure to file a timely appeal to court shall be deemed a waiver of any and all objections to the administrative hearing officer's decision.

(4) Representation is limited to representation in proper persona or by an attorney who is licensed to practice law in the State of Nevada.

(Ord. No. 6287, § 1, 4-17-13)

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CHAPTER 12.26. CONDITIONS FOR SMALL CELL DEPLOYMENT

Sec. 12.26.010. Definitions.
Sec. 12.26.020. Purpose and policy.
Sec. 12.26.030. Design requirements.
Sec. 12.26.040. Application and review process.
Sec. 12.26.050. License agreement.
Sec. 12.26.060. Other requirements.

Sec. 12.26.010. Definitions.

Applicant means a person or entity that submits an application on behalf of a small cell provider.

Collocation has the meaning ascribed to it in 47 CFR §1.6002(g).

Equipment means small cell antennas, diplexers, connectors, hardware and other wireless communications equipment utilizing small cell technology, including shrouds and skirting. The term does not include ground wires and service drops.

Interference has the meaning ascribed to it in the license agreement which is physical interference and radio frequency interference.

Licensee is the entity with whom the city has entered into a license agreement.

Permit is a permit issued and described in accordance with Laws, which is used to regulate, monitor and control improvement, construction or excavation activities, or other work or activity, occurring upon or otherwise affecting the city ROW.

Municipal facilities or *municipal facility* is city-owned poles and fixtures located within the ROW, including without limitation, licensee/applicant poles, replacement poles installed by licensee and/or applicant, streetlight poles and traffic poles that are designated or approved by licensor as being suitable for placement of equipment.

PROWAG means the Public Rights-of-Way Accessibility Guidelines.

Radio frequency interference is the radiation or conduction of radio frequency energy (or electronic noise) produced by electrical and electronic devices at levels that interfere with the operation of adjacent equipment.

ROP means revocable occupancy permit as set forth in RMC 6.11.

ROW is the surface of and the space above and below the public roads, streets and alley right-of-way, and city owned public utility easements.

Shot clock means applicable time frames identified in 47 CFR §1.6003.

Small cell has the meaning ascribed in 47 CFR §1,6002(l) ″small wireless facilities.″

(Ord. No. 6508, § 1, 4-10-19)

Sec. 12.26.020. Purpose and policy.

(a) The purpose is to address small cell which is a compact communication site that contains antennas and related equipment required for the transmission and reception of information for personal wireless services.

(b) The purpose is to address Federal Communication Commission Ruling published in the Federal Register Vol. 83, No. 199, October 15, 2018.

(c) This chapter applies to deployment of small cell in and on ROW.

(d) This chapter does not apply to deployment of small cell on private real property.

(Ord. No. 6508, § 1, 4-10-19)

Sec. 12.26.030. Design requirements.

(a) GENERAL.

(1) All designs, structural calculations, and electrical connections and any other engineering analysis will be certified by a Nevada licensed professional engineer.

(2) Designs must meet the requirements of the American Association of State Highway and Transportation Officials (AASHTO) and city standards.

(3) All infrastructure located within a sidewalk area or a potential future sidewalk area must provide a 48-inch minimum clear walking space which meets PROWAG.

(b) EQUIPMENT.

(1) To the extent feasible, antenna and related equipment will be concealed and provide the least visually intrusive installation as reasonably possible to minimize visual clutter and obtrusiveness; painted and textured to match or blend with the structure to which it is attached so that the installation appears to be an architectural component of the structure on which it is mounted.

(2) Each antenna shall not be more than three cubic feet in volume.

(3) Other pole mounted equipment, other than antennas, shall be proportional to the structure on which it is mounted and include tapered elements where feasible.

(4) Pole mounted equipment shall be installed as close as possible to the pole and not more than 14 inches from the surface of the pole.

(5) Wiring, cables and related connectors must not be exposed and, to the extent feasible, will be concealed within the pole, a canister or within a sleeve between the antenna and the pole.

(6) Conduit, cables and wires routed through conduit along the outside of the pole is to be painted with flat non-reflective colors to match the pole.

(c) POLES.

(1) Will be of a design of like kind with poles in the surrounding area and conform to the pole it is replacing.

(2) Height (including equipment) will not exceed more than ten percent of the average height of adjacent poles of like kind or will not exceed more than five feet in height as a result of collocation of a small cell, whichever is greater.

(3) New wooden utility poles are not allowed. Replacement wooden poles will be considered on case by case basis with approval from pole owner and will require the complete removal of an existing utility pole. All electrical, telecommunication or other transmission lines will need to be transferred to the replacement pole.

(4) Licensee and/or applicant is responsible for all costs.

(5) Placement of equipment on a pole not owned by city or licensee and/or applicant is required to have a letter of authorization or an agreement with the owner of the pole.

(d) STREET LIGHTS.

(1) Existing street lights that need to be replaced for installation of equipment will be replaced at licensee′s and/or applicant′s expense with approved city poles pursuant to city street light specifications and will be owned by the city.

(2) New street lights, including decorative street lights, to be installed will be installed at licensee′s and/or applicant′s expense consistent in architectural design and height with existing street lights in the area to be placed, pursuant to city street light specifications, and with a photometric light study showing that the lighting is consistent with the neighborhood.

(3) Replacement lighting, temporary or permanent, shall be operational within 24 hours of existing light removal.

(4) If a new electrical meter is required, the meter will be sized to support the street lights and equipment.

(e) TRAFFIC SIGNALS.

(1) City is responsible for the maintenance of all traffic signals within the city limits regardless of ownership.

(2) City must approve all traffic signal attachments of Equipment.

(3) If not city owned, licensee and/or applicant is required to have a letter of authorization or an agreement with the owner of the traffic signal for installation of equipment.

(f) LANDSCAPING.

(1) May be used to conceal ground mounted equipment.

(2) Shall conform to RMC 18 and obtain approval from the city′s urban forester and planning division.

(3) If removed from the ROW shall be replaced per RMC 18.

(4) All work within ten feet of a city owned tree will require coordination and permitting from the city′s urban forester.

(5) Work within ROW, that is located within a landscape area maintained by a private party, will require notification to the party responsible for the maintenance prior to the start of any work.

(g) POWER, ELECTRIC METERS AND CABINETS.

(1) A power shutoff switch will be provided at each site. Power shutoff cannot be placed inside city meter boxes or pedestals.

(2) Above ground cabinets will be considered for placement of equipment only if no other option is available for operation of the small cell. The equipment must be placed in the smallest enclosure possible and as close to the pole as possible with consideration of required safety clearance.

(3) Plans must show the location of the proposed or existing meter used for providing power to small cell.

(4) New electric meters must not obstruct pedestrian or vehicle sight distance.

(5) Installation of new or replacement electric meters shall be installed outside of the sidewalk or other walking path, to the extent feasible.

(6) If not covered by a license agreement or site supplement agreement, a ROP is required.

(h) PLACARDS.

(1) Electromagnetic energy placards or labels will be placed facing street-side, unless the pole type required a different placement, and will be the responsibility of the licensee and/or applicant.

(2) Will indentify the licensee and/or applicant, provide a site or identification number, a local or toll-free contact number.

(Ord. No. 6508, § 1, 4-10-19)

Sec. 12.26.040. Application and review process.

(a) PRE-APPLICATION OPTION.

(1) At the request of the applicant, a non-mandatory pre-application process can be implemented as agreed by the city and licensee and/or applicant.

(2) Pre-application submittals are limited to a maximum total batch size of individual locations designated by the city engineer set forth in the pre-application.

(3) Pre-application locations are reserved on a first come first serve basis and are reserved for a maximum of 90 days and are locked in on submission of the final application.

(b) FINAL APPLICATION SUBMITTAL.

(1) The following information must be provided for all submittals:

(i) A small cell permit fee for each proposed location as established by city council resolution.

(ii) Engineered site plans drawn to scale and prepared, signed and certified by a Nevada-licensed engineer. Plans must include:

a. Street names, parcel numbers, and the addresses of all properties surrounding the proposed facility location.

b. Elevations and dimensions for before and after the proposed construction conditions with all height and width measurements called out.

c. Details of all proposed equipment, antennas, power cut off switches, electric meters, and cabinets.

d. All proposed utility runs and points of contact.

e. Easement locations for access and utilities.

f. Location of surface improvements, i.e. roadways, curb and gutter, sidewalk, pedestrian ramps, signs, poles, landscaping, etc.

g. Location of all subsurface improvements in the immediate area (approximate 25 foot radius) which may be impacted by the proposed work.

h. Location and detail of the placard and its placement.

i. Locations for all proposed electrical meters.

(iii) Photo simulations of the proposed location showing a post installation condition of all proposed equipment, antenna, meter sets, vaults, cabinets, from a reasonable line of sight as viewed from the public street.

(iv) If required, a letter of authorization (LOA) from the pole owner.

(v) When connecting electrical equipment, a certified engineer's report demonstrating the power requirements of the proposed equipment are adequately supported by the existing infrastructure.

(vi) For locations requiring building permits (i.e. new meter sets), copies of each building permit and the address assigned to the meter must be provided with the submittal package.

(vii) The issued encroachment and excavation permits pursuant to RMC 6.11 and 12.08.

(viii) Evidence of compliance with applicable federal radio frequency (RF) exposure standards, a report prepared by a licensed engineer that certifies that the proposed small cell complies with such federal standards and a report that the proposed small cell will not interfere with any existing RF signal or equipment operations.

(ix) An engineer's report demonstrating that the proposed noise level of the equipment associated with a small cell will be within the noise standards of RMC, as amended. If the proposed equipment is non-noise generating, a statement can be included on the construction plans in lieu of the report.

(c) REVIEW AND TIMELINES.

(1) Applications are reviewed by the public works department staff.

(2) Applications to collocate using an existing structure will be reviewed within 60 days.

(3) Applications to deploy using a new structure will be reviewed within 90 days.

(4) Unless otherwise agreed to in writing, within ten days after submission of the initial application, the city shall notify the applicant in writing if the application is materially incomplete and said notice will specifically identify the missing documents and/or information required by this chapter. During this time, no shot clock applies.

(5) Unless otherwise agreed to in writing, within ten days after submission of the resubmitted application, the city shall notify the applicant in writing if the resubmitted application is still incomplete and said notice will specifically identity the missing documents and/or information required by this chapter. The shot clock is paused until a subsequent application is submitted.

(Ord. No. 6508, § 1, 4-10-19)

Sec. 12.26.050. License agreement.

A license agreement with the city is required which is subject to council approval. all subsequent small cell locations proposed to the city will be reflected in site supplement agreements.

(Ord. No. 6508, § 1, 4-10-19)

Sec. 12.26.060. Other requirements.

(a) POST CONSTRUCTION SUBMITTAL.

(1) At the conclusion of all work, the licensee and/or applicant shall provide:

(i) As-built plans including all field changes agreed to by the city.

(ii) All inspection documents and studies or certifications as required by the city.

(Ord. No. 6508, § 1, 4-10-19)

CHAPTER 12.28. MAINTENANCE DISTRICTS OF LANDSCAPING, PUBLIC LIGHTING, AND SECURITY WALLS*

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[ARTICLE I. IN GENERAL]*

Sec. 12.28.010. Definitions.

(a) ASSESSMENT:

The levy against any tract or unit specifically benefitted by landscaping, public lighting, and/or security walls improvements, to defray wholly or in part the cost of the maintenance district.

(b) SECURITY WALL:

Security wall has the meaning ascribed to it in NRS 278.4785.

***Editor's note—**The provisions of Ch. 12.28 have been designated as Ch. 12.28, Art. I at the discretion of the editor in order to accommodate inclusion of Ordinances 5206, 5207 and 5212. The reader is directed to the Code Comparative Table for a detailed analysis of inclusion of said ordinances.

(c) LANDSCAPING:
Trees, shrubs, grass and other ornamentation, whether natural or artificial, and includes drainage necessary for the maintenance thereof as defined in NRS 278.4781 and as may be amended thereafter.

(d) MAINTENANCE:
To care for and provide upkeep of improvements including normal repair and replacement of materials and items to sustain an approved standard or level of quality.

(e) PUBLIC LIGHTING:
Works or improvements useful in lighting a street, sidewalk or other place used for a public purpose as defined in NRS 278.4783 and as may be amended thereafter.

(Ord. No. 5099, § 1, 11-23-99)

Sec. 12.28.020. Authority.

The provisions of this article are enacted pursuant to NRS 278.4787 governing the development of maintenance districts for landscaping, public lighting, and security wall.

(Ord. No. 5099, § 1, 11-23-99)

Sec. 12.28.030. Applicability.

Qualified persons under NRS 278.4787, and as amended, may ask the City of Reno to create a maintenance district.

(Ord. No. 5099, § 1, 11-23-99)

Sec. 12.28.040. Procedure for applying to the city to create a maintenance district.

(a) Consistent with NRS 278.4787, the applicant shall present a petition setting forth legal descriptions of all tracts of land that would be subject to the assessment.

(b) The applicant shall submit a landscape, public lighting, and/or security wall plan.

(c) The applicant shall submit a proposed easement regarding entry and access to the city, its officers, agents, employees, and contractors to carry out the duties of the district, suitable for filing with the county recorder against the real property upon which any of the improvements to be maintained in the maintenance district are located.

(Ord. No. 5099, § 1, 11-23-99)

Sec. 12.28.050. City's determination to form a maintenance district.

(a) In determining if it is desirable to assume the maintenance of the proposed improvements, the city council shall make the following findings:

(1) Assumption of the maintenance of the proposed improvements will not create an unreasonable burden of administration.

(2) Assumption of the maintenance of the proposed improvements and/or submitted plan is consistent with the city's master plan, and

(3) The proposed landscaping, public lighting, and/or security wall plan are compatible with the character of the area in which they are located.

(b) If the city makes a determination that it is desirable to assume the maintenance of the proposed improvements, the city shall form a maintenance assessment district by ordinance. For each district the city shall include:

(1) A description of all tracts within the district in accordance with the applicant's petition;

(2) The assessment amount for each tract or unit on a periodic basis;

(3) The time of payment of the assessment;

(4) A description of the improvements to be maintained and levels and standards to which the improvements will be maintained;

(5) The amount by which the public interest will benefit from the maintenance of improvements and the amount the city will contribute to maintain improvements within the district proportional to the public benefit;

(6) The portion of the assessment due to the city for expenses associated with the administration of the district;

(7) That the assessment constitutes a lien upon the tracts of land or residential units thereon, and must be executed and has the same priority, as a lien for property taxes;

(8) Any other relevant matters; and

(9) A maintenance district may be created at the time a final subdivision map is approved. Assessments shall not be effective until the city's acceptance of the improvements for maintenance.

(Ord. No. 5099, § 1, 11-23-99)

Sec. 12.28.060. Dissolution of a maintenance district.

A maintenance district for landscaping, public lighting, and or security walls may be dissolved by the city council if it determines that:

(a) Improvements within the district are no longer necessary; or

(b) It is no longer in the public interest for the city to assume the maintenance for the improvement.

(c) An association for a common-interest community has been formed to maintain landscaping, public lighting, and security wall in lieu of a maintenance district under NRS 278.4787.

(Ord. No. 5099, § 1, 11-23-99)

Sec. 12.28.120. Severability.

Should any section, clause or provision of this ordinance be declared by a court of competent jurisdiction to be unconstitutional or invalid, that decision shall not affect the validity of the ordinance as a whole or any part thereof other than the part declared to be unconstitutional or invalid.

(Ord. No. 5099, § 1, 11-23-99)

ARTICLE II. MAINTENANCE DISTRICT 1

Sec. 12.28.200. Definitions.

(a) ASSESSMENT AMOUNT:

The monetary amount levied against each assessment unit as an assessment for any given assessment period.

(b) ACCEPTANCE DATE:
The date upon which the city accepts a dedication of the parcels of real property upon which the improvements are located as provided in section 12.28.215(b) of this article.

(c) ASSESSMENT PERIOD:
Each successive period of time running from and including July 1 to and including June 30.

(d) ASSESSMENT UNIT:
Each legal parcel of real property from time to time comprising and being included within the boundaries of the Maintenance District 1 property and upon which a single-family dwelling may be constructed, whether such dwelling has been constructed or not.

(e) MAINTENANCE DISTRICT 1 PROPERTY:
That certain real property located in the City of Reno, County of Washoe, State of Nevada, more particularly described in Exhibit "A," as expanded by Exhibit "A1," attached hereto and made a part hereof by this reference, together with such other real property as may be added to Maintenance District 1 from time to time pursuant to section 12.28.235 of this ordinance.

(f) IMPROVEMENTS:
Those improvements from time to time constructed and located within the Maintenance District 1 property pursuant to the landscape plan.

(g) LANDSCAPE MAINTENANCE STANDARDS:
Those landscape maintenance standards for the improvements as set forth in Exhibit "B" attached hereto and made a part hereof by this reference.

(h) LANDSCAPE PLAN:
The landscape plan set forth in Exhibit "C," as modified by Exhibit "C1," attached hereto and made a part hereof by this reference.

(i) MAINTENANCE DISTRICT 1:
The maintenance district created, formed and established pursuant to this article.

(j) PETITIONER:
Petitioner is specifically identified above by name in the recitals, and includes all of its respective heirs, partners, representative, successors and assigns, as applicable.

Defined terms set forth in RMC Section 12.28.010 and used in this ordinance shall have the meanings given to such terms in such section.

(Ord. No. 5171, § 1, 9-12-00; Ord. No. 5275, § 1, 10-9-01)

Sec. 12.28.205. Establishment of Maintenance District 1.

In accordance with RMC Sections 12.28.010 through 12.28.120, inclusive, a maintenance district is hereby created, formed and established for the Maintenance District 1 property and each assessment unit presently or hereafter created therein.

(Ord. No. 5171, § 1, 9-12-00)

Sec. 12.28.210. Assessments.

(a) The assessment amount for each assessment unit shall be in the amount of $116.15 for each assessment period; subject, however, to an annual adjustment in accordance with this section. Each assessment amount includes, and shall continue to include, both an allocation for the city's annual cost for maintenance with respect to Maintenance District 1

and for the city's administrative, overhead, and ownership costs and expenses attributable to Maintenance District 1 for the applicable assessment period. The assessment amount has been, and shall continue to be, further adjusted in accordance with the city's contribution set forth in section 12.28.220. The assessment amounts shall be further adjusted annually in accordance with this subparagraph (a) for the next assessment period.

(b) Assessment amounts shall be payable on or before the sixtieth day from and after the day the city mails to the owner of the assessment unit a bill for the assessment amount to the same address for the owner of such assessment unit as billings for real property taxes are sent by the Washoe County Tax Assessor's Office.

(c) Assessment amounts for any partial assessment period shall be prorated based on a 365-day year.

(d) Assessment amounts which are not paid when due shall accrue penalties of 15 percent of the assessment amounts, and the total amount due including penalties shall be compounded semi-annually.

(Ord. No. 5171, § 1, 9-12-00; Ord. No. 5275, § 1, 10-9-01)

Sec. 12.28.215. Improvements.

(a) The improvements shall be installed by petitioner in accordance with the landscape plan in a good and workmanlike, lien free manner on or before July 1 of the second year after the issuance of the grading permit.

(b) The city will accept a dedication of the legal parcels of real property on which the improvements are located at such time as the improvements have been installed as required pursuant to subparagraph (a) immediately above.

(c) The city shall undertake or cause to be undertaken the maintenance of the improvements consistent with the levels and standards set forth in Exhibit "B" attached hereto upon the city's acceptance of the dedication provided for in subparagraph (b) immediately above.

(Ord. No. 5171, § 1, 9-12-00)

Sec. 12.28.220. Public benefit.

The city council hereby determines there is a minimal amount by which the public interest will be benefitted from the maintenance of the improvements. Accordingly, the city will not contribute any monetary amount above the assessment amounts to maintain the improvements. The city recognizes that the loss of tax revenue will result by the acceptance of dedicated lands.

(Ord. No. 5171, § 1, 9-12-00)

Sec. 12.28.225. City lien rights.

Once levied, the assessment amounts shall constitute liens upon and against the respective assessment units. Each such lien shall be executed, and shall have the same priority, as a lien for real property taxes with respect to each assessment unit.

(Ord. No. 5171, § 1, 9-12-00)

Sec. 12.28.230. Exculpation.

The city shall have no liability whatsoever, and each owner of an assessment unit, for itself and all persons claiming through such owner, shall hold the city harmless from any and all claims, losses, liabilities, injuries and damages arising out of or in connection with the non-negligent performance by the city or its authorized agents or independent contractors of the obligations for Maintenance District 1 undertaken by the city pursuant to this article.

(Ord. No. 5171, § 1, 9-12-00)

Sec. 12.28.235. Expansion of Maintenance District 1.

Upon the filing of a petition and by appropriate amendment to this article after the city council has made the findings pursuant to RMC Section 12.28.050, Maintenance District 1 may be expanded to include future phases of the subdivision for which the instant petition has been presented.

(Ord. No. 5171, § 1, 9-12-00)

Sec. 12.28.240. Recorded notice of Maintenance District 1.

Concurrently with the recording of the final subdivision map for the Maintenance District 1 property, there shall be recorded against the Maintenance District 1 property a notice of the inclusion of the Maintenance District 1 property in Maintenance District 1, with a true and accurate copy of this article attached thereto. Such notice shall be in such form and content so as to encumber the Maintenance District 1 property and run with the title thereto.

(Ord. No. 5171, § 1, 9-12-00)

Sec. 12.28.245. Review of continuation of Maintenance District 1.

Not more than once every three years and upon notice to the owners of Maintenance District 1 property, the city or at least 50 percent of the property owners of Maintenance District 1 property may request a public hearing to review and determine whether it is desirable to continue Maintenance District 1 in accordance with RMC Section 12.28.050. If the city determines it is not desirable to continue Maintenance District 1, such district may be dissolved in accordance with RMC Section 12.28.060. In such event, the owners, or portion thereof as necessary, of Maintenance District 1 property shall within six months form a homeowners' association to take ownership of the previously dedicated property and assume responsibility for the maintenance thereof. During this six-month transition period, the owners of Maintenance District 1 Property shall continue to pay the assessment amount and the city shall continue maintaining the improvements.

(Ord. No. 5171, § 1, 9-12-00)

Sec. 12.28.250. Severability.

Should any section, clause or provision of this ordinance be declared by a court of competent jurisdiction to be unconstitutional or invalid, that decision shall not affect the validity of the ordinance as a whole or any part thereof other than the part declared to be unconstitutional or invalid; provided, however, and notwithstanding the foregoing to the contrary, should any clause or provision of this article be declared to be unconstitutional, and the result thereof is to prohibit the city from levying and collecting assessment amounts as provided in this ordinance, then this

article shall be deemed null and void and of no further force or effect, unless and until the city by further ordinance duly adopted amends this ordinance in a manner acceptable to the city for the purpose of reestablishing a method for the levying and collection of assessment amounts.

(Ord. No. 5171, § 1, 9-12-00)

Sec. 12.28.255. Effective date of article.

This article shall be effective upon passage; provided, however, that the city shall have no obligation to undertake any maintenance or assessment billing obligations hereunder until the acceptance date. Until the acceptance date, petitioner shall bear all responsibility for the maintenance and upkeep of the improvements.

(Ord. No. 5171, § 1, 9-12-00)

ARTICLE III. MAINTENANCE DISTRICT 3

Sec. 12.28.300. Definitions.

(a) ASSESSMENT AMOUNT.
The monetary amount levied against each assessment unit as an assessment for any given assessment period.

(b) ACCEPTANCE DATE.
The date upon which the city accepts a dedication of the parcels of real property upon which the improvements are located as provided in section 12.28.315(b) of this article.

(c) ASSESSMENT PERIOD.
Each successive period of time running from and including July 1 to and including June 30.

(d) ASSESSMENT UNIT.
Each legal parcel of real property from time to time comprising and being included within the boundaries of the Maintenance District 3 Property and upon which a single-family dwelling may be constructed, whether such dwelling has been constructed or not.

(e) MAINTENANCE DISTRICT 3 PROPERTY.
That certain real property located in the City of Reno, County of Washoe, State of Nevada, more particularly described in Exhibit "A" attached hereto and made a part hereof by this reference, together with such other real property as may be added to Maintenance District 3 from time to time pursuant to section 12.28.335 of this Article.

(f) IMPROVEMENTS.
Those improvements from time to time constructed and located within the Maintenance District 3 property pursuant to the landscape plan.

(g) LANDSCAPE MAINTENANCE STANDARDS.
Those landscape maintenance standards for the Improvements as set forth in Exhibit "B" attached hereto and made a part hereof by this reference.

(h) LANDSCAPE PLAN.
The landscape plan set forth in Exhibit "C" attached hereto and made a part hereof by this reference.

(i) MAINTENANCE DISTRICT 3.
The maintenance district created, formed and established pursuant to this article.

Defined terms set forth in RMC Section 12.28.010 and used in this article shall have the meanings given to such terms in such section.

(Ord. No. 5206, § 1, 11-14-00)

Sec. 12.28.305. Establishment of Maintenance District 3.

In accordance with RMC Sections 12.28.010 through 12.28.120, inclusive, a maintenance district is hereby created and formed and established for the Maintenance District 3 property and each assessment unit presently or hereafter created therein.

(Ord. No. 5206, § 1, 11-14-00)

Sec. 12.28.310. Assessments.

(a) The assessment amount for each assessment unit shall be in the amount of $135.46 for each assessment period; subject, however, to an annual adjustment in accordance with this section. Each assessment amount includes, and shall continue to include, both an allocation for the city's annual cost for maintenance with respect to Maintenance District 3 and for the city's administrative, overhead, and ownership costs and expenses attributable to Maintenance District 3 for the applicable assessment period. The assessment amount has been, and shall continue to be, further adjusted in accordance with the city's contribution set forth in section 12.28.320. The assessment amounts shall be further adjusted annually in accordance with this subparagraph (a) for the next assessment period.

(b) Assessment amounts shall be payable on or before the 60th day from and after the day the city mails to the owner of the assessment unit a bill for the assessment amount to the same address for the owner of such assessment unit as billings for real property taxes are sent by the Washoe County Tax Assessor's Office.

(c) Assessment amounts for any partial assessment period shall be prorated based on a 365-day year.

(d) Assessment amounts which are not paid when due shall accrue penalties of 15 percent of the assessment amounts, and the total amount due including penalties shall be compounded semi-annually.

(Ord. No. 5206, § 1, 11-14-00)

Sec. 12.28.315. Improvements.

(a) The improvements shall be installed by petitioner in accordance with the landscape plan in a good and workmanlike, lien free manner on or before July 1 of the second year after the issuance of the grading permit. No later than the first reading of this article. Petitioner shall provide to the city a bond in such amount and upon such terms as the city deems appropriate in the reasonable exercise of its discretion for the purpose of securing unto the city the installation of the improvements in the manner required pursuant to this subparagraph (a).

(b) The city will accept a restricted dedication of the legal parcels of real property on which the improvements are located at such time as the improvements have been installed as required pursuant to subparagraph (a) immediately above.

(c) No later than the first reading of this article petitioner shall provide to the city an easement for access and maintenance to the Maintenance District 3 property across the real property in Maintenance District 3.

(d) The city shall undertake or cause to be undertaken the maintenance of the improvements consistent with the levels and standards set forth in Exhibit "B" attached hereto upon the city's acceptance of the dedication provided for in subparagraph (b) immediately above.

(Ord. No. 5206, § 1, 11-14-00)

Sec. 12.28.320. Public benefit.

The city council hereby determines there is a small amount by which the public interest will be especially benefitted from the maintenance of the improvements. Accordingly, the city has reduced the direct costs included in the calculation of the assessment amounts by ten percent to maintain the improvements.

(Ord. No. 5206, § 1, 11-14-00)

Sec. 12.28.325. City lien rights.

Once levied, the assessment amounts shall constitute liens upon and against the respective assessment units. Each such lien shall be executed, and shall have the same priority, as a lien for real property taxes with respect to each assessment unit.

(Ord. No. 5206, § 1, 11-14-00)

Sec. 12.28.330. Exculpation.

The city shall have no liability whatsoever, and each owner of an assessment unit, for itself and all persons claiming through such owner, shall hold the city harmless from any and all claims, losses, liabilities, injuries and damages arising out of or in connection with the non-negligent performance by the city or its authorized agents or independent contractors of the obligations for Maintenance District 3 undertaken by the city pursuant to this article.

(Ord. No. 5206, § 1, 11-14-00)

Sec. 12.28.335. Expansion of Maintenance District 3.

Upon the filing of a petition and by appropriate amendment to this article after the city council has made the findings pursuant to RMC Section 12.28.050, Maintenance District 3 may be expanded to include future phases of the subdivision for which the instant petition has been presented.

(Ord. No. 5206, § 1, 11-14-00)

Sec. 12.28.340. Recorded notice of Maintenance District 3.

Concurrently with the recording of the final subdivision map for the Maintenance District 3 property, there shall be recorded against the Maintenance District 3 property a notice of the inclusion of the Maintenance District 3 property in Maintenance District 3, with a true and accurate copy of this article attached thereto. Such notice shall be in such form and content so as to encumber the Maintenance District 3 property and run with the title thereto.

(Ord. No. 5206, § 1, 11-14-00)

Sec. 12.28.345. Review of continuation of Maintenance District 3.

Not more than once every three years and upon notice to the owners of Maintenance District 3 property, the city or at least 50 percent of the property owners of Maintenance District 3 property may request a public hearing to review and determine whether it is desirable to continue Maintenance District 3 in accordance with RMC Section 12.28.050. If the city determines it is not desirable to continue Maintenance District 3, such district may be dissolved in accordance with RMC Section 12.28.060. In such event, the owners, or portion thereof as necessary, of Maintenance District 3 property shall within six months form a homeowners' association to take ownership of the previously dedicated property and assume responsibility for the maintenance thereof. During this six-month transition period, the owners of Maintenance District 3 property shall continue to pay the assessment amount and the city shall continue maintaining the improvements.

(Ord. No. 5206, § 1, 11-14-00)

Sec. 12.28.350. Severability.

Should any section, clause or provision of this article be declared by a court of competent jurisdiction to be unconstitutional or invalid, that decision shall not affect the validity of the article as a whole or any part thereof other than the part declared to be unconstitutional or invalid; provided, however, and notwithstanding the foregoing to the contrary, should any clause or provision of this article be declared to be unconstitutional, and the result thereof is to prohibit the city from levying and collecting assessment amounts as provided in this article, then this article shall be deemed null and void and of no further force or effect, unless and until the city by further ordinance duly adopted amends this article in a manner acceptable to the city for the purpose of reestablishing a method for the levying the collection of assessment amounts.

(Ord. No. 5206, § 1, 11-14-00)

Sec. 12.28.355. Effective date of article.

This article shall be effective upon passage; provided, however, that the city shall have no obligation to undertake any maintenance or assessment billing obligations hereunder until the acceptance date. Until the acceptance date, petitioner shall bear all responsibility for the maintenance and upkeep of the improvements.

(Ord. No. 5206, § 1, 11-14-00)

ARTICLE IV. MAINTENANCE DISTRICT 4

Sec. 12.28.400. Definitions.

(a) ASSESSMENT AMOUNT.
The monetary amount levied against each assessment unit as an assessment for any given assessment period.

(b) ACCEPTANCE DATE.
The date upon which the city accepts a dedication of the parcels of real property upon which the improvements are located as provided in section 12.28.415(b) of this article.

(c) ASSESSMENT PERIOD.
Each successive period of time running from and including July 1 to and including June 30.

(d) ASSESSMENT UNIT.
Each legal parcel of real property from time to time comprising and being included within the boundaries of the Maintenance District 4 property and upon which a single-family dwelling may be constructed, whether such dwelling has been constructed or not.

(e) MAINTENANCE DISTRICT 4 PROPERTY.
That certain real property located in the City of Reno, County of Washoe, State of Nevada, more particularly described in Exhibits "A" attached hereto and made a part hereof by this reference, together with such other real property as may be added to Maintenance District 4 from time to time pursuant to section 12.28.335 of this article.

(f) IMPROVEMENTS.
Those improvements from time to time constructed and located within the Maintenance District 4 property pursuant to the landscape plan.

(g) LANDSCAPE MAINTENANCE STANDARDS.
Those landscape maintenance standards for the Improvements as set forth in Exhibit "B" attached hereto and made a part hereof by this reference.

(h) LANDSCAPE PLAN.
The landscape plans set forth in Exhibit "C" attached hereto and are made a part hereof by this reference.

(i) MAINTENANCE DISTRICT 4.
The maintenance district created, formed and established pursuant to this article.

(j) PETITIONER:
Petitioner is specifically identified above by name in the recitals, and includes all of its respective heirs, partners, representative, successors and assigns, as applicable.

Defined terms set forth in RMC Section 12.28.010 and used in this article shall have the meanings given to such terms in such section.

(Ord. No. 5207, § 1, 11-14-00; Ord. No. 5279, § 1, 10-9-01)

Sec. 12.28.405. Establishment of Maintenance District 4.

In accordance with RMC Sections 12.28.010 through 12.28.120, inclusive, a maintenance district is hereby created and formed and established for the Maintenance District 4 property and each assessment unit presently or hereafter created therein.

(Ord. No. 5207, § 1, 11-14-00)

Sec. 12.28.410. Assessments.

(a) The assessment amount for each assessment unit shall be in the amount of $63.30 for each assessment period; subject, however, to an annual adjustment in accordance with this section. Each assessment amount includes, and shall continue to include, both an allocation for the city's annual cost for maintenance with respect to Maintenance District 4 and for the city's administrative, overhead, and ownership costs and expenses attributable to Maintenance District 4 for the applicable assessment period. The assessment amount has been, and shall continue to be, further adjusted in accordance with the city's contribution set forth in section 12.28.420. The assessment amounts shall be further adjusted annually in accordance with this subparagraph (a) for the next assessment period.

(b) Assessment amounts shall be payable on or before the 60th day from and after the day the city mails to the owner of the assessment unit a bill for the assessment amount to the same address for the owner of such assessment unit as billings for real property taxes are sent by the Washoe County Tax Assessor's Office.

(c) Assessment amounts for any partial assessment period shall be prorated based on a 365-day year.

(d) Assessment amounts which are not paid when due shall accrue penalties of 15 percent of the assessment amounts, and the total amount due including penalties shall be compounded semi-annually.

(Ord. No. 5207, § 1, 11-14-00)

Sec. 12.28.415. Improvements.

(a) The improvements shall be installed by petitioner in accordance with the landscape plan in a good and workmanlike, lien free manner on or before July 1 of the second year after the issuance of the grading permit. No later than the first reading of this article. Petitioner shall provide to the city a bond in such amount and upon such terms as the city deems appropriate in the reasonable exercise of its discretion for the purpose of securing unto the city the installation of the improvements in the manner required pursuant to this subparagraph(a).

(b) The city will accept a full dedication of the real property described in Exhibit "D," and a restricted dedication of the of real property described in Exhibit "E" on which the improvements are located at such time as the improvements have been installed as required pursuant to subparagraph (a) immediately above.

(c) No later than the first reading of this article, petitioner shall provide to the city an easement for access and maintenance to the Maintenance District 4 property across the real property in Maintenance District 4.

(d) The city shall undertake or cause to be undertaken the maintenance of the improvements consistent with the levels and standards set forth in Exhibit "B" attached hereto upon the city's acceptance of the dedications provided for in subparagraph (b) immediately above.

(Ord. No. 5207, § 1, 11-14-00)

Sec. 12.28.420. Public benefit.

The city council hereby determines there is substantial amount by which the public interest will be especially benefitted from the maintenance of the improvements described in Exhibit "D", and a small benefit from the maintenance of the Improvements described in Exhibit "E." Accordingly, the city has reduced the direct costs included in the calculation of the assessment amounts for the improvements described in Exhibit "D" by 75 percent, and has reduced the direct costs included in the calculation of the assessment amounts for the improvements described in Exhibit "E" by ten percent to maintain the improvements. The city recognizes that the loss of tax revenue will result by the acceptance of dedicated lands.

(Ord. No. 5207, § 1, 11-14-00)

Sec. 12.28.425. City lien rights.

Once levied, the assessment amounts shall constitute liens upon and against the respective assessment units. Each such lien shall be executed, and shall have the same priority, as a lien for real property taxes with respect to each assessment unit.

(Ord. No. 5207, § 1, 11-14-00)

Sec. 12.28.430. Exculpation.

The city shall have no liability whatsoever, and each owner of an assessment unit, for itself and all persons claiming through such owner, shall hold the city harmless from any and all claims, losses, liabilities, injuries and damages arising out of or in connection with the non-negligent performance by the city or its authorized agents or independent contractors of the obligations for Maintenance District 4 undertaken by the city pursuant to this article.

(Ord. No. 5207, § 1, 11-14-00)

Sec. 12.28.435. Expansion of Maintenance District 4.

Upon the filing of a petition and by appropriate amendment to this article after the city council has made the findings pursuant to RMC Section 12.28.050. Maintenance District 4 may be expanded to include future phases of the subdivision for which the instant petition has been presented.

(Ord. No. 5207, § 1, 11-14-00)

Sec. 12.28.440. Recorded notice of Maintenance District 4.

Concurrently with the recording of the final subdivision map for the Maintenance District 4 property, there shall be recorded against the Maintenance District 4 property a notice of the inclusion of the Maintenance District 4 property in Maintenance District 4, with a true and accurate copy of this article attached thereto. Such notice shall be in such form and content so as to encumber the Maintenance District 4 property and run with the title thereto.

(Ord. No. 5207, § 1, 11-14-00)

Sec. 12.28.445. Review of continuation of Maintenance District 4.

Not more than once every three years and upon notice to the owners of Maintenance District 4 property, the city or at least 50 percent of the property owners of Maintenance District 4 property may request a public hearing to review and determine whether it is desirable to continue Maintenance District 4 as applicable in accordance with RMC Section 12.28.050. If the city determines it is not desirable to continue Maintenance District 4, such district may be dissolved in accordance with RMC Section 12.28.060. In such event, the owners, or portion thereof as necessary, of Maintenance District 4 property shall within six months form a homeowners' association to take ownership of the previously dedicated property identified in Exhibit "E" and assume responsibility for the maintenance thereof. At such time, the city may determine that an amendment to Maintenance District 4 is appropriate, and that the owners of the assessment units must continue to pay the assessment amount applicable to the dedicated property identified in Exhibit "F." During this six-month transition period, the owners of Maintenance District 4 property shall continue to pay the full assessment amount and the city shall continue maintaining the improvements.

(Ord. No. 5207, § 1, 11-14-00)

Sec. 12.28.450. Severability.

Should any section, clause or provision of this article be declared by a court of competent jurisdiction to be unconstitutional or invalid, that decision shall not affect the validity of the article as a whole or any part thereof other than the part declared to be unconstitutional or invalid; provided, however, and notwithstanding the foregoing to the contrary, should any clause or provision of this article be declared to be unconstitutional, and the result thereof is to prohibit the city from levying and collecting assessment amounts as provided in this article, then this article shall be deemed null and void and of no further force or effect, unless and until the city by further ordinance duly adopted amends this article in a manner acceptable to the city for the purpose of reestablishing a method for the levying and collection of assessment amounts.

(Ord. No. 5207, § 1, 11-14-00)

Sec. 12.28.455. Effective date of article.

This article shall be effective upon passage; provided, however, that the city shall have no obligation to undertake any maintenance or assessment billing obligations hereunder until the acceptance date. Until the acceptance date, petitioner shall bear all responsibility for the maintenance and upkeep of the improvements.

(Ord. No. 5207, § 1, 11-14-00)

ARTICLE V. MAINTENANCE DISTRICT 2

Sec. 12.28.500. Definitions.

(a) ASSESSMENT AMOUNT:
The monetary amount levied against each assessment unit as an assessment for any given assessment period.

(b) ACCEPTANCE DATE:
The date upon which the city accepts a dedication of the parcels of real property upon which the improvements are located as provided in section 12.28.515(b) of this article.

(c) ASSESSMENT PERIOD:
Each successive period of time running from and including July 1 to and including June 30.

(d) ASSESSMENT UNIT:
Each legal parcel of real property from time to time comprising and being included within the boundaries of the Maintenance District 2 Property and upon which a single-family dwelling may be constructed, whether such dwelling has been constructed or not.

(e) MAINTENANCE DISTRICT 2 PROPERTY:
That certain real property located in the City of Reno, County of Washoe, State of Nevada, more particularly described in Exhibit "A," as expanded by Exhibit "A1," attached hereto and made a part hereof by this reference, together with such other real property as may be added to Maintenance District 2 from time to time pursuant to section 12.28.535 of this article.

(f) IMPROVEMENTS:
Those improvements from time to time constructed and located within the Maintenance District 2 Property pursuant to the landscape plan.

(g) LANDSCAPE MAINTENANCE STANDARDS:
Those landscape maintenance standards for the improvements as set forth in Exhibit "B" attached hereto and made a part hereof by this reference.

(h) LANDSCAPE PLAN:
The landscape plan set forth in Exhibit "C," as modified by Exhibit "C1," attached hereto and made a part hereof by this reference.

(i) MAINTENANCE DISTRICT 2:
The maintenance district created, formed and established pursuant to this article.

(j) PETITIONER:
Petitioner is specifically identified above by name in the recitals, and includes all of its respective heirs, partners, representative, successors and assigns, as applicable.

Defined terms set forth in RMC Section 12.28.010 and used in this article shall have the meanings given to such terms in such section.

(Ord. No. 5212, § 1, 12-12-00; Ord. No. 5234, § 1, 4-10-01)
Editor's note—The exhibits referred to in the above section are not set out herein, but are on file and available for inspection in the offices of the city.

Sec. 12.28.505. Establishment of Maintenance District 2.

In accordance with RMC Sections 12.28.010 through 12.28.120, inclusive, a maintenance district is hereby created and formed and established for the Maintenance District 2 property and each assessment unit presently or hereafter created therein.

(Ord. No. 5212, § 1, 12-12-00)

Sec. 12.28.510. Assessments.

(a) The assessment amount for each assessment unit shall be in the amount of $243.23 for each assessment period; subject, however, to an annual adjustment in accordance with this section. Each assessment amount includes, and shall continue to include, both an allocation for the city's annual cost for maintenance with respect to Maintenance District 2 and for the city's administrative, overhead, and ownership costs and expenses attributable to Maintenance District 2 for the applicable assessment period. The assessment amount has been, and shall continue to be, further adjusted in accordance with the city's contribution set forth in section 12.28.520. The assessment amounts shall be further adjusted annually in accordance with this subparagraph (a) for the next assessment period.

(b) Assessment amounts shall be payable on or before the 60th day from and after the day the city mails to the owner of the assessment unit a bill for the assessment amount to the same address for the owner of such assessment unit as billings for real property taxes are sent by the Washoe County Tax Assessor's Office.

(c) Assessment amounts for any partial assessment period shall be prorated based on a 365-day year.

(d) Assessment amounts which are not paid when due shall accrue penalties of 15 percent of the assessment amounts, and the total amount due including penalties shall be compounded semi-annually.

(Ord. No. 5212, § 1, 12-12-00; Ord. No. 5234, § 1, 4-10-01)

Sec. 12.28.515. Improvements.

(a) The improvements shall be installed by petitioner in accordance with the landscape plan in a good and workmanlike, lien free manner on or before July 1 of the second year after the issuance of the grading permit. No later than the first reading of this article, petitioner shall provide to the city a letter of credit or bond, which ever is acceptable to the city, in such amount and upon such terms as the city deems appropriate in the reasonable exercise of its discretion for the purpose of securing unto the city the installation of the improvements in the manner required pursuant to this subparagraph (a).

(b) The city will accept a restricted dedication of the legal parcels of real property on which the improvements are located at such time as the improvements have been installed as required pursuant to subparagraph (a) immediately above.

(c) No later than the first reading of this article, petitioner shall provide to the city an easement for access and maintenance to the Maintenance District 2 property across the real property in Maintenance District 2.

(d) The city shall undertake or cause to be undertaken the maintenance of the improvements consistent with the levels and standards set forth in Exhibit "B" attached hereto upon the city's acceptance of the dedication provided for in subparagraph (b) immediately above.

(Ord. No. 5212, § 1, 12-12-00)

Sec. 12.28.520. Public benefit.

The city council hereby determines there is a small amount by which the public interest will be especially benefitted from the maintenance of the improvements. Accordingly, the city has reduced the direct costs included in the calculation of the assessment amounts by ten percent to maintain the improvements. The city recognizes that the loss of tax revenue will result by the acceptance of dedicated lands.

(Ord. No. 5212, § 1, 12-12-00)

Sec. 12.28.525. City lien rights.

Once levied, the assessment amounts shall constitute liens upon and against the respective assessment units. Each such lien shall be executed, and shall have the same priority, as a lien for real property taxes with respect to each assessment unit.

(Ord. No. 5212, § 1, 12-12-00)

Sec. 12.28.530. Exculpation.

The city shall have no liability whatsoever, and each owner of an assessment unit, for itself and all persons claiming through such owner, shall hold the city harmless from any and all claims, losses, liabilities, injuries and damages arising out of or in connection with the non-negligent performance by the city or its authorized agents or independent contractors of the obligations for Maintenance District 2 undertaken by the city pursuant to this article.

(Ord. No. 5212, § 1, 12-12-00)

Sec. 12.28.535. Expansion of Maintenance District 2.

Upon the filing of a petition and by appropriate amendment to this article after the city council has made the findings pursuant to RMC Section 12.28.050, Maintenance District 2 may be expanded to include future phases of the subdivision for which the instant petition has been presented.

(Ord. No. 5212, § 1, 12-12-00)

Sec. 12.28.540. Recorded notice of Maintenance District 2.

Concurrently with the recording of the final subdivision map for the Maintenance District 2 property, there shall be recorded against the Maintenance District 2 property a notice of the inclusion of the Maintenance District 2 property in Maintenance District 2, with a true and accurate copy of this article attached thereto. Such notice shall be in such form and content so as to encumber the Maintenance District 2 property and run with the title thereto.

(Ord. No. 5212, § 1, 12-12-00)

Sec. 12.28.545. Review of continuation of Maintenance District 2.

Not more than once every three years and upon notice to the owners of Maintenance District 2 property, the city or at least 50 percent of the property owners of Maintenance District 2 property may request a public hearing to review and determine whether it is desirable to continue Maintenance District 2 in accordance with RMC Section 12.28.050. If the city determines it is not desirable to continue Maintenance District 2, such district may be dissolved in accordance with RMC Section 12.28.060. In such event, the owners, or portion thereof as necessary, of Maintenance District 2 property shall within six months form a homeowners' association to take ownership of the previously dedicated property and assume responsibility for the maintenance thereof. During this six-month transition period, the owners of Maintenance District 2 property shall continue to pay the assessment amount and the city shall continue maintaining the improvements.

(Ord. No. 5212, § 1, 12-12-00)

Sec. 12.28.550. Severability.

Should any section, clause or provision of this article be declared by a court of competent jurisdiction to be unconstitutional or invalid, that decision shall not affect the validity of the article as a whole or any part thereof other than the part declared to be unconstitutional or invalid; provided, however, and notwithstanding the foregoing to the contrary, should any clause or provision of this article be declared to be unconstitutional, and the result thereof is to prohibit the city from levying and collecting assessment amounts as provided in this article, then this article shall be deemed null and void and of no further force or effect, unless and until the city by further ordinance duly adopted amends this article in a manner acceptable to the city for the purpose of reestablishing a method for the levying and collection of assessment amounts.

(Ord. No. 5212, § 1, 12-12-00)

Sec. 12.28.555. Effective date of article.

This article shall be effective upon passage; provided, however, that the city shall have no obligation to undertake any maintenance or assessment billing obligations hereunder until the acceptance date. Until the acceptance date, petitioner shall bear all responsibility for the maintenance and upkeep of the improvements.

(Ord. No. 5212, § 1, 12-12-00)

ARTICLE VI. MAINTENANCE DISTRICT 5

Sec. 12.28.600. Definitions.

(a) ASSESSMENT AMOUNT:
The monetary amount levied against each assessment unit as an assessment for any given assessment period.

(b) ACCEPTANCE DATE:
The date upon which the city accepts a dedication of the parcels of real property upon which the improvements are located as provided in section 12.28.615(b) of this article.

(c) ASSESSMENT PERIOD:
Each successive period of time running from and including July 1 to and including June 30.

(d) ASSESSMENT UNIT:
Each legal parcel of real property from time to time comprising and being included within the boundaries of the Maintenance District 5 Property and upon which a single-family dwelling may be constructed, whether such dwelling has been constructed or not.

(e) MAINTENANCE DISTRICT 5 PROPERTY:
That certain real property located in the City of Reno, County of Washoe, State of Nevada, more particularly described in Exhibit "A" attached hereto and made a part hereof by this reference, together with such other real property as may be added to Maintenance District 5 from time to time pursuant to section 12.28.635 of this article.

(f) IMPROVEMENTS:
Those improvements from time to time constructed and located within the Maintenance District 5 Property pursuant to the landscape plan. A legal description of the property to be maintained is attached as Exhibits B1, B2, and B3.

(g) LANDSCAPE MAINTENANCE STANDARDS:
Those landscape maintenance standards for the improvements as set forth in Exhibit "C" attached hereto and made a part hereof by this reference.

(h) LANDSCAPE PLAN:
The landscape plans set forth in Exhibit "D" attached hereto and made a part hereof by this reference.

(i) MAINTENANCE DISTRICT 5:
The maintenance district created, formed and established pursuant to this article.

(j) PETITIONER:
Petitioner is specifically identified above by name in the recitals, and includes all of its respective heirs, partners, representative, successors and assigns, as applicable.

Defined terms set forth in RMC section 12.28.010 and used in this article shall have the meanings given to such terms in such section.

(Ord. No. 5235, § 1, 4-10-01)

Editor's note—The exhibits referred to in the above section are not set out herein, but are on file and available for inspection in the offices of the city.

Sec. 12.28.605. Establishment of Maintenance District 5.

In accordance with RMC Sections 12.28.010 through 12.28.120, inclusive, a maintenance district is hereby created and formed and established for the Maintenance District 5 Property and each assessment unit presently or hereafter created therein.

(Ord. No. 5235, § 1, 4-10-01)

Sec. 12.28.610. Assessments.

(a) The assessment amount for each assessment unit shall be in the amount of $271.56 for the annual assessment period; subject, however, to an annual adjustment in accordance with this section. Each assessment amount includes, and shall continue to include, both an allocation for the city's annual cost for maintenance with respect to Maintenance District 5 and for the city's administrative, overhead, and ownership costs and expenses attributable to Maintenance District 5 for the applicable assessment period. The assessment amount has been, and shall continue to be, further adjusted in accordance with the city's contribution set forth in section 12.28.620. The assessment amounts shall be further adjusted annually in accordance with this subparagraph (a) for the next assessment period.

(b) Assessment amounts shall be payable on or before the 60th day from and after the day the city mails to the owner of the assessment unit a bill for the assessment amount to the same address for the owner of such assessment unit as billings for real property taxes are sent by the Washoe County Tax Assessor's Office.

(c) Assessment amounts for any partial assessment period shall be prorated based on a 365-day year.

(d) Assessment amounts which are not paid when due shall accrue penalties of 15 percent of the assessment amounts, and the total amount due including penalties shall be compounded semi-annually.

(Ord. No. 5235, § 1, 4-10-01)

Sec. 12.28.615. Improvements.

(a) The improvements shall be installed by petitioner in accordance with the landscape plan in a good and workmanlike, lien free manner on or before July 1 of the second year after the issuance of the grading permit. No later than the adoption of this ordinance, petitioner shall provide to the city a letter of credit or bond, which ever is acceptable to the city, in such amount and upon such terms as the city deems appropriate in the reasonable exercise of its discretion for the purpose of securing unto the city the installation of the improvements in the manner required pursuant to this subparagraph (a).

(b) Prior to the city's acceptance of the improvements, petitioner shall provide to the city an easement for access and maintenance of the improvements across applicable real property in Maintenance District 5.

(c) The city shall undertake or cause to be undertaken the maintenance of the improvements consistent with the levels and standards set forth in Exhibit "C" attached hereto upon the city's acceptance of the improvements.

(Ord. No. 5235, § 1, 4-10-01)

Editor's note—The exhibit referred to in the above section are not set out herein, but are on file and available for inspection in the offices of the city.

Sec. 12.28.620. Public benefit.

The city council hereby determines there is a small amount by which the public interest will be especially benefitted from the maintenance of the improvements. Accordingly, the city has already reduced the direct costs included in the calculation of the assessment amounts by ten percent to maintain the improvements.

(Ord. No. 5235, § 1, 4-10-01)

Sec. 12.28.625. City lien rights.

Once levied, the assessment amounts shall constitute liens upon and against the respective assessment units. Each such lien shall be executed, and shall have the same priority, as a lien for real property taxes with respect to each assessment unit.

(Ord. No. 5235, § 1, 4-10-01)

Sec. 12.28.630. Exculpation.

The city shall have no liability whatsoever, and each owner of an assessment unit, for itself and all persons claiming through such owner, shall hold the city harmless from any and all claims, losses, liabilities, injuries and damages arising out of or in connection with the non-negligent performance by the city or its authorized agents or independent contractors of the obligations for Maintenance District 5 undertaken by the city pursuant to this ordinance.

(Ord. No. 5235, § 1, 4-10-01)

Sec. 12.28.635. Expansion of Maintenance District 5.

Upon the filing of a petition and by appropriate amendment to this ordinance after the city council has made the findings pursuant to RMC Section 12.28.050, Maintenance District 5 may be expanded to include future phases of the subdivision for which the instant petition has been presented.

(Ord. No. 5235, § 1, 4-10-01)

Sec. 12.28.640. Recorded notice of Maintenance District 5.

Concurrently with the recording of the final subdivision map for the Maintenance District 5 Property, there shall be recorded against the Maintenance District 5 Property a notice of the inclusion of the Maintenance District 5 Property in Maintenance District 5, with a true and accurate copy of this ordinance attached thereto. Such notice shall be in such form and content so as to encumber the Maintenance District 5 Property and run with the title thereto.

(Ord. No. 5235, § 1, 4-10-01)

Sec. 12.28.645. Review of continuation of Maintenance District 5.

Not more than once every three years and upon notice to the owners of Maintenance District 5 Property, the city or at least 50 percent of the property owners of Maintenance District 5

Property may request a public hearing to review and determine whether it is desirable to continue Maintenance District 5 in accordance with RMC Section 12.28.050. If the city determines it is not desirable to continue Maintenance District 5, such district may be dissolved in accordance with RMC Section 12.28.060. In such event, the owners, or portion thereof as necessary, of Maintenance District 5 Property shall within six months form a homeowners' association to take ownership of the property subject to the maintenance district and assume responsibility for the maintenance thereof. During this six-month transition period, the owners of Maintenance District 5 Property shall continue to pay the assessment amount and the city shall continue maintaining the improvements.

(Ord. No. 5235, § 1, 4-10-01)

Sec. 12.28.650. Severability.

Should any section, clause or provision of this ordinance be declared by a court of competent jurisdiction to be unconstitutional or invalid, that decision shall not affect the validity of the article as a whole or any part thereof other than the part declared to be unconstitutional or invalid; provided, however, and notwithstanding the foregoing to the contrary, should any clause or provision of this article be declared to be unconstitutional, and the result thereof is to prohibit the city from levying and collecting assessment amounts as provided in this ordinance, then this article shall be deemed null and void and of no further force or effect, unless and until the city by further ordinance duly adopted amends this ordinance in a manner acceptable to the city for the purpose of reestablishing a method for the levying and collection of assessment amounts.

(Ord. No. 5235, § 1, 4-10-01)

Sec. 12.28.655. Effective date of article.

This article shall be effective upon passage; provided, however, that the city shall have no obligation to undertake any maintenance or assessment billing obligations hereunder until the acceptance date. Until the acceptance date, petitioner shall bear all responsibility for the maintenance and upkeep of the improvements.

(Ord. No. 5235, § 1, 4-10-01)

ARTICLE VII. RESERVED*

Secs. 12.28.700—12.28.790. Reserved.

ARTICLE VIII. [MAINTENANCE DISTRICT 7]

Sec. 12.28.800. Definitions.

(a) ASSESSMENT AMOUNT:

The monetary amount levied against each assessment unit as an assessment for any given assessment period.

***Editor's note—**Ord. No. 5320, § 1, adopted March 26, 2002, repealed Art. VII, §§ 12.28.700—12.28.755, which pertained to Maintenance District 6. See the Code Comparative Table.

(b) ACCEPTANCE DATE:
The date upon which the city accepts a dedication of the parcels of real property upon which the improvements are located as provided in section 12.28.815(b) of this article.

(c) ASSESSMENT PERIOD:
Each successive period of time running from and including July 1 to and including June 30.

(d) ASSESSMENT UNIT:
Each legal parcel of real property from time to time comprising and being included within the boundaries of the Maintenance District 7 property and upon which a single-family dwelling may be constructed, whether such dwelling has been constructed or not.

(e) MAINTENANCE DISTRICT 7 PROPERTY:
That certain real property located in the City of Reno, County of Washoe, State of Nevada, more particularly described in Exhibits "A," attached hereto and made a part hereof by this reference, together with such other real property as may be added to Maintenance District 7 from time to time pursuant to section 12.28.835 of this article.

(f) IMPROVEMENTS:
Those improvements from time to time constructed and located within the Maintenance District 7 property pursuant to the landscape plan. A legal description of the property to be maintained is attached as Exhibit "B."

(g) LANDSCAPE MAINTENANCE STANDARDS:
Those landscape maintenance standards for the Improvements as set forth in Exhibit "C" attached hereto and made a part hereof by this reference.

(h) LANDSCAPE PLAN:
The landscape plans set forth in Exhibits "D," attached hereto and made a part hereof by this reference.

(i) MAINTENANCE DISTRICT 7:
The maintenance district created, formed and established pursuant to this article.

(j) PETITIONER:
Petitioner is specifically identified above by name in the recitals, and includes all of its respective heirs, partners, representative, successors and assigns, as applicable.

Defined terms set forth in RMC section 12.28.010 and used in this article shall have the meanings given to such terms in such section.

(Ord. No. 5302, § 1, 1-22-02)

Editor's note—It should be noted that Exhibits "A—D" as referenced above are not set out herein, but are on file and available for inspection in the offices of the city.

Sec. 12.28.805. Establishment of Maintenance District 7.

In accordance with RMC sections 12.28.010 through 12.28.120, inclusive, a maintenance district is hereby created and formed and established for the Maintenance District 7 property and each assessment unit presently or hereafter created therein.

(Ord. No. 5302, § 1, 1-22-02)

Sec. 12.28.810. Assessments.

(a) The assessment amount for each assessment unit shall be in the amount of $168.47 for the annual assessment period; subject, however, to an annual adjustment in accordance

with this section. Each assessment amount includes, and shall continue to include, both an allocation for the city's annual cost for maintenance with respect to Maintenance District 7 and for the city's administrative, overhead, and ownership costs and expenses attributable to Maintenance District 7 for the applicable assessment period. The assessment amount has been, and shall continue to be, further adjusted in accordance with the city's contribution set forth in section 12.28.820. The assessment amounts shall be further adjusted annually in accordance with this subparagraph (a) for the next assessment period.

(b) Assessment amounts shall be payable on or before the 60th day from and after the day the city mails to the owner of the assessment unit a bill for the assessment amount to the same address for the owner of such assessment unit as billings for real property taxes are sent by the Washoe County Tax Assessor's Office.

(c) Assessment amounts for any partial assessment period shall be prorated based on a 365-day year.

(d) Assessment amounts which are not paid when due shall accrue penalties of 15 percent of the assessment amounts, and the total amount due including penalties shall be compounded semi-annually.

(Ord. No. 5302, § 1, 1-22-02)

Sec. 12.28.815. Improvements.

(a) The improvements shall be installed by petitioner in accordance with the landscape plans in a good and workmanlike, lien free manner on or before July 1 of the second year after the issuance of the grading permit. No later than the adoption of this article, petitioner shall provide to the city a letter of credit or bond, which ever is acceptable to the city, in such amount and upon such terms as the city deems appropriate in the reasonable exercise of its discretion for the purpose of securing unto the city the installation of the improvements in the manner required pursuant to this subparagraph (a).

(b) Prior to the city's acceptance of the improvements, petitioner shall provide to the city an easement for access and maintenance of the improvements across applicable real property in Maintenance District 7.

(d) The city shall undertake or cause to be undertaken the maintenance of the improvements consistent with the levels and standards set forth in Exhibit "C" attached hereto upon the city's acceptance of the improvements.

(Ord. No. 5302, § 1, 1-22-02)

Editor's note—It should be noted that Exhibit "C" as referenced above is not set out herein, but is on file and available for inspection in the offices of the city.

Sec. 12.28.820. Public benefit.

The city council hereby determines there is a minimal amount by which the public interest will be benefitted from the maintenance of the improvements. Accordingly, the city will not reduce the direct costs included in the calculation of the assessment amounts.

(Ord. No. 5302, § 1, 1-22-02)

Sec. 12.28.825. City lien rights.

Once levied, the assessment amounts shall constitute liens upon and against the respective assessment units. Each such lien shall be executed, and shall have the same priority, as a lien for real property taxes with respect to each assessment unit.

(Ord. No. 5302, § 1, 1-22-02)

Sec. 12.28.830. Exculpation.

The city shall have no liability whatsoever, and each owner of an assessment unit, for itself and all persons claiming through such owner, shall hold the city harmless from any and all claims, losses, liabilities, injuries and damages arising out of or in connection with the non-negligent performance by the city or its authorized agents or independent contractors of the obligations for Maintenance District 7 undertaken by the city pursuant to this article.

(Ord. No. 5302, § 1, 1-22-02)

Sec. 12.28.835. Expansion of Maintenance District 7.

Upon the filing of a petition and by appropriate amendment to this article after the city council has made the findings pursuant to RMC section 12.28.050, Maintenance District 7 may be expanded to include future phases of the subdivision for which the instant petition has been presented.

(Ord. No. 5302, § 1, 1-22-02)

Sec. 12.28.840. Recorded notice of Maintenance District 7.

Concurrently with the recording of the final subdivision map for the Maintenance District 7 property, there shall be recorded against the Maintenance District 7 property a notice of the inclusion of the Maintenance District 7 property in Maintenance District 7, with a true and accurate copy of this article attached thereto. Such notice shall be in such form and content so as to encumber the Maintenance District 7 property and run with the title thereto.

(Ord. No. 5302, § 1, 1-22-02)

Sec. 12.28.845. Review of continuation of Maintenance District 7.

Not more than once every three years and upon notice to the owners of Maintenance District 7 property, the city or at least 50 percent of the property owners of Maintenance District 7 property may request a public hearing to review and determine whether it is desirable to continue Maintenance District 7 in accordance with RMC section 12.28.050. If the city determines it is not desirable to continue Maintenance District 7, such district may be dissolved in accordance with RMC section 12.28.060. In such event, the owners, or portion thereof as necessary, of Maintenance District 7 property shall within six months form a homeowners' association to take ownership of the property subject to the maintenance district and assume responsibility for the maintenance thereof. During this six-month transition period, the owners of Maintenance District 7 property shall continue to pay the assessment amount and the city shall continue maintaining the improvements.

(Ord. No. 5302, § 1, 1-22-02)

Sec. 12.28.850. Severability.

Should any section, clause or provision of this article be declared by a court of competent jurisdiction to be unconstitutional or invalid, that decision shall not affect the validity of the

article as a whole or any part thereof other than the part declared to be unconstitutional or invalid; provided, however, and notwithstanding the foregoing to the contrary, should any clause or provision of this article be declared to be unconstitutional, and the result thereof is to prohibit the city from levying and collecting assessment amounts as provided in this article, then this article shall be deemed null and void and of no further force or effect, unless and until the city by further ordinance duly adopted amends this article in a manner acceptable to the city for the purpose of reestablishing a method for the levying and collection of assessment amounts.

(Ord. No. 5302, § 1, 1-22-02)

Sec. 12.28.855. Effective date of article.

This article shall be effective upon passage; provided, however, that the city shall have no obligation to undertake any maintenance or assessment billing obligations hereunder until the acceptance date. Until the acceptance date, petitioner shall bear all responsibility for the maintenance and upkeep of the improvements.

(Ord. No. 5302, § 1, 1-22-02)

ARTICLE IX. ADMINISTRATIVE MAINTENANCE DISTRICTS

Sec. 12.28.900. Definitions.

Defined terms set forth in RMC section 12.28.010 and used in this article shall have the meanings given to such terms in such section. In addition to the definitions contained in section 12.28.010, the definitions set forth below apply.

(a) Administrator:
Director of parks, recreation and community services, including any successor title thereto, or a duly authorized designee, is designated as the administrator for carrying out the duties set forth in Article IX of Title 12, Chapter 28.

(b) Assessment amount:
The monetary amount levied against each assessment unit as an assessment for any given assessment period.

(c) Assessment period:
Each successive period of time running from and including July 1 to and including June 30.

(d) Assessment unit:
Each legal parcel of real property from time to time comprising and being included within the boundaries of the applicable maintenance district property and upon which a single-family dwelling may be constructed, whether such dwelling has been constructed or not.

(e) Improvements:
Those improvements from time to time constructed and located within maintenance district property pursuant to the landscape plan as accepted by the city.

(f) Landscape maintenance standards:
Those landscape maintenance standards for the improvements as determined by the administrator.

(g) Landscape plan:
The landscape plans, irrigation plans, and other plans requested by the administrator that are applicable to a maintenance district.

(h) Maintenance district property:
That certain real property located in the City of Reno, County of Washoe, State of Nevada, that is accepted in a maintenance district, together with such other real property as may be added to such maintenance district from time to time pursuant to section 12.28.955 of this article.

(i) Petitioner:
Petitioner is specifically identified in a petition requesting the city accept maintenance of certain improvements, and includes all of its respective heirs, partners, representatives, successors and assigns, as applicable.

(j) Restrictive dedication:
Form of conveyance to the city of certain real property for the purpose of its inclusion in a landscape maintenance district. All restrictive dedications must be approved by city council and in a form approved by the administrator.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.905. Administrative authority.

The provisions of this article are enacted pursuant to NRS 278.4787 governing the development of maintenance districts for landscaping, public lighting, and security walls and allowing for the administrative processing of maintenance districts. The provisions pertaining to administrative maintenance districts shall be applicable upon adoption, and all applications shall be processed administratively from that date forward. Maintenance districts previously created by ordinance shall remain in full force and effect in accordance with the applicable provisions of the Code.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.910. Applicability.

A petitioner qualified under NRS 278.4787, and as amended, may ask the City of Reno to create a maintenance district.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.915. Administrative procedure for applying to the city to create or expand a maintenance district.

(a) Consistent with NRS 278.4787, a petitioner shall provide the applicable processing fee and present a verified petition on an approved form delivered to the administrator setting forth legal descriptions of all tracts of land that would be subject to the assessment.

(b) Petitioner shall provide the legal description of each tract of land requested to be maintained by the city.

(c) Petitioner shall submit a landscape, public lighting, and/or security wall plan, design detail or specifications, as applicable, in a form acceptable to the administrator.

Title 14 BUILDINGS AND CONSTRUCTION*

Ch. 14.01. Qualifications, §§ 14.01.010—14.01.030
Ch. 14.03. Appeals, §§ 14.03.005—14.03.080
Ch. 14.04. Building Codes, §§ 14.04.001—14.04.130
Ch. 14.05. Property Maintenance Code, § 14.05.010
Ch. 14.06. Reserved, §§ 14.06.010—14.06.300
Ch. 14.08. Reserved, §§ 14.08.010—14.08.050
Ch. 14.10. Reserved, §§ 14.10.010, 14.10.020
Ch. 14.12. Reserved, §§ 14.12.010, 14.12.020
Ch. 14.14. Reserved, §§ 14.14.010, 14.14.020
Ch. 14.16. Signs, §§ 14.16.010—14.16.870
Art. I. In General, §§ 14.16.010—14.16.030
Art. II. Permits, §§ 14.16.040—14.16.100
Art. III. Regulations, §§ 14.16.110—14.16.870
Ch. 14.18. Fences, §§ 14.18.005—14.18.090
Art. I. In General, §§ 14.18.005—14.18.040
Art. II. Permit, §§ 14.18.050—14.18.090
Ch. 14.20. Electrical Interference with Radio Reception, §§ 14.20.010—14.20.040
Ch. 14.22. Moving Buildings, §§ 14.22.010—14.22.040
Ch. 14.24. Reserved, §§ 14.24.010, 14.24.020
Ch. 14.26. Permits for Mobile Home Parks and RV Parks, §§ 14.26.010—14.26.060
Ch. 14.28. Numbering of Residences and Places of Business, §§ 14.28.010—14.28.110
Ch. 14.30. Energy and Water Efficiency Program, §§ 14.230.010—14.28.014

***Cross references—**Master cable television ordinance, Ch. 4.22, Art. IX; truck regulations, Ch. 6.14; garbage and rubbish, etc., Ch. 10.08; air pollution, Ch. 10.10; public works and utilities, Tit. 12; fire regulations, Tit. 16.

State law reference—City may regulate all matters concerning construction and safety of buildings, NRS 268.413.

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city given applicable costs, liability exposure, and other applicable benefits and detriments to ownership, rights of access, dissolution, and other applicable matters. City council shall consider the same factors in determining if a restrictive dedication is appropriate. In addition, when determining the appropriateness of a restrictive dedication, city council may revisit the factors used by the administrator in a determination to assume or reject the maintenance of the proposed improvements. If the maintenance district's public benefit does not exceed the private benefit, a restrictive dedication may be determined to not be in the best interests of the public.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.935. Assessment amounts.

(a) Assessment amounts are to be determined by the administrator. Assessment amounts shall include an allocation for the annual cost for maintenance with respect to the maintenance district, administrative overhead, liability exposure, utilities, self insured allocation and/or insurance expense, ownership costs and any other expenses attributable to the maintenance district. Assessment amounts are, and will continue to be, subject to an annual adjustment by the administrator.

(b) Assessment amounts shall be payable on or before the sixtieth day from and after the date it is mailed to the owner of the assessment unit as billings for real property taxes are sent by the Washoe County Tax Assessor's Office.

(c) Assessment amounts for any partial assessment period shall be prorated based upon a 365-day year.

(d) Assessment amounts which are not paid when due shall accrue penalties of 15 percent of the assessment amounts, and the total amount due including penalties shall be compounded semi-annually.

(e) Assessment amounts shall not be effective until the city's acceptance of the improvements for maintenance.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.940. City lien rights.

Once levied, assessment amounts shall constitute liens upon and against the respective assessment units. Each such lien shall be executed, and shall have the same priority, as a lien for real property taxes with respect to each assessment unit.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.945. Improvements.

(a) Improvements shall be installed by petitioner in accordance with the landscape plan in a good and workmanlike, lien free manner within two years after approval of the petition for maintenance district. Improvements must not be constructed or installed prior to petitioning for a maintenance district.

(b) No later than 60 days after the creation of the maintenance district, petitioner shall provide to the city a letter of credit or bond, which ever is acceptable to the city, in such amount and upon such terms as the city deems appropriate in the reasonable exercise of its discretion for the purpose of securing unto the city the installation of the improvements in the manner required by this section. Verification of security shall be provided to the administrator and to the community development department for the city, or successors thereto.

(c) Prior to the city's acceptance of the improvements, petitioner shall record with the Washoe County Recorder and provide to the city an easement for access and maintenance of the improvements across applicable real property in the maintenance district or alternatively, petitioner shall obtain approval of city council for a restrictive dedication.

(d) The city shall undertake or cause to be undertaken the maintenance of the improvements consistent with the levels and standards set forth in the landscape maintenance standards in accordance with the city's policies and procedures applicable to maintenance districts.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.950. Exculpation.

The city shall have no liability whatsoever, and each owner of an assessment unit, for itself and all persons claiming through such owner, shall hold the city harmless from any and all claims, losses, liabilities, injuries and damages arising out of or in connection with the non-negligent performance by the city or its authorized agents or independent contractors of the obligations for maintenance district undertaken by the city pursuant to this ordinance.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.955. Expansion of maintenance district.

Upon the filing of a petition and compliance with this ordinance, and following review and acceptance by the city given the parameters of this ordinance, a maintenance district may be expanded to include future phases of the subdivision. Upon acceptance of improvements for any future phase, the assessment amount for the entire maintenance district will be adjusted.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.960. Recorded notice of maintenance district.

Concurrently with the recording of the final subdivision map for the maintenance district property, petitioner shall cause to be recorded against each assessment unit in the maintenance district property a notice of the inclusion of the maintenance district property in a maintenance district, with a true and either an accurate copy of the administrator's decision or city council's decision creating the maintenance district and this ordinance attached thereto. Such notice shall be in such form and content so as to encumber each assessment unit and run with the title thereto.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.965. Review of continuation of maintenance district; dissolution.

Not more than once every three years and upon notice to the owners of maintenance district property, the city or at least 50 percent of the property owners of maintenance district property may request a public hearing to review and determine whether it is desirable to continue a maintenance district. If city council determines it is not desirable to continue maintenance district, such district may be dissolved in accordance with RMC section 12.28.060. In such event, an association for a common-interest community must be formed within six months by petitioner(s) or the owners that are subject to assessment to maintain landscaping, public lighting, and security wall in lieu of a maintenance district under NRS 278.4787. The associa-

tion shall take ownership of the previously dedicated property, if any, and shall assume responsibility for the maintenance thereof. During this six-month transition period, the owners of maintenance district property shall continue to pay the assessment amount and the city shall continue maintaining the improvements.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.970. Administrative decisions.

All decisions and determinations of the administrator may be done without public hearing and shall be filed with the city clerk. A decision of the administrator shall become final on the date of mailing of such decision to: (1) petitioner(s) at the address designated in the petition, and (2) owner(s) of property subject to assessment, if any, to the property address for the assessment unit on the latest assessor's ownership maps. Notice shall be sufficient when mailed to the last known addresses of such real property owners as indicated by the latest assessor's records. Personal service, on petitioner(s) or owner(s) of property subject to assessment amounts, may substitute for service by mail.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.975. Noncompliance.

(a) A petitioner must comply with all provisions of this chapter and applicable laws and policies and procedures established for maintenance districts. If petitioner fails to comply therewith, petitioner's petition shall be deemed withdrawn. Further, if a petition is deemed incomplete, petitioner shall have 30 days after being provided written notice of the deficiency to correct it. If the petition is not corrected within this time period, it shall be deemed withdrawn. Once a petition is deemed withdrawn, petitioner must again submit a petition and again pay any applicable fees.

(b) Owners of assessment units must pay the assessment amounts levied in accordance with this chapter. If there is nonpayment, the remedy set forth in section 12.28.935 is not exclusive. Any violation of the provisions of this article also shall be subject to the provisions set forth in Chapter 1.05 of the Reno Municipal Code.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.980. Appeal of administrative decisions.

The procedures for appeal of an administrative decision to city council are as follows:

(1) Within ten days after service of the decision of the administrator, petitioner or owner(s) of property subject to assessment or other aggrieved person may appeal the decision to city council. Forms for such appeals shall be provided by the city clerk and the completed form shall be filed with, and the applicable fee paid to, the city clerk. Any person failing to timely file a notice of appeal to the city council shall be deemed to have waived any and all objections to the decision of the administrator.

(2) The written appeal shall contain, as applicable:

a. Identification of the subject property;

b. The name and addresses of all appellants;

c. A statement of each appellant's legal interest in the subject property;

d. A statement in reasonable detail of the specific determination protested and the grounds for the appeal, together with all materials in support thereof;

e. The date and signatures of any appellants; and

f. A verification by the appellant as to the truth of the matters stated in the appeal.

(3) The city clerk shall set a hearing of the appeal before city council within thirty days after the appeal is filed with the city clerk .

(4) The city clerk shall serve notice of the appeal hearing upon the appellant(s), applicant, and owners of property subject to assessment, if any, by mailing a notice as set forth in RMC 12.28.970.

(5) The city council may affirm, reverse or modify the terms of the decision of the administrator and shall conduct the review utilizing the factors set for in RMC 12.28.925 and RMC 12.28.930, as applicable.

(Ord. No. 5351, § 1, 6-11-02)

Sec. 12.28.985. Severability.

Should any section, clause or provision of this ordinance be declared by a court of competent jurisdiction to be unconstitutional or invalid, that decision shall not affect the validity of the ordinance as a whole or any part thereof other than the part declared to be unconstitutional or invalid.

(Ord. No. 5351, § 1, 6-11-02)

CHAPTER 14.04. BUILDING CODES*

Sec. 14.04.001. Purpose.
Sec. 14.04.005. Authority.
Sec. 14.04.007. Interpretation.
Sec. 14.04.010. International Existing Building Code.
Sec. 14.04.020. Reserved.
Sec. 14.04.030. Reserved.
Sec. 14.04.050. International Building Code.
Sec. 14.04.100. International Residential Code.
Sec. 14.04.105. International Mechanical Code.
Sec. 14.04.110. International Fuel Gas Code.
Sec. 14.04.115. Uniform Mechanical Code.
Sec. 14.04.120. Uniform Plumbing Code.
Sec. 14.04.120.005. Waste and garbage disposal.
Sec. 14.04.120.007. Certificates required under the Uniform Plumbing Code.
Sec. 14.04.120.010. Apprentice plumbing certificate.
Sec. 14.04.120.020. Journeyman plumber certificate.
Sec. 14.04.125. National Electric Code.
Sec. 14.04.125.005. Certificates required under the National Electric Code.
Sec. 14.04.125.010. Apprentice electrical certificate.
Sec. 14.04.125.020. Journeyman electrician certificate.
Sec. 14.04.125.015. Maintenance certificate.
Sec. 14.04.130. International Energy Conservation Code.

Sec. 14.04.001. Purpose.

The purpose of this chapter is to adopt uniform building codes or any portions thereof with such changes as may be necessary to make the code applicable to conditions in the city, and with such other changes as may be desirable in accordance with the Reno City Charter, Section 2.110.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6712, 6-4-25)

Sec. 14.04.005. Authority.

This chapter is adopted pursuant to NRS 268.413, 278.580 and the Reno City Charter.

(Ord. No. 6092, § 3, 2-11-09; Ord. No. 6297, § 1, 6-5-13)

Sec. 14.04.007. Interpretation.

Exhibit A of the Ordinance referred to in sections 14.04.050, 14.04.100, 14.04.105,14.04.110, 14.04.115, 14.04.120, and 14.04.125 contains the changes to the most current adopted code

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***Editor's note—**Ord. No. 6712, adopted June 4, 2025, amended the title of Ch. 14.04 to read as herein set out. The former Ch. 14.04 title pertained to Building and Housing Codes.

Charter reference—Authority to adopt uniform codes, § 2.110.

State law references—Authority to adopt uniform codes, NRS 268.012; city building codes, NRS 268.413, 278.580.

Case law reference—Re City Ordinance No. 434, building ordinance, in effect 1939. State ex. rel. *Roman Catholic Bishop of Reno v. Hill,* 59 Nev. 231, 90 P. (2d) 217 (1939).

Edition of the International Building Code, International Residential Code, International Mechanical Code, Fuel Gas Code, Uniform Mechanical Code, Uniform Plumbing Code, and National Electrical Code respectively, and amended by the most current Northern Nevada Amendments published by the Northern Nevada Chapter of the International Code Council.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)

Sec. 14.04.010. International Existing Building Code.

The 2024 Edition of the International Existing Building Code published by the International Code Council along with Exhibit A, 2024 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: November 20, 2025 are hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Code 1966, § 3.04.010; Ord. No. 2714, § 1, 12-11-78; Ord. No. 2812, § 1, 3-10-80; Ord. No. 2830, § 1, 4-28-80; Ord. No. 2831, § 1, 4-28-80; Ord. No. 2832, § 1, 4-28-80; Ord. No. 2856, § 1, 6-23-80; Ord. No. 2960, § 1, 10-26-81; Ord. No. 3072, § 1, 4-11-83; Ord. No. 3393, § 1, 5-12-86; Ord. No. 3812, § 1, 5-22-89; Ord. No. 4234, § 1, 6-9-92; Ord. No. 4328, § 1, 9-14-93; Ord. No. 4370, § 1, 2-22-94; Ord. No. 4452, § 1, 12-13-94; Ord. No. 4527, § 1, 6-27-95; Ord. No. 4626, § 1, 5-14-96; Ord. No. 4955, § 1, 1-26-99; Ord. No. 5659, § 1, 2-23-05; Ord. No. 6092, § 3, 2-11-09; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)

Editor's note—The UBC adopted by § 14.04.010 has been amended by the following legislation: Ord. No. 3595, adopted Oct. 26, 1987; Ord. No. 3662, adopted Apr. 11, 1988; Ord. No. 4238, adopted June 9, 1992; Ord. No. 4328, § 2, adopted Sept. 14, 1993; Ord. No. 4370, § 1, adopted Feb. 22, 1994; Ord. No. 4452, § 2, adopted Dec. 13, 1994; Ord. No. 4527, § 1, adopted June 27, 1995.

Sec. 14.04.020. Reserved.

Editor's note—Ord. No. 6092, § 3, adopted February 11, 2009, repealed § 14.04.020, which pertained to adoption of the International Building Code, International Residential Code and International Existing Building Code. See also the Administrative Code Comparative Table.

Sec. 14.04.030. Reserved.

Editor's note—Ord. No. 6297, § 1, adopted June 5, 2013, repealed § 14.04.030, which pertained to violations. See also the Code Comparative Table.

Sec. 14.04.050. International Building Code.

The 2024 Edition of the International Building Code along with Exhibit A 2024 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: February 20, 2025 is adopted by reference and incorporated herein and made a part hereof as if set forth in full attached hereto.

(Ord. No. 6092, § 3, 2-11-09; Ord. No. 6208, § 2, 9-28-11; Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)

Sec. 14.04.100. International Residential Code.

The 2024 Edition of the International Residential Code, published by the International Code Council along with Exhibit A 2024 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: February 20, 2025 is adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 6092, § 3, 2-11-09; Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)

Sec. 14.04.105. International Mechanical Code.

The 2024 Edition of the International Mechanical Code, published by the International Code Council along with Exhibit A, 2024 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: February 20, 2025 is hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)

Sec. 14.04.110. International Fuel Gas Code.

(a) The 2024 Edition of the International Fuel Gas Code, published by the International Code Council along with Exhibit A the 2024 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: February 20, 2025 is hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)

Sec. 14.04.115. Uniform Mechanical Code.

The 2024 Edition of the Uniform Mechanical Code, published by the International Association of Plumbing and Mechanical Officials, along with Exhibit A, the 2024 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: February 20, 2025 is hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)

Sec. 14.04.120. Uniform Plumbing Code.

(a) The 2024 Edition of the Uniform Plumbing Code, published by the International Association of Plumbing and Mechanical Officials, along with Exhibit the 2024 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: February 20, 2025 is hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(b) Definitions. The following definitions shall apply to sections 14.04.120.007 to 14.04.120.020, inclusive:

(1) "Apprentice plumber" means a person who is subject to a written and signed agreement of indenture as a plumbing apprentice, issued pursuant to a program with an employer or with an association of employers or an organization of employees acting as agent for an employer.

(2) "Apprenticeship program" means a program of training and instruction as an apprentice plumber which is registered and approved by the state apprenticeship council in accordance with NRS chapter 610.

(3) "Journeyman" means a person who has satisfactorily completed an apprenticeship program.

(4) "State of Nevada licensed plumber" means a person who has been qualified by the State of Nevada in accordance with NAC 624.190, and has been granted and maintains an active license as a "classification C-1".

(5) "Plumbing code" means the regulatory standards adopted by the City of Reno as identified in RMC section 14.04.120 the provisions of which provide minimum requirements and standards for the protection of public health, safety, and welfare within this jurisdiction.

(6) "Pre-apprentice" means a person participating in a preparatory program of training and instruction prior to enrollment in an apprenticeship program.

(7) "Residential projects" mean buildings or structures or portions thereof designed primarily for living, sleeping and dwelling purposes, including but not limited to, detached one and two family dwellings, townhouses, apartments, condominiums, and similar uses not exceeding three stories in height and of Type V construction.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6400, § 1, 5-11-16, eff. 12-1-16; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)

Sec. 14.04.120.005. Waste and garbage disposal.

(a) All waste in trailer parks from showers, toilets, laundries, faucets and lavatories shall be wasted into a sewer system extended from and connected to the city sewer system. Present operating courts shall be permitted the use of septic tanks when operating satisfactorily, but shall connect to the city sewers when such sewer lines become available.

(b) Plans for all private sewer systems, septic tanks and disposal fields must be approved by the building official.

(c) Sewer connections in unoccupied parking sites shall be closed.

(d) Garbage disposal shall be provided as set forth in the ordinances of the city governing disposal of garbage in the city generally.

(e) All kitchen sinks, washbasins, bathtubs or showers or toilets in any trailer coach harbored in any park shall empty into a sanitary drain located on the trailer coach space that is connected directly to the main sewer system.

(Ord. No. 4536, § 1, 7-25-95; Ord. No. 6297, § 1, 6-5-13)

Sec. 14.04.120.007. Certificates required under the Uniform Plumbing Code.

(a) No person, company or corporation shall do, cause or permit to be done any installations, alterations or additions of a plumbing system, any of which would require a permit issued by the department, unless such person, company or corporation possesses a valid certificate as required by the provisions of this article.

(b) Exceptions:

(1) Home owners performing work in accordance with NRS 624.031.

(2) Those individuals performing site utility or irrigation work which is outside of the scope-of-work of the permit issued by the department of building and safety.

(c) Violations of this article shall be addressed as indicated in the current adopted edition of the International Building Code for Commercial projects and the current adopted edition of the International Residential Code for residential projects.

(d) All certifications issued under the provisions of this article shall be renewed in accordance with the requirements of the issuing body.

(e) Required certifications shall be made available upon the request of the building official, deputy building official, or other building and safety employees acting on their behalf.

(Ord. No. 6400, § 1, 5-11-16, eff. 12-1-16; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)

Sec. 14.04.120.010. Apprentice plumbing certificate.

(a) No person shall engage in the trade of apprentice plumber who does not hold a valid apprentice plumbing certificate issued by an apprenticeship program.

(b) Exceptions:

(1) Individuals working on residential projects three stories and less of Type V construction and under the direct supervision of a State of Nevada licensed plumber or a certified journeyman, provided:

(i) The working ratio shall be a maximum of one journeyman or State of Nevada licensed plumber to six subordinate employees; and,

(ii) A written agreement shall be provided to the City of Reno Building and Safety Division indicating the names, contact information and copies of certifications of those responsible for providing direct supervision of all subordinate employees. Such agreement shall be kept up to date at all times; and,

(iii) Employees working must obtain a minimum of 16 hours of continuing education credit every calendar year. Such education credit shall be directly related to the most current plumbing code. Adequate records shall be maintained by the employee and shall be made available upon request.

(2) Pre-apprentices enrolled in an apprenticeship program may work with a pre-apprentice certificate while obtaining specific training prior to their full indenture into such apprenticeship program. Such certificates may only be issued by an apprenticeship program.

(c) Unless exempt under subsection (b) above, all apprentice plumbers shall be certified by and actively enrolled in an apprentice program.

(d) An apprentice plumber shall be an employee of a State of Nevada licensed plumber, and shall be under their direct supervision or that of a certified journeyman plumber under like employment.

(Ord. No. 6400, § 1, 5-11-16, eff. 12-1-16; Ord. No. 6712, 6-4-25)

Sec. 14.04.120.020. Journeyman plumber certificate.

(a) No person shall engage in the trade of journeyman plumber who does not hold a valid journeyman plumber certificate issued by the Nevada Board of Plumbing Examiners, or other approved testing agency. All such journeymen shall be employed by and under the supervision of a State of Nevada licensed plumber.

(b) An applicant for a journeyman plumbing certificate shall show proof of experience as required by the issuing agency and pay all required fees.

(c) All testing, issuance of certificates, and renewals shall be processed by the issuing agency.

(d) All reciprocal licenses require verification of experience, and a recognized Nevada journeyman certificate must be obtained within 12 months of employment.

(Ord. No. 6400, § 1, 5-11-16, eff. 12-1-16)

Sec. 14.04.125. National Electric Code.

(a) The 2023 Edition of the National Electrical Code, published by the National Fire Protection Association, Inc., along with Exhibit A, the 2024 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: February 20, 2025 is hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(b) Definitions. The following definitions shall apply to sections 14.04.125.005 to 14.04.125.020, inclusive:

(1) "Apprentice electrician" means a person who is subject to a written and signed agreement of indenture as an electrical apprentice, issued pursuant to a program with an employer or with an association of employers or an organization of employees acting as agent for an employer.

(2) "Apprenticeship program" means a program of training and instruction as an apprentice electrician which is registered and approved by the state apprenticeship council in accordance with NRS chapter 610.

(3) "Journeyman" means a person who has satisfactorily completed an apprenticeship program.

(4) "State of Nevada licensed electrician" means a person who has been qualified by the State of Nevada in accordance with NAC 624.200, and has been granted and maintains an active license as a "classification C-2".

(5) "Electrical code" means the regulatory standards adopted by the City of Reno as identified in RMC section 14.04.125(a) the provisions of which provide practical safeguarding of persons and property from hazards arising from the use of electricity within this jurisdiction.

(6) "Pre-apprentice" means a person participating in a preparatory program of training and instruction prior to enrollment in an apprenticeship program.

(7) "Residential projects" mean buildings or structures or portions thereof designed primarily for living, sleeping and dwelling purposes, including but not limited to, detached one and two family dwellings, townhouses, apartments, condominiums, and similar uses not exceeding three stories in height and of Type V construction.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6400, § 2, 5-11-16, eff. 12-1-16; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)

Sec. 14.04.125.005. Certificates required under the National Electric Code.

(a) No person, company or corporation shall do, cause or permit to be done any installations, alterations or additions of electrical wiring or equipment, any of which would require a permit issued by the department, unless such person, company or corporation possesses a valid certificate as required by the provisions of this article.

(b) Exceptions:

(1) Home owners performing work in accordance with NRS 624.031.

(2) Those individuals performing site utility work which is outside of the scope-of-work of the permit issued by the department of building and safety.

(3) Installations and connections of branch circuits by state licensed, heating or air-conditioning contractors to their respective equipment, provided that such branch circuits do not exceed ten feet in length and comply with all other provisions of this chapter.

(4) Installations of non-power or power-limited wiring within any residential dwelling unit where such installations are independent of other dwelling units and do not exceed 50 volts.

(c) Violations of this article shall be addressed as indicated in Sections 114 and 115 of the most current adopted edition of the International Building Code for Commercial projects and Sections 113 and 114 of the most current adopted edition of the International Residential Code for residential projects.

(d) All certifications issued under the provisions of this article shall be renewed in accordance with the requirements of the issuing body.

(e) Required certifications shall be made available upon the request of the building official, deputy building official, or other building and safety employees acting on their behalf.

(Ord. No. 3539, 8-24-87; Ord. No. 3960, § 1, 6-12-90; Ord. No. 6297, § 1, 6-5-13; Ord. No. 6400, § 2, 5-11-16, eff. 12-1-16; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)

Sec. 14.04.125.010. Apprentice electrical certificate.

(a) No person shall engage in the trade of apprentice electrician who does not hold a valid apprentice electrical certificate issued by an apprenticeship program.

(b) Exceptions:

(1) Individuals working on residential projects three stories and less of Type V construction and under the direct supervision of a State of Nevada licensed electrician or a certified journeyman, provided:

(i) The working ratio shall be a maximum of one journeyman or State of Nevada licensed electrician to six subordinate employees; and,

(ii) A written agreement shall be provided to the City of Reno Building and Safety Division indicating the names, contact information and copies of certifications of those responsible for providing direct supervision of all subordinate employees. Such agreement shall be kept up to date at all times; and,

(iii) Employees working must obtain a minimum of 16 hours of continuing education credit every calendar year. Such education credit shall be directly related to the most current electrical code. Adequate records shall be maintained by the employee and shall be made available upon request.

(2) Pre-apprentices enrolled in an apprenticeship program may work with a pre-apprentice certificate while obtaining specific training prior to their full indenture into such apprenticeship program. Such certificates may only be issued by an apprenticeship program.

(c) Unless exempt under subsection (b) above, all apprentice electricians shall be certified by and actively enrolled in an electrical apprentice program.

(d) An apprentice electrician shall be an employee of a State of Nevada licensed electrician, and shall be under their direct supervision, or that of a certified journeyman under like employment.

(Ord. No. 3539, 8-24-87; Ord. No. 6297, § 1, 6-5-13; Ord. No. 6400, § 2, 5-11-16, eff. 12-1-16; Ord. No. 6712, 6-4-25)

Sec. 14.04.125.015. Maintenance certificate.

(a) No person shall engage in the trade of maintenance electrician who does not hold a valid maintenance certificate issued by the department. All such maintenance electricians shall be under the supervision of an employer possessing a maintenance certificate as an employer. Both such certificates shall be issued by the department upon application for registration and payment of the prescribed fees.

(b) A maintenance electrician shall not be permitted to install new wiring or equipment, except where the installation is repairs, replacement or maintenance of existing equipment; or replacement of equipment equal to or like in kind.

(Ord. No. 3539, 8-24-87; Ord. No. 6297, § 1, 6-5-13)

Sec. 14.04.125.020. Journeyman electrician certificate.

(a) No person shall engage in the trade of journeyman who does not hold a valid journeyman electrician certificate issued by the International Code Council, or other approved testing agency. All such journeymen shall be employed by and under the supervision of a State of Nevada licensed electrician.

(b) An applicant for an electrical journeyman certificate shall show proof of experience as required on the City of Reno application form and pay all required fees.

(c) All testing, issuance of certificates, and renewals shall be processed by the issuing agency.

(d) All reciprocal licenses require verification of experience, and a recognized Nevada journeyman certificate must be obtained within 12 months of employment.

(Ord. No. 6400, § 2, 5-11-16, eff. 12-1-16)

Sec. 14.04.130. International Energy Conservation Code.

The 2024 edition of the International Energy Conservation Code, published by the International Code Council along with Exhibit A, 2024 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: February 20, 2025 is hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 6092, § 3, 2-11-09; Ord. No. 6241, § 1, 7-11-12; Ord. No. 6297, § 1, 6-5-13; Ord. No. 6391, § 1, 2-10-16; Ord. No. 6491, § 1, 11-28-18; Ord. No. 6712, 6-4-25)
Note—Formerly § 14.04.110.

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CHAPTER 14.04. BUILDING AND HOUSING CODES*

Sec. 14.04.001. Purpose.
Sec. 14.04.005. Authority.
Sec. 14.04.007. Interpretation.
Sec. 14.04.010. International Existing Building Code.
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Sec. 14.04.050. International Building Code.
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Sec. 14.04.105. International Mechanical Code.
Sec. 14.04.110. International Fuel Gas Code.
Sec. 14.04.115. Uniform Mechanical Code.
Sec. 14.04.120. Uniform Plumbing Code.
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Sec. 14.04.120.007. Certificates required under the Uniform Plumbing Code.
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Sec. 14.04.125. National Electric Code.
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Sec. 14.04.125.010. Apprentice electrical certificate.
Sec. 14.04.125.020. Journeyman electrician certificate.
Sec. 14.04.125.015. Maintenance certificate.
Sec. 14.04.130. International Energy Conservation Code.

Sec. 14.04.001. Purpose.

The purpose of this chapter is to adopt the uniform building codes or any portions thereof with such changes as may be necessary to make the code applicable to conditions in the city, and with such other changes as may be desirable in accordance with the Reno City Charter, Section 2.110.

(Ord. No. 6297, § 1, 6-5-13)

Sec. 14.04.005. Authority.

This chapter is adopted pursuant to NRS 268.413, 278.580 and the Reno City Charter.

(Ord. No. 6092, § 3, 2-11-09; Ord. No. 6297, § 1, 6-5-13)

Sec. 14.04.007. Interpretation.

(a) Exhibit A to Ordinance referred to sections 14.04.050, 14.04.100, 14.04.105,14.04.110, 14.04.115, 14.04.120, and 14.04.125 contains the changes to the most current adopted code Edition of the International Building Code, International Residential Code, International

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***Charter reference—**Authority to adopt uniform codes, § 2.110.

State law references—Authority to adopt uniform codes, NRS 268,012; city building codes, NRS 268.413, 278.580.

Case law reference—Re City Ordinance No. 434, building ordinance, in effect 1939. State ex. rel. *Roman Catholic Bishop of Reno v. Hill,* 59 Nev. 231, 90 P. (2d) 217 (1939).

Mechanical Code, Fuel Gas Code, Uniform Mechanical Code, Uniform Plumbing Code, and National Electrical Code respectively, and amended by the most current Northern Nevada Amendments published by the Northern Nevada Chapter of the International Code Council.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18)

Sec. 14.04.010. International Existing Building Code.

The 2018 Edition of the International Existing Building Code published by the International Code Council along with Exhibit A, 2018 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: October 18, 2018 are hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Code 1966, § 3.04.010; Ord. No. 2714, § 1, 12-11-78; Ord. No. 2812, § 1, 3-10-80; Ord. No. 2830, § 1, 4-28-80; Ord. No. 2831, § 1, 4-28-80; Ord. No. 2832, § 1, 4-28-80; Ord. No. 2856, § 1, 6-23-80; Ord. No. 2960, § 1, 10-26-81; Ord. No. 3072, § 1, 4-11-83; Ord. No. 3393, § 1, 5-12-86; Ord. No. 3812, § 1, 5-22-89; Ord. No. 4234, § 1, 6-9-92; Ord. No. 4328, § 1, 9-14-93; Ord. No. 4370, § 1, 2-22-94; Ord. No. 4452, § 1, 12-13-94; Ord. No. 4527, § 1, 6-27-95; Ord. No. 4626, § 1, 5-14-96; Ord. No. 4955, § 1, 1-26-99; Ord. No. 5659, § 1, 2-23-05; Ord. No. 6092, § 3, 2-11-09; Ord. No. 6491, § 1, 11-28-18)

Editor's note—The UBC adopted by § 14.04.010 has been amended by the following legislation: Ord. No. 3595, adopted Oct. 26, 1987; Ord. No. 3662, adopted Apr. 11, 1988; Ord. No. 4238, adopted June 9, 1992; Ord. No. 4328, § 2, adopted Sept. 14, 1993; Ord. No. 4370, § 1, adopted Feb. 22, 1994; Ord. No. 4452, § 2, adopted Dec. 13, 1994; Ord. No. 4527, § 1, adopted June 27, 1995.

Sec. 14.04.020. Reserved.

Editor's note—Ord. No. 6092, § 3, adopted February 11, 2009, repealed § 14.04.020, which pertained to adoption of the International Building Code, International Residential Code and International Existing Building Code. See also the Administrative Code Comparative Table.

Sec. 14.04.030. Reserved.

Editor's note—Ord. No. 6297, § 1, adopted June 5, 2013, repealed § 14.04.030, which pertained to violations. See also the Code Comparative Table.

Sec. 14.04.050. International Building Code.

The 2018 Edition of the International Building Code along with Exhibit A 2018 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: October 18, 2018 is adopted by reference and incorporated herein and made a part hereof as if set forth in full attached hereto.

(Ord. No. 6092, § 3, 2-11-09; Ord. No. 6208, § 2, 9-28-11; Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18)

Sec. 14.04.100. International Residential Code.

The [2018] Edition of the International Residential Code, published by the International Code Council along with Exhibit A 2018 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: October 18, 2018 is adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 6092, § 3, 2-11-09; Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18)

Sec. 14.04.105. International Mechanical Code.

The 2018 Edition of the International Mechanical Code, published by the International Code Council along with Exhibit A 2018 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: October 18, 2018 is hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18)

Sec. 14.04.110. International Fuel Gas Code.

(a) The 2018 Edition of the International Fuel Gas Code, published by the International Code Council along with Exhibit A the 2018 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: October 18, 2018 is hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18)

Sec. 14.04.115. Uniform Mechanical Code.

(a) The 2018 Edition of the Uniform Mechanical Code, published by the International Association of Plumbing and Mechanical Officials, along with Exhibit A, the 2018 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: October 18, 2018 is hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6491, § 1, 11-28-18)

Sec. 14.04.120. Uniform Plumbing Code.

(a) The 2018 Edition of the Uniform Plumbing Code, published by the International Association of Plumbing and Mechanical Officials, along with Exhibit the 2018 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: October 18, 2018 is hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(b) Definitions. The following definitions shall apply to sections 14.04.120.007 to 14.04.120.020, inclusive:

(1) ″Apprentice plumber″ means a person who is subject to a written and signed agreement of indenture as a plumbing apprentice, issued pursuant to a program with an employer or with an association of employers or an organization of employees acting as agent for an employer.

(2) ″Apprenticeship program″ means a program of training and instruction as an apprentice plumber which is registered and approved by the state apprenticeship council in accordance with NRS chapter 610.

(3) ″Journeyman″ means a person who has satisfactorily completed an apprenticeship program.

(4) ″State of Nevada licensed plumber″ means a person who has been qualified by the State of Nevada in accordance with NAC 624.190, and has been granted and maintains an active license as a ″classification C-1″.

(5) ″Plumbing code″ means the regulatory standards adopted by the City of Reno as identified in RMC section 14.04.120 the provisions of which provide minimum requirements and standards for the protection of public health, safety, and welfare within this jurisdiction.

(6) ″Pre-apprentice″ means a person participating in a preparatory program of training and instruction prior to enrollment in an apprenticeship program.

(7) ″Residential projects″ mean buildings or structures or portions thereof designed primarily for living, sleeping and dwelling purposes, including but not limited to, detached one and two family dwellings, townhouses, apartments, condominiums, and similar uses not exceeding three stories in height and of Type V construction.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6400, § 1, 5-11-16, eff. 12-1-16; Ord. No. 6491, § 1, 11-28-18)

Sec. 14.04.120.005. Waste and garbage disposal.

(a) All waste in trailer parks from showers, toilets, laundries, faucets and lavatories shall be wasted into a sewer system extended from and connected to the city sewer system. Present operating courts shall be permitted the use of septic tanks when operating satisfactorily, but shall connect to the city sewers when such sewer lines become available.

(b) Plans for all private sewer systems, septic tanks and disposal fields must be approved by the building official.

(c) Sewer connections in unoccupied parking sites shall be closed.

(d) Garbage disposal shall be provided as set forth in the ordinances of the city governing disposal of garbage in the city generally.

(e) All kitchen sinks, washbasins, bathtubs or showers or toilets in any trailer coach harbored in any park shall empty into a sanitary drain located on the trailer coach space that is connected directly to the main sewer system.

(Ord. No. 4536, § 1, 7-25-95; Ord. No. 6297, § 1, 6-5-13)

Sec. 14.04.120.007. Certificates required under the Uniform Plumbing Code.

(a) No person, company or corporation shall do, cause or permit to be done any installations, alterations or additions of a plumbing system, any of which would require a permit issued by the department, unless such person, company or corporation possesses a valid certificate as required by the provisions of this article.

(b) Exceptions:

(1) Home owners performing work in accordance with NRS 624.031.

(2) Those individuals performing site utility or irrigation work which is outside of the scope-of-work of the permit issued by the department of building and safety.

(c) Violations of this article shall be addressed as indicated in the current adopted edition of the International Building Code for Commercial projects and the current adopted edition of the International Residential Code for residential projects.

(d) All certifications issued under the provisions of this article shall be renewed in accordance with the requirements of the issuing body.

(e) Required certifications shall be made available upon the request of the building official, deputy building official, or other building and safety employees acting on his/her behalf.

(Ord. No. 6400, § 1, 5-11-16, eff. 12-1-16; Ord. No. 6491, § 1, 11-28-18)

Sec. 14.04.120.010. Apprentice plumbing certificate.

(a) No person shall engage in the trade of apprentice plumber who does not hold a valid apprentice plumbing certificate issued by an apprenticeship program.

(b) Exceptions:

(1) Individuals working on residential projects three stories and less of Type V construction and under the direct supervision of a State of Nevada licensed plumber or a certified journeyman, provided:

(i) The working ratio shall be a maximum of one journeyman or State of Nevada licensed plumber to six subordinate employees; and,

(ii) A written agreement shall be provided to the City of Reno Building and Safety Division indicating the names, contact information and copies of certifications of those responsible for providing direct supervision of all subordinate employees. Such agreement shall be kept up to date at all times; and,

(iii) Employees working must obtain a minimum of 16 hours of continuing education credit every calendar year. Such education credit shall be directly related to the most current plumbing code. Adequate records shall be maintained by the employee and shall be made available upon request.

(2) Pre-apprentices enrolled in an apprenticeship program may work with a pre-apprentice certificate while obtaining specific training prior to their full indenture into such apprenticeship program. Such certificates may only be issued by an apprenticeship program.

(c) Unless exempt under subsection (b) above, all apprentice plumbers shall be certified by and actively enrolled in an apprentice program.

(d) An apprentice plumber shall be an employee of a State of Nevada licensed plumber, and shall be under his/her direct supervision or that of a certified journeyman plumber under like employment.

(Ord. No. 6400, § 1, 5-11-16, eff. 12-1-16)

Sec. 14.04.120.020. Journeyman plumber certificate.

(a) No person shall engage in the trade of journeyman plumber who does not hold a valid journeyman plumber certificate issued by the Nevada Board of Plumbing Examiners, or other approved testing agency. All such journeymen shall be employed by and under the supervision of a State of Nevada licensed plumber.

(b) An applicant for a journeyman plumbing certificate shall show proof of experience as required by the issuing agency and pay all required fees.

(c) All testing, issuance of certificates, and renewals shall be processed by the issuing agency.

(d) All reciprocal licenses require verification of experience, and a recognized Nevada journeyman certificate must be obtained within 12 months of employment.

(Ord. No. 6400, § 1, 5-11-16, eff. 12-1-16)

Sec. 14.04.125. National Electric Code.

(a) The 2017 Edition of the National Electrical Code, published by the National Fire Protection Association, Inc., along with Exhibit A, the 2018 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council: October 18, 2018 is hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(b) Definitions. The following definitions shall apply to sections 14.04.125.005 to 14.04.125.020, inclusive:

(1) ″Apprentice electrician″ means a person who is subject to a written and signed agreement of indenture as an electrical apprentice, issued pursuant to a program with an employer or with an association of employers or an organization of employees acting as agent for an employer.

(2) ″Apprenticeship program″ means a program of training and instruction as an apprentice electrician which is registered and approved by the state apprenticeship council in accordance with NRS chapter 610.

(3) ″Journeyman″ means a person who has satisfactorily completed an apprenticeship program.

(4) ″State of Nevada licensed electrician″ means a person who has been qualified by the State of Nevada in accordance with NAC 624.200, and has been granted and maintains an active license as a ″classification C-2″.

(5) ″Electrical code″ means the regulatory standards adopted by the City of Reno as identified in RMC section 14.04.125(a) the provisions of which provide practical safeguarding of persons and property from hazards arising from the use of electricity within this jurisdiction.

(6) ″Pre-apprentice″ means a person participating in a preparatory program of training and instruction prior to enrollment in an apprenticeship program.

(7) ″Residential projects″ mean buildings or structures or portions thereof designed primarily for living, sleeping and dwelling purposes, including but not limited to, detached one and two family dwellings, townhouses, apartments, condominiums, and similar uses not exceeding three stories in height and of Type V construction.

(Ord. No. 6297, § 1, 6-5-13; Ord. No. 6400, § 2, 5-11-16, eff. 12-1-16; Ord. No. 6491, § 1, 11-28-18)

Sec. 14.04.125.005. Certificates required under the National Electric Code.

(a) No person, company or corporation shall do, cause or permit to be done any installations, alterations or additions of electrical wiring or equipment, any of which would require a permit issued by the department, unless such person, company or corporation possesses a valid certificate as required by the provisions of this article.

(b) Exceptions:

(1) Home owners performing work in accordance with NRS 624.031.

(2) Those individuals performing site utility work which is outside of the scope-of-work of the permit issued by the department of building and safety.

(3) Installations and connections of branch circuits by state licensed, heating or air-conditioning contractors to their respective equipment, provided that such branch circuits do not exceed ten feet in length and comply with all other provisions of this chapter.

(4) Installations of non-power or power-limited wiring within any residential dwelling unit where such installations are independent of other dwelling units and do not exceed 50 volts.

(c) Violations of this article shall be addressed as indicated in Sections 114 and 115 of the 2012 International Building Code for Commercial projects and Sections 113 and 114 of the most current adopted edition of the International Residential Code for residential projects.

(d) All certifications issued under the provisions of this article shall be renewed in accordance with the requirements of the issuing body.

(e) Required certifications shall be made available upon the request of the building official, deputy building official, or other building and safety employees acting on his/her behalf.

(Ord. No. 3539, 8-24-87; Ord. No. 3960, § 1, 6-12-90; Ord. No. 6297, § 1, 6-5-13; Ord. No. 6400, § 2, 5-11-16, eff. 12-1-16; Ord. No. 6491, § 1, 11-28-18)

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(a) No person shall engage in the trade of apprentice electrician who does not hold a valid apprentice electrical certificate issued by an apprenticeship program.

(b) Exceptions:

(1) Individuals working on residential projects three stories and less of Type V construction and under the direct supervision of a State of Nevada licensed electrician or a certified journeyman, provided:

(i) The working ratio shall be a maximum of one journeyman or State of Nevada licensed electrician to six subordinate employees; and,

(ii) A written agreement shall be provided to the City of Reno Building and Safety Division indicating the names, contact information and copies of certifications of those responsible for providing direct supervision of all subordinate employees. Such agreement shall be kept up to date at all times; and,

(iii) Employees working must obtain a minimum of 16 hours of continuing education credit every calendar year. Such education credit shall be directly related to the most current electrical code. Adequate records shall be maintained by the employee and shall be made available upon request.

(2) Pre-apprentices enrolled in an apprenticeship program may work with a pre-apprentice certificate while obtaining specific training prior to their full indenture into such apprenticeship program. Such certificates may only be issued by an apprenticeship program.

(c) Unless exempt under subsection (b) above, all apprentice electricians shall be certified by and actively enrolled in an electrical apprentice program.

(d) An apprentice electrician shall be an employee of a State of Nevada licensed electrician, and shall be under his/her direct supervision, or that of a certified journeyman under like employment.

(Ord. No. 3539, 8-24-87; Ord. No. 6297, § 1, 6-5-13; Ord. No. 6400, § 2, 5-11-16, eff. 12-1-16)

Sec. 14.04.125.015. Maintenance certificate.

(a) No person shall engage in the trade of maintenance electrician who does not hold a valid maintenance certificate issued by the department. All such maintenance electricians shall be under the supervision of an employer possessing a maintenance certificate as an employer. Both such certificates shall be issued by the department upon application for registration and payment of the prescribed fees.

(b) A maintenance electrician shall not be permitted to install new wiring or equipment, except where the installation is repairs, replacement or maintenance of existing equipment; or replacement of equipment equal to or like in kind.

(Ord. No. 3539, 8-24-87; Ord. No. 6297, § 1, 6-5-13)

Sec. 14.04.125.020. Journeyman electrician certificate.

(a) No person shall engage in the trade of journeyman who does not hold a valid journeyman electrician certificate issued by the International Code Council, or other approved testing agency. All such journeymen shall be employed by and under the supervision of a State of Nevada licensed electrician.

(b) An applicant for an electrical journeyman certificate shall show proof of experience as required on the City of Reno application form and pay all required fees.

(c) All testing, issuance of certificates, and renewals shall be processed by the issuing agency.

(d) All reciprocal licenses require verification of experience, and a recognized Nevada journeyman certificate must be obtained within 12 months of employment.

(Ord. No. 6400, § 2, 5-11-16, eff. 12-1-16)

Sec. 14.04.130. International Energy Conservation Code.

The 2018 edition of the International Energy Conservation Code, with the 2018 Northern Nevada Amendments, published by the Northern Nevada Chapter of the International Code Council October 18, 2018, as are necessary to make the same applicable to the conditions in the city which are marked ″Exhibit A;″ all of which is adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 6092, § 3, 2-11-09; Ord. No. 6241, § 1, 7-11-12; Ord. No. 6297, § 1, 6-5-13; Ord. No. 6391, § 1, 2-10-16; Ord. No. 6491, § 1, 11-28-18)
Note—Formerly § 14.04.110.

CHAPTER 14.05. PROPERTY MAINTENANCE CODE*

Sec. 14.05.010. Adoption of the 2012 Edition of the International Property Maintenance Code.

Sec. 14.05.010. Adoption of the 2012 Edition of the International Property Maintenance.

The 2012 Edition of the International Property Maintenance Code Copyright 2012 by the International Code Council together with such changes to the International Property Maintenance Code as are necessary to make the same applicable to the conditions in the city which are marked "Exhibit A" and "Exhibit B"; all exhibits are on deposit in the city clerk's office, and are hereby adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 5688, § 1, 4-27-05; Ord. No. 6063, § 1, 10-22-08; Ord. No. 6251, § 1, 10-10-12; Ord. No. 6338, § 1, 7-16-14, eff. 7-18-14)

Editor's note—It should be noted that § 2 of Ord. No. 6338, provides, "The Reno City Council hereby finds that this ordinance is not subject to the requirements of Chapter 237 of NRS, Business Impact Statement process." See also the Code Comparative Table.

***Editor's note—**Ord. No. 5688, § 1, adopted April 27, 2005, amended Ch. 14.05, in its entirety, to read as herein set out. Prior to inclusion of said ordinance, Ch. 14.05 pertained to the administrative code. See also the Code Comparative Table.

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CHAPTER 14.06. RESERVED*

*Editor's note—Ord. No. 6092, § 4, adopted February 11, 2009, amended Ch. 14.06 by repealing and renumbering various articles and sections therein. See also the Administrative Code Comparative Table for a detailed analysis of inclusion. Subsequently, Ord. No. 6297, § 2, adopted June 5, 2013, repealed Ch. 14.06, in its entirety. See also the Code Comparative Table.

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Sec. 14.06.200. Generally.

(a) No person, company or corporation shall do, cause or permit to be done any installations, alterations or additions of electrical wiring or equipment, any of which would require a permit issued by the department, unless such person, company or corporation possess a valid city certificate as required by the provisions of this article.

(b) Violations of this article shall constitute cause for the issuance of a stop work order, and those in violation are subject to penalties as provided for in section 14.06.020 of this chapter.

(c) All certifications issued under the provisions of this article shall be for the calendar year of issue. A thirty-day grace period shall be permitted for renewal, and certificates not so renewed shall become void.

(d) The provisions of this article shall not apply to:

(1) Installations and connections of branch circuits by state licensed sign, heating or air-conditioning contractors to their respective equipment, provided that such branch circuits do not exceed ten feet in length and comply with all other provisions of this chapter.

(2) Installations of nonpower or power-limited wiring within any residential dwelling unit where such installations are independent of other dwelling units.

(Ord. No. 3539, 8-24-87; Ord. No. 3960, § 1, 6-12-90)

Sec. 14.06.210. Electrical contractor certificate.

(a) Any person, company or corporation engaged in the business or acting in the capacity of an electrical contractor shall hold a valid: (1) electrical contractor's certificate; (2) state electrical contractor license; and (3) city business license. No such contractor shall employ a journeyman or apprentice electrician unless such employee possess a valid certificate as required by this article.

(b) An electrical contractor certificate and a copy of this chapter will be issued to a contractor upon application and payment of the prescribed fees. The application shall be accompanied by a copy of the contractor's state license and city business license. An electrical contractor certificate shall be automatically revoked or suspended to correspond with any revocation, suspension or expiration of the contractor's state license.

(Ord. No. 3539, 8-24-87)

Sec. 14.06.220. Journeyman electrician certificate.

(a) No person shall engage in the trade of journeyman electrician who does not hold a valid journeyman electrician certificate issued by the department. All such journeymen shall be in the employ and under the supervision of a certified electrical contractor.

(b) An applicant for an electrical journeyman certificate shall show proof of four years electrical trade experience, pass a written examination, and pay the prescribed fees. A passing examination score is 75 percent of a possible 100 percent. A minimum period of five working days shall elapse before retaking any failed examination; if the second examination is failed, the department may refuse a third examination application for a period of 30 calendar days.

(Ord. No. 3539, 8-24-87)

Sec. 14.06.230. Apprentice electrical certificate.

(a) No person shall engage in the trade of apprentice electrician who does not hold a valid apprentice electrical certificate issued by the department.

(b) An applicant for an apprentice electrical certificate shall show proof of participation in a state approved electrical apprentice program governed by the provisions of N.R.S. chapter 610 and pay the prescribed fee.

(c) An apprentice electrician shall be an employee of a certified electrical contractor, and shall be under the direct supervision of such employer or a certified journeyman electrician under like employment.

(Ord. No. 3539, 8-24-87)

Sec. 14.06.240. Specialty certificate.

(a) Any person, company or corporation engaged in the business of installing nonpower or power-limited wiring under the scope of any state C2 sub-classification contractor's license governed by N.R.S. chapter 624 shall possess a valid specialty certificate issued by the department.

(b) A specialty certificate and a copy of this chapter will be issued to a specialty contractor upon application and payment of the prescribed fees. The application shall be accompanied by a copy of the contractor's state contractor license and city business license.

(Ord. No. 3539, 8-24-87)

Sec. 14.06.250. Maintenance certificate.

(a) No person shall engage in the trade of maintenance electrician who does not hold a valid maintenance certificate issued by the department. All such maintenance electricians shall be under the supervision of an employer possessing a maintenance certificate as an employer. Both such certificates shall be issued by the department upon application for registration and payment of the prescribed fees.

(b) A maintenance electrician shall not be permitted to install new wiring or equipment, except where the installation is repairs, replacement or maintenance of existing equipment; or replacement of equipment equal to or like in kind.

(Ord. No. 3539, 8-24-87)

Sec. 14.06.260. Reserved.

Editor's note—Ord. No. 6092, § 4, adopted February 11, 2009, repealed § 14.06.260, which pertained to fees. See also the Administrative Code Comparative Table.

Sec. 14.06.300. Reserved.

Editor's note—Ord. No. 6092, § 4, adopted February 11, 2009, repealed § 14.06.300, which pertained to additions, amendments and deletions to the NEC. See also the Administrative Code Comparative Table.

Sec. 14.06.300. Additions, amendments and deletions to the NEC.

[The additions, amendments, and deletions to the National Electrical Code enacted by Ordinance No. 3539, adopted August 24, 1987, and as may be amended, are incorporated herein by reference by section 14.06.010 of this chapter; the same are on file and available for inspection at the office of the city clerk.]

(Ord. No. 3539, 8-24-87)

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CHAPTER 14.08. RESERVED*

*Editor's note—Ord. No. 6297, § 3, adopted June 5, 2013, repealed Ch. 14.08, in its entirety, which pertained to plumbing code. See also the Code Comparative Table.

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CHAPTER 14.10. RESERVED*

*Editor's note—Ord. No. 6297, § 4, adopted June 5, 2013, repealed Ch. 14.10, in its entirety, which pertained to the mechanical code. See also the Code Comparative Table.

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CHAPTER 14.12. RESERVED*

*__Editor's note—__Ord. No. 6092, § 7, adopted February 11, 2009, repealed Ch. 14.12, §§ 14.12.010, 14.12.020, which pertained to the swimming pool code. See also the Administrative Code Comparative Table.

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CHAPTER 14.14. RESERVED*

*__Editor's note—__Ord. No. 6092, § 8, adopted February 11, 2009, repealed Ch. 14.14, §§ 14.14.010, 14.14.020, which pertained to the solar energy code. See also the Code Comparative Table.

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CHAPTER 14.16. SIGNS*

Chapter 14.16. Signs

Article I. In General

Sec. 14.16.010. Purpose and scope.
Sec. 14.16.020. Authority.
Sec. 14.16.030. Definitions.

Article II. Permits

Sec. 14.16.040. Required.
Sec. 14.16.050. Application.
Sec. 14.16.060. Issuance.
Sec. 14.16.070. [Reserved.]
Sec. 14.16.080. Exemptions.
Sec. 14.16.090. Fees.
Sec. 14.16.100. [Reserved.]

Article III. Regulations

Sec. 14.16.110. [Reserved.]
Sec. 14.16.120. Inspections.
Sec. 14.16.130. Unsafe signs.
Sec. 14.14.140. [Reserved.]
Sec. 14.16.150. Design.
Secs. 14.16.160—14.16.180. [Reserved.]
Sec. 14.16.190. Temporary signs that are not exempt under section 14.16.080.
Sec. 14.16.200. Ground signs.
Sec. 14.16.210. Wall signs.
Secs. 14.16.220—14.16.270. [Reserved.]
Sec. 14.16.850. Time limitations regarding review of applications for signs.
Sec. 14.16.860. Appeal of Building Official's decision.
Sec. 14.16.865. Judicial review.
Sec. 14.16.870. Decisions.

***Editor's note—**Ord. No. 3362, 1, adopted Feb. 10, 1986, amended Ch. 14.16 in its entirety to read as herein set out, with minor, nonsubstantive additions and deletions made by the editor for purposes of clarity. Former Ch. 14.16, §§ 14.16.010—14.16.350, pertaining to signs, derived from Code 1966, §§ 13.12.010—13.12.320. Subsequently, Ord. No. 6208, adopted September 28, 2011, amended Ch. 14.16 to read as herein set out, including amending the title to read "signs." See also the Administrative Code Comparative Table.

Cross references—Master cable television ordinance, Ch. 4.22, Art. IX; truck regulations, Ch. 6.14; garbage and rubbish, etc., Ch. 10.08; air pollution, Ch. 10.10; public works and utilities, Tit. 12; fire regulations, Tit. 16.

State law reference—City may regulate all matters concerning construction and safety of buildings, NRS 268.413.

ARTICLE I. IN GENERAL

Sec. 14.16.010. Purpose and scope.

The purpose of this chapter is to provide minimum standards to safeguard life, health, property and public welfare by regulating and controlling the design, quality of materials, construction, clearance, electrification and maintenance of the physical characteristics of signs and sign structures.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.020. Authority.

This chapter is adopted pursuant to NRS 268.012, 278.570 and 278.580. For additional regulations, see RMC Chapter 14 generally and the codes adopted thereunder.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 3546, § 1, 8-24-87; Ord. No. 5081, § 1, 11-9-99; Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.030. Definitions.

Abandoned sign means a sign which has not been maintained in accordance with the provisions of this Code for a period in excess of 90 days following notice from the building official to the owner of property and the owner of the advertising display that said sign does not meet minimum maintenance standards.

Building official is the officer or other designated authority charged with the administration and enforcement of the RMC and adopted codes therein or his duly authorized representative pursuant to NRS 268.012 and 278.570.

Temporary sign means a sign which is not permanently mounted and is designed and constructed in such a manner that it can be conveniently moved from place to place and is allowed by Chapter 18.16 to remain in use for a limited time only.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 5196, § 1, 10-10-00; Ord. No. 6208, § 3, 9-28-11)

ARTICLE II. PERMITS

Sec. 14.16.040. Required.

(a) A sign shall not be erected, re-erected, constructed, or altered except as provided by this Code and after a permit for the same has been issued by the building official. A separate permit shall be required for a sign or signs for each business entity, and a separate permit shall be required for each group of signs on a single supporting structure. In addition, electrical permits shall be obtained for electric signs.

(b) Evidence that every firm, person, partnership or corporation erecting, hanging, servicing or removing signs shall hold a valid state contractor's license and shall provide evidence of financial responsibility by bond or proof of insurance, with liability coverage of not less than $50,000.00 to be submitted with a business license renewal form.

(c) This section shall not apply to those signs exempt by section 14.16.080

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.050. Application.

(a) Application for a sign permit shall be made in writing upon forms furnished by the building official. Such application shall contain the location by street and number of the proposed sign structure, as well as the name and address of the owner and the sign contractor or erector. The building official may require the filing of plans or other pertinent information where in his opinion such information is necessary to ensure compliance with this Code.

(b) Permits for commercial work shall be issued only to persons in conformance with state contractor's laws.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.060. Issuance.

It shall be the duty of the building official, upon filing of an application and payment of fees for a sign permit, to investigate same, and if it shall appear that the proposed sign is in compliance with all the requirements of this chapter, and the provisions of any other lawful ordinance, he shall then issue the sign permit.

(Ord. No. 3362, § 1, 2-10-86)

Sec. 14.16.070. [Reserved.]

Editor's note—Ord. No. 6208, § 3, adopted September 28, 2011, repealed § 14.16.070, which pertained to expiration. See also the Administrative Code Comparative Table.

Sec. 14.16.080. Exemptions.

The following signs shall not require a sign permit. These exemptions shall not be construed as relieving the owner of the sign from the responsibility of its erection and maintenance, and its compliance with the provisions of this Code or any other law or ordinance regulating the same.

(1) The changing of the advertising copy on a painted or printed sign only, except for theater marquees and similar signs specifically designed for the use of replaceable copy. Signs painted on buildings, fences or walls shall not be exempted from obtaining a sign permit.

(2) Painting, repainting or cleaning of existing copy of an advertising structure or the changing of the advertising copy thereon shall not be considered an erection or alteration which requires a sign permit unless a structural change is made.

(3) Permanent signs of six square feet or less which are non-illuminated.

(4) Temporary signs of 32 square feet or less which are non-illuminated.

(5) Any sign less than four square feet.

(6) Signs erected by transportation authorities.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 3809, § 1, 5-8-89; Ord. No. 5196, § 1, 10-10-00; Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.090. Fees.

(a) See resolution adopting an annual fee schedule, available in city clerk's office.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.100. [Reserved.]

Editor's note—Ord. No. 6208, § 3, adopted September 28, 2011, repealed § 14.16.100, which pertained to revocation. See also the Administrative Code Comparative Table.

ARTICLE III. REGULATIONS

Sec. 14.16.110. [Reserved.]

Editor's note—Ord. No. 6208, § 3, adopted September 28, 2011, repealed § 14.16.110, which pertained to maintenance. See also the Administrative Code Comparative Table.

Sec. 14.16.120. Inspections.

(a) The building official shall inspect or cause to have inspected:

(1) All signs for which a permit is required shall be subject to inspection by the building official.

(2) Footing inspections shall be required by the building official for all signs having footings.

(3) All signs containing electrical wiring shall be subject to the provisions of the governing electrical code, and the electrical components used shall bear the label of an approved testing agency.

(4) The building official may order the removal of any sign that is not maintained in accordance with provisions of section 14.16.110

(5) All signs may be reinspected at the discretion of the building official.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.130. Unsafe signs.

(a) The owner of any sign as defined and regulated by this Code or any other lawful ordinance, including support structures, shall keep the same in a safe condition at all times. If the building official finds that any sign regulated herein is unsafe, insecure or is a menace to the public, he shall give written notice on a form approved by the city attorney to the property owner, agent or person having the beneficial use of the sign.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 6208, § 3, 9-28-11)

Sec. 14.14.140. [Reserved.]

Editor's note—Ord. No. 6208, § 3, adopted September 28, 2011, repealed § 14.16.140, which pertained to removal of certain advertising. See also the Administrative Code Comparative Table.

Sec. 14.16.150. Design.

(a) LIABILITY FOR DAMAGES.

The provisions of this Code shall not be construed as relieving or limiting in any way the responsibility or liability of any person erecting or owning any sign for personal injury or property damage resulting from the placing of such sign, or resulting from the negligence or willful acts of such persons, its agents, its employees or workmen, in the construction, maintenance, repair or removal of any sign erected in accordance with a permit herein

issued. Nor shall it be construed as imposing upon the city or its officials or employees any responsibility or liability by reason of the approval of any signs, materials, or devices under the provisions of this chapter.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 6208, § 3, 9-28-11)

Secs. 14.16.160—14.16.180. [Reserved.]

Editor's note—Ord. No. 6208, § 3, adopted September 28, 2011, repealed §§ 14.16.160—14.16.180, which pertained to construction; projection and clearance; and pole signs. See also the Administrative Code Comparative Table.

Sec. 14.16.190. Temporary signs that are not exempt under section 14.16.080.

Temporary signs that are not exempt under section 14.16.080 shall comply with the following:

(a) Where non rigid fabric-like signs are allowed to extend over a public street, such signs shall maintain a minimum clearance of 20 feet.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 5196, § 1, 10-10-00; Ord. No. 5890, § 1, 11-15-06; Ord. No. 5928, § 2, 5-23-07; Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.200. Ground signs.

(a) PROJECTION.

Ground signs shall not project into or over public property except as otherwise allowed by RMC Chapter 18.16.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.210. Wall signs.

(a) PROJECTION AND CLEARANCE.

(1) Projection.

No wall sign shall have a projection over public property.

(Ord. No. 3362, § 1, 2-10-86; Ord. No. 6208, § 3, 9-28-11)

Secs. 14.16.220—14.16.270. [Reserved.]

Editor's note—Ord. No. 6208, § 3, adopted September 28, 2011, repealed §§ 14.16.220—14.16.270, which pertained to projecting signs; marquees; electric signs; illumination of signs; awning and canopy signs and street clocks and barber poles. See also the Administrative Code Comparative Table.

Sec. 14.16.850. Time limitations regarding review of applications for signs.

The following are time limitations on the pertinent decision-maker to review applications for signs as applicable:

(a) The building official shall review and make a decision regarding an application for a sign within five working days of the date that all required recommendations to him have been entered.

(b) The building official shall review and make a decision regarding an application for a temporary or special event sign within two working days of the date that all recommendations have been entered.

(c) If the board of appeals reviews the application, the board of appeals hears an appeal of the building official's decision, it shall promptly hold a hearing but no later than 14 days of the date the appeal is filed-stamped with the community development department.

(d) The board of appeals shall make its decision within ten days from the date of the opening of the hearing.

(e) The city council shall make its decision within 30 days of the date the appeal is filed-stamped with the city clerk on the appropriate form and payment of the appropriate fee.

(f) If the applicant requests a continuance or a specified time or date for the matter to be heard, the time limitations provided herein are deemed waived.

(Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.860. Appeal of building official's decision.

(a) Aggrieved persons may appeal the building official's decision to the board of appeals or city council by filing a written appeal setting forth how they are aggrieved and the reasons for the appeal within five days of the building official's written decision.

(1) If the appeal concerns the physical characteristics or soundness of the sign, the board of appeals shall hear the appeal.

(2) If the appeal concerns the recommendation from the planning manager, the city council shall hear the appeal.

(3) The city clerk shall set the appeal on the next available calendar at 15 days in the future from the date of the appeal.

(Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.865. Judicial review.

(a) Judicial review may be sought in accordance with NRS Chapter 34.

(b) If the city denies a "First Amendment" application, the city will institute legal proceedings within ten working days of its final action to determine in an adversarial proceeding the constitutionality of the denial on prior restrain grounds, unless otherwise waived by the applicant. For purposes of this subsection, a "First Amendment" application is one in which the applicant has inserted the words, "First Amendment" in the caption of the application.

(Ord. No. 6208, § 3, 9-28-11)

Sec. 14.16.870. Decisions.

(a) Decisions shall be in writing.

(b) Decisions shall include an explanation setting forth the reasons for the decisions.

(Ord. No. 6208, § 3, 9-28-11)

CHAPTER 14.18. FENCES

Article I. In General

Sec. 14.18.005. Violations.
Sec. 14.18.010. Reserved.
Sec. 14.18.020. Razor ribbon or razor tape fencing.
Sec. 14.18.030. Specifications to be followed; notification of completion.
Sec. 14.18.040. Inspection.

Article II. Permit

Sec. 14.18.050. Required.
Sec. 14.18.060. Application.
Sec. 14.18.070. Fee.
Sec. 14.18.080. Issuance.
Sec. 14.18.090. Variance.

ARTICLE I. IN GENERAL

Sec. 14.18.005. Violations.

Any person violating any of the provisions of this chapter:

(1) Upon conviction, shall be guilty of a misdemeanor and punished as provided in Section 1.04.010; or

(2) Shall be subject to provisions of Chapter 1.05 of the Code.

(Ord. No. 3133, § 1, 10-10-83; Ord. No. 5082, § 1, 11-9-99)

Editor's note—For purposes of classification, the editor has renumbered as § 14.18.005 the provisions originally numbered as § 14.18.100 by Ord. No. 3133, adopted Oct. 10, 1983.

Sec. 14.18.010. Reserved.

Editor's note—Ord. No. 5645, § 1, adopted Feb. 9, 2005, repealed § 14.18.010, which pertained to walls or fences. See also the Code Comparative Table.

Sec. 14.18.020. Razor ribbon or razor tape fencing.

Use of razor ribbon or razor tape fencing is prohibited, except in conjunction with a jail or other public detention or correctional facility.

(Code 1966, § 11.52.010; Ord. No. 3133, § 1 10-10-83)

Sec. 14.18.030. Specifications to be followed; notification of completion.

It shall be unlawful for any person holding a permit issued under the provisions of this chapter to construct a proposed fence in any manner other than that specified in such permit, or to fail to notify the building and safety inspector of the completion of work under the permit within a period of 15 days after the completion of the work authorized in the permit.

(Code 1966, § 11.52.050; Ord. No. 3133, § 1, 10-10-83)

Sec. 14.18.040. Inspection.

The building and safety inspector upon notification from the fence permit holder of the completion of the authorized work shall inspect the same and shall either approve the construction as completed or shall notify the permit holder wherein the same fails to comply with the permit as used.

(Code 1966, § 11.52.060; Ord. No. 3133, § 1, 10-10-83)

ARTICLE II. PERMIT

Sec. 14.18.050. Required.

It shall be unlawful for any person to erect, construct, alter or extend any fence within the city or to cause the same to be done without first obtaining a permit therefor from the building and safety inspector.

(Code 1966, § 11.52.010; Ord. No. 3133, § 1, 10-10-83)

Sec. 14.18.060. Application.

Every application for a fence permit shall describe the land upon which the proposed work is to be done and the nature of the proposed work in such detail as the building and safety inspector may require.

(Code 1966, § 11.52.020; Ord. No. 3133, § 1, 10-10-83)

Sec. 14.18.070. Fee.

Any person desiring a permit to construct a fence shall, at the time of filing such application, pay to the city a fee based on the schedule fee as set forth in Table 3A of the Uniform Building Code.

(Code 1966, § 11.52.030; Ord. No. 3133, § 1, 10-10-83)

Sec. 14.18.080. Issuance.

When the building and safety inspector shall be satisfied that the proposed fence will be of sound and safe construction and that the same will be constructed in conformity with the provisions of this Code and all ordinances of the city, he shall issue a permit for the construction thereof.

(Code 1966, § 11.52.040; Ord. No. 3133, § 1, 10-10-83)

Sec. 14.18.090. Variance.

Any person desiring to construct a fence or a wall who is denied such a permit may seek a variance pursuant to section 18.06.1112 of the Title 18, Zoning.

(Ord. No. 3133, § 1, 10-10-83; Ord. No. 5545, § 3, 3-10-04)

CHAPTER 14.20. ELECTRICAL INTERFERENCE WITH RADIO RECEPTION*

Sec. 14.20.010. Prohibition.
Sec. 14.20.020. Exceptions.
Sec. 14.20.030. Radio inspector.
Sec. 14.20.040. Duty to eliminate interference.

Sec. 14.20.010. Prohibition.

It is unlawful for any person to knowingly maintain, operate or cause to be operated any machine, device, apparatus or instrument of any kind whatsoever, or any electrical lines or plants of any description, within the city limits, the operation of which will cause reasonably preventable electrical interference with radio reception within the municipal limits; provided, however, that all such electrical lines or plants or machines, devices, apparatus or instruments may be used if the same are properly equipped to avoid all unnecessary or reasonably preventable interference with radio receptions, and are not negligently operated.

(Code 1966, § 13.28.010)

Sec. 14.20.020. Exceptions.

The provisions of this chapter shall not be held or construed to embrace or cover the regulation of any transmitting, broadcasting or receiving instrument, apparatus or device used or useful in interstate commerce, or the operation of which instrument, apparatus or device is licensed or authorized by or under the provisions of any act of the Congress of the United States.

(Code 1966, § 13.28.020)

Sec. 14.20.030. Radio inspector.

The communications superintendent shall act as radio inspector and shall have power at all times to conduct investigations, in the city, to ascertain whether or not any machine, device, apparatus or instrument of any kind is causing interference with radio reception and shall be empowered with police authority to make such search and investigation as is necessary to carry out the intent of this chapter.

(Code 1966, § 13.28.030)

Sec. 14.20.040. Duty to eliminate interference.

It shall be the duty of any person owning or controlling or operating any machine, device, apparatus or instrument of any kind, within the city limits, which is interfering with radio reception, to equip the same with a filter or condenser or other instrument or contrivance which will eliminate such interference with radio reception, upon being notified to do so by the radio inspector.

(Code 1966, § 13.28.040)

***Cross reference—**Electrical code, Ch. 14.06.

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CHAPTER 14.22. MOVING BUILDINGS

Sec. 14.22.010. Consent necessary to move.
Sec. 14.22.020. Application for moving building or structure.
Sec. 14.22.030. Bonds required.
Sec. 14.22.040. Permit issuance; designation of route.

Sec. 14.22.010. Consent necessary to move.

It shall be unlawful for any person to move any building or the public streets or alleys of the city without having first structure of any kind or description in or upon or through obtained the consent of the city council as provided in this chapter.

(Code 1966, § 13.32.010)

Sec. 14.22.020. Application for moving building or structure.

(a) Any person desiring or intending to move a building or structure of any kind or description into or upon or through the public streets or alleys of the city, which building or structure is to be relocated within the city limits, shall first make application for moving any building or structure with the building division. It shall be indicated on the building or structure moving application the assessor's parcel number and street address of the property onto which the building is to be relocated. The property ownership of the parcel where the building is to be relocated must be verified by a copy of the deed of ownership, submitted by the applicant to the building division at the time the application is made. The applicant will be required to furnish proof of payment of all fees required by other public agencies, such as Reno Police Department, Traffic and Transportation Department, and any other city agencies which will have to provide special services, in order for the building or structure to be moved. The applicant shall comply with the requirement listed with the house moving application. The building division shall collect processing and inspection fees as determined by the building official from the applicant at the time building or structure moving application is submitted.

(b) Any person desiring or intending to move any building or structure of any kind or description in or through the public streets or alleys of the city, which building or structure is not relocated within the city limits, shall post the necessary bonds as set forth in section 14.22.030 and obtain a permit and comply with the requirements of section 14.22.040.

(c) Initial installations of factory-built housing, as defined by Nevada Revised Statutes, Chapter 461, are exempt.

(Code 1966, § 13.32.020; Ord. No. 2813, § 1, 3-10-80; Ord. No. 2963, § 1, 12-14-81; Ord. No. 5269, § 1, 9-25-01)

Sec. 14.22.030. Bonds required.

(a) It shall be required that the mover obtain a moving bond. Such bond shall be a surety bond written by a company qualified to do business in the state, the bond being approved by the city attorney and conditioned that said person shall pay for all damages that may accrue to the streets of the city or to any property of the city or to the property of any person in the moving of the building or structure, and that said person will pay all damages and costs and expense necessary for the removal of, or the changing of any telephone, telegraph, electric

light, or any other wires used for public convenience in the city, and all damages for the removal of any poles from the streets or sidewalks or alleys in the city. The bond shall be set in the sum of $5,000.00 and may be sued upon and collected upon by any person in any manner damaged by the moving of any building or structure through the streets of the city until the full amount of the bond has been exhausted. The aforementioned bond shall also be required of any person applying for a permit to move a building or structure pursuant to the provisions of section 14.22.020(b).

(b) A clean-up bond shall be posted by the owner of the original building site and by the mover of a building structure. Said bond shall be a surety bond, complying with surety bond requirements of section 14.22.030(a) in an amount as determined by the director of building and safety to assure that the original building site, within the city, is left in a safe, level, clean, and sanitary condition, ensuring that all foundations, debris, construction materials, furnishings, trash, garbage, etc., are removed completely at the time the building or structure is removed. Also, sewer lateral shall be plugged with a concrete plug, the utilities are to be shut off, and the utility companies notified to remove their services.

(c) A completion bond shall be posted by the owner of a building or structure which is to be moved to a new location within the city. Said bond shall be a surety bond, complying with surety bond requirements of section 14.22.030(a), for a minimum of $5,000.00 or as determined by the director of building and safety to assure completion of alterations with six months from date of moving permit issuance.

(Code 1966, § 13.32.030; Ord. No. 2963, § 2, 12-14-81; Ord. No. 3098, § 1, 6-27-83)

Sec. 14.22.040. Permit issuance; designation of route.

(a) A permit applied for pursuant to section 14.22.020(a) for relocation of a building or structure within the city limits of Reno shall be issued by the building division only after the posting of all bonds with the city clerk as prescribed by section 14.22.030 for moving the building, and written evidence of the arrangements made with all city agencies as to removal.

(b) A permit applied for pursuant to section 14.22.020(b) for relocation of a building or structure outside the city limits shall be issued by the building division only after all bonds have been posted with the city clerk as prescribed by section 14.22.030 for moving the building.

(c) A permit applied for pursuant to sections 14.22.020(a) and (b) shall be issued by the building division only after the applicant has provided sufficient evidence that all real estate taxes and special assessments against the building, and lot from which the building or structure is removed from, are paid in full. Verification of said requirements shall be checked and approved by the property management division of the city.

(d) Upon receiving a permit to move a building through the streets of the city, the person receiving such permit shall serve a copy of same upon the superintendent or local manager of any company or person owning or controlling telegraph, telephone, electric light or other utilities running through or across the streets and alleys of the city where it will be necessary to raise, remove, cut or interfere with the wire in the moving of the structure, together with a notice as to the time when it will be necessary to interfere with the wires, or with the poles holding the wires, and the company owning or controlling the wires may then raise or cut or remove the wires to permit the moving of the building or structure, and the expense therefore shall be paid by the person moving the building or structure and if not so

paid action may be taken upon the bonds hereinbefore mentioned. In the event the route designated by the city engineer follows or crosses federal-aid highways or highways controlled by the state, the state highway engineer shall be served by the person receiving such permit with a copy of said permit. Further, if the route designated by the city engineer crosses the right-of-way of any railroad, the local agent of said railroad shall be served with a copy of said permit. No building or structure in process of removal shall be allowed to stop on any street within the city during the daytime without the permission of the city engineer given in writing.

(Code 1966, § 13.32.040; Ord. No. 2963, § 3, 12-14-81; Ord. No. 5269, § 2, 9-25-01)

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CHAPTER 14.24. RESERVED*

*__Editor's note—__Ord. No. 6252, § 1, adopted October 10, 2012, repealed Ch. 14.24, in its entirety, which pertained to Uniform Code for the Abatement of Dangerous Buildings. See also the Code Comparative Table.

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CHAPTER 14.26. PERMITS FOR MOBILE HOME PARKS AND RV PARKS

Sec. 14.26.010. Permit required.
Sec. 14.26.020. Application.
Sec. 14.26.030. Other permits and licenses.
Sec. 14.26.040. Inspections.
Sec. 14.26.050. Posting.
Sec. 14.26.060. Revocation.

Sec. 14.26.010. Permit required.

All mobile home parks and recreational vehicle parks shall obtain a permit issued by the city council.

(Ord. No. 5647, § 1, 2-9-05)

Sec. 14.26.020. Application.

Applications for mobile home park and recreational vehicle park permits shall be submitted to the building department on forms supplied by that department and shall contain such information as may be required by that department. All such applications shall be accompanied by a plan check fee, as approved by city council by resolution.

(Ord. No. 5647, § 1, 2-9-05)

Sec. 14.26.030. Other permits and licenses.

All mobile home parks and recreational vehicle parks shall obtain those permits and licenses required by other city ordinances or state statutes.

(Ord. No. 5647, § 1, 2-9-05)

Sec. 14.26.040. Inspections.

Prior to placement of an individual mobile home in mobile home subdivisions, application for inspection shall be made to the building department. All such applications shall be accompanied by a fee as approved by city council by resolution.

(Ord. No. 5647, § 1, 2-9-05)

Sec. 14.26.050. Posting.

Permits shall be posted in a prominent place on the applicable premises.

(Ord. No. 5647, § 1, 2-9-05)

Sec. 14.26.060. Revocation.

Permits may be revoked by the city council following reasonable notice and a hearing, for failure to comply with requirements of this chapter.

(Ord. No. 5647, § 1, 2-9-05)

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CHAPTER 14.28. NUMBERING OF RESIDENCES AND PLACES OF BUSINESS

Sec. 14.28.010. Duty of owner or agent.
Sec. 14.28.020. Unlawful use of numbers; size of figures.
Sec. 14.28.030. Use of odd and even numbers.
Sec. 14.28.040. Allotment of numbers.
Sec. 14.28.050. Truckee River and Virginia Street the dividing lines.
Sec. 14.28.060. Numbering on streets north of Truckee River.
Sec. 14.28.070. Numbering on streets running south of Truckee River.
Sec. 14.28.080. Numbering streets running east and west.
Sec. 14.28.090. Duty of building and safety inspector.
Sec. 14.28.100. Retention of old numbers; limitation.
Sec. 14.28.110. Additional numbering on curbs permissible.

Sec. 14.28.010. Duty of owner or agent.

Every person owning any building, or the agent thereof, must prior to the issuance of a certificate of occupancy for such building, place, or cause to be placed, on or over the door or gate used as an entrance to such building, or adjacent to such door or gate so as to be readily seen from the street, the appropriate number of such building as herein specified in this chapter.

(Ord. No. 5647, § 2, 2-9-05)

Sec. 14.28.020. Unlawful use of numbers; size of figures.

All entrances from streets to buildings, or to special apartments in buildings, shall be numbered, and it shall be unlawful for any person, whether owner or occupant of the building or any apartment therein, to place, maintain or allow to remain thereon, any number other than the one required by this chapter. The number placed upon any entrance shall be of a different color from the background upon which it is placed, and each figure of such number shall be at least three inches in height and of proportionate width. All numbers must be made of substantial and permanent material, and must be so placed or fixed as not to be easily effaced or removed.

(Ord. No. 5647, § 2, 2-9-05)

Sec. 14.28.030. Use of odd and even numbers.

On streets running east and west all buildings facing south thereon shall be numbered with odd numbers, and all buildings facing north thereon shall be numbered with even numbers. On streets running north and south all buildings facing east thereon shall be numbered with odd numbers, and all buildings facing west thereon shall be numbered with even numbers, as in this chapter hereinafter provided.

(Ord. No. 5647, § 2, 2-9-05)

Sec. 14.28.040. Allotment of numbers.

One hundred numbers, or as many thereof as may be necessary, shall be allotted to the property frontage in each block between two main streets, upon the basis of one number for every 12½ feet, except as hereinafter provided in this chapter.

(Ord. No. 5647, § 2, 2-9-05)

Sec. 14.28.050. Truckee River and Virginia Street the dividing lines.

The Truckee River shall be the dividing line for all streets running north and south, and Virginia Street shall be the dividing line for all streets running east and west.

(Ord. No. 5647, § 2, 2-9-05)

Sec. 14.28.060. Numbering on streets north of Truckee River.

On all streets running north and south, north of the Truckee River, commencing with First Street, the numbers shall begin on the southeast or the southwest corner of the block, as the case may be, with the 100 or 101 at the point nearest the river, and the number 200 or 201 in the next block, and so on north consecutively, allowing 100 numbers for each block upon the basis as hereinbefore specified, provided, that all numbers shall, as near as practicable, correspond in each block between the same streets, except that the blocks between West Sixth Street and Maple Street shall, for the purpose of this chapter, be considered as one block between such streets, and buildings facing on streets running north and south between such streets shall be numbered accordingly on the basis hereinbefore specified. Between First Street and the Truckee River there shall be allotted the numbers one to 99 inclusive, or as many thereof as may be necessary to the entire property frontage, irrespective of blocks, allowing one number for every 20 feet or fraction thereof, except on Virginia Street, where the basis shall be as otherwise herein specified; provided, however, that the numbers in all blocks between two streets shall, as near as practicable, correspond as hereinbefore specified.

(Ord. No. 5647, § 2, 2-9-05)

Sec. 14.28.070. Numbering on streets running south of Truckee River.

On all streets running north and south, south of the Truckee River, commencing with Island Avenue and Mill Street, the numbers shall begin on the northeast, or the northwest corner of the block, as the case may be, with the number 100 or 101 at the point nearest the river, and the number 200 or 201 in the next block and so on south consecutively, allowing 100 numbers for each block upon the basis as hereinbefore specified; except that the blocks between Mill Street and Pine Street shall, for the purpose of this chapter, be considered as one block between such streets, and buildings facing on streets running north and south between such streets shall be numbered accordingly upon the basis of 12½ feet as aforesaid; provided, that between the river and Mill Street there shall be allotted the numbers one to 99 inclusive, or as many thereof as may be necessary to the entire property frontage, irrespective of blocks, allowing one number for every 25 feet or fraction thereof.

(Ord. No. 5647, § 2, 2-9-05)

Sec. 14.28.080. Numbering streets running east and west.

On all streets running east and west, the numbers shall begin at Virginia Street, the first block being numbered from one to 99 inclusive, the next block 100 to 199 inclusive, and so on east or west from Virginia Street as the case may be.

(Ord. No. 5647, § 2, 2-9-05)

Sec. 14.28.090. Duty of building and safety inspector.

It shall be the duty of the building and safety inspector, whenever he has knowledge of any violation of this chapter, to give notice in writing thereof to the owner, or, if he cannot be found, to the agent or occupant of the premise where the violation occurs; and if, after 15 days, the cause of complaint is not removed, to have the penalty enforced as in this Code provided.

(Ord. No. 5647, § 2, 2-9-05)

Sec. 14.28.100. Retention of old numbers; limitation.

Whenever any property owner or agent of any property has been notified to change the numbers of his building, the old numbers may be temporarily retained, in addition to the new numbers; provided, however, that in no case shall such old numbers be retained for a period longer than 60 days after the official notice to change the same.

(Ord. No. 5647, § 2, 2-9-05)

Sec. 14.28.110. Additional numbering on curbs permissible.

(a) A person owning any building, or the agent thereof, being otherwise in compliance with the requirements of this chapter, may, pursuant to this section, paint or cause to be painted upon the outer (street) side of the city curb to the front of his building and within his extended property lines the number of such building, but no other number or letter. All building numbers placed on curbs shall be of good quality black enamel paint, and shall be neatly centered and placed upon a 16-inch background of good quality white outdoor reflective paint. The curb numbers themselves shall be four inches high, and shall be formed by use of standard stencil series "C." Whenever possible, when the property is serviced by one or more driveways, the curb numbers shall be placed not less than one foot and not more than three feet from the driveway edge nearest the main front entrance to the building. Curb numbers permitted by this section shall not be painted on any curb when such painting or numbering would conflict with any required "red," "yellow," "green," "white," or "orange" or other restricted curb zone set forth in Chapter 6.06, Article X or Chapter 6.30. Use of the curb numbering authorized by this section is not required and shall not, under any circumstances, take the place of the other numbering requirements of this chapter.

(b) Every person desirous of painting house numbers on curbs as a business venture or in conjunction with any business venture shall have or obtain a city business license and shall, before painting any house number on any curb in the city, file with the chief license inspector a bond in the sum of $1,000.00, executed by the applicant and a surety company and approved by the city attorney and conditioned for the faithful observance of the provisions of this section and which shall indemnify and save harmless the city from any

and all damages, judgments, costs or expense which the city may incur or suffer by reason of this granting of its permission for such a person to carry on the business of painting house numbers on city curbs.

(c) It is unlawful for any person, firm, partnership, corporation or other association to paint or cause to be painted any house number on a curb without first having obtained the permission of the owner or occupant of the property adjacent to the curb.

(Ord. No. 5647, § 2, 2-9-05)

CHAPTER 14.30. ENERGY AND WATER EFFICIENCY PROGRAM

Sec. 14.30.001. Findings.
Sec. 14.30.002. Purpose and intent.
Sec. 14.30.003. Scope.
Sec. 14.30.004. Definitions.
Sec. 14.30.005. Exemptions.
Sec. 14.30.006. Benchmarking reporting.
Sec. 14.30.007. Benchmarking schedule.
Sec. 14.30.008. Self reporting.
Sec. 14.30.009. Data availability.
Sec. 14.30.010. Building performance goals.
Sec. 14.30.011. Performance targets.
Sec. 14.30.012. Performance pathway.
Sec. 14.30.013. Maintenance of records.
Sec. 14.30.014. Compliance.

Sec. 14.30.001. Findings.

(a) On September 9, 2015, The City of Reno committed to take action to reduce greenhouse gas emissions 28 percent by 2025 and 40 percent by 2030 to combat climate change and move to a low emission, resilient society through its commitment to the Global Covenant of Mayors on Energy and Climate. Furthermore, the City of Reno committed to report emissions reductions regularly to track progress toward its emissions reduction targets.

(b) The City of Reno 2014 community-wide greenhouse gas emissions inventory reports that buildings are the single largest users of energy and generate 66 percent of greenhouse gas emissions.

(c) Collecting, reporting, and sharing building energy data on a regular basis allows municipal officials and building owners to understand the energy performance of buildings relative to similar buildings nationwide, and equipped with this information are able to make smarter, more cost-effective operational and capital investment decisions, reward efficiency, and drive widespread, continuous improvement.

(d) The City of Reno, city council, approved the use of building energy benchmarking - a process of measuring building energy use, tracking use over time, and comparing performance to similar buildings - to promote public health, safety, and welfare by making available good, actionable information on building energy use to help identify opportunities to reduce energy use, generate cost savings, and reduce climate pollution.

(e) The City of Reno will use the data collected to inform development of programs to expand or enhance workforce development, incentives, education and training, and technical resources that remove barriers to the energy efficiency market, create jobs, conserve energy and water, and lower building operational costs.

(f) The City of Reno, city council, will establish a procedure and guideline to conduct such building energy benchmarking.

(Ord No. 6493, § 1, 1-9-19)

Sec. 14.30.002. Purpose and intent.

This chapter establishes the energy and water efficiency program that requires covered properties to benchmark energy and water performance, and make such performance information available to raise awareness and drive action. Further, it requires buildings that do not meet specific standards to perform an action or actions to increase performance. The benchmarking requirement supports the City of Reno's goal to reduce greenhouse gas emissions in buildings 28 percent by 2025. Annual benchmarking, reporting and disclosure of building performance are foundational elements of removing market barriers for energy efficiency. This will allow the city to track energy and water use and progress toward reduction goals to inform development of new programs and resources needed to support each market sector.

(Ord No. 6493, § 1, 1-9-19)

Sec. 14.30.003. Scope.

This chapter shall apply to existing residential and non-residential properties, including:

(1) Covered city properties that:

- **a.** Are owned, leased, and occupied by the City of Reno such that the city regularly pays all or part of the annual energy and/or water bills; and
- **b.** Have a total gross floor area that equals or exceeds 10,000 square feet; and
- **c.** All fire stations.

(2) Covered local agency properties that:

- **a.** Are owned by a local agency of the state, or political subdivision of the state, or other public entity and are not covered city properties; and
- **b.** Have a total gross floor area that equals or exceeds 30,000 square feet; and
- **c.** Where the local agency of the state occupies and regularly pays all or part of the annual energy and/or water bills of the property.

(3) Covered public or private properties, other than covered city and covered local agency properties that have a total gross floor area that equals or exceeds 30,000 square feet.

(4) Covered properties does not include:

- **a.** Single family, duplex, triplex and fourplex residential homes and related accessory structures;
- **b.** Properties owned or operated by a local agency of the state and subject to NRS 701.218;
- **c.** Buildings used by any occupant, tenant or owner in any manner classified as industrial per designated Standard Industrial Classification (SIC) codes 20 through 39;
- **d.** Buildings used by any occupant, tenant or owner in any manner classified as agricultural, per designated Standard Industrial Classification (SIC) codes 01 through 09;

e. Other building types not meeting the purpose of this chapter, as determined by the manager.

(Ord No. 6493, § 1, 1-9-19)

Sec. 14.30.004. Definitions.

Aggregated, whole-building data means energy or water data that has been summed for an entire property, which may include a single occupant or a group of separately metered tenants.

Anonymized data means data that does not reveal names, addresses or any other information that would identify an individual or business.

Audit means a systematic evaluation process to identify modifications and improvements of the base building systems, including but not limited to alterations of such systems and the installation of new equipment, insulation or other generally recognized energy and water efficiency technologies to optimize energy and water use performance of the building and achieve energy and water savings, that is performed in accordance with industry standard practices.

Audit report means the final document produced by the qualified auditor including but not limited to:

(1) The summary audit report;

(2) Functional performance testing reports;

(3) An assessment of how the major energy and water consuming equipment and systems used within tenant spaces impact the energy and water consumption of the base building systems based on a representative sample of spaces as determined by the manager; and

(4) Narratives, photographs and any additional explanatory information as required to describe the results of the audit.

Base building systems means the systems or subsystems of a building that use or distribute energy and/or water and/or impact energy and/or water consumption, including:

(1) The building envelope;

(2) The heating, ventilating, and air conditioning (HVAC) systems;

(3) Conveying systems;

(4) Electrical and lighting systems;

(5) On-site generation systems;

(6) Domestic hot water systems;

(7) Water distribution systems;

(8) Plumbing fixtures and other water-using equipment; and

(9) Landscape irrigation systems and water features, including fountains.

The term does not include:

(1) Systems or subsystems owned by tenants, condominium unit owners or cooperative unit shareholders, or a system or subsystems for which such entities bear full

maintenance responsibility, that are within such entities′ leased or owned space, and for which such entity pays all the energy bills according to usage and demand as measured by a meter or sub-meter;

(2) Systems or subsystems that operate industrial applications or processes.

Baseline year means, for any individual property, the latter of a) the first calendar year such property is required to benchmark or b) the calendar year containing the date five years prior to due date of the property′s next performance verification.

Benchmarking means to input and submit the total energy and water consumed for a property for the previous calendar year and other descriptive information for such property as required by the benchmarking tool. Total energy and water consumption shall not include separately metered uses that are not integral to building operations, as determined by the manager.

Benchmarking submission means a subset of:

(1) Information input into the benchmarking tool; and

(2) Benchmarking information generated by the benchmarking tool, as determined by the manager.

Benchmarking tool means ENERGY STAR portfolio manager.

Code compliance officer means a designated professional with code enforcement duties.

Condominium means a property that combines separate ownership of individual units with common ownership of other elements such as common areas.

Covered property means the buildings described in sections 14.30.003 (a), (b), and (c).

Department means the sustainability and climate division of the city manager′s office.

Energy means electricity, natural gas, steam, or other product sold by a utility to a customer of a property, or renewable on-site electricity generation, for purposes of providing heating, cooling, lighting, water heating, or for powering or fueling other end-uses as recorded in the benchmarking tool.

ENERGY STAR portfolio manager means the tool developed and maintained by the U.S. Environmental Protection Agency to track and assess the relative energy performance of buildings.

ENERGY STAR score means the 1-100 numeric rating generated by the ENERGY STAR portfolio manager tool as a measurement of a building′s energy efficiency.

Gross floor area means the total property area, measured between the outside surface of the exterior walls of the building(s). This includes all areas inside the building(s) including but not limited to lobbies, tenant areas, common areas, meeting rooms, break rooms, atriums (count the base level only), restrooms, elevator shafts, stairwells, mechanical equipment areas, basements, and storage rooms

Manager means the city manager or his/her designee.

Owner means any of the following:

(1) An individual or entity possessing title to a property;

(2) The tenant in the case of a property subject to a triple net lease with a single tenant:

(3) The board of the owners′ association, in the case of a condominium;

(4) The master association, in the case of a condominium where the powers of an owners′ association are exercised by or delegated to a master association;

(5) The board of directors, in the case of a cooperative apartment corporation; or

(6) An agent authorized to act on behalf of any of the above.

Qualified auditor means an individual who is not on the staff of the property being audited and possesses such qualifications as determined by the manager to perform or directly supervise individuals performing energy and water audits, and to certify audit reports required by this chapter. The qualified auditor can be an employee or contractor hired by the reporting entity, an employee of a utility, or a third-party service provider who has two or more years of auditing experience and possesses one or more of the following certifications:

(1) An accredited certification that has been designated a ″Better Buildings Recognized Program″ by the U.S. Department of energy meeting the criteria set forth in the Better Buildings Workforce Guidelines (BBWG) for building energy auditors or energy managers; or

(2) A professional engineer (PE) registered in the State of Nevada; or

(3) Certified energy auditor (CEA) or certified energy manager (CEM), issued by the Association of Energy Engineers (AEE); or

(4) Certified facilities manager (CFM), issued by the International Facility Management Association (IFMA); or

(5) System maintenance administrator (SMA) or system maintenance technician (SMT), issued by Building Owners and Managers Institute (BOMI) International; or

(6) High performance building design professional (HBPD) or building energy assessment professional (BEAP), issued by the American Society of Heating, Refrigerating, and Air-Conditioning Engineers (ASHRAE); or

(7) For audits of multifamily residential buildings only, a multifamily building analyst (MFBA), issued by the Building Performance Institute (BPI); or

(8) Additional qualified certifications as the manager deems appropriate.

Qualified retuning professional means an individual who is not on the staff of the property being retuned and possesses such qualifications as determined by the manager to perform or directly supervise individuals performing the retuning work required by this chapter. The qualified retuning professional can be an employee or contractor hired by the reporting entity, an employee of a utility, or a third-party service provider who has two or more years of commissioning or retuning experience and possesses one or more of the following certifications:

(1) An accredited certification that has been designated a ″Better Buildings Recognized Program″ by the department of energy meeting the criteria set forth in the Better Buildings Workforce Guidelines (BBWG) for building commissioning professionals;

(2) A professional engineer (PE) registered in the State of Nevada;

(3) Certified commissioning professional (CCP), issued by the Building Commissioning Association (BCA);

(4) Certified commissioning authority (CxA) or certified commissioning technician (CxT), issued by the AABC Commissioning Group (ACG);

(5) Certified building commissioning professional (CBCP) or existing building commissioning professional (EBCP), issued by the Association of Energy Engineers (AEE);

(6) Certified professional certified by the National Environmental Balancing Bureau (NEBB);

(7) Commissioning process management professional (CPMP), issued by American Society of Heating, Refrigerating, and Air-Conditioning Engineers (ASHRAE);

(8) Accredited commissioning process authority professional (ACPAP) approved by the University of Wisconsin; or

(9) Additional qualified certifications as the manager deems appropriate.

Qualified service company has the meaning ascribed in NRS 333A.060.

Retuning means a systematic process for optimizing building performance through the assessment, identification and correction of deficiencies in existing base building systems, including but not limited to repairs of defects, cleaning, adjustments of valves, sensors, controls or programmed set points, and/or changes in operational practices.

Retuning report means the report produced by the retuning professional and provided to the building owner, including but not limited to:

(a) Summary retuning report;

(b) Energy end use breakdown;

(c) Water end use breakdown;

(d) Functional performance testing reports; and

(e) Operational training conducted.

Tenant means a person or entity occupying or holding possession of a building, part of a building or premises pursuant to a rental or lease agreement.

Utility means an entity that distributes and/or sells natural gas, electric, water, or thermal energy services for buildings.

(Ord No. 6493, § 1, 1-9-19)

Sec. 14.30.005. Exemptions.

(a) The manager shall prescribe a form for which an exemption can be requested; and

(b) An exemption may be granted for the current reporting year, or other term as defined, at the discretion of the manager or an appointed code compliance officer if one of the following conditions exist:

(1) A new building built under the currently adopted International Energy Conservation Code; or

(2) A building with a LEED (Leadership in energy and Environmental Design) certification; or

(3) A building with a National Green Building Standard Multifamily Building certification; or

(4) A low-income, multifamily housing building with an enterprise green communities certification, is exempt from the requirements of this chapter for a period of:

a. Three years from the date of the issuance of the certification; or

b. Six years from the date of the issuance of the certification if the building owner supplies a retuning report during the first three-year period.

(5) A building with a net-zero energy certification from the International Living Future Institute, or other qualified certification program as required by the manager;

(6) The building is unoccupied which means there is less than one full-time equivalent occupant over the last calendar year;

(7) The building is presently experiencing qualifying financial distress, as defined by any of the following:

a. It is the subject of a qualified tax lien sale or public auction due to property tax arrearages; or

b. It is controlled by a court appointed receiver; or

c. The building has been acquired by a deed in lieu of foreclosure;

(8) Publishing of data will result in the release of proprietary information. To qualify for this exemption, the owner shall specifically identify the data or information it believes is confidential as per NRS 239.010 or other applicable local, state, or federal law, or provides a written statement describing the manner in which public disclosure would cause substantial harm to the owner′s competitive position;

(9) A building for which a demolition permit for the entire building has been issued and for which demolition work has commenced on or before the date the benchmarking report is due;

(10) A building that had an average physical occupancy of less than 60 percent throughout the calendar year for which benchmarking is required;

(11) More than 50 percent of gross floor area is used for residential purposes and:

a. More than four meters are associated with the property; and

b. The owner does not have access to means to obtain aggregated, whole-building data through the utility or a tenant where applicable; and

c. The serving electric utility does not provide access to aggregated whole-building data. Once such services are available from the Utility, as determined by the manager, such properties will no longer be exempt from Benchmarking requirements, and shall file initial benchmarking reports in the first required reporting year following such data availability.

(12) Access to accurate data is reliant on tenant information or cooperation and the tenant cannot or will not provide the data. To claim this exemption, a written statement from the owner is required along with sufficient evidence to support the exemption.

(13) Any change in ownership of the covered property during the calendar year for which benchmarking is required.

(c) If an exemption is not denied by the manager in writing within 60 days of receipt of the form described in this section, the exemption shall be deemed approved.

(Ord No. 6493, § 1, 1-9-19)

Sec. 14.30.006. Benchmarking reporting.

(a) The owner of each covered property shall collect and input all data needed to benchmark the entire property into the benchmarking tool. Whole-building data for the property's energy and water use must be compiled using one or more of the following methods:

(1) Obtaining aggregated whole-building data from a utility company;

(2) Collecting data from all tenants;

(3) Reading a master meter.

(b) The owner of each covered property shall enter data into the benchmarking tool such that the energy and water benchmarking report shall be based on an assessment of the aggregated total energy and water consumed by the whole property for the entire calendar year being reported.

(c) Before submitting a benchmarking report the owner shall run all automated data quality checker functions available within the benchmarking tool, and shall verify that all data has been accurately entered into the tool and correct any errors prior to submitting the benchmarking report to the manager. Where the current owner learns that any information reported as part of the benchmarking submission is inaccurate or incomplete, the owner shall amend the information so reported, and shall provide the manager with an updated benchmarking submission within 60 days of learning of the inaccuracy.

(d) An owner may apply for a time extension to complete and submit a benchmarking report if despite such owner's good faith efforts and was denied an exemption, the owner is unable to complete the required actions prior to the scheduled due date for such submission due to the failure of either a utility provider or a tenant (or both) to provide the owner with information needed to complete this report. For each property, the manager may grant up to two such extensions per year of 45 days each.

(Ord No. 6493, § 1, 1-9-19)

Sec. 14.30.007. Benchmarking schedule.

(a) The owner of a covered property shall ensure that for each such property a benchmarking report is generated, completed and submitted to the manager annually.

(b) The benchmarking reports for each covered property shall be due by the dates as defined in the following table:

Covered Property	First Reporting Date	First Calendar Year Data Reported	Subsequent Annual Reporting Due Date
Mandatory city properties ≥ 10k sq. ft.	Apr 1, 2019	2018	April 1
Agency Properties and Private sector properties ≥ 100k sq. ft.	Apr. 1, 2020	2019	April 1
Agency Properties and Private sector properties ≥ 50k sq. ft.	Apr. 1, 2021	2020	April 1
Agency Properties and Private sector properties ≥ 30k sq. ft.	Apr. 1, 2022	2021	April 1

(Ord No. 6493, § 1, 1-9-19)

Sec. 14.30.008. Self reporting.

(a) For every building subject to this chapter, the building owner shall annually submit to the department in an electronic format as established by the manager, an energy and water benchmarking report. The energy and water benchmarking report shall be based on an assessment in the benchmarking tool of the total energy and water consumed by the whole building for the entire calendar year and include:

(1) Individual or entity responsible for benchmarking submission;

(2) Property address;

(3) Primary use;

(4) Gross floor area;

(5) The weather normalized site and source energy use intensity (EUI) per KBTU per square foot;

(6) The ENERGY STAR Score for the building, if applicable;

(7) Total water use per gross square foot;

(8) Indoor water use, if applicable;

(9) Outdoor water use, if applicable; and

(10) Total annual greenhouse gas emissions.

(b) An owner may submit additional optional data, of owner's choosing, which may be used in case studies, reports, or for recognition purposes. Optional data may include:

(1) How many years the building has received an ENERGY STAR certification;

(2) Other certifications the building has achieved;

(3) Other energy use trend statistics the owner feels play a role in the building performance.

(Ord No. 6493, § 1, 1-9-19)

Sec. 14.30.009. Data availability.

(a) The department shall make available on its website, and update at least annually, energy and water consumption derived from the Benchmarking information listed in section 14.30.008. Proper citation of applicable local, state, or federal law is required for any information the Owner requests be confidential.

(b) With a covered property owner's written or electronic permission, the manager may provide non-anonymized data from section 14.30.008 or submissions under section 14.30.012 to any utility serving a covered Property or to any federal, state, county or city-managed energy and/or water efficiency or management program, provided that the data will be used solely for purposes of offering programs, services, and incentives related to energy and water efficiency and management. Where the property owner's permission can be granted electronically through acceptance of a default option, the city shall provide a clearly delineated option for owners of covered properties to choose to opt out of granting this permission.

(c) The manager may disclose any anonymized data from section 14.30.008 or submissions under section 14.30.012 to a third party for academic or other non-commercial research purposes.

(d) The manager may make available on a publicly accessible website a summary report on the progress of performance for all covered properties, including but not limited to, compliance rates, trends observed, correlations of benchmarking scores and audit recommendations, correlations of benchmarking scores and retuning measures completed, the impact of audits and retuning on EUIs and ENERGY STAR Scores, and recommendations on how the uptake of energy conservation measures could be increased or the implementation of audits and retuning could be improved.

(e) Nothing in this chapter shall prevent the manager from including all such information in a combined annual energy and water efficiency report covering the progress of all of the city's energy efficiency ordinances and programs.

Sec. 14.30.010. Building performance goals.

(a) Every seven years each covered property shall submit performance goal verification documentation demonstrating that it has either achieved the performance targets defined under section 14.30.011, or has completed any of the efficiency actions defined under section 14.30.012.

(b) The performance verification schedule for each covered property shall be due by the dates as defined in the following table:

Covered Property	First Reporting Date
Mandatory City properties ≥ 10k sq. ft.	2026 and every seven years there-after
Agency Properties and Private sector properties ≥ 100k sq. ft.	2028 and every seven years there-after
Agency Properties and Private sector properties ≥ 50k sq. ft.	2029 and every seven years there-after
Agency Properties and Private sector properties ≥ 30k sq. ft.	2032 and every seven years there-after

(c) No performance goal verification shall be required for a covered property for its current seven-year reporting cycle if a qualified service company submits documentation with the department, in such form and with such certifications as required by the manager, establishing that the property has met one of the following conditions:

(1) The property is exempt from benchmarking requirements per the provisions of section 14.30.005.

(2) The initial certificate of occupancy for the property was issued less than seven years prior to the date when the first performance verification would otherwise be due.

(3) The property has undergone substantial rehabilitation, as certified by a registered design professional, within the seven-year period prior to the calendar year in which a performance verification is due, such that at the commencement of such calendar year all of the base building systems of such property are in compliance with the current International Energy Efficiency Code.

(d) No covered property shall be required to complete and submit performance goal verification documentation until seven years after such property was first required to file a benchmarking report.

Sec. 14.30.011. Performance targets.

(a) To fulfill the performance targets, the owner must submit documentation to the department showing that a qualified service company verifies that the property has achieved one or more of the following energy targets and one or more of the following water targets for at least two of the seven years following the baseline year:

(1) Energy targets:

a. The property received an ENERGY STAR score of 50 or higher.

b. The property's energy use intensity (EUI) was equivalent to or better than the performance of 50 percent of all covered properties of its type.

c. The property achieved an ENERGY STAR score at least 15 points higher than the score it received during its baseline year.

d. The property's weather normalized source EUI was reduced by at least 10 percent relative to its performance in the baseline year.

(2) Water targets:

a. The property received an ENERGY STAR water score of 50 or higher.

b. The property's water use intensity (WUI) was equivalent to or better than the performance of 50 percent of all covered properties of its type.

c. The property achieved an ENERGY STAR water score at least 15 points higher than the score it received during its baseline year.

(3) A covered property that does not achieve at least one of the energy performance targets shall complete one of the measures listed in section 14.30.012.

(4) A covered property that does not achieve at least one of the water performance targets shall complete one of the measures listed in section 14.30.012.

(Ord No. 6493, § 1, 1-9-19)

Sec. 14.30.012. Performance pathway.

(a) The owner of a covered property may fulfill both energy and water requirements under this section by showing that a qualified service company has verified one or more of the following:

(1) The property has completed retuning or an energy and water audit, within three years prior to the due date for filing of the property′s performance verification documentation. Energy and water audits shall be performed by or under the direct supervision of a qualified auditor. Retuning shall be performed by or under the supervision of a qualified retuning professional,

(2) The property has received certification under LEED for Existing Buildings 2009 version or later, the LEED Operation and Maintenance: Existing Buildings Version 4 or 4.1 rating system published by the USGBC, or other comparable and current rating system for existing buildings, as determined by the manager, within seven years prior to the due date for filing of the property′s review period verification documentation and has earned the LEED point for existing building commissioning investigation and analysis and the LEED point for existing building commissioning implementation.

(3) The property has participated in and successfully completed an utility-sponsored retuning incentive program within the seven years preceding the due date for filing of the property′s performance verification documentation.

(4) The property has completed a full retuning procedure within the three years preceding the due date for filing of the property′s performance verification, with documentation that the property′s performance was optimized.

(b) The owner of a covered property may fulfill the energy requirements under this section by ensuring that a qualified service company, where applicable, verifies and the owner submits documentation with the department, in such form and with such certifications as required by the manager, verifying one or more of the following:

(1) The property has completed retuning or an energy audit, within seven years prior to the due date for filing of the property′s review period verification documentation. Energy audits shall be performed by or under the direct supervision of a qualified auditor. Retuning shall be performed by or under the supervision of a qualified retuning professional;

(2) The property performs on-going commissioning of its electrical and mechanical systems;

(3) The property has received a net-zero energy certification from the International Living Future Institute, or other qualified certification program as required by the manager, at any time during the seven years following the baseline year;

(4) The property does not have a central cooling system and any three of the following measures were completed at any time during the seven years following the baseline year. A report, certified by a qualified service company, detailing the measures performed is required:

a. Common area exterior lighting;

b. Pipe insulation of all exposed pipes;

c. A cool roof has been installed;

d. The property owner is participating in a demand response program;

e. A solar water heating system has been installed;

f. A new domestic hot water heater has been installed in accordance with currently adopted codes.

(5) Owner or an employee or agent of owner with the primary duty of property operations and maintenance for the covered property, attended not less than three locally offered trainings or professional certification programs in energy conservation or energy code compliance in the past seven years. A certificate or record of attendance must be provided.

(d) The owner of a covered property may fulfill the water requirements under this section by ensuring that a qualified professional, where applicable, verifies and the owner submits documentation with the department, in such form and with such certifications as required by the manager, verifying one or more of the following:

(1) The property has completed retuning or a water audit, within seven years prior to the due date for filing of the property's review period verification documentation.

(2) A licensed engineer or architect certifies that the building's water use conforms to the requirements of the currently adopted code in effect at any time during the seven year review period being reported.

(3) Owner or an employee or agent of owner, with the primary duty of property operations and maintenance for the covered property, attended not less than two locally offered trainings or certification programs in water conservation in the past seven years. A certificate or record of attendance must be provided.

(4) The property has participated in and successfully completed an utility-sponsored water conservation program within the seven years preceding the due date for filing of the property's review period verification documentation.

(5) The property does not have a central cooling system and one of the following measures were completed within the seven years following the baseline year. A report, certified by a qualified professional, detailing the measures performed is required.

a. Low flow faucets and shower heads. All faucets and showerheads within the property have been replaced and meet the codes in effect at any time during the seven-year review period being reported;

b. Washing machines. Front loading clothes washing machines have been installed in all common laundry facilities;

c. Water closets and urinals. All water closets and urinals within the property have been replaced and meet codes in effect at any time during the seven-year review period being reported.

(Ord No. 6493, § 1, 1-9-19)

Sec. 14.30.013. Maintenance of records.

(a) Owners shall maintain records of the energy and water bills and reports or forms received from tenants and/or utilities used by the owner to compile its benchmarking submission. Such records must be preserved for a period of two years beyond the seven-year review period.

(b) The City of Reno may examine any records maintained pursuant to this section during regular business hours on ten days′ written notice to the owner for the limited purpose of evaluating the general efficacy of this chapter.

(Ord No. 6493, § 1, 1-9-19)

Sec. 14.30.014. Compliance.

(a) If the manager determines that a property owner has not reported the information under section 14.30.007 or section 14.30.010 as required under this chapter, or the owner has submitted incomplete or false benchmarking information, the manager may seek the following remedies:

(1) A written notice may be issued for the violation; and

(2) If the information is not reported within 30 days of the date the written notice is issued, the manager may issue a notice of violation with a penalty of up to $100.00.

(3) If the information is not reported within 30 days of the date the first violation is issued, the manager may issue a notice of violation with a penalty of up to $250.00.

(4) If the information is not reported within 30 days of the date the second violation is issued, the manager may issue a notice of violation with a penalty of up to $500.00.

(b) Penalties collected pursuant to this section shall be placed in an account used to fund a city-sponsored incentive or training programs to assist owners in achieving the performance pathways described in section 14.30.012.

(Ord No. 6493, § 1, 1-9-19)

Title 15 CITY PROPERTY

Ch. 15.01. Real Property Sales and Leases, §§ 15.01.010—15.01.140
Ch. 15.02. Rehabilitation of Abandoned Residential Property, §§ 15.02.010—15.02.100

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CHAPTER 15.01. REAL PROPERTY SALES AND LEASES*

Sec. 15.01.010. Purpose, interpretation, and application.
Sec. 15.01.020. Conflict of ordinances.
Sec. 15.01.030. Definitions.
Sec. 15.01.040. Minimum qualifications of appraisers eligible for placement on applicable lists.
Sec. 15.01.050. Preparation of list of appraisers.
Sec. 15.01.060. Approval of list of appraisers, appeal and judicial review.
Sec. 15.01.070. Removal from list of appraisers, appeal and judicial review.
Sec. 15.01.080. Appraiser selection procedure.
Sec. 15.01.090. Appraisal requirements.
Sec. 15.01.100. Procedure for resolution of intent.
Sec. 15.01.110. Notice of sale or lease.
Sec. 15.01.120. Posting and publication of notice of sale or lease.
Sec. 15.01.130. Procedure for consideration of bids; second offering.
Sec. 15.01.140. Violations and penalties.
Sec. 15.01.150. Exceptions.

Sec. 15.01.010. Purpose, interpretation, and application.

The purpose of this chapter shall be held to be the minimum requirements adopted to regulate the sale and lease of real property, as defined in this chapter, so that such transactions comply with the legislative mandate of Assembly Bill No. 312, as amended by Senate Bill No. 394 of the 73rd Session of the Nevada Legislature, and as further amended by Assembly Bill No. 462 of the 74th Session of the Nevada Legislature. This chapter does not create a legal right, including but not limited to a property or other constitutional right, to be placed upon the established appraisal lists or to be awarded a contract for professional services.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.020. Conflict of ordinances.

(a) In any case where a provision of this chapter is found to be in conflict with state law applicable to the city, state law shall control.

(b) It is not intended by this chapter to repeal, abrogate, annul, or in any way impair or interfere with existing provisions of other laws or ordinances or with private restrictions placed upon real property by covenant, deed, or other private agreements in existence prior to the adoption of this chapter.

(c) In cases where two or more provisions of this chapter conflict, the most stringent or restrictive shall prevail.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.030. Definitions.

The following words have the following meanings:

Appraisal shall mean an appraisal conducted by an appraiser, which sets forth the fair market value of the real property or lease being appraised.

***Editor's note—**It should be noted that § 1 of Ord. No. 5991, adopted December 12, 2007, provides, "The City Council does hereby find that this ordinance is not a "Rule" within the meaning of NRS Chapter 237 because this ordinance is mandated by law."

Appraiser shall mean an appraiser holding and maintaining a current Nevada General Appraiser certification issued by the State of Nevada.

Director means the director of public works, or his duly authorized designee.

Economic development means (i) the establishment of new commercial enterprises or facilities within the city; (ii) the support, retention or expansion of existing commercial enterprises or facilities within the city, (iii) the establishment, retention or expansion of public, quasi-public or other facilities or operations within the city; (iv) the establishment of residential housing needed to support the establishment of new commercial enterprises or facilities or the expansion of existing commercial enterprises or facilities; or (v) any combination of the foregoing to create and retain opportunities for employment for the residents of the city.

Property means the real property owned being sold or leased by the city.

Public meeting means the public meeting before city council to consider bids pursuant to section 15.01.130.

Redevelopment has the meaning ascribed to it in NRS 279.408.

Residential property shall mean any real property which contains a structure or building in which one or more persons reside, provided that the structure or building is properly zoned, or is legally nonconforming, for residential use in accordance with Chapter 18 of the Reno Municipal Code.

Resolution of intent means the resolution established under section 15.01.100 of this chapter.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.040. Minimum qualifications of appraisers eligible for placement on applicable lists.

(a) The director shall obtain a list from the Nevada Real Estate Division of all persons qualified to act as a general appraiser in Washoe County.

(b) The director shall send a request for qualification form to each appraiser on the list to determine if the appraiser is interested in performing appraisals for the city under terms and conditions stated therein, and what types of appraisals the appraiser is qualified to perform based on training and experience. Those who do not respond to the request for qualifications to the satisfaction of the director shall not be placed on the list.

(c) The following minimum requirements, each of which must be complied with, shall apply to the consideration of the eligibility of appraisers for placement on applicable lists:

(1) The appraiser must possess a current and valid business license in the city;

(2) The appraiser must possess a general license issued by the State of Nevada, Nevada Real Estate Division;

(3) The appraiser must have no violations of professional standards or statutory requirements in the performance of appraisals;

(4) The appraiser must have the ability to obtain and maintain insurance coverage as required by the city;

(5) The appraiser must have the professional qualifications and experience for the appraisal required to be completed by the city;

(6) If the appraiser is requesting placement on the general commercial and/or industrial list as defined in section 15.01.050, below, the appraiser must have been qualified or have experience in providing services as an expert witness within the past five years immediately preceding the date of the application. To be eligible for selection to provide appraisal services under section 15.01.080, the appraiser must also have been qualified or have experience in providing services as an expert within the five years immediately preceding the request for proposal forwarded pursuant to section 15.01.080(1);

(7) The appraiser must not have breached any contracts with a public agency or person in this state or any other state during the five years immediately preceding the date of the application and/or while appraiser is placed upon any list pursuant to section 15.01.060, as applicable;

(8) During the five years immediately preceding the date of the application and/or while appraiser is placed on any list pursuant to section 15.01.060, as applicable, the appraiser must not have, as a result of causes within the control of the appraiser, failed to perform any contract:

a. In the manner specified by the contract, as amended, and properly approved by the city;

b. Within the time specified in the contract unless extended and properly approved by the city;

c. For the amount of money specified by the contract, as amended, and properly approved by the city;

(9) The appraiser must not have been convicted of a violation for discrimination in employment during the two years immediately preceding the date of the application and/or while appraiser is placed upon any list pursuant to section 15.01.060, as applicable;

(10) The appraiser must not have filed as a debtor in a business capacity under the provisions of the United States Bankruptcy Code during the five years immediately preceding the date of the application and/or while appraiser is placed upon any list pursuant to section 15.01.060, as applicable;

(11) The appraiser must not have been disciplined or fined by any state or federal agency for conduct that relates to the ability of the appraiser to perform the work to be required by the city;

(12) The appraiser's application must be truthful and complete;

(13) The appraiser must have the ability to maintain accurate and current contact information with the director. The appraiser must notify the city of any change in information and qualifications provided or referenced in the application within 15 days of such change;

(14) The appraiser must have the ability to maintain accurate records for a period of seven years after completion of the appraisal services rendered to the city; and

(15) The appraiser must execute the application form and consent to all terms and conditions contained therein.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.050. Preparation of list of appraisers.

Once the director reviews the applications to determine compliance with minimum qualifications, he or she shall prepare three lists, each of which will be randomly organized:

(1) *Residential list.* One list shall include those who are interested in and have training and five years experience in performing residential property appraisals;

(2) *General commercial and/or industrial list.* One list shall include those who are interested in and have training and five years experience in performing general commercial and/or industrial property appraisals; and

(3) *Open space list.* One list shall include those who are interested in and have training and five years experience in performing appraisals of land which is limited to open space use and agricultural use.

An appraiser may be included on multiple lists for which he or she is qualified.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.060. Approval of list of appraisers, appeal and judicial review.

(a) The initial lists prepared by the director as set forth in section 15.01.050, shall be presented to city council for approval. Each year after initial approval, the lists shall be randomly reorganized and the names thereon rotated by the director.

(b) After approval by city council of the initial list, the following procedures must be complied with to request placement on a list. The appraiser may be added to the bottom of any list at any time if the appraiser completes the application form and demonstrates to the director that the appraiser is qualified to act as a general appraiser in Washoe County and meets the minimum qualifications set forth in section 15.01.040, above. If the director declines to add the appraiser to a list, the director will notify the appraiser of this decision by mail. The appraiser may appeal that decision to a hearing officer pursuant to section 15.01.070(b), below.

(c) If an appraiser who is not added to a list desires to appeal the decision of the director to the hearing officer, the appraiser shall file a notice of such intent with the city clerk within ten business days from the date of the director's notice declining to add the appraiser to a list and comply with the applicable provisions of Chapter 1.05 of the Reno Municipal Code. The city clerk shall place such appeal on the hearing officer's agenda for a hearing. If this deadline is not complied with by the appraiser, the director's decision shall be final and there shall be no further review of such decision.

(d) The hearing officer shall have the power to determine if the director's decision complies with the provisions of this chapter and to affirm, reverse or modify the appealed decision. The hearing officer's review shall be of the appraiser's application and record considered by the director. The decision of the hearing officer is a final decision for purposes of judicial review.

(e) Judicial review may be sought in accordance with Chapter 34 of the Nevada Revised Statutes.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.070. Removal from list of appraisers, appeal and judicial review.

(a) The ability for an appraiser to be qualified and remain on the list(s) is a privilege and not a right. All appraisers applying for placement on a list must acknowledge and agree that any change in the appraiser's status or ability to maintain the minimum qualification requirements set forth in section 15.01.040 shall be cause for immediate removal from the list by the director. The director shall send a notice notifying the appraiser that her or she has been removed from the list. Once an appraiser has been removed from a list of appraisers, the appraiser shall not be qualified to be reinstated to such list until one of the following occurs: (1) the minimum qualification requirements set forth in section 15.01.040 have been met and a new application has been submitted to and approved for list placement by the director, (2) the decision of the director has been overturned by the hearing officer pursuant to this section, or (3) an order has been issued by a court of competent jurisdiction on judicial review.

(b) If an appraiser who is removed from the list desires to appeal the decision of the director to the hearing officer, the appraiser shall file a notice of such intent with the city clerk within ten business days from the date of the notice of removal and comply with the applicable provisions of Chapter 1.05 of the Reno Municipal Code. The city clerk shall place such appeal on the hearing officer's agenda for a hearing. If this deadline is not complied with by the appraiser, the director's decision shall be final and there shall be no further review of such decision.

(c) The hearing officer shall have the power to determine if the director's decision complies with the provisions of this chapter and to affirm, reverse or modify the appealed decision. The hearing officer's review shall be of the appraiser's application and record considered by the director. The decision of the hearing officer is a final decision for purposes of judicial review.

(d) Judicial review may be sought in accordance with Chapter 34 of the Nevada Revised Statutes.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.080. Appraiser selection procedure.

When an independent appraisal is required for the sale or lease of city property, the following procedures are to be followed:

(1) The director shall send a request for proposal to the appraiser whose name is at the top of the list for the type of property being appraised. The request shall identify the property to be appraised, the desired terms and conditions of appraisal and the requirements for the response to the request for proposal. The response from the appraiser must include (i) a statement of specific qualifications to do the type of appraisal required, (ii) a proposal of the terms and conditions for the appraisal; (iii) a disclosure statement which includes, without limitation, all sources of income of the appraiser that may constitute a conflict of interest and any relationship of the appraiser with the property owner or the owner of an adjoining property; and (iv) a statement that the appraiser is not related within the first degree of consanguinity or affinity to any person who has an interest in the real property or an adjoining property.

(2) If the appraiser does not satisfactorily respond to the request as determined by the director, his or her name shall be moved to the bottom of the list, and the director shall move to the next name on the list. If the appraiser responds to the request in terms that are responsive and satisfactory to the director, his or her name shall be recommended to the city council for approval as specified in section 15.01.100 below.

(3) If more than one appraisal is required, this procedure shall be followed for each appraiser. To expedite the selection process or foster competitive bidding, the director may send a request for proposal to more than one appraiser, and those who respond and are not selected shall be left at the top of the list.

(4) Once the resolution of intent is adopted by the city council as set forth in section 15.01.100, the director shall engage the qualified appraisers to conduct appraisals utilizing the approved form agreement for appraisal services.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.090. Appraisal requirements.

(a) WHEN REQUIRED.

Except for real property acquired pursuant to NRS 371.047, and except as provided in section 15.01.150 below, when the value of the property to be sold or leased exceeds $1,000.00 in value and except as provided below, the property shall be appraised by:

(1) Two independent appraisers selected from the appropriate list of appraisers as provided in section 15.01.080 above or

(2) One independent appraiser selected from the appropriate list of appraisers as provided in section 15.01.080 above if the city council holds a public hearing on the matter of the fair market value of the real property.

(b) STANDARDS.

In addition to the minimum qualifications of the appraiser as set forth in section 15.01.040, the following standards shall apply to an appraisal, or appraisals:

(1) Each appraisal shall be conducted in accordance with the Uniform Standards of Appraisal Practice established by the Appraisal Foundation, and in accordance with the standards and procedures required by Nevada law;

(2) Each appraisal shall be based on the zoning of the property and the master plan for the city; and

(3) Each appraisal must be completed within six months before the date of the public meeting.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.100. Procedure for resolution of intent.

(a) GENERAL.

Except as provided in section 15.01.150 below, when city real property is to be offered for sale or lease, the director shall observe the procedures set forth in this section.

(b) APPRAISALS.

If it is believed that an appraisal or appraisals are required under section 15.01.090 above, the director shall select one independent appraiser or two independent appraisers, as applicable, from the appropriate list in accordance with section 15.01.080 above.

(c) RESOLUTION OF INTENT.

The director shall present to the city council for approval a resolution that:

(1) Describes the property to be sold or leased;

(2) States that the sale or lease of the property is in the best interests of the city;

(3) Determines whether or not the value of the property exceeds $1,000.00;

(4) If an appraisal or appraisals are required by section 15.01.090 above, the resolution shall (i) select and affirm the qualifications of the appraiser or appraisers recommended by the director; (ii) direct the director to enter into a contract with an appraiser or appraisers; and (iii) direct that the minimum sale price shall be the highest appraised value;

(5) States an intent to sell or lease the property under the procedures specified herein, and the terms and conditions for such a sale;

(6) Fixes a time for the public meeting to consider bids as provided in section 15.01.130 below, which meeting must be not less than three weeks after the date of the resolution and must be held during a meeting of city council held at its regular meeting place. The resolution shall generally describe the procedures set forth in section 15.01.130 below; and

(7) Provides for other matters as determined by the Reno City Council.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.110. Notice of sale or lease.

Once the appraisal or appraisals are completed, the director shall prepare a notice of sale or lease, as applicable, which shall include:

(1) A legal or other appropriate description of the real property proposed to be sold or leased;

(2) The minimum price or lease terms, if applicable, of the property;

(3) The places where a copy of the resolution of intent can be obtained and where it has been posted in accordance with section 15.01.120 below; and

(4) A general description of the procedure to be followed in obtaining and selecting bids.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.120. Posting and publication of notice of sale or lease.

The notice of sale or lease, as applicable, shall be:

(1) Posted in three public places in the city at least 15 days before the proposed date of the meeting described in section 15.01.100 above; and

(2) Published at least once a week for three successive weeks before the meeting described in section 15.01.100 above in a newspaper qualified under Chapter 238 of Nevada Revised Statutes.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.130. Procedure for consideration of bids; second offering.

(a) At the time and place fixed in the resolution of intent for the public meeting, all sealed bids which have been received shall, in public session, be opened, examined and considered by

the city council. Of the proposals submitted which conform to all terms and conditions specified in the resolution of intent referenced in section 15.01.100, above, and which are made by responsible bidders, the bid which is the highest must be finally accepted unless a higher oral bid is accepted at the public meeting or the city council rejects all bids.

(b) At the public meeting and before accepting any written bid, city council shall call for oral bids. If, upon the call for oral bidding, any responsible person offers to buy or lease the property upon the terms and conditions specified in the resolution of intent for a price exceeding by at least five percent the highest written bid, then the highest oral bid which is made by a responsible person must be finally accepted, unless provided otherwise in this chapter.

(c) The final acceptance by the city council may be made either at the same session or at any adjourned session of the same public meeting held within the following 21 days.

(d) The city council may, either at the same session or at any adjourned session of the same public meeting held within the following 21 days, if it deems the action to be for the best public interest, reject any and all bids, either written or oral, and withdraw the property from sale or lease.

(e) If the property is not sold or leased at the initial offering, the city council may offer the property for sale or lease a second time pursuant to this chapter. If there is a material change relating to the title, zoning or an ordinance governing the use of the property, a new appraisal must be obtained pursuant to section 15.01.090 before offering the property for sale or lease a second time. If the property is not sold or leased at the second offering, the city council may list the property for sale or lease at the appraised value with a licensed real estate broker, provided the broker or a person related to the broker within the first degree of consanguinity or affinity does not have an interest in the property or an adjoining property.

(f) Any resolution of acceptance of any bid made by city council shall authorize and direct the mayor to execute a deed or lease and authorize the city manager, or his designee, to deliver it upon performance and compliance by the purchaser or lessor with all the terms or conditions of his contract which are to be performed concurrently therewith.

(g) The city council may require any person requesting that real property be sold pursuant to the provisions of this section to deposit a sufficient amount of money to pay the costs to be incurred by the city council in acting upon the application, including the costs of publication and the expenses of appraisal. This deposit must be refunded whenever the person making the deposit is not the successful bidder. The costs of acting upon the application, including the costs of publication and the expenses of appraisal, must be borne by the successful bidder.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.140. Violations and penalties.

If real property is sold or leased in violation of the provisions of this chapter:

(1) The sale or lease is void; and

(2) Any change to an ordinance or law governing the zoning or use of the real property is void if the change takes place within five years after the date of void sale or lease.

(Ord. No. 5991, § 2, 12-12-07)

Sec. 15.01.150. Exceptions.

(a) This chapter applies:

(1) Except as otherwise provided in NRS 268.048 to 268.058, inclusive;

(2) Except as otherwise provided under NRS 278.479 to 278.4965, inclusive;

(3) Except as otherwise required by federal law;

(4) Except as otherwise required pursuant to a cooperative agreement entered into pursuant to NRS 277.050 or 277.053;

(5) Except as otherwise provided in an interlocal agreement in existence on October 1, 2004;

(6) Except if city council is entering into a joint development agreement for real property owned by the city to which the city is a party;

(7) Except for a lease of residential property with a term of one year or less;

(8) Except for the sale or lease of real property to a public utility, as defined in NRS 704.020, to be used for a public purpose;

(9) Except for the sale or lease of real property to the state or another governmental entity;

(10) Except for the sale of lease of real property larger than one acre which is approved by the voters at a primary or general election, primary or general city election or special election;

(11) Except if the property is being sold to a person who owns real property located adjacent to the property and city council adopts a resolution which finds that the sale of the property is either (a) a remnant that was separated from its original parcel due to the construction of a street, alley, avenue or other thoroughfare, or portion thereof, flood control facility or other public facility; (b) a parcel that, as a result of its size, is too small to establish an economically viable use by anyone other than the person who owns real property adjacent to the property; or (c) a parcel which is subject to a deed restriction prohibiting the use of the property by anyone other than the person who owns real property adjacent to the property, and that the sale or lease will be in the best interest of the city;

(12) Except if the sale or lease of the property is to the state or another governmental entity and (i) the sale or lease restricts the use of the property to a public use, and (ii) city council adopts a resolution finding that the sale or lease will be in the best interest of the city; and

(13) Except as provided in subsection (b) and (c) next below.

(b) Property may be sold, leased or conveyed by the city for the purposes of redevelopment or economic development without first offering the property to the public; and for less than fair market value of the property. However, an appraisal or appraisals, as applicable, pursuant to section 15.01.090 of this chapter must be obtained, and city council must adopt a resolution finding that it is in the best interests of the public to sell, lease or otherwise dispose of the property without offering the property to the public and for less than the fair market value.

(c) Nonprofit organizations.

(1) The city may lease property to a nonprofit organization that:

a. Is recognized as exempt under section 501(c)(3) of the Internal Revenue Code;

b. Is affiliated by contract or other written agreement with the city; and

c. Provides to residents of the city or to other persons a service that the city would otherwise be required to expend money to provide, under such terms and for such consideration as the city council determines reasonable based upon the costs and benefits to the city and the recommendation of any city officers who may be involved in approving the lease.

(2) To lease real property pursuant to this section, the city council must approve the lease and establish the recommended amount of rent to be received for the real property. The city council shall render a decision on an application to lease real property pursuant to this section within 60 days after it receives the application.

(3) In determining the amount of rent for the lease of real property pursuant to this section, consideration must be given to:

a. The amount the lessee is able to pay;

b. Whether the real property will be used by the lessee to perform a service of value to members of the general public;

c. Whether the service to be performed on the real property will be of assistance to any agency of the city; and

d. The expenses, if any, that the city is likely to incur to lease real property pursuant to this section in comparison to other potential uses of the real property.

(4) The city council may waive any fee for the consideration of an application submitted pursuant to this section.

(Ord. No. 5795, § 2, 1-11-06; Ord. No. 5991, § 2, 12-12-07)
Note—Former § 15.01.140.

CHAPTER 15.02 REHABILITATION OF ABANDONED RESIDENTIAL PROPERTY

Sec. 15.02.010. Authority, general purpose and objectives.
Sec. 15.02.020. Definitions.
Sec. 15.02.030. Agency designation.
Sec. 15.02.040. Qualifications for rehabilitation.
Sec. 15.02.050. Agency to inspect property and interview applicant for rehabilitation; recommendation to city council.
Sec. 15.02.060. Written agreement for rehabilitation: Contents; transfer of title or sale of property to applicant upon completion or substantial compliance.
Sec. 15.02.070. Duties of organization to whom title to property is transferred.
Sec. 15.02.080. Agency to provide advice and technical assistance; access to property required; deficiencies in maintenance of property.
Sec. 15.02.090. Preference to applicants with low income and applicants that are organizations which serve natural persons with low income; conditions.
Sec. 15.02.100. Additional powers.

Sec. 15.02.010. Authority, general purpose and objectives.

(a) The ordinance codified in this chapter is enacted pursuant to the authority of NRS 279B to provide for the rehabilitation of abandoned residential properties within the city.

(b) The objective of this chapter is to establish a program for the rehabilitation of abandoned, deteriorated, substandard or unsanitary residential properties.

(Ord. No. 6205, § 1, 9-14-11)

Sec. 15.02.020. Definitions.

As used in this chapter, unless the context otherwise requires, the words and terms have the meanings ascribed to them in this section. Words used in the present tense include the future, words in the singular number include the plural and the plural the singular.

(a) *"Abandoned residential property"* means residential property which has been:

(1) Acquired by the city pursuant to the provisions of NRS 361.603 or subsection 3 of NRS 279B.100, or by a grant from the Federal Government, the state government or any political subdivision of the State;

(2) Declared to have been abandoned by the Federal Government, the state government or the governing body; and

(3) Determined by the city council to be in need of rehabilitation because of its deteriorated, substandard or unsanitary condition.

(b) *"Agency"* means the Community Resources Division of the City of Reno.

(c) *"Program"* means the city's program for the rehabilitation of abandoned residential properties established by the city council pursuant to this chapter.

(d) *"Rehabilitation"* includes general construction, structural improvements, landscaping and any other measure to improve the appearance of property or maintain property in a decent, safe and sanitary condition.

(Ord. No. 6205, § 1, 9-14-11)

Sec. 15.02.030. Agency designation.

The Community Resources Division of the City of Reno is hereby designated by the city council to administer the program.

(Ord. No. 6205, § 1, 9-14-11)

Sec. 15.02.040. Qualifications for rehabilitation.

(a) An applicant for rehabilitation of abandoned residential property must, at the time application is made, be an organization that:

(1) Is recognized as exempt pursuant to 26 U.S.C. § 501(c)(3) or 501(c)(4);

(2) Provides affordable housing to natural persons who:

(i) Are residents of the city; and

(ii) Are members of a household having a gross income of less than 80 percent of the median gross income for households of the same size residing in the same city, as that percentage is defined by the United States Department of Housing and Urban Development; and,

(3) Has the financial resources to rehabilitate the abandoned residential property in accordance with the terms of the agreement.

(b) Any abandoned residential property for which an application for the rehabilitation is sought must be:

(1) Entirely situated within the boundaries of the city;

(2) Capable of rehabilitation within reasonable limits; and

(3) Subject to not more than two encumbrances.

(Ord. No. 6205, § 1, 9-14-11)

Sec. 15.02.050. Agency to inspect property and interview applicant for rehabilitation; recommendation to city council.

(a) Upon receiving an application for rehabilitation of abandoned residential property, the agency shall inspect the property to determine if rehabilitation of the property is feasible.

(b) After inspection of the property, the agency shall interview the applicant or, if the applicant is an organization described in Section 15.02.040(a)(2), the representative of the organization, to determine if the applicant satisfies the criteria for eligibility for the rehabilitation of abandoned residential property and, if the applicant satisfies those criteria, the terms and conditions of the agreement to rehabilitate the property.

(c) The agency shall recommend to the city council the terms and conditions of the agreement.

(Ord. No. 6205, § 1, 9-14-11)

Sec. 15.02.060. Written agreement for rehabilitation: Contents; transfer of title or sale of property to applicant upon completion or substantial compliance.

(a) If the city council approves the application for the rehabilitation of an abandoned residential property, the written agreement entered between the city and the applicant must identify the property and specify:

(1) That the property must be rehabilitated for decent, safe and sanitary residential use;

(2) The terms and conditions of the rehabilitation of the property, including the period within which the rehabilitation must begin and be completed; and

(3) That the rehabilitation must be performed to the satisfaction of the city council.

(b) If the applicant completes the rehabilitation of the property in compliance with all terms and conditions of the agreement to the satisfaction of the city council, the city council must convey title to the property to the applicant.

(c) If the applicant substantially complies with the terms and conditions of the agreement but fails to complete the rehabilitation of the property in full compliance with all terms and conditions of the agreement to the satisfaction of the city council, the city council must offer to sell the property to the applicant for a price not to exceed the fair market value of the property as it existed before the applicant began any rehabilitation of the property.

(Ord. No. 6205, § 1, 9-14-11)

Sec. 15.02.070. Duties of organization to whom title to property is transferred.

An organization to which title to abandoned residential property is conveyed pursuant to this chapter shall maintain the property in a decent, safe and sanitary condition.

(Ord. No. 6205, § 1, 9-14-11)

Sec. 15.02.080. Agency to provide advice and technical assistance; access to property required; deficiencies in maintenance of property.

(a) During the rehabilitation of the abandoned property, the agency shall provide such advice and technical assistance as may be reasonably requested.

(b) The applicant for rehabilitation of abandoned residential property shall permit representatives of the agency, the city council and, if state or federal assistance is involved, the State or Federal Government, to have access to the property during normal business hours to ensure compliance with this chapter and with the provisions of the agreement for rehabilitation.

(c) If the agency discovers deficiencies in the maintenance of the property during any inspection, it shall advise the applicant in the proper methods of correcting those deficiencies.

(Ord. No. 6205, § 1, 9-14-11)

Sec. 15.02.090. Preference to applicants with low income and applicants that are organizations which serve natural persons with low income; conditions.

If at any time the number of pending applications from qualified applicants for the rehabilitation of abandoned residential property exceeds the number of abandoned properties available for rehabilitation, the city council shall give preference to applicants that are organizations which serve natural persons who are members of households having a gross income that is 50 percent or less of the median gross income for households of the same size within the same geographic area.

(Ord. No. 6205, § 1, 9-14-11)

Sec. 15.02.100. Additional powers.

Pursuant to NRS 279B.100, the city council may:

(a) Establish a panel of contractors who have agreed to provide continuing maintenance at a discount to properties rehabilitated pursuant to this chapter.

(b) Use for the purposes of this chapter any money made available to it for housing for persons having low or moderate incomes under state or federal law, if permitted by the terms of the state or federal law.

(c) Accept gifts, grants and bequests of property for the purposes of this chapter.

(Ord. No. 6205, § 1, 9-14-11)

Title 16 FIRE*

Ch. 16.01. Fire Administration and Codes, §§ 16.01.010—16.01.012
Ch. 16.02. Fireworks and Pyrotechnics, §§ 16.02.010—16.02.050
Chs. 16.04—16.40. Reserved

***Editor's note—**See the editor's note at Ch. 16.04 for detailed explanation of disposition of former Title 16.

Cross reference—Buildings and construction, Tit. 14.

State law reference—Protection from fire, NRS Title 42.

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CHAPTER 16.01. FIRE ADMINISTRATION AND CODES

Sec. 16.01.010. Reserved.
Sec. 16.01.011. Reserved.
Sec. 16.01.012. Adoption.

Sec. 16.01.010. Reserved.

Editor's note—Ord. No. 6306, § 1, adopted September 25, 2013, repealed the former section 16.01.010 in its entirety, which pertained to adoption, and derived from Ord. No. 5682, § 1, adopted April 13, 2005.

Sec. 16.01.011. Reserved.

Editor's note—Ord. No. 6499, § 1, adopted February 13, 2019, repealed § 1, which pertained to adoption and derived from Ord. No. 6306, § 2, 9-25-13.

Sec. 16.01.012. Adoption.

The 2018 edition of the International Fire Code and appendices B, C, D and L, together with the corrections made thereto, a copy of which is appended to the ordinance codified herein and marked "Exhibit A;" together with such amendments to the International Fire Code, attached hereto as "Exhibit B," making the same applicable to the City, all of which are adopted by reference and incorporated herein and made a part hereof as if set forth in full.

(Ord. No. 6499, § 1, 2-13-19)

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CHAPTER 16.02. FIREWORKS AND PYROTECHNICS

Sec. 16.02.010. Purpose, interpretation, and application.
Sec. 16.02.020 Definitions.
Sec. 16.02.030 Possession of fireworks and/or pyrotechnics unlawful; exceptions.
Sec. 16.02.040 Seizure and forfeiture.
Sec. 16.02.050 Penalties; continuing violations.

Sec. 16.02.010. Purpose, interpretation, and application.

The purpose of this chapter shall be held to prohibit fireworks and/or pyrotechnics within the jurisdiction of the City of Reno, except as provided otherwise herein. If there is a conflict in interpreting this chapter based upon State law or the Fire Code, as amended, the following applies:

(a) In any case where a provision of this chapter is found to be in conflict with State law applicable to the City, State law shall control.

(b) In any case where a provision of this chapter is found to be in conflict with a provision of the Fire Code, as amended, the most stringent or restrictive shall prevail.

(Ord. No. 5932, § 2, 6-13-07)

Sec. 16.02.020 Definitions.

The following words have the following meanings:

Fireworks and/or *Pyrotechnics:* The terms "fireworks" and/or "pyrotechnics" whenever used in this title shall be interchangeable and shall mean any composition or device for the purpose of producing a visible or audible effect by combustion, deflagration, or detonations and/or containers of any kind in which explosives are used, or a pyrotechnic substance or article containing a pyrotechnic substance, or article containing both an explosive substance and an illuminating, incendiary, tear-producing or smoke-producing substance which falls within the classifications codes 1.1G, 1.2G, 1.3G, and 1.4G as established under 49 C.F.C. § 173.52, as may be amended. Among the examples of fireworks and/or pyrotechnics included within this definition are: many non-detonating military devices such as large flares, and certain propellants, specialty fireworks and larger devices used in public displays, firecrackers, torpedoes, skyrockets, roman candles, sparklers, bottle rockets, or other fireworks and/or pyrotechnics of like construction, fireworks and/or pyrotechnics containing any explosive or combustible compound, and any tablet or other device, including containers of any kind, containing an explosive substance.

(Ord. No. 5932, § 2, 6-13-07)

Sec. 16.02.030 Possession of fireworks and/or pyrotechnics unlawful; exceptions.

It is unlawful for any person to have, possess, keep, store, handle, manufacture, sell, offer for sale, expose for sale, sell at retail, or use or explode any fireworks and/or pyrotechnics; however, this chapter does not apply to the following:

(1) Possession or use of signaling devices by railroads or by persons for emergency purposes or to designate the presence of a vehicle accident or other event of emergency.

(2) Toy caps for use in toy pistols, toy canes, or toy guns, and novelties and trick noisemakers manufactured in accordance with DOT regulations, 49 CFR §173.100 (p), as may be amended, and packed and shipped according to said regulations.

(3) Model rockets and model rocket motors designed, sold, and used for the sole purpose of propelling recoverable aero models.

(4) In the event a duly authorized permit is available and is issued under the provisions of the Fire Code.

(Ord. No. 5932, § 2, 6-13-07)

Sec. 16.02.040 Seizure and forfeiture.

Pursuant to NRS 202.770, any explosives, as that term is defined in NRS 202.750, which are used or intended to be used in violation of NRS 202.750 to 202.840, or any other law or ordinance shall be subject to seizure and forfeiture of those materials. The local authority reserves all rights to utilize and enforce NRS sections 202.750 through 202.840, inclusive, as adopted and as may be amended. Further, the local authority shall seize, take, remove, or cause to be removed at the expense of the owner, all stocks of all fireworks and/or pyrotechnics offered or exposed for sale or possessed or stored or held in violation of Title 16.02 of the Reno Municipal Code and such materials are subject to forfeiture.

(Ord. No. 5932, § 2, 6-13-07)

Sec. 16.02.050 Penalties; continuing violations.

Section 1.04.010 of the Reno Municipal Code which sets forth the general penalty for violations, including continuing violations, shall apply to any violation of any section of this Reno Municipal Code Chapter 16.02, and is incorporated herein in full, and as may be amended, by reference.

(Ord. No. 5932, § 2, 6-13-07)

CHAPTERS 16.04—16.40. RESERVED*

*__Editor's note—__Ord. No. 5683, § 1, adopted April 13, 2005, repealed Chs. 16.04 through 16.40, in their entirety. Said chapters pertained to administration; fire codes; explosives; pyrotechnic and small arms ammunition; nitrocellulose motion picture films; pyroxylin plastic; flammable liquids; compressed and liquefied gases other than acetylene; oil burning systems; gas appliances and connections; dust explosions; hazardous chemicals; automobile tire rebuilding plants; places of public assembly; tents used for assembly; fire extinguishing equipment; fire hydrants; burning rubbish; and fire alarm systems. See also the Code Comparative Table for a detailed analysis.

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Title 18 ANNEXATION AND LAND DEVELOPMENT (RESERVED)*

*__Editor's note—__It should be noted that Ord. No. 5643, § 1, adopted Feb. 9, 2005, repealed former Title 18, in its entirety, excepting Ch. 18.34. Ord. No. 5649, § 1, adopted Feb. 9, 2005 enacted provisions designated as a new Title 18. The new Title 18 is published as a companion volume to this Code. See also the Code Comparative Table for a detailed analysis of inclusion of said ordinances.

Cross reference—Buildings and construction, Tit. 14.

State law references—Annexation, NRS 268.610 et seq.; planning and zoning, NRS 278.010 et seq.

Case law reference—(1) Each case involving the constitutionality of zoning laws must be determined on its facts as they appear in the record before the court. State ex. rel. *Roman Catholic Bishop of Reno v. Hill,* 59 Nev. 231, 90 P. (2d) 217.

(2) Not the duty of court to interfere with discretion invested in board of adjustment and other city officials unless ordinance, as it affected petitioner's property, disclosed an unreasonable or arbitrary exercise of power by zoning authorities and that the ordinance had no substantial relation to public health, safety, morals or general welfare. State ex. rel. *Davie v. Coleman,* 67 Nev. 636, 224 P. (2d) 309 (1950).

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Title 20 REDEVELOPMENT

Ch. 20.02. Community Redevelopment, §§ 20.02.010—20.02.080

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CHAPTER 20.02. COMMUNITY REDEVELOPMENT*

Sec. 20.02.010. Definitions.
Sec. 20.02.020. Findings and declarations of city council concerning functioning of redevelopment agency with regard to tentative plan.
Sec. 20.02.030. City council determination; approval and adoption of tentative plan.
Sec. 20.02.040. Boundaries of project area.
Sec. 20.02.050. Contents of tentative plan and findings.
Sec. 20.02.060. Declaration of findings pursuant to NRS 279.566(2).
Sec. 20.02.070. Reserved.
Sec. 20.02.080. Duties of building and safety department.

Sec. 20.02.010. Definitions.

(a) Except as otherwise provided in this chapter or where the context requires otherwise, terms used or referred to in this chapter are as defined in the Community Redevelopment Law, NRS 279.382 through 279.680.

(b) The following definitions shall apply in this chapter:

(1) *Agency* means the redevelopment agency of the city.

(2) *City* means the City of Reno, Nevada.

(3) *City council* means the City Council of Reno.

(4) *Planning commission* means the Reno City Planning Commission.

(Ord. No. 5648, § 1, 2-9-05)

Sec. 20.02.020. Findings and declarations of city council concerning functioning of redevelopment agency with regard to tentative plan.

The city council ratifies and approves all prior actions taken to date with regard to the formulation of the tentative redevelopment plan including the following actions:

(1) Pursuant to NRS 279.428 and 279.444 and by Resolution No. 3767, the city council:

a. Declared the need for the agency to function in the city; and

b. Declared itself to be the agency in which are vested all the rights, powers, duties, privileges immunities vested by NRS 279.382 to 279.680, inclusive.

(2) As authorized by NRS 279.518, on February 22, 1982, the city council passed and adopted Resolution No. 3769, the contents of such resolution complying with the requirements of NRS 279.520, whereby a described redevelopment area within the city was designated and the planning commission was directed, as provided in NRS 279.524, to select one or more project areas comprising all or part of the described redevelopment area and to formulate a preliminary plan for the redevelopment of each project area.

***State law reference—**Community Redevelopment Law, NRS 279.382 et seq.

(3) On March 17, 1982, the planning commission considered a preliminary redevelopment plan for the downtown redevelopment project area, approved said plan and submitted it to the redevelopment agency.

(4) The agency based the tentative plan upon the preliminary plan, and on April 26, 1982; conducted a public hearing on such tentative plan after compliance with the provisions of subsections 2 to 4, inclusive, of NRS 279.532. At such public hearing the agency provided an opportunity for all interested persons or public or private agencies to be heard and to submit alternative redevelopment plans for a project area. No alternative redevelopment plans were submitted.

(5) Following the public hearing held by the agency on April 26, 1982, the tentative plan was presented by the agency to the city council accompanied by a report containing the items specified in subsections 1 to 4, inclusive, of NRS 279.538.

(6) Complying with NRS 279.542, the city council held a public hearing on the adoption of the tentative plan on May 24, 1982, published notice of such public hearing having been made in compliance with subsections 2 and 3 of NRS 279.542. At the public hearing, the city council complied with the requirements of NRS 279.544. No alternate plans were filed with the city council.

(Ord. No. 5648, § 1, 2-9-05)

Sec. 20.02.030. City council determination; approval and adoption of tentative plan.

The city council hereby:

(1) Determines that the redevelopment of the project area is in the public interest and tends to effectuate the purposes and policy of NRS 279.382 to 279.680, inclusive.

(2) Approves and adopts the tentative plan as referred to in section 18.07.050(a).

(Ord. No. 5648, § 1, 2-9-05)

Sec. 20.02.040. Boundaries of project area.

Beginning at the intersection of the westerly right-of-way line of Vine Street and the northerly right-of-way line of West 5th Street, thence easterly along the northerly right-of-way line of West 5th Street to the westerly right-of-way line of West Street, thence northerly along the westerly right-of-way line of West Street to the northerly right-of-way line of Elm Street extended, thence easterly along the northerly right-of-way line of Elm Street to the westerly right-of-way line of North Sierra Street, thence northerly along the westerly right-of-way line of North Sierra Street to the northerly right-of-way line of Maple Street, thence easterly along the northerly right-of-way line of Maple Street to the westerly right-of-way line of North Virginia Street, thence northerly along the westerly right-of-way line at North Virginia Street to the northerly right-of-way line of East 8th Street, thence easterly along the northerly right-of-way line of East 8th Street to the easterly right-of-way line of North Center Street, thence southerly along the easterly right-of way line of North Center Street to the northerly right-of-way line of East 5th Street, thence easterly along the northerly right-of-way line of East 5th Street to the easterly right-of-way line of North Lake Street, thence southerly along the easterly right-of-way line of North Lake Street to the northerly right-of-way line of East 4th Street, thence easterly along the northerly right-of-way line of East 4th Street to the easterly right-of-way line of Evans Avenue, thence southerly along the easterly right-of-way line of Evans Avenue to the northerly

right-of-way line of the Southern Pacific Railroad, thence easterly along the northerly right-of-way line of the Southern Pacific Railroad to the easterly right-of-way line of North Wells Avenue, thence southerly along the easterly right-of-way line of North Wells Avenue to the southerly high water line of the Truckee River, thence westerly and southwesterly along the southerly high water line of the Truckee River to the northerly right-of-way line of East 2nd Street, thence easterly along the northerly right-of-way line of East 2nd Street to the easterly right-of-way line of High Street, thence southerly along the easterly right-of-way line of High Street, thence southerly along the easterly right-of-way line of High Street extended to the southerly right-of-way line of High Street extended to the southerly right-of-way line of East Liberty Street, thence westerly along the southerly right-of-way line of East Liberty Street to the easterly line of an unnamed north-south alley, said line being approximately 160 feet east of, and parallel to, the easterly right-of-way line of Sinclair Street, thence southerly along the easterly line of said unnamed north-south alley extended to the southerly right-of-way line of Stewart Street, thence westerly along the southerly right-of-way line of Stewart Street to the easterly right-of-way line of South Virginia Street, thence southerly along the easterly right-of-way line of South Virginia Street to the southerly right-of-way line of California Avenue extended, thence westerly along the southerly right-of-way line of California Avenue to the westerly right-of-way line of South Sierra Street, thence northerly along the westerly right-of-way line of South Sierra Street to the southerly right-of-way of Court Street, thence westerly along the southerly right-of-way line of Court Street to the westerly right-of-way line of Rainbow Street extended, thence northerly along the westerly right-of-way of Rainbow Street to the southerly high water line of the Truckee River, thence westerly along the southerly high water line of the Truckee River to the westerly right-of-way line of Winter Street extended, thence northerly along the westerly right-of-way line of Winter Street to the Southerly right-of-way line of the Southern Pacific Railroad, thence westerly along the southerly right-of-way line of the Southern Pacific Railroad to the westerly right-of-way line of Keystone Avenue, thence northerly along the westerly right-of-way line of Keystone Avenue to the northerly right-of-way line of the Southern Pacific Railroad, thence easterly along the northerly right-of-way line of the Southern Pacific Railroad to the westerly right-of-way line of Vine Street, thence northerly along the westerly right-of-way line of Vine Street, to the northerly right-of-way line of West 5th Street, and the point of beginning.

(Ord. No. 5648, § 1, 2-9-05)

Sec. 20.02.050. Contents of tentative plan and findings.

(a) This chapter includes by reference the attached "Tentative Redevelopment Plan for the Downtown Project Area for the City of Reno, Nevada," dated April 12, 1982, which is identified as Exhibit A and which is incorporated herein and made a part of this chapter.

(b) This chapter includes by reference the attached "General Development Plan for the City of Reno, Nevada," adopted by the city in 1970 which is identified as Exhibit "B" and which is incorporated herein and made a part of this chapter.

(Ord. No. 5648, § 1, 2-9-05)

Sec. 20.02.060. Declaration of findings pursuant to NRS 279.566(2).

(a) Negative factors have been found in recent surveys and other information regarding the downtown project area which include but are not limited to decaying, dilapidated facades; confusing signage; peeling paint on signs and buildings; deteriorating streets, curbs, gutters and sidewalks; unsightly overhead wires; unattractive pipes and wires on sides of

buildings; vacant buildings; poor drainage; pedestrian/vehicular conflicts; and an unappealing collection of street furniture, vending machines, newspaper stands and other street equipment. These negative factors pose a substantial risk to the health, safety, and general welfare of the citizens of Reno. These negative factors create blight, which has an injurious and detrimental effect upon the public health, safety and general welfare.

(b) Those statements appearing in the tentative redevelopment plan, Exhibit A, which is attached hereto and incorporated herein by section 20.02.050, which show the extent and character of blight, obsolescence and substandard conditions in the project area and their injurious and detrimental effects upon the public health, safety and general welfare are hereby included in this declaration of findings.

(Ord. No. 5648, § 1, 2-9-05)

Sec. 20.02.070. Reserved.

Sec. 20.02.080. Duties of building and safety department.

On and after the effective date of this chapter, the building and safety department of the city shall advise all applicants for building permits in the project area that the site for which a building permit is sought for construction of buildings or for other proposed improvements within a proposed redevelopment project area.

(Ord. No. 5648, § 1, 2-9-05)

Title 22 PUBLIC ART

Ch. 22.02. Art in Public Places, §§ 22.02.010—22.02.110

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CHAPTER 22.02. ART IN PUBLIC PLACES

Sec. 22.02.010. Purpose and intent.
Sec. 22.02.020. Policy.
Sec. 22.02.030. Definitions.
Sec. 22.02.040. Funding for works of art.
Sec. 22.02.050. Creation of public art fund.
Sec. 22.02.060. Inappropriate expenditures.
Sec. 22.02.070. Exclusions from and additions to public art program.
Sec. 22.02.080. Approval.
Sec. 22.02.090. Other agencies.
Sec. 22.02.100. Public art program management.
Sec. 22.02.110. Placement of works of art.

Sec. 22.02.010. Purpose and intent.

The purposes of this chapter are to promote the cultural heritage and artistic development of the City of Reno, to enhance the city's character and identity, to contribute to economic development and tourism, to add warmth, dignity, beauty and accessibility to public spaces and to expand the experience and participation of citizens with visual arts, by directing the inclusion of public art in city capital improvement projects and certain private developments.

(Ord. No. 5646, § 1, 2-9-05)

Sec. 22.02.020. Policy.

Appropriations for eligible construction projects shall, from the effective date of this chapter, include an amount equal to two percent of the total eligible project costs, to be used for artist design services and for the selection, acquisition, display and maintenance of artworks.

(Ord. No. 5646, § 1, 2-9-05)

Sec. 22.02.030. Definitions.

The following words when used in this chapter shall have the meaning ascribed to them:

(1) *Artist* means any practitioner in the visual and design arts, generally recognized by critics and peers as a professional in the field as evidenced by his/her education, experience, exhibition record and artwork production.

(2) *Artwork* means works in a variety of media produced by professional artists; works may be permanent, temporary or functional, may be stand-alone or integrated with the architecture or landscaping, if such are designed by an artist as defined above, and should encompass the broadest range of expression, media and materials. The term "artwork" does not include inappropriate expenditures as described in section 22.02.060.

(3) *Arts and culture commission* or *commission* means the City of Reno Arts and Culture Commission established by Ordinance No. 4023 that advises the city council on expenditures from the public art fund.

(4) *Capital improvement program* means the city's program for capital development.

(5) *Eligible construction project* means any capital project paid for wholly or in part by the city for the construction or renovation of any building, park, highway or arterial,

streetscape or road beautification, bridge, transit or aviation facility, trail or bikeway, parking facility, above-grade utility, or any portion thereof, to which the public has access or which is visible from a public right-of-way.

(6) *Eligible project costs* means the total project appropriation, less real property acquisition, demolition, environmental remediation, legal and accounting fees and interest costs. It shall also exclude funding from any outside source, if such funds are not permitted to be used for works of art.

(7) *Public art collection* means the works of art owned by the city resulting from this ordinance or the public art ordinance that preceded this chapter.

(8) *Public art fund* means a separate account into which all monies generated under this ordinance or derived from gifts or donations for public art shall be deposited.

(9) *Public art program* means the program promoting public art as established by this chapter and managed in accordance with section 18.15.090.

(10) *Public place* means an area on public or private property that is accessible and visible to the general public.

(11) *Renovation* means any major redesign of a facility or system, or portion thereof, which is included in eligible construction projects, including expansion or upgrading the capacity of the facility or system, enlarging the facility or creating a new use for the facility. It does not include repairs, maintenance or installation of replacement mechanical equipment or modifications required solely for the purposes of compliance with state or federal laws.

(Ord. No. 5646, § 1, 2-9-05)

Sec. 22.02.040. Funding for works of art.

(a) Each year in adopting the city's annual capital improvement budget, the city council shall provide in said budget for amounts of two percent of the total amount budgeted for each eligible construction project to be set aside and identified as sources of funds to be appropriated and expended for acquisition of works of art in accordance with the provisions of this chapter. Appropriations for purposes of acquiring works of art in order to carry out the provisions of this chapter shall be made in accordance with law and the budgeting procedures of the city.

(b) If the source of funding or other applicable law or regulation with respect to any particular project prohibits or restricts the use of funds for artworks, the amount of funds so prohibited or restricted shall be excluded in determining the two percent.

(c) After the effective date of this ordinance, the issuance of new bonds pertaining to eligible construction projects shall include the two percent for use for artworks, unless restricted by federal or state law.

(d) In the case of any eligible construction project which involves the use of grant funds, or the proceeds of any bonds issued after the effective date of this chapter amounts for works of art shall be used for projects and purposes consistent with state and federal laws, the resolutions and/or ordinances approved by the voters or the city council, as applicable. All capital improvement project bond ordinances, resolutions or grant applications approved after the effective date of this ordinance shall make specific reference to the provisions of this chapter.

(e) All city departments and agencies shall, from the effective date of this ordinance, include in all applications for funding for capital improvement projects to outside grant organizations or governmental agencies, an amount equal to two percent of eligible construction costs for works of art as specified herein unless specifically prohibited.

(f) The minimum amount to be appropriated for works of art shall be the total eligible project costs multiplied by 0.02. This calculation shall be included in any request for appropriation of funds for any eligible construction project.

(Ord. No. 5646, § 1, 2-9-05)

Sec. 22.02.050. Creation of public art fund.

(a) Any monies collected in accordance with this chapter shall be deposited into a separate account (public art fund) by the director of finance. The director of finance shall establish accounting records sufficient to identify and control these funds in accordance with the provisions of this chapter. The account containing these funds shall earn interest and the earned interest shall be used for and subject to the same restrictions established by this section. The transfer of monies shall take place within 30 days of appropriation by the city council. The public art fund shall be authorized to accept gifts, grants and donations made to the city for works of art, as well as any in-lieu contributions from private developers. The public art fund shall be self-perpetuating from year to year, unless specifically terminated by the city council.

(b) Appropriations and expenditures for works of art may include, but are not limited to, the costs and expenses incurred in the process of developing and installing works of art in public buildings or grounds. Such administrative costs shall not exceed 15 percent of the two percent set aside for works of art by project.

(c) Funds authorized and/or appropriated pursuant to this chapter for city construction projects, but not spent on that project in total or in part, may be expended for public art projects in other city projects or in existing public facilities and spaces which are owned by the city, if legally permissible.

(d) An amount equal to 15 percent of the public art allocation for each project (0.0030 of the total eligible project costs) shall be set aside in a separate account within the public art fund to be used for program administration and community participation activities, including artist selection, design/proposal/maquette costs, consultant fees, project documentation, publicity, community education activities, interpretive plaques and other purposes as may be deemed appropriate by the arts and culture commission for the administration of the program. Funds in the program administration account not expended at the close of any fiscal year shall be carried forward into the next year.

(e) An amount equal to ten percent of the public art allocation for each project (0.0020 of the total eligible project costs) shall be set aside in a separate account within the public art fund for curatorial services and the preservation and maintenance of works of art in the public art collection. Funds in the maintenance and conservation account not expended at the close of any fiscal year shall be carried forward into the next year. Private developers who choose to develop public art projects on their property may retain up to ten percent of their public art funds to create an endowment to maintain the artworks over time. The city shall have no obligation to provide for the preservation and maintenance of artworks placed on private property.

(f) The public art fund shall be used to provide sites for and works of art in public places. Public works of art may be placed on public display, integral or attached to a public building or structure, detached within or outside a public building or structure, within or as a part of the landscape of a public park, square or other outdoor public site or lands, part of a portable exhibition or collection, part of a temporary exhibition or loaned or exhibited in other public facilities.

(Ord. No. 5646, § 1, 2-9-05)

Sec. 22.02.060. Inappropriate expenditures.

Expenditures that would not be appropriate include, but are not limited to:

(1) Reproductions by mechanical or other means of original works of art (however, limited editions controlled by the artist, or original prints, cast sculpture, photographs, etc., may be included);

(2) Decorative, ornamental or functional elements that are designed by the architect or other design consultants engaged by the architect;

(3) Those elements generally considered to be components of the landscape architectural design, vegetative materials, pool(s), paths, benches, receptacles, fixtures, planters, etc., which are designed by the architect, landscape architect or other design professional engaged by the primary designer;

(4) Art objects which are mass produced or of a standard design, such as playground sculpture or fountains; directional or other functional elements, such as signing, color coding, maps, etc.;

(5) Ongoing operating expenses or routine maintenance of works of art, architectural elements on or in which the works of art are placed, or sites where works of art are located; and

(6) Purchase of existing works of art without the selection process as provided for in the adopted public art program guidelines and policies.

(Ord. No. 5646, § 1, 2-9-05)

Sec. 22.02.070. Exclusions from and additions to public art program.

(a) Prior to submission of the city's proposed annual capital improvement budget to the city council, the capital improvement program committee shall notify the commission of:

(1) those capital improvement projects that are appropriate for public art. The funding source for each project shall be identified and the capital improvement program committee, or successor entity, shall indicate whether or not the same source of funding can legally be used to provide public art at the project site and if the funds can legally be pooled with other monies in the public art fund for use at a different site;

(2) those proposed capital improvement projects in said budget that are not appropriate for public art, due to low anticipated public visibility and/or public usage. The funding source for each project shall be identified and the capital improvement program committee shall indicate if the funds can legally be pooled with other monies in the public art fund for use at a different site; and

(3) any proposed additional and discretionary funds added to the art in public places program.

(b) In conjunction with the approval of the city's annual capital improvement budget, the city council shall consider the recommendation of the commission and may:

(1) determine that the funds for certain capital improvement projects cannot legally be pooled and therefore cannot be deposited in the public art fund;

(2) designate additional funds to be added to the public art fund, which said funds may be utilized to place works of art in existing public buildings which do not otherwise qualify as eligible; the amount of said additional funds shall be discretionary; and/or

(3) determine that the funds for certain capital improvements shall not be pooled and therefore not be deposited in the public art fund.

(Ord. No. 5646, § 1, 2-9-05)

Sec. 22.02.080. Approval.

Contracts of over $25,000.00 for development of works of art or for other purposes authorized by this chapter shall be submitted to the city council for approval. Contracts under $25,000.00 shall be submitted to the city manager or duly authorized designee for approval.

(Ord. No. 5646, § 1, 2-9-05)

Sec. 22.02.090. Other agencies.

(a) If the city enters into an agreement with another public agency, whereby city monies are transferred to such agency for the purpose of performing a capital improvement project which would otherwise be deemed an eligible construction project under this chapter, such agreement shall provide — whenever it is lawful — that the recipient or its successor in interest shall take appropriate measures to insure that two percent of said monies are expended for development of art in accordance with this chapter.

(b) If the city enters into an agreement with a private developer for a capital project, wherein the city or redevelopment agency provide financing, loan guarantees, tax abatement, land or other significant in-kind support, the private developer shall provide for public art in an amount not less than two percent of the total project budget. The proposed artwork shall be reviewed and approved by the commission. The private developer may, in lieu of this requirement, deposit an amount equal to two percent of the total project cost in the public art fund, to be expended on public art projects elsewhere in the city.

(Ord. No. 5646, § 1, 2-9-05)

Sec. 22.02.100. Public art program management.

(a) The public art fund shall be appropriated and expended by the city council with the advice of the commission. Annually, the commission shall develop a public art work plan, detailing the proposed public art projects to be implemented in the upcoming year. The commission shall submit this plan to the city council for review and approval. The public art program guidelines and policies attached to this ordinance are hereby adopted to provide guidance in the appropriation and expenditures of the public art fund and this chapter. These policies and procedures may be amended only after a public hearing by the commission and adoption of a resolution by the city council.

(b) The commission shall, with the guidance of the adopted public art program guidelines and policies:

(1) Make recommendations to the city council on public places that shall be considered for works of art;

(2) Make recommendations to the city council on artists whose works should be considered for placement in public places;

(3) Review and determine if any work of art to be located within a public place by the city is appropriate; and

(4) Make recommendations to the city council on the development of public art.

Once a project is included in the approved public art work plan, the commission shall be responsible for the selection of artists, the commissioning of works of art and/or the purchase of works of art. Over time, the commission should achieve an appropriate balance among local, regional and national artists in the program. The enduring quality of the works of art should be a primary consideration for the selection of artists.

(c) The commission shall require that any works of art that may need extraordinary operations or maintenance be reviewed by the appropriate city department prior to the acquisition of that work of art. At least once every three years, the commission shall be responsible for conducting a maintenance survey of the public art collection. This survey shall include a condition report on each work, prioritized recommendations for the restoration or repair or maintenance of works of art, and estimated costs. It shall be the responsibility of the various city departments to provide for the routine maintenance of works of art under their jurisdiction. Such routine maintenance shall be in accordance with approved plans submitted by each project artist. The commission shall oversee any non-routine maintenance.

(d) The commission may encourage and help obtain additional grants and gifts of public art from outside sources.

(e) Day-to-day management of the public art program shall be provided by the city's arts and culture division of parks, recreation and community services, or successor thereto.

(Ord. No. 5646, § 1, 2-9-05)

Sec. 22.02.110. Placement of works of art.

Works of art selected and implemented pursuant to the provisions of this ordinance and any resolution thereto, may be placed in, on or about city capital projects. Selection of the placement site shall be completed by the city's arts and culture division of parks, recreation and community services, or successor thereto, in consultation with other city department(s), as appropriate. They may be attached or detached, within or about such property, and may be either temporary or permanent. City department(s) responsible for the design and construction of such projects shall make appropriate spaces available for the placement of works of art.

Placement of works shall be followed, within a reasonable time frame, by interpretative plaques on or near the work of art, indicating artist, year created and dedicated, and description of the work or its reason for installation, as appropriate. Plaque placement shall be determined by the city's arts and culture division of parks, recreation and community services, or successor thereto, in consultation with the artist.

(Ord. No. 5646, § 1, 2-9-05)

CODE COMPARATIVE TABLE
1966 CODE

This table gives the location within this Code of those sections of the 1966 Code updated through 6-26-78, which are included herein. Sections of the 1966 Code not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

Code 1966 Section	Section this Code	Code 1966 Section	Section this Code
1.01.010	1.01.010	2.40.020	2.18.010—
1.04.010	1.01.040		2.18.030
1.04.030	1.01.020	2.44.010—	2.10.010—
	1.01.090	2.44.060	2.10.060
1.04.040	1.01.070	2.44.100	2.10.070
1.04.050	1.01.030	2.44.110	2.10.080
1.08.010	1.02.010—	2.44.140	2.10.090
	1.02.060	2.44.150	2.10.110
1.12.010—	1.04.010—	2.48.010	2.14.010
1.12.090	1.04.090	2.48.015	2.14.020
2.06.010	2.04.010	2.48.020—	2.14.030
2.06.020	2.04.020—	2.48.080	
	2.04.040	2.48.081	2.14.100
2.06.030—	2.04.050—	2.48.082	2.14.110
2.06.060	2.04.080	2.48.090—	2.14.120—
2.08.010	2.08.020	2.48.120	2.14.150
2.08.020	2.08.080	2.48.140—	2.14.160—
2.08.030	2.08.030—	2.48.170	2.14.190
	2.08.060	2.50.010	2.14.200
2.08.040	2.08.070	2.50.030	2.14.220
2.09.010	2.06.030	2.50.040	2.14.230
2.09.020	2.06.020	2.50.050	2.14.250
2.09.030	2.06.040	2.50.060	2.14.260
2.09.040	2.06.050	2.50.070	2.14.260
2.24.010	2.08.100—		2.14.270
	2.08.130	2.50.080	2.14.280
2.24.020	2.08.150	2.50.090	2.14.290
2.24.030	2.08.160	2.50.100	2.14.300
2.24.040	2.08.140	2.50.102	2.14.210
2.24.050	2.08.150	2.50.110	2.14.310
2.24.060	2.08.170	2.50.120—	2.14.320—
2.32.010	2.16.040	2.50.150	2.14.350
2.32.020	2.16.060	2.50.160	2.14.250
2.32.030	2.16.050	2.50.170	2.14.360
2.32.040,	2.16.030	2.50.180	2.14.370
2.32.050		2.52.010	2.12.010
2.32.060	2.16.010	2.56.010	2.08.230—
2.32.070	2.16.020		2.08.280
2.36.010	2.08.180—	2.56.020	2.08.290
	2.08.210	2.56.040	2.08.280
2.36.020	2.08.220	2.56.050	2.08.290

Code 1966 Section	Section this Code
2.56.060	2.08.310
2.56.303	2.08.300
2.60.010	2.06.070
2.60.020	2.06.090
2.60.030	2.06.080
2.60.040	2.06.100
4.01.010	4.04.010
4.01.020	4.04.020
4.01.030—	4.04.040—
4.01.060	4.04.070
4.01.070—	4.04.090—
4.01.090	4.04.110
4.01.100	4.04.280
4.01.110	4.04.120
4.01.130	4.04.130
4.01.140	4.04.140
4.01.150,	4.04.150
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4.01.180	
4.01.190	4.04.170
4.01.200	4.04.180
4.01.210	4.04.230
4.01.220—	4.04.190—
4.01.240	4.04.210
4.01.250	4.04.030
4.01.260—	4.04.240—
4.01.290	4.04.270
4.01.300	4.04.080
4.01.310	4.04.220
4.01.320	4.04.230
4.01.350	4.04.300
4.01.360	4.04.310
4.01.380	4.04.350
4.01.390	4.04.320
4.01.400	4.04.330
4.01.410	4.04.340
4.01.420	4.04.370
4.01.430—	4.04.390
4.01.450	
4.01.455	4.06.310
4.01.460,	4.04.400
4.01.470	
4.01.480	4.04.410
4.01.490	4.04.360
4.01.500	4.04.420
4.01.520	4.04.430
4.01.530	4.04.440
4.01.540,	4.04.460
4.01.550	
4.01.560—	4.04.490—
4.01.590	4.04.520
4.01.600	4.04.380
4.01.610,	4.04.530
4.01.620	
4.01.640	4.04.560
4.01.660	4.04.570
4.01.670—	4.04.580—
4.01.690	4.04.600
4.01.700	4.04.540
4.01.710	4.04.610
4.01.720	4.04.470
4.01.730	4.04.550
4.01.740	4.04.450
4.04.010—	4.06.010—
4.04.030	4.06.030
4.04.040	4.06.070
4.04.050	4.06.080
4.04.090	4.06.120
4.04.100	4.06.180
4.04.110	4.06.190
4.04.120—	4.06.200—
4.04.220	4.06.300
4.04.230	4.06.040
4.04.240	4.04.050
4.04.250	4.06.130
4.04.260	4.06.140
4.04.280	4.06.150
4.04.290	4.06.160
4.04.310	4.06.170
4.04.320	4.04.060
4.06.010	4.12.010
4.06.020	4.12.090
4.06.030	4.12.100
4.06.050	4.12.110
4.06.100	4.12.040
4.06.110	4.12.050
4.06.130	4.12.060
4.06.140	4.12.080
4.06.150	4.12.080
4.06.160	4.12.020
4.06.170	4.12.030
4.07.010	4.26.010
4.07.020—	4.26.040—
4.07.050	4.26.070
4.07.060	4.26.020
4.07.070	4.26.030
4.07.080	4.26.080
4.08.010	4.14.010
4.05.020	4.14.020
	4.14.030
	4.14.060

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4.08.030	4.14.030	4.28.080	4.22.170
	4.14.060	4.28.090	4.22.180
4.08.040	4.14.040	4.28.100	4.22.190
4.OS.050	4.14.050	4.28.110	4.22.200
4.08.070	4.14.090	4.28.120	4.22.210
4.08.100	4.14.070	4.30.010	4.22.320
4.08.110	4.14.080	4.30.030	4.22.340
4.10.010	4.56.010	4.30.040	4.22.350
4.10.020	4.56.030	4.30.050	4.22.360
	4.56.040	4.30.060	4.22.370
	4.56.060	4.30.070	4.22.380
4.10.030	4.56.020	4.30.080	4.22.390
4.10.040	4.56.050	4.30.090	4.22.400
4.12.020	4.10.020	4.30.100	4.22.410
4.12.030	4.10.030	4.30.110	4.22.420
	4.10.040	4.30.120	4.22.430
4.12.040	4.10.050	4.32.010	4.22.440
	4.10.060	4.32.020	4.22.450
4.14.010	4.10.080—	4.32.030	4.22.460
	4.10.120	4.32.040	4.22.470
4.14.020	4.10.070	4.32.050	4.22.480
4.16.010	4.18.010	4.32.060	4.22.490
4.16.020	4.18.020	4.32.070	4.22.500
4.16.030	4.18.030	4.32.080	4.22.510
4.16.040	4.18.040	4.32.090	4.22.520
4.16.050	4.18.050	4.32.100	4.22.530
4.16.060	4.18.060	4.32.110	4.22.540
4.18.010	4.20.010	4.40.010	4.24.010
4.18.020	4.20.020	4.40.020	4.24.020
4.18.020	4.20.030	4.40.030	4.24.030
4.18.030	4.20.040	4.40.040	4.24.160
4.20.010—	4.08.010—	4.40.050	4.24.140
4.20.030	4.08.030	4.40.060	4.24.150
4.20.060	4.08.040	4.40.070	4.24.170
4.20.070	4.08.050	4.40.050	4.24.180
4.26.010	4.22.010	4.40.090	4.24.190
4.26.020	4.22.020	4.40.100	4.24.200
4.26.030	4.22.030	4.40.110	4.24.210
4.26.040	4.22.040	4.40.120	4.24.130
4.26.050	4.22.050	4.40.130	4.24.220
4.26.060	4.22.060	4.40.140	4.24.040
4.26.070	4.22.070	4.40.150	4.24.050
4.26.080	4.22.080	4.40.160	4.24.230
4.26.090	4.22.090	4.40.170	4.24.060
4.2S.010	4.22.100	4.40.180	4.24.070
4.28.020	4.22.110	4.40.190	4.24.080
4.28.030	4.22.120	4.40.200	4.24.090
4.28.040	4.22.130	4.40.210	4.24.100
4.28.050	4.22.140	4.40.220	4.24.110
4.28.060	4.22.150	4.40.230	4.24.290
4.28.070	4.22.160	4.40.240	4.24.300

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4.40.250	4.24.310	4.52.030	4.42.050
4.40.260	4.24.320	4.52.040	4.42.020
4.40.270	4.24.120	4.56.250	4.56.250
4.40.280	4.24.240	4.57.010	4.46.010
4.40.290	4.24.250	4.57.020	4.46.060
4.40.300	4.24.260	4.57.030	4.46.050
4.40.310	4.24.270		4.46.070
4.40.320	4.24.280		4.46.120
4.42.010	4.28.010	4.57.040	4.46.020
4.42.020	4.28.020	4.57.050	4.46.080
4.42.080	4.28.030	4.57.050	4.46.090
4.42.040	4.28.050	4.57.060	4.46.100
4.42.050	4.25.040		4.46.110
4.44.010	4.36.030	4.57.070	4.46.030
4.44.020	4.36.040	4.58.010	4.50.020
4.44.030	4.36.050	4.58.020	4.50.040
4.44.040	4.36.060	4.58.030	4.50.030
4.44.050	4.36.070	4.58.040	4.50.050
4.44.060	4.36.010	4.58.050	4.50.060
4.44.070	4.36.020	4.58.060	4.50.070
4.48.010	4.38.010	4.58.070	4.50.080
4.48.020	4.35.110	4.58.071	4.50.090
4.48.030	4.38.020	4.58.072	4.50.100
4.48.040	4.38.100	4.58.080	4.50.110
4.45.050	4.38.030	4.58.090	4.50.120
4.48.060	4.38.040	4.58.110	4.50.130
4.48.070	4.38.050	4.58.120	4.50.140
4.48.080	4.38.060	4.60.010	4.52.060
4.48.090	4.38.070	4.60.020	4.52.010
4.48.100	4.38.120	4.60.030	4.52.070
4.48.110	4.38.130		4.52.090
4.48.120	4.38.120		4.52.100
	4.38.150	4.60.040	4.52.080
	4.38.160	4.60.050	4.52.090
4.48.130	4.38.140	4.60.060	4.52.120
4.48.140	4.38.170		4.52.130
4.48.150,	4.38.050		4.52.140
4.48.160		4.60.070	4.52.100
4.48.170	4.38.090	4.60.080	4.52.130
4.50.010	4.40.020	4.60.090	4.52.110
4.50.020	4.40.010	4.60.100	4.52.020
4.50.030	4.40.030	4.60.110	4.52.030
4.50.040	4.40.040	4.60.120	4.52.040
4.50.050	4.40.060	4.60.130	4.52.050
4.50.080	4.40.070	4.64.010	4.56.070
4.50.090	4.40.090	4.64.020	4.56.100
4.50.100	4.40.080		4.56.110
4.50.120	4.40.050	4.64.030	4.56.120
4.52.010	4.42.010	4.64.040	4.56.130
4.52.020	4.42.030	4.64.050,	4.56.140
	4.42.040	4.64.060	

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4.64.070	4.56.150
4.64.080	4.56.160
4.64.090	4.56.280
	4.56.290
	4.56.320
4.64.100	4.56.300
4.64.110	4.56.310
4.64.120	4.56.090
	4.56.080
4.64.140	4.56.180
4.64.150	4.56.190
4.64.160	4.56.200
4.64.170	4.56.210
4.64.180	4.56.220
4.64.190	4.56.230
4.64.200	4.56.240
4.64.220	4.56.260
4.64.230	4.56.270
4.64.240	4.56.170
4.68.010	4.54.010
4.68.020	4.54.020
4.68.030	4.54.030
4.68.040	4.54.110—
	4.54.130
	4.54.150
4.68.050	4.54.140
4.68.080	4.54.040
4.68.090	4.54.060
4.68.100	4.54.070
4.68.110	4.54.080
4.68.120	4.54.040
	4.54.050
4.68.130	4.54.090
4.68.150	4.54.100
4.70.010	4.16.010
4.70.020	4.16.090
4.70.030	4.16.060
	4.16.070
	4.16.080
	4.16.110
4.70.040	4.16.070
4.70.050	4.16.020
4.70.060	4.16.090
4.70.070	4.16.120
4.70.080	4.16.040
4.70.100	4.16.050
4.70.110	4.16.130
4.70.120	4.16.030
4.70.130	4.16.100
4.70.140	4.16.030
4.72.010	4.60.010
4.72.020	4.60.020
4.72.030	4.60.030
4.74.010, 4.74.020	4.48.010
4.74.030	4.48.020
4.74.040	4.4S.030
4.74.050	4.48.040
4.76.010	4.58.010
	4.58.020
5.04.005	10.04.010
5.04.010	10.04.030
5.04.020	10.04.040
5.04.040	10.04.050
5.04.050	10.04.060
5.04.060	10.04.070
5.04.070	10.04.080
5.04.080	10.04.090
5.04.090	10.04.100
5.04.110	10.04.110
5.04.120	10.04.120
5.04.140	10.04.130
5.04.160	10.04.020
5.04.180	10.04.140
5.16.010	10.06.010
5.28.010	10.08.010
5.28.020	10.08.020
5.28.030	10.08.030
5.28.040	10.08.040
5.28.050	10.08.050
5.28.060	10.08.060
5.28.070	10.08.070
5.28.080	10.08.080
5.36.010	10.12.010
5.36.020	10.12.020
5.36.030	10.12.030
5.36.040	10.12.040
5.36.050	10.12.050
5.36.060	10.12.060
5.36.070	10.12.070
5.36.080	10.12.080
5.36.090	10.12.090
5.36.100	10.12.100
5.40.010	10.14.010
5.40.020	10.14.030
5.40.030	10.14.200
	10.14.210
	10.14.220
	10.14.230
	10.14.240
	10.14.250
	10.14.260

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	10.14.270	7.24.020	12.20.020
	10.14.280	7.24.030	12.20.030
	10.14.290	7.24.040	12.20.040
	10.14.310	7.24.050	12.20.050
5.40.040	10.14.300	7.24.060	12.20.060
5.40.050	10.14.040	7.24.070	12.20.070
5.40.060	10.14.050	7.24.050	12.20.080
5.40.070	10.14.060	7.24.090	12.20.090
5.40.080	10.14.070	8.04.010	6.04.010
5.40.090	10.14.080	8.04.020	6.04.020
5.40.100	10.14.090	8.04.030	6.04.030
5.40.110	10.14.100	8.04.040	6.04.040
5.40.120	10.14.110	8.04.050	6.04.050
5.40.130	10.14.120	8.04.060	6.04.060
5.40.140	10.14.130	8.04.070	6.04.070
5.40.150	10.14.140	8.04.080	6.04.080
5.40.160	10.14.150	8.04.090	6.04.090
5.40.170	10.14.020	8.04.120	6.04.100
5.40.180	10.14.160	8.04.130	6.04.110
5.40.190	10.14.170	8.04.140	6.04.120
5.40.200	10.14.180	8.04.150	6.04.130
5.40.210	10.14.190	8.04.160	6.04.140
7.01.010	12.04.010	8.04.170	6.04.150
7.04.010	12.06.010	8.04.200	6.04.160
7.04.020	12.06.020	8.04.205	6.04.170
7.04.030	12.06.030	8.04.210	6.04.180
7.04.040	12.06.040	8.04.220	6.04.190
7.04.050	12.06.050	8.04.230	6.04.200
7.04.060	12.06.060	8.04.240	6.04.210
7.04.070	12.06.070	8.04.250	6.04.220
7.04.090	12.06.080	8.04.260	6.04.230
7.04.100	12.06.080	8.04.270	6.04.240
7.08.010	12.08.010	8.04.280	6.04.250
	12.08.050	8.04.290	6.04.260
	12.08.060	8.04.300	6.04.270
	12.08.070	8.04.310	6.04.280
	12.08.100	8.04.320	6.04.290
	12.08.110	8.04.330	6.04.300
	12.08.120	8.04.340	6.04.310
7.08.020	12.08.080	8.04.350	6.04.320
7.08.030	12.08.030	8.04.360	6.04.340
7.08.040	12.08.040	8.04.370	6.04.350
7.08.050	12.08.090	8.04.390	6.04.360
7.08.060	12.08.020	8.04.400	6.04.370
7.12.010	12.10.020	8.04.410	6.04.380
7.12.020	12.10.010	8.04.420	6.04.390
7.12.030	12.10.030	8.04.430	6.04.400
7.12.040	12.10.040	5.04.440	6.04.410
7.16.010	12.12.010	8.04.450	6.04.420
	12.12.020	8.04.460	6.04.430
7.24.010	12.20.010	8.04.480	6.04.440

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8.04.490	6.04.450	8.16.100	6.06.150
8.04.500	6.04.460	8.16.110	6.06.095
8.04.510	6.04.470	8.16.130	6.06.100
8.04.520	6.04.480	8.16.140	6.06.105
8.04.530	6.04.490	8.20.010	6.06.275
8.04.540	6.04.500	8.20.020	6.06.280
8.04.550	6.04.510	8.20.030	6.06.285
8.04.560	6.04.520	8.20.040	6.06.290
8.04.570	6.04.530	8.20.050	6.06.300
8.04.580	6.04.540	8.20.070	6.06.305
8.04.590	6.04.550	8.20.080	6.06.310
8.04.600	6.04.560	8.20.090	6.06.315
8.04.610	6.04.570	8.24.010	6.06.220
8.04.620	6.04.580	8.24.020	6.06.225
8.04.630	6.04.590	8.24.030	6.06.230
8.04.640	6.04.600	8.24.040	6.06.235
8.04.650	6.04.610	8.24.050	6.06.240
8.04.660	6.04.620	8.24.060	6.06.245
8.04.670	6.04.630	8.24.070	6.06.250
8.04.680	6.04.640	8.28.010	6.06.110
8.04.690	6.04.650	8.28.020	6.06.115
8.04.700	6.04.660	8.2S.030	6.06.120
8.04.710	6.04.670	8.28.040	6.06.125
8.04.720	6.04.680	8.28.050	6.06.130
8.04.730	6.04.690	8.28.060	6.06.135
8.04.740	6.04.700	8.28.080	6.06.140
8.04.750	6.04.710	8.28.090	6.06.145
8.04.760	6.04.720	629.041	8.18.030
8.04.770	6.04.730	8.30.080(b)	8.30.090
8.04.780	6.04.740	8.32.010	6.06.260
8.04.790	6.04.750	8.32.020	6.06.265
8.04.800	6.04.760	8.32.030	6.06.270
8.04.810	6.04.770	8.36.010	6.06.155
8.04.815	6.04.780	8.36.020	6.06.160
8.04.820	6.04.790	8.36.030	6.06.165
8.04.830	6.04.800	8.36.040	6.06.170
8.12.030	6.06.015	8.36.050	6.06.175
8.12.040	6.06.020	8.36.060	6.06.180
8.12.050	6.06.025	8.36.070	6.06.190
8.12.060	6.06.030	8.36.080	6.06.180
8.12.070	6.06.035	8.36.090	6.06.195
8.12.080	6.06.040	8.36.100	6.06.205
8.12.090	6.06.185	8.36.120	6.06.215
8.12.110	6.06.050	8.36.130	6.06.200
8.12.120	6.06.045	8.36.140	6.06.210
8.16.010	6.06.060	8.40.010	6.06.320
8.16.020	6.06.065	8.40.020	6.06.325
8.16.040	6.06.070	8.40.030	6.06.330
8.16.050	6.06.075	8.40.040	6.06.335
8.16.080	6.06.080	8.40.050	6.06.340
8.16.090	6.06.090	8.44.010	6.06.345

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8.44.020	6.06.350	8.52.140	6.14.140
8.44.030	6.06.355	8.52.150	6.14.150
8.44.040	6.06.360	8.52.160	6.14.160
8.44.050	6.06.365	8.52.170	6.14.170
8.44.060	6.06.370	8.56.010	6.08.010
8.44.070	6.06.375	8.56.020	6.08.020
8.44.080	6.06.380	8.56.030	6.08.030
8.48.010	6.06.385	8.56.040	6.08.040
8.48.020	6.06.390	8.56.050	6.08.050
8.48.030	6.06.395	8.56.060	6.08.060
8.48.040	6.06.400	8.56.070	6.08.070
8.48.050	6.06.405	8.56.090	6.08.080
8.48.060	6.06.410	8.56.100	6.08.090
8.48.070	6.06.410	8.58.010	6.10.010
8.48.080	6.06.415	8.58.020	6.10.020
8.48.090	6.06.420	8.58.030	6.10.030
8.48.100	6.06.425	8.58.040	6.10.040
8.48.110	6.06.430	8.60.010	6.12.010
8.48.120	6.06.335	8.60.020	6.12.020
8.48.130	6.06.440	8.60.030	6.12.030
8.48.140	6.06.445	8.60.040	6.12.040
8.48.150	6.06.450	8.64.010	6.18.010
8.48.160	6.06.455	8.64.020	6.18.030
8.48.170	6.06.460	8.64.030	6.18.020
8.48.180	6.06.465	8.64.050	6.18.040
8.48.190	6.06.470	8.64.060	6.18.200
8.48.200	6.06.475		6.18.230
8.48.210	6.06.480	8.64.070	6.18.190
8.48.220	6.06.485		6.18.220
8.48.230	6.06.490	8.64.080	6.18.240
8.48.240	6.06.495	8.64.090	6.18.210
8.48.250	6.06.500	8.64.100	6.18.050
8.48.260	6.06.505	8.64.110	6.18.060
8.48.270	6.06.510	8.64.120	6.18.070
8.48.280	6.06.515	8.64.130	6.18.080
8.48.290	6.06.520	8.64.140	6.18.090
8.48.300	6.06.525	8.64.150	6.18.100
8.48.310	6.06.530	8.64.160	6.18.110
8.52.010	6.14.010	8.64.170	6.18.120
8.52.020	6.14.020	8.64.180	6.18.180
8.52.030	6.14.030	8.64.190	6.18.140
8.52.040	6.14.040	8.64.200	6.18.150
8.52.050	6.14.050	8.64.210	8.18.160
8.52.060	6.14.060	8.64.220	6.18.170
8.52.070	6.14.070	8.64.230	6.18.180
8.52.080	6.14.080	8.68.020	6.06.535
8.52.090	6.14.090	8.68.030	6.06.540
8.52.100	6.14.100	8.68.040	6.06.545
8.52.110	6.14.110	8.68.050	6.06.550
8.52.120	6.14.120	8.68.060	6.06.560
8.52.130	6.14.130	8.68.065	6.06.565

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8.68.070	6.06.570
8.68.080	6.06.575
8.68.090	6.06.580
8.68.100	6.06.585
8.68.110	6.06.590
8.68.140, 8.68.150	6.06.600
8.68.160	6.06.605
8.68.170	6.06.610
	6.06.615
8.68.180	6.06.620
8.68.190	6.06.625
8.68.210	6.06.630
8.68.220	6.06.635
8.68.230	6.06.640
8.68.240	6.06.645
8.68.250	6.06.650
8.68.260	6.06.655
8.68.280	6.06.660
8.68.290	6.06.665
8.68.300	6.06.670
8.68.320	6.06.675
8.68.330	6.06.680
8.68.340	6.06.685
8.72.010	6.20.010
8.72.020	6.20.020
8.72.030	6.20.030
8.72.040	6.20.040
8.72.050	6.20.050
8.72.060	6.20.060
8.72.070	6.20.070
8.72.080	6.20.080
8.72.090	6.20.090
9.08.010	6.16.010
9.08.020	6.16.030
	6.16.040
	6.16.050
	6.16.080
	6.16.090
	6.16.100
9.08.030	6.16.070
9.08.040	6.16.060
9.08.050	6.16.020
9.08.060	6.16.110
11.02.010	8.16.020
11.02.020	8.16.030
11.02.030	8.16.040
11.02.040	8.16.050
11.04.010	8.22.320
11.04.020	8.22.330
11.04.030	8.22.340
11.08.010	8.22.010
11.08.020	8.22.020
11.08.030	8.22.030
11.08.040	8.22.040
11.08.050	8.22.050
11.08.060	8.22.060
11.08.090	8.22.070
11.08.100	8.22.080
11.08.110	8.22.090
11.08.120	14.18.010
11.08.130	8.22.100
11.08.140	8.22.110
11.08.150	8.22.120
11.08.160	8.22.130
11.08.170	8.22.140
11.08.180	8.22.150
11.08.200	8.22.160
11.08.210	8.22.170
11.08.220	8.22.180
11.08.240	8.22.190
11.10.010	8.22.210
11.10.020	8.22.220
11.10.030	8.22.230
11.10.040	8.22.240
11.10.050	8.22.250
11.10.060	8.22.260
11.10.070	8.22.270
11.10.080	8.22.280
11.10.090	8.22.290
11.10.100	8.22.300
11.10.110	8.22.310
11.12.001	2.06.060
11.12.002	8.10.010
11.12.003	8.10.040
11.12.010	8.12.060
11.12.030	8.08.010
11.12.035	8.02.020
11.12.040	8.18.010
11.12.050	8.28.090
11.12.060	8.10.020
11.12.070	8.12.010
11.12.090	8.12.020
11.12.100	8.12.030
11.12.120	8.10.030
11.12.130	8.04.030
11.12.150	8.20.010
	8.20.020
	8.20.030
	8.20.040
	8.20.050
	8.20.060

Code 1966 Section	Section this Code	Code 1966 Section	Section this Code
	8.20.070		8.28.280
11.12.155	8.20.080	11.24.040	8.28.210
	8.20.090	11.24.050	8.28.250
	8.20.100	11.24.060	8.28.290
	8.20.110	11.24.065	8.28.020
11.12.160	8.06.010		8.28.490
11.12.170	8.04.040		8.28.500
11.12.180	8.12.080		8.28.510
11.12.190	8.12.070		8.28.520
11.12.220	8.12.050		8.28.530
11.12.230	8.06.020		8.28.540
11.12.240	8.12.090		8.28.550
11.12.260	8.08.030		8.28.560
11.12.280	8.12.100	11.24.070	8.28.300
11.12.310	8.16.010		8.28.310
11.12.320	8.16.060		8.28.320
11.12.330	8.14.010		8.28.330
11.12.340	8.14.020		8.28.340
11.12.360	8.04.050		8.28.350
11.12.380	8.04.010		8.28.360
11.12.400	8.12.110	11.24.080	828.370—
11.12.410	8.12.120		828.430
11.12.420	8.12.130		828.570
11.12.430	8.12.040	11.24.090	8.28.450
11.12.450	8.04.020	11.24.100	8.28.030—
11.12.460	8.06.060		8.2 8.080
11.12.470	8.06.030		8.28.110—
11.12.480	8.06.040		8.2 8.200
11.12.485	8.06.050		8.28.440
11.12.490	8.24.010—		8.28.460
	8.24.050		8.28.470
11.12.500	8.10.050	11.24.120	8.28.480
11.20.010	4.30.010	11.24.130	8.28.220
11.20.020	4.30.020	11.24.140	8.28.100
11.20.030	4.30.030	11.24.150	8.28.230
11.20.040	4.30.040	11.28.010	8.26.010
11.20.050	4.30.050	11.28.020—	8.26.030
11.20.060	4.30.060	11.28.040	
11.20.070	4.30.070	11.28.050	8.26.040
11.20.080	4.30.080	11.28.060	8.26.020
11.20.090	4.30.090	11.32.010	8.36.010
11.20.100	4.30.100	11.32.020	8.36.020
11.20.110	4.30.110	11.32.030	8.36.030
11.20.120	4.30.120	11.32.040	8.36.040
11.20.130	4.30.130	11.32.050	8.36.050
11.24.010	8.28.020	11.32.00	8.36.060
11.24.020	8.28.010	11.40.010	8.30.010
	8.28.240	11.40.020	8.30.070
	8.28.250		8.30.080
11.24.030	8.28.260	11.40.030	8.30.020
	8.28.270	11.40.040	8.30.150—

Code 1966 Section	Section this Code	Code 1966 Section	Section this Code
	8.30.220	11.64.030	12.14.050
11.40.050	8.30.090,	11.64.040	12.14.050
	8.30.130	11.64.050	12.14.060
11.40.060	8.30.140	11.64.060	12.14.070
11.40.070	8.30.110	11.64.070	12.14.080
11.40.080	8.30.100	11.64.080	12.14.040
11.40.090	8.30.030	11.64.090	12.14.090
11.40.100	8.30.040	11.64.100	12.14.100
11.40.110	8.30.050	11.64.120	12.14.010
11.40.120	8.30.060	13.04.010	14.04.010
11.40.130	8.30.120	13.04.020	14.04.020
11.48.010	12.22.010	13.04.030	14.04.030
11.48.020	12.22.020	13.06.010	14.10.010
11.48.030	12.22.030	13.08.010	12.18.010
11.48.040	12.22.040	13.08.020	12.18.020
11.48.050,	12.22.050	13.08.030	12.18.030
11.48.060		13.08.040	12.18.040
11.52.010	14.18.020	13.12.010	14.16.010
	14.18.030	13.12.020	14.16.050
	14.18.060		14.16.060
11.52.020	14.18.070	13.12.030	14.16.080
11.52.030	14.18.080		14.16.090
11.52.040	14.18.090	13.12.040	14.16.070
11.52.050	14.18.040	13.12.050	14.16.120
11.52.060	14.18.050		14.16.280
11.56.010	8.32.010	13.12.060	14.16.130
11.56.020	8.32.020	13.12.070	14.16.140
11.56.030	8.32.030	13.12.080	14.16.290
11.56.040	8.32.040	13.12.090	14.16.020
11.56.050	8.32.060	13.12.100	14.16.030
11.56.060	8.32.050	13.12.110	14.16.300
11.56.070	8.32.070	13.12.120	14.16.310
11.56.080	8.32.080	13.12.130	14.16.320
11.56.090	8.32.090	13.12.140	14.16.380
11.56.100	8.32.100	13.12.150	14.16.340
11.56.110	8.32.110	13.12.160	14.16.350
11.56.120	8.32.120	13.12.170	14.16.150
11.56.130	8.32.130	13.12.180	14.16.110
11.56.140	8.32.140	13.12.190	14.16.160
11.56.150	8.32.150	13.12.200	14.16.170
11.56.160	8.32.160	13.12.210	14.16.180
11.56.170	8.32.170	13.12.220	14.16.190
11.56.180	8.32.180	13.12.230	14.16.200
11.56.200	8.32.190	13.12.240	14.16.210
11.60.010	8.34.010	13.12.250	14.16.220
11.60.020	8.34.020	13.12.260	14.16.230
11.60.030	8.34.030	13.12.270	14.16.240
11.60.040	8.34.040	13.12.280	14.16.250
11.60.050	8.34.050	13.12.290	14.16.260
11.64.010	12.14.020	13.12.300	14.16.270
11.64.020	12.14.030	13.12.310	14.16.040

Code 1966 Section	Section this Code	Code 1966 Section	Section this Code
13.12.320	14.16.100	14.14.050	16.10.050
13.20.010	14.08.010	14.16.010	16.12.010
13.24.010	14.06.010	14.16.020	16.12.020
13.28.010	14.20.010	14.16.030	16.12.030
13.28.020	14.20.020	14.16.040	16.12.040
13.28.030	14.20.030	14.16.050	16.12.050
13.28.040	14.20.040	14.16.060	16.12.060
13.32.010	14.22.010	14.16.070	16.12.070
13.32.020	14.22.020	14.18.010	16.14.010
13.32.030	14.22.030	14.18.020	16.14.020
13.32.040	14.22.040	14.18.030	16.14.030
14.04.020	16.04.010	14.18.040	16.14.040
14.04.030	16.04.020	14.18.050	16.14.050
14.04.040	16.04.030	14.18.060	16.14.060
14.04.050	16.04.040	14.18.070	16.14.070
14.04.060	16.04.050	14.18.080	16.14.080
14.04.070	16.04.060	14.18.090	16.14.090
14.04.080	16.04.070	14.24.010	16.16.010
14.04.090	16.04.080	14.24.020	16.16.020
14.04.100	16.04.090	14.24.030	16.16.030
14.04.110	16.04.140	14.24.040	16.1 &040
14.04.120	16.04.100	14.24.050	16.16.050
14.04.130	16.04.110	14.24.070	16.16.060
14.04.140	16.04.130	14.24.290	16.16.070
14.04.160	16.04.120	14.30.010	16.18.010
14.04.170	16.04.160	14.30.020	16.18.020
14.04.180	16.04.170	14.30.030	16.18.030
14.04.190	16.04.150	14.30.040	16.18.040
14.04.200	16.04.180		16.18.060
14.04.210	16.06.010	14.30.050	16.18.050
	16.06.020	14.32.010	16.20.010
	16.06.030	14.32.020	16.20.020
	16.06.040	14.32.030	16.20.030
14.04.220	16.04.190	14.32.040	16.20.040
14.04.230	16.04.200	14.34.010	16.22.010
14.04.240	16.04.210	14.34.020	16.22.020
14.04.250	16.04.220	14.34.030	16.22.030
14.04.260	16.04.230	14.34.040	16.22.040
14.04.270	16.04.240	14.34.050	16.22.050
14.12.010	16.08.010	14.34.060	16.22.060
14.12.020	16.08.020	14.34.070	16.22.070
14.12.030	16.08.030	14.36.010	16.24.010
14.12.040	16.08.040	14.38.010	16.26.010
14.12.050	16.08.050	14.38.020	16.26.020
14.12.060	16.08.060	14.38.030	16.26.030
14.12.070	16.08.070	14.38.040	16.26.040
14.12.080	16.08.080	14.38.050	16.26.050
14.14.010	16.10.010	14.50.010	16.28.010
14.14.020	16.10.020	14.50.020	16.28.020
14.14.030	16.10.030	14.50.030	16.28.030
14.14.040	16.10.040	14.50.040	16.28.040

Code 1966 Section	Section this Code	Code 1966 Section	Section this Code
14.50.050	16.28.050	16.04.020	18.04.020
14.60.010	16.30.010	16.04.030	18.04.030
14.60.020	16.30.020	16.04.040	18.04.040
14.60.030	16.30.030	16.04.050	18.04.050
14.60.040	16.30.040	16.07.010	18.10.010
14.60.050	16.30.050	16.07.020	18.10.020
14.60.060	16.30.060	16.07.030	18.10.030
14.60.070	16.30.070	16.07.040	18.10.040
14.60.080	16.30.080	16.07.050	18.10.050
14.60.090	16.30.090	16.07.060	18.10.060
14.60.100	16.30.100	16.07.070	18.10.070
14.60.110	16.30.110	16.07.080	18.10.080
14.60.120	16.30.120	16.07.090	18.10.090
14.60.130	16.30.130	16.07.100	18.10.100
14.60.140	16.30.140	16.08.010	18.08.010
14.60.150	16.30.150	16.08.020	18.08.020
14.60.160	16.30.160	16.08.030	18.08.030
14.60.170	16.30.170	16.08.040	18.08.040
14.62.010	16.32.010	16.08.050	18.08.050
14.62.020	16.32.020	16.08.060	18.08.060
14.62.030	16.32.030		18.08.070
14.62.040	16.32.040	16.08.080	18.08.080
14.62.050	16.32.050	16.08.090	18.08.090
14.62.060	16.32.060		18.08.100
14.62.070	16.32.070	16.08.110	18.08.110
14.62.080	16.32.080		18.08.120
14.62.090	16.32.090	16.12.010	18.06.010
14.62.100	16.32.100	16.12.020	18.06.020
14.62.110	16.32.110	16.12.030	18.06.030
14.62.120	16.32.120	16.12.040	18.06.040
14.62.130	16.32.130	16.12.050	18.06.050
14.66.010	16.34.010	16.12.060	18.06.060
14.66.020	16.34.020	16.12.070	18.06.070
14.66.030	16.34.030	16.12.080	18.06.080
14.66.040	16.34.040	16.12.090	18.06.090
14.66.050	16.34.050	16.12.100	15.06.100
14.66.060	16.34.060	16.12.110	18.06.110
14.68.010	16.36.010	16.12.120	18.06.120
14.68.020	16.36.020	16.12.130	18.06.130
14.68.030	16.36.030	16.12.140	18.06.140
14.74.010	16.38.010	16.12.150	18.06.150
14.74.030	16.38.020	16.12.160	18.06.160
14.74.040	16.38.030	16.12.170	18.06.180
14.76.010	16.40.010	16.12.180	18.06.190
14.76.020	16.40.020	16.12.190	18.06.200
14.76.030	16.40.030	16.12.200	18.06.210
14.76.040	16.40.040	16.12.210	18.06.220
14.76.050	16.40.050	16.12.220	18.06.230
14.76.060	16.40.060	16.12.230	18.06.240
14.76.070	16.40.080	16.12.240	18.06.260
14.76.080	16.40.090	16.12.250	18.06.260

Code 1966 Section	Section this Code
16.12.260	18.06.270
16.12.270	18.06.280
16.12.280	18.06.320
16.12.290	18.06.330
16.12.300	18.06.350
16.12.310	18.06.360
16.12.320	18.06.370
16.12.330	18.06.380
16.20.340	18.06.390
16.12.350	18.06.400
16.12.360	18.06.410
16.12.370	18.06.420
16.16.010	18.20.010
16.16.020	18.20.020
16.16.030	18.20.030
16.16.040	18.20.040
16.16.050	18.20.050
16.16.060	18.20.060
16.16.061	18.20.061
16.16.062	18.20.062
16.16.063	18.20.063
16.16.064	18.20.064
16.16.065	18.20.065
16.16.066	18.20.066
16.16.067	18.20.067
16.16.068	18.20.068
16.16.069	18.20.069
16.16.070	18.20.070
16.16.071	18.20.071
16.16.072	18.20.072
16.16.073	18.20.073
16.16.074	18.20.074
16.16.075	18.20.075
16.16.076	18.20.076
16.16.077	18.20.077
16.20.010	18.22:010
16.20.020	18.22.020
16.20.030	18.22.030
16.20.040	18.22.040
16.20.050	18.22.050
16.20.060	18.22.050
16.24.010	18.24.010
16.24.020	18.24.020
16.24.030	18.24.030
16.24.040	18.24.040
16.24.050	18.24.050
16.24.060	18.24.060
16.24.070	18.24.070
16.24.080	18.24.080
16.24.090	18.24.090
16.24.100	18.24.100
16.24.110	18.24.110
16.28.010	18.26.010
16.28.020	18.26.020
16.28.031	18.26.030
16.32.010	18.28.010
16.32.020	18.28.020
16.32.030	18.28.030
16.32.040	18.28.050
16.32.050	18.28.040
16.33.010	18.12.010
16.33.020	18.12.030
16.33.030	18.12.040
16.33.040	18.12.050
16.33.050	18.12.060
16.33.060	18.12.070
16.33.070	18.12.020
	18.12.080
	18.12.090
	18.12.100

ADMINISTRATIVE CODE COMPARATIVE TABLE
ORDINANCES

This table gives the location within this Administrative Code of those ordinances adopted since the 1966 Code as updated through 6-26-78, which are included herein. Ordinances adopted prior to such date were incorporated into the 1966 Code, a table of which immediately precedes this table. Ordinances not listed herein have been omitted as repealed, superseded or not of a general and permanent nature.

Ordinance Number	Adoption Date	Section	Section this Code
2684	8-14-78	1	18.06.290
2686	8-28-78	1	2.14.350
2691	8-28-78	1	6.06.420
2692	8-28-78	1	4.56.050
2694	9-11-78	1	6.06.275
2695	9-11-78	1	18.08.070
2697	9-25-78	1	4.46.010
			4.46.020
			4.46.030
			4.46.050
			4.46.060
			4.46.070
			4.46.080
			4.46.090
			4.46.100
			4.46.110
			4.46.120
			8.22.200
		1(4.57.025)	4.46.040
2699	9-25-78	1	6.06.625
2701	10-10-78	1	6.06.555
2703	10-23-78	1	4.04.570
2706	10-23-78	1	8.28.030—8.28.080
			8.28.110—8.28.200
			8.28.440
			8.28.460
			8.28.470
2708	11-13-78	1	18.06.030
2709	11-13-78	1	18.06.240
2710	11-27-78	1(8.20.100)	6.06.295
2711	11-27-78	1	6.06.565
2714	12-11-78	1	14.04.010
2715	12-11-78	1	8.30.010
			8.30.020
			8.30.030
			8.30.040—8.30.140
			8.30.150—8.30.220
2716	12-11-78	1	18.06.370
2717	12-11-78	1	18.10.070

Ordinance Number	Adoption Date	Section	Section this Code
2718	12-26-78	1	14.06.010
2724	12-26-78	1	2.18.010
			2.18.020
			2.18.030
2725	1- 8-79	1	12.14.050
2728	1- 8-79	1	4.10.080
			4.10.090—4.10.120
2729	1- 8-79	1	4.06.120
2730	1- 8-79	1	4.24.220
2738	3-26-79	1	18.06.060
2739	4- 9-79	1	2.04.010
		2	2.04.070
2740	5-29-79	1(4.78.010)	4.32.010
		1(4.78.020)	4.32.120
		1(4.78.030)	4.32.140
		1(4.78.040)	4.32.130
		1(4.78.050)	4.32.150
			4.32.160
			4.32.170
		1(4.78.060)	4.32.160
		1(4.78.070)	4.32.180
		1(4.78.080)	4.32.190
		1(4.78.090)	4.32.070
		1(4.78.100)	4.32.130
			4.32.160
		1(4.78.110)	4.32.200
			4.32.210
		1(4.78.120)	4.32.210
		1(4.78.130)	4.32.220
		1(4.78.140)	4.32.030
		1(4.78.150)	4.32.090
		1(4.78.160)	4.32.040
		1(4.78.170)	4.32.270
		1(4.78.180)	4.32.270
		1(4.78.190)	4.32.280
		1(4.78.200)	4.32.060
		1(4.78.210)	4.32.250
		1(4.78.220)	4.32.250
			4.32.260
		1(4.78.230)	4.32.240
			4.32.250
		1(4.78.240)	4.32.250
		1(4.78.250)	4.32.080
		1(4.78.260)	4.32.050
		1(4.78.280)	4.32.020
		1(4.78.290)	4.32.230
		1(4.78.300)	4.32.100
		1(4.78.310)	4.32.110

Ordinance Number	Adoption Date	Section	Section this Code
2741	6-11-79	1	18.06.140
		2	18.06.150
		3	18.06.160
		4	18.06.180
		5	18.06.190
		6	18.06.210
		7	18.06.240
		8	18.06.250
		9	18.06.260
2746	6-25-79	1(4.01.750)	4.04.480
2749	6-25-79	1	6.16.010
			6.16.020
			6.16.030
			6.16.040
			6.16.050
			6.16.060
			6.16.070
			6.16.080
			6.16.090
			6.16.100
			6.16.110
2751	6-25-79	1	8.12.030
2755	7- 9-79	1	2.14.010
			2.14.020—2.14.060
			2.14.080—2.14.190
		1	2.14.070
2756	7- 9-79	1	14.06.010
2759	8-13-79	1(16.16.078)	18.20.078
2760	8-13-79	1(16.16.079)	18.20.079
2761	8-13-79	1(16.16.078)	18.20.080
2762	8-13-79	1	8.10.040
2764	8-27-79	1	18.06.030
2767	8-27-79	2	18.06.050
		3	18.06.070
		4	18.06.080
		5	18.06.090
		6	18.06.100
		7	18.06.110
		8	18.06.120
		9	18.06.130
		10	18.06.140
		11	18.06.150
		12	18.06.160
		13	18.06.180
		14	18.06.190
		15	18.06.220
		16	18.06.230
		17	18.06.240

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		20	18.06.270
		21	18.06.280
2768	8-27-79	1	18.06.340
2769	9-10-79	1	12.18.010
2770	9-24-79	1	18.06.050
2771	9-24-79	1	18.24.010
2772	9-24-79	1	18.24.020
2774	10- 8-79	1	6.20.050
2784	12-10-79	1	4.04.480
2785	12-10-79	1	4.22.220
			4.22.230
			4.22.240
			4.22.250—4.22.310
2786	12-24-79	1(13.20.020)	14.08.020
2787	12-24-79	1(13.06.020)	14.10.020
2788	12-24-79	1(13.24.020)	14.06.020
2792	12-24-79	1	4.22.060
		2	4.22.070
2793	12-24-79	1	2.14.240
			2.14.250
2794	12-24-79	1	18.04.020
2795	1-14-80	1	18.04.030
			18.04.040
			18.04.050
			18.04.060
2798	1-14-80	1	18.06.240
2799	1-14-80	1	18.06.280
2800	1-14-80	1	6.06.555
2801	1-14-80	1	2.06.060
2804	2-11-80	1(14.76.065)	16.06.010
			16.06.020
			16.06.030
			16.06.040
2805	2-11-80	1(11.12.005)	16.40.070
		1(11.12.157)	8.10.060
2806	2-11-80	1	8.14.040
2812	3-10-80	1	16.06.020
			16.06.030
			16.06.040
2813	3-10-80	1	14.04.010
2816	3-24-80	1	14.22.020
2817	3-24-80	1(13.22.010)	14.10.010
2819	3-24-80	1	14.14.010
2820	3-24-80	1(16.09.020)	4.14.020
			4.14.030
		1(16.09.030)	18.14.020

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		1(16.09.060)	18.14.050
		1(16.09.070)	18.14.060
2823	4-14-80	1	18.14.070
2827	4-14-80	1	4.24.020
2830	4-28-80	1	6.06.580
2831	4-28-80	1	14.04.010
2832	4-28-80	1	14.04.010
2833	5-12-80	1(16.12.165)	14.04.010
2835	5-27-80	1	18.06.170
2836	4-14-80	1	1.02.010—1.02.060
	5-27-80	1	6.06.165
2837	5-27-80	1	2.08.090
			2.08.100—2.08.130
2838	5-27-80	1	2.08.170
2839	5-27-80	1(8.04.355)	6.06.010
2841	5-27-80	1	6.04.330
2842	5-27-80	1	6.06.120
2844	5-27-80	1	6.06.125
2845	5-27-80	1	6.06.170
2846	5-27-80	1(8.68.350)	6.06.175
2847	5-27-80	1(8.68.360)	6.06.695
2849	5-27-80	1	6.06.700
2850	5-27-80	1	4.48.030
2854	6-23-80	1	6.06.390
2855	6-23-80	1(13.18.010)	14.08.010
2856	6-23-80	1	14.12.010
2857	6-23-80	1(16.36.010)	14.04.010
		1(16.36.020)	18.18.010
		1(16.36.030)	18.18.020
		1(16.36.040)	18.18.030
		1(16.36.050)	18.18.040
		1(16.36.060)	18.18.050
		1(16.36.070)	18.18.060
		1(16.36.080)	18.18.070
		1(16.36.090)	18.18.080
		1(16.36.100)	18.18.090
		1(16.36.110)	18.18.100
		1(16.36.120)	18.18.110
		1(16.36.130)	18.18.120
		1(16.36.140)	18.18.130
		1(16.36.150)	18.18.140
		1(16.36.170)	18.18.150
2858	7-14-80	1	18.18.160
2876	7-14-80	1	6.06.220
2877	7-28-80	1	12.04.010
2878	7-28-80	1	6.06.390

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2882	7-28-80	1	18.06.030
2883	7-28-80	1(16.12.380)	18.06.260
2884	7-28-80	1(4.80.010)	18.06.300
		1(4.80.020)	4.44.010
		1(4.80.030)	4.44.030
		1(4.80.040)	4.44.040
		1(4.80.050, 4.80.060)	4.44.050
		1(4.80.070)	4.44.060
2890	8-11-80	1	4.44.020
2891	8-11-80	1	2.18.030
2892	8-11-80	1	8.12.010
2893	8-11-80	1	2.10.020—2.10.110
2896	2-25-80	1	2.14.060
			2.14.170
2897	8-25-80	1	18.06.040
2899	8-25-80	1(7.20.010)	2.14.240
			2.14.250
			2.14.320
		1(7.20.111)	12.16.010
		1(7.20.112)	12.16.500
		1(7.20.113)	12.16.510
		1(7.20.020)	12.16.520
		1(7.20.021)	12.16.050
		1(7.20.121)	12.16.020
		1(7.20.022)	12.16.530
		1(7.20.023)	12.16.030
		1(7.20.025)	12.16.040
		1(7.20.026)	12.16.060
		1(7.20.027)	12.16.070
		1(7.20.028)	12.16.080
		1(7.20.029)	12.16.090
		1(7.20.031)	12.16.100
		1(7.20.032)	12.16.110
		1(7.20.033)	12.16.120
		1(7.20.034)	12.16.130
		1(7.20.035)	12.16.140
		1(7.20.036)	12.16.150
		1(7.20.041)	12.16.160
		1(7.20.042)	12.16.170
		1(7.20.043)	12.16.180
		1(7.20.044)	12.16.190
		1(7.20.051)	12.16.200
		1(7.20.052)	12.16.210
		1(7.20.053)	12.16.220
		1(7.20.054)	12.16.230
			12.16.250

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			12.16.270
		1(7.20.061)	12.16.280
		1(7.20.062)	12.16.290
		1(7.20.063)	12.16.300
		1(7.20.064)	12.16.310
		1(7.20.064A)	12.16.320
		1(7.20.064B)	12.16.330
		1(7.20.064C)	12.16.340
		1(7.20.064D)	12.16.350
		1(7.20.064E)	12.16.360
		1(7.20.070)	12.16.370
		1(7.20.072)	12.16.380
		1(7.20.073)	12.16.390
		1(7.20.074)	12.16.400
		1(7.20.075)	12.16.410
		1(7.20.076)	12.16.420
		1(7.20.077)	12.16.430
		1(7.20.078)	12.16.440
		1(7.20.081)	12.16.450
		1(7.20.082)	12.16.460
		1(7.20.083)	12.16.470
		1(7.20.084)	12.16.480
		1(7.20.121)	12.16.490
		1(7.20.122)	12.16.590
		1(7.20.123)	12.16.540
		1(7.20.124)	12.16.550
		1(7.20.125)	12.16.560
		1(7.20.126)	12.16.570
		1(7.20.128)	12.16.580
		1(7.20.131)	12.16.600
		1(7.20.132)	12.16.610
		1(7.20.133)	12.16.620
		1(7.20.134)	12.16.630
		1(7.20.135)	12.16.640
		1(7.20.136)	12.16.650
		1(7.20.137)	12.16.660
		1(7.20.142)	12.16.670
			12.16.680
		1(7.20.143)	12.16.690
		1(7.20.144)	12.16.700
		1(7.20.145)	12.16.710
		1(7.20.146)	12.16.720
		1(7.20.147)	12.16.730
		1(7.20.148)	12.16.740
		1(7.20.149)	12.16.750
		1(7.20.150)	12.16.760

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		1(7.20.153)		12.16.790
		1(7.20.154)		12.16.800
2905	9-22-80	1(16.10.010)		12.16.810
		1(16.10.020)		18.16.010
		1(16.10.030)		18.16.020
		1(16.10.040)		18.16.030
		1(16.10.050)		18.16.040
		1(16.10.060)		18.16.050
2906	10-13-80	1		18.16.060
2907	10-27-80	1(16.12.390)		18.18.040, 18.18.070
2908	10-27-80	1		18.06.310
2910	11-10-80	1		6.20.050
2916	1-12-81	1		4.25.080
2919	1-26-81	1		1.02.010—1.02.060
2920	1-26-81	1		14.06.010(note)
2921	1-26-81	1		12.20.010—12.20.090
2927	4-13-81	1	Rpld	12.16.480
2928	4-13-81	1		10.14.010—10.14.310
2937	4-27-81	1		10.14.010
2938	5-11-81	1(16.02.010)—(16.02.080)		18.08.030
2939	4-27-81	1		18.05.010—18.05.080
2940	4-27-81	1		2.08.090—2.08.130
2941	4-27-81	1		2.08.170
2945	6- 8-81	1		18.04.020
2948	7-27-81	1		8.22.200
2949	7-27-81	1		12.16.455
2954	9-14-81	1		12.16.130, 12.16.140, 12.16.180, 12.16.610
2955	9-28-81	1—7		12.16.120, 12.16.290
2956	9-28-81	1		Adopting ordinance, p.vii
2957	9-28-81	1		1.04.010
2958	10-12-81	1		2.14.010—2.14.190
2959	10-26-81	1		18.06.250
2960	10-26-81	1		8.10.045
2962	11-23-81	1(2.49.010)—(2.49.040)		14.04.010
2963	12-14-81	1—3		2.14.200—2.14.230
2964	12-14-81	1	Rpld	14.22.020—14.22.040
		2(2.50.010)—(2.50.030)		2.14.200—2.14.370
		2(2.50.040)		2.14.240—2.14.260

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		2(2.50.050(b))		2.14.280
2967	1-25-82	1		2.14.270(c)
2968	2- 8-82	1		16.06.010(note)
2969	2-22-82	1		6.06.525
2970	2-22-82	1		4.40.010
2971	2-22-82	1		4.40.020
2972	2-22-82	1		4.40.030
2973	2-22-82	1		4.40.040
2974	2-22-82	1		4.40.060
2975	2-22-82	1		4.40.075
2976	2-22-82	1		4.40.080
2977	3- 8-82	1		4.40.090
2981	4-26-82	1		12.16.350
2982	4-26-82	1		4.82.010—4.62.090
2983	4-26-82	1		6.06.550
2984	5-10-82	1		6.06.335
2986	5-10-82	1	Rpld	6.06.045
		2		4.56.080, 4.56.120, 4.56.130, 4.56.160, 4.56.180—4.56.270
		3		4.56.070
		4		4.56.090
		5		4.56.110
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2987	6-14-82			4.56.170 14.08.010(note)
2988	6-28-82	1		12.16.390
2989	6-28-82	1		12.16.530, 12.16.540
2990	6-28-82	1		12.16.140
2991	6-28-82	1		12.16.200
2992	6-28-82	1		12.16.610—12.16.630
2993	6-28-82	1		12.16.016, 12.16.020, 12.16.040, 12.16.060, 12.16.380
			Rpld	12.16.210—12.16.270
2998	7-12-82	1		18.07.010—18.07.060, 18.07.080
2999	7-12-82	1		18.06.340
3000	7-12-82	1		18.08.050
3001	8- 2-82	1		4.26.070
3002	8- 9-82	1		4.04.200, 4.04.210, 4.04.290—4.04.460, 4.04.480—4.04.540, 4.04.560—4.04.580, 4.04.600, 4.04.610
3003	8- 9-82	1		4.06.210, 4.06.180
3004	8- 9-82	1		4.10.030, 4.10.100

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3006	8- 9-82	1		4.14.060
3007	8- 9-82	1		4.16.080
3008	8- 9-82	1		4.20.020
3009	8- 9-82	1		4.26.060
3010	8- 9-82	1		4.32.190, 4.32.200
3011	8- 9-82	1		4.36.070
3012	8- 9-82	1		4.38.170
3013	8- 9-82	1		4.40.060
3014	8- 9-82	1		4.42.040
3015	8- 9-82	1		4.46.110
3016	8- 9-82	1		4.48.040
3017	8- 9-82	1		4.52.110
3018	8- 9-82	1		4.54.140
3019	8- 9-82	1		4.56.140
3020	8- 9-82	1		4.58.020
3022	8- 9-82	1—3		18.06.240—18.06.260
3023	8- 9-82	1		18.06.030
		2		18.06.050
		3—6		18.06.160—18.06.190
		7		18.06.340
3027	9-13-82	1		8.36.010
3029	9-13-82	1		18.06.060
3030	9-13-82	1	Rpld	2.08.180—2.08.220
3031	9-27-82	1		18.12.090
3034	9-27-82	1		6.06.555
3035	9-27-82	1		4.06.080
		2		4.06.110
		3		4.06.180
3036	9-27-82	1		8.12.140
3037	9-27-82	1		2.14.060
3038	10-12-82	1		8.30.010—8.30.080, 8.30.090(a), 8.30.100—8.30.140
			Rpld	8.30.150—8.30.220
3042	11- 8-82	1		6.10.030
3043	11-22-82	1		18.06.030
		2		18.06.210
		3		18.06.260
		4		18.06.390
		5		18.06.500
3047	11-22-82	1		12.16.350
3049	11-22-82	1		1.04.080
3050	12-13-82	1		2.08.100, 2.08.130—2.08.150, 2.08.180
3051	12-13-82	1		4.04.605
3052	12-13-82	1		18.06.380

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3058	12-27-82	1		2.20.010—2.20.050, 2.20.070—2.20.100
3059	1-10-83	1		1.02.010—1.02.060
3060	1-10-83	1		2.14.230
3061	1-24-83	1		4.22.550—4.22.650
3063	2-14-83	1		4.18.010—4.18.060
3064	2-28-83	1		4.24.260
3065	3-14-83	1		4.32.010—4.32.280
3068	3-14-83	1		4.22.010, 4.22.015, 4.22.020—4.22.070, 4.22.080, 4.22.085, 4.22.090
3069	3-14-83	1		10.08.010
		2		10.08.045
		3—5		10.08.060—10.08.080
3072	4-11-83	1		14.04.010
3073	4-11-83	1		18.14.040
3074	4-11-83	1	Rpld	18.08.010—18.08.120
		2		18.08.010—18.08.100
3075	4-11-83	1	Rpld	18.08.010—18.08.100
		2		18.10.010—18.10.080
3076	4-11-83	1		18.09.010—18.09.080
3078	4-25-83	1		2.14.260
3079	5- 9-83	1		8.32.080
3080	5-23-83	1		Ch. 18.06(title)
		2—7		18.06.010—18.06.060
		8—11		18.06.300—18.06.330
		12—14		18.06.370—18.06.390
		15, 16		18.06.410, 18.06.420
3081	5-23-83	1		18.06.220
		2		18.06.240
		3		18.06.280
		4		18.06.430
3082	5-23-83	1		12.16.280
3086	6-13-83	1		8.28.300
3087	6-13-83	1		8.28.390
3088	6-13-83	1		8.28.400
3089	6-13-83	1		8.28.430
3090	6-13-83	1		8.28.440
3095	6-27-83	1		6.06.090
3096	6-27-83	1		4.18.010
3097	6-27-83	1		4.18.030
3098	6-27-83	1		14.22.030
3099	6-27-83	1	Rpld	2.16.040—2.16.060

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3104	6-27-83	1		4.04.140
3108	8- 8-83	1		6.08.060
3109	8- 8-83	1		6.06.480
3110	8- 8-83	1		6.06.335
3111	8- 8-83	1		6.06.340
3112	8- 8-83	1		6.04.465
3113	8- 8-83	1		6.06.325
3114	8- 8-83	1		6.06.330
3115	8- 8-83	1		6.06.045
3116	8- 8-83	1		6.06.050
3117	8- 8-83	1		6.06.550
3118	8- 8-83	1		4.50.040
3119	8- 8-83	1		18.06.410
		2		18.06.440
3122	9-12-83	1		18.10.010, 18.10.050
3123	9-12-83	1		18.09.040
3124	9-12-83	1		18.09.020
3125	9-12-83	1		18.08.010—18.08.100
3127	9-12-83	1		6.06.705
3130	9-26-83	1		2.14.010—2.14.190
3132	10-10-83	1		18.06.050
3133	10-10-83	1		14.18.005, 14.18.010, 14.18.020,
			Rpld	14.18.030,
			Rnbd	14.18.040—14.18.090
			as	14.18.030—14.18.080,
			Added	14.18.090
3136	10-10-83	1		4.62.030—4.62.090
3146	10-10-83	1—3		18.06.240—18.06.260
		4		18.06.280
3148	12-12-83	1		2.14.230
3149	12-12-83	1		16.06.010
3150	1- 9-84	1		4.22.660—4.22.760
3151	1- 9-84	1		14.06.010
3152	1- 9-84	1		14.08.010
3153	1- 9-84	1		12.24.010—12.24.190
3158	2-27-84	1		6.06.320
3159	2-27-84	1		8.10.050
3160	2-27-84	1		4.06.060
3161	2-27-84	1		4.56.150
		2		4.56.155
3163	2-27-84	1		4.22.070
3171	5-21-84	1	Rpld	18.26.010—18.26.030
		2		18.26.010—18.26.030
3174	5-14-84	1		4.24.250

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3175	5-14-84	1	4.24.260
3176	5-14-84	1—4	18.06.240—18.06.270
3179	6-11-84	1	14.10.010
3180	6-11-84	1	14.12.010
3181	6-11-84	1	14.14.010
3185	6-25-84	1	18.06.341
3186	6-25-84	1	18.06.340
		2	18.06.340, Exh. A
3187	7- 9-84	1—3	18.26.010—18.26.030
3194	7-23-84	1	18.26.020
3201	8-27-84	1	Ch. 18.04, Art. II(title)
		2	18.02.020, 18.04.030
		3	18.04.040
3202	9-10-84	1	4.04.040
		2	4.04.045
3208	9-10-84	1	8.28.300
3211	10- 8-84	1	8.22.210
		2	8.22.211
		3	8.22.211.5
		4	8.22.212
		5	8.22.213
		6	8.22.213.5
		7	8.22.214
		8	8.22.230
3214	10- 8-84	1	2.14.010—2.14.190
3220	11-13-84	1	18.06.390
		2	18.06.410
3221	11-13-84	1, 2	18.06.030, 18.06.040
		3	18.06.060
		4	18.06.205
		5, 6	18.06.284, 18.06.285
		7	18.06.415
3222	11-26-84	1	4.32.010
		2	4.32.070
		3	4.32.080
		4	4.32.110
		5	4.32.210
3224	11-26-84	1—10	4.56.180—4.56.270
		11	4.56.275
3225	11-26-84	1	6.06.630
3226	12-10-84	1	12.16.565
3227	12-10-84	1	6.06.505
3228	12-24-84	1	18.08.030

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3235	1-28-85	1		6.06.550
3238	2-25-85			14.10.010(note)
3246	4- 8-85	1		2.20.010—2.20.100
3251	4-22-85	1—15		4.04.290—4.04.430
		16, 17		4.04.450, 4.04.460
		18—23		4.04.490—4.04.540
		24—26		4.04.560—4.04.580
		27, 28		4.04.600, 4.04.610
3252	4-22-85	1		4.06.120
		2		4.06.180
3253	4-22-85	1		4.10.030
		2		4.10.100
3254	4-22-85	1		4.12.090
3255	4-22-85	1		4.16.080
3256	4-22-85	1		4.29.020
3257	4-22-85	1		4.26.060
3258	4-22-85	1		4.32.200
3259	4-22-85	1		4.36.070
3260	4-22-85	1		4.38.170
3261	4-22-85	1		4.40.060
3262	4-22-85	1		4.42.040
3263	4-22-85	1		4.46.110
3264	4-22-85	1		4.48.040
3265	4-22-85	1		4.52.110
3266	4-22-85	1		4.54.140
3267	4-22-85	1		4.56.140
3268	4-22-85	1		4.58.020
3271	5-13-85			14.08.010(note)
3272	5-13-85	1		4.04.590
3273	5-13-85	1		2.14.230
3274	5-13-85	1		2.14.260
3276	5-28-85	1		14.08.010(note)
3277	5-28-85	1—12		4.45.010—4.45.120
3278	5-28-85	1		12.16.480
3279	5-28-85	1		1.04.100
3290	6-24-85	1		4.56.090
		2		6.06.455
3296	7- 8-85	1		6.06.390
		2		6.06.435
		3		6.06.445
		4—6		6.06.460—6.06.480
		7		6.06.560
3297	7- 8-85	1		6.08.060
3305	8-26-85	1	Rpld	1.04.100
3310	9- 9-85	1		6.06.525

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3318	10-14-85	1	Rnbd	8.22.340
		as		8.22.420
		Added		8.22.340—8.22.410
3327	10-14-85	1		2.08.100
3328	10-28-85	1		8.08.020
3334	11-25-85	1		8.10.055
3344	12-23-85	1		6.06.020
3345	12-23-85	1		4.38.120
3346	1-27-86	1		4.52.080
3347	1-27-86	1		14.06.010
3348	1-27-86	1		14.05.010
3349	1-27-86	1		18.06.120
		2		18.06.130
		3		18.06.160
		4		18.06.170
3358	1-27-86	1		2.14.010—2.14.190
3359	2-10-86	1		18.08.010—18.08.130
3360	2-10-86	1		18.09.010—18.09.080
3361	2-10-86	1		18.10.010, 18.10.020
			Rpld	18.10.030
			Rnbd	18.10.040—18.10.080
			as	18.10.030—18.10.070
3362	2-10-86	1	Rpld	14.06.010—14.06.350
			Added	14.06.010—14.06.270
3369	2-24-86	1		18.06.300
3370	2-24-86	1		14.12.010
3371	2-24-86	1		14.14.010
3383	4-14-86	1		18.06.030
3384	4-14-86	1		6.08.050
3385	4-28-86	1—3		4.18.020—4.18.040
		4		4.18.070
3386	4-28-86	1		4.45.020
		2		4.45.040
		3		4.45.070
		4		4.45.120
3387	4-28-86	1		4.46.020
		2		4.46.070
		3		4.46.090
3388	4-28-86	1		4.56.190
		2		4.56.240
		3		4.56.275
3390	4-28-86	1		18.26.010
		2		18.26.020
3391	4-28-86	1		18.26.010
		2		18.26.020
3392	4-28-86	1		4.04.390

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3397	5-27-86	1	6.07.010—6.07.050
3398	5-27-86	1	18.26.010
		2	18.26.020
3400	6-23-86	1	18.08.070
3401	6-23-86	1—3	4.12.090—4.12.110
3402	6-23-86	1	18.06.030
		2—5	18.06.240—18.06.270
		6	18.06.265
		7	18.06.266
3403	6-23-86	1	18.06.050
		2—5	18.06.160—18.06.190
		6	18.06.220
		7—9	18.06.240—18.06.260
		10	18.06.270
		11	18.06.280
3404	6-23-86	1	18.06.225
3405	6-23-86	1	18.06.400
3406	6-23-86	1	18.06.370
3409	7-14-86	1	6.06.020
3417	7-28-86	1	18.08.090
3418	7-28-86	1	18.08.060
		2	18.09.040(i)
3422	8-25-86	1	18.06.340
3423	8-25-86	1	18.06.380
3424	8-25-86	1	4.24.240
3425	8-25-86	1	14.10.010
3429	10-13-86	1	2.10.120
3432	10-13-86	1	14.08.010
3433	10-13-86	1	18.09.040
3440	11-24-86	1	16.06.010
3441	12- 8-86	1	18.08.070, 18.08.100—18.08.120, 18.09.060
3442	12- 8-86	1	4.24.260
3443	12- 8-86	1—3	4.40.020—4.40.040
		4	4.40.060
		5	4.40.075
		6	4.40.080(b)
		7	4.40.090
3444	12- 8-86	1	4.06.290
3451	12-22-86	1	14.24.010
3452	12-22-86	1—14	2.16.100—2.16.230
3453	12-22-86	1	2.17.010—2.17.530
3454	12-22-86	1	4.32.010—4.32.280
3455	1-12-87	1	1.02.010—1.02.060
3456	1-26-87	1	12.16.120
		2	12.16.130

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		4		12.16.290
		5		12.16.300
		6		12.16.390
3463	1-26-87	1		18.06.090
		2		18.06.100
3482	3- 9-87	1		Ch. 18.08 (analysis)
3483	3- 9-87	1		18.08.120
3489	4-13-87	1		4.22.070
3490	4-13-87	1		4.10.010, 4.10.030, 4.10.045, 4.10.050
			Rpld	4.10.060
3491	4-13-87	1		2.14.220
		2		2.14.230
		3		2.14.250
		4		2.14.260
3493	4-27-87	1		2.14.060
3494	5-11-87	1		12.16.010
3495	5-11-87	1		12.16.100
3496	5-11-87	1		12.16.130
3497	5-11-87	1		12.16.140
3498	5-11-87	1		12.16.420
3499	5-11-87	1		12.16.460
3500	5-11-87	1		12.16.470
3501	5-11-87	1		12.16.555
3502	5-11-87	1		12.16.560
3503	5-11-87	1		12.16.565
3504	5-11-87	1		12.16.590
3505	5-11-87	1		12.16.610
3506	5-11-87	1		12.16.660
3507	5-11-87	1		12.16.680
3508	5-11-87	1		12.16.720
3509	5-11-87	1		12.16.740
3527	6- 8-87	1		18.14.060
3528	6-22-87	1		12.16.530
3529	6-22-87	1		12.24.010—12.24.190
3530	7-13-87	1		18.06.380
3534	8-10-87	1		2.20.090(a)
3535	8-10-87	1		2.20.010—2.20.100
3539	8-24-87	1		14.06.010 14.06.020, 14.06.030, 14.06.100, 14.06.200—14.06.260, 14.06.300
3546	8-24-87	1		14.16.020(c)

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3553	9-14-87	1		14.08.010(note)
3578	10-12-87	1	Rpld	4.20.010—4.20.040
3595	10-26-87	1		14.04.010
3596	10-26-87	1		6.06.710
3599	11-23-87	1		18.06.310
3608	11-23-87	1		12.26.010—12.26.040
3610	12-18-87	1		18.06.030
		2		18.06.140
		3—6		18.06.160—18.06.190
3631	1-25-88	1		14.16.170 (Table B)
3645	2-22-88	1		2.10.130
3646	2-22-88	1		12.28.010—12.28.040
3659	3-28-88	1, 2		2.14.220, 2.14.230
		3, 4		2.14.250, 2.14.260
3662	4-11-88			14.04.010(note)
3671	4-25-88	1		4.50.040, 4.50.070
3672	5-23-88	1		12.16.530
3678	5- 9-88	1		4.04.150
3679	5- 9-88	1		6.06.555
3680	5-23-88	1, 2		18.26.010, 18.26.020
3681	5-23-88	1		4.04.180
3682	6-13-88	1		12.16.555
3691	6-27-88	1		2.14.010—2.14.190
3692	6-27-88	1—4		18.14.020—18.14.050
		5		18.14.070
3693	6-27-88	1		4.52.080
3694	6-27-88	1		4.38.120
3695	7-11-88	1		Ch. 12.20 (title)
		2		12.20.995
		3, 4		12.20.010, 12.20.020
		5—8		12.20.040—12.20.070
		9		12.20.090
3699	7-11-88	1	Rpld	2.06.020—2.06.050
		2	Rpld	2.06.070—2.06.100
3700	7-11-88	1	Rpld	12.26.010—12.26.040
3701	7-11-88	1	Rpld	2.10.130
3702	7-11-88	1	Rpld	12.28.010—12.28.040
3703	7-11-88	1		2.06.020—2.06.050
3705	7-25-88	1		18.28.010
3706	8- 1-88	1		12.14.090
3707	8- 1-88	1		12.14.030
3711	8-22-88	1		18.09.040

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3716	8-22-88	1		8.06.010
3717	8-22-88	1		8.28.300
3722	9-12-88	1		4.22.800—4.22.1170
3723	9-12-88	1		4.22.1180—4.22.1600
3734	9-26-88	1—3		2.14.220—2.14.240
		4		2.14.260
3735	9-26-88	1		12.14.030
3736	9-26-88	1		12.14.090
3743	11-14-88	1(8.12.12)		8.12.150
3744	11-14-88	1		8.12.010
3751	12-12-88	1		18.06.040
		2		18.06.286
3752	12-12-88	1		18.06.030
		2		18.06.310
3753	12-12-88	1		2.06.030, 2.06.050
3754	12-12-88	1		12.16.120 12.16.130
3755	12-12-88	1		12.16.190
3756	1- 9-89	1		8.12.033 8.12.035
		3		8.12.030
3757	1- 9-89	1		1.02.010—1.02.060
3759	1-23-89	1		2.08.320—2.08.370
3761	2-13-89	1		8.22.312—8.22.317
3762	2-13-89	1		2.13.020
3763	2-13-89	1		2.13.010
3765	2-27-89	1		12.24.020
		2, 3		12.24.185
3767	2-27-89	1		4.04.090
3768	2-27-89	1		4.04.100
3773	3-27-89	1		18.06.360
3776	3-27-89	1		4.40.010—4.40.070, 4.40.075, 4.40.080, 4.40.085, 4.40.090, 4.40.100
3777	3-27-89	1	Rpld	2.16.100—2.16.230
3778	3-27-89	1	Rpld	2.17.010—2.17.530
3779	3-27-89	1		2.20.090
3780	3-27-89	1		14.10.010
3781	3-27-89	1		14.08.010
3782	3-27-89	1		18.06.210
3783	3-27-89	1		18.26.010

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3785	4-10-89	1		18.26.010
3790	4-10-89	1	Rpld	6.10.010—6.10.040
		2		18.06.030
		3		18.06.210
		4		18.06.340
3798	5- 8-89	1		18.12.030
		2		18.12.060
3799	5- 8-89	1	Rpld	18.06.070, 18.06.080
		2		18.06.110
		3		18.06.120
		4		18.06.130
		5		18.06.135
		6	Rpld	18.06.205
3800	5- 8-89	1		18.06.335
3801	5- 8-89	1		18.09.040
3802	5- 8-89	1		18.06.050
3803	5- 8-89	1		18.06.050
3804	5- 8-89	1		18.06.050
3805	5- 8-89	1		18.06.339
3806	5- 8-89	1		18.06.050
3807	5- 8-89	1		18.06.050
3808	5- 8-89	1		18.06.050
3809	5- 8-89	1		18.16.080
3810	5-22-89	1		12.16.480
3811	5-22-89	1		18.06.050
3812	5-22-89	1		14.04.010
3813	5-22-89	1		14.05.010
3814	5-22-89	1		16.06.010
3815	6-12-89	1		12.16.030
3818	6-12-89			10.14.140
		2		4.06.180
3821	6-26-89	1		18.06.200
3822	6-26-89	1		18.06.140
		2		18.06.150
		3		18.06.160
		4, 5	Rpld	18.06.170, 18.06.180
		6		18.06.190
3823	6-26-89	1		18.06.225
3824	6-26-89	1		18.06.405

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3825	6-26-89	1		18.06.410
3826	6-26-89	1		18.06.390
3827	6-26-89	1		14.12.010
3828	6-26-89	1		14.14.010
3829	7-10-89	1		18.06.030
		2		18.06.341
3831	7-10-89	1		2.14.060—2.14.080, 2.14.110, 2.14.120, 2.14.140, 2.14.190
3833	7-24-89	1		4.06.180
3834	7-24-89	1		4.04.140
3835	7-24-89	1		12.16.390
3840	8-14-89	1		18.26.010
3841	8-14-89	1		18.06.315
3842	8-14-89	1		18.06.430
3843	8-14-89	1		18.06.030
		2		18.06.400
3844	8-14-89	1		18.12.040
		2	Rpld	18.12.050
3845	8-14-89	1, 2		18.06.270, 18.06.280
		3		18.06.281
3846	8-14-89	1		18.06.050
3848	8-14-89	1, 2		2.14.220, 2.14.230
		3		2.14.260
3850	8-14-89	1		2.08.380—2.08.470
3853	8-28-89	1		18.06.220
3854	8-28-89	1		18.06.290
3855	8-28-89	1		18.09.040
3857	9-11-89	1		2.14.260
3859	9-25-89	1		18.06.030
		2—4		18.06.240—18.06.260
		5		18.06.262
3860	9-25-89	1		6.06.340
3861	9-25-89	1		6.06.335
3862	9-25-89	1		8.08.020
3863	9-25-89	1		8.12.140
3864	9-25-89	1		6.06.555
3865	9-25-89	1		8.08.025
3866	9-25-89	1		8.10.040
3867	9-25-89	1		6.06.185
3868	9-25-89	1		8.14.035
3869	10- 9-89	1		2.06.030
		2		2.06.050
3871	10- 9-89	1		18.06.340

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3872	10- 9-89	1		18.06.330
3873	10- 9-89	1		2.08.110
3875	11-13-89	1		12.16.470
3876	10-13-89	1		6.07.060
3886	11-13-89	1		4.22.005
3887	11-13-89	1		18.06.331
3888	11-13-89	1		8.12.042, 8.12.044
3889	11-13-89	1		8.22.200
3890	12-11-89	1		18.09.040
3893	12-11-89	1		18.06.340
3912	1- 9-90	1		6.09.010—6.09.070
3918	1-23-90	1		18.26.010
3921	2-13-90	1		4.06.120
		2		4.06.180
3923	2-27-90	1		4.06.020
3924	2-27-90	1		12.16.010
		2		12.16.015
		3, 4		12.16.130, 12.16.140
		5		12.16.200
		6, 7		12.16.530, 12.16.540
		8—12		12.16.580—12.16.620
		13, 14		12.16.650, 12.16.660
		15, 16		12.16.680, 12.16.690
		17, 18		12.16.740, 12.16.750
3925	2-27-90	1		18.06.135
		2		18.06.140
3927	2-27-90	1		8.18.010
3928	3-13-90	1		16.06.010(note)
3929	3-13-90	1		2.14.140
3930	3-13-90	1		8.10.070
3932	3-27-90	1		4.06.120
3944	4-10-90	1	Rpld	16.04.030
			Amnd	16.04.040
			Rpld	16.16.040
			Rpld	16.16.050
			Amnd	16.16.070
3945	4-24-90	1		12.16.290, 12.16.300
3950	5-22-90	1		8.28.300
		2		8.28.320
		3		8.28.390

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		5		8.28.410
		6		8.28.430
		7		8.28.440
3952	5- 8-90	1		8.30.040
				8.30.100
3953	5-22-90	1		4.04.510
3954	5-22-90	1		4.54.140
3958	5-22-90	1		8.10.060
3959	6-12-90	1		14.05.010
3960	6-12-90	1		14.06.010
				14.06.100
				14.06.200
3961	6-12-90	1		18.29.010—
				18.29.090
3966	6-26-90	1		12.14.090
3967	6-26-90	1		18.09.040
3968	6-26-90	1		12.20.070
		2		12.20.090
3975	6-26-90	1		12.20.100
3976	7-10-90	1		18.06.030
3977	7-10-90	1		4.24.010
				4.24.020
				4.24.030
				4.24.040
				4.24.060
				4.24.070
				4.24.080
				4.24.130
				4.24.140
				4.24.170
				4.24.180
				4.24.200
				4.24.220
				4.24.230
				4.24.240
			Rpld	4.24.250
			Rpld	4.24.260
				4.24.270
				4.24.280
3978	7-10-90	1		6.11.010—
				6.11.070
3982	7-24-90	1		8.28.020
		2		8.28.030
		3	Rpld	8.28.060
		4		8.28.070
		5		8.28.480
		6		8.28.490

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3983	8-14-90	1		4.42.030
			Rpld	4.42.040, 4.42.050
3984	8-14-90	1		18.30.010—18.30.090
3988	8-14-90	1	Added	2.08.480—2.08.550
3989	8-28-90	1		2.14.230
3990	8-28-90	1		4.24.020
3991	8-28-90	1		8.28.160
3994	8-28-90	1		18.06.220
3995	9-11-90	1	Added	6.30.010—6.30.610
3996	9-11-90	1		8.18.010
3997	9-11-90	1		12.18.010
3999	9-11-90	1		18.06.400(e)
4007	9-11-90	1	Rpld	2.08.190—2.08.220
4008	9-11-90	1		8.22.160
4009	9-11-90	1		6.09.030
4010	9-11-90	1		2.08.560—2.08.650
4011	9-25-90	1		4.04.460
4014	10- 9-90	1		2.08.080
4020	10-23-90	1		2.08.660—2.08.750
4021	10- 9-90	1		18.29.080
4023	11-27-90	1		2.08.760—2.08.830
4027	11-27-90	1		18.06.380
4028	11-27-90	1		18.06.400
4029	11-27-90	1		18.06.050
4030	11-27-90	1		18.06.320
4031	11-27-90	1		18.06.030
		2		18.06.281
4032	11-27-90	1		6.11.030(a)
4033	11-27-90	1		8.26.020
		2	Rpld	8.26.030, 8.26.040
4034	11-27-90	1		8.28.060
4035	11-27-90	1		2.08.230
				2.08.290(a)
				2.08.300
				2.08.280
				2.08.290(b)
				2.08.310
4037	12-11-90	1		8.28.160
4038	12-11-90	1		12.16.010

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		4		12.16.595
		5		12.16.630
		6		12.16.640
		7		12.16.650
		8		12.16.790
4043	1- 8-91	1		2.14.220
		2		2.14.230
		3		2.14.260
4044	1- 8-91	1		12.20.070
4045	1- 8-91	1		6.06.650
4046	1- 8-91	1		1.02.010— 1.02.060
4052	1-22-91	1		8.12.060
4053	1-22-91	1		8.22.040
4054	2-12-91	1		6.30.010— 6.30.620
4055	2-26-91	1		12.16.290— 12.16.300
4060	3-12-91	1		12.20.070
4063	3-12-91	1		18.17.010— 18.17.030
4064	3-12-91	1		2.08.660— 2.08.750
4067	3-26-91	1		4.04.025
4068	3-26-91	1		12.14.020 12.14.030 12.14.050 12.14.085 12.14.090 12.14.095
4069	3-26-91	1		18.09.010— 18.09.060
4082	3-26-91	1		Ch. 6.30(note)
4083	4- 9-91	1		2.14.080
4093	4-23-91	1		8.28.520
4094	4-23-91	1		18.06.340
4096	4-23-91	1		2.08.840— 2.08.920
4097	5-28-91	1		14.05.010
4098	5-28-91	1	Added	4.41.010— 4.41.220
4110	5-28-91	1		18.06.340
4112	5-28-91	1		8.12.140
4113	5-28-91	1	Rpld	18.26.010— 18.26.030
4114	5-28-91	1		18.27.010—

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				18.27.140
4115	6-11-91	1		Ch. 14.08(note)
4117	6-25-91	1		12.06.080
4119	6-25-91	1	Rpld	18.06.370
4120	6-25-91	1		14.05.010
4121	6-25-91	1		4.32.200
4122	6-25-91	1		4.06.080
4123	6-25-91	1		16.06.010(note)
4124	6-25-91	1		18.08.120
4126	7- 9-91	1		8.32.080
4128	7- 9-91	1		8.28.305, 8.28.306
4129	7- 9-91	1		4.22.070
4134	7-23-91	1		18.06.412
4135	8-13-91	1		4.04.020
4136	8-13-91	1		4.52.080
4138	8-27-91	1		2.08.480—2.08.550
4139	8-27-91	1		4.38.100
4140	8-27-91	1		12.16.390
4141	8-27-91	1		4.04.140
4143	8-27-91	1		18.06.340
4144	9-10-91	1		4.41.200
4145	9-10-91	1		8.34.010—8.34.110
4147	9-10-91	1		18.06.280
4148	9-10-91	1		12.16.070
4156	9-24-91	1		18.06.316
4157	9-24-91	1		18.06.050
		2		18.06.090
		3		18.06.100
		4		18.06.270
		5		18.06.280
4158	9-24-91	1		18.06.341
4159	9-24-91	1		18.06.400
4160	10-22-91	1		4.12.010—4.12.180
4161	10-22-91	1		2.14.230
4162	10-22-91	1		12.24.110
		2		12.24.130
4164	10-22-91	1		18.06.339
		2		18.06.340
4166	11-12-91	1		18.11.010
4167	11-26-91	1		12.16.380
4169	11-26-91	1		18.08.080
4171	11-26-91	1		4.22.070
4172	12-10-91	1	Rpld	4.36.010—4.36.070

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4174	12-10-91	1		18.06.030
		2		18.06.230
		3		18.06.305
		4		18.06.400
4175	1-14-92	1		18.09.040(G)
4176	1-28-92	1		4.06.130
4177	1-28-92	1	Added	12.30.010— 12.30.060
4178	1-28-92	1	Added	18.06.080
		2		18.06.320
4179	1-28-92	1		2.14.220
		2		2.14.230
		3		2.14.260
4183	2-11-92	1		18.08.070
				18.08.080
				18.08.090
				18.08.100
				18.08.110
				18.08.120
4186	2-25-92	1		18.18.060
4188	2-25-92	1		6.06.525
4189	3-10-92	1		18.09.040
4195	3-10-92	1		2.08.930— 2.08.1000
4196	3-10-92	1		8.32.005— 8.32.190
4197	3-24-92	1		18.28.020
4198	3-24-92	1		12.18.010
4199	3-24-92	1		2.16.040— 2.16.090
4202	4-14-92	1		18.29.20
4203	4-14-92	1		2.08.480
		2		2.08.520
4206	4-14-92	1		18.15.010— 18.15.100
4207	4-14-92	1		18.06.390
		2		18.06.400
		3		18.06.410
		4	Rpld	18.06.420
		5		18.06.430
		6	Added	18.06.420
		7		18.06.030
4208	4-14-92	1		18.08.050
4209	4-14-92	1		18.06.210
4217	4-28-92	2		4.38.040
				4.38.050
				4.38.065
		3		4.38.120

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				4.38.125
				4.38.130
				4.38.135
				4.38.140—
				4.38.170
4218	4-18-92	1		18.06.260
4219	4-28-92	1		18.08.080
		2		18.08.110
4220	4-28-92	1		12.18.010
4221	4-28-92	1		4.41.070
4222	4-28-92	1, 2		2.14.070, 2.14.080
		3		2.14.170
4223	4-28-92	1		18.06.050
4224	5-12-92	1		4.30.100
				4.30.110
4226	5-12-92	1—4		18.06.240—
				18.06.270
		5		18.06.281
4230	5-26-92	1		6.06.557
4231	6- 9-92	1		4.04.140
4232	6- 9-92	1		8.28.020
4234	6- 9-92	1		14.04.010
4235	6- 9-92	1		14.05.010
4236	6- 9-92	1		14.10.010
4237	6- 9-92	1		14.08.010
4238	6- 9-92			14.04.010(note)
4243	6-23-92	1		16.06.010
4245	6-23-92	1		8.28.600—
				8.28.640
4246	7-14-92	1		8.28.400
4247	7-14-92	1		6.09.040
		2		6.09.043
		3		6.09.045
		4		6.09.050
4248	7-14-92	1	Rpld	4.04.320
				4.04.340
				4.04.350
				4.04.380
				4.04.410
				4.04.440
				4.04.500
				4.04.520
4254	7-28-92	1		6.30.130
4255	7-28-92	1		6.06.390
4257	7-28-92	1		18.06.350
4258	7-28-92	1		4.04.160
4261	8-25-92	1		4.04.540
4261	8-25-92	1		4.04.540

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4271	9- 8-92	1		14.12.010
4272	9- 8-92	1		14.14.010
4274	10-13-92	1		12.14.090
4276	10-27-92	1		2.08.1010—2.08.1019
4279	10-27-92	1		4.16.080
4280	11-10-92	1		12.16.070
4283	12- 8-92	1		8.12.010
4284	12- 8-92	1		8.22.200
4286	12- 8-92	1		4.06.290
4289	1-12-93	1		1.02.010, 1.02.020 1.02.030, 1.02.060
4290	1-26-93	1		18.06.340
4291	1-26-93	1		18.06.390
4293	1-26-93	1		18.06.060
		2—7		18.06.080—18.06.130
		8		18.06.135
4296	3- 9-93	1		4.43.010—4.43.200
4297	3-23-93	1		12.14.040, 12.14.050 12.14.070—12.14.090 12.14.110—12.14.210
4299	3-23-93	1		2.20.090
4302	4-13-93	1		4.41.090
4303	4-13-93	1		12.30.030
4305	4-13-93	1		2.14.230
		2		2.14.260
4306	4-13-93	1		2.06.030
		2		2.06.050
4308	4-27-93	1		12.16.030
4311	4-27-93	1		6.18.190—6.18.240
4313	6- 8-93	1		18.31.010—18.31.180
4314	6- 8-93	1		2.14.230
4315	6- 8-93	1		18.24.110
4316	6- 8-93	1		12.14.090
4317	6- 8-93	1		18.06.030
		2		18.06.260(c)(8)
4318	6-22-93	1		4.06.190
4328	9-14-93	1		14.04.010
		2		14.04.010(note)
4329	9-14-93	1		8.08.040
4334	9-14-93	1		18.06.300
4335	9-14-93	1		18.06.270
4336	9-14-93	1		18.06.280
4337	9-14-93	1		18.06.281
4338	9-14-93	1	Rpld	4.44.010—4.44.060
			Added	4.44.010—4.44.110
4339	9-28-93	1		14.16.195
4341	9-28-93	1		6.06.335

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4342	9-28-93	1		6.06.337
4343	9-28-93	1		6.06.340
4344	9-28-93	1		6.06.550
4345	9-28-93	1		6.06.555
4346	10-12-93	1		12.16.280
4356	12-28-93	1		4.40.010—4.40.045
				4.40.050—4.40.075
				4.40.080, 4.40.085
				4.40.090, 4.40.100
4359	12-28-93	1		4.56.270
4361	1-25-94	1		2.08.390, 2.08.400
				2.08.420, 2.08.430
				2.08.450, 2.08.472
				2.08.474, 2.08.476
4362	1-25-94	1		6.06.215
4363	1-25-94	1		6.06.216
4364	1-25-94	1		8.28.230
4365	1-25-94	1		8.28.030
4366	2- 8-94	1		4.22.805
4367	2- 8-94	1		2.14.010
4368	2- 8-94	1		18.06.030
		2		18.06.270
		3		18.06.280
		4		18.06.281
		5		18.06.300
4369	2-22-94	1		8.16.060
4370	2-22-94	1		14.04.010(note), 14.05.010(note)
4371	3- 8-94	1		8.12.010
4372	3- 8-94	1		8.12.025
4374	3-22-94	1		8.10.035
4375	3-22-94	1, 2		12.16.120, 12.16.130
4376	4-26-94	1		2.16.020(d)
4377	4-26-94	1		6.06.135
4378	4-26-94	1		Ch. 2.08, Art. XII (tit.)
				2.08.840
4380	5-10-94	1		8.16.070
4386	5-24-94	1		6.06.705
4392	5-24-94	1	Rpld	6.11.010—6.11.070
4393	6-14-94	1		4.41.090
		2		4.41.140
		3		4.41.150
		4		4.41.215
4395	6-14-94	1		2.14.220
		2		2.14.230
4400	6-28-94	1		6.11.010—6.11.090
4408	7-26-94	1		8.10.010
4409	8- 9-94	1		12.16.565(b)
4412	8- 9-94	1		18.06.050(e)

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4413	8- 9-94	1		8.06.010
4414	8-23-94	1		4.18.020(2)
4418	8-23-94	1		12.24.010—12.24.190
4421	9-13-94	1, 2		4.22.070, 4.22.080
4427	9-27-94	1		8.12.160
4428	9-27-94	1		2.08.1010—2.08.1019
4429	10-11-94	1		4.04.010
4439	10-25-94	1		8.23.010—8.23.110
4440	10-25-94	1		6.11.010—6.11.090
4445	11-22-94	1	Rpld	10.12.010—10.12.100
4446	11-22-94	1		18.27.010—18.27.140
4449	12-13-94	1		8.10.070(a)
4450	12-13-94	1		8.06.050(g)
4451	12-13-94	1		8.08.020(g)
4552	12-13-94	1		14.04.010
		2		14.04.010(note)
4463	1-10-95	1		8.29.010—8.29.100
4464	1-24-95	1		14.16.170
4466	1-24-95	1		18.06.295
4467	1-24-95	1		2.08.560—2.08.650
4473	2-14-95	1		4.06.290
4476	2-14-95	1		12.04.010
4479	2-28-95	1		18.06.240(b)(8)
		2		18.06.250(b)(12)
		3		18.06.260(b)(14)
		4		18.06.270(b)(9)
		5		18.06.281(b)(8)
4482	2-28-95	1		8.12.015
4483	2-28-95	1		8.22.200
4484	2-28-95	1		6.06.715
4485	2-28-95	1		4.41.140
4490	3-28-95	1		12.16.565
4493	3-28-95	1		4.22.080(a)
4497	4-11-95	1	Rpld	2.08.560—2.08.650
4503	4-25-95	1		2.06.070—2.06.120
4504	4-25-95	1		2.17.010—2.17.130
4505	4-25-95	1		18.06.270(i)(1)
		2		18.06.280(i)(1)
		3		18.06.281(i)(1)
		4		18.06.340(q)
		5		18.06.341
		6		18.06.390(c)(5)—(7)
4506	4-25-95	1	Rpld	2.20.010—2.20.100
			Added	2.20.110—2.20.210
4507	5- 9-95	1, 2		8.28.445, 8.28.446
4510	5-23-95	1		4.04.390
		2		4.04.400
		3		4.16.100

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		4		4.38.130
		5		4.52.090
4511	5-23-95	1		4.04.540
4517	6-13-95	1		4.06.010
		2		4.06.180
4518	6-13-95	1		12.16.070
4519	6-27-95	1		14.10.010, 14.10.010(note)
4520	6-27-95	1		14.14.010
4521	6-27-95	1		14.06.010
4522	6-27-95	1		14.12.010
4523	6-27-95	1		14.08.010, 14.08.010(note)
4524	6-27-95	1		16.06.010, 16.06.010(note)
4525	6-27-95	1		16.04.040, 16.04.050
4526	6-27-95	1		6.06.067
4527	6-27-95	1		14.04.010
				14.04.010(note)
4535	7-11-95	1		12.16.010, 12.16.530(b)(16)
4536	7-25-95	1		14.08.030—14.08.050
4537	7-25-95	1	Rpld	4.04.300, 4.04.330,
				4.04.370, 4.04.430
			Amded	4.04.560, 4.32.210,
				4.40.040, 4.54.020
			Rpld	4.54.070—4.54.090,
				4.56.010—4.56.060
			Amded	4.62.050
4538	7-25-95	1		6.15.010—6.15.060
4539	7-25-95	1		18.27.010—18.27.140
4542	8- 8-95	1		4.04.020, 4.04.050
				4.04.070, 4.04.160
			Rpld	4.04.170, 4.04.250
4543	8- 8-95	1		12.16.010, 12.16.030
				12.16.040
			Rpld	12.16.100
				12.16.160, 12.16.440,
				12.16.450, 12.16.460,
				12.16.490(b)
4544	8- 8-95	1		2.06.030
		2		2.06.050
4545	8- 8-95	1, 2		2.14.220, 2.14.230
		3		2.14.260
4546	8- 8-95	1		18.32.010—18.32.160
4548	8-22-95	1		18.06.390
		2		18.06.400
		3		18.06.430
4549	8-22-95	1		18.06.280(b)(13), (14)
		2		18.06.281(b)(23)—(26)
4557	8-22-95	1		18.06.030(b)
4558	8-22-95	1		18.06.320(f)(22), (23)

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4560	9-26-95	1		12.16.120, 12.16.130
				12.16.190, 12.16.200
4562	9-26-95	1		4.04.140(h)
			Rpld	4.04.280
				4.04.360
			Rpld	4.04.460, 4.04.480
				4.04.600(a)(3)
		3		4.10.100
		4		4.48.010, 4.48.030
				4.48.040
			Rnbd	4.04.390, 4.04.400
			as	4.48.050, 4.48.060
4563	9-26-95	1		18.06.210
		2		18.06.225(b), (c)
		3		18.06.240(b), (d), (h)
		4		18.06.250(b), (d), (g)
		5		18.06.260(b), (d), (g)
		6		18.06.262(b), (d)
		7		18.06.265(b), (c)
		8		18.06.266(b), (c)
		9		18.06.430(a)(5), (6)
4564	9-26-95	1		18.06.030(b)(20)—(85)
4565	10-10-95	1		12.16.130, 12.16.140
				12.16.390, 12.16.420
4566	10-10-95	1		12.08.090
4567	10-10-95	1		4.04.590
4568	10-10-95	1		12.16.620
4571	10-24-95	1		6.06.550(e), (f)
4573	11-14-95	1		18.06.282
4579	11-18-95	1		8.08.020(b)
4585	1-23-96	1		12.16.565(b)
4586	1-23-96	1	Rpld	2,08.660—2.08.750
4587	1-23-96	1	Rpld	2.08.1010—2.08.1019
4599	3-12-96	1	Rpld	8.16.010
		2	Added	8.16.010
4600	3-12-96	1		6.40.010—6.40.080
4601	3-12-96	1		2.14.080
4602	3-12-96	1		2.14.230
		2		2.14.260
4603	3-12-96	1		8.04.040
4605	3-12-96	1		18.06.260
		2		18.06.262
		3		18.06.270
		4		18.06.281
		5		18.06.340
4606	3-26-96	1		6.06.445, 6.06.480
4607	3-26-96	1		8.12.018

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4613	4- 9-96	1		12.14.010—12.14.085 12.14.090, 12.14.090, 12.14.100—12.14.210
4617	4-19-96	1		18.06.030
		2		18.06.308
		3		18.06.390
		4		18.06.400
4619	4-23-96	1		12.16.130
4620	4-23-96	1		12.16.140
4621	4-23-96	1		12.16.610
4622	4-23-96	1		12.16.620
4623	4-23-96	1		12.16.440(c)
4626	5-14-96	1		14.04.010
4627	5-14-96	1		6.06.470
			Rpld	6.06.475
4628	5-14-96	1		8.06.055
4636	6-25-96	1		18.08.110(a)
4637	6-25-96	1		2.06.030
		2		2.06.050
4638	6-25-96	1		12.16.020, 12.16.110, 12.16.160, 12.16.450
4645	7- 9-96	1		8.08.050
4646	7- 9-96	1		8.10.025
4647	7- 9-96	1		8.12.026
		2		8.12.038
		3		8.12.041
		4		8.12.043
		5		8.12.045
4648	7- 9-96	1		8.18.025
4649	7- 9-96	1		8.28.135
		2		8.28.175
		3		8.28.185
		4		8.28.215
4650	7- 9-96	1		10.10.020
4651	7- 9-96	1		8.22.010—8.22.270
4652	7- 9-96	1	Rpld	8.22.010—8.22.317, 8.22.320—8.22.420
4653	7- 9-96	1	Rpld	8.23.010—8.23.110
4654	7- 9-96	1		6.06.531
4655	7- 9-96	1		8.16.010
4656	7- 9-96	1		6.18.020
4657	7- 9-96	1		6.06.195
4661	8-13-96	1		8.16.060, 8.16.070
4667	8-27-96	1		8.24.020, 8.24.030 8.24.040, 8.24.050
4668	8-27-96	1		8.12.038
4669	8-27-96	1		6.11.010—6.11.090

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4675	9-24-96	1		8.21.010—8.21.110
4676	9-24-96	1		4.38.090
4679	10- 8-96	2		4.05.010—4.05.070
4680	10- 8-96	1		4.04.160
4684	10-22-96	1	Rpld	2.14.040—2.14.190
		2	Rpld	2.14.200—2.14.230
		3	Rpld	2.14.240—2.14.280
4685	10-22-96	1		2.14.010—2.14.030
4687	11-12-96	1		2.06.030
		2		2.06.050
4692	12- 3-96	1		4.04.160
4700	1-14-97	1		4.18.070
4703	1-14-97	1		18.08.030
		2		18.08.050
4704	1-14-97	1		18.06.380
4705	1-28-97	1		8.36.020
4708	1-28-97	1		6.08.050
4709	1-28-97	1		18.06.030
4712	2-11-97	1		8.06.010
4714	2-11-97	1		18.06.030
		2		18.06.040
		3		18.06.050
		4		18.06.060
		5		18.06.080
		6		18.06.090
		7		18.06.100
		8		18.06.110
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		10		18.06.130
		11		18.06.135
		12		18.06.140
		13		18.06.150
		14		18.06.160
		15		18.06.190
		16		18.06.210
		17		18.06.220
		18		18.06.225
		19		18.06.230
		20		18.06.240
		21		18.06.250
		22		18.06.260
		23		18.06.262
		24		18.06.270
		25		18.06.280
		26		18.06.281
		27		18.06.340
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4736	4-22-97	1		2.08.1010
				2.08.1015
				2.08.1020
				2.08.1025
				2.08.1030
				2.08.1035
				2.08.1040
				2.08.1045
				2.08.1055
				2.08.1060
				2.08.1065
				2.08.1070
				2.08.1075
				2.08.1080
				2.08.1085
				2.08.1090
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				2.08.1120
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				2.08.1135
				2.08.1140
4741	5-13-97	1		12.30.010, 12.30.030, 12.30.040, 12.30.050
4743	5-13-97	1		18.06.290
4744	5-13-97	1		18.06.281(c)(13)
4749	5-20-97	1		2.06.070
				2.06.090
				2.06.095
				2.06.100
				2.06.120
4750	5-20-97	1		8.21.120—8.21.140
4751	5-20-97	1		4.56.330—4.56.420
4752	5-20-97	1		6.04.255, 6.06.720, 6.12.050
4753	5-20-97	1		8.28.020
				8.28.255
4754	6-10-97	1		6.10.010—6.10.180
4755	6-10-97	1		2.14.010
		2		2.16.025
4763	7- 8-97	1	Rpld	4.04.010—4.04.610, 4.05.010—4.05.070, 4.06.010—4.06.310,

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4764	7- 8-97	1	4.04.005—4.04.230
4765	7- 8-97	1	5.05.005—-5.05.018 5.06.011—5.06.050 5.07.011—5.07.190 5.08.011—5.08.121 5.09.011—5.09.130 5.10.011—5.10.050 5.11.011 5.12.011—5.12.030 5.13.011—5.13.300 5.14.005—5.14.080 5.15.005—5.15.120 5.16.011 5.17.011—5.17.030 5.90.005—5.90.2620 5.95.010
4766	7- 8-97	1	6.06.534
4767	7- 8-97	1	8.06.070
		2	8.10.080—8.10.100
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4780	8-26-97	1		5.05.008
4781	8-26-97	1		2.20.130(7)
		2		2.20.140(b)
4783	9- 9-97	1		5.08.011—5.08.130
4784	9- 9-97	1		18.06.297
4792	9-23-97	1		18.06.250
4794	10-14-97	1		6.04.330
4808	10-28-97	1		8.08.020
4809	10-28-97	1		8.12.140
4810	10-28-97	1		6.18.020
4813	10-28-97	1		6.06.335
		2		6.06.336
		3	Rpld	6.06.337
4814	10-28-97	1		6.06.550
4815	10-28-97	1		8.10.040
4816	10-28-97	1—3		8.36.010—8.36.030
4821	11-18-97	1		8.08.022
4822	11-18-97	1		6.06.020
4823	1-13-98	1	Rpld	8.10.045
4825	1-13-98	1		4.04.190
4826	1-13-98	1		1.02.010
		2	Rpld	1.02.020, 1.02.030, 1.02.040, 1.02.050, 1.02.060
4829	1-13-98	1		12.16.390
4830	1-13-98	1		6.10.020
		2		6.10.040
		3		6.10.060
		4		6.10.110
		5		6.10.190
4837	1-27-98	1		5.14.030, 5.14.045, 5.14.090
4838	1-27-98	1		8.12.010
		2		8.12.025
4839	1-27-98	1	Rpld	Art. III(tit.)
			Rnbd as	Arts. IV—VIII(tits.) Arts. III—VII(tits.)
			Added	8.22.105, 8.22.155
			Amd	8.22.030, 8.22.040, 8.22.070—8.22.100, 8.22.120—8.22.150, 8.22.160, 8.22.190, 8.22.230
4840	1-27-98	1		8.06.055
4841	1-27-98	1		18.06.300
4848	2-24-98	1		2.16.100
4849	2-24-98	1		12.08.080

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4854	3-24-98	1		8.12.038
4859	4-14-98	1		2.08.380—2.08.470, 2.08.472, 2.08.474
			Rpld	2.08.476
4860	4-14-98	1	Rpld	2.17.010—2.17.130
4867	5-12-98	1		8.30.030
				8.30.090
			Rpld	8.30.100
4868	5-12-98	1		6.08.050
4869	5-12-98	1		12.06.080
4870	5-12-98	1		18.08.120
4871	5-12-98	1		18.12.080
4873	5-26-98	1		8.12.022
4876	5-26-98	1	Rpld	8.12.040
4877	5-26-98	1		8.12.041
4878	5-26-98	1	Rpld	8.12.043
4879	5-26-98	1	Rpld	8.12.044
4880	5-26-98	1		8.12.045
4891	6- 9-98	1		18.05.060
4894	7-14-98	1		8.18.025
4895	7-14-98	1		8.06.020
4896	7-14-98	1		2.20.140
4897	7-14-98	1		8.08.020
4905	8-18-98	1		5.13.025
4907	9- 8-98	1		8.30.200—8.30.250
4914	9-22-98	1		18.06.050
		2		18.06.060
		3		18.06.210
		4		18.06.225
		5		18.06.240
		6		18.06.250
		7		18.06.260
		8		18.06.262
		9		18.06.265
		10		18.06.266
		11		18.06.400
4915	9-22-98	1		12.16.010
		2		12.16.030
		3		12.16.395
		4		12.16.700
4916	9-22-98	1		18.14.070
4917	10-13-98	1		8.32.010, 8.32.040, 8.32.050, 8.32.060, 8.32.070, 8.32.080, 8.32.110, 8.32.160
4918	10-13-98	1		2.08.940, 2.08.950, 2.08.970
4921	10-27-98	1		2.10.200—2.10.300

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4927	10-27-98	1		2.13.010
4928	10-27-98	1		2.13.020
4929	11-10-98	1		5.15.010—5.15.070
4936	11-24-98	1		6.06.606
4937	11-24-98	1	Rpld	8.16.110
		2		8.16.100
4938	11-24-98	1		8.06.015
4941	12- 8-98	1		5.17.011
				5.17.040
				5.17.050
				5.17.060
				5.17.070
4942	12- 8-98	1		6.06.720
				6.12.050
4943	12- 8-98	1		8.28.020
			Rpld	8.28.255
4945	1-12-99	1		2.08.760—2.08.830
4951	1-26-99	1		14.10.010
4952	1-26-99	1		14.14.010
4953	1-26-99	1		14.12.010
4954	1-26-99	1		14.06.010
4955	1-26-99	1		14.04.010
4956	1-26-99	1		14.08.010
4957	1-26-99	1		16.06.010
4960	1-26-99	1		18.26.010—18.26.130
4973	3- 9-99	1		2.08.1065
				2.08.1070
				2.08.1120
				2.08.1135
4984	4-13-99	1		8.08.011
4985	4-13-99	1		8.12.021
4986	4-13-99	1		8.10.021
4987	4-13-99	1		6.06.245
4988	4-13-99	1		6.06.246
4990	4-13-99	1		6.06.380
4991	4-13-99	1		6.06.381
4992	4-13-99	1		6.06.382
4993	4-13-99	1		6.06.536
4994	4-13-99	1		6.06.551
4995	4-13-99	1		6.06.725
4996	4-13-99	1		6.06.730
4997	4-13-99	1		6.30.301
5006	5-25-99	1	Rpld	18.27.010—18.27.140
		2	Added	18.27.010—18.27.080
5010	6-22-99	1		14.08.010
5011	6-22-99	1		8.12.022
5012	6-22-99	1		8.12.023
5013	6-22-99	1		8.12.033

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5014	6-22-99	1		8.12.035
5016	7- 6-99	1		12.16.550
5017	7- 6-99	1		5.90.140
5018	7- 6-99	1	Rpld	5.90.220—5.90.310
5019	7- 6-99	1		8.21.060
5020	7- 6-99	1		5.05.017
5021	7- 6-99	1		5.13.011
				5.13.020
				5.13.025
				5.13.030
				5.13.040
			Rpld	5.13.110,
				5.13.111
				5.13.120
				5.13.130
				5.13.210
			Rpld	5.13.211
				5.13.220
				5.13.230
				5.13.240
				5.13.250
				5.13.260
				5.13.270
				5.13.300
5030	8-17-99	1		6.14.160
5035	9-14-99	1	Rpld	8.18.010
5036	9-14-99	1		8.28.300(b), (c)
				8.28.320(b)
				8.28.360
				8.28.390
				8.28.400
				8.28.430
				8.28.440
				8.28.445
				8.28.446
				8.28.620
				8.28.700
				8.29.040
				8.29.080
5041	9-14-99	1	Rpld	2.08.090—2.08.180
5042	9-14-99	1	Rpld	2.08.320—2.08.370
5043	9-14-99	1	Rpld	2.08.230—2.08.310
5046	9-28-99	1		6.06.090(c)—(e)
5047	9-28-99	1		8.12.020
5048	5-28-99	1		8.16.020
5049	9-28-99	1		2.08.1090
5050	9-28-99	1		5.05.011
5051	9-28-99	1		5.05.013

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5052	9-28-99	1		5.06.020
5053	9-28-99	1		8.21.040
				8.21.050
				8.21.060
				8.21.090
				8.21.130
				8.21.140
5055	10-12-99	1		2.08.480
				2.08.490
				2.08.520
				2.08.540
5056	10-12-99	1		8.12.140
5057	10-12-99	1		1.04.015
5058	10-12-99	1		8.10.040
5059	10-12-99	1		1.04.017
5062	10-26-99	1		18.06.320
5063	11- 9-99	1		1.05.005—1.05.050, 1.05.100—1.05.135, 1.05.200—1.05.220, 1.05.300—1.05.220, 1.05.400—1.05.410, 1.05.500—1.05.560, 1.05.600, 1.05.605
5064	11- 9-99	1		4.04.190
5065	11- 9-99	1	Rpld	6.11.080
5066	11- 9-99	1	Rnbd	6.11.090
			as	6.11.080
			Amd	6.11.080
5067	11- 9-99	1		8.04.060
5068	11- 9-99	1		8.10.055
5069	11- 9-99	1		8.24.060
5070	11- 9-99	1		8.28.230
5071	11- 9-99	1		10.04.150
5072	11- 9-99	1		10.08.010
				10.08.045
				10.08.060
				10.08.070
				10.08.090
5073	11- 9-99	1		12.06.080(a)
5074	11- 9-99	1		12.10.050
5075	11- 9-99	1		14.04.030
5076	11- 9-99	1		14.06.020
5077	11- 9-99	1		14.08.020
5078	11- 9-99	1		14.10.020
5079	11- 9-99	1		14.12.020
5080	11- 9-99	1		14.14.020
5081	11- 9-99	1		14.16.020(g)
5082	11- 9-99	1		14.18.005

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5083	11- 9-99	1	14.24.020
5084	11- 9-99	1	18.06.360
5085	11- 9-99	1	18.06.500
5086	11- 9-99	1	18.08.130
5087	11- 9-99	1	18.09.060
5088	11- 9-99	1	18.10.070
5089	11- 9-99	1	18.12.090
5090	11- 9-99	1	18.32.140
5091	11- 9-99	1	Ch. 8.22(tit.), 8.22.010—8.22.280
5092	11- 9-99	1	12.20.005
5094	11-23-99	1	12.22.060
5099	11-23-99	1	12.28.010—12.28.120
5100	12-14-99	1	5.90.010
			5.90.030
			5.90.040
			5.90.060
			5.90.065
			5.90.070
			5.90.080
			5.90.085
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5101	12-14-99	1	2.08.1015
			2.08.1025
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			2.08.1045
			2.08.1060
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			2.08.1070
			2.08.1075
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			2.08.1140
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5102	12-14-99	1	12.16.110
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5117	1-25-00	1		2.08.1135
5124	2-22-99	1	Rpld	18.29-010—18.29.090
5125	2-22-00	1	Rpld	18.04.010—18.04.060
5126	2-22-99	1	Rpld	18.30.010—18.30.090
5129	2-22-00	1		18.06.030
		2		18.06.060
		3		18.06.390
5130	2-22-00	1		18.12.030
5144	4-11-00	1		18.06.292
5147	4-25-00	1		8.06.050
5148	4-25-00	1		8.06.055
5152	6-13-00	1		14.06.010
5156	6-27-00	1		2.11.010
5159	7-11-00	1		8.23.005—8.23.160
5160	7-11-00	1	Rpld	8.12.030
5161	7-11-00	1	Rpld	8.12.038
5166	8- 1-00	1		Ch. 2.08, Art. XI(tit.), 2.08.760
5167	8- 1-00	1		18.15.020
		2		18.15.060
5173	9-12-00	1		18.06.210
		2		18.06.250
		3		18.06.260
		4		18.06.262
5177	9-12-00	1		12.28.200—12.28.255
5188	9-26-00	1	Rpld	18.06.010—18.06.500
5189	9-26-00	1	Added	18.06.101—18.06.108, 18.06.201—18.06.205, 18.06.301—18.06.307, 18.06.401—18.06.403, 18.06.501—18.06.510, 18.06.601—18.06.607, 18.06.701—18.06.710, 18.06.801—18.06.806, 18.06.901—18.06.908, 18.06.1001—18.06.1005, 18.06.1101—18.06.1115, 18.06.1201—18.06.1202
5190	10-10-00	1		12.18.010(a), (b)
5191	10-10-00	1		18.08.020
		2		18.08.030(i)
5192	10-10-00	1		18.09.030
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5193	10-10-00	1		18.10.010
		2		18.10.050
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5194	10-10-00	1		18.11.010

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5196	10-10-00	1		14.16.030
				14.16.080
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5205	11-14-00	1		18.06.1110
5206	11-14-00	1		12.28.300—12.28.355
5207	11-14-00	1		12.28.400—12.28.455
5208	11-14-00	1		18.06.910 P.
5210	12-12-00	1		2.08.1050
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5212	12-12-00	1		12.28.500—12.28.555
5215	1-23-01	1		18.06.910 P.2.
5220	2-27-01	1		8.28.020
		2		8.28.030(d)
		3		8.28.100
5222	2-27-01	1		8.22.080
				8.22.230(a)
				8.22.235
				8.22.240
5229	3-27-01	1		18.06.911—18.06.914
5231	4-10-01	1		8.12.033
5232	4-10-01	1	Rpld	8.18.020
5233	4-10-01	1	Rpld	8.28.140
5234	4-10-01	1		12.28.500
				12.28.510(a)
5235	4-10-01	1		12.28.600—12.28.655
5242	5-22-01	1		18.06.301
		2		18.06.302
		3		18.06.303
		4		18.06.305
		5		18.06.501
		6		18.06.502
		7		18.06.505
		8		18.06.1202
5246	6-12-01	1		18.06.103
		2		18.06.109
5250	7-24-01	1		6.07.060
5254	6-26-01	1		5.18.010
		2		5.18.020
5255	6-26-01	1		5.90.005
			Rpld	5.90.100—5.90.210

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5270	9-25-01	1	Rpld	6.30.250
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5271	10- 9-01	1		2.10.200(a)
		2		2.10.300(d)
5275	10- 9-01	1		12.28.200(e), (h), (j), 12.28.210(a)
5279	10- 9-01	1		12.28.400(j)
5280	10- 9-01	1		1.02.010
5281	10-23-01	1		8.22.110
		2		8.22.230
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5482	1-26-99	1		14.12.010
5294	1- 8-02	1		18.06.302
		2		18.06.1200
		3		18.06.301
5295	1-22-02	1		18.06.910, 18.06.915, 18.06.920, 18.06.922, 18.06.925, 18.06.930, 18.06.935, 18.06.940, 18.06.950, 18.06.955, 18.06.960, 18.06.965, 18.06.970, 18.06.980, 18.06.985
5296	1-22-02	1		2.10.200(note), 2.10.300(note)
5297	1-22-02	1		2.08.1150(3)
5301	1-22-02	1		12.28.700—12.28.755
5302	1-22-02	1		12.28.800—12.28.855
5313	2-26-02	1		5.12.011
5318	3-26-02	1		2.20.190
5320	3-26-02	1	Rpld	12.28.700—12.28.755
5324	4-23-02	1		Tit. 2, Ch. 2.08, Art. VII(tit.)
				2.08.480
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				2.08.510
				2.08.520
				2.08.530
				2.08.540
				2.08.550
5325	4-23-02	1		18.06.602 B.
5326	4-23-02	1		12.14.040
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			Rpld	18.30.170
5337	5-28-02	1		18.02.005—18.02.030
5338	5-28-02	1		Ch. 16.40(tit.),
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			Rpld	16.40.030—16.40.060
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5339	5-28-02	1		16.04.230(15), (16)
5340	5-28-02	1		16.06.010(note)
5341	5-28-02	1		6.30.130(a)(4)
5342	5-28-02	1		6.06.390(a)(4)
5347	6-11-02	1		2.14.010
5351	6-11-02	1		12.28.900—12.28.985
5352	6-11-02	1	Rpld	18.06.1004 C.4.
5356	7- 9-02	1		18.06.201 A.3., 4.
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		3		18.06.205(tit.), A.2., C.
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5363	8-20-02	1		18.06.301
5365	8-20-02	1		18.06.1106
5368	9-10-02	1		18.06.403 G.
5370	9-10-02	1		8.14.010
5375	10-22-02	1		8.08.010
5376	10-22-02	1	Rpld	8.14.040
5377	10-22-02	1		8.12.025
5378	10-22-02	1		8.12.033
5379	10-22-02	1		6.18.180
5382	11- 5-02	1		18.15.010—18.15.110
5384	11- 5-02	1		2.10.220
5387	11- 5-02	1		8.12.020
5388	11- 5-02	1		8.22.030 .....
5408	12-10-02	1		18.06.502—18.06.502.95
		2		18.06.503—18.06.599
5410	1-14-03	1		5.07.125
5413	1-14-03	1		Ch. 1, Art. VII(tit.), 1.05.600
5414	1-14-03	1		1.05.605
5415	1-14-03	1		4.04.160
5416	1-14-03	1		5.05.017

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5420	1-28-03	1		18.06.1101—18.06.1101.99
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5424	2-11-03	1		8.08.030
5430	2-25-03	1		18.06.449
5431	2-25-03	1		18.06.1113—18.06.1113.80
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5432	3-26-03	1		2.08.1025, 2.08.1045, 2.08.1105, 2.08.1120, 2.08.1125, 2.08.1145
5459	5-28-03	1		18.27.010—18.27.080
5461	6-11-03	1		18.06.950
5463	6-25-03	1		5.07.125
5464	6-25-03	1		8.28.000
5465	6-25-03	1		6.06.296
5466	6-25-03	1		18.13.010—18.13.120
5467	6-25-03	1		2.06.110
5468	6-25-03	1		18.06.304
5469	7-16-03	1		12.16.820—12.16.895, 12.16.900—12.16.1000, 12.16.1100, 12.16.1200, 12.16.1300, 12.16.1400, 12.16.1500, 12.16.1600, 12.16.1700, 12,16,1800, 12.16.1900, 12.16.2000, 12.16.2100, 12.16.2200, 12.16.2300, 12.16.2400, 12.16.2500, 12.16.2600, 12.16.2700, 12.16.2800, 12.16.2900, 12.16.3000, 12.16.3100, 12.16.3200, 12.16.3300, 12.16.3400, 12.16.3500
5473	7-16-03	1		18.06.201 18.06.203 18.06.301 18.06.302 18.06.303 18.06.400 18.06.402 18.06.404 18.06.413

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			18.06.414.040
			18.06.414.045
			18.06.414.050
			18.06.414.065
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5474	7-16-03	1	18.06.201 A.3.
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5478	6-16-03	1		18.06.445
5480	7-16-03	1		5.90.070(8)
5488	8-20-03	1		5.90.800—5.90.1170
5494	9-10-03	1		Ch. 8.17(tit.)
		2		8.17.040
5501	9-24-03	1		14.03.005, 14.03.010
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		3	Rpld	18.06.107—18.06.107.55
		4	Added	18.06.115
		5	Rpld	18.06.1101—18.06.1101.99
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5503	9-24-03	1		18.06.303
		2		18.06.1110
5506	10-22-03	1		6.06.335
5507	10-22-03	1		8.22.030
		2		8.22.070
		3		8.22.075
		4		8.22.240
5508	10-22-03	1		Ch. 12.20(tit.),
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5510	11- 5-03	1		2.08.480
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				2.08.540
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5511	11- 5-03	1		12.16.130(3)
5518	12- 3-03	1		12.16.120
5519	12- 3-03	1		12.16.390(a)
5520	12- 3-03	1		6.06.490
5521	12- 3-03	1		6.30.330
5522	12- 3-03	1		8.36.010
		2		8.36.020
5523	12- 3-03	1		8.28.020
		2		8.28.320
		3		8.28.322
		4		8.28.324
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		Tc8.28.370		
5524	12- 3-03	1		5.07.125

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		2		5.05.013
5528	12-17-03	1		18.06.502.30
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5529	12-17-03	1		18.06.510 B.7.
5534	1-14-04	1		18.06.950
5539	1-28-04	1		18.06.301
5545	3-10-04	1		18.06.502.41
		2		14.18.010
		3		14.18.090
5548	3-10-04	1		18.09.010—18.09.210
5556	4- 7-04	1		18.06.505 F.4.—6.
5565	4-21-04	1		5.90.800—5.90.1170
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				5.90.2330—5.90.2470,
				5.90.2490—5.90.2530,
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5572	5-26-04	1		18.06.905 A.
5584	7-21-04	1		18.08.070
5585	7-21-04	1		18.08.080
5591	9- 8-04	1		18.06.450
5595	9- 8-04	1		18.06.935
5596	9- 8-04	1		18.06.804
5597	9-22-04	1		5.90.080
5601	9-22-04	1		5.20.010—5.20.150
		2	Rpld	5.13.011(c)—(e)
			Rpld	5.13.210, 5.13.220
5602	10-13-04	1	Rpld	2.13.010
5603	10-13-04	1	Rpld	2.13.020
5604	10-13-04	1	Added	8.12.024
5605	10-13-04	1	Added	8.12.027
5606	10-13-04	1		2.08.020—2.08.090
5615	10-27-04	1	Added	2.08.660—2.08.730
5615	10-27-04	1	Added	18.06.418—18.06.418.035
5621	10-27-04	1		18.06.449(c)(4)
5622	10-27-04	1		5.07.125
5623	10-27-04	1		5.07.011
5624	10-27-04	1	Added	18.34.010—18.34.150
5625	10-27-04	1		18.07.040
5631	12- 1-04	1		18.14.030
5632	12- 1-04	1		5.90.1027
5638	1-19-05	1		6.06.012
5641	2- 9-05	1		12.16.605
5643	2- 9-05	1	Rpld	18.02.005—18.02.090,
				18.06.101—18.06.1202,

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6534	12- 4-19	1	Added	6.18.055
6538	1- 8-20	1	Added	12.30.010
6540	1-22-20	1		2.08.070
6543	2-12-20	1	Added	2.16.335
6544	2-12-20		Added	1.08.010—1.08.060
6545	2-12-20	1		12.16.280
6547	2-26-20	1		5.05.008
6548	2-26-20	1	Added	5.23.005—5.23.008 5.23.020—5.23.110
6553	3-25-20	1		1.05.535
6554	3-25-20	1		1.05.600
6555	3-25-20	1		4.04.160
6556	3-25-20	1		4.04.170
6557	3-25-20	1		5.15.140
6558	3-25-20	1		5.20.130
6559	3-25-20	1		12.16.395
6560	4- 8-20	1		2.06.050
6566	7-22-20	1		2.10.260
6568	8-12-20	1		8.10.035
6569	8-12-20	1		8.10.040
6570	8-12-20	1		8.10.050
6571	8-12-20	1		8.10.060
6572	8-12-20	1		8.10.070
6575	8-12-20	1		4.04.067
6580	10-14-20	1		6.07.060
6584	12- 2-20	1		6.06.160
6586	1-13-21	1		12.16.010
6594	5-12-21	1		2.10.040

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				16.22.010—16.22.070, 16.24.010, 16.26.010—16.26.050, 16.28.010—16.28.050, 16.30.010—16.30.170, 16.32.010—16.32.130, 16.34.010—16.34.060, 16.36.010—16.36.030, 16.38.010—16.38.040, 16.40.010—16.40.030
5688	4-27-05	1		14.05.010
5689	4-27-05	1	Rpld	5.14.005—5.14.090
		2	Added	5.14.010—5.14.130
5694	4-27-05	1	Rpld	5.15.010—5.15.070
		2	Added	5.15.010—5.15.170
5695	4-27-05	1	Rpld	5.13.011—5.13.300
		2	Added	5.13.010—5.13.240
5704	5-11-05	1		5.07.125
5706	5-11-05	1		5.07.011
5717	7- 6-05	1		12.16.110—12.16.200 12.16.280—12.16.370
5718	7- 6-05	1		5.05.011
		2		5.05.013
		3		5.05.017
5736	9-14-05	1		6.30.620
5737	9-14-05	1		6.06.390
		2	Added	6.06.392
		3		6.06.490
5738	9-14-05	1		6.30.130
		2		6.30.135
		3		6.30.330
5739	9-14-05	1	Rpld	8.04.040
5740	9-14-05	1	Rpld	8.12.050
5741	9-14-05	1		8.12.025
5742	9-14-05	1—14	Rpld	8.28.010—8.28.035
		15—18	Rpld	8.28.150—8.28.175
		19, 20	Rpld	8.28.180, 8.28.185
		21—24	Rpld	8.28.190—8.28.215
		25—33	Rpld	8.28.220—8.28.300
		34, 35	Rpld	8.28.305, 8.28.306
		36—50	Rpld	8.28.310—8.28.445
		51	Rpld	8.28.446
		52—64	Rpld	8.28.450—8.28.570
		65—69	Rpld	8.28.600—8.28.640
		70	Rpld	8.28.700
5743	9-14-05	1—10	Rpld	8.29.010—8.29.100
5775	12- 1-05	1		6.06.390
		2		6.06.392

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5795	1-11-06	2	Added	Tit. 15, 15.01.010—15.01.140
5776	12- 1-05	1		6.30.130
		2		6.30.135
5798	1-25-06	1		6.06.525
5799	1-25-06	1		6.30.400
5812	3-22-06	1		2.06.110
5813	3-22-06	1		4.04.160
5814	3-22-06	1		5.05.017
5817	4- 5-06	1		12.16.120
5729	9-14-05	12		14.03.080
		14		2.20.120
5839	6-14-06	1		1.05.005
				1.05.015
				1.05.020
				1.05.030
				1.05.035
				1.05.040(a)(3), (b)
				1.05.100(3)—(5)
				1.05.110
			Added	1.05.120
			Rpld	1.05.120, 1.05.125
				1.05.130(tit.), (b)(4), (c), (d)
				1.05.135
				1.05.200(2), (3)
				1.05.205(a)
				1.05.210(1), (2)
				1.05.215
				1.05.310(1)—(6)
			Rpld	1.05.315
				1.05.320(a), (c), (d), (f)
				1.05.325(6), (7)
				1.05.330
			Added	1.05.335
			Rpld	1.05.410
			Added	1.05.410
				1.05.525(a)(3)—(6)
				1.05.530(a)
				1.05.535(c), (d)
				1.05.550
				1.05.555(b), (c), (e)
5840	6-14-06	1	Rpld	12.16.070
5849	6-28-06	1		8.23.070
		2		8.23.072(d)
		3	Added	8.23.074
5850	6-28-06	1	Added	8.12.012
5856	7- 5-06	1		6.06.020(b), (d)
5862	8-23-06	1		14.06.010

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5863	8-23-06	1		8.22.010—8.22.035, 8.22.040—8.22.090,
			Rpld	8.22.100
				8.22.105, 8.22.110, 8.22.200—8.22.235, 8.22.240—8.22.290
5872	9-13-06	1		8.14.010
5873	9-13-06	1		8.22.070(e)—(g)
5878	10-11-06	1	Added	1.06.010
5883	10-11-06	1		5.13.090
		2	Added	5.13.095
5890	11-15-06	1		14.16.190(c)
5894	12- 4-06	1		6.06.020(e)
5902	2-28-07	1		14.04.010
		2		14.08.010
		3		14.10.010
		4		14.06.010
5903	2-28-07	1		5.06.011
		2		5.07.011, 5.07.170
		3		8.21.010(f), 8.21.020
5909	3-28-07	1	Rpld	10.04.140
5910	3-28-07	1		5.90.070
5921	4-25-07	1		2.08.030
5926	5- 9-07	1		8.22.230(b)(1)
5928	5-23-07	2		14.16.190(a)
5931	6-13-07	1		2.06.030
		2		2.06.040
		3		2.06.050
5932	6-13-07	2	Added	16.02.010—16.02.050
5945	6-27-07	2	Rpld	2.08.1010—2.08.1150
5946	6-27-07	1	Added	8.22.300
5952	7-11-07	1		5.05.013
5953	7-11-07	1		6.06.565
5954	7-11-07	1		6.30.430
5955	7-11-07	1		8.06.010(d)
5956	7-11-07	1		8.12.022(c)—(f)
5963	9-12-07	1		4.04.190
5964	9-12-07	1		5.07.020
5965	9-12-07	1		6.06.045
5966	9-12-07	1		6.06.390(a)(6), (9), (13)
5967	9-12-07	1		6.30.130(a)(6), (9), (13)
5968	9-12-07	1		8.23.175(a), (c)
5969	9-12-07	1		6.30.280
		2		6.30.290
		3		6.30.460
		4		6.30.490
		5		6.30.620
5970	9-12-07	1		1.02.010

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5976	10-10-07	1		6.06.135
5977	10-10-07	1		8.06.055
5985	11-28-07	1		2.10.200, 2.10.210
				2.10.220
			Rpld	2.10.230
				2.10.240, 2.10.250,
				2.10.260, 2.10.270,
				2.10.280, 2.10.290,
				2.10.300
5989	12-12-07	1		5.07.150
		2		5.07.160
5990	12-12-07	1		6.07.010—6.07.060
5991	12-12-07	2		15.01.010—15.01.130
			Added	15.01.140
			Rnbd	15.01.140
			as	15.01.150
			Amd	15.01.150
5998	1-16-08	1		5.06.011,
				5.06.020—5.06.050
5999	1-16-08	1		8.21.010—8.21.140
6018	4- 9-08	1	Added	8.23.180
6024	5-28-08	1	Rpld	8.17A.010—8.17A.030
6025	5-28-08	1		Ch. 8.17(tit.),
				8.17.050—8.17.070
6026	5-28-08	1		1.06.010
6029	5-28-08	1		6.06.035
		2		6.06.040
		3		6.06.185
6030	6-11-08	1		Ch. 5.13(tit.),
				5.13.010—5.13.230
6031	6-11-08	1		5.07.011—5.07.190
6044	8-20-08	1		6.06.067
6045	8-20-08	1		6.06.470
6046	8-20-08	1		6.06.505
6047	8-20-08	1		5.05.008
		2		5.05.011
6048	8-20-08	1		6.04.110
6049	8-20-08	1		6.06.390
		2		6.06.392
		3		6.06.400
		4	Rpld	6.06.610
6050	8-20-08	1		6.20.070
6051	8-20-08	1		6.30.130
		2		6.30.135
		3		6.30.301
6052	8-20-08	1		6.14.020
		2		6.14.060
		3		6.14.160

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		4		6.14.170
6056	9-10-08	1		8.22.030
				8.22.035
				8.22.060
				8.22.090
				8.22.110
6063	10-22-08	1		14.05.010
6065	11-10-08	1		6.08.060
6066	11-10-08	1		6.30.460
		2		6.30.620
6070	12- 3-08	1		6.11.040
6071	12- 3-08	1		6.07.060
6072	12- 3-08	1		5.08.011
			Rpld	5.08.035, 5.08.036
				5.08.060
				5.08.080
			Added	5.08.085
				5.08.100
			Added	5.08.102
				5.08.110
				5.08.120
6073	12- 3-08	1		5.05.014
6081	1-14-09	1		5.13.010(g)—(z)
		2	Added	5.13.035
		3		5.13.150(e), 5.13.170(c)

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6146	4-14-10	1		12.14.085
				12.14.090
				12.14.210
6147	4-14-10	1		5.14.010
				5.14.020
			Rpld	5.14.030
				5.14.040
			Rpld	5.14.050—5.14.080
				5.14.090
			Rpld	5.14.100—5.14.120
				5.14.130
6150	5-12-10	1		5.05.008
6153	6- 9-10	1	Added	6.06.571
6156	7- 7-10	1		12.16.620
6157	7- 7-10	1		12.16.2000
6161	8-25-10	1		5.08.080
		2		5.08.085
6165	10-13-10	1	Added	2.06.130—2.06.120
6168	12- 1-10	1		8.12.015
6183	5-11-11	1		8.23.070,
				8.23.072
			Rpld	8.23.074
6184	5-11-11	1	Added	8.12.030
6190	6-22-11	1	Added	2.06.195
6192	7- 6-11	1		6.06.505
6193	7- 6-11	1		6.08.010—6.08.090
6194	7- 6-11	1		6.30.010—6.30.240,
				6.30.260—6.30.620
6195	7-13-11	1	Added	2.10.400—2.10.470
6197	8-24-11	1		12.16.010
				12.16.030
				12.16.120
				12.16.130
				12.16.150
			Added	12.16.155
				12.16.200
				12.16.280
				12.16.290
				12.16.300
				12.16.310
				12.16.330
			Rpld	12.16.370
				12.16.380
				12.16.395
				12.16.420
				12.16.430
				12.16.455
				12.16.530

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				12.16.550
				12.16.565
				12.16.700
				12.16.710
				12.16.740
				12.16.770
				12.16.820
				12.16.900
				12.16.920
				12.16.2100
				12.16.2500
				12.16.2800
				12.16.3100
6198	8-24-11	1		12.08.080
6199	8-24-11	1		6.11.030, 6.11.040
6205	9-14-11	1	Added	15.02.010—15.02.100
6208	9-28-11	1		14.03.080
		2		14.04.050
		3		Ch. 14.16(tit.), 14.16.010—14.16.060, 14.16.080, 14.16.090, 14.16.120, 14.16.130, 14.16.150 14.16.190 14.16.200 14.16.210 14.16.850, 14.16.860 14.16.865, 14.16.870
6215	12-14-11	1		1.02.010
6217	1-18-12	1		8.23.010
				8.23.025
				8.23.035
				8.23.060
				8.23.065
				8.23.075
				8.23.090
				8.23.095
				8.23.140
				8.23.170
				8.23.175
			Added	8.23.190
6218	1-18-12	1	Added	5.08.125
6219	1-18-12	1	Added	6.06.475
6220	1-18-12	1		6.08.040, 6.08.060
6221	1-18-12	1	Added	6.04.485
				6.04.410

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6533	12- 4-19	1	Added	5.92.1180
6534	12- 4-19	1	Added	6.18.055
6538	1- 8-20	1	Added	12.30.010
6540	1-22-20	1		2.08.070
6543	2-12-20	1	Added	2.16.335
6544	2-12-20		Added	1.08.010—1.08.060
6545	2-12-20	1		12.16.280
6547	2-26-20	1		5.05.008
6548	2-26-20	1	Added	5.23.005—5.23.008
				5.23.020—5.23.110
6553	3-25-20	1		1.05.535
6554	3-25-20	1		1.05.600
6555	3-25-20	1		4.04.160
6556	3-25-20	1		4.04.170
6557	3-25-20	1		5.15.140
6558	3-25-20	1		5.20.130
6559	3-25-20	1		12.16.395
6560	4- 8-20	1		2.06.050
6566	7-22-20	1		2.10.260
6568	8-12-20	1		8.10.035
6569	8-12-20	1		8.10.040
6570	8-12-20	1		8.10.050
6571	8-12-20	1		8.10.060
6572	8-12-20	1		8.10.070
6575	8-12-20	1		4.04.067
6580	10-14-20	1		6.07.060
6584	12- 2-20	1		6.06.160
6586	1-13-21	1		12.16.010
6594	5-12-21	1		2.10.040
6607	10-13-21	1	Added	8.18.035
6611	12- 1-21	1	Added	8.10.110
6612	12- 1-21	1		8.23.035
6613	12- 1-21	1		1.02.010
6618	1-12-22	1		5.07.011
				5.07.020
				5.07.040
			Added	5.07.045
				5.07.050
				5.07.070
				5.07.075
				5.07.110
				5.07.120
			Added	5.07.121
			Rpld	5.07.123
			Added	5.07.123

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				5.07.125
				5.07.127
				5.07.130
				5.07.140
6622	3- 9-22	1	Rpld	5.21.005—5.21.076
				ch. 5.22(tit.)
				5.22.005, 5.22.006
				5.22.010—5.22.013
				5.22.015
			Added	5.22.017
				5.22.020
				5.22.025
			Rpld	5.22.030
				5.22.050
				5.22.060
				5.22.065
				5.22.070
				5.22.075, 5.22.076
			Rpld	5.22.077
6639	11- 9-22	1		1.04.015
6640	11- 9-22	1	Added	6.04.001
6646	1-25-23	1		12.16.290
		2		12.16.300
6647	2- 8-23	1		2.08.380—2.08.474
6651	4-12-23	1		12.16.150(a)
		2		12.16.280(c)
		3		12.16.290
6655	5-24-23	1	Rpld	6.06.170
6656	5-24-23	1	Added	8.12.170
6659	9-13-23	1		1.02.010
6662	9-13-23	1		2.06.035
		2		2.06.050
6667	1-17-24	1	Added	4.08.010—4.08.120
6668	1-17-24	1	Rpld	5.15.010—5.15.170
6678	5-22-24	1	Added	6.04.385
				6.06.010
				6.30.030(a), (b)
				6.30.040
				6.30.130
				6.30.292
				6.30.310(a)
			Added	6.30.310(b)
				6.30.330(a)(5)
			Added	6.30.330(b), (c), (d)
				6.30.440
				6.30.490(f)
				6.30.530(3)
			Added	6.30.530(4)

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				6.30.540
				6.30.560(a)
				6.30.570(a), (b)
				6.30.590
				6.30.620
6684	8-28-24	1	Added	8.10.011
6694	1-22-25	1	Added	8.12.011
6695	1-22-25	1	Rpld	8.12.012
6696	1-22-25	1	Rpld	8.12.012
6697	1-22-25	1	Rpld	8.12.015
6698	1-22-25	1	Rpld	8.23.090
6699	1-22-25	1	Added	8.10.012
6704	3-26-25	1		12.16.155
		2		12.16.420
		3		12.16.430
6712	6- 4-25			Ch. 14.04(tit.)
				14.04.007
				14.04.007
				14.04.010
				14.04.050
				14.04.100
				14.04.105
				14.04.110
				14.04.115
				14.04.120
				14.04.120.007
				14.04.120.010
				14.04.125
				14.04.125.005
				125.04.125.010
				14.04.130
6715	8-13-25	1	Rpld	6.16.040
6717	8-27-25	1		2.08.010
6718	8-27-25	1	Rpld	2.08.840—2.08.920
6719	8-27-25	1	Rpld	2.08.760-2.08.830
6720	8-27-25	1	Rpld	2.08.380-2.08.474
6721	8-27-25	1	Rpld	2.08.020-2.08.090
6722	8-27-25	1	Rpld	2.08.660-2.08.730
6723	8-27-25	1	Rpld	2.08.930-2.08.1000
6724	8-27-25	1	Rpld	2.08.480-2.08.555
6726	9-24-25	1		16.01.012
6731	12- 3-25	1	Added	6.14.015
6735	2-25-26	1	Rpld	5.90.070

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				4.05.030
6223	2- 8-12	1		Ch. 5.08(tit.)
		2		5.08.011, 5.08.100
6224	2-22-12	1		12.16.395
6227	4-25-12	1		5.08.125
6230	5-23-12	1		12.16.395
6231	5-23-12	1		5.13.010
				5.13.020
				5.13.030
				5.13.040
				5.13.050
				5.13.060
				5.13.090
			Added	5.13.091
				5.13.092
				5.13.100
				5.13.110
				5.13.120
				5.13.130
				5.13.140
				5.13.150
				5.13.180
				5.13.200
				5.13.210
				5.13.220
6233	6-13-12	1		5.18.010
6236	6-13-12	1		8.30.040
6237	6-27-12	1		8.10.040
6238	6-27-12	1		8.10.070
6239	6-27-12	1	Rpld	8.20.010—8.20.110
6241	7-11-12	1		14.04.110
6242	7-11-12	1		5.05.006
				5.05.007
				5.05.008
				5.05.009
			Rpld	5.05.010
				5.05.011
				5.05.012
				5.05.013
			Rpld	5.05.014—5.05.016
6243	7-11-12	1	Added	6.17.010—6.17.050
6248	9-12-12	1	Added	5.08.125
6251	10-10-12	1		14.05.010
6252	10-10-12	1	Rpld	14.24.010, 14.24.020
				8.22.030
				8.22.035(25)
				8.22.060(e)
				8.22.105(d)

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				8.22.220(d)
				8.22.230(a)(3), (b)(3)
				8.22.240(b)(3)d., (4)c.
6257	10-24-12	1		8.12.015(b)
6260	11- 7-12	1		Ch. 5.90, Art. II(tit.)
			Added	5.90.005
				5.90.010
			Rnbd	5.90.015
			as	5.90.020
		Amd		5.90.020
			Rnbd	5.90.020, 5.90.030
			as	5.90.030, 5.90.040
			Amd	5.90.030, 5.90.040
			Rpld	5.90.040
				5.90.050, 5.90.060
			Added	5.90.070—5.90.130
			Rpld	5.90.065, 5.90.070,
				5.90.080, 5.90.085
			Added	5.90.140
			Rnbd	5.90.090
			as	5.90.150
			Amd	5.90.150
6261	11- 7-12	1		Ch. 10.08(tit),
				10.08.010—10.08.045,
				10.08.050—10.08.090
6262	11- 7-12	1		5.07.011
				5.07.020
				5.07.040
				5.07.050
				5.07.060
				5.07.120
				5.07.127
				5.07.160
				5.07.170
				5.07.180
6266	11- 7-12	1		6.04.050
				6.04.080
				6.04.110
				6.04.130
				6.04.140
				6.04.210
				6.04.220
				6.04.240
				6.04.250
				6.04.255
				6.04.330
				6.04.350
				6.04.360

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				6.04.380
				6.04.390
				6.04.420
				6.04.430
				6.04.465
				6.04.480
				6.04.500
				6.04.510
				6.04.550
				6.04.560
				6.04.570
				6.04.580
				6.04.610
				6.04.630
				6.04.640
				6.04.650
				6.04.660
				6.04.720
				6.04.790
6267	11- 7-12	1	Rnbd	6.06.005
			as	6.06.010
			Rpld	6.06.010
			Rnbd	6.06.012
			as	6.06.020
			Rpld	6.06.015
			Rnbd	6.06.020
			as	6.06.030
			Amd	6.06.030
			Rpld	6.06.025, 6.06.030, 6.06.035, 6.06.040, 6.06.045, 6.06.050, 6.06.055
			Rnbd	6.06.060, 6.06.065
			as	6.06.040, 6.06.050
			Rnbd	6.06.067
			as	6.06.060
			Rpld	6.06.070, 6.06.075, 6.06.080, 6.06.085, 6.06.090
			Rnbd	6.06.095, 6.06.100
			as	6.06.070, 6.06.080
			Amd	6.06.070, 6.06.080
			Rnbd	6.06.105
			as	6.06.090
			Amd	6.06.090
			Rpld	6.06.110, 6.06.115, 6.06.120, 6.06.125, 6.06.130, 6.06.135,

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				6.06.140, 6.06.145, 6.06.150
			Rnbd as Rpld	6.06.155 to 6.06.100
				6.06.160, 6.06.165, 6.06.170, 6.06.175, 6.06.180, 6.06.185
			Rnbd as Rpld	6.06.190 to 6.06.110
				6.06.195, 6.06.200, 6.06.205, 6.06.210, 6.06.215, 6.06.216, 6.06.220
			Rnbd as Rpld	6.06.225 to 6.06.120
				6.06.230, 6.06.235, 6.06.240, 6.06.245, 6.06.246, 6.06.247, 6.06.250
			Rnbd as Rpld	6.06.260 to 6.06.130
			Rpld	6.06.265
			Rnbd as Rpld	6.06.270 to 6.06.140
				6.06.275, 6.06.280, 6.06.285, 6.06.290, 6.06.295
			Rnbd as Rpld	6.06.296 to 6.06.150
			Rpld	6.06.300
			Rnbd as Rpld	6.06.305 to 6.06.160
				6.06.310, 6.06.315, 6.06.320, 6.06.325, 6.06.330, 6.06.335, 6.06.336, 6.06.340, 6.06.345, 6.06.350, 6.06.355, 6.06.360, 6.06.365, 6.06.370, 6.06.375, 6.06.380, 6.06.381, 6.06.382, 6.06.385, 6.06.390, 6.06.392, 6.06.395, 6.06.400, 6.06.405, 6.06.410, 6.06.415, 6.06.420, 6.06.425, 6.06.430, 6.06.435, 6.06.440, 6.06.445,

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				6.06.450, 6.06.455, 6.06.460, 6.06.465, 6.06.470, 6.06.475, 6.06.470, 6.06.475, 6.06.480, 6.06.485, 6.06.490, 6.06.495, 6.06.500, 6.06.505, 6.06.510, 6.06.515, 6.06.520, 6.06.525, 6.06.530
			Rnbd as	6.06.531 6.06.170
			Rpld	6.06.534, 6.06.535, 6.06.536, 6.06.540, 6.06.545, 6.06.550, 6.06.551, 6.06.555, 6.06.557, 6.06.560, 6.06.565
			Rnbd as	6.06.570, 6.06.571 6.06.180, 6.06.190
			Rnbd as	6.06.575 6.06.200
			Rpld	6.06.580, 6.06.585
			Rnbd as	6.06.590, 6.06.595 6.06.210, 6.06.220
			Rpld	6.06.600, 6.06.605, 6.06.606, 6.06.615, 6.06.620, 6.06.625, 6.06.630, 6.06.635, 6.06.640, 6.06.645, 6.06.650, 6.06.655, 6.06.660, 6.06.665, 6.06.670,
			Rnbd as	6.06.675 6.06.230
			Rpld	6.06.680, 6.06.685, 6.06.690, 6.06.695,
			Rpld as	6.06.700 6.06.240
			Rpld	6.06.710, 6.06.715
			Rnbd as	6.06.720 6.06.250
			Rpld	6.06.725, 6.06.730
6268	11- 7-12	1	Added	5.19.010—5.19.060
6269	11- 7-12	1		5.05.008
6273	1-16-13	1		8.23.070
6274	1-16-13	1	Added	5.07.200
6287	4-17-13	1	Added	12.24.010—12.24.080

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6294	5-22-13	1	Rpld	10.08.060
		2		10.08.070
6297	6- 5-13	1	Added	14.04.001
				14.04.005
			Added	14.04.007
			Rpld	14.04.030
				14.04.050
				14.04.100
			Added	14.04.105
			Added	14.04.110
			Added	14.04.115
			Added	14.04.120
			Added	14.04.120.005
			Added	14.04.125
			Added	14.04.125.005
			Added	14.04.125.010
			Added	14.04.125.015
			Rnbd	14.04.110
			as	14.04.130
		2	Rpld	14.06.010—14.06.030,
			Rpld	14.06.100—14.06.300
		3	Rpld	14.08.010—14.08.050
		4	Rpld	14.10.010, 14.10.020
6298	6-19-13	1		5.17.011
				5.17.020
				5.17.040(c)
				5.17.060
			Added	5.17.080—5.17.120
6299	6-19-13	1	Added	6.18.185
6305	8-28-13	1		12.16.010—12.16.020
				12.16.040
				12.16.060
				12.16.110
				Ch. 12.16, Art. II, Div. 3 (title)
				12.16.170, 12.16.180
				12.16.200
				12.16.395(a), (c)
				12.16.450, 12.16.455
				12.16.470(a)(4)—(6)
				Ch. 12.16, Art. III, Divs. 1—5
6306	9-25-13	1	Rpld	16.01.010
		2	Added	16.01.011
6312	1-15-14	1	Added	4.04.065
6313	1-15-14	1		12.20.005
				12.20.010
				12.20.020
				12.20.030
			Added	12.20.040

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			Rnbd	12.20.040
			as	12.20.050
6316	1-29-14	1		6.60.010—6.06.060
			Added	6.06.070
			Rnbd	6.06.070—6.06.140
			as	6.06.080—6.06.150
			Added	6.06.160
			Rnbd	6.06.150
			as	6.06.170
			Added	6.06.180, 6.06.190, 6.06.200—6.06.260
			Rnbd	6.06.170—6.06.220
			as	6.06.270—6.06.320
			Added	6.06.330
			Rnbd	6.06.230—6.06.250
			as	6.06.340—6.06.360
6317	1-29-14	1		6.30.620
6318	2-12-14	1	Added	2.17.010, 2.17.020
6325	4-16-14	1, 2		2.06.080, 2.06.090
6326	4-16-14	1		Ch. 4.04(title)
				4.04.020
6327	4-16-14	1		Ch. 5.14(title)
				5.14.010, 5.14.020
			Rpld	5.14.040
6328	4-16-14	1		8.23.075
6329	4-16-14	1	Added	4.04.067
6333	5-28-14	1		2.06.030
		2	Added	2.06.035
		3		2.06.040
		4		2.06.050
		5	Added	2.06.055
		6		2.14.020
6336	6-25-14	1		2.10.200(c)(7)
6337	7-16-14	1		8.22.090
		2		8.22.090(note)
6338	7-16-14	1		14.05.010
		2		14.05.010(note)
6341	8-20-14	1	Rpld	4.04.065
		2		5.05.008(k)
		3		5.21.005
				5.21.006
				5.21.010
				5.21.011
				5.21.012
				5.21.013
				5.21.015
				5.21.020

Ordinance Number	Adoption Date	Section		Section this Code
				5.21.030
				5.21.040
				5.21.050
				5.21.060
				5.21.065
				5.21.070
				5.21.075
				5.21.076
6343	9-10-14	1	Rpld	12.04.010
6344	9-10-14	1		6.11.010—6.11.080
6345	9-24-14	1	Added	5.13.045
6346	9-24-14	1		5.14.090
6347	9-24-14	1	Added	8.23.210
6351	10-22-14	1		8.17.010
		2		8.17.030
		3		8.17.050
		4		8.17.070
		5	Added	8.17.080—8.17.110
6356	12-10-14	1		12.16.010, 12.16.200, 12.16.320, 12.16.360
6359	1-28-15	1		4.04.008
6369	6-10-15	1		2.06.110
6372	8-12-15	1		2.08.380—2.08.474
6375	9- 9-15	1	Added	Ch. 5.90, Art. IV, 5.90.220, 5.90.230
6376	9-23-15	1		2.06.030
		2		2.06.035
		3		2.06.050
6383	12-16-15	1	Added	5.21.025
6386	1-13-16	1		12.16.895
6390	1-27-16	1	Added	Ch. 1.07, § 1.07.010
6391	2-10-16	1		14.04.130
6392	2-10-16	1	Added	Tit. 6, Ch. 6, 6.06.510—6.06.875
6394	3- 9-16	1		5.07.011
			Added	5.07.055
6398	4-27-16	1		6.07.010—6.07.030
6399	4-27-16	1		6.30.450
				6.30.620
6400	5-11-16	1		14.04.120
			Added	14.04.120.007
			Added	14.04.120.100
			Added	14.04.120.020
		2		14.04.125
				14.04.125.005
				14.04.125.010

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6401	5-11-16	1		8.23.140
6406	7-20-16	1	Added	5.11.005
				5.11.011
			Added	5.11.020, 5.11.030
6408	8-10-16	1		12.16.155(5)
6409	8-10-16	1		12.16.280
6412	8-24-16	1		12.16.120
6415	10-12-16	1	Added	2.22.010—22.22.050
6416	10-12-16	1		2.08.770
6423	1-11-17	1	Added	5.07.075
6430	6- 7-17	1		4.04.008
6431	6- 7-17	1		5.21.013(tit.)
			Added	5.21.013(d)
		2		5.21.065(a)
6434	8- 9-17	1	Added	6.30.165
		2		6.30.620
6435	8- 9-17	1		2.20.180
		2		2.20.190
6438	9-27-17	2		12.16.010
		3		12.16.120
		4		12.16.130
		4		12.16.200
		5		12.16.610(b)(4)
6439	10-11-17	1	Added	5.13.040(a)(7)
				5.13.040(b)
		2	Rpld	5.13.090(f)
6446	1-10-18	1	Rpld	8.10.100
6447	1-10-18	1		4.04.150
				4.04.180
6448	1-10-18	1	Rpld	8.22.010—8.22.290
			Added	8.22.010—8.22.300
6449	2-14-18	1		5.21.013(d)
6451	2-28-18	1, 2		12.16.420
6456	3-28-18	1	Added	8.10.015
6457	3-28-18	1	Added	6.06.755(e)
			Rnbd	6.06.755(e)
			as	6.06.755(f)
6458	4-11-18	1	Rpld	12.30.010—12.30.060
6459	4-11-18	1	Rpld	2.06.070—2.06.120
6461	4-25-18	1	Added	8.38.010—8.38.040
6467	6- 6-18	1		5.05.008(k)
		2		5.21.005—5.21.040
				5.21.060
				5.21.065(e), (g)
				5.21.076
		3	Added	5.22.005—5.22.077
6474	7-18-18	1	Added	2.24.200—2.24.280
6475	7-18-18	1	Added	2.24.010—2.24.080

Ordinance Number	Adoption Date	Section		Section this Code
6476	8- 8-18	1	Added	8.23.123
6478	8-22-18	1		6.06.695
6479	8-22-18	1		6.06.170
6482	8-22-18	1	Added	4.06.005—4.06.030, 4.06.100—4.06.120, 4.06.200—4.06.230
6485	10-24-18	1		2.06.035
		2		2.06.050
6486	10-24-18	1	Added	8.23.012
6490	11-28-18	1		12.16.565(c)
			Added	12.16.565(d)
			Rnbd as	12.16.565(d) 12.16.565(e)
6491	11-28-18	1		14.04.007 14.04.010 14.04.050—14.04.115 14.04.120(a) 14.04.120.007(c) 14.04.125 14.04.130
6493	1- 9-19	1	Added	14.30.001—14.30.014
6495	1-23-19	1		1.04.080(c)
6496	1-23-19	1		1.04.090
6497	1-23-19	1		6.20.060
6502	2-27-19	1	Rpld	8.08.020, 8.08.022
6508	4-10-19	1	Added	12.26.010—12.26.060
6511	5- 8-19		Added	Ch. 4.07 4.07.005—4.07.007, 4.07.20—4.07.40
6512	5- 8-19			5.05.005 5.05.008, 5.05.009 5.05.011
			Added	5.05.012
			Rnbd as	5.05.012 5.05.014 5.05.013
6513	5- 8-19	1	Rpld	5.06.011—5.06.050
			Added	5.06.005—5.06.120
6514	5- 8-19	1		5.07.011
		2		5.07.160(b) 5.07.170
6515	5- 8-19	1	Rpld	8.21.010—8.21.110
6499	2-13-19	1	Rpld	16.01.011
		2	Added	16.01.012
6520	7-24-19	1		2.08.940, 2.08.950
			Added	2.08.955 2.08.970, 2.08.980
6525	9-11-19	1		2.08.485

Ordinance Number	Adoption Date	Section		Section this Code
6533	12- 4-19	1	Added	5.92.1180
6534	12- 4-19	1	Added	6.18.055
6538	1- 8-20	1	Added	12.30.010
6540	1-22-20	1		2.08.070
6543	2-12-20	1	Added	2.16.335
6544	2-12-20		Added	1.08.010—1.08.060
6545	2-12-20	1		12.16.280
6547	2-26-20	1		5.05.008
6548	2-26-20	1	Added	5.23.005—5.23.008 5.23.020—5.23.110
6553	3-25-20	1		1.05.535
6554	3-25-20	1		1.05.600
6555	3-25-20	1		4.04.160
6556	3-25-20	1		4.04.170
6557	3-25-20	1		5.15.140
6558	3-25-20	1		5.20.130
6559	3-25-20	1		12.16.395
6560	4- 8-20	1		2.06.050
6566	7-22-20	1		2.10.260
6568	8-12-20	1		8.10.035
6569	8-12-20	1		8.10.040
6570	8-12-20	1		8.10.050
6571	8-12-20	1		8.10.060
6572	8-12-20	1		8.10.070
6575	8-12-20	1		4.04.067
6580	10-14-20	1		6.07.060
6584	12- 2-20	1		6.06.160

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TABLE OF SPECIAL ORDINANCES NOT CODIFIED

(Commencing with Supplement No. 1)

The following table shows the ordinance number, date of adoption and subject matter of those ordinances not codified herein, beginning with Supplement No. 1. The ordinances have not been included due to their specialized subject matter, limited applicability or temporary nature. The text of all ordinances may be found on file in the city clerk's office. The disposition of general and permanent ordinances can be traced through the use of the Administrative Code Comparative Table, beginning on page CCT:21.

Ordinance Number	Date	Description
2915	1-12-81	Annexation
2917	1-26-81	Changes land use plan
2918	1-26-81	Changes land use plan
2922	2- 9-81	Annexation
2923	2- 9-81	Annexation
2924	2-23-81	Annexation
2925	2-23-81	Changes land use plan
2926	3- 9-81	Calls primary and general elections
2929	4-13-81	Annexation
2930	4-13-81	Annexation
2931	4-13-81	Annexation
2932	4-13-81	Annexation
2933	4-13-81	Annexation
2934	4-13-81	Annexation
2935	5-11-81	Assessments for street, sewer, etc., improvements in 1978 special assessment district no. 2
2936	4-27-81	Annexation
2942	5-26-81	Changes land use plan
2943	5-26-81	Annexation
2944	5-26-81	Annexation
2946	7-27-81	Changes land use plan
2947	7-27-81	Annexation
2950	8-10-81	Creates 1980 special assessment district no 3 for streets and sewers
2951	8-24-81	Annexation
2952	8-24-81	Annexation
2953	9-14-81	Annexation; correction of land description (amends Ord. No. 1891)
2961	11-23-81	Annexation
2965	12-28-81	Changes land use plan
2966	1-11-82	Changes land use plan
2978	3- 8-82	Annexation
2979	3-22-82	Changes land use plan
2980	3-22-82	Changes land use plan
2985	5-10-82	Changes land use plan
2994	6-28-82	Changes land use plan

Ordinance Number	Date	Description
2995	6-28-82	Issuance of bonds for 1978 special assessment district no. 2
2996	7-12-82	Changes land use plan
2997	7-12-82	Changes land use plan
3021	8- 9-82	Temporary amendment to § 4.04.140 effective 7-1-82—8-13-82
3024	8-23-82	Creates 1981 special assessment district no. 3
3025	8-23-82	Creates 1981 special assessment district no. 2
3026	9-13-82	Changes land use plan
3028	9-13-82	Annexation
3032	9-27-82	Annexation
3033	9-27-82	Annexation
3039	10-12-82	Creates 1982 special assessment district no. 1
3040	11- 8-82	Changes land use plan
3041	11- 8-82	Authorizes interim warrants for special assessment districts 1980 no. 3; 1981 nos. 2, 3; 1982 no. 1
3044	11-22-82	Recreational facilities improvement and refunding bonds
3045	11-22-82	Changes land use plan
3046	11-22-82	Changes land use plan
3048	11-22-82	Creates 1981 special assessment district no. 1, no. 3
3054	12-27-82	Changes land use plan
3055	12-27-82	Changes land use plan
3056	12-27-82	Changes land use plan
3057	12-27-82	Changes land use plan
3062	2-14-83	Changes land use plan
3066	3-14-83	Changes land use plan
3067	3-14-83	Assessments for 1979 special assessment district no. 1
3070	3-28-83	Amends Ord. No. 3033
3071	3-28-83	Sets primary and general municipal election dates
3077	4-25-83	Assessments for 1980 special assessment district no. 3
3083	6-13-83	Rezoning
3084	6-13-83	Rezoning
3085	6-13-83	Rezoning
3091	7-11-83	Approves Downtown Project Area redevelopment plan
3092	7-11-83	Amends Ord. No. 3091
3093	6-27-83	Rezoning
3094	6-27-83	Rezoning
3100	6-27-83	Annexation
3101	6-27-83	1980 special assessment district no. 3 bonds
3102	6-27-83	1979 special assessment district no 1 bonds
3105	7-11-83	Rezoning
3106	7-11-83	Rezoning
3107	7-25-83	Annexation
3120	9-12-83	Rezoning
3121	9-12-83	Rezoning
3126	9-12-83	Creates 1982 special assessment district no. 2
3128	9-26-83	Rezoning
3129	9-26-83	Assessments for 1981 special assessment district no. 3
3131	2-27-83	Rezoning
3134	10-10-83	Rezoning

Ordinance Number	Date	Description
3135	10-10-83	Rezoning
3137	10-24-83	Annexation
3138	11-14-83	Rezoning
3139	11-14-83	Rezoning
3140	11-14-83	Rezoning
3141	11-14-83	Rezoning
3142	11-14-83	Rezoning
3143	11-14-83	Annexation
3144	11-14-83	Annexation
3145	11-14-83	Rezoning
3147	12-12-83	Rezoning
3154	1-12-84	Rezoning
3155	1-23-84	Annexation
3156	1-23-84	Rezoning
3157	2-27-84	Rezoning
3162	2-27-84	Assessments for 1981 special assessment district no. 1, unit no.3
3164	3-26-84	Assessments for 1982 special assessment district no. 1
3165	3-26-84	Annexation
3166	3-26-84	Annexation
3167	4-23-84	Rezoning
3168	4-23-84	Rezoning
3169	4-23-84	Rezoning
3170	4-23-84	Rezoning
3172	5-14-84	Rezoning
3173	5-14-84	Rezoning
3177	5-29-84	Annexation
3178	6-11-84	Rezoning
3182	6-11-84	Creates 1983 special assessment district no. 1
3183	6-11-84	Rezoning
3184	6-11-84	Rezoning
3188	7- 9-84	Annexation
3189	7- 9-84	Rezoning
3190	7-23-84	Rezoning
3191	7-23-84	Issuance of 1981 special assessment district no. 1 bonds
3192	7-23-84	Issuance of 1981 special assessment district no. 3 bonds
3193	7-23-84	Issuance of 1982 special assessment district no. 1 bonds
3195	7-23-84	Annexation
3196	7-23-84	Rezoning
3197	8-13-84	Changes land use plan
3198	8-27-84	Rezoning
3199	8-27-84	Rezoning
3200	8-27-84	Annexation
3203	9-10-84	Rezoning
3204	9-10-84	Changes land use plan
3205	9-10-84	Annexation
3206	9-10-84	Rezoning
3207	9-10-84	Rezoning

Ordinance Number	Date	Description
3209	9-24-84	Annexation
3210	9-24-84	Authorizes interim warrants for 1983 special assessment district no.1
3212	10- 8-84	Annexation
3213	10- 8-84	Changes land use plan
3215	10-22-84	Rezoning
3216	10-22-84	Rezoning
3217	11-13-84	Changes land use plan
3218	11-13-84	Annexation
3219	11-13-84	Rezoning
3223	11-26-84	Assessments for 1981 special assessment district no. 2
3229	12-24-84	Rezoning
3230	12-24-84	Changes land use plan
3231	12-24-84	Rezoning
3232	12-24-84	Rezoning
3234	1-28-85	Assessments for 1982 special assessment district no. 2
3236	2-11-85	Changes land use plan
3237	2-11-85	Annexation
3239	2-25-85	Calls for primary and general elections
3240	2-25-85	Rezoning
3241	2-25-85	Annexation
3242	2-25-85	Changes land use plan
3243	2-25-85	Annexation
3244	2-25-85	Rezoning
3245	2-25-85	Annexation
3247	4- 8-85	Rezoning
3248	4- 8-85	Rezoning
3249	4-22-85	1981 special assessment district no. 2 bonds
3250	4-22-85	1982 special assessment district no. 2 bonds
3269	4-22-85	Rezoning
3270	5-13-85	Rezoning
3275	5-28-85	Assigns hotel tax proceeds pursuant to 6-1-85 bond resolution
3280	5-28-85	Annexation
3281	5-28-85	Rezoning
3282	5-28-85	Annexation
3283	5-28-85	Rezoning
3284	5-28-85	Changes land use plan
3285	5-28-85	Changes land use plan
3286	6-10-85	Annexation
3287	6-10-85	Rezoning
3288	6-10-85	Rezoning
3289	6-10-85	Rezoning
3291	6-24-85	Changes land use plan
3292	6-24-85	Changes land use plan
3293	6-24-85	Rezoning
3294	6-24-85	Rezoning
3295	6-24-85	Rezoning
3298	7- 8-85	Annexation

Ordinance Number	Date	Description
3299	7- 8-85	General obligation street and storm drain bonds
3300	7-22-85	Rezoning
3301	7-22-85	Rezoning
3302	7-22-85	Rezoning
3303	7-22-85	Rezoning
3304	7-22-85	Rezoning
3306	8-26-85	Changes land use plan
3307	8-26-85	Rezoning
3308	8-26-85	Annexation
3309	8-26-85	Creates 1984 special assessment district no. 5
3311	9- 9-85	Rezoning
3312	9- 9-85	Annexation
3313	9- 9-85	Rezoning
3314	9-23-85	Rezoning
3315	9-23-85	Changes land use plan
3316	9-23-85	Amends Ord. No. 3091
3319	10-14-85	Annexation
3320	10-14-85	Changes land use plan
3321	10-14-85	Annexation
3322	10-14-85	Rezoning
3323	10-14-85	Rezoning
3324	10-14-85	Changes land use plan
3325	10-14-85	Rezoning
3326	10-14-85	Rezoning
3329	10-28-85	Annexation
3330	10-28-85	Annexation
3331	10-28-85	Rezoning
3332	10-28-85	Annexation
3333	10-28-85	General obligation capital improvement bonds, series 1985
3335	11-25-85	Annexation
3336	11-25-85	Annexation
3337	11-25-85	Rezoning
3338	11-25-85	Changes land use plan
3339	11-25-85	Changes land use plan
3340	11-25-85	Changes land use plan
3341	11-25-85	Changes land use plan
3342	11-25-85	Changes land use plan
3343	11-25-85	Rezoning
3350	1-27-86	Annexation
3351	1-27-86	Rezoning
3352	1-27-86	Rezoning
3353	1-27-86	Annexation
3354	1-27-86	Rezoning
3355	1-27-86	Rezoning
3356	1-27-86	Rezoning
3357	1-27-86	Rezoning
3363	2-10-86	Annexation
3364	2-10-86	Annexation

Ordinance Number	Date	Description
3365	2-10-86	Creates 1986 special assessment district no. 2
3366	2-10-86	Rezoning
3367	2-10-86	Annexation
3368	2-10-86	Rezoning
3372	3-10-86	Assessments for 1983 special assessment district no. 1
3373	3-10-86	Rezoning
3374	3-10-86	Rezoning
3375	3-10-86	Rezoning
3376	3-10-86	Rezoning
3377	3-10-86	Rezoning
3378	3-10-86	Rezoning
3379	3-10-86	Annexation
3380	3-24-86	Changes land use plan
3381	3-24-86	Rezoning
3382	3-24-86	Changes land use plan
3389	4-28-86	Creates 1986 special assessment district no. 1
3394	5-12-86	Rezoning
3395	5-12-86	Annexation
3396	5-12-86	Rezoning
3399	6- 9-86	1983 special assessment district no. 1 bonds
3407	6-23-86	Rezoning
3408	7-14-86	Annexation
3410	7-14-86	Rezoning
3411	7-14-86	Rezoning
3412	7-14-86	Rezoning
3413	7-14-86	Rezoning
3414	7-14-86	Rezoning
3415	7-14-86	Rezoning
3416	7-28-86	Rezoning
3419	8-11-86	Authorizes interim warrants for 1984 special assessment district no. 5
3420	8-11-86	Annexation
3421	8-25-86	Rezoning
3426	8-25-86	Authorizes interim warrants for 1985 special assessment district no. 1
3427	8-25-86	Annexation
3428	8-25-86	Rezoning
3430	9-22-86	Changes land use plan
3431	9-22-86	Rezoning
3434	10-27-86	Changes land use plan
3435	10-27-86	Changes land use plan
3436	10-27-86	Changes land use plan
3437	10-27-86	Changes land use plan
3438	10-27-86	Changes land use plan
3439	10-27-86	Changes land use plan
3445	12-22-86	Annexation
3446	12-22-86	Annexation
3447	12-22-86	Rezoning

Ordinance Number	Date	Description
3448	12-22-86	Rezoning
3449	12-22-86	Rezoning
3450	12-22-86	Rezoning
3458	1-26-87	Annexation
3459	1-26-87	Rezoning
3460	1-26-87	Rezoning
3461	1-26-87	Rezoning
3462	1-26-87	Rezoning
3464	2-23-87	Annexation
3465	2-23-87	Annexation
3466	2-23-87	Annexation
3467	2-23-87	Annexation
3468	2-23-87	Annexation
3469	2-23-87	Annexation
3470	2-23-87	Annexation
3471	2-23-87	Annexation
3472	2-23-87	Annexation
3473	2-23-87	Annexation
3474	2-23-87	Annexation
3475	2-23-87	Annexation
3476	2-23-87	Annexation
3477	2-23-87	Annexation
3478	2-23-87	Annexation
3479	2-23-87	Annexation
3480	2-23-87	Annexation
3481	2-23-87	Calls election
3484	3- 9-87	Rezoning
3485	3- 9-87	Rezoning
3486	3- 9-87	Rezoning
3487	3-23-87	Rezoning
3488	3-23-87	Rezoning
3492	4-27-87	Creates 1987 special assessment district no. 1
3510	6- 8-87	Changes land use plan
3511	6- 8-87	Changes land use plan
3512	6- 8-87	Changes land use plan
3513	6- 8-87	Rezoning
3514	6- 8-87	Rezoning
3515	6- 8-87	Rezoning
3516	6- 8-87	Rezoning
3517	6- 8-87	Rezoning
3518	6- 8-87	Rezoning
3519	6- 8-87	Rezoning
3520	6- 8-87	Rezoning
3521	6- 8-87	Rezoning
3522	6- 8-87	Rezoning
3523	6- 8-87	Rezoning
3524	6- 8-87	Rezoning
3525	6- 8-87	Rezoning

Ordinance Number	Date	Description
3526	6- 8-87	Authorizes interim warrants for 1987 special assessment district no. 1
3531	7-27-87	Rezoning
3532	7-27-87	Annexation
3533	8-10-87	Rezoning
3536	9-14-87	Annexation
3537	8-24-87	Modifies construction limits of the 1987 special assessment district no. 1
3538	8-24-87	Creates 1987 special assessment district no. 2
3540	8-24-87	Annexation
3541	8-24-87	Annexation
3542	8-24-87	Annexation
3543	8-24-87	Rezoning
3544	8-24-87	Rezoning
3545	8-24-87	Rezoning
3547	9-14-87	Annexation
3548	9-14-87	Annexation
3549	9-14-87	Rezoning
3550	9-14-87	Rezoning
3551	9-14-87	Rezoning
3552	9-14-87	Rezoning
3554	9-28-87	Changes land use plan
3555	9-28-87	Annexation
3556	9-28-87	Annexation
3557	9-28-87	Annexation
3558	9-28-87	Rezoning
3559	9-28-87	Rezoning
3560	9-28-87	Rezoning
3561	9-28-87	Rezoning
3562	9-28-87	Rezoning
3563	9-28-87	Rezoning
3564	10-12-87	Rezoning
3565	10-12-87	Rezoning
3566	10-12-87	Rezoning
3567	10-12-87	Rezoning
3568	10-12-87	Rezoning
3569	10-12-87	Rezoning
3570	10-12-87	Rezoning
3571	10-12-87	Rezoning
3572	10-12-87	Rezoning
3573	10-12-87	Rezoning
3574	10-12-87	Rezoning
3575	10-12-87	Annexation
3576	10-12-87	Rezoning
3577	10-12-87	Rezoning
3579	10-26-87	Annexation
3580	10-26-87	Annexation
3581	10-26-87	Annexation

Ordinance Number	Date	Description
3582	10-26-87	Annexation
3583	10-26-87	Annexation
3584	10-26-87	Annexation
3585	10-26-87	Annexation
3586	10-26-87	Annexation
3587	10-26-87	Annexation
3588	10-26-87	Annexation
3589	10-26-87	Annexation
3590	10-26-87	Annexation
3591	10-26-87	Rezoning
3592	10-26-87	Rezoning
3593	10-26-87	Rezoning
3594	10-26-87	Annexation
3597	11- 9-87	Rezoning
3598	11- 9-87	Rezoning
3600	11-23-87	Annexation
3601	11-23-87	Annexation
3602	11-23-87	Annexation
3603	11-23-87	Annexation
3604	11-23-87	Annexation
3605	11-23-87	Annexation
3606	11-23-87	Annexation
3607	11-23-87	Annexation
3609	12- 7-87	Assessments for 1984 special assessment district no. 5
3611	12-18-87	Rezoning
3612	12-18-87	Rezoning
3613	12-18-87	Rezoning
3614	12-18-87	Rezoning
3615	12-18-87	Rezoning
3616	12-18-87	Rezoning
3617	12-18-87	Rezoning
3618	12-18-87	Annexation
3619	1-25-88	Annexation
3620	1-25-88	Annexation
3621	1-25-88	Annexation
3622	1-25-88	Annexation
3623	1-25-88	Annexation
3624	1-25-88	Rezoning
3625	1-25-88	Annexation
3626	1-25-88	Changes land use plan
3627	1-25-88	Rezoning
3628	1-25-88	Rezoning
3629	1-25-88	Rezoning
3630	1-25-88	Rezoning
3632	2-22-88	Annexation
3633	2-22-88	Annexation
3634	2-22-88	Annexation
3635	2-22-88	Annexation

Ordinance Number	Date	Description
3636	2-22-88	Rezoning
3637	2-22-88	Rezoning
3638	2-22-88	Rezoning
3639	2-22-88	Rezoning
3640	2-22-88	Rezoning
3641	2-22-88	Rezoning
3642	2-22-88	Changes land use plan
3643	2-22-88	Rezoning
3644	2-22-88	Rezoning
3647	3-14-88	Rezoning
3648	3-28-88	Changes land use plan
3649	3-28-88	Rezoning
3650	3-28-88	Rezoning
3651	3-28-88	Rezoning
3652	3-28-88	Rezoning
3653	3-28-88	Rezoning
3654	3-28-88	Rezoning
3655	3-28-88	Annexation
3656	3-28-88	Annexation
3657	3-28-88	Annexation
3658	3-28-88	Annexation
3660	4-11-88	Rezoning
3661	4-11-88	Annexation
3663	4-11-88	Calls election
3664	4-25-88	Rezoning
3665	4-25-88	Rezoning
3666	4-25-88	Changes land use plan
3667	4-25-88	Changes land use plan
3668	4-25-88	Rezoning
3669	4-25-88	Changes land use plan
3670	4-25-88	Rezoning
3673	5- 9-88	Creates 1988 special assessment district no. 1
3674	5- 9-88	Annexation
3675	5- 9-88	Annexation
3676	5- 9-88	Annexation
3677	5- 9-88	Rezoning
3683	6-13-88	Rezoning
3684	6-13-88	Rezoning
3685	6-13-88	Rezoning
3686	6-27-88	Annexation
3687	6-27-88	Rezoning
3688	6-27-88	Changes land use plan
3689	6-27-88	Rezoning
3690	6-27-88	Rezoning
3696	7-11-88	Assessments for 1987 special assessment district no. 1
3697	7-11-88	Rezoning
3698	7-11-88	Rezoning
3704	7-25-88	Annexation

Ordinance Number	Date	Description
3708	8- 8-88	Annexation
3709	8- 8-88	Changes land use plan
3710	8- 8-88	Rezoning
3712	8-22-88	Rezoning
3713	8-22-88	Rezoning
3715	8-22-88	Rezoning
3718	9-12-88	Annexation
3719	9-12-88	Changes land use plan
3720	9-12-88	Rezoning
3721	9-12-88	Rezoning
3724	9-26-88	Changes land use plan
3725	9-26-88	Rezoning
3726	9-26-88	Rezoning
3727	9-26-88	Changes land use plan
3728	9-26-88	Annexation
3729	9-26-88	Annexation
3730	9-26-88	Rezoning
3731	9-26-88	Rezoning
3732	9-26-88	Rezoning
3733	9-26-88	Rezoning
3737	10-10-88	Rezoning
3738	10-24-88	Annexation
3739	10-24-88	1984 special assessment district no. 5 bonds
3740	11-14-88	Assessments for 1985 special assessment district no. 1
3741	11-14-88	Assessments for 1986 special assessment district no. 1
3742	11-14-88	Rezoning
3745	12-12-88	1987 special assessment district no. 1 bonds
3746	12-12-88	Annexation
3747	12-12-88	Changes land use plan
3748	12-12-88	Rezoning
3749	12-12-88	Changes land use plan
3750	12-12-88	Rezoning
3758	1-23-89	Rezoning
3760	2-13-89	Rezoning
3764	2-13-89	Issuance of general obligation (limited tax) capital improvement refunding bonds, series 1989
3766	2-27-89	Rezoning
3769	2-27-89	Provides for primary election to be held on May 2, 1989
3770	3-13-89	Assessments for 1985 special assessment district no. 1
3771	3-13-89	Assessments for 1986 special assessment district no. 1
3772	3-27-89	Annexation
3774	3-27-89	Annexation
3775	3-27-89	Rezoning
3786	4-10-89	Rezoning
3787	4-10-89	Rezoning
3788	4-10-89	Annexation
3789	4-10-89	Rezoning
3791	4-24-89	Annexation

Ordinance Number	Date	Description
3792	4-24-89	Annexation
3793	4-24-89	Rezoning
3794	5- 8-89	Assessments for 1989 special assessment district no. 1
3795	5- 8-89	Changes land use plan
3796	5- 8-89	Rezoning
3797	5- 8-89	Changes land use plan
3816	6-12-89	Assessments for 1988 special assessment district no. 1
3817	6-12-89	Annexation
3818	6-12-89	Amends repealed § 10.14.140 re child care facilities
3819	7-10-89	Annexation
3820	6-26-89	Annexation
3830	6-26-89	Issuance of registered, negotiable, general obligation golf course bonds 1989 series
3832	7-24-89	Annexation
3836	8-28-89	Assessments for 1989 special assessment district no. 2
3837	8-14-89	Annexation
3838	8-14-89	Rezoning
3839	8-14-89	Rezoning
3847	8-14-89	Annexation
3849	8-28-89	Rezoning
3851	8-28-89	Rezoning
3852	8-28-89	Annexation
3856	8-28-89	Annexation
3858	9-11-89	Assessments for 1989 special assessment district no. 2
3870	10- 9-89	Rezoning
3877	11-13-89	Annexation
3878	11-13-89	Annexation
3879	11-13-89	Rezoning
3880	11-13-89	Annexation
3881	11-13-89	Annexation
3882	11-13-89	Annexation
3883	11-13-89	Annexation
3884	11-13-89	Annexation
3885	11-13-89	Annexation
3891	12-11-89	Annexation
3892	12-11-89	Changes land use plan
3894	12-11-89	Changes land use plan
3895	12-11-89	Changes land use plan
3896	1- 9-90	Annexation
3897	1- 9-90	Annexation
3898	1- 9-90	Annexation
3899	1- 9-90	Annexation
3900	1- 9-90	Annexation
3901	1- 9-90	Annexation
3902	1- 9-90	Annexation
3903	1- 9-90	Annexation
3904	1- 9-90	Annexation
3905	1- 9-90	Annexation

Ordinance Number	Date	Description
3906	1- 9-90	Annexation
3907	1- 9-90	Annexation
3908	1- 9-90	Annexation
3909	1- 9-90	Annexation
3910	1- 9-90	Annexation
3911	1- 9-90	Annexation
3913	1- 9-90	Imposes additional one percent tax on the renting of rooms
3914	1-23-90	Rezoning
3915	1-23-90	Rezoning
3916	1-23-90	Rezoning
3917	1-23-90	Rezoning
3919	1-23-90	Rezoning
3920	1-23-90	Rezoning
3922	2-13-90	Rezoning
3926	2-27-90	Rezoning
3931	3-13-90	Rezoning
3933	3-27-90	Annexation
3934	3-27-90	Rezoning
3935	3-27-90	Rezoning
3936	3-27-90	Annexation
3937	3-27-90	Annexation
3938	3-27-90	Annexation
3939	3-27-90	Annexation
3940	3-27-90	Annexation
3941	3-27-90	Annexation
3942	3-27-90	Annexation
3943	3-27-90	Annexation
3946	4-24-90	Annexation
3947	4-24-90	Annexation
3948	4-24-90	Annexation
3949	4-24-90	Annexation
3951	5- 8-90	Rezoning
3954	5-22-90	1988 special assessment district no. 1 bonds
3955	5-22-90	1988 special assessment district no. 1 bonds
3956	5-22-90	1990 special assessment district no. 1 bonds
3957	5-22-90	Rezoning
3962	6-12-90	Annexation
3963	6-12-90	Changes land use plan
3964	6-12-90	Changes land use plan
3965	6-12-90	Rezoning
3969	6-26-90	Rezoning
3970	6-26-90	Annexation
3971	6-26-90	Annexation
3972	6-26-90	Annexation
3973	6-26-90	Annexation
3974	6-26-90	Annexation
3979	7-24-90	Issuance of warrants for 1990 special assessment district no. 1
3980	7-24-90	Annexation

Ordinance Number	Date	Description
3981	7-24-90	Rezoning
3985	8-14-90	Annexation
3986	8-14-90	Rezoning
3987	8-14-90	Rezoning
3992	8-28-90	Annexation
3993	8-28-90	Rezoning
3998	9-11-90	Annexation
4000	9-11-90	Rezoning
4001	9-11-90	Annexation
4002	9-11-90	Annexation
4003	9-11-90	Annexation
4004	9-11-90	Annexation
4005	9-11-90	Annexation
4006	9-11-90	Annexation
4012	9-25-90	Annexation
4013	9-25-90	Rezoning
4015	10- 9-90	Annexation
4016	10- 9-90	Annexation
4017	10- 9-90	Annexation
4018	10- 9-90	Annexation
4019	10- 9-90	Annexation
4022	11-13-90	Detaches property
4024	11-27-90	Rezoning
4025	11-27-90	Rezoning
4026	11-27-90	Rezoning
4036	12-11-90	Rezoning
4039	12-11-90	Rezoning
4040	12-11-90	Rezoning
4041	12-11-90	Modifies redevelopment plan
4042	12-11-90	Designates change in time of council meeting
4047	1-22-91	Rezoning
4048	1-22-91	Rezoning
4049	1-22-91	Annexation
4050	1-22-91	Annexation
4051	1-22-91	Rezoning
4056	2-26-91	Rezoning
4057	2-26-91	Annexation
4058	2-26-91	Rezoning
4059	2-26-91	Municipal elections
4061	3-12-91	Rezoning
4062	3-12-91	Annexation
4065	3-12-91	Time for council meetings
4066	3-12-91	Short-term bonds
4070	3-26-91	Rezoning
4071	3-26-91	Changes land use plan
4072	3-26-91	Rezoning
4073	3-26-91	Changes land use plan
4074	3-26-91	Annexation

Ordinance Number	Date	Description
4075	3-26-91	Annexation
4076	3-26-91	Annexation
4077	3-26-91	Annexation
4078	3-26-91	Annexation
4079	3-26-91	Annexation
4080	3-26-91	Annexation
4081	3-26-91	Annexation
4084	4- 9-91	Rezoning
4085	4-23-91	Annexation
4086	4-23-91	Rezoning
4087	4-23-91	Rezoning
4088	4-23-91	Changes land use plan
4089	4-23-91	Changes land use plan
4090	4-23-91	Annexation
4091	4-23-91	Changes land use plan
4092	4-23-91	Rezoning
4095	4-23-91	Rezoning
4099	5-28-91	Rezoning
4100	5-28-91	Changes land use plan
4101	5-28-91	Rezoning
4102	5-28-91	Rezoning
4103	5-28-91	Rezoning
4104	5-28-91	Annexation
4105	5-28-91	Rezoning
4107	5-28-91	Rezoning
4108	5-28-91	Rezoning
4109	5-28-91	Rezoning
4111	5-28-91	Changes land use plan
4116	6-25-91	Street-alley improvements
4118	6-25-91	Annexation
4125	7- 9-91	Annexation
4127	7- 9-91	Changes time of council meetings
4130	7-23-91	Rezoning
4131	7-23-91	Rezoning
4132	7-23-91	Rezoning
4133	7-23-91	Rezoning
4137	8-13-91	Rezoning
4142	8-27-91	Street improvements
4146	9-10-91	Rezoning
4149	9-24-91	Annexation
4150	9-24-91	Annexation
4151	9-24-91	Annexation
4152	9-24-91	Rezoning
4153	9-24-91	Rezoning
4154	9-24-91	Annexation
4155	9-24-91	Annexation
4163	10-22-91	Rezoning
4165	11-12-91	Street and sanitary sewer improvements

Ordinance Number	Date	Description
4168	11-26-91	Changes date of council meeting
4170	11-26-91	Rezoning
4173	12-10-91	Rezoning
4180	2-11-92	1987 special assessment district no. 2 bonds
4181	2-11-92	1989 special assessment district no. 1 bonds
4182	2-11-92	1990 special assessment district no. 1 bonds
4184	2-25-92	Room tax 1991-92
4185	2-25-92	Rezoning
4187	2-25-92	Rezoning
4190	3-10-92	Rezoning
4191	3-10-92	Rezoning
4192	3-10-92	Rezoning
4193	3-10-92	Annexation
4194	3-10-92	Annexation
4200	4-14-92	Issuing of bonds
4201	4-14-92	Assessments for 1989 special assessment district no. 2
4204	4-14-92	Rezoning
4205	4-14-92	Rezoning
4210	4-28-92	Rezoning
4211	4-28-92	Rezoning
4212	4-28-92	Rezoning
4213	4-28-92	Rezoning
4214	4-28-92	Rezoning
4215	4-28-92	Rezoning
4216	4-28-92	Rezoning
4225	5-12-92	Rezoning
4227	5-12-92	Rezoning
4228	5-12-92	Rezoning
4229	5-26-92	Rezoning
4233	6- 9-92	Rezoning
4239	6- 9-92	Rezoning
4240	6- 9-92	Rezoning
4241	6- 9-92	Special assessment bonds
4242	6-23-92	Short-term bonds
4244	6-23-92	Rezoning
4249	7-14-92	Rezoning
4250	7-14-92	Rezoning
4251	7-14-92	Rezoning
4252	7-28-92	Rezoning
4253	7-28-92	Annexation
4256	7-28-92	Annexation
4259	8-11-92	Annexation
4260	8-11-92	Annexation
4262	8-25-92	Annexation
4263	8-25-92	Rezoning
4264	8-25-92	Rezoning
4265	8-25-92	Rezoning
4266	8-25-92	Rezoning

Ordinance Number	Date	Description
4267	8-25-92	Rezoning
4268	9- 8-92	Rezoning
4269	9- 8-92	Rezoning
4270	9- 8-92	Annexation
4273	9-22-92	Rezoning
4275	10-13-92	Annexation
4277	10-27-92	Rezoning
4278	10-27-92	Rezoning
4281	11-24-92	Annexation
4282	11-24-92	Rezoning
4285	12- 8-92	Rezoning
4287	1-12-93	Annexation
4288	1-12-93	Rezoning
4292	1-26-93	Rezoning
4294	2-23-93	Concerning municipal elections
4295	2-23-93	Rezoning
4298	3-23-93	Assessments for 1992 special assessment district no. 1
4300	3-23-93	Rezoning
4301	3-23-93	Rezoning
4304	4-13-93	Issuance of bonds
4307	4-27-93	Rezoning
4309	4-27-93	Rezoning
4310	4-27-93	Rezoning
4312	5-11-93	Rezoning
4319	6-22-93	Rezoning
4320	6-22-93	Rezoning
4321	7-13-93	Annexation
4322	7-13-93	Annexation
4323	7-13-93	Annexation
4324	7-27-93	Assessments for 1993 special assessment district no. 1
4325	8-10-93	Rezoning
4326	8-10-93	Rezoning
4327	8-10-93	Rezoning
4330	9-14-93	Rezoning
4331	9-14-93	Rezoning
4332	9-14-93	Rezoning
4333	8-14-93	Annexation
4340	8-28-93	Annexation
4347	10-26-93	Issuance of bonds
4348	10-26-93	Annexation
4349	10-26-93	Annexation
4350	10-26-93	Rezoning
4351	10-26-93	Rezoning
4352	11- 9-93	Rezoning
4353	11- 9-93	Rezoning
4354	11- 9-93	Rezoning
4355	11-23-93	Rezoning
4357	12-28-93	Rezoning

Ordinance Number	Date	Description
4358	12-28-93	Rezoning
4360	1-11-94	Rezoning
4373	3-22-94	Amends Ord. No. 4184 re. public safety
4379	5-10-94	Annexation
4381	5-10-94	Rezoning
4382	5-10-94	Rezoning
4383	5-10-94	Rezoning
4384	5-10-94	Rezoning
4385	5-10-94	Rezoning
4387	5-24-94	Rezoning
4388	5-24-94	Annexation
4389	5-24-94	Rezoning
4390	5-24-94	Rezoning
4391	5-24-94	Rezoning
4394	6-14-94	Rezoning
4396	6-14-94	Annexation
4397	6-14-94	Rezoning
4398	6-14-94	Rezoning
4399	6-28-94	Annexation
4401	7-12-94	Annexation
4402	7-12-94	Annexation
4403	7-12-94	Rezoning
4404	7-12-94	Rezoning
4405	7-26-94	Annexation
4406	7-26-94	Rezoning
4407	7-26-94	Rezoning
4410	8- 9-94	Rezoning
4411	8- 9-94	Rezoning
4415	8-23-94	Rezoning
4416	8-23-94	Rezoning
4417	8-23-94	Rezoning
4419	8-23-94	Rezoning
4420	8-23-94	Rezoning
4422	9-27-94	Rezoning
4423	9-27-94	Rezoning
4424	9-27-94	Rezoning
4425	9-27-94	Rezoning
4426	9-27-94	Rezoning
4430	10-11-94	Rezoning
4431	10-11-94	Rezoning
4433	10-25-94	Annexation
4434	10-25-94	Rezoning
4435	10-25-94	Rezoning
4436	10-25-94	Rezoning
4437	10-25-94	Rezoning
4438	10-25-94	Rezoning
4441	11- 8-94	Rezoning
4442	11- 8-94	Rezoning

Ordinance Number	Date	Description
4443	11- 8-94	Rezoning
4444	11- 8-94	Rezoning
4447	11-22-94	Annexation
4448	12-13-94	Annexation
4453	1-10-95	Rezoning
4454	1-10-95	Rezoning
4455	1-10-95	Rezoning
4456	1-10-95	Rezoning
4457	1-10-95	Rezoning
4458	1-10-95	Rezoning
4459	1-10-95	Rezoning
4460	1-10-95	Rezoning
4461	1-10-95	Rezoning
4462	1-10-95	Rezoning
4465	1-24-95	Rezoning
4468	1-24-95	Rezoning
4469	1-24-95	Rezoning
4470	1-24-95	Rezoning
4471	1-24-95	Annexation
4472	1-24-95	Rezoning
4474	2-14-95	Annexation
4475	2-14-95	Rezoning
4477	2-14-95	Rezoning
4478	2-14-95	Rezoning
4480	2-28-95	Rezoning
4481	2-28-95	Rezoning
4486	2-28-95	Rezoning
4487	2-28-95	Annexation
4488	2-28-95	Municipal election
4489	2-28-95	Rezoning
4491	3-28-95	Rezoning
4492	3-28-95	Rezoning
4494	4-11-95	Rezoning
4495	4-11-95	Rezoning
4496	4-11-95	Rezoning
4498	4-25-95	Rezoning
4499	4-25-95	Rezoning
4500	4-25-95	Rezoning
4501	4-25-95	Rezoning
4502	4-25-95	Rezoning
4508	5-23-95	Street and sanitary sewer improvements
4509	5-23-95	Rezoning
4512	6-13-95	Annexation
4513	6-13-95	Right-of-way at intersections
4514	6-13-95	Rezoning
4515	6-13-95	Rezoning
4516	6-13-95	Rezoning
4528	6-27-95	Rezoning

Ordinance Number	Date	Description
4529	6-27-95	Annexation
4530	6-27-95	Rezoning
4531	6-27-95	Rezoning
4532	6-27-95	Rezoning
4533	6-27-95	Rezoning
4534	6-27-95	Rezoning
4540	7-25-95	Rezoning
4541	7-25-95	Time change of regular meetings
4550	8-22-95	Rezoning
4551	8-22-95	Rezoning
4552	8-22-95	Rezoning
4553	8-22-95	Rezoning
4554	8-22-95	Rezoning
4555	8-22-95	Rezoning
4556	8-22-95	Rezoning
4561	9-26-95	Rezoning
4569	10-10-95	Rezoning
4570	10-10-95	Rezoning
4572	11-14-95	Rezoning
4574	11-14-95	Rezoning
4575	11-14-95	Regional road impact fee
4576	11-28-95	Special assessment bonds
4577	11-28-95	Special assessment bonds
4578	11-28-95	Rezoning
4580	12-12-95	Annexation
4581	12-12-95	Annexation
4582	1- 9-96	Rezoning
4583	1- 9-96	Rezoning
4584	1- 9-96	Rezoning
4588	1-23-96	Annexation
4589	1-23-96	Rezoning
4590	1-23-96	Rezoning
4591	1-23-96	Rezoning
4592	1-23-96	Rezoning
4593	1-23-96	Rezoning
4594	1-23-96	Rezoning
4595	2-13-96	Rezoning
4596	2-27-96	Annexation
4597	2-27-96	Rezoning
4598	2-27-96	Rezoning
4604	3-12-96	Rezoning
4609	3-26-96	Rezoning
4610	3-26-96	Rezoning
4611	3-26-96	Rezoning
4612	3-26-96	Rezoning
4614	4- 9-96	Rezoning
4615	4- 9-96	Annexation
4616	4- 9-96	Rezoning

Ordinance Number	Date	Description
6418	11-16-16	Rezoning
6419	11-16-16	Annexation
6420	12- 7-16	PUD design standards
6421	1-11-17	Rezoning
6422	1-11-17	Rezoning
6424	1-25-17	PUD design standards
6425	1-25-17	Special assessment
6426	2- 8-17	Rezoning
6427	2- 8-17	Rezoning
6432	8- 9-17	Rezoning
6437	9-27-17	PUD design standards
6443	1-10-18	PUD design standards
6444	1-10-18	Rezoning
6445	1-10-18	Rezoning
6450	2-14-18	Annexation
6440	12- 6-17	Rezoning
6442	12- 6-17	Rezoning
6452	2-28-18	Special assessment
6453	3-14-18	Rezoning
6454	3-14-18	Rezoning
6455	3-14-18	Rezoning
6460	4-11-18	Sales tax revenue bonds
6462	4-25-18	Annexation
6463	4-25-18	Annexation
6464	5-23-18	Rezoning
6469	7-18-18	Rezoning
6470	7-18-18	PUD design standards
6471	7-18-18	Rezoning
6472	7-18-18	Rezoning
6473	7-18-18	Rezoning
6477	8- 8-18	Rezoning
6480	8-22-18	Rezoning
6481	8-22-18	Rezoning
6483	9-12-18	Annexation
6484	9-12-18	Annexation
6487	10-24-18	Annexation
6488	11-14-18	Rezoning
6489	11-14-18	Rezoning
6492	12-18-18	Rezoning
6494	1- 9-19	Annexation
6501	2-27-19	Special assessment
6503	2-27-19	Rezoning
6504	3-13-19	Rezoning
6505	3-13-19	Rezoning
6506	3-13-19	Annexation
6507	3-27-19	Rezoning
6509	4-24-19	Rezoning
6510	4-24-19	Rezoning

Ordinance Number	Date	Description
6519	7-24-19	Rezoning
6521	8-14-19	Rezoning
6523	9-11-19	Rezoning
6526	10-23-19	Rezoning
6527	10-23-19	Rezoning
6528	10-23-19	Rezoning
6529	12- 4-19	Rezoning
6530	12- 4-19	Annexation
6531	12- 4-19	Rezoning
6532	12- 4-19	Bond/General Tax proceeds
6537	1- 8-20	Amend 2003 Special Assessment District No. 4
6539	1- 8-20	Annexation
6541	1-22-20	Rezoning
6542	2-12-20	Building Permit and Sewer Connection Fee Deferral
6546	2-26-20	Rezoning
6549	2-26-20	Bond/General Obligation(Limited Tax)
6550	2-26-20	Rezoning
6551	2-26-20	Rezoning
6552	2-26-20	Rezoning
6561	4-22-20	Amend 2019 Special Assessment District No. 1
6562	5-13-20	Rezoning
6563	5-13-20	Rezoning
6564	5-27-20	Levy and Manner of Collection of Assessments, Downtown Business Improvement District
6573	8-12-20	Rezoning
6574	8-12-20	Rezoning
6576	9- 9-20	Rezoning
6577	9- 9-20	Rezoning
6579	10-14-20	PUD design standards
6587	1-13-21	Annexation
6588	2-24-21	Special assessment
6589	2-24-21	Rezoning
6590	3-10-21	Rezoning
6591	4-14-21	Rezoning
6592	4-14-21	Rezoning
6593	5-12-21	Rezoning
6595	5-26-21	Levy and collection of assessments
6596	6- 2-21	Special assessment
6597	6- 6-21	Rezoning
6598	7-21-21	Special assessment
6599	8-11-21	Rezoning
6600	8-11-21	Special assessment
6601	8-25-21	Rezoning
6602	9- 8-21	Rezoning
6603	9- 8-21	Rezoning
6604	9-22-21	Redevelopment
6605	9-22-21	Redevelopment

Ordinance Number	Date	Description
4775	7-22-97	Rezoning
4777	8-12-97	1997 recreational facilities bond ordinance
4778	8-12-97	1997 street refunding bond ordinance
4779	8-12-97	Rezoning
4782	8-26-97	Rezoning
4785	9- 9-97	Rezoning
4786	9- 9-97	Rezoning
4787	9- 9-97	Rezoning
4788	9- 9-97	Rezoning
4789	9- 9-97	Rezoning
4790	9- 9-97	Annexation
4791	9-23-97	Rezoning
4793	10-14-97	Annexation
4795	10-14-97	Rezoning
4796	10-14-97	Rezoning
4797	10-14-97	Annexation
4798	10-28-97	Rezoning
4799	10-28-97	Rezoning
4800	10-28-97	Rezoning
4801	10-28-97	Rezoning
4802	10-28-97	Rezoning
4803	10-28-97	Rezoning
4804	10-28-97	Rezoning
4805	10-28-97	Rezoning
4806	10-28-97	Rezoning
4807	10-28-97	Rezoning
4811	10-28-97	Rezoning
4812	10-28-97	Rezoning
4817	10-28-97	Rezoning
4818	11-18-97	Rezoning
4819	11-18-97	Rezoning
4820	11-18-97	Rezoning
4824	1-13-98	Revenue from business license fees
4827	1-13-98	Rezoning
4828	1-13-98	Annexation
4831	1-13-98	Annexation
4832	1-13-98	Rezoning
4833	1-13-98	Rezoning
4834	1-13-98	Annexation
4835	1-13-98	Annexation
4836	1-13-98	Annexation
4842	1-27-98	Annexation
4843	1-27-98	Rezoning
4844	1-27-98	Rezoning
4845	2-10-98	Rezoning
4846	2-10-98	Rezoning
4847	2-10-98	1998 Special assessment district no. 1
4850	2-24-98	Rezoning

Ordinance Number	Date	Description
4851	3-10-98	Rezoning
4852	3-10-98	Annexation
4853	3-24-98	Rezoning
4855	4-14-98	Rezoning
4856	4-14-98	Rezoning
4857	4-14-98	Rezoning
4858	4-14-98	Rezoning
4861	4-14-98	Rezoning
4862	4-14-98	Rezoning
4863	4-14-98	Rezoning
4864	4-14-98	1998 Special assessment district no. 2
4865	4-28-98	Annexation
4866	4-28-98	Rezoning
4872	5-12-98	Annexation
4874	5-26-98	Annexation
4875	5-26-98	Rezoning
4881	5-26-98	Rezoning
4882	5-26-98	Annexation
4883	5-26-98	Rezoning
4884	5-26-98	Rezoning
4885	5-26-98	Rezoning
4886	5-26-98	Annexation
4887	5-26-98	Rezoning
4888	5-26-98	Rezoning
4889	5-26-98	Rezoning
4890	6- 9-98	Issuance of negotiable special obligation interim warrants
4892	6-23-98	Rezoning
4893	6-23-98	Rezoning
4898	7-14-98	Rezoning
4899	7-14-98	Rezoning
4900	7-14-98	Rezoning
4901	7-14-98	Rezoning
4902	7-14-98	Rezoning
4903	7-14-98	Rezoning
4904	7-14-98	Annexation
4906	9- 8-98	Rezoning
4908	9- 8-98	Rezoning
4909	9- 8-98	Rezoning
4910	9- 8-98	Rezoning
4911	9-22-98	Rezoning
4912	9-22-98	Rezoning
4913	9-22-98	Rezoning
4919	10-13-98	Rezoning
4920	10-13-98	Rezoning
4922	10-27-98	Rezoning
4923	10-27-98	Rezoning
4924	10-27-98	Annexation
4925	10-27-98	Rezoning

Ordinance Number	Date	Description
4926	10-27-98	Rezoning
4930	11-10-98	Annexation
4931	11-10-98	Rezoning
4932	11-10-98	Creates 1999 Special Assessment District No. 2
4933	11-24-98	Rezoning
4934	11-24-98	Rezoning
4935	11-24-98	Rezoning
4939	12- 8-98	1998 sales and room tax revenue bond ordinance
4940	12- 8-98	Annexation
4944	12-15-98	Amends 1998 sales and room tax revenue bond ordinance
4946	1-12-99	Rezoning
4947	1-12-99	Rezoning
4948	1-12-99	Rezoning
4950	1-12-99	Annexation
4958	1-26-99	Rezoning
4959	1-26-99	Rezoning
4961	1-26-99	Rezoning
4962	2- 9-99	Annexation
4963	2- 9-99	Annexation
4964	2- 9-99	1999 Special Assessment District No. 1
4965	2- 9-99	Rezoning
4966	2- 9-99	Rezoning
4967	2- 9-99	Rezoning
4968	2- 9-99	Annexation
4969	2- 9-99	Annexation
4970	2-23-99	Issuance of special obligation interim warrants
4971	2-23-99	Rezoning
4972	2-23-99	Rezoning
4974	3- 9-99	Rezoning
4975	3- 9-99	Annexation
4976	3-23-99	Confirms the proceedings taken in providing for certain sanitary sewer improvements
4977	3-23-99	Confirms the proceedings taken in providing for certain sidewalk, driveway approach and entry walk improvements
4978	3-23-99	Confirms the proceedings taken in providing for certain sidewalk, driveay approach, entry walk, valley gutter and curb and gutter improvements
4979	3-23-99	Annexation
4980	3-23-99	Rezoning
4981	3-23-99	Rezoning
4982	3-23-99	Rezoning
4983	3-23-99	Rezoning
4998	4-13-99	Rezoning
4999	4-13-99	Rezoning
5000	4-27-99	Rezoning
5001	5-11-99	Rezoning
5002	5-11-99	Rezoning
5003	5-11-99	Annexation

Ordinance Number	Date	Description
5004	5-11-99	Annexation
5005	5-25-99	Issuance of special assessment bonds
5007	5-25-99	Rezoning
5008	5-25-99	Rezoning
5009	6-22-99	1999 Special assessment district no. 3
5015	7- 6-99	Annexation
5022	7- 6-99	Rezoning
5023	7- 6-99	Rezoning
5024	7- 6-99	Annexation
5025	7- 6-99	Rezoning
5026	7- 6-99	Rezoning
5027	7- 6-99	Annexation
5028	7- 6-99	Rezoning
5029	7- 6-99	Rezoning
5031	8-17-99	Rezoning
5032	8-17-99	Rezoning
5033	8-17-99	Rezoning
5034	8-17-99	Rezoning
5037	9-14-99	Rezoning
5038	9-14-99	Rezoning
5039	9-14-99	Rezoning
5040	9-14-99	Annexation
5044	9-14-99	Rezoning
5045	9-28-99	Annexation
5054	9-28-99	Rezoning
5060	10-26-99	Rezoning
5061	10-26-99	Rezoning
5093	11- 9-99	Rezoning
5095	11-23-99	Rezoning
5096	11-23-99	Rezoning
5097	11-23-99	Rezoning
5098	11-23-99	Rezoning
5103	12-14-99	Rezoning
5104	12-14-99	Provides for certain sidewalk, driveway approach and entry walk imporvements in the City of Reno, 1997 Special Assessment District No. 3
5105	12-14-99	Provides for certain sidewalk, driveway approach and entry walk imporvements in the City of Reno, 1997 Special Assessment District No. 1
5106	12-14-99	Provides for certain sidewalk, driveway approach and entry walk imporvements in the City of Reno, 1997 Special Assessment District No. 2
5107	1-11-00	Provides for certain sidewalk, driveway approach and entry walk imporvements in the City of Reno, 1997 Special Assessment District No. 2
5108	1-11-00	Annexation
5109	1-11-00	Rezoning
5111	1-11-00	Rezoning

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5114	1-11-00	Rezoning
5115	1-11-00	Rezoning
5116	1-25-00	Rezoning
5118	1-25-00	Annexation
5120	1-25-00	Rezoning
5121	1-25-00	Rezoning
5122	2- 8-00	2000 Special Assessment District No. 1
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5127	2-22-00	Rezoning
5128	2-22-00	Rezoning
5131	2-22-00	Rezoning
5132	2-22-00	Rezoning
5123	2-22-00	Rezoning
5134	2-22-00	Rezoning
5135	2-22-00	Rezoning
5136	2-22-00	Rezoning
5137	3-14-00	Rezoning
5138	3-28-00	Rezoning
5139	3-28-00	Special assessment bonds 1997 No.2, 1997 No. 3, 1998 No. 1, 1998 No. 2
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5141	3-28-00	Rezoning
5142	3-28-00	Rezoning
5143	4-11-00	Annexation
5145	4-11-00	Rezoning
5146	4-25-00	Rezoning
5149	5- 9-00	Annexation
5150	5- 9-00	Rezoning
5153	6-13-00	Annexation
5154	6-13-00	Rezoning
5155	6-13-00	Rezoning
5157	6-27-00	Rezoning
5158	6-27-00	Rezoning
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5163	7-11-00	Rezoning
5164	7-18-00	City of Reno 2000 Special Assessment District No. 2
5165	8- 1-00	2000 sales and room tax revenue bond ordinance
5168	8- 1-00	Rezoning
5169	8- 1-00	Rezoning
5170	8- 1-00	Rezoning
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5175	9-12-00	Rezoning
5176	9-12-00	Rezoning
5177	9-12-00	Rezoning
5178	9-12-00	Rezoning

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5180	9-12-00	Rezoning
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5182	9-12-00	Rezoning
5183	9-12-00	Rezoning
5184	9-12-00	Rezoning
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5186	9-26-00	Annexation
5187	9-26-00	Rezoning
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5200	10-24-00	Approves a development agreement with Taubman Western Associates No. 2, LLC
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5202	10-24-00	Annexation
5203	10-24-00	Amends the standards contained in the SPD district
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5218	2-13-01	Rezoning
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5221	2-27-01	Rezoning
5223	2-27-01	Rezoning
5225	2-27-01	Rezoning
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5243	5-22-01	Rezoning
5244	6-12-01	Annexation
5245	6-12-01	Annexation
5247	6-12-01	Rezoning
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5260	7-24-01	Special use change
5261	7-24-01	Rezoning
5262	7-24-01	Rezoning
5263	7-24-01	Rezoning
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5266	9-25-01	Rezoning
5267	9-25-01	Annexation
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5273	10- 9-01	Rezoning
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5277	10- 9-01	Amends text in the SPD handbook
5278	10- 9-01	Rezoning
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5283	10-23-01	Rezoning
5284	10-23-01	Rezoning
5285	10- 9-01	Amends text in the SPD handbook
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5287	10-23-01	Rezoning
5291	10-23-01	Rezoning
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5293	12-11-01	Rezoning
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5300	1-22-02	Rezoning
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5314	3-12-02	Rezoning
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5319	3-26-02	Rezoning
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5343	5-28-02	2002 Special Assessment District No. 2
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5354	6-11-02	Annexation
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6419	11-16-16	Annexation
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6422	1-11-17	Rezoning
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6455	3-14-18	Rezoning
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6588	2-24-21	Special assessment
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6628	5-25-22	Rezoning
6629	5-25-22	Issuance of Limited Tax Subordinate Lien Bonds
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*__Note—__The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

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